

**Triffterer / Ambos**

# **The Rome Statute of the International Criminal Court**

**A Commentary**

**Third Edition**

**C.H.BECK · Hart · Nomos**

In Memoriam

**Otto Triffterer**

1931–2015



## Editor's Preface

This commentary was founded by Prof. Otto Triffterer shortly after the adoption of the Rome Statute of the International Criminal Court. Its first edition appeared in 1999 and quickly became the number one reference for ICC practitioners and academics alike. The second edition followed almost 10 years later in 2008; now, almost eight years afterwards, we hereby publish the third edition. This new edition should have come out some time ago, of course, but *force majeure* has made it impossible to proceed as Otto Triffterer originally planned. In fact, he entrusted the undersigned with the editorial responsibility for this edition and I sincerely hope that the end result of this collective enterprise – a joint effort of editor, authors and publisher – would have been to the full satisfaction of the commentary's founder. Unfortunately Otto Triffterer died on 1 June 2015 and thus could not see how his "baby" has grown and flourished. This edition is therefore dedicated to his memory.

International criminal law is a dynamic, rapidly evolving field. The case law of the International Criminal Court, as the main driver of this development, has grown enormously in the past eight years and expanded into previously unknown areas. Here is not the place to go into detail; suffice it to refer to some articles of the Rome Statute whose commentary in this new edition had to be revised completely and expanded considerably in size (e.g. Articles 7, 8, 11, 17, 25, 56, 61, 64, 65, 72, 83, 98), to say nothing of the completely new entries (Articles 8(2)(e)(xiii)-(xv), 8*bis*, 15*bis*, 15*ter*).

This commentary is (still) a work in progress. We have involved a number of new authors who come from both an academic and a practical background, and this refreshing of the authorship will continue in the next editions. We have introduced some editorial changes; however, these may not have been fully implemented throughout the whole book. We have added a list of general literature and an index, but have decided to abstain from publishing any annexes with normative or other material (which is easily accessible on the internet) in order to avoid any further increase to the size and price of the book.

I am very grateful to all authors, some of whom (especially the new ones) had to update and completely revise some entries in the midst of various other important commitments within extremely short time frames. I am also indebted to the former President of the Court, Judge Song, and the current President, Judge Silvia Fernández de Gurmendi, who prepared a special introduction for this edition shortly after her appointment on 11 March 2015, *inter alia* setting out the Court's future challenges. These considerations are of special importance for the future of this commentary, which is designed not only to set standards in the field of international criminal law but also to be a useful working tool for the Court in the spirit of a constructive engagement with its jurisprudence. I would also like to thank my editorial team at my chair at the Georg-August-Universität Göttingen (in particular Wiebke Westermann and Michael Zornow, but also Muriel Nißle, Joschka Schlake and Cindy Vu) who did a great job in helping to adjust the entries to our new editorial guidelines. Last but not least, it was a great pleasure to cooperate on this project with Dr. Warth of C.H. Beck, who took a personal interest in it and made a smooth publication possible.

Kai Ambos, Göttingen, October 2015



## Introductions to the Third Edition

### Judge Sang-Hyun Song, Former President of the ICC

In 1945, at a time where international law paid little or no regard to individuals, the creators of the Nuremberg International Military Tribunal spearheaded a most remarkable development in modern legal history:

First, the Statute of the Military Tribunal stipulated that individuals can and should be held accountable for crimes which constitute violations of international law. As was famously declared by the judges of the Tribunal in its Judgement, “[c]rimes against international law are committed by men, not by abstract entities, and only by punishing individuals who commit such crimes can the provisions of international law be enforced.”

Second, the Tribunal embodied the modern conviction that individuals should only be punished through a fair trial which safeguards the rights of the accused.

As we now today, the Nuremberg proceedings had wide-ranging effects throughout the field of international law. In 1950, only four years after the final verdict against 21 defendants had been rendered, the United Nations’ International Law Commission codified what is often called the legacy of Nuremberg: it adopted a text setting out some of the most fundamental principles of international criminal law recognized in the Charter and the Judgement of the International Military Tribunal. These “Nuremberg Principles” have been widely cited by international lawyers ever since, and are at the core of international criminal law today, as evidenced by the fact that they are mirrored in the Rome Statute. But these Principles are only one part of the Nuremberg Tribunal’s legacy. Shortly after the judgement had been handed down, one of the alternate judges of the Tribunal, Justice John Parker, spoke about the possible legacy of the Tribunal. He said: “It is not too much to hope that what we have done [in establishing the Tribunal] may have laid the foundation for the building of a permanent court with a code defining crimes of an international character and providing for their punishment.”

The 70 years after Nuremberg have seen over 40 years of an “iron curtain” that fell across Europe; the fall of the Berlin Wall; the re-emergence of the concept of international criminal justice in the establishment of the *ad hoc* International Criminal Tribunals by the United Nations in 1993 and 1994 in response to atrocities committed in the former Yugoslavia and the Rwandan genocide; and finally the high point of international criminal justice in the 20<sup>th</sup> century: the adoption of the Rome Statute in 1998.

The ICC today is a permanent, readily-available court with a broad jurisdiction, currently covering 122 States Parties. With Libya, the Court has received its second situation by way of a – unanimous – referral of the UN Security Council in 2011 (after the UN Security Council referral in 2005 of the situation in Darfur to the ICC). In addition, with the opening of a situation in Côte d’Ivoire by the end of 2011, the Court has received its first situation by way of an *ad hoc* acceptance of jurisdiction pursuant to Article 12(3) of the Rome Statute. In its past 12 years of operation, the ICC has turned into a very busy international judicial institution. Its achievements have been many and varied. Its first trials have come to an end and others are in full swing. The Court has initiated for the first time its reparations regime following the first trial judgement in the case against Mr. *Thomas Lubanga Dyilo*. Reparations proceedings have also commenced following the issuance of the trial judgment in the case against Mr. *Germain Katanga* – the first judgment that has become final before the ICC. The Appeals Chamber is seized of a number of final and interlocutory appeals, with its first appeals judgment rendered on 1 December of this year. Investigations are ongoing in nine situations in eight countries and thirteen arrest warrants still remain outstanding at the end of December 2014. In 2015, trials will start in no less than four cases. Clearly, for the

foreseeable future the ICC will be busy carrying out the mandate it was assigned by the international community.

The most prominent achievements of the Preparatory Commission resulting from its work from 1999 through 2002, the Court's Rules of Procedure and Evidence ("Rules") as well as the Elements of Crimes, have been thoroughly tested since the Court took up its operations on 1 July 2002. States' confidence in these texts as reflected in the adoption by consensus of the Rules and the Elements of Crimes at the first session of the Assembly of States Parties ("ASP") in 2002 has not been disappointed; both texts continue to be applied and interpreted in court and the Court's jurisprudence grows steadily, as amply reflected in this Third Edition. In addition, in 2012 the judges have commenced a "lessons learnt" exercise, looking at the Court's handling of its regulatory framework in judicial proceedings with a view to identifying room for further improvement and streamlining without negatively impacting on the rights of the defence. As a first result of this exercise, the ASP adopted in November 2012 a new Rule 132*bis* in the Rules to allow a single judge instead of a three-judge Chamber to conduct a number of trial preparation functions in the period between the confirmation of charges and the start of the actual trial in order to administer the trial preparation phase more expeditiously and efficiently, whilst ensuring the right to a fair trial. Further important amendments to the Rules have ensued in the following years on the place of the proceedings, prior recorded testimony, and the accused's presence at trial. Another rule seeking to streamline translation issues during the proceedings is currently before States for consideration. The lessons learned exercise has since become a dynamic feature of the Judiciary, seeking to clarify in-built ambiguities in the Rome Statute system, such as the relationship between pre-trial and trial or the precise parameters and scope of victim participation in the proceedings.

Another significant development since the Second Edition of this Commentary is the monumental agreement on the definition of the crime of aggression during the Kampala Review Conference in June 2010. After years of tireless efforts of the ASP's Special Working Group on the Crime of Aggression in elaborating proposals on a provision on the crime of aggression, States Parties adopted by consensus a new Article 8*bis* in the Rome Statute defining the crime of aggression, as well as legal provisions defining the exercise of jurisdiction over the crime of aggression in Article 15*bis*, accompanied by relevant provisions in the Elements of Crimes (ICC-RC/Res.6 of 11 June 2010). The marvel of this renewed victory of the rule of law could only be overshadowed by the preconditions outlined in the resolution regarding the activation the Court's jurisdiction over the crime of aggression at the earliest in 2017 provided the necessary amount of ratifications until then.

No less important is the amendment to article 8(2)(e) of the Rome Statute regarding certain war crimes in non-international armed conflict as adopted during the Review Conference in Kampala. The amendments concern the war crimes of employment of poison or poisoned weapons (xiii); asphyxiating, poisonous or other gases, and all analogous liquids (xiv); and bullets which expand or flatten easily in the human body (xv). The inclusion of these crimes in the Rome Statute is testimony of the increasing convergence of the law of international armed conflict with the law applicable in armed conflict of a non-international character. Further, it demonstrates that the Statute is open to amendments in order to react to major developments in customary international law.

Through its operations since its inception, the Court has raised the visibility of accountability for atrocity crimes and has galvanised the willingness of States to enforce the rule of law. In clarifying the development of international criminal law through its jurisprudence, the ICC pays tribute to the legacy of the *ad hoc* tribunals and contributes to the rising culture of accountability, both on the international plan and in the context of national legal systems. However, while the establishment of the ICC since the Rome Statute of 1998 has been a major accomplishment in the international judicial community, the Court today still faces several important challenges. To make the Rome Statute system truly comprehensive we must achieve universality. More than 70 States have yet to join, including the world's most

populous countries. A majority of the world's population therefore remains outside the Rome Statute's legal protection and limits the reach and applicability of its provisions.

The principle of complementarity, while one of the foundational pillars of the Rome Statute system, bears important challenges for both the ICC and its States Parties. The principle refers to the primacy of the national jurisdictions on the one hand, and the complementary role of the ICC to provide justice when it is not forthcoming at the national level. The ICC is merely a safety net that ensures accountability when the national jurisdictions are unable for whatever reason to carry out that task. Accordingly, the strengthening of national justice systems is crucial for establishing a credible and comprehensive system of deterrence and prevention against atrocity crimes, and to ensure accountability where crimes have occurred. Complementarity is also the area where the link between Rome Statute issues and wider questions of the rule of law and development is best seen. The fight against impunity cannot succeed in a vacuum; it must be mainstreamed across all relevant policies and States in particular have to pay their share.

With the Rome Statute strengthening the rights of victims to participate in court proceedings and its reparations regime, a new challenge has emerged for the ICC: the capability of the Court to manage the expectations of its stakeholders, and victims in particular. The ICC's Outreach and Victim Participation sections actively engage with victims and communities affected by Rome Statute crimes, informing them of their rights to participate in the proceedings pursuant to the ICC's legal framework. However, in the adjudication of mass crimes with often thousands of victims, to ensure meaningful participation of all these victims is an immensely difficult task and inevitably some victims will feel left out by the process.

Another crucial aspect for the credibility and strength of the ICC is the cooperation of States with the ICC and the enforcement of its orders under Part 9 of the Rome Statute. The ICC has no police force of its own, it has to rely entirely on States to execute its arrest warrants or to assist with a number of other core investigative activities. Without the cooperation of States the ICC is powerless. Unfortunately, several suspects subject to ICC arrest warrants have successfully evaded arrest for many years. Political will to bring these persons to justice is crucial. The continued lack of execution of arrest warrants is a constant reminder that more remains to be done.

Finally, as a judicial body the ICC interacts and cooperates with international and national political actors, such as the United Nations Security Council, the African Union, regional organisations and national governments. Therefore, it is crucial that the ICC delineates a boundary and establishes a place for itself amongst these political bodies without becoming one itself. Just as national judicial systems must separate themselves from the executive, so must the ICC separate itself from the influences of the national and international political actors around it. In order for this challenge to be met, the ICC will need unwavering support from the international community to continue its work within the independent and judicially responsible mandate it has been assigned.

I wish to commend Professor Otto Triffterer on his continuous efforts by assembling an array of such distinguished legal experts and their respective works for the publication of this Third Edition. Additional praise is in order for Professor Kai Ambos and his tireless editing work making this volume a reality. It must be recognized that the activities of the ICC are driven by its founding document, the Rome Statute, and its mandate to prosecute the gravest crimes of international concern. This Commentary represents a most valuable contribution to a more erudite understanding and interpretation of the Rome Statute and therefore a powerful tool to document and supplement the development of international criminal law. This third, updated, edition is a further brick in the solidifying wall of the evolving system of international justice.

The Hague, December 2014



## Introductions

### Judge Silvia Fernandez De Gurmendi, President of the ICC

As the 18<sup>th</sup> Anniversary of the Rome Conference approaches, the International Criminal Court is entering a time of great change and challenges. The ICC has seen a major change in personnel with several of the ICC's longest-serving Judges completing their service at the Court and six new judges joining the ranks of the Judiciary. A new Presidency of the ICC has been elected earlier in 2015 and, at the end of the year, the ICC will move to its new permanent premises in The Hague. Now in its thirteenth year the Court is still growing; its workload is increasing, its jurisdiction expanding and, according to recent studies, its deterrent effect is growing. The goals envisaged by the participants at the Rome Conference almost two decades ago are beginning to be realised.

However, this growth brings new and complex challenges for the ICC. As the Court confirms its presence as an important actor in the international community and the Court's profile in the international legal system grows, so too do the voices of both its supporters and its critics. Its increased jurisdiction may raise concerns, especially as the Court is called to investigate politically sensitive and divisive situations. At the same time, the ICC's visibility in the world today leads to increased calls on it to investigate and prosecute alleged atrocities. The ICC does so when and where it can but is limited by its jurisdiction, which can only be expanded by States or by the UN Security Council, and its reliance on States to enforce its decisions and aid it in its work. As its workload increases so too does the Court's need for additional resources. However, pressure to keep costs down exists in tandem with calls to intervene and end impunity for atrocities. This pressure has been particularly strong at a time when the world is facing great economic difficulties. As an institution with a mandate to end impunity for the most serious crimes known to mankind, the Court must stand firm and remain committed to this cause. This is part of the burden of the Court's success.

Nevertheless, the Court does not exist in a vacuum. In recognition of the need to work to achieve its goals as efficiently and effectively as possible, the Court has recently undertaken a series of internal reform initiatives. These are not mere cost-cutting exercises, but are part of the natural evolution of the ICC as a judicial institution into a fully-fledged, functioning international court. The ReVision project, a large-scale review and reform of the structure of the Registry, is a key example of how the ICC is streamlining its structure and seeking to improve. The Office of the Prosecutor has developed its new strategic plan for the coming years to discharge its duties and utilise its resources in the most effective manner. Both the Chambers and Presidency are also undertaking initiatives to contribute to the smooth functioning of the Court. In particular the Judiciary's 'Lessons Learned' exercise is striving to find ways to streamline the judicial process by developing best practices and proposing amendments to the Rules of Procedure and Evidence or the Regulations of the Court as necessary. Of course all of the efforts to increase efficiency at the Court remain subject to the fundamental values enshrined in the Rome Statute, such as fair trial procedures and rights of victims.

With these changes and the increase in the ICC's case-load, we can expect the Court's body of jurisprudence to develop rapidly. Both the reform initiatives mentioned above and case-law at the Trial and Pre-Trial level may lead to evolutions in the Court's procedure. Furthermore, as cases reach the Appeals level we can expect more authoritative decisions on both procedural and substantive matters of international criminal law. The Triffterer Commentary on the Rome Statute of the International Criminal Court, its first edition just one year younger than the Rome Statute itself, has been of immense importance for academics and practitioners alike. Providing detailed and comprehensive analysis on the provisions of the Statute and other legal texts, of their origins in international law and of the context in which they were adopted at the Rome Conference, it is a book of great authority and has been immensely helpful and influential in the early jurisprudence of the Court.

As the ICC grows and its body of jurisprudence increases, case-law will become ever-more relevant to the interpretation and application of the provisions of the Rome Statute. The continuing mandate of *ad hoc* international courts and tribunals means that the ICC will not be the only institution interpreting and developing international criminal law through judicial decisions. Comparative analysis between the jurisprudence of the ICC and that of other international criminal justice bodies will be essential in order to minimise fragmentation of the law. By taking cognisance of developments outside the ICC, this Commentary can highlight discrepancies and controversies in jurisprudence, inviting the Court to reflect on those issues in its case-law. Through this, the Commentary can continue to encourage the inclusive and consistent development of international criminal law, as it has done for the past seventeen years.

I wish to take this opportunity to express a word of appreciation to Professor Kai Ambos who has shouldered the responsibility of editing the third edition of the Commentary. This Commentary is immensely important to all of those who have an interest in the International Criminal Court, and indeed those who have an interest in international criminal justice as a whole. I am confident that I can speak for both those at the International Criminal Court and the wider international community, in congratulating Professor Ambos and indeed all contributors on compiling this edition which includes a great variety of experts from the ICC and many other important institutions. I am sure that this and future editions of the Commentary will continue to provide helpful, in-depth analysis of the Rome Statute for many years to come.

The Hague, April 2015



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## Abbreviations

### A

|                                      |                                                                                                                                                         |
|--------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------|
| ABAJ .....                           | Journal of the American Bar Association                                                                                                                 |
| A.C. ....                            | Law Reports Appeal Cases                                                                                                                                |
| AC .....                             | Appeals Chamber                                                                                                                                         |
| ACABQ .....                          | Advisory Committee on Administrative and Budgetary Questions                                                                                            |
| ACHR .....                           | American Convention on Human Rights                                                                                                                     |
| ACLT .....                           | Advisory Committee on Legal Texts Established under Regulation 4(1)                                                                                     |
| ACN .....                            | Advisory Committee on Nominations                                                                                                                       |
| <i>Ad Hoc</i> Committee Report ..... | Report of the <i>Ad Hoc</i> Committee on the Establishment of an International Criminal Court (GA, 50 <sup>th</sup> Sess., Supp. No. 22, A/50/22, 1995) |
| Add. Prot .....                      | Additional Protocol to the four Geneva Conventions                                                                                                      |
| AFDI .....                           | Annuaire Français de Droit International                                                                                                                |
| Aff. ....                            | Affairs                                                                                                                                                 |
| AFLRev .....                         | Air Force Law Review                                                                                                                                    |
| AfricanCtHum&PRts .....              | African Court on Human and Peoples' Rights                                                                                                              |
| AfricanSecurityRev .....             | African Security Review                                                                                                                                 |
| AfricanYbIL .....                    | African Yearbook of International Law                                                                                                                   |
| AI .....                             | Amnesty International                                                                                                                                   |
| AIDP .....                           | Association Internationale de Droit Pénal                                                                                                               |
| AJ .....                             | Appeals Judgment                                                                                                                                        |
| AJIL .....                           | American Journal of International Law                                                                                                                   |
| AJP .....                            | Aktuelle Juristische Praxis                                                                                                                             |
| AkronLRev .....                      | Akron Law Review                                                                                                                                        |
| AlbanyLJ .....                       | Albany Law Journal of Science and Technology                                                                                                            |
| AlbertaLRev .....                    | Alberta Law Review                                                                                                                                      |
| All E.R. ....                        | Alle England Law Reports                                                                                                                                |
| ALJR .....                           | Australian Law Journal Reports                                                                                                                          |
| Am .....                             | American [n, s]                                                                                                                                         |
| AMICC .....                          | American Non-Governmental Organization Coalition for the International Criminal Court                                                                   |
| AmJCrimL .....                       | American Journal of Criminal Law                                                                                                                        |
| AmsterdamUP .....                    | Amsterdam University Press                                                                                                                              |
| AmUILRev .....                       | The American University International Law Review                                                                                                        |
| AmUJGenderSocialPol&Law .....        | American University Journal of Gender, Social Policy and Law                                                                                            |
| Ann. ....                            | Annual                                                                                                                                                  |
| AnnDig .....                         | Annual Digest of International Law                                                                                                                      |
| APIC .....                           | Agreement on Privileges and Immunities of the Court                                                                                                     |
| ASIL PROC .....                      | Proceedings of the American Society of International Law                                                                                                |
| ASP .....                            | Assembly of States Parties                                                                                                                              |
| AU .....                             | African Union                                                                                                                                           |
| AULO .....                           | African Union Liaison Office                                                                                                                            |
| AustrianJPub&IL .....                | Austrian Journal of Public and International Law                                                                                                        |
| AVR .....                            | Archiv des Völkerrechts (German law journal)                                                                                                            |
| AWB .....                            | Dutch Administrative Law Act                                                                                                                            |

### B

|                              |                                                                                                                          |
|------------------------------|--------------------------------------------------------------------------------------------------------------------------|
| Bassiouni Draft .....        | M. Cherif Bassiouni, A Draft International Criminal Code And Draft Statute for an International Criminal Tribunal (1987) |
| BerkleyJILP .....            | Berkeley Journal of International Law Publicist                                                                          |
| BGBL .....                   | Bundesgesetzblatt (German Federal Gazette)                                                                               |
| BGE .....                    | Entscheidungen des schweizer Bundesgerichts                                                                              |
| BGHSt .....                  | Entscheidungen des Bundesgerichtshofes in Strafsachen (case report of the Federal Supreme Court of Germany)              |
| BINUKA .....                 | UN Integrated Peacebuilding Office in the CAR                                                                            |
| Bk. ....                     | Book                                                                                                                     |
| BostonCollI&CompLRev .....   | Boston College International and Comparative Law Review                                                                  |
| BostonCollThirdWorldLJ ..... | Boston College Third World Law Journal                                                                                   |
| BritJAmLS .....              | British Journal of American Legal Studies                                                                                |
| BrookJIL .....               | Brooklyn Journal of International Law                                                                                    |
| BrownJWorldAff .....         | The Brown Journal of World Affairs                                                                                       |
| BT-Drs. ....                 | Bundestags-Drucksache (printed matter of the German Parliament)                                                          |

## Abbreviations

|                             |                                                                                                      |
|-----------------------------|------------------------------------------------------------------------------------------------------|
| Bull .....                  | Bulletin                                                                                             |
| BVerfGE .....               | Entscheidungen des Bundesverfassungsgerichts (case report of the Constitutional Court of Germany)    |
| BVfG .....                  | Bundesverfassungsgericht (constitutional court of Germany)                                           |
| BYbIL .....                 | British Yearbook of International Law                                                                |
| C                           |                                                                                                      |
| CalLRev .....               | California Law Review                                                                                |
| CalWestInt'ILJ .....        | California Western International Law Journal                                                         |
| CambridgeLJ .....           | The Cambridge Law Journal                                                                            |
| CambridgeRevIAff .....      | Cambridge Review of International Affairs                                                            |
| CanYbIL .....               | Canadian Yearbook of International Law                                                               |
| CAR .....                   | Central African Republic                                                                             |
| CaseWesternResJIL .....     | Case Western Reserve Journal of International Law                                                    |
| CBF .....                   | Committee on Budget and Finance                                                                      |
| CCC .....                   | Canadian Criminal Cases                                                                              |
| CCPR .....                  | Covenant on Civil and Political Rights                                                               |
| CEDAW .....                 | Convention on the Elimination of All Forms of Discrimination against Women                           |
| <i>cf.</i> .....            | <i>confer</i> (see)                                                                                  |
| ChineseJIL .....            | Chinese Journal of International Law                                                                 |
| CIC .....                   | Criminal Investigation Command                                                                       |
| CICC .....                  | Coalition of Non-Governmental Organizations for the Establishment of an International Criminal Court |
| CICR .....                  | Le Comité international de la Croix-Rouge                                                            |
| CJEU .....                  | Court of Justice of the European Union                                                               |
| CLF .....                   | Criminal Law Forum                                                                                   |
| CLQ .....                   | Criminal Law Quarterly                                                                               |
| CLRev .....                 | Criminal Law Review                                                                                  |
| ColHumRtsLRev .....         | Columbia Human Rights Law Review                                                                     |
| ColJIL .....                | Columbia Journal of International Law                                                                |
| ColJTransnatL .....         | Columbia Journal of Transnational Law                                                                |
| ColLRev .....               | Columbia Law Review                                                                                  |
| Comp .....                  | Comparative                                                                                          |
| conc. ....                  | concerning                                                                                           |
| Conf. ....                  | Conference                                                                                           |
| Const .....                 | Constitution [al]                                                                                    |
| Contemp .....               | Contemporary                                                                                         |
| CornIJL .....               | Cornell Journal of International Law                                                                 |
| CornLQ .....                | Cornell Law Quarterly                                                                                |
| CrAppR .....                | Criminal Appeal Reports                                                                              |
| Crim .....                  | Criminal                                                                                             |
| CrimL&Phil .....            | Criminal Law and Philosophy                                                                          |
| CroatianAnnCrimL&Prac ..... | Croatian Annual of Criminal Law and Practice                                                         |
| Ct .....                    | Court                                                                                                |
| CUP .....                   | Cambridge University Press                                                                           |
| D                           |                                                                                                      |
| DaPaulLRev .....            | DePaul Law Review                                                                                    |
| DCC .....                   | Documents containing the charges                                                                     |
| DenverJIL&Pol .....         | Denver Journal of International Law and Policy                                                       |
| Dev. ....                   | Development                                                                                          |
| DickJIL .....               | Dickinson Journal of International Law                                                               |
| DispResJ .....              | Dispute Resolution Journal                                                                           |
| Doc. ....                   | Document                                                                                             |
| DPA .....                   | Department of Political Affairs                                                                      |
| DPKO .....                  | Department of Peacekeeping Operations                                                                |
| Draft Statute 1953 .....    | UN GAOR, 9 <sup>th</sup> Sess., Supp. No. 12, UN Doc. A/2654 (1954)                                  |
| Draft Statute 1951 .....    | UN GAOR, 7 <sup>th</sup> Sess., Supp. No. 11, UN Doc. A/2136 (1952)                                  |
| DRC .....                   | Democratic Republic of Congo                                                                         |
| DukeJComp&IL .....          | Duke Journal of Comparative & International Law                                                      |
| DurhamLRev .....            | Durham Law Review                                                                                    |
| E                           |                                                                                                      |
| E + Z .....                 | Entwicklung und Zusammenarbeit                                                                       |
| EC .....                    | European Community                                                                                   |

## Abbreviations

|                          |                                                                                                                                                            |
|--------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------|
| ECCC .....               | Extraordinary Chambers in the Courts of Cambodia                                                                                                           |
| ECHR .....               | European Convention on Human Rights                                                                                                                        |
| ECJ .....                | European Court of Justice                                                                                                                                  |
| ECommHumRts .....        | European Commission of Human Rights                                                                                                                        |
| ECOSOC .....             | Economic and Social Council                                                                                                                                |
| ECOWAS .....             | Economic Community of West African States                                                                                                                  |
| ECR .....                | European Court Report                                                                                                                                      |
| ECT .....                | Treaty Establishing the European Community                                                                                                                 |
| ECtHR .....              | European Court of Human Rights                                                                                                                             |
| ed./eds. ....            | editor/editors                                                                                                                                             |
| <i>e.g.</i> .....        | <i>exempli gratia</i>                                                                                                                                      |
| EHRLRep .....            | European Human Rights Law Report                                                                                                                           |
| EJCLCJ .....             | European Journal of Crime, Criminal Law and Criminal Justice                                                                                               |
| EJIL .....               | The European Journal of International Law                                                                                                                  |
| Elements .....           | Elements of Crimes                                                                                                                                         |
| EmoryILRev .....         | Emory International Law Review                                                                                                                             |
| EPIL .....               | Encyclopaedia of Public International Law                                                                                                                  |
| ESA .....                | European Space Agency                                                                                                                                      |
| ESOC .....               | European Space Operation Centre                                                                                                                            |
| esp. ....                | especially                                                                                                                                                 |
| EssexHumRtsRev .....     | Essex Human Rights Review                                                                                                                                  |
| <i>et al.</i> .....      | <i>et alia/et alri</i> (and others)                                                                                                                        |
| <i>et seq.</i> .....     | <i>et sequentis</i> (and so forth)                                                                                                                         |
| ETS .....                | European Treaty Series                                                                                                                                     |
| EuCLRev .....            | European Criminal Law Review                                                                                                                               |
| EuGRZ .....              | Europäische Grundrechte-Zeitschrift                                                                                                                        |
| <b>F</b>                 |                                                                                                                                                            |
| FA .....                 | Foreign Affairs                                                                                                                                            |
| FARDC .....              | Forces Armées de la République Démocratique du Congo                                                                                                       |
| FDLR .....               | Forces Démocratiques de Libération du Rwanda                                                                                                               |
| FIDH .....               | Fédération internationale des ligues des droits de l'Homme                                                                                                 |
| Final Act .....          | Final Act of the United Nations Diplomatic Conference of Plenipotentiaries on the Establishment of an International Criminal Court U.N. Doc. A/CONF.183/10 |
| FinishYbIL .....         | Finish Yearbook of International Law                                                                                                                       |
| fn. ....                 | footnote [s]                                                                                                                                               |
| FordhamILJ .....         | Fordham International Law Journal                                                                                                                          |
| <b>G</b>                 |                                                                                                                                                            |
| GA .....                 | (UN) General Assembly                                                                                                                                      |
| GA .....                 | Goldammer's Archiv für Strafrecht                                                                                                                          |
| GA Res. ....             | (UN) General Assembly Resolution                                                                                                                           |
| GAOR .....               | (UN) General Assembly Official Records                                                                                                                     |
| Gen. ....                | General                                                                                                                                                    |
| GeorgetownIEnvLRev ..... | Georgetown International Environmental Law Review                                                                                                          |
| GeorgetownLJ .....       | Georgetown Law Journal                                                                                                                                     |
| GeoWashILRev .....       | The George Washington International Law Review                                                                                                             |
| GermanLJ .....           | German Law Journal                                                                                                                                         |
| GoJIL .....              | Goettingen Journal of International Law                                                                                                                    |
| GYbIL .....              | German Yearbook on International Law                                                                                                                       |
| <b>H</b>                 |                                                                                                                                                            |
| Hague Conv. ....         | Hague Convention respecting the Laws and Customs on Land                                                                                                   |
| HagueYbIL .....          | Hague Yearbook of International Law                                                                                                                        |
| HarvHumRtsJ .....        | Harvard Human Rights Journal                                                                                                                               |
| HarvILJ .....            | Harvard International Law Journal                                                                                                                          |
| HastingsI&CompLRev ..... | Hastings International and Comparative Law Review                                                                                                          |
| HastingsWomenLJ .....    | Hastings Women's Law Journal                                                                                                                               |
| HCIJ .....               | High Court of Justice (Israel)                                                                                                                             |
| HCP .....                | Hague Convention for the protection of cultural property during armed conflict                                                                             |
| HeidelbergJIL .....      | Heidelberg Journal of International Law                                                                                                                    |
| HMSO .....               | Her Majesty's Stationery Office                                                                                                                            |
| HoustonJIL .....         | Houston Journal of International Law                                                                                                                       |
| HRC .....                | United Nation Human Rights Council                                                                                                                         |

## Abbreviations

|                              |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
|------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Hum .....                    | Human/Humanitarian                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| HumRtsLJ .....               | Human Rights Law Journal                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| HumRtsQ .....                | Human Rights Quarterly                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| HuV – I .....                | Humanitäres Völkerrecht-Informationsschriften (German law journal)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| HVO .....                    | Hrvatsko vijeće obrane (Croatian Defence Council)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| I                            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| I .....                      | International                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| I&CompLQ .....               | International and Comparative Law Quarterly                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| <i>i. a.</i> .....           | <i>inter alia</i> (among other things)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| IACtHR .....                 | Inter American Court on Human Rights                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| IACTHR .....                 | Inter-American Court of Human Rights                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| IAEA .....                   | International Atomic Energy Agency                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| <i>ibid.</i> .....           | <i>Ibidem</i> (in the same place)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| ICC .....                    | International Criminal Court                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| ICCPR .....                  | International Covenant on Civil and Political Rights                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| ICCS .....                   | Rome Statute of the International Criminal Court                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| ICDAA .....                  | International Criminal Defence Attorneys Association                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| ICJ .....                    | International Court of Justice                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| ICJ Rep. ....                | International Court of Justice Reports                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| ICL .....                    | International Criminal Law                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| ICLRev .....                 | International Criminal Law Review                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| ICRC .....                   | International Committee of the Red Cross                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| ICSS .....                   | International Centre for Sport Security                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| ICTR .....                   | International Criminal Tribunal for Rwanda                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| ICTY .....                   | International Criminal Tribunal for the former Yugoslavia                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| ICTY Rules .....             | Rules of Procedure and Evidence of the International Criminal Tribunal for the former Yugoslavia, Rev. 49, 22 May 2013, IT/32/Rev.49                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| <i>id.</i> .....             | <i>idem</i> (the same)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| <i>i. e.</i> .....           | <i>id est</i> (that is)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| IELR .....                   | International Enforcement Law Reporter                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| <i>i. f.</i> .....           | <i>ipse fecit</i> (done by)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| IHL .....                    | International Humanitarian Law                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| IHumRtsL&Prac .....          | International Human Rights Law and Practice                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| IJChildrenRts .....          | International Journal on Children Rights                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| IJHumRts .....               | International Journal of Human Rights                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| ILA .....                    | International Law Association                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| ILC .....                    | International Law Commission                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| ILC Draft Code 1951 .....    | Draft Code of Offences against the Peace and Security of Mankind (Part I), Report of the International Law Commission on its third Session, 16 May–27 July, 1951 (A/CN.4/L.15, 1951) <a href="http://www.untreaty.un.org/ilc/summaries/7_3.htm">http://www.untreaty.un.org/ilc/summaries/7_3.htm</a>                                                                                                                                                                                                                                                                                                                                                                                       |
| ILC Draft Code 1953 .....    | Draft Code of Offences against the Peace and Security of Mankind (Part I), Report of the International Law Commission on its fifth Session, 1 June–14 August, 1953 (A/CN.4/72,1953) <a href="http://www.untreaty.un.org/ilc/summaries/7_3.htm">http://www.untreaty.un.org/ilc/summaries/7_3.htm</a>                                                                                                                                                                                                                                                                                                                                                                                        |
| ILC Draft Code 1954 .....    | Draft Code of Offences against the Peace and Security of Mankind, the International Law Commission adopted the revised draft on its 6 <sup>th</sup> Session, 6 June – 18 July, 1954 <a href="http://untreaty.un.org/ilc/texts/instruments/english/draft%20articles/7_3_1954.pdf">http://untreaty.un.org/ilc/texts/instruments/english/draft%20articles/7_3_1954.pdf</a>                                                                                                                                                                                                                                                                                                                    |
| ILC Draft Code 1991 .....    | UN GAOR, 46 <sup>th</sup> Sess., Supp. No. 10, UN Doc. A/46/10 (1991) YbILC                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| ILC Draft Statute 1994 ..... | Draft Statute for an International Criminal Court, Report of the International Law Commission on its Forty-Sixth Session, 2 May– 22 July, 1994 (GA, 49 <sup>th</sup> Sess., Supp. No. 10, A/49/10, 1994), p. 43 et seq. 1996 ILC Draft Code Draft Code of Crimes Against the Peace and Security of Mankind (Part II), 1996, Report of the International Law Commission on the Work of its Forty-Eighth Session, 5 June – 26 August 1996, UN GAOR, 51st Sess., Supp. No. 10, UN Doc. A/51/10, 9 et seq. <a href="http://untreaty.un.org/ilc/texts/instruments/english/draft%20articles/7_4_1996.pdf">http://untreaty.un.org/ilc/texts/instruments/english/draft%20articles/7_4_1996.pdf</a> |
| ILF .....                    | International Law Forum                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| ILM .....                    | International Legal Materials                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| ILO .....                    | International Labour Organisation                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| ILR .....                    | International Law Reports                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| ILS .....                    | International Law Studies                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| ILSAJI&CompL .....           | ILSA Journal of International and Comparative Law                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| IMT .....                    | (Nuremberg) International Military Tribunal                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |

## Abbreviations

|                        |                                                                                                          |
|------------------------|----------------------------------------------------------------------------------------------------------|
| IMTFE .....            | International Military Tribunal for the Far East                                                         |
| Indl&CompLRev .....    | Indiana International and Comparative Law Review                                                         |
| IndianYbIL&Pol .....   | Indian Yearbook of International Law and Policy                                                          |
| IOM .....              | Independent Oversight Mechanism                                                                          |
| IRevContempL .....     | International Review of Contemporary Law                                                                 |
| IRevCrimPol .....      | International Review of Criminal Policy                                                                  |
| IRevPenalL .....       | International Review of Penal Law                                                                        |
| IRvRC .....            | International Review of the Red Cross                                                                    |
| IRG .....              | Internationales Rechtshilfegesetz (German law on international judicial cooperation in criminal matters) |
| IRMCT .....            | International Residual Mechanism for Criminal Tribunals                                                  |
| IRMCTS .....           | Statute of the International Residual Mechanism for Criminal Tribunals                                   |
| IsLRev .....           | Israel Law Review                                                                                        |
| IsYbHumRts .....       | Israel Yearbook on Human Rights                                                                          |
| ITLOS .....            | International Tribunal for the Law of the Sea                                                            |
| ITU .....              | International Telecommunication Union                                                                    |
| <b>J</b>               |                                                                                                          |
| J .....                | Journal                                                                                                  |
| JA .....               | Juristische Arbeitsblätter                                                                               |
| JAfricanL .....        | Journal of African Law                                                                                   |
| JapaneseAnnIL .....    | Japanese Annual of International Law                                                                     |
| JArmConfl .....        | Journal of Armed Conflict Law                                                                            |
| JCE .....              | Joint Criminal Enterprise                                                                                |
| JCL&Criminology .....  | Journal of Criminal Law and Criminology                                                                  |
| JCompLegIL .....       | Journal of Comparative Legislation and International Law                                                 |
| JCSL .....             | Journal of Conflict and Security Law                                                                     |
| JEastAfrStud .....     | Journal of Eastern African Studies                                                                       |
| JIaff .....            | Journal of International Affairs                                                                         |
| JIJC .....             | Journal of International Criminal Justice                                                                |
| JIHumLStud .....       | Journal of International Humanitarian Legal Studies                                                      |
| JILFAff .....          | UCLA Journal of International Law and Foreign Affairs                                                    |
| JILPAC .....           | Journal of International Law of Peace and Armed Conflict                                                 |
| JLS .....              | Journal of Legal Studies                                                                                 |
| JohnMarshallLRev ..... | John Marshall Law Review                                                                                 |
| JPuBL .....            | Journal of Public Law                                                                                    |
| JR .....               | Juristische Rundschau                                                                                    |
| JRWD .....             | The Criminal Code of the Jews                                                                            |
| Jud .....              | Judicial                                                                                                 |
| Just .....             | Justice                                                                                                  |
| JZ .....               | Juristen Zeitung                                                                                         |
| <b>K</b>               |                                                                                                          |
| KAS .....              | Konrad-Adenauer-Stiftung                                                                                 |
| KobeULRev .....        | Kobe University Law Review                                                                               |
| <b>L</b>               |                                                                                                          |
| L .....                | Law                                                                                                      |
| L&ContempProbs .....   | Law and Contemporary Problems                                                                            |
| LAPE .....             | Law and Practice of International Courts and Tribunals                                                   |
| LeidenJIL .....        | Leiden Journal of International Law                                                                      |
| LGBT .....             | Lesbian, Gay, Bisexual and Transgender                                                                   |
| <i>lit.</i> .....      | <i>litera</i>                                                                                            |
| LJ .....               | Law Journal                                                                                              |
| LJN .....              | Dutch case law database                                                                                  |
| LNTS .....             | League of Nations Treaty Series                                                                          |
| LOAC .....             | Laws of armed conflict                                                                                   |
| LoyLAI&CompLRev .....  | Loyola of Los Angeles International and Comparative Law Review                                           |
| LQRev .....            | Law Quarterly Review                                                                                     |
| LRA .....              | Lord's Resistance Army                                                                                   |
| LRev .....             | Law Review                                                                                               |
| LRTWC .....            | Law Reports of Trials of War Criminals                                                                   |
| <b>M</b>               |                                                                                                          |
| MainLRev .....         | Main Law Review                                                                                          |
| ManchUP .....          | Manchester University Press                                                                              |

## Abbreviations

|                                |                                                                               |
|--------------------------------|-------------------------------------------------------------------------------|
| MediterraneanJHumRts .....     | Mediterranean Journal of Human Rights                                         |
| MelbJIL .....                  | Melbourne Journal of International Law                                        |
| MichJGender&L .....            | Michigan Journal of Gender and Law                                            |
| MichJIL .....                  | Michigan Journal of International Law                                         |
| MICT .....                     | The International Criminal Court for Rwanda                                   |
| MilLRev .....                  | Military Law Review                                                           |
| MINUSMA .....                  | UN Multidimensional Integrated Stabilization Mission in Mali                  |
| MLLWRev .....                  | Military Law and Law of War Review                                            |
| MLRev .....                    | Modern Law Review                                                             |
| mn .....                       | margin number(s)                                                              |
| MONUC .....                    | UN Mission in the DRC                                                         |
| MONUSCO .....                  | UN Organization Stabilization Mission in the Democratic Republic of the Congo |
| MOU .....                      | Memorandum of Understanding                                                   |
| MPEPIL .....                   | Max Planck Encyclopaedia of Public International Law                          |
| MPIL .....                     | Max Planck Institute for Comparative Public Law and International Law         |
| MPYbUNL .....                  | Max Planck Yearbook of United Nations Law                                     |
| Mtg. ....                      | Meeting                                                                       |
| MurdochUElectronicJL .....     | Murdoch University Electronic Journal of Law                                  |
| N                              |                                                                               |
| NAL .....                      | New American Library                                                          |
| NATO .....                     | North Atlantic Treaty Organization                                            |
| NatSec&ArmedConflictLRev ..... | National Security and Armed Conflict Law Review                               |
| NavalWarColRev .....           | Naval War College Review                                                      |
| NCarolinaJIL&CommReg .....     | North Carolina Journal of International Law and Commercial Regulation         |
| NCLRev .....                   | New Criminal Law Review                                                       |
| NEP .....                      | Nouvelles Études Pénales                                                      |
| NethILRev .....                | Netherlands International Law Review                                          |
| NethQHumRts .....              | Netherlands Quarterly of Human Rights                                         |
| NethYbIL .....                 | Netherlands Yearbook of International Law                                     |
| NewEnglandJI&CompL .....       | New England Journal of International and Comparative Law                      |
| NGO .....                      | Non-governmental organization                                                 |
| NJ .....                       | Neue Justiz                                                                   |
| NJECL .....                    | New Journal of European Criminal Law                                          |
| NJIHumRts .....                | New Journal of International Human Rights                                     |
| NJW .....                      | Neue Juristische Wochenschrift                                                |
| NLJ .....                      | New Law Journal                                                               |
| No./Nos. ....                  | number/numbers                                                                |
| NordJIL .....                  | Nordic Journal of International Law                                           |
| NotreDameLRev .....            | Notre Dame Law Review                                                         |
| NSIZ .....                     | Neue Zeitschrift für Strafrecht                                               |
| NYJIL&Pol .....                | New York University Journal of International Law and Politics                 |
| NYLSchLRev .....               | New York Law School Law Review                                                |
| NZYbIL .....                   | The New Zealand Year Book of International Law                                |
| NZZ .....                      | Neue Züricher Zeitung                                                         |
| O                              |                                                                               |
| OAS .....                      | Organization of American States                                               |
| OASTS .....                    | Organization of American States Treaty Series                                 |
| OAU .....                      | Organization of African Unity                                                 |
| <i>o. b.</i> .....             | <i>Obiter (dictum – by the way)</i>                                           |
| OEa .....                      | Organization of American States                                               |
| OHCHR .....                    | Office of the High Commissioner for Human Rights                              |
| OJ .....                       | Official Journal                                                              |
| OJLS .....                     | Oxford Journal of Legal Studies                                               |
| ÖJZ .....                      | Österreichische Juristen Zeitung                                              |
| OklahomaLRev .....             | Oklahoma Law Review                                                           |
| OKW .....                      | Oberkommando der Wehrmacht (former German armed forces high command)          |
| OLA .....                      | Office Legal Affairs                                                          |
| ONUC .....                     | Opération des Nations Unies au Congo                                          |
| OPCW .....                     | Organization for the Prohibition of Chemical Weapons                          |
| Org. ....                      | Organisation                                                                  |
| OSCE .....                     | Organisation on Security and Cooperation in Europe                            |
| ÖStPO .....                    | Austrian Code of Criminal Procedure                                           |

## Abbreviations

|                                                     |                                                                                                                                                                                                                                      |
|-----------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| OTP .....                                           | Office of the Prosecutor                                                                                                                                                                                                             |
| OUP .....                                           | Oxford University Press                                                                                                                                                                                                              |
| <b>P</b>                                            |                                                                                                                                                                                                                                      |
| p./pp. ....                                         | page/pages                                                                                                                                                                                                                           |
| PaceLRev .....                                      | Pace Law Review                                                                                                                                                                                                                      |
| PacificBasinLJ .....                                | UCLA Pacific Basin Law Journal                                                                                                                                                                                                       |
| para./paras. ....                                   | paragraph/paragraphs                                                                                                                                                                                                                 |
| PCIJ .....                                          | Permanent Court of International Justice                                                                                                                                                                                             |
| PennJIL .....                                       | Pennsylvania Journal of International Law                                                                                                                                                                                            |
| PennStLLRev .....                                   | Pennsylvania State University International Law Review                                                                                                                                                                               |
| Pol .....                                           | Policy                                                                                                                                                                                                                               |
| POW .....                                           | Prisoner of War                                                                                                                                                                                                                      |
| Preparatory Committee<br>(Consolidated) Draft ..... | Preparatory Committee on the Establishment of an International Criminal Court, Draft Statute & Draft Final Act (A/Conf.183/2/Add.1, 1998)                                                                                            |
| Preparatory Committee I 1996 .....                  | Report of the Preparatory Committee on the Establishment of an International Criminal Court, Volume I, (Proceedings of the Preparatory Committee During March-April and August 1996) (G.A., 51st Sess., Supp. No. 22, A/51/22, 1996) |
| Preparatory Committee II 1996 .....                 | Report of the Preparatory Committee on the Establishment of an International Criminal Court, Volume II, (Compilation of Proposals) (G.A., 51st Sess., Supp. No. 22, A/51/22, 1996)                                                   |
| Preparatory Committee Decisions<br>Aug. 1997 .....  | Decisions Taken by the Preparatory Committee at its Session Held 4 to 15 August 1997 (A/AC.249/1997/L.8/Rev.1, 1997)                                                                                                                 |
| Preparatory Committee Decisions<br>Dec. 1997 .....  | Decisions Taken by the Preparatory Committee at its Session Held 1 to 12 December 1997 (A/AC.249/1997/L.9/Rev.1, 1997)                                                                                                               |
| Preparatory Committee Decisions<br>Feb. 1997 .....  | Decisions Taken by the Preparatory Committee at its Session Held 11 to 21 Feb. 1997 (A/AC.249/1997/L.5, 1997)                                                                                                                        |
| PrepCom .....                                       | Preparatory Committee on the Establishment of an International Criminal Court                                                                                                                                                        |
| Probs .....                                         | Problems                                                                                                                                                                                                                             |
| Prot. ....                                          | Protocol                                                                                                                                                                                                                             |
| PTC .....                                           | Pre-Trial Chamber                                                                                                                                                                                                                    |
| Pub. ....                                           | Public                                                                                                                                                                                                                               |
| <b>Q</b>                                            |                                                                                                                                                                                                                                      |
| Q .....                                             | Quarterly                                                                                                                                                                                                                            |
| <b>R</b>                                            |                                                                                                                                                                                                                                      |
| R2P .....                                           | Responsibility to Protect                                                                                                                                                                                                            |
| RCADI .....                                         | Recueil des Cours de l'Académie de Droit International                                                                                                                                                                               |
| RdC .....                                           | Recueil de Cours                                                                                                                                                                                                                     |
| RDF .....                                           | Rwanda Defence Force                                                                                                                                                                                                                 |
| RDPMDG .....                                        | Revue de Droit Pénal Militaire et de Droit de la Guerre                                                                                                                                                                              |
| Regulations .....                                   | Regulations of the Court                                                                                                                                                                                                             |
| Rep .....                                           | Report                                                                                                                                                                                                                               |
| Res. ....                                           | Resolution                                                                                                                                                                                                                           |
| Rev .....                                           | Review                                                                                                                                                                                                                               |
| RevICommJurists .....                               | Review of International Commission of Jurists                                                                                                                                                                                        |
| RGDIP .....                                         | Revue Générale de Droit International Public                                                                                                                                                                                         |
| RichLRev .....                                      | University of Richmond Law Review                                                                                                                                                                                                    |
| RICR .....                                          | Revue internationale de la Croix-Rouge                                                                                                                                                                                               |
| RIDP .....                                          | Revue Internationale de Droit Pénal                                                                                                                                                                                                  |
| RoC .....                                           | Regulations of the Court                                                                                                                                                                                                             |
| RogerWilliamsULRev .....                            | Roger Williams University Law Review                                                                                                                                                                                                 |
| Rome Conf. ....                                     | Rome Conference                                                                                                                                                                                                                      |
| Rome Statute .....                                  | Rome Statute of the International Criminal Court,<br>UN Doc. A/CONF.183/9, 1998                                                                                                                                                      |
| RQDI .....                                          | Revue Québécoise de Droit International                                                                                                                                                                                              |
| RSC .....                                           | Revue de science criminelle et de droit pénal comparé                                                                                                                                                                                |
| Rts .....                                           | Rights                                                                                                                                                                                                                               |
| Rules .....                                         | Rules of Procedure and Evidence                                                                                                                                                                                                      |
| RutgersLJ .....                                     | Rutgers Law Journal                                                                                                                                                                                                                  |



## Abbreviations

|                              |                                                                                                                                                                                                                                                                                                                                     |
|------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| SADC .....                   | South African Development Community                                                                                                                                                                                                                                                                                                 |
| SAISRev .....                | SAIS Revue of International Affairs                                                                                                                                                                                                                                                                                                 |
| SanDiegoILJ .....            | San Diego International Law Journal                                                                                                                                                                                                                                                                                                 |
| SantaClaraJIL .....          | Santa Clara Journal of International Law                                                                                                                                                                                                                                                                                            |
| SantaClaraLRev .....         | Santa Clara Law Review                                                                                                                                                                                                                                                                                                              |
| SC .....                     | Security Council                                                                                                                                                                                                                                                                                                                    |
| SchwZStR .....               | Schweizerische Zeitschrift für Strafrecht                                                                                                                                                                                                                                                                                           |
| <i>scil.</i> .....           | <i>scilicet</i> (that is)                                                                                                                                                                                                                                                                                                           |
| SCLRev .....                 | Supreme Court Law Review                                                                                                                                                                                                                                                                                                            |
| SCSL .....                   | Special Court for Sierra Leone                                                                                                                                                                                                                                                                                                      |
| S.D.N.Y. ....                | U.S. District Court – Southern District of New York                                                                                                                                                                                                                                                                                 |
| <i>seq.</i> .....            | <i>sequentis</i>                                                                                                                                                                                                                                                                                                                    |
| Sess. ....                   | Session                                                                                                                                                                                                                                                                                                                             |
| Siracusa Draft .....         | Association Internationale de Droit Pénal (AIDP)/Istituto Superiore Internazionale di Scienze Criminali (ISISC)/Max Planck Institute for Foreign and International Criminal Law (MPI), International Criminal Court, Alternative to the ILC-Draft (Siracusa-Draft) prepared by a Committee of Experts, Siracusa/Freiburg, July 1995 |
| SouthAfricanYbIL .....       | South African Yearbook of International Law                                                                                                                                                                                                                                                                                         |
| SouthCaliforniaLRev .....    | Southern California Law Review                                                                                                                                                                                                                                                                                                      |
| StanJIL .....                | Stanford Journal of International Law                                                                                                                                                                                                                                                                                               |
| Statute/Rome Statute .....   | Rome Statute of the International Criminal Court, UN Doc. A/CONF.183/9, 1998                                                                                                                                                                                                                                                        |
| StGB .....                   | German/Austrian Criminal Code                                                                                                                                                                                                                                                                                                       |
| STL .....                    | Special Tribunal for Lebanon                                                                                                                                                                                                                                                                                                        |
| StV .....                    | Strafverteidiger                                                                                                                                                                                                                                                                                                                    |
| SuffolkTransnatLRev .....    | Suffolk Transnational Law Review                                                                                                                                                                                                                                                                                                    |
| SUP .....                    | Stanford University Press                                                                                                                                                                                                                                                                                                           |
| Supp. ....                   | Supplement                                                                                                                                                                                                                                                                                                                          |
| SWGCA .....                  | Special Working Group on the Crime of Aggression                                                                                                                                                                                                                                                                                    |
| TC .....                     | Trial Chamber                                                                                                                                                                                                                                                                                                                       |
| TEU .....                    | Treaty on European Union                                                                                                                                                                                                                                                                                                            |
| TJ .....                     | Trial Judgment                                                                                                                                                                                                                                                                                                                      |
| TorontoFacLRev .....         | University of Toronto Faculty of Law Review                                                                                                                                                                                                                                                                                         |
| TorontoILRev .....           | University of Toronto International Law Review                                                                                                                                                                                                                                                                                      |
| TorontoLJ .....              | University of Toronto Law Journal                                                                                                                                                                                                                                                                                                   |
| Transnatl&ContempProbs ..... | Transnational Law & Contemporary Problems                                                                                                                                                                                                                                                                                           |
| TRWC .....                   | Trials of War Criminals                                                                                                                                                                                                                                                                                                             |
| UCDavisJIL&Policy .....      | University of California Davis Journal of International Law and Policy                                                                                                                                                                                                                                                              |
| UChicagoLRev .....           | University of Chicago Law Review                                                                                                                                                                                                                                                                                                    |
| UCLAJIL&ForeignAffairs ..... | UCLA Journal of International Law and Foreign Affairs                                                                                                                                                                                                                                                                               |
| UDHR .....                   | Universal Declaration of Human Rights                                                                                                                                                                                                                                                                                               |
| UFDR .....                   | Union of Democratic Forces for the Unity                                                                                                                                                                                                                                                                                            |
| UK .....                     | United Kingdom                                                                                                                                                                                                                                                                                                                      |
| U.N./UN .....                | United Nations                                                                                                                                                                                                                                                                                                                      |
| UN Doc. ....                 | United Nations Document                                                                                                                                                                                                                                                                                                             |
| UNCIO .....                  | United Nations Conference on International Organization                                                                                                                                                                                                                                                                             |
| UNDP .....                   | United Nations Development Programme                                                                                                                                                                                                                                                                                                |
| UNDSS .....                  | United Nations Department of Safety and Security                                                                                                                                                                                                                                                                                    |
| UNEP .....                   | United Nations Environmental Program                                                                                                                                                                                                                                                                                                |
| UNESCO .....                 | United Nations Educational, Scientific and Cultural Organization                                                                                                                                                                                                                                                                    |
| UNHAS .....                  | United Nations Humanitarian Air Service                                                                                                                                                                                                                                                                                             |
| UNHCR .....                  | United Nations High Commissioner for Refugees                                                                                                                                                                                                                                                                                       |
| UNICEF .....                 | United Nations Children's Fund                                                                                                                                                                                                                                                                                                      |
| UNMIK .....                  | United Nations Mission in Kosovo                                                                                                                                                                                                                                                                                                    |
| UNOCI .....                  | United Nations Operation in Côte d'Ivoire                                                                                                                                                                                                                                                                                           |
| UNON .....                   | UN Office at Nairobi                                                                                                                                                                                                                                                                                                                |
| UNorthCarolinaPress .....    | University of North Carolina Press                                                                                                                                                                                                                                                                                                  |
| UNRWA .....                  | United Nations Relief and Works Agency for Palestine Refugees in the Near East                                                                                                                                                                                                                                                      |
| UNSCOR .....                 | United Nations Security Council Official Record                                                                                                                                                                                                                                                                                     |

## Abbreviations

|                                  |                                                                                                                                |
|----------------------------------|--------------------------------------------------------------------------------------------------------------------------------|
| UNTAET .....                     | United Nations Transitional Administration in East Timor                                                                       |
| UNTS .....                       | United Nations Treaty Series                                                                                                   |
| UNWCC .....                      | United Nation War Crimes Commission                                                                                            |
| UPaLRev .....                    | University of Pennsylvania Law Review                                                                                          |
| Updated Siracusa Draft .....     | Updated Siracusa Draft, 1994 ILC Draft Statute for an International Criminal Court With Suggested Modifications, prepared by a |
| UPU .....                        | Universal Postal Unit                                                                                                          |
| U.S. ....                        | Unites States                                                                                                                  |
| USNavalWarCollegeILStudies ..... | U.S. Naval War College International Law Studies                                                                               |
| UToLRev .....                    | University of Toledo Law Review                                                                                                |
| UtrechtLRev .....                | Utrecht Law Review                                                                                                             |
| <br>                             |                                                                                                                                |
| v. ....                          | <i>versus</i>                                                                                                                  |
| ValULRev .....                   | Valparaiso University Law Review                                                                                               |
| VandJTransnatL .....             | Vanderbilt Journal of Transnational Law                                                                                        |
| VCLT .....                       | Vienna Convention on the Laws of Treaties of 1969                                                                              |
| VirgJIL .....                    | Virginia Journal of International Law                                                                                          |
| VirgLRev .....                   | Virginia Law Review                                                                                                            |
| Vol./Vols. ....                  | Volume/Volumes                                                                                                                 |
| VPRS .....                       | Victims Participation and Reparation Section                                                                                   |
| VStGB .....                      | Völkerstrafgesetzbuch                                                                                                          |
| VUWellingtonLRev .....           | Victoria University of Wellington Law Review                                                                                   |
| <br>                             |                                                                                                                                |
| <b>W</b>                         |                                                                                                                                |
| WakeForestLRev .....             | Wake Forest Law Review                                                                                                         |
| WGA .....                        | Working Group on Amendments                                                                                                    |
| WisconsinILJ .....               | Wisconsin International Law Journal                                                                                            |
| W.L.R. ....                      | Weekly Law Reports                                                                                                             |
| Women&IHumRtsL .....             | Women and International Human Rights Law                                                                                       |
| <br>                             |                                                                                                                                |
| <b>Y</b>                         |                                                                                                                                |
| YaleJIL .....                    | Yale Journal of International Law                                                                                              |
| YaleLJ .....                     | Yale Law Journal                                                                                                               |
| Yb .....                         | Yearbook                                                                                                                       |
| YbICTY .....                     | Yearbook of the International Criminal Tribunal for the Former Yugo-                                                           |
|                                  | slavia                                                                                                                         |
| YbIHumL .....                    | Yearbook of International Humanitarian Law                                                                                     |
| YbILC .....                      | Yearbook of the International Law Commission                                                                                   |
| <br>                             |                                                                                                                                |
| <b>Z</b>                         |                                                                                                                                |
| ZaöRV .....                      | Zeitschrift für ausländisches öffentliches Recht und Völkerrecht                                                               |
| ZDV .....                        | Zentrale Dienstvorschrift (German joint service regulation)                                                                    |
| ZFRV .....                       | Zeitschrift für Rechtsvergleichung, Internationales Privatrecht und Euro-                                                      |
|                                  | parecht                                                                                                                        |
| ZIS .....                        | Zeitschrift für Internationale Strafrechtsdogmatik                                                                             |
| ZRP .....                        | Zeitschrift für Rechtspolitik                                                                                                  |
| ZStW .....                       | Zeitschrift für die gesamten Strafrechtswissenschaften                                                                         |
| Zutphen Draft .....              | Report of the Inter-Sessional Meeting from 19 to 30 January 1998 in                                                            |
|                                  | Zutphen, The Netherlands (A/AC.249/1998/L.13, 1998)                                                                            |



## Preamble

The States Parties to this Statute,

Conscious that all peoples are united by common bonds, their cultures pieced together in a shared heritage, and concerned that this delicate mosaic may be shattered at any time,

Mindful that during this century millions of children, women and men have been victims of unimaginable atrocities that deeply shock the conscience of humanity,

Recognizing that such grave crimes threaten the peace, security and well-being of the world,

Affirming that the most serious crimes of concern to the international community as a whole must not go unpunished and that their effective prosecution must be ensured by taking measures at the national level and by enhancing international cooperation,

Determined to put an end to impunity for the perpetrators of these crimes and thus to contribute to the prevention of such crimes,

Recalling that it is the duty of every State to exercise its criminal jurisdiction over those responsible for international crimes,

Reaffirming the Purposes and Principles of the Charter of the United Nations, and in particular that all States shall refrain from the threat or use of force against the territorial integrity or political independence of any State, or in any other manner inconsistent with the Purposes of the United Nations,

Emphasizing in this connection that nothing in this Statute shall be taken as authorizing any State Party to intervene in an armed conflict or in the internal affairs of any State,

Determined to these ends and for the sake of present and future generations, to establish an independent permanent International Criminal Court in relationship with the United Nations system, with jurisdiction over the most serious crimes of concern to the international community as a whole,

Emphasizing that the International Criminal Court established under this Statute shall be complementary to national criminal jurisdictions,

Resolved to guarantee lasting respect for and the enforcement of international justice,

Have agreed as follows:

**Literature:** Ambos, K., 'Punishment without a Sovereign? The Ius Puniendi Issue of International Criminal Law: A First Contribution towards a Consistent Theory of International Criminal Law', (2013) 33 *OJLS* 293; P.-H. Bolle and K. Hobe (eds.), *Legal Aspects of Crime Prevention – In Memoriam Helge Röstad* (Neuchâtel: International Penal and Penitentiary Foundation 1999); Carnegie Endowment for International Peace, Division of Intercourse and Education, *Report of the International Commission to Inquire into the Causes and Conduct at the Balkan Wars*, Publication No. 4, reprinted 1993; Triffterer, O., 'Der ständige Internationale Strafgerichtshof – Anspruch und Wirklichkeit, Anmerkungen zum "Rome Statute of the International Criminal Court" vom 17. Juli 1998', in: K.H. Gössel and O. Triffterer (eds.), *Gedächtnisschrift für Heinz Zipf* (C.F. Müller 1999), 545; Triffterer, O. 'Kriminalpolitische und dogmatische Überlegungen zum Entwurf gleichlautender "Elements of Crimes" für alle Tatbestände des Völkermordes', in: B. Schünemann *et al.* (eds.), *Festschrift für Claus Roxin* (De Gruyter 2001), 1415; Triffterer, O., 'Preliminary Remarks', in: O. Triffterer (ed), *ICC Commentary* (Beck, 2<sup>nd</sup> ed. 2008), 15.

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## A. General remarks

### I. Drafting history

- 1 The Preamble as adopted by the Rome Conference has 11 paragraphs, the majority of which were only included at the final stage of the Conference. This procedure is logical insofar as the Preamble summarizes the aims and purposes of the Statute and thereby mirrors the results achieved as well as the compromises which were agreed upon only at the very end of the Conference.

Early draft statutes, like those of the Committee on International Criminal Jurisdiction of 1951, revised in 1953, did not contain a Preamble. The same is true for the ILA and the AIDP Drafts of the mid-1920 s, even though at that time, for instance, the ‘General Treaty for Renunciation of War as an Instrument of National Policy’ of 27 August 1928, included some introductory language starting with ‘persuaded ...; convinced ...; hopeful that ...’<sup>1</sup>. The Draft Statute elaborated by the Wingspread-Bellagio Conferences in 1971 and 1972 also did not have any Preamble, nor did those proposed by the ILA at its Belgrade Conference in 1980 and Paris Conference in 1984. The same is true of the Draft Convention on the Establishment of an International Penal Tribunal for the Suppression and Punishment of the Crime of Apartheid and other international crimes of 1980, and of the Draft Statute presented by M.Ch. Bassiouni in 1987<sup>2</sup>.

- 2 It was the ILC which proposed in its 1994 Draft Statute a Preamble with three paragraphs, beginning with the words: ‘Desiring to further international cooperation to enhance the effective prosecution and suppression of crimes of international concern, and for that purpose to establish an international criminal court’. The ILC emphasized in paragraph 2 that ‘such a court is intended to exercise jurisdiction only over the most serious crimes of concern to the international community as a whole’, while in paragraph 3 the complementarity ‘to national criminal justice systems in cases where such trial procedures may not be available or may be ineffective’ was mentioned<sup>3</sup>. This rather short summary of ‘the main purposes of the draft Statute’, as it was expressed in the commentary to this Draft, was included in later drafts; the Siracusa and the Updated Siracusa Draft, for instance, did not change or amend this proposal of the ILC<sup>4</sup>.

The 1995 *Ad Hoc* Committee repeated in its report only ‘the third preambular paragraph of the draft statute’, stating that the ILC ‘did not intend the proposed court to replace national courts’, but it mentioned that the issue required further elaboration<sup>5</sup>. However, according to its discussion reflecting the 1996 Session, the Preparatory Committee Report contains, in addition to the ILC Draft, proposals dealing with paragraph 3 and the question of complementarity between international and national jurisdiction. For the principle of

<sup>1</sup> See for the early drafts Triffterer, *Preliminary Remarks* (2008) mn 2 with further references, and for the just mentioned General Treaty 1928, the Briand Kellogg Pact, League of Nations-Treaty Series (1929) Doc. 7, No. 2137, pp. 190 *et seq.*

<sup>2</sup> See for these documents Triffterer, *Preliminary Remarks* (2008) mn 4 *et seq.*

<sup>3</sup> See for the 1994 ILC Draft Statute, pp. 43 and 44, reprinted in: Bassiouni, *International Criminal Court. Compilation of United Nations Documents and Draft ICC Statute Before The Diplomatic Conference* (1998) 722.

<sup>4</sup> See for these documents Triffterer, *Preliminary Remarks* (2008) mn 7 *et seq.*; see for a comparison between different initial drafts and the final version Schabas, *Commentary* (2010), pp. 33–40.

<sup>5</sup> *Ad Hoc* Committee Report, p. 6, reprinted in: Bassiouni, *Court* (1998) 673.

complementarity its phrasing was more disputed than its establishment as such. Correspondingly, it was also proposed 'that it is the primary duty of *States* to bring to justice persons responsible for such serious crimes'<sup>6</sup>. The Preparatory Committee did not deal with the Preamble during its 1997 sessions, but mentioned nevertheless preambular paragraph 3 when dealing with article 35, 'Issues of admissibility'<sup>7</sup>. Referring to the fact that the Preparatory Committee had not considered the Preamble in 1997, the Zutphen Draft repeated only what had been printed in the Preparatory Committee's Report Vol. II. The Consolidated Draft did likewise, albeit with a footnote reference to proposals changing the ILC Draft<sup>8</sup>. The Model Draft Statute presented by L. S. Wexler and M. Ch. Bassiouni replicated the ILC 1994 Draft Statute with the exception that preambular paragraph 3 was shortened to be consistent with paragraph 1 of article 1, a proposition which several persons put to the Preparatory Committee<sup>9</sup>.

What had amounted to a rather embryonic drafting history received fresh impetus at the Rome Conference. As early as 25 June 1998, Spain proposed an expanded Preamble comprising eight paragraphs instead of the original three, covering aspects like the reminder of the sufferings of victims, the relationship to the United Nations, the recognition of protected values, as well as emphasizing, firstly, that 'this Statute should not be interpreted as affecting in any way the scope of the provisions of the Charter relating to the functions and the powers of the organs of the United Nations', and secondly, that 'the relevant norms of general international law will continue to govern those questions not expressly regulated in this Statute'<sup>10</sup>.

Andorra proposed on 30 June 1998 that the Preamble should begin with a reference (as it now states in preambular paragraph 1) to our 'common bond, and that our cultures are woven together in a shared history' as well as to the threat to the 'well-being of our world', three aspects which were eventually integrated into the adopted Preamble<sup>11</sup>. The Dominican Republic proposed (as Spain had done before) that the permanent character of the Court and the need 'to put an end to the impunity with which such acts are committed' be included, mentioning also 'the duty of every State to exercise its penal jurisdiction against those responsible for crimes of international magnitude'<sup>12</sup>.

From the outset of its discussion, the Committee of the Whole had entrusted a representative of Samoa 'with the task of coordinating informal consultations on the text for the Preamble to the Statute'. After these consultations concluded, the Co-ordinator submitted to the Committee of the Whole a proposal containing nine preambular paragraphs which in large part dealt with the aspects contained in the adopted Preamble<sup>13</sup>. On 14 July 1998, the Committee of the Whole presented the recommendation of the Co-ordinator in 12 paragraphs<sup>14</sup> with some changes. The Report of the Drafting Committee to the Committee of the Whole shortened the Preamble to 10 paragraphs on 16 July 1998. There was a shortened

<sup>6</sup> Emphasis added. Discussing the second paragraph of the Preamble it was mentioned (without a concrete proposal) the necessity 'to avoid trivializing the role and functions of the Court and interfering with the jurisdiction of national courts' and that 'genocide met the jurisdictional standard referred to in the second paragraph of the preamble'; see 1996 Preparatory Committee I, pp. 15 and 17 respectively for the discussion on the second paragraph Vol. II, pp. 20, 21 and 36 and for the proposals Vol. II, pp. 1 *et seq.*, but also 155 *et seq.* on the further discussion on the question of complementarity, reprinted in: Bassiouni, *Court* (1998) 383, 385, 387 *et seq.* and 403 respectively 449 and 556 *et seq.* On the travaux re Article 17 see also Schabas and El-Zeid, *article 17*, mn 5 *et seq.*

<sup>7</sup> See Preparatory Committee Decisions Aug. 1997, p. 10, reprinted in: Bassiouni, *Court* (1998) 320.

<sup>8</sup> Zutphen Draft, p. 11 with reference to UN Doc. A/51/22, reprinted in: Bassiouni, *Court* (1998) 145; for the Consolidated Draft see Preparatory Committee (Consolidated) Draft, p. 10, reprinted in: Bassiouni, *Court* (1998) 11.

<sup>9</sup> See 13ter NEP (1998) 1.

<sup>10</sup> See UN Doc. A/CONF.183/C.1/L.22.

<sup>11</sup> See UN Doc. A/CONF.183/C.1/L.32.

<sup>12</sup> See UN Doc. A/CONF.183/C.1/L.52.

<sup>13</sup> See UN Doc. A/CONF.183/C.1/L.61.

<sup>14</sup> See UN Doc. A/CONF.183/C.1/L.73.

reference in preambular paragraph 1 to the ‘common bonds and ... a shared heritage’, and a new reference in paragraph 3 to, ‘[r]ecognizing that such grave crimes threaten the peace, security and well-being of the world’<sup>15</sup>.

## II. Legal and political importance

- 4 The legal significance of the Preamble was only briefly mentioned during the drafting process. The ILC first pointed out in its commentary to the 1994 Draft Statute that the Preamble of the Statute was ‘intended to assist in the interpretation and application of the Statute, and in particular in the exercise of the power conferred by article 35’, which at that stage of the process was dealing with ‘[i]ssues of admissibility’. Already at that time the question of whether ‘the preamble should be an operative article of the statute, given its importance’, had been discussed<sup>16</sup>. The reasons why the latter opinion did not prevail in the end were twofold: First, with reference to article 31 of the Vienna Convention on the Law of Treaties, it was stated that ‘the preamble to a treaty was considered part of the context within which a treaty should be interpreted’. Therefore, any terms of the Preamble ‘would form part of the context in which the statute as a whole was to be interpreted and applied’<sup>17</sup>. Second, what was included in the draft Preamble in 1994 was not considered to be sufficiently detailed and precise to substitute ‘a definition or at least a mention ... in an article of the statute’ with a view to removing ‘any doubt as to the importance of the principle of complementarity (for instance) in the application and interpretation of subsequent articles’<sup>18</sup>.

Both opinions confirm that the Preamble does not belong in the operative part of the Statute and that its legal significance is limited, i.e., to describe the main purposes of the Statute and results of the negotiation process as well as to reiterate – and perhaps specify – the obligations of States in certain respects. The Preamble, therefore, has to be taken into consideration when interpreting the articles and provisions of the Statute.

As can be seen from the common heading (‘Rome Statute of the International Criminal Court’) the Preamble is an integral part of the Statute. Both the Preamble and the operative part of the Statute must, therefore, be treated equally in comparison with other sources of international law pursuant to article 21 para. 1 ICCS. Of course, the operative articles have a higher rank than the Preamble. The Preamble would normally only need to be considered in cases of doubt, as mentioned by the ILC in its commentary<sup>19</sup>.

<sup>15</sup> See UN Doc. A/CONF.183/C.1/L.82. See for an additional aspect of this development mn 7.

<sup>16</sup> For both quotations see 1994 ILC Draft Statute, commentary to the Preamble, paras. 3 and 4, p. 44, reprinted in: Bassiouni, *Court* (1998).

<sup>17</sup> *Ad Hoc* Committee Report, para. 37, p. 7, reprinted in: Bassiouni, *Court* (1998) 674.

<sup>18</sup> *Ad Hoc* Committee Report, para. 36, p. 7 (brackets added) reprinted in: Bassiouni, *Court* (1998) 674; see also para. 54, p. 11: ‘... reflected not only in the preamble but also in an operative provision’. See also 1996 Preparatory Committee I, para. 63, p. 19: ‘... appropriate language could be added to the preamble or on operative provision’ and para 156, p. 36: ‘... the preamble of the Statute to reiterate the obligation of States in this respect’.

<sup>19</sup> 1994 ILC Draft Statute, p. 27, Commentary to the Preamble, para. 3. The Preamble should especially be considered in Art. 35 (now Article 17) in the context of the admissibility test, 1994 ILC Draft Statute, p. 52, Commentary to Art. 35, para. 2, <[http://legal.un.org/ilc/texts/instruments/english/commentaries/7\\_4\\_1994.pdf](http://legal.un.org/ilc/texts/instruments/english/commentaries/7_4_1994.pdf)> last accessed 14 May 2015; see further *Prosecutor v. Katanga and Ngudjolo Chui*, No. ICC-01/04-01/07-1497, AC, Judgment on the Appeal of Mr. Germain Katanga against the Oral Decision of Trial Chamber II of 12 June 2009 on the Admissibility of the Case, AC, 25 September 2009, para. 78, <<http://www.legal-tools.org/doc/ba82b5/>> last accessed 14 May 2015 (determining the admissibility criteria ‘[with] regard to paragraph 10 of the Preamble and article 1 [of the Rome Statute]’); conc. with respect to complementarity *Situation in the Republic of Kenya*, No. ICC-01/09-19-Corr, PTC II, Decision Pursuant to Article 15 of the Rome Statute on the Authorization of an Investigation into the Situation in the Republic of Kenya, 31 March 2010, para. 53, <<http://www.legal-tools.org/doc/f0caaf/>> last accessed 14 May 2015. See also former ICC Judge Pikis, *The Rome Statute for the ICC* (2010), p. 15, para. 38: ‘The Preamble can neither override nor put a gloss on the meaning of statutory provisions other than the one warranted by their wording. Its interpretative value lies in identifying the wider objectives of a treaty and the drawing of its parameters.’.

Since the Preamble is 'part of the context within which a treaty should be interpreted' and 'intended to assist in the interpretation and application of the Statute'<sup>20</sup>, it must also be considered when the Statute or specific articles or provisions thereof shall be amended and reviewed according to articles 121-123 ICCS. This 'limiting or prejudicing' effect of the Preamble had to be taken into account when drafting the elements of crime (Article 9 ICCS)<sup>21</sup> and the crime of aggression (Article 8bis ICCS)<sup>22</sup>.

The moral and political importance of the adopted Preamble should not be overlooked. 5 The credibility of States that have signed the Statute, especially those that decide to become States Parties, will in large part depend on their unreserved respect for the principles and standards of the Preamble. This is particularly true with regard to preambular paragraph 6, which recalls the duty of States to exercise their criminal jurisdiction to fulfil the purposes and aims described in the Preamble, even with regard to those international crimes not falling within the jurisdiction of the Court.

In Nuremberg and Tokyo the Allies repeatedly declared that the law according to which they judged the major war criminals would have to be applied in the future to judge their own behaviour. The same is true with regard to all States Parties of the Rome Statute. Their fundamental moral obligation has to be taken as seriously, if not more, as the words of the American Chief Prosecutor, Justice Robert H. Jackson:

'We must never forget that the record on which we judge these defendants to-day is the record on which history will judge us to-morrow. To pass these defendants a poisoned chalice is to put it to our own lips as well. We must summon such detachment and intellectual integrity to our task that this Trial will commend itself to posterity as fulfilling humanity's aspirations to do justice'<sup>23</sup>.

## B. Analysis and interpretation of elements

The Preamble was adopted with the rest of the Statute at the Rome Conference by no less 6 than 120 negotiating States, whilst 20 States abstained, and seven voted against it. The chapeau of the Preamble did not, however, appear in the adopted version, even though it was contained in earlier drafts and its absence was pointed out to members of the Drafting Committee before adoption. It had simply been forgotten in the Report of the Drafting Committee to the Committee of the Whole on 16 July 1998<sup>24</sup>, the most hectic day before the closing session of the Conference on 17 July 1998. It was later reinserted, when, after the Rome Conference, the whole Statute was examined carefully and minor corrections, which had been overlooked during the frenetic last three days of the Conference, were distributed to the participating States and other institutions for approval or objection within a specified time period.

It was obvious that only '[t]he States Parties to this Statute' could '[h]ave agreed as follows', namely to establish the ICC and bring it into operation. Consequently, the omission of the chapeau was considered a clear case of oversight and the alteration accepted. Any interpretation of the Preamble without its chapeau would, in any event, have led to the same result<sup>25</sup>.

<sup>20</sup> See for the first quotes *Ad Hoc* Committee Report, para. 37, p. 7 reprinted in: Bassiouni, *Court* (1998) 674 and for the latter Report of the ILC, 1994 ILC Draft Statute, commentary to the Preamble, para. 3, p. 44 reprinted in: Bassiouni, *Court* (1998) 722.

<sup>21</sup> See commentary by Clark in this volume.

<sup>22</sup> See the commentary by Zimmermann and Freiburg in this volume.

<sup>23</sup> *The Trial of German Major War Criminals. Proceedings of the International Military Tribunal Sitting at Nuremberg*, Part I, 20 Nov. 1945 to 1 Dec. 1945, p. 51; for the German version and a similar statement by the French Chief Prosecutor Francois de Menthon, see *Der Prozess gegen die Hauptkriegsverbrecher vor dem Internationalen Militärgerichtshof Nürnberg*, Vol. II (1947-1949) 118 respectively *id.*, v (1947-1949) 480.

<sup>24</sup> See UN Doc. A/CONF.183/C.1/L.82 in comparison with the Recommendations of the Co-ordinator, 14 July 1998, UN Doc. A/CONF.183/C.1/L.73, which were, with minor changes, adopted by the Committee of the Whole.

<sup>25</sup> For the corrections made by the Drafting Committee in cooperation with the Committee of the Whole, see UN Doc. A/CONF.183.C.1/L.61, L.73 and L.82. See also Note from the Secretary General, C.N.502.1998. *Treaties-3* (Depository Notification).



## I. Paragraph 1: Global context

- 7 Preambular paragraph 1 makes clear that States Parties, when accepting the Statute, are '[c]onscious that all peoples are united by common bonds, their cultures pieced together in a shared heritage, and concerned that this delicate mosaic may be shattered at any time'. This represents an important statement of fundamental normative considerations that seem to have become universally recognised. Opening the Preamble with such a declaration serves as a useful reminder that the foundational principles and interests underlying the emerging system of international criminal justice do not exist in a normative vacuum. Rather, they echo, in the arena of international affairs, the loftiest aspirations of an ever advancing civilisation.

Being aware 'that all peoples are united by common bonds, their cultures pieced together in a shared heritage' means that all human beings, regardless of their citizenship and religious, ethnic, social or other origin or identity, are essentially members of one human race simply by being human beings. Born with inherent potentialities and equal in dignity, all human beings enjoy the same fundamental human rights and freedoms that protect interests such as life, physical integrity, personal liberty and individual conscience. Dignity is the core concept here and the basis of the universal enforcement of international criminal law.<sup>26</sup> The references to 'common bonds' and 'shared heritage' recognise that humankind is essentially one, despite political, legal or socio-economical divides or considerations of national or geographic separation. The enforcement of international criminal law through an international jurisdiction has the potential to contribute to the further unification of humankind by bringing peace through justice.

At the same time preambular paragraph 1 recognises that the peoples of the world are entitled to preserve the essential diversity of humankind as it traditionally exists as well as evolves in the future. It refers to the cultures being 'pieced together' and that this constitutes a 'delicate mosaic'. Essentially, paragraph 1 addresses the need for the various peoples of the world to afford respect and tolerance for one another.

The unity in diversity of humankind, as recognized by the metaphor of a 'delicate mosaic', was already expressed in a proposal by Andorra of 30 June 1998, which emphasized:

'that our cultures are woven together in a shared history, a delicate tapestry that may at any moment be rent and torn asunder by unspeakable acts of brutality and ignorance that threaten the well-being of our world'<sup>27</sup>.

The original Andorran image of the 'tapestry' was later replaced with the reference to a mosaic. The delegations of Japan, France and some Islamic States found 'tapestry' to be culturally inappropriate. Once 'tapestry' was replaced with 'mosaic', the verb 'rent' did not make sense any longer. It is noteworthy that the Drafting Committee deleted the image of the 'mosaic' altogether (as it has now become) through document L. 82, but Andorra objected firmly to this change. It was put back in through L. 76, later in the day on 16 July 1998 (although given a higher number, L. 82 was in fact issued before L. 76). The original proposal gradually lost its scope and flavour, as the expression 'be rent and torn asunder' was first replaced with 'be pulled apart' and finally with 'be shattered', and some of its concepts were incorporated into other paragraphs; 'threaten the peace, security and well-being of our world', for instance, was placed in preambular paragraph 3.

Notwithstanding these alterations, the final format of the paragraph expresses the recognition by the States negotiating at the Rome Conference that this 'delicate mosaic', the cultures of all peoples pieced together in a shared heritage, may 'be shattered at any time'. Armed conflicts constitute an integral part of the reality of international affairs, providing sobering

<sup>26</sup> See insofar regarding the *ius puniendi* of ICL Ambos (2013) 33 *OJLS* 293 *et seq.*

<sup>27</sup> UN Doc. A/CONF.183.C.1/L.32.

material that confirms that such conflicts continue to generate ‘grave crimes [that] threaten the peace, security and well-being of the world’, as referred to in preambular paragraph 3.

## II. Paragraph 2: Reminder to victims

Endeavours to develop international criminal law and to establish an international criminal jurisdiction have been stirred since mid-18<sup>th</sup> century by ‘unimaginable atrocities’, shocking not only distinguished individual observers such as Henry Dunant and Friedrich von Martens. Since then new waves of atrocities have moved steadily better organized institutions to exert pressure on combatants to conduct hostilities with at least a bare minimum of humanity. New armed conflicts, however, seemed bent on evoking deeper levels of inhumanity, thus challenging society’s increased desire to ensure elementary respect for basic human rights and freedoms.

Over the centuries and especially after World War I the number of victims in armed conflicts had become as unpredictable as the events leading up to such cruelties. At the end of World War II the figures of victims had reached such abhorrent proportions that they unavoidably obscured the individual victim and his or her sufferings. This development shocked people and the conscience of humanity. After this cruel awakening the Allies and the UN devoted their energies to promote the rule of law in an effort to protect themselves and those lacking the economic, political or legal capacity against state sanctioned abuse of power. Earlier, the Carnegie Endowment for International Peace had investigated the causes of the Balkan Wars 1912/13 and reached the axiomatic conclusion that those in power could have stopped the conflict and the attendant atrocities with just one word<sup>28</sup>. Subsequently, the Allied powers of World War I were too concerned with imposing Carthaginian peace terms and exacting reparations to be far-sighted in relation to the establishment of a permanent international criminal jurisdiction.

The move towards establishing a framework of resistance on behalf of potential victims all over the world nevertheless improved in the 1930s with the endeavours of the international community, as evidenced by the Briand Kellogg Pact, the General Treaty for Renunciation of War as an Instrument of National Policy of 27 August 1928, and the Convention for the Prevention and Punishment of Terrorism of 1937<sup>29</sup>. The situation during and after World War II brought victims even closer together and concentrated the human conscience once more on the plight and powerlessness of victims of the most serious international crimes. The sheer numbers of victims and their suffering transcended all imagination. The concept of justice was revisited so that it could be meted out not only in the name of individuals or groups of victims, but also on behalf of humanity as such. In an effort to ensure that this history remains at the forefront of the collective human conscience, the Preamble refers to the suffering of millions of the most innocent human beings<sup>30</sup>.

<sup>28</sup> See Carnegie Endowment for International Peace, Division of Intercourse and Education, *Report of the International Commission to Inquire into the Causes and Conduct at the Balkan Wars*, Publication No. 4, reprinted 1993 with an introduction by Kennan; for the Versailles Peace Treaty see Reichsgesetzblatt of Germany No. 140 (1919). See also Segesser (2006) 31 *Peace & Change* 4, 533 *et seq.*

<sup>29</sup> See for the text and the number of ratifications League of Nations-Treaty Series, Doc. 7, No. 2137, pp. 190 *et seq.* (1929), and for the Convention for the Prevention and Punishment of Terrorism Triffterer, *Preliminary Remarks* (2008) mn 2 with fn. 3 there.

<sup>30</sup> Besides children and women men are mentioned; the latter may be caught by their own activities which tend to generate an autonomous, self-executing dynamic that strikes back on the individual originator, making him perpetrator and victim. The number of soldiers needing psychiatric treatment after the wars in Vietnam and on the territory of the former Yugoslavia confirms this danger.

### III. Paragraph 3: Recognition of protected values

- 9 Whilst preambular paragraph 2 is a *memento ad memoriam*, paragraph 3 recognises that the ‘unimaginable atrocities’ mentioned in paragraph 2 are not just ‘ordinary crimes’ with which society has learned to live (alas, not yet to prevent effectively). Rather, they are ‘such grave crimes’ because they endanger protected legal values of the international community as a whole: ‘the peace, security and well-being of the world’. This formula refers primarily to basic, inherent values of the community of nations, but also to those which belong to the national legal orders but need supplementary protection by the international legal order to counter the threat of abuse of State power. The formula makes clear that attacks by States on the well-being of its own population, especially cases of genocide, deportation or expulsion, are no longer an internal affair, but endanger the international community as such<sup>31</sup>.
- This preambular paragraph contains the basis for international criminal law, namely that this emerging discipline is in reality the criminal law of the community of nations, with the function of protecting the highest legal values of this community against ‘such grave crimes [that] threaten the peace, security and well-being of the world’<sup>32</sup>.
- 10 The first two values are well known and expressly recognized by the UN Charter. They appear there more than twenty times<sup>33</sup> and have featured prominently in the different ILC Draft Codes of Crimes (formerly: Offences) against the Peace and Security of Mankind<sup>34</sup>. Article 20 of the 1996 Draft Code expressly states that ‘war crimes constitute[s] a crime against the peace and security of mankind when committed in a systematic manner or on a large scale’.
- 11 Against this background, paragraph 3 marks two developments which ought to be kept in mind when the Statute is interpreted with due consideration being given to the Preamble<sup>35</sup>:
- The peace and security of mankind were for a long time the only expressions summarizing the basic, inherent values of the community of nations which had to be protected in the interest of all, individuals and States alike. According to common opinion such protection should include, as *ultima ratio* against especially grave violations, *international criminal law* by which such crimes could be punished *directly*. The formula ‘*well-being of the world*’ was added in order to emphasize that not only the narrow security of people, but the distribution of basic conditions for their well-being, especially minimum guarantees for the existence of human life, is at stake. It describes *additional* aspects of value protection, which have to be respected, for instance, when defining aggression (now Article 8*bis* ICCS) or interpreting elements of crimes.<sup>36</sup>
  - There is a change in the wording which might be of equal if not greater importance. Previously, ‘peace and security’ were both connected with ‘mankind’ or at least this reference was clearly expressed with regard to ‘security’. The Rome Statute does not mention the word ‘mankind’ anymore, while ‘conscience of humanity’, for instance, appears at the end of paragraph 2. The structure of the paragraph means that the concept of ‘security *and well-being*’ refers to ‘the world’, whilst only peace can stand by itself. However, it may as well be included in these references under the expression ‘peace ... of the world’.

<sup>31</sup> For details see Triffterer, *Preliminary Remarks* (2008) mn 11 *et seq.*, 20 *et seq.* with fn. 47 and 85. See also *Prosecutor v. Tadić*, Case No. IT-94-I-AR 72, Judgment, Appeals Chamber, 2 Oct. 1995, para. 59, where the Appeals Chamber quotes and confirms from the Trial Chamber (para. 42) that these crimes are ‘transcending the interest of any one State’ and that ‘they affect the whole of mankind’.

<sup>32</sup> Triffterer, *Preliminary Remarks* (2008) mn 14 *et seq.* (brackets added).

<sup>33</sup> Triffterer, in: Gössel and Triffterer (eds.), *Gedächtnisschrift für Heinz Zipf* (1999) 545 *et seq.* with references in fn. 110 to the relevant articles of the UN Charter.

<sup>34</sup> Already as early as 1928, for instance, it was for States considered ‘their solemn duty to promote the welfare of mankind’ as a whole or at least independent of their individual territory, see note 1, General Treaty 1928, Preamble, para. 1, p. 190.

<sup>35</sup> See to this function of the Preamble mn 4.

<sup>36</sup> See, e.g., Triffterer, in Schünemann *et al.* (eds.) *Festschrift für Claus Roxin* (2001), 1415 *et seq.*

But the use of the word ‘world’ in preference to ‘mankind’ means more than just mankind or humanity. It includes not only human beings but also the world around them and thus *its* well-being, for instance, the natural environment which is the basis for our lives. This enlargement is mirrored by the war crimes definitions in article 8 para. 2 (b) (iv), where ‘the natural environment’ is expressly mentioned and (xxi), where one of the alternatives is defined as ‘outrages upon personal dignity’<sup>37</sup>; the latter covers ‘in particular humiliating and degrading treatment’, but goes (far) beyond these two examples and may include cases where the well-being may be violated by interfering with basic living conditions or even without causing physical harm. The ICTY has crystallised this conception with the following words:

‘The essence of the whole corpus of international humanitarian law as well as human rights law lies in the protection of the human dignity of every person, whatever his or her gender. The general principle of respect for human dignity is the basic underpinning and indeed the very *raison d’être* of international humanitarian law and human rights law: indeed in modern times it has become of such paramount importance as to permeate the whole body of international law. This principle is intended to shield human beings from outrages upon their person dignity, whether such outrages are carried out by unlawfully attacking the body or by humiliating and debasing the honour, the self-respect or the mental well being of a person’<sup>38</sup>.

Whatever may emerge from the jurisprudence of the ICC over the final interpretation to be given to this new approach in paragraph 3, it will be interesting to see if this paragraph provides a basis for broadening the scope of international criminal law by progressively developing new definitions for crimes falling under this concept even if they do not lie within the jurisdiction of the Court<sup>39</sup>.

#### IV. Paragraph 4: Affirmation of aims to be achieved

After recognizing in paragraph 3 the theoretical basis and justification of international criminal law by pointing out which values it is meant to protect, paragraph 4 affirms the practical aims of this new discipline. The subject-matter is not all ‘crimes of concern to the international community as a whole’, not even all serious crimes, but only ‘the most serious crimes’. This implies either that there are serious and ordinary crimes ‘of concern to the international community as a whole’ or that such crimes are not ‘of concern to the international community as a whole’. The first interpretation is preferable, because, with reference to paragraph 3, only ‘the most serious crimes’ are ‘such grave crimes’ that threaten to violate protected values of this community, namely ‘the peace, security and well-being of the world’. Furthermore, paragraph 4 clarifies that institutions other than the ICC have to deal with crimes falling outside the group of ‘the most serious crimes of concern to the international community as a whole’.

Paragraph 4 further affirms an objective of criminal policy, namely, that the particularly grave and dangerous group of ‘the most serious crimes ... must not go unpunished’. This has always been the main aim of international criminal law, at least in those cases where its deterrent effect has not been successful. The ICC has confirmed this preambular aim in the context of its interpretation of the inaction scenario within the framework of Article 17.<sup>40</sup>

<sup>37</sup> For a corresponding interpretation see *Prosecutor v. Furundžija*, Case No. IT-95-17/1-T, Judgement, Trial Chamber, 10 Dec. 1998, para. 183, p. 72.

<sup>38</sup> *Ibid.*

<sup>39</sup> For some considerations in this direction see Triffterer, in: Gössel and Triffterer (eds.), *Gedächtnisschrift für Heinz Zipf* (1999) 532 *et seq.* and 545 *et seq.* See also for the basis of such an agreement Triffterer, *Preliminary Remarks* (2008) mn 20 *et seq.*, all with further references.

<sup>40</sup> *Prosecutor v. Katanga and Ngudjolo Chui*, No. ICC-01/04-01/07-1497, AC, Judgment on the Appeal of Mr. Germain Katanga against the Oral Decision of Trial Chamber II of 12 June 2009 on the Admissibility of the Case, AC, 25 September 2009, para. 79, < <http://www.legal-tools.org/doc/ba82b5/> > last accessed 14 May 2015

How this aim will be reached, is of lesser importance. Since its early beginnings those favouring the development of international criminal law have always been aware that the possibility to prevent or prosecute crimes under international law by a direct enforcement model may lie in the distant future and that, therefore, indirect enforcement by States is needed to guarantee ‘their effective prosecution’. Of course, the prosecutorial practice of the ICC so far clearly shows that not even all international core crimes by most responsible can be investigated and prosecuted by the ICC<sup>41</sup>. Hence, it is necessary to state that ‘the effective prosecution must be ensured by taking measures at the national level and by enhancing international cooperation’, i.e., by making use of the existing international criminal justice system.<sup>42</sup>

- 14 This paragraph does not deal with the relationship between the jurisdiction of the ICC and national jurisdictions. It primarily makes clear that the ICC requires the support of national criminal justice systems and international cooperation for an effective prosecution of ‘the most serious crimes of concern to the international community as a whole’. This is true not only in cases where the national jurisdiction directly prosecutes such crimes, but also in cases where the ICC is exercising its own jurisdiction; in the latter situation the ICC depends heavily on national cooperation, especially with regard to the arrest or surrender of suspects and the gathering of evidence<sup>43</sup>.

### V. Paragraph 5: Prevention by enforcement

- 15 The aim of paragraph 4, to guarantee ‘that the most serious crimes ... must not go unpunished’, leads logically to the objective expressed in paragraph 5: ‘to put an end to impunity for the perpetrators of these crimes’. But the mere goal of punishing covers only one of the two functions of criminal law, namely the repressive one. Successful crime prevention or deterrence, the first function of criminal law, is the more effective method of protecting legal values in practice. Therefore, both functions and their interrelation are mentioned in paragraph 5. ‘[T]o put an end to impunity’, the necessary substantive and enforcement basis must also be realised. An effective enforcement at the same time contributes to the prevention of such crimes by building awareness and showing potential perpetrators that ‘the most serious crimes of concern to the international community as a whole’ will no longer enjoy immunity from effective enforcement mechanisms<sup>44</sup>. Thus, paragraph 5, considered in connection with paragraph 4, focuses mainly on ‘the prevention of such crimes’, meaning the ‘core crimes’ to which has been referred in the preceding paragraphs of the Preamble, in order to protect the highest values of the international community, mentioned in paragraph 3<sup>45</sup>. Besides, article 27 (‘Irrelevance of official capacity’) is one of the clearest manifestations of this rejection of immunity and impunity in the operative part of the Statute.

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(arguing that the anti-impunity purpose ‘would come to naught’ if unwillingness and inability had to be considered in case of inaction in the context of Article 17. As a result ‘a potentially large number of cases would not be prosecuted by domestic jurisdictions or by the International Criminal Court. Impunity would persist unchecked and thousands of victims would be denied justice.’).

<sup>41</sup> See Triffterer, *Preliminary Remarks* (2008) mn 49 *et seq.*

<sup>42</sup> On this system see Ambos, *Treatise ICL I* (2013) 56 with further references.

<sup>43</sup> See for details Triffterer, *Preliminary Remarks* (2008) mn 50 *et seq.* with further references and especially mn 61.

<sup>44</sup> See for instance Crosette, ‘A ‘Pinocet Syndrome’ Is Humbling Some Strongmen of the World’, *Harald International Tribune*, 24 Aug. 1999.

<sup>45</sup> For a general overview on the possibilities and limits to effectively fight criminality see Bolle and Hobe (eds.), *Legal Aspects of Crime Prevention – In Memoriam Helge Röstad* (1999), Stahn (2005) 18 *LeidenJIL* 425 and Triffterer, in: Politi and Nesi (eds.), *The Rome Statute of the International Criminal Court* (2001).

## VI. Paragraph 6: Recalling to States their duties

As already stated in paragraph 4, the practical side of the affirmation needs to be supported by national criminal jurisdiction. Thus, paragraph 6 reminds ('recalling') the States Parties that it is the duty of every one of them to 'exercise its criminal jurisdiction over those responsible for international crimes,' listed in article 5. 16

The wording of paragraph 6 refers to 'international crimes', a rather broad notion compared with the list of 'core crimes' in article 5. Some aspects of this broader concept emerge from the drafting history of article 5. There was considerable debate as to whether other crimes, like terrorist or drug offences, should be included as well<sup>46</sup>. Moreover, given the context of paragraph 6, it appears that this wording reminds States that their duty is not limited to exercising their criminal jurisdiction over those responsible for crimes within the jurisdiction of the ICC; this has already been affirmed in paragraph 4. The purpose of paragraph 6 is to recall that there is a class of 'crimes under international law' for which States have an obligation to prosecute even if these crimes do not fall within the jurisdiction of the Court. As regards these crimes the only dispute was whether there is an obligation to proceed on the basis of universal jurisdiction or on the basis of more traditional jurisdictional links. The paragraph was deliberately left ambiguous. It has been described by Roger S. Clark as 'a sort of Martens clause which insists that just because the others are not expressly dealt with this does not mean that there is now impunity for them'<sup>47</sup>. Furthermore, it is in the interest of all States to fight transnational organized crimes falling within a broad concept of international crimes, through combined efforts. The Preamble, therefore, reminds States to cooperate not only with the Court on the vertical level, but also pursuant to their mutual interest in order to better protect well established legal values in their respective national legal systems and to be more effective in fighting, for instance, internationally organized crime<sup>48</sup>. 17

## VII. Paragraph 7: Reaffirmation of the UN Charter principles

Preambular paragraph 7 reaffirms the purposes and principles of the UN Charter, as expressed by its articles 1 and 2, 'in particular that all States shall refrain from the threat or use of force against the territorial integrity or political independence of any State, or in any other manner inconsistent with the Purposes of the United Nations'. The UNO was created by nations united to 'save succeeding generations from the scourge of war'<sup>49</sup>. It is exactly during wars that crimes that fall within the jurisdiction of the Court occur most frequently. In wars the life and physical integrity of civilians and other persons protected by international humanitarian law tend to come under massive attack. Maintaining and restoring international peace and security, therefore, bears directly on the need to undertake international judicial intervention in the face of crimes of international concern. To the extent a reaffirmation of fundamental Charter principles may serve as a reminder to States to effectively prevent and stop armed conflicts pursuant to the settlement regimes of the Charter, it contributes to the international prevention of the crimes within the Court's jurisdiction. As international peace and criminal justice mandates gradually develop more mature modes of co-existence, it may be useful to remind ourselves of the commonality of the fundamental values of human life and person underlying both the Charter and the ICC Statute. 18

<sup>46</sup> For a very broad notion see Triffterer, *Preliminary Remarks* (2008) mn 60 *et seq.*; see also Zimmermann, *article 5*, mn 5 *et seq.* See also Cassese (2006) 4 JICJ 434 *et seq.*

<sup>47</sup> Personal letter sent to O. Triffterer.

<sup>48</sup> See for the differentiation between crimes under international law and crimes under national law for which the international cooperation is regulated by international documents Triffterer, in: Gössel and Triffterer (eds.), *Gedächtnisschrift für Heinz Zipf* (1999) 545. See also Triffterer, *Preliminary Remarks* (2008) mn 50 *et seq.*

<sup>49</sup> Preambular paragraph 1 of the UN Charter.



### VIII. Paragraph 8: Non-intervention in internal affairs

- 19 The eighth preambular paragraph emphasizes that nothing in the Statute ‘shall be taken as authorizing any State Party to intervene in an armed conflict or in the internal affairs of any State’. The ICC Statute concerns individual criminal liability and the enforcement of certain norms of international criminal law. It does not deal with State responsibility or the settlement of disputes between States. It is correct that the subject-matter jurisdiction of the Statute includes numerous prohibitions of international law which are applicable in internal armed conflict, but article 8 para. 3 makes clear that this ‘shall not affect the responsibility of a Government to ... defend the unity and territorial integrity of the State, by all legitimate means’. Alleged crimes occurring in internal armed conflicts will undoubtedly be made the subject of extensive presentation of evidence in the Court, but that does not amount to intervention by one or more States Parties in the internal affairs of the State which suffered the internal armed conflict or in the armed conflict as such. It may be warranted to describe it as international judicial intervention pursuant to treaty obligations or Security Council action based on Chapter VII of the UN Charter. But the ICC Statute does not provide a legal basis for intervention in internal affairs or armed conflicts by one or more individual States. One may well question the necessity of including preambular paragraph 8 in the Statute.

### IX. Paragraph 9: Crimes of international concern

- 20 Paragraph 9 states the determination, ‘to these ends and for the sake of present and future generations, to establish an independent permanent International Criminal Court in relationship with the United Nations system, with jurisdiction over the most serious crimes of concern to the international community as a whole’. The main point here is the signal that only ‘the most serious crimes of concern to the international community as a whole’ may fall within the jurisdiction of the Court. Operative article 1 reaffirms this concern by repeating that the Court ‘shall have the power to exercise its jurisdiction over persons for the most serious crimes of international concern’. The fact that it was surprisingly difficult to negotiate the language of article 1 does not reflect meagre support for the restrictive approach taken. Moreover, when agreement had been reached on the language of article 1, the relevant part of preambular paragraph 9 flowed naturally from the former.
- 21 Paragraph 9 does not require that the crime concerned is a crime attacking the international community as a whole directly. It must be ‘of concern to’ the whole international community. Such a concern can be established by different links. The Statute envisages that legally recognised values of the community of nations as a whole are protected by its jurisdiction. A crime whose commission threatens such protected values is punishable directly under international law, even if it may not be punishable according to the law of the State of nationality or territoriality<sup>50</sup>. In any event, the idea is not to construct a threshold whereby war crimes must also be crimes against the whole international community, with genocide and crimes against humanity already incorporating legal interests that go beyond the protection of the individual victim. However, all crimes within the Court’s jurisdiction may, even if attacking individual persons only, threaten the peace and security of mankind and, thus, be of concern to the whole international community and directly punishable under the laws of the international community<sup>51</sup>.

<sup>50</sup> See, for example Triffterer, *Preliminary Remarks* (2008) mn 15 *et seq.* and 25.

<sup>51</sup> See, for example Triffterer, *Preliminary Remarks* (2008) mn 16 *et seq.*

## X. Paragraph 10: Complementarity

This subparagraph simply provides ‘that the International Criminal Court established under this Statute shall be complementary to national criminal jurisdictions’. This is an essential quality of the Court’s jurisdictional system. The national criminal justice systems of States Parties have, in principle, jurisdictional primacy vis-à-vis the Court, which represents a reversal of the system of the ICTY and ICTR. It essentially dictates that as long as a national criminal jurisdiction is able and willing to genuinely investigate and prosecute the matter which has come to the Court’s attention, the Court does not have jurisdiction. Of course, the devil lies in the details as can be seen from Article 17–19 ICCS.<sup>52</sup>

The principle of complementarity is applicable also with regard to ‘internationalized’ national Courts or Tribunals, like the Court of Sierra Leone or the Tribunal of East Timor.<sup>53</sup> If the Court concludes that such a national forum is available, it must show deference to the national jurisdiction which has seized itself of the matter. The ICC is only meant to supplement national criminal justice systems. Primary responsibility for enforcing criminal liability for violations of the subject-matter jurisdiction of the Court rests on the States Parties. The matter stands in a different light when the Security Council has referred a situation to the Prosecutor pursuant to Chapter VII of the UN Charter as recognised by article 13 (b).<sup>54</sup>

## XI. Paragraph 11: Respect for and the enforcement of international justice

The final preambular paragraph expresses the general resolve of the States Parties to the Statute to ‘guarantee lasting respect for and the enforcement of international justice’. This is a resolve to guarantee both lasting respect for international justice and, more importantly, its enforcement. The broad term ‘international justice’ is used, not ‘international criminal justice’. Although the paragraph does not say international enforcement of international justice, its preambular context clearly suggests that ‘international justice’ should be interpreted as ‘international criminal justice’ which involves the enforcement of international criminal law in international and national criminal jurisdictions, including hybrid or internationalized Courts and Tribunals such as the Extraordinary Chambers in Cambodia or the Courts in Kosovo. Thus, reference is again made to the international criminal justice system mentioned above.

It is not easy to measure the value of a declaration by a State that it resolves to guarantee lasting respect for international justice. It is difficult to imagine any State that would not be prepared to make such a political declaration but it may prove as mere lip service. This part of the paragraph may prove to have a real function to the extent it serves as a reminder to States Parties of the object and purpose of the Statute and their obligation to co-operate fully with the Court in its investigation and prosecution of crimes within its jurisdiction and to comply with its requests.

The relative importance of the final preambular paragraph lies in the cumulative resolve to guarantee the enforcement of international justice. This amounts to a guarantee by the States Parties that they will enforce international criminal law either through international or national criminal jurisdictions or by special internationalised Courts and Tribunals.

<sup>52</sup> See the respective commentaries by Schabas/El-Zeid, Nsereko and Hall/Nsereko/Ventura in this volume.

<sup>53</sup> On these ‘mixed’ tribunals see Ambos, *Treatise ICL I* (2013), 40 et seq.

<sup>54</sup> See the commentary by Schabas/Pecorella in this volume.





## PART 1 ESTABLISHMENT OF THE COURT

### Article 1\* The Court

An International Criminal Court ('the Court') is hereby established. It shall be a permanent institution and shall have the power to exercise its jurisdiction over persons for the most serious crimes of international concern, as referred to in this Statute, and shall be complementary to national criminal jurisdictions. The jurisdiction and functioning of the Court shall be governed by the provisions of this Statute.

**Literature:** Ambos, K. and Othman, M. (eds.), *New Approaches in International Criminal Justice: Kosovo, East Timor, Sierra Leone and Cambodia* (Max Planck Institute for International Law 2003); Augustinyova, G., 'Introductory Note to Prosecutor v Saif Al-Islam Gaddafi and Abdullah Al-Senussi: Decision on the Admissibility of the Case against Abdullah Al-Senussi', (2014) 53 *ILM* 273; Bassiouni, M., ed., *International Criminal Law: Enforcement* (Transnational Publishing 1987); Bergsmo, M., Bekou, O. and Jones, A., 'Complementarity After Kampala: Capacity Building and the ICC's Legal Tools', (2010) 2 *GoJIL* 791; Bohlander, M., 'Possible Conflicts with the Ad Hoc International Tribunals', in: Cassese, A., Gaeta, P. and Jones, J.R.W.D. (eds.), *The Rome Statute of the International Criminal Court: A Commentary*, I (Oxford University Press 2002) 687; Bouzat, P., 'Introduction', in: Bassiouni, M.Ch. (ed.), *A Draft International Criminal Code and Draft Statute for an International Criminal Tribunal* (Martinus Nijhoff 2<sup>nd</sup> edition 1987) XI; Burchard, C., 'Ancillary and Neutral Business Contributions to 'Corporate Political Core Crime' Initial Enquiries Concerning the Rome Statute' (2010) 8 *JICJ* 919; Burke-White, W., 'Implementing a Policy of Positive Complementarity in the Rome System of Justice', (2008) 19 *CLF* 59; *id.*, 'Proactive Complementarity: The International Criminal Court and National Courts in the Rome System of International Justice', (2008) 49 *HarvILJ* 53; El Zeidy, M., 'The Gravity Threshold under the Statute of the International Criminal Court', (2008) 19 *CLF* 35; Jescheck, H.H., *Der XIV: Internationale Strafrechtskongreß der AIDP (Tagungsbericht)*, (1990) 102 *ZStW* 658; Jessberger, F. and Geneuss, J., 'The Many Faces of the International Criminal Court', (2012) 10 *JICJ* 1081; Kremnitzer, M., 'A Possible Case or Imposing Criminal Liability on Corporations in International Criminal Law', (2010) 8 *JICJ* 909; Kyriakakis, J., 'Corporations and the International Court: The Complementarity Objection Stripped', (2008) 19 *CLF* 115; Murungu, C.B., 'Toward a Criminal Chamber in the African Court of Justice and Human Rights', (2011) 9 *JICJ* 1067; Pocar, F., 'The International Proliferation of Criminal Jurisdictions Revisited: Uniting or Fragmenting International Law', in: Hestermeyer, H.P., König, D. and Matz-Lück, N. (eds.), *Coexistence, Cooperation and Solidarity: Liber Amicorum Rüdiger Wolfrum* (Martinus Nijhoff 2011) 1705; Rastan, R., 'The Jurisdictional Scope of Situations before the International Criminal Court', (2012) 23 *CLF* 1; Schabas, W.A., 'Introductory Note to Documents of the Review Conference of the International Criminal Court', (2010) 49 *ILM* 5; *id.*, '"Complementarity in Practice": Some Uncomplimentary Thoughts', (2008) 19 *CLF* 5; *id.*, 'The Geometry of Transitional Justice: Choices of Institutional Design', (2005) 18 *LeidenJIL* 425; Smeulers, A., Weerdesteijn, M. and Hola, B., 'The Selection of Situations by the ICC: An Empirically Based Evaluation of the OTP's Performance', (2015) 15 *ICLR* 1; Stahn, C. and El Zeidy, M. (eds.), *The International Criminal Court and Complementarity, From Theory to Practice* (Cambridge University Press 2011); Stahn, C., 'Complementarity: A Tale of Two Notions', (2008) 19 *CLF* 87; Tillier, J., 'The ICC Prosecutor and Positive Complementarity: Strengthening the Rule of Law?', (2013) 13 *ICLR* 507; Triffterer, O., 'Prosecution of States for Crimes of State', (1996) 67 *RIDP* 341; *id.*, 'Bestandsaufnahme zum Völkerstrafrecht', in: Hankel, G. and Stuby, G. (eds.), *Strafgerichte gegen Menschheitsverbrechen: Zum Völkerstrafrecht 50 Jahre nach den Nürnberger Prozessen* (Hamburger Edition 1995) 169; *id.*, 'International Crimes and Domestic Criminal Law, Efforts to Recognize and Codify International Crimes, General Report Part I', (1989) 60 *RIDP* 29; van der Merwe, H.J., 'The Show Must Not Go On: Complementarity, the Due Process Thesis and Overzealous Domestic Prosecutions', (2015) 15 *ICLR* 40; von Weber, H., *Internationale Strafgerichtsbarkeit* (F Dümmler 1934).

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## A. Historical development

- 1 The scope and contents of an introductory article for a Statute establishing an international criminal judicial body underwent several changes from the inception of such an idea and throughout the drafting process of article 1. As early as 1926, drafts by the ILA and the AIDP used the heading ‘Purpose of the Court’ or ‘Tribunal’. All the drafts contained the words ‘is hereby established’ or ‘il est institué’, thus indicating that jurisdiction was meant to be established *eo ipso* when the treaty entered into force, as opposed to requiring a further act of implementation<sup>1</sup>.
- 2 However, this changed when the UN, after the adoption of the Convention on the Prevention and Punishment of the Crime of Genocide, installed a Committee on International Criminal Jurisdiction. At that time it was undisputed that such jurisdiction was an inherent part of the international community’s legal system, the law of nations, yet the modes of its establishment and exercise were still unclear. Accordingly, the Draft Statute presented by the Committee in 1951, and its revised version in 1953, used the words ‘is thereby established’; this phrase was meant to comprise all possible modes of establishment, for example, a permanent or an *ad hoc* Tribunal, created by resolution of the General Assembly or by the Security Council. ‘[T]hereby’ was seen as referring to aspects outside the document itself, thus indicating the need for some act of implementation to give the draft effect as an international document<sup>2</sup>. During the ensuing development, drafts inclined towards a treaty-based realisation contained the words ‘is hereby established’, indicating that adoption and ratification should be self-executing; others, especially those prepared to compromise on the question of the mode of establishment, continued to use ‘is thereby established’.
- 3 The 1994 ILC Draft Statute employed the first of the above-mentioned varieties, i.e. a more neutral wording. It corresponded with the original task assigned to the ILC by the General Assembly ‘to consider further and analyse the issues concerning the question of an International Criminal Jurisdiction’, and ‘to elaborate the Draft Statute for such a Court as a matter of priority’<sup>3</sup> and of ‘preparing a widely acceptable consolidated text of a convention for an international criminal court’<sup>4</sup>. Even though the last mandate made it clear that a

<sup>1</sup> Emphasis added; see for a Draft Statute presented by Bellot to the ILA and its Draft agreed upon at the Vienna Conference 1926 as well as for the AIDP Draft 1928 in French, von Weber, *Internationale Strafgerichtsbarkeit* (1934) 136, 144, 155 *et seq.* For the Convention for the Creation of an International Criminal Court of the League of Nations which especially intended to fight terrorism see *League of Nations O.J.Spec.Supp.* 156 (1936) Doc. C. 547 (I). M.384 (I). 1937. V (1938), reprinted in: Bassiouni, *International Criminal Law: Enforcement* (1987) 191 *et seq.* For the history especially of the AIDP see Bouzat, in: Bassiouni (ed.), *A Draft International Criminal Code and Draft Statute for an International Criminal Tribunal* (1987) XI *et seq.*; Jescheck (1990) 102 ZStW 658 *et seq.*

<sup>2</sup> See for the two Draft Statutes 1951, Report of the Committee, UN Doc. A/AC.48/4, Annex I of 5 Sept. 1951, also 1951 Draft Statute, reprinted in: (1952) *AJIL*, Supp. and the second revised 1953 Draft Statute, Annex to the Report (hereinafter: Draft Statutes 1951 or 1953).

<sup>3</sup> See G.A. Res. 40/41 of 28 Nov. 1988 and 46/44 of 9 Dec. 1991 as well as 47/33 of 25 Nov. 1992 and 48/31 of 9 Dec. 1993.

<sup>4</sup> See G.A. Res. 50/46 of 11 Dec. 1995 (emphasis added).

*treaty-based establishment* should be pursued, the ILC was averse to limiting the possible avenues too early and therefore repeated its original, neutral version. Since then all relevant documents within the Preparatory Committee contained both versions. Even though the Updated Siracusa Draft in its article 2bis(1) by adopting the words ‘is hereby established’ continued the line of the ILA and the AIDP supporting a treaty-based Court, the subsequent Zutphen Draft included both versions until the Rome Conference decided in favour of the ILA/AIDP view<sup>5</sup>.

The development of the remaining terminology in article 1 cannot be reconstructed with similar precision. It was the Updated Siracusa Draft which finally amended article 1 of the ILC Draft Statute by including an article 2bis(1) on the ‘Purpose of the International Criminal Tribunal’. Yet, the aim of extending the complementary international criminal jurisdiction to ‘other international crimes which the States Parties may add to those crimes listed in article 20’ (now article 5) ... or by conferring jurisdiction from the State to the Tribunal’, was not accepted by the majority of States present at the Preparatory Committee and the Rome Conference<sup>6</sup>. There appeared to be a reluctance to making the Court dependent on States conferring jurisdiction, since this seemed to endanger the idea of the inherent nature of an international criminal jurisdiction and its independent operation.

In the last session of the Preparatory Committee, the Norwegian Government broadened the text of article 1 of the 1994 ILC Draft Statute by suggesting that the Court ‘shall have the power to prosecute’, that it should not have general jurisdiction but only ‘for the most serious crimes of international concern’, mentioning the complementarity principle. This proposal summarised the discussions and was inserted, with a few minor changes such as substituting ‘the power to prosecute persons’ with ‘shall have the power to bring persons to justice’, into the final Consolidated Draft. The Rome Conference added that of the most serious crimes punishable under international law, only those ‘referred to in this Statute’ should fall within the jurisdiction of the Court<sup>7</sup>.

## B. Analysis and interpretation of elements

### 1. ‘An International Criminal Court ... is hereby established’

The reference in article 1 to ‘hereby’ is not to the adoption of the Statute on 17 July 1998 by the Rome Conference but to 1 July 2002, the date of its entry into force in accordance with article 126.

Even though the Court was as such established on that date, the Assembly of States Parties first had to prepare its practical implementation. The Assembly is not an organ of the Court, yet with the entry into force of the Statute it, too, came into existence (article 112(1)). The Assembly was invited for its first session by the Secretary-General of the UN after the deposit of the 60<sup>th</sup> instrument of ratification, acceptance, approval or accession, under article 126(1). The Assembly had to elect the judges, to adopt its own rules of Procedure under article 112(9) and the Rules of Procedure and Evidence under article 51.

1 July 2002 also marks the beginning of its temporal jurisdiction; referrals, declarations of acceptance of jurisdiction or accession as a State Party to the Rome Statute must not relate to any events which occurred before this absolute barrier.

<sup>5</sup> For the 1994 ILC Draft Statute, 1996 Preparatory Committee II and for the Zutphen Draft see Bassiouni (ed.), *International Criminal Court: Compilation of United Nations Documents and Draft ICC Statute before the Diplomatic Conference* (1998); for the Updated Siracusa Draft see Ambos, *Der Allgemeine Teil des Völkerstrafrechts* (2002) 941.

<sup>6</sup> See for the Updated Siracusa Draft commentary on article 2bis(2) to (4).

<sup>7</sup> For the Norwegian proposals of 24 Mar. 1988 see UN Doc. A/AC.249/1989/WG.8/DP.1. The Report of the Drafting Committee to the Committee on the Whole of 13 July 1998 already contained this addition ‘as referred to in this Statute’. See UN Doc. A/CONF.183/C.1/L.64.

## 2. ‘a permanent institution’

- 9 The notion of ‘a permanent institution’ was discussed from the beginning<sup>8</sup>. The emphasis on this element lost some of its importance after the avenue of creation *by treaty* was chosen. The idea was not contained in the Convention for the creation of an International Criminal Court of the League of Nations, for example, but it gained importance after the establishment of two *ad hoc* Tribunals, the ICTY and the ICTR<sup>9</sup>.
- 10 The 1994 ILC Draft Statute included this element in article 4 under the heading ‘Status and legal capacity’, emphasizing in its Report the permanent character. This was repeated in paras. 18 and 19 of the Report of the 1995 *Ad Hoc* Committee and in both Siracusa Drafts in article 4. The Preparatory Committee continued in this vein emphasizing in addition the ‘full-time’ character of the Court. In its proposed article 4 it repeated the wording of the 1994 ILC Draft Statute<sup>10</sup> which also was adopted unchanged in article 4 of the Zutphen and the Consolidated Draft. At the end of the Rome Conference this element was incorporated into article 1 because it was felt that it did not fit under the heading of article 4, ‘Legal status and powers of the Court’<sup>11</sup>.
- 11 The experiences in dealing with crimes under international law after the Second World War convinced the community of nations of the need for a permanent institution which could react immediately. Article 3 of the 1953 Draft Statute had provided ‘Sessions shall be called only when matters before it require consideration’. One of the arguments for giving the court a permanent character was that a ‘permanent court would obviate the need for setting up *ad hoc* Tribunals for particular crimes, thereby ensuring stability and consistency in international criminal jurisdiction’<sup>12</sup>. The flexibility to adjust the size of the Court to the needs of practice was provided for by the article 35(1), (2) and (4), in that judges of the ICC ‘shall be elected as full-time members of the Court’ but shall not all ‘be required to serve on the full-time basis’.

Transitional justice scenarios that have arisen after the 1998 Rome Conference, however, demonstrate that there is ample space – and need – for alternatives compared to the traditional exercise of a permanent international criminal court, for example by the use of regional hybrid courts etc.<sup>13</sup>.

## 3. ‘the power to exercise its jurisdiction’ ‘as referred to in this Statute’

- 12 The Court does not have the power to try any crimes under international criminal law unless they fall under one of the provisions listed in the Statute. Unlike the ICTY in its (in-) famous *Tadić Jurisdiction Decision* of 2 October 1995 it cannot extend its jurisdictional reach by reference to international customary law<sup>14</sup>. The Statute can, of course, be amended to include new or repeal existing offences.
- 13 Once a provision conferring substantive jurisdiction over a particular type of crime on the Court is repealed, the Court must discontinue any proceedings based on such a provision, or in the case of multiple charges based on the same facts remove any characterisation related to

<sup>8</sup> See for this Draft Bellot, the Draft by the ILA Vienna Conference 1926 and also the 1951 and 1953 Draft Statutes.

<sup>9</sup> See articles 1 and 8 of the ICTY and articles 1 and 7 of the ICTR Statute.

<sup>10</sup> See 1996 Preparatory Committee I, para. 22 in connection with 1996 Preparatory Committee II, paras. 3 *et seq.*

<sup>11</sup> Emphasis added. 1994 ILC Draft Code, article 1 and 4 and for the change between 9 and 13 July 1998 compare UN Doc. A/CONF.183/C.1/L.58 (9 July 1998), respectively UN Doc. A/CONF.183/C.1/L.64 (13 July 1998), where the words ‘shall be a permanent institution’ had been included into an article 1 proposed in the Report of the Drafting Committee to the Committee of the Whole.

<sup>12</sup> *Ad Hoc* Committee Report, para. 12.

<sup>13</sup> See Stahn (2005) 18 *LeidenJIL* 425; Ambos and Othman (eds.), *New Approaches in International Criminal Justice: Kosovo, East Timor, Sierra Leone and Cambodia* (2003).

<sup>14</sup> *Prosecutor v. Tadić*, No. IT-94-1-A, Decision on the Defence Motion for Interlocutory Appeal on Jurisdiction, Appeals Chamber, 2 October 1995, <<http://www.icty.org/x/cases/tadic/acdec/en/51002.htm>> accessed 24 February 2015.

the repealed offence from the counts charged, under the effect of the *lex mitior* rule of article 24(2), because in the context of the Rome Statute that is equivalent to a decriminalisation, even if the crime in question remains an offence under customary law. This scenario must be distinguished from the withdrawal by a State Party from the Statute. Article 127(2) orders that such a withdrawal shall not ‘prejudice in any way the continued consideration of any matter which was already under consideration by the Court prior to the date on which the withdrawal became effective’.

The word ‘Statute’ has to be interpreted restrictively and excludes any other source of law, especially the Rules. This follows also from article 51(5) according to which ‘in the event of conflict between the Statute and the Rules of Procedure and Evidence, the Statute shall prevail’.

b) ‘over persons for the most serious crimes of international concern’. Taking into account the historical development of the Statute, especially the limitation of the Draft Statute 1953 compared to the Draft Statute 1951, the first of which included the word ‘natural’ before ‘person’<sup>15</sup>, the scope of the term ‘person’ seems rather wide and could include natural and legal persons, such as corporations, for example. The consequences of the elimination of the word ‘natural’ were, however, not expressly considered. It was not included in the 1994 ILC Draft Statute nor in any of the following Drafts for article 1 or the proposal reported by the Preparatory Committee.

The development of article 1 and other articles of the Statute suggest that only natural persons were meant<sup>16</sup>, for example, articles 25(1) and 26. Yet, the Special Tribunal for Lebanon, for example, held in 2015 that it had contempt power over legal persons<sup>17</sup>. The discussion has become more controversial in recent years with some authors advocating that consideration might be given to the extension to legal persons.<sup>18</sup>

Jurisdiction is limited to ‘the most serious crimes of international concern’. The wording here differs somewhat from other instances in the Statute such as paragraphs 4 and 9 of the Preamble or article 5. The difference, it is suggested, will be without any practical impact. However, there have been comments in the literature about the proper manner of establishing what the ‘most serious crimes’ are, not least under the prosecution policy of the Office of the Prosecutor.<sup>19</sup>

c) Complementarity ‘to national criminal jurisdictions’. The concept of ‘complementarity’ is not explained in article 1 but addressed in article 17. Hence, complementarity means that national jurisdictions take priority unless the competent State is ‘unwilling or unable genuinely to carry out the investigation or prosecution’. This must be clearly distinguished from the question of acceptance of jurisdiction or how a situation is referred to the Court, under articles 12 and 13. Even a UN Security Council referral does not mean that the Court is absolved from the examination of admissibility under article 17, as was made abundantly clear by the decision on admissibility in the case against Gaddafi and Al-Senussi based on the situation in Libya, where the Court held that as far as one of the accused was concerned, Libya retained domestic control and the case against him was accordingly held to be inadmissible<sup>20</sup>.

<sup>15</sup> See the Report of the Drafting Committee to the Committee of the Whole, UN Doc. A/CONF.183/CP.1/L.64 of 13 July 1998: ‘The Drafting Committee will return to the issue of ‘persons’ in connection with the definition of the term’.

<sup>16</sup> For the question of a responsibility of legal persons see, for example, Triffterer (1989) 60 RIDP 29, 61 *et seq.*; id., in: Hankel and Stuby (eds.), *Strafgerichte gegen Menschheitsverbrechen* (1995) 169, 215 *et seq.* and id. (1996) 67 RIDP 341, 347 *et seq.* all with further references.

<sup>17</sup> *In the Case against Akhbar Beirut S.A.L. and Ibrahim Mohamed Ali al Amin*, No. STL-14-06, Decision on Interlocutory Appeal Concerning Personal Jurisdiction in Contempt Proceedings, Appeals Panel, 23 January 2015, <[www.stl-tsl.org/en/the-cases/stl-14-06/filings-stl-14-06/orders-and-decisions-stl-14-06/f0004-ar126-1](http://www.stl-tsl.org/en/the-cases/stl-14-06/filings-stl-14-06/orders-and-decisions-stl-14-06/f0004-ar126-1)> accessed 24 February 2015. 1 16.

<sup>18</sup> Kyriakakis (2008) 19 CLF 115; Burchard (2010) 8 JICJ 919; Kremnitzer (2010) 8 JICJ 909.

<sup>19</sup> El Zeidy (2008) 19 ILF 35; Rastan (2012) 23 CLF 1; Smeulers et al. (2015) 15 ICLR 1.

<sup>20</sup> Augustinyova (2014) 53 ILM 273.

- 19 In recent years, and especially after the Kampala Review Conference<sup>21</sup> complementarity has taken on an additional meaning under the term of ‘positive complementarity’ which relates to the interaction between the Court and the domestic legal systems with the aim of enhancing domestic compliance with the international criminal law environment of the ICC. The Court actively engages in a number of what might commonly be called ‘outreach activities’ in order, for example, to lobby for accession to and implementation of the Rome Statute by States or to raise the relevant rule of law standards in the jurisdictions of existing States Parties.<sup>22</sup> The drafters of the Statute probably did not foresee this development to such a degree. While in principle such an interaction may appear worthwhile, a note of caution might nonetheless be apposite because these activities do, of course, draw on the already strained resources of the Court in addition to its core mandate. As such, its positive complementarity activities are akin to the Court instituting a form of active foreign policy effort, something which as an independent judicial body it may conceptually be ill-suited for and which, given its undoubtedly political overtones, should from a pragmatic point of view more naturally be within the remit of the Assembly of States Parties themselves.

4. ‘The jurisdiction and functioning ... shall be governed by the provisions of this Statute’

- 20 The Statute is the main source but the reference here is necessarily also to the subsidiary law, i.e. the Regulations which the Statute authorizes the Court to adopt, and the Rules of Procedure and Evidence, the drafting of which the Assembly of States Parties is tasked with, under articles 51 and 52 of the Statute.

### C. Relationship to other international criminal courts

- 21 There is a general concern about the proliferation of international/-ised criminal courts and tribunals<sup>23</sup> and consequently the question arises how the relationship of the ICC to other courts with potentially overlapping jurisdiction should be treated. The Statute makes no provision for this matter. It is doubtful whether one could simply apply the complementarity rule to such international institutions. If one looks at the international tribunals currently in existence, and with the ICTY and ICTR winding down through the instrument of the ineptly named ‘Mechanism’ MICT, the matter would appear to be of mere academic interest. To that extent, as far as any tribunal set up by the Security Council directly under Chapter VII, such

<sup>21</sup> First ICC Review Conference: Resolutions and Declarations, RC/11 <[www.icc-cpi.int/iccdocs/asp\\_docs/ASP9/OR/RC-11-ENG.pdf](http://www.icc-cpi.int/iccdocs/asp_docs/ASP9/OR/RC-11-ENG.pdf)> accessed 24 February 2015; Report of the Bureau on stocktaking: Complementarity, Taking stock of the principle of complementarity: bridging the impunity gap, Assembly of State Parties, ICC-ASP/8/51, 18 March 2010 <[www.icc-cpi.int/en\\_menus/asp/complementarity/Documents/ICC-ASP-8-51-ENG.pdf](http://www.icc-cpi.int/en_menus/asp/complementarity/Documents/ICC-ASP-8-51-ENG.pdf)> accessed 24 February 2015; Report of the Bureau on complementarity, Assembly of State Parties, ICC-ASP/11/24, 7 November 2012 <[www.icc-cpi.int/iccdocs/asp\\_docs/ASP11/ICC-ASP-11-24-ENG.pdf](http://www.icc-cpi.int/iccdocs/asp_docs/ASP11/ICC-ASP-11-24-ENG.pdf)> accessed 24 February 2015; Report of the Bureau on complementarity (including draft resolution), Assembly of State Parties, ICC-ASP/12/31, 15 October 2013 <[www.icc-cpi.int/iccdocs/asp\\_docs/ASP12/ICC-ASP-12-31-ENG.pdf](http://www.icc-cpi.int/iccdocs/asp_docs/ASP12/ICC-ASP-12-31-ENG.pdf)> accessed 24 February 2015; Report of the Bureau on complementarity, Assembly of State Parties, ICC-ASP/13/30, 28 November 2014 <[www.icc-cpi.int/iccdocs/asp\\_docs/ASP13/ICC-ASP-13-30-ENG.pdf](http://www.icc-cpi.int/iccdocs/asp_docs/ASP13/ICC-ASP-13-30-ENG.pdf)> accessed 24 February 2015; Review Conference on the Rome Statute, Assembly of State Parties, RC/ST/CM/INF.2, 30 May 2012 <[www.icc-cpi.int/iccdocs/asp\\_docs/RC2010/Stocktaking/RC-ST-CM-INF-2-ENG.pdf](http://www.icc-cpi.int/iccdocs/asp_docs/RC2010/Stocktaking/RC-ST-CM-INF-2-ENG.pdf)> accessed 24 February 2015; Resolution ICC-ASP/12/Res.4, Complementarity, 27 November 2013 <[www.icc-cpi.int/iccdocs/asp\\_docs/Resolutions/ASP12/ICC-ASP-12-Res4-ENG.pdf](http://www.icc-cpi.int/iccdocs/asp_docs/Resolutions/ASP12/ICC-ASP-12-Res4-ENG.pdf)> accessed 24 February 2015.

<sup>22</sup> Burke-White (2008) 49 *HarvILJ* 53; *id.* (2008) 19 *CLF* 59; Stahn (2008) 19 *CLF* 87; Schabas (2008) 19 *CLF* 5; *id.* (2010) 49 *ILM* 5; Bergsmo et al. (2010) 2 *GoJIL* 791; Stahn and El Zeidy (eds.), *The International Criminal Court and Complementarity, From Theory to Practice* (2011); Jessberger and Geneuss (2012) 10 *JICJ* 1081; Tillier (2013) 13 *ICLR* 507. See critically on the debate as to whether human rights violations in domestic proceedings can trigger the Court’s jurisdiction van der Merwe (2015) 15 *ICLR* 40.

<sup>23</sup> Pocar, in: Hestermeyer et al. (eds.), *Coexistence, Cooperation and Solidarity: Liber Amicorum Rüdiger Wolfrum* (2011) 1705.



as the ICTY or ICTR, is concerned, the solution would tend towards the primacy of the latter.<sup>24</sup> Tribunals established for non-States Parties' territories and/or citizens, regardless by whom, will mostly not come into conflict with the Court's reach by definition; a referral by the UN Security Council in such scenarios is politically highly unlikely, not least given the resource implications, and would not be binding on the Court under article 17 in any event. Tribunals established by an agreement between the UN and certain States, for example, Sierra Leone, for a particular conflict should have priority because they are specifically tailored to cater for those situations in the knowledge that the ICC already exists. National courts with a hybrid international element, such as in Kosovo under UNMIK and soon possibly under EULEX, or Cambodia, would seem to fall under the complementarity umbrella in principle, yet the fact that the international involvement in those courts will often be based on the intervention of or at least the consensus within the UN or the EU with the very aim of providing for a working national system, should make a declaration of admissibility difficult. This leaves the issue of other treaty-based courts to which States Parties to the Rome Statute are also parties and whose jurisdiction would overlap with that of the ICC. That this is not merely an academic question can be seen at the example of the tensions between the African Union and the Court in recent years and the AU's previously declared intention to create its own criminal court.<sup>25</sup> While that particular conflict may have been defused by the recent changes to the law on the duty to attend the trial for sitting Heads of State, the general problem is unlikely to go away because these regional courts can be considered as shielding the suspects from the jurisdiction of the ICC. This also raises the doctrinal question of whether the Rome Statute is hierarchically superior to any bilateral treaties any of the States Parties may conclude after acceding to the Statute (see, for example, the commentary below under article 98) or whether the simple *lex posterior* rule applies. It is unclear whether the Rome Statute has anything approaching supranational elements over and above, for example, the reporting mechanism under article 87 to the UN Security Council for non-compliance by non-States Parties following a Security Council Referral, with obligations under the Statute. It seems that if States Parties can avoid the effects of complementarity by reforming their national system so that it is compliant with the Statute, the argument that they might be able to transfer part of their sovereignty to a credible regional court with the same effect cannot be dismissed out of hand.

<sup>24</sup> Bohlander, in: Cassese et al (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 687.

<sup>25</sup> See Murungu (2011) 9 *JICJ* 1067.



## Article 2

### Relationship of the Court with the United Nations

The Court shall be brought into relationship with the United Nations through an agreement to be approved by the Assembly of States Parties to this Statute and thereafter concluded by the President of the Court on its behalf.

**Literature:** Ambos, K., ‘Confidential Investigations (article 54(3)(E) ICC Statute) vs. Disclosure Obligations: The Lubanga Case and National Law’, (2009) 12 *NCLRev*, 543; Amnesty International, *The International Criminal Court – Making the Right Choices, Part IV: Establishing and Financing the Court and Final Clauses*, AI Index IOR 40/04/98 (1998); Yáñez-Barnuevo, J. A., and Escobar Hernández, C., ‘The International Criminal Court and the United Nations: A Complex and Vital Relationship’, in: F.Lattanzi and W.A. Schabas (eds.), *Essays on the Rome Statute of the International Criminal Court*, II (2004); Clark, R.S., *The Proposed International Criminal Court: Its Establishment and Its Relationship with the United Nations*, (1997) 8 *CLF* 411; Condorelli, L., and Villalpando, S., ‘The Relationship of the Court with the United Nations’, in: A. Cassese, P. Gaeta, and J.R.W.D. Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary*, ii (2002); Crawford, J., ‘The Work of the International Law Commission’, in: A. Cassese, P. Gaeta, J.R.W.D. Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary*, I (2002), 23; Gallant, K. G., ‘The International Criminal Court in the System of States and International Organisations’, in: F. Lattanzi and W.A. Schabas (eds.), *Essays on the Rome Statute of the International Criminal Court*, II (Editrice Il Sirente, 2004) 17; Johnson, L.D., ‘The Lubanga Case and Cooperation between the UN and the ICC’, (2012) 10 *Journal of International Criminal Justice* 887; Kirsch, P., and Holmes, J.T., ‘The Rome Conference on the International Criminal Court: The Negotiating Process’, (1999) 93 *AJIL* 2; Korecki, L., ‘Procedural Tools for Ensuring Cooperation of States with the Special Tribunal for Lebanon’, (2009) 7 *IJCJ* 927; Kress, C., and Lattanzi, F. (eds.), ‘General Aspects and Constitutional Issues’, in: id., *The Rome Statute and Domestic Legal Orders*, I (Baden-Baden et al. 2000); Nesi, G., ‘The International Criminal Court: Its Establishment and its Relationship with the United Nations System; its Composition, Administration and Financing’, in: F.Lattanzi (ed.), *The International Criminal Court; Comments on the Draft Statute* (Napoli, Editoriale Scientifica 1998) 171; Vanhullebusch, M., ‘The Relationship of the ICC with the UN as Defined by the Rome Statute’, in: P. De Hert, J. Flamme, M. Holvoet, and O.Struyven (eds.), *Code of International Criminal Law and Procedure, Annotated* (Larcier 2013) 13; Yee, L., ‘The International Criminal Court and the Security Council’, in: R.S. Lee (ed.), *The International Criminal Court: Making of the Rome Statute* (Kluwer et al. 1999), 146.

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### A. General remarks\*

In particular in the early years of the Court's operations, the importance of article 2 of the Statute has been often overlooked since the focus was on the development of the institution into a fully-fledged international criminal court, carrying out its mandate in an ever-growing number of different situations.<sup>1</sup> However, article 2 goes to the very core of the institution and was – while not one of the most controversial – one of the **fundamental arrangements** necessary for the Court to reach some of its elemental objectives, most prominently – at a future stage from now – universality.<sup>2</sup> While many other provisions of the Rome Statute stipulate what kind of international institution the Court is meant to be in the eyes of the drafters, article 2 clarifies what we know today is the most essential feature of any international organisation with a mandate reaching far into the ambit of international peace and security<sup>3</sup>: the relationship with the United Nations ('UN'). When international *ad hoc* tribunals like the ICTY or the ICTR, or internationalised *ad hoc* criminal courts like the SCSL or the ECCC, are being evaluated for their success and significance, their relationship with the UN is one of the decisive factors. This is because the Court – as any of the international(ised) *ad hoc* tribunal established in the past 20 years – is closely linked to a central function of the UN: maintaining international peace and security and promoting and encouraging respect for human rights and for fundamental freedoms without distinction.<sup>4</sup> Further, it was the UN General Assembly that tasked the freshly established International Law Commission in 1948 at the occasion of the adoption of the Genocide Convention 'to study the desirability and possibility of establishing an international judicial organ for the trials of persons charged with genocide' – a request that laid the foundation to the ILC's subsequent efforts in later years to draft a statute for a permanent international criminal court based on the Nuremberg Principles of the 1946 International Military Tribunal.<sup>5</sup> The Court's principal mandate to 'exercise its jurisdiction over persons for the most serious crimes of international concern'<sup>6</sup> is thus a mission shared with, or even on behalf of,<sup>7</sup> the international community and an essential complement to the 'existing collective security system under the UN Charter'<sup>8</sup>, while being **independent from the**

\* Section B of the this contribution is based on the comprehensive work of Antonio Marchesi, author in the first and second edition of this commentary. The views expressed are those of the author and cannot be attributed to the ICC.

<sup>1</sup> In 2015, the Court was actively engaged in altogether twenty-one cases in eight situations in many of which suspects were either in custody or voluntarily appearing before the Court: Uganda, the Democratic Republic of the Congo (DRC), the Central African Republic (CAR), Darfur (Sudan), Kenya, Libya, Côte d'Ivoire, and Mali. Preliminary examinations were ongoing in as many as nine potential situations. See ICC OTP Preliminary Examination interactive fact sheet, under: [http://www.icc-cpi.int/en\\_menus/icc/structure%20of%20the%20court/office%20of%20the%20prosecutor/comm%20and%20ref/Pages/communications%20and%20referrals.aspx](http://www.icc-cpi.int/en_menus/icc/structure%20of%20the%20court/office%20of%20the%20prosecutor/comm%20and%20ref/Pages/communications%20and%20referrals.aspx) [accessed September 2014]; Report on Preliminary Examination Activities 2013, November 2013, *ibid*.

<sup>2</sup> Yáñez-Barnuevo and Escobar Hernández, in: Lattanzi and Schabas (eds.), *Essays on the Rome Statute of the International Criminal Court* (2004), 41. See also *Ad Hoc Committee Report*, para. 14.

<sup>3</sup> See article 39 of the Charter of the United Nations, 26 June 1945 (entry into force on 24 October 1945; 'UN Charter') (<http://www.legal-tools.org/doc/6b3cd5/>).

<sup>4</sup> Article 1(1) and (3) of the UN Charter.

<sup>5</sup> General Assembly resolution GA Res. 260B (III) of 9 December 1948 (177); see also GA Res 489(V) of 12 December 1950. For the Nuremberg Principles see General Assembly Resolution 177(II) of 21 November 1947, 'Formulation of the principles recognised in the Charter of the Nürnberg Tribunal and in the Judgment of the Tribunal'. According to article 13(1)(a) of the UN Charter, the General Assembly 'shall initiate studies and make recommendations for the purpose of [...] encouraging the progressive development of international law and its codification'; the International Law Commission ('ILC') falls into this remit of competence.

<sup>6</sup> Art. 1 of the Statute (<http://www.legal-tools.org/doc/7b9af9/>).

<sup>7</sup> *Prosecutor v. Tadić*, No.IT-94-1-T, Decision on the Defence Motion on Jurisdiction, 10 August 1995, para. 42 (<http://www.legal-tools.org/doc/ddd6b0/>); confirmed in *Prosecutor v. Tadić*, No. IT-94-1-AR Decision on Defence Motion for Interlocutory Appeal on Jurisdiction, 2 October 1995, para. 59 (<http://www.legal-tools.org/doc/866e17/>).

<sup>8</sup> Kress and Lattanzi, *The Rome Statute and Domestic Legal Orders*, Editor's note, p. viii.

UN. It is for this reason that the link between the Court and the UN as ‘the universal organisation representing the international community’ is of crucial importance.<sup>9</sup> The relevance of this **institutional relationship** is also reflected in the Preamble of the Statute.<sup>10</sup>

- 2 The relationship between the Court and the UN has in practice become **multi-faceted** and proven to be instrumental for the Court’s operations. While some of the aspects of this relationship are governed by other articles of the Statute (most prominently the referral power of the UN Security Council to the Prosecutor of a situation pursuant to article 13(b) of the Statute),<sup>11</sup> a number of different aspects covered by the ‘relationship agreement’ mentioned in article 2 of the Statute have become subject to frequent and substantive cooperation between the UN and the Court. This shall be further detailed in Sections C and D dealing with the Negotiated Relationship Agreement between the Court and the UN.<sup>12</sup> Preceding that, various options of the Court’s establishment discussed in the years leading up to the adoption of the Rome Statute in 1998 as well as the drafting history of the relationship agreement between the UN and the Court shall be briefly discussed (Section B).

## B. Analysis and interpretation of elements

### 1. ‘The Court shall be brought into relationship with the United Nations’

- 3 The Court’s relationship with the UN determines **essential elements of the Court’s architecture**, from jurisdiction to cooperation to elements of financing.<sup>13</sup> The importance of a clear definition of the relationship between the two, both for reasons of general policy and for institutional aspects, was already highlighted in 1990 by the ICL.<sup>14</sup> After its authorisation by the General Assembly in 1989 to consider the creation of a permanent international criminal court,<sup>15</sup> the ILC foresaw an international criminal court established by a **multilateral treaty**, outside of the constitutive pillars of the UN, and thus not following the example of the ICJ.<sup>16</sup> It

<sup>9</sup> Yáñez-Barnuevo and Escobar Hernández, in: Lattanzi and Schabas (eds.), *Essays on the Rome Statute of the International Criminal Court* (2004) 42. At the same time, it has to be noted that this relationship should not be overemphasised in its relevance for the establishment of the Court *as such*; it is therefore not necessarily ‘a constitutive element of the creation of the ICC’. This is evident from the fact that the Rome Statute came into force (July 2002) considerably before the relationship between the Court and the UN was laid out in appropriate detail in an agreement pursuant to article 2 of the Statute (2004; see subsection 3). Cf. on this particular point *id.*, 45.

<sup>10</sup> Preamble of the Statute, paras. 7, 9.

<sup>11</sup> The Statute provides for further examples where the United Nations is materially linked to the Court’s mandate and operations: arts. 13(b) (referral of a situation by the Security Council); 16 (deferral of investigation or prosecution); and 115(b) (funds of the Court and of the Assembly of States Parties). Further, the Secretary-General assumes a number of formal functions in relation to amendments, the revision of the Statute and other issues related to the official deposition of documents (arts. 121–128 of the Rome Statute). See for a general overview Yáñez-Barnuevo and Escobar Hernández, in: F. Lattanzi/W.A. Schabas (eds.), *Essays on the Rome Statute of the International Criminal Court* (2004), 51–61. Finally, regarding the future crime of aggression, articles 8bis, 15bis and 15ter of the Statute establish a strong link to the UN Charter (art. 8bis (1) and (2) for the purpose of material elements of the crime) and the Security Council (arts. 15bis (6)–(8), 15ter regarding jurisdiction) of the Court.

<sup>12</sup> Negotiated Draft Relationship Agreement between the International Criminal Court and the United Nations, *Official Records of the Assembly of States Parties to the Rome Statute of the International Criminal Court, Third session, The Hague, 6–10 September 2004* (International Criminal Court publication, ICC-ASP/3/25), Part III, resolution ICC-ASP/3/Res.1, 7 September 2004, annex, p. 96 *et seq.* (<http://www.legal-tools.org/doc/5ea87d/>).

<sup>13</sup> The issue of the Court’s financing as well as discussions on that matter in preparation of the establishment of the Rome Statute are discussed elsewhere in this Commentary. For a general overview see Clark (1997) 8 CLF 3, [411], 423–30; Yáñez-Barnuevo and Escobar Hernández, in: Lattanzi and Schabas (eds.), *Essays on the Rome Statute of the International Criminal Court* (2004) 59–61.

<sup>14</sup> Report of the International Law Commission on the work of its forty-second session, 1 May – 20 July 1990, *Official Records of the General Assembly, Forty-fifth session, Supplement No. 10, A/45/10, Yearbook of the International Law Commission 1990, vol. II* (2), para. 140.

<sup>15</sup> UN Doc. A/RES/44/39 (1989).

<sup>16</sup> The International Court of Justice is one of the ‘principal organs of the United Nations’, arts. 7, 92 *et seq.* of the UN Charter.

adopted, at its 46<sup>th</sup> session on 23 November 1994, a 'Draft Statute for an International Criminal Court', in which draft article 2 (titled 'Relationship of the Court to the United Nations') read:

'The President, with the approval of the States Parties to this Statute ('States parties'), may conclude an agreement establishing an appropriate relationship between the Court and the United Nations.'<sup>17</sup>

However, the ILC's draft article 2 was not uncontroversial; it had been preceded by 4 discussions in legal and diplomatic fora regarding the nature and scope of the Court's interaction with the UN.<sup>18</sup> The ILC report on the work of its forty-sixth session in mid-1994 succinctly outlined the available methods of establishing the Court as well as its relationship to the UN.<sup>19</sup> Throughout consultations in the years 1995–1998, the 1994 ILC draft statute<sup>20</sup> formed the initial working document.<sup>21</sup> Similarly, discussions in the *Ad Hoc* Committee on the Establishment of an International Criminal Court in 1995<sup>22</sup> as well as the ensuing Preparatory Committee<sup>23</sup> in 1996 focused on the draft text of article 2 proposed by the ILC.<sup>24</sup>

The main suggestions being considered by delegations were: a) an **amendment to the UN** 5 **Charter**, making the Court a principal organ of the organisation similar to the ICJ; b) a **resolution** adopted by the General Assembly and/or the Security Council; or c) the conclusion of a **multilateral treaty**.<sup>25</sup> Proponents of either of the first two options brought forward that linking a future international criminal court firmly to the UN would clearly demonstrate acceptance of the principle of individual criminal responsibility 'towards the world community, confer the requisite authority on the court, open the way to universal recognition of its jurisdiction and guarantee that it functioned in the general interest.'<sup>26</sup>

The first approach, to link the Court to the UN by an amendment of the UN Charter, 6 would have required multiple amendments of the latter, starting with article 7 (1) in order to include the Court among the principal organs of the UN. Following the example of the

<sup>17</sup> Text adopted by the Commission at its forty-sixth session, in 1994, and submitted to the General Assembly as a part of the Commission's 'Report of the International Law Commission on the work of its forty-sixth session', 2 May–22 July 1994, General Assembly Official Records, Forty-ninth Session, Supplement No. 10 (A/49/10), in: *Yearbook of the International Law Commission*, 1994, Vol. II (Part Two), 45 (<http://www.legal-tools.org/doc/f73459/>).

<sup>18</sup> In its Report on the work of its forty-second session in 1990, the ILC noted that the Court could be established a) by a separate convention; or b) by an amendment to the Charter of the United Nations, 'for example, if the court was to be an organ of the United Nations'. Report of the International Law Commission on the work of its forty-second session, note 14, paras. 139, 140. The possibility of the Court being established by a General Assembly resolution was also discussed. See generally also Vanhullebusch, in: De Hert and others (eds.), *Code of International Criminal Law and Procedure*, Annotated (2013) 13.

<sup>19</sup> Report of the International Law Commission on the work of its forty-sixth session, note 17, pp. 32–34 (paras. 51–55), and Commentary, pp. 45 *et seq.*

<sup>20</sup> *Supra* note 17, pp. 43 *et seq.* (para. 91).

<sup>21</sup> Crawford, in: Cassese et al. (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 23 *et seq.*; Nesi, in: Lattanzi (ed.), *The International Criminal Court – Comments on the Draft Statute* (1998) 171, 172.

<sup>22</sup> The *Ad Hoc* Committee was established by the General Assembly by A/RES/49/53 of 9 December 1994.

<sup>23</sup> The General Assembly's Preparatory Committee on the Establishment of an International Criminal Court was established by A/RES/50/46 of 11 December 1995.

<sup>24</sup> For the ILC discussion see Report of the International Law Commission on the work of its forty-sixth session, note 17, pp. 32–34 (paras. 51–55).

<sup>25</sup> Report of the Preparatory Committee on the Establishment of an International Criminal Court, General Assembly Official Records, Fifty-first Session, Supplement No.22, UN Doc A/51/22 (1996) Volume I (Proceedings of the Preparatory Committee during March–April and August 1996), 13 September 1996, para. 25 (<http://www.legal-tools.org/doc/e75432/>); Nesi, in: Lattanzi (ed.), *The International Criminal Court – Comments on the Draft Statute* (1998), 174–176; Amnesty International, *The International Criminal Court: Making the Right Choices* – Part IV: Establishing and Financing the Court and Final Clauses March 1998, para. 1.

<sup>26</sup> Report of the International Law Commission on the work of its forty-fifth session, 3 May – 23 July 1993, Official Records of the General Assembly, Forty-eighth session, Supplement No. 10, UN Doc. A/48/10, Yearbook of the International Law Commission 1993, vol. II (2), p. 16 (para. 60) (<http://www.legal-tools.org/doc/83c6d3/>); see also Report of the International Law Commission on the work of its forty-sixth session, note 17, p. 32 (para. 51).

establishment of the ICJ within the UN Charter,<sup>27</sup> the addition of further provisions establishing the Court would have been required. This suggestion was favoured by some delegations since it would have made the Statute and the Court an integral part of the UN Charter and system; cooperation orders of the Court would have binding effect on all UN member states, akin to article 94(1) of the UN Charter regarding ICJ decisions. Delegations noted, however, that this process would be complex and time-consuming.<sup>28</sup> Furthermore, mindful of the rather **rigid nature of the UN Charter** regarding its amendment regime, notably requiring two thirds of the member states including all the permanent members of the Security Council,<sup>29</sup> some expressed doubts whether one could reach that threshold at all, considering the possibility of **political opposition**.<sup>30</sup> Interestingly, the Report of the Preparatory Committee also contained a suggestion to retain the option of adding the Court to the UN framework at ‘any time proposals for amendment to the Charter were otherwise being considered’.<sup>31</sup>

- 7 Some delegations considered it to be ‘efficient, time-saving and feasible’ to set up the Court by a resolution of the General Assembly or of the Security Council as a principal or subsidiary organ thereof.<sup>32</sup> In particular with regard to the General Assembly’s competence to ‘establish such subsidiary organs as it deems necessary for the performance of its functions’,<sup>33</sup> reference was made to the advisory opinion of the International Court of Justice of 1954 in the ‘Administrative Tribunal’ case,<sup>34</sup> highlighting the General Assembly’s implied powers in this regard. It was, however, questioned whether a General Assembly resolution – which does **not impose binding legal obligations on states** in relation to conduct external to the functioning of the UN itself –<sup>35</sup> would provide the necessary legal force for the operation of the Court.<sup>36</sup> Finally, it was submitted that a General Assembly resolution could be easily amended or even revoked, therefore failing to provide a sufficiently robust mandate.<sup>37</sup>
- 8 There was also support for the establishment of the Court under a Security Council resolution. The Security Council created the *ad hoc* international criminal tribunals ICTY and ICTR as ‘subsidiary organs’<sup>38</sup>, acting under Chapter VII of the UN Charter. By virtue of choosing this constitutive framework, the UN vested the tribunals with a **strong mandate vis-à-vis states**, since article 25 of the UN Charter requires every UN member state to cooperate with the tribunals. No conflicting obligations can be invoked by states as article

<sup>27</sup> See UN Charter, Art. 92 *et seq.*

<sup>28</sup> 1996 Preparatory Committee I, note 25, para. 25.

<sup>29</sup> Followed by these member states ratifying in accordance with their respective constitutional processes, including all the permanent members of the Security Council; UN Charter, Arts. 108, 109.

<sup>30</sup> Report of the International Law Commission on the work of its forty-sixth session, note 17, p. 33 (para. 53) and p. 45 (Commentary, para. 1); Clark submits that a Charter amendment would be unacceptable because of the ‘can of worms’ theory: a push for an amendment of the UN Charter for one item would have triggered a plethora of other, unrelated, amendment proposals, including structural changes, the issue of veto powers etc., in: Clark (1997) 8 *CLF* 3, [411], 416; see also Nesi, in: Lattanzi (ed.), *The International Criminal Court – Comments on the Draft Statute* (1998) 174; Vanhullebusch, in: De Hert and others (eds.), *Code of International Criminal Law and Procedure, Annotated* (2013) 13.

<sup>31</sup> 1996 Preparatory Committee I, note 25, para. 25.

<sup>32</sup> *Ibid.*

<sup>33</sup> Art. 22 UN Charter.

<sup>34</sup> ICJ, *Effect of Awards of Compensation Made by the United Nations Administrative Tribunal*, Advisory Opinion of 13 July 1954, 1954 I.C.J. 47, p. 58 *et seq.* See also ICJ, *Reparation for Injuries Suffered in the Service of the United Nations*, 1949 I.C.J. 174; Clark (1997), 8 *CLF* 3, [411], 417 (<http://www.legal-tools.org/doc/f263d7/>).

<sup>35</sup> Article 10 UN Charter.

<sup>36</sup> Report of the International Law Commission on the work of its forty-sixth session, note 17, p. 46 (Commentary, para. 3). Critical on this point see Clark (1997) 8 *CLF* 3 [411] 418 (and footnote 22 in particular).

<sup>37</sup> Report of the International Law Commission on the work of its forty-sixth session, note 17, p. 46 (Commentary, para. 3). This is, however, less convincing since the lack of political support could erode a treaty-based body in a similar fashion. *Concurring* Clark (1997) 8 *CLF* 3 [411] 420.

<sup>38</sup> For the ICTY: UN SC Resolution S/RES/827(1993) of 25 May 1993, based on the report of the Secretary-General (S/25704 and Add. 1) pursuant to para. 2 of UN SC Resolution S/RES/808(1993) of 22 February 1993; for ICTR: UN SC Resolution S/RES/955(1994) of 8 November 1994 see also UN Charter, articles 39 *et seq.*, 29 and 7(2). Finally, see also under <http://www.un.org/en/sc/subsidiary/> [accessed October 2014].

103 of the UN Charter stipulates the Charter's primacy. However, it was highlighted that the Security Council's competence under the UN Charter to create *ad hoc* tribunals in response to a *particular* situation endangering international peace and security has to be distinguished from the *general* endeavour of creating a *permanent* international criminal court with general powers and competence.<sup>39</sup> Also, the full independence of the Court could be questioned as such a subsidiary organ would retain a certain constitutive **link to the Security Council**.<sup>40</sup> Furthermore, any such resolution would have required the concurring votes (or abstentions) of all permanent members of the Security Council which some doubted could be obtained.<sup>41</sup>

Finally, to establish the Court by way of a multilateral treaty as recommended by the ILC 9 in its 1994 draft statute enjoyed general support.<sup>42</sup> Delegations held that '[a multilateral] treaty could provide the **necessary independence and authority**' for the Court.<sup>43</sup> As another important factor vis-à-vis the options of a more direct structural relationship with the UN, it was underlined that states would have the choice whether to become a party to the founding treaty and other relevant instruments to the Court's framework, structure and operations.<sup>44</sup> Delegations were aware that this choice would come at the cost of full universality (at least during the early stages of the Court's life).<sup>45</sup> Amongst those supporting this option it was further agreed that the Court would have to be established in a '**close relationship**' to the UN in order to safeguard the Court's legitimacy and general acceptance;<sup>46</sup> this is reflected by the fact that while the ILC draft stipulated that the Court '*may conclude*' a relationship agreement with the UN, the final draft in 1998 contained the much more forceful language, holding that the Court '*shall conclude*' such an agreement.<sup>47</sup>

Despite these questions remaining open still in 1996,<sup>48</sup> the issue of the relationship 10 between the Court and the UN was not further discussed in the context of any of the working groups set up by the Preparatory Committee in 1997 and was reconsidered only during the Preparatory Committee's last session in March/April 1998.<sup>49</sup> The draft agreed upon that occasion reads as follows:

'The Court shall be brought into relationship with the United Nations by an agreement to be approved by the States Parties to this Statute and concluded by the President on behalf of the Court.'<sup>50</sup>

<sup>39</sup> 1996 Preparatory Committee I, note 25, para. 25; Clark (1997), 8 CLF 3, [411], 416.

<sup>40</sup> See also Vanhullebusch, in: Paul De Hert and others (eds.), *Code of International Criminal Law and Procedure, Annotated* (2013) 13, Section 1. Also, as noted in the Report of the International Law Commission on the work of its forty-sixth session, note 17, p. 46 (Commentary, para. 3), 'resolutions can be readily amended or even revoked: that would scarcely be consistent with the concept of a permanent judicial body.'

<sup>41</sup> See UN Charter, Art. 27(3). This obviously presupposes that none of the Permanent Member States uses its 'right to veto'; see the Security Voting System under <http://www.un.org/en/sc/meetings/voting.shtml> [accessed October 2014].

<sup>42</sup> 1996 Preparatory Committee I, note 25, para. 26. See already Report of the International Law Commission on the work of its forty-fifth session, note 26, paras. 59 *et seq.*; Report of the International Law Commission on the work of its forty-sixth session, note 17, p. 46 (Commentary, para. 4).

<sup>43</sup> 1996 Preparatory Committee I, note 25, para. 26.

<sup>44</sup> 1996 Preparatory Committee I, note 25, para. 26. The Report also foresaw a possible role for the General Assembly 'to promote wider acceptance of the instrument' by adopting a resolution urging states to become parties to what would later become the Rome Statute. Further, the Report contained a foreboding to the Rome Statute's regime of settlement of disputes and amendment of the Statute (Part 13): 'the treaty itself could also provide for a review or an amendment mechanism and provisions for the settlement of disputes, which could, according to some, serve as an additional means to attract favourable consideration of the Court by States', *ibid.*

<sup>45</sup> Yáñez-Barnuevo and Escobar Hernández, in: Lattanzi and Schabas (eds.), *Essays on the Rome Statute of the International Criminal Court* (2004) 41.

<sup>46</sup> See note 1 and subsection 2.

<sup>47</sup> See Yáñez-Barnuevo and Escobar Hernández, in: Lattanzi and Schabas (eds.), *Essays on the Rome Statute of the International Criminal Court* (2004) 42, 45–6, 48.

<sup>48</sup> 1996 Preparatory Committee I, note 25, paras. 25–26.

<sup>49</sup> See the Background paper prepared by the Codification Division, Office of Legal Affairs, in preparation of the Preparatory Committee's session titled 'Possible Types of Relationship Between the United Nations and a Permanent International Criminal Court', G.A. Doc. A/AC.249/1998/L.10, Annex, 20 December 1997, para. 2.

<sup>50</sup> Preparatory Committee (Consolidated) Draft, p. 10.



- 11 The only significant subsequent amendment to this – uncontroversial – draft text was made by the Committee of the Whole in shifting the authority of approval from ‘the States Parties’ to ‘the Assembly of States Parties’.<sup>51</sup>

## 2. ‘by an agreement’

- 12 Already the ILC underlined in its 1994 Report ‘the importance of establishing a close relationship between the United Nations and the court to ensure its international character and its moral authority’.<sup>52</sup> Also the *Ad Hoc* Committee and thereafter the Preparatory Committee considered a close link between the Court and the UN essential, as this was believed to create ‘a necessary link to the universality and standing of the Court’.<sup>53</sup> However, it was stressed that such a relationship should in no way jeopardize the independence of the Court.<sup>54</sup> It was held that a **special agreement** between the two institutions would be appropriate for the establishment of a link between the institutions.<sup>55</sup>
- 13 It was further suggested that the general principles and substantive questions should be dealt in the Statute itself. The relationship agreement should address only questions of a **technical and/or administrative nature** such as issues of mutual representation, exchange of information and documentation, and provisions on cooperation between the two organisations.<sup>56</sup>
- 14 However, there was some discussion as to the exact shape of the institutional relationship of the independent, treaty-based court and the UN. Some advocated for establishing the Court as a ‘specialised agency’, brought into relationship with the UN through an agreement pursuant to articles 57, 63 of the UN Charter.<sup>57</sup> This option was not only reflected as an alternative proposal in the Preparatory Committee’s 1996 Report but also in the final report of the Working Group on the establishment of the Court and its relationship with the UN.<sup>58</sup> Consequently, the following alternative proposal was included in the Preparatory Committee’s 1996 Report:

‘The Court shall, as soon as possible, be brought into relationship with the United Nations. It shall constitute one of the specialised agencies provided for in article 57 of the Charter of the United Nations. The relationship shall form the object of an agreement with the United Nations pursuant to article 63 of the Charter.

The agreement, proposed by the Presidency of the Court, shall be submitted to the General Assembly of the States Parties for approval. It shall provide the means for establishing effective

<sup>51</sup> United Nations Diplomatic Conference of Plenipotentiaries on the Establishment of an International Criminal Court Rome, 15 June – 17 July 1998 Official Records, Volume I (Final documents), A/CONF.183/13 (Vol. I), p. 4 (<http://www.legal-tools.org/doc/f68da1/>). The Drafting Committee made some further minor amendments to the language without touching upon the substance of the provision. For the *rationale* behind the shift from States Parties to the Assembly see subsection 3.

<sup>52</sup> Report of the International Law Commission on the work of its forty-sixth session, note 17, p. 34 (para. 53). It was also discussed, albeit inconclusively, whether the relationship between the proposed court and the UN should be determined ‘as a preliminary matter’ in order to resolve some other issues related to financing and recruitment; others preferred to tackle the draft statute of the court as a priority. *Id.*, para. 55.

<sup>53</sup> Report of the *Ad Hoc* Committee on the Establishment of an International Criminal Court, General Assembly, Official Records – Fiftieth Session, Supplement No. 22 (A/50/22), para. 17 (<http://www.legal-tools.org/doc/5dcb06/>).

<sup>54</sup> *Ibid.*; 1996 Preparatory Committee I, note 25, para. 29.

<sup>55</sup> 1996 Preparatory Committee I, note 25, para. 29. This agreement could be ‘either elaborated simultaneously with the Statute (as an annex thereto) or at a later stage’. It was reiterated at that occasion that the agreement should be approved by the States Parties to the Statute.

<sup>56</sup> 1996 Preparatory Committee I, note 25, para. 30. *Concurring* Clark (1997) 8 *CLF* 3 [411] 422.

<sup>57</sup> See generally Yáñez-Barnuevo and Escobar Hernández, in: Lattanzi and Schabas (eds.), *Essays on the Rome Statute of the International Criminal Court* (2004) 48.

<sup>58</sup> 1996 Preparatory Committee I, note 25, para. 31 (and for the establishment of the working group para. 368, lit. (b) vii)); ‘Possible Types of Relationship Between the United Nations and a Permanent International Criminal Court’, Background paper prepared by the Codification Division, Office of Legal Affairs, G.A. Doc. A/AC.249/1998/L.10, Annex, 20 December 1997, paras. 21 *et seq.* See also Vanhullebusch, in: De Hert and others (eds.), *Code of International Criminal Law and Procedure, Annotated* (2013) 13, Section 1.

cooperation between the Court and the United Nations in the pursuit of their common aims. It shall, at the same time, set forth the autonomy of the Court in its particular field of competence, as defined in this Statute.<sup>59</sup>

Other, more cautious proposals with a view to the future court's **functional independence** 15 as a judicial institution from the UN insisted on the preservation of the Court's autonomy, leaving it open which form the relationship between the two institutions would take.<sup>60</sup> Options of arrangements along the lines of that concluded between the UN and the International Atomic Energy Agency ('IAEA'), the International Tribunal for the Law of the Sea ('ITLOS'), or the Organisation for the Prohibition of Chemical Weapons<sup>61</sup> were discussed – provided the ICC were to be established as an independent organisation with its own legal personality.<sup>62</sup>

In view of these discussions, the April 1998 draft text of the Preparatory Commission<sup>63</sup> 16 marks a compromise: the establishment of an **institutional link** between the Court and the UN was made a requirement ('shall'); further, while reminiscent of the wording of art. 57 UN Charter ('shall be brought into relationship with the United Nations'), article 2 left it open which exact shape that relationship would take.<sup>64</sup>

### 3. 'approved by the Assembly of States Parties to this Statute and thereafter concluded by the President of the Court on its behalf'

Pursuant to the wording of article 2 adopted at the Rome Conference, the approval of a 17 relationship agreement was assigned to the ASP – and no longer the States Parties, arguably rendering it easier to obtain approval of the text since within the ASP a majority vote would be possible; also, the new wording **enhanced the role of the ASP** by adding yet another function to it.<sup>65</sup>

Resolution F, annexed to the Final Act, stipulated that it would be for the Preparatory 18 Commission to draft such an agreement, to be submitted for approval to the ASP.<sup>66</sup> After discussion of a draft text within a previously established working group at its sixth, seventh and eighth sessions, the Preparatory Commission adopted a *Draft Relationship Agreement between the Court and the United Nations* at its eighth session on 5 October 2001.<sup>67</sup> After the

<sup>59</sup> 1996 Preparatory Committee II, p. 4 (<http://www.legal-tools.org/doc/03b284/>).

<sup>60</sup> 1996 Preparatory Committee I, note 25, para. 31; see also Gallant, in: Lattanzi and Schabas, (eds.), *Essays on the Rome Statute of the International Criminal Court* (2004) 18–20; Yáñez-Barnuevo and Escobar Hernández, in: Lattanzi and Schabas (eds.), *Essays on the Rome Statute of the International Criminal Court* (2004) 63–65.

<sup>61</sup> See Repertory of Practice of United Nations Organs, Vol. IV, Supplement No. 9, art. 57, available at: <http://legal.un.org/repertory/art57.htm> (accessed 13 September 2014).

<sup>62</sup> Report of the International Law Commission on the work of its forty-sixth session, note 17, pp. 45–46 (Commentary, para. 1); OLA background paper 'Possible Types of Relationship Between the United Nations and a Permanent International Criminal Court', note 49, para. 29. See also Clark (1997) 8 CLF 3 [411] 421–23.

<sup>63</sup> Preparatory Committee (Consolidated) Draft, p. 10. See also note 10.

<sup>64</sup> Finally, the States Parties' approval was explicitly placed *ahead of* the conclusion of the agreement by the President of the Court, arguably underlining their active role in this regard.

<sup>65</sup> This seems to be the *ratio* of a proposal submitted by Spain during the last session of the Preparatory Committee in 1998, UN Doc A/AC 249/1998/DP.6, 26 March 1998 (<http://www.legal-tools.org/doc/7baa44/>). See Nesi, in: Lattanzi (ed.), *The International Criminal Court; Comments on the Draft Statute* (1998) 175–76. This amendment has also brought the approval system in tune with art. 3(2) of the Statute, which provides that the Court's Headquarters Agreement between the International Criminal Court and the Host State (ICC-BD/04-01-08, entry into force on 1 March 2008) similarly requires the ASP's (and not states') approval. See also Yáñez-Barnuevo and Escobar Hernández, in: Lattanzi and Schabas (eds.), *Essays on the Rome Statute of the International Criminal Court* (2004) 49.

<sup>66</sup> Final Act, Annex I, Resolution F, establishing the 'Preparatory Commission for the International Criminal Court' (para. 1 of the Resolution) and tasking it with the preparation of a draft text of a relationship agreement (para. 5(c) of the Resolution).

<sup>67</sup> Report of the Preparatory Commission for the International Criminal Court (continued), Addendum, UN Doc. PCNICC/2001/1/Add.1, 8 January 2002 (<http://www.legal-tools.org/doc/f608a0/>). See also Report on the negotiated Draft Relationship Agreement between the International Criminal Court and the United Nations,



entry into force of the Rome Statute, the ASP approved the draft relationship agreement without variations at its first session on 9 September 2002.<sup>68</sup>

- 19 Following subsequent negotiations with the UN in February and May 2004 and a number of alterations of the draft text,<sup>69</sup> a *Negotiated Draft Relationship Agreement* was initiated on 7 June 2004 and subsequently approved by the ASP.<sup>70</sup> On 4 October 2004, the Secretary General of the United Nations and the President of the Court signed the *Negotiated Relationship Agreement between the International Criminal Court and the United Nations*,<sup>71</sup> marking its entry into force.

### C. The Relationship Agreement between the Court and the United Nations

- 20 The Relationship Agreement provides the **legal basis for the multifaceted cooperation and coordination** between the Court and the UN. This ranges from a regular dialogue between the officials of the two institutions at the diplomatic level, including reciprocal representation at high-level meetings and proceedings, to technical and practical arrangements at the working level; the latter include the exchange of information and reports, administrative issues, the provision of services and facilities, mutual (logistical) support in the field, travel arrangements and judicial assistance in the OTP's investigative activities, including the securing of evidence and the appearance of UN staff in court to provide testimony.<sup>72</sup>
- 21 The Relationship Agreement represents an **institutional arrangement *sui generis*** in that it addresses the specific needs of the Court as an international, independent judicial institution. It therefore differs in many relevant aspects from previous relationship agreements between the UN and other international organisations (such as the IAEA, ITLOS or others).<sup>73</sup> The Preamble of the Relationship Agreement establishes the link between the UN and the Court in that the latter reaffirms – as does the Rome Statute's Preamble – ‘the Purposes and Principles of the Charter of the United Nations’.<sup>74</sup> In addition, it addresses situations that ‘threaten the peace, security and well-being of the world’, thus invoking a Chapter VII quality of its areas of application.<sup>75</sup> Importantly, the Preamble clarifies the **reciprocity** inherent in the Relationship Agreement, meant to facilitate the ‘discharge of respective responsibilities’ of the two institutions in a ‘mutually beneficial relationship’.<sup>76</sup>
- 22 The Relationship Agreement is subdivided into four sections. The first section contains general provisions (articles 1–3). It clarifies the purpose and main principles governing the relationship between the two institutions. Of note, article 3 defines the main obligations arising from the Relationship Agreement, namely to ‘**cooperate closely**, whenever appropriate’ and to ‘consult on matters of mutual interest’.

ICC-ASP/3/15, 13 August 2004, para. 3 ([http://www.icc-cpi.int/iccdocs/asp\\_docs/library/asp/ICC-ASP-3-15-English.pdf](http://www.icc-cpi.int/iccdocs/asp_docs/library/asp/ICC-ASP-3-15-English.pdf)) [accessed October 2014].

<sup>68</sup> Assembly of States Parties to the Rome Statute of the International Criminal Court, First session, New York, 3–10 September 2002, Official Records, ICC-ASP/1/3, 243 *et seq.* (<http://www.legal-tools.org/doc/5ea87d/>).

<sup>69</sup> See Report on the negotiated Draft Relationship Agreement, note 67, paras. 7–18.

<sup>70</sup> ICC-ASP/3/Res.1, para. 2; Report on the negotiated Draft Relationship Agreement, note 67, para. 5.

<sup>71</sup> ICC-ASP/3/Res.1, Annex (<http://www.legal-tools.org/doc/5ea87d/>).

<sup>72</sup> See Report of the Court on the status of ongoing cooperation between the International Criminal Court and the United Nations, including in the field, ICC-ASP/12/42, 14 October 2013, para. 4 ([http://www.icc-cpi.int/iccdocs/asp\\_docs/ASP12/ICC-ASP-12-42-ENG.pdf](http://www.icc-cpi.int/iccdocs/asp_docs/ASP12/ICC-ASP-12-42-ENG.pdf)) [accessed October 2014].

<sup>73</sup> Yáñez-Barnuevo and Escobar Hernández, in: Lattanzi and Schabas (eds.), *Essays on the Rome Statute of the International Criminal Court* (2004) 65–67. See also paragraph 15.

<sup>74</sup> ICC-ASP/3/Res.1, Preamble, para. 2. Preamble of the Rome Statute, para. 7 (<http://www.legal-tools.org/doc/5ea87d/>).

<sup>75</sup> ICC-ASP/3/Res.1, Preamble, para. 3. Again, this is in conformity with the Preamble of the Rome Statute (para. 2).

<sup>76</sup> ICC-ASP/3/Res.1, Preamble, para. 8. Reciprocity is one of the core principles in terms of general representation and exchange of information: see arts. 4, 5, 17 of the Relationship Agreement (<http://www.legal-tools.org/doc/5edc7c/>).

Subsequently, the Relationship Agreement turns into two substantive sections, institutional relations (II) and cooperation and judicial assistance (III). Section II can be divided into three topical groups dealing, respectively, with reciprocal representation at sessions or hearings and exchange of information and documents of mutual interest (articles 4, 5, 6 and 7); personnel and HR arrangements, administrative cooperation, the provision of services and facilities (articles 8, 9, 10, 13 and 14); and travel documents and access to the UN Headquarters (articles 11 and 12).

The first group of provisions in section II begins with defining the reciprocal access to important meetings and public hearings of representatives of both institutions. Importantly it clarifies the Court's observer status at General Assembly meetings (article 4(2)). It also provides for the President and the Prosecutor of the ICC to address matters of import for the Court at Security Council meetings as appropriate (article 4(3)). Further in this section, article 5 defines the exchange of information between the two institutions in order to 'secure the greatest possible usefulness and utilisation of such information' and, importantly, to avoid duplication of efforts to secure information.<sup>77</sup> Article 6 provides that the Court may submit **reports on its activities to the UN** as appropriate, which over the years became an annual practice of the Court.<sup>78</sup> Pursuant to article 7, the Court may propose items for consideration by the UN.<sup>79</sup>

Turning to the second group of provisions in section II of the Relationship Agreement, article 8 focuses on cooperation concerning HR matters in the area of employment, temporary interchange of staff, and generally the most efficient use of specialised personnel, systems and services.<sup>80</sup> The same efficiency rule governs the administrative cooperation concerning the use of facilities, staff and services as defined in articles 9 and 10. As will be discussed below,<sup>81</sup> this **administrative and logistical partnership** became a vital part of day-to-day cooperation between both organisations. Finally, article 13 determines that **financial aspects** of the relationship (including in relation to the expenses incurred due to referrals by the Security Council)<sup>82</sup> are left to '**separate arrangements**'.<sup>83</sup>

The last group of provisions in section II on institutional relations addresses access of Court staff, States Parties' representatives and observers to the UN Headquarters for Bureau and Assembly meetings (article 11), as well as a Court official's entitlement to a UN laissez-passer as a travel document (article 12).

The third – and in practical terms highly relevant – section of the Relationship Agreement regulates cooperation and judicial assistance. Article 15 stipulates that the UN undertakes to provide the Court with **any information or documents** requested pursuant to the general cooperation regime of the Rome Statute<sup>84</sup> and beyond (article 15(1), (2)), as long as any such cooperation is compatible with the UN Charter and the Statute. In order to preserve the safety and security of UN personnel and operations, the disclosure of certain information and documents may be conditioned on '**appropriate measures of protection**', to be ordered by the relevant chamber or put in place by the UN (art. 15(3)). The practical relevance of this

<sup>77</sup> Art. 5(2) of the Relationship Agreement. For the overarching concern to streamline and coordinate processes *see also* art. 9, seeking to avoid 'the establishment and operation of overlapping facilities and services'.

<sup>78</sup> *See only* the Court's 9<sup>th</sup> (and most recent) Report of the International Criminal Court, UN Doc. A/68/314, 13 August 2013, on its activities for 2012/13 to the General Assembly in accordance with article 6 of the Relationship Agreement and paragraph 19 of GA Resolution 66/262.

<sup>79</sup> To date, the Court has not made use of this provision.

<sup>80</sup> On the item of HR-related coordination and the Court's exclusion from the Inter-Organisation Mobility Accord, 2013 Report on Cooperation, note 72, para. 9.

<sup>81</sup> *See* Section D.

<sup>82</sup> Article 115(b) of the Statute.

<sup>83</sup> The absence of any further specification can be explained with the – at the time already – foreseeable resistance of some UN member states (including permanent members of the Security Council) to fund the Court's activities despite not being a state party to the Rome Statute. *See, along similar lines*, Yáñez-Barnuevo and Escobar Hernández, in: Lattanzi and Schabas (eds.), *Essays on the Rome Statute of the International Criminal Court* (2004) 60–61.

<sup>84</sup> *See in particular* article 87(6) of the Statute.

provision cannot be overstated since the Court regularly operates in environments where highly sensitive information is being handled. It comes as no surprise that this issue has already been subject to litigation<sup>85</sup> and more detailed confidentiality protection arrangements have been reflected in a number of specific agreements and Memoranda of Understanding between the Court and its UN various counterparts in the field.<sup>86</sup>

- 28 Article 16 addresses the **testimony of UN officials** in court proceedings. If necessary, the UN may waive the witnesses' confidentiality obligation vis-à-vis the institution.
- 29 article 17 regulates the communication between the Security Council and the Court in the three major instances of ICC-UN Security Council coordination: article 13(b) of the Statute (referral of a situation to the Court pursuant to Chapter VII of the UN Charter), article 16 of the Statute (request not to commence or proceed with an investigation or prosecution) or article 87, paragraph 5 (b) or paragraph 7 of the Statute (notification of failure by the state to cooperate). Article 17 does **not regulate any substantive matters** between the Court and the UN Security Council in relation to referrals, non-commencement and non-cooperation of States; this has consciously been left to the relevant provisions in the Rome Statute itself and/or UN Security Council resolutions where appropriate.<sup>87</sup>
- 30 Another centrepiece in terms of practical relevance is article 18 on the **cooperation between the UN and the Office of the Prosecutor** ('OTP'). The OTP can enter into any arrangements and agreements with the UN to conduct its investigative activities in the most effective manner. This concerns investigations pursuant to article 54 as well as the Prosecutor's requests for information based on article 15(2) of the Statute in case of a *proprio motu* investigation. Article 18(3) foresees that the provision of documents or information can be conditioned on the confidentiality rule that any such material may solely be used **for the purpose of generating new evidence** and shall not be disclosed 'to other organs of the Court or to third parties, at any stage of the proceedings or thereafter, without the consent of the United Nations.'<sup>88</sup> Paragraph 4 of article 18 explicitly foresees the conclusion of specific 'arrangements' between the OTP and the relevant UN programmes, funds and offices regarding cooperation and, importantly, confidentiality and protection parameters.<sup>89</sup>
- 31 Pursuant to article 19 of the Relationship Agreement, the UN undertakes to waive any **privileges and immunities** of a person suspected to have committed Rome Statute crimes who would otherwise be enjoying privileges and immunities granted to UN staff and other persons working for the institution. Finally, article 20 stipulates that any information and documents obtained by the UN from States Parties or other actors in confidence will only be shared with the Court after having sought the consent of the originator to disclose the information or documentation to the Court.
- 32 The final provisions of the Relationship Agreement, from article 21 to article 23, address items of an administrative nature, namely supplementary arrangements, amendments, and entry into force of the Relationship Agreement.

<sup>85</sup> See Section D.3.

<sup>86</sup> See Section D.2.b).

<sup>87</sup> 1996 Preparatory Committee I, note 25, para. 30; Clark (1997), 8 *CLF* 3, [411], 422; Yáñez-Barnuevo and Escobar Hernández, in: Lattanzi and Schabas (eds.), *Essays on the Rome Statute of the International Criminal Court* (2004) 51–54.

<sup>88</sup> As to the need that this provision needs to be applied restrictively in view of the rights of the defence see *Prosecutor v. Thomas Lubanga Dyilo*, No. ICC-01/04-01/06-1486, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber I entitled 'Decision on the consequences of non-disclosure of exculpatory materials covered by article 54(3)(e) agreements and the application to stay the prosecution of the accused, together with certain other issues raised at the Status Conference on 10 June 2008', Appeals Chamber, 21 October 2008, paras. 52–53 (<http://www.legal-tools.org/doc/485c2d/>).

<sup>89</sup> This provision has been the legal basis for a number of specific Memoranda of Understanding and other agreements between the OTP and its UN interlocutors in the field. See Section D.2.b).

## D. The Relationship Agreement in practical application

The Relationship Agreement has become a fundamental tool in the many different facets of cooperation between the Court and the UN as well as many of its sub-organs and agencies.<sup>90</sup> The Court, as well as its organs, entertains a number of links and channels of dialogue with a multitude of UN sub-organs and agencies, ranging from general information-sharing to detailed cooperation arrangements in operations in the field.<sup>91</sup>

### 1. Regular dialogue

On the diplomatic/institutional level, the principals of the Court (i.e. the President, Prosecutor and the Registrar) frequently hold **high-level consultations** with the UN Secretary-General as well as other senior UN officials on strategic level.<sup>92</sup> The Court is represented at the UN with a small liaison office ('New York Liaison Office') providing a standing channel of communication and facilitating the maintenance and further development of the relationship and cooperation between the two organisations.<sup>93</sup> Furthermore, in accordance with article 6 of the Relationship Agreement the Court issues **annual reports** to the UN General Assembly about its activities.<sup>94</sup> In addition, the annual **UN-ICC Roundtable** also enables officials from both institutions to meet at the working level to discuss practical cooperation arrangements.

As provided for in the Relationship Agreement, it is not only the Court as an institution that interacts with UN offices regarding issues under the operational umbrella of the Agreement. In particular on the more technical/operational requests for coordination and/or cooperation the OTP interacts with the UN directly. Similarly, the **Defence** is entitled to seek cooperation from relevant UN offices.

Generally, the UN Office of Legal Affairs ('OLA') ensures the transmission and coordination of the judicial cooperation requests from the organs of the Court and parties to the proceedings and the UN and its agencies.<sup>95</sup> In doing so, OLA also advises the requesting organ or party on the procedure to be followed, provides updates and identifies the relevant interlocutors that the Court may contact in the different UN agencies or peacekeeping missions in the field.<sup>96</sup>

The Court regularly interacts with a large variety of UN bodies and offices, including, most prominently, the Department of Peacekeeping Operations ('DPKO'); the Department of

<sup>90</sup> This is well reflected by the Court's primary stakeholder, the UN Assembly, when it underlines the 'extraordinary nature and importance of the [Court's] relationship with the United Nations' through the Negotiated Relationship Agreement. 'Report of the Court on the status of ongoing cooperation between the International Criminal Court and the United Nations, including in the field', ICC-ASP/12/42, 14 October 2013, note 72, para. 2.

<sup>91</sup> Following the relevant provisions of the Relationship Agreement in its arts. 10, 15 and 18; see Section C.

<sup>92</sup> Report of the Bureau on cooperation, ICC-ASP/10/40, 18 November 2011, para. 63. In August 2014, at the occasion of the UN Security Council's visit to The Hague, the Court's President and Deputy Prosecutor were able to hold a high-level meeting with the Security Council members. Earlier in 2014, the ICC President met UN Secretary-General Ban-Ki Moon to discuss matters of mutual interest.

<sup>93</sup> Resolution ICC-ASP/11/Res.8, 'Strengthening the International Criminal Court and the Assembly of States Parties', para. 29. See also 'Establishment of a New York Liaison Office for the International Criminal Court and the Secretariat of the Assembly of States Parties – report pursuant to paragraph 11 of resolution ICC-ASP/2/Res.7' (<http://www.legal-tools.org/doc/640a8e/>), ICC-ASP/3/6, 20 July 2004, para. 10 (<http://www.legal-tools.org/doc/5ea87d/>), followed by resolution ICC-ASP/4/Res.4 of 3 December 2005, para. 25 (<http://www.legal-tools.org/doc/22fedc/>).

<sup>94</sup> See only Report of the International Criminal Court, ICC Doc. A/68/314, 13 August 2013. See also UN General Assembly Resolution A/RES/66/262, 25 October 2012, para. 19.

<sup>95</sup> Report of the Bureau on Cooperation, ICC-ASP/6/21, 19 October 2007, para. 62. For the OTP, between 2005 and 2013, 212 requests for assistance were sent to the UN, with an execution rate of 73.5 %. In 2014, this number has steeply increased due to reinforced investigative operations of the OTP in the field.

<sup>96</sup> 2013 Report on Cooperation, note 72, para. 5.

Political Affairs ('DPA'); UN Women; the Office of the High Commissioner for Human Rights ('OHCHR'); as well as the Special Advisers and Special Representatives of the Secretary-General.<sup>97</sup> The ICC also liaises with UN programmes and funds, such as the UN Children's Fund ('UNICEF') and the World Food Programme.<sup>98</sup>

- 38 While the Relationship Agreement extends to the UN's various subsidiary bodies, funds and programmes, departments and offices,<sup>99</sup> this is not the case for the UN's '**specialised agencies**', which are autonomous organisations (whose work is coordinated through ECO-SOC on the intergovernmental level).<sup>100</sup> Still, the Court entertains regular interaction – outside the confines of the Relationship Agreement – with UN specialised agencies, such as for instance the UN Educational, Scientific and Cultural Organisation ('UNESCO').

## 2. Technical cooperation with the UN

- 39 In many crisis situations around the globe, including those before the Court, the UN and its sub-bodies often have unique access to a particular territory through their field missions and peacekeeping operations. While article 3 of the Cooperation Agreement provides the **general legal basis** for the Court to request UN cooperation, articles 15 to 18 establish a more detailed foundation for technical assistance and cooperation.<sup>101</sup>
- 40 a) **Cooperation pursuant to articles 9, 10, 15 of the Cooperation Agreement.** Under the umbrella of the Cooperation Agreement, the Court has in the past years sought a variety of cooperation and assistance measures in almost all of its current situations. This *ad hoc* **cooperation** ranges from the provision of facilities and services to the disclosure of information and testimony by UN experts and other relevant cooperation foreseen in the Statute's legal framework (*in particular* Part 9 of the Statute). In practice, in most instances the OTP directs routine requests for cooperation to the relevant UN bodies directly. Only where the provision of evidence-related assistance (in most cases related to disclosure of information to the parties in court) is attached to a number of conditions, the relevant chamber may be involved.<sup>102</sup> The OTP may be required to seek an appropriate order from the chamber – e.g. authorising the disclosure of the information subject to the protective measures requested by the UN, such as redactions, limitations on disclosure, or use of *in camera* or *ex parte* proceedings.<sup>103</sup>
- 41 In Kenya, the Court continues to benefit from the UN Office at Nairobi ('UNON') **services and facilities**; exchanges between the offices concern in particular information on the developments in the relevant cases before the Court.<sup>104</sup> In the Central African Republic, the UN Integrated Peacebuilding Office in the Central African Republic ('BINUCA') assisted the Court in its **evacuation operations**, including by accommodating ICC personnel in the UN compound during six months. A regular flow of information on the situation in the country

<sup>97</sup> Notably Special Representatives on the prevention of genocide, the responsibility to protect, children and armed conflict and sexual violence in conflict.

<sup>98</sup> Report of the Bureau on cooperation, ICC-ASP/8/44, 15 November 2009, para. 107.

<sup>99</sup> See [http://www.un.org/en/aboutun/structure/org\\_chart.shtml](http://www.un.org/en/aboutun/structure/org_chart.shtml) [accessed October 2014].

<sup>100</sup> The Relationship Agreement merely extends to the core organisation (UN) but not to *separate* organisations affiliated with it.

<sup>101</sup> See in particular article 15(1) of the Relationship Agreement, making reference to article 87(6) of the Rome Statute on international cooperation and judicial assistance.

<sup>102</sup> See art. 15(3) of the Relationship Agreement. An example is the testimony of UN personnel as a (expert) witness pursuant to art. 16 of the Relationship Agreement under certain conditions and parameters requested by the relevant UN agency. Art. 15(3) foresees that the Chamber issues appropriate instructions ('the Court may order'). This arrangement has been repeatedly used in the situation in the Democratic Republic of the Congo in the cases of *Prosecutor v. Thomas Lubanga Dyilo*, No. ICC-01/04-01/06, and *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, No. ICC-01/04-01/07. See in subsection d).

<sup>103</sup> See analogous provisions in art. 72(5)(d) of the Statute.

<sup>104</sup> *Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, No. ICC-01/09-01/11 ([http://www.legal-tools.org/en/go-to-database/ltfolder/0\\_17448/#results](http://www.legal-tools.org/en/go-to-database/ltfolder/0_17448/#results)); *Prosecutor v. Uhuru Muigai Kenyatta*, No. ICC-01/09-02/11 ([http://www.legal-tools.org/en/go-to-database/ltfolder/0\\_16938/#results](http://www.legal-tools.org/en/go-to-database/ltfolder/0_16938/#results)). See also paragraph 46.

was provided by BINUCA, thus supporting the Court in continuing its work in relation to the case of Mr. Jean-Pierre Bemba, including notifying cooperation requests to the authorities. In the Democratic Republic of the Congo, the Court continued to rely on the administrative and logistical assistance of the UN Organisation Stabilisation Mission in the Democratic Republic of the Congo ('MONUSCO'), including **air transportation** from Kinshasa and from its Logistics base in Entebbe, Uganda.<sup>105</sup> The UN Multidimensional Integrated Stabilisation Mission in Mali ('MINUSMA') provides operational support to the Court, including by granting access to UN Humanitarian Air Service ('UNHAS') flights to areas of ICC operations throughout the country.<sup>106</sup> Assistance by relevant UN missions under the umbrella of the Cooperation Agreement is also being rendered to **defence teams** in cases before the Court.

The Court also receives cooperation from UN missions that are not located in any of the situation countries. In 2013, the Court organised video conferences to facilitate the testimony of several witnesses from UN premises in three different States.<sup>107</sup> This practice has been followed since.

**b) Cooperation pursuant to Memoranda of Understanding.** Where a high volume of requests for cooperation can be anticipated, the Court seeks to conclude Memoranda of Understanding ('MoU's') to facilitate agreed modalities for specific forms of assistance. Operative paragraphs of such MoU's outline in detail such services, facilities and other cooperation rendered and therefore **add specificity and clarity** to the technical interactions in the field. This practice has generated mutual benefits: it allowed the Court to avoid delays in the deployment of its operations and helped reduce costs. Further, the MoU's in force to date have facilitated swift exchanges on issues of mutual interest and allowed effective responses to concerns and misinformation on the ground.<sup>108</sup>

Presently, the Court has entered into **four such agreements**: A MoU was concluded with the UN Mission in the DRC ('MONUC') in 2005;<sup>109</sup> the MoU invokes explicitly articles 10, 15 and 18 of the Cooperation Agreement as the relevant modalities of cooperation.<sup>110</sup> On 12 June 2013, the Court concluded a similar MoU with the UN Operation in Côte d'Ivoire ('UNOCI'),<sup>111</sup> following the structure and content of the MoU with MONUC. A third, similar MoU was concluded with MINUSMA on 20 August 2014.<sup>112</sup> All three MoU's make specific and detailed provision for **judicial use of evidence** obtained, testimony of members of

<sup>105</sup> By way of an example, a total of 448 UN flights have been used between 1st January and 30 September 2013. 2013 Report on Cooperation, note 72, para. 18.

<sup>106</sup> Due to the intensity of OTP investigative operations in the Situation in Mali, the Court has entered into a memorandum of understanding with MINUSMA on 20 August 2014. *See also* subsection b) below.

<sup>107</sup> 2013 Report on Cooperation, note 72, para. 22.

<sup>108</sup> 2013 Report on Cooperation, note 72, para. 14. However, MoU's may also a more informative purpose and facilitate information exchange and administrative cooperation pursuant to arts. 5, 9 of the Relationship Agreement, such as a possible future MoU between the Court and the United Nations Office of Internal Oversight Services, *see*, ICC-ASP/9/Res.5 'Independent Oversight Mechanism', 10 December 2010, paras. 5, 8, reiterating ICC-ASP/8/Res.1.

<sup>109</sup> 'Memorandum of Understanding Between the United Nations and the International Criminal Court Concerning Cooperation between the United Nations Organisation Mission in the Democratic Republic of the Congo (MONUC) and the International Criminal Court (with annexes and exchange of letters)', New York, 8 November 2005, Volume 2363, II-1292. *See also* 'Report of the Bureau on Cooperation', ICC-ASP/6/21, 19 October 2007, para. 60.

<sup>110</sup> MONUC MoU, introduction and arts. 5, 10 *et seq.*

<sup>111</sup> 'Memorandum of Understanding Between the United Nations and the International Criminal Court Concerning Cooperation between the United Nations Operation in Côte d'Ivoire (UNOCI) and the Prosecutor of the International Criminal Court (with annexes)', New York, 4 June 2013 and 5 June 2013 and The Hague, 12 June 2013, No. II-1371. Cooperation between UNOCI and the Court concerns in relevant part the case of *Prosecutor v. Laurent Gbagbo*, No. ICC-02/11-01/11 ([http://www.legal-tools.org/en/go-to-database/ltfolder/0\\_26172/#results](http://www.legal-tools.org/en/go-to-database/ltfolder/0_26172/#results)) 2 44.

<sup>112</sup> 'Memorandum of Understanding Between the United Nations and the International Criminal Court Concerning Cooperation between the United Nations Multidimensional Integrated Stabilisation Mission in Mali (MINUSMA) and the International Criminal Court', 20 August 2014.



the respective UN mission, assistance in the production and preservation of evidence, and regarding arrests, searches and seizures and securing of crime scenes.<sup>113</sup> The Court entered into another MoU with the United Nations Office on Drugs and Crime on building state capacity regarding the domestic enforcement of sentences of imprisonment pronounced by the Court in accordance with international standards and norms.<sup>114</sup> This MoU will become more relevant in the coming years when the Court will have issued an increasing number of final judgments and sentences, putting the ICC enforcement regime to the test.<sup>115</sup>

- 45 Following its competence pursuant to article 18 of the Relationship Agreement, the OTP has also entered into **specific agreements** with various UN bodies on an *ad hoc* basis, as required. These have focused mainly on requests for obtaining information or evidence, access to UN archives, and interviews of current or former UN staff.<sup>116</sup>
- 46 Finally, a number of MoU's are concluded by the Registry directly with certain UN subsidiary bodies and offices.<sup>117</sup> This includes a MoU with the ICTY regarding the Court's access to the ICTY's 'UN ICTY Judicial Database', facilitating legal research on relevant jurisprudence.<sup>118</sup> More related to **administrative support of field missions**, the Registry has concluded a MoU with UNON on the provision of support services and facilities to the Registry of the Court pursuant to articles 8 and 10 of the Relationship Agreement in connection with its activities in Kenya.<sup>119</sup> As regards general **security arrangements** in the field, the Court is included in the UN security and safety arrangements provided by the Department of Safety and Security ('UNDSS') in all areas of the Court's operations.<sup>120</sup> Finally, for each session that the ASP holds at UN Headquarters in New York,<sup>121</sup> a MoU regulates the provision of facilities and services of sessions.<sup>122</sup>
- 47 c) **Cooperation with UN commissions of inquiry.** In recent years, the Court's OTP has interacted with a number of international commissions of inquiry set up by the UN to carry out investigations in crisis areas, namely in Darfur, Guinea and Libya. In particular, interaction with UN expert panels on investigations in the field provides a valuable source of information for ICC investigators on Rome Statute crimes, in particular during preliminary examinations where the OTP mainly relies on open source information to determine whether or not to open an investigation. A more **systematic cooperation** between the Court

<sup>113</sup> MONUC MoU, Chapter III, Arts. 10–16; UNOCI MoU, Chapter III.

<sup>114</sup> 'Memorandum of Understanding Between the International Criminal Court and the United Nations, on Building the Capacity of States to Enforce, in Accordance With International Standards on the Treatment of Prisoners, Sentences of Imprisonment Pronounced by the Court', 26 September 2014, ICC-PRES/15-02-14 (Official Journal Publication).

<sup>115</sup> See Part 10 of the Rome Statute, arts. 103 *et seq.*

<sup>116</sup> In addition, the OTP has concluded cooperation agreements with a number of (situation) countries, similarly destined at facilitating and assisting OTP investigative activities on the ground. See, for instance, the 'Accord de coopération judiciaire entre la République du Mali et le Bureau du Procureur de la Cour', 13 February 2013.

<sup>117</sup> See 'Report of the Bureau on cooperation', ICC-ASP/10/40, 18 November 2011, paras. 56–61.

<sup>118</sup> 25 October 2007. In addition, MoUs with OLA (on the process of requesting disclosure of documents obtained from the UN) and the International Development Law Organisation exist; Report of the Bureau on cooperation, ICC-ASP/8/44, 15 November 2009, para. 116.

<sup>119</sup> 'Memorandum of Understanding Between the United Nations and the International Criminal Court Concerning the Provision by the United Nations Office at Nairobi of Support Services and Facilities to the Registry of the Court in Connection with its Activities in the Republic of Kenya', 9/13 June 2011.

<sup>120</sup> The original MoU [...] Regarding Coordination of Security Arrangements' entered into force on 3 March 2005; it is currently being amended to reflect the modified template approved by the Inter-Agency Security Management Network ('IASMN') in 2010. Report of the Bureau on cooperation, ICC-ASP/8/44, 15 November 2009, para. 109.

<sup>121</sup> Article 112(6) of the Statute.

<sup>122</sup> 'Memorandum of Understanding Between the International Criminal Court and the United Nations Concerning Provision of Facilities and Services for the thirteenth session of the Assembly of States Parties to the Rome Statute of the International Criminal Court, to be held at United Nations Headquarters, from 8 to 17 December 2014', on file with the Secretariat of the Assembly of States Parties.

and relevant UN organs and subsidiary bodies<sup>123</sup> is being considered.<sup>124</sup> Mandates of commissions of inquiry regularly overlap with information sought by the OTP regarding issues such as when and in which locations relevant crimes have been committed; identities of alleged perpetrators and victims; and any information on the existence and quality of national proceedings in relation to such crimes.

d) **Cooperation between the Court and the Security Council.**<sup>125</sup> In recent years there has been an **increased interaction** of the Security Council with the Court under various formats, including the holding of an open debate on peace and justice, with a special focus on the role of the Court.<sup>126</sup> This interaction included the Court's President and Prosecutor addressing the Security Council on matters related to the Court's operations pursuant to article 4(3) of the Relationship Agreement<sup>127</sup> but also led to other high-level occasions where Court officials addressed the Security Council.<sup>128</sup> It has been suggested that given their **often overlapping and complementary mandates**,<sup>129</sup> the relationship between the Court and the Security Council could be strengthened 'by extending interaction, including beyond specific situations referred by the Council to the Prosecutor, and by creating space for open discussions on thematic issues.'<sup>130</sup> A number of specific measures of enhanced interaction have been proposed, which serve to connect the Court and the Security Council over and above the provisions of the Relationship Agreement.<sup>131</sup> These include: liaising with regional and sub-regional organisations; public and diplomatic support; measures on a more technical level, such as the harmonisation of sanctions mechanisms for the identification and freezing of assets and the imposition of travel bans; arrest strategies for persons subject to ICC arrest warrants; and following-up on Security Council referrals, in particular in case of non-cooperation.<sup>132</sup>

However, although the Court and the Security Council share several traits in their mandates, they still have distinct roles in that the Council is a **political body** within the UN system while the Court is an independent judicial institution. The Security Council's role in the Court's activities has been a delicate topic in negotiations leading up to the Rome Statute,<sup>133</sup> as a result, the Statute clearly delineates their **distinct roles**, giving the Court

<sup>123</sup> The offices setting up commissions of inquiries vary depending on the situation and UN officers involved, including, amongst others, the UN Secretary-General, the Security Council or the Human Rights Council.

<sup>124</sup> Presently, the OTP and OHCHR are looking at ways to strengthen possible modalities for cooperation, including through conclusion of a framework MoU. 2013 Report on Cooperation, note 72, para. 28.

<sup>125</sup> This section does not address the interaction and coordination between the Court and the Security Council regarding situation referrals pursuant to art. 13(b) of the Rome Statute or other issues addressed in art. 17 of the Cooperation Agreement which are being discussed elsewhere in this Commentary.

<sup>126</sup> Resolution adopted by the UN General Assembly on 22 August 2013 ('Report of the International Criminal Court'), A/RES/67/295, para. 18. See also statement by the President of the Security Council of 12 February 2013 (S/PRST/2013/2) reiterating the importance of state cooperation with the Court 'in accordance with the respective obligations of States'; *id.*, para. 19. See also a list of ensuing events under the heading 'Peace and justice, with a special focus on the role of the ICC' in 2012, in: 2013 Report on Cooperation, note 72, para. 31.

<sup>127</sup> See the ICC Prosecutor's periodic addresses of the Security Council on the situations in Darfur (Sudan) and Libya pursuant to Security Council referrals under art. 13(b) of the Rome Statute, S/RES/1593 (2005) of 31 March 2005 and S/RES/1970 (2011) of 26 February 2011, respectively.

<sup>128</sup> ICC addresses the UN Security Council during the debate on Peace and Justice, ICC Press Release of 18 December 2012, ICC-CPI-20121018-PR844.

<sup>129</sup> Both are called upon in case of grave mass atrocities posing a threat to international peace and security; both have a mandate in strengthening the complementary relationship between peace and justice; and both have a preventative mandate. See 2013 Report on Cooperation, note 72, paras. 32–35.

<sup>130</sup> 2013 Report on Cooperation, note 72, para. 36.

<sup>131</sup> The initiative was originally triggered by Guatemala with a 'concept note' issued during the Guatemalan Presidency of the Security Council at the occasion of the 17 October 2012 Security Council open debate on 'Peace and Justice with a Special Focus on the Role of the International Criminal Court'.

<sup>132</sup> For details on the possible measures to enhance coordination and cooperation see 2013 Report on Cooperation, note 72, paras. 38–59.

<sup>133</sup> Kirsch and Holmes, (1999) 93 AJIL 2; Yee, in: R.S. Lee (ed.), *The International Criminal Court: Making of the Rome Statute* (1999) 147; 1994 ILC Draft Statute, pp. 86 *et seq.*, paras. 13–15, 118–121.



sufficient autonomy from the Security Council in many aspects.<sup>134</sup> These distinct roles and functions of both bodies should always be kept in mind – and preserved.

### 3. Relationship between the Rome Statute and the Relationship Agreement

- 50 As outlined above, the Relationship Agreement contains rather detailed provisions on cooperation and judicial assistance between the United Nations and the Court.<sup>135</sup> In particular the provisions enshrined in articles 15, 16, 18 and 20 have a direct bearing on the procedural arrangements in ongoing cases before the Court since they concern information potentially used as evidence in court. The Relationship Agreement foresees certain **protective arrangements** where the UN provides the Court with material under the condition of confidentiality or non-disclosure in order to assure the safety and security of persons and the proper conduct of UN operations.<sup>136</sup> Juxtaposed with the confidentiality protection arrangements is the fundamental obligation of the OTP to disclose any **exculpatory evidence** and material in its possession pursuant to article 67(2) of the Rome Statute and Rule 77 of the Rules of Procedure and Evidence.
- 51 The Relationship Agreement represents an **international treaty** concluded between two international organisations.<sup>137</sup> Its interpretation, including the determination of parties' obligations arising from it, is governed by the applicable general principles of international law.<sup>138</sup> In particular where the OTP enters into specific cooperation arrangements with UN actors pursuant to article 18 of the Relationship Agreement, **tension** may arise between treaty obligations vis-à-vis the UN on the one hand, and Rome Statute obligations vis-à-vis the chamber and the parties to the proceedings on the other.<sup>139</sup> More concretely, **confidentiality arrangements and disclosure obligations** may clash where the Prosecutor receives information 'on condition of confidentiality and solely for the purpose of generating new evidence' pursuant to article 18(3) of the Relationship Agreement which contains potentially exculpatory material. While the provision mirrors article 54(3)(e) of the Rome Statute regarding the non-disclosure of confidential materials received solely for the purpose of generating new evidence,<sup>140</sup> it goes beyond the latter in stating that such information 'shall not be disclosed to other organs of the Court or to third parties' absent the consent of the UN as the provider

<sup>134</sup> Yáñez-Barnuevo and Escobar Hernández, in: Lattanzi and Schabas (eds.), *Essays on the Rome Statute of the International Criminal Court* (2004) 51.

<sup>135</sup> See Section III of the Relationship Agreement 'Cooperation and judicial assistance'. See also above Section C.

<sup>136</sup> Articles 15(3), 18(3) and (4) of the Relationship Agreement. Similarly, the Rome Statute contains protective provisions for any person at risk on account of the activities of the Court in 'an overarching concern to ensure that persons are not unjustifiably exposed to risk through the activities of the Court'. *Prosecutor v. Germain Katanga*, No. ICC-01/04-01/07-475, Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber I entitled 'First Decision on the Prosecution Request for Authorisation to Redact Witness Statements', Appeals Chamber, 13 May 2008, para. 54 (<http://www.legal-tools.org/doc/a76f99>) 2 50.

<sup>137</sup> As for the legal personality of the ICC see art. 4(1) of the Rome Statute.

<sup>138</sup> See generally art. 27 of the Vienna Convention on the Law of Treaties of 23 May 1969, United Nations Treaty Series, Vol. 1155, I-18232, registered *ex officio* on 27 January 1980 (p. 331) (<http://www.legal-tools.org/doc/6bfcd4/>), and, more on point regarding its applicability (to international organisations) but not yet in force, art. 27(2) of the Vienna Convention on the Law of Treaties between States and International Organisations or between International Organisations, 21 March 1986; in: *Official Records of the United Nations Conference on the Law of Treaties between States and International Organisations or between International Organisations*, vol. II (United Nations publication, Sales No. E.94.V.5) (<http://www.legal-tools.org/doc/760ef5/>): 'An international organisation party to a treaty may not invoke the rules of the organisation as justification for its failure to perform the treaty.'

<sup>139</sup> *Prosecutor v. Thomas Lubanga Dyilo*, Judgment on non-disclosure of exculpatory materials, note 88, para. 43.

<sup>140</sup> 'The Prosecutor may [...] agree not to disclose, at any stage of the proceedings, documents or information that the Prosecutor obtains on the condition of confidentiality and solely for the purpose of generating new evidence, unless the provider of the information consents; [...]'

of the information.<sup>141</sup> In two cases in the situation in the Democratic Republic of Congo, the *Lubanga*<sup>142</sup> and *Katanga*<sup>143</sup> cases, the chambers had to tackle such a situation.<sup>144</sup>

The Appeals Chamber resolved the matter in *Lubanga* in holding that the competent chamber will have to respect the confidentiality agreement concluded by the Prosecutor under article 54(3)(e) of the Statute and cannot order the disclosure of the material to the defence without the prior consent of the information provider.<sup>145</sup> However, relying on article 67(2), second sentence, as well as article 64(2)<sup>146</sup> of the Statute, the Appeals Chamber also ruled that the **final assessment** as to whether article 54(3)(e) material *would* have to be disclosed, were it not obtained on the condition of confidentiality, will have to be carried out **by the competent chamber**.<sup>147</sup> In such a case, it is also for the chamber to determine whether and, if so, which **counter-balancing measures** can be taken to guarantee the fairness of a trial despite the non-disclosure of the information.<sup>148</sup> Furthermore, the reliance on article 54(3)(e) of the Statute should be ‘**exceptional**’.<sup>149</sup> Consequently, confidentiality agreements where the provision of information is governed by article 18(3) of the Relationship agreement as a default arrangement are inappropriate.<sup>150</sup>

The Appeals Chamber did not address (and has not done so since) the Prosecutor’s possible obligations towards the UN **under international law** to honour the wording of article 18(3) not to disclose material ‘to other organs of the Court’, which arguably includes

<sup>141</sup> See also the comparable regime at the ICTY in Rules 68, 70; see more generally Johnson, (2012)10 *JICJ*, 887 (893); L. Korecki, (2009) 7 *JICJ*, 937 *et seq.*

<sup>142</sup> In *Lubanga*, some information and documents the OTP had received pursuant to art. 54(3)(e) of the Rome Statute originated from the UN. *Prosecutor v. Thomas Lubanga Dyilo* No. ICC-01/04-01/06-2842, Judgment pursuant to article 74 of the Statute, Trial Chamber, 14 March 2012, para. 121 (<http://www.legal-tools.org/doc/677866/>); initially the Trial Chamber had stayed the proceedings in reaction to the OTP’s refusal to disclose art. 54(3)(e) information received from the UN (because the latter had refused to consent to any disclosure, relying on art. 18(3) of the Relationship Agreement): *Prosecutor v. Thomas Lubanga Dyilo* No. ICC-01/04-01/06-1401, Decision on the consequences of non-disclosure of exculpatory materials covered by article 54(3)(e) agreements and the application to stay the prosecution of the accused, together with certain other issues raised at the Status Conference on 10 June 2008, Trial Chamber, 13 June 2008 (<http://www.legal-tools.org/doc/e6a054/>) 2 51. See also Ambos, (2009) 12 *NCLRev*, 543.

<sup>143</sup> *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, No. ICC-01/04-01/07-621, Decision on article 54(3)(e) Documents Identified as Potentially Exculpatory or Otherwise Material to the Defence’s Preparation for the Confirmation Hearing, Pre-Trial Chamber II, 20 June 2008 (<http://www.legal-tools.org/doc/0d8508/>).

<sup>144</sup> The problem has been succinctly brought to the point in *Lubanga* Decision on non-disclosure of exculpatory materials, para. 43: ‘[...] by accepting material on the condition of confidentiality, the Prosecutor potentially puts himself in a position where he either does not disclose material that he normally would have to disclose [pursuant to the disclosure obligations under article 67 (2) of the Statute and rule 77 of the Rules of Procedure and Evidence], or breaches a confidentiality agreement entered into with the provider of the material in question.’

<sup>145</sup> *Lubanga* Judgment on non-disclosure of exculpatory materials, note 88, para. 48.

<sup>146</sup> The Appeals Chamber considered the overall role ascribed to the Trial Chamber in article 64(2) of the Statute to guarantee that the trial is fair and expeditious. *Id.*, para. 46.

<sup>147</sup> *Id.*, paras. 3, 48.

<sup>148</sup> *Id.*, para. 48: ‘If the provider of the material does not consent to the disclosure to the defence, the Chamber, while prohibited from ordering the disclosure of the material to the defence, will then have to determine whether and, if so, which counter-balancing measures can be taken to ensure that the rights of the accused are protected and that the trial is fair, in spite of the non-disclosure of the information.’ For the practical application of this ruling see *Prosecutor v. Thomas Lubanga Dyilo*, No. ICC-01/04-01/06-1644, Reasons for Oral Decision lifting the stay of proceedings, Trial Chamber I, 23 January 2009, paras. 46 *et seq.* (<http://www.legal-tools.org/doc/94e831/>).

<sup>149</sup> *Lubanga* Judgment on non-disclosure of exculpatory materials, note 88, para. 55, confirming the Trial Chamber’s finding to this effect in its ‘Decision on the consequences of non-disclosure of exculpatory materials covered by article 54(3)(e) agreements and the application to stay the prosecution of the accused, together with certain other issues raised at the Status Conference on 10 June 2008, ICC-01/04-01/06-1401, para. 71 (<http://www.legal-tools.org/doc/e6a054/>).

<sup>150</sup> *Lubanga* Judgment on non-disclosure of exculpatory materials, note 88, para. 52, referring to article 10(6) of the MONUC Memorandum of Understanding (‘documents held by MONUC that are provided by the United Nations to the Prosecutor shall be understood to be provided in accordance with and subject to the arrangements envisaged in article 18, paragraph 3, of the Relationship Agreement’). See, however *Katanga* Decision on article 54(3)(e), note 143, para. 52.

the relevant chamber and thus stands in contrast to the Appeals Chamber's holding.<sup>151</sup> This is problematic since the ruling of the Appeals Chamber is of **limited authoritative value** in interpreting legal obligations of the Court and the UN arising from the Relationship Agreement under international law. Any ruling from a chamber, while with direct binding effect *inter partes*, i.e. for the parties subject to the relevant legal proceedings before that chamber, can hardly be conceived as having any direct legal effect on the UN with regard to an international treaty concluded with the Court (and not the chamber) as an international organisation.<sup>152</sup>

#### 4. Sustainable effect of the Relationship Agreement

- 54 The coordination and cooperation between the Court and the various UN sub-organs not only provides immediate operational assistance to the Court's criminal procedures but also creates further synergies that go to the complementary nature of the Rome Statute system. The UN and its organs and programmes also play an important role in **strengthening domestic capacities** to address crimes under the Rome Statute, as evidenced by the 'Green-tree process', launched in 2010 by the International Centre for Transitional Justice ('ICTJ') and the UN Development Program ('UNDP'), focusing on rule of law projects to enhance complementarity through the strengthening of domestic criminal justice systems. In addition, in response to the Court's annual reports to the UN pursuant to article 6 of the Relationship Agreement, the General Assembly regularly calls upon states to take their cooperation responsibilities vis-à-vis the Court seriously, and encourages further accessions to the Rome Statute.<sup>153</sup>

<sup>151</sup> The Appeals Chamber merely held that '[w]henever material is offered to the Prosecutor on the condition of confidentiality, he will have to take into account the specific circumstances, including the expected content and nature of the documents, and its potential relevance to the defence', and thereupon determine under what exact conditions the material can be accepted in light of possible future obligations pursuant to art. 67(2) of the Rome Statute; *Lubanga* Judgment on non-disclosure of exculpatory materials, note 88, para. 51.

<sup>152</sup> See art. 27 of both Vienna Conventions cited above in note 137. In *Katanga*, the Pre-Trial Chamber had ruled that if (part of) any agreement were found to be contrary to the ICC's statutory framework, 'some of[...]the] confidentiality clauses may be declared null and void', *Katanga* Decision on article 54(3)(e), note 143, para. 63 2 53. Critical (and suggesting that chambers of the ICC do not have such competence) Schabas, Commentary (2010), 679; *concurring* Johnson, 893–894. See also Yáñez-Barnuevo and Escobar Hernández, in: Lattanzi and Schabas (eds.), *Essays on the Rome Statute of the International Criminal Court* (2004), 68, pleading that for reasons of hierarchy of norms (art. 21 of the Rome Statute) the Relationship Agreement should be purely procedural and administrative in nature, not contradicting any provision of the Statute or the Rules of Procedure and Evidence. On this last point see *already* 1996 Preparatory Committee I, para. 30.

<sup>153</sup> Resolution adopted by the General Assembly on 29 May 2012 ('Report of the International Criminal Court'), A/RES/66/262, 25 October 2012, paras. 5, 7–8; Resolution adopted by the General Assembly on 22 August 2013 ('Report of the International Criminal Court'), A/RES/67/295, paras. 7–10, 13–14, 23. See also Report of the Bureau on cooperation, ICC-ASP/8/44, 15 November 2009, para. 111.

## Article 3 Seat of the Court

1. The seat of the Court shall be established at The Hague in the Netherlands ('the host State').

2. The Court shall enter into a headquarters agreement with the host State, to be approved by the Assembly of States Parties and thereafter concluded by the President of the Court on its behalf.

3. The Court may sit elsewhere, whenever it considers it desirable, as provided in this Statute.

**Literature:** Ahluwalia, K., *The Legal Status, Privileges and Immunities of the Specialised Agencies of the United Nations and Certain Other International Organisations* (1964); Behr, S., *Die Exterritorialität der Gesandten unter besonderer Berücksichtigung ihres Zweckes* (1919); Bekker, P.H.F., 'The Work of the International Law Commission on "Relations between States and International Organisations" Discontinued: an Assessment', (1993) 6 *LeidenJIL* 1, 3; Brandon, M., 'The Legal Status of the Premises of the United Nations', (1952) 28 *BYIL* 90; Conforti, B., *The Law and Practice of the United Nations* (1996) 121; Jenks, C.W., *The Headquarters of International Organisations* (1945); id., *International Immunities* (1961); Muller, A.S., *International Organisations and Their Host States, Aspect of Their Legal Relationship* (1995); Oehler, D., *Internationales Strafrecht, Geltungsbereich des Strafrecht, Internationales Rechtshilferecht, Recht der Gemeinschaften, Völkerstrafrecht* (1983); Schermers, H.G., 'Liability of International Organisations', (1988) 1 *LeidenJIL* 1, 3; Schutte J.J.E., 'Legal and Practical Implications, from the Perspective of the Host Country, Relating to the Establishment of the International Tribunal for the Former Yugoslavia', (1994) 5 *CLF* 2-3, 423; Wright, Q. 'The Juridical Personality of the United Nations', (1949) 48 *AJIL* 509; U.N. Publications, Basic Documents, the Statute, the Rules of Procedures and Evidence and Other Regulatory Instruments, ICTY (1998).

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## A. General remarks

### I. The legal status of the Court as counterpart of the host State

- 1 Just like the ICJ<sup>1</sup>, the ICTY and the Appeals Chamber of the ICTR, the ICC is seated at The Hague in the Netherlands which has to act as the host State according to the conditions as set out in the final Seat Agreement as of the 7 July 2007<sup>2</sup>, to be commented below sub C subpara. III. To complicate things, after the conclusion of that final Seat Agreement, the Netherlands decided to host two brand-new *Ad Hoc*-Tribunals sharing some parts of the ICC premises, its detention and penitentiary facilities and annexes and thus prompting rather intricate jurisdictional conflicts and questions between ICC, those *Ad Hoc*-Tribunals on the one hand and the Host Country on the other. Here we are referring to the so-called Annex of the Sierra Leone Tribunal<sup>3</sup> and the Lebanon Tribunal or Harirri Tribunal<sup>4</sup>. Additionally, in January 2008 some additional Arrangements to facilitate this seating are underway. The Seat Agreement with the Lebanon Tribunal has been completed in December 2007; the definitive Agreement was officially published on the 21 December 2007. Sub XI of this commentary we will be touching upon those Seat Agreements as far as relevant for the purview of the final Seat Agreement with ICC. Especially the fact that the *Ad Hoc* Tribunals for Sierra Leone and the Lebanon are supposed to use the same penitentiary provisions as set at the disposal of ICC will certainly prompt some practicable problems until ICC will have its own independent premises in the line of dunes at Scheveningen, just across the Scheveningen prison facilities at the Van Alkemadeaan. But that will take some considerable time.

Article 3 of the Rome Statute as it stands now has never been the subject of fundamental discussions neither during the sessions of the diplomatic summit in Rome nor during the preceding meetings of the UN *ad hoc* Commissions or the Preparatory Commission. In its March session of 1998 the latter agreed upon a consolidated text of article 3 mainly identical with the present one<sup>5</sup>. The only difference between the 1998 March text and the present one is the introduction in the latter of an approval of the headquarters agreement by *the Assembly of States Parties*. The March text required the approval of 'the' States Parties. The definite article 'the' seems to imply the requirement of unanimity among the contracting States

<sup>1</sup> Article 22 Statute of the ICJ: 'The seat of the Court shall be established at the Hague. This, however, shall not prevent the Court from sitting and exercising its functions elsewhere whenever the Court considers it desirable. 2. The President and the Registrar shall reside at the seat of the Court'.

<sup>2</sup> See: Zetelverdrag tussen het Internationaal Strafhof en het Gastland (met briefwisseling), 's Gravenhage, 7 Juni 2007 (uitgegeven 17 Juli 2007) [Headquarters Agreement between the International Criminal Court and the Host State (with exchanged additional letters), The Hague, 7 June 2007 (published the 17 July 2007)] (Netherlands Treaty Series 2007, No. 125.).

<sup>3</sup> See: Notawisseling houdende een Zetelverdrag tussen het Koninkrijk der Nederlanden en het Speciale Hof voor Sierra Leone; 's-Gravenhage/Freetown, 19 Juni 2006 [Headquarters agreement between the Kingdom of the Netherlands and the Special Court for Sierra Leone (Ministry of Foreign Affairs of the Kingdom of the Netherlands, Treaties Division DJZ/VE-262/06)] (Netherlands Treaty Series 2006, No. 131).

<sup>4</sup> See: Verdrag tussen het Koninkrijk der Nederlanden en de Verenigde Naties betreffende de Zetel van het Speciale Tribunaal voor Libanon; (met brieven en verklaringen) New York, 21 Dec. 2007 [Agreement between the Kingdom of the Netherlands and the United Nations concerning the Headquarters of the Special Tribunal for Lebanon] (Netherlands Treaty Series 2007, no. 228); See: Stukken van de Tweede Kamer, No. 31.128 No. 1, Brief van de Minister van Buitenlandse Zaken, dd 17 Aug. 2007 [Hansard of the Lower House No. 31.128, No. 1, Letter of the Minister for Foreign Affairs of the Kingdom of the Netherlands dd the 17<sup>th</sup> of August 2007] and Stukken van de Tweede Kamer, No. 31.128 No. 2, Brief van de Minister van Buitenlandse Zaken dd 21 december 2007 [Hansard of the Lower House No. 31.128 No. 2, Letter of the Minister for Foreign Affairs of the Kingdom of the Netherlands dd 21 December 2007].

<sup>5</sup> See UN Doc. A/AC.249/1998/WG.8/CRP.1/Add.2, according to which article 3 would run as follows: '*Seat of the Court*. 1. The seat of the Court shall be established at ... in ... ("the host State"). 2. The President, with the approval of the States Parties, may conclude an agreement with the host State, establishing the relationship between that State and the Court. 3. The Court may exercise its powers and functions on the territory of any State Party and, by special agreement, on the territory of any other State'.

Parties. The Preparatory Commission text of article 3 has completely been derived from the original 1994 ILC Draft Statute<sup>6</sup>.

Nevertheless as far as the seat and Headquarters Agreement are concerned, fundamental differences exist with regard to the legal position of the ICC in comparison to that of the ICJ and the above-mentioned *ad hoc* Tribunals. The latter entities are, by virtue of the mere fact that they have been instituted by a Security Council Resolution, organs and sub-organs of the United Nations. The ICJ has been defined as principal judicial organ in article 92 of the UN Charter<sup>7</sup>. *E contrario*, the two *ad hoc* Tribunals have to be considered as sub-organs of the United Nations. Hierarchically they are by virtue of the UN Charter juridically superior to the Netherlands' jurisdiction, which is constitutionally bound to accept their judgements as international law decisions of a self-executing nature. Article 103 of the UN Charter<sup>8</sup> dictates the host country to set aside its obligations under international law in case those obligations should collide or be incompatible with the host State's obligations with a view to the implementation and the exercise of the criminal jurisdiction vested in those *ad hoc* Tribunals. On the basis of an *a fortiori* interpretation this implies for the Dutch legal system that the Dutch judiciary has to declare Dutch statutes and regulations thereof null and void in as much their content or purview would be incompatible with the nature of the substantive mandate given to those sub-organs. The ICC as a treaty organisation does not possess the same UN Charter derived superiority towards the Netherlands' jurisdiction. At this moment the ICC organisation is not to be considered as a subsidiary body of the United Nations, although strong relations will exist between the two organisations, namely with a view to the exercise of jurisdiction under article 13 (b), in a case in which the UN Security Council refers a situation to the ICC Prosecutor acting under Chapter VII of the UN Charter. This has furthermore been codified by virtue of article 17 (1) of the Relationship Agreement between the International Criminal Court and the United Nations.

The ICC in relation to the UN is an independent juridical entity, which has been mandated through a multilateral treaty to take cognisance of particular crimes. The ICC is therefore to be regarded as a separate treaty organisation. This organisation provides for the institution of a court with criminal jurisdiction. The treaty organisation and not the UN is the counterpart of the host State with whom the Headquarters Agreement is to be concluded. Under international law the ICC therefore has towards the host State a status which is analogous to that of the International Rhine Navigation Judge<sup>9</sup>. This judiciary similarly derives its criminal jurisdiction from a multilateral treaty which affords the exclusive power to take cognisance of contraventions of the Rhine Navigation Police Regulations. As an independent treaty organisation the Rhine Navigation Judiciary concluded a separate Headquarters Agreement for the Central Commission of the Rhine Navigation, of which a chamber of appeal, competent in Rhine Navigation matters, forms a part<sup>10</sup>. The same model applies in the case of the ICC.

<sup>6</sup> UN Doc. A/49/355 (1 Sep. 1994), p. 3.

<sup>7</sup> 'The International Court of Justice shall be the principal judicial organ of the United Nations. It shall function in accordance with the annexed Statute, which is based upon the Statute of the Permanent Court of International Justice and forms an integral part of the present Charter'.

<sup>8</sup> 'In the event of a conflict between the obligations of the Members of the United Nations under the present Charter and their obligations under any other international agreement, their obligations under the present Charter shall prevail'.

<sup>9</sup> Van Eysinga, *La commission centrale pour la navigation du Rhin* (1935); id., *Evolution du droit fluvial international du congrès de Vienne au traité de Versailles* (1920); see also Dürkopp, *Die Internationalisierung der Elbe* (1931); Oehler, in: Bassiouni and Nanda (eds.), *A Treatise on International Criminal Law* (1973) 262; Oehler, in: Bassiouni (ed.), *International Criminal Law* (1986) 199 *et seq.*; Hulsman, *Le Droit pénal international* (1965) 109 *et seq.* By virtue of the Revised Act on the Navigation on the Rhine all the Rhine riparian States have to acknowledge the jurisdiction of the Rhine Border Courts (Rheinufergerichte) and are obliged to enforce their sentences without any transformation procedure.

<sup>10</sup> See Walther, *La Jurisprudence de la commission centrale pour la navigation du Rhin* (1948).



- 4 The ICC concludes with the host State a Headquarters Agreement, to be approved by the Assembly of States Parties<sup>11</sup>. The Headquarters Agreement is meant to regulate on a bilateral basis the legal status of the ICC-organisation in its host State. In addition the ICC also concludes a host State Agreement with the host State. In the Headquarters Agreement the international law of the ICC settlement is regulated with the host State. In this regard matters such as privileges, immunities and extraterritorialities as well as the status of the ICC itself, both as a supranational legal entity and as an entity under domestic law of the host State, are meant. With the latter the ICC, as a public international law organisation, must be empowered to conclude treaties and private law contracts. In the host State Agreement the obligations of the host State towards the ICC with regard to criminal law, procedural and judicial assistance obligations concerning pre-trial detention, transit and making available of personnel are envisaged. The Headquarters Agreement governs the penitentiary obligations of the host State such as the obligation to make pre-trial detention facilities available and the manner in which the host State, acting as subsidiary custodian, will function in the execution of the final and irrevocable sentences of ICC in terms of article 103 para. 4, where no other State is willing to accept the obligation to execute the sentence in its own detention facilities<sup>12</sup>. Subsequently both the host State and the ICC will conclude separate agreements with the UN for the governance of financial relations and the delineation of competences. The Agreement between the ICC and the UN is called a ‘relationship agreement’ in the Annex to the Rome Statute. In this manner a triangular treaty relationship based on a series of bilateral treaties results between the ICC, the UN and the host State. This aspect will revert to hereinafter. The ICC can also not be compared to the Scottish Court which has been conferred jurisdiction over the two Lockerbie-bombers, and which had its seat in the Netherlands since April 1999. This Scottish Court is to be seen as a national organ of the United Kingdom which has been granted residential rights by virtue of the Headquarter Agreement for the duration of the Lockerbie procedures defined in Security Council Resolution 1192. The Scottish Court remains, as far as the Netherlands as host country is concerned, a foreign jurisdiction. This is clear from the language in which the host State Agreement is couched. According to Dutch law the ICC, just like the ICTY, has to be considered as emanations of the national Dutch judiciaries which should be expressed in the Headquarters Agreement and the related enabling legislation.

## II. Headquarters Agreement/Host State Agreement

- 5 The primary competent authority for the conclusion of the Headquarters Agreement is the President of the ICC in terms of article 3. By virtue of this paragraph the Rome Statute itself

<sup>11</sup> In the so-called ‘Zutphen Draft’ the term ‘headquarters agreement’ did not appear (UN Doc. A/AC.249/1998/CRP.7 (31 Mar. 1998)). In the operative articles of the Zutphen Draft the terminology ‘agreement’ or ‘host State agreement’ were used alternatively. The second paragraph of article 3 of the Zutphen Draft runs as follows: ‘2. The President, with the approval of the assembly of States Parties, may conclude an *agreement* (emphasis added) with the host State, establishing the relationship between that State and the Court’. In article 86, Option 2, para. 1*ter*, the term ‘Host State Agreement’ was used by the Zutphen drafters to indicate the bilateral instrument to be drawn up by ICC on one hand and the host State on the other governing the relationship in every aspect (with a view to penitentiary, financial en logistic matters and special obligations envisaging cooperation, assistance and other kinds of facilitation). Its paragraph 1*ter* runs as follows: ‘If no State is designated under paragraph 1, the sentence of imprisonment shall be served in the prison facility made available by the host State, in conformity with and under the conditions as set out in the *Host State Agreement* (emphasis added) as referred to in article 3, paragraph 2’. In the Annex to the Zutphen Draft the term ‘headquarters agreement’ was used in paragraph 4 (c) (‘basic principles governing a headquarters agreement to be negotiated between the court and the host country’).

<sup>12</sup> This paragraph runs as follows: ‘4. If no State is designated under paragraph 1, the sentence of imprisonment shall be served in a prison facility made available by the host State, in accordance with the conditions set out in the headquarters agreement referred to in article 3, paragraph 2. In such a case, the costs arising out of the enforcement of a sentence of imprisonment shall be borne by the Court’. See hereinafter the comments on article 103.



articulates the capacity and competence – incumbent on an ICC organ – to conclude an agreement between the organisation and a sovereign power, the host State. This is rather unusual. The Statutes of the two *ad hoc* criminal Tribunals, ICTY and ICTR, do not provide for an operative article empowering one of their organs to conclude a Headquarters Agreement with the host State. Those negotiations were conducted by the United Nations through the Secretariat and the Office for Legal Affairs, acting as a kind of trustee for the fresh born judiciaries<sup>13</sup>. The parties deferred signing the contracts until the necessary steps concerning the financial aspects had been taken by the General Assembly. Of course, in the case of the ICC, there is no pre-existing body available to act as a kind of trustee or quartermaster – there do not exist such relations to an already functioning body at the international level. The already mentioned body of the Assembly of States Parties cannot be considered like that: the only task of that entity is to decide on the approvability of the Headquarters Agreement. The President has to be considered as the ICC-organ having apparent authority towards the host State to enter into negotiations to conclude the bilateral instruments needed to host the ICC properly. In line with this the negotiations between the ICC and the host State are conducted by, or in the name of, the President. The basic principles of the Headquarters Agreement are drafted by a new UN Preparatory Commission in accordance with the aforementioned Annex to the Rome Statute<sup>14</sup>. Those basic principles envisage the main conditions to guarantee the permanence, impartiality and independence of the ICC towards the host State, which has to respect the ICC as an autonomous judicial entity wielding jurisdictional power without any consultation whatsoever with the host State. It was, nevertheless, the host State which conducted the negotiations of both the Headquarters and host State Agreements with the ICC. It is the State that is the contractual counterpart towards the ICC. The Assembly of State Parties had to be considered as ‘third party’ in this context. The wordings of the final Seat Agreement articulate this pinpointly. See below sub C.III.1.

### III. Interim removal

As in the case of the ICJ it is possible for the ICC to transfer its proceedings in regard to a particular case to another place within the host State, a place which has additional security guarantees where indications exist of heightened risk or an immediate danger, or outside the host State. The Statute gives no guidance as to the criteria which could justify such a transfer. The Court can decide to such a transfer in any case where it finds it ‘desirable’ to do so. The same subjective criterion is found in article 22 ICJ Statute<sup>15</sup>. Reasons of internal and external security of ICC could be taken into consideration with a view to such a decision, or alternatively together with reasons in the interest of the collection of evidence. The Rome Statute does not define the organ of the ICC that is competent to decide on such a transfer. It is, however, clear that it is for the Presidency to take this decision, acting under article 38 para. 3 (a) in the interest of the ‘proper administration of the Court’. By virtue of the Court’s regulations, more detailed criteria could be drawn up with a view to the Court’s relocation.

<sup>13</sup> See Schutte (1994) 5 CLF 2–3 428 *et seq.*

<sup>14</sup> See the Annex to the Rome Statute as contained in UN Doc. A/CONF.183/C.1/L.49/Rev.1. Resolutions adopted by the UN Diplomatic Conf. of Plenipotentiaries on the Establishment of an ICC. ‘The United Nations Diplomatic Conference of Plenipotentiaries on the Establishment of an International Criminal Court, (...) Having adopted the Statute of the International Criminal Court, Having decided to take all possible measures to ensure the coming into operation of the International Criminal Court without undue delay and to make the necessary arrangements for the commencement of its functions; (...) Decides as follows: 1. There is hereby established the Preparatory Commission for the International Criminal Court. The Secretary-General of the United Nations shall convene the Commission as early as possible at the date to be decided by the General Assembly of the United Nations. (...) The Commission shall prepare proposals for practical arrangements for the establishment and coming into operation of the Court, including the draft text of: (a) (...) (c) Basic principles governing a headquarters agreement to be negotiated between the Court and the host country; (d) etc.’. By GA Res. 53/105 of 8 Dec. 1998 the UN Assembly accepted this resolution.

<sup>15</sup> See note 2.

Although the Statute itself does not contain any special provision to that end, either party (Prosecutor and suspect or accused) must be considered to be competent to file a request with the Presidency to replace the seat of the Court outside the host State according to paragraph 3 of this article 3. The same goes for possible victims, wishing to exercise their *ius standi in iudicio* before ICC, stipulating that their personal safety, physical and psychological well-being or other interests on their behalf as defined under article 68 necessitates such a removal of the seat of the Court. The Rome Statute contains no provision obligating any office-bearer of the Court to establish their place of residence at the seat of the ICC. Such an obligation is contained in the ICJ Statute for the President and Registrar of the ICJ. Paragraph 3 of the ICC Statute refers to other operative sections of the Statute providing for cases, bases or legal grounds to justify a decision to replace the Court's seat ('as provided in this Statute')<sup>16</sup>. As indicated before the Statute itself does not provide for such cases, bases or grounds. The decision is left entirely to the margins of appreciation of the Court. In case of interim removal of the actual proceedings, the ICC shall have to enter into negotiations with the State on the territory of which it wishes to conduct the trial. It has to conclude an additional, subsidiary temporal Headquarters Agreement. Remarkably enough, article 3 does not articulate which organ will be entitled to do so. Presumably it will be the President again by virtue of an analogous interpretation of paragraph 2; nevertheless, the interesting question remains to be as to whether approval of the Assembly of States Parties is required with a view to such an *ad hoc* removal. If so, such could stall the procedures considerably.

#### IV. Host Arrangement

- 7 One should constantly bear in mind that an essential divergence exists between a *Headquarters Agreement* on one hand and the *Host Arrangement* on the other. The first instrument describes the bilateral relationship between the international organisation to be hosted and the host State, encompassing legal definitions to be used in this relationship (*e.g.*, what is meant by 'the host country', what is meant by 'the Court or ICC', 'the Registry', 'victims' etc.<sup>17</sup>),

<sup>16</sup> See also article 4 para. 2. That Paragraph does not provide for explicit criteria either.

<sup>17</sup> See, *e.g.*, article 1 of the Agreement between the Government of the Kingdom of the Netherlands and the Government of the United Kingdom of Great Britain and Northern Ireland concerning a Scottish trial in the Netherlands, (Netherlands Treaty Series 1998, No. 237): 'For the purposes of the present Agreement, the following definitions shall apply: a) the "host country" means the Kingdom of the Netherlands; b) "the Government" means the Government of the Kingdom of the Netherlands; c) "the competent authorities" means national, provincial, municipal and other competent authorities under the law of the host country; d) "Vienna Convention" means the Vienna Convention on Diplomatic Relations done at Vienna on 18 April 1961; e) "Procurator Fiscal" means the Procurator Fiscal for Dumfries and any person holding a commission from the Lord Advocate to act as Procurator Fiscal or Procurator Fiscal Depute for the purposes of the trial; f) "Sheriff" means a Sheriff of South Strathclyde, Dumfries and Galloway in Scotland and any officials of that Sheriffdom; g) "the accused" means Abdelbaset Ali Mohamed Al Megrahi and Al Amin Khalifa Fhimah, charged with the offences of conspiracy to murder, murder and contravention of the Aviation Security Act 1982 of the United Kingdom of Great Britain and Northern Ireland ("the offences") specified in the Procurator Fiscal's Petition upon which warrant for arrest was issued by the Sheriff of South Strathclyde, Dumfries and Galloway in Scotland on 3 November 1991; h) "Lord Advocate" means the Lord Advocate of Scotland and any officials, Advocate Deputes, Scottish police officers or other persons acting under his directions, or any person directly assisting him; i) "the trial" means the public trial of the accused in respect of the offences and any preliminary proceedings, investigative steps, preparations for the trial, preliminary hearings and appeals following service of the indictment, any determination of law or fact and the imposition of penal sanctions, and any appeal by the accused following conviction, all in accordance with Scots law and practice; j) "solicitors and advocates" means persons, being legally qualified in Scotland, instructed on behalf of the Lord Advocate or on behalf of the accused; k) "witnesses" means persons, including experts, cited to give evidence in the trial of the accused; l) "the Scottish Court" means the High Court of Justiciary (including that Court sitting in appellate capacity) and the Sheriff Court, sitting in the Netherlands in accordance with the provisions of this Agreement; m) "Registrar" means the person designated as such by the Director of Scottish Courts Administration to act on his behalf) "international observers" means persons nominated, by the Secretary-General of the United Nations, to attend the public hearings, pursuant to arrangements between the Secretary-General and the Government of the United Kingdom; o) "the premises of the Scottish Court" means the complex of building and land, including installations and

jurisdictional demarcations, the inviolability to be enjoyed by the organisation, its judicial authority within the territorial jurisdiction of the host State, immunities, privileges, financial sources and obligations *etc.* A wide variety of supplemental and additional agreements drawn up in conformity with the guidelines contained in the Headquarters Agreement, partly in form of a special (private) contract (*e.g.*, the leasing of detention units<sup>18</sup>, loan contracts<sup>19</sup>, the conclusion of employment contracts with personnel or insurances against accidents) and partly concluded by exchange of letters of understanding, concluded or drawn up in conformity with the guidelines worded in the Headquarters Agreement, usually complete this bilateral instrument. This is illustrated by the current ICTY practice<sup>20</sup>.

Apart from the Headquarters Agreement, the law concerning the seat of an organisation 8 such as the ICC is to be found in a wide variety of sources at the level of international, supranational regulations and at the domestic level of the host State. Apart from the Headquarters Agreement one could distinguish four layers<sup>21</sup>:

- the constituent instrument of the organisation in question (in our case: the Statute);
- multilateral conventions formulating standards on privileges and immunities (think of the 1961 Vienna Convention on Diplomatic Relations and the General Convention on the Privileges and Immunities of the UN);
- rules of customary international law and decisions of international tribunals;
- national legislation and decisions of national tribunals, specially those of the host State.

An additional, 6<sup>th</sup> source of law can be mentioned at this point. Namely, the outcome of the settlement of disputes. Dispute settlement, in various forms, occurs between various actors. The settlement of disputes between an international entity and a Host State is no exception. As such, a settlement can also have effects either on the international entity or the Host State. Therefore, it has been added as an extra source of law that cannot strictly be seen as falling under either the decisions of international tribunals, or their national counterparts.

It goes without saying that the Headquarters Agreement should be in line with these sources and should be interpreted on the basic assumption that it *is* in line with those sources, unless the high contracting parties (ICC and host State) have explicitly expressed their will to derogate from one of those sources, which will in particular be the case with regard to the national legislation and decisions of national tribunals.

## B. Analysis and interpretation of elements

### I. The seat/extensions of the seat

First and foremost an ICC Host Arrangement should provide for a factual description of 9 the seat of the international organisation. Article 3 para. 1 only stipulates that the ICC seat shall be established in The Hague. Additionally, the Headquarters Agreement has to work

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facilities, made available by the host country and maintained, occupied and used for the purpose of the trial, including detention of the accused; p) “the Parties” means the Government of the Kingdom of the Netherlands and the Government of the United Kingdom of Great Britain and Northern Ireland’.

<sup>18</sup> See, *e.g.*, the Lease Agreement between the State of the Netherlands and the United Nations as of 7 Jan. 1999 with a view to the lease of an additional floor of twelve cells within the Prison Complex Scheveningen pursuant to the foregoing lease contract of 14 July 1994.

<sup>19</sup> See, *e.g.*, the Letter of Agreement between the International Criminal Tribunal for the former Yugoslavia and the Ministry of Justice of the Kingdom of the Netherlands, signed on 20 Oct. 1997, regarding the loan of prison staff to the International Tribunal, entered into force as of 1 Nov. 1996.

<sup>20</sup> See, *e.g.*, the exchange of letters of understanding between officials of the International Criminal Tribunal for the Former Yugoslavia and the Government of the Netherlands, concerning arrangements between the International Tribunal and the Government of the Netherlands for the assigned residence of General Blaskic, as ordered by the President of the International Tribunal in his decision of 3 and 17 Apr. 1996, Netherlands Treaty Series 1996, No. 152.

<sup>21</sup> Here I follow in detail Muller, *International Organisations and Their Host States, Aspect of Their Legal Relationship* (1995) 40 *et seq.*

this out as a bilateral affair by virtue of a geographical delineation of the premises, buildings or parts of buildings set at the disposal of the organisation. The ‘ICC headquarters district’ should be defined with as much pinpoint precision as possible. The underlying rationale of this prerequisite is four pronged.

- 10 (a) First, a pure jurisdictional reason: police officers and civil servants of the host State should know as precisely as possible which areas and buildings are occupied and used by ICC if they are to implement the typical host State obligation to secure the *external security* of those areas and buildings. The premises and buildings defined as ICC-areas shall be under the exclusive control and authority of the ICC organs, specifically the President and the Registrar. Only upon request of those authorities shall the host State provide such police resources or judicial assistance as may be necessary for the preservation of law and order in the ICC district itself. In order to prevent positive and negative jurisdictional conflicts between ICC and the host State a geographical description of the ICC area seems to be indispensable. Within this area or district the ICC organisation and the host State can set up a special legal regime, deviating, as the case may be, from the normal regulations and statutory provisions applicable in the territorial jurisdiction of the host country.
- 11 (b) A factual description of that area is needed with a view to the task incumbent on the host State to provide the ICC-organisation, as established on the described premises with public services such as, postal, telephone, fax and telegraphic services, electricity, water, gas, sewage, collection of waste, fire protection, local transportation and cleaning services. Within the ICC area the Registrar keeps to be the competent authority under whose supervision the host State authorities have to perform those tasks and duties. In agreement or after due consultation with the host State the Registrar has to draw up suitable arrangements to enable the representatives of the public services to inspect, maintain, reconstruct and relocate the utilities, conduits, mains and sewers on the ICC premises.
- 12 (c) A factual description makes clear the scope and extent of the inviolability of the ICC premises as well as the privileges, exemptions and immunities and the mutual rights and obligations thereof.
- 13 (d) ICC shall be entitled to display its emblem and markings, as well the appropriate flag on the premises thus defined.
- 14 The converse of a factual description of the seat is a *functional* one<sup>22</sup>. The premises of the international organisation should be defined in tight connection with the functions to be exercised by the organisation, following the example set by article 1 (i) of the Vienna Convention on Diplomatic Relations. It has been argued that the latter has the preference in order to prevent the international organisation to be hosted of permitting other organisations or entities to carry out activities falling outside the objectives and purposes of the Headquarters Agreement itself. The ICTY, for example, could, given a mere factual delineation of its premises in the AEGON building (a complex owned by a private insurance company), allow a commercial bank to operate on its premises, having the full enjoyment of the immunities and privileges laid down in the Headquarters Agreement. Nevertheless, for reasons of legal security and in order to maintain the independence of the ICC the factual description seems to be more recommendable: as a matter of principle it should not be with the host State to assess as to whether on the ICC premises certain activities are oriented towards the realisation of the functions entrusted to this judiciary. A functional definition of the ICC premises could give legal ground to the supposition that a certain competence is

<sup>22</sup> In the ‘Lockerbie Host State Agreement’ the definition of the Court’s premises is an entirely functional one. See the above mentioned article 1 (o) of that Agreement. Article 1 (b) of the ICTY Headquarters Agreement provides for a mixed definition, defining ‘the Tribunal District’ in connection with its functions and purpose (Agreement concerning the Headquarters of the International Tribunal for the Prosecution of Persons Responsible for Serious Violations of International Humanitarian Law Committed in the Territory of the Former Yugoslavia since 1991, 29 July 1994, Netherlands/United Nations, Netherlands Treaty Series 1994, No. 189. In Res. (69) 29 the Committee of Ministers of the Council of Europe recommended on 26 Sep. 1969 a mixed definition of the premises of an international organisation.

vested in the host State to adjudicate whether an activity is a functional one or not. That could jeopardize the Court's functioning as an independent entity especially in cases where the disputed activity does not serve *directly* the implementation of ICC-jurisdiction under article 5<sup>23</sup>.

The most conducive approach of a factual definition of premises at the disposal of an international organisation seems to be the description of the 'UN headquarters district' laid down in the UN-USA agreement. The legal definition is given in Section 1 (a) under (1) and (2) referring the exact geographical delineation to an Annex to the agreement or any subsequent sub-agreement that might later be concluded<sup>24</sup>. In such an annex the premises could be defined via a map or via cadastral information. This combines the principle of legal certainty with pragmatic flexibility in case the premises have to be extended beyond the original ones, defined at the moment of the coming into operation of the entity. It is foreseeable – given the potential sweeping scope of the crimes listed under article 5 – that in certain cases of mass trials the ICC will need a considerable extension of its areas, not only with a view to the (criminal) procedures itself but also with a view to sufficient pre-trial detention units and additional penitentiary buildings which could be situated outside the direct vicinity of the original ICC premises. Cases submitted to the ICC could reach tens of thousands. Accordingly, the possibility for substantial expansion of the Registrar's Office and of the Prosecutor's Office should be foreseen. Likewise, the provision laid down in articles 75 and 109 entitling the Trial Chambers to order return of property or proceeds to victims upon their request or on own motion could – given the scope of the crimes under article 5 and the number of victims thereof – dramatically increase number, scope and duration of trials. A possible expansion of requirements for additional chambers should be anticipated in the definition of the 'ICC district'.

The provision laid down in Part 10 that the ICC should supervise execution and enforcement of sentences and handle pardons or commutation of sentences will have space implications as well. The facilities for keeping accused persons, and, as the case may be, witnesses and experts in custody<sup>25</sup> prior to and during trial are legally part of the ICC and will be entirely under its authority. The status of the detention barracks together with adjacent buildings shall be identical to the status of the buildings in which the offices and

<sup>23</sup> For example, in case the Victims and Witness Unit is providing for a protective program and security arrangements, in order to protect the identity of victims and witnesses and *others* under article 43 para. 6 of the Rome Statute; see 1996 Preparatory Committee I.

<sup>24</sup> See the exchange of Notes of 9 Mar. and 25 May 1966 and the Supplemental Agreement of 26 June 1966 (1966 UNTS 308) together with a second supplemental agreement of 28 Aug. 1969, extending the UN headquarters district. By third supplemental agreement on 10 Dec. 1980 the UN headquarters area was again enlarged (1207 U.N.T.S. 304).

<sup>25</sup> Think of the case that a witness has been suspected of the commission of an offence against the administration of justice under article 70 of the Rome Statute. In such a case the Court is competent to order pre-trial detention to secure the appearance of the suspect at trial. All the proposals filed with the UN Preparatory Commission thus far with a view to the elaboration of the Rules mentioned in paragraph 2 of article 70 of the Rome Statute depart from the assumption that it is with the ICC to impose compulsory measures, including committal to prison or other forms of deprivation of liberty, on a witness, reluctant to answer questions put forward in court. See Rule 91 of the Draft Rules of the ICC, PCNICC/1999/DP.1 as of 26 Feb. 1999. In certain cases this could enhance the need to extend the ICC detention premises excessively. In the Host State Agreement envisaging the implementation of the Lockerbie jurisdiction special provisions have been drawn up with a view to the exercise of the Court's jurisdiction over those 'collateral offences' like contempt of court or causing disturbance in the Courtroom. See article 3 para. 3 of that Agreement, running as follows: 'The Government permits the detention of the accused for the purposes of the trial, and, in the event of conviction, pending their transfer to the United Kingdom, within the premises of the Scottish Court in accordance with Scots law and practice. The enforcement of all other sanctions involving the deprivation of persons within those premises is not permitted, except in so far as the Scottish Court orders: (a) the temporary detention of witnesses in the course of their evidence; (b) the temporary detention of witnesses in the course of their evidence; (c) the temporary detention of persons who may have committed offences within the premises of the Scottish Court, including *contempt of court* (emphasis added); (d) the imprisonment of persons found guilty *summarily of contempt of court* (emphasis added)'.

court rooms of the Tribunal are located<sup>26</sup>. The ICC shall be responsible for the regime, control, treatment of those detained persons and defining their rights and privileges, just like the ICTY which concluded to that end additional arrangements with the host State. Guards shall be ICC officials.

- 17 The host country shall carry responsibility for external security of those extended premises and shall provide certain basic services as well as assistance for particular purposes to be defined either in the Headquarters Agreement either in additional instruments thereof. Furthermore, with a view to exceptional cases, the Headquarters Agreement should allow either party to extend the definition of the 'ICC-district' to private dwellings and institutions. Think of an accused suffering from a serious disease, only to be cured in a special hospital. In such a case it must not be excluded – due to the rigidity of the definition of the ICC premises contained in the Headquarters Agreement – to consider (for legal purposes) a certain section of the hospital as an extension of the ICC premises. It depends entirely on the concrete merits of the case as to whether it is advisable to do so, but in this respect ICTY experience has demonstrated the necessity of a flexible definition. The same goes for the case the ICC wants to guarantee an accused a certain privileged pre-trial treatment by permitting him to reside in a safe house in the vicinity of the ICC premises. In such a case the Headquarters Agreement should not preclude the ICC and the host State to consider – on the basis of an exchange of letters of understanding – such a safe house as an extension of the ICC premises in order to make clear which party carries the responsibility for the internal and external security and to avoid jurisdictional conflicts.
- 18 Finally, it seems appropriate in this context to stress that the domestic laws and regulations of the host State do apply within the ICC premises unless the parties have contracted otherwise. It is with the host State to agree to limit the application of its national laws. This strand of thought has been codified in the Headquarters Agreement by virtue of article 8, entitled 'Law and authority on the premises of the Court'. In principle there should be no legal fiction of extritoriality applicable to the ICC premises for the same reasons as this fiction has long been rejected with regard to the premises of an embassy or a consulate<sup>27</sup>. The domestic law of the host State does apply, but it cannot be *enforced* by that State without the ICC waiving its relevant immunity in that case.

## II. Main elements of the Headquarters Agreement

- 19 The Annex to the Rome Statute<sup>28</sup> outlines that the Preparatory Commission shall design a framework of 'basic principles' governing a Headquarters Agreement. The following main elements of such an Agreement could be distinguished.
- 20 (a) The Agreement should define the legal personality and capacity of the ICC, both international and national. The international component of the definition should be completely in line with article 4 para. 1. Mainly such overall definition is omitted in Host

<sup>26</sup> The ICTY-Headquarters Agreement provides in article I (b) that the prison facilities for carrying out detention on the authority of the Tribunal are part of 'the premises of the Tribunal' and thus subject to the same regime and protective measures as the courthouse itself. See Schutte (1994) 5 CLF 2–3 423.

<sup>27</sup> See already: Beling, *Die strafrechtliche Bedeutung der Extritorialität. Beiträge zum Völkerrecht und zum Strafrecht* (1896); Cf. Sutton, in: Bassiouni/Nanda, *A Treatise on International Criminal Law* (1973) 97 *et seq.*; Muller, *International Organisations* 129 *et seq.*; See also Verdross and Simma, *Universelles Völkerrecht, Theorie und Praxis* (1984) 570 *et seq.*; See the Agreement on the Privileges and Immunities of the International Tribunal for the Law of the Sea, New York, 23 May 1997, article 19: '1. Privileges, immunities, facilities and prerogatives as provided for in articles 13 to 17 of this Agreement are granted not for the personal benefit of the individuals themselves but in order to safeguard the independent exercise of their functions in connection with the Tribunal. 2. Without prejudice to their privileges and immunities, it is the duty of all persons referred to in articles 13 to 17 to respect the laws and regulation of the State Party in whose territory they may be on the business of the Tribunal or through whose territory they may pass on such business. They also have the duty not to interfere in the internal affairs of that State'.

<sup>28</sup> See note 12.



Arrangements, which could give rise to vagueness and subsequent complications at the jurisdictional level between the organisation and the host State, sometimes casting clouds upon that relationship. Most remarkably the ICJ does not dispose of a sufficient, specially drawn up definition of its legal personality. It has to rely on article 104 of the UN Charter and additional sources, amongst which Dutch case law appears. One could hardly challenge that such a definition constitutes a main element of the legal framework governing the relationship between the international organisation and the host State. It is primarily by virtue of that definition that the organisation has to be considered as an entity having the capacity to enter into negotiations with the host State and to conclude the Host Arrangement, a capacity which has to be acknowledged explicitly by the latter as the basis of the capacity to participate in juridical matters at the *national* level. The national elaboration of the definition should spell out the legal capacities resulting from this. The definition should make clear that the juridical personality includes the capacity to contract and to enter into exchange of letters of understanding with the host State concerning practical subjects listed in the Headquarters Agreement itself, like the status of additional premises, the provision of services and facilities to the ICC detention unit, liability and indemnification in case of civil tort<sup>29</sup>, the execution of transit movements and the responsibilities thereof, enforcement of sentences under article 103 and the like. Furthermore the capacity to acquire and dispose of movable and immovable property should be mentioned and to institute legal proceedings on the same footing as a legal person under domestic legislation of the host State. It should be the Registrar who represents the ICC as legal person towards the host State. Of course, this definition of the personality and capacity of the ICC does only envisage the *external* relations of the ICC towards States (the host State included) and other legal entities and individuals. This definition has nothing to do with the internal competence of the ICC to formulate regulations regarding all day administrative matters, routine functioning, detention rules and disciplinary regulations concerning defence council or persons affiliated with units set up under the guidance of the Registrar *etc.*<sup>30</sup>. The Host Agreement does not and cannot envisage this pure internal capacity of the ICC. Furthermore, either party is bound in the mutual relationship, with a view to either capacity, to respect the well established distinction between *acta iure imperii* and *acta iure gestionis*. The ICC may institute legal proceedings against the host country, but its claim will be declared inadmissible in case the host country is found to

<sup>29</sup> Current practice shows that the unique arrangements at the ICTY concerning the supply of personnel by the host State require appropriate provisions on liability depending on the type of the personnel to be set at the disposal of the International Tribunal. That is one of the reasons why a general mandating clause, empowering the Registrar to enter into negotiations to solve such liability issues with the host State authorities is indispensable. See further hereinafter.

<sup>30</sup> The following additional legal instruments concerning *internal* issues of the ICTY are of the utmost importance for all day practice: Doc. IT/125, containing the Code of Professional Conduct for Defence Counsel Appearing before the International Tribunal, 12 June 1997 by the Registrar according to Rules 44 and 46 of the ICTY Rules; Doc. IT/73/Rev.6 containing the Directive on Assignment of Defence Counsel (Directive No. 1/94, as amended 30 Jan. 1995, 1 Aug. 1997, revised 17 Nov. 1997, amended 10 July 1998) issued by the Registrar; Document IT/38/Rev.7, containing the Rules Governing the Detention of Persons awaiting Trial or Appeal before the Tribunal or otherwise detained on the Authority of the Tribunal, adopted on 5 May 1994, amended on 16 Mar. 1995, amended on 3 Dec. 1996, amended on 25 July 1997, amended on 17 Nov. 1997 ('Rules of Detention'). The ICC will be confronted with the same need of such additional instruments. The Statutes of the ICTY and the ICTR do not empower the Registrar with the competence to provide for the promulgation of additional regulation concerning the servicing of the Defence process, the appointment of counsel and rules of Defence ethics. See the *Proposal for the establishment of an independent Office of the defence* (ICDAA) of 21 June 1998, distributed during the Rome diplomatic summit. Nevertheless, the 'solution' chosen by documents IT/125 and IT/73/Rev.6 by allocating such an implied power to the Registrar seems to offer a workable framework. In this context it should be noted that the Rome Statute itself does not address the issue of a 'Defence Unit'. Whereas the Statute defines a Victims and Witnesses Unit, linking it to the Registry (see article 43 para. 6), it does not envisage, not even by implication, such a Defence Unit. Nevertheless, the concept of fair trial and equality of arms presupposes the establishment, within the ICC ambit, of such an institution, preserving the rights and independence of such a Defence Unit, to be recognised as an ICC-linked entity by the host country. One of the tasks of such a Unit should be to drawn up criteria of defence attorney's qualifications and a code of ethics together with a disciplinary sanction system for this category.



be acting in its unique sovereign capacity. This, of course, applies also the other way around in case the ICC was acting in its unique and irreducible *function* as international judicial entity. It goes without saying that it is nearly impossible to draw in abstract absolute and impenetrable dividing lines between ‘functional acts’ of the ICC on the one hand and *acta iure gestionis*. The lease of detention units is, as such, a normal civil act as far as the ICC serves as an average lessee, an ordinary commercial actor, towards the other party, mainly the host State. But in a majority of cases, given the penitentiary goals of the buildings to be leased as defined in the contract, one can hardly maintain that the contract has an ordinary civil law object. It depends on the appreciation of the judiciary of the host State which element or aspect predominate the contractual relationship.

- 21 (b) The Agreement should define the jurisdictional immunity of the ICC which should be based on the concept of functional necessity: the exemption from the territorial jurisdiction of the host State is only granted to have the ICC functioning effectively given the object and purposes of its constituent body, the Statute<sup>31</sup>. The same should go for the privileges and immunities to be granted to officials of the ICC: these rights are only accorded in the interest of the judiciary and not for the personal benefit of the persons themselves. The funds, assets and other property owned by the ICC should enjoy immunity from every form of legal process in the host country. Functional necessity, being the justification of this immunity, implies that the ICC may be obliged to waive the immunity in certain cases on request of the host State or that the entity provides for adequate alternative means of redress in cases where a waiver is not possible. The *anticipatory* waiver of immunity may be part of an additional regulation or a contract with the host State or a third party. The Headquarters Agreement should mention the possibility of such an anticipatory waiver by contract, offering criteria which could justify this *ad categoriam* de-immunisation<sup>32</sup>. In principle, the ICC jurisdictional immunity should not apply to cases of liability for injury to third parties, covered by insurance<sup>33</sup> or cases which could have been covered by insurance. This should clearly be spelled out in the Headquarters Agreement, in accordance with standardised language stemming from generally accepted multilateral conventions on privileges and immunities. It may be clear that an absolute concept of ICC immunity in the long run would undermine its aptitude to function properly, whereas that concept would deter private parties and the host State to provide the ICC additional services, not being covered by explicit obligations in the Headquarters Agreement. National Courts of the host State should have jurisdiction over normal contractual obligations in which the ICC is involved.
- 22 (c) The Headquarters Agreement should provide for guarantees envisaging inviolability of the ICC premises, property, assets and archives more or less on the same footing as Host Agreements do with regard to diplomatic and consular premises, assets and archives. The guarantee is only valid for the premises etc. *used exclusively* for the exercise of the official functions of the ICC<sup>34</sup>. The thus guaranteed inviolability encompasses two obligations for the host State: a passive duty not to interfere or to enter and an active duty to provide for

<sup>31</sup> Article 8 of the ‘Lockerbie’ Headquarters Agreement grants this immunity in abstract without any functional test in the article itself: ‘The Scottish Court, its funds, assets and other property, wherever located and by whomsoever held, shall enjoy immunity from every form of legal process, except insofar as in any particular case the Scottish Court has expressly waived its immunity. It is understood, however, that no waiver of immunity shall extend to any measure of execution’.

<sup>32</sup> Article IX para. 3 of the articles of Agreement of the International Monetary Fund articulate such a possibility of an anticipatory waiver by terms of a civil law contract. See Muller, *International Organisations* 163.

<sup>33</sup> Muller, *International Organisations* (1995) 161, stipulates rightly: ‘Insurance contracts usually require the insured party to cooperate with the insurance company in case of legal proceedings. In case of damages involving an organisation which could lay claim to immunity, the insurer would invoke this provision *vis-à-vis* the insured, and demand that an immunity claim be made, thus depriving the damaged party from all means of redress’.

<sup>34</sup> See again Res. (69) 26 adopted by the Committee of Ministers of the Council of Europe on 26 Sep. 1969 and Explanatory Report, p. 27.

adequate security arrangements<sup>35</sup> and to guarantee the uninterrupted supply of amenities such as water, gas, sewage. With a view to those services, the rates thereof should not exceed the lowest comparable rates accorded to essential agencies and organs of the Government of the host State. The same applies to the extent that the Host State would accord more favourable privileges, immunities and treatment to any other international organisation or tribunal situated in the Netherlands. If this were the case, the ICC would be entitled to enjoy the same or a similar level of these more favourable privileges, immunities and treatment. In case of force *majeure* resulting in a complete or partial disruption of those services, the ICC should, for the performance of its duties, be accorded the priority given to essential agencies and organs of the Government of the host State. The passive duty of the host State to refrain from any action within the premises of the ICC could be lifted by express consent of the chief executive officers on the ICC premises or his duly appointed representative. Consent to enter the premises may be assumed in cases of objective necessity requiring direct protective action and only in the event that it has not been possible to obtain the express consent of the competent ICC-organ. The Headquarters Agreement could provide for a non-exhaustive list of cases in which the host State authorities can be deemed to assume with bona fide that such a case of emergency occurs.

The guaranteed inviolability encompasses the official *vehicles* to be used by the ICC<sup>36</sup>. This 23 may be obvious, otherwise the ICC organisation would turn out to be the hostage of the host State, imprisoned within the walls of its special inviolability. Aircrafts, boats and automobiles have to be considered as 'property' or 'assets' in the article of the Headquarters Agreement defining the nature and scope of the inviolability. Without exaggeration, a key management issue for the adequate functioning of the ICC will be the availability of vehicles within its jurisdictional scope and its Registry should have a system to ensure authorised procedures governing inviolability and jurisdictional matters, together with procurement, maintenance and utilisation etc.<sup>37</sup>. If the ICC is going to use extended penitentiary areas outside the originally defined ICC district – and it is in the likelihood that the organisation will be confronted with the necessity to do so, for reasons of security or of logistics, given the massive scope of a certain procedure (see above under 1) – such will involve a constant stream of transit movements *vice versa* the extended areas and the Court's offices, just as now is the case when ICTY indictees have to be transported back and forth on an all day basis from the Penitentiary Centre Scheveningen (situated in the outskirts of the Hague) to the ICTY offices in the AEGON building in the centre of the city. This can easily give rise to very complicated jurisdictional conflicts. Just imagine, an armoured car carrying, under ICC auspices<sup>38</sup>, an accused from the prison to the Court's room gets a flat tier. The commanding

<sup>35</sup> With regard to the ICTY detention units this was done in an additional Agreement on matters relating to Security and Order of the Leased Premises within the Penitentiary Complex Scheveningen, 14 July 1994, ICTY. See the basic principles laid down in article VII of the Headquarters Agreement UN/Netherlands: '1. The competent authorities shall exercise due diligence to ensure the security and protection of the tribunal and to secure that the tranquility of the Tribunal is not disturbed by the intrusion of persons or groups of persons from outside the premises of the Tribunal or by disturbances in their immediate vicinity and shall provide to the premises of the Tribunal the appropriate protection as may be required. 2. If so requested by the President or the registrar of the Tribunal, the competent authorities shall provide adequate police force necessary for the preservation of law and order on the premises of the Tribunal or in the immediate vicinity thereof, and for the removal of persons there from'.

<sup>36</sup> Muller, *International Organisations* (1995) 188 *et seq.*

<sup>37</sup> See UN Doc. A/51/789 (6 Feb. 1997), Rep. of the Office of Internal Oversight Services on the Audit and Investigation of the ICTR, Chapter III, para. 3 (a).

<sup>38</sup> The present enabling act of the Netherlands with a view to the implementation to the ICTY-jurisdiction simply stipulates in articles 7 and 15 that transit of suspects and indictees will be carried out under the exclusive responsibility of the Dutch Minister of Justice by Dutch civil servants and under their guidance and surveillance. The Dutch authorities will act upon request of the ICTY Registrar; the Dutch personnel is competent to take all the necessary measures to secure internal and external security during transport and to take all conservatory and compulsory steps to prevent the transported person to escape. After the completion of the transport, the accused or indictee being arrived on the ICTY premises, the Registrar will resume the exercise of the premises bound authority over the transported person. In the case of the 'Lockerbie jurisdiction' the jurisdictional arrangements

ICC officer in charge decides to blindfold and to handcuff the accused and orders him to get off in order to await a second car for which he immediately has asked and which is reportedly on its way. Just at the moment the accused puts his feet on the pavement, the police authorities, being responsible for the external security of the transport, intervene by instructing the ICC officer and his prisoner to get back into the car, because of confidential information, just gathered by the national intelligence service, revealing that the accused has to be considered as target of an imminent terrorist attack. They order the ICC officer to remove the handcuffs. Furthermore, they want to search the inside of the car without delay (not wanting the ICC officer to ask for permission of the Registrar acting as executive authority in this case). Is the ICC officer entitled to refuse to comply with those orders on the ground of inviolability of the ICC car? An example of a similar situation was put forward by Trial Chamber II in the case of the Prosecutor versus Germain Katanga and Mathieu Ngudjolo Chui. During a Status Conference, the Presiding Judge needed clarification on the exact delimitation of jurisdiction between the ICC and the Host State. For a further analysis of this specific situation, please see Section X. mn ... The same problem could occur with a view to so called safe houses, set at the disposal of the ICC<sup>39</sup>. It is not the intention to answer those questions in this context. Merely it should be flagged that the Host Arrangement should provide for basic principles, governing these foreseeable overlaps of competences between the ICC and the host State.

- 24 (d) Freedom of communications (including printed matter, photographic and electronic data communications) has to be considered as a specific corollarium of the inviolability to be granted to the ICC. The functional interpretation of this privilege implies that the host State is not allowed to interfere with official communications, falling within the scope of the mandate of the ICC. The competence to decide as to whether a communication is an official one should be primarily with the ICC – which could, of course, give rise to tensions between this judiciary and the host State. It would be highly recommendable to establish a consultative body in which both parties participate whereas it is foreseeable that the ICC is going to use video link, radio and satellite communication facilities on a very large scale, in which

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concerning transit, entry, exit and movement within the host country are far more complicated, whereas some movements have to be carried out under the full responsibility and authority of the UN, using official UN vehicles.

<sup>39</sup> See the decision taken by the ICTY President on 3 Apr. 1996 on the motion of the defence filed pursuant to rule 64 of the Rules, case No. IT-95-14-T in which the President decided that General Blaskic should be detained in a place other than the UN Detention Unit at PSC, ruling that Blaskic should be authorised to leave the designated residence to meet his Counsel, the diplomatic and consular representatives of the republic of Croatia accredited in the Netherlands, his family and his friends. In the event of such visit Blaskic should be transported to the UN Detention Unit by the personnel responsible for his custody. This lead to the safe-house construction pursuant to the above mentioned Exchange of Letters between the Tribunal and the Government of the Netherlands of 12 June 1996 (Netherlands Treaty Series 1996, No. 152) as to the inviolability of this extension of the ICTY premises, the safe-house construction gave rise to several jurisdictional uncertainties between the ICTY and the host State due to the fact, that a 'safe house' as such was not defined in the Host Agreement, not functionally nor geographically. Given the language of the 3 April decision, the host State authorities had to consider entitled Blaskic as an ICTY detainee: the President ruled explicitly out that Blaskic was not in 'detention' but submitted to 'rather a precautionary measure (...) destined to ensure that an indictee shall not abscond before the initiation of trial, thereby evading justice'. See ICTY Press Release CC/PIO/056-E of 3 Apr. 1996 3 23. On the other hand, Blaskic was granted several privileges not quite compatible with a legal status of detainee, specially later on, when the ICTY president by order of 9 Jan. 1997 (IT-95-14-T) pursuant to Rule 64 of the ICTY Rules ruled that Blaskic should have 'access to fresh air' and two hours of physical exercise at request on a daily basis, which would have implied the opportunity of strolling in the adjacent garden of the 'safe-house' (an other possibility was not available, given the location of the 'detention unit'). That placed the host State, responsible for the external security, for a rather complicated task given the vagueness of the colliding competences of either party. At a certain moment, the personnel's guarding the detainee at the safe-house was also entrusted with escorting and transferring the detainee to other locations. The personnel seemed to be thus able to change their legal status from UN guards to Dutch officers and *vice versa* whenever crossing the threshold of the safe-house. To complicate things more, the safe-house happened to be a private property, the landlord not knowing the identity of the enigmatic person to be lodged.

case the host State has to take into consideration its treaty position on cross bordering telecommunication, specially with a view to treaty partners not being ICC-parties.

(e) Whereas the ICC has to be able to act as a financially independent body within the host State, the host State shall have to accord the ICC personnel, irrespective of their nationality, certain fiscal, customs and financial immunities. Traditionally this will encompass exemption from motor vehicle tax in respect of vehicles used for official ICC activities, exemption from all import duties and taxes in respect of goods, including publications and motor vehicles, whose import or export by the ICC is necessary for the exercise of its official activities. Furthermore, the exemptions shall include those from value-added tax paid and services of substantial value, provided only that they are necessary for the official ICC-activities. The Host Agreement will only provide for the main principles governing this kind of exemptions. The details will be spelled out in additional memoranda of understanding or an exchange of letters of understanding.

(f) The Host Arrangement has to provide for special regulations with a view to the legal status of counsel, experts, witnesses and international observers. The host State shall be under the obligation to permit the entry of those persons for the purpose of attending or respectively participating in the trial. Witnesses and experts have to be safeguarded against prosecution, detention or restriction of their liberty by the authorities of the host country in respect of acts or convictions prior to their entry into the territory of the host State. Neither shall they be subjected by the host State to any measure which may affect the free and independent exercise of their functions for the ICC.

### III. A mandating clause/settlement of disputes

Flexibility is the overarching word within the context of a Host Arrangement. A Headquarters Agreement can only offer the main guidelines of a framework governing the bilateral relationship between the ICC and the host State. ICTY experience shows that lots of detailed matters show up during the procedures for an international judiciary in a variety which one can hardly pretend to foresee when drawing up the Headquarters- and host State Agreement. Just think of the Dukic-case, when an ICTY-indictee had to be transported, due to a situation of medical necessity, to the private BRONONVO-hospital in the neighbourhood of the Penitentiary Centre Scheveningen to undergo medical treatment in which case the host State and the ICTY Registrar had to figure out the exact jurisdictional relationship between either party with a view to the possibility that the patient would not accept to be under the surveillance of UN personnel operating outside the ICTY premises. According to the Headquarters Agreement, an accused person is under the jurisdiction of the ICTY for as long as he is imprisoned in the Scheveningen detention centre. If he is brought outside those premises to a place not being designated as an official extension of the ICTY premises (see above) he will be directly under the territorial jurisdiction of the Netherlands. If such a person does not have a permit to stay in the Netherlands or not has applied for asylum, the Dutch Government is obliged, on the basis of the Dutch Aliens Act and pursuant obligations under the Schengen Agreement to consider the person as an illegal foreigner who has to be expelled as quickly as possible back to the territory from which he came, which will certainly not accelerate the Court's proceedings. The pre-trial provisions in the ICC-detention units will turn out to be a subject of additional arrangements with a view to medical services, meals, cleaning and maintenance depending on the category of detainees brought on the ICC premises. What will be the legal position of the ICC if the Medical Officer, set at the disposal of the ICC by the host State, orders the detainee to be transported outside the ICC premises, not only with regard to jurisdiction but also with a view to costs and responsibilities<sup>40</sup>? Who

<sup>40</sup> Although it is not specified in the ICTY-documents, it has been the practice for the ICTY to be responsible for the costs of all specialist treatment and hospitalisation outside the ICTY Prison Complex when a Unit Detainee is referred for such a treatment by the ICTY Medical Officer.

is responsible for adequate medical care during weekends in case the official ICC Medical Officer is not available, when an indictee tried to commit suicide. In such a case additional procedures have to be set up identifying and making available such services in a timely manner. If in such a case the detainee is brought outside the ICC premises, which party may that dispose as an owner over medical reports, records, notes, X-rays, tests and diagnostic data and other materials relating to the medical care and treatment prepared by personnel or facilities provided or made available by the host State authorities? What about national regulations in this respect concerning the fundamental right of privacy?

- 28 Another inflammatory issue can be liability and indemnification questions in case of tort. The host State Agreement could provide for the main principles in this respect, which could be that the ICC will indemnify the Government of the host State with respect to any claim which arises from acts or omissions taken pursuant to the authority of the ICC and that, reciprocally, that Government will indemnify the ICC with respect to all claims arising out of acts taken pursuant to the authority of the Government. Nevertheless, this overall provision will not do for every case, given the turbulent circumstances in which an event may occur and taking into consideration the unique arrangements which have to be concluded with the ICC concerning the supply of highly trained personnel. This will require more detailed additional provisions on liability. It can be disputable under the direction or control of which party some additional services have been performed. There could be some merit in distinguishing which type of personnel one is referring to with a view to liability questions such as prison guards, medical officers, personnel who provide catering as well cleaning and maintenance services. Even if, by virtue of the Headquarters Agreement, an expert happens to be under the legal overall authority of the ICC Registrar, it could appear that, in reality, the expert is an independent practitioner contracted by the host State government to provide services to the ICC. Thus, the Registrar, not sharing the experience of that expert, cannot be deemed to exercise properly an adequate degree of control over the professional conduct of that expert as he can, for example, over the prison guards. Those issues can only be addressed by exchanging letters of understanding on a case bound basis. The main principles, to be derived from the constant stream of letters of understanding which will begin to flow from the first date of real functioning the ICC as judiciary exercising its jurisdiction, can be codified later on in an addition manual to be inserted in the host State Arrangement. Therefore, it is recommendable to empower the ICC at the level of the Headquarters Agreement with the competence to enter into such an exchange of letters of understanding and to mandate the Registrar to act as representative of the ICC, doing business with the designated representative of the Ministry of Justice of the Netherlands<sup>41</sup>.
- 29 In addition, the Headquarters Agreement should provide for an article concerning settlement of disputes. Of course, in this context, we have to think of disputes between the ICC as international organisation and the host State and not between the organisation acting as private body – performing *acta iure gestionis* – and the host State or disputes between the ICC and private parties. The basic principles of international private law will govern those disputes to be applied by the national judge of the host State. The disputes here envisaged will always concern the interpretation of a part or segment of the Host Arrangement. Of course, the operative article of the Headquarters Agreement dealing with the settlement of this kind of disputes will first impose the obligation on the parties to try to get the dispute resolved by consultation and negotiation. Should this fail, both parties could resort to arbitration or seek a binding advisory opinion of the ICJ<sup>42</sup>. Article 55 of the Headquarters

<sup>41</sup> See article 27 of the 'Lockerbie' Headquarters Agreement: 'With a view to the practical application of this Agreement, letters of understanding may be exchanged between the Registrar and the designated representative of the Ministry of Justice of the Netherlands'.

<sup>42</sup> Either party has to bind itself on forehand to accept the advisory ICJ opinion to circumvent the provision in the ICJ Statute that only *States* have *ius standi in iudicio* for this UN Court acting as judiciary in contentious cases. See article 34 para. 1 of the ICJ Statute ('Only states may be parties in cases before the Court'). According to article 65 para. 1 of the ICJ Statute, however, a 'body' is authorised to make a request for an advisory ICJ

Agreement has codified the procedure to be followed in case of a difference on the interpretation or application of the Headquarters Agreement, or subsequent additional arrangement or agreement. In such a situation, an arbitral tribunal, composed of three members, shall be created for the settlement of any difference. Once a decision is reached by this Arbitral Tribunal, the decision thereof shall be final and binding on the parties.

### C. Special Remarks: The interim solution – applicability of the ICTY arrangements

#### I. Ongoing negotiations

The negotiations on the final content of the Headquarters Agreement<sup>43</sup> with the ICC have 30 been completed. Under III of this chapter C. we will scrutinize the results; bear in mind that those results are in no way final: additional Host arrangements are, as normally foreseen, the final clauses of the Seat Arrangement refer already to those Additional Arrangements. Those Arrangements are the most important instruments for the all day's nitty-gritty. They started, by virtue of explorative talks, just from the very moment of the entry into force of the national legislation sanctioning the ICC jurisdiction for the entire Kingdom of the Netherlands on the 18 2001<sup>44</sup>. As the Netherlands as host State began to be more aware of all the intricate problems of hosting ICC as a permanent 'on going concern', it seemed more appropriate not to take an irrevocable stand with a view to the Host Arrangements. The host State began to seek for more transitional solutions in this respect leaving for the host State, the Assembly of States Parties and the ICC the widest margins to experiment with the Host instruments, being brand new phenomena at the international level of criminal law. Both Parties, the ICC on one hand and the Netherlands on the other, decided to declare the Agreement between the Kingdom of the Netherlands and the United Nations concerning the Headquarters of the International Tribunal for the Prosecution of persons responsible for serious violations of international humanitarian law committed in the territory of the Former Yugoslavia since 1991 applicable *mutatis mutandis* on the relationship between the host State and the Court. This was done by exchange of notes verbales between the Ministry of Foreign Affairs of the Netherlands and the Court as of the 19<sup>th</sup> of November 2002<sup>45</sup>. These solutions seemed the most practicable, whereas the host country considered the ICTY hosting experiences as kind of dry piloting projects with a view to the definite hosting of the ICC. The wording of this Host Agreement is as simple as one could imagine: article 2 stipulates

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opinion ('The Court may give an advisory opinion on any legal question at the request of whatever body may be authorised by or in accordance with the Charter of the United Nations to make such a request'); it seems hardly disputable that the ICC will be such a body, entitled to do so, 'in accordance with the Charter of the UN' (as article 65 ICJ Statute requires). See Rosenne, *The World Court. What it is and how it Works* (1989) and R. Ago (1991) *AJIL*439 *et seq.*

<sup>43</sup> See with regard to the meaning of this concept above under mn 4.

<sup>44</sup> In Dutch: Rijkswet houdende goedkeuring van het op 17 juli 1998 tot stand gekomen Statuut van Rome inzake het Internationaal Strafhof, Rijkswet van 5 juli 2001, Staatsblad 2001, Nr 343 (translation: Act for the Kingdom of the Netherlands as of the 5<sup>th</sup> of July 2001, Official Dutch Monitor of Statutes 2001, Nr 343, containing the sanctioning of the Statute of Rome of the 17<sup>th</sup> of July 1998 concerning the establishment of an International Criminal Court; by virtue of 'an Act for the Kingdom of the Netherlands' ['Rijkswet'] legislation is launched binding for all the parts of the Kingdom, including the Dutch Antilles and Aruba, former Dutch colonies in the Caribbean. As distinct from a 'Rijkswet' one could distinguish a 'wet' ['act'], only binding for the territory of the Kingdom in Western Europe, the Netherlands itself.

<sup>45</sup> Notawisseling houdende een interimverdrag tussen het Koninkrijk der Nederlanden en het Internationaal Strafhof betreffende de zetel van het Internationaal Strafhof, 's-Gravenhage 19 november 2002 Tractatenblad 2002 Nr 211 (translation: Exchange of Notes verbales with a view to the conclusion of an interim treaty between the Kingdom of the Netherlands and the International Criminal Court concerning the seat of the International Court, The Hague, the 19<sup>th</sup> of November 2002, Official Treaty Monitor of the Kingdom of the Netherlands 2002, No. 211), Nos. I and II (Annexes).



plainly that the ICTY Agreement shall apply *mutatis mutandis* to the Court, unless otherwise provided in the current agreement<sup>46</sup>. Nevertheless, straightforward as this interim solution seemed to be, some objections could be raised. The phraseology used in the agreement showed all the features of a treaty, valid for the Kingdom as a whole<sup>47</sup>. This could prompt some surprise for them more acquainted with the constitutional relations within the hemisphere of the Kingdom of the Netherlands: a treaty, binding and enforceable throughout the whole Kingdom should be ratified by virtue of a formal Statute sanctioning the provisions of the treaty, article by article. The explicit consent of the parliaments of the Dutch Antilles and Aruba is indispensable according to the Statute of the Kingdom of the Netherlands, the Constitution of the Kingdom as a whole<sup>48</sup>. The conclusion by the Kingdom of a Host Agreement with an international judiciary as ICC is, without any reasonable doubt, a permanent and persistent matter of 'foreign affairs'. The agreement changes the stand of the Kingdom in relationship to *all* the countries in the world, irrespective as to whether they belong to the ICC family or not. In article 3 of the Constitutional Statute, 'matters concerning foreign relations' as such is defined as affairs of the Kingdom as a whole. One could argue that incidental matters, only regarding the European part of the Kingdom do not fall within the scope of the aforementioned article 3. But seating the ICC can not be considered as such an incidental matter.

- 31 Nevertheless, this agreement has never even been presented to the Lower House of the Dutch Parliamentary. According to the official commentary as voiced by the Dutch Minister for Foreign Affairs, this was 'not necessary', basing this on a certain rendition of the Statute of the Kingdom concerning the approval and promulgation of treaties ('Rijkswet goedkeuring en bekendmaking verdragen')<sup>49</sup>. Nevertheless, this is technically speaking, highly debatable. The special approval of the respective parliaments is not necessary in case the government explicitly has been empowered by Statute to conclude the treaty. In the set of enabling legislations to transform the obligations incumbent on the Kingdom – even in its capacity as host country – following the ratification of the 1998 Rome Statute, one will seek in vain such

<sup>46</sup> Article 2 runs as follows: 'Unless otherwise provided in this Agreement, the Tribunal headquarters agreement, attached in Annex 1, shall apply *mutatis mutandis* to the Court'.

<sup>47</sup> See the preamble of the Agreement and operative article 1 thereof: 'The Ministry of Foreign Affairs of the Kingdom of the Netherlands presents its compliments to the International Criminal Court and has the honour to propose, in order to facilitate the work of the Court and with reference to article 3 of the Statute of the Court, that, for the period until the entry into force of the headquarters agreement between the Kingdom of the Netherlands and the Court, an interim headquarters agreement be concluded which shall read as follows:

'ARTICLE 1

- (i) 'The Statute' means the Rome Statute of the International Criminal Court adopted on 17 July 1998 by the United Nations Diplomatic Conference of Plenipotentiaries on the Establishment of an International Criminal Court;
- (ii) 'The Court' means the International Criminal Court established by the Statute;
- (iii) 'The Tribunal' means the International Tribunal for the Prosecution of Persons Responsible for Serious Violations of International Humanitarian Law Committed in the Territory of the Former Yugoslavia since 1991, established by the Security Council pursuant to its resolutions 808 (1993) and 827 (1993);
- (iv) 'The Tribunal headquarters agreement' means the Agreement between the Kingdom of the Netherlands and the United Nations concerning the Headquarters of the Tribunal, signed in New York on 29 July 1994;
- (v) 'The General Convention' means the Convention on the Privileges and Immunities of the United Nations adopted by the General Assembly of the United Nations on 13 February 1946'.

<sup>48</sup> Statuut voor het Koninkrijk der Nederlanden, Wet van 28 Oktober 1954, houdende aanvaarding van een statuut voor het Koninkrijk der Nederlanden, zoals deze wet laatstelijk is gewijzigd bij de Rijkswetten van 24 april 1995, Staatsblad Nr 233 [tekstplaatsing], 7 Sep. 1998, Staatsblad 597 (translation: Constitutional Statute of the Kingdom of the Netherlands, regarding the acceptance by the three countries of the Kingdom of a Statute for the Kingdom of the Netherlands, as this Statute recently has been changed by virtue of the Statutes of the Kingdom as of the 24 April 1995, Official Dutch Monitor of Statutes Nr 233 (official promulgation of the current texts) and that as of the 7 September 1998, Official Dutch Monitor of Statutes Nr 579).

<sup>49</sup> See II. D of the Agreement: 'Het in de nota's vervatte verdrag behoeft ingevolge artikel 7, onderdeel a, van de Rijkswet goedkeuring en bekendmaking verdragen niet de goedkeuring van de Staten-Generaal, alvorens in werking te kunnen treden'. (translation: According to article 7, intend a, of the Statute of the Kingdom concerning the approval and promulgation of treaties, this Agreement as contained in the notes does not need the approval of the Houses of Parliament before entering into force).



an operative article, empowering the Dutch government to conclude such kind of Host Agreement without any consent whatsoever of the Parliamentary. The agreement as contained in the exchange of notes infringes in a considerable way on the territorial jurisdiction of the Kingdom, granting the premises of the ICC the legal status of a kind of juridical enclave within the territory of the Netherlands – an issue with some significance for the territorial sovereignty of the Kingdom as a whole, as will be explained later on. The question could be put forward as to whether *such* a treaty could enter into force without the formal approval by Statute, accepted by the Parliamentarians of the three countries, in togetherness constituting the Kingdom of the Netherlands. The agreement as such is antithetical to lots of formal Statutes within the Netherlands formulating the principle that it is with the Netherlands, and only with the Netherlands, to compose the internal public legal order to be enforced by penal enforcement power, the so called rule of absolute positive territoriality – a widely accepted concept of internal sovereignty. Is it, constitutionally speaking, acceptable that from this compulsory principle of national constitutional law could be derived by virtue of an informal exchange of notes verbales? A negative answer is in the likelihood. But that is a question of internal Dutch constitutional law. This question, in the end, has to be resolved by the Dutch judiciary. It is not a question to be ruled upon by the ICC.

Yet this constitutional issue could be of some direct significance for the functioning of the ICC. The Netherlands, as all the signatories to the European Convention on Human Rights (hereafter: ECHR) is bound to grant any person ‘within its jurisdiction’ – in the sense, laid down in article 1 ECHR<sup>50</sup> – the rights stemming from the ‘*habeas corpus* principle’ as

<sup>50</sup> Article 1 ECHR runs as follows: **Obligation to respect human rights** ‘The High contracting Parties shall secure to everyone within their jurisdiction the rights and freedoms defined in Section I of this Convention’. The terminology ‘within their jurisdiction’ in this overarching guarantee has its own, treaty-bound, autonomous significance apart from the respective national jurisdictional systems. Even when a ratifier to the ECHR introduces a so called ‘extraterritoriality’ within its national jurisdictional system or a so called juridical enclave – which is the case with a view to the ICJ premises and the OPCW, ICTY and ICTR premises, all situated in the Netherlands as the host country – the ratifier keeps to be fully responsible for breaches of the ECHR guarantees occurring within those extraterritorialities and enclaves. The introduction of those exemptions does not free the ratifier from its state responsibility in this respect. That is only a matter of course. If the introduction of this kind of exemptions would prompt that effect, it would open the door widely for abusing the fictions underlying the exemptions, with a view to discharge the ratifier for the violations of the Convention albeit that the breaches were imputable to the ratifier whereas they occurred factually – geographically speaking – within their territorial jurisdiction. See the fundamental ruling of the European Court of Human Rights in the case *Beer and Regan versus Germany*, application no 28934/95 dd, 18 February 1999. Beer and others were employees of the European Space Agency (ESA). This Agency has its headquarters in Paris. The Agency was established under the Convention for the Establishment of a European Space Agency, the so called ESA-Convention of 30 May 1975 (United Nations Treaty Series 1983, vol. 1297, I-no. 21524). The ESA runs the European Space Operations Centre (ESOC) as an independent operation in Darmstadt, having its own privileged premises in that city leading to a certain legal enclave in relationship to the jurisdiction of the Deutsche Bundesrepublik and prompting immunity from German jurisdiction. The definition of the premises and the radius of action of the enclave have been defined in the Agreement concerning the European Space Operations Centre of 1965 published in the German Official Gazette (Bundesgesetzblatt) II. No 3, 18.1.1969. Beer and the others got stuck into a conflict with the ESOC with regard to their instruments of appointment. Proceedings for German Courts followed in which Beer and the others alleged that the ESOC had violated their civil rights in the sense of article 6 ECHR. The German judges, subsequently, declared the respective actions of Beer and others inadmissible on the mere ground of the ESOC’s immunity from jurisdiction. Beer and others complained in Strasbourg that they had not had a fair hearing by a tribunal on the question of whether a contractual relationship existed between them and the ESA; by virtue of the denial of justice by the German Courts, there had been a violation of article 6 para. 1 of the ECHR, which provides: ‘In the determination of his civil rights and obligations..., everyone is entitled to a fair and public hearing ...by [a] tribunal...’. The applicants maintained that the right of access to the courts was not met merely by the institution of proceedings. This right, they argued, required that the courts examine the merits of their claim. They considered that the German Courts had disregarded the priority of human rights over immunity rules based on international agreements. They concluded that the proper function of the ESA had not required immunity from German jurisdiction in their particular cases. The Court ruled very fundamentally, legal ground No. 57: ‘The Court is of the opinion that where States establish international organisations in order to pursue or strengthen their cooperation in certain fields of activities, and where they attribute to these organisations certain competences and accord them immunities, there may be implications as to the protection of fundamental rights. It would be incompatible with the purpose and object of the Convention, however, if the

worded in article 5 ECHR. This is for sure: 'detention' within the Netherlands is only in line with the provisions laid down in this article 5 if the detention is based on a provision defined by law. The detention must be *lawful*<sup>51</sup>. The interim Host Agreement refers to the ICTY Headquarters Agreement. That agreement empowers the ICTY with the competence to provide for detentional measures with a view to its jurisdiction in the Netherlands. The ICTY Headquarters Agreement has been approved by a special Statute. The Dutch government deemed it necessary to provide for such a formal legal basis, given the national principle of legality as it is commonly understood in criminal matters. That Statute declares Dutch legislation not applicable on detentional measures taken by the ICTY. The measures will be falling under the exclusive responsibility of the ICTY Registrar, being the executive

Contracting States were thereby absolved from their responsibility under the Convention in relation to the field of activity covered by such attribution. It should be recalled that the Convention is intended to guarantee not theoretical or illusory rights, but rights that are practical and effective. This is particularly true for the right of access to the courts in view of the prominent place held in a democratic society by the right to a fair trial' and No. 58: 'For the Court, a material factor in determining whether granting ESA immunity from German jurisdiction is permissible under the Convention is whether the applicants had available to them reasonable alternative means to protect effectively their rights under the Convention'. See also: case of *Waite and Kennedy versus Germany*, application No 26083/94 dd 18 Feb. 1999 3 32. The assumption underlying the decision taken in the case *Mladen Naletilić versus Croatia*, application No. 51891/99 dd 4 May 2000 3 32 is also that it could be with the European Court of Human Rights to rule on breaches of the ECHR imputable to international judiciaries as the ICTY for which subsequently the host State as ratifier could be held collaterally responsible. In line with this stand see also the decision of the European Court of Human Rights in *Matthews versus United Kingdom* dd 21 Jan. 1999, application No. 24833/94 3 32, especially legal consideration No. 32: 'The Convention does not exclude the transfer of competences to international organisations provided that Convention rights continue to be 'secured'. Member States [of the EU, addition by the author] responsibility therefore continues even after such a transfer'. The Dutch Government is well aware of this collateral responsibility of the Netherlands for violations of the ECHR imputable to ICC even when committed on ICC premises; see: Brief van de Minister van Justitie aan de Voorzitter van de Tweede Kamer der Staten-Generaal (translation: letter of the Minister of Justice to the Chairman of the Lower House of the Parliamentary) Tweede Kamer 28 098 nr 11 (Hansard 28 098 no 11) dd 12 maart 2002 (12 March 2002) [Uitvoering van het Statuut van het Internationaal Strafhof met betrekking tot de samenwerking met en bijstand aan het Internationaal Strafhof en de tenuitvoerlegging van zijn vonnissen {Uitvoeringswet Internationaal Strafhof} (translation: enabling legislation with a view to implement the Statute of the International Criminal Court regarding the mutual assistance to and cooperation with the Court and the enforcement of its sentences) and Tweede Kamer 28099 nr 11 (Hansard 28099 no 11) same date, Aanpassing van het Wetboek van Strafrecht, het Wetboek van Strafvordering en enige andere wetten aan de Uitvoeringswet Internationaal Strafhof (translation: draft legislation with a view to accommodate the national criminal code book, the code for criminal proceedings and some other statutes to the enabling legislation regarding the ICC jurisdiction).

Two more recent ECtHR cases with regard to the Netherlands acting as host for the ICTY are the cases of *Blagojević and Galić*; The case of *Vidoje Blagojević* against the Netherlands, Admissibility Decision, Application no. 49032/07, 9 June 2009 3 32; and The case of *Stanislav Galić* against the Netherlands, Admissibility Decision, Application no. 22617/09, 9 June 2009 3 32. These two cases relate directly to the scope of the jurisdiction of the Netherlands, acting in its capacity as host State. In the end, both cases were rendered incompatible *ratione personae*. For further information, please consult the cases.

<sup>51</sup> See the wording of article 5 ECHR: **Right to liberty and security** para. 1.

'Everyone has the right to liberty and security of person. No one shall be deprived of his liberty save in the following cases and in accordance with a procedure prescribed by law' (emphasis added):

- a. the *lawful* (emphasis added) detention of a person after conviction by a competent court;
- b. the *lawful* (emphasis added) arrest or detention of a person for non-compliance with the *lawful* (emphasis added) order of a court or in order to secure the fulfilment of any obligation prescribed by law [emphasis added];
- c. the *lawful* (emphasis added) arrest or detention of a person effected for the purpose of bringing him before the competent legal authority of reasonable suspicion of having committed an offence or when it is reasonably considered necessary to prevent his committing an offence or fleeing after having done so;
- d. the detention of a minor by *lawful* (emphasis added) order for the purpose of educational supervision or his *lawful* (emphasis added) detention for the purpose of bringing him before the competent legal authority;
- e. the *lawful* (emphasis added) detention of persons for the prevention of the spreading of infectious diseases, of persons of unsound mind, alcoholics or drug addicts, or vagrants;
- f. the *lawful* (emphasis of the author) arrest or detention of a person to prevent his effecting an unauthorised entry into the country or of a person against whom action is being taken with a view to deportation or extradition.

Paragraph 2. etc.'

authority of this judiciary. That is the idea behind article 17 of the ICTY enabling law<sup>52</sup>. One could foster one's fundamental hesitations as to whether this frees the host country from every responsibility regarding the way that kind of measures are to be enforced on Dutch soil, but that is another matter, to which we will return later on in this commentary. In this respect as far as the ICTY jurisdiction is concerned, the preconditions of article 5 ECHR have been met as far as it has to do with the legal basis of the detentional measures.

Of course the Rome Statute empowers the ICC to take detentional measures. The enforcement thereof within the Dutch jurisdiction is to be governed by the Host Arrangement whereas it is with the host country to make the necessary detentional provisions available. Yet, the legal basis for the enforcement of those measures should be the *law*, that is to say, within the context of ECHR, Dutch law. Could an interim agreement, set up by mere exchange of notes verbales between an entity not ratifier of the ECHR (the ICC) and a national member state of the European Country, referring in blank to a foregoing legal instrument, be considered as a provision by law in the sense of article 5 ECHR? A similar question played already a role in the preliminary injunction proceedings launched by some lawyers before the The Hague District Court on behalf of Milošević directly upon his arrival in the Netherlands in 2001<sup>53</sup>. The District Court relegated the question to the ICTY being that judiciary hierarchically superseding any Dutch judiciary, an argument – what kind of persuasiveness one would ever attach to it – that is certainly not valid to the ICC as already has been pointed out above in this Commentary under A. 1., mn 3 and 4.

After The District Court relegated the question to the ICTY, Milošević initiated proceedings before the European Court of Human Rights, complaining, amongst others, under article 5 paragraph 1 ECHR that his detention on the territory of the Netherlands, with the active connivance of the Netherlands, lacked a basis in the domestic law of the Netherlands, and that a procedure prescribed by the domestic law had not been followed. The European Court, basing itself on article 31 ECHR, declared the application inadmissible, as Milošević had not pursued his appeal against the judgement given in the proceedings of 31 August 2001. Unfortunately, the legal question with regard to the *habeas corpus* provision under article 5 ECHR has thus remained unsolved. See footnote 53.

## II. Applicability *mutatis mutandis* of the ICTY Host Arrangements

### 1. Terra incognita

Given this legal equality of the ICTY Host Arrangements with the ICC Arrangements, it does make sense to scrutinize the historical origins of the ICTY Headquarters Agreement and its additional instruments like the penitentiary contracts and the numerous memoranda of understanding regarding the transit movements hence and forth to the ICTY premises, the extensions of the seat, the safe houses set at the disposal of the ICTY, provisional release and the legal status of the released persons and the like. When the Security Council decided that the seat of the ICTY would be at The Hague, it made the proviso that the conclusion of

<sup>52</sup> See: Wet van 21 april 1994, houdende bepalingen verband houdende met de instelling van het Internationaal Tribunaal voor de vervolging van personen aansprakelijk voor ernstige schendingen van het internationale humanitaire recht, begaan op het grondgebied van het voormalig Joegoslavië sedert 1991, Staatsblad 1994, No. 308 (translation: Statute as of the 21 April 1994 containing enabling provisions with a view to the establishment of the International Tribunal for the Prosecution of Persons responsible for Serious Violations of International Humanitarian Law, Committed on the Territory of the Former Yugoslavia since 1991, Official Dutch Monitor of Statutes 1994 No 308).

<sup>53</sup> See: Rechtbank's Gravenhage LJN AD3266 Zaaknr: KG 01/975 dd 31 Aug. 2001 *Slobodan Milošević versus de Staat der Nederlanden* (translation: District Court of The Hague, LJN No. AD 3266 case KG 01/975 [preliminary injunction procedure] 3 33 as of the 31 of Aug. 2001, *Slobodan Milošević versus the Kingdom of the Netherlands*); appeal withdrawn on the 17 Jan. 2002. The corresponding case before the European Court of Human Rights is the case of *Slobodan Milošević against the Netherlands*, Admissibility Decision, Application no. 77631/01, 19 March 2002. 3 33.

appropriate arrangements between the UN and the Government of the Netherlands would be acceptable to the Council. Approval by the General Assembly was not foreseen. As from the outset, the Council stipulated that the Host Agreement should contain the possibility that the Tribunal might sit elsewhere when it considered it necessary for the efficient exercise of its functions<sup>54</sup>. What the position of the Netherlands as a host country would be during that interim period with a view to its obligations towards the ICTY remained completely unclear.

When negotiations started between the Netherlands and the UN with a view to the conclusion of a Headquarters Agreement on behalf of the ICTY, parties had to tread on courses until then unknown. Of course, there were the precedents of the Nuremberg and Tokyo Tribunals, but the balances of powers in 1945 between the Parties willing to establish the Nuremberg and Tokyo jurisdictions and the territorial host countries – Germany and Japan – were incomparable with the power relations between the UN and the intended host country, the Netherlands, in 1993. In 1945 the territorial states simply had to accept the decision of the Allies that the military Tribunals would be seating within their soil to wield criminal jurisdiction to the extent the Tribunals would deem desirable. It was highly debatable, as far as the Nuremberg Tribunal was concerned, as to whether at that very juncture Germany could exercise any internal sovereignty as a State, where as Germany had accepted the unconditional capitulation and had been divided into four occupational zones. One could even assert that Germany had come to an end as an independent entity at the international level. In the Nuremberg case, there was no room for negotiations between Germany and the Allies with a view to the establishment of the military Tribunal and its Host Arrangements. Regarding the Tokyo Tribunal, the situation was slightly different – the Allies assumed the prolonged existence of Japan as a sovereign entity – but yet, there was no latitude at the side of Japan to conduct real negotiations concerning the seating of the Tribunal. Here were no leeways.

## 2. The situation in 1993: three legal instruments as yardsticks

- 35 Of course, in 1993 the situation was completely different. It was the United Nations, which was the asking Party. Given the presence of the ICJ, already seating as a principal organ in The Hague, it seemed only natural to have the ICTY also seating in this city, even though the jurisdictional scope of the latter was not comparable in any respect with that of the first.

Given the wording of the Statute of the ICTY, parties decided to depart from three legal instruments as yardsticks for negotiations:

- the UN Headquarters Agreement;
- the Vienna Convention on Diplomatic Relations<sup>55</sup>;
- the Resolution of the GA of the UN relating to the adoption of the General Convention on the Privileges and Immunities of the United Nations<sup>56</sup>.

The main problem to be tackled was the relationship between the internal public order of the Netherlands as sovereign State in rules, already contained in the ICTY Statute and the

<sup>54</sup> See: Financing of the International Tribunal for the Prosecution of Persons Responsible for Serious Violations of International Humanitarian Law Committed in the Territory of the Former Yugoslavia since 1991, Report of the Secretary-General as requested by the GA in the Res. 47/235, A/C.5/48 2 December 1993, mn 3:

'By its resolution 827 (1993) of 25 May 1993, the Security Council, acting under chapter VII of the Charter of the United Nations, approved the report of the Secretary-General, decided to establish the International Court and adopted its Statute. The Security Council also decided that the seat of the International Court would be at The Hague, subject to the conclusion of appropriate arrangements between the United Nations and the Government of the Netherlands that would be acceptable to the Council, but that the Tribunal might sit elsewhere when it considered it necessary for the sufficient exercise of its functions. The Council further requested the Secretary-General to implement urgently the resolution and, in particular, to take practical arrangements for the effective functioning of the Tribunal at the earliest time'.

<sup>55</sup> The Vienna Convention on Diplomatic Relations done at Vienna on 18 April 1961, to which the Kingdom of the Netherlands acceded on 7 December 1984.

<sup>56</sup> As of the 13 February 1946, GAOR 22 (I). The Kingdom of the Netherlands acceded to this instrument on 19 April 1948.

Rules of Procedure and Evidence, to be drawn later on. To say that the ICTY rules, irrespective the way of their coming into existence and irrespective of their substantive content should always have the priority over Dutch regulations, given article 103 of the UN Charter<sup>57</sup>, seemed to the Dutch negotiators to simply an approach. One could hardly argue that the Dutch statutory provisions on trafficking or the carrying of firearms, the settlement and admission of foreigners, very important with a view to the transit movements of suspects, personnel, victims, witnesses and experts, had automatically to yield to any directive of any ICTY organ. Of course, this stand was originally taken by legal affairs of the UN. But the majority of the relevant Dutch regulations did not constitute an 'obligation under any other international agreement' – to stipulate that would be really preposterous – and only in the event of *such* a collision of international obligations article 103 of the UN Charter would apply. What would the position of the host country be, if the ICTY, without any foregoing understanding with the Netherlands, would decide to release a suspect conditionally indicating him to report himself periodically to the Registry: how would he be considered under the relevant Dutch provisions concerning the settlement and admission of foreigners (the 'Aliens Act')? The answer would be – if no provisions to the contrary would be set up – that the released person should be considered as to be an illegal foreigner. He would be subject to immediate expulsion to his state of origin. Under the current 'Schengen implementation agreement' the Netherlands as a ratifier would be under the obligation to expel the released person as quickly as possible whereas the concurrent and colliding obligation under international law to refrain from this expulsion would be highly debatable. But legal affairs were of the opinion that the host country would be unconditionally bound to respect the ICTY's rulings on release without any interference whatsoever. If it would be clearly, in the interest of international justice, as understood by the ICTY that the released person should remain within the vicinity of the ICTY. Therefore, the host country would be under the obligation to arrange the facilities to make that possible, even if the ICTY would not have ordered that explicitly. Rifts like this seemed not to be bridged easily. This, certainly, would not enhance the exercise of the ICTY jurisdiction.

### 3. Three categories of possible positive jurisdictional conflicts

During the Host Agreement negotiations as of the 14 May 1993, the Dutch delegation distinguished three categories of positive jurisdictional conflicts between the ICTY and the host country: 36

- a) the legal consequences directly arising from the acceptance of the ICTY Statute by the UN Security Council under Chapter VII of the UN Charter which would equally apply to all the UN Member States; in this respect the legal position of the Netherlands as host country would not differ in any respect from the positions of the other Charter Parties;
- b) the legal consequences prompted by detentional measures ordered by the ICTY to be executed by the host country; these measures would encompass the provisional arrest, provisional detention during the pre-investigative phase, the detention during the trial and, eventually, the enforcement of the irrevocable sentences of imprisonment handed down by the ICTY;
- c) the logistic and legal consequences prompted by the mere hosting of the ICTY as proposed by the Secretary-General of the UN in its concept of a Statute of the ICTY.

The general stand of the Dutch delegation was that it would be necessary to establish as a rule that the procedural rules to be applied before the ICTY would be separated from the national applicable regulations on criminal procedures and substantive criminal law as maintained by the Netherlands at its domestically level. It was foreseeable that individuals,

<sup>57</sup> This article runs: 'In the event of a conflict between the obligations of the Members of the United Nations under the present charter and their obligations under any other international agreement, their obligations under the present Charter shall prevail'. See about the general significance of this Charter article in host affairs also above mn 2.

falling under the ICTY jurisdiction, could at the same time fall under the domestically jurisdiction of the host state in the event they would commit crimes after arrival in the Netherlands for which the ICTY could not wield jurisdictional power whilst the Netherlands would have that competence according to its national law or on the basis of its treaty position, for example as member of the European Union.

In explication for the first two categories a) and b):

It was argued by the Secretary-General that the Netherlands, as all the other UN Charter Parties, would be under the obligation, by virtue of article 29 of the ICTY Statute<sup>58</sup>, to cooperate upon request of the ICTY with the Tribunal and to provide for any thinkable form of cooperation and assistance. This obligation would be a mandatory one; exceptions to this obligation were to be considered as unacceptable under international law. Any request of the ICTY should be considered as 'the application of an enforcement measure under Chapter VII of the Charter of the United Nations'. The Dutch delegation did not contest this principle as a general assumption, but asserted that lots of these requests should be executed by the host country simply because of the geographical fact of the location of the ICTY premises. The Netherlands should, therefore, provide for detailed enabling legislation in order to fulfil this general duty as a UN Charter Party, far more than any other UN Charter Party. In this respect the overarching question seemed to be how the relationship would be between this national enabling legislation and the Rules of Procedure and Evidence to be set up on behalf of the ICTY. Could the Rules be derogated by the national regulations? If the latter would be conflicting with the first, which judicial authority would be competent to rule, which one would be prevailing according to Dutch *domestically* law? To stipulate simply that it would be exclusively with the ICTY to decide on these jurisdictional conflicts – as argued by UN legal affairs – would be too simple a solution, whereas the Netherlands in criminal matters is bound – like an overwhelming majority of other UN Charter Parties – to the principle of national legality. In this sense, the Netherlands is to be considered to be a *dualistic* State<sup>59</sup>. If the ICTY would be ordering a compulsory measure to the detriment of the exercise of human

<sup>58</sup> At that moment article 29 of the Draft ICTY Statute ran as follows:

**'Cooperation and judicial assistance'**

1. States shall cooperate with the International Tribunal in the investigation and prosecution of persons accused of committing serious violations of international humanitarian law.
2. States shall comply without undue delay with any request for assistance or an order issued by a Trial Chamber, including, but not limited to:
  - (a) the identification and location of persons;
  - (b) the taking of testimony and the production of evidence;
  - (c) the service of documents;
  - (d) the arrest or detention of persons;
  - (e) the surrender or the transfer of the accused to the International Tribunal'.

<sup>59</sup> In this context, I am referring to the commonly known antinomy 'dualism' versus 'monism'. See, in detail about this antinomy on its different elaborations: *Supra* note 24, Verdross/Simma, mn 71 *et. seq.* (1984). In the monistic approach international law has the primacy over national law and is automatically legally binding at the national level: international law is, as such, 'self executing' at the domestic level. There is no need for transformation of that international law by national enabling legislation. In a dualistic approach, only national law can be binding at the domestic level. The will of the state pays always a decisive role in making international law really legally binding, operative and enforceable at the domestic level. Without the express consent of the state, international law cannot change the legal position of the individual at that level nor can it bind the state and its organs towards that individual. That means in this context of criminal international law: in order to be 'legal operative', the provisions of treaties dealing with criminal law matters must be implemented in the domestic legal sphere of signatory states by means of enabling legislation in accordance with the *lex certa*-prerequisites flowing from the national legality principle both in substantive and in procedural matters. What is stated in the main text of this commentary applies especially in criminal matters. It is not the opinion of the author that, generally speaking, international law as a legal framework where states interrelate never could be self executing. That depends on the willingness of the states to open their national hemisphere to that kind of law, a willingness that could be derived from constitutional principles a specific state adheres. Some states have this open mind towards international law. Yet, in criminal matters, no state shows that willingness, whereas all states consider their selves submitted to the legal consequences of the national legality principle. See: Fransisco, *Aspects of Implementing the Culpability Principle both under International and National Criminal Law*, Academic Thesis at the Groningen University (the Netherlands) (2003) 18 *et seq.*



rights by an individual residing within the territorial jurisdiction of the host country, the Netherlands could only enforce that measure on the basis of a *national* provision by law. To state that the simple acceptance of the position of a host country in this respect would entail automatically and by virtue of implicit condition the obligation to set aside the constitutional principle of legality would undermine the principle of the rule of law within the jurisdiction of the Netherlands as understood by the ECHR system. Besides that, the UN had not voiced this requirement when asking the Netherlands to host the ICTY.

From the view of the host state, the legal questions under a) and b) were substantially interlinked, prompting the same legal intricacies and logistical problems. Therefore, the Dutch delegation formulated the following questions to be touched upon during the Host Agreement negotiations and the legal provisions to be set up on order to resolve the jurisdictional complications prompted by those questions.

- a) Which laws would be applied regarding arrest and detention in the Netherlands of the ICTY suspects upon their arrival in the Netherlands? It was not disputed that it would be with the ICTY to decide on those compulsory measures but it was argued that this competence would not give the final solution on the issue which penitentiary laws and regulations would apply during the enforcement phase. What laws would apply to the information to be forwarded to the detainee with a view to the legal ground of his deprivation of liberty and the regime to which he would be submitted?
- b) Which law would be applied regarding the detentional time limits for the prolongation by the ICTY ordered measures and which kind of *habeas corpus* law would stand? Should the ECHR jurisprudence apply with a view to the speedy-trial rule and the criterions for 'undue delay'? In this respect, the fact that the Netherlands was to be considered as ECHR ratifier was highly important. The Dutch delegation argued that the accessibility to the Dutch judiciary in these cases could not be excluded by national enabling legislation. Reference was made to the Dutch constitutional *habeas corpus* guarantee in conjunction with the fact that in this respect the ECHR treaty provisions simply supersede national statutory regulations. This applied also to the ECHR doctrine on the 'effective remedy' in cases the ECHR guarantees would have been violated according to article 13 of that Treaty<sup>60</sup>. Certainly, the answer on these questions would have implications on the Prosecutor's obligations to prosecute as quickly as possible, taken into consideration the complexity of the pending case.
- c) Would it be with the ICTY to order the host country to request cooperation and assistance to other States, given the treaty position of the Netherlands in relation to those States which with the Netherlands maintains already existing treaties on cooperation and mutual assistance? Could, for example, the ICTY ask the Netherlands to request a third State to provide extradition to the Netherlands as a bilateral treaty party with the intention to surrender the claimed person to the ICTY? Were the existing regulations and principles on interstate cooperation and assistance sufficient to comply with all the requests of the ICTY especially with a view to the forwarding of information, jeopardizing or prejudicing the national security of the host state<sup>61</sup>? What about the conservation of evidentiary substances and the gathering of evidence itself? The same question was put forward to the transit movements of experts, witnesses, victims and their relations, observers and the like.
- d) Which legal grounds and regulations would apply in case the ICTY would be ordering phone tapping, seizure, domestically search, disfranchisement, freezing of assets, observations, commitment for failure to comply with a judicial order, commitment for perjury or

<sup>60</sup> Article 13 ECHR runs as follows: 'Everyone whose rights and freedoms as set forth in this Convention are violated shall have an effective remedy before a national authority notwithstanding that the violation has been committed by persons acting in an official capacity'. Given its content, article 13 could be 'self executing' at the national level of an ECHR Party. In the Netherlands it is not, as stated by the Supreme Court of the Netherlands in a decision of 24 February 1960, *Nederlandse Jurisprudentie* (Jurisprudence in the Netherlands) No 483, 1960.

<sup>61</sup> This issue is dealt with under the heading of article 72 Rome Statute; see the commentaries below.



contempt of the Court? In the latter case, the complications seemed to be that the Netherlands did not recognize 'contempt' as a crime as such; the concept was completely unknown.

- e) What would be the obligation of the Netherlands towards the attorneys for the Defence? At the end of 1993 the UN Secretary-General paid for the first time some attention to the need to provide for a Defence Council and related staff<sup>62</sup>. Could they ask the Netherlands for interstate cooperation and assistance on the same footing as the ICTY Registrar and the Prosecutor? Could they seek access to a Dutch court to complain about the reluctance of the host country in this respect? Could they invoke provisions contained in the ICTY Statute before a Dutch court? And, if the answer would be in the affirmative, what if the rendition to be given to the ICTY Statute by the Dutch judge would differ from or collide with a decision given by the ICTY? The only thing which was crystal clear at the outset, was that those defendants who would be brought before the ICTY would be needing their own lawyers, which should be given an 'ICTY affiliated status', prompting the obligation incumbent on the host country to provide for security measures and transit-facilities in order to guarantee them freedom of movement in the Netherlands and the freedom to travel hence and forth to the premises where in site investigations were to be conducted by the ICTY Prosecutor. The UN Secretary-General proposed to provide for Defence Council and related staff enjoying certain privileges and immunities. It was not clear as to whether those privileges and immunities should be granted on the same footing as the Prosecutor and his office would be enjoying. The main focus was laid on the aspects of financing.

38 To the question b) of the Dutch Delegation:

What would be the legal consequences if the ICTY was to ask the Netherlands to enforce a sentence of imprisonment, given the overall willingness of the Netherlands as a Charter Party to enforce the ICTY sentences? Which penitentiary law would apply? It seemed that article 27 of the ICTY Statute would cover this issue<sup>63</sup>. This article simply declared the '*lex loci*' applicable to the enforcement measures<sup>64</sup>. Nevertheless, according to standing Dutch law, the ICTY sentence should be transformed into a Dutch judicial decision. This could be done by a statutory provision in Dutch law by which all the ICTY sentences were equalised – in abstract – to Dutch sentences without a foregoing so called 'exequatur procedure' in which a Dutch judge transforms the foreign decision into a Dutch sentence. The exclusion by law of this 'exequatur procedure' is known as 'the continued enforcement procedure'. Both parties – Legal Affairs and the Dutch delegation – were of the opinion that this solution was preferable, whereas the UN Charter Parties were under the obligation to recognize the ICTY as an emanation of their own national judiciaries. Yet, the sentenced person would be entitled, according to domestic law, to get commutation of sentence on the same footing as a person sentenced by a Dutch court. The same would apply to abolition, pardon and amnesty. But it was held that those issues were not to be considered as intricacies which only the host country had to deal with – these were matters for all the UN Charter Parties. Therefore, they are not dealt with under the heading of the Commentary on article 3 Rome Statute, albeit that they are tightly linked to the above mentioned issues regarding the enforcement of pre-

<sup>62</sup> See note 90, mn 45: 'For those defendants who are brought before the Tribunal who are unable to provide their own lawyers, it is foreseen that they would have to be provided with Defence Counsels. Accordingly it is proposed to provide for a Defence Counsel and related Staff. Such functions would not be required until the Prosecutor has had sufficient time to gather and evaluate evidence and begin the preparation of indictments and, in any case are not anticipated to be needed early in 1994. Although the number of indictments and the timing of the trials are unknown at this time, it is proposed to provide resources, as set out below'.

<sup>63</sup> See the Report of the Secretary-General pursuant to paragraph 2 of SC Res. 808 (1993) S/25704, 3 May 1993.

<sup>64</sup> This article runs as follows: '**Enforcement of sentences:** Imprisonment shall be served in a State designated by the International Tribunal from a list of States which have indicated to the Security Council their willingness to accept convicted persons. Such imprisonment shall be in accordance with the applicable law of the State concerned, subject to the supervision of the International Tribunal'. See the commentaries on article 103 Rome Statute below.

trial measures ordered by the ICC, especially if the measures are detentional of nature. The latter are typical host state issues, the first are issues regarding the whole the ICC family. Those final enforcement issues are relegated to the Commentary on Part 10 Rome Statute (Enforcement). At the outset of the negotiations on the Host Agreement, it was held by either party that it would be incumbent on the host country to provide for detentional facilities until an UN Charter Party would show up expressing its willingness to enforce the sentence of imprisonment. During that transitional period, the Netherlands had simply to act as enforcing party even if it had not expressed its willingness to do so by virtue of a special enforcement agreement. This turned out to be standing practice after the handing down by the ICTY of its first sentence of imprisonment.

To the question c) of the Dutch Delegation:

Given the decision of the UN to have the ICTY seating in The Hague – about this location there was nearly any discussion<sup>65</sup> – there was the immanent need to define the status of the ICTY as an entity in the Netherlands, its immunities, extritorialities and privileges, the status of its organs and that of its employees. Article 30 of the ICTY Statute only gave the general parameters of these regulations<sup>66</sup>. It was quite clear that they should be elaborated into detail in the Host Agreements on the Host Arrangements, whereas it was the host country to guarantee those issues towards the ICTY, the UN and the Charter Parties. The same would apply to the persons who would have to appear before the ICTY irrespective as to whether they would have been indicted, summoned or would appear *proprio motu*. The latter issue was not worked out in article 30 ICTY Statute, yet, some provisions had to be set up in this respect at the bilateral level between the ICTY and the host country. It seemed too simple not to provide for additional regulations regarding persons, not really *required* at the Seat of the Court, but whose presence in the vicinity of the ICTY could be indispensable for the proper functioning of the Court. Accused persons should be entitled to see family and spousal relations and the like; the same could go for victims, witnesses and experts, especially when they had to stay for a longer period in the Netherlands. Later on, practice showed the rightness of this assumption. The problems regarding this category of persons, not defined in

<sup>65</sup> See the comments contained in the Rep. of the Secretary-General pursuant to paragraph 2 of SC Res. 808 (1993) S/25704, sub chapter VII (Gen. Provisions) B, **Seat of the International Tribunal**: 'While it will be for the Security Council to determine the location of the seat of the International Tribunal, in the view of the Secretary-General, there are a number of elementary considerations of justice and fairness, as well as administrative efficiency and economy which should be taken into account. As an International Tribunal to have its seat in the territory of the former Yugoslavia or in any State neighbouring upon the former Yugoslavia. For reasons of administrative efficiency and economy, it would be desirable to establish the seat of the International Tribunal at a European location in which the United Nations already has an important presence. The two locations which fulfil these requirements are Geneva and The Hague. Provided that the necessary arrangements can be made with the host country, the Secretary-General believes that the seat of the International Tribunal should be at The Hague. The corresponding article of the statute would read: article 31 Seat of the International Tribunal: The International Tribunal shall have its seat at The Hague'.

<sup>66</sup> See Rep. of the Secretary-General pursuant to paragraph 2 of SC Res. 808 (1993) S/25704 3 May 1993, sub chapter VII (General Provisions) A, **The Status, privileges and immunities of the International Tribunal**: 'The Convention on the Privileges and Immunities of the United Nations of 13 February 1946 would apply to the International Tribunal, the Judges, the Prosecutor and his staff, and the Registrar and his staff. The judges, the Prosecutor, and the Registrar would be granted the privileges and immunities, exemptions and facilities accorded to diplomatic envoys in accordance with international law. The staff of the Prosecutor and the Registrar would enjoy the privileges and immunities of officials of the United Nations within the meaning of articles V and VII of the Convention. Other persons, including the accused, required at the seat of the International Tribunal would be accorded such treatment as is necessary for the proper functioning of the International Tribunal'. The corresponding article of the statute would read: 'article 30: **The status, privileges and immunities of the International Tribunal**: 1. The Convention on the Privileges and Immunities of the United Nations of 13 February 1946 shall apply to the International Tribunal, the judges and his staff, and the Registrar and his staff. 2. The judges, the Prosecutor and the Registrar shall enjoy the privileges and immunities, exemptions and facilities accorded to diplomatic envoys, in accordance with international law. 3. The staff of the Prosecutor and of the Registrar shall enjoy the privileges and immunities accorded to officials of the United Nations under articles V and VII of the Convention referred to in paragraph 1 of this article. 4. Other persons, including the accused, required at the seat of the international Tribunal shall be accorded such treatment as is necessary for the proper functioning of the International Tribunal'.

the ICTY Statute, turned out to be the most difficult ones. Again the main focus during negotiations was laid on practical issues like the obligations of the host country to provide for adequate maintenance, food, heating, electricity, laundry, communications and the financial obligations occurring in this respect: what would be the reimbursement to be granted to the host country<sup>67</sup>? Would there be a consignment account to be paid in advance by the UN to cover the foreseeable costs? This solution was chosen, later on, with a view to the hosting of the Lockerbie Tribunal, whereas the ICTY experiences had clearly shown that in this respect the financial arrangements should indemnify the host country more sufficiently. Another issue was the question of the security aspects. It should be the responsibility of the Host Country to guarantee the *external* security of the offices of the Tribunal and the personal protection of high officials outside the ICTY premises. The care for the *internal* security should be with the ICTY Registrar. It should be with the host country to provide for assessments of the level of security and for threat analyses. The latter should take care of police assistance to be rendered in cases of serious incidents.

The Host Country and UN legal affairs tried to separate the issues under a), b) and c) as much as possible. But a total watershed was not sustainable as the current text of the Host Agreement clearly shows. It was in the likelihood that the same problems would arise during the drafting of the Headquarters Agreement with the ICC. There is *one* significant difference: the host country can not be seen as a party who has to set aside its international obligations when colliding with the obligations flowing from the ICC Statute or the Headquarters Agreement on the mere ground that it has to consider Statute and Agreement as hierarchically *superseding* already existing international obligations. As spelled out above the General Remarks of this article under I. mn 3, the ICC will never have the privileged position as subsidiary UN organ, established under Chapter VII of the UN Charter and can therefore not invoke the advantages flowing from article 103 of that Charter. Therefore host country and ICC will have to provide for special provisions to arrange positive jurisdictional conflicts prompted by collision of already existing treaty obligations incumbent on the host state – for example as Member state of the European Union – and the Headquarters Agreement with the ICC. Think of a collision of obligations based on the EU-treaties on interstate cooperation and assistance within the Union and obligations flowing from the ICC Headquarters Agreement. One should constantly bear in mind that the UN Convention on the Law of Treaties is not applicable to treaties concluded between a State and an International Organisation like the ICC. The UN Convention only applies to treaties concluded between sovereign states. Therefore the principles concerning the priority rules in case treaty obligations stemming from different treaties collide (like: *pactum posteriore derogat pactum priore*, or *pactum speciale derogat pactum generale*) do not fit automatically. A solution could be to provide for an operative article by which certain provisions of the UN Convention on the Law of Treaties are declared to be applicable *per analogiam*<sup>68</sup>. The priority rules and the rules concerning interpretation methods are fit to be referred to in that way.

<sup>67</sup> See note 90, mn 57. At the time of preparation of the report of the Secretary-General to the SC (S/25704/Add.1) the Secretary-General informed the Council that a number of issues were unclear at the time such as detention facilities before and during trials, and imprisonment. Upon further discussions with the Government of the Netherlands, other costs associated with the operation of the Tribunal which are likely to arise have been discussed such as the operating costs of the detention facilities (food, heating, electricity, laundry and communications). It is also foreseen that in view of security concerns, additional requirements would arise in 1994–1995, which is dependent on the level of activities of the Tribunal during the biennium. The question of the rental requirements for a suitable courtroom referred to in paragraph 50, is another aspect of the operation of the Tribunal which would be likely to warren additional requirements in 1994–1995.

<sup>68</sup> And not *mutatis mutandis*, whereas, in substance, the counter part of the host country does show features absolutely not comparable with a sovereign State such as the lack of territorial sovereignty, the lack of penal enforcement power of its own and the absence of power to conclude treaties on its own footing. See, again, above mn 3 and 4.

### III. The final Seat Agreement

#### 1. In general

Directly after the entry into force of the abovementioned interim Seat Agreement with ICC 39 negotiations began between the Netherlands and the ICC in order to come to a final Seat Agreement<sup>69</sup>. Those negotiations have been completed successfully in 2006; it took, however, due to practical reasons, until the 7<sup>th</sup> of June 2007, to have the Agreement published in the Netherlands Treaty Series<sup>70</sup>. Mainly, the final Seat Agreement follows the basic assumptions and outlines of the interim solutions as spelt out above<sup>71</sup>. In case of interpretational difficulties, one could rely on those solutions and the renditions given to them, especially by the Dutch judiciary.

The Kingdom of the Netherlands concluded Seat Agreements with about thirty interna- 40 tional organisations, seating within the Kingdom's realm. Those treaties contain lots of standardised regulations concerning the status, privileges and immunities of those organisations and their personnel. As a matter of course, there are dissimilarities between those Seat Agreements, whereas those organisations differ to each other. The main characteristic feature of ICC – which makes it differ from all the other organisations – is (a) that it is designed to exercise penal enforcement powers within the Netherlands, with all the additional compulsory competences thereof and (b) that the Netherlands has to consider ICC as an emanation of its national judiciary, superseding, hierarchically speaking, all the competences vested into the national criminal courts whatsoever. Besides that, the Seat Agreement provides for regulations with a view to the specific tasks of ICC, regarding the privileges and immunities to the benefit of counsel for the defence, victims, and specific regulations concerning the security, the enforcement of pre-trial measures and measures to be taken pending trial, and, eventually, regarding the enforcement of irrevocable sentences which can not be enforced outside the Kingdom. As the Minister for Foreign Affairs stipulated explicitly in his explicatory note on the final Seat Agreement, normally Seat Agreements do not need the approval of the Dutch Houses of Parliament according to the Statute of the Kingdom on the

<sup>69</sup> Stukken van de Tweede Kamer 28.498 No.s 2, 9, 11, 13, 16, 17; Stukken van de Tweede Kamer 30.550, No.s V No.'s 1–6; Stukken van de Tweede Kamer 30.100 No. V No. 1 [Hansard of the Lower House No. 28.498, No.'s 2, 9, 11, 13, 16, 17; Hansard of the Lower House No. 30.550 No. V No.'s 1–6; Hansard of the Lower House No. 30.100 No. V, No. 1].

<sup>70</sup> See footnotes 3–5 above. The Assembly of States Parties approved the final Seat Agreement on the first of December 2006; see the explicatory note of the Minister for Foreign Affairs of the Kingdom of the Netherlands, annex to the Dutch translation of the Agreement.

<sup>71</sup> The preamble of the final Seat Agreement runs as follows:  
'The Kingdom of the Netherlands and the International Criminal Court, Whereas the Rome Statute of the international Criminal Court adopted on 17 July 1998 by the United Nations Diplomatic Conference of Plenipotentiaries established in the International Criminal Court with power to exercise its jurisdiction over persons for the most serious crimes of international concern; Whereas article 3, paragraphs 1 and 2, of the Rome Statute respectively provide that the seat of the Court shall be established at The Hague in the Netherlands and that the Court shall enter into a headquarters agreement with the host State, to be approved by the Assembly of States Parties and thereafter conclude by the President of the Court on its behalf; Whereas article 4 of the Rome Statute provides that the Court shall have international legal personality and such legal capacity as may be necessary for the exercise of its functions and the fulfillment of its purposes; Whereas article 48 of the Rome Statute provides that the Court shall enjoy in the territory of each State Party such privileges and immunities as are necessary for the fulfillment of its purposes; Whereas article 103, paragraph 4, of the Rome Statute provides that, if no State is designated under paragraph 1 of that article, sentences of imprisonment shall served in a prison facility made available by the host State in accordance with the conditions set out in the headquarters agreement; Whereas the Assembly of States Parties, at the third meeting of its first session held from 3 to 10 September 2002, adopted Basic principles governing a headquarters agreement to be negotiated between the Court and the host country, and adopted the Agreement on Privileges and Immunities of the International Criminal Court; Whereas the Court and the host State wish to conclude an agreement to facilitate the smooth and efficient functioning of the Court in the host State; Have agreed as follows':

approval and promulgation of Treaties<sup>72</sup>. By virtue of article 3 that Statute empowers the government, as asserted several times during the negotiations in reaction to parliamentary queries, to conclude Seat Agreements by *blanc* anticipation. With regard to the final Seat Agreement concluded with ICC this Parliamentary approval on the contrary *is* needed as the Minister stated. The treaty does contain lots of provisions, strongly connected with the special functions and tasks entrusted to ICC, which are not covered by the ambit of the authorisation by *blanc* anticipation as envisaged in the just mentioned Statute. Most strikingly, the Minister did not define those special functions and tasks, which would necessitate the parliamentary approval nor did he explain how the Agreement could be compatible with the Dutch Constitution, explicitly defining in a crystal clear operative article *what* has to be understood under the 'judiciary' to which the administration of justice and the law has been assigned in the Netherlands<sup>73</sup>. Under that judiciary, as a matter of course, the *Dutch* judiciary has to be understood. The history of that article simply shows so. Of course, it is with the government to agree upon a treaty, obliging the Netherlands to equate to *that* judiciary an international, non-national judiciary as ICC is. But that equation does need national enabling legislation; and a Seat Agreement, departing from that equation, does so likewise. And *that* is the reason that it has been felt that parliamentary approval was needed with a view to the entry into force of this Final Agreement.

- 41 In general, the final Seat Agreement has been composed as a two folded instrument, just as follows:

It contains operative articles envisaging the relations between the Host State the Netherlands and ICC; it elaborates in this respect the Rome Statute and the Treaty on the privileges and immunities of ICC (New York dd the 9 September 2002<sup>74</sup>). The Rome Statute contains several provisions in general concerning the status, privileges and immunities of ICC, its employees and several categories of persons the presence of whom is needed to have the ICC functioning. Those general provisions have been worked out in the even mentioned multi-lateral treaty on privileges and immunities and in this respect the Seat Agreement keeps up with those legal instruments; the treaty – of which all the members of the so called ICC-

<sup>72</sup> Rijkswet goedkeuring en bekendmaking verdragen juncto artikel 3 van de Wet van 24 Dec. 1947 tot goedkeuring van het Verdrag inzake de voorrechten en immuniteiten van de Verenigde Naties, Staatsblad H. 452 [Statute of the Kingdom of the Netherlands on the approval and promulgation of Treaties in conjunction with article 3 of the Statute of the 24 December on the ratification of the Treaty concerning privileges and immunities of the United Nations, Official Statal Monitor H. 452]. The constitutional question as to whether Seat Agreements with international Tribunals and Courts do not need that parliamentary approval has been dealt with above, C. sub II, mn 31–33.

<sup>73</sup> See: article 112 of the Dutch Constitution in conjunction with article 113 of that Constitution. Art. 112 Dutch Constitution runs as follows: '–1. Aan de rechterlijke macht is opgedragen de berechting van geschillen over burgerlijke rechten en over schuldvorderingen. –2. De wet kan de berechting van geschillen die niet uit burgerlijke rechtsbetrekkingen zijn ontstaan, opdragen hetzij aan de rechterlijke macht, hetzij aan gerechten die niet tot de rechterlijke macht behoren. De wet regelt de wijze van behandeling en de gevolgen van de beslissingen'. [translation.: '–1. It is with the judiciary to rule on litigations concerning civil rights and concerning debts. –2. A Statute may bestow the right to adjudicate in other litigations either on the judiciary either on other courts not being member of the judiciary. The law provides for regulations on proceedings and the legal consequences of rulings and decisions']. Article 112 stems from an nineteenth centuries' provision in the former Dutch constitution, scl. Article 153; it goes without saying that that provision, given the XIXth centuries' overarching conception of absolute statal sovereignty in all the Western European States, referring to 'the judiciary' only meant: the *national* judiciary. One could easily discover that, glancing through the standard commentaries on the Dutch Constitution. Article 113 of the same Constitution runs as follows: '–1. Aan de rechterlijke macht is voorts opgedragen de berechting van strafbare feiten. –2. Tuchtrechtspraak door de overheid ingesteld wordt bij de wet geregeld. –3. Een straf van vrijheidsontneming kan uitsluitend door de rechterlijke macht worden opgelegd. –4. Voor de berechting buiten Nederland en voor het oorlogsstrafrecht kan de wet afwijkende regels stellen'. [translation: '–1. It is furthermore with the judiciary to sit on criminal matters. –2. Rules governing disciplinary proceedings shall be given by Statute, if those proceedings have been established by the government. –3. Penalties prompting deprivation of liberty shall only be handed down by the judiciary. –4. By Statute may be provide for special regulations on extraterritorial adjudications and proceedings on international humanitarian law'.

<sup>74</sup> Netherlands Treaty Series 2004, No. 55.

family are addressees, so it is an instrument *erga omnes* – will be the main interpretative instrument to provide for the correct renditions of the Agreement in cases of unclarities or uncertainties in the latter document.

In addition, the Agreement provides for specific provisions to facilitate the appropriate functioning in the Netherlands, mainly imposing host obligations on that state, providing for guarantees for ICC, its organs and employees. Here, the ICC and the Netherlands are the addressees; those provisions are not set up to work *erga omnes*. More specifically, nor the Assembly of State Parties, nor a specific member of that Assembly are to be seen as addressees. The Assembly has to be seen as a ‘third party’ and the Seat Agreement as a *res inter alios gesta* in relationship to the Assembly. The legal fact that the Assembly devised the ‘Basic principles’ underlying the Seat Agreement, nor the fact that the Assembly had to ‘approve’ the Agreement, does make the Assembly ‘party’ to the Agreement, let alone one of its members in particular. That is exactly the reason why article 1 only defines the Netherlands as ‘host State’ and the Court itself as ‘the parties’ to the Agreement. The definite article ‘the’ (Parties) is significant in this context. There are no other. The States, members of the Assembly are ‘Parties’ to the *Statute*. Not to the Seat Agreement.

## 2. Article by article in general

Chapter I of the Seat Agreement contains the articles 1 and 2. One has to consider those articles as mere standardised provisions, clarifying the terminology used in the Agreement (article 1<sup>75</sup>) and defining the goals, objectives and radius of action of the Agreement (article 2).

<sup>75</sup> Article 1 of the final Seat Agreement runs as follows: ‘*Use of terms* For the purpose of this Agreement: a) “the Statute” means the Rome Statute of the International Criminal Court adopted on 17 July 1998 by the United Nations Diplomatic Conference of Plenipotentiaries on the Establishment of an International Criminal Court; b) “the Court” means the International Criminal Court established by the Statute; for the purpose of this Agreement, the Secretariat shall be an integral part of the Court; c) “the host State” means the Kingdom of the Netherlands; d) “the parties” means the Court and the host State; e) “States Parties” means States Parties to the Statute; f) “representatives of States” means all delegates, deputy delegates, advisers, technical experts, secretaries, and any other accredited members of delegations; g) “the Assembly” means the Assembly of States Parties; h) “the Bureau” means the Bureau of the Assembly; i) “subsidiary bodies” means the bodies established by the assembly or the Bureau; j) “the officials of the Court” means the judges, the Prosecutor, the Deputy Prosecutors, the Registrar, the Deputy Registrar and staff of the Court; k) “the judges” means the judges of the Court elected by the Assembly in accordance with article 36, paragraph 6, of the Statute; l) “the Presidency” means the organ composed of the President and the First and Second Vice-Presidents of the Court in accordance with article 38, paragraph 3, of the Statute; m) “the President” means the President of the Court elected by the judges in accordance with article 38, paragraph 1, of the Statute; n) “the Prosecutor” means the Prosecutor elected by the Assembly in accordance with article 42, paragraph 4, of the Statute; o) “the Deputy Prosecutors” means the Deputy Prosecutors elected by the Assembly in accordance with article 42, paragraph 4, of the Statute; p) “the Registrar” means the Registrar elected by the judges in accordance with article 43, paragraph 4, of the Statute; q) “the Deputy Registrar” means the Registrar elected by the judges in accordance with article 43, paragraph 4, of the Statute; r) “staff of the Court” means the staff of the Registry and the Office of the Prosecutor as referred to in article 44 of the Statute. Staff of the Registry includes staff of the Presidency and of Chambers, and staff of the Secretariat; s) “the Secretariat” means the Secretariat of the Assembly established by resolution ICC-ASP/2/Res.3 dated 12 September 2003; t) “interns” means graduates or postgraduates who, not being members of staff of the Court, have been accepted by the Court into the internship program of the Court for the purpose of performing certain tasks for the Court without receiving a salary from the Court; u) “visiting professionals” means persons who, not being members of staff of the Court, have been accepted by the Court into the visiting professional program of the Court for the purpose of providing expertise and performing certain tasks for the Court without receiving a salary from the Court; v) “counsel” means defence counsel and the legal representatives of victims; w) “witnesses”, “victims” and “experts” means persons designated as such by the Court; x) “the premises of the Court” means buildings, parts of buildings and areas, including installations and facilities made available to, maintained, occupied or used by the Court in the host State in connection with its functions and purposes, including detention of a person, or in connection with meetings of the Assembly, including its Bureau and subsidiary bodies; y) “the Ministry of Foreign affairs” means the Ministry of Foreign affairs of the host State; z) “the competent authorities” means national, provincial, municipal and other competent authorities under the laws, regulations and customs of the host State; aa) “the Agreement on Privileges and immunities of the Court” means the Agreement on Privileges and Immunities of the International Criminal Court referred to in article 48 of the Statute and adopted at the third meeting of the first session of the Assembly held from 3 to 10 September 2002 at the United Nations Headquarters in New York; bb) “the Vienna Convention” means the Vienna



As a matter of course, in comparison with the ICTY Seat Agreement, the list of terminological definitions has been considerably enlarged. Especially noticeable are the definitions devoted to the Assembly of States Parties and the organs and employees of that Assembly. The Seat Agreement contains some provisions with regard to that Assembly, if convening in the host State. The remarkable thing is, that this does not fall, strictly speaking, within the ambit of a Seat Agreement between the Netherlands and ICC as such. Hosting ICC is one thing, hosting the Assembly is another. But it seemed practicable to have the provisions on transit movements, entry into the country, immunities and privileges regarding the delegates and the personnel of the Assembly and its organs (its Bureau for example) in one comprehensive document, whereas ICC and the Assembly are tightly interconnected. Therefore the Seat Agreement sees not only to provisions guaranteeing the adequate functioning of ICC and its independence in relation to the host State, but also to the adequate functioning of the Assembly of States Parties, the organs of the Assembly and its Secretariat. The Assembly, unlike ICC, does not have any legal personality at all as self-standing entity in the relation to the host State<sup>76</sup>. Therefore, it seemed to be impossible to conclude an apart Seat Agreement with the Assembly. The Seat Agreement with ICC offers the legal framework for having the Assembly seating and functioning in the Netherlands. But it is ICC, according to article 33, fourth paragraph, of the Seat Agreement<sup>77</sup>, which has to make due efforts in order to guarantee good compliance at the side of the host State with the provisions pertaining the facilities, immunities, privileges, entry into the host State and unimpeded leaving from there, transit movements and the like to the benefit of persons in any way taking part in a conference of the Assembly. Strictly speaking, ICC does not have any authority over those persons, but it acts like a kind of trustee for the sake of the Assembly. Again it should be stressed, although the Seat Agreement does contain some provisions to the benefit of the Assembly, the Assembly *remains third party*, or better, no party at all. See above. This enlargement of the ambit of the Agreement is in line with the scope of the Agreement on the Privileges and Immunities of the International Criminal Court as of the 9<sup>th</sup> of September 2002. That Agreement contains in the articles 13 and 25 special provisions regarding the position of delegates attending conferences and meetings of the Assembly and its subsidiary organs. See below in detail sub VII. In this context we would like to flag already that we are *not* referring to the privileges, exemptions and immunities as meant in article 48 of the Statute<sup>78</sup>. That article envisages the exemptions, immunities and privileges to be enjoyed by the Court, its employees and (subsidiary) organs in the territory of *each* State Party. Here we are dealing with that kind of jurisdictional phenomena in relation to the host State, to be observed by the host State and the host State alone. Issues arising from the already mentioned additional Agreement on the Privileges and Immunities of the International Criminal Court as of the 9 September 2002 (New York) are envisaged under article 48 of the Statute as well. Another striking thing is the reference made in article 1, sub z) to 'the competent authorities'. Here only *Dutch*, national, authorities are meant. The question arises as to whether the definition is not too rigid and inflexible. The

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Convention on Diplomatic Relations of 18 April 1961; cc) "the Rules of Procedures and Evidence" means the Rules of Procedure and Evidence adopted in accordance with article 51 of the Statute'.

<sup>76</sup> As stressed by the Ministers for Foreign Affairs and Justice of the Kingdom of the Netherlands, Stukken Eerste en Tweede Kamer, Zetelverdrag tussen het Internationaal Strafhof en het Gastland; 's-Gravenhage, 7 Juni 2007 (Tractatenblad 2007, No. 125), No. 31.274, No.1 (Brief van de Minister van Buitenlandse Zaken met toelichtende nota, Den Haag, 13 Nov. 2007) [Hansard of the Upper and the Lower House, Seat Agreement between the International Criminal Court and the host State, The Hague, the 7<sup>th</sup> of June 2007 (Netherlands Treaty Series 2007, No. 125), No. 31.274, No. 1 (Letter of the Minister for Foreign Affairs with explicatory note, The Hague, the 13 November 2007)].

<sup>77</sup> This paragraph 4 of article 33 of the Seat Agreement runs as follows: '*General cooperation between the Court and the host State (...)* -3. Without prejudice to the powers of the Prosecutor under article 42, paragraph 2, of the Statute, the Registrar, or a member of staff of the Court designated by him or her, shall serve as the official contact point for the host State, and shall be primarily responsible for all matters in relation to this Agreement. The host State shall be informed promptly about this designation and of any subsequent changes thereof'.

<sup>78</sup> See article 48 ICCS: '-1. The Court shall enjoy in the territory of each State Party such privileges and immunities as are necessary for the fulfillment of its purposes. -2 (*etc.*)'.



Netherlands does host lots of organisations, having special competences in criminal matters, with whom ICC might want to come into contact – if necessary, by the host State as intermediary – with a view to cooperation and assistance. Think of EUROPOL and EUROJUST, and, perhaps, later on, the European Prosecutorial Service as envisaged in the 2007 Lisbon document<sup>79</sup>, being an emanation – in the eyes of the founding fathers of the Lisbon document – of EUROJUST, seating in The Hague. An open ended definition of ‘competent authorities’ – encompassing all authorities being apt to wield competences in the Netherlands in criminal matters would have been more preferable. Just remember the fact that the enlargement of the Seat Agreement by amendment of that definition needs the approval of the Assembly of States Parties – a rather cumbersome exercise.

article 2<sup>80</sup> defines the purpose and scope of the Seat Agreement. Again, it follows the phraseology of the ICTY Arrangement. The Agreement regulates matters relating to or arising out of the establishment and the proper functioning of the Court in the host State. Again, we stress the geographical limitation of the scope of the Agreement: *in the host State*. The Agreement has to provide, *inter alia*, for the long-term stability and independence of the Court. It has to facilitate its smooth and efficient functioning, including, in particular, its needs with regard to all persons required by the Court to be present at its seat and with regard to the transfer of information, potential evidence and evidence into and out of the host State. The Seat Agreement has to regulate matters relating to or arising out of the establishment and proper functioning of the Secretariat of the Assembly of States Parties in the host State. The provisions as laid down in the Agreement apply, *mutatis mutandis*, to the Secretariat. And, as mentioned – here we are facing the overall solution with regard to the Assembly – the Agreement shall, as appropriate, regulate, *mutatis mutandis*, matters relating to the Assembly, including its Bureau and subsidiary bodies.

Chapter II of the Agreement (articles 3–16) contains standardised provisions, mainly on the status, privileges and immunities of the Court. See for more details hereunder ad VIII.

Chapter III (articles 17–29) envisages the persons falling under the scope of the Agreement and provides for standardised regulations in line with the already mentioned Vienna Convention on diplomatic relations of 18 April 1961. The pivot issues here are the exemptions, privileges and immunities for, at first instance, the most high-ranking functionaries of the Court (article 17) and, secondly, for the other personnel. The articles 21 and 22 regard the position of representatives of States. Like in the Agreement on the Privileges and Immunities of the International Criminal Court a distinction has been drawn between representatives of States, participating in the procedures of the Court (article 21) and representatives of States, attending the meetings and conferences of the Assembly of States Parties. Just like the Agreement on Privileges and Immunities of the International Criminal Court the Seat Agreement contains apart from that further elaborated regulations concerning the position of different categories of persons, normally not mentioned in Seat Agreements, but the presence of which, given the task and function of ICC, is indispensable for the adequate functioning of the Court. Especially one has to think of counsel, attorneys and persons, assisting the defence, witnesses and victims. Here one has to bear in mind that some non-governmental organisations are specialised in assisting certain groups of victims, like, for example, the ‘women’s caucus’.

<sup>79</sup> Treaty of Lisbon amending the Treaty on European Union and the Treaty establishing the European Community, Brussels, 3 Dec. 2007 (OR.fr) CIG 14/07 (Conference of the representatives of the Governments of the Member States), see article 69E.

<sup>80</sup> Article 2 Seat Agreement runs as follows:

‘This Agreement shall regulate matters relating to or arising out of the establishment and the proper functioning of the Court in the host State. It shall, *inter alia*, provide for long – term stability and independence of the Court and facilitate its smooth and efficient functioning, including, in particular, its needs with regard to all persons required by the Court to be present at its seat and with regard to the transfer of information, potential evidence and evidence into and out of the host State. This Agreement shall also regulate matters relating to or arising out of the establishment and proper functioning of the Secretariat in the host State, and its provisions shall apply, *mutatis mutandis*, to the Secretariat. This Agreement shall, as appropriate, regulate matters relating to the Assembly, including its Bureau and subsidiary bodies’.

- 47 Chapter IV of the Seat Agreement (articles 30–32) envisages a standardised subject: the waiving of immunities, privileges and exemptions granted by virtue of provisions formulated elsewhere in the Agreement. The basic assumption is that privileges, immunities and facilities provided for by the Seat Agreement are accorded to judges, the Prosecutor, the Deputy Prosecutors, the Registrar, members of staff of the Court, the members of subsidiary bodies and to experts, in one word: all the persons under the Seat Agreement, in the interests of the good administration of justice and not for the personal benefit of the individuals themselves. Per category of functionaries, officials or persons affiliated with ICC the wording of this principle has been adapted being the objective parameters the same<sup>81</sup>. In Chapter III of the Agreement a great diversity of categories of persons has been mentioned. Therefore, it was necessary to provide for lots of specific regulations on waiving. We could not confine ourselves with an overall stipulation bestowing on one functionary – the Registrar – the general competence of waiving all the exemptions, immunities and privileges mentioned or referred to in Chapter III with a view to all those categories. Besides that, we had to take due care not to come into conflict with the provisions contained in article 48 of the Statute itself and the regulations in the articles 25 and 26 of the Agreement on the Privileges and immunities of the International Criminal Court. Of course, it is not with the host State to decide on waiving, the host State can only ask for it. The authority for waiving differs per category. Sometimes, that competence will be with an absolute majority of the ICC judges (if the request for waiving concerns a judge or the Prosecutor), sometimes a State Party (in case the request concerns a delegate of that State to the Assembly), sometimes the President of the Assembly (in case the request concerns members of subsidiary bodies of the Assembly of States Parties and experts performing functions to the benefit of the Assembly).
- 48 Chapter V, Section 1 (General) of the Seat Agreement (articles 33–38) envisages the cooperation and assistance between the Court and the Dutch authorities. Again, this is a kind of international cooperation and assistance on a pure bilateral basis *sui generis* arising out of the special position of the host State as contracting party. Here, we are *not* dealing with the same provisions as contained in Part IX of the Statute devoted to international cooperation and judicial assistance with *all* the States Parties to the Statute. Nevertheless, it has been tried to apply in those articles of the Agreement some principles underlying Part IX *per analogiam* as far as possible. One of those principles is the principle of reciprocity: the ICC may ask for cooperation, but the host State may do so vice versa. Given the special relationship between the ICC and the host State, one will find some new provisions in this Chapter, not being built into the existing ICTY Seat Agreement and Host Arrangements. The basic principle is that, whenever the Seat Agreement imposes obligations on the competent authorities of the host State, the ultimate responsibility for the fulfilment of such obligations shall rest with the Government of the host State<sup>82</sup>. In this context, it is highly relevant, that the Dutch Government has to carry responsibility not only towards ICC but also towards the both Houses of Parliament which are constantly monitoring as to whether the Netherlands does fulfil its duties as host State properly. Article 33 stipulates that both Parties are bound to designate an official point of contact for the communication of request for cooperation and assistance, being primarily responsible for the due implementation of the Seat Agreement. For the Netherlands, this will be the Division Cabinet Affairs and Protocol of the Ministry for

<sup>81</sup> For the judges, the Prosecutor, the Deputy Prosecutor, the Registrar, the staff of the Court, personnel recruited locally, family members of officials of the Court, interns and visiting professionals, counsel and assisting counsel, witnesses, victims, experts and other persons required to be present at the seat of ICC the wording of the criterion for waiving is as to whether the person acted in the ‘interests of the good administration of justice’. For representatives of States, members of the Bureau of the Assembly and intergovernmental organisations the criterion is that the immunity (etc.) has to ‘safeguard the independent performance of their functions, in connection with the work of the Assembly, including the Bureau and subsidiary bodies and the Court’.

<sup>82</sup> See para. 1 of article 33 of the Seat Agreement, running as follows: ‘General cooperation between the Court and the host State –1. Whenever this Agreement imposes obligations on the competent authorities, the ultimate responsibility for the fulfilment of such obligations shall rest with the Government of the host State’.

foreign Affairs. Mainly the task of this Division will be to communicate the requests – unless they are *not* operational (which seldom happens) – as soon as possible to the national competent authorities, which will be the Minister of Justice or the Dutch Prosecutorial Service. This was already standing practice in the relationship with ICTY and ICTR.

Chapter V, Section 2 (Visas, permits and other documents) envisages the granting of visas, permits and other documents by the host State for the officials of the Court and for persons required to be present at the Seat of the Court not being suspects. Whenever a person requests for entry to the Netherlands in order to perform a function at the seat of the Court, the Netherlands is under the obligation to grant unimpeded entry. Yet, it is with the Netherlands to put forward conditions to this entry for the sake of national order or security or to limit the freedom of movement within the country. The same does not apply for visitors of persons detained by the Court, independent bodies of counsel or legal associations, journalists and non-governmental organisations. Here there is no overarching international *obligation* to grant full entry to the Netherlands. Detainees enjoy the right to be visited by their family, counsel and advisors (see below VI) but they are not entitled to be visited by *specific persons in a specific case* at their choice. Here, it is with the Netherlands to put limits to the entry into the country and even to refuse the entry entirely with a view to the national security, order and other public interests, formulated in the national Statute on the admission and settlement of foreigners or the so called Schengen Implementation Agreement (Netherlands Treaty Series 1990, No. 145). The only direct obligation incumbent on the Netherlands by virtue of the Seat Agreement is to ask the ICC for comments before deciding on a request for a visa including the putting forward of certain limits, when granting a visa. For official participants to the ICC proceedings, the granting of visa will be free of costs. That will not apply to the other categories. Again, we are facing standing ICTY practice. With regard to members of staff of international attorneys associations or legal associations, journalists and members of non-governmental organisations that support the fulfilment of the mandate of the Court special provisions have been drawn up in article 40 of the Seat Agreement whereas the presence of those persons at the Courts' premises could be vital for the proper functioning of the Court. The Netherlands accepted the obligation to take all the necessary measures to facilitate the entry into, stay and employment in the host State of representatives of those bodies or organisations, when deployed in, or visiting the host State in connection with activities relating to the Court. The host State engaged in taking all necessary measures to facilitate the entry into and stay of members of the family forming part of the household or such representatives who are deployed in the host State. For the purpose of facilitating the procedure of entry into, stay and employment in the host State of those representatives of bodies or organisations, the host State and ICC shall consult, as appropriate, with each other, and with any independent representative bodies of counsel or legal associations, media, or non-governmental organisations.

Section 3 of Chapter V deals with security and operational assistance from the side of the host State. In short, here we are facing the same kind of arrangements which are already standing practice in relation with ICTY, especially with a view to the implementation of detentional measures (see below sub VI) and transit arrangements (see below sub V). With regard to detentional and penitentiary measures, the main point of departure remains that ICC – like ICTY – will be the principal responsible party for the penitentiary regime and the way detentional measures will be enforced. As a matter of principle, the Netherlands keeps to be only a facilitating party. Yet, in exceptional cases, it could be that the host Country carries a subsidiary, collateral responsibility in this context. Again we refer to what has been said about this collateral responsibility sub V, especially with reference, by footnotes, to the jurisprudence of the ECHR.

Article 49 of the Seat Agreement reformulates the obligation incumbent on the host Country under article 103 of the Statute. It is with the Netherlands to enforce sentences of imprisonment whenever ICC is unable to designate another State willing to enforce. See the commentaries on article 103 of the Statute. The reformulation is rather vague and, to a

certain extent, superfluous where it simply doubles the text of the Statute. At the side of ICC there is no experience whatsoever with this kind of matters of final enforcement. The ICC has expressed, during the negotiations, its desire to conclude special enforcement agreements with ‘willing parties’ under article 103 of the Statute, and if ICC is unable to find them, with the Netherlands as host State on a case-by-case bound basis. The question of enforcement, with its practical arrangements, should be entirely relegated to such special enforcement agreement. ICC has shown its willingness to do everything to find ‘willing parties’ even outside the ICC family and to do more in this context than the Statute indicates. Even after the commencement of the enforcement of a sentence under article 103, paragraph 4, of the Statute, ICC has engaged in the obligation – in the Seat Arrangement – which is rather an odd place to formulate such obligation – to continue its endeavours to designate a State of enforcement. To that end, ICC will communicate to the host State developments that it considers relevant. The Court shall inform the host State as soon as it has found a ‘willing State’. If the host State is to enforce, it may communicate to ICC for its consideration humanitarian concerns or other concerns related to the conditions or modalities of enforcement for the purposes of supervision of enforcement of sentences and conditions of imprisonment.

- 52 Chapter VI of the Seat Arrangement envisages the final clauses and inter-temporal provisions. It will be, according to article 52 of the agreement, with ICC and the Netherlands to draw up additional Host Arrangements without the need of consent of the Assembly of States Parties. As said above sub IV, this was already standing practice in the relation with ICTY. The only addition to this practice is the formal assessment that no formal consent of the Assembly is needed.

#### IV. The ICC premises as enclave within the territorial jurisdiction of the Netherlands

- 53 As from the outset, both parties – the UN on one hand and the host country on the other – departed from the assumption that the ICTY premises<sup>83</sup> would enjoy the status of a so-called ‘juridical enclave’ in the territorial jurisdiction of the Netherlands. The premises as defined and delineated in the Headquarters Agreement<sup>84</sup> would enjoy the same inviolability as prescribed for the premises of diplomatic missions according to article 22 of the 1961 UN Geneva Convention on Diplomatic Relations<sup>85</sup>. The host state undertook to take all the relevant measures to guarantee that inviolability. To that end, it would take care that the Tribunal would not be disposed of all or any part of the ICTY premises without the express consent of the Tribunal. Immunity from search, seizure, requisition, confiscation, expropria-

<sup>83</sup> Originally the Draft Host Agreement referred to ‘the Tribunal District’; but this seemed to both parties too vague an expression. The term ‘district’ as was argued from the side of the host country, has a certain geographical connotation, which suggests that ICTY has an overall continuously connected area at its disposal, which would certainly not be the case; the penitentiary buildings would not be in the near vicinity of the proper Court buildings in the centre of The Hague. The original delineation of the ICTY premises referred to ‘any lands, buildings, parts of buildings’ and ‘facilities made available to, maintained, occupied or used by the Tribunal’. Whereas it was foreseeable that ICTY would be seating on different locations, the term ‘premises’ (plural) had been introduced in the final Agreement. (See: Memorandum of the Ministry of Foreign Affairs as of the 20 July 1993 Nr 35/93). In the Draft as of the 22 July 1993, article IV runs as follows: ‘**Application of the Conventions** The General Convention and the Vienna Convention shall be applicable *mutatis mutandis* to the Tribunal, its property, funds and assets., to the Tribunal district, to the Judges, the Prosecutor and the Registrar and their staff and experts on mission in the host country and the officials of the tribunal’.

<sup>84</sup> See about the distinction Headquarters Agreement/Host State Agreement/Host Arrangements mn 5 and 6.

<sup>85</sup> This article runs as follows: ‘1. The premises of the mission shall be inviolable. The agents of the receiving State may not enter them, except with the consent of the head of the mission. 2. The receiving state is under a special duty to take all appropriate steps to protect the premises of the mission against any intrusion or damage and to prevent any disturbance of the peace of the mission or impairment of its dignity. 3. The premises of the mission, their furnishings and other property thereon and the means of transport of the mission shall be immune from search, requisition, attachment or execution’.

tion and any other form of interference, whether by executive, administrative, judicial or legislative action was guaranteed with regard to property, funds and assets of the Tribunal<sup>86</sup>. From the open-ended terminology 'and any other form of interference' flows clearly that the list of actions from which the host country is to refrain is an enunciative, not a limitative one. Article IV of the Draft Headquarters Agreement declared the 1948 General Convention on the Privileges and Immunities of the UN and the 1961 Vienna Convention in Diplomatic Relations *mutatis mutandis* applicable to the ICTY premises, its property, funds and assets, to the Judges, the Prosecutor and the Registrar, the officials of the Tribunal and persons performing missions for the ICTY<sup>87</sup>. According to the understanding of the host country, this 'inviolability' implied the *applicability* of the national law of the host country within those premises *without the enforceability thereof*. In accordance with this stand, the host country proposed to rephrase the text in such a way that the overall applicability of the national laws and regulations would be a matter of principle, with some exceptions strictly limited to those cases in which the proper functioning of the ICTY would directly require the prevalence over the domestic laws and the like.

The original wording of the Draft seemed to leave the question which Regulation or law would prevail in a certain jurisdictional conflict to the wide discretion of the ICTY, which was hardly acceptable to the host country, given the legal uncertainties which the territorial authorities would have to cope with in this kind of cases<sup>88</sup>. This jurisdictional principle in favour of the host country has been explicitly worded in article VI, paras. 1. and 2. of the Headquarters Arrangement<sup>89</sup>, therefore it would be erroneous to consider the ICTY premises as 'extritorialities' in the classic sense. The enforceability is dependent on the consent of the competent authority of the entity to be hosted<sup>90</sup>. As such the Draft Headquarters Agreement<sup>91</sup> designated originally the President of the ICTY<sup>92</sup> but, for reasons of expediency and practicability this has been changed into the ICTY Registrar<sup>93</sup>, so did the final text of the

<sup>86</sup> See article V of the 1994 Draft, first paragraph: 'Inviolability of the Premises of the Tribunal –1. The premises of the Tribunal shall be inviolable. The competent authorities shall take whatever action may be necessary to ensure that the Tribunal shall not be dispossessed of all or any part of the premises of the Tribunal without the express consent of the Tribunal. The property, funds and assets of the Tribunal, wherever located and by whomsoever held, shall be immune from search, seizure, requisition, confiscation, expropriation and any other form of interference, whether by executive, administrative, judicial or legislative action'.

<sup>87</sup> See article IV of the Draft as of the 27 May 1994, running as follows: 'Application of the General and Vienna Conventions The General Convention and the Vienna Convention shall be applicable *mutatis mutandis* to the Tribunal, its property, funds and assets, to the premises of the Tribunal, to the Judges, the Prosecutor and the Registrar, the officials of the Tribunal and persons performing missions for the Tribunal'.

<sup>88</sup> Memorandum as of the 20 July 1993 No 35/93 Ministry of Foreign Affairs No 35/93.

<sup>89</sup> See article VI, paras. 1. and 2. of the Host Agreement: '1. The premises of the Tribunal shall be under the control and authority of the Tribunal, as provided in this Agreement. 2. Except as otherwise provided in this Agreement or in the General Convention [on the Privileges and Immunities of the UN, added by the author], the laws and regulations of the host country shall apply on the premises of the Tribunal'.

<sup>90</sup> Originally this had been expressed in an explicit provision in the Draft article V of the Draft as of the 22 July 1993, paragraph 3: 'Judicial actions and the service or execution of legal process, including the seizure of private property, cannot be enforced in the Tribunal district except with the consent of and in accordance with conditions approved by the President of the Tribunal'. These provisions seemed both parties rather superfluous. Therefore it has been skipped without altering the purview of the article designating the balance of jurisdictional competences between the Host Country and ICTY.

<sup>91</sup> The terminology used in the current Agreements between the host country and the ICTY and the ICC is not consequent when referring to the legal instruments governing those relations: sometimes 'Headquarters Agreement' is used, sometimes 'Host Agreement' and sometimes 'Host State Agreement'. We will try to use in the main text the terminology as spelled out above mn 5.

<sup>92</sup> Article V para. 2 of the Draft as of the 22 July 1993 runs as follows: '2. The appropriate authorities of the host country shall not enter the Tribunal district to perform any official duty, except with the express consent, or at the request of, the President of the Tribunal or an official designated by him. Judicial actions and the service and execution of legal process, including the seizure of private property, may take place within the Tribunal district only with the consent or under conditions approved by the President'.

<sup>93</sup> See article V para. 2 of the above mentioned Draft: '2. The competent authorities shall not enter the premises of the Tribunal to perform any official duty, except with the express consent, or at the request of, the

Agreement. This consent for the use of enforcement power can be given *ex ante* or *ex post* (after the action being taken) in *general* (for certain categorically denominated events) or *ad hoc*. General consent usually is given by virtue of the exchange of letters of understanding between the Registry and the host country. The Registrar may mandate an official within the Registry to represent him with a view to the all day nitty-gritty issues. The competent counter authority on behalf of the host country is the Minister of Foreign Affairs. This official mandates a servant of his department seconded by an official of the Ministry of Justice, commonly known as 'the liaison officer'. It is the latter who really has to implement the additional arrangements with the ICTY as meant in paragraph 2 of article V of the Host Arrangement. The liaison officer has to maintain contact with the ICTY on a weekly basis.

- 55 With the ICC there is no need for such a frequent contact until now whereas the ICC did not really wield its jurisdiction as defined in the Rome Statute. The same kind of relationship between the ICTY and the Host Country is foreseen for cases of fire or other emergencies<sup>94</sup>. Again there exists a bunch of additional arrangements between the mandated official of the Registry and the liaison officer how to deal with this kind of incidents which requires protective action at the side of the host country. Such an arrangement is also given in case the Registrar deems it necessary to expel or exclude a person from the ICTY premises. Whereas the ICTY does not have real enforcement power of its own to do this in a satisfactory way, the rendering of help by the host state is needed; besides that, the host country can not tolerate such an expelled person lurking around within its territorial jurisdiction. *Ad hoc* consultation how to deal with the expelled or excluded person *afterwards* is indispensable. In a majority of these cases, the expelled person has to be considered as 'illegal foreigner' according to Dutch legislation; it could be in the interest of the ICTY jurisdiction to give the person another, more privileged or special, status. Those are the 'Host Arrangements' already referred to (see above under General Remarks number IV, mn 7 and 8). In this kind of cases consent *ex post* mainly will do; in cases the consent cannot be given *ex ante* – and this will be in the majority cases here envisaged – the consent on behalf of the Registry will be presumed. It has been the understanding of both parties that the Tribunal would need to issue certain operative regulations on the premises of the Tribunal for the purpose of establishing therein the conditions in all respects necessary for the full execution of its functions as a supranational judiciary. The arrangements on the treatment of the suspect, accused or other detainees of ICTY would not be an issue to be dealt with in this kind of Regulations<sup>95</sup>. This has been expressed in a side letter<sup>96</sup>. The Draft Seat Agreement of the 22 July 1993 stipulated that those regulations 'shall be consistent with generally accepted principles of international law, including existing norms and standards in the field of crime prevention, criminal justice and the treatment of offenders'<sup>97</sup>. This posed a problem. It should be noted that the

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Registrar or an official designated by him. Judicial actions and the service or execution of legal process, including the seizure of private property, cannot be enforced on the premises of the Tribunal except with the consent of and in accordance with conditions approved by the Registrar'.

<sup>94</sup> See article V paras. 3–5 of the Host Arrangement: '3. In case of fire or other emergency requiring prompt protective action, or in the event that the competent authorities have reasonable cause to believe that such an emergency has occurred or is about to occur on the premises of the Tribunal, the consent of the Registrar, or an official designated by him, to any necessary entry into the premises of the Tribunal shall be presumed if neither of them can be reached in time. 4. Subject to paragraphs 1, 2 and 3 above, the competent authorities shall take the necessary action to protect the premises of the Tribunal against fire or other emergency. 5. The Tribunal may expel or exclude persons from the premises of the Tribunal for violation of its regulations'.

<sup>95</sup> In a side letter this has been expressed in the following wording: 'It is the understanding of both parties that none of the regulations made operative by the Tribunal based on the power given to it under article VI para 3 of the Agreement, shall relate to any question of treatment on its premises of the suspect, accused or other persons detained by the tribunal: these matters shall be dealt with by the Tribunal in accordance with its competence under article 15 of its Statute'.

<sup>96</sup> See below mn 59 *et seq.*

<sup>97</sup> See article VI, para. 2 of the Draft. '2. The Tribunal shall have the power to make regulations operative within the Tribunal district for the purpose of establishing therein the conditions in all respects necessary for the full execution of its functions. Such Regulations shall be consistent with generally accepted principles of



regulations referred to in the Draft would be different in nature from the rules or regulations in the field of criminal justice and treatment of offenders. The regulations specified in the Draft would be those dealing with special security issues, qualifications for professional and other occupational services, operational services and limitation of liability in respect of acts occurring within the premises of the Tribunal *etc.* Such types of regulations are not codified and, therefore, should not conform necessarily with generally accepted principles of international law. According to the proposal of the host country, the references the 'generally accepted principles of international law' were deleted.

It is understood, however, that the Tribunal would need to issue the regulations, superseding the corresponding Dutch laws and regulations in the field of criminal justice and treatment of offenders. Under article 15 of its Statute, the Tribunal is to 'draft and adopt the Rules of Procedure and Evidence ... governing the pre-trial phase of the proceedings, the conduct of trial and appeals, the admission of evidence, the protection of victims and witnesses and *other appropriate matters* (emphasis added)'. Accordingly, the Tribunal is empowered to take up the issue of regulations in the field of criminal justice and treatment of offenders under the item 'other appropriate matters'. Therefore, both parties deemed it not advisable to discuss in the Headquarters Agreement the regulations of this kind. It had been contemplated that in preparing such regulations the Tribunal would be guided – as a matter of course without any stipulation by any operative article – by 'generally accepted principles of international law including existing norms and standards in the field of crime prevention, criminal justice and the treatment of offenders'<sup>98</sup>. It was the understanding that these matters would be taken up by the Tribunal in accordance with its mandate under article 15 of the ICTY Statute. Article VI of the Seat Agreement is phrased according to these lines<sup>99</sup>. The still pending issue is which authority has to be considered to be competent to rule on the inconsistency of the domestic laws of the host country with the Tribunal's regulation. It was the view of the UN that this would only be with the ICTY. That seems a too simple solution. It is the national judiciary of the host country which rules on the interpretation to be given to the Dutch laws, drafted in the legal language of the host country or that of the EU. What if the Dutch judiciary comes to the conclusion that the rendition given by the ICTY to the Dutch law or regulation is completely antithetical to its wording and the intentions of its legislator and that, accordingly, the inconsistency as stated by the ICTY does not exist at all? In that case, the question has to be solved according to the lines set out in the fourth Paragraph of the Host Agreement: ICTY and Host Country have to seek the mediation of an arbitral Tribunal, according the gist of article XXVIII of the Seat Agreement (see below). Pending arbitration, the ICTY regulations will apply. Originally, the

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international law, including existing United Nations norms and standards in the field of crime prevention, criminal justice and the treatment of offenders. The Tribunal shall promptly inform the competent authorities of Regulations thus enacted in accordance with this paragraph. No law or regulation of the host country which is inconsistent with a Regulation of the Tribunal shall, to the extent of such inconsistency, be applicable within the Tribunal district'.

<sup>98</sup> See the comments of the UN on the Draft as of the 24 May 1994.

<sup>99</sup> Article VI of the Seat Agreement runs as follows:

**'Law and authority on the premises of the Tribunal:**

1. The premises of the Tribunal shall be under the control and authority of the Tribunal, as provided in this Agreement. 2. Except as otherwise provided in this Agreement or in the General Convention, the laws and regulations of the host country shall apply on the premise of the Tribunal. 3. The Tribunal shall have the power to make regulations operative on the premises of the Tribunal for the purpose of establishing therein the conditions in all respects necessary for the full execution of its functions. The Tribunal shall promptly inform the competent authorities of regulations thus enacted in accordance with this paragraph. No law or regulation of the host country which is inconsistent with a regulation of the Tribunal shall, to the extent of such inconsistency, be applicable within the premises of the Tribunal. 4. Any dispute between the Tribunal and the host country, as to whether a regulation of the Tribunal is authorised by this article, or as to whether a law or regulation of the host country is inconsistent with any regulation of the Tribunal authorised by this article, shall be promptly settled by the procedure set out in article XXVIII para. 2 of this Agreement. Pending such settlement, the regulation of the Tribunal shall apply and the law or regulation of the host country shall be inapplicable on the premises of the Tribunal to the extent that the Tribunal claims it to be inconsistent with its regulation'.



host country took the stand that this interim applicability would depend on the content of the regulation in relationship with Dutch law: that applicability could be subject to additional negotiations between the ICTY Registry and the liaison officer. But this was unacceptable to the UN: that solution would only prompt legal uncertainties<sup>100</sup>. The host country gave in, in this respect. The host country carries full responsibility for the *external* security of the ICTY offices and for the personal protection of high officials *outside* the offices of the Tribunal. To that end the host country will make on a regular basis assessments of the level of security needed and threat analyses. Incumbent on the host country is the obligation to exercise due diligence to ensure this external security and the protection of the ICTY and to ensure the tranquillity of the Tribunal is not disturbed. Deliberately both parties used in this context very vague wordings: the concrete obligations have to be spelled out in additional memoranda of understanding, part of the Host Arrangements. The costs thereof will be reimbursed by the UN<sup>101</sup>. This all is applicable *mutatis mutandis* on the relationship with the ICC.

## V. Transit arrangements

- 57 Whereas it was foreseeable that lots of persons would be entering the Netherlands in order to pay a visit to the ICTY premises and to depart from them in order to leave the host country unimpeded, several special provisions were needed to regulate the special status of those transit movements, hence and forth and the jurisdictional relations between host country and UN during these movements within the territorial jurisdiction of the Netherlands<sup>102</sup>. This issue turned out to be one of the most intricate ones during the negotiations. The main points of departure with a view to this issue are to be found in article XXIII of the Seat Arrangement<sup>103</sup>. Those points have been worked out in additional transit arrangements concluded between the UN and the Netherlands. Originally this provision, granting freedom of transit, applied to all categories of persons referred to in the Seat Agreement<sup>104</sup>, *id est*, according to the understanding of the office of legal affairs of the UN: 'all persons performing

<sup>100</sup> See the comments of UN Legal Affairs as of the 22 Sep. 1993 on the observations of the Netherlands as of the 30 Aug. 1993 concerning the Draft Agreement between the UN and the Kingdom of the Netherlands concerning the Headquarters of the International Tribunal for the Prosecution of Persons Responsible for Serious Violations of International Humanitarian Law committed in the Territory of the former Yugoslavia since 1991: 'We are unable to share the conclusion that the phrase '... the regulation of the Tribunal shall apply and ...' would create confusion as to the extent of the applicability of a Regulation. On the contrary, without such an explicit statement that the Regulation of the Tribunal shall be applicable pending the settlement of a dispute as to whether the law or regulation of the host country is inconsistent with a Regulation of the Tribunal, the applicability of the Tribunal Regulation would only be presumed. Since the Netherlands is, in principle, agreeable that the Tribunal's Regulation shall apply provisionally during the settlement of dispute procedure, we believe it advisable to reflect such an understanding in the Agreement itself. Therefore, the phrase '... the regulation of the Tribunal shall apply...' should be retained in paragraph 4'.

<sup>101</sup> Side letter between UN and the host country as of the 2 May 1994 /TTF (92/94) 3 Host Country Agreement.

<sup>102</sup> In the Draft Agreement as of the 18 July 1993 this issue was taken up in the following wordings: 'Article XXII Entry into, exit from and movement within the Kingdom of the Netherlands  
All persons referred to in articles XV, XVI, XVII and XVIII of this Agreement shall have the right of unimpeded entry into, exit from, and movement within, the Kingdom of the Netherlands, as appropriate and for the purposes of the Tribunal. They shall be granted facilities for speedy travel. Visas, entry permits or licenses, where required shall be granted free of charge and as promptly as possible'.

<sup>103</sup> Article XXIII Entry into, exit from and movement within the Host Country:

'All persons referred to in article XIV, XV, XVII, XVIII and XIX of this Agreement as notified as such by the Registrar to the Government shall have the right of unimpeded entry into, exit from, and movement within, the host country, as appropriate and for the purposes of the Tribunal. They shall be granted facilities for speedy travel. Visas, entry permits or licenses, where required, shall be granted free of charge and as promptly as possible. The same facilities shall be accorded to persons accompanying witnesses who have been notified as such by the Registrar to the Government'.

<sup>104</sup> The original article runs as follows: 'persons referred to in articles XV, XVI, XVIII and XVIII of this Agreement shall have the right of unimpeded entry into, exit from, and movement within, the Kingdom of the Netherlands, as appropriate and for the purposes of the Tribunal. They shall be granted facilities for speedy

any mission for the Tribunal or needed for the purposes of the Tribunal'. It was the understanding of legal affairs that this provision even would cover the status of an accused, suspect or culprit 'in transit'<sup>105</sup>. This was unacceptable for the host country. Whereas the host country would have to take all the necessary precautionary measures to guarantee the safety of this category of persons, it insisted that the ICTY would inform the host country of their planned arrival as early as possible and that their transit would be submitted to consultation with the host country with a view to the needed arrangements for transport, the blocking of crossroads, the cordoning off of roads and the like. The UN could accept this point of view. This issue was singled out of the original article and covered by a side letter in which the understanding of both parties with a view to 'persons detained on the authority of the Tribunal' had been expressed: the host country undertook not to create any impediment whatsoever to neither entry into or exit from the Netherlands nor the transport between the detention facility and the tribunal of those persons<sup>106</sup>. The whole bunch of regulations has been absorbed – for the time being – as far as ICC is concerned by article 44 of the final Seat Agreement, stipulating – in an open end wording – that the transport, pursuant to the Statute and the Rules of Procedure and Evidence, of a person in custody from the point of arrival in the host State to the premises of the Court shall be carried out, at the ICC's request, by the competent authorities of the host State in consultation with the Court.

The question remains what is meant by 'impediments' in this context: the submission of 58 the transport from Scheveningen to the Aegon premises to Dutch traffic regulations and vehicular rules *could* be considered as an impediment; yet, it has been the understanding of the host country that the UN officials during this transport would abide the Dutch law in this respect. The UN could not go along with the wish of the host country to have an overall rest competence to restrict witnesses and experts in their movements for the sake of their own security without revealing to the ICTY on which factual grounds this kind of measures would be taken<sup>107</sup>. The obligation to disclose that kind of information could jeopardise the national security interests of the host country itself was argued. The UN was of the opinion, that it would be sufficient to express in the article that the freedom of movement would be conditioned by the 'appropriateness' of this for the functioning of the ICTY and 'for the

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travel. Visas, entry permits or licences, where required shall be granted free of charge and as promptly as possible'. (Draft as of the 22 May 1993).

<sup>105</sup> Legal Affairs noted in its comments as of the 22 Sep. 1993:

'Article XXIII: We noted the acceptance of our previous suggestion, the text of this paragraph now incorporates all categories of persons referred to in the Agreement. However, in the view of our previous comments concerning the use of the term 'experts on mission' this should be replaced by the expression 'persons performing missions for the Tribunal'. Whereas the host country from the very beginning of the explorative talks stated that for security reasons the transit regime for indictees, suspects and accused should be singled out from the radius of action of article XXIII, it was obvious that Legal Affairs in this respect departed from a misunderstanding which it was reluctant to leave. In connection with article XXIV as drafted, it commented: 'We note the acceptance of our previous suggestion that witnesses and experts, and in particular, suspects and accused persons should be included in the scope of operation of this article dealing with the issues of entry into, exit from and movement within the Netherlands, on the understanding that these rights are conditioned by the appropriateness' and 'for the purposes of the Tribunal'.

<sup>106</sup> See side letter of the 17 June 1994 Ruc 578 nyvul 186/3922:

'It is the understanding of the Parties that if so requested by the Tribunal, the competent authorities of the host country shall not create impediments to neither entry into and exit from the Netherlands nor the transport between the detention facility and the tribunal of persons detained on the authority of the Tribunal'. Originally the text of the side letter runs as follows: 'It is the understanding of the parties that, if so requested by the Tribunal, the competent authorities of the Host Country shall not create impediments to entry into, exit from and movement within the Host Country of the persons referred to in article 21 above'.

<sup>107</sup> See the counter comments of the Netherlands on the Draft Agreement as of the 22 July 1993 on the 27 July 1993:

'The right of unimpeded movement within the Kingdom of the Netherlands is certainly not applicable to a suspect or accused. It should also be possible to restrict the right of movement of witnesses and experts for the sake of their own security. For this reason it is proposed to limit the scope of application of article XXII to persons referred to in article XV, XVI, XVII and XIX'.

purposes of the Tribunal'<sup>108</sup>. The question remains: who is going to decide upon this 'appropriateness' or the need of certain moving 'for the purposes of the Tribunal'? The host country stuck to the stand that it would have the competence to co-decide on this, leaving a principal margin of appreciation to the ICTY, a stand which the ICTY Registry, until now could not accept. The requisition has to be solved, eventually, according to the lines set out in article XXVIII para. 2 of the Seat Agreement. In the original text of the Agreement there was an obligation incumbent on the host country 'to grant [the persons referred to in article XXIII; addition by the author] all the facilities for speedy travel'. The host country objected to this: it was completely unclear what was meant by 'facilities', besides that, in the view of the host country, it should be with the ICTY Registry to take care of the travelling of persons needed in at the ICTY premises 'for the purposes of the Tribunal'. Accordingly, this portion had been skipped. As far as witnesses, experts and counsel are concerned, they will get entry to the host country on the basis of a visa, to be granted by the Dutch national service for the immigration and the settlement of foreigners. The visa will be valid for the period of three subsequent months; after the lapse of those months, the visa could be prolonged for the maximum period of six months. The Dutch embassies and consulates in the new republics on the territory of the Former Yugoslavia are under the instruction to grant those visas at the request of the ICTY registrar. One of the unresolved questions remains what the host country has to do in case of one of those persons, showing up 'for the purposes of the Tribunal' applies for asylum by virtue of the 1951 Geneva Convention on the Status of Refugees or applies for a license to reside or to settle within the Netherlands on the basis of the Dutch statute on the entry and settlement of foreigners. At the moment of writing, a contemporary, judicial dispute is on going with regard to four ICC witnesses, who have all filed applications for asylum during their stay in the Netherlands. For an analysis of the legal elements of these proceedings, see Section X.

## VI. Detentional measures

- 59 As from the outset of negotiations it has been the complete understanding of the UN and the host country that detentional measures – irrespective as to whether it would be measures of a pre-trial, a pending trial or to enforce the ICTY sentences – would be under the full responsibility of the ICTY, governed by the ICTY detentional regulations<sup>109</sup>. In the Dutch enabling legislation this principle has been expressed by an explicit article<sup>110</sup>, stipulating the overall non-applicability of Dutch laws – irrespective of their content – on any measure ordered by the ICTY prompting any deprivation of liberty within the premises made

<sup>108</sup> See the UN Comments as of the 13 Aug. 1993 (Comments on the Text of the Draft Agreement as amended):

'Article XXIII: It is noted that witnesses and experts, as well as suspect or accused persons are not included by the Dutch side in the scope of operation of this article. While we generally share the concerns of the host country that in certain situations it would be in the interests of witnesses and experts to be restricted in movement, for the sake of their own security, it would seem to us preferable to reserve for them the right of free movement within the Netherlands which is conditioned by the "appropriateness" and "for the purposes of the Tribunal" in the original draft. In our view, the facilities referred to in this article could be made applicable to the suspect or accused provided that such facilities are "strictly conditioned by the same appropriateness" and "for the purposes of the Tribunal" only'.

<sup>109</sup> This was worded by the host country in a letter to the UN (JFT 992) 3 Host Country Agreement as of the 13 July 1993 (Ministry of Foreign Affairs):

'The facilities for keeping the accused in custody prior to and pending trial are part of the Tribunal and shall be under UN authority. The status of the detention barracks to be reserved for this purpose shall be identical to the status of the building in which the offices and court room of the Tribunal are located. UN shall be responsible for the regime, control, treatment of the accused and defining his rights and privileges. Guards shall be UN officials. The Host Country shall have responsibility for external security and shall provide certain basic services as well as assistance for particular purposes (hospitalisation, medical care, spiritual services)'.

<sup>110</sup> Originally article 14, in the final text of the enabling act article 17.

available by the host country to the ICTY<sup>111</sup>. In essence, as set out above sub III, this regime has been prolonged on behalf of the ICC detention centre. The host State has to cooperate with ICC to facilitate the detention of persons and allow ICC to perform its functions within its detention centre, which remains to be the Scheveningen detention unit. See article 46, first para. of the final Seat Agreement.

In this context, two remarks seem to be appropriate.

- One could wonder as to whether this *national* legal provision is in accordance with article VI para. 2 of the Host Agreement, clearly stipulating: ‘Except as otherwise provided in this Agreement or in the General Convention, the laws and regulations of the host country shall apply on the premises of the Tribunal’<sup>112</sup>. The penitentiary premises of the ICTY have to be considered as ‘premises of the Tribunal’. So, at first sight, this national provision seems to be antithetical to the Seat Agreement and the Host Arrangements.
- Secondly, as already pointed out, this provision seems to be rather vicious; if the Dutch legislation does not apply to the detentional measures of the ICTY, the article in the same Statute excluding the applicability of Dutch laws on those measures does not apply either.

The rationale behind the article is crystal clear: the host country hopes to exclude every responsibility with a view to the enforcement of the ICTY detentional measures, especially with regard to its responsibility towards the detainee under the ECHR. The Dutch legislator expressed this motive several times during the national legislative process. One could, as already pointed out above<sup>113</sup>, foster one’s hesitations as to whether this solution will stand in the long run, when a detainee is going to seek access to the Strasbourg Court. As pointed out, a person in a cell of the ICTY *remains* to be within the territorial jurisdiction of the Netherlands. It is that ‘territorial jurisdiction’ which is meant in article 1 ECHR as an autonomous conception in the sense of the overarching guarantee of article 1 ECHR<sup>114</sup>. No

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<sup>111</sup> See: Wet van 21 april 1994, houdende bepalingen verband houdende met de instelling van het Internationaal Tribunaal voor de vervolging van personen aansprakelijk voor ernstige schendingen van het internationale humanitaire recht, begaan op het grondgebied van het voormalige Joegoslavië sedert 1991, Staatsblad 1994, nr 308 (translation: Enabling Act as of the 21 April 1994, containing certain provisions with a view to the establishment of the International Tribunal for the Prosecution of Persons responsible for serious violations of International Humanitarian Law committed in the Territory of the former Yugoslavia since 1991, National Monitor of Statutes 1994, No 308). Article 17 as it runs as follows: ‘De Nederlandse wet is niet van toepassing op vrijheidsontneming ondergaan op last van het Tribunaal binnen aan het Tribunaal in Nederland ter beschikking staande ruimten’. (translation: ‘The Dutch laws do not apply on any form of deprivation of liberty ordered by the Tribunal within the premises of the Tribunal made available by the Netherlands’).

<sup>112</sup> See about the gist and purview of this provision above mn 53 *et seq.*

<sup>113</sup> See under mn 30 *et. seq.*, in fine.

<sup>114</sup> See: *Gentilhomme, Schaff-Benhadij and Zerouki versus France*, Judgment, 14 May 2002, para. 20 3 60; *Bankovic and Others versus Belgium and 16 other Contracting States* (dec.) no. 52207/99, paras. 59–61 ECHR 2001-XIII 3 60; *Cyprus versus Turkey* [GC] no. 2578/94 ECHR 2001-IV, paras. 76–80 3 60; and especially the case *Ilasco and Others versus Moldova and Russia*, Application 48787/99 judgment of 8 July 2004 3 60, especially paras. 310–312: ‘a. The concept of jurisdiction. 310. Article 1 of the Convention provides: ‘The High Contracting Parties shall secure to everyone within their jurisdiction the rights and freedoms defined in Section I of [the] Convention. 311. It follows from article 1 that member States must answer for any infringement of the rights and freedoms protected by the Convention committed against individuals placed under their ‘jurisdiction’. The exercise of jurisdiction is a necessary condition for a Contracting State to be able to be held responsible for acts or omissions imputable to it which gives rise to an allegation of the infringement of rights and freedoms set forth in the Convention. 312. The Court refers to its case-law to the effect that the concept of ‘jurisdiction’ for the purposes of article 1 of the Convention must be considered to reflect the term’s meaning in public international law (...). From the standpoint of public international law, the words ‘within their jurisdiction’ in article 1 of the Convention must be understood to mean that a State’s jurisdictional competence is primarily territorial (...), but also that jurisdiction is presumed to be exercised normally throughout the State’s territory. This presumption may be limited in exceptional circumstances, particularly where a State is prevented from exercising its authority in part of its territory. That may be as a result of military occupation by the armed forces of another State which effectively controls the territory concerned (...), acts of war or rebellion, or the acts of a foreign State supporting the installation of a separatist State within the territory of the State concerned. 313. In order to be able to conclude that such an exceptional situation exists, the Court must examine on the one hand all the objective facts capable of limiting the effective exercise of a State’s authority over its territory, and on the other the State’s own conduct. The undertakings given by a Contracting

fiction of extraterritoriality, no exemption can abrogate the obligations prompted by the ECHR incumbent on ratifiers. The Netherlands, as ratifier of ECHR, has to provide for sufficient guarantees for the benefit of the detainee that his detention and the regime answers to the prerequisites underlying the rights as spelled out in the articles 3, 5, 8 and 9 of ECHR. This goes especially for the *habeas corpus* provisions following article 5 ECHR. The simple relegation of a *habeas corpus* issue to the ICTY, let alone to the ICC, on the sole ground that their respective jurisdictional scope is superseding that of the Netherlands, is not compatible with this autonomous point of departure as laid down in long standing jurisprudence of the Strasbourg Court. See the jurisprudence referred to in the Special Remarks under I. of this Commentary on article 3 Rome Statute. Therefore, it is rather regrettable that the Dutch legislator has sought the same legislative 'solution' when dealing with the enabling legislation with a view to the ICC jurisdiction.

- 61 Nevertheless, at this moment the Dutch government takes the stand that Dutch private law applies to the penitentiary lease contracts concluded between the UN and the host Country. The *lex loci* governs this kind of contracts unless otherwise provided in the Host Arrangement. Until now, the office of Legal Affairs of the UN did not contest this basic assumption at the side of the host country. It seems to be the intent of the Contracting Parties of the Seat Arrangement to limit the applicability of the ICTY regulations strictly to 'the treatment of the suspect or accused of the Tribunal' according to the original wording of article VI para. 3 of the Seat Agreement. Whereas the Rules of Procedure and Evidence of the ICTY provide for the possibility to detain other persons, not being suspects or accused's according to the ICTY Statute, the expression 'persons detained' (by the ICTY) would be more preferable in this context. In this regard one has to think of persons guilty of 'contempt of court' or 'perjury' according to the articles 77 and 91 of the ICTY Rules of Procedure and Evidence. At the proposal of the host country, the wording of article VI has been changed accordingly by avoiding any reference to the detainee as such.

In general the following regulations will apply on ICTY detainees:

- the Standard Minimum Rules for the Treatment of Prisoners, approved by the Economic and Social Council in Resolution 663 C I (XXIV) of July 1957;
- the Code of Conduct for Law Enforcement Officials, adopted by the General Assembly in Resolution 34/169 of 5 February 1980;
- the Basic Principles on the Use of Force and Firearms by Law Enforcement Officials;
- the UN basic Principles on the Role of Lawyers;
- the Rules of Detention adopted by the Tribunal<sup>115</sup>.

In addition to this an additional agreement on security and order in the UN detention unit of the Penitentiary Complex Scheveningen<sup>116</sup> as of the 14 July 1994 with several subsequent amendments will apply together with the Rules of Detention adopted by the Tribunal,

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State under article 1 of the Convention include, in addition to the duty to refrain from interfering with enjoyment of the rights and freedoms guaranteed, positive obligations to take appropriate steps to ensure respect for those rights and freedoms within its territory (...). Those obligations remain even where the exercise of the State's authority is limited in part of its territory, so that it has a duty to take all the appropriate measures which it is still within its power to take'.

<sup>115</sup> See note 66 referring to those Rules.

<sup>116</sup> See article 1 of the original Additional Agreement on Security and Order defining the penitentiary ICTY premises and its staff as follows:

'For the purpose of this Agreement the following definitions shall apply: (*post alia*): 'the PCS' means: the Penitentiary Complex Scheveningen, located at the Pompstationsweg in Scheveningen (municipality of The Hague); 'the detention unit' means: the unit of 24 cells with adjacent rooms on the premises of the PCS, leased by the United Nations for the detention of persons on the authority of the Tribunal; 'the General Director' means: the official appointed by the Ministry of Justice of the Kingdom of the Netherlands as the head of Staff of the PCS; 'the Commanding Officer' means: the head of the staff of the Tribunal responsible for the administration of the detention unit'.

regulating visits to persons detained in the detention unit<sup>117</sup>. See article 52 Rome Statute<sup>118</sup> dealing with this kind of regulations to be adopted by the Court. This kind of penitentiary regulations concerning internal operating procedures is, as a matter of course, necessary for the routine functioning of the Court<sup>119</sup>. See the comments on article 52 Rome Statute below where these penitentiary additional instruments will be considered into detail<sup>120</sup>. The current distribution of jurisdictional competences with a view to the penitentiary units between ICTY and the host country implies the full responsibility for the *internal* order and security on behalf of the ICTY as far as the UN is envisaged. For this unit a 'Commanding ICTY Officer' carries responsibility under the supervision of the General Director<sup>121</sup>.

This unit is only part of the penitentiary complex for which a Dutch Official, the already mentioned General Director, appointed by the Dutch Minister of Justice, is fully responsible. He has to take care for the internal security in the penitentiary complex as a whole. To this end he issues security directives, sometimes in coordination with the UN Security Service if the directive applies to the unit<sup>122</sup>. See the general provisions laid down in articles 9<sup>123</sup> and 10<sup>124</sup> of the Agreement on Security and Order. The overall competent authority in penitentiary matters is this General Director. The ICTY Commanding Officer has to seek understanding with the General Director; the latter has to provide for assistance

<sup>117</sup> See, *inter alia*, article 19 of the Agreement on Security and Order:

'The Rules of Detention adopted by the Tribunal regulating visits to persons detained in the detention unit shall be without prejudice to such practical arrangements as may be agreed upon between the General Director and the Commanding Officer, in consultation with the Registrar, in accordance with Rule 63 of the Rules of Detention'.

<sup>118</sup> Article 51 Rome Statute runs as follows:

**'Regulations of the Court,**

1. The judges shall, in accordance with this Statute and the Rules of Procedure and Evidence, adopt, by an absolute majority, the Regulations of the Court necessary for its routine functioning. 2. The Prosecutor and the Registrar shall be consulted in the elaboration of the Regulations and any amendments thereto. 3. The Regulations and any other amendments thereto shall take effect upon adoption unless otherwise decided by the judges. Immediately upon adoption, they shall be circulated to States Parties for comments. If within six months there are no objections from a majority of States Parties, they will remain in force'.

<sup>119</sup> See 1996 Preparatory Committee II, p. 51; Zutphen Draft, article 43 [19] para. 0; U.N.Doc. A/AC.249/1998/DP.1, p. 4; Rep. of the Working Group on Composition and Administration of the Court, UN Doc. A/AC.249/1998/L.14 and UN Doc. A/AC.249/1998/CRP.2/Add.5 and Add.5/Corr.1.

<sup>120</sup> See the comments of Hans-Jörg Behrens in the First Edition of this Commentary, article 52, mn 8.

<sup>121</sup> See, for example, article 16 of the Agreement on Security and Order:

'In case of fire within the PCS, the Commanding Officer shall observe any orders and directives given by the General Director, including orders to allow entry into the detention unit or to have these temporarily evacuated. The General Director shall in such cases take the necessary measures to accommodate evacuated detainees, and shall inform the Registrar accordingly'.

<sup>122</sup> See the comments of the UN Office for Legal Affairs as of the 22 September 1993:

**'Article XXII (Former article XXI):**

We note the confirmation that the security directives issued by the competent authorities will apply to the Penitentiary Institution only while the directives on fore prevention will apply to the Tribunal in general'. In the opinion of the UN Security Service, while the overall responsibility for security in the PCS should rest with the competent Dutch authorities, this would be 'in co-ordination with United Nations Security'. Therefore it is suggested that the first part of the proposed paragraph read as follows: '3. The Tribunal shall observe all security directives issued, in co-ordination with the UN Security Service, by the competent authorities responsible for security conditions within the penitentiary institution of the host country ...'.

<sup>123</sup> Article 9 runs as follows:

'The General Director shall be responsible for security and order on the premises of the PCS, without prejudice to the specific responsibility of the Tribunal's officials for security and order on the premises leased by it. The General Director is entitled to have any person who is not detained in, or employed as an Un Official or an official of the Netherlands at, the PCS and who causes disturbances or poses an acute risk to security and order in the PCS removed from, or denied access to, the premises of the PCS'.

<sup>124</sup> Article 10 runs as follows:

'The responsibility of the General Director under article 9 includes the authority to determine the routes to be followed inside the PCS for persons and property to reach the detention unit or leave the premises of the PCS. Such routes may be different for detainees, visitors, personnel employed by the Tribunal or other authorities. The General Director may give further instructions with a view to prevent that person detained on the authority of the Tribunal and their visitors be in contact with other persons present in the PCS'.



at the request of the Commanding Officer in case the internal security or order of the UN has been jeopardised. In case an understanding between Commanding Officer and General Director is not sustainable, the Director may bring the issue, when it is a serious case, to the attention of the ICTY's Registrar<sup>125</sup>. The General Director decides on the access of persons to the complex<sup>126</sup>; in addition, the Commanding Officer decides on the access to the Unit<sup>127</sup>. He provides for security control when a person is seeking access to that unit. The General Director is responsible for security and order on the premises of the penitentiary complex of Scheveningen without prejudice to the specific responsibility of the ICTY's officials for security and order on the premises leased by the ICTY. In case of an escape, it is again the General Director who is responsible for the appropriate measures to be taken. It is a matter of course: whereas he has, in such case, to seek assistance from the host country, this should be left to an official who can speak the language of the host country and who knows which authority should be addressed with a view to any search, re-arrest, surrender or (re-) extradition inside or outside the penitentiary complex premises<sup>128</sup>. It is within the likelihood that the jurisdictional relationship with a view to penitentiary matters between the host country and the ICC will follow the same lines.

## VII. Third parties to the ICC Family

- 63 Different from the ICTY, not all the UN Charter Parties will be member of the ICC Family. Therefore, as has been noted above, the possibility exists that the Seat Agreement could collide with already existing treaty obligations towards third Parties for example with a view to rendering interstate cooperation and assistance. It could be possible that such a third Party would ask for the extradition of a witness appearing before the ICC, while, according to the Seat Agreement, the host country has guaranteed his full freedom in transit to the ICC premises hence and forth.

## VIII. Privileges and immunities

- 64 In this context, we will be dealing with the exemptions, privileges and immunities as laid down in the Seat Agreement and the Host Arrangements, and *not* with the overall privileges and immunities as envisaged in article 48 of the Statute regulating the privileges and

<sup>125</sup> See, for example, article 18 of the Additional Arrangement on Security and Order:

'Personnel employed by the Tribunal shall, when present on the premises of the PCS outside the detention unit, observe the rules and instructions applicable on the PCS with respect to security and order. In particular, such personnel shall not be allowed to carry firearms or other weapons on the premises of the PCS. In case of non-observance of such rules or instructions the General Director shall seek an understanding with the Commanding Officer. In serious cases he may bring the matter to the attention of the Registrar of the Tribunal'.

<sup>126</sup> See, e.g., article 2 of the Additional Agreement on Security and Order:

'Any person, irrespective of his or her status, nationality, function or age, seeking access to the leased premises of the Tribunal, shall, when entering the premises of the PCS, be subjected to security control. The control is carried out under the responsibility of the General Director'. See, in addition to this, article 4 of the Agreement: 'The General Director, or the person carrying out the personal control on his behalf, may refuse access to the PCS to persons who are not willing to comply with any form of personal control as referred to in article 2'.

<sup>127</sup> See, e.g., the articles 13 and 14 of the Additional Agreement on Security and Order:

'The Commanding Officer shall be responsible for the carrying out of personal and property control at the entry of the detention unit. Under no condition shall persons detained elsewhere in the PCS be given access to the detention unit'. Article 14 runs: 'If, pursuant to a control under article 3, or for any other reason of security or order, the commanding officer refuses access of a person to the detention unit, he or she shall call the assistance of the General Director of the PCS, in order to have the person removed'.

<sup>128</sup> See, for example, article 17 of the Additional Arrangement on Security and Order:

'In case of an escape of a detainee from the detention unit the Commanding Officer shall immediately inform the General Director, who shall be responsible for any search and re-arrest action on the premises of the PCS. In case of an escape of a detainee from another penitentiary institution of the PCS, the Commanding Officer shall allow entry into the detention unit with a view to carrying out search a re-arrest action'.



immunities to be observed by *all* States Parties to the Statute. The commentaries regarding those exemptions, privileges and immunities will be given under article 48 of the Statute by another author in connection with the Agreement on the Privileges and Immunities of the International Criminal Court as of the 9 September 2002, concluded at UN Headquarters in New York. We flagged this already above sub C. para. III sub 2. Like the ICTY Seat Agreement, ICC will in principle, according to its Seat Arrangement, be enjoying the standardised exemptions, privileges and immunities as laid down in the already mentioned General Convention on the Privileges and Immunities of the UN adopted by the General Assembly of the UN on 13<sup>th</sup> February 1946 and the 1961 Vienna Convention on Diplomatic Relations. The final Seat Agreement follows the lines as set out in that Convention. In this context, the host Country simply prolongs standing practice, except with a view to the immunities and privileges granted to the Assembly of State Parties, its Bureau, its subsidiary bodies and its affiliated members. We refer to what has been said about that above sub C.III. subpara. 2. In this context, the only brand-new thing is, as we already mentioned, the enlargement of the Seat Agreement to the Assembly of State Parties as *third party*, its Bureau, its organs and subsidiary organs and its personnel. But also here, the guidance offered by the Vienna Convention has been followed. With a view to traffic accidents, under the ICTY Seat Agreement a special additional Host Arrangement applies to the ICTY officials and persons affiliated with the ICTY. The articles XIV<sup>129</sup> and XV<sup>130</sup> of the current ICTY Seat Agreement could offer some guidance in this respect. One should bear in mind that those articles only

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<sup>129</sup> Article XIV of the ICTY Seat Agreement runs as follows:

**'Privileges and immunities of the judges, the prosecutor and the registrar:**

1. The Judges, the Prosecutor and the Registrar shall, together with members of their families forming part of their household and who do not have Netherlands nationality or permanent residence status in the host country, enjoy the privileges and immunities, exemptions and facilities accorded to diplomatic agents, in accordance with international law and in particular under the General Convention and the Vienna Convention. They shall *inter alia* enjoy:
  - a. personal inviolability, including immunity from arrest or detention;
  - b. immunity from criminal, civil and administrative jurisdiction in conformity with the Vienna Convention;
  - c. inviolability for all papers and documents;
  - d. exemption from immigration restrictions, alien registration or national service obligations;
  - e. the same facilities in respect of currency or exchange restrictions as are accorded to representatives of foreign governments on temporary official missions;
  - f. the same immunities and facilities in respect of their personal baggage as are accorded to diplomatic agents.
2. In the event the Tribunal operates a system for the payments of pensions and annuities to former Judges, Prosecutors and Registrars and their dependants, exemption from income tax in the host country shall not apply to such pensions and annuities.
3. Privileges and immunities are accorded to the Judges, the Prosecutor and the Registrar in the interest of the Tribunal and not for the personal benefit of individuals themselves. The right and the duty to waive the immunity in any case where it can be waived without prejudice to the purpose for which it is accorded shall lie, as concerns the Judges, with the Tribunal in accordance with its rules; as concerns the Prosecutor and the Registrar, with the Secretary-General in consultation with the President'.

<sup>130</sup> 'Article XV Privileges and immunities of officials of the tribunal:

1. The officials of the Tribunal shall, regardless of their nationality, be accorded the privileges and immunities as provided for in the articles V and VII of the General Convention. They shall *inter alia*: (a) enjoy immunity from legal process in respect of words spoken or written and all facts performed by them in their official capacity. Such immunity shall continue to be accorded after termination of employment with the Tribunal; (b) enjoy exemption from taxation on the salaries and emoluments paid to them by the Tribunal; (c) enjoy immunity from national service obligations; (d) enjoy immunity, together with members of their families forming part of their household, from immigration restrictions and alien registration; (e) be accorded the same privileges in respect of exchange facilities as are accorded to the members of comparable rank of the diplomatic missions established in the host country; (f) be given, together with members of their families forming part of their household, the same repatriation facilities in time of international crisis as diplomatic agents; (g) have the right to import free of duties and taxes, except payments for services, their furniture and effects at the time of first taking up their pos in the host country. (*etc.*); 5. The privileges and immunities are granted to the officials of the Tribunal in the interest of the Tribunal and not for their personal benefit. The right and the duty to waive the immunity in any particular case, where it can be waived without prejudice to the purpose for which it is accorded shall lie with the Secretary-General'.

apply in the bilateral relationship between the entity to be hosted and the hosting country; the Rome Statute itself governs the immunities, exemptions and privileges of the ICC officials and its affiliated personnel towards the ICC Family as a whole<sup>131</sup>. Article 48 Rome Statute refers to a specific agreement on 'the privileges and immunities of the Court' which is certainly another legal instrument than the Headquarters Agreement to which article 3 Rome Statute refers. Here, the drafters of the Rome Statute must have envisaged a separate general agreement to be concluded with the Assembly of States Parties. The immunities to be granted by virtue of the Headquarters Agreement – applicable within the territorial jurisdiction of the Netherlands – will be *functional* ones; *id est*: only applicable as long as the person who claims immunity towards the Netherlands is actually performing a function for the ICC's purposes or is engaged on the ICC's business<sup>132</sup>. Functional immunity is a different concept from full diplomatic immunity<sup>133</sup>. In principle, a judge who commits a vehicular accident during weekend will not be entitled to invoke such a 'functional' immunity neither towards the host country neither towards the damaged private person. The immunity as meant here will therefore never be an absolute one. By virtue of a side letter it is understood that the UN shall ensure that the officials of the Tribunal and persons performing missions for the Tribunal have third party insurance covering damages arising from a road traffic accident caused by a motor vehicle belonging to or operated on behalf of such an official or such a person. In the event that such officials or persons are not insured the UN shall waive their immunity in respect of such damages. In any case the UN shall waive the immunity of such officials or persons in the event they commit a traffic offence involving such a vehicle<sup>134</sup>.

### IX. Newly established *ad hoc* Tribunals

- 65 In the mean time, the Netherlands decided again to establish a brand-new *ad hoc* Tribunal for the sake of having the former Liberian Head of State Charles Taylor standing trial in The Hague on the premises of ICC. This was done at the request of the so-called Special Court for Sierra Leone, by virtue of a Headquarters Agreement concluded between this Court and the Kingdom of the Netherlands<sup>135</sup>. The UN on the one side and the State of Sierra Leone on the other have established the Special Court itself<sup>136</sup>. The President of the Special Tribunal has the same competence as vested into the ICC itself in article 3 of the Statute: he may temporarily decide to have the Tribunal sitting elsewhere, whenever he considers such desirable<sup>137</sup>. The only criterion for this interim removal is that it is in the 'interests of justice

<sup>131</sup> See article 48 Rome Statute and the commentary on it below. See the commentary of David Tolbert in the First Edition of this Commentary, mn 4: 'Although many of the above matters will be covered *vis-à-vis* the host State in the headquarters agreement provided for under article 3, the headquarters agreement is a bilateral agreement that does not apply to other States Parties. Thus, the Court may find itself hard pressed on many of the issues generally covered by privileges and immunities in its operations in other states Parties, much less non-States Parties, without a general agreement on its privileges and immunities, as it does not have recourse to the General Convention'.

<sup>132</sup> There must be a *functional* bond between the acts performed by the (semi)official and the task bestowed upon the International Organisation. Muller, *International Organisations* (1995) 151 *et seq.*; Bekker, *The Legal Position of Intergovernmental Organisations: A Functional Necessity Analysis of Their Legal Status and Immunities* (1994) 55 *et seq.*

<sup>133</sup> See Schermers and Blokker, *International Institutional Law* (1995) 359: 'Immunity for non-official acts is generally open to objection and contrary to the functionality principle, which underlies all international immunities'.

<sup>134</sup> Side letter as of the 3 February 1993 (Foreign Affairs).

<sup>135</sup> See: *Notawisseling houdende een zetelverdrag tussen het Koninkrijk der Nederlanden en het Speciale Hof voor Sierra Leone*, s'-Gravenhage/Freetown, the 19 June 2006, Tractatenblad 131 (translation: exchange of notes verbales with a view to a Seat Agreement between the Kingdom of the Netherlands and the Special Court for Sierra Leone, Official Treaty Monitor of the Kingdom of the Netherlands 2006, No. 131).

<sup>136</sup> Agreement between the UN and the Government of Sierra Leone on the Establishment of a Special Court for Sierra Leone, Freetown, 16 Jan. 2002, see [www.sc-sl.org](http://www.sc-sl.org) (Internet).

<sup>137</sup> See mn 6 *et seq.* (Interim removal).

or the administration of the Court'<sup>138</sup>. As we saw, this interim removal of ICC has to be in the interest of the 'proper administration of the Court'. Both criteria have not been defined further into detail in any text of the agreements or additional instruments. The presidential decision to remove the seat of the Special Court was taken with a view to the real risk of a total destabilisation of the internal public order of Sierra Leone, due to the mere presence of Taylor. The Netherlands was of the opinion – just as in the case of the Establishment of the 'Lockerbie-Tribunal'<sup>139</sup> – that in order to function properly as a host country, there should be a resolution of the Security Council, acting under the heading of Chapter VII of the UN-Charter just as it was also the case with a view to the establishment of ICTY and ICTR. The Council handed down such a resolution, mandating the Netherlands to act as a host state and ordering the state to allow the detention and the trial of the former President Taylor by the Special Court in the Netherlands and to facilitate the trial in every respect<sup>140</sup>. Again, the Netherlands conducted the Host Agreement negotiations in the direction of prolongation *mutatis mutandis* the Host Agreement concluded with ICTY. The Netherlands promulgated national enabling legislation to that end, referring to the foregoing ICTY enabling legislation<sup>141</sup>. In article 2 of these enabling law special regulations have been drawn up for Taylor's surrender, transport, transit and detention. The same has been done for 'other persons' if the Tribunal thinks their presence is necessary for the trial. In the articles 3 and 4 of this Statute, the Dutch legislator declares the ICTY enabling legislation applicable *mutatis mutandis*. Article 5 provides for regulations concerning the obligations incumbent on the Netherlands with a view to further facilitations<sup>142</sup>. The addressees of those provisions are the national Dutch authorities, not the officials of the Tribunal. Given the applicability *mutatis mutandis*; the remarks made above concerning the applicability *mutatis mutandis* of the ICTY Host Arrangements could be applied *mutatis mutandis* on the Host Arrangements between the Netherlands and the Special Tribunal for Sierra Leone. The thing is that the Sierra Leone Tribunal cannot be compared with the ICTY. It simply is not to be considered as a subsidiary UN organ. The Dutch legal system and the system underlying the Tribunal's jurisdictional scope are equivalent. The Netherlands are under the obligation to refrain from exercising jurisdiction regarding the alleged crimes committed by Taylor before his arrival in the

<sup>138</sup> See article 4 of the Statute of the Special Court. See article 10 of the Statute: 'The Special Court shall have its seat in Sierra Leone. The Court may meet away from its seat if it considers it necessary for the efficient exercise of its functions, and may be relocated outside Sierra Leone, if circumstances so require, and subject to the conclusion of a Headquarters Agreement between the Secretary-General of the United Nations and the Government of Sierra Leone, on one hand, and the Government of the alternative seat, on the other'.

<sup>139</sup> See notes 14 and 19.

<sup>140</sup> Res. 1688 as of the 16 June (S/RES/1688, 2006, see also Tractatenblad 2006, 131 [Official Treaty Monitor of the Kingdom of the Netherlands 2006 Nr 131]). For the Netherlands, as host country, the following passes from the Res. was the most important one: '7. Decides that the Special Court shall retain exclusive jurisdiction over former President Taylor during his transfer to and presence in the Netherlands in respect of matters within the Statute of the Special Court, and that the Netherlands shall not exercise its jurisdiction over former President Taylor except by express agreement with the Special Court; 8. Decides further that the Government of the Netherlands shall facilitate the implementation of the decision of the Special Court to conduct the trial of former President Taylor in the Netherlands, in particular by (a) Allowing the detention and the trial in the Netherlands of former President Taylor by the Special Court; (b) Facilitating the transport upon request of the Special Court of former President Taylor within the Netherlands outside the areas under the authority of the Special Court; (c) Enabling the appearance of witnesses, experts and other persons required to be at the Special Court under the same conditions and according to the same procedures as applicable to the International Criminal Court for the former Yugoslavia'.

<sup>141</sup> Kamerstukken II (Lower House), 2005–2006, 30 610, Nos. 1–5 (Bepalingen verband houdende met de detentie en berechting in Nederland, in overeenstemming met Resolutie 1688 van de Veiligheidsraad van de Verenigde Naties van 16 juni 2006, van Charles Taylor door het Speciaal Hof voor Sierra Leone [wet Speciaal Hof voor Sierra Leone] [translation: Statute providing for regulations with a view to the detention and the trial in the Netherlands of Charles Taylor on behalf of the Special Tribunal for Sierra Leone] in accordance with SC Res. 1688 as of the 16 June 2006; Kamerstukken I (Upper House), 2005–2006, 30610, A).

<sup>142</sup> This article 5 runs as follows: 'The Kingdom of the Netherlands shall allow and facilitate the detention of the accused and other persons in the custody of the Special Court within the detention facility made available by the Court'.

Netherlands. The Security Council Resolution simply dictates so. But when crimes will be committed on Dutch soil by experts, witnesses, victims coming to attend the Taylor Trial – for example perjury before the Tribunal or tampering with evidence – there is no sufficient legal reason why the Netherlands could not exercise jurisdiction by virtue of the rule of territoriality.

- 66 On the 21 December 2007, the Netherlands concluded a Seat Agreement with the United Nations concerning the hosting of the Headquarters of the Special Tribunal for Lebanon<sup>143</sup>. The Seat Agreement is based on the wordings of and assumptions underlying the ICTY Seat Agreement and the Seat Agreement with ICC. The Headquarters of this *Ad Hoc* Tribunal will be located in the former office of the national Dutch Security Service in Leidenschendam, near The Hague. The Tribunal will be sharing some facilities set at the disposal of ICC and ICTY. The difference with ICC is, that the Netherlands has putted forward as bottom line condition for hosting, that it will *not* enforce any sentence of imprisonment handed down by the Tribunal. Imprisonment shall always be served in a state designated by the President of the Special Tribunal from a list of States that have indicated their willingness to accept persons convicted by the Tribunal<sup>144</sup>. The President of the Tribunal shall be under the obligation to begin the process of designating a State of enforcement as soon as possible, based on the list of willing States, with a view to the immediate transfer of the convicted person for the purpose of serving a sentence of imprisonment by the Tribunal. Yet, the host State has to make available detention facilities for pre-trial purposes in order to allow the Tribunal to perform its functions within its detention centre<sup>145</sup>. As matters stand now, it is in the likelihood that to this end the facilities, used by ICTY and ICC, will be set at the disposal of this *Ad Hoc* Tribunal. Moreover, this will imply transit movements from the detention theatre to the Tribunal's premises and vice versa on the same footing as with regard ICTY and ICC. It will be the host State which has to make the proper arrangements to that end at the request of the Tribunal.

As matters stand now, the ICC family could be facing the new establishment of other *ad hoc* Tribunals, seating in the Netherlands. One could wonder as to whether, in the end that is not going to undermine the jurisdictional credibility of the ICC.

## X. Asylum proceedings

- 67 As mentioned in Section II mn 23, an on-going matter that arose for the Netherlands, acting in its capacity as Host State, is that of the asylum proceedings initiated at the national level by four individuals from the Democratic Republic of Congo (DRC). Although these

<sup>143</sup> Verdrag tussen het Koninkrijk der Nederlanden en de Verenigde Naties betreffende de Zetel van het Speciale Tribunaal voor Libanon (met brieven en verklaring), New York, 21 Dec. 2007 [Agreement between the Kingdom of the Netherlands and the United Nations concerning the Headquarters of the Special tribunal for Lebanon (with exchange of letters and interpretative declaration) Netherlands Treaty Series 2007 No. 228; see: Stukken Tweede Kamer No. 31.128 Nr 2, Brief van de Minister van Buitenlandse Zaken dd 21 Dec. 2007 (Hansard Lower Chamber, no. 31.128 No. 2, Letter of the Minister for Foreign Affairs of the Kingdom of the Netherlands dd the 21 Dec. 2007)].

<sup>144</sup> Article 44 of the Seat Agreement:

'Enforcement of sentences –1. Imprisonment shall be served in a State designated by the President of the Special Tribunal from a list of States that have indicated their willingness to accept persons convicted by the Tribunal. –2. the President shall begin the process of designating a State of enforcement as soon as possible, based on the list referred to above, with a view to the immediate transfer of the convicted person for the purpose of serving a sentence of imprisonment imposed by the Tribunal. –3. The host State shall be under no obligation to let persons convicted by the Tribunal serve their sentence of imprisonment in a prison facility on its territory'.

<sup>145</sup> article 41 of the Seat Agreement runs as follows: '*Cooperation in detention matters* –1. The host State shall cooperate with the Tribunal to facilitate the detention of persons and to allow the Tribunal to perform its functions within its detention centre. –2. Where the presence of a person in custody is required for the purposes of giving testimony or other assistance to the Tribunal and where, for security reasons, such a person cannot be maintained in custody in the detention centre of the Tribunal, the Tribunal and the host state shall consult and, where necessary, make arrangements to transport the person to a prison facility or other place made available by the host State'.

proceedings are still pending, and a verdict by the national courts not expected until halfway this year<sup>146</sup>, a variety of conflicting legal obligations have arisen. All four applicants are Congolese nationals, three of them were transferred to the ICC as witnesses in the Katanga and Chui case, and the other one was transferred to the ICC as a witness in the Lubanga case. The main premise of the case is that these Congolese nationals, who were transferred from the DRC to the ICC to give witness testimony for the Defence, applied for asylum in the Netherlands, basing themselves on the ‘non-refoulement’ principle. According to their applications, they had a ‘well-founded fear’ that they would receive treatment, once returned to the DRC, that would violate, therefore be contrary to, article 3 of the European Convention on Human Rights (‘ECHR’).

This section will analyse and explain the unique legal issues that have been at the centre of these applications, both at the ICC as well as national level. Notwithstanding the legal issues before the ICC, only those issues that concern the host State will be scrutinised. The main legal question at this point is to what extent the Netherlands, on the one side as High Contracting Party to the ECHR and, on the other side as host to the ICC, has to manage conflicting obligations of a legal nature. As the Defence for Germain Katanga rightly put it: ‘The Netherlands is bound by obligations under the ECHR and that the transfer of powers from a state to an international organisation established on its territory does not necessarily exclude that State’s responsibility to ensure that these powers are exercised in accordance with the ECHR. Put differently, the host State may transfer powers to an organisation established on its territory provided the rights and freedoms guaranteed in the ECHR continue to be secured’<sup>147</sup>. This reasoning falls exactly in line with the article 1 ECHR provisions and the established case law thereof, as explained already in Section C.I mn 32, especially footnote 50.

The starting point for this analysis is the Status Conference held on the 12 May 2011<sup>148</sup>. Faced with a thus far unprecedented legal situation, Trial Chamber II needed to clarify certain legal issues that arose due to the asylum applications. Before commencement of the Status Conference, Trial Chamber II did explicitly mention that it was not in any way competent or have jurisdiction to rule on any application for asylum, and therefore did not intend to consider the merits of any application for asylum. However, the Trial Chamber II did feel the need to request clarifications on a variety of legal questions arising from these specific circumstances<sup>149</sup>. This point of view is important, as it will be shown below that the host State has somewhat contested this line of reasoning by the Trial Chamber II, both during this particular Status Conference, as well as during the subsequent filing of submissions thereafter. However, for the time being, our main point of analysis are two legal issues that have been discussed during the Status Conference, namely the legal status of the witnesses from the moment they arrived on Dutch territory and, closely related thereto, the jurisdictional issues that relate to presenting the witnesses to the Dutch authorities who are competent to rule on a request for the status of refugee<sup>150</sup>.

After hearing the other parties present their thoughts during the Status Conference, it was the turn for the representatives of the host State to explain and clarify their points of view on the subject-matter at hand, concerning the legal status of the witnesses, and the manner in

<sup>146</sup> Uitspraak Rechtbank ‘s-Gravenhage, LJN: BU9492, Eerste aanleg – meervoudig, Zaaknr: AWB 11/25891, AWB 11/25904, AWB25907, AWB 11/36660, AWB 11/36662, AWB 11/36664, AWB 11/39010, AWB 11/39011 en AWB 11/39012, 28 December 2011, The Hague District Court has ordered that a decision should be rendered at latest by 28 June 2012, see in this regard paragraph 9.10 thereof.

<sup>147</sup> Situation in the Democratic Republic of the Congo in the case of *The Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ‘Decision on an *Amicus Curiae* application and on the ‘*Requete tendant a obtenir presentations des temoins* DRC-D02-P-0350, DRC-D02-P-0236, DRC-D02-P-0228 *aux autorites neerlandaises aux fins d’asile*’ (articles 68 and 93(7) of the Statute)’, ICC-01/04-01/07-3003-tENG, 9 June 2011 3 68.

<sup>148</sup> Situation in the Democratic Republic of the Congo in the case of *The Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, Status Conference held on the 12 May 2011, ICC-01/04-01/07-T-258-ENG 3 69.

<sup>149</sup> *Id.*, page 6, lines 2 *et seq.*

<sup>150</sup> See note 148, for example, pages 57, 60 –61, 65, 67 *et seq.*

which, if at all, the Dutch would deal with the Asylum applications. Trial Chamber II wanted clarification whether or not the Dutch representatives shared the view of the Registry both with regard to the legal status of the detainees, as well as its interpretation of article 44 HQA<sup>151</sup>.

- 71 Interestingly, before clarifying the point of view of the host State with regard to the questions raised by Trial Chamber II, the representative of the host State stated that '[f]or sake of clarity, other than in connection with the functioning of the Court in the host state, the Netherlands *will not accept responsibility* (emphasis added) for the protection of detained witnesses. This would go well beyond the obligations and responsibility of the host State and the Headquarters Agreement and moreover witness protection is the responsibility of the Court'<sup>152</sup>. Even though this statement can be interpreted as correct, there is a major difference between the obligations and responsibility of the host State with regard to [ICC] detainees, and the obligations and responsibility that arise in case *any* individual applies for asylum within the jurisdiction of the Netherlands, within the meaning of article 1 ECHR.
- 72 The host State representative then answered the specific question of the legal status of the three detained witnesses with effect from their arrival in the Netherlands and to state what jurisdiction, if any, the host State may exercise in regard to those witnesses. Accordingly, '[u]nder the Headquarters Agreement, the Netherlands has accepted that Dutch laws and regulations remain without effect insofar as necessary for the ICC to function on its territory, see, for instance article 8, paragraph 3 of the Headquarters Agreement. This – and I would call it a *carve out of Dutch jurisdiction* (emphasis added) – applies in particular to persons detained in the Court's detention centre. These are normally persons on trial before the Court. Exceptionally...the detainees are witnesses'<sup>153</sup>. The host State's representative continued by stating that '[u]nder article 93(7)...these witnesses have been temporarily transferred in custody from the Democratic Republic of Congo to the court pursuant to an agreement between them. In accordance with article 44(1) of the Headquarters Agreement, the competent authorities of the host state have transported these detainees on the authority, and thus under the responsibility, of the Court from the point of arrival to the premises of the Court, where they remain in the Court's custody. Therefore, the legal status of these detainees in the Netherlands is that they are in the temporary custody of the Court with the agreement of the DRC and at no time in the custody of the Netherlands. Under the aforementioned 'carve out', the Netherlands does not exercise jurisdiction over them'<sup>154</sup>. With regard to the asylum procedure, the representative went on, '[i]f a request for asylum from a detained witness were to reach the Dutch authorities, the minister for immigration and asylum will decide thereon. The position with respect to such a request will be as follows: *Dutch asylum law is part of the aforementioned 'carve out'* (emphasis added). As the transportation of detained witnesses to the point of departure from the Netherlands after their testimony is inherently connected to their detention at the premises of the Court, it follows that *the 'carve out' equally applies during the said transport* (emphasis added). In this respect, article 93(7)(b) of the Rome Statute provides that, and I quote: 'When the purposes of the transfer have been fulfilled, the Court shall return the person without delay to the requested state'<sup>155</sup>. Accordingly, '[t]his provision is reflected in the obligation of the host state to transport the detainees directly and without impediment to the point of departure from the host state under article 44 of the Headquarters Agreement'<sup>156</sup>.
- 73 The Presiding Judge needed clarification of the words of the Dutch representative, asking whether he correctly understood that '[i]f an application for asylum was sent to the Dutch authorities by a detained witness, the competent Dutch authorities will take a decision on the

<sup>151</sup> *Id.*, page 68, lines 7 *et seq.*

<sup>152</sup> *Id.*, page 71, lines 5 *et seq.*

<sup>153</sup> *Id.*, page 71, lines 15 *et seq.*

<sup>154</sup> *Id.*, pages 71–72.

<sup>155</sup> See note 148, pages 72–73.

<sup>156</sup> *Id.*, page 73, lines 3 *et seq.*



application for asylum<sup>157</sup>? The Dutch representative replied that the fact remains that if and when an application is made for asylum, the Dutch authorities are going to make a decision. but with respect to the content thereof, ‘we do not have the right neither do we have the authority or the intention of giving any assessment on the merits. *It’s up to you, the Court*, it is up to the Court to make a decision relating to whether or not a risk exists. In other words we are going to rely on the decision that will be taken by the Court’<sup>158</sup>.

The Presiding Judge, in summing up the position of the host State, rightly stated that if an application for asylum would be submitted, an answer would be given concerning that application. In this context, it is irrelevant whether that application is submitted from the detention centre or in the course of the transfer or from the courtroom or whether it is submitted by a lawyer who is not on the bar of the Netherlands or by a lawyer who is a member of the bar of the Netherlands. In other words, the *origin* of the application for asylum is irrelevant here. If an application for asylum is filed with the Dutch authorities, an answer will be given – in due course<sup>159</sup>. This line of reasoning is consistent with established case law of the ECHR, in that any individual residing, or situated, ‘within the jurisdiction’ of a High Contracting Party, should be able to have recourse to the national courts of that country.

Interestingly enough, the Dutch representative did – again – add that it is the position of the host State that it will not carry out a new assessment of the asylum application and that the host State will rely on the decision that will be taken by the Court. Hearing this argument, the Presiding Judge restated that the ICC was, and is not, a Court that hears asylum matters, as that does not fall within the scope of the Rome Statute and therefore it falls outside the jurisdiction of the Court, a point rightly added by the Presiding Judge. The Dutch representative, answering this line of thoughts, stated that ‘[w]e consider that since the detained witnesses are under the authority of the Court for now and that they are protected by the provisions of the Rome Statute, it is up to the Court to carry out a risk assessment...[–]consequently, you are going to reach a decision on whether or not additional protection is necessary’<sup>160</sup>. Following this line of reasoning, the representative continued with the following: ‘[n]ow if you decide that under the current circumstances it will not be appropriate to send back these three individuals to the Democratic Republic of Congo, that will create a new situation.’<sup>161</sup> I talked about a ‘carve out’, and we consider that Dutch legislation on immigration and the right to asylum is covered by such ‘carve out’. What I mean is [Sic] that this legislation will not apply in the case of these three individuals. Furthermore, we have a general obligation to review this application whenever it arrives. When this application will be submitted, there is going to be an answer. What I intended to make you understand is that we are not going to start our own investigation on this application. We are going to rely on the fact that the Court takes a decision. And in terms of the structures and the relationship between the Court and the host state we deem it inappropriate for the host state to carry out a re-assessment of the determination you are going to arrive at’<sup>162</sup>.

<sup>157</sup> *Id.*, pages 74–75.

<sup>158</sup> *Id.*, page 75, lines 8–14.

<sup>159</sup> *Id.*, pages 75–76.

<sup>160</sup> *Id.*, page 77, lines 4–11.

<sup>161</sup> In *The Kingdom of the Netherlands v. Nuhanović* (NL:HR:2013:BZ9225), the Dutch Hoge Raad (Supreme Court) in a civil procedure found The Netherlands liable for not taking a Bosnian Muslim minor, fugitive in the Dutchbat compound, with them when they evacuated the Dutchbat compound in Srebrenica. Criterion was whether The Netherlands was in ‘effective control’ of the Dutchbat’s actions at the time of evacuation of the compound. So whether or not the actions are under effective control of another party, the United Nations in the case of Srebrenica or the ICC in the case of detained witnesses, the Dutch court tends to find The Netherlands to be liable on its own count, provided ‘effective control’ can be imputed to the Dutch state. The same applies to detainees in general, when detention takes place under the custody or command of the ICC, if executed by the host country, in the Netherlands or abroad during surrendering or transit, under the guidance of the Royal Constabulary. Think of the surrendering of a convicted criminal to a third party for the sake of continued enforcement by enforcement agreement or the re-extradition of an indictee. This ruling of principle by the Dutch Supreme Court might incur unpredictable collateral responsibilities in tort to the detriment of the host country.

<sup>162</sup> *Id.*, page 77–78.



The Presiding Judge, again, restated that ‘the risk assessment conducted by the Court is done on the basis of the type of protection which is deemed adapted to the situation. And when it comes to asylum matters, the criteria for risk assessment may be different, such criteria may be more or less depending on the legislation or the laws of the state concerned’<sup>163</sup>.

- 76 At this point, it should be clear that it was the position of the host State that, first of all, the witnesses fall outside the *physical* jurisdiction of the Netherlands, in the sense that the Netherlands does not, or does not want to, wield any authority over them. However, the moment any individual, in this case by filing asylum applications, initiates proceedings before national courts, those individuals fall, in principle, within the full jurisdiction of the laws and legislation in force in the State concerned. Secondly, even *if* these witnesses were to fall under the direct jurisdiction of the Netherlands, thereby reaping the legal benefits of Dutch national law and legislation, the host State would not re-assess the application, but leave that to the discretion of the Court, and rely on that assessment. Seen from this perspective, it could be claimed that any ICC decision on an assessment of the risks for these witnesses has some authority and can be used, at a national level, as proof or evidence of significant proportions. However, at the same time, it is misguided not only to say, but also to believe, that the normal risk assessments and procedures that are in order at the national level should not be respected and followed due to a ‘carve out’ of Dutch jurisdiction. As we will see later on, this view of the Netherlands was flawed and rightly corrected by The Hague Court in its December decision. However, before that decision of a national court is analysed, a variety of proceedings and submissions directly relevant to the host State, should be assessed in light of its *sui generis* character.

- 77 During its decision of 9 June 2011, Trial Chamber II addressed, amongst others, the question what the precise scope of the duty to protect witnesses as enshrined in article 68 ICCS.

First of all, the Chamber explained the distinction between measures pursuant to article 68 ICCS in order to protect witnesses on account of their cooperation with the Court, and those which it is requested to take in order to protect them against potential or proven human rights violations in the broad sense of the term. The Chamber added that these two types of measures should not be confused with those which, more specifically, protect asylum applicants from the risk of persecution they might suffer if they returned to their country of origin<sup>164</sup>. The Chamber continued stating that it is not duty-bound to protect witnesses against risks which they might face not only as a result of their testimony but also as a result of human rights violations. By virtue of its mandate, the Court protects witnesses from risks arising specifically from their cooperation with it, not those arising from human rights violations by the authorities of their country of origin. Article 21(3) of the Statute does not place an obligation on the court to ensure that States parties properly apply internationally recognised human rights in their domestic proceedings. It only requires the Chambers to ensure that the Statute and the other sources of law set forth in article 21(1) and 21(2) are applied in a manner which is not inconsistent with or in violation of internationally recognised human rights<sup>165</sup>; from this perspective, neither is the court duty-bound to assess the risks of persecution faced by witnesses who are applying for asylum. Accordingly, the Chamber could not endorse the host State’s argument that the Chamber should conduct an assessment of the risks faced by witnesses in light of the principle known as ‘*non-refoulement*’<sup>166</sup>. In the Chamber’s view, ‘only a State which possesses territory is actually able to apply the *non-refoulement* rule. Furthermore, the Court cannot employ the cooperation mechanisms provided for by the Statute in order to compel a State Party to receive onto its territory an individual invoking this rule. Moreover, it cannot prejudice, in lieu of the host

<sup>163</sup> See note 148, page 78, lines 14–18.

<sup>164</sup> See note 147, para. 59.

<sup>165</sup> *Id.*, para. 62.

<sup>166</sup> *Id.*, para. 64.

state, obligations placed on the latter under the *non-refoulement* principle. In this case, it is therefore incumbent upon the Dutch authorities, and them alone, to assess the extent of their obligations under the *non-refoulement* principle, should the need arise<sup>167</sup>.

Secondly, the Chamber stated that, as for any individual, whether detained or not, the witnesses in question are afforded the right to submit an application for asylum; as the '*non-refoulement*' principle is considered to be a norm of customary international law and is an integral part of international human rights protection. All individuals are entitled to enjoy its application by a State<sup>168</sup>. In addition, 'the Chamber must also pay particular attention to the right to effective remedy as enshrined *inter alia* in...article 13 of the European Convention on Human Rights...[t]he Chamber cannot disregard this fundamental rule and stresses that, in order for the asylum procedure to be effective, there must be open recourse to it, both in law and in practice, and that there must be no obstacles to the entering of an application for asylum as a result of acts or omissions that may be imputed to the Court<sup>169</sup>.

Thirdly, as the witnesses completed their testimonies beginning of May, the issue under consideration remained whether an immediate application of article 93(7) ICCS would constitute a violation of the detained witnesses' rights to apply for asylum. As the matters stood, the Chamber reasoned that applying article 93(7) ICCS in such a narrow sense would be inconsistent with internationally recognised human rights, as required by article 21(3) ICCS. The Chamber reckoned that, if the witnesses were to be immediately returned to the DRC, it would become impossible for them to exercise their right to apply for asylum and they would be deprived of the fundamental right to effective remedy. Lastly, were the Chamber to decide to oblige the host State to cooperate with the court in order to return the witnesses to the DRC immediately, it would be constraining the Netherlands to violate the witnesses' rights to invoke the *non-refoulement* principle<sup>170</sup>.

Interestingly enough, at the end of this decision, the Chamber forwarded possible scenario's 78 that might be relevant to the situation at that time. The first, in short, would be to return the detained witnesses to the DRC [in accordance with article 93(7)]; the second would be not to return the detained witnesses to the DRC; and finally, and most interesting for purposes of this analysis, relates to the question as to what should be decided in the event that the Court considers that the protective measures are satisfactory [pursuant to article 68 ICCS] but the decision of the Dutch authorities on asylum or *non-refoulement* is still pending<sup>171</sup>. This last scenario is the on-going situation at this moment and, as will follow below, the Court found that, as long as the asylum application is ongoing, it cannot send the witnesses back.

The government of the Kingdom of the Netherlands did not agree with this decision and 79 submitted an application for leave to appeal under article 81(1)(d) ICCS<sup>172</sup>. It was the Netherlands' contention that it qualified as a party as it had been closely involved in the proceedings in relation to the subject matter of contention. This close involvement mainly relating to the fact that the transfer of the witnesses from the DRC to the ICC had been carried out in close coordination with the Dutch authorities, amongst others by request the lifting of a United Nations Security Council travel ban imposed on one of the witnesses. When the witnesses informed the Chamber of their human rights concerns if returned to the DRC and requested the Chamber to be presented to the Dutch authorities for purposes of requesting asylum, the involvement of the Netherlands intensified<sup>173</sup>. Even though this is an

<sup>167</sup> See note 147, paragraph 64.

<sup>168</sup> *Id.*, para. 67.

<sup>169</sup> *Id.*, para. 69.

<sup>170</sup> *Id.*, para. 73.

<sup>171</sup> *Id.*, para. 83–85.

<sup>172</sup> Situation in the Democratic Republic of the Congo in the case of *The Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, The Government of the Kingdom of the Netherlands, 'Application for Leave to Appeal the Trial Chamber's Decision ICC-01/04-01/07-3003 dated 9 June 2011, ICC-01/04-01/07-3020, 15 June 2011.

<sup>173</sup> See *Supra* note 171, para. 8.

exceptional situation, the Netherlands maintained that the Decision was particularly prejudicial to the Netherlands and without leave to appeal it would be left without a remedy before the Court. Moreover, the Decision could have broad implications for the relationship between the Netherlands and the Court and, consequently, for the functioning of the Court in the Netherlands. The application went on stating that ‘under the Headquarters Agreement’, the Netherlands has accepted that Dutch laws and regulations remain without effect insofar as necessary for the ICC to function on its territory. Under article 44 HQA, the Netherlands is obliged to transport detained witnesses ‘directly and without impediment’ to the point of departure from the Host State; thereby allowing the Court to implement article 93(7)(b) ICSS<sup>174</sup>.

More importantly, the Netherlands argued, ‘holding that article 68 must *not* be interpreted in accordance with the rule of non-refoulement runs contrary to said expectation of the Netherlands...it would preclude the Netherlands from complying with its obligations towards the Court to transport the detained witnesses whenever non-refoulement would prohibit the Netherlands from doing so. Such a consequence would be very problematic’<sup>175</sup>. As a final matter, the Netherlands argued that ‘the Decision precludes the Netherlands from assisting the Court by transporting the witnesses whenever non-refoulement would prohibit the Netherlands from doing so. Thus, the Decision frustrates the expeditious conduct of the proceedings concerning the detained witnesses’<sup>176</sup>.

- 80 This reasoning of the Netherlands seems to show a one-sided aspect of and run *a contrario* to the original meaning of both the non-refoulement principle *and* those obligations arising from the autonomous functioning of the ECHR provisions of which the Netherlands is a Party to. At this point, the Netherlands’ reasoning is that *because* they cannot send an individual back due to the non-refoulement principle, they are not fulfilling their obligations vis-à-vis the ICC. However, the Netherlands seems to forget that, on the one side, it has obligations arising from other international instruments and sources of law, in this scenario related to human rights provisions and, on the other side, that the ICC also has to acknowledge basic human rights provisions, albeit in a somewhat different fashion as the ICC is not a State. This implies that if, and when, *any* individual that for whatever reason is either detained, or situated, within the ICC territory or under its authority [jurisdiction], decides to file for an asylum application based on the non-refoulement principle, not only would the ICC, by denying said person(s) access to the Dutch courts or counsel, be contravening long-established rules of Customary International Law, of which the *non-refoulement* principle forms an integral part of, but also the Netherlands would be in violation if it, denies access to the national courts thereby denying the application for asylum, purely on the basis of conflicting obligations, as it cannot facilitate the transfer of that individual from the ICC to his (or her) destination of origin. The legal reasoning that a customary rule of international law should be disregarded so that the host State can facilitate the individual to his (her) state of origin, the state for which the individual initially applied for asylum under the non-refoulement principle, seems to be a total disregard for standing human rights practice, and one might question how and why the ‘Legal Capital of the World’ can use such a legal reasoning in the first place.

- 81 Fortunately, the ICC Appeals Chamber did not have to share its views on these legal maxims, as Trial Chamber II, rightly so, denied leave to appeal as the applications were deemed inadmissible. However, noteworthy is the sentence wherein the Chamber indirectly denies the legal reasoning of the Netherlands by stating that ‘the host State is not acting in the interest of the protection of the witnesses, but in fact raises the question of the respective jurisdiction of the Court and the Netherlands posed by the ongoing asylum proceedings...’<sup>177</sup>.

<sup>174</sup> *Id.*, para. 10.

<sup>175</sup> *Id.*, para. 12.

<sup>176</sup> *Id.*, para. 20.

<sup>177</sup> Situation in the Democratic Republic of the Congo in the case of The Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui, ‘Decision on three applications for leave to appeal Decision ICC-01/04-01/07-3003 of 9 June, ICC-01/04-01/07-3073-tENG, 14 July 2011, para. 7.

Exactly the fact that the Netherlands formulated an *a contrario* reasoning, instead of fulfilling its human rights obligations by granting and allowing an individual to apply for asylum based on the non-refoulement principle, stressing that it would be violating its obligations towards the proper functioning of the ICC and that this should be given priority above a rule of customary international law seems to have struck a legal nerve of the Trial Chamber.

By any means, the Netherlands still wanted to submit further applications as to appeal the decision of 9 June and submitted a document directly to the Appeals Chamber asking for ‘Urgent Request for Directions’ as to the proper procedure to be followed to appeal the Decision, noting the unprecedented nature on the request for leave to appeal and the lack of relevant provisions in the legal framework of the court concerning the appeal which the Netherlands intended to file against the decision before the Appeals Chamber<sup>178</sup>. The Appeals Chamber, on the 26 August 2011, dismissed the Urgent Request for Directions *in limine* as the urgent request for directions, amongst others, had been submitted prior to the bringing of any appeal under article 81 or 82 of the Statute and, due to the fact that the urgent request lacked any foundation in the Court’s legal instruments and asked the Appeals Chamber to go beyond and outside the scope of its authority<sup>179</sup>.

At this moment the Netherlands had no more judicial recourse or appellate possibilities concerning this subject, and the proceedings continued as stated above. However, the situation, as mentioned under mn ... arose: namely, on the 10 August 2011, Trial Chamber II reached the conclusion that it had fulfilled its obligation under article 68 ICCS to protect the detained witnesses against any harm that may result from the fact that they had testified before it. As soon as the Chamber would receive confirmation of the protective measures – by the DRC – and assuming that the asylum proceedings before the Dutch authorities would still be pending, the Chamber would instruct the Registry to initiate the consultation process referred to in paragraph 85 of its decision of 9 June 2011<sup>180</sup>.

On the 24 August 2011, Trial Chamber II decided that, after confirmation by the DRC authorities, the conditions for the return of the three detained witnesses had been fulfilled. Accordingly, from the Chamber’s point of view, the Court had fulfilled its obligations under article 68 of the Statute and there were no further grounds to delay the return of the three detained witnesses to the DRC<sup>181</sup>. As the Chamber held in its decision of 9 July 2011, the current finding that the requirements of article 68...have been met is limited to risks related

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A similar leave to appeal submitted by the Netherlands, based on article 81(1)(d) of the Rome Statute was denied as well by Trial Chamber I in the Lubanga case. However, the Chamber *did* grant leave to appeal on an exceptional basis under article 64(6)(f) of the Rome Statute. For an analysis of the Trial Chamber’s decision, consult the Situation in the Democratic Republic of the Congo in the Case of The Prosecutor v. Thomas Lubanga Dyilo, ‘Decision on two requests for leave to appeal the ‘Decision on the request by DRC-D01-WWWW-0019 for special protective measures relating to his asylum application’, ICC-01/04-01/06-2779, 4 August 2011.

<sup>178</sup> Situation in the Democratic Republic of The Congo in the case of The Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui, The Government of the Kingdom of the Netherlands, ‘Urgent Request for Directions’, ICC-01/04-01/07-3077, 15 July 2011, paras. 5–6.

<sup>179</sup> Situation in the Democratic Republic of The Congo in the case of *The Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, Appeals Chamber, ‘Decision on the “Urgent Request for Directions” of the Kingdom of the Netherlands of 15 July 2011’, ICC-01/04-01/07-3132, 26 August 2011, paras. 6–8.

In the Lubanga case, the Appeals Chamber rejected the Urgent Request for Directions as Leave to Appeal was improperly granted and due to the fact that the Urgent Request for Directions in relation to proceedings on appeal was without foundation; Situation in the Democratic Republic of The Congo in the Case of *The Prosecutor v. Thomas Lubanga Dyilo*, Appeals Chamber, ‘Decision on the ‘Urgent Request for Directions’ of the Kingdom of the Netherlands of 17 August 2011, ICC-01/04-01/06-2799, especially paragraphs 7–8. The Urgent Request for Directions was submitted by the Netherlands and included in the Court’s records as document ICC-01/04-01/06-2788.

<sup>180</sup> Situation in the Democratic Republic of the Congo in the case of the *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ‘Order to provide confirmation of full implementation of Decision ICC-01/04-01/07-3033’, ICC-01/04-01/07-3097, 10 August 2011, paras. 6–7.

<sup>181</sup> Situation in the Democratic Republic of the Congo in the case of the *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ‘Decision on the Security Situation of witnesses DRC-D02-P-0236, DRC-D02-P-0228 and DRC-D02-P-0350, ICC-01/04-01/07-3128, 24 August 2011.

to the cooperation of the witnesses with the Court. The Chamber thus takes no position on the alleged risk for violations of the human rights of the detained witnesses in the DRC, or indeed on the question of their alleged persecution by the DRC authorities. *However* (emphasis added)... so long as the request for asylum is still pending before the Dutch authorities, the Court cannot request that the Host State facilitate their return to the DRC. The fact that the asylum request is still pending makes their return temporarily impossible from a legal point of view<sup>182</sup>.

- 84 The outstanding question at this moment was whether the witnesses ‘should remain detained pending the final outcome of their request for asylum in The Netherlands and, if so, who should assume responsibility for detaining them...[t]he statute does not provide an answer to this question and ‘a solution must be sought as soon as possible in consultations between the Court, the Host State and the DRC in order to determine whether these witnesses should remain in detention and, if so, in whose custody’<sup>183</sup>. It was, according to the Chamber, therefore ‘incumbent upon the Registry to commence a consultation process with the authorities of the Netherlands and the DRC at once...[i]n any event, given that the obligation of the Court to detain the three witnesses has now, in principle, come to an end, the Chamber is of the view that a solution must be found urgently’<sup>184</sup>.
- 85 An interesting insight in the consultation process between the Registry and the Netherlands is given after the Registry submitted a report pursuant to decision ICC-01/04-01/07-3128<sup>185</sup>. This report, and the annexes which contained the notes verbales between the Registry and the host State, gives an interesting insight in the procedural and substantive views of the Netherlands concerning the asylum seekers. On 13 September 2011, the Chef de Cabinet of the Presidency and the Deputy Registrar met representatives of the host State at the Dutch Ministry of Foreign Affairs, at that meeting, the issue of the consideration of the asylum applications was discussed. The host state expressed its willingness to process the asylum applications as expeditiously as possible<sup>186</sup>. Furthermore, the host State authorities transmitted their observations on the 15 September. In that note verbale, the host State explained that the witnesses should remain at the detention centre while the asylum application was under consideration. The host State also referred to a note verbale of 26 August 2011, in which it set out its position in another (the Lubanga) case<sup>187</sup>. The Annex contained three notes verbales of the Dutch authorities; two of those pertained to the Lubanga case while the most recent to the Katanga and Chui case<sup>188</sup>. Although different cases, the position of the Netherlands remains the same in both cases, *mutatis mutandis*.
- 86 The main procedure to be followed is as follows: first, the Immigration and Naturalisation Service would need access to the detained witness, or witnesses, at the ICC Detention Centre to conduct interviews to obtain information. Thereafter, the INS would conduct an assessment of the facts and circumstances in connection with the asylum request. Further investigations may, and are likely to, be part of that assessment. Insofar as the INS intend *not* to grant the asylum request, the detained witness will have the opportunity to present his views. Following a formal decision, the detained witness may seek judicial review of this decision, which may be followed by further litigation<sup>189</sup>. This, in the most extreme circumstances, could continue up to the European Court of Human Rights, if the need arises. According to the Dutch authorities, these

<sup>182</sup> *Id.*, paras. 14–15.

<sup>183</sup> *Id.*, para. 16.

<sup>184</sup> *Id.*, para. 17.

<sup>185</sup> Situation in the Democratic Republic of the Congo in the case of the *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ‘Registry’s report submitted pursuant to decision ICC-01/04-01/07-3128’, ICC-01/04-01/07-3158-tENG, 16 September 2011.

<sup>186</sup> *Id.*, para. 3.

<sup>187</sup> *Id.*, para. 4.

<sup>188</sup> *Id.*, ICC-01/04-01/07-3158-Anx3.

<sup>189</sup> See note 187, Third Note Verbale of Anx3, Ministry of Foreign Affairs, Protocol Department DKP/NG-2011/643, 2 August 2011.

administrative and judicial proceedings may take considerable time and the Netherlands requires the detained witness(es) to remain at the ICC DC throughout.

The second note verbale related to the proposed consultation between the Registry and the Dutch authorities 'on the transfer of the witness into the "control" of the Netherlands' f the host State intends to defer his departure pending its decision on the asylum application'<sup>190</sup>. The Netherlands, firstly, restated that '[t]he position of the Netherlands has consistently been that the witness is to remain in custody of the Court during the asylum procedure'<sup>191</sup>. Secondly, and also of concern, was the following line of reasoning by the Netherlands, which seems to show a certain discontent with the way in which both the proceedings, as well as the position of the ICC, especially the Chambers, has been thus far. The Netherlands stated that 'the witness has been temporarily transferred in custody from the DRC to the Court pursuant to an agreement between them under article 93(7) of the Statute. Under this agreement the witness shall remain in custody and shall be returned to the DRC when the purposes of the transfer have been fulfilled. This agreement was concluded between the Court and the DRC to facilitate the prosecutions undertaken by the Court. *The Netherlands fails to understand how an obligation to accept undocumented or illegal foreigners into its territory would follow from a bilateral agreement to which it is not a party* (emphasis added). The Court does not have the authority under the Statute or the HQA to transfer the witness to the Netherlands, nor does it have the authority to impose such a transfer upon the host State. Neither, as was acknowledged by the Court, is the Netherlands obligated to accept the transfer of the witness into its control. In this regard the Netherlands would also note that under the current circumstances it lacks jurisdiction to keep the witness(es) in custody throughout the consideration of his asylum application'<sup>192</sup>.

The note verbale continued by stating that: 'it is not the Netherlands that intends to defer the departure of the witness(es). The Netherlands notes that the decision reiterated the responsibility of the Court to ensure that the witness has a real – as opposed to a merely theoretical – opportunity to make his request for asylum to the Dutch authorities before his return to DRC. It is the understanding of the Netherlands that this responsibility implies that the Court will not undertake the transfer of the witness to the DRC during the procedure pertaining to the asylum request. Consequently, the position of the Netherlands remains that the witness is to remain in custody of the Court pending the consideration of the asylum application. *Therefore, the Netherlands does not consider that there is a need to consult with the Registry of the Court at this time* (emphasis added)'<sup>193</sup>.

The third and final note verbale, in the Katanga and Chui case, refers to the above-mentioned notes verbales reiterating the position maintained thus far; an additional remarks in this note verbale is that the Netherlands stated '[t]hird, and lastly, the Netherlands would refer to discussions between the Ministry of Foreign Affairs and Court authorities to explore the modalities to address concerns that have arisen in this matter'<sup>194</sup>. A seemingly open-ended statement that could lead to, for now, an unknown situation.

It is striking that the Netherlands, a country that prides itself with the legal maxims of being the Legal Capital of the World, and The Hague, City of Peace and Justice, would be so adamantly opposed in upholding its own legal obligations arising from its human rights provisions. As the Netherlands questioned the bilateral agreement between the ICC and the DRC, the Netherlands should remember that it signs a variety of agreements itself, whether they are bilateral, multilateral, or even unilateral; one of the multilateral agreements obviously being the European Convention on Human Rights. The obvious [legal] fact

<sup>190</sup> *Id.*, Second Note Verbale of Anx3, Ministry of Foreign Affairs, Protocol Department, DKP-2011/710, 26 August 2011, para. 2.

<sup>191</sup> *Id.*, para. 3.

<sup>192</sup> *Id.*, paras. 4–5.

<sup>193</sup> *Id.*, paras. 6–8.

<sup>194</sup> See note 187, First Note Verbale of Anx3, Ministry of Foreign Affairs, Protocol Department, DKP-2011/777, 15 September 2011, para. 5.



remains that the Netherlands has a variety of legal obligations, not only as a host State, and these legal obligations can include applications for asylum of which any individual within the territory and jurisdiction of the Netherlands has the right to apply for. Whether or not such an application is granted, or denied, is beside the point here; access to the judicial organs, and the rights and obligations arising thereof *is*.

88 The constant and structural refusal of the Netherlands until the moment of this writing, can be considered to be baffling. To only be a good Host when it suits you and, not to be a good Host when the result is unwanted, should not be the *modus operandi* of the Netherlands. Most probably, besides the national political influences and factors, allowing any individual that arrives in the Netherlands for reasons relating to the functioning of an international organisation or entity situated in the Netherlands, to apply for asylum, seems to be able to become a precedent that can lead to unknown and unwanted factors for the host State. However, before the Rome Statute was even codified and signed, the Netherlands vehemently lobbied and proclaimed it would host the International Criminal Court, without knowing the exact extent of the obligations and unknown circumstances that could arise. One of these unknown factors, as is obviously apparent at this moment, is that an individual, in this case four witnesses, could come within the jurisdiction of the Netherlands, even though they are situated, or detained, upon the premises of the ICC, where a ‘carve out’ of Dutch jurisdiction exists. This was known to be a possibility but, for whatever [political] reason, it was somewhat ignored. The government reaction to such a situation would be that it would be extremely unlikely to ever occur. However unlikely, it has happened and the Dutch authorities knew it could happen. Now that it has, the Netherlands is trying to deny its obligations thereof, even though legally speaking, from a national law perspective, there is not much leeway for the Dutch authorities to deny the witnesses’ judicial review by national courts of their applications, a matter that has been consistently been tried to deny.

89 Whatever the position of the Dutch authorities might have been concerning this subject, on the 28 December 2011, The Hague District Court, sitting in Amsterdam, passed judgement on the question whether or not the asylum applicants were entitled to the (full) provisions of the Dutch Asylum Law of 2000, something the Dutch authorities have consistently denied. One of the first conclusions of The Hague Court was that the Headquarters Agreement does not contain *any* legal provision that would deny, or legally ‘carve out’ the legal provisions of the Dutch Asylum Law. On the contrary, The Hague Court ruled that the Headquarters Agreement *does* allow and enforce the operative provisions of the Dutch Asylum Law<sup>195</sup>. Furthermore, The Hague Court ruled that the ICC Implementation Act also has no legal provision that would ‘carve out’ the laws and provisions of the Asylum Law. The Hague Court reasoned that the only laws that could be within the ambit of the ‘carve out’ are those laws and regulations that would impede the proper functioning of the ICC; therein included is not the Dutch Asylum Law<sup>196</sup>. Furthermore, The Hague Court ruled that, basing itself on article 93(7) ICCS, said article could not render inapplicable the Dutch Asylum Law in its entirety. Only those provisions that may lead to the proper functioning of the ICC, might be able to be rendered inapplicable, however, as the ICC Chambers’ decision of 9 June, applying article 21(3) ICCS to the circumstances of the case, itself allowed for the application for asylum, this line of thought should be dismissed<sup>197</sup>. Finally, the contention by the Dutch authorities that the applicants are not within its jurisdiction, was also denied. Thereby, the fact that even though the applicants are within the jurisdiction of the ICC, does not mean that they cannot apply for Asylum; especially seen from the perspective that, on the one hand, the ICC does not have its own territory as a State does – and that it subsequently came to the same conclusion thereof – and, on the other hand, the applicants *are* factually situated upon Dutch territory, and that in

<sup>195</sup> See note 146, section 9.4.

<sup>196</sup> *Id.*, section 9.5.

<sup>197</sup> See note 146, paragraph 9.6.



principle entitles them to apply for asylum<sup>198</sup>. The Hague Court concluded that it could not find *any* legal base, either within the context of national law and legislation, nor at the international level, which would place the applicants outside the jurisdiction of the national courts and laws<sup>199</sup>. The Hague Court ended by stating that a decision on the applications for Asylum should be reached by 28 June 2012. The matter is still pending.

Even though the national court has rendered this decision, the Dutch authorities still 90 refuse to either take (full) control of the applicants, or even cooperate with the ICC organs with regard to this matter. A final note thereof is Trial Chamber II's decision of the 1 March pertaining to the Defence Counsel's urgent request to convene a Status Conference<sup>200</sup>, as the consultations that should have led to a (satisfactory) conclusion between, on the one side, the ICC and the host State and, on the other side, the ICC and the DRC has, thus far, failed to lead to a conclusion tolerable for all sides.

The Chamber, in its decision, explained the predicament they were in: '[a]s a result of the 91 failure of the consultations to produce any alternative solution, the Court has found itself bound in the following position. on the one hand, since the witnesses have finished their testimony and their security in the DRC is guaranteed, the Court has no reason anymore to maintain custody over the witnesses and should return them. On the other hand, the Court's obligation to return the witnesses has been suspended until the final outcome of their asylum claim. Given this situation, the Court has had so far no other choice but to keep the...detained witnesses in its custody, in accordance with article 93(7) of the Statute'<sup>201</sup>. Furthermore, '[a]s regards the *legality of the continued detention* (emphasis added) of the witnesses by the Court since the completion of their testimony, the Chamber notes that the custody of the Court on the basis of article 93(7) ICCS has so far been maintained because the existence of the asylum claim has engendered an extraordinary situation, in which the Court has very little room for manoeuvre. The Chamber reiterates, in this respect, that the processing of the witnesses' asylum applications must not cause the unreasonable extension of their detention under article 93(7) of the Statute and that, in light of *inter alia* article 21(3) of the Statute, the Court cannot contemplate prolonging their custody indefinitely. The Chamber can therefore only deplore that the consultations have failed to produce an alternative solution pending the outcome of the Dutch asylum procedure, especially since the Court has not control over its duration'<sup>202</sup>.

Taking into account of the Hague District Court's decision of 28 December 2011, 'which 92 has recently become final and which confirms the applicability of Dutch immigration law to the processing and assessment of the witnesses' asylum applications on the basis of the fact that the witnesses are on Dutch territory, the Chamber finds it necessary to ask the Dutch authorities whether:

- 1) they are now in a position to take control of the witnesses pending the outcome of their asylum claim and, in case their application is rejected, to ensure their return to the DRC;
- 2) they consider themselves *obliged* to receive the witnesses in accordance with article 48 of the Headquarters Agreement in case the Court were to find it unreasonable to further detain them on the basis of article 93(7) of the Statute<sup>203</sup>.

This is how matters stand at this moment. The witnesses have been granted full access to 93 the provisions of the Dutch Asylum Law of 2000. The ICC will have increasingly more difficulties to legally justify the prolonged detention of the witnesses with regard to article 21(3) ICCS and, the Dutch authorities have yet to assume responsibility of the

<sup>198</sup> *Id.*, para. 9.8.

<sup>199</sup> *Id.*, para. 9.9.

<sup>200</sup> Situation in the Democratic Republic of The Congo in The Case of The Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui, Decision on the Urgent Request for Convening a Status Conference on the Detention of Witnesses DRC-D02-P-0236, DRC-D02-P-0228, and DRC-D02-P-0350, ICC-01/04-01/07-3254, 1 March 2012..

<sup>201</sup> *Id.*, para. 11.

<sup>202</sup> *Id.*, para. 20.

<sup>203</sup> See note 199, para. 21.

applicants. Even though this situation is a first of a kind for the ICC – host State relationship, it seems that the Netherlands cannot postpone the transfer of these applicants indefinitely. The judgement in the Lubanga case has been rendered, and it would be an unexplainable situation if, after the sentencing and reparations judgement have been rendered, and any appeal thereafter, the case would be completely over, while a witness is still in detention. The host State should assume its responsibility under both national as well as international law, and deal with the situation, not try to postpone and hope it will blow over.

## Article 4

### Legal status and powers of the Court

1. The Court shall have international legal personality. It shall also have such legal capacity as may be necessary for the exercise of its functions and the fulfilment of its purposes.

2. The Court may exercise its functions and powers, as provided in this Statute, on the territory of any State Party and, by special agreement, on the territory of any other State.

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#### A. General remarks\*

Article 4 is a decisive provision for the determination of the **legal nature of the ICC**. The legal nature of an institution is a consequence of the method chosen by States for its establishment. The proposed alternative methods of establishment of the ICC, had they been adopted, would have resulted in a very different kind of Court. 1

The Court could have been established through an amendment of the Charter of the United Nations<sup>1</sup>, which would have made the Court's Statute, like the Statute of the ICJ, an integral part of the Charter<sup>2</sup>. The ICC thus would have become a judicial organ of the United Nations. As such, it would have lacked a separate international legal personality<sup>3</sup>.

Alternatively, the Court could have been established by resolution of the General Assembly and/or the Security Council, which would have made the Court a subsidiary organ of the General Assembly or the Security Council, or possibly a joint subsidiary organ<sup>4</sup>. Setting aside

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\* This commentary has been written by the author in her private capacity.

<sup>1</sup> Such an amendment would have required adoption in the General Assembly by two-thirds of its members and ratification by two-thirds of the members of the United Nations, including all the permanent members of the Security Council, see article 108 of the Charter of the UN.

<sup>2</sup> Article 92 of the Charter of the UN.

<sup>3</sup> Schermers and Blokker, *International Institutional Law* (2011) 994, § 1571.

<sup>4</sup> 1994 ILC Draft Statute.

possible challenges to the legitimacy of such a subsidiary body<sup>5</sup>, one consequence must be noted: The Court in this case most certainly would not have possessed an international legal personality separate from that of the organ that established it<sup>6</sup>.

- 2 The ICC, however, has been created through a multilateral treaty<sup>7</sup>, giving it a different legal nature from that which it would have had under either of the other approaches. The ICC is a treaty body in which the States Parties have vested a distinct international legal personality<sup>8</sup>. By endowing the Court with international legal personality, the States Parties created a new **subject of international law**<sup>9</sup>.
- 3 Because the Court possesses international legal personality separate from that of its member States, it possesses an essential element which is characteristic of an international organisation<sup>10</sup>. Moreover, it possesses all other elements that are essential to the definition of an international organisation<sup>11</sup>: The Court consists of an association of the States Parties<sup>12</sup> established by and based upon the Statute as an international treaty<sup>13</sup>, which pursues common aims<sup>14</sup> and has its own special organs<sup>15</sup> to fulfil particular functions within the organisation. Furthermore, the Court is designed as a permanent institution<sup>16</sup> with proper funds for its expenses<sup>17</sup> and a special procedure for revision of the Statute, its constituent treaty<sup>18</sup>. All these features leave no doubt as to the legal nature of the ICC: It is an entity established by a treaty governed by international law and capable of generating through its organs an autonomous will distinct from the will of its members. Unlike most other international courts and tribunals<sup>19</sup>, the ICC is not a judicial organ of an international organisation, but is **itself** an international organisation<sup>20</sup>.

## B. Analysis and interpretation of elements

### I. Paragraph 1

#### 1. International legal personality

- 4 The first sentence of article 4 para. 1 expressly confers international legal personality on the ICC and thereby clarifies that the ICC has the capacity to **possess international rights and duties**.

<sup>5</sup> *Ibid.*

<sup>6</sup> Walter, in: Wolfrum (ed.), *MPEPIL* (2008-) mn 13.

<sup>7</sup> See, e.g., R. S. Clark, *article 125*, mn 1. The majority of States participating in the *ad hoc* Committee and the Preparatory Committee favoured the treaty approach to ensure that the Court would be set up as soon as possible, see Hall (1997) 91 *AJIL* 177, 185. The consensus on the establishment of the ICC by treaty was reflected in the consolidated text which resulted from the final session of the Preparatory Committee, see Hall (1998) 92 *AJIL* 548.

<sup>8</sup> See express wording of article 4 para. 1.

<sup>9</sup> On their power to do so see, for instance, Walter in: Wolfrum (ed.), *MPEPIL* (2008-) mn 3.

<sup>10</sup> See the definition of the International Law Commission agreed upon in 2003, Report of the International Law Commission, Fiftyfifth session (5 May-6 July and 7 July -8 August 2003), GAOR 58<sup>th</sup> Session Supp 10, 38.

<sup>11</sup> See also the definition of Schmalenbach, in: Wolfrum (ed.), *MPEPIL* (2008-) mn 3.

<sup>12</sup> See, for instance, *Part 11* of the Rome Statute on the Assembly of States Parties and the commentary thereon by S. Rama Rao and P. Ambach.

<sup>13</sup> See, for instance, R. S. Clark, *article 125*, mn 1.

<sup>14</sup> See the *Preamble* and the commentary thereon by M. Bergsmo/O. Triffterer†/K. Ambos.

<sup>15</sup> See *article 34* and the commentary thereon by K.A. A. Khan.

<sup>16</sup> See *article 1* and the commentary thereon by O. Triffterer/M. Bohlander.

<sup>17</sup> See *Part 12* and the commentary on it.

<sup>18</sup> See *articles 121 to 123* and the commentary on them by R.S. Clark.

<sup>19</sup> See, for example, Schermers and Blokker, *International Institutional Law* (2011) 435, §§ 597 *et seq.*

<sup>20</sup> Seidl-Hohenveldern and Loibl, *Das Recht der Internationalen Organisationen* (2000) 332, mn 2403a. See also Lüder, in: Fischer *et al.* (eds.), *International and National Prosecution of Crimes Under International Law* (2001) 51 *et seq.*

The ILC's Draft Statute did not contain this explicit provision on international legal personality<sup>21</sup>. At that stage of preparations, however, the method of establishment of the Court was still under discussion<sup>22</sup>. The question of whether the Court would possess international legal personality was therefore still unsettled. Consequently, the Draft could not yet contain such a provision.

On the other hand, even if the Rome Statute did not contain such an explicit provision<sup>23</sup>, the international legal personality of the ICC could have been implied, through the attribution of certain functions to the institution. With regard to the legal personality of the United Nations, this was established by the ICJ in its Advisory Opinion on *Reparation for injuries suffered in the service of the United Nations*<sup>24</sup>. The explicit provision that the ICC shall have international legal personality makes it unnecessary to deduce this personality from the functions attributed to the Court.

International legal personality, *i.e.* the capacity of possessing international rights and duties, clearly exists **in relation to the States Parties** that accepted this provision<sup>25</sup>. According to the wording of the sentence in the Statute, however, it would not necessarily have to be confined to them alone, but might also refer to **States not Parties** to the Statute.

In its *Reparation* Opinion, the ICJ held that with regard to the United Nations 'fifty States, representing the vast majority of the members of the international community, had the power, in conformity with international law, to bring into being an entity possessing objective international personality, and not merely personality recognised by them alone'<sup>26</sup>. This ruling on the objective international personality of the United Nations is confined to this special case. It cannot by analogy be applied to other international organisations. International legal personality in relation to States not Parties to the Statute therefore remains contingent upon their explicit or implied recognition of the organisation. Recognition may be accorded to the ICC by concluding treaties with it, for example.

In contrast to the second sentence of paragraph 1, the first sentence does not contain an explicit **functional limitation** of the international legal personality of the Court. Under general international law, however, such international legal personality of an international organisation is always of a functional nature<sup>27</sup>. Unlike a State, an international organisation does not possess the totality of international rights and duties recognised under international law; its powers are limited by its purposes and functions as specified in its constituent document<sup>28</sup>. Consequently, the Court does not, to take just one example, possess unlimited powers to conclude international treaties. The Statute specifically provides for the competence to conclude an agreement with the United Nations<sup>29</sup> and a headquarters agreement with the host State<sup>30</sup>. Moreover, article 86 para. 5 implies the power to conclude agreements with States not Parties as basis for cooperation with the Court under Part 9 of the Statute<sup>31</sup>. Thus, the power of the Court, for example, to conclude international treaties is functionally limited. The attribution of interna-

<sup>21</sup> 1994 ILC Draft Statute, p. 29.

<sup>22</sup> *Ibid.*, p. 22.

<sup>23</sup> Like the UN Charter, the constituent treaties of international organisations often lack provisions on the legal status of the organisation under international law, see Schermers and Blokker, *International Institutional Law* (2011) 989, § 1565.

<sup>24</sup> *Reparation for injuries suffered in the service of the United Nations*, Advisory Opinion, ICJRep. 174, 178/179 (1949).

<sup>25</sup> Schmalenbach, in: Wolfrum (ed.), *MPEPIL* (2008-) mn 20.

<sup>26</sup> *Reparation for injuries suffered in the service of the United Nations*, Advisory Opinion, ICJRep. 174, 185 (1949).

<sup>27</sup> Schermers and Blokker, *International Institutional Law* (2011) 993, § 1570.

<sup>28</sup> *Reparation for injuries suffered in the service of the United Nations*, Advisory Opinion, ICJRep. 174, 180 (1949).

<sup>29</sup> See article 2 and the commentary thereon by P. Ambach.

<sup>30</sup> See article 3 and the commentary thereon by G.A.M. Strijards/R.O. Harmsen.

<sup>31</sup> See the commentary by C. Kreß/K. Prost on article 86.

tional legal personality to the ICC does not change that fact, since only those limited functional powers give substance to the international legal personality<sup>32</sup>.

## 2. Legal capacity

- 7 The second sentence of article 4, para. 1, states that the Court shall have such legal capacity as may be necessary for the exercise of its functions and the fulfilment of its purposes. This standard provision<sup>33</sup> clarifies that the Court shall possess **at the municipal level** the legal capacity essential for it to carry out its functions. This provision makes it incumbent upon the States Parties to ensure that the ICC enjoys such legal status under national law as may be necessary for it to perform its functions. The effect of this contractual attribution of legal capacity is dependent upon the respective constitutional provisions on the status of international treaties in national law<sup>34</sup>. Where international treaties automatically become part of the law of the land, the mere ratification of the Statute might be sufficient to vest the ICC with such domestic legal capacity. In other countries, domestic legislation might be required to attain this effect<sup>35</sup>.

The legal capacity of the ICC extends only as far as the purpose and functioning of the ICC require. This **functional limitation** of the legal capacity is explicitly laid down in article 4, para. 1. The extent of the Court's legal capacity is illustrated in article 2 of the Agreement on the Privileges and Immunities of the ICC. According to this provision on the legal status and juridical personality of the Court, it shall in particular have the capacity to contract, to acquire and to dispose of immovable and movable property and to participate in legal proceedings<sup>36</sup>.

- 8 Unlike the provision in the ILC's Draft Statute<sup>37</sup>, article 4 para. 1 does not expressly limit the legal capacity to the territory of each State Party. As an international treaty (and therefore *res inter alios acta*), however, the Statute cannot impose duties on third States<sup>38</sup>. The legal capacity of the ICC **in States not Parties to the Statute** does thus not follow directly from article 4 para. 1. It can, however, indirectly follow from it, since private international law accepts legal personality acquired abroad; and this personality must not be affected by the fact that it was granted by a group of states and not by one particular state<sup>39</sup>. Furthermore, in cases where the UN Security Council referred a situation in a non-Member State to the ICC, it always included in its legally binding decision under Chapter VII of the Charter of the United Nations a decision to the effect that the State concerned 'shall cooperate fully with and provide any necessary assistance to the Court and the Prosecutor pursuant to this resolution'.<sup>40</sup> This legal obligation is formulated so widely that it also comprises the obligation to grant to the Court the necessary legal capacity at the municipal level. Therefore, the question of whether national legal capacity in non-member States follows from explicit or implied recognition, from a binding Security Council decision or from conflict-of-law rules, does not seem to become relevant in practice.

<sup>32</sup> See also Bowett, *The Law of International Institutions* (1982) 306 *et seq.*

<sup>33</sup> Compare article 104 of the Charter of the United Nations and see Schmalenbach, in: Wolfrum (ed.), *MPEPIL* (2008-) mn 28 and Schermers and Blokker, *International Institutional Law* (2011) 1021, § 1591.

<sup>34</sup> See, e.g., Rensmann (1998) 36 AVR 305, 307.

<sup>35</sup> Shaw, *International Law* (1997) 127.

<sup>36</sup> ICC source: Official Records ICC-ASP/1/3.

<sup>37</sup> 1994 ILC Draft Statute, p. 29.

<sup>38</sup> See articles 34 and 5 of the VCLT, 23 May 1969, 8 *ILM* 679 and articles 34 and 5 of the VCLT between States and International Organisations or between International Organisations, 21 Mar. 1986, 15 *ILM*. 543 and Chinkin, *Third Parties in International Law* (1993) 25.

<sup>39</sup> See Schermers and Blokker, *International Institutional Law* (2011) 1025, § 1598, citing article 1 of The Hague Convention on the recognition of the legal personality of foreign corporations, associations and foundations, 1 June 1956. Seidl-Hohenveldern and Rudolph, in: Simma (ed.), *The Charter of the United Nations. A Commentary* (2002) 1311, mn 41 *et seq.* apply a similar reasoning to article 104 of the Charter of the United Nations.

<sup>40</sup> Security Council Resolution 1593(2005), para. 2 and Security Council Resolution 1970 (2011), para. 5.



## II. Paragraph 2

### 1. Exercise of functions and powers on the territory of any State Party

Paragraph 2 states that the Court may exercise its functions and powers on the territory of 9 any State Party. The possible exercise of powers is not confined to the territory of the host State where the seat of the Court is established (article 3 para. 1)<sup>41</sup>. The Court may sit elsewhere, whenever it considers it desirable (article 3 para. 3)<sup>42</sup> and may decide on a place of trial other than the seat of the Court (article 62)<sup>43</sup>.

In all other respects, however, it is not generally foreseen that the Court should exercise its powers and functions directly on the territory of a State Party. On the contrary, the ICC relies upon the cooperation and assistance of the States Parties on their territory. They shall fully cooperate in the investigation and prosecution of the crimes within the jurisdiction of the Court<sup>44</sup> and shall ensure that procedures under national law are available for such cooperation<sup>45</sup>. The Court may request, in particular, for the arrest and surrender of a person (article 89), for provisional arrest of a person sought (article 92) and for all kinds of assistance specified in article 90. The Court is dependent upon such cooperation of the States Parties for all these kinds of action that have to be taken on their territory.

Likewise, the powers of the Prosecutor are confined to requests for cooperation<sup>46</sup>. One 10 exception, however, is contained in articles 54 para. 2 lit. b and 57 para. 3 lit. d. According to these provisions, the Pre-Trial Chamber may authorize the Prosecutor to take specific investigative steps within the territory of a State Party without having secured the cooperation of that State under Part 9, if the Pre-Trial Chamber has determined in that case that the State is clearly unable to execute a request for cooperation due to the unavailability of any authority or any component of its judicial system competent to execute the request for cooperation<sup>47</sup>. Only in such circumstances does the Statute conceive of a situation where the Prosecutor may act directly within the territory of a State Party without having secured the cooperation of that State under Part 9 of the Statute.

With regard to the enforcement of its sentences, the Court equally relies upon the 11 willingness of the States Parties to cooperate and to accept sentenced persons on their territory<sup>48</sup>. It retains only the competence to supervise the enforcement of a sentence of imprisonment, which does not necessarily imply Court action on the territory of the State Party that accepted the sentenced person.

### 2. Exercise of functions and powers on the territory of any other State

In contrast to the exercise of functions and powers on the territory of a State Party, such 12 an exercise of functions and powers on the territory of any other State always requires ‘special agreement’. All States Parties consent to the Statute and, since article 120 does not allow reservations to the Statute, they consent to all obligations following from it<sup>49</sup>. The same does not apply to third States, since the Statute neither confers rights nor imposes duties on them (*pacta tertiis nec nocent nec prosunt*)<sup>50</sup>. The Court may exercise its functions and

<sup>41</sup> See article 3 and the commentary thereon by G.A. M. Strijards/R.O. Harmsen.

<sup>42</sup> See *ibid.*

<sup>43</sup> See the commentary by O. Triffterer/T. Zimmermann, article 62.

<sup>44</sup> See article 86 and the commentary thereon by C. Kreß/K. Prost.

<sup>45</sup> See article 88 and the commentary thereon by C. Kreß/K. Prost.

<sup>46</sup> See articles 15 para. 2; 18 para. 5; 19 para. 8 (c); 19 para. 11 and 54 para. 3 (c) and (d).

<sup>47</sup> See the commentary of M. Bergsmo/O. Bekou on article 54 and the commentary of F. Guariglia/G. Hochmayr on article 57.

<sup>48</sup> See article 103 and the commentary thereon by G.A. M. Strijards/R.O. Harmsen.

<sup>49</sup> See the commentary of G. Hafner on article 120.

<sup>50</sup> See Shaw, *International Law* (1997) 127.

powers on the territory of such other States only by agreement, i.e. by consent. This principle governs the relations between the Court and third States in the field of international cooperation and judicial assistance under Part 9. Even those States that are not Parties to the Statute are encouraged to provide assistance under Part 9 on the basis of *ad hoc* arrangements, agreements or any other appropriate basis<sup>51</sup>. Since the prosecution, punishment and deterrence of the crimes covered by the Statute lie in the interest of all members of the international community, third States should agree to cooperate with the Court and provide assistance to the Court, and agree to the exercise of the Court's functions and powers on their territory.

In the cases where the **Security Council referred situations** in non-States Parties to the ICC, the Council actually urged 'all States to cooperate fully', whether or not party to the Rome Statute.<sup>52</sup> Such cooperation can, depending on the circumstances, include allowing the exercise of functions and powers on the territory of a non-State party. Furthermore, the requirement of a 'special agreement' of the third State is in such cases altered with regard to the territorial State concerned. When the Security Council refers a situation to the Court, the binding Council resolution adopted under Chapter VII of the UN Charter replaces the agreement of the territorial State to the exercise of jurisdiction. The Court's competence is then founded on the binding Security Council decision, not on State consent. In the same way, the Security Council decisions referring situations to the ICC contained an obligation of the territorial State concerned to cooperate fully with and provide any necessary assistance to the Court and the Prosecutor.<sup>53</sup> Since cooperation includes allowing for the exercise of functions and powers of the Court on one's own territory, the binding Security Council decisions in these cases legally also replaced the consent requirement with regard to cooperation. In practice, however, whether this obligation to cooperate is being observed of course very much depends upon the will and therefore consent of the authorities concerned.

### 3. 'as provided in this Statute'

- 13 This passage was inserted into the original provision<sup>54</sup> after deliberation in the Committee of the Whole during the first week of the Rome Conference<sup>55</sup>. The passage makes clear that the Court's **functions and powers are limited** to those provided for in the Statute. Restating the obvious<sup>56</sup>, the provision is directed against an expansion of the Court's powers beyond the Statute. Such an expansion could possibly derive, for example, from the application of a broad implied-powers-doctrine, according to which an institution has to possess the powers which are necessarily implied in the definition of a certain goal to be reached<sup>57</sup>. Furthermore, customary law or new treaty law can provide avenues for the expansion of the Court's powers and functions. Article 4 para. 2 of the Statute, however, circumscribes all such means of expansion of the Court's power, given its requirement that the Court's powers and functions be provided in the Statute, not elsewhere.
- 14 As to the doctrine of **implied powers**, one has to distinguish a narrower concept from the previously mentioned broader concept. According to the broad approach, the definition of a certain goal to be reached can be deemed sufficient to regard the means necessary to achieve

<sup>51</sup> See the commentary of C. Kreß/K. Prost on *article 87 para. 5*.

<sup>52</sup> Security Council Resolution 1593(2005), para. 2 and Security Council Resolution 1970(2011), para. 5.

<sup>53</sup> Security Council Resolution 1593(2005), para. 2 and Security Council Resolution 1970(2011), para. 5.

<sup>54</sup> The provision was originally contained in article 3 para. 3 of the Draft Statute, see Preparatory Committee Draft, p. 10.

<sup>55</sup> UN Doc. A/CONF.183/DC/R.1 and R. 2.

<sup>56</sup> International Organisations possess only the powers and functions attributed to them in the constituent document they are based upon. Or, as Schermers and Blokker, *International Institutional Law* (2011) 157, § 209 put it: 'They are not competent to determine their own competence'.

<sup>57</sup> Blokker, in: Wolfrum (ed.), *MPEPIL* (2008) mn 9.

that goal as implied<sup>58</sup>. Since article 4 para. 2 establishes that the functions and powers have to be provided for in this Statute, the provision leaves no room for the application of any such broad construction that could encroach upon the sovereignty of the States Parties.

According to the narrow concept of implied powers, however, only those powers are implied which are necessary for the exercise of explicitly granted powers, in order to attain the objectives of an organisation<sup>59</sup>. Here, the basis for such implied powers are the powers explicitly granted in the constituent document<sup>60</sup>. Implied powers under this approach exist, when a power provided for in the Statute ‘can only be exercised on the basis that other powers exist’<sup>61</sup>. This restricted implied-powers-doctrine, therefore, does not conflict with the provision of article 4 para. 2.

With regard to the acquisition of new powers and functions through **subsequent treaties**, 15 the insertion of the passage ‘as provided in this Statute’ complements the provisions on amendments to the Statute and review of the Statute in articles 121 to 123. Under general international law, a subsequent treaty between the parties supersedes an earlier treaty<sup>62</sup>. Here, by contrast, the States Parties have agreed to a differentiated system of and procedure for amendments to the Statute, as laid down in articles 121 to 123<sup>63</sup>. The attribution of new powers and functions would thus have to be effected through the relevant procedures of amendment, not subsequent treaty law.

The acquisition of additional powers through **customary law** can similarly be examined. 16 Under general international law, subsequent practice of the members of an international organisation can modify the constitution of the organisation if it reflects an agreement among all the States Parties<sup>64</sup>. The States Parties to the Rome Statute, by contrast, have agreed upon certain procedures for the amendment of the Statute and have agreed that the Court may exercise its functions and powers ‘as provided in this Statute’. The insertion of this passage in article 4 para. 2 thus shows that the powers and functions of the ICC are not to be based upon subsequent practice, but upon the Statute itself.

<sup>58</sup> See, for instance, Hamilton, Madison and Jay, in: Rossiter (ed.), *The Federalist Papers* (1961) 285, where James Madison states that ‘[n]o axiom is more clearly established in law, or in reason, than that wherever the end is required, the means are authorised’.

<sup>59</sup> See the discussion in Blokker, in: Wolfrum (ed.), *MPEPIL* (OUP 2008–), mn 10 *et seq.*; see also the respective passage of the ICJ on the power to establish the United Nations Administrative Tribunal, *Effect of awards of compensation made by the United Nations Administrative Tribunal*, Advisory Opinion, ICJRep. 47, 56/57 (1954).

<sup>60</sup> Schermers and Blokker, *International Institutional Law* (2011) 181, § 232.

<sup>61</sup> *Ibid.*, 182 § 233.

<sup>62</sup> See article 30 of the VCLT.

<sup>63</sup> See the commentary on them by R. S. Clark.

<sup>64</sup> *Legal consequences for States of the continued presence of South Africa in Namibia (South West Africa) notwithstanding Security Council Resolution 276* (1979), ICJRep. 16, 31 (1971). See also, for instance, Amerasinghe, *Principles of the Institutional Law of International Organisations* (2005) 463.



## PART 2

### JURISDICTION, ADMISSIBILITY AND APPLICABLE LAW

#### Article 5

#### Crimes within the jurisdiction of the Court

1. The jurisdiction of the Court shall be limited to the most serious crimes of concern to the international community as a whole. The Court has jurisdiction in accordance with this Statute with respect to the following crimes:

- (a) The crime of genocide;
- (b) Crimes against humanity;
- (c) War crimes;
- (d) The crime of aggression.

2. The Court shall exercise jurisdiction over the crime of aggression once a provision is adopted in accordance with articles 121 and 123 defining the crime and setting out the conditions under which the Court shall exercise jurisdiction with respect to this crime. Such a provision shall be consistent with the relevant provisions of the Charter of the United Nations.

**Literature:** Ambos, K., 'Judicial Creativity at the Special Tribunal for Lebanon: Is There a Crime of Terrorism under International Law?', (2011) 24 *LeidenJIL* 655; *id.* and Timmermann, A., 'Terrorism and customary international law', in B. Saul, *Research Handbook On International Law and Terrorism* (E. Elgar 2014), 20; Arnold, R., *The ICC as a New Instrument for Repressing Terrorism* (Transnational Publishers 2004); *id.*, 'The Prosecution of Terrorism as a Crime Against Humanity', (2004) 64 *ZaöRV* 979; Becker, A. *Der Tatbestand des Verbrechens gegen die Menschheit – Überlegungen zur Problematik eines völkerrechtlichen Strafrechts* (Duncker & Humblot 1996); Blokker, N., 'The Crime of Aggression and the United Nations Security Council', (2007) 20 *LeidenJIL* 867; Boevig, J., 'Aggression, International Law, and the ICC: An Argument for the Withdrawal of Aggression from the Rome Statute', (2005) 43 *ColJIL* 557; Boister, N., 'The exclusion of treaty crimes from the jurisdiction of the proposed International Criminal Court: law, pragmatism, politics', (1998) *JArmConfl* 27; Carpenter, A.C., 'The International Criminal Court and the Crime of Aggression', (1995) 64 *NordJIL* 2, 223; Cassese, A., 'On Some Critical Aspects of the Crime of Aggression', (2007) 20 *LeidenJIL* 841; Clark, R.S., 'Rethinking Aggression as a Crime and Formulating Its Elements: The Final Work-Product of the Preparatory Commission for the International Criminal Court', (2002) 15 *LeidenJIL* 4, 359; Donat-Cattin, D., 'Crimes against Humanity', in: F. Lattanzi (ed.), *The International Criminal Court: Comments on the Draft Statute* (Editoriale Scientifica 1998) 49; Ferencz, B.B., 'Enabling the International Criminal Court to Punish Aggression', (2007) 6 *WashUGLSLR* 551; Fernández de Gurmendi, S., 'The working group on aggression at the Preparatory Commission for the International Criminal Court', (2002) 25 *FordhamILJ* 3, 589; Fife, R.E., 'Criminalizing Individuals for Acts of Aggression Committed by States', in: M. Bergsmo (ed.), *Human Rights and Criminal Justice for the Downtrodden – Essays in Honour of Asbjørn Eide* (Marinus Nijhoff 2003) 54; Gillett, M. and Schuster, M., 'Fast Track Justice: The Special Tribunal for Lebanon Defines Terrorism', (2011) 9 *JICJ* 989; Hall, C.K., 'The Jurisdiction of the Permanent International Criminal Court over Violations of Humanitarian Law', in: F. Lattanzi (ed.), *The International Criminal Court: Comments on the Draft Statute* (Editoriale Scientifica 1998) 19; Heller, K.J., 'Retreat from Nuremberg: The leadership requirement in the Crime of Aggression', (2007) 18 *EJIL* 3, 477; Higgins, R. (ed.), *Terrorism and international law* (Routledge 1997); Hogan-Doran, J. and van Ginkel, J.B., 'Aggression as a crime under international law and the prosecution of individuals by the proposed International Criminal Court', (1996) 18 *NethILR* 3, 321; Jodoin, S., 'Terrorism as a War Crime', (2007) 7 *ICLRev* 7; Kaikobad, K., 'Crimes against International Peace and Security, Acts of Terrorism and Other Serious Crimes: A Theory on Distinction and Overlap', (2007) 7 *ICLRev* 187; Kinkel, K., 'Für einen funktionsfähigen Weltstrafgerichtshof', (1997) *NJW* 2860; Kreß, C., 'Strafrecht und Angriffskrieg im Lichte "des Falles Irak"', (2003) 111 *ZStW* 294; *id.*, 'The Iraqi Special Tribunal and the crime of aggression', (2004) 2 *JICJ* 347; *id.*, 'The German Chief Federal Prosecutor's Decision not to Investigate the Alleged Crime of Preparing Aggression against Iraq', (2004) 2 *JICJ* 245; *id.*, 'The Crime of Aggression before the First Review of the ICC Statute', (2007) 20 *LeidenJIL* 851; Kirsch, S. and Oehmichen, A., 'Die Erfindung von "Terrorismus" als Völkerrechtsverbrechen durch den Sonderstrafgerichtshof für den Libanon' (2011) 10 *ZIS* 800; *id.* and Oehmichen, A., 'Judges Gone Astray: The Fabrication of Terrorism as an International Crime by the Special Tribunal for Lebanon' (2011) 1 *DurhamLRev* 32; Kurth, M., *Das Verhältnis des Internationalen Strafgerichtshofes zum UN-Sicherheitsrat* (Nomos 2006); McDougall, C.,

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For further literature as to the Kampala Review Conference and its outcome see the literature on Arts. 8*bis*, 15*bis* and 15*ter*.

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## A. Introduction: Crimes not included in the Statute of the ICC

### I. Treaty crimes<sup>1</sup>

In the early phases of the discussions on the creation of an international court, treaty-based crimes formed the focal point of the deliberations<sup>2</sup>. During the work of the Preparatory Committee on the Establishment of an International Criminal Court such an approach found, however, less and less support<sup>3</sup>. Instead, a large majority of States were eager to limit the jurisdiction of the ICC to the core crimes now mentioned in article 5 para. 1 (a)–(d), *i. e.*, genocide, crimes against humanity, war crimes and the crime of aggression.

The main reason was that not all of the conventions providing a possible basis for such ‘treaty crimes’ have found sufficient international acceptance and thus could not be considered as reflecting customary international law.<sup>4</sup> Besides, if the notion of treaty-based crimes had been included within the subject-matter jurisdiction of the ICC, it would have necessarily followed that only crimes committed on the territory of the respective contracting parties of a given convention could have been made punishable. Furthermore, it would also have been necessary for such States to be among the contracting Parties to the Statute of the ICC. Such an approach would have thus necessarily resulted in a weakening of the concept of automatic jurisdiction of the ICC as now enshrined in article 12 para. 1 of the Rome Statute.

It should be noted, however, that certain of these treaty crimes, although not formally included as such in the Statute, have still found their way into the Statute, albeit in a modified form, under the heading of either a crime against humanity or a war crime. This is *e. g.* the case for the crime of apartheid, now listed as a crime against humanity<sup>5</sup>, or for intentional attacks against UN personnel or other personnel or material involved in an assistance or peacekeeping mission, now included in the list of war crimes<sup>6</sup>.

### II. Terrorism<sup>7</sup>

Notwithstanding strong attempts by a number of States prior to and during the Rome Conference, specifically Algeria, India, Sri Lanka and Turkey, acts of terrorism<sup>8</sup> were neither included in the Statute. In that regard, most States considered it to be particularly problematic that, the adoption of the United Nations Convention on the Suppression of Terrorist

<sup>1</sup> See generally Ambos, *Treatise ICL II* (2014), 222 *et seq.*

<sup>2</sup> As to the list of possible treaty-based crimes which were discussed during the work of the 3<sup>rd</sup> Preparatory Committee see PrepCom III Decisions (11–21 February 1997), UN Doc. A/AC.249/1997/L.5, 12 March 1997, pp. 16–17. See also article 20(e) of the 1994 ILC Draft Statute, 1994 *YbILC* Vol. II, Part 2, 38, as well as its Annex, *ibid.*, 70 *et seq.*

<sup>3</sup> See PrepCom I (25 March – 12 April 1996), 25 *et seq.*

<sup>4</sup> For criteria to delimitate treaty crimes from international crimes *stricto sensu* see, Ambos, *Treatise ICL II* (2014), pp. 226 *et seq.*

<sup>5</sup> For details see Hall and van den Herik, *article 7* para. 1 (j), mn 144 *et seq.*

<sup>6</sup> For details see Cottier and Baumgartner, *article 8* para. 2 (b) (iii), mn 217 *et seq.*

<sup>7</sup> See generally as to the notion of terrorism in international law Arnold, (2004) 64 *ZaöRV* 979, 980; Saul, *Defining Terrorism in International Law* (2006); Williamson, *Terrorism, War, and International Law* (2009), 37 *et seq.*; see also the various contributions in Ben Saul, *Research Handbook On International Law and Terrorism* (2014); and specifically as to the question of individual criminal responsibility for acts of terrorism Arnold in Saul, *Research Handbook On International Law and Terrorism* (2014), 282 *et seq.*

<sup>8</sup> For a general discussion of the questions involved in the fight against terrorism and its relationship with issues of international law see the different articles in Higgins (ed.), *Terrorism and international law* (1997).



Bombings notwithstanding<sup>9</sup>, no generally accepted definition of the crime of terrorism did exist at the time. They considered that the possible inclusion of this crime might have politicised the Court to a very high degree<sup>10</sup>. A proposal to also include acts of terrorism as such in the list of crimes against humanity<sup>11</sup> providing for the individual criminal responsibility of such acts under international law would have also represented a novelty in international law, and would have also run counter to the generally accepted approach during the work of the Rome Conference, *i. e.* an attempt to solely codify pre-existing rules of customary international law.

- 5 Even as of 2014, the international community has, despite the practice by the Security Council after 2001 and further attempts to codify the matter, not been able to agree on a generally acceptable definition of what should be perceived as acts of ‘terrorism’<sup>12</sup>, and even less so which acts of ‘terrorism’ should entail individual criminal responsibility. It is for that reason that the longstanding project of a comprehensive international convention banning terrorism has so far not seen light. This is true notwithstanding the fact that the Appeals Chamber of the Special Tribunal for Lebanon (STL) has argued in its decision of 16 February 2011 that a customary rule of international law on the crime of terrorism does indeed exist.<sup>13</sup> It defines terrorism as the perpetration of a criminal act or threatening such an act with the intent to spread fear among the population or directly or indirectly coerce a national or international authority to take some action, or to refrain from taking it, when the act involves a transnational element.<sup>14</sup> The STL bases its decision on an alleged ‘settled practice concerning the punishment of acts of terrorism’. It further claims that ‘this practice is evidence of a belief of states that the punishment of terrorism responds to a social necessity (*opinio necessitatis*) and is hence rendered obligatory by the existence of a rule requiring it (*opinio juris*)’.<sup>15</sup> Still, it must be doubted that the STL’s definition of terrorism will establish itself as the decision has not only been met with strong criticism<sup>16</sup>, but has not found support in either (international) jurisprudence nor in State practice.
- 6 Notwithstanding the fact that the crime of ‘terrorism’ had not been included in the Rome Statute as such, acts of terrorism could come within the jurisdiction of the Court, provided they fulfil the regular criteria of either genocide (and are accordingly committed with the necessary special intent) or those of specific crimes against humanity (and are accordingly committed as part of a widespread or systematic attack against a given civilian population), or if finally such terrorist acts do constitute at the very same time war crimes.
- 7 Resolution E, adopted by the Rome Conference<sup>17</sup> as part of its Final Act, recommended to the Review Conference, which was to be convened in accordance with article 123 of the Statute<sup>18</sup>, that the matter be reconsidered, with the view of arriving at a generally acceptable definition in order for it to be eventually included in the list of crimes within the jurisdiction of the Court.

<sup>9</sup> The convention was adopted by the United Nations General Assembly on 15 December 1997; for the text see (1998) 37 *ILM* 251 *et seq.*

<sup>10</sup> See in that regard already the critique uttered in the Preparatory Committee, PrepCom I (25 March – 12 April 1996), p. 26.

<sup>11</sup> As to the text of such a proposal submitted by India, Sri Lanka and Turkey during the Rome Conference see UN Doc. A/CONF.183/C.1/L.27/Rev.1, 6 July 1998.

<sup>12</sup> Di Filippo in Saul, *Research Handbook on International Law and Terrorism* (2014), 6 *et seq.* For details on the question how far the consensus regarding the definition of terrorism goes, see Ambos and Timmermann in Saul, *Research Handbook on International Law and Terrorism* (2014), 36 *et seq.*

<sup>13</sup> Interlocutory Decision on the Applicable Law: Terrorism, Conspiracy, Homicide, Perpetration, Cumulative Charging, STL-11-01/I/AC/R176bis, 16 February 2011 [85], [102] (STL Decision).

<sup>14</sup> STL Decision, n. 13, [85].

<sup>15</sup> STL Decision, n. 13, [102].

<sup>16</sup> Ambos (2011) 24 *LeidenJIL* 655; *id.* and Timmermann in Saul, *Research Handbook On International Law and Terrorism* (2014), 36 *et seq.*; Gillett and Schuster (2011) 9 *JICJ* 989; Kirsch and Oehmichen (2011) 10 *ZIS* 800; *id.* and *id.* (2011) 1 *DurhamLRev* 32; Saul (2011) 24 *LeidenJIL* 677.

<sup>17</sup> Final Act of the United Nations Diplomatic Conference of Plenipotentiaries on the Establishment of an International Criminal Court UN Doc. A/CONF.183/10, 17 July 1998.

<sup>18</sup> See Clark, *article 123*, mn 1 *et seq.*

Yet, unlike the crime of aggression, which was discussed in detail by a special working group of the Assembly of States Parties of the Rome Statute leading to the adoption of articles 8*bis*, 15*bis* and 15*ter*, not much attention has so far been paid to the issue of including acts of terrorism in the Rome Statute as part of a possible amendment of the treaty. It is worth noting, however, that the Netherlands had prior to the Kampala Review Conference (informally) put forward an amendment proposal under which, following the model of the crime of aggression, the crime of terrorism would have been added to the list of crimes subject to the Court's jurisdiction listed in article 5 para. 1 of the Statute while the exercise, by the Court, of its jurisdiction with regard to the crime of terrorism would have been stalled until a definition would have been adopted and would have entered into force<sup>19</sup>. Yet, this proposal never made it through to the Review Conference once it became obvious that this amendment proposal did not gather enough support so as to formally present it to the Kampala Review Conference. At a meeting of the Working Group on Amendments of the Assembly of States parties of the Rome Statute of 5 June 2013, the Netherlands formally announced that it was no longer pursuing its proposal to amend article 5 of the Rome Statute to expand jurisdiction of the Court to the crime of terrorism<sup>20</sup>.

For all these reasons, it seems that for the foreseeable future the crime of terrorism will continue not to be included into the list of crimes coming within the jurisdiction of the Court.

### III. Drug trafficking

It was Trinidad and Tobago which, in 1989, renewed the process of pushing for the creation of an international criminal court in order to punish the large-scale commission of drug-related crimes<sup>21</sup>. It is thus not surprising that it was this country and other Caribbean States which, during the Rome Conference, formally proposed to include large-scale illicit drug trafficking in the Statute<sup>22</sup>. However, most delegations then took the position that such acts, notwithstanding their criminal nature under domestic law, were not of the same nature as those now listed in article 5, and that, besides, they were of such a quantity as to eventually flood the Court with proceedings. There was also an almost general feeling that the ICC would not possess the necessary resources to conduct the lengthy and complex investigations which were more effectively undertaken by the respective national authorities co-operating with each other under existing bi- or multilateral arrangements<sup>23</sup>.

As in the case of terrorism<sup>24</sup>, Resolution E, adopted by the Rome Conference<sup>25</sup> as part of its Final Act, also recommended that the Review Conference reconsiders illicit drug trafficking with the view of eventually including it in the list of crimes within the jurisdiction of the Court<sup>26</sup>.

<sup>19</sup> UN Doc. C.N.723.2009.TREATIES-5, 29 October 2009. The proposed draft article 5, para. 3 reads: 'The Court shall exercise jurisdiction over the crime of terrorism once a provision is adopted in accordance with articles 121 and 123 defining the crime and setting out the conditions under which the Court shall exercise jurisdiction with respect to this crime. Such a provision shall be consistent with the relevant provisions of the Charter of the United Nations.'

<sup>20</sup> See ICC-ASP/12/44, p. 1, 24 October 2013.

<sup>21</sup> For further details see Tomuschat, 'Sanktionen durch internationale Strafgerichtshöfe' in: *Verhandlungen des 60. Deutschen Juristentages* (1994), Q 53, 57 *et seq.*

<sup>22</sup> United Nations Diplomatic Conference of Plenipotentiaries on the Establishment of an International Criminal Court UN Doc. A/CONF.183/C.1/L.48, 3 July 1998.

<sup>23</sup> PrepCom I (25 March – 12 April 1996), p. 27.

<sup>24</sup> See *mn* 3.

<sup>25</sup> See note 17.

<sup>26</sup> A proposal submitted by Barbados and other Caribbean States, India, Sri Lanka and Turkey to include both the crime of terrorism and drug crimes into article 5 subject to a provision that the definition and elements of these crimes shall be elaborated by the Preparatory Commission established by virtue of Resolution F adopted by the Rome Conference (see UN Doc. A/CONF.183/C.1/L.71, 14 July 1998), which would have thus gone further than the current wording of article 5 para. 2 of the Statute, did not gather sufficient support.

- 12 Yet, and once again similar to the crime of terrorism, no significant attempts were made to move the issue of a possible inclusion of drug crimes into the Rome Statute forward during the preparation of the Kampala Review Conference. The only attempt at such an inclusion was an amendment proposal made by Trinidad and Tobago supported by Belize<sup>27</sup>. However, it was not even discussed during the Kampala Review Conference.

#### IV. Mercenarism

- 13 The Comores and Madagascar had proposed to include the crime of mercenarism in the ICC Statute<sup>28</sup>. The proposal contained a definition which was identical to the one contained in the International Convention against the Recruitment, Use, Financing and Training of Mercenaries, adopted by the General Assembly in 1989<sup>29</sup>. This proposal, which was not seriously discussed during the Rome Conference, was not included in the Statute and is, unlike the proposals relating to terrorism and drug-trafficking, not even mentioned in the Final Act of the Conference.

#### V. Other issues not included

- 14 Other amendment proposals suffered the same fate as those of the Netherlands and Trinidad and Tobago<sup>30</sup>. These remaining proposals concerned the inclusion of certain weapons in the Rome Statute, the use of which was to constitute a war crime. Firstly, Mexico proposed to include the use or threat of use of nuclear weapons in the definition of war crimes<sup>31</sup>. However, this proposal was, just like the crime of terrorism and the crime of drug trafficking, not even discussed at the Review Conference<sup>32</sup>. A further amendment proposal put forward *inter alia* by Belgium was only partly brought to the Review Conference. It dealt with the use of certain prohibited weapons in non-international armed conflict<sup>33</sup>. In that regard the proposal to include the use of chemical weapons as such, biological weapons, anti-personnel land mines, weapons containing non-detectable fragments, blinding laser weapons and cluster munitions into the list of war crimes did not make it to the Review Conference<sup>34</sup>. Instead the Assembly of

<sup>27</sup> UN Doc. C.N.737.2009.TREATIES-9, 29 October 2009. The draft text provided:

‘For the purposes of the present Statute, crimes involving the illicit trafficking in narcotic drugs and psychotropic substances mean any of the following acts, but only when they pose a threat to the peace, order and security of a State or region:

- (a) Undertaking, organizing, sponsoring, ordering, facilitating or financing the production, manufacture, extraction, preparation, offering for sale, distribution, sale, delivery on any terms whatsoever, brokerage, dispatch, dispatch in transit, transport, importation or exportation of any narcotic drug or any psychotropic substance contrary to the provisions of the 1961 Single Convention on Narcotic Drugs; the 1961 Single Convention on Narcotic Drugs, as amended; the 1971 Convention on Psychotropic Substances, or the 1988 United Nations Convention against Illicit Traffic in Narcotics Drugs and Psychotropic Substances when committed on a large scale and involving acts of a transboundary character;
- (b) Murder, kidnapping or any other form of attack upon the person or liberty of civilians or security personnel in an attempt to further any of the acts referred to in subparagraph (a); and
- (c) Violent attacks upon the official or private premises of persons or institutions with the intention of creating fear or insecurity within a State or States or disrupting their economic, social, political or security structures when committed in connection with any of the acts referred to in subparagraph (a).’

<sup>28</sup> United Nations Diplomatic Conference of Plenipotentiaries on the Establishment of an International Criminal Court UN Doc. A/CONF.183/C.1/L.46, 3 July 1998.

<sup>29</sup> (1990) 29 *ILM* 91 *et seq.* The Convention, which needs 22 ratifications for its entry into force has so far not yet entered into force since so far only 13 States have become contracting parties. See also article 47 of the Add. Prot. I to the four Geneva Conventions of 1949.

<sup>30</sup> See mn 4 and 6.

<sup>31</sup> UN Doc. C.N.725.2009.TREATIES-6, 29 October 2009.

<sup>32</sup> As to the discussion on the inclusion of nuclear weapons in the list of prohibited weapons see also Cottier, *article 8*, mn 569 *et seq.*

<sup>33</sup> See Geiß, *article 8*, mn 828; see also most recently on that question Zimmermann and Sener, *AJIL* 436 *et seq.*

<sup>34</sup> The amendment proposals discussed in mn 4, 6 and 8 and others can be found in the Report of the Bureau on the Review Conference, Doc. ICC-ASP/8/43/Add.1, 10 November 2009.

States Parties decided to create a Working Group on Amendments which would further consider the proposed amendments that did not make it to the Kampala Review Conference as from its ninth session in 2010<sup>35</sup> and which has since then held so far several sessions *inter alia* consolidating the proposals currently still formally under consideration.<sup>36</sup>

## B. Analysis and interpretation of elements

### I. Paragraph 1

#### 1. Chapeau

a) **Jurisdiction over the ‘most serious crimes of concern to the international community as a whole’.** This formula, referring to the most serious crimes of concern to the international community as a whole, repeats a phrase already used in the fourth paragraph of the Preamble<sup>37</sup>. Unlike the Preamble, article 5 adds, however, an operative part by stating that the Court’s jurisdiction shall be limited to such crimes. This reaffirms, as if it were necessary, that the limitation contained in article 5 cannot be overridden by article 21 para. 1 of the Statute, which only refers to the applicable law, but does *not* circumscribe the subject-matter jurisdiction of the Court.

The fact that article 5 para. 1 then lists genocide, crimes against humanity, war crimes and the crime of aggression confirms that these crimes indeed are of such concern.

This formula may also serve as a guiding principle for the work of the Court as a whole. Thus, the threshold clause contained in article 8 para. 1 of the Statute must be interpreted in line with article 5 in the sense that individual war crimes which are not committed as part of a plan or policy shall only be prosecuted if they are of such a gravity as to indeed be of concern to the international community as a whole. More generally this formula, although somewhat vague, can serve as a useful, legally binding, guiding tool for the Prosecutor when considering whether there is a reasonable basis to proceed with an investigation<sup>38</sup>, or whether there is a reasonable basis to believe that a crime within the jurisdiction of the Court has been committed<sup>39</sup>.

b) **Jurisdiction to be exercised ‘in accordance with the Statute’.** The fact that the Court shall not have unlimited jurisdiction over any act of genocide, crime against humanity or war crime needed no reaffirmation. Thus, the phrase that the jurisdiction of the Court is supposed to be exercised ‘in accordance with the Statute’, a formula which was already contained in the Draft Statute submitted by the ILC, is of a purely declaratory nature. In particular, it reaffirms the limitations as to the jurisdiction of the Court enshrined in articles 11<sup>40</sup>, 12<sup>41</sup>, as well as in the principle of complementarity contained in article 17<sup>42</sup>, the concept of *ne bis in idem* (article 20)<sup>43</sup> and other limitations contained throughout the Statute.

As far as the crime of aggression was concerned, article 5 para. 2 contained further requirements before the Court was to be in a position to eventually exercise its jurisdiction with regard to this crime<sup>44</sup>. However paragraph 2 will be deleted once the amendment

<sup>35</sup> Press Release, Assembly of States Parties to the Rome Statute of the International Criminal Court [ASP], Assembly of States Parties Concludes its Eighth Session, ICC-ASP-20091126-PR481, 27 November 2009.

<sup>36</sup> As to the latest work of the working group see ICC-ASP/12/44, 24 October 2013.

<sup>37</sup> See Bergsmo, Triffterer and Ambos, *Preamble*, mn 12 *et seq.* and Triffterer, *Preliminary Remarks* in: Triffterer (ed.), *Commentary on the Rome Statute* (2<sup>nd</sup> edition 2008), mn 10.

<sup>38</sup> See *i.a.* article 15 para. 3 of the Statute.

<sup>39</sup> See article 53 of the Statute.

<sup>40</sup> See Rastan and Badar, *article 11, passim*.

<sup>41</sup> See Schabas and Pecorella, *article 12, passim*.

<sup>42</sup> See Schabas and El Zeidy, *article 17, passim*.

<sup>43</sup> See Tallgren and Reisinger-Coracini, *article 20, passim*.

<sup>44</sup> See mn 27 *et seq.*

adopted by the Kampala Review Conference has entered into force in accordance with the Resolution RC/Res.6<sup>45</sup>. Thereafter the exercise of jurisdiction for the crime of aggression will then be regulated by articles 15*bis* and 15*ter* of the Statute as amended.

## 2. Specific crimes

- 20 a) **Genocide.** Genocide proved to be the least problematic crime to be included in article 5 of the Statute. While the definition of the crime of genocide as contained in article 6 is identical to article II of the Genocide Convention<sup>46</sup>, article III of the Convention had to be harmonised with the section on general principles of law, now contained in articles 22–33 of the Statute. Accordingly, the content of article III of the Genocide Convention and in particular the prohibition of public incitement of genocide is found in article 25 of the Statute dealing with individual criminal responsibility, and in particular its paragraph 3 (e)<sup>47</sup>.
- 21 b) **Crimes against humanity**<sup>48</sup> Similar to the crime of genocide, it was uncontroversial that crimes against humanity, too, should be included in the Statute. Unlike the case of genocide, the exact extent of the list of such crimes and their definition proved, however, to be rather difficult<sup>49</sup>.
- 22 Following the examples of article 6 (c) of the Statute of the International Military Tribunal at Nuremberg<sup>50</sup>, article 5 (c) of the Tokyo Charter<sup>51</sup>, article 5 of the Statute of the International Criminal Tribunal for the former Yugoslavia (ICTY) and article 3 of the Statute of the International Criminal Tribunal for Rwanda (ICTR), article 7 of the Statute of the ICC now contains a comprehensive and generally accepted list of crimes against humanity, which since then has largely influenced, *inter alia*, the drafting of UNTAET Regulation 2000/15 on the Establishment of Panels with Exclusive Jurisdiction over Serious Criminal Offences (section 5), the Statute of the Iraqi Special Tribunal (article 2), the Statute of the Special Court for Sierra Leone (article 2), as well as the Agreement providing for the Creation of Extraordinary Chambers in the Courts of Cambodia for the Prosecution of Crimes Committed during the Period of Democratic Kampuchea (which in its article 9 explicitly refers to the definition of crimes against humanity as contained in article 7 of the Rome Statute).
- 23 Article 5 of the Statute also reaffirms that such crimes, given the fact that they are committed as part of a widespread or systematic attack against a given civilian population<sup>52</sup>, constitute a legitimate concern for the international community as a whole.
- 24 c) **War crimes.** The term ‘war crimes’ contained in both article 5 para. 1, as well as in article 8 of the Statute, is derived from article 85 para. 5 of the 1977 Add. Prot. I to the Geneva Conventions. For the purposes of the Statute, it is however not limited to either grave breaches of the four 1949 Geneva Conventions or to those of the 1977 Add. Prot. I. Instead, it also extends to other serious violations of the laws and customs of war applicable in international armed conflict, violations of common article 3 of the four Geneva Conventions and serious violations of the laws and customs of war applicable in internal armed conflicts.

<sup>45</sup> RC/Res.6, annex I.

<sup>46</sup> For details see Schabas, *article 6, passim*.

<sup>47</sup> For details see Ambos, *article 25*, mn 35 *et seq.*

<sup>48</sup> As to the notion of crimes against humanity see the comprehensive work by Bassiouni, *Crimes against Humanity in International Criminal Law* (1992) 236 *et seq.*, as well as Becker, *Der Tatbestand des Verbrechens gegen die Menschheit – Überlegungen zur Problematik eines völkerrechtlichen Strafrechts* (1996) 176 *et seq.*; Ambos, *Treatise ICL II* (2014) 46 *et seq.*

<sup>49</sup> For details see Hall and Ambos, *article 7 para. 1, passim*.

<sup>50</sup> As to the historical development of that term see the Decision of the Trial Chamber of the ICTY in the case *Prosecutor v. Tadić*, No. IT-94-1-T, Judgment, Trial Chamber, 7 May 1997, para. 618.

<sup>51</sup> Text to be found *i.a.* at Röling and Rüter (eds.), *The Tokyo Judgment – The Military Tribunal for the Far East* (APA UP 1977) Annex A-5.

<sup>52</sup> As to the interpretation of the chapeau of article 7 para. 1 see Hall and Ambos, *article 7*, mn 3 *et seq.* For the legitimacy of concern for the international community as a whole see Triffterer, *Preliminary Remarks* (2008), mn 20 *et seq.*

The Statute thereby contains a comprehensive stocktaking of the current status of customary international law in the field and indicates where international law might have evolved since the two Add. Prot. were adopted in 1977.

The inclusion of war crimes in article 5, read in conjunction with article 8 para. 1, further demonstrates that even individual war crimes are, under certain given circumstances, also of concern for the international community as a whole and thus subject to the jurisdiction of the Court.

Prior to the first Review Conference, Belgium submitted an amendment proposal regarding, amongst others, the modification of article 8<sup>53</sup>. This proposal, which was not in its entirety forwarded to the Kampala Review Conference, proposed to modify article 8 in order to amend para. 2 e) thereof in order to include three classes of weapons into the list of prohibited weapons in non-international armed conflict, the use of which in international armed conflict had already been criminalised by the Rome Statute. The proposal was adopted at the Review Conference, therefore adding poison and poisoned weapons, gases, and certain kinds of long-prohibited bullets to the prohibited weapons in non-international armed conflict<sup>54</sup>.

**d) The crime of aggression.** Article 5 para. 1 lit. d of the Statute stipulates that the Court shall, apart from genocide, crimes against humanity and war crimes, also have jurisdiction with respect to the crime of aggression. At the same time, as of now the ICC shall not yet exercise its jurisdiction in regard of that crime unless agreement were to be reached to amend the Statute and entered into force. Such an amendment had to be adopted subject to the regular amendment procedure provided for in articles 121 and 123<sup>55</sup> and was supposed to provide for both, a definition of that crime, but also set the conditions under which the Court shall exercise jurisdiction with respect to this crime.

The amendment was adopted during the Kampala Review Conference providing for the addition of articles 8*bis*, 15*bis* and 15*ter* into the Rome Statute<sup>56</sup>.

Pending the entry into force of the amendment, the crime of aggression is, its status as a crime under customary international law notwithstanding<sup>57</sup>, *de facto* for the time being not (yet) included in the Statute. One question that might arise is whether the Security Council, given its overriding Chapter VII powers and the supremacy of the Charter of the United Nations pursuant to its article 103, and notwithstanding article 5 para. 2 of the ICC Statute, might explicitly grant the Court, at a given moment and with regard to a specific situation, the competence to exercise its jurisdiction with respect to the crime of aggression notwithstanding the fact that the amendment might not yet have entered into force. Yet, given that article 15*ter*, as adopted, specifically regulates the exercise, by the Court, of its Security Council-based jurisdiction with regard to the crime of aggression, said question is to be answered in the negative.

## II. Paragraph 2: Exercise of jurisdiction over the crime of aggression

### 1. The debate leading to the non-inclusion of the crime of aggression up to the Rome Conference

**a) Draft Statute submitted by the International Law Commission.** In its Draft Statute, the ILC left the question of the definition of the crime of aggression open, since – while including

<sup>53</sup> UN Doc. C.N.733.2009.TREATIES-8, 29 October 2009.

<sup>54</sup> RC/Res. 5, 10 June 2010.

<sup>55</sup> See the comments by Clark, *article 121 and article 123*, as well as by Zimmermann (2012) 10 JICJ 209 *et seq.*

<sup>56</sup> For details see Zimmermann and Freiburg, *articles 8bis, 15bis and 15ter, passim*.

<sup>57</sup> See for such proposition the judgment of the British House of Lords of 29 March 2006 in *R. v. Jones et al.*, where the House of Lords held that aggression is indeed criminalised under international customary law, (2006) 45 ILM 992.



the crime of aggression – it had made no attempt towards a workable definition of this crime<sup>58</sup>.

- 31 At the same time, the ILC Draft Statute included a provision under which any proceeding dealing with an act of aggression or connected therewith could not be initiated unless the Security Council had previously made a determination that the State in question had indeed committed such an act of aggression<sup>59</sup>.
- 32 **b) Discussions during the Preparatory Commission.** The discussions concerning both the definition of the crime of aggression, as well as the role for the Security Council, demonstrated the deep divisions that existed among delegations and the States they represented.
- 33 **aa) Definition of the crime of aggression.** As to the definition of the crime itself, there were two main schools of thought:

One group of countries, including a large number of both Arab, but also African States, favoured an approach which was largely based on the definition contained in A/RES/3314 (XXIX) of 14 December 1974, by which the General Assembly had undertaken an attempt to define aggression. This seemed to be problematic, however, since it is rather doubtful that all of the elements contained in Resolution 3314 can be considered as forming part of customary international law<sup>60</sup>. Besides, Resolution 3314 itself was only drafted in order to serve as a guiding instrument for the Security Council. But even assuming *arguendo* that this provision reflects customary law, it would still be doubtful whether all acts contained therein already *de lege lata* involve individual criminal responsibility. This is confirmed by the fact that the first principle of the Friendly Relations Declaration of the General Assembly, as well as article 5 para. 2 of Resolution 3314, provide that solely the waging of a ‘war of aggression’, but not every act which is supposed to have been outlawed by the text of the resolution, constitutes a crime which entails responsibility in accordance with international law.
- 34 On the other hand, a majority of countries involved in the negotiation process, and in particular Germany, which was very active in trying to move the discussion forward<sup>61</sup>, attempted to present a definition of the crime of aggression which would be both precise and narrowly tailored. The objective was to limit individual criminal responsibility to clear-cut cases of the illegal and massive use of armed force leading to the invasion of foreign territory, relying itself on the few existing precedents and specifically on article 6 (a) of the Statute of the Nuremberg Military Tribunal, which stipulates that the ‘planning, preparation, initiation or waging of a war of aggression, or a war in violation of international treaties, agreements or assurances, or participation in a common plan or conspiracy for the accomplishment of any of the foregoing’ constitutes a crime against peace<sup>62</sup>.
- 35 **bb) Role of the Security Council.** A similar split surfaced as to the role and function of the Security Council with regard to the prosecution of future crimes of aggression. On the one hand, the United States proposed that the definition of the crime of aggression should include a formula according to which the illegality of the act under consideration would be determined by the Security Council<sup>63</sup>. On the other hand, those countries favouring a broad definition of the crime of aggression also envisaged no role whatsoever for the Security Council. As a compromise, the proposal of the ILC, referred to above<sup>64</sup>, seems to have been

<sup>58</sup> (1995) *YbILC* Vol. II, Part 2, 38–39.

<sup>59</sup> Article 23 para. 2 of the ILC Draft Statute 1994.

<sup>60</sup> But see *Military and Paramilitary Activities in and against Nicaragua (Nicaragua v. United States of America)* (Merits). *ICJ Rep.* 1986, 14, 103, para. 195, where the Court stated that article 3 (g) of Resolution 3314 ‘may be taken to reflect customary international law’.

<sup>61</sup> See the statement made by the then German Minister of Foreign Affairs Kinkel (1997) *NJW* 2860 *et seq.*

<sup>62</sup> As to the German approach see in particular UN Doc. A/AC.249/1997/WG.1/DP.20, 11 December 1997, A/AC.249/1998/DP.12, 2 April 1998 and finally A/AC.249/1998/CRP.8, 2 April 1998.

<sup>63</sup> See the proposals contained in Preparatory Committee Decisions 14 August 1997, p. 7, <<http://www.legal-tools.org/en/go-to-database/record/3413a9>> accessed September 2015.

<sup>64</sup> See mn 17.



favoured by a large number of States. But like the definition of the crime of aggression, this question was not resolved during the work of the Preparatory Commission.

c) **Discussions during the Rome Conference.** At the Rome Conference, the same two issues re-emerged during the debate on the inclusion of the crime of aggression. Again, no compromise could be reached on either question:

First, no generally acceptable definition of the crime of aggression could be agreed upon. In particular, States from the Arab and African regions of the world continued to insist on a rather wide definition largely based on General Assembly Resolution 3314, and indeed even going beyond that definition<sup>65</sup>. On the other hand, Germany continued its efforts to come up with a proposal which could be both in line with relevant precedents and serve as a basis for a compromise<sup>66</sup>. During the Rome Conference, no compromise could be reached.

Second, the role of the Security Council, although not extensively dealt with during the Conference due to both, a lack of time and a missing solution for the definition of the crime of aggression, also remained controversial. A proposal from Cameroon provided that, once a crime of aggression had been submitted to the Court, it would be under an obligation to refer the matter to the Security Council for a declaration as to the existence or non-existence of an aggression<sup>67</sup>. In case of a failure by the Security Council to make such a determination within a reasonable time, the Court would be entitled to commence an investigation. This proposal was not discussed in detail.

Due to this lack of a generally accepted formula in both regards, the bureau proposal submitted to the Diplomatic Conference on July 10, 1998<sup>68</sup> did not contain any reference to the crime of aggression, but instead simply stipulated that this crime might be referred to a Review Conference. A proposal submitted by the members of the Non-Aligned Movement<sup>69</sup> then provided for the inclusion of the crime of aggression but that – somewhat similar to the current paragraph 2 of article 5 – the definition of the crime should be elaborated by the Preparatory Commission and later adopted by the Assembly of States Parties. It was against this background that the bureau of the Conference included the compromise text now contained in article 5, and in particular its paragraph 2, in the final text of the Statute of the ICC.

d) **Post-Rome developments.** aa) **Discussions in the framework of the Preparatory Commission for the International Criminal Court.** The Preparatory Commission for the ICC, set up by the Final Act of the Rome Conference, decided to create a working group on the crime of aggression, which however was not able to reach a consensus on the outstanding issues, *i. e.* the definition of the crime and the specific role, if ever, of the Security Council.

In particular most of the States involved maintained their previous position relating to the definition of the crime of aggression<sup>70</sup>. With regard to the second issue, *i. e.* the question which role the Security Council should play with regard to the crime of aggression, two new options were however submitted.

One option<sup>71</sup> – if adopted – would have provided that the Security Council would be requested by the Court as to whether in a given situation the crime of aggression has been committed. In the absence of a decision of the Security Council within a given period of time, the Court could then proceed with its investigations or prosecution.

<sup>65</sup> For details see UN Doc. A/CONF.183/C.1/L.37, 1 July 1998 and A/CONF.183/C.1/L.56, 8 July 1998. See also the proposal submitted by Armenia (UN Doc. A/CONF.183/C.1/L.38, 1 July 1998) which wanted to include a specific exception for those cases of armed attacks 'required by the principle of equal rights and self-determination of peoples'.

<sup>66</sup> See also the proposals submitted by Cameroon, UN Doc. A/CONF.183/C.1/L.39, 2 July 1998, under which any manifestly illegal use of armed force would have constituted the crime of aggression.

<sup>67</sup> UN Doc. A/CONF.183/C.1/L.39, 2 July 1998.

<sup>68</sup> UN Doc. A/CONF.183/C.1/L.59, 10 July 1998.

<sup>69</sup> UN Doc. A/CONF.183/C.1/L.75, 14 July 1998.

<sup>70</sup> For an overview see notably PCNICC/2001/L.3/Rev.1, 11 October 2001.

<sup>71</sup> PCNICC/2001/L.3/Rev.1, Option 1, variation 1, p. 15, 11 October 2001.

- 43 An alternative proposal<sup>72</sup> – basing itself on the well-known *Uniting for Peace Resolution* of the General Assembly – provided that, if the Security Council was not able to reach any such determination within a given time frame, the General Assembly would then be asked in turn by the Court to make such a recommendation. Again, where no such recommendation is made in due course, the Court could – under the proposal as then submitted – still go forward with its proceedings.
- 44 The working group also considered proposals for possible elements of crimes as to the crime of aggression, which elements were however not thoroughly discussed. The Preparatory Commission finally submitted a report to the first session of the Assembly of States Parties to the Rome Statute, where it – basing itself on the work of the above-mentioned working group – outlined the various options<sup>73</sup>.
- 45 **bb) Discussions in the framework of the Assembly of States Parties.** During its first session, the Assembly of States Parties in turn decided to create a Special Working Group on the Crime of Aggression<sup>74</sup>, which – given the overall importance of the issues involved – was open not only to the contracting parties of the Rome Statute, but rather to all member States of the United Nations. The Working Group was tasked to submit proposals to the Assembly of States Parties for its consideration at the Review Conference.
- 46 Neither during the first nor during the second session of the Assembly of States Parties was any relevant progress made, the work of the Special Working Group on the Crime of Aggression then still being based of the option paper elaborated by the Preparatory Commission<sup>75</sup>.
- 47 The third session of the Assembly of States Parties, which took place from September 6–10, 2004, once again took note of the report of the Special Working Group on the Crime of Aggression<sup>76</sup> without taking any further action<sup>77</sup>. Said Working Group had in particular held an inter-sessional meeting in June 2004, where it had considered more technical aspects of aggression without going into the core issues outlined above where in view of the participating States significant progress was unlikely to take place<sup>78</sup>. In particular the working group considered issues related to jurisdiction *ratione temporis*, the possible incorporation and placement of a future provision on aggression, issues of complementarity and admissibility with regard to the crime of aggression, the principle of *ne bis in idem*, and finally the relationship of a possible provision on the crime of aggression with general principles of criminal law.
- 48 In 2005, the Special Working Group on the Crime of Aggression continued its work, including by holding informal inter-sessional meetings, where once again *mutatis mutandis* the same issues were discussed<sup>79</sup>.
- 49 During the informal inter-sessional meeting of said Working Group that took place in June 2006<sup>80</sup>, note of which was taken by the fifth meeting of the Assembly of States Parties<sup>81</sup>, the definition of the conduct of the individual concerned was one of the main issues. A broad movement emerged towards, following the Nuremberg precedent, *per se* limiting the individual criminal responsibility to those persons planning, preparing, initiating or executing the crime of aggression, thereby underlying the leadership character of the crime of aggression. Yet, with regard to the very definition of the crime of aggression, there continued

<sup>72</sup> *Ibid.*, variation 2.

<sup>73</sup> PCNICC/2002/2/Add.2, 24 July 2002.

<sup>74</sup> Continuity of work in respect of the crime of aggression ICC-ASP/1/Res.1, 9 September 2002.

<sup>75</sup> As to details see ICC-ASP/1/3, 3–10 September 2002, ICC-ASP/1/3/Add.1, 3–7 February and 21–23 April 2003 (in particular ICC-ASP/1/L.4 – Proposal by Cuba, 6 February 2003), as well as ICC-ASP/2/10, 8–12 September 2002, para. 44 and Annex II.

<sup>76</sup> ICC-ASP/3/14/Rev.1, 26 August 2004.

<sup>77</sup> See ICC-ASP/3/25, 6–10 September 2004, para. 41.

<sup>78</sup> See ICC-ASP/3/25, 6–10 September 2004, Annex II (previously issued as ICC-ASP/3/SWGCA/INF.1).

<sup>79</sup> See as to details ICC-ASP/4/32, 13–15 June 2005.

<sup>80</sup> ICC-ASP/5/SWGCA/INF.1, 5 September 2006.

<sup>81</sup> ICC-ASP/5/SWGCA/INF.1, 29 September 2006.

to be significant debate. This debate centred around the question whether the list of acts contained in General Assembly Resolution 3314 (XXIX) should indeed serve as a basis for the definition of the crime of aggression, and whether a qualifying element should be added, such as *e.g.* referring to ‘manifest’ or ‘grave’ violations of the prohibition of the use of force<sup>82</sup>.

In 2007, the Special Working Group on the Crime of Aggression of the Assembly of States Parties continued its work<sup>83</sup>. Not the least, and apart from continuing its work with regard to the issues just mentioned, it also focused on the most controversial relationship between the Court on the one hand and the Security Council on the other with regard to the crime of aggression, an issue also already addressed in article 5 para. 2 of the Statute.

In February 2009, the Special Working Group on the Crime of Aggression submitted its final Report to the Assembly of States Parties. This report was forwarded to the Review Conference<sup>84</sup>. The proposal contained a draft definition of the crime of aggression in the form of a proposed article 8*bis*. However, no consensus was reached regarding the role of the Security Council in the exercise of jurisdiction over the crime of aggression now addressed in article 15*bis*. Two versions of this draft provision were presented with varying options as to the role of the Security Council<sup>85</sup>. Accordingly, the requirements for the exercise of jurisdiction over the crime of aggression were seen as the most debated issue to be moving on to the Kampala Review Conference.

## 2. Developments during the Kampala Review Conference

The Special Working Group on the Crime of Aggression’s definition of the crime of aggression was adopted verbatim at the Review Conference<sup>86</sup>. The only additions to this were the elements of crimes<sup>87</sup> and certain understandings as to the content of the threshold clause. Most of the debate that took place at the Kampala Review Conference centered around the preconditions for the Court exercising its jurisdiction with regard to the crime of aggression. As mentioned previously<sup>88</sup>, many alternatives had been proposed for article 15 and the ensuing debate finally resulted in the creation of two articles, namely articles 15*bis* and 15*ter*. Article 15*bis* deals with State referrals and the *proprio motu* exercise of jurisdiction with regard to the crime of aggression, while article 15*ter* deals with Security Council referrals<sup>89</sup>.

## 3. Article 5 para. 2: Preconditions for the exercise of the Court’s jurisdiction with respect to the crime of aggression

The Court will be only able to exercise its jurisdiction over purported crimes of aggression once the amendment adopted at the Kampala Review Conference has entered into force<sup>90</sup>.

Article 5 para. 2 of the Statute, as adopted in Rome, provided that the definition of the crime of aggression must be in line with the relevant provisions of the Charter of the United

<sup>82</sup> It is worth noting that the International Court of Justice in the *Case concerning Armed Activities on the Territory of the Congo (Democratic Republic of the Congo v. Uganda)* referred to ‘[t]he unlawful military intervention by Uganda (...) of such a magnitude and duration that the Court considers it to be a grave violation of the prohibition of the use of force expressed in Article 2, paragraph 4, of the Charter’, ICJ Rep. 2005, 168, para. 165. See also Sep. op. of Judge Simma, *ibid.*, para. 2, which qualified such behaviour as an ‘act of aggression’.

<sup>83</sup> For details see Report of the Special Working Group on the Crime of Aggression, ICC-ASP/5/35, 29 January–1 February 2007, as well as the report on its 2007 informal inter-session meeting, ICC-ASP/6/SWGCA/INF.1, 5 September 2006.

<sup>84</sup> ICC- ASP/7/SWGCA/2, 20 February 2009, the proposals can also be found in Annex II to of the Resolution ICC- ASP/8/Res. 6, 26 November 2009.

<sup>85</sup> ICC- ASP/8/Res. 6, Annex II, 26 November 2009.

<sup>86</sup> ICC- ASP/8/Res. 6, 26 November 2009.

<sup>87</sup> ICC- ASP/8/Res. 6, 26 November 2009.

<sup>88</sup> See mn 34.

<sup>89</sup> See Zimmermann and Freiburg, *articles 15bis and 15ter*.

<sup>90</sup> As to details of the amendment and review procedure under *articles 121 and 123* see generally Clark, *article 121 and article 123*, and specifically with regard to the crime of aggression Zimmermann and Freiburg, *ibid. passim*.

Nations. This reference to the Charter of the United Nations thereby, first and foremost, took into account the fact that under article 103 of the Charter, any definition of the crime must stay within the limits provided by the Charter itself and accordingly *inter alia* had to recognise the legality of military action either authorised by the Security Council under Chapter VII of the Charter of the United Nations or undertaken in the exercise of the right of self-defence under article 51 of the Charter<sup>91</sup>.

- 55 Besides, article 5 para. 2 further stipulated that any provision shall also set out the conditions under which the Court shall exercise jurisdiction with respect to this crime, which in turn was supposed to be consistent with the relevant provisions of the Charter of the United Nations. This formula was used in order to address the question which role the Security Council should play for purposes of criminal proceedings involving the prosecution of instances of the crime of aggression. The Statute, by stating explicitly that such a provision must be in line with the Charter of the United Nations, thereby seems to have acknowledged the special role and prerogatives that the main political organs of the organisation, and first and foremost the Security Council, possess when it comes to the maintenance of international peace and security under articles 12, 14, 24 and generally Chapter VII of the Charter<sup>92</sup>.
- 56 It is certainly true that any determination by the Court that the crime of aggression has been committed in a given case would solely focus on the criminal responsibility of one or more individual offenders, eventually responsible for having committed such crime and not deal with issues of State responsibility and the maintenance of international peace and security as such.
- 57 Yet, any such determination by the Court will necessarily contain, provided the person concerned acted as organ of a State within the meaning of article 4 of the ILC Articles on State Responsibility, an implicit determination that the State on behalf of which the individual was acting, committed an act of aggression, said State thus by the same token simultaneously being under an obligation to make reparation for such act under the rules of international law governing the responsibility of States.
- 58 Besides, one might not exclude a situation where the Security Council, acting under Chapter VII, either determines that a given State had *not* committed an act of aggression, but that it had rather been acting either in self-defence or within the framework of a valid Security Council authorisation, or that such action, while constituting a breach of the peace, did not yet amount to an act of aggression.
- 59 Finally, even where any such express positive or negative determination by the Security Council is lacking, the accused could still claim that he or she acted (as was indeed argued by the United States and the United Kingdom in the case of the military action against Iraq in 2003) within the parameters of a Security Council authorisation in which case the Court would eventually be faced with the task to consider the legality of the military action under general international law.
- 60 It is against the background of such scenarios that one has to evaluate the legality under both, the Charter itself and article 5 para. 2 of the Statute, of the amendment regulating the exercise of jurisdiction by the Court with regard to the crime of aggression.
- 61 The amendment adopted in Kampala, provided it were to enter into force, will enable the Court to judge upon alleged acts of aggression without a prior determination by the relevant organs of the United Nations. It could thus indeed, be it only implicitly and eventually *ex post facto*, subject either the action of the organisation, or that of individual States acting under the authority of the United Nations, or both, to the control of the Court (the ICC itself not being an organ of the United Nations<sup>93</sup>). It could accordingly eventually endanger the

<sup>91</sup> As to questions concerning the use of armed force arising under article 51 UN Charter see Randelzhofer, in: Simma *et al.* (eds.), *The Charter of the United Nations. A Commentary* (2012) 139.

<sup>92</sup> For a detailed discussion see already Zimmermann (1998) 2 *MPYbUNL* 202 *et. seq.*

<sup>93</sup> The situation is thus significantly and indeed fundamentally different from any form of legal evaluation respectively control of acts of the Security Council or the General Assembly by either the International Court of Justice, the latter itself being the principal judicial organ of the United Nations, or by an *ad hoc* tribunal

effectiveness of the system of collective security set up under the Charter of the United Nations.

The situation is thus comparable to the one addressed by the European Court of Human Rights in *Behrami and Sahramati*<sup>94</sup>. There, the Grand Chamber of the European Court of Human Rights similarly determined that any form of outside judicial control of action (even if the acts as such were undertaken by individual member States or a group of member States) which is crucial to the effective fulfillment by the United Nations Security Council of its Chapter VII mandate and consequently, by the United Nations *in toto* of its imperative peace and security aim, would in itself interfere with the fulfillment of the United Nations' key mission in this field<sup>95</sup> and should thus be considered not admissible.

Accordingly it is submitted that an amendment, in order to be in line with the requirements of the Charter and article 5, para. 2 itself, should have contained safeguards that would have made sure that the Court were not to prosecute an individual for the crime of aggression without either a prior determination by the relevant organs of the United Nations confirming that the underlying action by the State concerned amounted to an act of aggression, or without them specifically granting the Court jurisdiction over the crime of aggression<sup>96</sup>.

Indeed, under article 24 of the Charter, it is the Security Council that bears the primary responsibility for the maintenance of international peace and security. Under the Charter, it is therefore primarily for the Security Council to eventually determine, acting under Chapter VII of the Charter, whether indeed an act of aggression was committed or to grant the Court jurisdiction over the crime of aggression.

Yet, as confirmed by the International Court of Justice in its *Advisory Opinion on the Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*<sup>97</sup>, the competences of the Security Council, while being of a primary nature in that regard, are not necessarily exclusive<sup>98</sup>. More specifically, the ICJ confirmed that the accepted practice of the General Assembly under the *Uniting for Peace Resolution*, as it has since evolved, is consistent with article 12, para. 1 of the Charter of the United Nations<sup>99</sup>.

Thus, any amendment of the Statute circumscribing the conditions under which the Court may exercise its jurisdiction with regard to the crime of aggression could have also enabled the General Assembly, should the Security Council be unable to exercise its above-mentioned primary responsibility for the maintenance of international peace and security due to the exercise of the veto, to then eventually render the necessary decisions, provided the procedural prerequisites as provided for in the *Uniting for Peace Resolution* are fulfilled.

#### 4. Outlook

As expected, the crimes of terrorism and drug-trafficking were not even seriously considered during the Kampala review process. Is also stand to reason that future additions to the Rome Statute will neither deal with those or similar 'treaty crimes'. In contrast thereto, the issue of whether or not, and if so under what conditions, the crime of aggression was to

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established by the Security Council itself under Chapter VII as one of its subsidiary organs within the meaning of article 29 of the Charter.

<sup>94</sup> *Behrami against France*, Appl. No. 71412/01 and *Saramati against France, Germany and Norway*, Appl. Np. 78166/01, Decision of 2 May 2007.

<sup>95</sup> *Ibid.*, para. 149. It should be also noted that the European Court of Human Rights *expressis verbis* extended its argument to attempts to control or limit voluntary acts of individual States such as the vote of a permanent member of the Security Council in favour of a Chapter VII Resolution, *ibid.*

<sup>96</sup> See for such a proposal Blokker (2007) 20 *LeidenJIL* [867], 889.

<sup>97</sup> *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*, Advisory opinion, ICJ Rep. 2004, 136, 148, para. 26.

<sup>98</sup> *Ibid.*

<sup>99</sup> *Ibid.*, para. 28. As a matter of fact the General Assembly has on several occasions qualified certain acts as 'aggressive acts', 'acts of aggression' or 'aggression', see for a detailed overview Blokker (2007) 20 *LeidenJIL* [867], 881.

be included into the Rome Statute constituted the major issue addressed during the Kampala Review Conference. During the conference, the outcome of which will be analysed in detail in the contributions dealing with articles 8*bis*, 15*bis* and 15*ter*, the following main results were reached, namely:

- defining the individual conduct confirming the leadership character of the crime of aggression
- and clarifying the relationship with the general principles of criminal law as contained in the Statute and particularly its article 25 para. 3;
- defining the underlying conduct of the State concerned;
- delimitating the conditions for the exercise of jurisdiction with respect to the crime of aggression.

68 Given the difficulties encountered both before and during the Rome Conference, as well as during the work of both the Preparatory Commission as well as the Special Working Group on the Crime of Aggression of the Assembly of States Parties in reaching a generally acceptable definition of the crime of aggression and in delimitating the appropriate role of the Security Council, and further taking into account the threshold for an amendment to the Statute, reaching consensus on those issues had seemed to be a difficult obstacle to surmount. However, the inclusion of the crime of aggression now reached during the Kampala Review Conference (provided the amendment eventually receives the necessary number of ratifications) raises a significant number of issues related to the law of treaties, as well as that of the Charter of the United Nations.

69 Only time will tell whether indeed the amendment will enter into force and what effects it might have on the international system at large. Indeed, one might wonder whether the ambitious attempt to provide for the jurisdiction of the Court with regard to the crime of aggression, not taking into account the role of the Security Council, might not eventually overburden the Court. Maybe it might be a dangerous illusion to believe that the current imperfections of the international system, the current composition and voting mechanism of the Security Council clearly being a major one of them<sup>100</sup>, could be revised or challenged through the backdoor of the system of international criminal law<sup>101</sup>.

70 Provided, however, the amendment on the crime of aggression were to enter into force, it will by the same token provide for the deletion of article 5 para. 2.

<sup>100</sup> See Zimmermann, *article 27*, in: Simma *et al.* (eds.), *The Charter of the United Nations. A Commentary* (3<sup>rd</sup> edition 2012), mn 265 *et seq.*

<sup>101</sup> See for such proposition Fife, in: Bergsmo (ed.), *Human Rights and Criminal Justice for the Downtrodden – Essays in Honour of Asbjørn Eide* (2003) 54, 73.



## Article 6 Genocide

For the purpose of this Statute, ‘genocide’ means any of the following acts committed with intent to destroy, in whole or in part, a national, ethnical, racial or religious group, as such:

- (a) Killing members of the group;
- (b) Causing serious bodily or mental harm to members of the group;
- (c) Deliberately inflicting on the group conditions of life calculated to bring about its physical destruction in whole or in part;
- (d) Imposing measures intended to prevent births within the group;
- (e) Forcibly transferring children of the group to another group.

**Literature:** Arnold, R., ‘The Mens Rea of Genocide Under the Statute of the International Criminal Court’, (2003) 14 CLF 127; Boot, M., *Nullum Crimen Sine Lege and the Subject Matter Jurisdiction of the International Criminal Court*, *Genocide, Crimes against Humanity, War Crimes* (2002); Boustany, K. and Dormoy, D. (eds.), *Génocide(s)* (1999); Burghardt, B. and Geneuss, J., ‘Der Präsident und sein Gericht: Die Entscheidung des Internationalen Strafgerichtshofs über den Erlass eines Haftbefehls gegen Al Bashir’, (2009) 4 ZIS 126; Byron, C., ‘Genocide’, in: D. McGoldrick, P. Rowe and E. Donnelly (eds.), *The Permanent International Criminal Court, Legal and Policy Issues* (2004) 143; Cassese, A., ‘Genocide’, in: *id.*, P. Gaeta and J. R.W.D. Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 335; Cayley, A.T., ‘The Prosecutor’s Strategy in Seeking the Arrest of Sudanese President Al Bashir on Charges of Genocide’, (2008) 6 JICJ 829; Folgueiro, H. L., ‘El crimen de genocidio, Análisis del artículo 6 del Estatuto de Roma de la Corte penal internacional’, in: J.A. Guevara B. and T. Dal Maso J., *La Corte penal internacional: Una vision iberoamericana* (Mexico City: Porrúa, 2005) 111–163; Fronza, E., ‘Genocide in the Rome Statute’, in: F. Lattanzi and W.A. Schabas (eds.), *Essays on the Rome Statute of the International Criminal Court* (2000) 105; Gil Gil, A., *El genocidio y otros crímenes internacionales* (1999); Greenwalt, A.A.K. ‘Rethinking Genocidal Intent: The Case for a Knowledge-Based Interpretation’, (1999) 99 *Colum.L.Rev.* 2259; von Hebel, H. and Robinson, D., ‘Crimes Within the Jurisdiction of the Court’, in: R. S. Lee (ed.), *The International Criminal Court, the Making of the Rome Statute, Issues, Negotiations, Results* (1999) 79; Henham, R. and Behrens, P. (eds.), *The Criminal Law of Genocide* (Ashgate, 2007); Jorgensen, N.H.B., ‘The Definition of Genocide: Joining the Dots in the Light of Recent Practice’, (2001) 1 *ICLRev* 285; Kress, C., ‘The Crime of Genocide Under International Law’, (2006) 6 *ICLRev* 461; Lippman, M., ‘Genocide: The Crime of the Century. The Jurisprudence of Death at the Dawn of the New Millennium’, (2001) 23 *HoustonJIL* 467; Ntanda Nsereko, D.D., ‘Genocide: A Crime Against Mankind’, in: G. Kirk McDonald and O. Swaak-Goldman (eds.), *The Law and Enforcement of International Offences – The Experiences of International and National Courts* (1998) 113; Oosterveld, V. and Garraway, C., ‘The Elements of Genocide’, in: R. S. Lee *et al.* (eds.), *The International Criminal Court, Elements of Crimes and Rules of Procedure and Evidence* (2001) 41; Prescott, J.M., ‘Litigating Genocide: A Consideration of the International Criminal Court in Light of the German Jews’ Legal Response to Nazi Persecution, 1933–1941’, (1999) 51 *MaineLRev* 297; Schabas, W.A., *Genocide in International Law* (2<sup>nd</sup> ed. (2009); *id.*, *Genozid im Völkerrecht* (2003); Shah, S.B., ‘The Oversight of the Last Great International Institution of the Twentieth Century: The International Criminal Court’s Definition of Genocide’, (2002) 16 *EmoryJLRev* 351; Triffterer, O., ‘Genocide, its particular Intent to destroy in whole or in part the Group as such’, (2001) 14 *LeidenJIL* 400; Johann Van der Vyver, ‘Prosecution and Punishment of the Crime of Genocide’, (1999) 23 *FordhamJLJ* 286; Whitaker, B., *Revised and Updated Report on the Question of the Prevention and Punishment of the Crime of Genocide*, UN Doc. E/CN.4/Sub.2/1985/6; Zahar, A., ‘Command Responsibility of Civilian Superiors for Genocide’, (2001) 14 *LeidenJIL* 591.

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## A. Introduction/General remarks

- Article 6 of the *Rome Statute* defines the crime of genocide, one of four categories of offence within the subject matter jurisdiction of the International Criminal Court. It reproduces the text of article II of the *Convention for the Prevention and Punishment of the Crime of Genocide*<sup>1</sup>, which was adopted by the United Nations General Assembly on 9 December 1948. At the time the *Rome Statute* was adopted, the *travaux préparatoires* of the *Convention* were the principal source for interpretation of the definition<sup>2</sup>. The corpus of judicial interpretation of the provision was then remarkably slim: a few interlocutory orders by the ICTY<sup>3</sup> and a handful of domestic judgments<sup>4</sup>. The first important ruling by one of the *ad hoc* tribunals, the 2 September 1998 judgment of the Trial Chamber of the ICTR in *Prosecutor v. Akayesu*, was issued several weeks after the adoption of the *Rome Statute*<sup>5</sup>. Since then, however, there have been several important judicial pronouncements by the Appeals Chambers of the *ad hoc* tribunals addressing a range of issues relevant to the interpretation of article 6<sup>6</sup>. The ICJ has indicated that the definition reflects customary law<sup>7</sup>. The International Criminal Court has delivered only one significant ruling dealing with article 6 of the *Statute*. In March 2009, by a majority a Pre-Trial Chamber dismissed the Prosecutor’s application for an arrest warrant charging Sudanese President Omar Al Bashir with genocide. The decision contains a very significant discussion of article 6 including consideration of the significance of the relevant Elements of Crimes.<sup>8</sup>
- The ILC Draft Statute, submitted to the General Assembly in 1994, listed genocide as a crime within the jurisdiction of the court, but it did not define the offence<sup>9</sup>. The 1995 report of the *Ad Hoc Committee* indicated widespread support for retaining the definition in the

<sup>1</sup> 78 UNTS 277 (1951).

<sup>2</sup> See literature.

<sup>3</sup> *Prosecutor v. Karadžić et al.*, Case No. IT-95-5-R & IT-95-18-R, Review of the Indictment Pursuant to Rule 61 of the Rules of Procedure and Evidence, 11 July 1996; *Prosecutor v. Nikolić*, Case No. IT-94-2-R61, Review of Indictment Pursuant to Rule 61, 20 October 1995.

<sup>4</sup> A. G. *Israel v. Eichmann*, 36 I.L.R. 18 (D.C.), para. 19 (1968); see also: A. G. *Israel v. Eichmann*, 36 I.L.R. 277 (S.C.) (1968); Safferling, *Public Prosecutor v. Djajic*, 92 AJIL 528 (1998); *Canada, Minister of Citizenship and Immigration v. Mugesera*, File No. QML-95-00171, 11 July 1996 (Immigration and Refugee Board Adjudication Division), reported (in French), (1996)7 *Revue univ. droits de l’homme* 190.

<sup>5</sup> *Prosecutor v. Akayesu*, Case No. ICTR-96-4-T, Judgement, Trial Chamber, 2 Sep. 1998, affirmed: *Prosecutor v. Akayesu*, Case No. ICTR-96-4-T, Judgment, Appeals Chamber, 1 June 2001.

<sup>6</sup> *Prosecutor v. Jelisić*, Case No. IT-95-10-A, Judgment, Appeals Chamber, 5 July 2001; *Prosecutor v. Krstić*, Case No. IT-98-33-A, Judgment, Appeals Chamber, 19 Apr. 2004; *Prosecutor v. Niyitegeka*, Case No. ICTR-96-14-A, Judgment, Appeals Chamber, 9 July 2004; *Prosecutor v. Ntakirutimana et al.*, Case No. ICTR-96-10-A and ICTR-96-17-A, Judgment, Appeals Chamber, 13 Dec. 2004.

<sup>7</sup> See *Case concerning application of the Convention on the prevention and punishment of the crime of genocide (Bosnia and Herzegovina v. Yugoslavia [Serbia and Montenegro])*, Requests for the Indication of Provisional Measures, 8 Apr. 1993, I.C.J. Rep. 16 (1993); *Case concerning application of the Convention on the prevention and punishment of the crime of genocide (Bosnia and Herzegovina v. Yugoslavia [Serbia and Montenegro])*, Further requests for the Indication of Provisional Measures, 13 Sept. 1993, I.C.J. Rep. 325 (1993); *Case concerning application of the Convention on the prevention and punishment of the crime of genocide (Bosnia and Herzegovina v. Yugoslavia [Serbia and Montenegro])*, Preliminary Exceptions, 11 July 1996; *Case concerning application of the Convention on the prevention and punishment of the crime of genocide (Bosnia and Herzegovina v. Yugoslavia [Serbia and Montenegro])*, Judgment, 26 Feb. 2007, para. 161.

<sup>8</sup> *Prosecutor v. Bashir*, Case No. 02/05-01/09, Decision on the Prosecution’s Application for a Warrant of Arrest against Omar Hassan Ahmad Al Bashir, 4 March 2009.

<sup>9</sup> 1994 ILC Draft Statute, article 20 para. a, p. 70.

1948 *Convention*, although some delegations suggested that it might be expanded to encompass social and political groups<sup>10</sup>. Essentially the same sentiments are reflected in the 1996 report of the Preparatory Committee<sup>11</sup>. The Preparatory Committee's Working Group on the Definition of Crimes, which met in February 1997, took note of a number of modifications that had been proposed, but ultimately returned to the text of the 1948 *Convention*<sup>12</sup>. In the Zutphen and Final Drafts, the text of article II of the *Convention* was left untouched, while the text of article III was added, but in square brackets<sup>13</sup>. At the Diplomatic Conference, the Bureau proposed that the definition be taken literally from the 1948 *Convention*<sup>14</sup> and there was virtually no objection<sup>15</sup>. Herman von Hebel and Daryl Robinson have observed that '[a]t the Rome Conference, the definition of the crime of genocide was not discussed in substance...'<sup>16</sup>. Although literature on the subject is replete with proposals to amend the definition of genocide, during the Diplomatic Conference only Cuba argued that it might be altered by the inclusion of political and social groups<sup>17</sup>. The provision derived from the 1948 *Convention* was referred to the Drafting Committee<sup>18</sup> and returned to the Committee of the Whole by that body without modification<sup>19</sup>.

For the purposes of interpreting article 6, it seems appropriate to consider the interpretation applicable not only to article II of the 1948 *Convention*, which it resembles, but also the context of adoption of article II, namely the *Convention* as a whole. This point was made by the Preparatory Committee's Working Group on the Definition of Crimes in the following terms: 'The Working Group noted that with respect to the interpretation and application of the provisions concerning the crimes within the jurisdiction of the Court, the Court shall apply relevant international conventions and other sources of international law. In this regard, the Working Group noted that for purposes of interpreting [the provision concerning genocide] it may be necessary to consider other relevant provisions contained in the Convention for the Prevention and Punishment of the Crime of Genocide, as well as other sources of international law. For example, article I would determine the question of whether the crime of genocide set forth in the present article could be committed in time of peace or in time of war ...'<sup>20</sup>.

Although only summary attention was paid to article 6 during the drafting of the *Rome Statute*, some of the issues involved in the crime of genocide were explored in more detail by the Preparatory Commission in preparation of the Elements of Crimes. In particular, the Elements address various aspects of the mental element for the commission of genocide. They also impose a contextual element that does not appear in the Convention itself: 'The conduct took place in the context of a manifest pattern of similar conduct directed against

<sup>10</sup> *Ad Hoc* Committee Report, pp. 12–13, paras. 59–72.

<sup>11</sup> 1996 Preparatory Committee I, pp. 17–18, paras. 58–64, 1996 Preparatory Committee II, pp. 56–57.

<sup>12</sup> Preparatory Committee Decisions Feb. 1997, Annex I, p. 2; also UN Doc. A/AC.249/1997/WG.1/CRP.1 and Corr.1. The Working Group met again in December 1997, but did not consider the definition of genocide: Preparatory Committee Decisions Dec. 1997, Annex I.

<sup>13</sup> Zutphen Draft, pp. 17–18; Preparatory Committee (Consolidated) Draft, pp. 13–14.

<sup>14</sup> UN Doc. A/CONF.183/C.1/L.53, p. 1; also UN Doc. A/CONF.183/C.1/L.59, p. 2.

<sup>15</sup> UN Doc. A/CONF.183/C.1/SR.3, paras. 2, 18, 20 (Germany), 22 (Syria), 24 (United Arab Emirates), 26 (Bahrain), 28 (Jordan), 29 (Lebanon), 30 (Belgium), 31 (Saudi Arabia), 33 (Tunisia), 35 (Czech Republic), 38 (Morocco), 40 (Malta), 41 (Algeria), 44 (India), 49 (Brazil), 54 (Denmark), 57 (Lesotho), 59 (Greece), 64 (Malawi), 67 (Sudan), 72 (China), 76 (Republic of Korea), 80 (Poland), 84 (Trinidad and Tobago), 85 (Iraq), 107 (Thailand), 111 (Norway), 113 (Côte d'Ivoire), 116 (South Africa), 119 (Egypt), 122 (Pakistan), 123 (Mexico), 127 (Libya), 132 (Colombia), 135 (Iran), 137 (United States of America), 141 (Djibouti), 143 (Indonesia), 145 (Spain), 150 (Romania), 151 (Senegal), 153 (Sri Lanka), 157 (Venezuela), 161 (Italy), 166 (Ireland), 172 (Turkey), 174.

<sup>16</sup> von Hebel and Robinson, in: Lee (ed.), *The International Criminal Court, the Making of the Rome Statute, Issues, Negotiations, Results* (1999) 89.

<sup>17</sup> UN Doc. A/CONF.183/C.1/SR.3, para. 100.

<sup>18</sup> UN Doc. A/CONF.183/C.1/L.58, p. 9.

<sup>19</sup> UN Doc. A/CONF.183/C.1/L.91, p. 2. Academic commentators also took the view that it was best not to tamper with the *Convention* definition: Sadat Wexler (1997) 13 *NEP* 163, 169; Paust (1998) 13bis *NEP* 27.

<sup>20</sup> Preparatory Committee Decisions Feb. 1997, note 11, p. 3, fn. 3; also: Zutphen Draft, note 13, p. 17, fn. 12.

that group or was conduct that could itself effect such destruction'. This paragraph, which appears in the elements of each specific act of genocide, is further developed in the Introduction:

'With respect to the last element listed for each crime: The term 'in the context of' would include the initial acts in an emerging pattern; The term 'manifest' is an objective qualification; Notwithstanding the normal requirement for a mental element provided for in article 30, and recognizing that knowledge of the circumstances will usually be addressed in proving genocidal intent, the appropriate requirement, if any, for a mental element regarding this circumstance will need to be decided by the Court on a case-by-case basis'.

The term 'circumstance' appears in article 30 of the *Rome Statute*, requiring as a component of the *mens rea* of crimes that an accused have 'awareness that a circumstance exists'<sup>21</sup>.

- 5 In its draft 'definitional elements' on the crime of genocide, which were circulated at the Rome Conference, the United States had proposed that the mental element of genocide require a 'plan to destroy such group in whole or in part'<sup>22</sup>. During subsequent debate in the Preparatory Commission, the United States modified the 'plan' requirement, this time borrowing from crimes against humanity the concept of 'a widespread or systematic policy or practice'<sup>23</sup>. The wording was widely criticised as an unnecessary addition to a well-accepted definition, with no basis in case law or in the *travaux* of the *Convention*<sup>24</sup>. Israel however made the quite compelling point that it was hard to conceive of a case of genocide that was not conducted as a 'widespread and systematic policy or practice'. As the debate evolved, a consensus appeared to develop recognizing the 'plan' element, although in a more cautious formulation<sup>25</sup>. This is reflected in the Elements.
- 6 This provision in the Elements was adopted after a Trial Chamber of the ICTY ruled that genocide could be committed by an individual, acting alone, and in the absence of any State or organisational plan or policy<sup>26</sup>. The finding was confirmed by the Appeals Chamber<sup>27</sup>. Later, the ICTY Appeals Chamber invoked its holding on this point with respect to genocide to support a conclusion that under customary law there was no State plan or policy element with respect to crimes against humanity either<sup>28</sup>. In this respect, the ICTY Appeals Chamber appears to have held that the *Rome Statute*, as completed by the Elements, is narrower than

<sup>21</sup> Rome Statute, article 30 para. 3.

<sup>22</sup> 'Annex on Definitional Elements for Part Two Crimes', UN Doc. A/CONF.183/C.1/L.10, p. 1. The elements also specify that 'when the accused committed such act, there existed a plan to destroy such group in whole or in part'.

<sup>23</sup> The draft proposal specified that genocide was carried out 'in conscious furtherance of a widespread or systematic policy or practice aimed at destroying the group': 'Draft elements of crimes', UN Doc. PCNICC/1999/DP.4, p. 7.

<sup>24</sup> Comments by Canada, Norway, New Zealand and Italy, 17 February 1999 (author's personal notes).

<sup>25</sup> 'Discussion paper proposed by the Co-ordinator, article 6: The crime of genocide', UN Doc. PCNICC/1999/WGEC/RT.1: 'The accused knew ... that the conduct was part of a similar conduct directed against that group'.

<sup>26</sup> *Prosecutor v. Jelisić*, Case No. IT-95-10-T, Judgment, Trial Chamber, 14 December 1999, para. 100. One month after *Jelisić*, in *Prosecutor v. Krstić*, Case No. IT-98-33-T, Judgment, Trial Chamber, 2 August 2001, an ICTY Trial Chamber noted that 'that the domestic law of some States distinguishes genocide by the existence of a plan to destroy a group' (para. 571). The Chamber referred to article 211-1 of the French Criminal Code which states that the crime must be committed 'in the execution of a concerted plan to destroy wholly or partially a group'. Subsequently, another Trial Chamber said bluntly that the matter of whether or not there was a legal requirement of a plan had been settled by the Appeals Chamber: *Prosecutor v. Sikirica et al.*, Case No. IT-95-8-I, Judgment on Defence Motions to Acquit, 3 Sep. 2001, para. 62.

<sup>27</sup> *Prosecutor v. Jelisić*, note 6, para. 48. Only weeks earlier, the ICTR Appeals Chamber had declined pronouncing itself on '[t]he much-debated question whether genocide could be committed by a person acting alone': *Prosecutor v. Kayishema & Ruzindana*, Case No. ICTR-95-1-A, Judgment, Appeals Chamber, 1 June 2001, (Reasons), para. 172.

<sup>28</sup> *Prosecutor v. Kunarac et al.*, Case No. IT-96-23 & IT-96-23/1-A, Judgment, Appeals Chamber, 12 June 2002, para. 98, esp. fn. 114. See also: *Prosecutor v. Blaškić*, Case No. IT-95-14-A, Judgment, Appeals Chamber, 29 July 2004, para. 120; *Prosecutor v. Kordić & Čerkez*, Case No. IT-95-14/2-A, Judgment, Appeals Chamber, 17 Dec. 2004, para. 98.

customary international law. Nevertheless, in *Kayishema & Ruzindana*, the ICTR wrote: ‘although a specific plan to destroy does not constitute an element of genocide, it would appear that it is not easy to carry out a genocide without a plan or organisation’<sup>29</sup>. Furthermore, it said that ‘the existence of such a plan would be strong evidence of the specific intent requirement for the crime of genocide’<sup>30</sup>.

## B. Analysis and interpretation of elements

### 1. ‘with intent’

Article 6 consists of a brief definition, followed by an enumeration of five acts of genocide. The essence of the definition is its precise description of what is commonly called the special or specific intent requirement.<sup>31</sup> According to the ICTY Appeals Chamber, ‘[g]enocide is one of the worst crimes known to humankind, and its gravity is reflected in the stringent requirement of specific intent. Convictions for genocide can be entered only where that intent has been unequivocally established’<sup>32</sup>. In its only significant interpretation of article 6, the ICC has confirmed the significance of a ‘subjective element, normally referred to as “*dolus specialis*” or specific intent, according to which any genocidal acts must be carried out with the “intent to destroy in whole or in part” the targeted group’<sup>33</sup>. An ICTR Trial Chamber said that the ‘[s]pecial intent of a crime is the specific intention, required as a constitutive element of the crime, which demands that the perpetrator clearly seeks to produce the act charged. Thus, the special intent in the crime of genocide lies in ‘the intent to destroy, in whole or in part, a national, ethnical, racial or religious group, as such’<sup>34</sup>. In *Sikirica*, an ICTY Trial Chamber said: ‘An examination of theories of intent is unnecessary in construing the requirement of intent in article 4 para. 2. What is needed is an empirical assessment of all the evidence to ascertain whether the very specific intent required by article 4 para. 2 is established, that is, the ‘intent to destroy, in whole or in part, a national, ethnical, racial or religious group, as such’<sup>35</sup>. The ICTR Appeals Chamber has confirmed that genocide is a crime of ‘specific intent’<sup>36</sup>. In *Krstić*, an ICTY Trial Chamber said that it was not required ‘that the genocidal acts be premeditated over a long period’<sup>37</sup>. It found that a plan to ethnically cleanse the Srebrenica region ‘escalated’ into genocide only a day or two before the actually deeds were perpetrated<sup>38</sup>.

Although insisting upon ‘specific intent’ with respect to genocide, this is not a requirement when acts of complicity in genocide, such as aiding and abetting, are concerned<sup>39</sup>. The ICTY Appeals Chamber has also found that it is possible to commit genocide as part of a ‘joint criminal enterprise’, a concept applied by the *ad hoc* tribunals that corresponds to ‘common purpose’ participation as set out in article 25 para. 3 (d) of the *Rome Statute*. To some judges,

<sup>29</sup> *Prosecutor v. Kayishema & Ruzindana*, Case No. ICTR-95-1-T, Judgment, Trial Chamber 21 May 1999, para. 94.

<sup>30</sup> *Ibid.*, para. 276. Also note 6, *Prosecutor v. Jelisić*, para. 48.

<sup>31</sup> For a detailed discussion of the different theoretical approaches and calling for a combination of the knowledge-based approaches with the peculiar structure of genocide (‘combined structure- and knowledge-based approach’) Ambos, *Treatise ICL II* (2014), pp. 21 et seq.

<sup>32</sup> *Prosecutor v. Krstić*, note 6, para. 134.

<sup>33</sup> *Prosecutor v. Bashir*, Case No. 02/05-01/09, Decision on the Prosecution’s Application for a Warrant of Arrest against Omar Hassan Ahmad Al Bashir, 4 March 2009, para. 139.

<sup>34</sup> *Prosecutor v. Akayesu*, 2 September 1998, note 5. Also note 7, 26 Feb. 2007, para. 188.

<sup>35</sup> *Prosecutor v. Sikirica et al*, note 25, paras. 58–59.

<sup>36</sup> *Prosecutor v. Ntakirutimana et al.*, note 6, para. 364; *Prosecutor v. Niyitegeka*, note 6, para. 54.

<sup>37</sup> *Prosecutor v. Krstić*, note 26, para. 572. In the same judgment, at para. 711, it said there was no requirement that genocide be committed with premeditation.

<sup>38</sup> *Prosecutor v. Krstić*, note 26, para. 619.

<sup>39</sup> *Prosecutor v. Krstić*, note 6, paras. 135–144; *Prosecutor v. Ntakirutimana et al.*, note 6, para. 500. For a critical discussion of the ICTY/ICTR case law in this respect see Ambos, *Treatise ICL II* (2014), pp. 32 et seq.

it had appeared that a conviction for genocide, which requires proof that the offender committed acts ‘with intent to destroy’ the group, in whole or in part, was theoretically incompatible with the entire concept of joint criminal enterprise<sup>40</sup>. However, the Prosecutor successfully challenged one of these rulings, and the ICTY Appeals Chamber has established that convictions for genocide are possible under the ‘joint criminal enterprise’ mode of liability<sup>41</sup>.

## 2. Contextual element

- 9 The Elements of Crimes set out a relevant contextual element for the purposes of applying article 6: ‘The conduct took place in the context of a manifest pattern of similar conduct directed against that group or was conduct that could itself effect such destruction.’ In the *Bashir* arrest warrant decision, the Pre-Trial Chamber acknowledged that the definition in article 6 itself ‘does not expressly require any contextual element’.<sup>42</sup> It noted the case law of the *ad hoc* tribunals, which have not insisted upon a plan or policy as an element of the crime of genocide.<sup>43</sup> In *Jelisić*, a Trial Chamber of the ICTY ruled that there was not sufficient evidence of a plan or policy, but that a conviction for genocide was in any event ‘theoretically possible’ because an individual, acting alone, could perpetrate the crime.<sup>44</sup> The Trial Chamber decision in *Jelisić* was issued only months before the Elements of Crime were adopted by the Preparatory Commission and it is very likely that it influenced delegates to the Commission. The original United States proposal on the Elements of genocide had borrowed the ‘widespread and systematic’ language from crimes against humanity.<sup>45</sup> It was replaced by the ‘manifest pattern’ formulation early in 2000.<sup>46</sup>
- 10 In the *Bashir* arrest warrant decision, Pre-Trial Chamber I said that pursuant to the case law of the *ad hoc* tribunals,
 

‘the crime of genocide is completed by, inter alia, killing or causing serious bodily harm to a single individual with the intent to destroy in whole or in part the group to which such individual belongs. As a result, according to this case law, for the purpose of completing the crime of genocide, it is irrelevant whether the conduct in question is capable of posing any concrete threat to the existence of the targeted group, or a part thereof’.<sup>47</sup>

Pre-Trial Chamber I said that under this interpretative approach, the crime of genocide depends upon proof that the accused had the intent to destroy the protected group, and that as soon as this intent exists and materialises in an isolated act of a single individual, the protection is triggered, regardless of whether the latent threat to the existence of the targeted group posed by the said intent has turned into a concrete threat to the existence in whole or in part of that group’.<sup>48</sup>

<sup>40</sup> *Prosecutor v. Stakić*, Case No. IT-97-24-T, Decision on Rule 98bis Motion for Judgment of Acquittal, 31 Oct. 2002, para. 93 6 8; *Prosecutor v. Brđanin*, Case No. IT-99-36-T, Decision on Motion for Acquittal Pursuant to Rule 98bis, 8 Nov. 2003, paras. 30, 55–57.

<sup>41</sup> *Prosecutor v. Brđanin*, Case: IT-99-36-A, Decision on Interlocutory Appeal, 19 Mar. 2004.

<sup>42</sup> *Prosecutor v. Bashir*, Case No. 02/05-01/09, Decision on the Prosecution’s Application for a Warrant of Arrest against Omar Hassan Ahmad Al Bashir, 4 March 2009, para. 117.

<sup>43</sup> *Prosecutor v. Bashir*, Case No. 02/05-01/09, Decision on the Prosecution’s Application for a Warrant of Arrest against Omar Hassan Ahmad Al Bashir, 4 March 2009, para. 119, citing: *Prosecutor v. Jelisić*, Case No. IT-95-10-T, Judgment, 14 December 1999, para. 400 (an error; the correct reference is to para. 100); *Prosecutor v. Akayesu*, Case No. ICTR-96-4-T, Judgment, 2 September 1998, paras. 520, 523.

<sup>44</sup> *Prosecutor v. Jelisić*, Case No. IT-95-10-T, Judgment, 14 December 1999, para. 100; affirmed: *Prosecutor v. Jelisić*, Case No. IT-95-10-A, Judgment, 5 July 2001.

<sup>45</sup> ‘Proposal Submitted by the United States of America, Draft elements of crimes’, PCNICC/1999/DP.4.

<sup>46</sup> ‘Discussion paper proposed by the Coordinator’, PCNICC/2000/WGEC/RT.1.

<sup>47</sup> *Prosecutor v. Bashir*, Case No. 02/05-01/09, Decision on the Prosecution’s Application for a Warrant of Arrest against Omar Hassan Ahmad Al Bashir, 4 March 2009, para. 119 (references omitted). *Contra: Prosecutor v. Bashir*, Case No. 02/05-01/09, Separate and Partly Dissenting Opinion of Judge Anita Ušacka, 4 March 2009, para. 19, fn. 26.

<sup>48</sup> *Prosecutor v. Bashir*, Case No. 02/05-01/09, Decision on the Prosecution’s Application for a Warrant of Arrest against Omar Hassan Ahmad Al Bashir, 4 March 2009, para. 120.

Noting ‘a certain controversy’ as to whether the contextual element should be recognised,<sup>49</sup> 11  
Pre-Trial Chamber I distanced itself from the case law of the *ad hoc* tribunals. It highlighted the importance of the contextual element set out expressly in the Elements of Crimes.

In the view of the Majority, according to this contextual element, the crime of genocide is 12  
only completed when the relevant conduct presents a concrete threat to the existence of the targeted group, or a part thereof. In other words, the protection offered by the penal norm defining the crime of genocide – as an *ultima ratio* mechanism to preserve the highest values of the international community – is only triggered when the threat against the existence of the targeted group, or part thereof, becomes concrete and real, as opposed to just being latent or hypothetical.<sup>50</sup>

Judge Ušacka, dissenting, insisted that the Elements of Crimes were only to ‘assist’ the Court, and hinted that they might be inconsistent with article 6 although she said the point did not need to be determined.<sup>51</sup> The majority of the Pre-Trial Chamber said that it did not see any ‘irreconcilable contradiction’ between the definition of genocide in article 6 of the Rome Statute and the requirement of a contextual element set out in the Elements.<sup>52</sup>

Quite the contrary, the Majority considered that the definition of the crime of genocide, so as to require for its completion an actual threat to the targeted group, or a part thereof, is (i) not per se contrary to article 6 of the Statute; (ii) fully respects the requirements of article 22(2) of the Statute that the definition of the crimes ‘shall be strictly construed and shall not be extended by analogy’ and ‘[i]n case of ambiguity, the definition shall be interpreted in favour of the person being investigated, prosecuted or convicted’; and (iii) is fully consistent with the traditional consideration of the crime of genocide as the ‘crime of the crimes’.<sup>53</sup>

The ICTY has rejected arguments that the contextual element in the Elements of Crimes is 13  
consistent with the definition of genocide.<sup>54</sup> In any case, given the travaux and ICC case law so far, it is plausible to read a context element in Article 6 by way of a teleological interpretation taking the ‘intent to destroy’ as its ‘carrier’ or ‘holder’.<sup>55</sup>

### 3. ‘in whole or in part’

In allowing that genocide could be committed ‘in whole or in part’, the drafters of the 14  
*Convention* definition sought to avoid two consequences. First, it was not intended that the crime of genocide extend to isolated acts of racially-motivated violence. Thus, there is some quantitative threshold. In 1982, a General Assembly Resolution described the massacres at Sabra and Shatilla, where the victims numbered in the low hundreds, as genocide, although the fierce opposition from many States who considered it to be misuse of the term considerably weakens its value as precedent<sup>56</sup>. A footnote added by the Working Group at the February 1997 Preparatory Committee affirms this point: ‘The reference to ‘intent to destroy, in whole or in part ... a group, as such’ was understood to refer to the specific intention to destroy more than a small number of individuals who are members of a

<sup>49</sup> *Prosecutor v. Bashir*, Case No. 02/05-01/09, Decision on the Prosecution’s Application for a Warrant of Arrest against Omar Hassan Ahmad Al Bashir, 4 March 2009, para. 125.

<sup>50</sup> *Ibid.*, para. 124.

<sup>51</sup> *Prosecutor v. Bashir*, Case No. 02/05-01/09, Separate and Partly Dissenting Opinion of Judge Anita Ušacka, 4 March 2009, para. 20.

<sup>52</sup> *Prosecutor v. Bashir*, Case No. 02/05-01/09, Decision on the Prosecution’s Application for a Warrant of Arrest against Omar Hassan Ahmad Al Bashir, 4 March 2009, para. 132.

<sup>53</sup> *Prosecutor v. Bashir*, Case No. 02/05-01/09, Decision on the Prosecution’s Application for a Warrant of Arrest against Omar Hassan Ahmad Al Bashir, 4 March 2009, para. 133.

<sup>54</sup> *Prosecutor v. Krstić*, Case No. IT-98-33-A, Judgment, Appeals Chamber, 19 Apr. 2004, para. 224; *Prosecutor v. Popović et al.*, IT IT-05-88-T, Judgment, 10 June 2010, para. 829.

<sup>55</sup> Cf. Ambos, *Treatise ICL II* (2014), pp. 17–8.

<sup>56</sup> GA Res. 37/123 D; UN Doc. A/37/PV.108, para. 152. The resolution was adopted by 123 to none, with 22 abstentions. Paragraph 2, in which the term genocide appeared, was adopted by 98 votes to 19, with 23 abstentions, on a recorded vote: UN Doc. A/37/PV.108, para. 151.



group'<sup>57</sup>. Second, however, the expression 'in whole or in part' indicates that the offender need not intend to destroy the entire group but only a substantial portion of it. Although some delegations to the Preparatory Committee requested clarification of the term 'in part', none was ever provided<sup>58</sup>.

- 15 According to the ICTY Appeals Chamber, a perpetrator of genocide must intend to destroy a *substantial* part of the group. It explained:

'The determination of when the targeted part is substantial enough to meet this requirement may involve a number of considerations. The numeric size of the targeted part of the group is the necessary and important starting point, though not in all cases the ending point of the inquiry. The number of individuals targeted should be evaluated not only in absolute terms, but also in relation to the overall size of the entire group. In addition to the numeric size of the targeted portion, its prominence within the group can be a useful consideration. If a specific part of the group is emblematic of the overall group, or is essential to its survival, that may support a finding that the part qualifies as substantial'<sup>59</sup>.

The Appeals Chamber noted that the Bosnian Muslim population in Srebrenica, or the Bosnian Muslims of Eastern Bosnia, a group estimated to comprise about 40,000 people, met this definition. Though numerically not very significant when compared with the Bosnian Muslim population as a whole, it occupied a strategic location, and was thus key to the survival of the Bosnian Muslim nation as a whole<sup>60</sup>.

There is some support for the view that the term 'in whole or in part' may also apply to a *significant* portion of the group. According to a Trial Chamber of the ICTY, in *Jelisić*, it might be possible to infer the requisite genocidal intent from the 'desired destruction of a more limited number of persons selected for the impact that their disappearance would have upon the survival of the group as such'<sup>61</sup>. The same scenario of relatively small numbers of killings in concentration camps returned in *Sikirica*, but again, the judges could not discern any pattern in the camp killings that suggested the intent to destroy a 'significant' part of the local Muslim community so as to threaten its survival. The victims were taxi drivers, schoolteachers, lawyers, pilots, butchers and café owners but not, apparently, community leaders. The Trial Chamber observed that 'they do not appear to have been persons with any special significance to their community, except to the extent that some of them were of military age, and therefore could be called up for military service'<sup>62</sup>. Although not explicitly endorsing the 'significant part' gloss on the *Convention*, the Appeals Chamber in *Krstić* did in a sense consider the relevance to the Srebrenica Muslim community of the destruction of approximately 7,000 men: 'Evidence introduced at trial supported this finding, by showing that, with the majority of the men killed officially listed as missing, their spouses are unable to remarry and, consequently, to have new children. The physical destruction of the men therefore had severe procreative implications for the Srebrenica Muslim community, potentially consigning the community to extinction'<sup>63</sup>. In *Tolimir*, a majority of the Trial Chamber concluded that the killing of three community leaders constituted genocide because this imperilled the survival of the group as a whole.<sup>64</sup> The International Court of Justice has said

<sup>57</sup> Preparatory Committee Decisions Feb. 1997, note 11, p. 3, fn. 1; also: Zutphen Draft, note 13, p. 17, fn. 10. Two commentators said the footnote 'is misleading and should not appear in its present form. Genocide *can* occur with the specific intent to destroy a small number of a relevant group. Nothing in the language of the Convention's definition, containing the phrase 'or in part', requires such a limiting interpretation. Moreover, successful counts or prosecutions of crimes against humanity, of which genocide is a species, have involved relatively small numbers of victims'. Sadat Wexler and Paust (1998) 13*ter* NEP 1, 5 (emphasis in the original, references omitted) (1998).

<sup>58</sup> 1996 Preparatory Committee I, note 11, p. 17, para. 60. See for a doctrinal discussion of the case law and the academic views Ambos, *Treatise ICL II* (2014), pp. 41 et seq.

<sup>59</sup> *Prosecutor v. Krstić*, note 26, para. 12. Also note 7, 26 Feb. 2007, para 198.

<sup>60</sup> *Prosecutor v. Krstić*, note 26, paras. 15–16.

<sup>61</sup> *Prosecutor v. Jelisić*, note 26, para. 82.

<sup>62</sup> *Prosecutor v. Sikirica et al.*, note 26, para. 80.

<sup>63</sup> *Prosecutor v. Krstić*, note 26, para. 28

<sup>64</sup> *Prosecutor v. Tolimir* (IT-05-88/2-T), Judgment, 12 December 2012, para. 782.



that '[e]stablishing the "group" requirement will not always depend on the substantiality requirement alone although it is an essential starting point. It follows in the Court's opinion that the qualitative approach cannot stand alone'<sup>65</sup>.

### 3. Protected groups

Four groups are enumerated as possible targets of the crime of genocide. The drafters rejected proposals aimed at enlarging the scope of the list. Linguistic groups were rejected because it was felt this was redundant. But political, economic and social groups were quite intentionally excluded, because the drafters did not believe they should be protected by the terms of the Convention<sup>66</sup>. During the drafting of the *Rome Statute*, there were unsuccessful efforts to enlarge the definition along these lines<sup>67</sup>. A footnote to the final draft of the Preparatory Committee declares: 'The Preparatory Committee took note of the suggestion to examine the possibility of addressing "social and political" groups in the context of crimes against humanity'<sup>68</sup>. But the issue refused to die, and in debate in the Committee of the Whole at Rome, Cuba argued again for inclusion of social and political groups. Ireland answered stating 'we could improve upon the definition if we were drafting a new genocide convention', but added that this was not the case, and that it was better to stick with the existing definition<sup>69</sup>.

An ICTR Trial Chamber, in the first judicial interpretation of the enumeration, said that it is an *ejusdem generis* list and that all "stable" groups, constituted in a permanent fashion and membership of which is determined by birth' are comprised<sup>70</sup>. The same Trial Chamber, in a subsequent decision, seemed to hedge its remarks somewhat: 'It appears from a reading of the *travaux préparatoires* of the Genocide Convention that certain groups, such as political and economic groups have been excluded from the protected groups, because they are considered to be 'mobile groups' which one joins through individual, political commitment. That would seem to suggest *a contrario* that the Convention was presumably intended to cover relatively stable and permanent groups'<sup>71</sup>. This interpretation appeared to many at the time to be creative and progressive, but it has not been confirmed by the Appeals Chambers of the tribunals, and looks increasingly idiosyncratic as time goes by. Nevertheless, other authorities confirm that the list of groups in the *Convention* definition should receive a large and liberal interpretation. In January 2005, a non-judicial commission of inquiry established by the United Nations to investigate allegations of genocide in Darfur, in western Sudan, wrote that 'the principle of interpretation of international rules whereby one should give such rules their maximum effect (principle of effectiveness, also expressed by the Latin maxim *ut res magis valeat quam pereat*) suggests that the rules on genocide should be construed in such a manner as to give them their maximum legal effects'<sup>72</sup>. The Darfur Commission also noted that 'the approach taken to determine whether a group is a (fully) protected one has evolved from an objective to a subjective standard to take into account that "collective" identities, and in particular ethnicity, are by their very nature social constructs, "imagined" identities entirely dependent on variable and contingent perceptions, and *not* social facts, which are

<sup>65</sup> Supra note 7, 26 Feb. 2007, para. 200.

<sup>66</sup> UN Doc. A/C.6/SR.128. See: Van Schaack (1997) 106 *Yale L.J.* 2259; Leblanc (1988) 13 *YaleJIL* 268; Ambos, *Treatise ICL II* (2014), pp. 5 et seq. For a proposal that 'gender' be included as a protected group, see: Askin, *War Crimes against Women* (1997) 342-344, 392-393. *Contra*: Morris and Scharf, *An Insider's Guide to the International Criminal Tribunal for the Former Yugoslavia*, Vol. I (1995) 88.

<sup>67</sup> 1996 Preparatory Committee I, note 11, pp. 17-18, para. 60, 1996 Preparatory Committee II, p. 57.

<sup>68</sup> Preparatory Committee (Consolidated) Draft, note 12, p. 11, fn. 2. See also note 11: Preparatory Committee Decisions Feb. 1997, p. 3, fn. 2; Zutphen Draft, note 13, p. 17, fn. 11.

<sup>69</sup> Author's personal notes of debate, Committee of the Whole, 17 June 1998.

<sup>70</sup> *Prosecutor v. Akayesu*, note 43, Sep. 1998.

<sup>71</sup> *Prosecutor v. Rutaganda*, Case No. ICTR-96-3-T, Judgment, Trial Chamber, 6 Dec. 1999 (reference omitted). Also: *Prosecutor v. Musema*, Case No. ICTR-96-13-T, Judgment, Trial Chamber, 27 Jan. 2000, para. 162.

<sup>72</sup> Rep. of the I Commission of Inquiry on Darfur to the United Nations Secretary-General, Pursuant to SC Res. 1564 of 18 September 2004, Geneva, 25 Jan. 2005, para. 494.

verifiable in the same manner as natural phenomena or physical facts<sup>73</sup>. Groups must be defined by positive characteristics, and not their absence<sup>74</sup>.

#### 4. ‘as such’

- 18 The words ‘as such’, which appear at the end of the first paragraph of article 6, were added during the drafting of the 1948 *Convention* in order to resolve an impasse between those delegations that felt there should be an explicit motive requirement and those that viewed this as unnecessary and counter-productive<sup>75</sup>. It resolves nothing, however, and leaves the provision ambiguous as to whether or not proof of a genocidal motive is an essential element of the offence. Early judgments of the *ad hoc* tribunals did not address the point. In *Niyitegaka*, the ICTR Appeals Chamber noted that the words ‘as such’ were ‘an important element of genocide’, and that they had deliberately been included in the definition so as to reconcile two diverging approaches with respect to motive. According to the Appeals Chamber, ‘[t]he term “as such” has the *effet utile* of drawing a clear distinction between mass murder and crimes in which the perpetrator targets a specific group because of its nationality, race, ethnicity or religion. In other words, the term “as such” clarifies the specific intent requirement. It does not prohibit a conviction for genocide in a case in which the perpetrator was also driven by other motivations that are legally irrelevant in this context’<sup>76</sup>.

#### 5. Acts of genocide

- 19 The preliminary sentence in article 6 is completed with an enumeration of five acts of genocide. These encompass forms of physical and biological genocide, but not cultural genocide, which was intentionally omitted by the drafters in 1948<sup>77</sup>. The International Court of Justice referred to the decision to exclude cultural genocide when it ruled that the deliberate destruction of the historical, cultural and religious heritage of a protected group was not an act of genocide contemplated by the Convention<sup>78</sup>. The drafters of the Convention also rejected a proposed amendment, from Syria, that would have added a sixth act of genocide, ‘[i]mposing measures intended to oblige members of a group to abandon their homes in order to escape the threat of subsequent ill-treatment’<sup>79</sup>. This would suggest that the drafters did not intend for genocide to cover what is known today as ‘ethnic cleansing’. Yet the Commission of Experts for the former Yugoslavia noted that such practices ‘constitute crimes against humanity and can be assimilated to specific war crimes. Furthermore, such acts could also fall within the meaning of the Genocide Convention’<sup>80</sup>. According to the International Court of Justice, ‘ethnic cleansing’ can be defined as ‘rendering an area ethnically homogeneous by using force or intimidation to remove persons of given groups from the area’<sup>81</sup>. ‘Furthermore, [i]n other words, whether a particular operation described as “ethnic cleansing” amounts to genocide depends on the presence or absence of acts listed in Article II of the Genocide Convention, and of the intent to destroy the group as such. In fact, in the context of the Convention, the term “ethnic cleansing” has no legal significance of its own. That said, it is clear that acts of “ethnic cleansing” may occur in parallel to acts

<sup>73</sup> *Ibid.*, para. 499.

<sup>74</sup> *Supra* note 7, 26 Feb. 2007, paras. 193–197.

<sup>75</sup> For the debate, see: UN Doc. A/C.6/SR.75–76.

<sup>76</sup> *Prosecutor v. Niyitegaka*, note 6, para. 53. Against a reading of motives in genocide by way of the terms ‘as such’ Ambos, *Treatise ICL II* (2014), pp. 39–40 (arguing that this element makes clear that the provision is intended to protect the group as a social entity).

<sup>77</sup> UN Doc. A/C.6/SR.83.

<sup>78</sup> *Supra* note 7, 26 Feb. 2007, para. 344.

<sup>79</sup> UN Doc. A/C.6/234.

<sup>80</sup> Interim Report of the Commission of Experts, UN Doc. S/35374, para. 56.

<sup>81</sup> *Supra* note 7, 26 Feb. 2007, para. 190.

prohibited by Article II of the Convention, and may be significant as indicative of the presence of a specific intent (*dolus specialis*) inspiring those acts<sup>82</sup>.

Of course, the debate about whether or not ‘ethnic cleansing’ is subsumed within the definition of genocide loses its relevance within the context of the ICC because even if it fails to meet the definition, it is undoubtedly covered by article 7, crimes against humanity.

In *Krstić*, the ICTY Trial Chamber said ‘there are obvious similarities between a genocidal policy and the policy commonly known as “ethnic cleansing”<sup>83</sup>. The Trial Chamber seemed to understand that it was necessary to expand the scope of the term ‘destroy’ in the introductory sentence or *chapeau* of the definition of genocide in order to cover ‘acts that involved cultural and other non physical forms of group destruction’<sup>84</sup>. But it also said: ‘Customary international law limits the definition of genocide to those acts seeking the physical or biological destruction of all or part of the group. An enterprise attacking only the cultural or sociological characteristics of a human group in order to annihilate these elements which give to that group its own identity distinct from the rest of the community would not fall under the definition of genocide’<sup>85</sup>. The Appeals Chamber appeared to endorse this approach<sup>86</sup>, as did the International Court of Justice<sup>87</sup>.

In 2005, an ICTR Trial Chamber ruled that genocide occurs when there is deportation or some other forced displacement of populations, even in the absence of evidence of evidence of a plan for physical extermination. Although the Srebrenica massacre involved the summary execution of approximately 7,000 men and boys, the women, children and elderly were moved from the area in buses, raising questions about whether the Bosnian Serb forces really intended the physical extermination of the entire group, or whether they only sought to eliminate persons likely to be enemy combatants. A massacre of prisoners would not, in and of itself, amount to genocide. In *Blagojević*, the ICTY Trial Chamber concluded that the forced displacement of women, children and elderly people amounted to genocide:

‘[T]he Trial Chamber is convinced that the forced displacement of women, children, and elderly people was itself a traumatic experience, which, in the circumstances of this case, reaches the requisite level of causing serious mental harm under Article 4(2)(b) of the Statute. The forced displacement began with the Bosnian Muslim population fleeing from the enclave after a five-day military offensive, while being shot at as they moved from Srebrenica town to Potočari in search of refuge from the fighting. Leaving their homes and possessions, the Bosnian Muslims did so after determining that it was simply impossible to remain safe in Srebrenica town... Having left Srebrenica to escape from the Bosnian Serbs, the Bosnian Muslim population saw that they must move farther than Potočari to be safe. As they boarded the buses, without being asked even for their name, the Bosnian Muslims saw the smoke from their homes being burned and knew that this was not a temporary displacement for their immediate safety. Rather, this displacement was a critical step in achieving the ultimate objective of the attack on the Srebrenica enclave to eliminate the Bosnian Muslim population from the enclave’<sup>88</sup>.

The Trial Chamber concluded the discussion of this point stating that ‘the perpetrators intended that the forcible transfer, and the way it was carried out, would cause serious mental harm to the victims’, and that this fulfilled the requirements of article II of the 1948 definition (set out without significant change in article 4 para. 2 of the ICTY Statute)<sup>89</sup>. The decision is the most liberal and extensive to date, and must be considered by the Appeals Chamber before it can be considered a definitive development in the law. Since *Blagojević*, the Prosecutor of the ICTY has declined to appeal acquittals concerning genocide charges,

<sup>82</sup> *Ibid.* See also Ambos, *Treatise ICL II* (2014), pp. 15–6 (arguing that ‘ethnic cleansing’ does not per se amount to genocide but may do so if the perpetrator acted with the required *dolus specialis*).

<sup>83</sup> *Prosecutor v. Krstić*, note 26

<sup>84</sup> *Id.*, note 26, para. 577.

<sup>85</sup> *Id.*, note 26, para. 580.

<sup>86</sup> *Prosecutor v. Krstić*, note 6, para. 25.

<sup>87</sup> *Supra* note 7, 26 Feb. 2007, para. 190.

<sup>88</sup> *Prosecutor v. Blagojević et al.*, Case No. IT-02-60-T, Judgment, Trial Chamber, 17 Jan. 2005, para. 650.

<sup>89</sup> *Ibid.*, 654.

possibly out of fear that the Appeals Chamber will overrule the expansive interpretation of the Trial Chamber in that case.

- 22 a) ‘Killing members of the group’. The Elements of Crimes state that ‘[t]he term “killed” is interchangeable with the term “caused death”. In the *Akayesu* judgment, an ICTR Trial Chamber found the term “killing” to be too general, in that it might include involuntary homicide as well as intentional killing. It noted that the French term, ‘meurtre’, is more precise, and opted for the latter. But in *Kayishema & Ruzindana*, another Trial Chamber said there was ‘virtually no difference between the term “killing” in the English version and “meurtre” in the French version’<sup>90</sup>. This view was upheld on appeal, the Appeals Chamber noting ‘that if the word “virtually” is interpreted in a manner that suggests a difference, though minimal, between the two terms, it would construe them both as referring to intentional but not necessarily premeditated murder, this being, in its view, the meaning to be assigned to the word “meurtre”’<sup>91</sup>.
- 23 b) ‘Causing serious bodily or mental harm’. The only real issue that arose during the negotiations concerning the enumeration of acts in article 6 of the *Rome Statute* focused on paragraph b, ‘[c]ausing serious bodily or mental harm to members of the group’. The Preparatory Committee Working Group appended a footnote to the provision, stating that ‘[t]he reference to “mental harm” is understood to mean more than the minor or temporary impairment of mental facilities’<sup>92</sup>. This reflects the view of the United States of America which, at the time of ratification of the *Convention*, formulated the following ‘understanding’: ‘(2) That the term “mental harm” in article II (b) means permanent impairment of mental faculties through drugs, torture or similar techniques’<sup>93</sup>. The footnote disappeared in the final version of the *Rome Statute*, of course, but the idea was revived in the Elements of Crimes. They state, in a footnote to the relevant Element: ‘This conduct may include, but is not necessarily restricted to, acts of torture, rape, sexual violence or inhuman or degrading treatment’.
- 24 The ICTR has stated that ‘[c]ausing serious bodily or mental harm to members of the group does not necessarily mean that the harm is permanent and irremediable’. The ICTR made a particularly useful contribution in extending the notion of bodily and mental harm to cover rape and other forms of sexual violence, although this does not mean that every rape committed while genocide is underway can be prosecuted as a genocidal act.<sup>94</sup> The ICJ acknowledged that rape and other crimes of sexual violence could well constitute ‘causing serious bodily or mental harm’, but said that ‘on the basis of the evidence before it, that it has not been conclusively established that those atrocities, although they too may amount to war crimes and crimes against humanity, were committed with the specific intent (*dolus specialis*) to destroy the protected group, in whole or in part, required for a finding that genocide has been perpetrated’<sup>95</sup>. Less helpful is the comment of the ILC, ‘[th]e bodily harm or the mental harm inflicted on members of a group must be of such a serious nature as to threaten its destruction in whole or in part’<sup>96</sup>. This simply confuses the *actus reus* and the *mens rea* of the offence. If bodily harm is caused, and if the intent is to destroy a group in whole or in part, then the crime is made out; whether the harm was sufficient to threaten the destruction of the group is really irrelevant.<sup>97</sup>

<sup>90</sup> *Prosecutor v. Kayishema & Ruzindana*, note 29, para. 104.

<sup>91</sup> *Prosecutor v. Kayishema & Ruzindana*, note 29, para. 151.

<sup>92</sup> Preparatory Committee Decisions Feb. 1997, note 11, p. 3, fn. 4; also: Zutphen Draft, note 13, p. 17, fn. 13.

<sup>93</sup> Note that Robinson, in his seminal study of the *Convention*, considered that mental harm, within the meaning of the Convention (article II), ‘can be caused only by the use of narcotics’. Robinson, *The Genocide Convention: A Commentary* (ix) (1960).

<sup>94</sup> *Rukundo v. Prosecutor* (ICTR-2001-70-A), Judgment, 20 October 2010.

<sup>95</sup> *Supra* note 7, 26 Feb. 2007, para. 319.

<sup>96</sup> ILC, *Code of Crimes against the Peace and Security of Mankind*, UN Doc. A/51/332 (1996), p. 126.

<sup>97</sup> In the same vein Ambos, *Treatise ICL II* (2014), p. 12.

c) ‘inflicting ... conditions of life’. Deliberately inflicting on the group conditions of life calculated to bring about its physical destruction in ‘whole or in part’ is the third act of genocide enumerated in article II of the 1948 *Convention* and, consequently, in article 6 of the *Rome Statute*. According to the ILC, the subparagraph would cover the case of deportation<sup>98</sup>. Other examples might include placing a group of people on a subsistence diet, reducing required medical services below a minimum and withholding sufficient living accommodations, but only to the extent that such measures are imposed with the intent to destroy the group in whole or in part<sup>99</sup>. According to the Rwanda Tribunal, in *Akayesu*, ‘the means of deliberate inflicting on the group conditions of life calculated to bring about its physical destruction, in whole or in part, include, *inter alia*, subjecting a group of people to a subsistence diet, systematic expulsion from homes and the reduction of essential medical services below minimum requirement’<sup>100</sup>. According to the ILC, the subparagraph would cover the case of deportation<sup>101</sup>. Other examples might include placing a group of people on a subsistence diet, reducing required medical services below a minimum and withholding sufficient living accommodations, but only to the extent that such measures are imposed with the intent to destroy the group in whole or in part<sup>102</sup>.

d) ‘prevent births’. Imposing measures intended to prevent births within the group is one of two forms of biological genocide contemplated by article 6. The *travaux préparatoires* of article II para. d of the 1948 *Convention* suggest that such measures could include sterilisation, compulsory abortion, segregation of the sexes and obstacles to marriage<sup>103</sup>. Adolf Eichmann was tried, pursuant to an Israeli law derived from the *Convention*, on a charge of ‘devising measures intended to prevent child-bearing among the Jews’. The Court said ‘he devised measures the purpose of which was to prevent child-bearing among Jews by his instruction forbidding births and for the interruption of pregnancy of Jewish women in the Theresin Ghetto with intent to exterminate the Jewish people’<sup>104</sup>. The Supreme National Tribunal of Poland found the director of the Auschwitz camp responsible for sterilisation and castration, as a form of genocide<sup>105</sup>. Similarly, the United States Military Tribunal condemned Ulrich Greifelt and his associates for sterilisation and other measures aimed at restricting births, which the court qualified as genocide<sup>106</sup>.

During hearings before the ICTY, witness Christine Cleirin, a member of the Commission of Experts, reviewed the issue of sexual assault in the former Yugoslavia. She was asked if rape was used systematically to change the ethnic character of the population, by impregnating women. Ms Cleirin answered: ‘The Commission did not have enough information to verify, let us say, these testimonies, who spoke in these terms. I guess it is possible that both happened’<sup>107</sup>. In the *Akayesu* judgment of 2 September 1998, the Rwanda Tribunal notes: ‘In patriarchal societies, where membership of a group is determined by the identity of the father, an example of a measure intended to prevent births within a group is the case where, during rape, a woman of the said group is deliberately impregnated by a man of another group, with the intent to have her give birth to a child who will consequently not belong to its mother’s group. Furthermore, the Chamber notes that measures intended to prevent

<sup>98</sup> *Ibid.*

<sup>99</sup> Robinson, *The Genocide Convention: A Commentary*, 60, 63–64. Cited with approval by the ILC, *Code of Crimes against the Peace and Security of Mankind*, UN Doc. A/51/332 (1996), p. 126.

<sup>100</sup> *Prosecutor v. Akayesu*, note 5.

<sup>101</sup> *Ibid.*

<sup>102</sup> Robinson, *The Genocide Convention: A Commentary*, 60, 63–64. Cited with approval by the ILC, *Code of Crimes against the Peace and Security of Mankind*, UN Doc. A/51/332 (1996), p. 126. See also Ambos, *Treatise ICL II* (2014), p. 13.

<sup>103</sup> UN Doc. E/623/Add.2; UN Doc. E/447, p. 26; UN Doc. A/C.6/SR.82.

<sup>104</sup> *A. G. Israel v. Eichmann* (D.C.), note 4, para. 244.

<sup>105</sup> *Poland v. Hoess*, (Supreme National Tribunal of Poland), 7 L. Reports of Trials of War Criminals 11, 25 (1948).

<sup>106</sup> *Greifelt et al.*, UNWCC, 13 L. Reports of Trials of War Criminals 1 (U.S. Military Tribunal), p. 17.

<sup>107</sup> *Prosecutor v. Karadžić et al.*, note 3, Transcript of hearing, 2 July 1996, p. 19.

births within the group may be physical, but can also be mental. For instance, rape can be a measure intended to prevent births when the person raped refuses subsequently to procreate, in the same way that members of a group can be led, through threats or trauma, not to procreate<sup>108</sup>.

- 28 e) ‘**Forcibly transferring children**’. The fifth and final act of genocide set out in article 6 is ‘[f]orcibly transferring children of the group to another group’<sup>109</sup>. The Elements of Crimes add: ‘The term ‘forcibly’ is not restricted to physical force, but may include threat of force or coercion, such as that caused by fear of violence, duress, detention, psychological oppression or abuse of power, against such person or persons or another person, or by taking advantage of a coercive environment’. The Elements also define the term ‘children’ as a ‘person or persons ... under the age of 18 years’, adding that ‘[t]he perpetrator knew, or should have known, that the person or persons were under the age of 18 years’. This final provision in the Elements is inconsistent with article 30 of the *Statute*, which requires that a perpetrator have actual knowledge of a relevant circumstance, and for this reason it is arguably *ultra vires*. It is unlikely that it will be of any real consequence, however, because the fifth act of genocide obviously refers to the transfer of children that result in a loss of their original identity as a group. While this can occur to young children, it seems highly improbable that it could ever apply to adolescents, and thus the issue of mistake of fact about the age of a teenage child, resulting from a lack of due diligence, would never arise.
- 29 The provision in the *Convention* concerning forcible transfer of children was the result of a proposal by Greece during the final stages of drafting of the 1948 *Convention*<sup>110</sup>, with some delegates arguing of the danger that it could be applied to the evacuation of children from a theatre of war<sup>111</sup>. According to the ILC, ‘[t]he forcible transfer of children would have particularly serious consequences for the future viability of a group as such. Although the present article does not extend to the transfer of adults, this type of conduct in certain circumstances could constitute a crime against humanity ... or a war crime ... Moreover, the forcible transfer of members of a group, particularly when it involves the separation of family members, could also constitute genocide under subparagraph (c) [inflicting conditions of life ...]’<sup>112</sup>. An ICTR Trial Chamber considered that the objective of the provision is not only to sanction a direct act of forcible physical transfer, but also to sanction acts of threats or trauma which would lead to the forcible transfer of children from one group to another<sup>113</sup>.

## C. Special remarks

### 1. Individual responsibility and participation

- 30 The genocide provisions of the statutes of the *ad hoc* tribunals reproduce the text not only of article II of the *Convention* but also of article III. The latter text explains that genocide may be committed not only by the principal offender, but also in the form of complicity, conspiracy, attempt and direct and public incitement. Some felt that the same approach should be employed in the *Rome Statute*. However, this would have introduced a degree of redundancy, in that other provisions of the *Statute* also deal with secondary participation and the inchoate offences of conspiracy, incitement and attempt. Indeed, the problem exists in the *ad hoc* statutes. At the Rome Conference, the Working Group on General Principles

<sup>108</sup> *Prosecutor v. Akayesu*, note 5.

<sup>109</sup> Crit. Ambos, *Treatise ICL II* (2014), p. 14.

<sup>110</sup> UN Doc. A/C.6/242.

<sup>111</sup> UN Doc. A/C.6/SR.82 (Lachs, Poland).

<sup>112</sup> *Supra* note 78, p. 126.

<sup>113</sup> *Prosecutor v. Akayesu*, note 5.



agreed to omit article III of the *Convention* from the definition of genocide, but on the condition that its provisions were accurately reflected in article 25, dealing with individual criminal responsibility. This result was achieved only partially. The *Statute's* provisions concerning complicity and attempt appear to cover the same ground as the corresponding parts of article III of the *Genocide Convention*<sup>114</sup>. Article III (c) of the *Convention* creates an offence of incitement that is distinct from incitement as a form of complicity, in that 'direct and public incitement' within the meaning of the *Convention* may be created even if nobody is in fact incited<sup>115</sup>. During drafting of the *Convention*, the terms 'direct and public' were included so as to limit the scope of the offence, and thereby appease States that were concerned about threats to freedom of expression. The *Rome Statute's* drafters were alive to the problem, and it was for this reason that article 25 para. 3 lit. e, specifies individual criminal liability for a person who '[i]n respect of the crime of genocide, directly and publicly incites others to commit genocide'. Suggestions that inchoate incitement be extended to other crimes within the subject-matter jurisdiction of the Court were rejected.

The Rome Conference falls short of its aim of incorporating article III of the *Genocide Convention* within the *Statute* with respect to 'conspiracy', which is set out in article III (b). Common law and Romano-Germanic traditions have different approaches to the crime of conspiracy<sup>116</sup>. Under common law, it is an inchoate offence, completed when two or more persons conspire to commit an offence, whether or not that offence is actually committed. The Romano-Germanic codes treat conspiracy as a form of complicity, which is only committed when the underlying crime is also committed or attempted. The drafters of the *Genocide Convention* debated the issue, and opted for the common law approach<sup>117</sup>. Yet article 25 para. 3 (d) of the *Rome Statute* envisions a form of conspiracy involving 'the commission or attempted commission of such a crime by a group of persons acting with a common purpose', thus rejecting the common law approach.<sup>118</sup> There was no real debate on this point, and the inconsistency with the terms of the *Genocide Convention* would appear to be inadvertent<sup>119</sup>.

Pursuant to article 28 of the *Rome Statute*, genocide may be committed by a military commander or civilian superior who knew or should have known that subordinates were committing or about to commit such crimes. This suggests that it is possible to participate in the commission of genocide even despite real knowledge that the crime is being committed. One judgment of the ICTY questions the compatibility of the concept of command responsibility with the specific intent required for conviction of the crime of genocide<sup>120</sup>. Another Trial Chamber has held, in a judgment that can be readily transposed to the *Rome Statute*, that as a matter of statutory interpretation, a superior can commit genocide on the basis of command responsibility. Accordingly, 'the *mens rea* required for superiors to be held responsible for genocide pursuant to Article 7(3) is that the superiors knew or had reason to know that their subordinates (1) were about to commit or had committed genocide and (2) that the subordinates possessed the requisite specific intent'<sup>121</sup>.

<sup>114</sup> For complicity, subparagraphs (b), (c) and (d) of article 25 para. 3 of the *Statute* cover, somewhat redundantly, what article III (e) of the *Convention* accomplishes with a single word, 'complicity'. Subparagraph (f) deals with attempt, and spells out in some detail the difficult issue of the threshold for an attempt that article III (d) of the *Convention* leaves to the discretion of the court. See for more details the commentary on article 25 by Kai Ambos.

<sup>115</sup> An interpretation of article III (c) of the *Convention* that has been endorsed by the ICTR, in *Prosecutor v. Akayesu*, note 5.

<sup>116</sup> Pradel, *Droit pénal comparé* (1995) 240.

<sup>117</sup> UN Doc. A/C.6/SR.84. See: *Prosecutor v. Gatete* (ICTR-00-61-A), Dissenting Opinion of Judge Agius, 9 October 2012, paras. 4–5.

<sup>118</sup> See also Ambos, *Treatise ICL I* (2013), p. 166.

<sup>119</sup> UN Doc. A/CONF.183/C.1/WGPP/L.3.

<sup>120</sup> *Prosecutor v. Stakić*, note 38, para. 92.

<sup>121</sup> *Prosecutor v. Brđanin*, Case No. IT-99-36-T, Judgment, Trial Chamber, 1 Sep. 2004, para. 721. Crit. Ambos, *Treatise ICL II* (2014), pp. 37–8.

## 2. Defences

- 33 Article IV of the *Genocide Convention* excludes any form of sovereign immunity or defence of act of State, something the *Rome Statute* accomplishes in article 27. The drafters of the *Convention* were unable to agree on exclusion of the defence of superior orders, and as a result there is no provision to this effect. The *Rome Statute* also allows the defence of superior orders, but article 33 imposes as a condition that the order not be manifestly illegal, adding, in paragraph 2, the '[f]or the purposes of this article, orders to commit genocide or crimes against humanity are manifestly unlawful'.

## 3. Relationship to crimes against humanity

- 34 There is an obvious overlap between the definitions of genocide and crimes against humanity, set out in articles 6 and 7 respectively of the *Rome Statute*. Should charges proceed on the basis of both provisions, judges of the ICC will have to decide whether to allow cumulative convictions. At the *ad hoc* tribunals, cumulative charging, in some cases for both genocide and crimes against humanity, has been allowed. Indeed, it would be fair to describe this as a general practice of the Prosecutor. According to the Appeals Chamber, '[c]umulative charging is to be allowed in light of the fact that, prior to the presentation of all of the evidence, it is not possible to determine to a certainty which of the charges brought against an accused will be proven. The Trial Chamber is better poised, after the parties' presentation of the evidence, to evaluate which of the charges may be retained, based upon the sufficiency of the evidence'<sup>122</sup>. This is not considered to violate the rule against double jeopardy<sup>123</sup>. Of course, the matter is reviewed at the conviction stage, when special rules apply to multiple convictions based on the same facts. There, the concern is that cumulative convictions create 'a very real risk of [...] prejudice' to the accused. Such persons suffer the stigma inherent in being convicted of an additional crime for the same conduct. In a more tangible sense, there may also be consequences such as losing eligibility for early release under the law of the state enforcing the sentence<sup>124</sup>. The ICTR Appeals Chamber, in *Musema*, confirmed that 'reasons of fairness to the accused and the consideration that only distinct crimes may justify multiple convictions, lead to the conclusion that multiple criminal convictions entered under different statutory provisions but based on the same conduct are permissible only if each statutory provision involved has a materially distinct element not contained in the other'<sup>125</sup>. An element is considered to be 'materially distinct' if it requires proof of a fact not required by the other offence. In articulating the approach, the *ad hoc* tribunals have relied heavily on the *Blockburger* decision of the Supreme Court of the United States<sup>126</sup>.

<sup>122</sup> *Prosecutor v. Delalić et al.*, Case No. IT-96-21-A, Judgment, Appeals Chamber, 20 Feb. 2001, para. 400. Also: *Prosecutor v. Ntakirutimana et al.*, Case No. ICTR-96-10 & ICTR-96-17-T, Judgment, Trial Chamber, 21 Feb. 2003, paras. 863–864; *Prosecutor v. Nahimana et al.*, Case No. ICTR-99-52-T, Judgment, Trial Chamber, 3 Dec. 2003, para. 1089; *Prosecutor v. Rutaganda*, note 69, para. 117.

<sup>123</sup> *Prosecutor v. Krnojelac*, Case No. IT-97-25-PT, Decision on the Defence Preliminary Motion on the Form of the Indictment, 24 Feb. 1999, paras. 8–10.

<sup>124</sup> *Prosecutor v. Delalić et al.*, note 122, separate and Dissenting Opinion of Judge David Hunt and Judge Mohamed Bennouna, para. 23. These views were endorsed by a unanimous Appeals Chamber in *Prosecutor v. Kunarac et al.*, note 28, para. 169. On the subject of cumulative convictions, see: Stuckenberg, in: Fischer et al. (eds.) *International and National Prosecution of Crimes under International Law, Current Developments* (2001) 559; Valabhji (2002) 10 *Tulane J.I. & Comp.L.* 185; Bogdan (2002) 3 *Melbourne J.I.L.* 1.

<sup>125</sup> *Prosecutor v. Musema*, Case No. ICTR-96-13-A, Judgment, Appeals Chamber, 16 Nov. 2001, paras. 369–370. Also: *Prosecutor v. Delalić et al.*, note 122, para. 412; *Prosecutor v. Kordić & Čerkez*, note 28, para. 1032; *Prosecutor v. Kunarac et al.*, para. 168; *Prosecutor v. Jelisić*, note 6, para. 82; *Prosecutor v. Kupreškić et al.*, Case No. IT-95-16-A, Judgment, Appeals Chamber, 23 Oct. 2001, paras. 387–388.

<sup>126</sup> ('The applicable rule is that, where the same act or transaction constitutes a violation of two distinct statutory provisions, the test to be applied to determine whether there are two offenses or only one is whether each provision requires proof of an additional fact which the other does not').

With respect to cumulative convictions for genocide and crimes against humanity, there is much authority for the proposition that genocide is an aggravated form of crimes against humanity<sup>127</sup>. But it has been held that convictions for both genocide and for crimes against humanity are permitted because they have materially distinct elements<sup>128</sup>. In *Musema*, the ICTR Appeals Chamber held that convictions for genocide and for extermination as a crime against humanity, based on the same set of facts, are permissible<sup>129</sup>. According to the Appeals Chamber, genocide requires proof of intent to destroy, in whole or in part, a national, ethnic, racial or religious group, whereas the crime against humanity of extermination requires proof that the crime was committed as part of a widespread or systematic attack on a civilian population<sup>130</sup>. The ICTY Appeals Chamber upheld and developed this conclusion in *Krstić*, overturning the Trial Chamber that had refused to enter cumulative convictions for genocide and crimes against humanity because it considered that 'both require that the killings be part of an extensive plan to kill a substantial part of a civilian population'<sup>131</sup>. The Appeals Chamber said that such an 'extensive plan' had been held not to constitute an element of either genocide or crimes against humanity. Moreover, according to the Appeals Chamber, genocide need not be committed as part of a widespread or systematic attack, nor must genocide be limited to a 'civilian population'<sup>132</sup>.

<sup>127</sup> For the various authorities, see: Schabas, *Genocide in International Law* (2<sup>nd</sup> ed. 11 (2009).

<sup>128</sup> *Prosecutor v. Musema*, note 125, paras. 369–370; *Prosecutor v. Ntakirutimana et al.*, note 101, para. 864; *Prosecutor v. Nahimana et al.*, para. 1090. See: Palombino (2005) 3 JICJ 778.

<sup>129</sup> *Prosecutor v. Musema*, note 125, paras. 369–370.

<sup>130</sup> *Prosecutor v. Musema*, note 125, para. 366.

<sup>131</sup> *Prosecutor v. Krstić*, note 26, paras. 219–227; *Prosecutor v. Kayishema & Ruzindana*, note 29, para. 577–578, 590.

<sup>132</sup> *Prosecutor v. Krstić*, note 6, paras. 219–227.

## Article 7

### Crimes against humanity

(1) For the purpose of this Statute, 'crime against humanity' means any of the following acts when committed as part of a widespread or systematic attack directed against any civilian population, with knowledge of the attack:

- (a) Murder;
- (b) Extermination;
- (c) Enslavement;
- (d) Deportation or forcible transfer of population;
- (e) Imprisonment or other severe deprivation of physical liberty in violation of fundamental rules of international law;
- (f) Torture;
- (g) Rape, sexual slavery, enforced prostitution, forced pregnancy, enforced sterilisation, or any other form of sexual violence of comparable gravity;
- (h) Persecution against any identifiable group or collectivity on political, racial, national, ethnic, cultural, religious, gender as defined in paragraph 3, or other grounds that are universally recognised as impermissible under international law, in connection with any act referred to in this paragraph or any crime within the jurisdiction of the Court;
- (i) Enforced disappearance of persons;
- (j) The crime of apartheid;
- (k) Other inhumane acts of a similar character intentionally causing great suffering, or serious injury to body or to mental or physical health.

(2) For the purpose of paragraph 1:

- (a) 'Attack directed against any civilian population' means a course of conduct involving the multiple commission of acts referred to in paragraph 1 against any civilian population, pursuant to or in furtherance of a State or organisational policy to commit such attack;
- (b) 'Extermination' includes the intentional infliction of conditions of life, *inter alia* the deprivation of access to food and medicine, calculated to bring about the destruction of part of a population;
- (c) 'Enslavement' means the exercise of any or all of the powers attaching to the right of ownership over a person and includes the exercise of such power in the course of trafficking in persons, in particular women and children;
- (d) 'Deportation or forcible transfer of population' means forced displacement of the persons concerned by expulsion or other coercive acts from the area in which they are lawfully present, without grounds permitted under international law;
- (e) 'Torture' means the intentional infliction of severe pain or suffering, whether physical or mental, upon a person in the custody or under the control of the accused; except that torture shall not include pain or suffering arising only from, inherent in or incidental to, lawful sanctions;
- (f) 'Forced pregnancy' means the unlawful confinement of a woman forcibly made pregnant, with the intent of affecting the ethnic composition of any population or carrying out other grave violations of international law. This definition shall not in any way be interpreted as affecting national laws relating to pregnancy;
- (g) 'Persecution' means the intentional and severe deprivation of fundamental rights contrary to international law by reason of the identity of the group or collectivity;
- (h) 'The crime of apartheid' means inhumane acts of a character similar to those referred to in paragraph 1, committed in the context of an institutionalised regime of systematic oppression and domination by one racial group over any other racial group or groups and committed with the intention of maintaining that regime;

(i) 'Enforced disappearance of persons' means the arrest, detention or abduction of persons by, or with the authorisation, support or acquiescence of, a State or a political organisation, followed by a refusal to acknowledge that deprivation of freedom or to give information on the fate or whereabouts of those persons, with the intention of removing them from the protection of the law for a prolonged period of time.

(3) For the purpose of this Statute, it is understood that the term 'gender' refers to the two sexes, male and female, within the context of society. The term 'gender' does not indicate any meaning different from the above.

Directly relevant Elements of Crimes: Article 7: Crimes against humanity.

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## A. Introduction/General remarks

- 1 The definition of crimes against humanity has evolved and become further clarified since this concept first received explicit international legal recognition in the *St. Petersburg Declaration of 1868* limiting the use of explosive or incendiary projectiles as 'contrary to the laws of humanity'<sup>1</sup>. The concept received further recognition when the First Hague Peace

<sup>1</sup> Declaration Renouncing the Use, in Time of War, of Explosive Projectiles under 400 Grammes Weight, reprinted in Roberts and Guelff (eds.), *Documents on the Laws of War* (2000) 53. (The parties agreed to draw up



Conference in 1899 unanimously adopted the Martens Clause as part of the Preamble to the *Hague Convention respecting the laws and customs of war on land*<sup>2</sup>. The Martens Clause has been incorporated virtually unchanged in most subsequent humanitarian law treaties<sup>3</sup>. The first formal reference to some of the crimes which would be included in the concept of crimes against humanity was given in the *Declaration of France, Great Britain and Russia* on 24 May 1915 denouncing the massacres by the Ottoman Empire of Armenians in Turkey as ‘crimes against humanity and civilisation for which all the members of the Turkish Government will be held responsible together with its agents implicated in the massacres’<sup>4</sup>. The novelty was, of

additional instruments ‘in view of future improvements which science may effect in the armament of troops, in order to maintain the principles which they have established, and to conciliate the necessities of war with the laws of humanity’). There were earlier uses of the phrase, but often the link with the twentieth century concept of crimes against humanity is either tenuous or non-existent. For example, in 1794, Maximilien de Robespierre called Louis XVI a ‘criminal toward humanity’, but most of ‘crimes’ of the ‘tyrant’ – primarily his conspiracy in league with foreign countries against the government that deposed him, were not specifically identified in his speech and are far removed from the current understanding of what constitutes crimes against humanity. M. M. I. Robespierre, ‘Against Granting the King a Trial’ 3 Dec. 1792, reprinted in *The World’s Famous Orations: Continental Europe* (1906), 380 <<http://www.bartleby.com/268/7/23.html>> accessed 06 August 2014). More likely, the concept owes more to natural law thinking in some of the early writings on international law, such as Grotius’s views on the natural law limits on the use of armed force in *De Jure Belli Ac Pacis* (On the Law of War and Peace) and Emmerich de Vattel’s concept of ‘offices of humanity’, binding men and nations alike, which were founded on the laws of nature, *The Law of Nations or the Principles of Natural Law* (1758), Book II, Ch. 1, § 2. In the early 19<sup>th</sup> century, a U.S. Attorney General, citing Grotius, declared that acts of ‘extreme atrocity’ involved ‘crimes against mankind’. 1 Opinion. Attorney General (1821) 509, 513. The Reverend Theodore Parker in 1854 called the US Fugitive Slave Bill a new crime against humanity. *The New Crime against Humanity, A Sermon Preached at the Music Hall*, in Boston, on Sunday 4 June 1854. In 1874, the American editor and leading proponent of public reform, G.W. Curtis, also called slavery a ‘crime against humanity’, in: Norton (ed.), *Orations and Addresses of George William Curtis* (1894) 208. In 1906, in an article that was not published until 1921, R. Lansing, later U.S. Secretary of State and participant in the Versailles Peace Conference (see note 6), stated that the slave trade, along with piracy, was an example of a ‘crime against humanity’ over which any state could exercise universal jurisdiction. Lansing (1921) 15 *AJIL* 13, 25.

<sup>2</sup> Hague Convention respecting the laws and customs of war on land of 1899, Preamble (‘Until a more complete code of the laws of war is issued, the High Contracting Parties think it right to declare that, in cases not included in the Regulations adopted by them, populations and belligerents remain under the protection and empire of the principles of international law, as they result from the usages established between civilised nations, from the laws of humanity and the requirements of the public conscience’). The Martens Clause is named after the Russian diplomat who drafted it, see Bassiouni, *Crimes against Humanity: Historical Evolution and Contemporary Application* (2011) 88, fn. 7; Lippman (1997) 17 *BCTHirdWorldLJ* 171, 173; Meron, *The Humanisation of International Law* (2006) 16 *et seq.*; Hankel, in: Hankel (ed.), *Die Macht und das Recht: Beiträge zum Völkerrecht und Völkerstrafrecht am Beginn des 21. Jahrhunderts* (2008) 414, 428-9; Salter and Eastwood (2011) 2 *JHumLStud* 216, 251 *et seq.*; *id.*, in: Paul Behrens and Ralph Henham, (eds.), *Elements of Genocide* (2013) 20.

<sup>3</sup> See, e.g., 1907 Hague Convention (IV) Respecting the Laws and Customs of War on Land, Preamble, para. 8; Convention for the Amelioration of the Condition of the Wounded and Sick in Armed Forces in the Field (First Geneva Convention), 12 Aug. 1949, 6 UST 3114, 75 UNTS 31, article 63; Convention for the Amelioration of the Condition of the Wounded, Sick and Shipwrecked Members of Armed Forces at Sea (Second Geneva Convention), 12 Aug. 1949, 6 UST 3217, 75 UNTS 85, article 62; Convention Relative to the Protection of Prisoners of War (Third Geneva Convention), 12 Aug. 1949, 6 UST 3316, 75 UNTS 135, article 142; Convention Relative to the Protection of Civilian Persons in Time of War (Fourth Geneva Convention), 6 UST 3516, 75 UNTS 287, article 158; Add. Prot. to the Geneva Conventions of 12 Aug. 1949, and relating to the Protection of Victims of International Armed Conflicts (Add. Prot. I), article 1 para. 2; Add. Prot. to the Geneva Conventions of 12 Aug. 1949, and relating to the Protection of Victims of Non-International Armed Conflicts (Add. Prot. II), Preamble.

<sup>4</sup> Declaration of France, Great Britain and Russia, 24 May 1915, quoted in Schwelb (1946) 23 *BYbIL* 178, 181. The date of 28 May 1915 in this article is a misprint. Dadrian (1989) 14 *YaleJIL* 221, 262, fn. 129. The history of the drafting of the Declaration remains to be fully explored, but the concept appears to reflect in part the similar justifications advanced by Western countries for earlier diplomatic protests and military humanitarian interventions to protect minorities in Lebanon, Romania and Turkey. See *U.S. v. Altstötter (Justice Trial)*, Judgment, U.S. Military Tribunal, Nuremberg, Germany, 4 Dec. 1947, 4 LRTWC 1 (HMSO 1947). According to one account, the Declaration was adopted at the initiative of Russia, over the initial reluctance of Great Britain. Ara Sarafian, *23 May 1915 Declaration by British Government*, Gomidas Institute Notes ([http://gomidas.org/NOTES\\_AND\\_Studies/23\\_May\\_1915\\_Declaration.pdf](http://gomidas.org/NOTES_AND_Studies/23_May_1915_Declaration.pdf)), p. 2. According to this note, the Russian draft (FO371/2488/58387) used the phrase ‘crimes committed by Turkey against Christianity and civilisation’, but after objections by France and Great Britain that this wording would offend their Muslim citizens, the British government dropped the phrase

course, that the crimes were committed by citizens of a state against their own fellow citizens, not against those of another state<sup>5</sup>. The 1919 Versailles Peace Conference Commission supported individual criminal responsibility for violations of 'the laws of humanity', including murders and massacres, systematic terrorism, putting hostages to death, torture of civilians, deliberate starvation of civilians, rape, abduction of girls and women for the purposes of enforced prostitution, deportation of civilians, internment of civilians under inhuman conditions, forced labour of civilians in connection with the military operations of the enemy, imposition of collective penalties and deliberate bombardment of undefended places and hospitals<sup>6</sup>. In 1920, Turkey agreed in the *Treaty of Sèvres* to bring to justice those responsible for such crimes against Armenians which were committed after the outbreak of the First World War and recognised the concurrent jurisdiction of the courts of the Allies over these crimes; it also conducted several trials of Turkish officials for these crimes<sup>7</sup>. Historically, the relevant conduct has been understood broadly, perhaps even going so far as to treat crimes against humanity in an equivalent manner to human rights and encompassing a wide range of conduct, performed by either state or non-state actors, and in times of war or peace<sup>8</sup>. In any case, it is fair to argue in light of the instruments just mentioned that crimes against humanity had already been embedded in customary international law before the Nuremberg trials<sup>9</sup>.

- 2 Since the Second World War, crimes against humanity have been repeatedly recognised in international instruments as part of international law<sup>10</sup>, their definition is, however, vague

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'against Christianity and civilisation', while the French and Russian versions used the phrase 'against humanity and civilisation' (FO371/2488/65759); *ibid.*, p. 2. See also *History of the United Nations War Crimes Commission and the Development of the Laws of War* (1948) 35; Cerone (2008) 14 *NewEngJ&Compl* 191–192.

<sup>5</sup> Similarly, in the Nuremberg trials 'crimes against humanity' were dealt with as crimes committed by Germans against fellow Germans; cf. Article 6 (c) of the *Charter of the International Military Tribunal, annexed to the London Agreement* (Nuremberg or IMT Charter), 8 Aug. 1945, article 6 (c), as amended by the Protocol to Agreement and Charter, London, 6 Oct. 1945; see also Clark, in: Ginsburgs and Kudriavtsev (eds.), *The Nuremberg Trial and International Law* (1990) 177, 195–198.

<sup>6</sup> Commission of the Responsibility of the Authors of the War and on Enforcement of Penalties, Report Presented to the Preliminary Peace Conference (1919 Peace Conference Commission Report), Versailles, Mar. 1919, Conference of Paris, Carnegie Endowment for International Peace, Division of International Law, Pamphlet No. 32, Annex., which recommended the establishment of a high tribunal to try persons belonging to enemy countries who were guilty of 'offences against the laws and customs of war or the laws of humanity'. Somewhat ironically, in the light of his then unpublished article of 1906 (see note 1), Robert Lansing, as an American member of the Commission, joined his fellow US member, James Brown Scott and the two Japanese members in dissenting from this conclusion on the ground that the particular acts listed were not recognised as crimes under international law.

<sup>7</sup> The Treaty of Peace Between the Allied Powers and Turkey (Treaty of Sèvres), 10 Aug. 1920, articles 226, 230, reprinted in (1921) 15 *AJIL* 179 (Supp.). Although this treaty was signed by Turkey and 21 other countries, it was never put into effect and was replaced by the Treaty of Lausanne, which did not provide for such prosecutions. See Treaty of Peace Between the Allied Powers and Turkey (Treaty of Lausanne), 24 July 1923, 28 LNTS 11, reprinted in (1924) 18 *AJIL* 1 (Supp.). For an account of these trials, see Dadrian, 291–334, note 4.

<sup>8</sup> Cf. Paust, in: *id.* et al., *International Criminal Law: Cases and Materials* (2013) 777.

<sup>9</sup> Cf. Robinson (1999) 93 *AJIL* 43, 44.

<sup>10</sup> The relevant provisions adopted before 1998 include: Nuremberg Charter note 5, article 6 (c); article II para. 1 (c) of Allied Control Council Law No. 10, Punishment of persons guilty of war crimes, crimes against peace and against humanity (Allied Control Council Law No. 10), 20 Dec. 1945; article II para. 1 (c), Official Gazette of the Control Council for Germany, No. 3, Berlin, 31 January 1946; article 5 (c) of the *Charter of the International Military Tribunal for the Far East, Tokyo (Tokyo Charter)*, article 5 (19 January 1946, T.I.A.S. 1589); principle VI (c) of the 1950 *Principles of International Law Recognised in the Charter of the Nuremberg Tribunal and in the Judgment of the Tribunal* (Nuremberg Principles), ILC Report on Principles of the Nuremberg Tribunal, 29 July 1950, 5 UN GAOR Supp. (No. 12) 11, UN Doc. A/1316 (1950); article 2 para. 10 (inhuman acts) of the 1954 ILC Draft Code; the 1968 Convention on the Non-Applicability of Statutory Limitations for War Crimes and Crimes against Humanity, adopted by GA Res. 2391 (XXIII) of 26 Nov. 1968, article 1 (b); the 1973 International Convention on the Suppression and Punishment of the Crime of Apartheid (Apartheid Convention), adopted in GA Res. 3068 (XXVIII), 30 Nov. 1973; article 5 of the 1993 *ICTY Statute*, article 3 of the 1994 *ICTR Statute* and article 18 of the 1996 ILC Draft Code. Since the Rome Statute was adopted, crimes against humanity have been included in UNTAET Regulation 2000/15 (establishing the Special Panels for Serious Crimes, Dili, East Timor), 6 June 2000, article 5; Statute of the Special Court for Sierra Leone (*Sierra Leone*

and, in many respects, inconsistent with regard for instance, the different approaches as to whether the crimes against humanity are linked to an armed conflict<sup>11</sup>, or are to be considered as mere peace crimes<sup>12</sup>. The scope of these definitions and their interpretation by international and national tribunals and courts will be discussed below.

## B. Analysis and interpretation of elements

### I. Paragraph 1: List of crimes

#### 1. Chapeau

Article 7 represents both a ‘codification’ and a ‘progressive development’ of international law within the meaning of article 13 UN Charter<sup>13</sup>. It unites the distinct legal features which may be thought of as the ‘common law’ of crimes against humanity<sup>14</sup>. The *chapeau* of paragraph 1 of article 7 establishes the jurisdictional threshold of the Court over crimes against humanity under the *Statute*, while subparagraph 2 (a) defines this threshold in greater detail (see mn 87–93)<sup>15</sup>. It captures the essence of such crimes, namely that they are acts which occur during a widespread or systematic attack on any civilian population in either times of war or peace. The drafting history of this provision reveals that little consensus existed in respect of most of these elements before the Diplomatic Conference in Rome. Thus, a more in-depth scrutiny going beyond the mere analysis of the positive law is required in order to understand the *rationale* of crimes against humanity. Historical facts suggest conceptualizing them as state crimes in a broad sense<sup>16</sup>. This definition is problematic, however, for two reasons. First, it is limited to the classical relation between a state and its citizens residing in its own territory, leaving out other extraterritorial state-citizen relations and relations between a state and foreign citizens;<sup>17</sup> second, it does not account for non-state actors, at least not explicitly. Replacing ‘state’ by ‘non-state actor’ to accommodate the concept to the now recognised standing of the latter as a potential perpetrator of crimes against humanity seems inadequate, however, since there is clearly a difference between a state’s obligation under international law to guarantee the rule of law and protect its citizens and a similar (emerging) duty of a non-state actor over the territory under its control. Therefore, a concept of crimes against humanity which does not deny their eminent political connotation, but yet downplays the focus on the entity behind these crimes is more

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*Statute*), article 2; Cambodian Law on the Establishment of the Extraordinary Chambers, with inclusion of amendments as promulgated on 27 Oct. 2004 (NS/RKM/1004/006), article 5. The increase in the number of acts expressly listed as crimes against humanity is less an expansion of the scope of crimes against humanity than the giving of more precise definitions to conduct that was or would have been considered in the category of other inhumane acts under the Nuremberg Charter, note 6, or were identified as such, in the 1919 Peace Conference Commission Report.

<sup>11</sup> See *ICTY Statute*, article 5, note 10, and article 6 (c) *IMT Statute*, note 5.

<sup>12</sup> See *ICTR Statute* article 3, note 10.

<sup>13</sup> See also Clark, in: *id.*, Feldbrugge and Pomorski (eds.), *International and National Law in Russia and Eastern Europe* (2001) 139, 139–156.

<sup>14</sup> Luban (2004) 29 *YaleJIL* 85, 93 *et seq.*, summarizing these legal features as follows (at 108): ‘crimes against humanity are international crimes committed by politically organised groups acting under color of policy, consisting of the most severe and abominable acts of violence and persecution, and inflicted on victims because of their membership in a population or group rather than their individual characteristics’.

<sup>15</sup> The 1994 ILC Draft Statute for an International Criminal Court did not include any definition for crimes against humanity, which had been proposed as a crime within the Court’s jurisdiction in article 20.

<sup>16</sup> Cf. Richard Vernon’s classical definition in Vernon (2002) 10 *JPolPhilosophy* 231, 233, 242, 245: ‘a moral inversion, or travesty, of the state’, ‘an abuse of state power involving a systematic inversion of the jurisdictional resources of the state’, ‘a systematic inversion: powers that justify the state are, perversely, instrumentalised by it, territoriality is transformed from a refuge to a trap, and the modalities of punishment are brought to bear upon the guiltless’.

<sup>17</sup> See the convincing criticism of Luban (2004) 29 *YaleJIL* 85, 94, fn. 28.

convincing<sup>18</sup>. ‘Crimes against humanity’, understood in this way, intend to provide penal protection against the transgression of the most basic laws protecting our individuality as political beings and our social entity as members of political communities. They protect both, being international crimes, the collective legal interests of international peace and security<sup>19</sup>, but also more concrete individual legal interests such as life, bodily integrity, liberty, and personal autonomy and thus ultimately human dignity<sup>20</sup>. That also answers another unresolved question since the inception of the concept of crimes against humanity, namely whether they were crimes that were particularly inhumane or were crimes against a collective body of individuals. Probably the best answer is that they are both<sup>21</sup>, a double assault on individuality (the individual and political ‘quality of being human’, ‘humanness’) and groups (‘the set of individuals’, ‘sociability’, ‘humankind’)<sup>22</sup>. There was no fundamental disagreement over the prerequisite that the acts must be committed as part of an attack on any civilian population<sup>23</sup>. However, it was unresolved whether these acts needed to take place during armed conflict, and if they had to occur on discriminatory grounds<sup>24</sup>. It is evident from the *chapeau* of article 7 that the State delegates finally decided not to include either of these requirements<sup>25</sup>.

- 4 Another point of divergence arose over whether the attack had to be both widespread and systematic, or only one or the other<sup>26</sup>. It seems to clearly follow from the *chapeau* that the matter was resolved in favour of the alternative formulation. Indeed, this was also the approach taken by the UNWCC speaking of crimes ‘which either by their magnitude and savagery or by their large number or by the fact that a similar pattern was applied ... endangered the international community or shocked the conscience of mankind’<sup>27</sup>. The concern had always been to exclude isolated and random acts, and ordinary crimes under national law, from the ambit of the Court’s jurisdiction over crimes against humanity<sup>28</sup>. This has certainly been

<sup>18</sup> Ambos, *Treatise on ICL II* (2014) 47, fn. 14 and main text.

<sup>19</sup> See the Preamble of the ICC Statute, para. 3.

<sup>20</sup> Further on the protected legal interests, see Ambos, *Treatise on International Criminal Law* (2014) 48–49, with further references; Werle and Jessberger, *Principles of International Criminal Law* (2014) 333; Satzger, *International and European Criminal Law* (2012) § 14, mn 32; *id.*, *Internationales und europäisches Strafrecht* (2013) § 16, mn 32.

<sup>21</sup> The following two examples suffice to illustrate the divide. On the one hand J. G. Barsegov, a member of the International Law, noted during the 1989 session that ‘[i]n Russian as in English and French, the term ‘humanity’ could mean both ‘mankind’ and the moral concept whose antonym was ‘inhumanity’. That terminological ambiguity clearly showed that there was a conceptual problem. In order to remove the ambiguity, it was necessary to go back to the sources. ...’ [See in the 24 May 1915 Declaration by France, Great Britain and Russia, note 4] the crimes in question had been characterised as ‘crimes against humanity’ in the sense of ‘crimes against mankind’. 1 *YbILC* 10 (1989) (overlooking the use of the term ‘laws of humanity’ in the St. Petersburg Declaration of 1868, note 1, and, the Martens Clause of 1899, note 2 which can be seen as emphasizing the concept of humaneness rather than the idea of an attack against ‘mankind’. On the other hand, Cassese emphasizes the former concept: Cassese, in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 353, 360 (‘They are particularly odious offences in that they constitute a serious attack on human dignity or a grave humiliation or degradation of one or more human beings’).

<sup>22</sup> See Luban (2004) 29 *YaleJIL* 85, 86 *et seq.*; Vernon (2002) 10 *JPol’lPhilosophy* 231, 237 *et seq.*, while critical of the element of humanness (see 237), shares the idea of an attack on humankind in the sense of entity and diversity; see also Ambos, *Treatise on ICL II* (2014) 48, fn. 18–20.

<sup>23</sup> *Ad Hoc* Committee Report, paras. 77–80; 1996 Preparatory Committee I, paras. 82–90; Preparatory Committee Decisions Feb. 1997, pp. 4–6; Preparatory Committee (Consolidated) Draft, pp. 30–33.

<sup>24</sup> *id.*

<sup>25</sup> With the exception, however, of persecution, which in accordance with paragraph 1 (h) requires that the acts be committed on certain discriminatory grounds.

<sup>26</sup> See mn 18–22.

<sup>27</sup> See *History of the United Nations War Crimes Commission and the Development of the Laws of War* (1948) 179.

<sup>28</sup> See *Ad Hoc* Committee Report, note 23, para. 78; and Preparatory Committee I, note 23, paras. 84–85. See also ‘Special Analysis of the ICC Statute (1): Defining Crimes’ On The Record (29 June 1998) 1 (8); Jurovics, in: Fernandez and Pacreau (eds.), *Statut de Rome de la Cour Pénale Internationale: Commentaire article par article* (2012) 417, 459, 466–7.

achieved through the requirement of the acts being *either* widespread or systematic. Either of these conditions will ensure that single, isolated or random acts, which do not rise to the level of crimes against humanity, cannot be prosecuted in the Court under article 7<sup>29</sup>. The alternative approach has been repeated many times in the case law<sup>30</sup>, and adopted by some codifications<sup>31</sup>, also represents the prevailing view in the scholarly literature<sup>32</sup>. The apparent contradiction of this reading to the wording of paragraph 2 (a), requiring that the ‘multiple commission of acts’ be based on a certain policy (and thus apparently opting for a cumulative approach) can be resolved by focusing on the function accorded to the policy element, being

<sup>29</sup> As was held in *Prosecutor v. Tadić*, No. IT-94-1-T, Opinion and Judgment, Trial Chamber, 7 May 1997 (PURL: <http://www.legal-tools.org/doc/0a90ae/>), para. 648: ‘It is therefore the desire to exclude isolated or random acts from the notion of crimes against humanity that led to the inclusion of the requirement that the acts must be directed against a civilian ‘population’, and either a finding of widespreadness .. or systematicity’. See also *Prosecutor v. Akayesu*, No. ICTR-96-4-T, Judgment, Trial Chamber, 2 September 1998 (PURL: <http://www.legal-tools.org/doc/b8d7bd/>), para. 579: ‘The Chamber considers that it is a prerequisite that the act must be committed as part of a widespread or systematic attack and not just a random act of violence. The act can be part of a widespread or systematic attack and need not be part of both’.

<sup>30</sup> See *Tadić* (Trial Chamber Judgment), note 29, paras. 646-8; *Akayesu* (Trial Chamber Judgment), note 29, para. 579; *Prosecutor v. Kayishema and Ruzindana*, No. ICTR-95-1-T, Judgment, Trial Chamber, 21 May 1999 (PURL: <http://www.legal-tools.org/doc/0811c9/>), para. 123; *Prosecutor v. Rutaganda*, No. ICTR-96-3-T, Judgment, Trial Chamber, 6 December 1999 (PURL: <http://www.legal-tools.org/doc/f0dbbb/>), paras. 67-8; *Prosecutor v. Musema*, No. ICTR-96-13-A, Judgment and Sentence, Trial Chamber, 27 January 2000 (PURL: <http://www.legal-tools.org/doc/1fc6ed/>), paras. 202-3; *Prosecutor v. Blaškić*, No. IT-95-14-T, Judgment, Trial Chamber, 3 March 2000 (PURL: <http://www.legal-tools.org/doc/e1ae55/>), para. 207; *Prosecutor v. Kunarac*, No. IT-96-23-T, Judgment, Trial Chamber, 22 February 2001 (PURL: <http://www.legal-tools.org/doc/fd881d/>), para. 427; *Prosecutor v. Kordić and Čerkez*, No. IT-95-14/2-T, Judgment, Trial Chamber, 26 February 2001 (PURL: <http://www.legal-tools.org/doc/d4fedd/>), para. 178; *Prosecutor v. Bagilishema*, No. ICTR-95-1A-T, Judgment, Trial Chamber, 7 June 2001 (PURL: <http://www.legal-tools.org/doc/6164a4/>), para. 77; *Prosecutor v. Limaj and others*, No. IT-03-66-T, Judgment, Trial Chamber, 30 November 2005 (PURL: <http://www.legal-tools.org/doc/4e469a/>), para. 183; *Prosecutor v. D. Milošević*, No. IT-98-29/1-T, Judgment, Trial Chamber, 12 December 2007 (PURL: <http://www.legal-tools.org/doc/e706e2/>), para. 925; *Prosecutor v. Mrksić*, No. IT-95-13/1-T, Judgment, Trial Chamber, 27 September 2007 (PURL: <http://www.legal-tools.org/doc/32111c/>), para. 437 (‘disjunctive rather than cumulative’); *Prosecutor v. Lukić and Lukić*, No. IT-98-32/1-T, Judgment, Trial Chamber, 20 July 2009 (PURL: <http://www.legal-tools.org/doc/af5ad0/>), para. 875; *Prosecutor v. Popović and others*, No. IT-05-88-T, Judgment, Trial Chamber, 10 June 2010 (PURL: <http://www.legal-tools.org/doc/481867/>), para. 756; *Prosecutor v. Bisengimana*, No. ICTR-00-60-T, Judgment, Trial Chamber, 13 April 2006 (PURL: <http://www.legal-tools.org/doc/694dd8/>), para. 43; *Prosecutor v. Muvunyi*, No. ICTR-00-55A-T, Judgment and Sentence, Trial Chamber, 12 September 2006 (PURL: <http://www.legal-tools.org/doc/fa02aa/>), para. 512, with further references at fn. 715; *Prosecutor v. Setako*, No. ICTR-04-81-T, Judgment and Sentence, Trial Chamber, 25 February 2010 (PURL: <http://www.legal-tools.org/doc/068639/>), para. 476; *Prosecutor v. Munyakazi*, No. ICTR-97-36A-T, Judgment and Sentence, Trial Chamber, 5 July 2010 (PURL: <http://www.legal-tools.org/doc/9b9ee3/>), para. 503; *Prosecutor v. Katanga and Ngudjolo*, No. ICC-01/04-01/07-717, Confirmation Decision, Pre-Trial Chamber, 30 September 2008 (PURL: <http://www.legal-tools.org/doc/67a9ec/>), para. 394; *Prosecutor v. Bemba*, No. ICC-01/05-01/08-424, Confirmation Decision, Pre-Trial Chamber, 15 June 2009 (PURL: <http://www.legal-tools.org/doc/07965c/>), para. 82; *Prosecutor v. Stanisic and Zupljanin*, No. IT-08-91-T, Judgment, Trial Chamber, 27 March 2013 (PURL: <http://www.legal-tools.org/doc/2ed57f/>), para. 28; *Prosecutor v. Stanisic and Simatovic*, No. IT-03-69-T, Judgment, Trial Chamber, 30 May 2013 (PURL: <http://www.legal-tools.org/doc/066e67/>), para. 971; *Prosecutor v. Katanga*, No. ICC-01/04-01/07-3436, Jugement rendu en application de l’article 74 du Statut, Trial Chamber, 7 March 2014 (PURL: <http://www.legal-tools.org/doc/9813bb/>), para. 1123; *Prosecutor v. Gbagbo*, No. ICC-02/11-01/11-656-Red, Decision on the Confirmation of Charges, Pre-Trial Chamber I, 12 June 2014 (PURL: <http://www.legal-tools.org/doc/5b41bc/>), para. 223.

<sup>31</sup> 1996 ILC Draft Code, article 18(‘[i]n a systematic manner or on a large scale’); UNTAET Reg. 2000/15, 6 June 2000, note 10; see *Sierra Leone Statute* article 2, note 10; *Statute of the Iraqi Special Tribunal*, article 12 a.

<sup>32</sup> See for example Swaak-Goldman, in: McDonald and Swaak-Goldman (eds.), *Substantive and Procedural Aspects of International Criminal Law: The Experience of International and National Courts* (2000) 143, 157; König, *Die völkerrechtliche Legitimation der Strafgewalt internationaler Strafjustiz* (2003) 260 et seq.; see Meron, *The Humanisation of International Law* (2006) 95-6; see Werle and Jessberger, *Principles of International Criminal Law* (2014) 339; Werle, *Völkerstrafrecht* (2012) mn 877; see Jurovics, in: Fernandez and Pacreau (eds.), *Statut de Rome de la Cour Pénale Internationale: Commentaire article par article* (2012) 417, 466-467; Scheinert (2013) 13 *ICLRev* 627, 645-6; see Satzger, *International and European Criminal Law* (2012) § 14 mn 35; *id.*, *Internationales und europäisches Strafrecht* (2013) § 16 mn 35; Robinson, in: Cryer, Friman, Robinson and Wilmshurst, *An Introduction to International Criminal Law and Procedure* (2014) 229, 234.



the international element of crimes against humanity<sup>33</sup>. This element also serves to single out random acts of violence from the scope of crimes against humanity<sup>34</sup>. While it is inherent to a systematic attack<sup>35</sup>, it does not necessarily encompass the widespread qualifier, which is understood quantitatively (requiring a large number of victims). Thus, if a widespread attack were to suffice, even ordinary crimes, if only ‘widespread’ enough, would amount to crimes against humanity<sup>36</sup>. This would, however, obviously go against the rationale of crimes against humanity. Therefore, a – *quantitatively* – widespread ‘attack’ within the meaning of paragraph 1 would only be a crime against humanity, if at the same time it is – *qualitatively* – based on (‘pursuant to or in furtherance of’) a certain policy<sup>37</sup>. Thus, paragraph 2 (a) does not require that an attack be both widespread and systematic, but that an attack, regardless of being widespread or systematic, be ‘pursuant to or in furtherance of a State or organisational policy’<sup>38</sup>.

- 5 The list of crimes against humanity contained in article 7 of the *Statute* and their definitions largely accord with the traditional conception of crimes against humanity under customary international law<sup>39</sup>. Customary international law should be taken into account

<sup>33</sup> Cf. *Prosecutor v. Tadić*, No. IT-94-1-A and IT-94-1-Abis, Judgment in Sentencing Appeals, Separate Opinion of Judge Shahabuddeen, 26 January 2000; see also Bassiouni, *Crimes against Humanity: Historical Evolution and Contemporary Application* (2011) 10; on the rationale of the context element, the reason why a certain criminal conduct becomes a crime against humanity see Ambos, *Treatise on International Criminal Law* (2014) 55–6, with further references.

<sup>34</sup> Meseke, *Der Tatbestand der Verbrechen gegen die Menschlichkeit nach dem römischen Statut des Internationalen Strafgerichtshofes: Eine völkerstrafrechtliche Analyse* (2004) 135; Jurovics, in: Fernandez and Pacreau (eds.), *Statut de Rome de la Cour Pénale Internationale: Commentaire article par article* (2012) 417, 459; see 1996 ILC Draft Code, 2 YBILC 94 (1996); see Robinson, in: Cryer, Friman, Robinson and Wilmshurst, *An Introduction to International Criminal Law and Procedure* (2014) 229, 237; critically thereon, Halling (2010) 23 *LeidenJIL* 827, 831 *et seq.*, 840–1; see also *Prosecutor v. Nikolić*, No. IT-94-2-R61, Review of Indictment, Trial Chamber, 20 October 1995 (PURL: <http://www.legal-tools.org/doc/6e9de4/>), para. 26; Gotzel, *Terrorismus und Völkerstrafrecht: Die Anschläge vom 11. September 2001, der Tokioter Giftgasanschlag, die Geiselnahme von Beslan und die täglichen Anschläge im Irak vor dem Internationalen Strafgerichtshof* (2010) 208.

<sup>35</sup> Cf. Meseke, *Der Tatbestand der Verbrechen gegen die Menschlichkeit nach dem römischen Statut des Internationalen Strafgerichtshofes: Eine völkerstrafrechtliche Analyse* (2004) 140–1; Parenti, in: Parenti, Filippini and Folgueiro (eds.), *Los crímenes contra la humanidad y el genocidio en el derecho internacional: Origen y evolución de las figuras, elementos típicos, jurisprudencia internacional* (2007) 50 *et seq.*; cf. also Katanga and Ngudjolo (Confirmation Decision), note 30, para. 396; Bemba (Confirmation Decision), note 30, para. 81; concurring *Situation in the Republic of Kenya*, No. ICC-01/09-19, Decision on the Authorisation of Investigation, Pre-Trial Chamber, 31 March 2010 (PURL: <http://www.legal-tools.org/doc/338a6f/>), para. 96, according to which organisation and a ‘regular pattern’ belong to the core of the notion of ‘systematic’. For a critical view of the almost equivalency of ‘systematic’ and ‘policy’ in the early ICC case law, see Halling (2010) 23 *LeidenJIL* 827, 836–7; Sadat (2013) 107 *AJIL* 334.

<sup>36</sup> See also Ambos, *Treatise on ICL II* (2014) 69, with further references.

<sup>37</sup> On the importance of a connection with the policy and not only the state or organisation, cf. Katanga (Trial Chamber Judgment), note 30, para. 1116 7 4.

<sup>38</sup> Concurring, Gómez Benítez (2001) 9 *Cuadernos De Derecho Judicial* 1, 27–8; in a similar vein, see Robinson, in: Cryer, Friman, Robinson and Wilmshurst, *An Introduction to International Criminal Law and Procedure* (2014) 229, 239, requiring at least approval or endorsement from the state; see also Parenti, in: Parenti, Filippini and Folgueiro (eds.), *Los crímenes contra la humanidad y el genocidio en el derecho internacional: Origen y evolución de las figuras, elementos típicos, jurisprudencia internacional* (2007) 45 *et seq.* (52); Borsari, *Diritto punitivo sovranazionale come sistema* (2007) 312; Kolb, in: Kolb and Scalia (eds.), *Droit International Pénal: Précis* (2012) 1, 103–4. On the contrary, see Meseke, *Der Tatbestand der Verbrechen gegen die Menschlichkeit nach dem römischen Statut des Internationalen Strafgerichtshofes: Eine völkerstrafrechtliche Analyse* (2004) 140, 144, for whom the policy element constitutes only a jurisdictional element; in a different vein, see Katanga (Trial Chamber Judgment), note 30, para. 1111 (stressing the autonomy of ‘widespread’ and ‘systematic’ towards the policy element: ‘ce n’est pas tant la politique que le caractère généralisé ou systématique de l’attaque, c’est-à-dire une considération d’échelle et de régularité du modèle employé, qui caractérise avant tout le crime contre l’humanité’) 7 4. For an in depth analysis see Cupido (2011) 22 *CLF* 275, 289 *et seq.*

<sup>39</sup> However, the list of specific acts in paragraph 1 (a) to (j) may not be complete and it is possible that other acts will be recognised as crimes against humanity, either through jurisprudence singling them out as acts of persecution or ‘other inhumane acts’, state practice or amendment of the Rome Statute. See, for example, Bantekas (2006) 4 *JICJ* 466; cf. also Jurovics, in: Fernandez and Pacreau (eds.), *Statut de Rome de la Cour Pénale Internationale: Commentaire article par article* (2012) 417, 419, for whom article 7 is codified customary international law.



when interpreting article 7 and the elements of crimes against humanity under the *Statute*. In interpreting article 7, it must be borne in mind that the amount of jurisprudence in international and national courts and other state practice, particularly legislation, prior to the Rome Diplomatic Conference concerning crimes against humanity was limited. There were a number of important international and national court decisions in the four years after the Conference that had a significant impact on the drafting of the elements of crimes against humanity in the Elements of Crimes and, in turn, the definitions in the *Rome Statute* and Elements of Crimes had an impact on jurisprudence and state practice, particularly legislation. However, such subsequent jurisprudence and state practice, as discussed below, must, in some instances be used as an interpretive aid for article 7 with caution. First, the drafters may well have had different conceptions about the scope of article 7 or the elements. Second, there are often widely differing interpretations of the scope of particular crimes against humanity given by individual Trial Chambers of the *ICTY* and *ICTR* as will be seen below.

a) 'For the purposes of this Statute'. By the inclusion of this phrase, the definition of crimes against humanity laid down in the *Statute* is plainly intended *only* to be applicable before the International Criminal Court<sup>40</sup>. Accordingly, any adaptations of, or limitations which may be placed upon, the current definition of crimes against humanity under customary international law, or under any other legal provisions, by the *Statute* are not to be construed as an amendment of the customary law or any other position<sup>41</sup>.

There has been little agreement for nearly a century, however, on what are the internationalizing factors that distinguish crimes against humanity from ordinary crimes, such as murder, kidnapping, assault, rape and false imprisonment. The 1919 Peace Conference Commission Report did not contain an internationalizing factor for determining when the murders, rapes and other acts listed became crimes against humanity, but the *personal jurisdiction* threshold for determining which crimes would fall within the jurisdiction of the proposed special tribunal to try the Kaiser, an international criminal court, and the national military tribunals was that the persons tried would all be German nationals. In 1943, the United Nations War Crimes Commission spent considerable time wrestling with the question of how to distinguish crimes against humanity from war crimes, but not from ordinary crimes. It suggested two distinctions: first, that crimes against humanity could be committed regardless of the nationality of the victims and the perpetrators and, second, that these crimes were committed against persons 'because of race, nationality, religious or political belief'<sup>42</sup>. The first three international instruments defining crimes under international law contained jurisdictional thresholds only, not internationalizing factors distinguishing crimes against humanity from ordinary crimes. The *Nuremberg Charter* establishing the International Military Tribunal at Nuremberg in 1945 did not contain an internationalizing factor, although it did contain two jurisdictional thresholds which are generally agreed not to be part of the definition of crimes against humanity. First, it limited the scope of the International Military Tribunal's *personal jurisdiction* to 'persons who, acting in the interests of the European Axis countries, whether as individuals or as members of organisations, committed any of the following crimes ... CRIMES AGAINST HUMANITY' and further

<sup>40</sup> The same is true of other articles concerned with subject matter jurisdiction, namely articles 6 (Genocide) and 8 (War Crimes).

<sup>41</sup> Indeed, article 10 states that 'nothing .. shall be interpreted as limiting or prejudicing in any way existing or developing rules of international law for purposes other than this Statute', and article 22 on *nullum crimen sine lege* provides that this article 'shall not affect the characterisation of any conduct as criminal under international law independently of this Statute'. Nevertheless, carefully reasoned decisions of the Court concerning the scope of article 7 are likely to have a significant impact on the development of customary international law in a number of ways, including the adoption of similar interpretations by national and international courts; cf. also Schabas, *The International Criminal Court: A Commentary on the Rome Statute* (2010) 144.

<sup>42</sup> See *History of the United Nations War Crimes Commission and the Development of the Laws of War* (1948) 176.

limited that class of persons to ‘the major war criminals of the European Axis countries’<sup>43</sup>. Second, it gave the International Military Tribunal jurisdiction over crimes against humanity when committed ‘in execution of or in connection with any crime within the jurisdiction of the Tribunal whether or not in violation of the domestic law of the country where perpetrated’<sup>44</sup> and it required that the victims be civilians. Both the so-called war nexus and the qualification of possible victims as civilians can be explained by the origin of crimes against humanity within the law of armed conflict<sup>45</sup>. Another reason for the requirement of the war nexus was that of state sovereignty and non-intervention: it was argued that without such a nexus crimes against humanity would infringe on the principle of non-intervention<sup>46</sup>. Notwithstanding that, the war nexus so understood amounts to the international element of crimes against humanity, yet, it was always held against this view that the Nuremberg Charter’s war nexus never constituted a material element of crimes against humanity, but merely a precondition for the IMT’s jurisdiction<sup>47</sup>.

- 8 Similarly, the 1946 *Charter of the International Military Tribunal for the Far East* gave the International Military Tribunal *personal jurisdiction* over ‘Far Eastern war criminals who as individuals or as members of organisations are charged with offences which include Crimes against Peace’<sup>48</sup>. That *Charter* gave the International Military Tribunal *subject matter jurisdiction* over certain acts as crimes against humanity committed ‘before or during the war’ or in execution of any crime within the jurisdiction of the Tribunal, whether or not in violation of the domestic law of the country where perpetrated<sup>49</sup>. *Allied Control Council Law No. 10*, which governed trials after December 1945 by Allied *national* courts sitting in Germany, did not expressly define its personal jurisdiction, although it incorporated the 1943 *Moscow Declaration* and the *Nuremberg Charter*. It recognised as crimes against humanity when they were ‘committed against any civilian population’ or persecutions ‘whether or not in violation of the domestic laws of the country where perpetrated’<sup>50</sup>. In contrast, the Tribunal of the *Justice* case indicated for the first time that a specific context element to exclude isolated crimes is required. It accepted the absence of the nexus<sup>51</sup> and introduced instead another element to ‘exclude isolated cases of atrocity or persecution’, namely ‘proof of conscious participation in systematic government organised or approved procedures’<sup>52</sup>.
- 9 In 1950, the UN International Law Commission made the first of two attempts to incorporate as an internationalizing component of the definition a link to war crimes or

<sup>43</sup> The crimes against humanity listed in article 6 (c) fell into two groups, inhumane acts (sometimes called ‘the murder type’), ‘murder, extermination, enslavement, deportation, and other inhumane acts’, and ‘persecutions on political, racial or religious grounds’. This distinction has usually been maintained in international instruments, but when it has been disregarded it has led to problems.

<sup>44</sup> See Nuremberg Charter, article 6 (c), note 5.

<sup>45</sup> See *Tadić* (Trial Chamber Judgment), note 29, para. 620: ‘The inclusion of crimes against humanity in the Nurnberg Charter was justified by their relation to war crimes’. See also Bassiouni, *Crimes against Humanity: Historical Evolution and Contemporary Application* (2011) 33–4.

<sup>46</sup> See Lippman (1997) 17 *BCTHirdWorldLJ* 171, 183, quoting Justice Jackson; see also Meseke, *Der Tatbestand der Verbrechen gegen die Menschlichkeit nach dem römischen Statut des Internationalen Strafgerichtshofes: Eine völkerstrafrechtliche Analyse* (2004) 15–6.

<sup>47</sup> The nexus requirement was not even strictly observed by the IMT itself and – perhaps for that reason – had already disappeared in article II(c) of Control Council Law No. 10 (CCL 10); cf. thereon Ambos, *Treatise on ICL II* (2014) 50–1, fn. 38.

<sup>48</sup> See Tokyo Charter, article 5, note 10.

<sup>49</sup> *Ibid.*, article 5.

<sup>50</sup> See Allied Control Council Law No. 10, note 10, article II, para. 1 (c).

<sup>51</sup> See *Justice Trial*, note 4, 974.

<sup>52</sup> See *Justice Trial*, note 4, 982. The German post-war jurisprudence on Allied Control Council Law No. 10 confirmed the approach of the *Justice* case qualifying criminal conduct as a crime against humanity if committed in ‘Zusammenhang mit der Gewalt und Willkürherrschaft, wie sie in nazistischer Zeit bestanden hat’ (in context with the system of power and tyranny as it existed in the National-Socialist Period – author’s translation), *Entscheidungen des Obersten Gerichtshofes für die Britische Zone in Strafsachen* (1948–1950), Vol. 10 Case 3, at 14; see also *id.*, Vol. 1 Case 139, at 206 (*Weller* case). The war nexus was not even mentioned.

crimes against peace when it adopted the *Nuremberg Principles*<sup>53</sup>. In 1951, the first version of the International Law Commission's Draft Code of Offences against the Peace and Security of Mankind required that inhuman acts (which covered crimes against humanity) be committed 'in execution of or in connexion with other offences defined in this article [a broad range of crimes under international law]<sup>54</sup>. However, in part because of proposals by Belgium and Yugoslavia, the attempt to require a link to other crimes under international law as part of the definition of crimes against humanity was subsequently abandoned. In 1954, the International Law Commission adopted the first Draft Code of Offences against the Peace and Security of Mankind (1954 Draft Code), which dropped the link to other offences entirely and replaced the nexus by the more 'Justice case'-like policy requirement that the perpetrator acts 'at the instigation or with toleration of [state] authorities'<sup>55</sup>. The war nexus was abandoned by the 1968 Convention of the Non-Applicability of Statutory Limitations to War Crimes and Crimes against Humanity as well, which applies to '[c]rimes against humanity whether committed in time of war or in time of peace'<sup>56</sup>.

This move from the war nexus to a link with some form of state authority was subsequently confirmed by national case law<sup>57</sup>. In the *Menten* case, the Dutch Supreme Court held in 1981 that the concept of crimes against humanity requires that the crimes 'form part of a system based on terror or constitute a link in a consciously pursued policy directed against particular groups of people'<sup>58</sup>. In 1985, the French *Cour de Cassation* ruled in the *Barbie* case that crimes against humanity must be 'committed in a systematic manner in the name of a State practicing a policy of ideological supremacy'<sup>59</sup>. This ruling was repeated in 1992 in the *Touvier* case<sup>60</sup>. A few years later, in 1994, the Supreme Court of Canada held in the *Finta* case:

'What distinguishes a crime against humanity from any other criminal offence under the Canadian Criminal Code is that the cruel and terrible actions which are essential elements of

<sup>53</sup> ILC Report on Principles of the Nuremberg Tribunal, Principle VI.c, 29 July 1950, 5 UN GAOR. Supp. (No. 12) 11, UN Doc. A/1316 (1950). In the commentary on this principle the ILC expressed the view that, according to the Nuremberg Charter, the acts listed constituted international crimes only when committed 'in execution of or in connexion with any crimes within the jurisdiction of the Tribunal' (para. 120). The ILC did, however, reject the view of the International Military Tribunal, which declined to make a general declaration that the crimes against humanity could be committed before a war; instead, the ILC considered that they could, if they were committed 'in connexion with a crime against peace' (para. 123). Although these Principles were applicable to trials in national, as well as international, courts, they were never adopted by the UN General Assembly. cf. also Meseke, *Der Tatbestand der Verbrechen gegen die Menschlichkeit nach dem römischen Statut des Internationalen Strafgerichtshofes: Eine völkerstrafrechtliche Analyse* (2004) 74–5 Bassiouni, *Crimes against Humanity: Historical Evolution and Contemporary Application* (2011) 171 et seq.

<sup>54</sup> 2 YBILC 136 (1951) (a slightly more flexible definition than in the Nuremberg Charter since the Draft Code included offences other than crimes against peace and war crimes).

<sup>55</sup> 1954 ILC Draft Code, article 2 (10), 2 YbILC 150 (1954). On the implicit return to the alternative link to authority as an expression of the gradual displacement of the laws of war by the then-new Human Rights Law, see Ambos, *Treatise on ICL II* (2014) 52. See also Meseke, *Der Tatbestand der Verbrechen gegen die Menschlichkeit nach dem römischen Statut des Internationalen Strafgerichtshofes: Eine völkerstrafrechtliche Analyse* (2004) 76–7; Bassiouni, *Crimes against Humanity: Historical Evolution and Contemporary Application* (2011) 176 et seq.

<sup>56</sup> See article 1 (b) 1968 Convention of the Non-Applicability of Statutory Limitations note 10; cf. also Ambos, *Treatise on ICL II* (2014) 52.

<sup>57</sup> For a detailed overview of the national jurisprudence. see Meseke, *Der Tatbestand der Verbrechen gegen die Menschlichkeit nach dem römischen Statut des Internationalen Strafgerichtshofes: Eine völkerstrafrechtliche Analyse* (2004) 44 et seq.

<sup>58</sup> *Public Prosecutor v. Menten*, Judgment, Supreme Court of the Netherlands, 13 January 1981, 75 I.L.R. 362–3 (1987) 7 9.

<sup>59</sup> *Federation Nationale des Deportes et Internes Resistants et Patriotes and Others v. Barbie*, 78 I.L.R. 137 (1985). On the Barbie case and its impact on the law of crimes against humanity, see Fournet, *Genocide and Crimes against Humanity: Misconceptions and Confusion in French Law and Practice* (2013) 11–47.

<sup>60</sup> *Touvier*, 100 I.L.R. 352 (1992). The very language of the context element in these cases may be aimed at excluding acts of the Vichy regime or of French officials in Algeria from the scope of crimes against humanity, see pp. 353–5 where the Court explains that the Vichy regime collaborated with Germany only for pragmatic reasons and not for reasons of ideological supremacy. See also Binder (1989) 98 *YaleLJ* 1321, 1336–8.

the offence were undertaken in pursuance of a policy of discrimination or persecution of an identifiable group or race<sup>61</sup>.

In the 1991 Draft Code of Crimes against the Peace and Security of Mankind, the International Law Commission shifted gears, confirming, on the one hand, the move to a policy-oriented requirement and, on the other, to a human rights approach. Article 21 of the Draft introduced the concept of systematic or mass violations and required that the crimes be carried out 'in a systematic manner or on a mass scale'<sup>62</sup>. The latter element combines qualitative ('systematic') and quantitative ('mass scale') criteria and, in a way, converts crimes against humanity into a leadership crime since only leaders are in a position to act systematically or on a large scale. Against this background it is not surprising that the ILC lists as possible perpetrators persons with 'de facto power or organised in criminal gangs or groups'<sup>63</sup>. Thus, the Draft, in fact, retains the need for some kind of authority, or at least power, behind the crimes, simply clarifying that a non-state actor can also meet this element. Finally, the 1991 Draft Code does not require that the victims of crimes against humanity be civilians<sup>64</sup>. The context-related structure was further confirmed by the final version of the *Draft Code of Crimes against the Peace and Security of Mankind*, in 1996<sup>65</sup>, where, however, the qualifier 'mass' was replaced by the less restrictive term 'large-scale'. The *Draft Code* stated that crimes against humanity were 'any of the following acts, when committed in a systematic manner or on a large scale and instigated or directed by a Government or by any organisation or group'<sup>66</sup>. The systematic or large scale commission of crimes does not refer to the individual, but to the authority behind the crimes<sup>67</sup>, which may also be a non-state actor. Civilians have been reintroduced as victims of the crimes, while a war nexus has been deliberately excluded by the ILC<sup>68</sup>.

- 10 The concept of systematic or large scale was reflected to some extent in a significantly modified form in the jurisdictional thresholds for crimes against humanity of all the recent international criminal tribunals. The two alternatives are reflected in the *Statute* of the *ICTR* and the jurisprudence of the *ICTY*, but the thresholds of each Tribunal are radically different

<sup>61</sup> *R. v. Finta*, 1 R.C.S., (1994) ('*Finta*'), at 812 7 9.

<sup>62</sup> 1991 ILC Draft Code, article 21, Part 2, 2 *YbILC* 104–105 (1991). Article 21, entitled 'Systematic or mass violations of human rights' replaced the terms 'inhuman acts' and 'persecutions' in the 1954 Draft Code, which had replaced the term 'crimes against humanity'. This element was required for only some of the listed acts, but not for deportation or forcible transfer of population. The reasons why the ILC followed this approach are not entirely clear as article 21 is considerably different from the 1989 Draft presented by its Special Rapporteur on the Draft Code, which contained no internationalizing component. The discussion largely focused on the scope of crimes covered rather than on what should be the internationalizing element. However, the Special Rapporteur identified a variety of factors that he thought distinguished crimes against humanity from ordinary crimes, although his proposed restrictive distinctions have not stood the test of time. First, he stated that the term 'crimes against humanity' 'endows such crimes with their specific characteristics, that is, as crimes of particular infamy and horror, and which emphasizes their status as crimes under international law' (Seventh Report on the Draft Code of Crimes against the Peace and Security of Mankind, by Mr. Doudou Thiam, Special Rapporteur, UN Doc. A/CN.4/419 and Add.1 (in 1989 *YbILC*, Vol. II, Part One), para. 32.). Second, he considered that all acts had to be committed based on discriminatory grounds: 'The thing that distinguishes inhuman acts from common crimes is the motive. They are acts that are prompted by ideological, political, racial, religious or cultural intolerance and strike at a person's innermost being, e.g., his convictions, beliefs or dignity' (*id.*, at para. 45). Third, he noted the mass or systematic nature of crimes against humanity, but made clear that 'an individual act may constitute a crime against humanity if it is part of a coherent system and of a series of repeated acts incited by the same political, racial, religious or cultural motive' (*id.*, at para. 62); cf. thereon Bassiouni, *Crimes against Humanity: Historical Evolution and Contemporary Application* (2011) 178 *et seq.*

<sup>63</sup> See 1991 ILC Draft Code, article 21, Commentary, 1 *YbILC* 103 (1991), note 62, para. 5.

<sup>64</sup> This part draws on Ambos, *Treatise on ICL II* (2014) 53.

<sup>65</sup> 1996 ILC Draft Code, article 18.

<sup>66</sup> See ILC Draft Code, note 34, p. 47.

<sup>67</sup> See *Tadić* (Trial Chamber Judgment), note 29, para. 649; see also Meseke, *Der Tatbestand der Verbrechen gegen die Menschlichkeit nach dem römischen Statut des Internationalen Strafgerichtshofes: Eine völkerstrafrechtliche Analyse* (2004) 78–9. Two years later, the *Rome Statute* followed a similar, but significantly broader, approach in the chapeau to article 7 para. 1.

<sup>68</sup> See ILC Draft Code, note 34, p. 48.

and, as discussed below, include requirements that are certainly not part of the customary international law definition of crimes against humanity. Art. 5 of the ICTY Statute, in marked contrast to the UN Secretary-General's report<sup>69</sup>, provides that the ICTY would 'have the power to prosecute persons responsible for the following crimes when committed in armed conflict, whether international or internal in character, and directed against any civilian population'<sup>70</sup>. This war nexus differed from that of the Nuremberg Charter in two respects: On the one hand, the Nuremberg Charter was narrower than the Statute in that it required not only a commission of the crimes 'in armed conflict', but also a more specific nexus to one of the other war crimes enumerated in the Charter; on the other hand, the Charter was broader in that it extended the nexus to the mere preparation of an aggressive war. Given this significant deviation from Nuremberg it was since then difficult to that this precedent set a customary law standard<sup>71</sup>. As only possible explanation for the armed conflict link in the Statute then remains that it describes the limited geographic and temporal scope of the ICTY's jurisdiction. Nevertheless, as described below (mn 16), the ICTY Appeals Chamber restored the omitted component mentioned in the report that the acts be committed as part of a widespread or systematic attack and confirmed that there was no requirement in customary international law of any nexus to armed conflict<sup>72</sup>, even if its jurisdiction under the ICTY Statute over crimes against humanity was limited to those crimes committed with a nexus to armed conflict. It further stated that 'the armed conflict requirement is a jurisdictional element'<sup>73</sup>. The ICTR Statute took a radically different approach from the ICTY Statute in its jurisdictional threshold, omitting any link to armed conflict<sup>74</sup>, but imposing a requirement of a discriminatory motive for the commission of all acts<sup>75</sup>. As noted below (mn 27), the ICTR has, however, acknowledged that the discrimina-

<sup>69</sup> Report of the Secretary-General pursuant to paragraph 2 of Security Council Res. 808 (1993), paras. 47–48, UN Doc. S/25704/Add.1, 19 May 1993. The report stated that '[c]rimes against humanity are aimed at any civilian population and are prohibited regardless whether they are committed in an armed conflict, international or internal in character' and 'refer to inhumane acts of a very serious nature .. committed as part of a widespread or systematic attack against any civilian population on national, political, ethnic, racial or religious grounds'. The statement that crimes against humanity must be committed during an armed conflict seems to be based on a narrow reading of the judgment of the Nuremberg Tribunal.

<sup>70</sup> See ICTY Statute, article 5, note 10.

<sup>71</sup> This is all the more true if one follows the view that the Nuremberg war nexus was a merely jurisdictional element; cf. Ambos, *Treatise on International Criminal Law* (2014) 54.

<sup>72</sup> *Prosecutor v. Tadić*, No. IT-94-1, Decision on the Defence Motion for Interlocutory Appeal on Jurisdiction, Appeals Chamber, 2 October 1995 (PURL: <http://www.legal-tools.org/doc/866e17/>), para. 141: 'It is by now a settled rule of customary international law that crimes against humanity do not require a connection to international armed conflict'; confirmed in *Prosecutor v. Tolimir*, No. IT-05-88/2-T, Judgment, Trial Chamber, 12 December 2012 (PURL: <http://www.legal-tools.org/doc/445e4e/>), para. 691; thereto Mettraux, *International Crimes and the Ad Hoc Tribunals* (2005) 151; crit. Meseke, *Der Tatbestand der Verbrechen gegen die Menschlichkeit nach dem römischen Statut des Internationalen Strafgerichtshofes: Eine völkerstrafrechtliche Analyse* (2004) 81 et seq.; Zahar and Sluiter, *International Criminal Law* (2008) 205.

<sup>73</sup> *Prosecutor v. Tadić*, No. IT-94-1-A, Judgment, Appeals Chamber, 15 July 1999 (PURL: <http://www.legal-tools.org/doc/8efc3a/>), para. 249; cf. also Ambos, *Treatise on ICL II* (2014) 54–5, fn. 71–72.

<sup>74</sup> See ICTR Statute, article 3, note 10; the 'civilian population' requirement constitutes a – final – relic of the war crimes origin of the definition of crimes against humanity. Against the war nexus requirement also Robinson, in: Cryer, Friman, Robinson and Wilmschurst, *An Introduction to International Criminal Law and Procedure* (2014) 229, 233–4.

<sup>75</sup> See ICTR Statute, article 3, note 10. It stated that the ICTR would 'have power to prosecute persons responsible for the following crimes when committed 'as part of a widespread or systematic attack against any civilian population on national, political, ethnic, racial or religious grounds'. The statement that crimes against humanity must be based on discriminatory grounds may have originated in a similar statement in the Report of the Commission of Experts on the Former Yugoslavia, established pursuant to Security Council Res. 780 (1992), UN Doc. S/25274, Annex I, para. 49, that crimes against humanity were 'gross violations of fundamental rules of humanitarian and human rights law committed by persons demonstrably linked to a party to the conflict, as part of an official policy based on discrimination against an identifiable group of persons, irrespective of war and the nationality of the victim'; against the requirement for a discriminatory animus also Robinson, in: Cryer, Friman, Robinson and Wilmschurst, *An Introduction to International Criminal Law and Procedure* (2014) 229, 234; Schabas, *The International Criminal Court: A Commentary on the Rome Statute* (2010) 157.



tory grounds requirement is simply a jurisdictional limitation on the Tribunal and not part of the definition of crimes against humanity.

- 11 Since the Rome Conference, the 2000 UN regulation establishing the Special Panels for Dili in East Timor followed the chapeau of article 7 para. 1 by defining crimes against humanity as ‘any of the following acts when committed as part of a widespread or systematic attack and directed against any civilian population, with knowledge of the attack’, but it omitted the policy component and other requirements found in article 7 para. 2 (a)<sup>76</sup>. The *Statute of the Special Court for Sierra Leone* gives the Special Court jurisdiction over ‘persons who committed the following crimes as part of a widespread or systematic attack against any civilian population’, but omits the requirement found in the chapeau of article 7 para. 1 of the *Rome Statute* that the crimes be committed ‘with knowledge of the attack’ and the requirements found in article 7 para. 2 (a)<sup>77</sup>. The 2005 law establishing the Extraordinary Chambers of Cambodia goes backwards by containing an internationalizing component based on the jurisdictional threshold in the *ICTR Statute*, stating that crimes against humanity ‘are any acts committed as part of a widespread or systematic attack directed against any civilian population on national, political, ethnical, racial or religious grounds’<sup>78</sup>. National legislation adopted before the Rome Statute defining crimes against humanity as crimes under national law generally does not contain any internationalizing component or any components similar to those in article 7. However, since the Rome Conference, national legislation and draft legislation usually contains most of the internationalizing components in the chapeau to article 7 para. 1, but, as noted above in this mn, often omits the components found in article 7 para. 2 (a).
- 12 In conclusion, as discussed in more detail below, after a long history of repeatedly changing views, as the only common denominator appears some kind of context, which was required by every drafter or judge dealing with crimes against humanity. In addition, after the abandonment of the war nexus<sup>79</sup>, a link to an authority or power, be it a state, organisation, or group, is required by most provisions on crimes against humanity as well as by the case law of the ad hoc tribunals. The context element has become the internationalizing component of the definition of crimes against humanity, applicable in both international and national courts, differentiating such crimes from ordinary crimes<sup>80</sup>. It is also generally recognised that certain components of the thresholds in the Statutes of the two Tribunals, such as the requirement of a nexus to armed conflict in article 5 of the *ICTY Statute*, and the requirement that the acts be committed on certain discriminatory grounds found in article 3 of the *ICTR Statute* and in article 5 of the Cambodian Extraordinary Chambers Law, are not part of the customary international law definition of crimes against humanity.
- 13 b) ‘any of the following acts’. This part of the chapeau lists the various *acts* constituting crimes against humanity over which the Court will have jurisdiction. Other acts which are now, or will be in the future, recognised as crimes against humanity, except to the extent that they may be recognised as acts of persecution or other inhumane acts, do not fall within the

<sup>76</sup> See UNTAET Reg. 2000/15, 6 June 2000, article 5, note 10.

<sup>77</sup> See *Sierra Leone Statute*, article 2, note 10.

<sup>78</sup> Law on the Establishment of the Extraordinary Chambers, with inclusion of amendments as promulgated on 27 Oct. 2004 (NS/RKM/1004/006) (Cambodia Extraordinary Chambers), article 5. Like the *ICTR Statute*, however, this threshold imposes the unnecessary double requirement that ‘persecutions on political, racial, and religious grounds’ in addition be committed on ‘political, racial and religious grounds’ (despite the use of ‘and’, any single one of these grounds would be sufficient).

<sup>79</sup> For a critical view, see Schabas, *The International Criminal Court: A Commentary on the Rome Statute* (2010) 147.

<sup>80</sup> See references in note 82 and main text.



Court's jurisdiction, but might fall within the jurisdiction of other international courts or national courts. It is evident that *any* of the acts listed in paragraph 1 of article 7 alone can constitute crimes against humanity. There is no requirement that more than one of the enumerated acts be committed (for example, murder *and* torture), or combination thereof<sup>81</sup>.

c) 'committed as part of a[n] ... attack'. This part of the chapeau develops the context element. It may today well be considered a component of the definition of crimes against humanity in customary international law as the agreed internationalizing factor that transforms acts, such as murder, which otherwise would be simply ordinary crimes under national law, into crimes against humanity<sup>82</sup>. The *rationale* of this 'internationalisation' of certain crimes is the protection of fundamental human rights and underlying human dignity<sup>83</sup> against serious systematic and widespread human rights violations caused, supported, or tolerated by state or certain non-state organisations. The Statute and the Elements of Crimes both make clear that the underlying acts must occur as *part* of an attack<sup>84</sup>. However, the acts could constitute the attack itself<sup>85</sup>. For example, the mass murder of civilians may suffice as an attack against the civilian population. There is no requirement that a separate attack against the same civilians, within which the murders were committed, should be proven<sup>86</sup>.

The definition of 'attack' which can either be 'widespread or systematic', as explained below (mn 18–22), is further elaborated upon in paragraph 2 (a) of article 7. This paragraph is discussed below (mn 87–93), and it suffices here to clarify that the meaning of 'attack', as confirmed by the Elements of Crimes, does not necessarily equate with 'military attack' as defined by international humanitarian law<sup>87</sup>. Rather, it refers more generally to a campaign or operation conducted against the civilian population – a 'course of conduct' in the words of paragraph 2 (a)<sup>88</sup>, which involves the (multiple) commission of the underlying acts of

<sup>81</sup> For example, in the *Akayesu* (Trial Chamber Judgment), note 29, the accused was, *inter alia*, convicted of crimes against humanity for torture by itself; see paras. 676–684 7 13.

<sup>82</sup> Many of the states that have enacted implementing legislation for the *Rome Statute* or prepared draft implementing legislation have incorporated only the threshold in paragraph 1 of article 7, not the explanation of this threshold in paragraph 2 (a) of this article; cf. also Krefß, in: Fischer and Lüder (eds.), *Völkerrechtliche Verbrechen vor dem Jugoslawien-Tribunal, nationalen Gerichten und dem Internationalen Strafgerichtshof: Beiträge zur Entwicklung einer effektiven internationalen Strafgerichtsbarkeit* (1999) 15, 53; van Schaack (1998–1999) 37 *ColumJTransnatL* 787, 819; see Meseke, *Der Tatbestand der Verbrechen gegen die Menschlichkeit nach dem römischen Statut des Internationalen Strafgerichtshofes: Eine völkerstrafrechtliche Analyse* (2004) 128 *et seq.*; similarly Kirsch, in: Michalke, Köberer and Pauly (eds.), *Festschrift für Rainer Hamm zum 65. Geburtstag am 24. Februar 2008* (2008) 269, 283, 285 *et seq.*; *id.* 22 *LeidenJIL* 525, for whom the international element is only a jurisdictional element and not an aggravating circumstance regarding the wrong realised by the act (*Unrecht*) or the offender's blameworthiness (*Schuld*); thoroughly *id.*, *Der Begehungszusammenhang der Verbrechen gegen die Menschlichkeit* (2009) 107 *et seq.*, 140 *et seq.*

<sup>83</sup> Cf. *Prosecutor v. Kupreskić and others*, No. IT-95-16-T, Judgment, Trial Chamber, 14 January 2000 (PURL: <http://www.legal-tools.org/doc/5c6a53/>), para. 547 ('[crimes against humanity] are intended to safeguard basic human values by banning atrocities directed against human dignity').

<sup>84</sup> One of the two contextual elements of each of the crimes against humanity in the Elements of Crimes states: 'The conduct was committed as part of a widespread or systematic attack ...'.

<sup>85</sup> See Robinson, in: Cryer, Friman, Robinson and Wilmshurst, *An Introduction to International Criminal Law and Procedure* (2014) 229, 242.

<sup>86</sup> See *Akayesu* (Trial Chamber Judgment), note 29, para. 581.

<sup>87</sup> Paragraph 3 of the introduction to the elements of article 7 in the Elements of Crimes expressly states: 'The acts need not constitute a military attack'. Article 49 para. 1 of Add. Prot. I defines 'attacks' within the military context as 'acts of violence against the adversary, whether in offence or in defence'. See also 1996 Preparatory Committee I, note 23, para. 86.

<sup>88</sup> See *Situation in Kenya* (Authorisation Decision), note 35, para. 80; cf. also *Gbagbo* (Confirmation Decision), note 30, para. 209 (the term 'course of conduct' embodies a systematic aspect).

paragraph 1. Thus, the attack need not even involve military forces<sup>89</sup> or armed hostilities, or any violent force at all<sup>90</sup>. It can involve any mistreatment of the civilian population<sup>91</sup>.

- 16 Furthermore, the attack need not – contrary to the previous Nuremberg and Tokyo law<sup>92</sup> – occur in relation to armed hostilities or an armed conflict. This position accords with the definition of crimes against humanity under customary international law<sup>93</sup>. The attack can take place before, during or after an armed conflict, it is not required however to be part of it<sup>94</sup>. Nor is it required that each act listed in paragraph 1 occurring within the attack be widespread or systematic, providing that the acts form part of an attack with these characteristics<sup>95</sup>. In other words, if some murders, some rapes, and some beatings take place, each form of conduct need not be widespread or systematic, if together the acts satisfy either of these conditions. It follows that the individual's actions themselves need not be widespread or systematic, providing that they form part of such a widespread or systematic attack.

<sup>89</sup> See *Situation in Kenya* (Authorisation Decision), note 35, para. 80 (referring to para. 3 of the Introduction to article 7 in the Elements of Crimes).

<sup>90</sup> It is clear that an 'attack' within the meaning of article 7 need not involve any acts of violence. Although the view was expressed by some in the Preparatory Committee that 'the word 'attack' was intended to indicate some use of force rather than an armed attack and a number of delegations mistakenly believed that the phrase should be retained to avoid significantly changing the existing definition of these crimes', the list of acts demonstrates that not all crimes against humanity involve acts of violence. For example, acts of persecution could be simply legislation, such as the Nuremberg Laws, which were cited as such in the Nuremberg Judgment. In addition, many of the acts constituting the crime of apartheid and imprisonment do not necessarily involve acts of violence. This view was confirmed with respect to crimes against humanity under the *ICTR Statute* in the *Akayesu* (Trial Chamber Judgment), note 29, para. 581: 'An attack may also be non violent in nature, like imposing a system of apartheid, which is declared a crime against humanity in article 1 of the Apartheid Convention of 1973, or exerting pressure on the population to act in a particular manner, may come under the purview of an attack, if orchestrated on a massive scale or in a systematic manner'. See, for example: ICTY: see *Kunarac* (Trial Chamber Judgment), note 30, para. 416: ICTR: *Rutaganda* (Trial Chamber Judgment), note 30, para 70 (citing *Akayesu*); see *Musema* (Trial Chamber Judgment), note 30, para. 205 (citing *Akayesu* and *Rutaganda*). For the contrary view, with respect to crimes against humanity under the *ICTR* and *ICTY Statutes*, see Mettraux, *International Crimes and the Ad Hoc Tribunals* (2005) 156, contending, without citing any authority, that he 'does not agree with the view that the establishment and maintenance of such a system of apartheid can be regarded as 'non-violent' or that, for that matter, any 'attack' within the meaning of crimes against humanity could be non-violent in the broad sense of the word'.

<sup>91</sup> See *Kunarac* (Trial Chamber Judgment), note 30, para. 416 ('[An attack] may also encompass situations of mistreatment of persons taking no active part in hostilities, such as someone in detention'); *Prosecutor v. Stakić*, No. IT-97-24-T, Judgment, Trial Chamber, 31 July 2003 (PURL: <http://www.legal-tools.org/doc/32ecfb/>), para. 623 ('it encompasses any mistreatment of the civilian population'); *Prosecutor v. Semanza*, No. ICTR-97-20-T, Judgment and Sentence, Trial Chamber, 15 May 2003 (PURL: <http://www.legal-tools.org/doc/7e668a/>), para. 327; *Prosecutor v. Kajelijeli*, Judgment and Sentence, Trial Chamber, 1 December 2003 (PURL: <http://www.legal-tools.org/doc/afa827/>), para. 868; cf. also *Katanga* (Trial Chamber Judgment), note 30, para. 1101 ('toute forme de violence'). In this vein also Werle, *Völkerstrafrecht* (2012) mn 872; *id.* and Jessberger, *Principles of International Criminal Law* (2014) 338 ('any mistreatment'); Meseke, *Der Tatbestand der Verbrechen gegen die Menschlichkeit nach dem römischen Statut des Internationalen Strafgerichtshofes: Eine völkerstrafrechtliche Analyse* (2004) 132; Parenti, in: Parenti, Filippini and Folgueiro (eds.), *Los crímenes contra la humanidad y el genocidio en el derecho internacional: Origen y evolución de las figuras, elementos típicos, jurisprudencia internacional* (2007) 41; Gless, *Internationales Strafrecht: Grundriss für Studium und Praxis* (2011) mn 824.

<sup>92</sup> On the armed conflict nexus see already, mn 7 *et seq.*

<sup>93</sup> See *Tadić* (Decision on Interlocutory Appeal), note 72, paras. 141-2.

<sup>94</sup> See *Stakić* (Trial Chamber Judgment), note 91, para. 623; concurring *Prosecutor v. Brđanin*, No. IT-99-36-T, Judgment, Trial Chamber, 1 September 2004 (PURL: <http://www.legal-tools.org/doc/4c3228/>), para. 131; *Prosecutor v. Kordić*, No. IT-95/14/2-A, Judgment, Appeals Chamber, 17 December 2004 (PURL: <http://www.legal-tools.org/doc/738211/>), para. 666; *Prosecutor v. Krajišnik*, No. IT-00-39-T, Judgment, Trial Chamber, 27 September 2006 (PURL: <http://www.legal-tools.org/doc/62a710/>), para. 706; *Popović and others*, (Trial Chamber Judgment), note 30, para. 752; *Prosecutor v. Nahimana and others*, No. ICTR-99-52-A, Judgment, Appeals Chamber, 28 November 2007 (PURL: <http://www.legal-tools.org/doc/04e4f9/>), paras. 916-7; Mettraux, *International Crimes and the Ad Hoc Tribunals* (2005) 156-7; Currat, *Les crimes contre l'humanité dans le Statut de Rome de la Cour Pénale Internationale* (2006) 95.

<sup>95</sup> *Prosecutor v. Mrksić* (Vukovar Hospital Decision), Review of the Indictment Pursuant to Rule 61 of the Rules of Procedure and Evidence, 3 April 1996 (PURL: <http://www.legal-tools.org/doc/9d99b6/>), para. 30.

Indeed, the commission of a single act, such as one murder, in the context of a broader campaign against the civilian population, can constitute a crime against humanity<sup>96</sup>.

It is, thus, important to determine when an individual accused's acts can be regarded as being part of an attack against the civilian population. There must be a sufficient nexus between the unlawful acts of the accused and the attack<sup>97</sup>. The *Statute* does not make clear the precise degree of nexus that is required. However, the relationship can be revealed in a variety of ways, which will depend on the factual circumstances of each case<sup>98</sup>. Reliable indicia would include: the similarities between the accused's acts and the acts occurring within the attack; the nature of the events and circumstances surrounding the accused's acts; the temporal and geographical proximity of the accused's acts with the attack<sup>99</sup>; and, the nature and extent of the accused's knowledge of the attack when the accused commits the acts, as discussed below. Of particular significance, will be the manner in which the accused's acts are associated with, or further the policy<sup>100</sup> underlying the attack<sup>101</sup>.

In particular, the accused's acts need not be perpetrated during the actual commission of the entire or any part of the widespread or systematic attack<sup>102</sup>. It is also not essential that the accused's acts precisely resemble any of the particular acts that characterise the attack, for example, if an accused commits torture when the general pattern of the conduct involves widespread killings of civilians. The fundamental requirement is that the acts must not be *unrelated* to the attack, capable of being characterised as the isolated and random conduct of an individual acting alone<sup>103</sup>.

d) 'widespread or systematic attack directed against any civilian population'. The *Statute* clearly envisages that the attack can be widespread or systematic in nature. As we have already seen above, this alternative approach is supported by the case law and the prevailing view in the literature<sup>104</sup>. The 'widespread or systematic' requirement is the most widely accepted international element for distinguishing crimes against humanity from common crimes, which do not rise to the level of crimes under international law<sup>105</sup>. The disjunctive element, however, is a late development. It did not appear in the St. Petersburg Declaration of

<sup>96</sup> See *Tadić* (Trial Chamber Judgment), note 29, para. 649: 'Clearly, a single act by a perpetrator taken within the context of a widespread or systematic attack against a civilian population entails individual criminal responsibility and an individual perpetrator need not commit numerous offences to be held liable'. See also *Vukovar Hospital Decision*, note 95, para. 30; Meyrowitz, *La repression par les tribunaux allemands des crimes contre l'humanité et de l'appartenance à une organisation criminelle* (1960) 282; Greenwood (1998) 2 MPYbUNL 97, 97 et seq., 135.

<sup>97</sup> See *Akayesu* (Trial Chamber Judgment), note 29, para. 579, and Report of ILC Special Rapporteur, note 62, para. 93.

<sup>98</sup> The methods of establishing this nexus are likely to be very similar to those employed to prove the statutory link between the acts and an armed conflict under the *ICTY Statute*.

<sup>99</sup> The ICTY's jurisprudence on establishing the nexus between the acts and an armed conflict is instructive, and in this regard, see *Tadić* (Trial Chamber Judgment), note 29, paras. 629–633.

<sup>100</sup> The definition of the policy element is outlined below.

<sup>101</sup> See 1986 ILC Special Rapporteur Report, note 62, para. 93: 'what counted was not the mass aspect, but the link between the act and the cruel and barbarous political system'.

<sup>102</sup> In light of notes 20–21, and *Tadić* (Trial Chamber Judgment), note 29, para. 632.

<sup>103</sup> See already mn 4; see also *Tadić* (Trial Chamber Judgment), note 29, para. 644, which emphasises that crimes against humanity are 'collective' in 'nature' and 'exclude single or isolated acts which .. do not rise to the level of crimes against humanity' Clark, in: *id.*, Feldbrugge and Pomorski (eds.), *International and National Law in Russia and Eastern Europe* (2001) 139, 152; Gómez Benítez (2001) 9 *Cuadernos De Derecho Judicial* 1, 21. *cf.* in the same vein (on widespread and systematic attack) *Prosecutor v. Milutinović and others*, No. IT-05-87-T, Judgment, Trial Chamber, 26 February 2009 (PURL: <http://www.legal-tools.org/doc/9eb7c3/>), para. 150; *Katanga and Ngudjolo* (Confirmation Decision), note 30, para. 394; *Bemba* (Confirmation Decision), note 30, paras. 75, 77, 83; concurring *Prosecutor v. Al Bashir*, No. ICC-02/05-01/09-3, Arrest Warrant Decision, Pre-Trial Chamber, 4 March 2009, para. 81; *Situation in Kenya* (Authorisation Decision), note 35, para. 81; *Katanga* (Trial Chamber Judgment), note 30, paras. 1101, 1123.

<sup>104</sup> See mn 4 with further references. See also *Vukovar Hospital Decision*, note 95, para. 3; and, 1996 ILC Draft Code, note 10, pp. 94–95.

<sup>105</sup> See *Tadić* (Trial Chamber Judgment), note 29, paras. 646 and 648.

1868<sup>106</sup>, the Martens Clause of 1899<sup>107</sup>, or the 1919 Versailles Peace Conference Commission's Report<sup>108</sup>, although that report cited examples that generally met each of these alternatives. The origin of this international element appears to be an analysis of the Legal Committee of the United Nations War Crimes Commission, which used the two alternatives both as a single cumulative internationalizing element and disjunctively:

'... As a rule systematic mass action, particularly if it was authoritative, was necessary to transform a common crime, punishable only under municipal law, into a crime against humanity, which thus became also the concern of international law. Only crimes which either by their magnitude and savagery or by their large number or by the fact that a similar pattern was applied at different times and places, endangered the international community or shocked the conscience of mankind warranted intervention by State other than on whose territory the crimes had been committed, or whose subjects had become their victims'<sup>109</sup>.

The Nuremberg Tribunal described some of the crimes against humanity involved in the case holding that '[T]he policy of terror was certainly carried out on a vast scale, and in many cases was organised and systematic'<sup>110</sup>, but without suggesting that this description was a definition. The phrase then surfaced again in 1993 in the Report of the UN Secretary-General concerning the establishment of the *ICTY*, which stated that '[c]rimes against humanity refer to inhumane acts of a very serious nature ... committed as part of a widespread or systematic attack against any civilian population'<sup>111</sup>. While this disjunctive element was not, as noted above, expressly included in article 5 of the *ICTY* Statute, it was incorporated in the jurisprudence of the *ICTY* Trial and Appeals Chambers (see *mn* 6). It was then expressly included in article 3 of the 1994 *ICTR* Statute, although the French version uses 'e' (and) instead of 'or'. Also, the *ICTR* Trial and Appeals Chambers have used the disjunctive approach in their judgments<sup>112</sup>. Article 18 of the 1996 Draft Code of Crimes included a similar, but differently worded, disjunctive element ('systematic manner or on a large scale'). The International Law Commission made clear in its commentary that its definition of crimes against humanity was 'drawn from the Charter of the Nürnberg Tribunal, as interpreted and applied by the Nürnberg Tribunal, taking into account subsequent developments in international law since Nürnberg'<sup>113</sup>. In any case, the Rome Statute and subsequent international instruments used the 1993 formulation of 'widespread or systematic'<sup>114</sup>.

- 19 The term 'widespread' has mainly a quantitative meaning referring to the scale of the attack or, equivalently, to the (large) number of victims. The required multiplicity of victims was

<sup>106</sup> See note 1.

<sup>107</sup> See note 2.

<sup>108</sup> See note 6.

<sup>109</sup> See *History of the United Nations War Crimes Commission and the Development of the Laws of War* (1948) 179.

<sup>110</sup> International Military Tribunal (Nuremberg), Judgment and Sentences (Nuremberg Judgment), 1 October 1946, (1947) 41 *AJIL* 172, 249. A somewhat similar disjunctive description was used in a national court decision, see *Menten* (Supreme Court Judgment), note 58, at 362: 'Crimes against humanity in Art. 6 (c) of the London Charter should be understood in the restrictive sense that the crime formed part of a system based on terror, or constituted a link in a consciously pursued policy directed at particular groups of people'.

<sup>111</sup> See 1993 Report of UN Secretary-General, note 69, para. 48.

<sup>112</sup> See *Akayesu* (Trial Chamber Judgment), note 29, para. 579 ('The act can be part of a widespread or systematic attack and need not be a part of both'.) and note 154 ('Since Customary International Law requires only that the attack be either widespread or systematic, there are sufficient reasons to assume that the French version suffers from an error in translation'). Whatever the merit of this speculation, and there is some evidence that the difference in wording was deliberate, the conclusion that this element is disjunctive is correct and has been followed by other *ICTR* Trial Chambers, even when some may have doubted whether the *Akayesu* Trial Chamber was correct. See, for example, *Musema* (Trial Chamber Judgment) *supra* note 30, para. 203. On the alternative or cumulative approach, with regard to possible contradiction between paras. 1 and 2 of article 7, see already *mn* 4.

<sup>113</sup> 2 *YbILC* 47 (1996).

<sup>114</sup> See UNTAET Reg. 2000/15, article 5, note 76; *Sierra Leone Statute*, note 10; *Cambodia Extraordinary Chambers Law*, article 5, note 78.

addressed by the 1991 Draft Code of Crimes with the term ‘mass scale’<sup>115</sup>, but it was abandoned setting a too high threshold and limiting the definition to situations on the scale of the crimes against humanity committed by Hitler, Stalin, Mao Tse-Tung or Pol Pot. Instead, the term ‘on a large scale’ was adopted by the 1996 Draft Code, meaning that ‘the acts are directed against a multiplicity of victims. This requirement excludes an isolated inhumane act committed by a perpetrator acting on his own initiative and directed against a single victim’<sup>116</sup>. The term was considered ‘sufficiently broad to cover various situations involving a multiplicity of victims, for example, as a result of the cumulative effect of a series of inhumane acts or the singular effect of an inhumane act of extraordinary magnitude’<sup>117</sup>. The ILC’s understanding of the term was followed by the ad hoc tribunals in the interpretation of the term ‘widespread’, by referring either only to the ‘to the [large] number of victims’<sup>118</sup>, ‘to the multiplicity of victims’<sup>119</sup>, or to the commission of the acts ‘on a large-scale’<sup>120</sup> or both to ‘the large-scale nature of the attack and the number of its victims’<sup>121</sup>. Some of the early decisions of the ICTY and ICTR Trial Chambers imposed a very high threshold, without further reasoning<sup>122</sup> and without contributing substantially to the understanding of the term. However, subsequent

<sup>115</sup> See 1991 ILC Draft Code, article 21, note 62, (‘The mass scale element relates to the number of people affected by such violations or the entity that has been affected’).

<sup>116</sup> 1 YbILC 47 (1996).

<sup>117</sup> *Ibid.*

<sup>118</sup> See *Tadić* (Trial Chamber Judgment), note 29, para. 648, following the ILC’s 1996 Draft Code, Commentary on article 18(4) Draft Code, YbILC, ii/2, 15 (1996).

<sup>119</sup> See *Kayishema and Ruzindana* (Trial Chamber Judgment), note 30, para. 123.

<sup>120</sup> See *Blaškić* (Trial Chamber Judgment), note 30, para. 206, quoting the ILC’s Commentary on article 18(4) 1996 ILC Draft Code, note 10. This definition was adopted by various subsequent decisions: *Kordić and Čerkez* (Trial Chamber Judgment), note 30, para. 179; *Prosecutor v. Vasiljević*, No. IT-98-32-T, Judgment, Trial Chamber, 29 November 2002 (PURL: <http://www.legal-tools.org/doc/8035f9/>), para. 35; *Stakić* (Trial Chamber Judgment), note 91, para. 625; *Limaj* (Trial Chamber Judgment), note 30, para. 183; *Popović and others*, (Trial Chamber Judgment), note 30, para. 756; *Prosecutor v. Džorđević*, No. IT-05-87/1-T, Judgment, Trial Chamber, 23 February 2011 (PURL: <http://www.legal-tools.org/doc/653651/>), para. 1588; *Prosecutor v. Gotovina and others*, No. IT-06-90-T, Judgment, Trial Chamber, 15 April 2011 (PURL: <http://www.legal-tools.org/doc/86922c/>), para. 1703; *Tolimir* (Trial Chamber Judgment), note 72, para. 699; *Bisengimana* (Trial Chamber Judgment), note 30, para. 44 (‘large scale, involving many victims’); *Prosecutor v. Nzabirinda*, No. ICTR-2001-77-T, Sentencing Judgment, Trial Chamber, 23 February 2007 (PURL: <http://www.legal-tools.org/doc/e6069d/>), para. 21; *Setako* (Trial Chamber Judgment), note 30, para. 476; *Munyakazi* (Trial Chamber Judgment), note 30, para. 503; *Katanga and Ngudjolo* (Confirmation Decision), note 30, para. 395; *Bemba* (Confirmation Decision), note 30, para. 83; *Katanga* (Trial Chamber Judgment), note 30, paras. 1098, 1123. *cf.* also Ambos and Wirth (2002) 1 CLF 13, 20–1, 30 *et seq.*, with further references; Gómez Benítez (2001) 9 *Cuadernos de Derecho Judicial* 1, 30; Meseke, *Der Tatbestand der Verbrechen gegen die Menschlichkeit nach dem römischen Statut des Internationalen Strafgerichtshofes: Eine völkerstrafrechtliche Analyse* (2004) 133–4; Mettraux, *International Crimes and the Ad Hoc Tribunals* (2005) 171; Eboe-Osuji (2008) 2 *AfricanJLegStud* 118, 120; Cerone (2008) 14 *NewEnglandJL&CompL* 191, 197; Kolb, in: Kolb and Scalia (eds.), *Droit International Pénal: Précis* (2012) 1, 99–100; van den Herik, in: Darcy and Powderly (eds.), *Judicial Creativity at the International Criminal Tribunals* (2010) 80, 88.

<sup>121</sup> See *Kunarac*, (Trial Chamber Judgment), note 30, para. 428; *Tadić* (Trial Chamber Judgment), note 29, para. 648; *Blaškić*, (Trial Chamber Judgment), note 30, para. 202; *Prosecutor v. Krnojelac and others*, No. IT-97-25-T, Judgment, Trial Chambers, 15 March 2002 (PURL: <http://www.legal-tools.org/doc/1a994b/>), para. 57; *Kordić* (Appeals Chamber Judgment), note 94, para. 94. See also *Prosecutor v. Blaškić*, No. IT-95-14-A, Judgment, Appeals Chamber, 29 July 2004 (PURL: <http://www.legal-tools.org/doc/88d86f/>), para. 101; *Prosecutor v. Kunarac and others*, No. IT-96-23-A, Judgment, Appeals Chamber, 12 June 2002 (PURL: <http://www.legal-tools.org/doc/029a09/>), para. 94; *Muvunyi*, (Trial Chamber Judgment), note 30, para. 512 (‘“Widespread” refers to the scale of the attacks and the multiplicity of victims’); *Prosecutor v. Muhimana*, No. ICTR-95-1B-T, Judgment and Sentence, Trial Chamber, 28 April 2005 (PURL: <http://www.legal-tools.org/doc/87fe83/>), para. 527 (‘scale of attack and multiplicity of victims’); *Kajelijeli* (Trial Chamber Judgment), note 91, para. 871 (‘large scale, involving many victims’); *Semanza* (Trial Chamber Judgment), note 91, para. 329; *Musema* (Trial Chamber Judgment), note 30, paras. 203–204.

<sup>122</sup> See, for example, *Akayesu* (Trial Chamber Judgment), note 29, para. 580 (stating, without citing any authority: ‘The concept of widespread may be defined as massive, frequent, large scale action, carried out collectively with considerable seriousness and directed against a multiplicity of victims’); the definition is repeated in *Rutaganda*, (Trial Chamber Judgment), note 30, para. 69, and *Musema* (Trial Chamber Judgment), note 30, para. 203.



jurisprudence by the ICTY Appeals Chamber has interpreted the term expansively to refer 'to the large-scale nature of the attack and the number of targeted persons'<sup>123</sup>. Similarly, ICTR Trial Chambers have interpreted the requirement broadly<sup>124</sup>. On the other hand, ICC Pre-Trial Chamber II quoted the mentioned definition, but only for illustrative reasons, stressing at the same time that the widespread element is neither to be assessed strictly quantitatively nor geographically but 'on the basis of the individual facts'<sup>125</sup>. Thus, it is not limited to geographic extent, but can include large numbers in a small area<sup>126</sup>.

- 20 Article 18 of the 1996 Draft Code of Crimes provided that a crime against humanity meant any one of a number of listed acts 'when committed in a **systematic** manner'. The ILC explained that this term meant

'pursuant to a preconceived plan or policy. The implementation of this plan or policy could result in the repeated or continuous commission of inhumane acts. The thrust of this requirement is to exclude a random act which was not committed as part of a broader plan or policy'<sup>127</sup>.

The ILC stated further that the Nuremberg Charter did not include such a requirement, but noted that the Nuremberg Tribunal had described many of the inhumane acts as having been committed as part of a policy of terror and in many cases being organised and systematic<sup>128</sup>. Some of the early decisions of the ICTY and ICTR Trial Chambers interpreted this term as setting a very high threshold<sup>129</sup>. For example, the *Tadić* Trial Chamber interpreted the term 'systematic' as indicating 'a pattern or methodical plan'<sup>130</sup> and the *Akeyesu* Trial Chamber stated, without citing any support, that '[t]he concept of 'systematic' may be defined as thoroughly organised and following a regular pattern on the basis of a common policy involving substantial public or private resources'<sup>131</sup>. However, subsequent jurisprudence of the ICTY Appeals Chambers and ICTR Trial Chambers has adopted a more expansive definition of 'systematic' as referring: 'to the organised nature of the acts of violence and the improbability of their random occurrence'<sup>132</sup>. The very same elements

<sup>123</sup> See note 121.

<sup>124</sup> *Ibid.*

<sup>125</sup> See *Situation in Kenya* (Authorisation Decision), note 35, para. 95. The Chamber also adopted the *Blaskić* definition, see note 121.

<sup>126</sup> *Prosecutor v. Bosco Ntaganda*, No. ICC-01/04-02/06-309, Decision on the Charges, Pre-Trial Chamber, 9 June 2014 (PURL: <http://www.legal-tools.org/doc/5686c6/>), paras. 22 ('several locations'), 24 (in 'a broad geographical area' over a long period of time); *Gbagbo* (Confirmation Decision), note 30, para. 224 ('widespread (i) involved a large number of acts; (ii) targeted and victimised a significant number of individuals; (iii) extended over a time period of more than four months; and (iv) affected the entire city of Abidjan').

<sup>127</sup> 1 YbILC 47 (199).

<sup>128</sup> *Ibid.*

<sup>129</sup> Cf. for instance *Blaskić* (Trial Chamber Judgment), note 30, para. 203, which introduced four criteria to define 'systematic' creating however a hypertrophic definition; these requirements are repeated in *Kordić and Čerkez* (Trial Chamber Judgment), note 30, para. 179; for a critic of those requirements see Ambos, *Treatise on ICL II* (2014) 60-1.

<sup>130</sup> See *Tadić* (Trial Chamber Judgment), note 29, para. 648.

<sup>131</sup> See *Akeyesu* (Trial Chamber Judgment), note 29, para. 580. These two additional requirements ('thoroughly organised and following a regular pattern' and using 'substantial resources') should not be regarded so much as requirements *stricto sensu*, but rather as an illustration of typical 'systematic' attacks. Otherwise, this view would, for example, exclude an attack with machetes from the systematic alternative, since machetes indicate a lack of resources (in terms of the availability of more effective weapons) or that the attack was sloppily organised. See also *Musema* (Trial Chamber Judgment), note 30, para. 204; *Rutaganda* (Trial Chamber Judgment), note 30, para. 69. See also *Prosecutor v. Seromba*, No. ICTR-2001-66-I, Judgment, Trial Chamber, 13 December 2006 (PURL: <http://www.legal-tools.org/doc/e0084d/>), para. 356.

<sup>132</sup> ICTY: see *Kordić* (Appeals Chamber Judgment), note 94, para. 94; see *Blaskić* (Appeals Chamber Judgment), note 121, para. 101; see *Kunarac* (Appeals Chamber Judgment), note 121, para. 94. ICTR: *Muvunyi* (Trial Chamber Judgment), note 30, para. 512 ('systematic' reflects the organised nature of the attack, excludes acts of random violence, and does not require a policy or plan'). See also *Kajelijeli* (Trial Chamber Judgment), note 91, para. 872 ('Systematic' describes the organised nature of the attack'); *Muhimana* (Trial Chamber Judgment), note 121, para. 527; *Semanza* (Trial Chamber Judgment), note 91, para. 329; *Musema* (Trial Chamber Judgment), note 30, paras. 203-204.



have been repeated by the ICC Pre-Trial Chamber II<sup>133</sup>. The Appeals Chambers have explained that '[p]atterns of crimes, in the sense of the non-accidental repetition of similar criminal conduct on a regular basis, are a common expression of such systematic occurrence'<sup>134</sup>. The common denominator of the various definitions found in the case law<sup>135</sup> is that such an attack 'is one carried out pursuant to a preconceived policy or plan'<sup>136</sup>. That does not mean, however, that the plan or policy element is 'a legal element of the crime', but only that it serves as an indicator of the 'systematicity' of the attack<sup>137</sup>. The attack is systematic, because the acts of the individual perpetrators are not random, but guided as to the envisaged object of the attack, namely the civilian population<sup>138</sup>.

It is important to note that '[o]nly the attack, not the individual acts of the accused, must be widespread or systematic'<sup>139</sup>. In addition, ICTY Appeals Chambers have underscored that 'the acts of the accused need only be a part of this attack, and all other conditions being met, a single or limited number of acts on his or her part would qualify as a crime against humanity, unless those acts may be said to be isolated or random'<sup>140</sup>. A more precise definition of the required link between the act and the attack may be derived from the rationale of crimes against humanity, that is, the protection against the particular dangers of multiple crimes supported or tolerated by the authorities. Thus, an adequate test to

<sup>133</sup> See *Situation in Kenya* (Authorisation Decision), note 35, para. 96; *Gbagbo* (Confirmation Decision), note 30, para. 223.

<sup>134</sup> ICTY: *Kordić* (Appeals Chamber Judgment), note 94, para. 94; *Blaškić* (Appeals Chamber Judgment), note 121, para. 101; *Kunarac* (Appeals Chamber Judgment), note 121, para. 94. ICTR: *Kajelijeli* (Trial Chamber Judgment), note 91, para. 872 ('Demonstration of a pattern of conduct will also carry evidential value'); *Muhimana* (Trial Chamber Judgment), note 121, para. 527 ('a deliberate pattern of conduct'). ICC: *Situation in Kenya* (Authorisation Decision), note 35, citing *Katanga and Ngudjolo* (Confirmation Decision), note 30, para. 397; *Prosecutor v. Blagojević and Jokić*, No. IT-02-60-T, Judgment, Trial Chamber, 17 January 2005 (PURL: <http://www.legal-tools.org/doc/7483f2/>), para. 545; *Ntaganda* (Confirmation Decision), note 126, para. 24; cf. also see Jurovics, in: Fernandez and Pacreau (eds.), *Statut de Rome de la Cour Pénale Internationale: Commentaire article par article* (2012) 417, 470-1.

<sup>135</sup> For more case law references cf. Ambos, *Treatise on ICL II* (2014) 60 with fn. 111.

<sup>136</sup> See *Bagilishema* (Trial Chamber Judgment), note 30, para. 77; *Vasiljević* (Trial Chamber Judgment), note 120, para. 35; *Katanga and Ngudjolo* (Confirmation Decision), note 30, para. 397; concurring *Al Bashir*, note 103, para. 81; *Gbagbo* (Confirmation Decision), note 30, para. 225 ('preparations for the attack were undertaken in advance', 'the attack was planned and coordinated', 'the acts of violence ... reveal a clear pattern of violence'); cf. also Ambos and Wirth (2002) 1 CLF 13, 18 *et seq.*, 30 with further references; concurring Meseke, *Der Tatbestand der Verbrechen gegen die Menschlichkeit nach dem römischen Statut des Internationalen Strafgerichtshofes: Eine völkerstrafrechtliche Analyse* (2004) 136, fn. 110; Cryer, *Prosecuting International Crimes: Selectivity and the International Criminal Law Regime* (2005) 254; see Jurovics, in: Fernandez and Pacreau (eds.), *Statut de Rome de la Cour Pénale Internationale: Commentaire article par article* (2012) 417, 467 *et seq.*

<sup>137</sup> See *Blaškić* (Appeals Chamber Judgment), note 121, para. 100; *Brđanin* (Trial Chamber Judgment), note 94, para. 137; *Tolimir* (Trial Chamber Judgment), note 72, para. 698; *Stanisić and Simatović* (Trial Chamber Judgment), note 30, para. 963; *Semanza* (Trial Chamber Judgment), note 91, para. 329; *Muhimana* (Trial Chamber Judgment), note 121, para. 527; Mettraux, *International Crimes and the Ad Hoc Tribunals* (2005) 172; for more indicators of a 'systematic' attack see *ibid.*, 171; *Prosecutor v. Harun and Kushayb*, No. ICC-02/05-01/07-1-Corr, Decision on the Prosecution Application, Pre-Trial Chamber 27 April 2007 (PURL: <http://www.legal-tools.org/doc/e2469d/>), para. 62 ('policy is an element from which the systematic nature of an attack may be inferred'); see also *Katanga* (Trial Chamber Judgment), note 30, paras. 1098, 1113 ('existence d'un schéma fait de comportements répétitifs...'; emphasis in the original), 1123; *Gbagbo* (Confirmation Decision), note 30, para. 216 ('"policy" and ... "systematic" nature of the attack ... both refer to a certain level of planning, concepts should not be conflated'). For a critical view on the high threshold see Cryer, *Prosecuting International Crimes: Selectivity and the International Criminal Law Regime* (2005) 254-5.

<sup>138</sup> An attack can, however, be 'systematic' even when there is no plan or policy; on that see *Katanga* (Trial Chamber Judgment), note 30, paras. 1111-13 (1113: 'L'analyse du caractère systématique de l'attaque va dès lors au-delà de l'existence d'une quelconque politique visant à éliminer, persécuter ou affaiblir une communauté').

<sup>139</sup> See *Kordić* (Appeals Chamber Judgment), note 94, para. 94; *Blaškić* (Appeals Chamber Judgment), note 121, para. 101; *Kunarac* (Appeals Chamber Judgment), note 121, para. 96; cf. also Ambos, *Treatise on ICL II* (2014) 75-6.

<sup>140</sup> See *Kordić* (Appeals Chamber Judgment), note 94, para. 94; *Blaškić* (Appeals Chamber Judgment), note 121, para. 101; *Kunarac* (Appeals Chamber Judgment), note 121, para. 96; *Vukovar Hospital Decision*, note 95, para. 30.

determine whether a certain act was part of the attack is to analyse whether this act would have been less dangerous for the victim if the attack and the underlying policy had not existed<sup>141</sup>.

- 22 It is difficult to outline concretely and exactly which factual circumstances are covered by each concept. The adjudication will have to take place on merits of each case. For example, two coordinated attacks on two large buildings with many floors causing thousands of deaths may qualify as widespread because of the number of victims and because the geographic scope of the attack when the total floor space is taken into consideration may well be greater in total and extent than a number of attacks on a group of widely scattered villages. Some practical guidance has already been provided in the case law that arose from the Second World War and, more recently, before the *ad hoc* International Tribunals<sup>142</sup>.
- 23 e) ‘directed against any civilian population’. The acts must be directed at ‘any civilian population’ to constitute a crime against humanity<sup>143</sup>. ‘Population’ refers to a multiplicity of persons sharing common attributes<sup>144</sup>. This requirement does not mean, however, that the entire population of a State, entity, or territory must be subjected to the attack<sup>145</sup>. As explained by the ICTY Appeals Chamber in the *Kunarac* case,

‘the use of the word ‘population’ does not mean that the entire population of the geographical entity in which the attack is taking place must have been subjected to that attack. It is sufficient to show that enough individuals were targeted in the course of the attack, or that they were targeted in such a way as to satisfy the Chamber that the attack was in fact directed against a civilian ‘population’, rather than against a limited and randomly selected number of individuals’<sup>146</sup>.

The use of ‘population’ implies the collective nature of the crimes to the exclusion of single acts<sup>147</sup>. The use of the term ‘directed against’ means that the civilian population must be the primary object of the attack:

<sup>141</sup> Cf. also Ambos, *Treatise on ICL II* (2014) 75–6; Ambos and Wirth (2002) 1 *CLF* 13, 36; concurring Parenti, in: Parenti, Filippini and Folgueiro (eds.), *Los crímenes contra la humanidad y el genocidio en el derecho internacional: Origen y evolución de las figuras, elementos típicos, jurisprudencia internacional* (2007) 59–60. See for examples where this is not the case: Mettraux (2002) 43 *HarvILJ* 237, 251–2.

<sup>142</sup> The Trial Chamber held in the *Tadić* (Trial Chamber Judgment), note 29, that the commission of inhumane acts against the population in one municipality, *Prijedor*, which included three detention camps and mass expulsions from the area, were sufficiently widespread and systematic (see paras. 660 and 714–718); *Ntaganda* (Confirmation Decision), note 126, paras. 22, 24.

<sup>143</sup> The emphasis on ‘any’ in the phrase ‘any civilian population’ is missing in the Elements of Crimes. In paragraphs 2 and 3 of the Introduction to article 7, the wording ‘a civilian population’ is repeatedly, although not exclusively, used and the first of the two common contextual elements uses ‘a civilian population’. Of course, to the extent of any divergence, article 7 prevails.

<sup>144</sup> Mettraux (2002) 43 *HarvILJ* 237, 255 (‘A ‘population’ is a sizeable group of people who possess some distinctive features that mark them as targets of the attack. The ‘population’ must form a self-contained group of individuals, either geographically or as a result of other common features’); see Werle and Jessberger, *Principles of International Criminal Law* (2014) 334 (‘any group of people linked by shared characteristics that in turn make it the target of an attack’); cf. also *Bemba* (Confirmation Decision), note 30, para. 76; *Prosecutor v. Ruto and others*, No. ICC-01/09-01/11-373, Confirmation Decision, Pre-Trial Chamber, 23 January 2012 (PURL: <http://www.legal-tools.org/doc/96c3c2/>), para. 164.

<sup>145</sup> See *Tadić* (Trial Chamber Judgment), note 29, para. 644; *Prosecutor v. Ruto and others*, No. ICC-01/09-01/11-373, Confirmation Decision, Pre-Trial Chamber, 23 January 2012 (PURL: <http://www.legal-tools.org/doc/96c3c2/>), para. 164. On the geographical scope of the attack, see Kuschnik, *Der Gesamtatbestand des Verbrechens gegen die Menschlichkeit: Herleitungen, Ausprägungen, Entwicklungen* (2009) 276.

<sup>146</sup> See *Kunarac* (Appeals Chamber Judgment), note 121, para. 90 (fn. omitted). Cited approvingly in *Kordić* (Appeals Chamber Judgment), note 94, para. 95, and in *Blaškić* (Appeals Chamber Judgment), note 121, para. 105.

<sup>147</sup> See *Tadić* (Trial Chamber Judgment), note 29, para. 644: ‘the emphasis is not on the individual victim but rather on the collective’. See also, Schwelb (1946) 23 *Brit.Y.B. IL* 178, 191; also Ambos and Wirth (2002) 1 *CLF* 13, 21 with further references; Werle, *Völkerstrafrecht* (2012) mn 862; König, *Die völkerrechtliche Legitimation der Strafgewalt internationaler Strafjustiz* (2003) 260–1; Mettraux, *International Crimes and the Ad Hoc Tribunals* (2005) 165; Robinson, in: Cryer, Friman, Robinson and Wilmschurst, *An Introduction to International Criminal Law and Procedure* (2014) 229, 240–1; Parenti, in: Parenti, Filippini and Folgueiro (eds.), *Los crímenes contra la humanidad y el genocidio en el derecho internacional: Origen y evolución de las figuras, elementos típicos,*

‘the expression “directed against” is an expression which “specifies that in the context of a crime against humanity the civilian population is the primary object of the attack”. In order to determine whether the attack may be said to have been so directed, the Trial Chamber will consider, *inter alia*, the means and method used in the course of the attack, the status of the victims, their number, the discriminatory nature of the attack, the nature of the crimes committed in its course, the resistance to the assailants at the time and the extent to which the attacking force may be said to have complied or attempted to comply with the precautionary requirements of the laws of war. To the extent that the alleged crimes against humanity were committed in the course of an armed conflict, the laws of war provide a benchmark against which the Chamber may assess the nature of the attack and the legality of the acts committed in its midst’<sup>148</sup>.

However, the victims of the attack need not be targeted because of their membership in a certain group<sup>149</sup> – a discriminatory intent is insofar not required<sup>150</sup>. It suffices that a multiplicity of victims exists. Insofar, the population requirement does not add anything to the attack requirement, since the multiplicity of the victims is already covered by the ‘widespread’ and ‘systematic’ elements. The population requirement only qualifies the targeted group as being ‘civilian’<sup>151</sup>.

In determining the scope of the terms ‘civilian’ and ‘civilian population’, the ICTY Appeals Chamber has stated that the provisions in article 50 of Add. Prot. I ‘may largely be viewed as reflecting customary law’<sup>152</sup>. Although this article expressly applies to international armed conflict, national and international courts have adopted a similar approach in determining whether a person or a population is civilian for the purpose of deciding whether crimes against humanity in other circumstances have occurred. Paragraph 1 of this article defines a civilian in international armed conflict as:

‘any person who does not belong to one of the categories of persons referred to in article 4 (A) (1), (2), (3) and (6) of the Third Convention and in article 43 of this Protocol. In case of doubt whether a person is a civilian, that person shall be considered to be a civilian’<sup>153</sup>.

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*jurisprudencia internacional* (2007) 53; Gotzel, *Terrorismus und Völkerstrafrecht: Die Anschläge vom 11. September 2001, der Tokioter Giftgasanschlag, die Geiselnahme von Beslan und die täglichen Anschläge im Irak vor dem Internationalen Strafgerichtshof* (2010) 204–5.

<sup>148</sup> See *Kunarac* (Appeals Chamber Judgment), note 121, para. 91 (fn. citing Trial Chamber Judgment omitted); *Blškić* (Appeals Chamber Judgment), note 121, para. 105 (citing *Kunarac*); *Lukić and Lukić* (Trial Chamber Judgment), note 30, para. 874; *Prosecutor v. D. Milošević*, No. IT-98-29/1-A, Judgment, Appeals Chamber, 12 November 2009 (PURL: <http://www.legal-tools.org/doc/44327f/>), para. 58; *Popović and others*, (Trial Chamber Judgment), note 30, para. 753; *Tolimir* (Trial Chamber Judgment), note 72, para. 696; *Stanišić and Simatović* (Trial Chamber Judgment), note 30, para. 964; *Semanza* (Trial Chamber Judgment), note 91, para. 330; concurring *Prosecutor v. Fofana and others*, No. SCSL-04-14-A, Judgment, Appeals Chamber, 28 May 2008 (PURL: <http://www.legal-tools.org/doc/b31512/>), para. 299; *Bemba* (Confirmation Decision), note 30, para. 77; *Situation in Kenya* (Authorisation Decision), note 35, para. 82; *Katanga* (Trial Chamber Judgment), note 30, para. 1104. cf. also Mettraux (2002) 43 *HarvILJ* 237, 247, 253; *id.*, *International Crimes and the Ad Hoc Tribunals* (2005) 164; Orlova (2007) 7 *ICLRev* 45, 50; Eboe-Osuji (2008) 2 *African J. Legal Studies* 118, 120 *et seq.*; Njikam, *The Contribution of the Special Court For Sierra Leone to the Development of International Humanitarian Law* (2013) 99.

<sup>149</sup> See also McAuliffe de Guzman (2000) 22 *HumRtsQ* 335, 362; Chesterman (2000) 10 *DukeJComp&IL* 307, 325; Pégrier, *Ethnic Cleansing: A Legal Qualification* (2013) 118.

<sup>150</sup> See *Tadić* (Appeals Chamber Judgment), note 73, (‘discriminatory intent ... indispensable ... only with regard to those crimes for which this is expressly required, that is, for article 5(h), concerning various types of persecution’).

<sup>151</sup> See also McAuliffe de Guzman (2000) 22 *HumRtsQ* 335, 362–4.

<sup>152</sup> See *Kordić* (Appeals Chamber Judgment), note 94, para. 97 (citing *Blškić* (Appeals Chamber Judgment), note 121, para. 110). The definitions in article 50 reflect customary international humanitarian law in both international and non-international armed conflict. Henckaerts and Doswald Beck, *Customary International Humanitarian Law: Rules* (2005) 17 (‘Rule 5. Civilians are persons who are not members of the armed forces. The civilian population comprises all persons who are civilians’) (stating that this rule ‘applies to non-international armed conflicts’).

<sup>153</sup> Add. Prot. I, article 50 para. 1. See *Blškić* (Appeals Chamber Judgment), note 121, paras. 110 *et seq.* (113). For a detailed discussion thereof cf. *Mrškić* (Trial Chamber Judgment), note 30, paras. 443 *et seq.* (463); *Popović and others* (Trial Chamber Judgment), note 30, para. 755; Dungel (2009) 22 *LeidenJIL* 727, 738. In this formal understanding see *Bemba* (Confirmation Decision), note 30, para. 78; *Situation in Kenya* (Authorisation Decision), note 35, para. 82; *Katanga* (Trial Chamber Judgment), note 30, para. 1102; see also May (2013) 11 *JICJ* 47, 53–4.

Paragraph 2 of article 50 of the Add. Prot. I states that '[t]he civilian population comprises all persons who are civilians'<sup>154</sup>. Early judgments of the ICTY and ICTR Trial Chambers had adopted a narrower concept of the term 'civilian' based on common article 3 of the Geneva Conventions as including all persons who have taken no active part in hostilities, or are no longer doing so, including members of armed forces who laid down their arms and persons placed *hors de combat* by sickness, wounds, detention or any other reason<sup>155</sup>. The use of the word 'any' in article 7 para. 1 indicates that the 'civilian population' includes persons of any nationality. Crimes against humanity can, thus, be committed against civilians of the same nationality as the perpetrator, and stateless persons<sup>156</sup>. In determining the existence of a civilian population, a court must consider 'the specific situation of the victim at the moment the crimes were committed, rather than his status'<sup>157</sup>. This approach is in line with the humanitarian purpose of crimes against humanity, since everyone except an active combatant of a hostile armed force is in a 'specific situation' requiring protection. As for times of peace, where no combatants exist, the term civilian should be interpreted more broadly than its humanitarian law counterpart, including every person, even soldiers<sup>158</sup> or members of the police<sup>159</sup>, who are in the need of protection<sup>160</sup>.

- 25 Paragraph 3 of article 50 of Add. Prot. I makes it clear that '[t]he presence within the civilian population of individuals who do not come within the definition of civilians does not deprive the population of its civilian character'<sup>161</sup>. This clarification has been followed by national and international courts<sup>162</sup>. Accordingly, it is not required the attack be directed

<sup>154</sup> Add. Prot. I, article 50 para. 2.

<sup>155</sup> This definition is based upon the categories of persons protected by common article 3 of the Geneva Conventions. Both the *Tadić* (Trial Chamber Judgment), note 29, paras. 637–638, and *Akayesu* (Trial Chamber Judgment note 29, para. 582, adopted this definition; cf. also *Blaškić* (Appeals Chamber Judgment), note 121, para. 114 (contra to note 30 (Trial Chamber Judgment), para. 214); concurring *Prosecutor v. Galić*, No. Case IT-98-29-A, Judgment, Appeals Chamber, 30 November 2006 (PURL: <http://www.legal-tools.org/doc/c81a32/>), para. 144. Differently, but again see *Krajisnik* (Trial Chamber Judgment), note 94, para. 706 ('civilian population, for the purposes of crimes against humanity, includes not only civilians narrowly defined, but also persons who are not taking active part in the hostilities'); also differently *Mrksić* (Trial Chamber Judgment), note 30, para. 463 ('if the victims are non-civilians, the more appropriate charge is war crimes').

<sup>156</sup> See *Tadić* (Trial Chamber Judgment), note 29, para. 635; *Kunarac* (Trial Chamber Judgment), note 30, para. 423; *Katanga* (Trial Chamber Judgment), note 30, para. 1103; cf. also Ambos and Wirth (2002) 1 CLF 13, 22 with further references; Mettraux (2002) 43 *HarvILJ* 237, 254, 256, 299–300.; *id.*, *International Crimes and the Ad Hoc Tribunals* (2005) 164–5.; Cassese and Gaeta, *Cassese's International Criminal Law* (2013) 101 *et seq.*; also Meseke, *Der Tatbestand der Verbrechen gegen die Menschlichkeit nach dem römischen Statut des Internationalen Strafgerichtshofes: Eine völkerstrafrechtliche Analyse* (2004) 149, 51; Robinson, in: Cryer, Friman, Robinson and Wilmschurst, *An Introduction to International Criminal Law and Procedure* (2014) 229, 240; Pégrier, *Ethnic Cleansing: A Legal Qualification* (2013) 115.

<sup>157</sup> See *Muvunyi* (Trial Chamber Judgment), note 30, para. 513 (citing *Bagilishema* (Trial Chamber Judgment), note 30, para. 79, and *Blaškić* (Trial Chamber Judgment), note 30, para. 214).

<sup>158</sup> Against this background, *Kayishema and Ruzindana* (Trial Chamber Judgment), note 30, para. 127; concurring, Mettraux (2002) 43 *HarvILJ* 237, 257; Meseke, *Der Tatbestand der Verbrechen gegen die Menschlichkeit nach dem römischen Statut des Internationalen Strafgerichtshofes: Eine völkerstrafrechtliche Analyse* (2004) 154; denying such protection to holders of state or other organised power Werle and Jessberger, *Principles of International Criminal Law* (2014) 337; Werle, *Völkerstrafrecht* (2012) mnn 869.

<sup>159</sup> See Cassese and Gaeta, *Cassese's International Criminal Law* (2013) 102–3; in favour, Meseke, *Der Tatbestand der Verbrechen gegen die Menschlichkeit nach dem römischen Statut des Internationalen Strafgerichtshofes: Eine völkerstrafrechtliche Analyse* (2004) 156; Borsari, *Diritto punitivo sovranazionale come sistema* (2007) 73; Kolb, in: Kolb and Scalia (eds.), *Droit International Pénal: Précis* (2012) 1, 102 ('hors de combat').

<sup>160</sup> Similarly Kolb, in: Kolb and Scalia (eds.), *Droit International Pénal: Précis* (2012) 1, 102 ('capacité effective de se défendre'); cf. also Ambos and Wirth (2002) 1 CLF 13, 25; Ambos, *Treatise on ICL II* (2014) 64 *et seq.*

<sup>161</sup> Add. Prot. I, article 50 para. 3.

<sup>162</sup> See *Tadić* (Trial Chamber Judgment), note 29, para. 638. ICTR Trial Chambers have reached a similar conclusion. See *Akayesu* (Trial Chamber Judgment), note 29, para. 582; *Muhimana* (Trial Chamber Judgment), note 121, para. 528; *Prosecutor v. Gacumbitsi*, No. ICTR-2001-64-T, Judgment, Trial Chamber, 17 June 2004 (PURL: <http://www.legal-tools.org/doc/b4e8aa/>), para. 302; *Blaškić* (Trial Chamber Judgment), note 30, para. 214; *Galić* (Appeals Chamber Judgment), note 155, para. 144; *Milutinović and others* (Trial Chamber Judgment), note 103, para. 146; *D. Milošević* (Appeals Chamber Judgment), note 148, para. 59; *Muvunyi* (Trial Chamber Judgment), note 30, para. 513; *Nzabirinda* (Sentencing Judgment), note 120, para. 22; *Katanga* (Trial

against the 'civilian population' as a whole, but only against a sufficient number of individuals.<sup>163</sup> It is, thus, evident that crimes against humanity cover a broader range of potential victims than war crimes. In addition to not requiring a nexus to armed conflict, in respect of crimes against humanity it is unnecessary to demonstrate that the victims are linked to any particular side in the attack against the civilian population, even if this occurs during armed conflict. War crimes, nevertheless, can only be committed by perpetrators on one side of an armed conflict against persons linked to the adversary<sup>164</sup>.

f) 'with knowledge of the attack'. Article 7 explicitly requires that the perpetrator must 26 commit the acts with knowledge of the broader widespread or systematic attack on the civilian population<sup>165</sup>. The second contextual element in the Elements of Crimes, common to all the individual acts of crimes against humanity of article 7, requires that '[t]he perpetrator knew that the conduct was part of or intended the conduct to be part of a widespread or systematic attack against a civilian population'. This requirement is consistent with the jurisprudence of the ICTY and ICTR, which has concluded that the perpetrator must know that there is an attack on a civilian population and that she knows that her acts are part of that attack<sup>166</sup>. From the fact that 'knowledge' is explicitly mentioned in article 7 and

Chamber Judgment), note 30, para. 1105; *Blaškić* (Appeals Chamber Judgment), note 121, para. 115 (depending on the number of the soldiers); *Gbagbo* (Confirmation Decision), note 30, para. 63 ('presence of combatants' does not contradict 'the civilian nature of population'); cf. also Ambos and Wirth (2002) 1 CLF 13, 22, 26, fn. 124; Mettraux (2002) 43 *HarvILJ* 237, 256–7, fns. 91, 95; *id.*, *International Crimes and the Ad Hoc Tribunals* (2005) 167–8; Meseke, *Der Tatbestand der Verbrechen gegen die Menschlichkeit nach dem römischen Statut des Internationalen Strafgerichtshofes: Eine völkerstrafrechtliche Analyse* (2004) 150; Kolb, in: Kolb and Scalia (eds.), *Droit International Pénal: Précis* (2012) 1, 103; critical Zahar and Sluiter, *International Criminal Law* (2008) 206–7, who deny that Geneva law could 'have any bearing on the law of crimes against humanity'. Similarly Robinson, in: Cryer, Friman, Robinson and Wilmshurst, *An Introduction to International Criminal Law and Procedure* (2014) 229, 241–2, who excludes only the cases of 'military actions against legitimate military objectives'. Although it is clear that a civilian population must be targeted, determining which particular individual qualifies as a civilian for the purposes of crimes against humanity is more difficult. It follows from the definition of 'civilian' that all non-combatants and persons who have laid down their arms, are included. However, it is unclear which combatants may qualify. It has been held that persons actively involved in resistance movements can be victims of crimes against humanity. In this regard, see *Vukovar Hospital Decision*, note 95, paras. 29 and 32; see *Tadić* (Trial Chamber Judgment), note 29, para. 643; and *Barbie*, note 59, at 139–140. See also the broad definition given to civilians for the purposes of the Geneva Conventions in *Prosecutor v. Delalić* (also known as the *Čelebići* Trial Chamber Judgment), No. IT-96-21-T, Judgment, Trial Chamber, 16 November 1998 (PURL: <http://www.legal-tools.org/doc/6b4a33/>), paras. 244–277.

<sup>163</sup> See *Katanga* (Trial Chamber Judgment), note 30, para. 1105 ('les civils étaient pris pour cible dans le cours de l'attaque en nombre suffisant ou d'une façon telle que l'attaque était effectivement dirigée contre la population civile'; emphasis added).

<sup>164</sup> See *Delalić* (*Čelebići* Trial Chamber Judgment), note 162, paras. 193–198.

<sup>165</sup> See *Tadić* (Trial Chamber Judgment), note 29, para. 656, and *Finta*, note 61, 701.

<sup>166</sup> ICTY: *Kordić* (Appeals Chamber Judgment), note 94, para. 99; *Blaškić* (Appeals Chamber Judgment), note 121, para. 124; *Kunarac* (Appeals Chamber Judgment), note 121, paras. 99, 102; *Tadić*, (Appeals Chamber Judgment), note 73, para. 248. ICTR: *Musema* (Trial Chamber Judgment), note 30, para. 206; *Kayishema and Ruzindana* (Trial Chamber Judgment), note 30, para. 134; *Kajelijeli* (Trial Chamber Judgment), note 91, para. 880; *Semanza* (Trial Chamber Judgment), note 91, para. 332; *Prosecutor v. Elizaphan and Gérard Ntakirutimana*, Cases No. ICTR-96-10 & ICTR-96-17-T, Judgment, Trial Chamber, 21 February 2003 (PURL: <http://www.legal-tools.org/doc/9a9031/>), para. 803; *Bagilishema* (Trial Chamber Judgment), note 30, para. 94; *Tolimir* (Trial Chamber Judgment), note 72, para. 700; *Munyakazi* (Trial Chamber Judgment), note 30, para. 504; *Katanga and Ngudjolo* (Confirmation Decision), note 30, paras. 401–2; *Prosecutor v. Al Bashir*, No. ICC-02/05-01/09-95, Second Arrest Warrant Decision, Pre-Trial Chamber, 12 July 2010 (PURL: <http://www.legal-tools.org/doc/307664/>), para. 87; *Katanga* (Trial Chamber Judgment), note 30, paras. 782, 971, 983. See also Ambos (2004) 19 *AIDP* 219, 249; Werle, *Völkerstrafrecht* (2012) mn 462, 894; Meseke, *Der Tatbestand der Verbrechen gegen die Menschlichkeit nach dem römischen Statut des Internationalen Strafgerichtshofes: Eine völkerstrafrechtliche Analyse* (2004) 116, 165–6; Mettraux, *International Crimes and the Ad Hoc Tribunals* (2005) 161, 164, 170, 173; Robinson, in: Cryer, Friman, Robinson and Wilmshurst, *An Introduction to International Criminal Law and Procedure* (2014) 229, 243–4; Jesse, *Der Verbrechensbegriff des Römischen Statuts: Ein Beitrag zu einer Statutsimmanenten Strukturanalyse des Römischen Statuts des Internationalen Strafgerichtshofs* (2009) 197 et seq.; Ford (2010) 38 *DenverJIL&Pol* 241–2; see Gless, *Internationales Strafrecht: Grundriss für Studium und Praxis* (2011) mn 827; against a mental requirement, see Kirsch, in: Michalke, Köberer and Pauly (eds.), *Festschrift für Rainer Hamm zum 65. Geburtstag am 24. Februar 2008* (2008) 269, 286.



separately required in the Elements of Crimes for each of the underlying acts follows that the knowledge requirement constitutes an **additional mental element** to be distinguished from the general *mens rea* requirement of article 30<sup>167</sup>. In structural terms, the knowledge requirement provides the necessary connection between the perpetrator's individual acts and the overall attack by means of the perpetrator's mindset, and ensures that single, isolated acts, which only happen to have been carried out contemporaneously with an overall attack – so-called 'opportunistic' acts – do not qualify as crimes against humanity and, therefore, cannot be prosecuted under article 7.

While the perpetrators must be aware that their acts form part of the collective attack<sup>168</sup>, this does not mean that they must have knowledge of the entire attack in all of its detail<sup>169</sup>. The *specific contents* of the required knowledge and its *object of reference* remain in dispute<sup>170</sup>. As to the former, according to the risk-oriented or risk-based approach proposed by the *Blaskić* TC, knowledge also includes the conduct 'of a person taking a deliberate risk in the hope that the risk does not cause injury'<sup>171</sup>. This approach extends knowledge from 'full' or 'positive' or 'actual' knowledge well into the field of recklessness, and, the 'constructive knowledge'<sup>172</sup> which exists when the perpetrator is aware of the risk that his conduct can be objectively construed as part of the broader attack<sup>173</sup>. Regarding the knowledge of the attack itself, as explained in the Elements of Crimes, the perpetrator need not have 'knowledge of all characteristics of the attack or the precise details of the plan or policy of the State or organisation', but it suffices that he is aware of the existence of the attack in general<sup>174</sup>. In particular, it is not necessary to demonstrate that the perpetrator knew that his actions were inhumane, or rose to the level of crimes against humanity<sup>175</sup>, but only that he was aware of the facts related to the attack which increased the dangerousness of his conduct for the victims or turned this conduct into a contribution to the crimes of others<sup>176</sup>. This standard corresponds to the risk-based approach<sup>177</sup>.

- 27 It has long been settled that under customary international law the acts need not be committed with a *discriminatory intent* on any particular ground, except for persecution<sup>178</sup>. While the 'old' jurisprudence since *Tadić*, based partly on the Secretary General Report on the establishment of the ICTY<sup>179</sup> and partly on the wording of article 3 ICTR Statute<sup>180</sup>, required such a special intent<sup>181</sup>, that position has always been criticised by scholars<sup>182</sup> and

<sup>167</sup> See Ambos, *Treatise on ICL II* (2014) 77, with further references.

<sup>168</sup> For further case law references see *ibid.*, fn. 226.

<sup>169</sup> See *Entscheidungen des Obersten Gerichtshofes für die Britische Zone in Strafsachen* (1948–1950), Vol. 1, Case 2, at 6–10; Case 4, at 19–25; Case 16, at. 60–2; Case 23, at 91–5; Case 25, at 105–110; Case 31, at 122–126; and Case 34, at 141–143.

<sup>170</sup> See Ambos and Wirth (2002) 1 CLF 13, 37 *et seq.*

<sup>171</sup> See *Blaskić* (Trial Chamber Judgment), note 30, para. 102; for more concurring case law references, see Ambos, *Treatise on ICL II* (2014) 77, fn. 229.

<sup>172</sup> See *Tadić* (Trial Chamber Judgment), note 29, para. 659; and *Finta*, note 61, 701.

<sup>173</sup> See Ambos, *Treatise on ICL II* (2014) 77, 78 fn. 230 with further references; cf. also Jurovics, in: Fernandez and Pacreau (eds.), *Statut de Rome de la Cour Pénale Internationale: Commentaire article par article* (2012) 417, 468.

<sup>174</sup> See Ambos, *Treatise on ICL II* (2014) 77, 78 fn. 231 with further references; cf. also Jurovics, in: Fernandez and Pacreau (eds.), *Statut de Rome de la Cour Pénale Internationale: Commentaire article par article* (2012) 417, 476–8; *Katanga and Ngudjolo* (Confirmation Decision), note 30, para. 401.

<sup>175</sup> *Ibid.*

<sup>176</sup> See Ambos and Wirth (2002) 1 CLF 13, 41.

<sup>177</sup> On the advantages of the risk-based approach when the attack is only imminent or has just begun see Ambos, *Treatise on ICL II* (2014) 78, fn. 234–6 and main text.

<sup>178</sup> Affirmation of the Principles of International Law recognised by the Charter of the Nurnberg Tribunal, GA Res. 95(I).

<sup>179</sup> See 1993 Report of UN Secretary-General, note 69, para. 48 ('Crimes against humanity refer to inhumane acts of a very serious nature, such as wilful killing, torture or rape, committed as part of a widespread or systematic attack against any civilian *ethnic, racial or religious grounds*'; emphasis added).

<sup>180</sup> '... on national, political, ethnic, racial or religious grounds...'

<sup>181</sup> See *Tadić* (Trial Chamber Judgment), note 29, paras. 650–652; see also *Rutaganda* (Trial Chamber Judgment), note 30, paras. 75–76.

<sup>182</sup> See, for example McAuliffe de Guzman (2000) 22 *HumRQ* 335, 364–368.



reversed by the *Tadić* appeal decision, which restricted the discriminatory intent to the crime of persecution<sup>183</sup>. This holding has been followed invariably by the ICTY<sup>184</sup>. The personal motives of the perpetrator in taking part in an attack on a civilian population are irrelevant in determining whether a crime against humanity occurred providing that it can be shown that the person acted with the required knowledge of the attack, and, in the case of persecution, harboured a discriminatory intent<sup>185</sup>:

‘the motives of the accused for taking part in the attack are irrelevant and a crime against humanity may be committed for purely personal reasons.’ Furthermore, the accused need not share the purpose or goal behind the attack. It is also irrelevant whether the accused intended his acts to be directed against the targeted population or merely against his victim. It is the attack, not the acts of the accused, which must be directed against the target population and the accused need only know that his acts are part thereof. At most, evidence that he committed the acts for purely personal reasons could be indicative of a rebuttable assumption that he was not aware that his acts were part of that attack<sup>186</sup>.

**g) Special remarks.** An important issue that will have to be addressed during each case before the ICC is what *evidence* will be sufficient to prove the widespread or systematic attack on the civilian population. Such attacks often involve a large number of acts, and complex and multi-layered forms of organisation and conduct<sup>187</sup>. It is not always possible to locate evidence concerning every aspect of the attack. One possible approach which may be pursued in certain cases is to focus on the planning, preparation and execution of the overall campaign against the civilian population, in question, at the highest levels of organisation, and use particular incidents to illustrate the various components of the campaign<sup>188</sup>. ICC Pre-Trial Chamber II found more recently that ‘established hierarchy’, the existence of a ‘military wing’, with disciplined soldiers, ‘effective system of communication’, ‘chain of

<sup>183</sup> This part of the Judgment was reversed on appeal; see *Tadić* (Appeals Chamber Judgment), note 73, para. 305 (‘Such an intent is an indispensable ingredient of the offence only with regard to those crimes for which this is expressly required, that is, for article 5 (h), concerning various types of persecution’). The requirement in the chapeau of article 3 of the ICTR Statute, has no basis in international law and applies only to trials in the ICTR; cf. *Prosecutor v. Akayesu*, No. ICTR-96-4-A, Judgment, Appeals Chamber, 1 June 2001 (PURL: <http://www.legal-tools.org/doc/c62d06/>), paras. 464, 465 (‘... except in the case of persecution, a discriminatory intent is not required by international humanitarian law as a legal ingredient for all crimes against humanity’).

<sup>184</sup> Cf. *Kupreskić* (Trial Chamber Judgment), note 83, para. 558; see *Blaškić* (Trial Chamber Judgment), note 30, para. 260; *Kordić and Čerkez*, (Trial Chamber Judgment), note 30, para. 186; *Popović and others* (Trial Chamber Judgment), note 30, para. 968; *Tolimir* (Trial Chamber Judgment), note 72, para. 849; cf. also *Muvunyi* (Trial Chamber Judgment), note 30, para. 514; *Prosecutor v. Zigiranyirazo*, No. ICTR-ICTR-01-73-T, Judgment, Trial Chamber, 18 December 2008 (PURL: <http://www.legal-tools.org/doc/08e038/>), para. 430. Also, the ICTR interpreted the reference to certain grounds in article 3 as belonging to the nature of the attack, not the perpetrator’s mens rea, cf. *Akayesu* (Appeals Chamber Judgment), note 127, para. 469, cited after *Bagilishema* (Trial Chamber Judgment), note 30, para. 81, fn. 79–80.

<sup>185</sup> *Attorney General v. Eichmann*, Supreme Court of Israel, 29 May 1962, 36 ILR. 277, 243–4 (1968); and *Finta*, note 61, 819.

<sup>186</sup> ICTY: see *Kunarac* (Appeals Chamber Judgment), note 121, para. 103 (fn. omitted). See also *Kordić* (Appeals Chamber Judgment), note 94, para. 99 (quoting *Kunarac*); *Blaškić* (Appeals Chamber Judgment), note 121, para. 124. ICTR: *Prosecutor v. Semanza*, No. ICTR-97-20-A, Judgment, Appeals Chamber, 20 May 2005 (PURL: <http://www.legal-tools.org/doc/a686fd/>), paras. 268–269; *Prosecutor v. Simba*, No. ICTR-01-76-T, Judgment, Trial Chamber, 13 December 2005 (PURL: <http://www.legal-tools.org/doc/373ff0/>), para. 421 (‘A perpetrator must have acted with knowledge of the broader context and knowledge that his acts formed part of the attack, but he need not share the purpose or goals behind the broader attack’) (fn. omitted); *Prosecutor v. Ndindabahizi*, No. ICTR-2001-71-I, Judgment and Sentence, Trial Chamber, 15 July 2004 (PURL: <http://www.legal-tools.org/doc/272b55/>), para. 478; *Semanza* (Trial Chamber Judgment), note 91, para. 332.

<sup>187</sup> *Pohl* Case, Trials of War Criminals Before the Nuernberg Military Tribunals Under Control Council Law No. 10, Vol. II, p. 59, which stated that in ‘an elaborate and complex operation’, the execution thereof, occurs ‘far removed from the original planners. As may be expected, we find the various participants in the programme tossing the shuttlecock of responsibility from one to the other’.

<sup>188</sup> See *Gbagbo* (Confirmation Decision), note 30, paras. 210 (‘the degree of planning, direction or organisation by a group or organisation’), 217 (‘understand how the organisation operates’ for instance in terms of whether a chain of command or certain internal reporting lines exist).

command', 'means and the capability to carry out military operations' indicate an organisational policy<sup>189</sup>. Individual perpetrators could be fitted into such a criminal scheme<sup>190</sup>.

- 29 A second question that should be highlighted relates to the *sentencing* for crimes against humanity. While the case law of the ad hoc Tribunals, albeit not unanimously, opted for an equal treatment approach, holding that crimes against humanity are not inherently more serious than war crimes<sup>191</sup>, it is more convincing to establish an abstract hierarchy between international crimes with genocide being the most serious crime followed by crimes against humanity and war crimes.<sup>192</sup> This follows in particular from the different context elements. As to crimes against humanity and war crimes it is clear that the systematic or widespread attack requirement increases the wrongfulness of the act, and thereby the culpability of the actor to a greater extent than the armed conflict requirement of war crimes<sup>193</sup>. Of course, with regard to the concrete sentencing, one must distinguish between abstract and concrete gravity and take into account other sentencing factors.<sup>194</sup>

## 2. The different subparagraphs

- 30 a) 'Murder'. Murder as a crime against humanity was recognised as early as the 1915 *Declaration of France, Great Britain and Russia*<sup>195</sup> and was included in the list of violations of the laws of humanity in the 1919 Peace Conference Commission report. It has been listed as the first crime against humanity in every instrument defining crimes against humanity<sup>196</sup>. In the light of this history, there was little controversy about including murder as a crime against humanity during the drafting of the Rome Statute<sup>197</sup>.

<sup>189</sup> Cf. *Ntaganda* (Confirmation Decision), note 126, paras. 14 *et seq.*; *Gbagbo* (Confirmation Decision), note 30, para. 217.

<sup>190</sup> For example, see the ICTY's Indictments against *Radovan Karadžić* and *Ratko Mladić* (*Prosecutor v. Karadžić and Mladić*, No. IT-95-5-I, Indictment, 25 July 1995 (PURL: <http://www.legal-tools.org/doc/899c89/>)) and *Dario Kordić* (*Prosecutor v. Kordić and Cerkez*, No. IT-95-14/2, Indictment, 30 September 1998 (PURL: <http://www.legal-tools.org/doc/15d8ed/>)).

<sup>191</sup> *Prosecutor v. Furundžija*, No. IT-95-17/1-A, Judgment, Appeals Chamber, 21 July 2000 (PURL: <http://www.legal-tools.org/doc/660d3f/>), para. 247 ('[T]here is no distinction in law between crimes against humanity and war crimes that would require, in respect of the same acts, that the former be sentenced more harshly than the latter'); *Tadić* (Appeals Chamber Judgment), note 73, para. 69 ('[T]here is in law no distinction between the seriousness of a crime against humanity and that of a war crime. The Appeals Chamber finds no basis for such a distinction in the Statute or the Rules of the International Tribunal construed in accordance with customary international law; the authorised penalties are also the same, the level in any particular case being fixed by reference to the circumstances of the case') (reversing the Trial Chamber sentencing judgment which made this distinction). These judgments squarely rejected the approach in the Joint separate opinion of Judges McDonald and Vorah in, which stated that 'all things being equal, a punishable offence, if charged and proven as a crime against humanity, is more serious and should ordinarily entail a heavier penalty than if it were proceeded upon on the basis that it were a war crime'. See also note 18, Ambos, 251-2.

<sup>192</sup> Cf. *ibid.*, 252-4.

<sup>193</sup> Cf. *ibid.*, 252-3.

<sup>194</sup> Cf. *ibid.*, 293-4 and on the sentencing factors 283 *et seq.*

<sup>195</sup> Declaration of France, Great Britain and Russia, 24 May 1915, quoted in Schwelb (1946) 23 *BYIL* 178. For a discussion, see Ambos, *Treatise on ICL II* (2014), 79-84; Werle and Jessberger, *Principles of ICL* (2014), 348-350; Schabas, *Commentary ICC* (2010), 157-158.

<sup>196</sup> *Charter of the International Military Tribunal, annexed to the London Agreement* (1945) (Nuremberg Charter), article 6 (c); Allied Control Council Law No. 10 (1945), article II para. 1 (c); *Charter of the International Military Tribunal for the Far East, Tokyo* (1946) (Tokyo Charter), article 5 (c); *Principles of International Law Recognised in the Charter of the Nuremberg Tribunal and in the Judgment of the Tribunal* (1950) (Nuremberg Principles), princ. VI (c); 1954 ILC Draft Code, article 2 para. 10 (inhuman acts); ICTY Statute (1993), article 5 (a); ICTR Statute (1994), article 3 (a); 1996 ILC Draft Code, UNTAET Reg. 2000/15 (2000), sect. 5.1 (a); Statute of the Special Court for Sierra Leone, article 2 (a); and Law on the Establishment of Extraordinary Chambers in the Courts of Cambodia for the Prosecution of Crimes Committed During the Period of Democratic Kampuchea (with inclusion of amendments as promulgated on 27 October 2004 (NS/RKM/1004/006)), article 5.

<sup>197</sup> Murder was included as the first crime against humanity in one of the lists in the 1996 Preparatory Committee's compilation of proposals (known as the Telephone Book of Buenos Aires because of its length), but bracketed with wilful killing, the term used in the grave breaches provisions of the Geneva Conventions, as an

The ILC in 1996 explained why it did not define this crime in the Draft Code: 'Murder is a crime that is clearly understood and well defined in the national law of every State. This prohibited act does not require any further explanation'<sup>198</sup>. However, this finding is misleading. As evidenced in scholarship and practice, there are significant differences between national definitions of murder<sup>199</sup>. This was recognised by some delegations in the Preparatory Committee, which argued that the Court, like the other international criminal courts, would need to consider its definition under international law<sup>200</sup>. For example, under English common law, murder is an unlawful homicide committed with 'malice aforethought'; such malice implying neither pre-meditation nor ill-will, but either the intention to kill (express malice) or the intention to cause grievous bodily harm (implied malice), whether the accused foresaw the possibility of death or not<sup>201</sup>. French law appears to restrict the crime of murder (*meurtre*) to cases where the person intended to kill the victim<sup>202</sup>. Unfortunately, few decisions of international courts or commentators discussed the elements of the crime before the diplomatic conference<sup>203</sup>. The Nuremberg Judgment did not discuss the elements of the crime of murder.

In Rome, the inclusion of murder as the first in the list of crimes against humanity 'was approved on the first day of negotiations on the definition of crimes against humanity and was not referred to again in the oral negotiating sessions'<sup>204</sup>. But no definition was offered in article 7 (2). This gap was subsequently closed through the Elements of Crimes, which use identical material elements in relation to murder as a crime against humanity (Element 1 to article 7 (1) (a)), genocide by killing (Element 1 to article 6 (a)), the war crime of willful

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alternative suggesting that the scope of each crime was considered similar. 1996 Preparatory Committee II, p. 65. Other formulations in the two other lists were '[wilful] murder [killing or extermination] [including killings by knowingly creating conditions likely to cause death]' and 'wilful killing'. *ibid.*, 67, 69. The report stated that some delegations had 'expressed the view that murder required further clarification given the divergences in national criminal laws. There were proposals to refer to wilful killing or to murder, including killings done by knowingly creating conditions likely to cause death'. 1996 Preparatory Committee I, p. 23. In February 1997, the Preparatory Committee list of crimes simply listed murder, without any further elaboration.

Murder, but without any further explanation, was the first crime against humanity listed in the Zutphen Draft under the chairmanship of Adriaan Bos. The Dutch delegation had invited the chairpersons of the various working groups of the Preparatory Committee to draft a new consolidated Draft that would merge the existing proposals in a workable text for the final meeting of the Preparatory Committee before the Rome Conference in the spring of 1998. The result of the deliberations at Zutphen is available at <<https://www.legal-tools.org/doc/7ba9a4/>> (accessed 4 February 2015). All citations to the Zutphen Draft in this Commentary are to the relevant draft articles. The Zutphen Draft was reorganised and partly revised at the final session of the Preparatory Committee held from 16 March to 3 April 1998 in what is sometimes known as the New York Draft, UN Doc. A/CONF.183/2/Add.2 (1998), which was submitted to the Rome Diplomatic Conference, but the list and order of crimes against humanity in article 5 of the New York Draft remained the same.

<sup>198</sup> 1996 ILC Draft Code, p. 96 (commentary to article 18).

<sup>199</sup> See also Ambos, *Treatise on ICL II* (2014) 80–84; Bassiouni, *Crimes Against Humanity* (2011) 366–368.

<sup>200</sup> 1996 Preparatory Committee I, para. 92; Heine and Vest, in: McDonald and Swaak-Goldman (eds.), *Substantive and Procedural Aspects of International Criminal Law: The Experience of International and National Courts* (2000) 175 (discussing the wide range of definitions of murder and homicide under national law); Horder, *Homicide in Comparative Perspective* (2007) (same).

<sup>201</sup> Allen, *Textbook on Criminal Law* (1991) 255–256. A Parliamentary committee has recommended that unforeseen but unlawful killings be considered manslaughter instead of murder. Report of the Select Committee of the House of Lords on Murder and Life Imprisonment (HL Paper 78–1 1989), para. 68. The government has proposed to amend the law of murder, but as of 1 December 2006, the proposals had not yet been enacted into law.

<sup>202</sup> Code Pénal (Daloz 1997–1998), article 221–1 ('*Le fait de donner volontairement la mort à autrui constitue un meurtre*').

<sup>203</sup> Professor Bassiouni is a notable exception. He argued in 1992 that state practice, in international and national prosecutions, indicated that 'murder is not intended to mean only those specific intentional killings without lawful justification', but also 'the creation of life – endangering conditions likely to result in death according to reasonable human experience', such as mistreatment of prisoners of war and civilians, and 'a closely related form of unintentional but foreseeable death which the common law labels manslaughter'. Bassiouni, *Crimes Against Humanity* (1992) 290–293; *id.*, *Crimes Against Humanity* (2011), 366–368.

<sup>204</sup> McCormack, in: McGoldrick, Rowe and Donnelly (eds.), *The Permanent International Criminal Court: Legal and Policy Issues* (2004) 179, 190.

killing (Element 1 to article 8 (2) (a) (i)) and the war crime of murder (Element 1 to article 8 (2) (c) (i)-1)<sup>205</sup>.

- 31 There has been extensive and often contradictory jurisprudence, largely since the Rome Conference, concerning the definitions of murder as a crime against humanity and as a war crime, and in particular the required mental element which differs across common law and Romano-Germanic systems<sup>206</sup>. As recently as December 2004, the ICTY Appeals Chamber in the *Kordić* case concluded after reviewing jurisprudence in the ICTY and ICTR since the Rome Diplomatic Conference in 1998 that '[t]he elements of murder as a crime against humanity are undisputed'<sup>207</sup>. However, in the light of divergences in the jurisprudence of the ICTY and ICTR Trial and Appeals Chambers on the definition of this crime, in particular whether it requires premeditation or not and whether recklessness is sufficient, this conclusion is not accurate<sup>208</sup>. The definition of this crime is gaining clearer contours but it is still evolving. A harsher judgment might be that for nearly a decade ICTY and ICTR Trial Chambers have continued to convict persons in exactly the same circumstances that would lead to acquittals in other Trial Chambers, and the Appeals Chambers of the two Tribunals have failed to resolve this problem, thus denying justice to the accused, victims and the general public<sup>209</sup>.

There is general agreement, starting with the September 1998 Trial Chamber Judgment in *Prosecutor v. Akayesu*, that (apart from the common contextual elements for crimes against humanity) the *actus reus* for murder as a crime against humanity requires that 'the victim is dead' and that 'the death resulted from an unlawful act or omission of the accused or a subordinate'<sup>210</sup>. ICTR Trial Chambers have generally identified the same two elements as articulated in *Akayesu*<sup>211</sup>. The ICTY Trial Chambers have done the same<sup>212</sup>. However, at least one ICTY Trial Chamber has formulated the second element slightly more broadly. In the 2002 *Krnjelac* Judgment, the ICTY Trial Chamber stated the second physical element as: 'The victim's death was caused by an act or omission of the accused, or of a person or persons for whose acts or omissions the accused bears criminal responsibility'<sup>213</sup>.

<sup>205</sup> For a differentiated definition see Element 1 to article 7 (1) (b) which adds: 'including by inflicting conditions of life calculated to bring about the destruction of part of a population'.

<sup>206</sup> Bassiouni argues that a common definition of the world's major legal systems includes 'what the common law considers to be voluntary and involuntary manslaughter, and what the Romano-Civilist-Germanic systems consider homicide with *dolus* and homicide with *culpa*. However, the latter systems allow consideration of motive while the former does not'. See Bassiouni, *Crimes Against Humanity* (2011), 367. See also Ambos, *Treatise on ICL II* (2014) 80–81.

<sup>207</sup> *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-A, 17 December 2004, para. 113.

<sup>208</sup> For a thorough analysis of the conflicting jurisprudence on this question through 2002, see Ambos and Wirth (2002) 13 CLF 1.

<sup>209</sup> The Appeals Chambers could have resolved this conflicting jurisprudence in any case involving murder as a crime against humanity, even if the mental element was not in issue. For example, the ICTY Appeals Chamber decided the question whether crimes against humanity could be committed for purely personal motives even when it had no bearing on the verdict in the case because the question was 'a matter of general significance' and decided that the Trial Chamber's conclusion that they could not was erroneous as a matter of law. *Prosecutor v. Tadić*, IT-94-1-A, 15 July 1999, para. 272.

<sup>210</sup> *Prosecutor v. Akayesu*, ICTR-96-4-T, 2 September 1998, para. 589. These three elements were in addition to the elements common to all crimes against humanity within the definition in article 3 of the Statute.

<sup>211</sup> See, for example, *Prosecutor v. Rutaganda*, ICTR-96-3-T, 6 December 1999, para. 80.

<sup>212</sup> See *Prosecutor v. Krajišnik*, No. IT-00-39-T, Judgment, Trial Chamber, 27 September 2006, para. 715; *Prosecutor v. Blagojević and Jokić*, No. IT-02-60-T, Judgment, Trial Chamber, 17 January 2005, para. 556; *Prosecutor v. Krnjelac*, No. IT-97-25-T, Judgment, Trial Chamber, 15 March 2002, para. 324; *Prosecutor v. Delalić et al. (Čelebići)*, IT-96-21-T, 16 November 1998, paras. 422, 439; *Prosecutor v. Jelisić*, No. IT-95-10-T, Judgment, Trial Chamber, 14 December 1999, para. 35; *Prosecutor v. Blaškić*, IT-95-14-T, 3 March 2000, para. 217; *Prosecutor v. Kupreškić et al.*, No. IT-95-16-T, Judgment, Trial Chamber, 14 January 2000, paras. 560–561; *Prosecutor v. Kordić and Čerkez*, No. IT-95-14/2-T, Judgment, Trial Chamber, 26 February 2001, para. 236; *Prosecutor v. Krstić*, No. IT-93-33-T, Judgment, Trial Chamber, 2 August 2001, para. 485; *Prosecutor v. Kvočka et al.*, No. IT-95-30/1-T, Judgment, Trial Chamber, 2 November 2001, para. 132.

<sup>213</sup> *Prosecutor v. Krnjelac*, IT-97-25-T, 15 March 2002, para. 324 (fn. omitted) (citing: *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-T, 26 February 2001, para. 236); *Prosecutor v. Delalić et al. (Čelebići)*, IT-96-21-T, 16 November 1998, para. 439.

The first fundamental split in the jurisprudence of the international criminal courts with regard to the mental element of murder as a crime against humanity is whether as part of the *mens rea* the perpetrator has premeditated the murder<sup>214</sup>. The Trial Chamber in *Akayesu* did not require premeditation under article 3 of the ICTR Statute and this view has been followed by some other ICTR Trial Chambers<sup>215</sup>. However, other ICTR Trial Chambers have insisted that premeditation is required under the ICTR Statute, although not under customary international law<sup>216</sup>. Such premeditation need not be an intent to kill a particular individual; 'it is sufficient that the accused had a premeditated intention to murder civilians as part of the widespread or systematic attack on discriminatory grounds'<sup>217</sup>. It has been described as involving 'intent to kill after a cool moment of reflection'<sup>218</sup>. In contrast, several ICTY Trial Chambers have concluded that premeditation is not required under the identically worded ICTY Statute<sup>219</sup>. In 2014, the Appeals Chamber confirmed in *Đorđević* that 'the case law of the ICTY has been consistent in not requiring premeditation as one of the elements of the crime of murder either as a violation of the laws or customs of war or as a crime against humanity'<sup>220</sup>. The split has no significance with regard to the interpretation of the scope of the jurisdictional definition in the Rome Statute of the crime against humanity of murder. The French version of article 7 para. 1 (a) uses the term '*meurtre*', which does not require premeditation, as opposed to '*assassinat*' which implies premeditated killing. Premeditation is thus not necessary<sup>221</sup>. This argument makes particular sense in relation to system criminality where the perpetrator may have planned, organised or endorsed murder of civilians, while remaining removed from the scene of the crime and lacking intent relating

<sup>214</sup> On 'unintended' killing and the Nuremberg Charter, see Bassiouni, *Crimes Against Humanity* (2011), 366, arguing that the Charter included 'foreseeable death that the common law labels manslaughter'.

<sup>215</sup> ICTR judgments concluding premeditation is not required: *Prosecutor v. Musema*, ICTR-96-13-T, 27 January 2000, paras. 214–216; *Prosecutor v. Rutaganda*, ICTR-96-3-T, 6 December 1999, paras. 79–80; *Prosecutor v. Akayesu*, ICTR-96-4-T, 2 September 1998, para. 588.

<sup>216</sup> ICTR judgments requiring premeditation: The first of these judgments was *Prosecutor v. Kayishema and Ruzindana*, ICTR-95-1-T, 21 May 1999, paras. 138–139 (concluding that premeditation was required, based not on an interpretation of customary international law, but on the use of the narrow term *assassinat* in the French version of the ICTR and ICTY Statutes as a translation for the English term murder, rather than on the broader term *meurtre* used in the Rome Statute), *Prosecutor v. Kayishema and Ruzindana*, No. ICTR-95-1-A, Judgment (Reasons), Appeals Chamber, 1 June 2001 (issue not addressed because the Prosecutor's appeal filed was late). See also *Prosecutor v. Bagilishema*, ICTR-95-1A-T, 7 June 2001, para. 84, *Prosecutor v. Bagilishema on other grounds*, No. ICTR-95-1A-A, Judgment (Reasons), Appeals Chamber, 3 July 2002; *Prosecutor v. Ntagerura*, No. ICTR-99-46-T, Judgment and Sentence, Trial Chamber, 25 February 2004; *Prosecutor v. Semanza*, No. ICTR-97-20-T, Judgment, Trial Chamber, 15 May 2003, para. 339; *Prosecutor v. Semanza*, No. ICTR-97-20-A, Judgment, Appeals Chamber, 20 May 2005 (issue of definition of murder not addressed); *Prosecutor v. Muhimana*, ICTR-95-1B-T, 28 April 2005, para. 569 (quoting *Prosecutor v. Semanza*, ICTR-97-20-T, 15 May 2003); *Prosecutor v. Muhimana*, No. ICTR-95-1B-A, Judgement, Appeals Chamber, 21 May 2007 (issue of definition of murder not addressed). For an analysis of the Trial Chamber Judgment in *Kayishema and Ruzindana*, see Boot, *Nullum Crimen Sine Lege and the Subject Matter of the International Criminal Court: Genocide, Crimes Against Humanity, War Crimes* (2002) 494–496. In the Trial Chamber's Judgment in *Prosecutor v. Ntakirutimana*, ICTR-96-10 & ICTR-96-17-T, 21 February 2003, para. 808, it simply said that the accused 'had the requisite intent' without specifying what it was.

<sup>217</sup> *Prosecutor v. Ntagerura*, ICTR-99-46-T, 25 February 2004, para. 700 (citing *Prosecutor v. Semanza*, ICTR-97-20-T, 15 May 2003, para. 339); *Prosecutor v. Semanza*, ICTR-97-20-A, 20 May 2005 (issue of definition of murder not addressed).

<sup>218</sup> *Kayishema and Ruzindana*, ICTR-95-1-T, 21 May 1999, para. 139.

<sup>219</sup> See, for example, *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-T, 26 February 2001, para. 235; *Prosecutor v. Jelisić*, IT-95-10-T, 14 December 1999, para. 51; *Prosecutor v. Blaškić*, IT-95-14-T, 3 March 2000, para. 216. In contrast, an ICTY Trial Chamber in the *Kupreškić* case defined murder as an 'intentional and premeditated killing', but it did not refer to the latter element in its factual findings, *Prosecutor v. Kupreškić et al.*, IT-95-16-T, 14 January 2000, para. 818. Similarly, the ICTY Trial Chamber in *Krstić* stated that it 'subscribes to the position previously adopted by the ICTR in the *Akayesu* Judgement' with regard to premeditation. *Prosecutor v. Krstić*, IT-93-33-T, 2 August 2001, paras. 484 and 1119.

<sup>220</sup> *Prosecutor v. Đorđević*, No. IT-05-87/1-A, Judgement, Appeals Chamber, 27 January 2014, para. 548. It added: 'While there is indeed a difference in the approach of some early trial judgments of the ICTR, the Appeals Chamber recalls that it is not bound by decisions of trial chambers', *ibid.*, para. 550.

<sup>221</sup> See also Ambos, *Treatise on ICL II* (2014) 83; Werle and Jessberger, *Principles of ICL* (2014) 350.



to a particular victim. This makes it difficult to distinguish the intent to kill as neatly from pre-deliberation as in certain domestic systems<sup>222</sup>.

- 33 The second fundamental split regarding *mens rea* is whether, as with the war crime of murder under common article 3 of the Geneva Conventions (incorporated in article 8 para. 2 (c) (i) of the Rome Statute) and willful killing as a grave breach of those Conventions (article 8 para. 2(a)(i) of the Rome Statute), recklessness is sufficient to prove murder as a crime against humanity<sup>223</sup>. In *Akayesu*, the ICTR Trial Chamber stated that the crime of murder as a crime against humanity under article 3 of its Statute was ‘the unlawful, intentional killing of a human being’, when ‘at the time of the killing the accused or a subordinate had the intention to kill or inflict bodily harm on the deceased having known that such bodily harm is likely to cause the victim’s death, and is reckless whether death ensues or not’ (para. 589). This slightly convoluted formulation requires that the perpetrator intended to kill or inflict bodily harm on the victim, knew that the harm was likely to cause death and was reckless whether death would result. Several of the ICTY Trial Chambers have required that the perpetrator intended to inflict severe, grievous or serious bodily harm<sup>224</sup>. A more significant difference has been that ICTY Trial Chambers and the Appeals Chamber have not included recklessness as a component of the mental element of murder as a crime against humanity<sup>225</sup>. For example, in the 2002 *Krnjelac* Judgment, the ICTY Trial Chamber stated the mental element of the crime of murder was:

‘That act was done, or that omission was made, by the accused, or a person or persons for whose acts or omissions he bears criminal responsibility, with an intention:

1. to kill, or
2. to inflict grievous bodily harm, or
3. to inflict serious injury, in the reasonable knowledge that such act or omission was likely to cause death’<sup>226</sup>.

One of the Special Panels for Serious Crimes of the District Court for Dili in East Timor (now Timor-Leste), implementing UNTAET Reg. 2000/15, with the same wording as article 7

<sup>222</sup> For a discussion, see Ambos, *Treatise on ICL II* (2014) 83.

<sup>223</sup> The term ‘willful’ includes both intentional and reckless conduct. *Prosecutor v. Delalić et al. (Čelebići)*, IT-96-21-T, 16 November 1998, paras. 437 and 439 (Add. Prot. I, articles 11 and 85); Zimmermann, *Article 85*, in: Sandoz, Swinarski and Zimmermann, *Commentary on the Additional Protocols of 8 June 1977 to the Geneva Conventions of 12 August 1949* (1987) 3474; Dörmann, *Elements of War Crimes under the Rome Statute of the International Criminal Court* (2002) 43; for discussion, see also Ambos, *Treatise on ICL II* (2014), 81; Werle and Jessberger, *Principles of ICL* (2014), 349.

<sup>224</sup> ICTY: *Prosecutor v. Krstić*, IT-93-33-T, 2 August 2001, para. 485 (‘serious bodily harm’); *Prosecutor v. Krnjelac*, IT-97-25-T, 15 March 2002, para. 324 (‘grievous bodily harm’) (citing: *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-T, 26 February 2001, para. 236); *Prosecutor v. Delalić et al. (Čelebići)*, IT-96-21-T, 16 November 1998, para. 439), *Prosecutor v. Delalić et al. (Čelebići)*, No. IT-97-25-A, Judgement, Appeals Chamber, 17 September 2003 (definition of murder not addressed). ICTR: *Prosecutor v. Bisengimana*, No. ICTR-00-60-T, Judgement, Trial Chamber, 13 April 2006, para. 87 (‘grievous bodily harm’).

<sup>225</sup> See *Prosecutor v. Krajišnik*, IT-00-39-T, 27 September 2006, para. 715; *Prosecutor v. Blagojević and Jokić*, IT-02-60-T, 17 January 2005, para. 556; *Prosecutor v. Krnjelac*, IT-97-25-T, 15 March 2002, para. 324; *Prosecutor v. Delalić et al. (Čelebići)*, IT-96-21-T, 16 November 1998, paras. 422, 439; *Prosecutor v. Jelisić*, IT-95-10-T, 14 December 1999, para. 35; *Prosecutor v. Blaškić*, IT-95-14-T, 3 March 2000, para. 217; *Prosecutor v. Kupreškić et al.*, IT-95-16-T, 14 January 2000, paras. 560–561; *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-T, 26 February 2001, para. 236; *Prosecutor v. Krstić*, IT-93-33-T, 2 August 2001, para. 485; *Prosecutor v. Kvočka et al.*, IT-95-30/1-T, 2 November 2001, para. 132.

<sup>226</sup> *Prosecutor v. Krnjelac*, IT-97-25-T, 15 March 2002, para. 324 (fn. omitted) (citing: *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-T, 26 February 2001, para. 236; *Prosecutor v. Delalić et al. (Čelebići)*, IT-96-21-T, 16 November 1998, para. 439). The Trial Chamber in *Krnjelac* added:

‘Many decisions of this Tribunal and of the ICTR have adopted a definition of murder which refers to only one or two of these alternative states of mind. The relevant states of mind have nevertheless been expressed in this way, sometimes in differing terms but to substantially the same effect’, in those decisions: *Prosecutor v. Akayesu*, ICTR-96-4-T, 2 September 1998, para. 589; *Prosecutor v. Delalić et al. (Čelebići)*, IT-96-21-T, 16 November 1998, paras. 425, 434–435, 439; *Prosecutor v. Kayishema and Ruzindana*, ICTR-95-1-T, 21 May 1999, paras. 150–151; *Prosecutor v. Rutaganda*, ICTR-96-3-T, 6 December 1999, para. 80; *Prosecutor v. Jelisić*, IT-95-10-T, 14 December 1999, para. 35; *Prosecutor v. Musema*, ICTR-96-13-T, 27 January 2000, para. 215; *Prosecutor v. Blaškić*, IT-95-14-T, 3 March 2000, paras. 153, 181.



para. 1 (a), has articulated a more restrictive four-part test which requires that the perpetrator's act be a substantial cause of the victim's death<sup>227</sup>. Several judgments of the Special Panels have indicated that premeditation is not required with respect to the crime against humanity of murder<sup>228</sup>.

Despite the statements by the ICTY Trial Chambers in *Krnjelac* and *Blagojević* that the elements of the crime of murder as a crime against humanity and as a war crime are essentially the same, other ICTY Trial Chamber judgments have recognised that the war crimes of murder under common article 3 of the Geneva Conventions and wilful killing as a grave breach under these Conventions have a broader mental element, by stating, as in the *Čelebići* case, that both require 'an intention on the part of the accused to kill, or inflict serious injury in reckless disregard of human life'<sup>229</sup>. In *Strugar*, the ICTY argued that 'necessary mental state exists when the accused knows that it is *probable* that his act or omission will cause death'<sup>230</sup>.

In the First Edition of this commentary, it was stated that such precedents, in particular the judgments of the Trial Chambers of the ICTY and the ICTR, would suggest that murder as a crime against humanity falls within the meaning of article 7 when the killing was either intentional or reckless, when the requirements of the chapeau are met. First, murder would occur where the accused or a subordinate intended (see article 30 para. 2 for a definition of intention) to kill the victim, the victim died, and the death was the result of an unlawful act or omission of the accused or a subordinate (where the requirements of superior responsibility under article 28 have been met). Second, murder would occur where the accused or a subordinate intended to inflict grievous bodily harm on the victim having known (see article 30 para. 3 for a definition of knowledge) that such bodily harm was likely to cause the victim's death and was reckless whether death would ensue or not, the victim died, and the death was the result of an unlawful act or omission of the accused or a subordinate (where the requirements of superior responsibility under article 28 have been met). However, as noted above, jurisprudence of international criminal courts subsequent to the First Edition of this commentary has indicated that it will be difficult to predict whether it will be possible to prove the crime against humanity of murder based on recklessness under the ICTY or ICTR Statutes or the UNTAET regulation establishing the Special Panels. In the light of the

<sup>227</sup> The Special Panel stated in the *Los Palos* case:

'644. The Panel accepts the opinion of the parties in relation to the general *mens rea* provided by Sect. 18 of UR-2000/15. For this reason, an accused charged with murder as a crime against humanity shall have his or her *mens rea* deemed by this Panel insofar as he or she has shown intent to cause the death of the victim or be (*sic*) aware that it will occur in the ordinary course of events. Accordingly, the Panel lists the four requisite elements of murder as a crime against humanity:

645. The victim is dead.

646. The death of the victim is the result of the perpetrator's act. The act must be a substantial cause of the death of the victim.

648. At the time of the killing, the accused must have meant to cause the death of the victim or was aware that it would occur in the ordinary course of events'.

*Prosecutor v. Marques (Los Palos case)*, No. 09/2000, Judgment, Special Panel for Serious Crimes, Dili District Court, 11 December 2001, paras. 644–649; see also *Prosecutor v. Lino de Carvalho*, No. 10/2001, Judgment, 18 March 2004, pp. 12–13 (adopting position in the *Marques* case). Other judgments (where they are readily available) do not expressly mention the elements of murder as a crime against humanity. See, for example, *Prosecutor v. A. Martins*, No. 11/2001, Judgment, Special Panel for Serious Crimes, Dili District Court, 13 November 2003.

<sup>228</sup> The Special Panels for Serious Crimes of the Dili District Court in East Timor have convicted persons of murder as a crime against humanity where there was no evidence of premeditation. *Prosecutor v. Marques (Los Palos case)*, 09/2000, 11 December 2001, para. 649 ('[I]n a murder, as a crime against humanity, there is no requirement of premeditation as the mental element for murder ... The *mens rea* is restricted to the deliberate intent to cause the death of the victim or that such result would occur in the ordinary course of events'); *Prosecutor v. Martins*, 11/2001, 13 November 2003, (some of the murders were not premeditated); *Prosecutor v. Agostinho Cloe*, No. 4/2003, Judgment, 16 November 2004, para. 15 (murder as a crime against humanity 'does not require deliberate intent or premeditation').

<sup>229</sup> *Prosecutor v. Delalić et al. (Čelebići)*, IT-96-21-T, 16 November 1998, para. 439. Subsequent judgments of the ICTY have reached similar conclusions with regard to these war crimes.

<sup>230</sup> *Prosecutor v. Strugar*, No. IT-01-42-T, Judgment, Trial Chambers, 31 January 2005, para. 236.

inconsistencies in this jurisprudence on this issue, and the ICC's cautious approach towards the incorporation of the rules and practices of other jurisdictions under article 21,<sup>231</sup> the weight of this post-Rome Conference jurisprudence in determining the scope of article 7 para. 1, mental element, remains limited. In the ICC context, particular regard must be paid to the hierarchy of sources under article 21<sup>232</sup>.

34 The text of article 7 para. 1 (a), which is silent on the mental element for murder, must first be interpreted in the light of the somewhat confusing and circular definitions of intent and knowledge in article 30. However, apart from the two contextual elements of the crime of murder as a crime against humanity, which are common to all crimes against humanity (see mn 14–27 above), the Elements of Crimes list only one material element of this crime: '(1) The perpetrator killed [fn. 7 omitted] one or more persons'. Footnote 7 adds that it 'applies to all elements which use either of these concepts', which would include the crime against humanity of extermination and certain war crimes<sup>233</sup>. In the absence of any mental element with respect to this material element, article 30 applies<sup>234</sup>.

35 In ICC jurisprudence, murder as a crime against humanity has been addressed in several cases. As recognised in ICC case-law, for murder to occur 'the victim has to be dead and the death must result from the act of murder' which 'may be committed by action or omission'<sup>235</sup>. In order to prove the death of the victim, there is 'no need to find and/or identify the corpse'<sup>236</sup>.

The death can be inferred from factual circumstances<sup>237</sup>. The necessary causal link between the act of murder and the victims' death can be shown by a number of factors, including 'the location of the alleged murder, its approximate date, the means by which the act was committed with enough precision, the circumstances of the incident and the perpetrator's link to the crime'<sup>238</sup>.

36 The mental element of murder requires 'intent and knowledge'. In relation to *conduct*, the accused has *intent* under article 30 para. 2 (a) where 'that person means to engage in the conduct'. Therefore, a person would have the necessary intent to engage in the conduct that

<sup>231</sup> *Prosecutor v. Joseph Kony et al.*, No. ICC-02/04-01/05-60, Decision on the Prosecutor's Position on the Decision of Pre-Trial Chamber II to Redact Factual Descriptions of Crimes in the Warrants of Arrest, Motion for Reconsideration, and Motion for Clarification, Pre-Trial Chamber II, 28 October 2005 (PURL: <https://www.legal-tools.org/doc/9dfa86/>), para. 19. For a contested exception ('customary international criminal procedural law'), see *Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, No. ICC-01/09-01/11-1274-Corr2, Decision on Prosecutor's Application for Witness Summonses and Resulting Request for State Party Cooperation, Trial Chamber V(A), 17 April 2014 (PURL: <https://www.legal-tools.org/doc/e28d64/>), para. 91. See also Nerlich, in: Stahn and Sluiter, *The Emerging Practice of the International Criminal Court* (2009) 305–326.

<sup>232</sup> For an excellent discussion, see Bitti, in: Stahn and Sluiter, *The Emerging Practice of the International Criminal Court* (2009) 285–304.

<sup>233</sup> Dörmann, *Elements of War Crimes under the Rome Statute of the International Criminal Court* (2002), para. 39 (In discussing the elements of the war crime of wilful killing in article 8 para. 2 (a) (i), which were agreed before the elements of crimes against humanity, he stated: 'The term "killed" creates the link to the "title" of the crime, and the term "caused death" was felt necessary to make it clear that conduct such as the reduction of rations for prisoners of war resulting in their starvation and ultimately their death is also covered by this crime').

<sup>234</sup> Although there was some jurisprudence by the ICTY and ICTR defining the mental element of the crime of murder when the Elements of Crimes were drafted, no agreement could be reached on the *mens rea* after delegates engaged in an extensive discussion of different concepts in various national legal systems in the context of the mental elements required for war crimes. Hall (2000) 94 *AJIL* 773, 781; Robinson, in: Lee (ed.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (2001) 80, 81.

<sup>235</sup> *Prosecutor v. Jean Pierre Bemba Gombo*, No. ICC-01/05-01/08-424, Decision Pursuant to article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor Against Jean-Pierre Bemba Gombo, Pre-Trial Chamber II, 15 June 2009 (PURL: <https://www.legal-tools.org/doc/07965c/>), para. 132.

<sup>236</sup> *Prosecutor v. Bemba*, ICC-01/05-01/08-424, 15 June 2009 (PURL: <https://www.legal-tools.org/doc/07965c/>), para. 133.

<sup>237</sup> In *Katanga*, Trial Chamber II noted that circumstantial evidence is sufficient provided that the death of the victim is the only reasonable inference. *Prosecutor v. Germain Katanga*, No. ICC-01/04-01/07-3436, Jugement rendu en application de l'article 74 du Statut, Trial Chamber II, 7 March 2014 (PURL: <https://www.legal-tools.org/doc/9813bb/>), para. 768.

<sup>238</sup> *Prosecutor v. Bemba*, ICC-01/05-01/08-424, 15 June 2009 (PURL: <https://www.legal-tools.org/doc/07965c/>), para. 133.

amounts to murder where the person meant to carry out the act that killed the victim or caused the death of the victim or meant to omit carrying out an act which led to the same result (such as a prison commandant intentionally failing to provide food or medicine to a prisoner in his or her custody where the failure to do so resulted in the prisoner's death). In relation to a *consequence*, the accused has *intent* under article 30 para. 2 (b) where 'that person means to cause that consequence or is aware that it will occur in the ordinary course of events'. A person has *knowledge* under article 30 para. 3 where there is 'awareness that a circumstance exists or a consequence will occur in the ordinary course of events'. PTC I held in the *Katanga and Ngudjolo Chui* Decision on the Confirmation of Charges that the offence of murder 'encompasses, first and foremost, cases of *dolus directus* of the first and second degree'<sup>239</sup>. A similar view was taken by PTC II in *Bemba*. The chamber clarified that a person would have intent to commit murder if the person 'meant to cause death or was aware that death "will occur in the ordinary course of events", [as] required by article 30(2)(b) of the Statute'<sup>240</sup>.

It is less clear that the accused would be responsible for murder if he or she was aware that the act or omission *would be likely to lead to death* in the ordinary course of events that the accused would be responsible for murder. Since knowledge includes awareness that a circumstance exists, that circumstance could be the *likelihood* that death would ensue as a result of the actions rather than the *certainty* that death would occur. There would be then no need to show that the person was reckless whether the death occurred or not, only that the person *intentionally* inflicted grievous bodily harm *knowing* that in such circumstances death would be likely to occur. In the Second Edition of this commentary the view was taken that such an interpretation of the crime of murder as a crime against humanity 'would be generally consistent with the majority of decisions by international courts and interpretation of commentators about the customary international law definition of the crime and with the purpose of the Statute, as well as with the broad range of conduct that constitutes extermination under article 7 para. 1 (b), which is murder on a large scale.' But this broad interpretation contrasts which the literal interpretation of article 30 by the Appeals Chamber in *Lubanga*<sup>241</sup> which confirmed the view put forward in *Bemba* that 'the standard for the foreseeability of events is *virtual certainty*'<sup>242</sup>. The Appeals Chamber stressed that the verb 'occur' is used with the modal verb 'will', and not with 'may' or 'could', while expressing reservation towards the relevance of 'risk' in interpreting article 30 (2) of the Statute<sup>243</sup>. ICC practice differs therefore from the more permissive practice of the *ad hoc* tribunals.

In the context of an armed conflict, unlawful acts or omissions include those in violation 37 of international humanitarian law, as well as those in violation of national law. In time of peace, unlawful acts or omissions include those which would cause 'extra-legal, arbitrary and summary executions' prohibited by article 1 of the *UN Principles on the Effective Prevention and Investigation of Extra-legal, Arbitrary and Summary Executions*<sup>244</sup>, as well as those in

<sup>239</sup> *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, No. ICC-01/04-01/07-717, Decision on the Confirmation of Charges, Pre-Trial Chamber I, 30 September 2008 (PURL: <https://www.legal-tools.org/doc/67a9ec/>), para. 423.

<sup>240</sup> *Prosecutor v. Bemba*, ICC-01/05-01/08-424, 15 June 2009 (PURL: <https://www.legal-tools.org/doc/07965c/>), para. 138.

<sup>241</sup> *Prosecutor v. Thomas Lubanga Dyilo*, No. ICC-01/04-01/06-3121-Red, Judgment on the Appeal of Mr Thomas Lubanga Dyilo against his conviction, Appeals Chamber, 1 December 2014, (PURL: <https://www.legal-tools.org/doc/585c75/>) para. 447.

<sup>242</sup> *Prosecutor v. Bemba*, ICC-01/05-01/08-424, 15 June 2009 (PURL: <https://www.legal-tools.org/doc/07965c/>), para. 362.

<sup>243</sup> *Prosecutor v. Lubanga*, ICC-01/04-01/06-3121-Red, 1 December 2014, (PURL: <https://www.legal-tools.org/doc/585c75/>) paras. 447 and 449. See generally Werle and Jessberger (2005) 3 *JICJ* 35, 41; Clark (2001) 12 *CLF* 291, 334; Ambos, *Der Allgemeine Teil des Völkerstrafrechts* (2002) 771; Badar, *The Concept of Mens Rea in International Criminal Law: the Case for a Unified Approach* (2013); Porro, *Risk and Mental Element. An Analysis of National and International Law on Core Crimes* (2014).

<sup>244</sup> *UN Principles on the Effective Prevention and Investigation of Extra-legal, Arbitrary and Summary Executions*, adopted by the Economic and Social Council (ECOSOC) Res. 1989/65 of 24 May 1989, article 1.

violation of national law. The United States of America has stated that such killings are crimes under the Rome Statute<sup>245</sup>.

Of course, a commander or a superior could be individually responsible pursuant to article 28 for murder on the basis of command or superior responsibility even though he or she did not actually kill the victim. Footnote 7 states that '[t]he term "killed" is interchangeable with the term "caused death"'. Therefore, a person could be held criminally responsible for murder for both acts and omissions, such as failing to feed or to provide necessary medical attention to a prisoner in his or her custody, where that failure caused the victim's death.

- 38 b) 'Extermination'. Like murder, the crime of extermination has been listed in all instruments concerning crimes against humanity since the Second World War<sup>246</sup>. It has been used by the ICTY and the ICTR in relation to the massacres in Srebrenica and Rwanda. There was general support for including extermination as a crime against humanity within the Court's jurisdiction, although some questioned whether it duplicated murder and genocide<sup>247</sup>. Although the crime of extermination included much of the genocide committed during the Second World War and it overlaps with the definition of that crime as defined in the 1948 *Convention on the Prevention and Punishment of the Crime of Genocide* (see commentary to article 6 above and analysis below), the crimes are distinct. The ILC explained the differences between the crimes against humanity of murder and extermination and killings constituting genocide in its comment on article 18 of the 1996 Draft Code:

'[Murder and extermination] consist of distinct and yet closely related criminal conduct which involves taking the lives of innocent human beings. Extermination is a crime which by its very nature is directed against a group of individuals. In addition, the act used to carry out the offence of extermination involves an element of mass destruction which is not required for murder. In this regard, extermination is closely related to the crime of genocide in that both crimes are directed against a large number of victims. However, the crime of extermination would apply to situations that differ from those covered by the crime of genocide. Extermination covers situations in which a group

<sup>245</sup> During the drafting of the 2004 GA Res. (UN Doc A/C.3/59/L.57/Rev.1) the United States urged that the following language be included: 'Acknowledges that extra-judicial, summary or arbitrary executions are crimes under the *Rome Statute* of the ICC and notes the 97 ratifications or accessions by States and the 139 signatures to date by States of the *Rome Statute* of the ICC'. This language was not included in the resolution as adopted solely because of concerns that the United States of America was seeking to minimize acceptance of the Rome Statute by omitting a call to states to consider ratifying it.

<sup>246</sup> It is included in article 6 (c) of the *Charter of the International Military Tribunal* (1945); article II para. 1 (c) of *Allied Control Council Law No. 10*; article 5 (c) of the *Charter of the International Military Tribunal for the Far East* (1946), principle VI (c) of the 1950 *Principles of International Law Recognised in the Charter of the Nuremberg Tribunal and in the Judgment of the Tribunal*, article 2 para. 10 (inhuman acts) of the 1954 ILC Draft Code, article 5 (b) of the 1993 ICTY Statute, and article 3 (b) of the 1994 ICTR Statute, article 18 (b) of the 1996 ILC Draft Code, sections 5.1 (b) and 5.2 (a) of UNTAET Reg. 2000/15, article 2 (b) of the Statute of the Special Court for Sierra Leone, and article 5 of the Law on the Establishment of Extraordinary Chambers in the Courts of Cambodia.

<sup>247</sup> Extermination was proposed in the *Ad Hoc* Committee to be included in the list of crimes against humanity, but it was also suggested that this was one of the crimes for which it was necessary to elaborate further its content. *Ad Hoc* Committee Report, p. 17.

Extermination was included in two of the lists of crimes against humanity in the 1996 Preparatory Committee II, pp. 65 and 67, but omitted in the third list. An annex to one of the lists defined extermination as:

'(i) mass murder; or

(i) intentionally inflicting conditions of life [calculated to][which the accused knew or had reason to know would] bring about the physical destruction of a defined segment of the population'.

*Ibid.*, p. 68. The report noted that '[t]he view was expressed that extermination should be deleted as a duplication of murder or clarified to distinguish between the two, with a proposal being made to refer to alternative offences'; 1996 Preparatory Committee I, p. 23. In February 1997, the Preparatory Committee list of crimes simply listed extermination, in the first paragraph of the article on crimes against humanity and in a second paragraph it explained that this crime 'includes the [wilful, intentional] infliction of conditions of life calculated to bring about the destruction of part of a population'.

Extermination was the second crime against humanity listed in the first paragraph of the crimes against humanity section of article 5 [20] of the Zutphen Draft, together with a second paragraph that was identical to the one in the February 1997 Report, and this wording remained unchanged in article 5 of the New York Draft, UN Doc. A/CONF.183/2/Add.2 (1998).

of individuals who do not share any common characteristics are killed. It also applies to situations in which some members of a group are killed while others are spared<sup>248</sup>.

In the ICC context, some guidance on the definition of extermination may be derived from article 7 (2) (b)<sup>249</sup>. It states that extermination ‘includes the intentional infliction of conditions of life, *inter alia* the deprivation of access to food and medicine calculated to bring about the destruction of part of a population’. Extermination differs from murder by the element of ‘mass killing’. This type of criminality may, in particular, require ‘a substantial degree of preparation and organisation’<sup>250</sup>.

In the First Edition of this commentary the view was expressed that the history of its application in international courts and its definition by commentators suggest that it has the following characteristics: It is murder on a large scale, meaning that it involves large numbers of victims<sup>251</sup>. It probably must satisfy the requirements of article 7 para. 1 (a) for the crime of murder. The person responsible does not need to know who the individual victims are. The killings are directed at groups of individuals, but these groups could include not only the national, ethnical, racial and religious groups which are expressly protected by the Genocide Convention, but a wide variety of other groups, such as political, social, linguistic groups and groups based on their sexual orientation, such as homosexuals, lesbians and transsexuals<sup>252</sup>. The members of the group would not have to share common characteristics and, perhaps, could simply be groups that existed as such only in the mind of the person responsible, such as all persons believed to be traitors to the State or ‘subversives’. Killings of members of protected groups which amount to genocide under article 6 (a) would, if committed on a large scale, constitute extermination within the meaning of article 7 para. 1 (b), but killings do not need to be on a large scale to constitute genocide and not all cases of extermination would amount to genocide under the Statute. This view has to some extent been confirmed by subsequent jurisprudence of international criminal courts, although that jurisprudence is not entirely consistent, and by the elements of this crime in the Elements of Crimes (see below mn 112–118).

One of the specificities of the ICC Statute is that it contains a synergy to genocide under article 6 (c), through its explicit reference to the infliction of ‘conditions of life calculated to

<sup>248</sup> 1996 ILC Draft Code, p. 97. A leading commentator came to a similar conclusion about the scope of examination:

‘The plain language and ordinary meaning of the word extermination implies both intentional and unintentional killing. The reason for the latter is that mass killing of a group of people involves planning and implementation by a number of persons who, though knowing and wanting the intended result, may not necessarily know their victims. Furthermore, such persons may not necessarily perform the *actus reus* which produced the deaths, nor have specific intent toward a particular victim. All of these are necessary elements of murder or its counterpart in the world’s major criminal justice systems. Thus, the individual responsibility of each actor (whether direct, indirect, or vicarious) for a given killing cannot be predicated on the element of specific knowledge of the identity of the victim or personal knowledge of the specific act that was the direct cause of death of a given victim. It is, therefore, necessary in that type of group killing to extend the definitions of “murder” and particularly that of “extermination” to include other forms of intentional and unintentional killing’.

Bassiouni, *Crimes against Humanity* (1992) 291.

<sup>249</sup> Ambos argues that the Statute ‘defines “extermination” as the “intentional infliction of conditions of life ... calculated to bring about the destruction of a part of the population”’. See Ambos, *Treatise on ICL II* (2014), 84. But the use of the word ‘includes’ leaves some doubt as to whether this is an exhaustive definition.

<sup>250</sup> See *Prosecutor v. Kristić*, IT-98-33-T, 2 August 2001, para. 501.

<sup>251</sup> According to one of the earliest commentaries on crimes against humanity, extermination under article 6 (c) of the *Charter of the International Military Tribunal* (1945) is apparently to be interpreted as ‘murder on a large scale’. Schwelb, (1946) 23 *BYIL* 178, 192.

<sup>252</sup> As to the distinction from the Genocide Convention, see also Ambos, *Treatise on ICL II* (2014), 84; Werle and Jessberger, *Principles of ICL* (2014); Indeed, as one of the drafters confirms, when the continuing need for including the crime of extermination in the list of crimes against humanity was questioned in Rome in the light of the Genocide Convention, ‘[t]hat question was answered emphatically by a number of delegations reminding the negotiators of the verbal agreement to define crimes against humanity broadly enough to cover limitations to the accepted definition of genocide’. McCormack, in: McGoldrick, Rowe and Donnelly (eds.), *The Permanent International Criminal Court: Legal and Policy Issues* (2004) 179, 190.



bring about the destruction of part of a population'<sup>253</sup>. Ambos even goes so far as to argue that the crime 'essentially consists of the creation of deadly living conditions amounting to widespread "mass" killings, which targets groups of persons'<sup>254</sup>. This view contrasts with the more flexible jurisprudence of the *ad hoc* tribunals which have recognised extermination irrespective of the 'creation of conditions of life' leading to death<sup>255</sup>. It is questionable whether the framing of the Statute is meant to exclude this flexibility. The Elements of Crimes indicate specifically that the 'conduct could be committed by different methods of killing, either directly or indirectly'<sup>256</sup>. It is thus more convincing to argue that extermination 'may be applied to acts committed with the intention of bringing about the death of a large number of victims either directly, such as by killing the victim with a firearm, or less directly, by creating conditions provoking the victim's death'<sup>257</sup>.

In the ICC context, extermination has been charged in the Darfur Situation. PTC I, in particular, confirmed with reference to ICTY and ICTR case-law that extermination requires that 'the relevant killings constitute or take place as part of "a mass killing of members of a civilian population"'<sup>258</sup>. Although extermination involves killings on a large scale, individuals may be held criminally responsible under article 7 for even one death, provided that it was part of large-scale killings<sup>259</sup>. This is made clear by the Elements of Crimes (for the scope of the crime of extermination under article 7, see mn 112–118 concerning article 7 para. 2 (b)).

- 39 c) 'Enslavement'. Slavery and the slave trade were among the earliest violations of human rights to be recognised as crimes under international law, although they were the subject of a comprehensive treaty only when the 1926 *Slavery Convention* was adopted<sup>260</sup>. Slavery and the slave trade in their traditional forms have all but vanished, but other forms of slavery continue to persist, as well as a wide variety of forms of slavery-like practices, including servitude and forced labour and trafficking, particularly involving women and children (see discussion below in mn 121–122)<sup>261</sup>. International law has evolved to address these new forms<sup>262</sup>. The prohibition of slavery is also found in provisions of general human rights

<sup>253</sup> Schabas, *Commentary ICC* (2010) 159.

<sup>254</sup> Ambos, *Treatise on ICL II* (2014) 84.

<sup>255</sup> See *Prosecutor v. Kayishema and Ruzindana*, ICTR-95-1-T, 21 May 1999, para. 144 ('The actor participates in the mass killing of others or in the creation of conditions of life that lead to the mass killing of others'); *Prosecutor v. Krstić*, IT-98-33-T, 2 August 2001, para. 503 ('there must be evidence that a particular population was targeted and that its members were killed or otherwise subjected to conditions of life calculated to bring about the destruction of a numerically significant part of the population').

<sup>256</sup> See Fn 8 to Element 1 of article 7 (1) (b).

<sup>257</sup> Emphasis added. See *Prosecutor v. Krstić*, IT-98-33-T, 2 August 2001, para. 498; Bassiouni, *Crimes Against Humanity* (2011) 372; Schabas, *Commentary ICC* (2010) 160.

<sup>258</sup> *Prosecutor v. Omar Hassan Ahmad Al Bashir*, No. ICC-02/05-01/09-3, Decision on the Prosecution's Application for a Warrant of Arrest against Omar Hassan Ahmad Al Bashir, Pre-Trial Chamber I, 4 March 2009 (PURL: <https://www.legal-tools.org/doc/e26cf4/>), para. 96.

<sup>259</sup> See also Ambos, *Treatise on ICL II* (2014) 85, stressing the need for a 'combined effect of a vast murderous enterprise and the accused's part in it'.

<sup>260</sup> *Slavery Convention*, signed 25 September 1926, entered into force 9 March 1927 (committing States '[t]o bring about, progressively and as soon as possible, the complete abolition of slavery in all its forms' and '[t]o prevent and suppress the slave trade'). For the early efforts to end slavery and the slave trade in one part of the world, see Thomas, *The Slave Trade: The History of the Atlantic Slave Trade: 1440-1870* (1997). See also Kaye, *1807-2007: Over 200 Years of Campaigning against Slavery* (2005); Allain (2009) 52 *Howard LJ* 239; Allain and Hickey (2012) 61 *ICLQ* 915–938.

<sup>261</sup> For extensive documentation of contemporary forms of slavery, see <<http://www.antislavery.org>> accessed 5 February 2015.

<sup>262</sup> Among the human rights instruments expressly addressing these evils are the *Supplementary Convention on the Abolition of Slavery, the Slave Trade, and Institutions and Practices Similar to Slavery*, adopted 7 September 1956, entered into force 30 April 1957; *Convention concerning Forced or Compulsory Labour* (Convention No. 29), adopted 28 June 1930, entered into force 1 May 1932; *Convention concerning the Abolition of Forced Labour* (Convention No. 105), adopted 25 June 1957, entered into force 17 January 1959.



instruments<sup>263</sup>. Each of the human rights treaties prohibiting slavery and servitude provide that these prohibitions are non-derogable, although not all of these treaties provide that other forms of enslavement are non-derogable. All forms of slavery are now a violation of international humanitarian law as well<sup>264</sup>. There was general agreement throughout the drafting process that enslavement should be included in the list of crimes against humanity over which the Court would have jurisdiction<sup>265</sup>.

The crime against humanity of enslavement has consistently been considered since 1945 to include slavery and most of the subsequent slavery-like practices, as well as related practices of forced labour. Article 6 (c) of the Nuremberg Charter included enslavement as a crime against humanity and deportation to slave labour as a war crime. Several defendants were convicted by the Nuremberg Tribunal of acts of enslavement as crimes against humanity and deportation to slave labour as war crimes. In the *Control Council Law No. 10* trials, the nature of enslavement has been aptly described in the *Pohl* case, as follows:

‘Slavery may exist even without torture. Slaves may be well fed, well clothed, and comfortably housed, but they are still slaves if without lawful process they are deprived of their freedom by forceful restraint. We might eliminate all proof of ill-treatment, overlook the starvation, beatings, and other barbarous acts, but the admitted fact of slavery – compulsory uncompensated labour – would still remain. There is no such thing as benevolent slavery. Involuntary servitude, even if tempered by humane treatment, is still slavery.’

Slavery has been recognised as a crime against humanity in subsequent instruments<sup>266</sup>. The ILC in its comment on article 18 (d) of the 1996 Draft Code listing enslavement as a

<sup>263</sup> See *Universal Declaration of Human Rights*, UNGA Res. 217A (III), 10 December 1948, article 4 (slavery, servitude and the slave trade); *European Convention for the Protection of Human Rights and Fundamental Freedoms* (ECHR) (1950), article 4 para. 1 (slavery, servitude, slave trade and forced or compulsory labour); *International Covenant on Civil and Political Rights* (ICCPR) (1966), article 8 (slavery, servitude and forced or compulsory labour); *American Convention on Human Rights* (1969), article 6 para. 1 (slavery, involuntary servitude, slave trade, traffic in women and forced or compulsory labour); and *African Charter on Human and Peoples’ Rights* (African Charter) (1981), article 5 (slavery and the slave trade).

<sup>264</sup> Article 4 para. 2 (f) of Add. Prot. II prohibits ‘slavery and the slave trade in all their forms’ in non-international armed conflict.

<sup>265</sup> Enslavement was proposed in the *Ad Hoc* Committee to be included in the list of crimes against humanity, but it was also suggested that this was one of the crimes for which it was necessary to elaborate further its content. *Ad Hoc* Committee Report, p. 17.

Enslavement was included as the third crime against humanity in three separate lists (in two, without further elaborations, and in the other, it was described as ‘[including slavery-related practices and forced labour]; [establishing or maintaining over persons a status of slavery, servitude or forced labour]’ in the 1996 Preparatory Committee II, pp. 65 and 67. An explanatory statement was included in an annex to one of the lists which said: ‘Enslavement means intentionally placing or maintaining a person in a condition in which any or all of the powers attaching to the right of ownership are exercised over him’. *id.*, p. 68. The report further explained:

‘Some delegations expressed the view that enslavement required further clarification based on the relevant legal instruments. There were proposals to refer to enslavement, including slavery-related practices and forced labour; or the establishment or maintenance over persons of a status of slavery, servitude or forced labour. The view was expressed that forced labour, if included, should be limited to clearly unacceptable acts’.

1996 Preparatory Committee I, p. 24. In February 1997, the Preparatory Committee list of crimes simply included enslavement, without any further elaboration.

Enslavement, again without further elaboration, was also the third crime against humanity listed in article 5 [20], of the Zutphen Draft, and it remained the same in article 5 of the April 1998 New York Draft.

One participant in the Rome Diplomatic Conference has stated that the drafters focused on the exercise of the powers attaching to the right of ownership as the main characteristic of enslavement, see McCormack, in: McGoldrick, Rowe and Donnelly (eds.), *The Permanent International Criminal Court: Legal and Policy Issues* (2004) 179, 191, but, as is clear from the drafting history and the nature of the crime, as described below, the crime includes contemporary forms of slavery, which involve a range of other characteristics.

<sup>266</sup> *Allied Control Council Law No. 10*, article II para. 1 (c); *Charter of the International Military Tribunal for the Far East* (1946), article 5 (c); 1950 *Principles of International Law Recognised in the Charter of the Nuremberg Tribunal and in the Judgment of the Tribunal*, principle VI (c); 1954 ILC Draft Code, article 2 para. 10 (inhuman acts); ICTY Statute, article 5 (c); ICTR Statute, article 3 (c); 1996 ILC Draft Code, article 18 (d); UNTAET Reg. 200/15, Section 5.1 (c) and 5.2 (b); Statute of the Special Court for Sierra Leone, article 2 (c); Law on the Establishment of Extraordinary Chambers in the Courts of Cambodia, article 5, and it was included as a charge in several indictments issued by the two International Criminal Tribunals before the Rome Diplomatic Conference.

crime against humanity explained that '[e]nslavement means establishing or maintaining over persons a status of slavery, servitude or forced labour contrary to well-established and widely recognised standards of international law', citing, in an illustrative list, some of the human rights treaties mentioned above<sup>267</sup>. For the history of international legal steps to abolish trafficking, see mn 121.

- 41 The crime of enslavement has, at least since the end of the Second World War, encompassed three components: slavery, servitude and forced or compulsory labour. *Slavery* is defined in article 1 para. 1 of the 1926 *Slavery Convention* as the 'status or condition of a person over whom any or all of the powers attaching to the right of ownership are exercised'. The concept of slavery, like that of servitude, is broad enough to encompass persons carrying out the slave trade. The concept of *servitude* is much broader than the traditional concept of slavery and has been viewed by one commentator as applying 'to all conceivable forms of dominance and degradation of human beings by human beings', including slavery-like practices such as serfdom, debt bondage, traffic in women and children, compulsory betrothal of women, child labour and prostitution where the victims are not merely economically exploited, but totally dependent on others<sup>268</sup>. *Forced or compulsory labour* has been defined in article 2 para. 1 of ILO Convention No. 29 as 'all work or service which is extracted from any person under the menace of any penalty and for which the said person has not offered himself voluntarily'<sup>269</sup>. The jurisdiction of the Court over enslavement under article 7 para. 1 is more limited, not only by the chapeau to the article, but also by paragraph 2 (c) (see mn 120). The first part of the latter provision defines enslavement in a similar way to the 1926 *Slavery Convention* definition of slavery, but describes the act of enslavement – the exercise of powers of ownership over someone – rather than describing the status or condition of the victim.
- 42 However, despite this language it would be wrong to conclude that the jurisdiction of the Court over the crime of enslavement under paragraph 1 (c) was necessarily limited to the practice of traditional forms of slavery<sup>270</sup>. Given the horrors of enslavement during the

See, for example, *Prosecutor v. Gagović (Foča)*, No. IT-96-23-I, Indictment, 26 June 1996, para. 4.8 (acts of forcible sexual penetration of a person or forcing a person to penetrate another sexually). 7 40 See discussion below under article 7 para. 1 (g) of rape and other sexual violence. For recent jurisprudence concerning enslavement, see mn 119–120 [article 7 para. 2 (c)].

<sup>267</sup> 1996 ILC Draft Code, p. 98.

<sup>268</sup> Nowak, *UN Covenant on Civil and Political Rights: CCPR Commentary* (2005) 199.

<sup>269</sup> Not all forced or compulsory labour is prohibited in all circumstances. For standards in peacetime, see International Labour Organisation, *Convention Concerning Forced or Compulsory Labour* (No. 29) (1930); ICCPR, article 8 para. 3 (c). In addition, under strictly limited conditions civilians can be compelled to perform some forms of labour during an armed conflict. *Geneva Convention relative to the Protection of Civilian Persons in Time of War of August 12, 1949* (Fourth Geneva Convention), article 40; Add. Prot. II, article 5 (1) (e). See also *Prosecutor v. Krnojelac*, IT-97-25-T, 15 March 2002, para. 359 7 41; *Prosecutor v. Kunarac et al.*, IT-96-23-T & IT-96-23/1-T, 22 February 2001, para. 542 7 41; *Prosecutor v. Naletilić and Martinović*, No. IT-98-34-T, Judgment, Trial Chamber, 31 March 2003, paras. 250–335. 7 41.

<sup>270</sup> The first five arrest warrants issued by the Court each include counts of enslavement as a crime against humanity. See *Prosecutor v. Joseph Kony et al.*, No. ICC-02/04-01/05-53, Warrant of Arrest for Joseph Kony Issued on 8 July 2005 as amended on 27 September 2005, Pre-Trial Chamber II, 27 September 2005 (PURL: <https://www.legal-tools.org/doc/b1010a/>) (counts 11, 21 and 28); *id.*, No. ICC-02/04-01/05-57, Warrant of Arrest for Dominic Ongwen, Pre-Trial Chamber II, 8 July 2005 (PURL: <https://www.legal-tools.org/doc/7a2f0f/>) (count 28); *id.*, No. ICC-02/04-01/05-55, Warrant of Arrest for Raska Lukwiya, Pre-Trial Chamber II, 8 July 2005 (PURL: <https://www.legal-tools.org/doc/97466a/>) (count 6); *id.*, No. ICC-02/04-01/05-56, Warrant of Arrest for Okot Odhiambo, Pre-Trial Chamber II, 8 July 2005 (PURL: <https://www.legal-tools.org/doc/313f9b/>) (count 11); *id.*, No. ICC-02/04-01/05-54, Warrant of Arrest for Vincent Otti, Pre-Trial Chamber II, 8 July 2005 (PURL: <https://www.legal-tools.org/doc/f7c78c/>) (counts 6, 11, 21 and 28). However, the arrest warrants are heavily redacted and the Prosecutor's application for Warrants of Arrest under article 58, dated 6 May 2005, as amended and supplemented by the Prosecutor on 13 May 2005 and 18 May 2005, as well as the hearing on the application, remain under seal, so it is impossible to determine what the factual and legal basis was for each count. Situation in Uganda, No. ICC-02/04-01/05-1-US-Exp, Decision on the Prosecutor's Application for Warrants of Arrest under article 58, Pre-Trial Chamber II, 8 July 2005 (PURL: <https://www.legal-tools.org/doc/8db08a/>), unsealed pursuant to Decision ICC-02/04-01/05-52, dated 13 October 2005.

Second World War and the new forms of enslavement practiced in former Yugoslavia and Rwanda, it is difficult to believe that the drafters intended to restrict the Court's jurisdiction to a merely symbolic one over traditional forms of slavery where legislation provided that one human being had the right to own another human being as a mere chattel. No State has such legislation. Had the Court existed in 1945, under such a restrictive reading it would not have had jurisdiction over the persons who used slave labour in Nazi Germany. Moreover, the inclusion of the slavery-like practice of trafficking in persons as one form of enslavement (see mn 121–122), which is not a traditional form of slavery, but normally classified as servitude, is further evidence that the drafters did not wish the Court's jurisdiction to be limited to traditional forms of slavery<sup>271</sup>. The concept of exercising powers of ownership should be understood as broader than simply the exercise of control over another person within a legal framework which enables the person exercising control to go to court to enforce rights under national law over another person as a chattel, given that no State had such a legal system at the time the Rome Statute was adopted. It should also be seen as including the exercise of powers of *de facto* ownership contrary to national law. Indeed, some countries, such as the United States, have prosecuted private individuals for slavery where national law prohibits slavery.

Given the history of the struggle over more than two centuries to abolish slavery, slavery-like practices and forced labour, it is logical to assume that the drafters wished the Court to have jurisdiction over other slavery-like practices such as serfdom and debt bondage, as well as related practices, such as forced or compulsory labour, as crimes against humanity. As described below (see mn 119–121 – article 7 para. 2 (c)), jurisprudence and the Elements of Crimes have confirmed the view expressed in the First Edition of this commentary that the crime against humanity of enslavement includes contemporary forms of slavery. The reference to 'similar deprivation of liberty' in the Elements of Crimes makes it clear that the crime must be understood in a 'functional' sense<sup>272</sup>. A broad reading receives further support from the interpretation of the concept of 'ownership' in the context of sexual slavery (see article 7 (1) (g), mn 62) which contains an identical description of ownership in Element 1 of the Elements of Crimes. In the *Katanga* Judgment, Trial Chamber I associated the right of ownership over the victim with the creation of a situation of dependence that deprives the victim of all autonomy<sup>273</sup>. It took into account in particular the victim's own subjective perception of the situation<sup>274</sup>. As later confirmed in *Ntaganda*, the exercise of ownership can be shown by a 'combination of factors' such as, 'the detention or captivity in which the victim was held and its duration, the limitations to the victim's free movement, measures taken to prevent or deter escape, the use of force, threat of force or coercion, and the personal circumstances of the victim, including his/her vulnerability'<sup>275</sup>. In *Katanga*, the Trial Chamber specifically included in article 7 (1) (g)<sup>276</sup> situations in which women and girls were forced to 'share' their life with a person with whom they had to perform acts of a sexual nature. In addition, many of these practices would amount to other inhumane acts within the Court's jurisdiction under paragraph 1 (k) when they 'intentionally [cause] great suffering, or serious injury to body or to mental or physical health', which would often occur in such cases. These practices could also amount to persecution where they satisfied the requirements of paragraph 1 (h) and paragraph 2 (g) (see mn 70–86 and 141–143), or, in

<sup>271</sup> See also Van der Wilt (2014) 13 *Chinese JIL* 297.

<sup>272</sup> See Werle and Jessberger, *Principles of ICL* (2014) 354.

<sup>273</sup> *Prosecutor v. Katanga*, ICC-01/04-01/07-3436, 7 March 2014 (PURL: <https://www.legal-tools.org/doc/9813bb/>), para. 976. See generally Stahn (2014) 12 *JICJ* 809, 820–821.

<sup>274</sup> *Prosecutor v. Katanga*, ICC-01/04-01/07-3436, 7 March 2014 (PURL: <https://www.legal-tools.org/doc/9813bb/>), para. 976.

<sup>275</sup> *Prosecutor v. Bosco Ntaganda*, No. ICC-01/04-02/06-309, Decision Pursuant to article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor Against Bosco Ntaganda, Pre-Trial Chamber II, 9 June 2014 (PURL: <https://www.legal-tools.org/doc/5686c6/>), fn. 209.

<sup>276</sup> *Prosecutor v. Katanga*, ICC-01/04-01/07-3436, 7 March 2014 (PURL: <https://www.legal-tools.org/doc/9813bb/>), para. 978.

the context of certain systems of racial discrimination, 'the crime of apartheid' under paragraph 1 (j) (see mn 92–94).

- 44 d) 'Deportation or forcible transfer of population'. Article 7 (1) (d) protects 'the right and aspiration of individuals to live in their communities and homes without outside interference'<sup>277</sup>. It includes both, 'deportation' and 'forcible transfer'. Although these terms have not always been used consistently in international law, it is common to distinguish between deportation, meaning 'the forced removal of people from one country to another', and forcible transfer of population, meaning 'compulsory movement of people from one area to another within the same State'<sup>278</sup>. As explained below, the drafters of the Rome Statute and the Elements of Crimes intended to preserve this distinction. The Statute embraces thus the conception that it is the 'forced character of displacement and the forced uprooting of the inhabitants of a territory', rather than the 'destination to which these inhabitants are sent' that establishes criminal responsibility<sup>279</sup>.

Apart from this fundamental distinction, and specificities in application, the elements of these two crimes are essentially the same. Indeed, as the ICTY Trial Chamber concluded in the *Milošević* case, 'the values protected by both crimes are substantially the same, namely the "right of the victim to stay in his or her home and community and the right not to be deprived of his or her property by being forcibly displaced to another location"' <sup>280</sup>. In assessing the relevance of the jurisprudence of the ICTY and ICTR discussed below, it is important to bear in mind that the ICTY and ICTR Statutes listed only deportation as a crime against humanity. In determining whether numerous cases of forcible transfer of population within national borders which took place in the countries of the former Yugoslavia amounted to crimes against humanity, the Tribunals had four options. They could find that they constituted deportation under an expanded definition of the crime, that they were acts of persecution, that they were other inhumane acts or that they were simply war crimes. In general, the Tribunals followed the second and third options, but they also defined deportation under their Statutes somewhat more flexibly. Largely for reasons of convenience, the Elements of Crimes uses the term 'forcibly displaced' to describe both

<sup>277</sup> See *Prosecutor v. Krnojelac*, IT-97-25-A, 17 September 2003, para. 218.

<sup>278</sup> The ILC Commentary on article 18 (g) of the 1996 Draft Code explained: 'Whereas deportation implies expulsion from the national territory, the forcible transfer of population could occur wholly within the frontiers of one and the same State'. Part 2, (1996) 2 *YbILC* 48. See also Bassiouni, *Crimes against Humanity* (1992) 301; Mettraux (2002) 43 *HarvILJ* 237, 288. Jurisprudence since the Rome Diplomatic Conference has confirmed this distinction. The Trial Chamber in the *Milošević* case reviewed the law and commentaries and concluded that '[t]he jurisprudence of the Tribunal is not uniformly consistent in relation to the element of cross-border movement although, ... the preponderance of case law favours the distinction based on destination'. *Prosecutor v. Milošević*, No. IT-02-54-T, Decision on Rule 98bis, Trial Chamber, 16 June 2004, para. 58. The Trial Chamber, in *dicta*, citing the First Edition of this commentary, concluded that the drafters incorporated the same distinction in the Rome Statute. See also *Prosecutor v. Naletilić and Martinović*, IT-98-34-T, 31 March 2003 para. 670 (finding no persecution by deportation because there was no movement across a state frontier); *Prosecutor v. Stakić*, No. IT-97-24-A, Judgment, Appeals Chamber, 22 March 2006, para. 300 (deportation involves forcible transfers across national frontiers, from occupied territory and, 'under certain circumstances, displacement across a *de facto* border') and 302 (rejecting Trial Chamber's expansion of the definition to include forcible transfers across 'constantly changing front lines'); *Prosecutor v. Krnojelac*, IT-97-25-T, 15 March 2002, para. 474; *Prosecutor v. Krstić*, IT-93-33-T, 2 August 2001, para. 521; *Prosecutor v. Blagoje Simić et al.*, No. IT-95-9-T, Judgment, Trial Chamber, 17 October 2003, para. 129; *Prosecutor v. Blaškić*, IT-95-14-T, 3 March 2000, para. 234.

<sup>279</sup> See *Prosecutor v. Krnojelac*, IT-97-25-A, 17 September 2003, para. 218.

<sup>280</sup> *Prosecutor v. Milošević*, No. IT-02-54-T, Decision on Motion for Judgment of Acquittal, Trial Chamber, 16 June 2004, para. 69 (quoting *Prosecutor v. Simić et al.*, IT-95-9-T, 17 October 2003, para. 130). Indeed, an early decision by an ICTY Trial Chamber concluded that forcible transfers within Bosnia could constitute the crime against humanity of deportation, although, as discussed below, subsequent ICTY decisions have carefully distinguished the two concepts. See *Prosecutor v. Nikolić*, No. IT-94-2-R61, Review of Indictment Pursuant to Rule 61, Trial Chamber, 20 October 1995, para. 23.

deportation and forcible transfer<sup>281</sup>. The elements of the two crimes are discussed both under article 7 para. 1 (d) and para. 2 (d)<sup>282</sup>.

aa) ‘Deportation’. Although before the Second World War expulsions of aliens and nationals from a country or an occupied territory had occasionally led to international condemnation<sup>283</sup>, forced population exchanges between Greece and Turkey after the First World War had actually been required by the Treaty of Lausanne, and as recently as 1945 the Allies approved the expulsion of ethnic Germans and German nationals from countries in Central and Eastern Europe at the end of the Second World War in Europe<sup>284</sup>. However, three months after the German surrender article 6 (c) of the Nuremberg Charter defined ‘deportation’ as a crime against humanity<sup>285</sup>. Since that date, the forced deportation by States of their own nationals or of aliens across national frontiers in violation of international law, whether from the territory of the State or from occupied territory, has been recognised as a crime against humanity, as well as a war crime<sup>286</sup>.

There are at least three decisions by military courts under Allied *Control Council Law No. 10* dealing with deportation as a crime against humanity. In the *Milch* case, Judge Fitzroy D. Phillips, in a concurring opinion, after reviewing the requirements of the war crime of deportation, set out the circumstances when deportation constituted a crime against humanity:

‘Insofar as [article 52 of the Hague Regulations] limits the conscription of labour to that required for the needs of the army of occupation, it is manifestly clear that the use of labour from occupied territories outside of the area of occupation is forbidden by the Hague Regulations.

The second condition under which deportation becomes a crime occurs when the purpose of the displacement is illegal, such as deportation for the purpose of compelling the deportees to manufacture weapons for use against their homeland or to be assimilated in the working economy of the occupying country. [...]

The third and final condition under which deportation becomes illegal occurs whenever generally recognised standards of decency and humanity are disregarded. This flows from the established principle of law that an otherwise permissible act becomes a crime when carried out in a criminal manner. A close study of the pertinent parts of Control Council Law No. 10 strengthens the conclusions of the foregoing statements that deportation of the population is criminal whenever the purpose of the displacement is illegal or whenever the deportation is characterised by inhumane or illegal methods<sup>287</sup>.

<sup>281</sup> Fn. 13 states: “Deported or forcibly transferred” is interchangeable with “forcibly displaced”.

<sup>282</sup> The elements of this crime have been endorsed in the *Marques* case. *Prosecutor v. Marques (Los Palos case)*, 09/2000, 11 December 2001, paras. 650–655.

<sup>283</sup> For a historical account, see Bassiouni, *Crimes Against Humanity* (2011) 381–394.

<sup>284</sup> The Treaty of Peace between the Allied Powers and Turkey (Treaty of Lausanne), 28 LNTS 11, 24 July 1923. See also De Zayas (1975) 16 *HarvILJ* 207.

<sup>285</sup> *Charter of the International Military Tribunal* (1945), article 6 (c). In contrast, article 6 (b) defined ‘deportation to slave labour or for any other purpose of civilian population of or in occupied territory’ as a war crime, a crime of considerably narrower scope. Although it has been claimed that there is some ambiguity in this phrase about whether it includes ‘deportation’ wholly within occupied territory and that the German version used a term meaning within occupied territory, *Prosecutor v. Naletilić and Martinović*, IT-98-34-T, 31 March 2003, Judge Shomburg, (separate opinion), para. 12, this claim is not particularly persuasive. As a criminal statute, any ambiguity in the Nuremberg Charter created by the different language versions would have been read strictly in favour of the accused. Moreover, as the examples cited in this separate opinion indicate, the International Military Tribunal generally used the term deportation when the transfer occurred across a national frontier, even when that frontier was not internationally recognised or was a *de facto* international frontier, as between Alsace under direct German administration and France, although the usage was not always consistent, but the International Military Tribunal did not address the question of the definition of deportation. *ibid*.

<sup>286</sup> Deportation is listed as a crime against humanity in article II para. 1 (c) of Allied *Control Council Law No. 10*; article 5 (c) of the *Charter of the International Military Tribunal for the Far East* (1946); principle VI (c) of the 1950 *Principles of International Law Recognised in the Charter of the Nuremberg Tribunal and in the Judgment of the Tribunal*; article 2 para. 10 (inhuman acts) of the 1954 ILC Draft Code; article II (c) of the Apartheid Convention (denying members of a racial group of right to return to their country); article 5 (d) of the ICTY Statute; article 3 (d) of the ICTR Statute; article 18 (g) of the 1996 ILC Draft Code; UNTAET Reg. 2000/15, Section 5.1 (d) and 5.2 (c); Statute of the Special Court for Sierra Leone, article 2 (d); Law on the Establishment of Extraordinary Chambers in the Courts of Cambodia, article 5.

<sup>287</sup> *U.S. v. Milch (The Medical Case)*, Judgment, U.S. Military Tribunal, Nuremberg, Germany, 15 April 1947 (Judge Phillips, concurring), 2 *TWC before the Nuremberg Military Tribunals* 773 (U.S. Gov’t. Printing Office



He then stated that the general language of article II para. 1 (c) of *Allied Control Council Law No. 10* 'has unconditionally contended [sic, presumably 'defined'] as a crime against humanity every instance of the deportation of civilians', distinguishing the war crime of deportation to slave labour and the crime of enslavement, and added that '[t]he Tribunal holds that the deportation, the transportation, the retention, the unlawful use and the inhumane treatment of civilian populations by an occupying power are crimes against humanity'<sup>288</sup>. In the *RUSHA* case, the court treated forcible transfer of persons from that part of Poland incorporated into Germany across the *de facto* (and unrecognised) boundary to occupied Poland as deportation<sup>289</sup>. National courts in Latvia and Estonia have convicted persons of deportation as a crime against humanity across their national frontiers to Siberia after the illegal and unrecognised annexation of those countries by the USSR<sup>290</sup>.

Human rights instruments have since defined the circumstances when deportation of *nationals* is contrary to international law and standards<sup>291</sup>. These instruments have also indicated when deportation of *aliens* is prohibited<sup>292</sup>. There was strong support during the drafting of the Rome Statute for including deportation in the list of crimes against humanity within the jurisdiction of the Court, although two states had reservations about its scope<sup>293</sup>.

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1948), quoted in: *U.S. v. Alfred Felix Alwyn Krupp von Bohlen und Halbach (The Krupp Trial)*, Judgment, U.S. Military Tribunal, Nuremberg, Germany, 30 June 1948, 10 LRTWC 69 (London: HMSO 1949).

<sup>288</sup> *Ibid.*, 2101. The wording is not free from ambiguity, but it appears that Judge Phillips considered that the deportation of civilians – at least from occupied territory – alone was sufficient to constitute a crime against humanity in contrast to conditions required to constitute a violation of the Hague Regulations.

<sup>289</sup> *U.S. v. Greifelt (RUSHA case)* 13 LRTWC 20 (London: HMSO 1949).

<sup>290</sup> Internet news articles on the trial of *Mikhail Neverovsky* before Estonian Criminal Courts in 1998/99 are available at <<http://www.guardian.co.uk/GWeekly/Story/0,313625,00.html>>; <<http://www.themoscowtimes.com/sitemap/free/1999/7/article/estonia-convicts-man-for-soviet-deportations/274242.html>> accessed 5 February 2015. Internet news articles on the trial of *Alfons Noviks* and *Mikhail Farbtuh* before Latvian Courts in 1995 and 1999, respectively, are available at <[http://www.jamestown.org/single/?tx\\_ttnews%5Btt\\_news%5D=9106&tx\\_ttnews%5BbackPid%5D=209&no\\_cache=1#\\_VNNQ8Z3F-IU](http://www.jamestown.org/single/?tx_ttnews%5Btt_news%5D=9106&tx_ttnews%5BbackPid%5D=209&no_cache=1#_VNNQ8Z3F-IU)>; <[http://www.balticworldwide.com/wkcrier/0901\\_0930\\_99.htm](http://www.balticworldwide.com/wkcrier/0901_0930_99.htm)> accessed 5 February 2015. These cases are cited in *Prosecutor v. Naletilić and Martinović*, IT-98-34-T, 31 March 2003, Judge Shomburg, (separate opinion), para. 14, note 1385. 7 45.

<sup>291</sup> These include article 9 (prohibition of arbitrary exile), articles 13 (right to return to one's country) and 15 (right to a nationality) of the *Universal Declaration of Human Rights*; article 12 para. 4 of the ICCPR (prohibition on arbitrary deprivation of right to enter one's country); article 3 of Prot. No. 4 to the ECHR (prohibition of expulsion of nationals and the right to enter the national's territory); article 20 (right not to be arbitrarily deprived of one's nationality) and article 22 para. 5 (prohibition of the expulsion of nationals) of the Am. Convention on Hum. Rts.; and article 12 para. 2 of the African Charter (right to return to one's country).

<sup>292</sup> See article 13 of the ICCPR (prohibiting arbitrary expulsion of aliens lawfully in the territory); article 4 of Protocol 4 to the ECHR (prohibition of the collective expulsion of aliens); article 22 para. 6 of the Am. Convention on Hum. Rts. (prohibition of the arbitrary expulsion of aliens lawfully in territory); article 22 para. 9 (prohibition of collective expulsion of aliens); article 12 para. 4 (prohibition of the expulsion of aliens lawfully in territory unless pursuant to a lawful decision) and article 12 para. 5 (prohibition of mass expulsion of aliens who are members of national, racial, ethnic or religious groups) of the African Charter.

<sup>293</sup> Deportation was proposed in the *Ad Hoc* Committee Report, p. 17 to be included in the list of crimes against humanity, but it was also suggested that this was one of the crimes for which it was necessary to elaborate further its content.

Deportation was included as the fourth crime against humanity in three separate lists in the 1996 Preparatory Committee's compilation of proposals, but with 'or forcible transfer of population' in square brackets in one of those lists, indicating that some delegations already recognised that, strictly speaking, these were two separate crimes, 1996 Preparatory Committee II, p. 65. Several alternative formulations were proposed at the same time, including:

'[discriminatory and arbitrary] deportation [or unlawful confinement of civilian population] [in violation of international legal norms][which inflicts death or serious bodily injury]' and there was a proposed annex explaining that '[d]eportation means mass deportation or forced transfer of persons from the territory of a State [or from an area within a State] of which such persons are nationals or lawful permanent residents, except where the acts constituting deportation or transfer are for purposes of an evacuation for safety or other legitimate and compelling reasons'.

*Ibid.*, pp. 64–65. As the report explained,

'Some delegations expressed the view that deportation required further clarification to exclude lawful deportation under national and international law. There were proposals to refer to discriminatory and arbitrary deportation in violation of international legal norms; deportation targeting individuals as members of a particular ethnic



bb) 'forcible transfer of population'. The 1919 Peace Conference Report and the 1973 Apartheid Convention recognised the forcible transfer of population within a State's boundaries as a crime against humanity, and the regulation establishing the Special Panels for the District Court of Dili, East Timor did so two years after the Rome Diplomatic Conference<sup>294</sup>. Similarly, internal displacement is prohibited under international humanitarian law, except in narrowly defined circumstances and on a temporary basis<sup>295</sup>. Although the ICTY Statute does not list forcible transfer of population as a crime against humanity, the ICTY Trial Chamber in the *Krstić* case held that it was a form of the crime against humanity of inhumane treatment<sup>296</sup>. Another ICTY Trial Chamber has held that forcible transfers of population 'may constitute persecutions'<sup>297</sup>.

Principles 5 and 6 of the *Guiding Principles on Internal Displacement* prepared by the Representative of the UN Secretary-General, Francis M. Deng, prohibit arbitrary displacement of persons within a territory, and Principles 7 and 8 define safeguards which must be observed when carrying out any displacement which is permitted by international law<sup>298</sup>.

group; deportation without due process of law; deportation or unlawful confinement of civilian population; or deportation resulting in death or serious bodily injury'.

1996 Preparatory Committee I, p. 24.

In February 1997, the Preparatory Committee list of crimes included 'deportation or forcible transfer of population' in the first paragraph of the proposed article on crimes against humanity, together with an explanation that for purposes of that paragraph this phrase meant

'the movement of [persons] [populations] from the area in which the [persons] [populations] are [lawfully present] [present] [under national or international law] [for a purpose contrary to international law] [without legitimate and compelling reasons] [without lawful justification]'.

Preparatory Committee Decision Feb. 1997, pp. 4–5.

Deportation or forcible transfer of population, was also the fourth crime against humanity listed in the first paragraph of article 5 [20] of the Zutphen Draft, with the same explanation as in the Preparatory Committee Decision Feb. 1997 in the second paragraph, and this wording remained the same in article 5 of the New York Draft, UN Doc. A/CONF.183/2/Add.2 (1998).

In Rome, Israel, supported by the USA, objected to the wording in the explanatory second paragraph as too broad and the final wording of article 7 para. 2 (d) with the concept of forcible was introduced in an attempt to address this concern. However, Israel decided to vote against adoption of the Statute in part because it did not think that this wording addressed its concern. For a brief explanation of this point, see McCormack, in: McGoldrick, Rowe and Donnelly (eds.), *The Permanent International Criminal Court: Legal and Policy Issues* (2004) 179, 192–193.

<sup>294</sup> 1919 Peace Conference Report (displacement of Armenians within Ottoman Empire, but called 'deportation'), at Annex, 1973 *International Convention on the Suppression and Punishment of the Crime of Apartheid*, article II (c); UNTAET Reg. 2000/15, Section 5.1 (d) and 5.2 (c). Forcible transfers of population within borders were not expressly listed as separate crimes from deportation in the ICTY and ICTR Statutes, the Statute of the Special Court for Sierra Leone or the Law on the Establishment of Extraordinary Chambers in the Courts of Cambodia.

<sup>295</sup> Article 49 of the Fourth Geneva Convention prohibits '[i]ndividual or mass forcible transfers' regardless of motive in occupied territories, apart from temporary measures in a particular area, 'if the security of the population or imperative military reasons so demand'. Article 17 para. 1 of Add. Prot. II states: 'The displacement of the civilian population shall not be ordered for reasons related to the conflict unless the security of the civilians involved or imperative military reasons so demand'. The Rome Statute defines forced transfers as a war crime (see discussion at mn 145 *et seq.*, at mn 363 *et seq.*, and at mn 950 *et seq.* of article 8 para. 2 (a)(vii) para. 2 (b)(viii) and para. 2 (e) (viii)).

<sup>296</sup> *Prosecutor v. Krstić*, IT-93-33-T, 2 August 2001, para. 532 (*dicta*). See also *Prosecutor v. Blagojević and Jokić*, IT-02-60-T, 17 January 2005, para. 629 (noting that the acts or omissions were of similar seriousness to acts prohibited in article 5, that they caused serious mental or physical suffering or injury or constituted a serious attack on human dignity and were intentional); *Prosecutor v. Brđanin*, No. IT-99-36-T, Judgment, Trial Judgment, 1 September 2004, para. 544 (forcible transfer punishable as other inhumane acts); *Prosecutor v. Kvočka et al.*, IT-95-30/1-T, 2 November 2001, para. 208 (*dicta*), (citing *Kupreškić*); *Prosecutor v. Kupreškić et al.*, IT-95-16-T, 14 January 2000, para. 566 (*dicta*). However, in *Kupreškić*, the Trial Chamber imposed a threshold for determining the existence of an inhumane act under article 5 of the ICTY Statute that is not an element of the crime of forcible transfer under customary international law and is not a requirement under other ICTY jurisprudence (see mn 127): that they 'must be carried out in a systematic manner and on a large-scale'.

<sup>297</sup> *Prosecutor v. Blagojević and Jokić*, IT-02-60-T, 17 January 2005, para. 602.

<sup>298</sup> *Guiding Principles on Internal Displacement*, UN Doc. E/CN.4/1998/53/Add. 2. Principle 5 states: 'All authorities and international actors shall respect and ensure respect for their obligations under international law, including human rights and humanitarian law, in all circumstances, so as to prevent and avoid conditions that might lead to displacement of persons'. Principle 6 provides:

Other human rights instruments have also spelled out the circumstances when forced displacement of persons within a territory is prohibited<sup>299</sup>.

- 47 Unfortunately, the Statute does not expressly distinguish between deportation and transfer. However, given the common distinction between *deportation* as forcing persons to cross a national frontier and *transfer* as forcing them to move from one part of the country to another without crossing a national frontier, as well as the basic presumption that no words in a treaty should be seen as surplus and the drafting history of paragraphs 1 (d) and 2 (d) noted above, it is likely that the usual distinction was intended<sup>300</sup>. The first non-contextual material element of this crime in the Elements of Crimes, like the Statute, does not expressly distinguish between the two crimes<sup>301</sup>.

The terms, 'forcible' and 'forced', should be given a broad reading, consistent with the purpose of the Statute to include any form of coercion which leads to the departure of people from the area where they are located<sup>302</sup>. Jurisprudence and the Elements of Crimes have confirmed the interpretation in the First Edition of this commentary.

In the *Simić* case, the ICTY Trial Chamber concluded:

'125. The displacement of persons is only illegal where it is forced, i.e. not voluntary, and "when it occurs without grounds permitted under international law". In other words, displacement motivated

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- '1. Every human being shall have the right to be protected against being arbitrarily displaced from his or her home or place of habitual residence.
  2. The prohibition of arbitrary displacement includes displacement:
    - (a) When it is based on policies of apartheid, "ethnic cleansing" or similar practices aimed at/or resulting in altering the ethnic, religious or racial composition of the affected population;
    - (b) In situations of armed conflict, unless the security of the civilians involved or imperative military reasons so demand;
    - (c) In cases of large-scale development projects, which are not justified by compelling and overriding public interests;
    - (d) In cases of disasters, unless the safety and health of those affected requires their evacuation; and
    - (e) When it is used as a collective punishment.
  3. Displacement shall last no longer than required by the circumstances'.

See also Kälén (2000) 32 *Studies in TransnatLegPol*.

<sup>299</sup> See mn 123 *et seq.* and also article 13 para. 1 of the Universal Declaration of Hum. Rts. (recognizing the right to freedom of movement and residence within the borders of a State); article 12 paras. 1 and 3 of the ICCPR (right of everyone lawfully within the territory of a State to liberty of movement and freedom to choose one's residence, subject to certain restrictions); article 2 paras. 1 and 3 of Protocol 4 to the ECHR (right of everyone lawfully within the territory of a State to freedom of movement within the territory and freedom to choose one's residence, subject to certain restrictions); article 22 paras. 1, 3 and 4 of the Am. Convention on Hum. Rts. (everyone lawfully within the territory has a right to movement and residence in it, subject to certain restrictions).

<sup>300</sup> The drafting of the predecessor of article 7 paras. 1 (d) and 2 (d) in the Preparatory Committee suggests the delegates recognised a distinction between 'mass deportations or forced transfer of persons from the territory of a State [or from an area within a State]', but the grammatical structure could be read so that deportations and transfers each could apply to both cross-frontier and intra-state boundary movements. However, no delegate at the Preparatory Committee or at the Diplomatic Conference publicly contested the distinction between the two terms made in Amnesty International's paper, *The International Criminal Court: Making the Right Choices – Part I: Defining the Crimes and Permissible Defences and Initiating a Prosecution* (January 1997, AI Index: IOR 40/01/97), Sect. IV.F, which was supplied to all delegations. Government delegates involved with the drafting agree that the addition of the separate term, forcible transfer, was intended to apply to transfers within national borders. Von Hebel and Robinson, in: Lee (ed.), *The International Criminal Court: The Making of the Rome Statute – Issues, Negotiations, Results* (1999) 79, 99; Ambos and Wirth (2002) 13 CLF 1, 61 (citing First Edition of this commentary). See also *Prosecutor v. Sarmento*, No. 18/2001, Judgment, Special Panel for Serious Crimes, Dili, East Timor, 16 July 2003, para. 127 ('deportation is the forced removal of people from one country to another, while population transfer applies to compulsory movement of people from one area to another within the same state').

<sup>301</sup> The first element setting forth the *actus reus* states that '[t]he perpetrator deported or forcibly transferred without grounds permitted under international law, one or more persons to another State or location, by expulsion or other coercive acts' (footnote omitted). Although, as in the draft considered by the Preparatory Committee the grammatical structure could be read so that deportation and forcible transfer could apply to either location, it could also be read as following the customary international law distinction. In the light of the drafting history, commentary and subsequent jurisprudence this is the more likely interpretation.

<sup>302</sup> See also Friman, in: Cryer et al., *Introduction to ICL* (2014) 248; Ambos, *Treatise on ICL II* (2014) 87.

by an individual's own genuine wish to leave an area is lawful. The requirement that the displacement be forced or forcible has been interpreted broadly by Trial Chambers. The term "forced" is not limited to physical force; it may also include the "threat of force or coercion, such as that caused by fear of violence, duress, detention, psychological oppression or abuse of power against such person or persons or another person, or by taking advantage of a coercive environment". The essential element is that the displacement be *involuntary* in nature, that "the relevant persons had no real choice". In other words, a civilian is involuntarily displaced if he is "not faced with a genuine choice as to whether to leave or to remain in the area". As noted by the *Krnjelac* Trial Chamber, an apparent consent induced by force or threat of force should not be considered to be real consent.

126. The Trial Chamber is of the view that in assessing whether the displacement of a person was voluntary or not, it should look beyond formalities to all the circumstances surrounding the person's displacement, to ascertain that person's genuine intention. For instance, in situations where persons are relocated following detention in one or several places, coupled with various forms of mistreatment, an expression of consent does not necessarily reflect a person's genuine desire to leave, as the person may not be faced with a real choice. Whether a person would have wished to leave the area absent circumstances of discrimination or persecution may also be considered as indicative of a person's wish. A lack of genuine choice may be inferred from, inter alia, threatening and intimidating acts that are calculated to deprive the civilian population of exercising its free will, such as the shelling of civilian objects, the burning of civilian property, and the commission of – or the threat to commit – other crimes "calculated to terrify the population and make them flee the area with no hope of return"<sup>303</sup>.

The Trial Chamber in *Milošević* concluded that the term 'forcible' is 'not restricted to physical coercion'<sup>304</sup>. A similar approach was taken in *Prlić et al.*<sup>305</sup>.

The Elements of Crimes follows the same broad approach to defining the term 'forcibly' as international jurisprudence, using the phrasing based on that adopted in the 1998 ICTR judgment in the *Akayesu* case with regard to crimes of sexual violence, and used in other elements of crimes containing this term<sup>306</sup>.

The ICC addressed the nature of article 7 (1) (d) in the case against Ruto, Kosgey and Sang<sup>307</sup>. The Prosecutor charged 'deportation or forcible transfer of population'. Based on a literal interpretation of the wording used by the Elements of Crimes, PTC II found that 'deportation or forcible transfer of population is an open-conduct crime', composed of several 'different conducts' that can force the victim to leave the area where he or she is

<sup>303</sup> *Prosecutor v. Simić et al.*, IT-95-9-T, 17 October 2003, paras. 125–126 (fns. omitted). See also *Prosecutor v. Krnjelac*, No. IT-97-25-A, Judgement, Appeals Chamber, 17 September 2003, paras. 217–225; *Prosecutor v. Sarmiento*, No. 18/2001, Judgment, Special Panel for Serious Crimes, Dili, East Timor, 16 July 2003, para. 127; *Prosecutor v. Naletilić and Martinović*, IT-98-34-T, 31 March 2003, para. 519; *Prosecutor v. Sarmiento*, No. 18/2001, Judgment, Special Panel for Serious Crimes, Dili, East Timor, 16 July 2003, para. 127; *Prosecutor v. Krstić*, IT-93-33-T, 2 August 2001, para. 529; *Prosecutor v. Sarmiento*, No. 18/2001, Judgment, Special Panel for Serious Crimes, Dili, East Timor, 16 July 2003, para. 127.

<sup>304</sup> *Prosecutor v. Milošević*, No. IT-98-29/1-T, Judgement, Trial Chamber, 12 December 2007, para. 75; *Prosecutor v. Naletilić and Martinović*, IT-98-34-T, 31 March 2003, para. 519.

<sup>305</sup> *Prosecutor v. Prlić*, No. IT-04-74-T, Judgement, Trial Chamber, 29 May 2013, para. 50 ('Indeed, the mere threat of resorting to force or physical or mental coercion may be enough, if the targeted population facing this coercive climate or these threats, has no other choice but to leave its territory. It is the absence of genuine choice that renders removal unlawful').

<sup>306</sup> Fn. 12 to the first element states: 'The term "forcibly" is not restricted to physical force, but may include threat of force or coercion, such as that caused by fear of violence, duress, detention, psychological oppression or abuse of power against such person or persons or another person, or by taking advantage of a coercive environment'. This element was based on a proposal by France to use the language in *Prosecutor v. Akayesu*, ICTR-96-4-T, 2 September 1998, para. 688, but the use of this language with respect to crimes against humanity was the subject of some controversy and two states, Turkey and the United Arab Emirates, specifically objected to it when the Elements of Crimes were adopted. See Summary of Statements Made in Plenary in Connection with the Adoption of the Report of the Working Group on the Elements of Crimes, UN Doc. PCNICC/2000/INF.4, p. 5; Garraway, 'Elements of the Specific Forms of Genocide', in: Lee (ed.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (2001) 49, 54. However, this footnote to the draft Elements of Crimes has been cited as an authoritative interpretation by at least one internationalised court. See *Prosecutor v. Sarmiento*, 18/2001, 16 July 2003, paras. 135–136.

<sup>307</sup> *Prosecutor v. William Samoei Ruto, Henry Kiprono Kosgey and Joshua Arap Sang*, No. ICC-01/09-01/11-373, Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute, Pre-Trial Chamber II, 23 January 2012 (PURL: <https://www.legal-tools.org/doc/96c3c2/>).

lawfully present<sup>308</sup>. According to the Chamber, the Prosecutor must prove, 'that one or more acts that the perpetrator has performed produced the effect to deport or forcibly transfer the victim'<sup>309</sup>. It expressly required 'a link between the conduct and the resulting effect of forcing the victim to leave the area to another State or location'<sup>310</sup>.

The interpretation of the nature of the crime has repercussions for the question whether article 7 (1) (d) can qualify as a continuing crime<sup>311</sup>. Technically, the unlawful consequences of the offence may endure beyond the physical act, i.e. deportation or forcible transfer. But the emphasis on conduct ('the perpetrator deported or forcibly transferred') and the framing of the mental element (which does not require intent to forcibly displace persons permanently<sup>312</sup> or 'for a prolonged period of time')<sup>313</sup> make it difficult to draw a direct analogy to the continuous nature of enforced disappearance (see article 7 (1) (i)) which is composed of two connected elements: deprivation of physical liberty and failure to provide information<sup>314</sup>. Given the structure of the offence, it is hard to argue that the offence would only be completed once persons are allowed to return home<sup>315</sup>. Deportations or forcible displacements carried out prior to the entry into force of the Statute cannot be investigated or prosecuted (see article 24 (1)). For discussion of further elements of the definition of article 7 (1) (d), see mn 123–130.

- 48 e 'Imprisonment or other severe deprivation of physical liberty'. Article 7 (1) (e) protects the 'liberty of physical movement'<sup>316</sup>. International law and standards have prohibited arbitrary imprisonment and detention, both as a part of human rights law, whether as a crime against humanity or a violation of human rights treaties or standards, and as a part of humanitarian law<sup>317</sup>. Although neither the Nuremberg Charter nor the Tokyo Charter included imprisonment as a crime against humanity, it was included in subsequent instruments<sup>318</sup>. The Statutes of the ICTY and the ICTR merely referred to 'imprisonment', without providing much clarification<sup>319</sup>. In jurisprudence, the term was broadly construed. It was made clear that it includes both arbitrary imprisonment and other severe deprivations of liberty restricting liberty of movement, such as detention in ghettos or concentration

<sup>308</sup> *Prosecutor v. Ruto, Kosgey and Sang*, ICC-01/09-01/11-373, 23 January 2012 (PURL: <https://www.legal-tools.org/doc/96c3c2/>), para. 244.

<sup>309</sup> *Prosecutor v. Ruto, Kosgey and Sang*, ICC-01/09-01/11-373, 23 January 2012 (PURL: <https://www.legal-tools.org/doc/96c3c2/>), para. 245.

<sup>310</sup> *Prosecutor v. Ruto, Kosgey and Sang*, ICC-01/09-01/11-373, 23 January 2012 (PURL: <https://www.legal-tools.org/doc/96c3c2/>), para. 245.

<sup>311</sup> See Schabas, *ICC Commentary* (2010) 419.

<sup>312</sup> *Prosecutor v. Stakić*, IT-97-24-A, 22 March 2006, para. 306.

<sup>313</sup> See Element 6 of article 7 (1) (i) ('enforced disappearance').

<sup>314</sup> Footnote 24 of the Elements of the crime against humanity of enforced disappearance of persons clearly indicates that the Court has jurisdiction only if the 'attack' occurs after the entry into force of the Rome Statute. For discussion, see Ambos, *Treatise on ICL II* (2014) 112.

<sup>315</sup> In its General Comment on Enforced Disappearance as a Continuous Crime, the UN Working Group on Enforced or Involuntary Disappearances adopts a flexible approach towards non-retroactivity. It notes in para. 5: 'one consequence of the continuing character of enforced disappearance is that it is possible to convict someone for enforced disappearance on the basis of a legal instrument that was enacted after the enforced disappearance began, notwithstanding the fundamental principle of non retroactivity. The crime cannot be separated and the conviction should cover the enforced disappearance as a whole'. See Report of the Working Group on Enforced or Involuntary Disappearances, A/HRC/16/48, 26 January 2011, para. 39, p. 12.

<sup>316</sup> See Ambos, *Treatise on ICL II* (2014), 87.

<sup>317</sup> See, generally, Study of the right of everyone to be free from arbitrary arrest, detention and exile, UN Doc. E/CN.4/826/Rev.1 (1964).

<sup>318</sup> Allied Control Council Law No. 10, article II para. 1 (c); Apartheid Convention, article II (a) (iii); ICTY Statute, article 5 (e); ICTR Statute, article 3 (e); 1996 ILC Draft Code, article 18 (h); UNTAET Reg. 2000/15, Section 5.1 (e); Statute of the Special Court for Sierra Leone, article 2 (e); and Law on the Establishment of Extraordinary Chambers in the Courts of Cambodia, article 5. One internationalised court has stated that imprisonment as a crime against humanity is part of customary international law. See *Prosecutor v. Franca da Silva*, No. 4a/2001, Judgment, Special Panel for Serious Crimes, Dili, East Timor, 5 December 2002, para. 90 ('the customary international law character of imprisonment seems to be undisputed').

<sup>319</sup> See article 5 (e) of the ICTY Statute and article 3 (e) of the ICTR Statute.

camp<sup>320</sup>. The Rome Statute reflects this trend. It expressly encompasses both classical 'imprisonment' and 'other severe deprivation of physical liberty'. In the discussions of the Statute, concerns were raised that this prohibition might infringe on lawful practices of imprisonment<sup>321</sup>. The Statute mitigates this risk by adding the qualifier 'in violation of fundamental rules of international law'.

Guidance in interpreting the crime may be derived from a number of norms and sources. In *Kordić and Čerkez*, the ICTY clarified that the term imprisonment 'should be understood as arbitrary imprisonment, that is to say, the deprivation of liberty of the individual without due process of law, as part of a widespread or systematic attack directed against a civilian population'<sup>322</sup>. The Trial Chamber noted that it would have to 'determine the legality of imprisonment as well as the procedural safeguards pertaining to the subsequent imprisonment'<sup>323</sup>. In *Krnojelac*, the Trial Chamber went a step further, claiming that 'any form of arbitrary physical deprivation of liberty of an individual may constitute imprisonment under article 5 (e)'<sup>324</sup>. There are many relevant legal instruments. But they do not necessarily embrace a 'common approach to the issue of when a deprivation of liberty is or becomes arbitrary'<sup>325</sup>. The prohibition of arbitrary detention and the right to a fair trial have been recognised in many human rights treaties and other instruments<sup>326</sup>. The right to fair trial has also been guaranteed in the 1993 ICTY Statute, the 1994 ICTR Statute, the Rome Statute and the Statute of the Special Court for Sierra Leone<sup>327</sup>. The right to fair trial has been expressly guaranteed as a non-derogable right in international humanitarian law in the Geneva Conventions and Protocols<sup>328</sup>. The Human Rights Committee, noting that certain aspects of this right were non-derogable during armed conflict, concluded that it found 'no justification for derogation from these guarantees during other emergency situations' and that 'fundamental requirements of fair trial must be respected during a state of emergency'<sup>329</sup>. The concept of arbitrariness under international law includes the unlawfulness of the imprisonment or deprivation of liberty itself under national law and, even if permitted under national law, unlawfulness under international law.

Some useful specific guidance for interpretation of the crime under the Statute may be found in the approach of the UN Working Group on Arbitrary Detention<sup>330</sup> which has defined three categories which constitute arbitrary deprivation of liberty contrary to international standards:

<sup>320</sup> For a survey, see Werle and Jessberger, *Principles of ICL* (2014), 361; Bassiouni, *Crimes Against Humanity* (2011) 443–444.

<sup>321</sup> See Schabas, *Commentary ICC* (2010), 165. See also Cryer *et al.*, *Introduction to ICL* (2014) 249, arguing that '[a]fter all, there are many contexts in which persons may be lawfully detained, including following lawful arrest, conviction following trial, lawful deportation or extradition procedures, quarantine, and, during armed conflict, assigned residence, internment on security grounds and internment of prisoners-of-war'.

<sup>322</sup> *Kordić and Čerkez*, IT-95-14/2-T, 26 February 2001, para. 302, upheld on appeal.

<sup>323</sup> *Ibid.*, para. 302.

<sup>324</sup> *Prosecutor v. Krnojelac*, IT-97-25-T, 15 March 2002, para. 112.

<sup>325</sup> *Ibid.*, para. 113.

<sup>326</sup> See, for example, articles 9, 10 and 11 of the Universal Declaration of Hum. Rts. in 1948, articles 9, 14 and 15 of the ICCPR, articles 5, 6 and 7 of the ECHR, articles 7, 8 and 9 of the American Convention on Hum. Rts. and articles 6 and 7 of the African Charter. The ILC Commentary to article 18 (h) of the 1996 ILC Draft Code noted that the deprivation of liberty without due process of law 'is contrary to the human right of individuals, recognised in the Universal Declaration of Hum. Rts. (article 9) and the ICCPR (article 9)'.  
<sup>327</sup> See articles 18, 20–23 and 25 of the ICTY Statute, articles 17, 19–22 and 24 of the ICTR Statute, as well as in the Rules of Procedure and Evidence of the two Tribunals; articles 55, 63 to 69 of the Statute and articles 9, 17 and 18 of the Statute of the Special Court for Sierra Leone, and the Rules of Procedure and Evidence of the Special Court.

<sup>328</sup> Fourth Geneva Convention, article 147; Add. Prot. I, articles 75 and 85 para. 4 (e); Add. Prot. II, article 6 paras. 1, 2 and 3.  
<sup>329</sup> Hum. Rts. Committee, General Comment No. 29, States of Emergency (article 4), UN Doc. CCPR/C21/Rev.1/Add.11, para. 16.

<sup>330</sup> Cryer *et al.*, *Introduction to ICL* (2014) 249.



- (a) When it is clearly impossible to invoke any legal basis justifying the deprivation of liberty (as when a person is kept in detention after the completion of his sentence or despite an amnesty law applicable to him) (category I);
- (b) When the deprivation of liberty results from the exercise of the rights and freedoms guaranteed by articles 7, 13, 14, 18, 19, 20 and 21 of the Universal Declaration of Human Rights and, insofar as States Parties are concerned, by articles 12, 18, 19, 21, 22, 25, 26 and 27 of the International Covenant on Civil and Political Rights (category II);
- (c) When the total or partial non-observance of the international human rights norms relating to the right to a fair trial, established in the Universal Declaration of Human Rights and in the relevant international instruments accepted by the States concerned, is of such gravity as to give the deprivation of liberty an arbitrary character (category III)<sup>331</sup>.

Another category which may constitute arbitrary detention is when the conditions of detention themselves amount to torture or cruel, inhuman or degrading treatment<sup>332</sup>.

- 50 aa) ‘Imprisonment’. It is not clear whether the drafters intended that the word ‘imprisonment’ should be used in its narrow sense of imprisonment after conviction by a court or in its broader sense of detention, as in *Allied Control Council Law No. 10*, but the juxtaposition with ‘deprivation of physical liberty’ might be seen to suggest that the narrower definition was intended<sup>333</sup>. However, under customary international law, imprisonment as a crime against humanity has a broader meaning than imprisonment pursuant to a sentence imposed by a court, and it is more likely that the drafters intended to incorporate the broad customary international law definition<sup>334</sup>. It excludes, of course, imprisonment that would be lawful under both national and international law<sup>335</sup>. It means ‘arbitrary imprisonment, that is to

<sup>331</sup> Report of the Working Group on Arbitrary Detention, UN Doc. E/CN.4/1998/44, para. 8.

<sup>332</sup> Rodley, *Treatment of Prisoners* (2009) 465–468.

<sup>333</sup> The concept appeared in different forms in three separate lists in the 1996 Preparatory Committee’s compilation of proposals (‘Imprisonment [including taking of civilian hostages]’, ‘imprisonment [in violation of international norms on the prohibition of arbitrary arrest and detention] [which inflicts death or serious bodily injury]’ and ‘arbitrary detention’, with an explanation added in an annex regarding the second formulation stating: ‘Imprisonment means the forcible confinement of a person for a prolonged or indefinite period of time in manifest and gross violation of governing legal norms regarding arrest and detention’). 1996 Preparatory Committee II, pp. 65, 68–70. As the report explained:

‘Some delegations expressed the view that this offence required further clarification to exclude lawful imprisonment in the exercise of State authority. There were proposals to refer to imprisonment in violation of due process or judicial guarantees; imprisonment in violation of international norms prohibiting arbitrary arrest and detention; and imprisonment resulting in death or serious bodily injury’.

1996 Preparatory Committee I, p. 24.

In February 1997, the Preparatory Committee list of crimes included [detention or] [imprisonment] [deprivation of liberty][in flagrant violation of international law] [in violation of fundamental legal norms] in the first paragraph of the proposed article on crimes against humanity, together with a footnote stating: ‘It was suggested that this subparagraph does not include freedom of speech [presumably referring to the fundamental legal norms] and that it includes the unilateral blockade of populations’. Preparatory Committee Decision Feb. 1997, p. 4.

The same wording as in the February 1997 report was included in the first paragraph of article 5 [20] of the Zutphen Draft, with the same explanation as in Preparatory Committee Decision Feb. 1997 in the second paragraph, and this wording remained unchanged in article 5 of the New York Draft.

In Rome, Israel, supported by the USA, objected to the wording in the explanatory second paragraph as too broad and the final wording of article 7 para. 2 (d) with the concept of forcible was introduced in an attempt to address this concern. However, Israel decided to vote against adoption of the Statute in part because it did not think that this wording addressed its concern. For a brief explanation of this point, see McCormack, in: McGoldrick, Rowe and Donnelly (eds.), *The Permanent International Criminal Court: Legal and Policy Issues* (2004) 179, 192–193.

<sup>334</sup> For example, the ILC Commentary to article 18 (h) of the 1996 Draft Code explained that ‘[t]he term “imprisonment” encompasses deprivation of liberty of the individual’ and would cover ‘arbitrary imprisonment such as concentration camps or other forms of long-term detention’. Part 2, (1996) 2 *YbILC* 49. However, the concept of long-term detention was not retained in the Rome Statute or in the Elements of Crimes.

<sup>335</sup> As one of the drafters later recalled: ‘The intention of the drafters of the *Rome Statute* was not to preclude the incarceration of criminals indicted, tried and convicted according to validly constituted domestic criminal justice systems’. McCormack, in: McGoldrick, Rowe and Donnelly (eds.), *The Permanent International Criminal Court: Legal and Policy Issues* (2004) 179, 193.



say, the deprivation of liberty of the individual without due process of law<sup>336</sup>. As explained by an ICTR Trial Chamber,

‘[i]mprisonment as a crime against humanity refers to arbitrary or otherwise unlawful detention or deprivation of liberty. It is not every minor infringement of liberty that forms the material element of imprisonment as a crime against humanity; the deprivation of liberty must be of similar gravity and seriousness as the other crimes enumerated as crimes against humanity ... In assessing whether the imprisonment constitutes a crime against humanity, the Chamber may take into account whether the initial arrest was lawful, by considering, for example, whether it was based on a valid warrant of arrest, whether the detainees were informed of the reasons for their detention, whether the detainees were ever formally charged, and whether they were informed of any procedural rights. The Chamber may also consider whether the continued detention was lawful. When a national law is relied upon to justify a deprivation of liberty, this national law must not violate international law<sup>337</sup>’.

Even if the initial imprisonment was lawful, it could become unlawful subsequently, for example, by keeping a person in prison after a court had ordered the person’s release or the sentence of imprisonment had come to an end<sup>338</sup>. In any event, the term ‘other severe deprivation of physical liberty’ has a wide meaning which would encompass the broad definition of imprisonment under customary international law and would include a wide variety of restrictions on physical liberty, including house arrest<sup>339</sup>, restriction to a closed city or similar restrictions which might not be considered to fit within the customary international law definition<sup>340</sup>. Moreover, the drafting history, although ambiguous with regard to the term imprisonment in the final text, indicates that the drafters wanted the two concepts together to cover a broad range of arbitrary deprivations of liberty<sup>341</sup>.

In determining whether imprisonment or other deprivation of liberty during armed conflict was a crime against humanity, the Court would have to examine whether it was permitted under international humanitarian law, such as the internment of civilians pursuant to article 42 of the Fourth Geneva Convention or confinement for ‘activities prejudicial or hostile to the security of the State’ under article 5 of that treaty<sup>342</sup>. Of course, the lawfulness

<sup>336</sup> *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-A, 17 December 2004, para. 114 (finding, in the context of an occupation that ‘imprisonment of civilians is unlawful where civilians have been detained in contravention of article 42 of Geneva Convention IV’ and where ‘the procedural safeguards required by article 43 of Geneva Convention IV are not complied with in respect of detained civilians, even where initial detention may have been justified’), *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-T, 26 February 2001, para. 302. This wording is based on the explanation by the ILC Commentary to article 18 (h) of the 1996 ILC Draft Code.

<sup>337</sup> *Prosecutor v. Ntagerura*, ICTR-99-46-T, 25 February 2004, para. 702 (fns. omitted). Similar factors have been taken into account by another internationalised court in assessing the gravity of the conduct (in the light of the Elements of Crimes, see mn 51) and the severity of the deprivation of liberty. These factors include: the length of detention, *Prosecutor v. Cardoso*, No. 4c/2001, Judgment, 5 April 2003, para. 359 (‘deprivation of physical liberty for no more than a couple of days in generally good conditions of detention would not be severe’); conditions in which the deprivation of liberty took place, *Prosecutor v. Mesquita*, No. 28/2003, Judgment, 6 December 2004, para. 88 (illegality of roadblock and extreme violence with which the deprivation was committed); conditions of detention, *Prosecutor v. Barros*, No. 1/2004, Judgment, 12 May 2005, paras. 152–153 (locking victims in a small room in unhygienic conditions without proper sanitation facilities and infliction of severe beatings); and the number of victims, *Prosecutor v. Tacaqui*, No. 20/2001, Judgment, 9 December 2004, p. 22.

<sup>338</sup> *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-T, 26 February 2001, para. 303.

<sup>339</sup> Report of the Working Group on Arbitrary Detention, UN Doc. E/CN.4/1993/24, para. 20 (Deliberation 01). Concurring Cryer et al., *Introduction to ICL* (2014) 248.

<sup>340</sup> It appears that the crime of ‘other severe deprivation of liberty’ was added simply to ensure that forms of deprivation of liberty that might not be considered to fall within the conduct previously recognised as prohibited under customary international law as imprisonment rather than to distinguish deprivations of liberty carried out by persons who were not state officials or acting at their instigation or with their consent or acquiescence, since the chapeau to article 7 para. 2 makes clear that persons unconnected with a state can be guilty of any of the acts prohibited under article 7.

<sup>341</sup> According to the chair of the drafting committee at the Rome Conference, the addition of the phrase ‘other severe deprivation of liberty’ has ‘broadened the scope of meaning of imprisonment to include other conduct that may have been outside the scope of the previous formulations of “imprisonment”’. Bassiouni, *Crimes Against Humanity* (2011), 344.

<sup>342</sup> *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-T, 26 February 2001, para. 303 (concluding that where civilians have been detained in violation of article 42 of the Fourth Geneva Convention without reasonable

of such internment or confinement must be considered in the light of international human rights law<sup>343</sup>. Moreover, detention in violation of international humanitarian law, such as the grave breach of unlawful confinement under article 147 of the Fourth Geneva Convention and article 8 para. 2 (a) (vii) of the Rome Statute would necessarily render the imprisonment or deprivation of liberty unlawful. Although the working group on definitions declined to incorporate proposals to use the term ‘detention’, which has a clearly defined meaning in international law, the term ‘deprivation of liberty’ appears to be even broader in scope (see *mn* 151) in connection with enforced disappearance concerning the meaning of this term). Indeed, it is likely that article 7 para. 1 (e) would cover – either as imprisonment or as a deprivation of liberty – all circumstances covered under the customary international law definition of the crime against humanity of imprisonment.

There is no indication in the various drafts of this provision of what was meant by ‘severe’. One possibility could be something longer than short-term detentions, for a matter of days or ‘weeks’<sup>344</sup>, but recent history is rife with widespread or systematic short-term detentions where the conditions were severe, the detention secret or the short-term detentions repeated. Therefore, it will be up to the Court to determine case by case<sup>345</sup> whether the deprivation of liberty was severe, taking into account such factors as whether the detainee was subjected to torture or other cruel, inhuman or degrading treatment or punishment, including crimes of sexual violence, or other intimidation; whether the detention was secret or the detainee otherwise cut off from the outside world; and whether the detention was part of a series of repeated detentions. Since the definition necessarily considers ‘imprisonment’ to be a ‘severe deprivation of physical liberty’ by the use of the word ‘other’ to describe ‘severe deprivation of liberty’, there is no requirement to demonstrate that a particular imprisonment is ‘severe’<sup>346</sup>. The first element of the crime of imprisonment or other severe deprivation of ‘liberty’ makes this clear by requiring that the perpetrator have ‘imprisoned one or more persons or otherwise severely deprived one or more persons of physical liberty’.

- 51 **bb) ‘rules of international law’.** The term ‘rules of international law’ is very broad and would include not only treaties and customary international human rights and international humanitarian law, but general principles of law<sup>347</sup>. Evidence of such general principles of law

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grounds and of procedural guarantees in article 43 of that convention, it would be a crime against humanity if the threshold were met). The Trial Chamber in this case saw the crime against humanity of imprisonment and the war crime of unlawful confinement as identical (apart from the thresholds). *ibid.*, para. 301.

In contrast, the Trial Chamber in *Krnjelac* agreed that if the threshold was met, unlawful confinement as a war crime would be a crime against humanity. *Prosecutor v. Krnjelac*, IT-97-25-T, 15 March 2002, para. 111. However, it also concluded that the definition of this crime against humanity was not limited by the grave breaches provisions of the Geneva Conventions. *ibid.* Instead, ‘any form of arbitrary physical deprivation of liberty of an individual may constitute imprisonment under article 5 (e) [of the ICTY Statute] as long as the other requirements of the crime are fulfilled’. *ibid.*, para. 112. For the purposes of this provision, ‘the deprivation of an individual’s liberty is arbitrary if it is imposed without due process of law’. *ibid.*, para. 113. Based on a number of international instruments, it concluded that a deprivation of liberty would be arbitrary ‘if no legal basis can be called upon to justify the initial deprivation of liberty’, the national law basis for the deprivation of liberty violated international law or ‘[i]f at any time the initial legal basis ceases to apply’. *ibid.*, para. 114. With regard to the mental element, the Trial Chamber described it as follows:

‘The act or omission by which the individual is deprived of his or her physical liberty is performed by the accused or a person or persons for whom the accused bears criminal responsibility with the intent to deprive the individual arbitrarily of his or her physical liberty in the reasonable knowledge that his act or omission is likely to cause arbitrary deprivation of physical liberty’.

*Ibid.*, para. 115. This convoluted description of the mental element would not apply under the Rome Statute (see below).

<sup>343</sup> For an articulation of some of the relevant standards to determine the lawfulness of such internment or confinement, see Pejic, (2005) 858 *IRRC* 375.

<sup>344</sup> See Ambos, *Treatise on ICL II* (2014) 89, suggesting that imprisonment should be measured ‘in weeks’.

<sup>345</sup> See also Ambos, *Treatise on ICL II* (2014) 89, arguing that a ‘short period of detention under inhumane conditions’ may meet the severity threshold.

<sup>346</sup> See also Ambos, *Treatise on ICL II* (2014) 89 (‘imprisonment is severe by definition’).

<sup>347</sup> See, for example, Shaw, *International Law* (2014) 49–51, 69–77 (noting that rules of international law can be based on general principles of law as well as on treaties and custom).

can be seen in a wide variety of instruments concerning the rights of detainees, including not only treaties, but other instruments<sup>348</sup>. These instruments have been cited by human rights treaty bodies and international courts as evidence of the scope of treaty rights. It will be up to the Court to determine what are 'fundamental' rules, but surely they would include, at a minimum, all the guarantees of the right to be free from arbitrary detention and to fair trial which the international community has incorporated in treaties or in the charters and rules of international tribunals, such as the rights to prompt access to families, counsel, independent medical attention and a judge, to have the lawfulness of one's detention promptly determined by a court and to be released if the detention was unlawful, to an independent, impartial and competent court, to representation by counsel, and to an appeal. In the context of international armed conflict, the ICTY Trial Chamber identified two factors in particular that would demonstrate that imprisonment of civilians was arbitrary<sup>349</sup>. It argued that the imprisonment of civilians would be unlawful where:

- civilians have been detained in contravention of article 42 of Geneva Convention IV, i.e., they are detained without reasonable grounds to believe that the security of the Detaining Power makes it absolutely necessary;
- the procedural safeguards required by article 43 of Geneva Convention IV are not complied with in respect of detained civilians, even where initial detention may have been justified'.

The awkwardly and vaguely drafted second and third elements of the crime of imprisonment or other severe deprivation of liberty are potentially inconsistent with the Rome Statute and other international law<sup>350</sup> by introducing new and restrictive requirements with respect to *actus reus*, '[t]he gravity of the conduct was such that it was in violation of fundamental rules of international law' and with respect to the mental element, '[t]he perpetrator was aware of the factual circumstances that established the gravity of the conduct...'. First, the definition in article 7 para. 1 (e) makes it clear that all forms of imprisonment and all other severe deprivations of liberty are covered, provided that they are in violation of fundamental rules of international law. According to one government delegate involved in the drafting of these elements, this new additional requirement was included for two reasons. First, it was 'to guide the Court to focus on the legality or illegality of the conduct of [the] perpetrator'<sup>351</sup>. However, in contrast to the various other provisions of the Rome Statute which expressly mention lawfulness or unlawfulness, this term is left out of article 7 para. 1 (e) and the concept is fully addressed in the phrase 'in violation of fundamental rules of international law'. Second, according to this delegate, it was felt that it would be unfair to the accused to require pursuant to article 30 simply to have knowledge of the factual situation that established the violation. He cited the example of the unfairness of expecting a jailor, if he or she were genuinely uncertain whether the trial satisfied international standards, to take custody or risk prosecution if he or she were given custody after a trial during a state of emergency, involving 'terrorism' or a near-collapsed state, where the state had modified

<sup>348</sup> These include the UN *Standard Minimum Rules for the Treatment of Prisoners* of 1955 and the European Prison Rules, adopted by the Committee of Ministers of the Council of Europe in Recommendation Rec (2006) 2 on 11 January 2006 (amending the 1987 version), the 1988 UN *Body of Principles for the Protection of All Persons under Any Form of Detention or Imprisonment*, the 1990 UN *Basic Principles on the Independence of the Judiciary*, the 1990 UN *Guidelines on the Role of Prosecutors* and the 1990 UN *Basic Principles on the Role of Lawyers*, as well as the ICTY Statute and Rules of Procedure and Evidence (Yugoslavia Rules) and the ICTR Statute and Rules of Procedure and Evidence (Rwanda Rules). Also of note are the *Rules Governing Detention of Persons Awaiting Trial or Appeal before the Special Court for Sierra Leone or Otherwise Detained under the Authority of the Special Court for Sierra Leone*, as amended, 14 May 2005.

<sup>349</sup> *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-T, 26 February 2001, para. 303.

<sup>350</sup> For a justification, see Cryer et al., *Introduction to ICL* (2014) 249, arguing that the 'gravity of the conduct' requirement excludes 'minor procedural defects'.

<sup>351</sup> Von Hebel and Robinson, in: Lee (ed.), *The International Criminal Court: The Making of the Rome Statute – Issues, Negotiations, Results* (1999) 79, 89.

criminal procedures. This example is unrealistic, since the Court would never have the resources to try jailors below the level of prison directors. Moreover, this provision needs to be read in connection with the war crime in article 8 para. 2 (c) (iv) of passing of sentences and carrying out of executions without previous judgment pronounced by a regularly constituted court, affording all judicial guarantees which are regarded as indispensable. In addition, there is jurisprudence spelling out the duty of jailors in such situations that indicate what are their responsibilities, which suggests that the prosecution would have to prove beyond a reasonable doubt that the jailor knew that the sentence was not issued by a regularly constituted court and that the body failed to afford such judicial guarantees<sup>352</sup>. A similar approach would seem fair with respect to jailors charged with imprisonment or unlawful deprivation of liberty, although there would be many situations when circumstantial evidence would be sufficient to prove such intent and knowledge.

In ICC practice, article 7 (1) (e) has thus far played only a limited role. The Prosecution alleged in the *Harun and Ali Kushayb* case that 'the Sudanese Armed Forces and Militia/Janjaweed imprisoned or severely deprived the primarily Fur, Zaghawa and Masalit civilians of their physical liberty' in August 2003<sup>353</sup>. Similar allegations were made in the *Hussein* case<sup>354</sup>. They are reflected in the corresponding warrants of arrest issued by PTC I.

- 52 f) 'Torture'. Torture was recognised as a war crime in non-international armed conflict as early as 1863 in the Lieber Code, which largely codified existing rules<sup>355</sup>. Similarly, the duty of belligerents in international armed conflict to ensure that prisoners of war are 'humanely treated' was recognised in the Hague Regulations in 1899<sup>356</sup>. Torture has been recognised as a crime against humanity since 1919<sup>357</sup>. It has also been recognised as a non-derogable right, applicable at all times, in various human rights instruments<sup>358</sup>. The prohibition is also found in numerous human rights treaties and other international standards<sup>359</sup>. It is also a violation

<sup>352</sup> See, for example, *Trial of Hauptsturmführer Oscar Hans*, No. 34, Eidsivating Lagmannsrett, January 1947, and Supreme Court of Norway, August 1947, No. 34 (1948) 6 LRTWC 82.

<sup>353</sup> See *Prosecutor v. Ahmad Muhammad Harun* ('Ahmad Harun') and *Ali Muhammad Ali Abd-Al-Rahman* ('Ali Kushayb'), No. ICC-02/05-01/07-1, Decision on the Prosecution Application under Article 58(7) of the Statute, Pre-Trial Chamber I, 17 April 2007 (PURL: <https://www.legal-tools.org/doc/0b8412/>), para. 70.

<sup>354</sup> *Prosecutor v. Abdel Raheem Muhammad Hussein*, No. ICC-02/05-01/12-1-Red, Public redacted version of 'Decision on the Prosecutor's application under article 58 relating to Abdel Raheem Muhammad Hussein', Pre-Trial Chamber I, 1 March 2012, para. 13.

<sup>355</sup> Instructions for the Government of Armies of the United States in the Field, US War Department, Adjutant General's Office, General Orders No. 100 (24 April 1863) (Lieber Code), reprinted in: Friedman (ed.), *The Law of War: A Documentary History* (1972) 158–186, 167, article 16 (stating that '[m]ilitary necessity does not admit of cruelty – that is the infliction of suffering for the sake of suffering or for revenge, nor of maiming or wounding except in fight, nor of torture to extort confessions').

<sup>356</sup> *Convention with Respect to the Laws and Customs of War on Land* (Hague II), Regulations Concerning the Laws and Customs of War on Land, 29 July 1899, article 4.

<sup>357</sup> See the 1919 Peace Conference Commission Report 113–114; all others article II para. 1 (c) of Allied Control Council Law No. 10; article 5 (f) of the ICTY Statute; article 3 (f) of the ICTR Statute; article 18 (c) of the 1996 ILC Draft Code; section 5.1 (f) and 5.2 (d) of UNTAET Reg. 2000/15; article 2 (e) of the Statute of the Special Court for Sierra Leone; and article 5 of the Law on the Establishment of Extraordinary Chambers in the Courts of Cambodia.

<sup>358</sup> These include article 1 of the *UN Declaration on the Protection of All Persons from Being Subjected to Torture or Other Cruel, Inhuman or Degrading Treatment or Punishment* (UN Declaration against Torture), UN GA Res. 3452 (XXX) (1975), article 1 of the UN Convention against Torture, articles 4 and 7 of the ICCPR, articles 3 and 15 of the ECHR and articles 5 para. 2 and 27 para. 2 of the American Convention on Hum. Rts.

<sup>359</sup> See, for example, *Universal Declaration of Human Rights*, UN GA Res. 217A, 10 December 1948, article 5; UN Declaration against Torture, UN DOC. A/10034 (1975); UN *Convention on the Rights of the Child*, UNGA Res. 44/25 (1989), article 37 (a); UN *Code of Conduct for Law Enforcement Officials*, UN GA Res. 34/169, 17 December 1979, article 5; UN *Body of Principles for the Protection of All Persons under Any Form of Detention or Imprisonment*, UN GA Res. 43/173, 9 December 1988; UN *Principles of Medical Ethics relevant to the Role of Health Personnel, particularly Physicians, in the Protection of Prisoners and Detainees against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment*, UN GA Res. 37/194 (1982), Principle 6; African Charter on Hum. and Peoples' Rts., OAU Doc. CAB/LEG/67/3/Rev. 5, 27 June 1981, article 5; *Inter-American Convention to Prevent and Punish Torture*, OAS TS, No. 67, OEA/Ser.A/42 (1986).

of international humanitarian law<sup>360</sup>. Indeed, it is now widely recognised as a violation of a *jus cogens* prohibition<sup>361</sup>. There was general support throughout the drafting process for the inclusion of torture as a crime against humanity, but there was considerable debate about the definition, in particular, whether it should be the same as that in the Convention against Torture, other human rights instruments or international humanitarian law<sup>362</sup>. The ICC definition differs in at least two important respects from the Convention against Torture. Following trends in customary international law, it does not contain an official capacity requirement<sup>363</sup>. Unlike the definition of torture as a war crime, torture as a crime against humanity lacks the purpose element under article 1 of the Convention<sup>364</sup>.

The Court applied article 7 (1) (f) *inter alia* in the *Bemba* case where rape was used as an instrument of torture. PTC II clarified that the same criminal conduct ‘can be prosecuted under two different counts’<sup>365</sup>, namely torture as well as rape (article 7 (1) (g)). It ultimately found that in this particular case the act of torture was subsumed by the more specific

<sup>360</sup> Geneva Convention I, articles 3, 50; Geneva Convention II, articles 3, 51; Geneva Convention III, articles 3, 130; Geneva Convention IV, articles 3, 147; Add. Prot. I, article 75, para. 2 (a) (ii); Add. Prot. II, article 4, para. 2 (a).

<sup>361</sup> See, for example, *Prosecutor v. Furundzija*, No. IT-95-17/1-T, Judgment, Trial Chamber, 10 December 1998, para. 153 (citing numerous UN bodies and national court decisions); *Siderman De Blake v. Republic of Argentina*, 965 F.2d 699, 717 (9th Cir. 1992), cert. denied, 507 U.S. 1017 (1993); *In re Estate of Ferdinand E. Marcos Litigation* (*Trajan v. Marcos*), 978 F.2d 493, 500 (9th Cir. 1992), cert. denied, *Marcos Manto v. Thajane*, 508 U.S. 972 (1993) *In re Estate of Ferdinand Marcos Human Rights Litigation* (*Marcos v. Hilao*, 25 F.3d 1467, 1475 (9th Cir. 1994), cert. denied, 115 S.Ct. 934 (1995); *Cabiri v. Assasie-Gyimah*, 921 F.Supp. 1189, 1196 (S.D.N.Y. 1996). De Wet, (2004) 15 *EJIL* 97; I.

Seiderman, *Hierarchy in International Law: The Human Rights Dimension* (2001). See also Cryer et al., *Introduction to ICL* (2014) 157; Ambos, *Treatise on ICL II* (2014) 89.

<sup>362</sup> Torture and ill-treatment were included in the three separate lists in the 1996 Preparatory Committee’s compilation of proposals. 1996 Preparatory Committee II, pp. 65, 69 (‘torture [or other forms of cruel treatment]’, ‘[cruel treatment including] torture [rape and other serious assaults of a sexual nature]’ and ‘torture or any other inhumane act causing great suffering or serious injury to physical or mental integrity or health’, ‘torture [or other forms of cruel treatment]’ and ‘torture or any other inhumane act causing great suffering or serious injury to physical or mental integrity or health’). In an annex, the second of these formulations was supplemented by a definition of torture modelled on the definition in article 1 of the Convention against Torture but omitting the purpose element and the link to state officials and substituting it with a custody or physical control requirement: ‘Torture means the intentional infliction of severe pain or suffering whether physical or mental, upon a person in the accused’s custody or physical control; except that torture shall not include pain and suffering arising only from, inherent in or incidental to, lawful sanctions’. *Ibid.*, p. 69. As the expert explained: ‘Some delegations expressed the view that this offence required further clarification. There was a proposal to incorporate relevant provisions of the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment without requiring that the acts be committed by a public official if the other criteria were met. There was also a proposal to define this offence in terms of cruel treatment, including torture, and to add mutilation as a separate offence.’ 1996 Preparatory Committee I, p. 24.

In February 1997, the Preparatory Committee list of crimes included ‘torture’, without any other form of ill-treatment, in the first paragraph of the article on crimes against humanity, together with the following definition as the second:

“Torture” means the intentional infliction of severe pain or suffering, whether physical or mental, upon a person [in the custody or physical control of the accused] [deprived of liberty]; except that torture shall not include pain or suffering arising only from, inherent in or incidental to, lawful sanctions [in conformity with international law].

Preparatory Committee Decisions Feb. 1997, p. 5. Another option in the second paragraph would have made the definition the same as in the Convention against Torture.

The same wording as in the February 1997 Rep. was included in the first paragraph of article 5 [20] of the Zutphen Draft, with the same explanation as in the 1997 Preparatory Committee Report in the second paragraph, and this wording remained unchanged in article 5 of the New York Draft.

<sup>363</sup> See also corresponding ICTY jurisprudence, finding that official capacity is not required under customary international law, *Prosecutor v. Kvočka et al.*, IT-95-30/1-T, 2 November 2001, para. 139; *Prosecutor v. Kunarac*, No. IT-96-23& IT-96-23/1-A, Judgement, Appeals Chamber, 12 June 2002, para. 148.

<sup>364</sup> Article 1 of the Convention against Torture; *Prosecutor v. Bemba*, ICC-01/05-01/08-424, 15 June 2009 (PURL: <https://www.legal-tools.org/doc/07965c/>), para. 195.

<sup>365</sup> *Prosecutor v. Bemba*, ICC-01/05-01/08-424, 15 June 2009 (PURL: <https://www.legal-tools.org/doc/07965c/>), para. 199.



material elements of rape<sup>366</sup>. For a discussion of the definition of torture as a crime against humanity under article 7, see mn 106–110. For the definition of torture as a war crime under the Rome Statute, see article 8 para. 2 (a) (ii) and (c) (i).

- 53 g) ‘Rape ... or any other form of sexual violence of comparable gravity’. Rape and other forms of sexual violence have been committed on a vast scale throughout history, including recent history up to the present day, particularly as a weapon of war<sup>367</sup>. Although rape and other forms of sexual violence have been prohibited in various instruments at least since the *Articles of War* issued by King Gustav Adolphus in 1621<sup>368</sup>, states have failed to address this issue effectively at both the international and national level by defining such conduct as crimes, ensuring effective procedures and investigating and prosecuting such crimes vigorously. Article 7 para. 1 (g) and para. 2 (f) are important steps in addressing these crimes, but it remains to be seen how effectively international and national courts will implement them.

As a war crime, the crime of rape and other forms of sexual violence have been included in various national and international instruments prior to the Second World War. Although rape was expressly identified as a violation of the laws of war in the 1863 Lieber Code<sup>369</sup>, in most instances crimes of sexual violence were included only in an elliptical fashion and categorised as attacks on honour rather than as crimes of sexual violence against the personal autonomy of the victim<sup>370</sup>. However, rape and abduction of girls and women for the purpose of enforced prostitution were expressly recognised as a violation of ‘the laws of humanity’ by the 1919 Peace Conference Commission Report<sup>371</sup>. Rape was not included in the definition of crimes against humanity or war crimes in the *Nuremberg Charter* or in the *Tokyo Charter*, although it had been covered by the phrase ‘... other inhumane acts ...’ which had been included in both definitions. Rape charges were brought against defendants before the Tokyo Tribunal, concerning evidence of widespread violence committed by Japanese soldiers against the civilian population of Nanking in 1937<sup>372</sup>. The *Nuremberg Principles* also did not expressly include rape.

- 54 The first definition of crimes against humanity which expressly included rape, but not other crimes of sexual violence, as a crime against humanity (although not as a war crime)

<sup>366</sup> *Prosecutor v. Bemba*, ICC-01/05-01/08-424, 15 June 2009 (PURL: <https://www.legal-tools.org/doc/07965c/>), paras. 204–205.

<sup>367</sup> Askin, *War Crimes Against Women* (1997).

<sup>368</sup> Articles of War decreed in 1621 by King Gustavus II Adolphus of Sweden, reprinted in: Ogren (1996) 313 *IRRC* 438 (1996), article 88 (‘He that forces any Woman to abuse her; and the matter be proved, he shall dye for it’).

<sup>369</sup> Instructions for the Government of Armies of the United States in the Field, US War Department, Adjutant General’s Office, General Orders No. 100 (24 Apr. 1863) (Lieber Code), article XLIV (‘All wanton violence...all rape, wounding, maiming or killing...[is] prohibited under penalty of death, or other such severe punishment as may be seen adequate’).

<sup>370</sup> The Declaration of Brussels of 1874, article XXXVII (‘[t]he honour and rights of the family...should be respected’). The 1907 Hague Regulations annexed to Hague Convention IV included crimes of sexual violence implicitly by expressing that ‘Family honour and rights, the lives of persons, and private property, as well as religious convictions and practice, must be respected ...’, Hague Regulations, article 46; see Meron (1993) 87 *AJIL* 424–428.

<sup>371</sup> Commission of the Responsibility of the Authors of the War and on Enforcement of Penalties, Report Presented to the Preliminary Peace Conference (1919 Peace Conference Commission Report), Versailles, Mar. 1919, Conference of Paris, Carnegie Endowment for International Peace, Division of International Law, Pamphlet No. 32, Annex), p. 114.

<sup>372</sup> Röling and Rüter (eds.), 1 *The Tokyo Judgment: The International Military Tribunal for the Far East*, Apr. 29, 12. Nov. 1946, 1948, at 389 (1977), where the IMTFE found that approximately 20,000 cases of rape occurred within the city during the first month of the occupation. This case came to be known as the ‘Rape of Nanking’. See also Brownmiller, *Against our Will: Men, Women and Rape* 57–62 (1975); Niarchos (1995) 17 *HumRtsQ* 649, 666. These charges did not include evidence concerning the ‘comfort women’, a term which refers to the forced prostitution of women in brothels by the Japanese government before and during the Second World War. See also Boling (1995) 32 *ColumbiaJTransnatL* 467; Dulgopol and Paranjape, *Comfort Women: An Unfinished Ordeal*, I Commission of Jurists (1993); Amnesty International, *Japan: Still waiting after 60 years – Justice for survivors of Japan’s military sexual slavery system*, AI Index: ASA 22/012/05, Oct. 2005.



was *Control Council Law No. 10*. However, there were no prosecutions for rape in the trials conducted on the basis of this instrument.

International humanitarian law treaties continued to fail to address rape and other crimes of sexual violence effectively. Rape was not expressly included as a grave breach or violation of common article 3 of the four Geneva Conventions of 1949, although it would still have been prosecutable under the rubric of 'violence to life and person' (which includes the war crime of cruel treatment) or 'outrages upon personal dignity' (which prohibits 'in particular humiliating and degrading treatment') in common article 3 or the grave breaches of 'inhuman treatment' or 'wilfully causing great suffering or serious injury to body or health'<sup>373</sup>. The only direct reference to the crime of rape comes in article 27 of the Fourth Geneva Convention (not a grave breach provision), which states that women shall be protected against 'any attack on their honour, in particular, rape, enforced prostitution, or any form of sexual assault'<sup>374</sup>. Although a modest advance, '[t]his characterisation of sexual violence as an attack against a woman's honor was based on the stereotype that a woman is shamed by being the victim of rape and denies the great physical and emotional harm suffered as a result of sexual violence crimes'<sup>375</sup>. Similar flaws infected the two Protocols to the Geneva Conventions adopted in 1977, which included prohibitions of rape and other crimes of sexual violence in both international and national armed conflict, but continued to treat them euphemistically as attacks on honour and dignity<sup>376</sup>.

A number of developments in the pivotal year of 1993 led to a significant shift in the approach to crimes of sexual violence. The World Conference on Human Rights adopted the Vienna Declaration and Programme of Action, which stated:

'Violations of the human rights of women in situations of armed conflict are violations of the fundamental principles of international human rights and humanitarian law. All violations of this kind, including in particular murder, systematic rape, sexual slavery, and forced pregnancy, require a particularly effective response'<sup>377</sup>.

The UN General Assembly adopted the Declaration on the Elimination of Violence against Women, with a broad definition of the term 'violence against women' and called upon states to take a broad range of measures to prevent and punish such violence<sup>378</sup>. Professor Theodor Meron, who later served as a member of the US delegation at the Rome Diplomatic Conference, wrote an influential article calling for effective international measures to address rape as a war crime and a crime against humanity<sup>379</sup>.

Parallel with these developments, as a result of various reports with regard to widespread rape and other sexual abuse committed in the former Yugoslavia, both article 5 (g) of the *ICTY Statute* and, subsequently, article 3 (g) of the *ICTR Statute* expressly include rape as a crime against humanity, but not as a war crime, and without expressly mentioning other crimes of sexual violence<sup>380</sup>. After considerable pressure from civil society, the Prosecutor of

<sup>373</sup> See Geneva Convention I, article 50; Geneva Convention II, article 51; Geneva Convention III, articles 14 and 130; Geneva Convention IV, articles 27, 147.

<sup>374</sup> Geneva Convention IV, article 27.

<sup>375</sup> Bedont and Hall-Martinez (1999) 6 *BrownJWorldAff* 65, 70–71.

<sup>376</sup> Add. Prot. I, articles 75 para. 2 (b) (outrages upon personal dignity, enforced prostitution and any form of indecent assault) and 76 (rape, forced prostitution and any other form of indecent assault); and Add. Prot. II, article 4 para. 2 (e) (rape, enforced prostitution or any other form of indecent assault). See further Ambos, *Treatise on ICL II* (2014) 95–98.

<sup>377</sup> Vienna Declaration and Programme of Action, adopted by the World Conference on Human Rights, Vienna, 25 June 1993, para. 38.

<sup>378</sup> UN GA Res. 48/104 of 20 Dec. 1993.

<sup>379</sup> Meron (1993) 87 *AJIL*. 424.

<sup>380</sup> In his report, the Secretary-General nevertheless stated that in the conflict in the territory of the former Yugoslavia, 'such inhumane acts have taken the form of so-called 'ethnic cleansing' and widespread and systematic rape and other forms of sexual assault, including enforced prostitution', Report of the Secretary-General pursuant to paragraph 2 of Security Council Res. 808 (1993), para. 48, UN DocS/25704/Add.1, 19 May 1993. By drafting Rule 96 the judges of the ICTY have introduced the term 'sexual assault', thereby recognizing

both *ad hoc* Tribunals issued various indictments charging the accused with rape and other sexual abuse which led to a significant number of judgments by these *ad hoc* Tribunals finding the accused guilty of having committed rape and other crimes of sexual violence as crimes against humanity (see discussion below), as well as convictions for war crimes<sup>381</sup>. In fact, one of the most significant (if inadvertent) contributions of the *ad hoc* Tribunals was to establish that evidence of sexual violence could be a relevant underlying fact to establish criminal responsibility for a range of other international crimes in addition to specific crimes of sexual violence, including genocide, extermination, enslavement, torture, persecution, other inhumane acts, grave breaches, outrages on personal dignity and cruel or inhuman treatment<sup>382</sup>.

Rape was mentioned as a particular form of an unlawful act in the commentary to the *ILC Draft Statute*<sup>383</sup>. Article 18 (j) of the 1996 *Draft Code* was the first instrument which expressly included enforced prostitution and other forms of sexual abuse in addition to rape as crimes against humanity<sup>384</sup>.

- 55 Article 7 para. 1 (g) and para. 2 (f) are not the only provisions of the Rome Statute giving the Court jurisdiction over crimes of sexual violence. In addition, the Court can also exercise jurisdiction over such conduct when committed as war crimes under article 8 (in either international and non-international armed conflict), as an act of genocide under article 6 (under the heading of 'causing serious bodily or mental harm to members of the group') and as an underlying act for the crimes against humanity of torture, persecution or other inhumane acts, among many other offences for which evidence of sexual violence would also be relevant. The explicit inclusion of rape and other crimes of sexual violence in the Rome Statute is an important advance over their previous categorisation by international instruments as violations of the honour and reputation of women, instead of as criminal acts aimed at the physical and mental integrity of a person. It also led to the express inclusion of an expanded list of crimes of sexual violence as crimes against humanity and war crimes in the establishing Statutes of other international criminal tribunals<sup>385</sup>. However, it is interesting to note that, in its charging practice to date, the Office of the Prosecutor has not made use of the full range of potential crimes of sexual violence contained in the Rome Statute. The crimes of enforced pregnancy, forced prostitution and enforced sterilisation have not been charged against any defendant to date.

These provisions apply to women and men. The definitions of rape and other sexual violence crimes adopted by the Court are deliberately phrased in gender neutral terms, unlike many national jurisdictions which assign specific body parts to the perpetrator or victim, and

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that the Tribunal has jurisdiction over other acts of sexual violence besides rape, Yugoslavia Rules, Rev. 13, 9–10 July 1998. The same rule has been included in the Rwanda Rules, 5<sup>th</sup> Plenary Sess., 1–8 June 1998.

<sup>381</sup> The *Akayesu* Trial Chamber was the first which rendered a judgment finding the defendant criminally responsible for the crime of rape and qualifying it as crimes against humanity (see *Prosecutor v. Akayesu*, No. ICTR-96-4-T, Judgment, Trial Chamber, 2 September 1998). The first indictment charging defendants with rape as a specific and separate crime was issued by the ICTY in 1996, in which the Prosecutor qualified the crime as a violation of the grave breaches provision (article 2), a violation of the laws and customs of war (article 3) and as a crime against humanity (article 5) (*Prosecutor v. Gagoić (Foca)*, No. IT-96-23-1, Indictment, 26 June 1996. See also *Prosecutor v. Furundžija*, No. IT-95-17/1-T, Judgment, Trial Chamber, 10 December 1998, (Criminal responsibility for aiding and abetting rape while the act of rape itself had not been committed by the accused).

<sup>382</sup> See further, Hayes in: Darcy and Powderly (eds), *Judicial Creativity at the International Criminal Tribunals* (2010) 140–155.

<sup>383</sup> 1994 ILC Report, p. 76.

<sup>384</sup> In its report, the ILC referred to the numerous reports of rape committed in a systematic manner or on a large scale in the former Yugoslavia and noted that these acts are 'forms of violence that may be specifically directed against women and therefore constitute a violation of the Convention on the Elimination of all Forms of Discrimination against Women', Part 2, 2 *YbILC* 50 (1996).

<sup>385</sup> UNTAET Reg. 2000/15 (establishing the Special Panels for Serious Crimes, Dili, East Timor), Sections 5.1 (g) and 5.2 (e) ('Rape, sexual slavery, enforced prostitution, forced pregnancy, enforced sterilisation, or any other form of sexual violence of comparable gravity'); Statute of the Special Court for Sierra Leone Statute, article 2 ('Rape, sexual slavery, enforced prostitution, forced pregnancy and any other form of sexual violence'); Law on the Establishment of the Extraordinary Chambers, with inclusion of amendments as promulgated on 27 Oct. 2004 (NS/RKM/1004/006), article 5 (rape).

are therefore capable of encompassing a broader range of factual scenarios and forms of victimisation, including male victims of rape or sexual assault, female perpetrators, and those forced to carry out acts of rape or sexual violence against their will.

aa) 'Rape'. Rape falls within the broader category of crimes of sexual violence. There was no definition of rape in international humanitarian or human rights law when the Rome Statute was adopted in July 1998<sup>386</sup>. However, an immensely influential report by the UN Special Rapporteur on the situation of systematic rape, sexual slavery and slavery-like practices during wartime, including internal armed conflict, published during the second week of the Rome Diplomatic Conference, stated that rape is 'the insertion, under conditions of force, coercion or duress, of any object, including but not limited to a penis, into a victim's vagina or anus; or the insertion, under conditions of force, coercion or duress, of a penis into the mouth of the victim'<sup>387</sup>. Thus, this gender-neutral definition has two components: a physical invasion of the body of the victim and coercion. In *Akayesu*, six weeks after the Rome Diplomatic Conference, after noting that there was at the time no commonly accepted definition of this term in international law, the Trial Chamber of the ICTR, reflecting in part the approach of the UN Special Rapporteur and legal arguments advanced in an *amicus curiae* brief submitted by non-governmental organisations, defined rape as 'a physical invasion of a sexual nature, committed on a person under circumstances which are coercive'<sup>388</sup>. It noted that rape has been defined in certain national jurisdiction as 'non-consensual intercourse', but that variations on the act of rape may include acts which involve the insertion of objects and/or the use of bodily orifices not considered intrinsically sexual<sup>389</sup>. The Trial Chamber noted that coercive circumstance did not need to be evidenced by a show of physical force: 'Threats, intimidation, extortion and other forms of duress which prey on fear or desperation may constitute coercion, and coercion may be inherent in certain circumstances, such as armed conflict or military presence'<sup>390</sup>.

Like the definition of the UN Special Rapporteur, this gender-neutral definition also had the same two components, slightly differently worded: a physical invasion of the body of the

<sup>386</sup> Rape and Sexual Assault: A Legal Study, Final Report of the UN Commission of Experts Established Pursuant Security Council Res. 780 (1992), UN DocS/1994/674/Add.2, Vol. I, annex II, para. 2; Final Report of the Special Rapporteur of the Working Group on Contemporary Forms of Slavery, on systematic rape, sexual slavery and slavery-like practices during armed conflict (1998 Slavery Rapporteur Report), UN DocE/CN.4/Sub.2/1998/13 (22 June 1998), para. 23 ('No definition of rape can be found in international law'). For a full discussion of the development of the definition of the crime of rape under ICL, see Hayes, in: Darcy and Powderly (eds.), *Judicial Creativity at the International Criminal Tribunals* (2010) 129; also Ambos, *Treatise on ICL II* (2014) 95 *et seq.*

<sup>387</sup> Final Report of the Special Rapporteur on the Working Group on Contemporary Forms of Slavery, on systematic rape, sexual slavery and slavery-like practices during armed conflict, UN Doc. E/CN.4/Sub.2/1998/13 (22 June 1998), para. 24. She explained that the definition of rape advanced in the study 'reflects current international elaborations, modern applications, examples derived from municipal law and practice, working definitions of rape that have been submitted by the Office of the Prosecutor to the International Criminal Tribunal for the Former Yugoslavia and to the International Tribunal for Rwanda, and definitions that have been adopted by various international non-governmental organisations'.

During the Rome Diplomatic Conference, one State defined the *actus reus* of rape as 'the forcible penetration, however slight, of any part of the body of another by the accused's sexual organ, or forcible penetration, however slight, of the anal or genital opening of another by an object'. UN Doc A/CONF.183/C.1/L.10 (1998), p. 6.

<sup>388</sup> *Prosecutor v. Akayesu*, No. ICTR-96-4-T, Judgment, Trial Chamber, 2 September 1998, paras. 596 and 688. See *Amicus Brief Respecting Amendment of the Indictment and Supplementation of the Evidence to Ensure the Prosecution of Rape and Other Sexual Violence Within the Competence of the Tribunal*, submitted by the Coalition for Women's Human Rights in Conflict Situations, pursuant to Tribunal Rule 74. The rape charges in this and other ICTR cases were brought only after intense pressure from non-governmental organisations.

<sup>389</sup> *Ibid.*, paras. 596 and 686. The Chamber considered that rape is a form of aggression and that the central elements of the crime of rape cannot be captured in a mechanical description of objects and body parts. *ibid.*, paras. 597 and 687.

<sup>390</sup> *Ibid.*, para. 688. '[T]he manifestly coercive circumstances that exist in all armed conflict situations establish a presumption of non-consent and negates the need for the prosecution to establish a lack of consent as an element of the crime', Final Report of the Special Rapporteur on the Working Group on Contemporary Forms of Slavery, on systematic rape, sexual slavery and slavery-like practices during armed conflict, para. 25.

victim and coercion. Each definition approaches the crime as an invasion of personal autonomy. Neither definition was based on outdated concepts of absence of consent by the victim, which in national courts often led in practice to the burden of proof perversely shifting to the victim to demonstrate that he or she had not consented and to coerced 'consent' being a defence to a charge of rape. It is also noteworthy that the definition of rape identified in *Akayesu* was deliberately designed to be conceptual rather than exhaustive, in a similar manner to the definition of torture contained in the UN *Convention Against Torture*, since the judges believed that 'the central elements of the crime of rape cannot be captured in a mechanical description of objects and body parts'<sup>391</sup>. The deliberate lack of specificity in the *Akayesu* definition of the *actus reus* of the crime of rape was one of the main reasons for the gradual move away from that definition within the jurisprudence of the *ad hoc* Tribunals in favour of a more detailed focus on penetration of specific body parts<sup>392</sup>.

- 57 The question of *consent* continued to be a contentious issue in the development of the definition of rape throughout the jurisprudence of the *ad hoc* Tribunals. Although the current jurisprudence in the two leading Appeals Chamber judgments, *Kunarac* in the ICTY and *Gacumbitsi* in the ICTR, have re-emphasised the fundamental nature of the crime as an attack on personal sexual autonomy, they have expressed this aspect of the crime by reintroducing the concept of non-consent as part of the definition<sup>393</sup>. However, they have taken some steps to avoid the risk that this new formulation could place the Prosecutors under an unduly heavy burden and force the victim to demonstrate their lack of consent by stating that the circumstances in which international crimes are committed are almost always coercive or involve some element of force<sup>394</sup>. However, it is ironic to consider that the *ad hoc*

<sup>391</sup> *Ibid.*, paras. 597, 687.

<sup>392</sup> See for example, *Prosecutor v. Furundžija* (Trial Chamber Judgment) paras. 176–181; *Prosecutor v. Kunarac* (Trial Chamber Judgment) para. 438; *Prosecutor v. Semanza* (Trial Chamber Judgment) paras. 344–345.

<sup>393</sup> The ICTY Trial Chamber in *Kunarac*, in an approach approved by the Appeals Chamber, explained:

'The basic principle which is truly common to these legal systems is that serious violations of sexual *autonomy* are to be penalised. Sexual autonomy is violated wherever the person subjected to the act has not freely agreed to it or is otherwise not a voluntary participant. In practice, the absence of genuine and freely given consent or voluntary participation may be *evidenced* by the presence of the various factors specified in other jurisdictions – such as force, threats of force, or taking advantage of a person who is unable to resist'.

*Prosecutor v. Kunarac*, IT-96-23-T, Judgment, Trial Chamber, 22 February 2001, paras. 457–458 (emphasis in the original). In a definition approved by the Appeals Chamber, the Trial Chamber retained the invasion component, but replaced the coercion component with a non-consent one:

'[T]he *actus reus* of the crime of rape in international law is constituted by: the sexual penetration, however slight: (a) of the vagina or anus of the victim by the penis of the perpetrator or any other object used by the perpetrator; or (b) of the mouth of the victim by the penis of the perpetrator; where such sexual penetration occurs without the consent of the victim. Consent for this purpose must be consent given voluntarily, as a result of the victim's free will, assessed in the context of the surrounding circumstances. The *mens rea* is the intention to effect this sexual penetration, and the knowledge that it occurs without the consent of the victim'.

*Ibid.*, para. 460.

<sup>394</sup> The ICTY Appeals Chamber in *Kunarac* stated that 'it is worth observing that the circumstances giving rise to the instant appeal and that prevail in most cases charged as .. crimes against humanity will be almost universally coercive. That is to say, true consent will not be possible'. *Prosecutor v. Kunarac et al.*, IT-96-23, Judgment, Appeals Chamber, 12 June 2002, para. 130.

In *Gacumbitsi*, the ICTR Appeals Chamber dismissed the objections of the Prosecutor that the *Kunarac* approach would place a high burden on him to prove non-consent. It explained:

'The Prosecution can prove non-consent beyond reasonable doubt by proving the existence of coercive circumstances under which meaningful consent is not possible .. But it is not necessary, as a legal matter, for the Prosecution to introduce evidence concerning the words or conduct of the victim or the victim's relationship to the perpetrator. Nor need it introduce evidence of force. Rather, the Trial Chamber is free to infer non-consent from the background circumstances, such as an ongoing genocide campaign or the detention of the victim. Indeed, the Trial Chamber did so in this case.

156. Under certain circumstances, the accused might raise reasonable doubt by introducing evidence that the victim specifically consented. However, pursuant to Rule 96(ii) of the Rules, such evidence is inadmissible if the victim:

- (a) Has been subjected to or threatened with or has had reason to fear violence, duress, detention or psychological oppression; or
- (b) Reasonably believed that if the victim did not submit, another might be so subjected, threatened or put in fear.

Tribunals' concern for respecting the concept of sexual autonomy has inadvertently resulted in a definition of rape which rests on a rebuttable presumption that genuine consent to sexual activity is not possible in circumstances which would trigger their jurisdiction over war crimes, crimes against humanity or genocide<sup>395</sup>.

For the purposes of the ICC, therefore, the two essential and gender-neutral elements of the crime against humanity of rape in the Elements of Crimes (with the original footnotes) are:

- '1. The perpetrator invaded<sup>396</sup> the body of a person by conduct resulting in penetration, however slight, of any part of the body of the victim or of the perpetrator with a sexual organ, or of the anal or genital opening of the victim with any object or any other part of the body.
2. The invasion was committed by force, or by threat of force or coercion, such as that caused by fear of violence, duress, detention, psychological oppression or abuse of power, against such person or another person, or by taking advantage of a coercive environment, or the invasion was committed against a person incapable of giving genuine consent<sup>397</sup>.'

It is significant that the ICC, as the first international criminal tribunal to adopt a gender-neutral definition of rape, should also be the first international court to charge sexual abuse committed *against men* as the specific crime of rape rather than an ancillary or related crime such as torture or outrages upon personal dignity, the form such charges usually took at the *ad hoc* Tribunals<sup>398</sup>.

While rape has been charged as a crime against humanity in a number of cases at the ICC to date<sup>399</sup>, the Court has yet to enter a conviction for that crime. Charges of rape have only

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Additionally, even if it admits such evidence, a Trial Chamber is free to disregard it if it concludes that under the circumstances the consent given was not genuinely voluntary.

157. As to the accused's knowledge of the absence of consent of the victim, which as Kunarac establishes is also an element of the offence of rape, similar reasoning applies. Knowledge of nonconsent may be proven, for instance, if the Prosecution establishes beyond reasonable doubt that the accused was aware, or had reason to be aware, of the coercive circumstances that undermined the possibility of genuine consent'.

*Prosecutor v. Gacumbitsi*, No. ICTR-2001-64-T, Judgment, Trial Chamber, 17 June 2004, paras. 155–157. Rape has also been included in charges in cases before the Special Court for Sierra Leone.

<sup>395</sup> See further, Hayes in: Darcy and Powderly (eds), *Judicial Creativity at the International Criminal Tribunals* (2010) 140–155; Ambos, *Treatise on ICL II* (2014) 95–98; Cryer, et al., *Introduction ICL* (2014) 252–253.

<sup>396</sup> The concept of 'invasion' is intended to be broad enough to be gender-neutral.

<sup>397</sup> It is understood that a person may be incapable of giving genuine consent if affected by natural, induced or age-related incapacity. This footnote also applies to the corresponding elements of article 7 para. 1 (g) 3, 5 and 6'.

<sup>398</sup> See *Prosecutor v. Bemba*, No. ICC 01/05-01/08-424, Decision Pursuant to article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor Against Jean-Pierre Bemba Gombo, Pre-Trial Chamber II, 15 June 2009 and *Prosecutor v. Ntaganda*, No. ICC-01/04-02/06-309, Decision Pursuant to article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor Against Bosco Ntaganda, Pre-Trial Chamber II, 9 June 2014. See further Sivakumaran. in: de Brouwer, Ku, Römkens and van den Herik (eds.), *Sexual Violence as an International Crime: Interdisciplinary Approaches* (Cambridge 2013); Mouthaan (2013) 13 *ICLRev* 665.

<sup>399</sup> *Prosecutor v. Katanga and Ngudjolo*, No. ICC-01/04-01/07-717, Decision on the Confirmation of Charges, Pre-Trial Chamber I, 30 September 2008; *Prosecutor v. Bemba*, No. ICC 01/05-01/08-424, Decision Pursuant to article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor Against Jean-Pierre Bemba Gombo, Pre-Trial Chamber II, 15 June 2009; *Prosecutor v. Kenyatta, Muthaura and Ali* No. ICC-01/09-02/11-382-Red, Decision on the Confirmation of Charges Pursuant to article 61(7)(a) and (b) of the Rome Statute, Pre-Trial Chamber II, 23 January 2012; *Prosecutor v. Laurent Gbagbo* No. ICC-02/11-01/11-656-Red, Decision on the Confirmation of Charges against Laurent Gbagbo, Pre-Trial Chamber I, 12 June 2014; *Prosecutor v. Ntaganda*, No. ICC-01/04-02/06-309, Decision Pursuant to article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor Against Bosco Ntaganda, Pre-Trial Chamber II, 9 June 2014; *Prosecutor v. Ble Goudé* No. ICC-02/11-02/11-186, Decision on the Confirmation of Charges Against Charles Blé Goudé, Pre-Trial Chamber I, 11 December 2014; *Prosecutor v. Kony et al.*, No. ICC-02/04-01/05-53, Warrant of Arrest for Joseph Kony Issued on 8 July 2005 as Amended on 27 September 2005, Pre-Trial Chamber II, 27 September 2005; *Prosecutor v. Mbarushimana*, No. ICC-01/04-01/06-47, Decision on the Confirmation of Charges, Pre-Trial Chamber I, 16 December 2011; *Prosecutor v. Al Bashir*, No. ICC-02/05-01/09-94, Second Decision on the Prosecution's Application for a Warrant of Arrest, Pre-Trial Chamber I, 12 July 2010; *Prosecutor v. Harun and Kushayb* No. ICC-02/05-01/07-1, Decision on the Prosecution Application under article 58(7) of the Statute, Pre-Trial Chamber I, 1 May 2007; *Prosecutor v. Hussein* No. ICC-02/05-01/12-1-Red, Public redacted version of 'Decision on the Prosecutor's application under article 58 relating to Abdel Raheem Muhammad Hussein, Pre-Trial Chamber I, 1 March 2012 and *Prosecutor v. Simone Gbagbo*, Decision on the Prosecutor's Application Pursuant to article 58 for a Warrant of Arrest Against Simone Gbagbo, Pre-Trial Chamber III, 2 March 2012.



been included in one case which has reached the issuance of a trial judgment under article 74 to date, namely the case against Germain Katanga and Mathieu Ngudjolo Chui<sup>400</sup>. In the *Katanga* trial judgment, the judges upheld and endorsed the two elements of the crime of rape outlined above. In relation to the first element of penetration, the Chamber emphasised that it is satisfied whenever the body of a person is invaded in a manner that results in penetration, even if the perpetrator does not engage in the act of penetration him- or herself. This element can be applied equally to situations where the perpetrator him- or herself is penetrated as to situations where he or she causes someone else to be penetrated. In either case, there will have to be some penetration, however slight, of a body part with a sexual organ, or penetration of the anus or vagina with an object or other body part<sup>401</sup>.

- 60 In relation to the second element of *coercion*, the Trial Chamber noted that, outside of the specific situation of a perpetrator profiting from a victim's inability to give genuine consent due to natural, induced or age-related incapacity, the Elements of Crimes do not refer to the absence of consent on the part of the victim and this therefore does not have to be demonstrated. The establishment of the existence of at least one of the circumstances or coercive conditions laid out in the second element (i.e. the use of force, threat of force or coercion, such as that caused by fear of violence, duress, detention, psychological pressure, abuse of power or taking advantage of a coercive environment) would be sufficient to establish an act of penetration as rape under article 7 para. 1(g)<sup>402</sup>. The Chamber also reiterated that, under rule 70 of the *Rules of Procedure and Evidence*, where it is alleged that the perpetrator used force or took advantage of a coercive environment, the consent of the victim cannot be inferred in any way from his or her words or conduct<sup>403</sup>.
- 61 **bb) 'sexual slavery'**. In paragraph 1 (g), sexual slavery is listed as a separate offence, but it should be considered as a particular form of enslavement which includes various forms of slavery<sup>404</sup>. For commentary on the crime of enslavement, see mn 26–30 and 96. The word 'sexual' in the current paragraph denotes the result of this particular crime of enslavement: limitations on one's autonomy, freedom of movement and power to decide matters relating to one's sexual activity<sup>405</sup>. Sexual slavery thus also encompasses situations where women and girls are forced into 'marriage', domestic servitude or other forced labour that ultimately involves forced sexual activity, including rape by their captors<sup>406</sup>. According to the Special Rapporteur of the Working Group on Contemporary Forms of Slavery '[p]ractices such as

<sup>400</sup> Although Katanga and Ngudjolo were tried together, the cases were severed after the closure of the defence case and prior to the issuance of the judgment under article 74. See *Prosecutor v. Katanga and Ngudjolo*, No. ICC-01/04-01/07-3319-tENG/FRA, Decision on the Implementation of Regulation 55 of the Regulations of the Court and Severing the Charges Against the Accused Persons, Trial Chamber II, 21 November 2012. All charges against Ngudjolo, including the rape charge, were dismissed on the basis that his individual criminal responsibility under the mode of liability alleged by the Prosecutor had not been proven. See *Prosecutor v. Ngudjolo*, No. ICC-01/04-02/12-3-tENG, Judgement Pursuant to article 74 of the Statute, Trial Chamber II, 18 December 2012. No findings were entered on the definition of the crimes charged.

<sup>401</sup> See *Prosecutor v. Katanga*, No. ICC-01/04-01/07-3436-tENG, Judgement Pursuant to article 74 of the Statute, Trial Chamber II, 07 March 2013, para 963.

<sup>402</sup> *Ibid.*, paras. 964–965.

<sup>403</sup> *Ibid.*, para. 966.

<sup>404</sup> 'Enslavement' in paragraph 1 (c) means 'the exercise of any or all of the powers attaching to the right of ownership over a person ...' (paragraph 2 (c)), and 'slavery' means the 'status or condition of a person over whom any or all of the powers attaching to the right of ownership are exercised' (article 1 para. 1 of the 1926 Slavery Convention). The definition of 'enslavement' thus contains the *actus reus* of the offense; the word 'slavery' denotes the condition or the status of the victim and should be interpreted as being a consequence or result from acts of enslavement. But see commentary on paragraph 1 (c) 'enslavement'. In her report, the Special Rapporteur used the term 'sexual' as an adjective to describe a form of slavery, not to denote a separate offence. Final Report of the Special Rapporteur on the Working Group on Contemporary Forms of Slavery, on systematic rape, sexual slavery and slavery-like practices during armed conflict, UN DocE/CN.4/Sub.2/1998/13 (22 June 1998), para. 30. In the ICC, sexual slavery has been included in charges against LRA suspects and Sudanese suspects.

<sup>405</sup> Bassiouni (1991) 23 *NYUJIL&Pol* 458 (1991).

<sup>406</sup> Final Report of the Special Rapporteur on the Working Group on Contemporary Forms of Slavery, on systematic rape, sexual slavery and slavery-like practices during armed conflict, UN DocE/CN.4/Sub.2/1998/13



the detention of women in 'rape camps'<sup>407</sup> or 'comfort stations', forced, temporary 'marriages' to soldiers and other practices involving the treatment of women as chattel, are both in fact and in law forms of slavery and, as such, violations of the peremptory norm prohibiting slavery<sup>408</sup>. In practice, it is unclear whether a situation of 'forced marriage' as it has been prosecuted by other international criminal tribunals would be charged as the crime against humanity of enslavement, sexual slavery or other inhumane acts at the ICC<sup>409</sup>.

The two non-contextual elements of the crime against humanity of sexual slavery in the Elements of Crimes are:

1. The perpetrator exercised any or all of the powers attaching to the right of ownership over one or more persons, such as by purchasing, selling, lending or bartering such a person or persons, or by imposing on them a similar deprivation of liberty.<sup>410</sup>
2. The perpetrator caused such person or persons to engage in one or more acts of a sexual nature.<sup>411</sup>

The crime against humanity of sexual slavery has been charged in three cases at the ICC to date, only one of which has resulted in a trial judgement and did not include a conviction for sexual slavery<sup>411</sup>.

Although previous editions of this commentary expressed concerns that the first element of the crime of sexual slavery relating to exercising powers of ownership, which is identical to the equivalent element in the crime against humanity of enslavement, would be misinterpreted restrictively (see mn 96), the first trial judgement to address this issue has taken an expansive and common-sense approach<sup>412</sup>. The *Katanga* Trial Chamber held that the list of examples contained in the first element was not intended to be exhaustive, since the 'powers attaching to the right of ownership' can take many forms, but will usually involve the ability to use, enjoy or dispose of a person like a piece of property by placing them in a position of dependence resulting in the deprivation of all autonomy<sup>413</sup>. The exercise of such powers will have to be assessed on a case-by-case basis, taking into account various factors including: the detention or captivity of the victim and its duration; limitation of the freedom to come and go, freedom of choice or freedom of movement of the victim; measures taken to prevent or discourage any attempts at escape; the use of threats, force or other forms of physical or moral coercion; the obligation to engage in forced labour; the exercise of psychological pressure; the degree of vulnerability of the victim; and, significantly, the socio-economic conditions under which the powers were exercised<sup>414</sup>.

The Chamber emphasised that the exercise of powers attaching to the right of ownership over another person need not necessarily amount to a commercial transaction, since the notion of servitude is primarily related to the inability of the victim to amend or improve his

(22 June 1998), para. 30. See also Report of the Special Rapporteur on Violence against Women, its Causes and Consequences, Ms. Radhika Coomaraswamy, UN DocE/CN.4/1998/54, para. 42.

<sup>407</sup> *Prosecutor v. Gagić*, No. IT-96-23-1, Indictment, 26 June 1996, paras. 1.5 and 4.8.

<sup>408</sup> Final Report of the Special Rapporteur on the Working Group on Contemporary Forms of Slavery, on systematic rape, sexual slavery and slavery-like practices during armed conflict, UN Doc. E/CN.4/Sub.2/1998/13 (22 June 1998), para. 8. See also article 1 of the Supplementary Convention on the Abolition of Slavery, the Slave Trade, and Institutions and Practices Similar to Slavery (1956), 266 UNTS 3.

<sup>409</sup> See further Sellers (2011) 44 *CornILJ* 115.

<sup>410</sup> 'It is understood that such deprivation of liberty may, in some circumstances, include exacting forced labour or otherwise reducing a person to a servile status as defined in the Supplementary Convention on the Abolition of Slavery, the Slave Trade, and Institutions and Practices Similar to Slavery of 1956. It is also understood that the conduct described in this element includes trafficking in persons, in particular women and children.'

<sup>411</sup> *Prosecutor v. Katanga and Ngudjolo* No. ICC-01/04-01/07-717, Decision on the Confirmation of Charges, Pre-Trial Chamber I, 30 September 2008; *Prosecutor v. Ntaganda*, No. ICC-01/04-02/06-309, Decision Pursuant to article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor Against Bosco Ntaganda, Pre-Trial Chamber II, 9 June 2014; *Prosecutor v. Kony et al.*, No. ICC-02/04-01/05-53, Warrant of Arrest for Joseph Kony Issued on 8 July 2005 as Amended on 27 September 2005, Pre-Trial Chamber II, 27 September 2005.

<sup>412</sup> See *Prosecutor v. Katanga*, No. ICC-01/04-01/07-3436-ENG, Judgement Pursuant to article 74 of the Statute, Trial Chamber II, 07 March 2013.

<sup>413</sup> *Ibid.*, para. 975.

<sup>414</sup> *Ibid.*, para. 976.

or her situation<sup>415</sup>. The crucial issue is the victim's subjective reaction to their deprivation of liberty, their perception of the situation and the reasonable fears they experience<sup>416</sup>. This finding implies that a significant enough degree of socio-economic inequality between the victim and the perpetrator could potentially satisfy the criminal element of 'exercising powers attaching to the right of ownership' over another person for the purposes of sexual slavery, provided that the inequality or disparity was severe enough that the victim was so dependent as to make it impossible for him or her to exercise any personal autonomy or to modify or escape from his or her situation.

The *Katanga* Trial Chamber viewed the second element of sexual slavery as relating to the victim's ability to decide the conditions for the exercise of his or her sexual autonomy, and noted that the concept of sexual slavery was particularly likely to cover situations in which women or young girls are forced to share their existence with a person with whom they must engage in acts of a sexual nature<sup>417</sup>. The Chamber did not make any finding requiring that such acts must have been the result of force, threat of force or coercion.

- 63 cc) 'enforced prostitution'. The term 'enforced prostitution' is unfortunate from a number of perspectives. It has been argued that sexual slavery also encompasses most, if not all, forms of 'forced prostitution', which generally refers to conditions of control over a person who is coerced by another to engage in sexual activity<sup>418</sup>. It has also been argued that 'sexual enslavement' has been diminished by calling it only 'enforced prostitution' which term would muffle the violence, coercion and control 'that is characteristic of sexual slavery'<sup>419</sup>. The term 'prostitution', indeed, misleadingly may suggest that sexual services are provided as part of an exchange albeit one coerced by the circumstances. Moreover, the term could be misunderstood to suggest sexual activity initiated by the victim instead of by the offender. Older definitions of enforced prostitution put the emphasis of the 'immoral attack' on the woman's honour<sup>420</sup>. Here, the same argument may apply as regarding rape when it has not been expressly criminalised in an instrument, but, instead, put in formulations of violations of honour; it then does not recognize the forced character of the act nor the suffering of the victim<sup>421</sup>.
- 64 According to the Special Rapporteur, older definitions of enforced prostitution are nearly indistinct from definitions that seem more accurately to describe the condition of slavery<sup>422</sup>. For these reasons, she considers the crime of 'forced prostitution' to be a 'potential, albeit limited alternative tool for future prosecutions of sexual violence in armed conflict situa-

<sup>415</sup> *Ibid.*, para. 976.

<sup>416</sup> *Ibid.*, para. 977.

<sup>417</sup> *Ibid.*, para. 978.

<sup>418</sup> Final Report of the Special Rapporteur on the Working Group on Contemporary Forms of Slavery, on systematic rape, sexual slavery and slavery-like practices during armed conflict, UN Doc/CN.4/Sub.2/1998/13 (22 June 1998), para. 31. 'The terms 'forced prostitution' or 'enforced prostitution' appear in international and humanitarian conventions but have been insufficiently understood and inconsistently applied'. Because the Special Rapporteur in her report refers to 'forced' instead of 'enforced' prostitution in contrast to this Statute, here the words 'forced prostitution' are put between quotation marks.

<sup>419</sup> Women's Caucus for Gender Justice in the International Criminal Court, *Recommendations and Commentary For December 1997 PrepCom on the Establishment of an International Criminal Court*, UN Headquarters 1–12 Dec. 1997, WC.5.6-9, 6–10.

<sup>420</sup> E.g., article 27 of the Fourth Geneva Convention: 'Women shall be especially protected against any attack on their honour, in particular against rape, *enforced* prostitution, or any form of indecent assault'. Article 75 para. 2 (b), Add. Prot. I prohibits 'outrages upon personal dignity, in particular humiliating and degrading treatment, *enforced* prostitution and any form of indecent assault'. In article 76 para. 1 it is stated that 'Women shall be the object of special respect and shall be protected in particular against rape, *forced* prostitution and any other form of indecent assault' (italics added). Article 4 para. 2 (e), Add. Prot. II contains the same prohibition as in article 75 para. 2 (b), Add. Prot. I, which is also a fundamental guarantee.

<sup>421</sup> Niarchos (1995) 17 *HumRtsQ* 649, 674.

<sup>422</sup> The crime of enforced prostitution has been included in the Geneva Conventions and their Protocols, see mn 42.

tions<sup>423</sup>. It has been suggested that this crime ‘was retained in the Rome Statute to capture those situations that lack slavery-like conditions’<sup>424</sup>. The inclusion of the crime of enforced prostitution might cover a situation that does not amount to slavery or enslavement, but in which a person is compelled to perform sexual acts in order to obtain something necessary for survival or to avoid further harm. Such situations might also not be covered by rape if they do not meet the requirement of an element of coercion or force or threat of force<sup>425</sup>, although the ICTR in the *Akayesu* case has interpreted this element broadly<sup>426</sup>. However, they certainly would be covered by the crime of other forms of sexual violence (see mn 53). In those instances, if it would not be possible to prosecute someone successfully for rape or sexual slavery, it would seem preferable to charge that person with other forms of sexual violence.

The two non-contextual elements of the crime of enforced prostitution in the Elements of Crimes are:

- ‘1. The perpetrator caused one or more persons to engage in one or more acts of a sexual nature by force, or by threat of force or coercion, such as that caused by fear of violence, duress, detention, psychological oppression or abuse of power, against such person or persons or another person, or by taking advantage of a coercive environment or such person or persons, incapacity to give genuine consent.
2. The perpetrator or another person obtained or expected to obtain pecuniary or other advantage in exchange for or in connection with the acts of a sexual nature’.

The first non-contextual element includes a very broad definition of coercion that would probably include all types of coercion that have been used in the past or are currently being used to carry out this crime. The second non-contextual element makes clear that this crime is entirely different in nature from the ordinary crime of prostitution under national law, because it includes expectation by the perpetrator who coerced the victim to engage in one or more acts of a sexual nature, not an expectation of advantage by the person engaging in those acts.

In contrast to the crime of rape, which is a completed offence, sexual slavery constitutes a continuing offence. Enforced prostitution can either be a continuing offence or constitute a separate act. The continuing offences could also encompass crimes of rape and other forms of sexual violence. To prove sexual slavery or enforced prostitution as a continuing offence, there is nevertheless no need to prove rape. Enforced prostitution as a separate act is in itself a ‘form of sexual violence of comparable gravity’ as included in this paragraph (see mn 53).

**dd) ‘forced pregnancy’.** As a result of various reports<sup>427</sup>, proposals were made to include this crime within the Court’s subject matter jurisdiction<sup>428</sup>. The inclusion of this crime was quite a controversial issue as a few delegations feared that policies not to provide abortion

<sup>423</sup> Final Report of the Special Rapporteur on the Working Group on Contemporary Forms of Slavery, on systematic rape, sexual slavery and slavery-like practices during armed conflict, UN DocE/CN.4/Sub.2/1998/13 (22 June 1998), para. 32. ‘Most factual scenarios that could be described as forced prostitution would also amount to sexual slavery and could more appropriately and more easily be characterised and prosecuted as slavery’. *ibid.*, para. 33. Apparently the reason for this argument is the fact that (en)forced prostitution is included in various conventions but have been ‘insufficiently understood and inconsistently applied’, *ibid.*, para. 31.

<sup>424</sup> Bedont and Hall-Martinez (1993) 6 *BrownJWorldAff* 65, 73.

<sup>425</sup> One State has said that ‘[t]he actus reus of enforced prostitution is enslavement of a sexual nature wherein the ‘forcible’ element need not be present for each individual sex act, but is generally present regarding a mandated activity that involves acts of a sexual nature’, UN Doc. A/CONF.183/C.1/L.10 (1998), pp. 6–7.

<sup>426</sup> *Prosecutor v. Akayesu*, No. ICTR-96-4-T, Judgment, Trial Chamber, 2 September 1998, para. 688.

<sup>427</sup> According to several interviews conducted by the Commission of Experts for the former Yugoslavia, some captors stated that they were trying to impregnate the women held in camps who are detained until it is too late for them to obtain an abortion. Final Report Commission of Experts, UN DocS/1994/674 (5 May 1994), paras. 248, 250.

<sup>428</sup> See, e.g., Chairman’s informal text on crimes against humanity, UN DocA/AC.249/CRP.9/Add.4 (11 Apr. 1996), p. 11; Preparatory Committee (Consolidated) Draft, para. 98, which contained a proposal included in the Siracusa Draft, 30.

services might be interpreted as forced pregnancy. For a commentary on the definition of this crime, see mn 108.

- 67 ee) ‘enforced sterilisation’. This crime has been punished in the context of medical experiments conducted particularly in concentration camps during the Second World War against both prisoners of war and civilians<sup>429</sup>. Sterilisation without consent could constitute genocide when committed with the requisite intent to destroy a particular group in whole or in part. Enforced sterilisation in particular is a form of ‘imposing measures intended to prevent births within the group’ within the meaning of article 6 (e) of this *Statute*.

The two non-contextual elements of this crime in the Elements of Crimes (with original footnotes) are:

1. The perpetrator deprived one or more persons of biological reproductive capacity.<sup>430</sup>
2. The conduct was neither justified by the medical or hospital treatment of the person or persons concerned nor carried out with their genuine consent.<sup>431</sup>

The first non-contextual element proved to be very controversial and one country wished to exclude compulsory measures intended to be applicable to all inhabitants. It is doubtful, however, whether the exception in footnote 19 is consistent with international law. Even imposing non-permanent measures intended to prevent births within a protected group could be used to commit genocide by reducing the birth rate within that group. In addition, such non-permanent measures could violate a wide variety of human rights to personal autonomy even when imposed on a non-discriminatory basis, including the right not to be subjected to arbitrary interference with one’s family<sup>432</sup>. It is also worth emphasizing that forcible castration or other forms of severe genital mutilation carried out against men would be capable of satisfying the elements of enforced sterilisation<sup>433</sup>.

- 68 ff) ‘any other form of sexual violence of comparable gravity’. Sexual violence is a broader term than rape. The term is used to describe any kind of violence carried out through sexual means, with a sexual motive or by targeting sexuality. According to the ICTR in the *Akayesu Judgment*, sexual violence, which includes rape, is considered to be any act of a sexual nature committed on a person under circumstances which are coercive<sup>434</sup>. Sexual violence is not limited to a physical invasion of the human body and may include acts that do not involve penetration or even physical contact<sup>435</sup>. The words ‘of comparable gravity’ should thus not be understood to exclude acts that do not involve penetration or physical contact, despite the

<sup>429</sup> In the Medical Case, several defendants were found guilty of having committed war crimes and crimes against humanity involving different kinds of medical experiments under which sterilisation experiments, see *U.S. v. Brandt, Trials of War Criminals Before Nuernberg Military Tribunals*, Vols. 1 and 2, Case No. 1.

<sup>430</sup> ‘The deprivation is not intended to include birth-control measures which have a non-permanent effect in practice’.

<sup>431</sup> ‘It is understood that ‘genuine consent does not include consent obtained through deception’.

<sup>432</sup> UDHR., UN GA Res. 217A (III), 10 Dec. 1948, article 12.

<sup>433</sup> See further Sivakumaran (2007) 18 *EJIL* 253, 265.

<sup>434</sup> The Trial Chamber noted in this context that coercive circumstances need not be evidenced by a show of physical force. ‘Threats, intimidation, extortion, and other forms of duress which prey on fear or desperation may constitute coercion, and coercion may be inherent in certain circumstances, such as armed conflict or the military presence of Interahamwe among refugee Tutsi women at the bureau communal’. *Prosecutor v. Akayesu*, No. ICTR-96-4-T, Judgment, Trial Chamber, 2 September 1998, para. 688.

<sup>435</sup> *Ibid.* According to the Trial Chamber, sexual violence falls within the scope of ‘other inhumane acts’, included in article 3 (i) of the ICTR Statute, (crimes against humanity), of ‘outrages upon personal dignity’, included in article 4 (e) of the ICTR Statute (violations of article 3 common to the Geneva Conventions and of Add. Prot. II), and of ‘serious bodily or mental harm’, included in article 2 para. 2 (b) of the ICTR Statute, (genocide). Regarding Count 14, *Akayesu* had been judged criminally responsible under article 3 (i) for the forced undressing of women and for forcing them to march and for the forcing to perform exercises, naked in public. *Prosecutor v. Akayesu*, No. ICTR-96-4-T, Judgment, Trial Chamber, 2 September 1998, para. 688. The ICC Office of the Prosecutor has adopted an internal definition of ‘sexual crimes’ which states ‘[a]n act of a sexual nature if not limited to physical violence, and may not involve any physical contact – for example, forced nudity. Sexual crimes, therefore, cover both physical and non-physical acts with a sexual element.’ See ICC Office of the Prosecutor, Policy Paper on Sexual and Gender-Based Crimes (June 2014) 3.

findings of Pre-Trial Chamber II discussed below. Sexual violence covers both physical and psychological attacks directed at a person's sexual characteristics<sup>436</sup>. Sexual violence can take many forms, some more obvious than others. It can include acts committed with a sexual motive or for the sexual gratification of the perpetrator; scenarios where two or more unwilling participants are forced to carry out sexual acts on each other; acts committed for the purpose of humiliation or degradation, such as forcible public nudity; or acts which target the victim's sexual organs or sexual function, such as forcible castration, genital mutilation or sexualised torture. Moreover, according to the Trial Chamber in *Furundzija* case,

'... international criminal rules punish not only rape but also any serious sexual assault falling short of actual penetration. It would seem that the prohibition embraces all serious abuses of a sexual nature inflicted upon the physical and moral integrity of a person by means of coercion, threat of force or intimidation in a way that is degrading and humiliating for the victim's dignity'<sup>437</sup>.

The three non-contextual elements of this crime in the Elements of Crimes are:

- '1. The perpetrator committed an act of a sexual nature against one or more persons or caused such person or persons to engage in an act of a sexual nature by force, or by threat of force or coercion, such as that caused by fear of violence, duress, detention, psychological oppression or abuse of power, against such person or persons or another person, or by taking advantage of a coercive environment or such person or persons. incapacity to give genuine consent.
2. Such conduct was of a gravity comparable to the other offences in article 7 para. 1 (g), of the Statute.
3. The perpetrator was aware of the factual circumstances that established the gravity of the conduct.'

The first non-contextual element uses the same broad definition of coercion as in the other crimes of sexual violence and appears to be consistent with the approach taken by the ICTR Trial Chamber in *Akayesu*, although it is frustrating that the crucial phrase 'an act of a sexual nature' is not defined anywhere in the Rome Statute or the Elements of Crimes. Pre-Trial Chamber II pursued an incomprehensibly restrictive interpretation of this element in its decision on the confirmation of charges in the *Kenyatta* case, using its discretion to recharacterise a charge of other forms of sexual violence (relating to the amateur forcible circumcision of men of Luo ethnicity) on the basis that, in its view, 'the determination of whether an act is of a sexual nature is inherently a question of fact' and that 'not every act of violence which targets parts of the body commonly associated with sexuality should be considered an act of sexual violence'<sup>438</sup>. The Chamber came to the remarkable conclusion that 'the evidence... does not establish the sexual nature of the acts of forcible circumcision and penile amputation visited upon Luo men' and therefore held that the facts should more properly be characterised as the crime against humanity of other inhumane acts on the basis of the severity of the injury inflicted<sup>439</sup>. Based on the logic of Pre-Trial Chamber II in this case (which has not been followed in the jurisprudence of any other Pre-Trial or Trial Chamber to date), female genital mutilation would not necessarily constitute an act of sexual violence if the severity of the injury inflicted was deemed to be a more relevant legal element than the deliberate targeting of a sexual organ.

The second non-contextual element is an objective test. It should be remembered that in *Akayesu*, the ICTR Trial Chamber found that an incident in which the accused ordered subordinates 'to undress a student and force her to do gymnastics naked in the public

<sup>436</sup> Final Report of the Special Rapporteur on the Working Group on Contemporary Forms of Slavery, on systematic rape, sexual slavery and slavery-like practices during armed conflict, UN Doc. E/CN.4/Sub.2/1998/13 (22 June 1998), para. 21.

<sup>437</sup> *Prosecutor v. Furundžija*, No. IT-95-17/1-T, Judgment, Trial Chamber, 10 December 1998, para. 186.

<sup>438</sup> See *Prosecutor v. Kenyatta, Muthaura and Ali*, No. ICC-01/09-02/11-382-Red, Decision on the Confirmation of Charges Pursuant to article 61(7)(a) and (b) of the Rome Statute, Pre-Trial Chamber II, 23 January 2012, paras. 265–266.

<sup>439</sup> *Ibid.* For a detailed critique of this and related decisions, see further Hayes in: in: Hayes, McDermott and Schabas (eds.), *Ashgate Research Companion to International Criminal Law: Critical Perspectives* (Aldershot 2013) 7.

courtyard of the bureau communal, in front of a crowd, constitutes sexual violence'<sup>440</sup>. In the *Bemba* case at the ICC, however, the Pre-Trial Chamber refused to include factual allegations of women being forced to undress in public for the purposes of humiliation within the arrest warrant on the grounds that it did not believe those facts constituted other forms of sexual violence 'of comparable gravity to the other crimes set forth in article 7(1)(g) of the Statute'<sup>441</sup>. The third non-contextual element does not require the perpetrator to make any legal assessment of the gravity of the conduct.

- 69 **gg) Special remarks.** Rape and sexual violence could constitute genocide when committed with the specific intent to destroy a protected group. In the *Akayesu Judgment*, the Trial Chamber of the ICTR underscored the fact that in its opinion, '[a]cts of rape and sexual violence] constitute genocide in the same way as any other act as long as they were committed with the specific intent to destroy, in whole or in part, a particular group, targeted as such'. It found that the acts described are acts as enumerated in article 2 para. 2 of its Statute and that these acts were committed with the required specific intent<sup>442</sup>. Rape and sexual violence have been charged as a constituent act of genocide at the ICC in the case against Omar Al Bashir<sup>443</sup>.

Rape and sexual violence can also be considered as constituting forms of torture. In the *Akayesu Judgment*, the Trial Chamber of the ICTR stated that '[l]ike torture, rape is a violation of personal dignity, and rape in fact constitutes torture when inflicted by or at the instigation of or with the consent or acquiescence of a public official or other person acting in an official capacity'<sup>444</sup>. According to the judgment of the ICTY in the *Celebici* case, rape, other forms of sexual violence, and other acts constitute torture – for the purpose of articles 2 and 3 of the *ICTY Statute*– if the following criteria are met:

- there must be an act or omission that causes severe pain or suffering, whether mental or physical,
- which is inflicted intentionally,
- and for such purposes as obtaining information or a confession from the victim, or a third person, punishing the victim for an act he or she or a third person has committed or is suspected of having committed, intimidating or coercing the victim or a third person, or for any reason based on discrimination of any kind,
- and such act or omission being committed by, or at the instigation of, or with the consent or acquiescence of, an official or other person acting in an official capacity<sup>445</sup>.

The Trial Chamber further stated that 'it is difficult to envisage circumstances in which rape, by, or at the instigation of a public official, or with the consent or acquiescence of an official, could be considered as occurring for a purpose that does not, in some way, involve punishment, coercion, discrimination or intimidation'. According to the Trial Chamber, this is inherent in situations of armed conflict<sup>446</sup>.

At the ICC, the issue of the interplay between the crimes against humanity of rape and torture became a point of controversy in the confirmation of charges decision in the *Bemba*

<sup>440</sup> *Prosecutor v. Akayesu*, No. ICTR-96-4-T, Judgment, Trial Chamber, 2 September 1998, para. 688.

<sup>441</sup> *Prosecutor v. Bemba*, No. ICC-01/05-01/08-14-tENG, Decision on the Prosecutor's Application for a Warrant of Arrest Against Jean-Pierre Bemba Gombo, Pre-Trial Chamber III, 10 June 2008, para. 40.

<sup>442</sup> *Prosecutor v. Akayesu*, No. ICTR-96-4-T, Judgment, Trial Chamber, 2 September 1998, paras. 731–734. Article 2 of the ICTR Statute, contains the 1948 Genocide Convention's definition of the crime. In a 1996 decision of Trial Chamber I of the ICTY, rape was already considered a possible act of genocide, *Prosecutor v. Karadžić and Mladić*, Review of Indictment pursuant to Rule 61, Nos. IT-95-5-R61 and IT-95-18-R61, 11 July 1996, paras. 93 and 94.

<sup>443</sup> See *Prosecutor v. Al Bashir*, No. ICC-02/05-01/09-94, Second Decision on the Prosecution's Application for a Warrant of Arrest, Pre-Trial Chamber I, 12 July 2010.

<sup>444</sup> *Prosecutor v. Akayesu*, No. ICTR-96-4-T, Judgment, Trial Chamber, 2 September 1998, para. 597.

<sup>445</sup> *Prosecutor v. Delalić (Celebici)*, No. IT-96-21-T, Judgment, Trial Chamber, 16 November 1998, paras. 494–496.

<sup>446</sup> *Ibid*, paras. 480–496, 495.



case<sup>447</sup> in relation to an incident where a woman was raped in front of her family members. The Prosecutor had advanced charges of both rape (in relation to the female rape victim) and torture (in relation to the pain and suffering experienced by the female rape victim as a result of the public nature of the rape *and* the pain and suffering experienced by the family members who were forced to watch her being raped). Pre-Trial Chamber II, acting on its own initiative, made the decision to recharacterise the charge of torture as the crime of rape, on the basis of that Chamber's objection to the practice of cumulative charging and its reasoning that, due to the additional legal element of penetration in the crime of rape, the act of torture was 'fully subsumed by the count of rape'<sup>448</sup>. This interpretation was factually unnecessary and legally problematic, not least for having entirely excluded the pain and suffering of the family members from the ambit of the case, since they were victims of the crime of torture but not rape.

The current paragraph contains almost the same wording as article 8 para. 2 (b) (xxii), which is applicable to international armed conflict, and article 8 para. 2 (e) (vi), applicable in non- international armed conflict.

h) 'Persecution'. Persecution had been included in several definitions of crimes against humanity in previous instruments. It had been included in the *Nuremberg and Tokyo Charters*, *Control Council Law No. 10* and the *Nuremberg Principles*. In each of these instruments, a distinction was made between crimes against humanity of the 'murder' type and 'persecution'<sup>449</sup>. For example, the Nuremberg Charter distinguished 'murder, extermination, enslavement, deportation, and other inhumane acts committed against any civilian population' from 'persecutions on political, racial or religious grounds'<sup>450</sup>. In the original version, these inhumane acts occurred 'before or during the war' and persecutions had to have been committed 'in execution of or in connection with any crime within the jurisdiction of the Tribunal, whether or not in violation of the domestic law of the country where perpetrated'<sup>451</sup>. However, this version was amended in a subsequent protocol to make it clear that both types of crimes against humanity could have been committed before or during the war and that they both had to have been committed in connection with a crime of aggression or a war crime. The *1954 Draft Code* contained a non-exhaustive enumeration of several inhumane acts which included both crimes of the 'murder' type and persecution without making a distinction between these two types of crimes. The *1991 Draft Code* seems not to make such a distinction either, but according to the commentary, persecution '... relates to human rights violations other than those covered by the previous paragraphs ...'<sup>452</sup>. This constitutes a more restrictive approach than that adopted in other instruments which left open the possibility that acts which independently constitute crimes against humanity could also constitute persecution. Both the *ICTY Statute* and the *ICTR Statute* include the crime of persecution in the list of crimes against humanity<sup>453</sup>, as does the *1996 Draft Code* and the

<sup>447</sup> See *Prosecutor v. Bemba*, No. ICC 01/05-01/08-424, Decision Pursuant to article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor Against Jean-Pierre Bemba Gombo, Pre-Trial Chamber II, 15 June 2009.

<sup>448</sup> *Ibid.*, paras. 204–205.

<sup>449</sup> Schwelb, *Crimes against Humanity* (1946) 23 *BYIL* 178, 190; *History of the United Nations War Crimes Commission and the Development of the Laws of War* (1943) 179; Paust, in: Paust and Bassiouni (eds.), *International Criminal Law, Cases and Materials* (1996) 1075–1078.

<sup>450</sup> *Charter of the International Military Tribunal, annexed to the London Agreement*, 8 Aug. 1945, article 6 (c), as amended by the Protocol to Agreement and Charter, London, 6 Oct. 1945.

<sup>451</sup> *Ibid.*

<sup>452</sup> 1991 ILC Draft Code, 2 *YbILC* (1991) 104, 268. In its commentary, the ILC gave some examples which indeed would not all be covered by other acts which had been included in article 21 of the 1991 Draft Code: '... a prohibition on practising certain kinds of religious worship, prolonged and systematic detention of individuals who represent a political, religious or cultural group, a prohibition on the use of a national language, even in private; systematic destruction of monuments or buildings representative of a particular social, religious, cultural or other group'.

<sup>453</sup> *ICTY Statute*, article 5 (h); *ICTR Statute*, article 3 (h).

international instruments establishing the international criminal courts for East Timor, Sierra Leone and Cambodia<sup>454</sup>. At the national level before the Rome Diplomatic Conference there were few countries that had defined persecution as such as a crime under national law ‘because the acts comprised within the general meaning of persecution, which produce harmful results, are criminalised’ as ordinary crimes<sup>455</sup>.

However, since then many countries have defined persecution as a crime against humanity under national law, usually in accordance with article 7 para. 1 (h) and sometimes also in accordance with article 7 para. 2 (g) of the Rome Statute. The inclusion of persecution in the *Statute* has not been a very contentious issue, despite discussions on the content and definition of this crime.

- 71 **aa) Definition.** The inclusion of the crime against humanity of persecution in article 7 para. 1(h) and article 7 para. 2(g) constitutes the first attempt at substantively defining this offense in a legally binding international instrument. However, as will be elaborated below, this definition draws significantly on the definition originally devised by the ICTY in the *Tadić* case which itself relies on a number of sources, including the 1996 Draft Code, national jurisprudence and academic commentary. For the definition and the conduct that may constitute persecution as a crime against humanity, see mn 112.
- 72 **bb) ‘against any identifiable group or collectivity’.** Paragraph (h) speaks of ‘[p]ersecution against any identifiable group or collectivity’, rather than acts committed against individuals. Various proposals nevertheless suggested that this crime covers conduct against both individuals and groups by which emphasis is put on the notion that groups consist of individual members<sup>456</sup>. This line of reasoning replicates that of the ICTY Trial Chamber Judgment in the *Tadić* case<sup>457</sup>. Acts committed against the group as such are necessarily put into practice against its individual members. Since persecution under this *Statute* is required to be against ‘any’ group or collectivity, it must be understood as including at least a small number of individuals. Indeed, the first and second non-contextual elements of the Elements of Crimes clarify that this crime includes targeting individuals because of their membership in the group or collectivity, as well as targeting the group or collectivity as such. The first element states that the ‘[p]erpetrator severely deprived ... one or more persons of fundamental rights’ and the second element states that ‘[t]he perpetrator targeted such person or persons by reason of the identity of a group or collectivity or targeted the group or collectivity as such’. The purpose of the distinction between ‘group’ and ‘collectivity’ is not clear<sup>458</sup>.

<sup>454</sup> UNTAET Reg. 2000/15, 6 June 2000, article 5 (essentially the same as article 7 para. 1 (h) and para. 2 (g) of the Rome Statute); Sierra Leone Statute, article 2 (‘Persecution on political, racial, ethnic or religious grounds’); Law on the Establishment of the Extraordinary Chambers, with inclusion of amendments as promulgated on 27 Oct. 2004 (NS/RKM/1004/006), article 5 ‘persecutions on political, racial, and religious grounds’.

<sup>455</sup> Bassiouni, *Crimes Against Humanity* (1992) 787. The author, a leading authority on international criminal law, reviewed a wide variety of definitions of ‘persecute’ and ‘persecution’ in various languages and concluded that these terms ‘generally entail that someone, with hostile purposes or intentions, pursues another to harass, torment, oppress or harm that person, usually on account of that person’s religious beliefs, views or opinions’. *ibid.*, the author concluded that ‘no specific international crime of ‘persecution’ exists under any source of international law’, but also argued that ‘[i]t is possible to construct a reasoning that ‘persecution’ as defined above, when resulting in a specific violation can be deemed an aggravating factor’. *ibid.*

<sup>456</sup> See the commentary of 1991 ILC Draft Code, 2 *YbILC* (1991) 104 which refers to both individuals and groups of individuals, p. 268. The Siracusa Draft included the following provision in its article 20-4: ‘persecution, whether based on laws or practices targeting select groups or *their members* in ways that seriously and adversely affect their ethnic, cultural or religious life, their collective well-being, and welfare, or their ability to maintain group identity’ (emphasis added), p. 30.

<sup>457</sup> ‘... what is necessary is some form of discrimination that is intended to be and results in an infringement of an *individual’s* fundamental rights’. (para. 697) ‘... the persecutory act must be intended to cause, and result in, an infringement on an *individual’s* enjoyment of a basic or fundamental right’, *Prosecutor v. Tadić*, No. IT-94-1-T, Judgment, Trial Chamber, 7 May 1997, para. 715 (emphasis added).

<sup>458</sup> The word ‘group’ means ‘a number of persons [or things] located close together, or considered or classed together’. ‘Collectivity’ has not been defined, *The Oxford Concise Dictionary of Current English* (8<sup>th</sup> ed. 1990) 522.

Persecution under the *Statute* is not limited to acts committed against national, ethnic, racial or religious groups, in contrast to the definition of the crime of genocide. Rather, the group or collectivity and their individual members must be merely ‘identifiable’, based either on objective criteria or on the subjective notions of the accused. After all, in paragraph 1 (h) reference is made to several grounds concerning the discriminatory intent of the person to commit persecution (see mn 64 *et seq.*). Moreover, paragraph 2 (g) defines persecution as the ‘... deprivation of fundamental rights ... by reason of the identity of the group or collectivity’, which, as such, would also imply a subjective element inherent in the interpretation of the word ‘identifiable’. The group or collectivity might therefore also be identifiable by the accused, both as a group or collectivity by virtue of objective criteria, and as a group or collectivity not being the same as the group or collectivity the accused belongs to him or herself. The issue of the identifiable character of the allegedly targeted group was briefly addressed by Judge Sanji Mmasenono Monageng in her dissenting opinion appended to the *Mbarushimana* Confirmation of Charges Decision. In this instance, the Prosecution argued that the *Forces Démocratiques de Libération du Rwanda* (‘FDLR’) specifically targeted the civilian population of the Kivu provinces of the Democratic Republic of the Congo as they were perceived as ‘having called for, collaborated with or supported the FARDC’s [*Forces Armées de la République Démocratique du Congo*] and/or the RDF’s [Rwanda Defence Force] efforts to defeat the FDLR. These civilians were – whether individually or collectively as residents of a given locality – considered enemies by the FDLR’<sup>459</sup>. While the Prosecution was essentially presenting persecution charges for confirmation on grounds of political affiliation, Judge Monageng was of the opinion that the targeted group, i.e. the civilian population of the Kivus, lacked ‘the required specificity, ideological coherence and necessary identifiable characteristics in order to fall within one of the protected groups listed under article 7, be it political or otherwise’<sup>460</sup>. In this instance, it would appear that Judge Monageng mistakenly conflated or confused the nature of the identified group with the prohibited discriminatory grounds provided for under article 7 para. 1 (h). Article 7 para. 1 (h) does not require the existence of a defined political group, only that they be targeted on political grounds; likewise, the other discriminatory grounds listed in article 7 para. 1 (h) are intended to enumerate to the prohibited reasons for *targeting* a specific group or collectivity, not to provide a means of characterizing protected groups.

cc) ‘grounds’. Previous instruments which included persecution as a crime against humanity required that persecution be committed on one of several enumerated grounds. Although these grounds are not identical in each instrument, most list political, racial and religious grounds and some include other grounds, including social, cultural and ethnic grounds. Since the adoption of the Rome Statute, most national legislation and draft legislation implementing the complementarity obligations under the Rome Statute has included all of the grounds listed in paragraph 1 (h). The *Nuremberg Charter* included persecution ‘on political, racial or religious grounds’, as did the Nuremberg Principles, in contrast to the *Tokyo Charter* which omitted persecution on religious grounds. In the *1954 Draft Code*, both crimes of the ‘murder’ type and persecution were included as ‘inhuman acts’, which referred to ‘social, political, racial, religious or cultural grounds’. This exhaustive enumeration of grounds was repeated in the *1991 Draft Code*. In the *1996 Draft Code*, the ILC included persecution on ‘political, racial, religious or ethnic grounds’.

‘Collectivité’, as used in the French text, means either a group (le public, l’ensemble des citoyens) or the community, Collins Robert; *French-English English-French Dictionary* (3<sup>rd</sup> ed. 1993) 154.

<sup>459</sup> *Prosecutor v. Callixte Mbarushimana*, No. ICC-01/04-01/06-47, Decision on the Confirmation of Charges – Dissenting Opinion of Judge Sanji Mmasenono Monageng, Pre-Trial Chamber I, 16 December 2011, para. 35.

<sup>460</sup> *Prosecutor v. Callixte Mbarushimana*, No. ICC-01/04-01/06-47, Decision on the Confirmation of Charges, Pre-Trial Chamber I, 16 December 2011, para. 36.

- 75 The *ICTR Statute*, in contrast to previous instruments (with the exception of the definition of crimes against humanity included in the 1954 *Draft Code*) not only mentions several grounds in the paragraph covering the crime of persecution (political, racial or religious grounds) but also in the *chapeau* of the article covering crimes against humanity (national, political, ethnic, racial or religious grounds), therefore, requiring a discriminatory intent for all crimes against humanity under that *Statute*<sup>461</sup>. The poor drafting of this provision allowed for a number of potentially absurd interpretations, such as requiring that political persecution must be based on political, racial or religious grounds. In the *Akayesu* trial judgment, the first trial judgment to be handed down by the ICTR, the Trial Chamber endorsed discriminatory grounds both as an element of the *chapeau* of crimes against humanity under article 3 (in relation to the nature of the attack) and as a specific element of individual acts qualifying as crimes against humanity<sup>462</sup>. The Appeals Chamber subsequently upheld discriminatory grounds as a contextual element for the purposes of the *ICTR Statute* while rejecting it as a mental element, stating categorically that; ‘except in the case of persecution, a discriminatory intent is not required by international humanitarian law as a legal ingredient for all crimes against humanity’<sup>463</sup>. The Appeals Chamber, however, further clarified that while a general discriminatory intent was not required for all crimes against humanity, ‘all crimes against humanity, may, in actuality, be committed in the context of a discriminatory attack against a civilian population’<sup>464</sup>. In the context of the *ICTR Statute*, it appears that the discriminatory grounds enumerated in the *chapeau* of article 3 (which are in fact broader than the discriminatory grounds listed for the crime against humanity of persecution) are only intended to qualify the nature of the attack against a civilian population which would trigger the Tribunal’s criminal jurisdiction, not to introduce an additional mental element or form of intent on the part of any particular perpetrator. An element of discriminatory intent was *not* included in article 5 of the *ICTY Statute*.<sup>465</sup>
- 76 In the *April 1998 New York Draft Statute*, the possibility of including discriminatory grounds in the *chapeau* of what has now become article 7 was still included as an option. Proposals for this possible requirement of discriminatory intent for all crimes against humanity under this Statute included references to political, philosophical, racial, ethnic or religious grounds ‘or any other arbitrarily defined grounds’<sup>466</sup>. In the end, only ‘persecution’ included the requirement of discriminatory intent, enumerating several prohibited grounds. The third non- contextual element in the Elements of Crimes follows the list of grounds in paragraph 1 (h), but states that the ‘targeting’ was based on the listed grounds, rather than that the persecution was against the group or collectivity on such grounds. When the first three non-contextual grounds are read together, however, there does not seem to be any significant difference between the third non-contextual ground and the Rome Statute.

<sup>461</sup> ‘... [t]his provision of the ICTR Statute makes no sense, since it imposes a double requirement of discriminatory motives by requiring that persecutions on political, racial and religious grounds be committed on national, political, ethnic, racial or religious grounds’, Amnesty International, *The International Criminal Court: Making the Right Choices – Part I: Defining the Crimes and Permissible Defences and Initiating a Prosecution* (Jan. 1997, AI Index: IOR 40/01/97), Sect. IV.I.

<sup>462</sup> *Prosecutor v. Akayesu*, No. ICTR-96-4-T, Judgment, Trial Chamber, 2 September 1998, paras. 583 and 584.

<sup>463</sup> *Prosecutor v. Akayesu*, No. ICTR-96-4-A, Judgment, Appeals Chamber, 1 June 2001, para. 464.

<sup>464</sup> *Prosecutor v. Akayesu*, No. ICTR-96-4-A, Judgment, Appeals Chamber, 1 June 2001, para. 464.

<sup>465</sup> It is worth noting the anomalous reasoning of the ICTY Trial Chamber in the *Tadić* case, where it adopted discriminatory intent as a general element of all crimes against humanity on the basis of the Secretary-General’s Report: ‘because the requirement of discriminatory intent on national, political, ethnic, racial or religious grounds for all crimes against humanity was included in the Report of the Secretary-General, although no basis for this statement was cited, and since several Security Council members stated that they interpreted article 5 as referring to acts taken on a discriminatory basis, the Trial Chamber adopts the requirement for all crimes against humanity under article 5’, *Prosecutor v. Tadić*, No. IT-94-1-T, Judgment, Trial Chamber, 7 May 1997, para. 652. Fortunately, this reasoning was reversed on appeal, *Prosecutor v. Tadić*, No. IT-94-1-A, Judgment, Appeals Chamber, 15 July 1999, para. 305.

<sup>466</sup> Preparatory Committee (Consolidated) Draft, pp. 25–26.

Neither this element nor the other elements shed any light on the definitions of the grounds listed in the Rome Statute.

aaa) ‘political, racial, national, ethnic, cultural, religious, gender ... grounds’. ‘Political grounds’ could be interpreted within the meaning of grounds ‘of or concerning the State or its government, or public affairs generally’<sup>467</sup> and might not be limited to grounds that concern membership of a particular political party or adherence to a particular ideology<sup>468</sup>.

Therefore, the word ‘political’ may potentially be understood as including public affairs issues such as environment and health; a political ground for persecution would then cover at least the existence of a difference of opinion concerning these issues as a reason for committing the acts concerned<sup>469</sup>. Since beginning its operations in 2002, the ICC’s Office of the Prosecutor has sought to pursue persecution charges on grounds of ‘political affiliation’ in numerous cases<sup>470</sup>. While these charges have, thus far, been confirmed in four instances<sup>471</sup>, the respective Pre-Trial Chambers have offered no guidance as to the definitional boundaries implied by ‘political grounds’<sup>472</sup>.

‘Racial grounds’ are included in all previous instruments although no definition of this ground has ever been given. Persecution on racial grounds should be given at least as broad a reading as the widely accepted definition of racial discrimination in article 1 of the *International Convention on the Elimination of All Forms of Racial Discrimination*: ‘any

<sup>467</sup> *The Oxford Concise Dictionary of Current English* 522 (8<sup>th</sup> ed. 1990), 922.

<sup>468</sup> See *Prosecutor v. Akayesu*, No. ICTR-96-4-T, Judgment, Trial Chamber, 2 September 1998, para. 583 (‘political grounds’ could be regarded as ‘discrimination on the basis of a person’s political ideology’).

<sup>469</sup> The Report of the Expert Group Meeting on Gender-Based Persecution considered that political opinion or imputed political opinion may be determined from behaviour as well as expressed opinion. It noted that behaviour by a woman that does not conform to cultural or social norms with respect to gender roles may be construed as political opinion with respect to gender roles, otherwise known as the political position of feminism. Peaceful activities by women in the course of armed conflict may be construed by opposing groups to impute political opinion. Political opinion may also be imputed to women as a result of the political opinion of male family members, Report of the Expert Group Meeting on Gender-Based Persecution, organised by the Division for the Advancement of Women and the Centre for Refugee Studies at York University, Canada, held in Toronto from 9–12 Nov. 1997 (EGM.GBP/1997/Report, para. 44). NB these recommendations with respect to legal definitions and standards were made in the context of the meaning of the term ‘political opinion’ in the 1951 Convention relating to the Status of Refugees.

<sup>470</sup> See *Prosecutor v. Callixte Mbarushimana*, No. ICC-01/04-01/06-47, Decision on the Confirmation of Charges, Pre-Trial Chamber I, 16 December 2011, para. 242; *Prosecutor v. William Samoei Ruto, Henry Kiprono Kosgey and Joshua Arap Sang*, No. ICC-01/09-01/11-373, Decision on the Confirmation of Charges Pursuant to article 61(7)(a) and (b) of the Rome Statute, Pre-Trial Chamber II, 23 January 2012, paras. 269–281; *Prosecutor v. Francis Kirimi Muthaura, Uhuru Muigai Kenyatta and Mohammed Hussein Ali*, No. ICC-01/09-02/11-382-Red, Decision on the Confirmation of Charges Pursuant to article 61(7)(a) and (b) of the Rome Statute, Pre-Trial Chamber II, (23 January 2012), paras. 281–286; *Situation in the Libyan Arab Jamahiriya*, No. ICC-01/11-01/11-1, Decision on the ‘Prosecutor’s Application Pursuant to article 58 as to Muammar Mohammed Abu Minyar Gaddafi, Saif Al-Islam Gaddafi and Abdullah Al-Senussi, Pre-Trial Chamber I, 30 June 2011, para. 65; *Prosecutor v. Laurent Gbagbo*, No. ICC-02/11-01/11-656-Red, Decision on the confirmation of charges against Laurent Gbagbo, Pre-Trial Chamber I, 12 June 2014, paras. 204–205, ethnic, national and religious grounds are also cited; *Prosecutor v. Charles Blé Goudé*, No. ICC-02/11-02/11-186, Decision on the Confirmation of Charges Against Charles Blé Goudé, Pre-Trial Chamber I, 11 December 2014, paras. 122–123, ethnic, national and religious grounds are also cited; *Prosecutor v. Simone Gbagbo*, No. ICC-02/11-01/12, Decision on the Prosecutor’s Application Pursuant to article 58 for a Warrant of Arrest Against Simone Gbagbo, Pre-Trial Chamber III, 2 March 2012, para. 16, ethnic, national and religious grounds are also cited.

<sup>471</sup> *Prosecutor v. William Samoei Ruto, Henry Kiprono Kosgey and Joshua Arap Sang*, No. ICC-01/09-01/11-373, Decision on the Confirmation of Charges Pursuant to article 61(7)(a) and (b) of the Rome Statute, Pre-Trial Chamber II, 23 January 2012, paras. 269–281 – confirmed with respect to the accused Ruto and Sang; *Prosecutor v. Francis Kirimi Muthaura, Uhuru Muigai Kenyatta and Mohammed Hussein Ali*, No. ICC-01/09-02/11-382-Red, Decision on the Confirmation of Charges Pursuant to article 61(7)(a) and (b) of the Rome Statute, Pre-Trial Chamber II, (23 January 2012), paras. 281–286, confirmed with respect to the accused Muthaura and Kenyatta; *Prosecutor v. Laurent Gbagbo*, No. ICC-02/11-01/11-656-Red, Decision on the confirmation of charges against Laurent Gbagbo, Pre-Trial Chamber I, 12 June 2014, paras. 204–205; and *Prosecutor v. Charles Blé Goudé*, No. ICC-02/11-02/11-186, Decision on the Confirmation of Charges Against Charles Blé Goudé, Pre-Trial Chamber I, 11 December 2014, paras. 122–123.

<sup>472</sup> See Ambos, *Treatise on ICL II* (2014) 104–108.



distinction, exclusion, restriction or preference based on race, colour, descent, or national or ethnic origin<sup>473</sup>. Given that most definitions of race are now discredited and that there is no universally accepted definition, this term should be given a broad reading.

- 79 The concept of ‘national’ is broader than citizenship and includes attributes of a group which considers that it is a nation even though the members of the group are located in more than one State<sup>474</sup>.
- 80 The term ‘ethnic’ is to be understood as being narrower than the term ‘ethnicity’ in article II of the *Convention on the Prevention and Punishment of the Crime of Genocide*<sup>475</sup>. While both race and ethnicity are recognised as prohibited discriminatory grounds, in practice, the ICC Prosecutor has only charged persecution on ethnic grounds, possibly as it is less controversial and more easily established than racial grounds, the concept of race having become increasingly outmoded since the adoption of the Genocide Convention<sup>476</sup>.
- 81 Although the term ‘cultural’ is used in a number of international instruments, there appears to be no agreed definition of the term in international law<sup>477</sup>. It would best serve the protective purpose of the *Rome Statute* if it were given an ordinary broad meaning: of or involving culture, that is, ‘customs, arts, social institutions, etc. of a particular group or people’<sup>478</sup>.
- 82 Persecution on ‘religious’ grounds necessarily includes persecution based on the lack of a religion.<sup>479</sup> It would also include the targeting of individuals based on their chosen or perceived religious affiliation, as well as the targeting of individuals for their failure to adhere to the religious beliefs or precepts of the perpetrator.<sup>480</sup>

<sup>473</sup> International Convention on Elimination of All Forms of Racial Discrimination, adopted in GA Res. 2106 A (XX) of 21 Dec. 1965, entered into force 4 Jan. 1969, article 1. As of 13 Mar. 2007, there were 173 States Parties.

<sup>474</sup> To date, the OTP has pursued persecution charges based on national grounds in three instances: *Prosecutor v. Laurent Gbagbo*, No. ICC-02/11-01/11-656-Red, Decision on the confirmation of charges against Laurent Gbagbo, Pre-Trial Chamber I, 12 June 2014, paras. 204–205; and *Prosecutor v. Charles Blé Goudé*, No. ICC-02/11-02/11-186, Decision on the Confirmation of Charges Against Charles Blé Goudé, Pre-Trial Chamber I, 11 December 2014, paras. 122–123; and *Prosecutor v. Simone Gbagbo*, No. ICC-02/11-01/12, Decision on the Prosecutor’s Application Pursuant to article 58 for a Warrant of Arrest Against Simone Gbagbo, Pre-Trial Chamber III, 2 March 2012, para. 16.

<sup>475</sup> The term ‘ethnicity’ was inserted in the English version at the suggestion of Sweden to extend the protection of the Convention to a linguistic group and to a group where race was not ‘the dominating characteristic, which might rather be defined by the whole of its traditions and its cultural heritage’. Sweden: Amendment to article II of the draft Convention, E/794, UN Doc. A/C.6/230/Corr.1 (1948).

<sup>476</sup> See *Prosecutor v. Bosco Ntaganda*, No. ICC-01/04-02/06-309, Decision Pursuant to article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor Against Bosco Ntaganda, Pre-Trial Chamber II, 9 June 2014, para. 58; *Prosecutor v. Ahmad Muhammad Harun and Ali Muhammad Al Abd-Al-Rahman*, No. ICC-02/05-01/07-1, Decision on the Prosecution Application under article 58(7) of the Statute, Pre-Trial Chamber I, 1 May 2007, para. 74; *Prosecutor v. Abdel Raheem Muhammad Hussein*, No. ICC-02/05-01/12-1-Red, Public redacted version of ‘Decision on the Prosecutor’s application under article 58 relating to Abdel Raheem Muhammad Hussein, Pre-Trial Chamber I, 1 March 2012, para. 11.

<sup>477</sup> The International Covenant on Economic, Social and Cultural Rights, adopted by GA Res. 2200 A (XXI), 16 Dec. 1966, entered into force 3 Jan. 1976, does not clearly distinguish between the three sets of rights covered, but the cultural rights of parents or guardians to choose schools for their children and ‘to ensure the religious and moral education of their children in conformity with their own convictions’ are protected by article 13 para. 3 and article 15 guarantees the right to take part in cultural life and to enjoy the benefits of science, literature. Article 1 of the Hague Convention of May 14, 1954, for the Protection of Cultural Property in the Event of Armed Conflict defines cultural property as ‘movable or immovable property of great importance to the cultural heritage of every people, such as monuments of architecture, art or history, whether religious or secular; archaeological sites; groups of buildings which as a whole, are of historical or artistic interest; works of art; manuscripts, books and other objects of artistic, historical or archaeological interest; as well as scientific collections and important collections of books or archives or of reproductions of the property defined above’[.].

<sup>478</sup> Oxford’s Advanced Learner’s Dictionary of Current English 291 (4th ed. 1989).

<sup>479</sup> See Hum. Rts. Committee, General Comment No. 22 (48) (article 18), UN Doc. CCPR/C/21/Rev.1/Add.4 (1993), para. 5 (right to ‘have or adopt’ a religion includes the right to have atheistic views).

<sup>480</sup> To date, the OTP has pursued persecution charges based on religious grounds in three instances: *Prosecutor v. Laurent Gbagbo*, No. ICC-02/11-01/11-656-Red, Decision on the confirmation of charges against Laurent Gbagbo, Pre-Trial Chamber I, 12 June 2014, paras. 204–205; and *Prosecutor v. Charles Blé Goudé*, No. ICC-02/



In light of the definition of gender contained in article 7 para. 3, persecution on the basis of gender could potentially encompass a number of different situations. It could include scenarios where male and female members of the same group are targeted in different ways or for different forms of violence depending on their gender (i.e. killing the men and raping the women). On the one occasion where persecution on the grounds of gender was briefly charged at the ICC, in the context of the *Mbarushimana* case, the Prosecution argued in its article 58 submissions that the FDLR committed acts of torture, rape, inhumane acts and inhuman treatment, against women and men seen to be affiliated with the FARDC on the basis of their gender<sup>481</sup>. The Prosecution emphasised that, '[s]exual violence – regardless of the gender of the survivor – in addition to being a violation of individuals based on their gender group membership, is a particularly efficient manner to provoke ostracisation of those violated, to break down communities, and to spread disease... When carried out at the rates reported ... it amounts to sexual violence against the individual that is also persecution on the basis of gender against the collective'<sup>482</sup>. While Pre-Trial Chamber I issued an arrest warrant pursuant to these submissions<sup>483</sup>, the Prosecution subsequently, and without explanation, cited political affiliation alone as the relevant discriminatory ground in the Document Containing the Charges.<sup>484</sup> This may certainly be viewed as a missed opportunity to test new ground, however, it is nonetheless clear that gender discrimination under article 7 para. 1(h), could logically be extended to situations where male or female members of a group are targeted on the basis of (or for their failure to comply with) gender roles as understood 'in the context of society', i.e. the killing only of all military age men within a group or the particularly sadistic targeting of female combatants. It is potentially significant, however, that the violent targeting of sexual minorities as a group or collectivity, whether done on the basis of the religious beliefs of the perpetrators or on the basis of the victim's perceived departure from their assigned gender roles (i.e. not behaving as men or women as understood in the context of their society), could satisfy the elements of the crime of persecution as defined in the Rome Statute and the Elements of Crimes.<sup>485</sup>

**bbb) Other grounds universally recognised.** As will be further explained below (see mn 115), persecution under the *Statute* requires discriminatory intent: '... what is necessary is some form of discrimination that is intended to be and results in an infringement of an individual's fundamental rights'<sup>486</sup>. In its commentary to the 1996 *Draft Code*, the ILC spoke of a denial of human rights and fundamental freedoms to which individuals are entitled without distinction as recognised in the *UN Charter*<sup>487</sup> and the *ICCPR*<sup>488</sup>.

11-02/11-186, Decision on the Confirmation of Charges Against Charles Blé Goudé, Pre-Trial Chamber I, 11 December 2014, paras. 122–123; and *Prosecutor v. Simone Gbagbo*, No. ICC-02/11-01/12, Decision on the Prosecutor's Application Pursuant to article 58 for a Warrant of Arrest Against Simone Gbagbo, Pre-Trial Chamber III, 2 March 2012, para. 16.

<sup>481</sup> *Prosecutor v. Callixte Mbarushimana*, No. ICC-01/04-01/10-11-Red2, Prosecution's Application Under article 58, Pre-Trial Chamber I, 27 January 2011, para. 7.

<sup>482</sup> *Prosecutor v. Callixte Mbarushimana*, No. ICC-01/04-01/10-11-Red2, Prosecution's Application Under article 58, Pre-Trial Chamber I, 27 January 2011, para. 97.

<sup>483</sup> *Prosecutor v. Callixte Mbarushimana*, No. ICC-01/04-01/10-1, Decision on the Prosecutor's Application for a Warrant of Arrest Against Callixte Mbarushimana, Pre-Trial Chamber I, 11 October 2010, para. 27.

<sup>484</sup> *Prosecutor v. Callixte Mbarushimana*, No. ICC-01/04-01/10-311-AnxA-Red, Document de notification des charges presente par l'Accusation en application de l'article 61–3 du Statut de Rome, Pre-Trial Chamber I, 4 August 2011, paras. 96–105 and p. 47.

<sup>485</sup> See further, Bohlander, M., 'Criminalising LGBT Persons Under National Criminal Law and article 7(1)(h) and (3) of the ICC Statute', (2014) 5 *Global Policy* 401.

<sup>486</sup> *Prosecutor v. Tadić*, No. IT-94-1-T, Judgment, Trial Chamber, 7 May 1997, para. 697.

<sup>487</sup> Articles 1 para. 3 and 55 (c) of the UN Charter refer to 'race, sex, language or religion'.

<sup>488</sup> Commentary to the 1996 ILC Draft Code, p. 98, cited by Trial Chamber in *Prosecutor v. Tadić*, No. IT-94-1-T, Judgment, Trial Chamber, 7 May 1997, para. 697. Article 2 para. 1 of the ICCPR contains an illustrative enumeration of grounds on which distinction may not be made in applying the rights contained in the ICCPR, which includes race, colour, sex, language, religion, political or other opinion, national or social origin, property, birth, 'or other status'. The Universal Declaration of Human Rights prohibits distinction on the same grounds.

- 85 The words ‘universally recognised’ should be understood as ‘widely recognised’, and not within the meaning that all States have to recognize a particular ground as impermissible. The former interpretation is closely in accord with the overall purpose of the *Rome Statute*. Most of the distinctions enumerated in both the *Universal Declaration* and the ICCPR can be considered to fall within the scope of ‘other grounds that are universally recognised as impermissible under international law’. In this respect, the ICCPR and many of the rights recognised in the *Universal Declaration* can be considered reflective of customary international law. These rights can be directly applied through article 21 para. 1(a) and article 21 para. 3 of the *Statute*.<sup>489</sup>
- 86 ccc) **Connection with acts referred to in this paragraph or crimes within the jurisdiction of the Court.** Persecution must be linked to another act enumerated in article 7 para. 1 (genocide, crimes against humanity, war crimes or aggression). The fourth non-contextual element in the Elements of Crimes simply restates the requirement in paragraph 1 (h), but footnote 22 to this element clarifies that ‘no additional mental element is necessary for this element other than that inherent in element 6 [the second common contextual element concerning knowledge of the attack]’. Article 6 (c) of the *Nuremberg Charter* required that persecution as a crime against humanity be in connection with another crime within the jurisdiction of the Tribunal. This requirement was narrowly interpreted as in connection with a crime against peace or a war crime rather than another crime against humanity, thus, limiting the Tribunal’s jurisdiction in practice mainly to crimes against humanity committed after the outbreak of the Second World War in Europe. With respect to the *Rome Statute*, however, persecution must either be in connection with *any* act referred to in paragraph 1, or any other crime within the Court’s jurisdiction<sup>490</sup>.
- 87 i) **‘Enforced disappearance of persons’.** The crime of enforced disappearance of persons appears to have been invented by Adolf Hitler in his *Nacht und Nebel Erlass* (Night and Fog Decree) issued on 7 December 1941<sup>491</sup>. The purpose of this decree was to seize persons in occupied territories ‘endangering German security’ who were not to be immediately executed and make them vanish without a trace into the unknown in Germany<sup>492</sup>. No information was to be given their families as to their fate even when, as often occurred, it was merely a question of the place of burial in the ‘Reich’<sup>493</sup>. Although enforced disappearances were not expressly included in the *Nuremberg Charter*, Field Marshal Keitel was convicted of carrying out such enforced disappearances, although the judgment did not expressly state whether it was a war crime, a crime against humanity or both<sup>494</sup>. However, lawyers involved in drafting the decrees and regulations implementing the *Nacht und Nebel Erlass* and in carrying them out were

<sup>489</sup> See also the New York Draft, UN Doc. A/CONF.183/2/Add.2 (1998), which mentions ‘other similar grounds’ which includes, for example, social, economic and mental or physical disability grounds’, Preparatory Committee Draft, p. 26.

<sup>490</sup> See Ambos, *Treatise on ICL II* (2014) 105.

<sup>491</sup> Hitler is known to have admired Stalin’s reign of terror and use of secret arrests and these secret arrests may have been an inspiration for the Night and Fog Decree. See also Ambos, *Treatise on ICL II* (2014) with fn. 479.

<sup>492</sup> For a description of the origin and implementation of this decree, see Bédarida, in: Amnesty International France, *Les Disparitions* (1994).

<sup>493</sup> Shirer, *The Rise and Fall of the Third Reich* (1959) 1139. The text of the decree is reproduced in XI *Trials Of War Criminals before the Nuernberg Military Tribunals under Control Council Law No. 10* (Nuremberg, Oct. 1946–Apr. 1949) 527–528 (Washington, D.C. 1949–1953). As Field Marshal Wilhelm Keitel reported Hitler’s purpose, ‘Efficient and enduring intimidation can only be achieved either by capital punishment or by measures by which the relatives of the criminal and the population do not know the fate of the criminal’. Quoted in: the Nuremberg Judgment. A subsequent order issued by Field Marshal Wilhelm Keitel in February 1942 to implement Hitler’s decree provided that in cases where the death penalty was not carried out within eight days of a person’s arrest, ‘The prisoners are to be transported to Germany secretly ... these measures will have a deterrent effect because (a) the prisoners will vanish without leaving a trace. (b) no information may be given as to their whereabouts or their fate’. Quoted in: Shirer, *The rise and the Fall of the Third Reich* (1959) 1140.

<sup>494</sup> Nuremberg Judgment, 1 Oct. 1946 in: (1947) 41 *AJIL* 172, 88; Clark, in: Politi and Nesi (eds.), *The Rome Statute of the International Criminal Court: A Challenge to Impunity* (2001) 75, 87.

convicted of both crimes against humanity and war crimes<sup>495</sup>. The central elements of this crime are that a person is deprived of liberty and in the course of that deprivation of liberty deprived of the protection of the law by the refusal to acknowledge the deprivation of liberty or to provide information concerning that person's fate or whereabouts. The essence is thus the uncertainty of others, friends and family, thereby rendering those persons special victims in addition to the disappeared person him or herself who is the direct victim of this crime<sup>496</sup>. It has also been argued that the state-sponsored nature is the characterizing feature of enforced disappearance, which differentiates it from other crimes and adds to its gravity<sup>497</sup>.)

There was a resurgence in the use of enforced disappearances in Guatemala in the 1950s, in Cyprus during the fighting in 1963–1964 and during the Turkish invasion in 1974 and in Argentina, Brazil, Chile, Uruguay and other countries in Latin America in the 1970s and 1980s<sup>498</sup>. As a result, there were a number of important efforts by non-governmental organisations to persuade UN and Organisation of American States (OAS) bodies to respond and to adopt treaties based on drafts prepared by non-governmental organisations that defined enforced disappearances both as a human rights violation and as a crime against humanity<sup>499</sup>. For a quarter century, non-governmental organisations, OAS and UN bodies have been developing mutually reinforcing standards defining enforced disappearance as a human rights violation and characterizing it as a crime against humanity.

After intense lobbying by non-governmental organisations to persuade the UN Commission on Human Rights to take effective action in response to 'disappearances' in Argentina failed, they were able to persuade the Commission to establish the Working Group on Enforced or Involuntary Disappearances 'to examine questions relevant to enforced or involuntary disappearances of persons'<sup>500</sup>. In the course of its work, it adopted a working definition of enforced disappearances as a human rights violation, with three elements:

- (a) Deprivation of liberty against the will of the person concerned;
- (b) Involvement of government officials, at least indirectly by acquiescence;
- (c) Refusal to acknowledge the detention and to disclose the fate and whereabouts of the person concerned<sup>501</sup>.

In 1981, the Institut des droits de l'homme du Barreau de Paris (Human Rights Institute of the Paris Bar Association) held a colloquium which adopted a draft convention declaring that 'the expression forced or involuntary disappearance applies to any action or deed capable of undermining the physical, psychological or moral integrity or security of any person' and

<sup>495</sup> *U.S. v. Altstötter (Justice Trial)*, Judgment, U.S. Mil. Trib., Nuremberg, Germany, 4 December 1947, 4 LRTWC 1 (1948).

<sup>496</sup> Cryer et al., *Introduction ICL* (2014) 260.

<sup>497</sup> Giorgou (2013) 11 *JICJ* 1004.

<sup>498</sup> Sadly, there has been a second resurgence in the practice of enforced disappearances in other countries in recent years, albeit usually on a smaller scale. See, for example, Amnesty International, *United States of America/Jordan/Yemen – Torture and secret detention: Testimony of the 'disappeared' in the 'war on terror'* (AI Index: AMR 51/108/2005, 4 Aug. 2005); Council of Europe, Parliamentary Assembly, Committee on Legal Affairs and Human Rights, *Alleged secret detentions in Council of Europe member states*, Information Memorandum II, Rapporteur: Mr Dick Marty, AS/Jur (2006) 03 rev, 22 Jan. 2006; Report by Christos Pourgourides, *Enforced Disappearances* (Council of Europe Disappearances Report), Council of Europe, Parl. Ass., Doc. 10679, 19 Sep. 2005, paras. 14–19 (discussing enforced disappearances in Azerbaijan, Belarus, Turkey, Russia [Chechen Republic] and Ukraine); Amnesty International, *URGENT ACTION* (Sri Lanka) – 'Disappearance'/fear of torture or ill-treatment/health concern: Professor Sivasubramaniam Raveendranath (m), AI Index: ASA 37/035/2006, 20 Dec. 2006.

<sup>499</sup> For the history of these initiatives, see Brody (1990) 8 *NQHR* 381; Tayler (2001) no. 62–63 *ICJRev.*, 63; Currat, *Les Crimes Contre L'Humanité dans le Statut de la Cour Pénale Internationale* (2006) 476–506.

<sup>500</sup> E.S.C. Res. 20, 36 UNESCOR Supp. (No. 3) at 180, para. 1, UN Doc/CN.4/1408 (1980). For the background to the establishment of the Working Group, see Guest, *Behind the Disappearances: Argentina's Dirty War Against Human Rights and the United Nations* (1990); Kramer and Weissbrodt (1981) 3 *HumRQ* 18; Rodley (1986) 8 *HumRQ* 700.

<sup>501</sup> Working Group on Enforced or Involuntary Disappearances, General Comment on article 4 of the Declaration, UN Doc/CN.4/1996/38, 15 Jan. 1996, para. 55.

affirming that 'the practice of 'forced or involuntary disappearances' constitutes a crime against humanity'<sup>502</sup>. In the same year, an Argentine human rights organisation also prepared a draft convention<sup>503</sup>.

In 1982, the Latin American Federation of Associations for Relatives of the Detained-Disappeared (FEDEFAM) adopted a draft convention at its annual meeting in Peru modeled on the Convention for the Prevention and Punishment of the Crime of Genocide, which stated that 'the forced disappearance of persons constitutes a crime against humanity', and envisaged trials for this crime in an international criminal court<sup>504</sup>. In a resolution adopted on 17 November 1983, the General Assembly of the Organisation of American States (OAS) declared that 'the practice of the forced disappearance of persons in the Americas ... constitutes a crime against humanity'<sup>505</sup>.

In 1986, the First Colloquium on Forced Disappearances in Colombia hosted by the José Alvear Restrepo Lawyers Collective of Bogotá adopted a draft convention declaring that 'forced or involuntary disappearances of persons constitute crimes against humanity, which States must undertake to prevent and punish without exceptions of any kind', that was sent to the UN Working Group on Enforced or Involuntary Disappearances<sup>506</sup>. In 1988, FEDEFAM and the Grupo de Iniciativa (an organisation of Argentine non-governmental organisations) organised an international conference in Buenos Aires that led to a new draft convention that built upon all the previous drafts and in the same year the Inter-American Commission on Human Rights began drafting a regional convention<sup>507</sup>.

Also in the same year, Louis Joinet, a French expert in the UN Sub-Commission on the Prevention of Discrimination and the Protection of Minorities, published a draft UN declaration, that was adopted four years later<sup>508</sup>. In the Preamble of the 1992 *UN Declaration on the Protection of All Persons from Enforced Disappearance*, the UN General Assembly declared that 'the systematic practice of such acts is of the nature of a crime against humanity'<sup>509</sup>. In words which echo those of Keitel, the *UN Declaration* defines this crime in its reference to enforced disappearances

'in the sense that persons are arrested, detained or abducted against their will or otherwise deprived of their liberty by officials of different branches or levels of Government, or by organised groups or private individuals acting on behalf of, or with the support, direct or indirect, consent or acquiescence of the Government, followed by a refusal to disclose the fate or whereabouts of the persons concerned or a refusal to acknowledge the deprivation of their liberty, thereby placing such persons outside the protection of the law'<sup>510</sup>.

Parallel with these developments in the UN, the OAS General Assembly asked the Inter-American Commission on Human Rights in 1987 to begin drafting a convention. The final version, which was adopted seven years later, was largely the work of Juan Mendez, a former Amnesty International prisoner of conscience who had been 'disappeared' in Argentina, and after he 'reappeared' became a member of the Commission. On 10 June 1994, the OAS General Assembly adopted the Inter-American Convention on the Forced Disappearance of

<sup>502</sup> *Le Refus de L'Oubli: la Politique de Disparition Force, Colloque, Jan./Fev. 1981*, 313 (English text quoted in: Tayler (2001) no. 62–63 ICJRev., 65 and 86.

<sup>503</sup> *Projet de la Ligue argentine des droits de l'homme*, in: *id.*

<sup>504</sup> Tayler (2001) no. 62–63 ICJRev., 65–66, 68.

<sup>505</sup> Res. 666 (XIII-0/83) in Annual Report of the Inter-American Commission on Human Rights.

<sup>506</sup> Tayler (2001) no. 62–63 ICJRev., 66, 68.

<sup>507</sup> Baigun (1988) *Colloquium of Buenos Aires* 343. Tayler (2001) no. 62–63 ICJRev., 66.

<sup>508</sup> UN DocE/CN.4/Sub.2/1988/17.

<sup>509</sup> GA Res. 47/133 (1992), Preamble. The UN Working Group on Enforced or Involuntary Disappearances has reached the same conclusion. Report of the Working Group on Enforced or Involuntary Disappearances, UN DocE/CN.4/1995/36 (1994), para. 45.

<sup>510</sup> UN Declaration on the Protection of All Persons from Enforced or Involuntary Disappearance, UN DocE/CN.4/1995/36 (1994), Preamble.

Persons, which reaffirms that 'the systematic practice of the forced disappearance of persons constitutes a crime against humanity'<sup>511</sup>.

In 1996, the ILC included 'forced disappearance of persons' as a crime against humanity in article 18 (i) of the 1996 *Draft Code*. It explained that this term was 'used as a term of art to refer to the type of criminal conduct which is addressed in the [UN] Declaration and the [Inter- American] Convention' and that although the crime had not been expressly included in some earlier instruments, it was a crime against humanity 'because of its extreme cruelty and gravity'<sup>512</sup>. There was considerable initial opposition to including this crime against humanity in the Rome Statute, but it was overcome by strong support from countries in Latin America which had recently suffered greatly from this crime. However, there was considerable controversy over its definition<sup>513</sup>. Since the inclusion of this crime in the Rome Statute, it has also been expressly recognised as a crime against humanity with the same definition in the instrument establishing the Special Panels for Serious Crimes within the District Court of Dili, East Timor<sup>514</sup>.

Four weeks after the Rome Diplomatic Conference ended, the UN Sub-Commission on the Prevention of Discrimination and the Protection of Minorities adopted a draft convention prepared by Louis Joinet, based on the 1992 UN Declaration<sup>515</sup>. An inter-sessional Working Group established by the UN Commission on Human Rights in 2001 began drafting at its first meeting in January 2003 a 'legally binding normative instrument for the protection of all persons from enforced disappearances' for consideration and adoption by the UN General Assembly. It completed its work in September 2005 when it adopted the International Convention for the Protection of All Persons from Enforced Disappearance (Disappearances

<sup>511</sup> Inter-American Convention on the Forced Disappearance of Persons, Preamble, adopted on 9 June 1994 in Belém do Pará, Brazil, at the 24<sup>th</sup> regular session of the OAS General Assembly. The Convention entered into force on 29 Mar. 1996. Article II defines the crime:

'For the purpose of this Convention, forced disappearance is considered to be the act of depriving a person or persons of his or their freedom, in whatever way, perpetrated by agents of the state or by persons or groups of persons acting with the authorisation, support, or acquiescence of the state, followed by an absence of information or a refusal to acknowledge that deprivation of freedom or to give information on the whereabouts of that person, thereby impeding his or her recourse to the applicable legal remedies and procedural guarantees'.

<sup>512</sup> 1996 ILC Draft Code, p. 102.

<sup>513</sup> Enforced disappearances were not included in any of the lists of crimes against humanity in the 1996 Preparatory Committee's compilation of proposals. However, in February 1997, the Preparatory Committee list of crimes in the article on crimes against humanity included 'enforced disappearances', with two options in the explanatory second paragraph (a fn. said that '[i]t was suggested that some more time was needed to reflect upon the inclusion of this subparagraph'). The first option stated:

'[enforced disappearance of persons' means when persons are arrested, detained or abducted against their will by or with the authorisation, support or acquiescence of the State or a political organisation, followed by a refusal to acknowledge that deprivation of freedom or to give information on the fate or whereabouts of those persons, thereby placing them outside the protection of the law]'. Preparatory Committee Decisions Feb. 1997, p. 5. The second, awkwardly worded, option would have made the definition the same as in the 1994 Inter-American Convention on the Forced Disappearance of Persons, 'as referred to in the Declaration on the Protection of All Persons from Enforced Disappearance' of 1992, leaving it unclear whether these were alternative formulations.

The same wording as in the February 1997 Report was included in the first paragraph of article 5 [20] of the Zutphen Draft, with the first option (the second had been deleted) as in the Preparatory Committee Decisions Feb. 1997 in the second paragraph, and this wording remained unchanged in article 5 of the New York Draft, UN DocA/CONF.183/2/Add.2 (1998).

<sup>514</sup> UNTAET Regulation 2000/15, Section 5.1 (i) and 5.2 (h). In contrast, enforced disappearances were omitted from the list of crimes against humanity, the Cambodia Extraordinary Chambers Law, reflecting the restrictive conception of an early US proposal about what conduct amounted to a crime against humanity in period over which the Extraordinary Chambers would have jurisdiction (17 Apr. 1975–6 Jan. 1979). Enforced disappearances were also omitted from the list in the Sierra Leone Statute, reflecting a similarly conservative view of the UN Office of Legal Affairs with regard to that court's temporal jurisdiction (the period since 30 Nov. 1996), despite the adoption earlier that year by the ILC of its Draft Code including this crime.

<sup>515</sup> Draft International Convention on the Protection of All Persons from Forced Disappearance, UN Doc/E/CN.4/Sub.2/1998/19, Annex, 19 Aug. 1998.



Convention)<sup>516</sup>. The UN General Assembly adopted the Disappearances Convention by consensus on 20 December 2006<sup>517</sup>. On 6 February 2007, 57 States signed the Disappearances Convention in Paris. In the Preamble, the states parties declare that they are '[a]ware of the extreme seriousness of enforced disappearance, which constitutes a crime and, in certain circumstances defined in international law, a crime against humanity'<sup>518</sup>. Article 5 states: 'The widespread or systematic practice of enforced disappearance constitutes a crime against humanity as defined in applicable international law and shall attract the consequences provided for under such applicable international law'<sup>519</sup>. The minimalist approach in the first part of the sentence is counter-balanced by the saving clause in the second, which qualifies it by making it clear that the meaning of the term in the Convention is 'as defined in applicable international law', which contains no such limitation, and by the Preamble's recognition of the circumstances when an enforced disappearance constitutes a crime against humanity. Therefore, nothing in the Convention can be read as restricting the scope of the definition of an enforced disappearance in international law. Under well-established law, reflected in the jurisprudence of the ICTY and ICTR and in UNTAET Regulation 2000/15, establishing the Special Panel for Serious Crimes in East Timor, and in article 7 of the Rome Statute, even a *single case* of enforced disappearance is a crime against humanity when committed *as part of* a widespread or systematic attack on a civilian population; enforced disappearances do not themselves have to be carried out on a widespread or systematic basis<sup>520</sup>.

Article 2 of the Disappearances Convention contains the following definition:

'For the purposes of this Convention, enforced disappearance is considered to be the arrest, detention, abduction or any other form of deprivation of liberty committed by agents of the State or by persons or groups of persons acting with the authorisation, support or acquiescence of the State, followed by a refusal to acknowledge the deprivation of liberty or by concealment of the fate or whereabouts of the disappeared person, which place such a person outside the protection of the law'<sup>521</sup>.

- 90 The ICTY and ICTR have not issued any judgments concerning enforced disappearances. However, two ICTY judgments have stated in *dicta* that enforced disappearances are crimes against humanity<sup>522</sup>. There is a considerable body of interpretation by the Human Rights

<sup>516</sup> I Convention for the Protection of All Persons from Enforced Disappearance (UN Draft Convention on Disappearance), UN Doc/CN.4/2005/WG.22/WP.1/REV.4, 23 Sep. 2005 (*Translated from French*), the new UN Hum. Rts. Council adopted the Convention at its first regular session and recommended that it be sent to ECOSOC, with a recommendation that it be adopted by the GA later that year.

<sup>517</sup> UNGA Res. A/RES/61/177, 20 Dec. 2006.

<sup>518</sup> UNGA Res. A/RES/61/177, 20 Dec. 2006, Disappearances Convention, Preamble.

<sup>519</sup> *Id.*, article 5. This wording, incorporating language from the Preamble to the 1992 UN Declaration, was introduced as a Presidency proposal on 16 Feb. 2005, International Instrument for the Protection of all Persons from Enforced Disappearances, Presidency proposal, 16 Feb. 2005, UN Doc. E/CN.4/2005/WG.22/MIS-C.15.REV.2, despite criticism by Amnesty International that the first part of the sentence did not include enforced disappearances which are part of a widespread or systematic attack on a civilian population involving other prohibited acts, but not necessarily widespread or systematic themselves.

<sup>520</sup> Although not all enforced disappearances have been committed on a widespread or systematic basis, since their invention more than half a century ago, they have almost invariably been committed as part of a widespread or systematic attack on a civilian population involving other crimes against humanity such as extrajudicial executions (murder) and torture.

<sup>521</sup> *Id.*, article 2. The text is virtually identical to that in article 1 of the 16 Feb. 2005 Presidency proposal.

<sup>522</sup> *Prosecutor v. Kvočka*, No. IT-95-30/1-T, Judgement, Trial Chamber, 2 November 2001, p. 208; (citing *Kupreskić*), *Prosecutor v. Kvočka*, No. I-98-30/1-A, Judgment, Appeals Chamber, 28 February 2005; *Prosecutor v. Kupreskić*, No. IT-95-16-T, Judgement, Trial Chamber, 4 January 2000, para. 566 (*dicta*), *Prosecutor v. Kupreskić*, No. IT-95-16-A, Judgment, Appeals Chamber, 23 October 2001. However, in *Kupreskić*, the Trial Chamber imposed a threshold for determining the existence of an inhumane act under article 5 of the ICTY Statute, that is not an element of the crime of enforced disappearance under customary international law and is not a requirement under other ICTY jurisprudence (see mn 7–10): that they 'must be carried out in a systematic manner and on a large-scale'. In addition, two decisions of the Special Panels for Serious Crimes, Dili, East Timor, have addressed the questions of enforced disappearance as a crime against humanity, but they are of limited utility. One enunciated a series of elements of the crime that have no basis in international law, such as a requirement that the initial detention had to be illegal, that the perpetrator must refuse both to acknowledge the



Committee and jurisprudence in the Inter-American Court of Human Rights, the European Court of Human Rights and the Human Rights Chamber of Bosnia and Herzegovina identifying the human rights violated in individual cases of enforced disappearance<sup>523</sup>. A number of national courts have recognised enforced disappearances as crimes under international law.<sup>524</sup> States began defining enforced disappearances as crimes under their own law before 1998 and are now defining it when implementing the Rome Statute in national criminal codes as crimes against humanity<sup>525</sup>.

arrest, detention or abduction and refuse to give information and that the perpetrator have intended to remove the victim from the protection of the law. See *Prosecutor v. Maubere*, No. 23/2003, Judgement, SPSC, 5 July 2004, p. 14.

<sup>523</sup> Hum. Rts. Committee: See, for example, *Bleier v. Uruguay*, No. 30/1978, 29 March 1982, *Report of the Hum. Rts. Committee*, UN GA OR, 37<sup>th</sup> Sess., Supp. (No. 40), Annex X; *Quinteros v. Uruguay*, No. 107/1981, 17 September 1981, *Report of the Hum. Rts. Committee*, UN GA OR, 38<sup>th</sup> Sess., Supp. (No. 40), Annex XXII; *Celis Laureano v. Peru*, No. 540/1993, UN Doc.CCPR/C/56/D/540/1993 (1996). Inter-American Court of Hum. Rts.: *Durand v. Peru*, Nos. 10.009 and 10.078/1987, Judgment, 16 Aug. 2000; *Trujillo Oroza v. Bolivia*, Judgment, 26 Jan. 2000; *Bamaca Velasquez v. Guatemala*, No. 11.129/1993, Judgment, 25 Nov. 2000; *Villigran Morales v. Guatemala*, No. 11.383/1994, 19 Nov. 1999; *Caracazo v. Venezuela*, Judgment, 11 Nov. 1999; *Blake v. Guatemala*, No. 11.219/1993, Judgment, 24 Jan. 1998; *Caballero-Delgado v. Colombia*, No. 10.319/1989, 8 Dec. 1995; *Gondínez Cruz v. Honduras*, No. 8097/1982, Judgment, 20 Jan. 1989; *Velásquez Rodríguez v. Honduras*, No. 7920/1981, Judgment, 29 July 1988. ECtHR: *Cyprus v. Turkey*, Application No. 25781/94, Judgment, 10 May 2001; *Cicek v. Turkey*, Application No. 25704/94, Judgment, 27 Feb. 2001; *Tas v. Turkey*, Application No. 24396/94, Judgment, 14 Nov. 2000; *Kaya v. Turkey*, Application No. 22535/93, Judgment, 28 Mar. 2000; *Kurt v. Turkey*, Application No. 24276/94, Judgment, 25 May 1998. Hum. Rts. Chamber for Bosnia and Herzegovina: *Palić v. Republika Srpska*, No. CH/99/3196, Decision on Admissibility and Merits, 11 Jan. 2001.

<sup>524</sup> Argentina: *Riveros* case, Cámara Nacional en lo Criminal y Correccional Federal de la Capital, Sala I, 7 Aug. 2003; *Simón, Julio Héctor y otros s/privación ilegítima de la libertad*, Case N° 17.768, Corte Suprema de Justicia de la Nación, 14 June 2005 (Judge Carlos Fayt, dissenting); Chile: Case Rol N°ho 24.471-2005, Sala Quinta de la Corte de Apelaciones de Santiago, 20 Apr. 2006; Case Rol N°ho 11.821-2003; Sala Quinta de la Corte de Apelaciones de Santiago, 5 Jan. 2004; Panamá: *Heliodoro Portugal* case, Corte Suprema de Justicia, Sala Segunda de lo Penal, 2 Mar. 2004; Perú: *Gabriel Orlando Vera Navarrete* case, Exp.N.ºho 2798- 04-HC/TC, Tribunal Constitucional, 9 Dec. 2004; *Genaro Villegas Namuche* case, Exp.N.º 2488-2002- HC/TC, Tribunal Constitucional, 18 Mar. 2004; United States: *Forti v. Suarez-Mason*, 694 F. Supp. 707, 711 (N.D. Cal. 1998) ([‘T]he submitted materials are sufficient to establish the existence of a universal and obligatory international proscription of the tort of “causing disappearance” (vacating a previous decision to the contrary). See on the Latin-American legislation also Ambos, ed., *Desaparición Forzada* (2009).

<sup>525</sup> Armenia: Criminal Code, article 392 (‘kidnapping followed by disappearance’); Australia: International Criminal Courts (Consequential Amendments) Act 2002, No. 42, 2002, Section 268.21 (using Elements of Crimes definition); Belgium: Loi relative aux violations graves du droit international humanitaire, 5 août 2003, article 7, adding article 136ter alinea 9° to the Code Pénal (Rome Statute definition); Bosnia and Herzegovina: Criminal Code, Official Gazette of Bosnia and Herzegovina, 3/03, article 172 (1) (i); Canada: Crimes against Humanity and War Crimes Act, sections 4 (1) (b) & 6 (1) (b); Colombia: Law 589 of 6 July 2000, articles 165 and 166 of the Penal Code; Costa Rica: Law 8272, article 2 (amending Penal Code article 379); Croatia: Decision on The Proclamation of the Law on the Application of the Statute of the International Criminal Court and on the Prosecution of Criminal Acts against the International Law on War and Humanitarian Law, No. 01-081-03-3537/2, Zagreb, 24 Oct. 2003, article 1; Cyprus: Law No. 23 (III)/2006, Law amending the Rome Statute for the establishment of the International Criminal Court (Ratification) Law of 2006, Sections 2 & 3; El Salvador: Penal Code, articles 364–366 (1997); Ethiopia: Penal Code, article 281; Guatemala: Decree No. 48–95 of 1995 (Penal Code, article 201 TER); Ireland: International Criminal Court Act 2006, Sections 7 (1) and 9 (1); Mali: Code pénal, Loi N° 01–079 du 20 Août 2001, article 29 (i); Malta: International Criminal Court Act, XXIV 2002, 13 Dec. 2003, section 2; Paraguay: Penal Code, article 236; Peru: Penal Code, article 320; Republic of the Congo: Loi N° 8–98 du 31 octobre 1998: portant définition et répression du génocide, des crimes de guerre et des crimes contre l’humanité, article 6 (i) et (k); South Africa: Implementation of the International Criminal Court Act, 2002, Sections 1 (vii) and 4 (1) and Schedule I; Trinidad and Tobago: International Criminal Court Act, 2006, Section 10 (2) (i); United Kingdom: International Criminal Court Act, 2001, Sections 50, 51 and 58; Venezuela: Penal Code, article 181-A.

In addition, draft laws in many countries define enforced disappearances as a crime against humanity under national law, including: Bénin: Avant projet de mise en œuvre du statut de la Cour Pénale Internationale au Bénin, article 16 (i) (‘disparitions forcées de personnes’); Bolivia: Anteproyecto de Ley de Implementación del Estatuto de Roma de la Corte Penal Internacional, article 31; Central African Republic: République centrafricaine: projet de loi modifiant le code penal, Loi N°ho .. modifiant et complétant les dispositions du Code Pénal Centrafricain, article 52; Democratic Republic of the Congo: Loi modifiant et completant certaines dispositions du code penale, du code d’organisation et de la competence judiciaires, du code penal militaire et du code judiciaire militaire, en application du statut de la cour penale internationale, article 10 (adding article 222 alinea 7

For the definition of enforced disappearances, see mn 128.

- 92 j) ‘The crime of apartheid’. The legal system of *apartheid* (‘separateness’ or ‘apartness’)<sup>526</sup> was instituted in South Africa as state policy after the Nationalist Party formed a government in May 1948, although many of the racially discriminatory practices which constituted *apartheid* had been practiced for many decades before in South Africa and in other countries, such as Nazi Germany, beginning with the Nuremberg Laws, and the United States, which institutionalised segregation in a substantial number of states, Federal districts and the armed forces for nearly a century. The South African legal system imposed rigid segregation of races in housing, education, medical care, employment and virtually every area of public and private life and in practice involved both systematic and widespread violations of human rights.
- 93 *Apartheid* was repeatedly condemned by the UN General Assembly and, beginning at least as early as 1965, characterised as a ‘crime against humanity’<sup>527</sup>. The *Convention on the Non-Applicability of Statutory Limitations to War Crimes and Crimes against Humanity*, adopted by the General Assembly in 1968, defined crimes against humanity as including ‘inhuman acts resulting from the policy of *apartheid*’<sup>528</sup>. The UN Security Council called *apartheid* ‘a crime against the conscience and dignity of mankind’ in response to the Soweto Uprising in 1976<sup>529</sup>. It endorsed the specific characterisation of *apartheid* as a crime against humanity in 1984.<sup>530</sup> Moreover, the Council repeatedly declared that *apartheid* was a crime that disturbed international peace and security, a finding which suggests that the Security Council might be willing to refer a situation involving ‘the crime of apartheid’ to the Prosecutor pursuant to article 13 (b) of the *Statute*<sup>531</sup>. In 1971, the International Court of Justice held that the General Assembly was justified in terminating South Africa’s mandate over South West Africa (Namibia), in part because of the imposition of *apartheid* in that territory<sup>532</sup>. In 1973, the General Assembly adopted the *International Convention on the Suppression and Punishment of the Crime of Apartheid (Apartheid Convention)*, in which the States Parties declared under article I that *apartheid* was ‘a crime against humanity’<sup>533</sup>.
- 94 Four years later in Geneva, the Diplomatic Conference on the Reaffirmation and Development of International Humanitarian Law applicable in Armed Conflicts adopted *Protocol I*

in Titre IX to Livre II of Code pénal); France: Projet de loi portant adaptation du droit pénal à l’institution de la Cour pénale internationale, N° 3271, article 2 (amending article 212–1 of the Code pénale); Kenya: International Crimes Bill 2006, section 6 (1) (b); Uganda: International Criminal Court Bill, Bill No. 18 (2006), Section 8.

<sup>526</sup> Dugard, *Human Rights and the South African Legal Order*, Vol. V. (1978).

<sup>527</sup> GA Res. 2054 (XX), 20 UN GA OR, Supp. No. 14, UN Doc. A/6014 (15 Dec. 1965), pp. 16–18; GA Res 2074 (XX), 20 UN GA OR, Supp. No. 14, UN Doc A/6014 (17 Dec. 1965), pp. 60–61; GA Res 2202 (XXI), 21 UN GA OR, Supp. No. 21, UN DocA/6316 (16 Dec. 1966), pp. 20–21; GA Res 2307 (XXII), 22 UN GA OR, Supp. No. 16, UN DocA/6716 (13 Dec. 1967), pp. 19–20; GA Res 2396 (XXIII), 23 UN GA OR, Supp. No. 18, UN DocA/7218 (2 Dec. 1968), pp. 19–21; GA Res 2671 F (XXV), 25 UN GA OR, Supp. No. 28, UN DocA/8028 (8 Dec. 1970), pp. 31–34; GA Res 2775 E (XXVI), UN GA OR, Supp. No. 29, UN Doc. A/8429 (29 Nov. 1971), pp. 40–47.

<sup>528</sup> Convention on the Non-Applicability of Statutory Limitations to War Crimes and Crimes against Humanity, adopted and opened for signature, ratification and accession by GA Res. 2391 (XXIII) of 26 Nov. 1968, article I (b).

<sup>529</sup> SC Res 392 (1976).

<sup>530</sup> SC Res 556 (1984).

<sup>531</sup> See, e.g., SC Res 282, 25 UNSCOR at 12 (1970); SC Res 311, 27 UNSCOR at 10 (1972); SC Res 392, 31 UNSCOR at 11, UN DocS/INF/32 (1976) (reaffirming that ‘the policy of *apartheid* is a crime against the conscience and dignity of mankind and seriously disturbs international peace and security’).

<sup>532</sup> Legal Consequences for States of the Continued Presence of South Africa in Namibia (South West Africa) Notwithstanding Security Council Res. 276 (1970), (1971) ICJ Rep. 16, 57.

<sup>533</sup> Adopted and opened for signature and ratification in GA Res 3068 (XXVIII), 30 Nov. 1973. Article II of that convention defines *apartheid* as follows:

‘For the purpose of the present Convention, the term ‘the crime of *apartheid*’, which shall include similar policies and practices of racial segregation and discrimination as practised in southern Africa, shall apply to the following inhuman acts committed for the purpose of establishing and maintaining domination by one racial group of persons over any other racial group of persons and systematically oppressing them:

- (a) Denial to a member or members of a racial group or groups of the right to life and liberty of person:
  - (i) By murder of members of a racial group or groups;

to the Geneva Conventions of 1949, which made 'practices of *apartheid* and other inhuman and degrading practices involving outrages upon personal dignity, based on racial discrimination' grave breaches of that instrument, 'when committed willfully and in violation of the Conventions or the Protocol'<sup>534</sup>. In spite of these codification efforts, the crime of *apartheid* was omitted from the 1993 ICTY Statute and the 1994 ICTR Statute, possibly based on the view that the persecution in the former Yugoslavia, involving large-scale deportation and forced transfer of population, and in Rwanda, involving genocide, primarily through murder and rape on an enormous scale, was of a different nature than *apartheid* as practiced in South Africa and, therefore, that including this crime was not necessary<sup>535</sup>. In 1996, the ILC's 1996 *Draft Code* extended the concept of *apartheid* by defining certain types of institutionalised discrimination on racial, ethnic or religious grounds as a crime against humanity<sup>536</sup>. Despite this long history of international condemnation, inclusion of this crime in the *Rome Statute* was a remarkable achievement, given the long-standing reluctance of Western governments to ratify the *Apartheid Convention*. Indeed, it was only as a result of the intervention by the multiracial South African delegation in Rome 'with the unassailable oral authority of its own painful national experience' leading 'a coalition of sub-Saharan African States to insist that the crime of *apartheid* be included in its own right in article 7's list of specific acts' that helped to overcome this Western reluctance to include it in the *Rome Statute*<sup>537</sup>. It has subsequently been included as a crime against humanity in the regulation establishing the Special Panels for Serious Crimes of the District Court of Dili, East Timor<sup>538</sup>. States are now defining the

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- (ii) By the infliction upon the members of a racial group or groups of serious bodily or mental harm, by the infringement of their freedom or dignity, or by subjecting them to torture or to cruel, inhuman or degrading treatment or punishment;
  - (iii) By arbitrary arrest and illegal imprisonment of the members of a racial group or groups;
  - (b) Deliberate imposition on a racial group or groups of living conditions calculated to cause its or their physical destruction in whole or in part;
  - (c) Any legislative measures and other measures calculated to prevent a racial group or groups from participation in the political, social economic and cultural life of the country and the deliberate creation of conditions preventing the full development of such a group or groups, in particular by denying to members of a racial group or groups basic human rights and freedoms, including the right to work, the right to form recognised trade unions, the right to education, the right to leave and to return to their country, the right to a nationality, the right to freedom of movement and residence, the right to freedom of opinion and expression, and the right to freedom of peaceful assembly and association;
  - (d) Any measures, including legislative measures, designed to divide the population along racial lines by the creation of separate reserves and ghettos for the members of a racial group or groups, the prohibition of mixed marriages among members of various racial groups, the expropriation of landed property belonging to a racial group or groups or to members thereof;
  - (e) Exploitation of the labour of the members of a racial group or groups, in particular by submitting them to forced labour;
  - (f) Persecution of organisations and persons, by depriving them of fundamental rights and freedoms, because they oppose *apartheid*.

<sup>534</sup> Add. Prot. I (1977), article 85 para. 4 (c). Article 8 of the *Rome Statute* does not give the Court jurisdiction over this war crime.

<sup>535</sup> The war crime of *apartheid* was not expressly mentioned in the 1993 ICTY Statute, despite an appeal to do so by the International Committee of the Red Cross. Some Preliminary Remarks by the International Committee of the Red Cross on the Setting-Up of an International Tribunal for the Prosecution of Persons Responsible for Serious Violations of International Humanitarian Law Committed in the Former Yugoslavia (United Nations Security Council Res. 808 (1993) Adopted on 22 Feb. 1993), DDM/JUR/422 b, 25 Mar. 1993.

<sup>536</sup> 'A crime against humanity means any of the following acts, when committed in a systematic manner or on a large scale and instigated or directed by a Government or by any organisation or group: ... (f) institutionalised discrimination on racial, ethnic or religious grounds involving the violation of fundamental human rights and freedoms and resulting in seriously disadvantaging a part of the population' [...] 1996 ILC *Draft Code*, article 18 (f). The ILC Commentary on this provision noted that racial discrimination had been characterised as a crime against humanity in the *Apartheid Convention*.

<sup>537</sup> McCormack, in: McCormack *et al.* (eds), *The Permanent International Criminal Court: Legal and Policy Issues* (2004) 198–199. This crime had not been included in any of the lists of crimes against humanity published by the *Ad Hoc* Committee or the Preparatory Committee.

<sup>538</sup> UNTAET Reg. 2000/15, Sections 5.1 (j) and 5.2 (g). In contrast, *apartheid* was omitted from the list of crimes against humanity in the Cambodia Extraordinary Chambers Law, reflecting the restrictive conception of

crime of apartheid as a crime against humanity under national law<sup>539</sup>. These States have also often recognised the crime of apartheid as a war crime when committed in international armed conflict<sup>540</sup>.

The *Apartheid* Convention was drafted in response to South Africa's policy of racial discrimination. It had as its immediate purpose to coerce the South African government to terminate its discriminatory policies and practices<sup>541</sup>. Despite this *ad hoc* background and the reference in article 1 of the Convention to 'similar policies and practices of racial segregation and discrimination as practices in southern Africa', the argument has been presented that the Convention's territorial scope of application is not confined to past southern African situations and that it has more generic potential<sup>542</sup>.

Different opinions exist as regards the customary law status of *apartheid* as a crime against humanity<sup>543</sup>. Notable in this discussion is the distinction that Dugard and Reynolds draw between the prohibition of *apartheid* which is directed at states and has established itself as a rule of customary international law and the crime of *apartheid* which is directed at individuals and which moves towards customary status but may not have acquired that

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an early US proposal about what conduct amounted to a crime against humanity in period over which the Extraordinary Chambers would have jurisdiction (17 Apr. 1975–6 Jan. 1979). Ironically, the United Nations received an instrument of accession from the representative of the Democratic Republic of Kampuchea on 28 July 1981, although the Khmer Rouge government had been overthrown two years earlier. This crime was also omitted from the list in the Sierra Leone Statute, reflecting a similarly conservative view of the UN Office of Legal Affairs with regard to that court's temporal jurisdiction (the period since 30 Nov. 1996), despite the adoption earlier that year by the ILC of its Draft Code including this crime.

<sup>539</sup> States that have included the crime of apartheid in their criminal law include: Belgium: Loi relative aux violations graves du droit international humanitaire, 5 août 2003, article 7, adding article 136ter alinea 10° to the Code Pénal (Rome Statute definition); Bosnia and Herzegovina: Criminal Code, Official Gazette of Bosnia and Herzegovina, 3/03, article 172 para. 1 (j); Canada: Crimes against Humanity and War Crimes Act, sections 4 para. 1 (b) and 6 para. 1 (b); Colombia: Law 589 of 6 July 2000, articles 165 and 166 of the Penal Code; Costa Rica: Law 8272, article 2 (amending Penal Code article 379); Croatia: Decision on The Proclamation of the Law on the Application of the Statute of the ICC and on the Prosecution of Criminal Acts against the International Law on War and Humanitarian Law, No. 01-081-03-3537/2, Zagreb, 24 Oct. 2003, article 1; Georgia: Law on Amendments to the Criminal Code of Georgia, article 1 (5) (amending article 408 of the Criminal Code); Ireland: International Criminal Court Act 2006, Sections 7 para. 1 and 9 para. 1; Mali: Code pénal, Loi N° 01-079 du 20 Août 2001, article 29 (i); Malta: International Criminal Court Act, XXIV 2002, 13 Dec. 2003, Section 2; South Africa: Implementation of the International Criminal Court Act, 2002, Sections 1 (vii) and 4 para. 1 and Schedule I; Trinidad and Tobago: International Criminal Court Act, 2006, Section 10 para. 2 (j); United Kingdom: International Criminal Court Act, 2001, Sections 50, 51 and 58.

In addition, a number of States have included the crime of apartheid in draft legislation, including: Bénin: Avant projet de mise en œuvre du statut de la Cour Pénale Internationale au Bénin, article 16 (j) ('disparitions forcées de personnes'); Bolivia: Anteproyecto de Ley de Implementación del Estatuto de Roma de la Corte Penal Internacional, article 30; Central African Republic: République centrafricaine: projet de loi modifiant le code pénal, Loi N°ho .. modifiant et complétant les dispositions du Code Pénal Centrafricain, article 52; Democratic Republic of the Congo: Loi modifiant et complétant certaines dispositions du code pénale, du code d'organisation et de la compétence judiciaires, du code pénal militaire et du code judiciaire militaire, en application du statut de la cour penale internationale, article 10 (adding article 222 alinea 7 in Titre IX to Livre II of Code pénal); France: Projet de loi portant adaptation du droit pénal à l'institution de la Cour pénale internationale, N° 3271, article 2 (amending article 212-1 of the Code pénale) (segregation); Kenya: International Crimes Bill 2006, section 6 (1) (b).

<sup>540</sup> See Add. Prot. I (1977), article 85 para. 4 (c) (defining '[p]ractices of *apartheid* as a war crime').

<sup>541</sup> Dugard, in: Ascencio et al. (eds.), *Droit International Pénal* (2012) 197.

<sup>542</sup> Dugard in: Ascencio et al. (eds.), *Droit International Pénal* (2012) 199, and Clark, in: Bassiouni (ed.), *International Criminal Law: Vol. I – Sources, Subjects and Contents* (2014) 603, but contra with reference to the *travaux préparatoires*, Eden (2014) 12 J. I C. L. 171, 177–178.

<sup>543</sup> The abovementioned reluctance of Western States to ratify the *Apartheid* Convention, together with lack of clarity of the definition and lack of actual prosecutions leads a number of scholars to present the claim even after the adoption of the Rome Statute that apartheid as a crime against humanity finds no basis in customary international law. See Tomuschat (2005) 71 *InstILYb* 213, 238 ('*Apartheid*, to take the most controversial offence, was not recognised in the past as a crime against humanity by Western nations'), 244–246, 246 ('Therefore, on the basis of the available practice, it would be hard to conclude that a rule exists under general international law which establishes *apartheid* as a crime against humanity'). (fn. citing Rosalyn Higgins and Christian Tomuschat omitted); 268 (Yoram Dinstein); 279 (M. Mohammed Bennouna); 320 (Christos L. Rozakis); 325 (Antonio Cassese). Also see Bultz (2013) 24 *CLF* 205; Eden (2014) 12 *JICL* 171.

status as yet<sup>544</sup>. The question of the customary status of *apartheid* gains in relevance if crimes linked to policies of states that are not parties to the ICC Statute come under the ICC's scrutiny. Israeli law and practices in the occupied Palestinian territory may come to mind in this respect and indeed Israel's action in the occupied Palestinian territories have been labeled as *apartheid* by the Committee against Racial Discrimination as well as by several UN special rapporteurs<sup>545</sup>.

For the definition of 'the crime of apartheid', see mn 119–127.

k) 'Other inhumane acts'. Article 7 (1) (k) contains a qualified residual clause concerning crimes against humanity which provides leeway to accommodate forms of inhumane conduct not otherwise prohibited under article 7. It covers, as PTC I put it: 'serious violations of international customary law and the basic rights pertaining to human beings, drawn from the norms of international human rights law, which are of a similar nature and gravity to the acts referred to in article 7(1) of the Statute'<sup>546</sup>. The rationale for such a clause was aptly explained in ICTY jurisprudence, with reference to the 'humane treatment' contained in common article 3 of the Geneva Conventions:

'However great the care taken in drawing up a list of all the various forms of infliction, it would never be possible to catch up with the imagination of future torturers who wished to satisfy their bestial instincts; and the more specific and complete a list tries to be, the more restrictive it becomes'<sup>547</sup>.

A similar provision already appeared in the definition of crimes against humanity in the Nuremberg Charter, where the words 'other inhumane acts' appeared next to the enumerated acts which constitute the first type of crimes against humanity: 'murder, extermination, enslavement, deportation, and other inhumane acts ..., or persecutions on political, racial or religious grounds ...'<sup>548</sup>. Thus, the words 'other inhumane acts' in the Charter did not refer to persecutions. The same formulation had been included in *Control Council Law No. 10*<sup>549</sup>, the Tokyo Charter<sup>550</sup> and the Nuremberg Principles<sup>551</sup>. The phrase 'other inhumane acts' in these instruments indicates that the lists of expressly named activities were not exhaustive. Deprivation of means of sustenance is an act that this phrase might cover<sup>552</sup>. Article 2 para. 11 of the 1954 Draft Code, containing a provision on crimes against humanity, begins with the words 'inhuman acts such as ...'<sup>553</sup>, followed by a list of crimes<sup>554</sup>. In contrast with these previous instruments, the 1991 Draft Code did not include such a provision, which

<sup>544</sup> Dugard and Reynolds (2013) 24 *EJIL* 3, 883.

<sup>545</sup> Cf. CERD, *Concluding Observations*, UN DocCERD/C/ISR/CO/14-16, 9 March 2012, para. 24; UN special rapporteurs (J. Dugard, *Report of the Special Rapporteur on the situation of human rights in the Palestinian territories occupied since 1967*, UN Doc. A/HRC/4/17, 29 January 2007, at 3, R. Falk, *Report of the Special Rapporteur on the situation of human rights in the Palestinian territories occupied since 1967*, UN Doc. A/65/331, 30 August 2010, para. 3) and scholars (E. g., Dugard and Reynolds (2013) 24 *EJIL* 3, 883..

<sup>546</sup> See *Prosecutor v. Katanga and Ngudjolo Chui*, ICC-01/04-01/07-717, 30 September 2008 (PURL: <https://www.legal-tools.org/doc/67a9ec/>), para. 448.

<sup>547</sup> See *Prosecutor v. Kupreškić et al.*, IT-95-16-T, 14 January 2000, para. 563.

<sup>548</sup> *Charter of the International Military Tribunal* (1945), article 6 (c).

<sup>549</sup> Article 2 para. 1 (c).

<sup>550</sup> Article 5 (c).

<sup>551</sup> *Principles of International Law Recognised in the Charter of the Nuremberg Tribunal and in the Judgment of the Tribunal* (1950), Principle VI (c).

<sup>552</sup> *The Charter and Judgment of the Nürnberg Tribunal: History and Analysis*, Memorandum submitted by the Secretary-General (The Charter and Judgment of the Nuremberg Tribunal), UN Sales No. 1949.V.7, 67 (1949).

<sup>553</sup> According to Ratner and Abrams, after the conclusion of the Genocide Convention, the ILC used the term 'other inhuman(e) acts' as a catchall to describe all non-genocide crimes against humanity. Therefore, the provision in the 1954 Draft Code begins with these words. Ratner and Abrams, *Accountability for Human Rights Atrocities in International Law: Beyond the Nuremberg Legacy* (1997) 71, n. 155.

<sup>554</sup> Crimes against humanity were defined in the 1954 ILC Draft Code, p. 150 as follows: 'Inhuman acts such as murder, extermination, enslavement, deportation or persecution, committed against any civilian population on social, political, racial, religious or cultural grounds by the authorities of a State or by private individuals acting at the instigation or with the toleration of such authorities'.



made one State comment that the article was limited in its scope<sup>555</sup>. The Special Rapporteur on the 1991 Draft Code stated that this comment was valid and that providing a complete list of acts constituting crimes against humanity was impossible<sup>556</sup>.

- 96 Both the ICTY Statute and the ICTR Statute contain the phrase ‘other inhumane acts’ as a catchall provision under the article penalizing crimes against humanity<sup>557</sup>. In *ad hoc* tribunal jurisprudence, fears were expressed that the crime ‘subsumes a potentially broad range of criminal behavior’ and may well be ‘considered to lack sufficient clarity, precision and definiteness [which] might violate the fundamental criminal law principle *nullum crimen sine lege certa*’<sup>558</sup>. But despite initial ‘concerns’<sup>559</sup> the Appeals Chamber ruled that the ‘notion of “other inhumane acts” contained in Article 5(i) of the Statute cannot be regarded as a violation of the principle of *nullum crimen sine lege* as it forms part of customary international law’<sup>560</sup>. It found authority for this proposition in international legal instruments since 1945 and human rights treaties prohibiting inhuman and degrading treatment<sup>561</sup>. Unlike the Rome Statute, the Statutes of the *ad hoc* tribunals do not expressly include offences, such as forcible transfer of population, enforced disappearance or sexual crimes other than rape. These crimes were thus prosecuted under the label of ‘other inhumane acts’, although they constitute independent acts in the context of the Rome Statute.
- 97 In the 1996 Draft Code the ILC restricted the provision to the following wording: ‘other inhumane acts which severely damage physical or mental integrity, health or human dignity, such as mutilation and severe bodily harm’<sup>562</sup>. According to the ILC, this category of acts is intended to include only additional acts ‘similar in gravity to those listed in the preceding subparagraphs’<sup>563</sup>. This application of the *eiusdem generis* theory, which warrants equivalence to acts of the same kind, mitigates concerns relating to legal certainty<sup>564</sup>. Secondly, ‘the act must in fact cause injury to a human being in terms of physical or mental integrity, health or human dignity’. The ILC thus included a criterion by which the qualification of an act as ‘inhumane’ would depend on the consequences of the act. The Trial Chamber of the ICTY followed this line of reasoning in the *Tadić* case<sup>565</sup>.
- 98 This more restrictive approach is reflected in the Rome Statute which ‘has given to “other inhumane acts” a different scope than its antecedents like the Nuremberg Charter and the ICTR and ICTY Statutes.’<sup>566</sup> It contains limitations regarding both the required action and its consequences. The definition of paragraph(1)(k) and the Elements of Crimes make it clear that an ‘other inhumane act’ must be ‘of a similar character’ to any other act referred to in article 7(1) of the Statute. The Elements of Crimes specify further that the perpetrator must

<sup>555</sup> Thirteenth Report on the Draft Code of Crimes against the Peace and Security of Mankind, UN Doc. A/CN.4/466 (24 Mar. 1995) (1995 ILC Special Rapporteur Report), p. 19.

<sup>556</sup> *Ibid.*, 20. In its 1991 Report, the ILC deemed it necessary to make an exhaustive list of acts, unlike the list contained in the 1954 Draft Code ‘bearing in mind that the draft Code is a criminal code and the principle of *nullum crimen sine lege*’, Part 2, (1991) 2 *YbILC* 103.

<sup>557</sup> ICTY Statute, article 5 (i); ICTR Statute, article 3 (i).

<sup>558</sup> *Prosecutor v. Stakić*, No. IT-97-24-T, Judgement, Trial Chamber, 31 July 2003, para. 719.

<sup>559</sup> *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-A, 17 December 2004, para. 117.

<sup>560</sup> *Prosecutor v. Stakić*, IT-97-24-A, 22 March 2006, para. 315; see also *Prosecutor v. Nuon Chea and Khieu Samphan*, Case 002/01, No. 002/19-09-2007/ECCC/TC, Judgement, Trial Chamber, 7 August 2014, para. 436, arguing that ‘the principle of legality attaches to the entire category of “other inhumane acts” and not to each sub-category of this offence’.

<sup>561</sup> *Prosecutor v. Stakić*, IT-97-24-A, 22 March 2006, fn. 649.

<sup>562</sup> 1996 ILC Draft Code, article 18 (k).

<sup>563</sup> *Prosecutor v. Tadić*, No. IT-94-1-T, Judgment and Opinion, Trial Chamber, 7 May 1997, paras. 728–729 (citing the 1996 ILC Draft Code, p. 103).

<sup>564</sup> See also Bassiouni, *Crimes Against Humanity: Historical Evolution and Contemporary Application* (2011), 406; Ambos, *Treatise on ICL II* (2014), 115; critically however *Prosecutor v. Kupreškić*, IT-95-16-T, 14 January 2000, para. 564, arguing that the *eiusdem generis* rule of interpretation ‘lacks precision, and is too general to provide a safe yardstick’.

<sup>565</sup> *Prosecutor v. Tadić*, IT-94-1-T, 7 May 1997, para. 729.

<sup>566</sup> See *Prosecutor v. Katanga and Ngudjolo Chui*, ICC-01/04-01/07-717, 30 September 2008 (PURL: <https://www.legal-tools.org/doc/67a9ec/>), para. 450.



inflict 'great suffering, or serious injury to body or to mental or physical health, by means of an inhumane act'. These limitations were inserted in response to claims in the drafting process that the language in the Statute was overly vague<sup>567</sup>. The first jurisprudence of the Court reflects this caution, warranted by article 22 of the Statute. PTC II held expressly that 'this residual category of crimes against humanity must be interpreted conservatively and must not be used to expand uncritically the scope of crimes against humanity'.<sup>568</sup> The reference to 'serious violations' in *Katanga and Ngudjolo Chui* suggests that not every human rights violation qualifies as an other inhumane act.<sup>569</sup>

National legislation implementing the Rome Statute and draft implementing legislation have, with only one or two exceptions, included other inhumane acts as crimes against humanity in their national law. In a domestic context, it has sometimes been associated with categories of crimes not expressly included in the ICC Statute, such as drug trafficking or terrorism.<sup>570</sup>

**aa) Assessment and similarity in character.** This assessment under paragraph 1 (k) 99 requires several steps. In order to qualify as a crime against humanity, the relevant behaviour must first of all qualify as an 'inhumane act'.<sup>571</sup> As the PTC made clear, the reference to the word 'other' implies a process of exclusion: '[N]one of the acts constituting crimes against humanity according to article 7(1)(a) to (j) can be simultaneously considered as an other inhumane act encompassed by article 7(1)(k) of the Statute'.<sup>572</sup> It is thus necessary to inquire whether the conduct is already subsumed under any of the other existing 'inhumane acts'. It should have at least one materially distinct element that is not adequately reflected in other acts under paragraph 1.<sup>573</sup>

Secondly, paragraph 1 (k) requires that the acts must be of a character similar to those referred to in paragraph 1. In the ICC context, this assessment is more complex than in other contexts.<sup>574</sup> Article 7 encompasses a broader list of underlying acts than previous international legal instruments. They protect diverse interests and values (Rechtsgüter), including the right to life, health, liberty and human dignity.<sup>575</sup> Paragraph 1 (k) refers not only to acts of the 'murder' type, but also to persecution and the crime of apartheid. These last two crimes include acts which do not necessarily amount to 'great suffering, or serious injury to body or to mental or physical health', but are regarded as inhumane in and of themselves, such as enacting discriminatory legislation. Additional guidance is provided by footnote 30 to the Elements of Crimes which states that '[i]t is understood that "character" refers to the nature and gravity of the act'. The character of acts under paragraph 1 provides indicators for

<sup>567</sup> See Schabas, *Commentary ICC* (2010) 184–185.

<sup>568</sup> *Prosecutor v. Francis Kirimi Muthaura, Uhuru Muigai Kenyatta and Mohammed Hussein Ali*, ICC-01/09-02/11-382-Red, Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute, Pre-Trial Chamber II, 23 January 2012 (PURL: <https://www.legal-tools.org/doc/4972c0/>), para. 269.

<sup>569</sup> See *Prosecutor v. Katanga and Ngudjolo Chui*, ICC-01/04-01/07-717, 30 September 2008 (PURL: <https://www.legal-tools.org/doc/67a9ec/>), para. 448, concurring Ambos, *Treatise on ICL II* (2014) 115–116.

<sup>570</sup> See Schabas, *Commentary ICC* (2010) 185 (with reference to the Supreme Court of Venezuela). The African Union Model Law on Universal Jurisdiction distinguishes these offences from crimes against humanity. See AU, Decision on African Union Model Law on Universal Jurisdiction, EX.CL/731(XXI)c, 9–13 July 2012, articles 13 and 14.

<sup>571</sup> *Prosecutor v. Kupreškić*, IT-95-16-T, 14 January 2000, para. 566, noting that the *ejusdem generis* principle should be applied '[o]nce the legal parameters for determining the content of the category of "inhumane acts" are identified.

<sup>572</sup> See *Katanga and Ngudjolo Chui*, ICC-01/04-01/07-717, 30 September 2008 (PURL: <https://www.legal-tools.org/doc/67a9ec/>), para. 452.

<sup>573</sup> See also Haenen (2013) 14 *GLJ* 796, 814. In *Katanga and Ngudjolo Chui*, the PTC argued that 'murder under article 7 (1) (a), even in its attempted form cannot be charged simultaneously under article 7 (1) (k) of the Statute as other inhumane acts' since 'the clear intent to kill persons cannot be transformed into intent to severely injure persons by means of inhumane acts solely on the basis that the result of the conduct was different from that which was intended and pursued by the perpetrators'. See *Katanga and Ngudjolo Chui*, ICC-01/04-01/07-717, 30 September 2008 (PURL: <https://www.legal-tools.org/doc/67a9ec/>), paras. 461 and 463.

<sup>574</sup> Note that a similarity requirement is also included in paragraph 1 (g) ('sexual violence of comparable gravity'). This might entail a dual application of the *ejusdem generis* theory.

<sup>575</sup> Kuschnik (2010) 2 *GoJIL* 501, 528.

the comparable gravity and nature of the inhumane act under paragraph 1 (k). Violations of basic human rights may serve as a point of departure, but only meet the required threshold if they are of a character similar to the enumerated inhumane acts. The ICTY and ICTR Trial Chambers have given little guidance on how this similarity is to be determined. Indeed, one ICTR Trial Chamber simply said: ‘As for which acts rise to the level of inhumane acts, this should be determined on a case-by-case basis’<sup>576</sup>. The ECCC considered factors such as ‘the nature of the act or omission, the context in which it occurred, the personal circumstances of the victim, as well as the impact of the act upon the victim’<sup>577</sup>. ICTY and ICTR Trial Chambers have qualified a wide range of acts as other inhumane acts, including:

- forcible transfer of population<sup>578</sup>;
- serious physical or mental injury<sup>579</sup>;
- biological, medical or scientific experiments<sup>580</sup>;
- enforced prostitution<sup>581</sup>;
- other acts of sexual violence<sup>582</sup>;
- acts of sexual violence to and mutilation of a dead body that caused mental suffering to eye-witnesses<sup>583</sup>; and enforced disappearances<sup>584</sup>.

In case No. 001 (*Duch*), the ECCC Trial Chamber used the label ‘other inhumane acts’ to justify a conviction for the deliberate imposition of ‘deplorable conditions of detention’ of detainees in camp S-21, including, ‘lack of adequate food, hygiene and medical care’<sup>585</sup>. In academic literature, it has been proposed to extend ‘other inhumane acts’ to food deprivation

<sup>576</sup> *Prosecutor v. Bagilishema*, No. ICTR-95-1A-T, Judgment, Trial Chamber, 7 June 2001, para. 92. The Special Panels for Serious Crimes, Dili, East Timor have found the following acts to be other inhumane acts: cutting off a man’s ear and making him eat it, *Prosecutor v. Cardoso*, No. 4c/2001, Judgment, 5 April 2003, paras. 147 *et seq.*; holding victims for four days and repeatedly punching, kicking and beating them with sticks and rifle butts, *Prosecutor v. Pedro*, No. 1/2001, Judgment, 14 April 2005, paras. 8, 11; severe beating, *Prosecutor v. Medes Correia*, No. 19/2001, Judgment, 9 March 2004; striking victim with machetes and stones and leaving for dead, *Prosecutor v. Ena*, No. 5/2001, Judgment, 23 March 2004; slashing of victim’s body with a machete, *Prosecutor v. Tacaqui*, No. 20/2001, Judgment, 9 December 2004; causing serious injuries to victims during a mass killing, *Prosecutor v. Januario da Costa*, No. 22/2003, Judgment, 27 April 2005; beating and kicking for half an hour, *Prosecutor v. Beno*, No. 4b/2003, Judgment, 16 November 2004, para. 18. The Special Panels were split with regard to whether holding victims in a small room in unhygienic conditions without proper sanitation facilities and denying them food or water constituted other inhumane acts *Prosecutor v. Gouveia Leite*, No. 4b/2001, Judgment, 7 December 2002, para. 161 (other inhumane acts); *Prosecutor v. Cardoso*, No. 4c/2001, 5 April 2003, para. 421 (not other inhumane acts).

<sup>577</sup> *Prosecutor v. Nuon Chea and Khieu Samphan*, Case 002/01, 002/19-09-2007/ECCC/TC, 7 August 2014, para. 438.

<sup>578</sup> *Prosecutor v. Milošević*, IT-02-54-T, 16 June 2004, para. 52 (stating that although the Nuremberg Tribunal ‘had no express jurisdiction to deal with forcible transfer, [...] conceivably, that crime could have been covered in the reference to “other inhumane acts”’) and para. 316 (finding sufficient evidence to permit a prosecution to proceed with respect to all counts, including a count charging the accused with forcible transfer as an inhumane act); *Prosecutor v. Krajišnik*, IT-00-39-T, 27 September 2006, paras. 722–732 (conviction for forced transfer charged as an other inhumane act); *Prosecutor v. Kupreškić et al.*, IT-95-16-T, 14 January 2000, para. 56; *Prosecutor v. Krstić*, IT-93-33-T, 2 August 2001, para. 523 (citing *Prosecutor v. Kupreškić et al.*, IT-95-16-T, 14 January 2000, it said ‘forcible displacement within or between national borders is included as an inhumane act under article 5 (i) defining crimes against humanity’).

<sup>579</sup> *Prosecutor v. Blaškić*, IT-95-14-T, 3 March 2000, para. 239 (‘serious physical or mental injury’).

<sup>580</sup> *U.S. v. Brandt (Medical Trial)*, p. 183.

<sup>581</sup> *Prosecutor v. Kupreškić et al.*, IT-95-16-T, 14 January 2000, para. 566.

<sup>582</sup> *Prosecutor v. Kajelijeli*, No. ICTR-98-44A-T, Judgment and Sentence, Trial Chamber, 1 December 2003, para. 916 (‘[o]ther acts of sexual violence which may fall outside of this specific definition [of rape] may of course be prosecuted [...] as other inhumane acts’) (emphasis in original).

<sup>583</sup> *Prosecutor v. Kajelijeli*, ICTR-98-44A-T, 1 December 2003, para. 936 (piercing the side and sexual organs of the body of a woman victim and cutting off the breast of a girl were acts that ‘constitute a serious attack on the human dignity of the Tutsi community as a whole’ and ‘are nefarious acts of a comparable gravity to the other acts listed as crimes against humanity, which would clearly cause great mental suffering to any members of the Tutsi community who observed them’).

<sup>584</sup> *Ibid.*

<sup>585</sup> *Prosecutor v. Duch*, Case 001, No. 001/18-07-2007/ECCC/TC, Judgement, Trial Chamber, 26 July 2010, para. 372.

and policies of mass famine, causing physical and mental suffering of victims<sup>586</sup> or denial of humanitarian assistance<sup>587</sup>.

Ultimately, the similarity assessment under paragraph 1 (k) involves a value judgment. In ICC context, specific attention has been devoted to article 22 and avoidance of overlap with existing acts under paragraphs (a)–(j). Guidance may be derived from norms prohibiting inhumane treatment under human rights law and international humanitarian law.

In international case-law, it has remained controversial under what circumstance ‘forced marriage’ meets the elements of an ‘other inhumane act’<sup>588</sup>. The SCSL dealt with patriarchal types of ‘bush’ marriages, by which women and girls were forcibly assigned to serve as ‘wives’ to male combatants. The Appeals Chamber argued in the *AFRC* case (*Brima et al*) and the *RUF* case (*Sesay et al*) that such ‘forced marriages’ constitute ‘other inhumane acts’. It held that the conduct is not subsumed by the more specific crime of sexual slavery, since ‘forced marriage’ is not ‘predominantly a sexual crime’ and involves lasting stigma and traumatisa-  
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 tion caused by ‘forced conjugal association with another person’ and ‘a relationship of exclusivity between the “husband” and the “wife”’<sup>589</sup>. This interpretation was contested by the *Taylor* Trial Chamber which argued that this conjugal association is ‘not marriage in the universally understood sense’ and should rather ‘be considered a conjugal form of enslavement’, which ‘is better conceptualised as a distinctive form of the crime of sexual slavery’<sup>590</sup>. The ECCC dealt with the ‘forced marriage’ policy of the Khmer Rouge regime which forced men and women to enter into conjugal relations in formal mass ceremonies, in order to secure loyalty to the regime and control over reproduction. It relied on the jurisprudence of the SCSL Appeals Chamber, in order to include ‘forced marriage’ as an ‘other inhumane act’ in Case 002, arguing that ‘victims were forced to enter into conjugal relationships in coercive circumstances’<sup>591</sup>.

Existing ICC jurisprudence is closer to the reasoning of the SCSL Trial Chamber in *Taylor*, at least with respect to ‘bush’ marriages or other informal bonds of conjugal association. This may be explained by the specific provisions on enslavement, sexual slavery and ‘other sexual violence’ in the Statute, as well as the broad conception of enslavement (see above mn 43). PTC I held that ‘sexual slavery also encompasses situations where women and girls are forced into “marriage”, domestic servitude or other forced labour involving compulsory sexual activity, including rape, by their captors’<sup>592</sup>. It clarified that sexual slavery can include ‘practices such as the detention of women in “rape camps” or “comfort stations”, forced temporary “marriages” to soldiers and other practices involving the treatment of women as chattel, and as such, violations of the peremptory norm prohibiting slavery’<sup>593</sup>. But this does not preclude the recognition of ‘forced marriage’ as ‘an other inhumane act’ in circumstances where the specific nature and gravity of the act goes beyond an attack on ownership and sexual integrity. One illustration might be the Khmer Rouge policy which forcibly conferred a formal bond of marriage, in order to weaken family structures and deprive people of their autonomy and self-determination. Such conduct clearly involved an attack against the institution of marriage as such.

<sup>586</sup> DeFalco (2011) 5 *IJTJ* 142, 153–155.

<sup>587</sup> See Rottensteiner (1999) 835 *IRRC* 555–582.

<sup>588</sup> Oosterveld, (2011) 2 *JHumLStud* 127; Jain (2008) 6 *JICJ* 1013; Goodfellow, (2011) 11 *ICLRev* 831; Haenen (2013) 13 *ICLRev* 895.]

<sup>589</sup> *Prosecutor v. Brima et al*, No. SCSL-04-16-A, Judgment, Appeals Chamber, 22 February 2008, para. 195; see also *Prosecutor v. Sesay et al*, No. SCSL-04-15-A, Judgment, Appeals Chamber, 26 October 2009, paras. 735 and 736.

<sup>590</sup> *Prosecutor v. Taylor*, No. SCSL-03-01-T, Judgement, Trial Chamber, 18 May 2012, paras. 427 and 429.]

<sup>591</sup> *Prosecutor v. Nuon Chea et al*, Case 002, No. 002/19-09-2007-ECCC-OCIJ, Closing Order, 15 September 2010, paras. 1442 and 1443; *Prosecutor v. Nuon Chea and Khieu Samphan*, Case 002/01, No. 002/19-09-2007-ECCCITC, Decision on Additional Severance of Case 002 and Scope of Case 002/02, 4 April 2014, para. 33.

<sup>592</sup> *Prosecutor v. Katanga and Ngudjolo Chui*, ICC-01/04-01/07-717, 30 September 2008 (PURL: <https://www.legal-tools.org/doc/67a9ec/>), para. 431.

<sup>593</sup> *Ibid*.

- 101 **bb) Intentionally causing results.** The purpose of this phrase was to avoid a possible violation of the principle *nullum crimen sine lege* by limiting the clause of other inhumane acts. By limiting this provision to acts ‘intentionally causing great suffering, or serious injury to body or to mental or physical health’, the inhumanity of the act must be judged both by its consequences and by the (inhumane) nature of the act as such. Therefore, acts whose consequences and nature were not similar in character to those of the acts listed in paragraph 1 (a) – (i) might not be covered by paragraph (k). In addition to this statutory expression of the mental element of the crime against humanity of other inhumane acts, the third element of this crime in the Elements of Crimes is that ‘[t]he perpetrator was aware of the factual circumstances that established the character of the act’.
- 102 **aaa) Intention.** In contrast to the limitation included in the 1996 Draft Code, paragraph 1 (k) seems to narrow its scope further in that it only penalizes inhumane acts which ‘*intentionally* caus[e] great suffering or serious injury to body or to mental or physical health, in contrast to the wording introduced by the ILC which did not require an element of intent. The Trial Chamber in the *Tadić* case found that the accused ‘*intended ... to inflict severe damage to the victim’s physical integrity and human dignity ... [and] that the accused [in other instances] intentionally assisted directly and substantially in the common purpose of inflicting physical suffering upon them ...*’, while reference was made to the *1996 ILC Report*<sup>594</sup>. Paragraph 1 (k) seems to follow the interpretation of the ICTY and excludes inhumane acts which cause the enumerated consequences without intent<sup>595</sup>. The phrase ‘intentionally causing great suffering, or serious injury to body or to mental or physical health’ very much resembles the wording of one of the grave breaches of the Geneva Conventions: ‘wilfully causing great suffering or serious injury to body or health’<sup>596</sup>, where the word ‘wilfully’ has been replaced by ‘intentionally’<sup>597</sup>.
- 103 **bbb) ‘great suffering, or serious injury to body or to mental or physical health’.** ‘Other inhumane acts’ in the 1996 Draft Code were limited to those which ‘severely damage physical or mental integrity, health or human dignity ...’. The jurisprudence of the *ad hoc* tribunals applied the same standards for the war crime of inhumane and cruel treatment and other inhumane acts.<sup>598</sup> According to the Trial Chamber Judgment in the *Tadić* case these acts must in fact cause injury to a human being in terms of physical or mental integrity, health or human dignity. The phrase in paragraph 1 (k) differs partly from this approach. It does not mention serious injury to physical or mental integrity, nor human dignity, but mentions serious injury to *body*, or to mental or physical *health*<sup>599</sup>. It makes reference to ‘great suffering’, as opposed to ‘severe pain or suffering’, used in the context of the definition of torture under article 7 (2) (e).

Guidance on the meaning of suffering can be drawn from the war crime of willfully causing great suffering under article 8 (2) (iii). According to the Trial Chamber in the *Čelebići* case, citing the Commentaries to the Geneva Conventions<sup>600</sup>, the suffering incurred

<sup>594</sup> *Ibid.*, para. 730 (emphasis added).

<sup>595</sup> Thus, this provision is different from article 7 para. 2 (e) defining torture which requires proof of intent to commit the pain or suffering, but not an intent that the pain or suffering be severe (see mn 131).

<sup>596</sup> See Geneva Convention I, article 50, Geneva Convention II, article 51, Geneva Convention III, article 130, Geneva Convention IV, article 147.

<sup>597</sup> The concept of willfulness is broader than intention as it includes reckless behaviour. See *supra* note 223.

<sup>598</sup> See *Prosecutor v. Krnojelac*, IT-97-25-T, 15 March 2002, para. 130; *Prosecutor v. Gotovina et al.*, No. IT-06-90-T, Judgement, Trial Chamber, 15 April 2011, para. 1791.

<sup>599</sup> The Trial Chamber of the ICTR considered that article 3 of the ICTR Statute, confers jurisdiction to prosecute persons for ‘various inhumane acts which constitute crimes against humanity’. As one of the four essential elements of crimes against humanity under the ICTR Statute, ‘the act must be inhumane in nature and character, causing great suffering, or serious injury to body or to mental or physical health’ (*Prosecutor v. Akayesu*, ICTR-96-4-T, 2 September 1998, para. 578) The Rome Statute might have been an inspiration for this requirement, apart from the condition that the act must be inhumane in nature and character; the source of both requirements has not been mentioned by the Trial Chamber of the ICTR.

<sup>600</sup> *Prosecutor v. Delalić et al. (Čelebići)*, IT-96-21-T, 16 November 1998, para. 509.

within the meaning of ‘causing great suffering’ includes moral suffering, and can thus be both physical and mental. ‘Wilfully causing great suffering or serious injury to body or health’, according to this judgment,

‘constitutes an act or omission that is intentional, being an act which, judged objectively, is deliberate and not accidental, which causes serious mental or physical suffering or injury. It covers those acts that do not meet the purposive requirements for the offence of torture, although clearly all acts constituting torture could also fall within the ambit of this offence’<sup>601</sup>.

In this judgment, the Trial Chamber also found that all acts or omissions found to constitute torture or wilfully causing great suffering or serious injury to body or health would also constitute the grave breach of ‘inhumane treatment’ but noted that this category of acts is not limited to those acts already incorporated in the foregoing two. Inhumane treatment would extend further to acts ‘which violate the basic principle of humane treatment, *particularly the respect for human dignity*’<sup>602</sup>. It could therefore be argued, *a contrario*, that the offence of ‘[wilfully] intentionally causing great suffering or serious injury to body or to mental or physical health’ does not cover acts that cause injury in terms of human dignity insofar as there is a difference between attacks on human dignity and moral suffering.

*Ad hoc* tribunal jurisprudence made it clear that ‘serious harm need not cause permanent and irremediable harm, but it must involve harm that goes beyond temporary unhappiness, embarrassment or humiliation’<sup>603</sup>. It must be harm ‘that results in a grave and long-term disadvantage to a person’s ability to lead a normal and constructive life’<sup>604</sup>.

In first ICC jurisprudence, PTC II considered that ‘brutal killings and mutilations in front of the eyes of victims’ family members’ caused ‘serious mental suffering’<sup>605</sup>. The Chamber failed to recognize ‘serious injury to mental health’ in relation attacks on property (e.g., homes, businesses), carried out as a means to ensure forcible transfer of population. It argued that the loss of property ‘in itself’ must establish the ‘occurrence, the type and the intensity’ of the required mental suffering caused<sup>606</sup>. This jurisprudence is in line with calls to distinguish other inhumane acts from ‘basic human rights violations’<sup>607</sup>. It deviates from attempts to artificially overstretch the application of paragraph 1 (k), such as in the context of the Saddam Hussein trial, where attacks against infrastructure, orchards, and date palms in the city of Ad Bujayl were qualified as other inhumane acts by Iraqi High Tribunal<sup>608</sup>.

**cc) Special remarks.** The phrase ‘intentionally causing great suffering, or serious injury to body or to mental or physical health’ is an effort to define this paragraph in a way which would be consistent with the principle of *nullum crimen sine lege*. According to article 22 para. 1, a person shall not be held criminally responsible under this Statute unless the conduct in question constitutes, at the time it takes place, a crime within the jurisdiction of the Court. Assuming that this last paragraph (k) is necessary to cover conduct which has not been criminalised in the preceding paragraphs of article 7, the language used would not violate article 22 para. 1 of the Statute in formal terms. Indeed, this provision is no more

<sup>601</sup> *Ibid.*, para. 511. ‘The offence of wilfully causing great suffering or serious injury to body or health is distinguished from torture primarily on the basis that the alleged acts or omissions need not be committed for a prohibited purpose such as is required for the purpose of torture’, *ibid.*, para. 442.

<sup>602</sup> *Ibid.*, paras. 442, 544. The offence of ‘cruel treatment under common article 3 carries the same meaning as inhumane treatment in the context of the “grave breaches” provisions [...]. [This] latter offence extends to all acts or omissions which cause serious mental or physical suffering or injury or constitute a serious attack on human dignity’, *ibid.*, paras. 443, 552.

<sup>603</sup> *Prosecutor v. Kristić*, IT-98-33-T, 2 August 2001, para. 513; *Prosecutor v. Akayesu*, ICTR-96-4-T, 2 September 1998, para. 502.

<sup>604</sup> *Ibid.*

<sup>605</sup> *Prosecutor v. Muthaura, Kenyatta and Hussein Ali*, ICC-01/09-02/11-382-Red, 23 January 2012 (PURL: <https://www.legal-tools.org/doc/4972c0/>), paras. 270–274.

<sup>606</sup> *Ibid.*, para. 279.

<sup>607</sup> See Ambos, *Treatise on ICL II* (2014) 115–116.

<sup>608</sup> See Blindermann (2009) 30 UPaJIL 1239.

broadly worded than other provisions such as the crime against humanity of torture, war crimes of torture and inhuman treatment, crime against humanity of imprisonment or other severe deprivation of physical liberty in violation of fundamental rules of international law or serious violations of common article 3 of the Geneva Conventions, all of which have been included in the Rome Statute and in almost all national implementing legislation or draft implementing legislation (see mn 98)<sup>609</sup>. Its subsidiary character has been recognised in emerging ICC jurisprudence. Article 22 para. 2 of the Statute nevertheless requires strict construction of a definition of a crime and prohibits extending a definition of a crime by analogy<sup>610</sup>. On the extent to which the wording in paragraph (k), as well as open-ended formulations in other paragraphs, could be regarded as allowing for such a prohibited interpretation, see article 22 para. 2 mn 36 *et seq.*

## II. Paragraph 2: Definitions of crimes or their elements

### 1. 'Attack'

- 105 The delegates at the Rome Conference decided to include this definition of 'attack', which had not been proposed in any of the options during the drafting process. Its incorporation signifies that the delegates wished to further specify the scope of application for article 7<sup>611</sup>. From the jurisprudential definitions of the attack – from the *Akayesu* Trial Chamber<sup>612</sup>, which has been adopted by subsequent case law<sup>613</sup>, to the one of the *Kenya* ICC Pre-Trial Chamber which considered an 'attack' as 'a campaign or operation carried out against the

<sup>609</sup> A similar issue arose in the drafting of common article 3 of the Geneva Conventions. The ICRC commentary on this article eloquently disposes of any concerns about legality that apply with equal force to the long-established category of other inhumane acts:

'Lengthy definition of expressions such as "humane treatment" or "to treat humanely" is unnecessary, as they have entered sufficiently into current parlance to be understood. It would therefore be pointless and even dangerous to try to enumerate things with which a human being must be provided for his normal maintenance as distinct from that of an animal, or to lay down in detail the manner in which one must behave towards him in order to show that one is treating him "humanely", that is to say as a fellow human being and not as a beast or a thing. The details of such treatment may, moreover, vary according to circumstances – particularly the climate – and to what is feasible.

On the other hand, there is less difficulty in enumerating things which are incompatible with humane treatment. That is the method followed in the Convention when it proclaims four absolute prohibitions. The wording adopted could not be more definite: "To this end, the following acts 'are' and 'shall remain prohibited at any time and in any place whatsoever'".

No possible loophole is left; there can be no excuse, no attenuating circumstances. Items (a) and (c) concern acts which world public opinion finds particularly revolting – acts which were committed frequently during the Second World War. One might ask if the list is a complete one. At one stage of the discussions additions were considered – with particular reference to the biological "experiments" of evil memory, practiced on inmates of concentration camps. The idea was rightly abandoned, since biological experiments are among the acts covered by (a). Besides, it is always dangerous to try to go into too much detail – especially in this domain. However, much care was taken in establishing a list of all the various forms of infliction, one would never be able to catch up with the imagination of future torturers who wished to satisfy their bestial instincts; and the more specific and complete a list tries to be, the more restrictive it becomes. The form of wording adopted is flexible and, at the same time, precise. The same is true of item (c). Item (b) (taking of hostages) and (d) (sentences and executions without a proper trial) prohibit practices which are fairly general in wartime.'

International Committee of the Red Cross, *Commentary on Geneva Convention for the Amelioration of the Condition of the Wounded and Sick in Armed Forces in the Field* 53–54 (1952).

<sup>610</sup> 'The definition of a crime shall be strictly construed and shall not be extended by analogy. In case of ambiguity, the definition shall be interpreted in favour of the person being investigated, prosecuted or convicted.'

<sup>611</sup> On the negotiations see, for example, Hwang (1998) 22 *FordhamILJ* 457, 497–501; on the limiting function of the 'attack' with regard to the Court's jurisdiction, cf. Paust (2010) 43 *John Marshall L Rev.* 691 *et seq.*

<sup>612</sup> See *Prosecutor v. Akayesu*, No. ICTR-96-4-T, Judgment, Trial Chamber, 2 September 1998 <<http://www.legal-tools.org/doc/b8d7bd/>> accessed 30 January 2015, para. 581 ('The concept of attack may be defined as an unlawful act of the kind enumerated in article 3(a) to (i) of the Statute, like murder, extermination, enslavement etc.... orchestrated on a massive scale or in a systematic manner').

<sup>613</sup> For case law references, see Ambos, *Treatise on ICL II* (2014) 58, fn. 94.



civilian population'<sup>614</sup> – it becomes clear that an attack has to at least involve *multiple acts* and emanate from or contribute to a State or organisational *policy*<sup>615</sup>.

By 'multiple acts' is meant more than a single, isolated act<sup>616</sup>. The use of the phrase 'acts referred to in paragraph 1' does not only refer to an accumulation of the underlying acts contained in paragraph 1<sup>617</sup> ('any act', for example, murder(s), rape(s), and torture(s)), but also encompasses the specific incidents of one particular crime, such as, a particular murder or rape, which are incorporated in each specific generic act. 'Multiple acts', thus, refers either to more than one generic act, even though this is not required, or to more than a few isolated incidents that would fit under one or more of the enumerated acts<sup>618</sup>. While the attack requires a multiplicity of (criminal) acts, it does not necessarily need a multiplicity of actors, nor does a single perpetrator have to act at different times<sup>619</sup>. For example, if a single perpetrator poisons the water of a large population, he would thereby commit a multiplicity of killings (and thus multiple criminal acts) with a single (natural) act<sup>620</sup>. Such an interpretation is compatible with the requirement of that the attack be widespread or systematic. Even a systematic attack has to involve more than a few incidents. Similarly, a widespread attack should, and by its very nature is likely to, be based upon or carry forward a policy. A widespread attack need not, however, be systematic and *vice versa*. As described above with regard to the chapeau, each term has distinct and different qualities, which, if satisfied, render the offences a crime against humanity.

a) 'course of conduct involving the multiple commission of acts'. The phrase 'course of conduct' has widespread and systematic connotations<sup>621</sup>. In general, a 'course of conduct' does not only involve isolated and random acts<sup>622</sup>, but multiple acts as described above, i. e.,

<sup>614</sup> See *Situation in the Republic of Kenya*, No. ICC-01/09-19, Decision on the Authorisation of Investigation, Pre-Trial Chamber, 31 March 2010 <<http://www.legal-tools.org/doc/338a6f/>> accessed 30 January 2015, para. 80; *Prosecutor v. Bemba*, No. ICC-01/05-01/08-424, Confirmation Decision, Pre-Trial Chamber, 15 June 2009, <<http://www.legal-tools.org/doc/07965c/>> accessed 30 January 2015, para. 75; *Situation in the Republic of Côte d'Ivoire*, No. ICC-02/11-14-Corr, Corrigendum to 'Decision Pursuant to article 15 of the Rome Statute on the Authorisation of an Investigation', 15 November 2011 <<http://www.legal-tools.org/doc/e0c0eb/>> accessed 30 January 2015, para. 31; *Prosecutor v. Ruto et al.*, No. ICC-01/09-01/11-373, Confirmation Decision, Pre-Trial Chamber, 23 January 2012, <<http://www.legal-tools.org/doc/96c3c2/>> accessed 30 January 2015, para. 109.

<sup>615</sup> See *Blé Goudé*, ICC-02/11-02/11-186, Confirmation Decision, 11 Dec. 2014, paras. 127 ('a course of conduct involving the multiple commission of acts') and 128 ('course of conduct against the civilian population was carried out pursuant to a State or organisational policy'); also Chaitidou, in: Bergsmo and Song (eds.), *On the Proposed Crimes against Humanity Convention* (2014) 47, 65.

<sup>616</sup> See Clark, in: *id.*, Feldbrugge and Pomorski (eds.), *International and National Law in Russia and Eastern Europe* (2001) 139, 152; Gómez Benítez (2001) 9 *Cuadernos De Derecho Judicial* 1, 21; Jurovics, in: Fernandez and Pacreau (eds.), *Statut de Rome de la Cour Pénale Internationale: Commentaire article par article* (2012) 417, 471-2; Rodenhäuser (2014) 27 *LeidenJIL* 913, 924 ('an element of scale'); cf. also *Prosecutor v. Bemba*, No. ICC-01/05-01/08-424, Confirmation Decision, Pre-Trial Chamber, 15 June 2009, <<http://www.legal-tools.org/doc/07965c/>> accessed 30 January 2015, para. 81.

<sup>617</sup> See *Prosecutor v. Kayishema and Ruzindana*, No. ICTR-95-1-T, Judgment, Trial Chamber, 21 May 1999, <<http://www.legal-tools.org/doc/0811c9/>> accessed 30 January 2015, para. 96.

<sup>618</sup> As stated earlier, an accused can be held criminally responsible for crimes against humanity for committing a single act, such as a single rape, within a context of a widespread or systematic attack which may involve the commission of several of the enumerated acts.

<sup>619</sup> See Chesterman (2000) 10 *DukeComp&IL* 307, 316; Werle, *Völkerstrafrecht* (2012) mn 871; *id.* and Jessberger, *Principles of International Criminal Law* (2014) 337-8; Borsari, *Diritto Punitivo Sovranazionale come Sistema* (2007) 310;.

<sup>620</sup> See Ambos, *Treatise on ICL II* (2014) 59.

<sup>621</sup> See *Prosecutor v. Gbagbo*, No. ICC-02/11-01/11-656-Red, Decision on the Confirmation of Charges, Pre-Trial Chamber I, 12 June 2014, <<http://www.legal-tools.org/doc/5b41bc/>> accessed 30 January 2015, para. 208 ('involves – although to a lesser extent – quantitative and qualitative aspects that may also be relevant for the establishment of the 'widespread' or 'systematic' nature of the attack under article 7(1) of the Statute').

<sup>622</sup> See *Prosecutor v. Tadić*, No. IT-94-1-T, Opinion and Judgment, Trial Chamber, 7 May 1997, <<http://www.legal-tools.org/doc/0a90ae/>> accessed 30 January 2015, para. 644, which held that the requirement of the acts being directed against any civilian population 'ensures that what is to be alleged will not be one particular act, but, instead, a course of conduct'. cf. also Clark, in: *id.*, Feldbrugge and Pomorski (eds.), *International and National Law in Russia and Eastern Europe* (2001) 139, 152; Gómez Benítez (2001) 9 *Cuadernos de Derecho*

more than a few isolated incidents or acts<sup>623</sup>. The occurrence, however, of multiple acts alone would not be sufficient to correctly define the term, since an attack is something more than ‘a mere aggregate of random acts’<sup>624</sup>; instead a certain pattern is required<sup>625</sup>. The existence of a certain ‘degree of planning, direction or organisation by a group or organisation’<sup>626</sup> is the necessary nexus among individual and, otherwise, acts unrelated with each other, rendering them crimes against humanity.

- 108 b) ‘against any civilian population’. This term has the same meaning as ‘any civilian population’ used in the chapeau and explained there above.
- 109 c) **Connection with State or organisational policy.** It is controversial whether there is a requirement in customary international law that a crime against humanity be committed pursuant to or in furtherance of a plan or policy<sup>627</sup>. No international instrument adopted

*Judicial* 1, 21; Jurovics, in: Fernandez and Pacreau (eds.), *Statut de Rome de la Cour Pénale Internationale: Commentaire article par article* (2012) 417, 471–2.

<sup>623</sup> This consequence is sometimes also attributed to the qualifiers ‘systematic’ or ‘widespread’; crit. thereto Robinson, in: Bergsmo and Song (eds.), *On the Proposed Crimes against Humanity Convention* (2014) 103, 117 *et seq.*, especially 119–20, pointing out the necessity of the policy element ‘to do the job of screening out unconnected ordinary crime’.

<sup>624</sup> See *Prosecutor v. Gbagbo*, No. ICC-02/11-01/11-656-Red, Decision on the Confirmation of Charges, Pre-Trial Chamber I, 12 June 2014, <<http://www.legal-tools.org/doc/5b41bc/>> accessed 30 January 2015, para. 209 (‘embodies a systemic aspect as it describes a series or overall flow of events as opposed to a mere aggregate of random acts’).

<sup>625</sup> *Prosecutor v. Bemba*, No. ICC-01/05-01/08-424, Confirmation Decision, Pre-Trial Chamber, 15 June 2009, <<http://www.legal-tools.org/doc/07965c/>> accessed 30 January 2015, para. 81; *Prosecutor v. Gbagbo*, No. ICC-02/11-01/11-656-Red, Decision on the Confirmation of Charges, Pre-Trial Chamber I, 12 June 2014, <<http://www.legal-tools.org/doc/5b41bc/>> accessed 30 January 2015, para. 209; Chaitidou, in: Bergsmo and Song (eds.), *On the Proposed Crimes against Humanity Convention* (2014) 47, 66–7.

<sup>626</sup> *Prosecutor v. Gbagbo*, No. ICC-02/11-01/11-656-Red, Decision on the Confirmation of Charges, Pre-Trial Chamber I, 12 June 2014, <<http://www.legal-tools.org/doc/5b41bc/>> accessed 30 January 2015, para. 210; also *Blé Goudé*, ICC-02/11-02/11-186, Confirmation Decision, 11 Dec. 2014, para. 146 (‘multiple violent operations tied together mainly by the overarching coordinating role exercised by Laurent Gbagbo’). On the balancing between ‘multiple acts’ and ‘systematic’, on the one hand, and ‘policy’ and ‘widespread’, on the other, in order to distinguish crimes against humanity from ordinary crimes, see Robinson, in: Bergsmo and Song (eds.), *On the Proposed Crimes against Humanity Convention* (2014) 103, 121.

<sup>627</sup> See, for example, Bassiouni, *Crimes Against Humanity in International Criminal Law* (1999) 243 *et seq.* (asserting that the international element of crimes against humanity generally is state action or policy); *id.*, *Crimes against Humanity: Historical Evolution and Contemporary Application* (2011) 41; Robinson (1999) 93 *AJIL*. 43, 48–51; Paust (2010) 43 *John Marshall L.Rev.* 681, 693 arguing that this ‘additional requirement’ is ‘limiting of ICC jurisdiction over customary crimes against humanity’; further on this discussion, see Robinson, in: Bergsmo and Song (eds.), *On the Proposed Crimes against Humanity Convention* (2014) 103, 108 *et seq.* However, the ILC, which studied the question for half a century did not include a policy requirement in any of its Draft Codes, but only the less onerous threshold that crimes against humanity must be ‘instigated or directed by a Government or by any organisation or group’. 1996 *ILC Draft Code*, article 18. The statement in *Prosecutor v. Tadić*, No. IT-94-1-T, Opinion and Judgment, Trial Chamber, 7 May 1997, <<http://www.legal-tools.org/doc/0a90ae/>> accessed 30 January 2015, that the phrase ‘directed against any civilian population’ in article 5 of the *ICTY Statute* confirmed that ‘there must be some form of a governmental, organisational or group policy to commit these acts’, para. 644, has been squarely rejected by subsequent *ICTY* jurisprudence (see main text). National jurisprudence offers little support for a policy requirement in crimes against humanity. The statement by the Netherlands *Hoge Raad* (Supreme Court) in the 1980 *Menten* case, (1981) 75 *ILR* 362, 362–363, that ‘the concept of “crimes against humanity” also requires that the crimes in question form part of a system based on terror or constitute a link in a consciously pursued policy directed against particular groups of peoples’, even if a generally accurate description of the crimes against humanity committed by the Nazis and their collaborators, is not a correct statement of international law with respect to either alternative. The requirement articulated by the French *Cour de Cassation* in the *Barbie*, *Cass.Crim.*, 20 Dec. 1985, 1985 *Bull.Crim.*, No. 407, at 1053, and *Touvier* cases, *Cass.Crim.*, 27 Nov. 27, 1992, 1992 *Bull.Crim.* No. 394, at 1085, that acts must have been affiliated with or accomplished in the name of ‘a state practicing a policy of ideological hegemony’ to constitute crimes against humanity is simply a restrictive interpretation of national legislation which had the result of excluding or minimizing criminal responsibility of Vichy French officials for crimes against humanity and it has been thoroughly discredited to the extent that it purports to state international law. See, for example, Sadat Wexler (1994) 32 *Colum. J.Transnatl.* 289. Similarly, the statement by the Supreme Court of Canada in its widely criticised judgment in the *Finta* case that ‘[w]hat distinguishes a crime against humanity from any other criminal offence under the Canadian *Criminal Code* is that the cruel and terrible actions which are the essential elements

before or after the *Rome Statute* has included such a requirement<sup>628</sup>. In any case, the omission of the policy element in the law of an international or hybrid criminal tribunal does not mean that this element cannot be derived from the requirement of the attack, at least in its systematic form<sup>629</sup>. For any kind of systematic conduct requires, however small, a degree of organisation which, in turn, requires a policy and an entity powerful enough to implement it. Thus, the 'systematic attack' element indeed inevitably implies a policy element. Against this background, it is not surprising that subparagraph 2(a) explicitly recognizes this element. The codification reflects the move, described above, from the war nexus requirement to state or organisational authority.

As to the form of the policy, there is no great controversy. It has been repeatedly stated by the *ad hoc* tribunals that '[t]here is no requirement that this policy must be adopted formally as the policy of a state'<sup>630</sup>, nor must the policy or plan 'necessarily be declared expressly or even stated clearly and precisely'<sup>631</sup>. Thus, in sum, an implicit or *de facto* policy is sufficient. This has also been confirmed by the ICC.<sup>632</sup>

of the offence were undertaken in pursuance of a policy of discrimination or persecution of an identifiable group or race', [1994] 1 *Sup.Ct.Rep.* 701, 814, is not only an interpretation of national legislation, but an incorrect statement of international law, which does not require that crimes against humanity be based on any discrimination, apart from the specific crime of persecution.

<sup>628</sup> None of the instruments defining crimes against humanity adopted before 1998 include a plan or policy requirement. See article 6 (c) of the *Charter of the International Military Tribunal, annexed to the London Agreement* (Nuremberg Charter), 8 Aug. 1945.; article II para. 1 (c) of *Punishment of Persons Guilty of War Crimes, Crimes Against Peace and against Humanity* (Allied Control Council Law No. 10), 20 Dec. 1945; article 5 (c) of the *Tokyo Charter*, principle VI (c) of the 1950 *Principles of International Law Recognised in the Charter of the Nuremberg Tribunal and in the Judgment of the Tribunal* (Nuremberg Principles), ILC Report on Principles of the Nuremberg Tribunal, 29 July 1950, 5 UN GA OR Supp. (No. 12) 11, UN Doc A/1316 (1950); article 2 para. 10 (inhuman acts) of the 1954 ILC Draft Code; the 1968 *Convention on the Non-Applicability of Statutory Limitations for War Crimes and Crimes against Humanity*, adopted by GA Res. 2391 (XXIII) of 26 Nov. 1968, article 1 (b); the 1973 International Convention on the Suppression and Punishment of the Crime of Apartheid (Apartheid Convention), adopted in GA Res 3068 (XXVIII), 30 Nov. 1973; article 5 of the 1993 *ICTY Statute*; article 3 of the 1994 *ICTR Statute*, note 10; and article 18 of the 1996 ILC Draft Code. Similarly, since the *Rome Statute* was adopted, none of the instruments defining crimes against humanity have included such a requirement. See *UNTAET Regulation 2000/15* (establishing the Special Panels for Serious Crimes, Dili, East Timor), 6 June 2000, article 5; *Statute of the Special Court for Sierra Leone* (Sierra Leone Statute), article 2; *Cambodian Law on the Establishment of the Extraordinary Chambers*, with inclusion of amendments as promulgated on 27 Oct. 2004 (NS/RKM/1004/006). Indeed, there is no hint of such a requirement in any of the instruments adopted prior to the Second World War concerning laws or principles of humanity of such a requirement. See, for example, Declaration Renouncing the Use, in Time of War, of Explosive Projectiles under 400 Grammes Weight (1868 Declaration of St. Petersburg), reprinted in: A. Roberts/R. Guelff (eds.), *Documents on the Laws of War* (2<sup>nd</sup> ed. 1989) 30, 31; *Declaration of France, Great Britain and Russia of 24 May 1915*, 1915, quoted in: E. Schwebel, *Crimes against Humanity*, 23 BYbIL (1946) 178, 181; and the Report Presented to the Preliminary Peace Conference (1919 Peace Conference Commission Report), Versailles, Mar. 1919, Conference of Paris, Carnegie Endowment for International Peace, Division of International Law, Pamphlet No. 32, Annex.

<sup>629</sup> This part draws on Ambos, *Treatise on ICL II* (2014) 67–76; cf. also Chaitidou, in: Bergsmo and Song (eds.), *On the Proposed Crimes against Humanity Convention* (2014) 47, 66–7; distinguishing between 'policy' and 'systematic', Robinson, in: Bergsmo and Song (eds.), *On the Proposed Crimes against Humanity Convention* (2014) 103, 114 *et seq.* (arguing that "Policy" does not necessarily require deliberate planning, direction or orchestration; it requires only that some State or organisation must have at least encouraged the attack...').

<sup>630</sup> See *Prosecutor v. Akayesu*, No. ICTR-96-4-T, Judgment, Trial Chamber, 2 Sep. 1998, para. 580; also *Prosecutor v. Tadić*, No. IT-94-1-T, Opinion and Judgment, Trial Chamber, 7 May 1997, <<http://www.legal-tools.org/doc/0a90ae/>> accessed 30 January 2015, para. 653; *Prosecutor v. Rutaganda*, No. ICTR-96-3-T, Judgment, Trial Chamber, 6 December 1999, <<http://www.legal-tools.org/doc/f0dbbb/>> accessed 30 January 2015, para. 69; see *Prosecutor v. Musema*, No. ICTR-96-13-A, Judgment and Sentence, Trial Chamber, 27 January 2000, <<http://www.legal-tools.org/doc/1fc6ed/>> accessed 30 January 2015, para. 204; *Prosecutor v. Kupreskić et al.*, No. IT-95-16-T, Judgment, Trial Chamber, 14 Jan. 2000, para. 551; see *Prosecutor v. Blaškić*, No. IT-95-14-T, Judgment, Trial Chamber, 3 March 2000, <<http://www.legal-tools.org/doc/e1ae55/>> accessed 30 January 2015, para. 204. See also Robinson, in: Bergsmo and Song (eds.), *On the Proposed Crimes against Humanity Convention* (2014) 103, 122 *et seq.*

<sup>631</sup> See *Prosecutor v. Blaškić*, No. IT-95-14-T, Judgment, Trial Chamber, 3 March 2000, <<http://www.legal-tools.org/doc/e1ae55/>> accessed 30 January 2015, para. 205.

<sup>632</sup> See *Prosecutor v. Katanga and Ngudjolo*, No. ICC-01/04-01/07-717, Confirmation Decision, Pre-Trial Chamber, 30 September 2008, <<http://www.legal-tools.org/doc/67a9ec/>>, para. 396; *Prosecutor v. Bemba*, No.

The question of the content of the policy is much more complex. Of course, the policy must be to commit crimes against humanity<sup>633</sup>. This does not answer, however, the question of what the precise expression of this policy need entail, that is, whether it must manifest itself by active conduct or whether omission (acquiescence, tolerance) suffices. While an active policy seems to be implicit in the systematic qualifier – how can something be planned or organised without the respective active policy of the entity behind it? – it is less clear how a policy can exist with regard to a multiplicity of criminal acts (i.e. a widespread attack) which are not organised or planned (i.e. systematic). This seems only possible if a policy can also consist of an omission, for example in the deliberate denial of protection for the victims of widespread, but unsystematic crimes, thereby tolerating these crimes<sup>634</sup>. In conclusion, the contents of the policy depend on the nature of the attack as systematic or widespread. In the former case, the policy would provide at least certain guidance regarding the prospective victims in order to coordinate the activities of the single perpetrators. A systematic attack, thus, requires active conduct from the side of the entity behind the policy without necessarily amounting to extensive or repeated activity. Rather, what counts is whether the conduct suffices to trigger and direct the attack<sup>635</sup>. A widespread attack which is not at the same time systematic is one that lacks any guidance or organisation. The policy behind such an attack may be one of mere deliberate inaction, tolerance, or acquiescence.

- 110 Clearly, the policy need not be one of a State. It can also be an organisational policy. Non-state actors or private individuals who exercise *de facto* power can constitute the entity behind the policy<sup>636</sup>. This provision in the article reflects the contemporary position that individuals not linked to a state or its authorities can commit crimes under international law<sup>637</sup>. It is controversial, however, what kind of non-state entities are included and what criteria they are to fulfil<sup>638</sup>. According to the case law<sup>639</sup>, every level in the respective state or other organisation which, as such, exercises *de facto* power in a given territory can also develop an explicit or

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ICC-01/05-01/08-424, Confirmation Decision, Pre-Trial Chamber, 15 June 2009, <<http://www.legal-tools.org/doc/07965c/>> accessed 30 January 2015, para. 81. On the case law re policy see also Robinson, in: Bergsmo and Song (eds.), *On the Proposed Crimes against Humanity Convention* (2014) 103, 126 *et seq.*

<sup>633</sup> Cf. for example, *Prosecutor v. Tadić*, No. IT-94-1-T, Opinion and Judgment, Trial Chamber, 7 May 1997, <<http://www.legal-tools.org/doc/0a90ae/>> accessed 30 January 2015, para. 653.

<sup>634</sup> For examples thereof, cf. Ambos, *Treatise on ICL II* (2014) 70; in the same vein, Robinson, in: Bergsmo, and Song (eds.), *On the Proposed Crimes against Humanity Convention* (2014) 103, 130 *et seq.*; cf. also Rodenhäuser (2014) 27 *LeidenJIL* 913, 925-6.

<sup>635</sup> Thus, for example, the identification of possible victims by the authorities and an (implicit or explicit) announcement of impunity from prosecution for crimes against this group would be sufficient.

<sup>636</sup> See 1991 ILC Draft Code, 266.

<sup>637</sup> See 1996 ILC Draft Code, 94 and *Prosecutor v. Tadić*, No. IT-94-1-T, Opinion and Judgment, Trial Chamber, 7 May 1997, <<http://www.legal-tools.org/doc/0a90ae/>> accessed 30 January 2015, para. 654: 'the law in relation to crimes against humanity has developed to take into account forces which, although not those of the legitimate government, have de facto control over, or are able to move freely within, defined territory'. See also *Kadić v. Karadžić*, 70 F.3d 232 (2<sup>nd</sup> Cir. 1995), cert. denied, 64 U.S.L.W. 3832 (18 June 1996) in which it was held that non-state actors could be held liable for the commission of genocide, the most serious form of crimes against humanity; cf. most recently *Prosecutor v. Katanga*, No. ICC-01/04-01/07-3436, Jugement Rendu en Application de l'Article 74 du Statut, Trial Chamber, 7 March 2014, <<http://www.legal-tools.org/doc/9813bb/>> accessed 30 January 2015, para. 1119. On this development of the scope of crimes against humanity, from the involvement of a *de jure* state to actors with '*de facto* structure and capacity', cf. Rodenhäuser (2014) 27 *LeidenJIL* 913, 918-20.

<sup>638</sup> On the elements of an organisation within the meaning of article 7 cf. *Situation in the Republic of Kenya*, No. ICC-01/09-19, Decision on the Authorisation of Investigation, Pre-Trial Chamber, 31 March 2010 <<http://www.legal-tools.org/doc/338a6f/>> accessed 30 January 2015, para. 93; *Prosecutor v. Ruto et al.*, No. ICC-01/09-01/11-373, Confirmation Decision, Pre-Trial Chamber, 23 January 2012, <<http://www.legal-tools.org/doc/96c3c2/>> accessed 30 January 2015, para. 185; *Prosecutor v. Bosco Ntaganda* No. ICC-01/04-02/06-309, Decision on the Charges, Pre-Trial Chamber, 9 June 2014, <<http://www.legal-tools.org/doc/5686c6/>> accessed 30 January 2015, paras. 14 *et seq.*, ('established hierarchy', 'military wing', 'discipline', 'system of communication', 'chain of command', 'the means and the capability to carry out military operations').

<sup>639</sup> *Prosecutor v. Tadić*, No. IT-94-1-T, Opinion and Judgment, Trial Chamber, 7 May 1997, <<http://www.legal-tools.org/doc/0a90ae/>> accessed 30 January 2015, para. 654; *Prosecutor v. Kupreskić et al.*, No. IT-95-16-T, Judgment, Trial Chamber, 14 Jan. 2000 para. 552; see *Prosecutor v. Blaškić*, No. IT-95-14-T, Judgment, Trial Chamber, 3 March 2000, <<http://www.legal-tools.org/doc/e1ae55/>> accessed 30 January 2015, para. 205.

implicit policy with regard to the commission, or at least toleration<sup>640</sup>, of crimes against humanity in this territory. As to the quality of the (non-state) entity or organisation, it also seems to be clear that it must be in a position akin, or at least similar, to a state; that is, it must possess similar capacities of organisation and force<sup>641</sup>.

In the ICC's view the concept of 'organisation' is predicated on the respective group's 'capability to perform acts which infringe on basic human values' and not 'the formal nature of a group and the level of its organisation'<sup>642</sup>. Thus, it is to be determined on a case-by-case basis whether a respective group amounts to an 'organisation' within the meaning of article 7(2)(a)<sup>643</sup>. This rather broad approach is, however, not beyond controversy. This became clear in the *Kenya* proceeding where Pre-Trial Chamber II was split on the question with Judge Kaul issuing a dissenting opinion<sup>644</sup>, arguing that the respective entity must 'partake[s]

<sup>640</sup> *Prosecutor v. Kupreskić et al.*, No. IT-95-16-T, Judgment, Trial Chamber, 14 Jan. 2000 para. 552; cf. also Werle and Jessberger, *Principles of International Criminal Law* (2014) 345-6; Jurovics, in: Fernandez and Pacreau (eds.), *Statut de Rome de la Cour Pénale Internationale: Commentaire article par article* (2012) 417, 465.

<sup>641</sup> See Bassiouni, *The Legislative History of the International Criminal Court* (2005) 245 (non-state actors 'partake of the characteristics of state actors in that they exercise some dominion or control over territory and people, and carry out "policy" which has similar characteristics of those of "state action or policy"'); Schabas, in: Sadat and Scharf (eds.), *The Theory and Practice of International Criminal Law – Essays in Honor of M. Cherif Bassiouni* (2008) 347, 359 ('state-like bodies').

<sup>642</sup> See *Situation in the Republic of Kenya*, No. ICC-01/09-19, Decision on the Authorisation of Investigation, Pre-Trial Chamber, 31 March 2010 <<http://www.legal-tools.org/doc/338a6f/>> accessed 30 January 2015, para. 90. In paras. 84 and 85 respectively the PTC refers to *Prosecutor v. Katanga and Ngudjolo*, No. ICC-01/04-01/07-717, Confirmation Decision, Pre-Trial Chamber, 30 September 2008, <<http://www.legal-tools.org/doc/67a9ec/>>, para. 396 and *Prosecutor v. Bemba*, No. ICC-01/05-01/08-424, Confirmation Decision, Pre-Trial Chamber, 15 June 2009, <<http://www.legal-tools.org/doc/07965c/>> accessed 30 January 2015, para. 81, both stating that the policy could be made by 'any organisation with the capability to commit a widespread or systematic attack against a civilian population'; cf. also *Prosecutor v. Gbagbo*, No. ICC-02/11-01/11-656-Red, Decision on the Confirmation of Charges, Pre-Trial Chamber I, 12 June 2014, <<http://www.legal-tools.org/doc/5b41bc/>> accessed 30 January 2015, para. 217; *Prosecutor v. Ruto et al.*, No. ICC-01/09-01/11-373, Confirmation Decision, Pre-Trial Chamber, 23 January 2012, <<http://www.legal-tools.org/doc/96c3c2/>> accessed 30 January 2015, paras. 185; *Prosecutor v. Katanga*, No. ICC-01/04-01/07-3436, Jugement Rendu en Application de l'article 74 du Statut, Trial Chamber, 7 March 2014, <<http://www.legal-tools.org/doc/9813bb/>> accessed 30 January 2015, para. 1119; cf. also *Blé Goudé*, ICC-02/11-02/11-186, Confirmation Decision, 11 Dec. 2014, paras. 128, 186 where the PTC holds that the policy was both organisational (128: 'preparatory activities...planned and coordinated...through the forces under their control ... which included elements of the FDS, militia, mercenaries and pro-Gbagbo youth... constituted an organisation', and 186: 'The pro-Gbagbo forces constituted an organised and hierarchical apparatus of power.') and of a State (128: 'such entity, which comprised part of the State apparatus, may on this basis be also qualified as a State policy.').; cf. also Jurovics, in: Fernandez and Pacreau (eds.), *Statut de Rome de la Cour Pénale Internationale: Commentaire article par article* (2012) 417, 462 *et seq.*; for a thorough analysis of the views held in the *Kenya* Authorisation Decision regarding this element, see Hansen (2011) 43 *George Washington ILRev.* 1, 7 *et seq.*; Chaitidou, in: Bergsmo and Song (eds.), *On the Proposed Crimes against Humanity Convention* (2014) 47, 74 *et seq.*

<sup>643</sup> See *Situation in the Republic of Kenya*, No. ICC-01/09-19, Decision on the Authorisation of Investigation, Pre-Trial Chamber, 31 March 2010 <<http://www.legal-tools.org/doc/338a6f/>> accessed 30 January 2015, para. 93. The Chamber lists some factors with a view to make this determination, namely: '(i) whether the group is under a responsible command, or has an established hierarchy; (ii) whether the group possesses, in fact, the means to carry out a widespread or systematic attack against a civilian population; (iii) whether the group exercises control over part of the territory of a State; (iv) whether the group has criminal activities against the civilian population as a primary purpose; (v) whether the group articulates, explicitly or implicitly, an intention to attack a civilian population; (vi) whether the group is part of a larger group, which fulfils some or all of the aforementioned criteria'. *In casu* the majority found that the 'organisational policy' element was met by 'various groups including local leaders, businessmen and politicians' (*ibid.*, para. 117); cf. also *Situation in Côte d'Ivoire*, ICC-02/11-14-Corr, Authorisation Decision, 15 November 2011, para. 46; *Prosecutor v. Ruto et al.*, No. ICC-01/09-01/11-373, Confirmation Decision, Pre-Trial Chamber, 23 January 2012, <<http://www.legal-tools.org/doc/96c3c2/>> accessed 30 January 2015, paras. 185; *Prosecutor v. Katanga*, No. ICC-01/04-01/07-3436, Jugement Rendu en Application de l'article 74 du Statut, Trial Chamber, 7 March 2014, <<http://www.legal-tools.org/doc/9813bb/>> accessed 30 January 2015, para. 1118 (citing the *Situation in Kenya* (Authorisation Decision)).

<sup>644</sup> *Situation in the Republic of Kenya*, No. ICC-01/09-19, Decision on the Authorisation of Investigation, Pre-Trial Chamber, 31 March 2010 <<http://www.legal-tools.org/doc/338a6f/>> accessed 30 January 2015, Dissenting Opinion of Judge Kaul, paras. 21-70 (esp. 43-70), conducting a lengthy analysis of the historic origins of crimes against humanity and the proper interpretation of the term 'organisation'; cf. thereon also, Jalloh (2011) 105 *AJIL* 540, 543 *et seq.*



of some characteristics of a State<sup>645</sup>. PTC III concurs with PTC II as to this Chamber's case-by-case approach and the criteria proposed to determine the status of the organisation<sup>646</sup>, noting the disagreement in the Court's jurisprudence and leaving the question open in the concrete case since the stricter requirements of the *Kenya* PTC II majority have been met anyway<sup>647</sup>. In a similar vein, PTC I repeats the different views expressed, but leaves the question *in casu* also open since 'the organisation alleged by the Prosecutor and satisfactorily established by the available evidence would meet the threshold under either interpretation'<sup>648</sup>. In contrast, the *Katanga* Trial Chamber II<sup>649</sup> favours the broad understanding of organisation of the majority of the *Kenya* PTC reaffirming an autonomous and functional, 'capacity-based' understanding of organisation<sup>650</sup>. Thus, TC II stresses generic structural features such as capacity, coordination and cohesion necessary to carry out an attack<sup>651</sup> as opposed to the more formal requirements of organisational structure and control<sup>652</sup>. In particular, the Chamber argues that the restrictive state-like features cannot be reconciled with the *ICC Statute's* objective to punish the most serious international crimes<sup>653</sup>.

In the academic literature, the discussion has just begun, but there is a certain tendency in favour of a broader interpretation in line with *Kenya* PTC II's majority view<sup>654</sup>. A comparison,

<sup>645</sup> *Situation in the Republic of Kenya*, No. ICC-01/09-19, Decision on the Authorisation of Investigation, Pre-Trial Chamber, 31 March 2010 <<http://www.legal-tools.org/doc/338a6f/>> accessed 30 January 2015, Dissenting Opinion of Judge Kaul, para. 51: 'These characteristics could involve the following: (a) a collectivity of persons; (b) which was established and acts for a common purpose; (c) over a prolonged period of time; (d) which is under responsible command or adopted a certain degree of hierarchical structure, including, as a minimum, some kind of policy level; (e) with the capacity to impose the policy on its members and to sanction them; and (f) which has the capacity and means available to attack any civilian population on a large scale' (footnotes omitted). However, control over a territory is not required, but could be an additional factor in determining the existence of an organisation (para. 51, fn. 56). The controversy persisted in the Chamber, see for example, *Prosecutor v. Ruto et al.*, No. ICC-01/09-01/11-373, Confirmation Decision, Pre-Trial Chamber, 23 January 2012, <<http://www.legal-tools.org/doc/96c3c2/>> accessed 30 January 2015, paras. 33–4, 184–5 and the Dissenting Opinion of Judge Kaul in it, paras. 8–9; *Prosecutor v. Muthaura and others*, No. ICC-01/09-02/11-382-Red, Decision on the Confirmation of Charges, Pre-Trial Chamber II, 23 January 2012 <<http://www.legal-tools.org/doc/4972c0/>> accessed 30 January 2015, paras. 112, 221, and Dissenting Opinion of Judge Kaul in it, paras. 7–8. Note in this respect also Jalloh (2013) 28 *AmUILLRev* 381, 435–441 according to whom the issue can only be resolved by an amendment of the Rome Statute.

<sup>646</sup> *Situation in Côte d'Ivoire*, ICC-02/11-14-Corr, Authorisation Decision, 15 November 2011, para. 46.

<sup>647</sup> *Ibid.*, para. 99.

<sup>648</sup> See *Prosecutor v. Gbagbo*, No. ICC-02/11-01/11-656-Red, Decision on the Confirmation of Charges, Pre-Trial Chamber I, 12 June 2014, <<http://www.legal-tools.org/doc/5b41bc/>> accessed 30 January 2015, para. 217.

<sup>649</sup> *Prosecutor v. Katanga*, No. ICC-01/04-01/07-3436, Jugement Rendu en Application de l'article 74 du Statut, Trial Chamber, 7 March 2014, <<http://www.legal-tools.org/doc/9813bb/>> accessed 30 January 2015, paras. 1117–22.

<sup>650</sup> Cf. Stahn (2014) 12 *JICJ* 817; for a similar approach of the ICTY in *Lima et al.* ('Kosovo Liberation Army') and the SCSL in *Brima et al.* ('Armed Forces Revolutionary Council') Rodenhäuser (2014) 27 *LeidenJIL* 919–20.

<sup>651</sup> *Prosecutor v. Katanga*, No. ICC-01/04-01/07-3436, Jugement Rendu en Application de l'article 74 du Statut, Trial Chamber, 7 March 2014, <<http://www.legal-tools.org/doc/9813bb/>> accessed 30 January 2015, para. 1120; on *Katanga* regarding the organisation element, cf. Chaitidou, in: Bergsmo and Song (eds.), *On the Proposed Crimes against Humanity Convention* (2014), 47, 96.

<sup>652</sup> Stahn (2014) 12 *JICJ* 817.

<sup>653</sup> *Prosecutor v. Katanga*, No. ICC-01/04-01/07-3436, Jugement Rendu en Application de l'article 74 du Statut, Trial Chamber, 7 March 2014, <<http://www.legal-tools.org/doc/9813bb/>> accessed 30 January 2015, para. 1122 ('qu'une conception restrictive de l'organisation, qui exigerait qu'elle présente des caractéristiques quasi-étatiques, ne renforcerait pas l'objectif que poursuit le Statut, qui est la répression des crimes les plus graves', fn. omitted); see also *Blé Goudé*, ICC-02/11-02/11-186, Confirmation Decision, 11 Dec. 2014, para. 146 where the PTC qualifies the pro-Gbagbo forces as 'an organisation which included both a formal and informal structure composed of different elements, different chains of command and distinct lines of activation'.

<sup>654</sup> For a broad reading cf. Werle and Jessberger, *Principles of International Criminal Law* (2014) 344–5; Werle and Burghardt (2012) 10 *JICJ* 1151, 1166, 1168–70 (analyzing the meaning of the concept of 'organisation', that encompasses 'any association of persons with an established structure' and concluding that there is no convincing reason to restrict this 'ordinary meaning' and that a broad understanding is called for pursuant to systematic and teleological reasons); for the same result, but with a more victim-oriented approach Sadat (2013) 107 *AJIL* 334, 376–7, arguing that the definition of crimes against humanity has evolved since Nuremberg and therefore, does not require the organisation behind the acts to be state-like; in a similar vein, Jurovics, in:



however, of the criteria or characteristics which the PTC II majority, on the one hand, and Judge Kaul, on the other, list as possible distinguishing features for the determination of an 'organisation'<sup>655</sup> shows, first, that those criteria are in large part identical (responsible command and hierarchical structure, available means to carry out such an attack, territorial control, and the purpose of the organisation and its acts) and only differ substantially insofar as Kaul regards them as indications of state-likeness<sup>656</sup> without which an organisation is 'not able to carry out a policy of this nature'<sup>657</sup>. Secondly, the different conclusions reached by academic writers depend, on the one hand, on a different assessment of the state of customary law – indeed, more a question of belief than hard law – and, on the other hand, on the different emphasis given to human rights protection as the object and purpose of crimes against humanity<sup>658</sup>. Thus, the gist of the issue is how to reconcile the call for the broadest possible

Fernandez and Pacreau (eds.), *Statut de Rome de la Cour Pénale Internationale: Commentaire article par article* (2012) 417, 461 *et seq.*, arguing, however, that for two crimes a state authority is always required (464, the crime of apartheid – due to its institutional character and its dependence on a 'regime' – and the crime of enforced disappearances – due to the political organisation requirement); Robinson, in: Cryer *et al.* (eds.), *An Introduction to International Criminal Law and Procedure* (2014) 229, 240, 'compatible with the ordinary meaning of the 'organisation', as well as the purpose of the policy element' (fn. omitted); but see previously *id.* (2011) *EJIL TALK!*, suggesting the application of the more stringent criteria under the systematic requirement; Rodenhäuser (2014) 27 *LeidenJIL* 913, 920–8, who follows the Katanga TC and Robinson in their functional and context element based approach and on this basis proposes (minimum) requirements for an organisation to be 'able to orchestrate crimes against humanity under article 7: number of people, common purpose, ability to develop and promulgate a policy with a view to the necessary attack and, where these requirements do not suffice, in addition, the capacity to commit crimes on a significant scale as well as plan and organize an attack and have the internal structure to execute such a policy (summarizing at p. 928); previously Kuschnik, *Der Gesamtbestand des Verbrechens gegen die Menschlichkeit* (2009) 242–3. For a narrower approach, see Kreß (2010) 23 *LeidenJIL* 855, 857–61, arguing in favour of strict construction (863) on the basis of customary law (867–71) since a too broad a reading could violate state sovereignty (861, 866), and emphasizing that an international prosecution is (only) warranted in the absence of a national prosecution, a situation most likely to occur when the acts are committed by states or state-like entities; previously Kreß, in: Fischer and Lüder (eds.), *Völkerrechtliche Verbrechen vor dem Jugoslawien-Tribunal, nationalen Gerichten und dem Internationalen Strafgerichtshof* (1999) 15, 54–5; see also Schabas, *The International Criminal Court: A Commentary on the Rome Statute* (2010) 152 ('should probably be construed broadly enough to encompass entities that act like States'); Stahn (2014) 12 *JICJ* 817–8 (arguing that a too broad reading entails the abandonment of the policy element); *crit.* also Jalloh (2011) 105 *AJIL* 540, 547 arguing that 'the majority's' [broad] interpretation 'undermines by judicial fiat the message emphasised in the preamble and fundamental provisions of the Rome Statute, such as article 17, that the ICC was intended to be a court of last, not first, resort that supplements, instead of supplants, national jurisdictions'; *cf.* also Hansen (2011) 43 *GeorgeWashingtonILRev* 1, 31 *et seq.*, 35 *et seq.*, 40, who favours a limited application of article 7 (at 31 *et seq.*), but at the same time argues in favour of the application regarding non-state actors, in cases where they utilize 'elements of the state security apparatus or other armed entities' (40, 41). On the danger of an infringement of state sovereignty, due to a too broad a reading of the 'organisation', see also *Situation in the Republic of Kenya*, No. ICC-01/09-19, Decision on the Authorisation of Investigation, Pre-Trial Chamber, 31 March 2010 <<http://www.legal-tools.org/doc/338a6f/>> accessed 30 January 2015, Dissenting Opinion of Judge Kaul, paras. 10, 63–5.

<sup>655</sup> See at the beginning of this margin number.

<sup>656</sup> *Situation in the Republic of Kenya*, No. ICC-01/09-19, Decision on the Authorisation of Investigation, Pre-Trial Chamber, 31 March 2010 <<http://www.legal-tools.org/doc/338a6f/>> accessed 30 January 2015, Dissenting Opinion of Judge Kaul, para. 51 ('entity which may act like a State or has quasi-State abilities').

<sup>657</sup> *Situation in the Republic of Kenya*, No. ICC-01/09-19, Decision on the Authorisation of Investigation, Pre-Trial Chamber, 31 March 2010 <<http://www.legal-tools.org/doc/338a6f/>> accessed 30 January 2015, Dissenting Opinion of Judge Kaul, para. 52 (accordingly, he excludes 'groups of organised crime, a mob, groups of (armed) civilians or criminal gangs').

<sup>658</sup> See, on the one hand, Kreß (2010) 23 *LeidenJIL* 855, 860–1 ('the consequence of a broad, human-value-driven teleological construction of the term 'organisation' in article 7(2)(a) of the Statute would be the creation of new international human rights law directly incumbent on 'organs' or 'agents' of organisations which are not even state-like', 861) and, on the other, Sadat (2013) 107 *AJIL* 334, 376–7 (requiring a state-like organisation 'excludes situations of mass atrocities committed by other organisations, and ignores the evolution of crimes against humanity over the decades since the Nuremberg judgment') and Werle and Burghardt (2012) 10 *JICJ* 1151, 1160–4 ('An interpretation of the term 'organisation' that limits the ordinary meaning by adding a further element can only be convincing if it can be argued that the additional element increases the wrongfulness of these violations of fundamental rights', 1160, on the following pages this is negated by these authors); see also Werle, *Völkerstrafrecht* (2012) mn 887; *id.* and Jessberger, *Principles of International Criminal Law* (2014) 344; also Rodenhäuser (2014) 27 *LeidenJIL* 913, 928 ('Excluding...entity...not hierarchically organised in a state-like manner would defy the Rome Statute's objectives, and to some extent deny reality in many parts of the world');

protection of human rights by way of ICL (here crimes against humanity) with legitimate concerns as to the principle of strict construction (*lex stricta*) and a possible loss of significance or ‘downgrading’ of crimes against humanity. While an (exclusively) human rights approach almost automatically entails a broad interpretation of the *actus reus* of international crimes, an understanding of ICL in the sense of a classical liberal criminal law with its core principles of legality, culpability, and fairness, as defended by this author elsewhere<sup>659</sup>, leads to more narrow interpretations<sup>660</sup>. In any case, the mere risk of a lacuna with respect to the criminalisation of a particular conduct is an inherent feature of criminal law and does, as such, not allow for too broad an interpretation against the letter of the law. In the case at hand, a functional approach inferring the requirements of an organisation within the meaning of article 7(2)(a) from the context element, i.e., this organisation’s capacity to wage a widespread or systematic attack against the civilian population, is most convincing.<sup>661</sup>

- 111 It is worth noting that the same considerations applicable to proving the widespread or systematic character of the attack, as discussed above, will have to be taken into account when establishing the multiplicity and organisational components of the attack<sup>662</sup>. As stated above, in proving either the widespread nature or systematic character of the attack, both the statutory requirements of multiplicity and policy will have to be confirmed.

## 2. ‘Extermination’

- 112 a) **Main elements.** National and international jurisprudence concerning the crime against humanity of extermination provides some guidance concerning its definition under customary international law, but there are a number of significant differences in detail, both between the ICTY and ICTR and among individual Trial Chambers<sup>663</sup>. The main non-contextual components, or components that are not Tribunal-specific of the definition of extermination that emerge from the jurisprudence are the following: a large number of killings, the same elements as murder, the absence of a requirement that the perpetrator knew the identity of the victims, targeting of a group and the absence of a requirement that the members of the group have common characteristics. The main areas of difference relate to whether the crime must be intentional, as most ICTR Trial Chambers have held, or may include reckless or even negligent conduct, what constitutes a large number of persons and whether an accused must have been responsible for killing a large number of persons or could have killed only a few persons or only one person when part of a mass killing. Judgments since the adoption of the Elements of Crimes in June 2000 have noted that extermination can be carried out by infliction of conditions of life, as contemplated by article 7, paragraph 2 (b) of the Statute.

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Hansen (2011) 43 *GeorgeWashingtonILRev* 1, 41 (critical of an ‘uniform standard with a high threshold for the existence of an organisational policy’ for being ‘an obstacle to prosecuting leaders ...who organize widespread attacks on the civilian population by utilizing state security forces for private purposes’).

<sup>659</sup> Cf. Ambos, *Treatise on ICL I* (2013) 87 *et seq.*

<sup>660</sup> On the importance of the legal and cultural background (humanitarian vs. military) in approaching issues of IHL, especially military necessity, see Luban (2013) 26 *LeidenJIL* 315.

<sup>661</sup> For the concrete requirements see convincingly Rodenhäuser (2014) 27 *LeidenJIL* 920–8 as summarised supra note 653.

<sup>662</sup> See *Prosecutor v. Gbagbo*, No. ICC-02/11-01/11-656-Red, Decision on the Confirmation of Charges, Pre-Trial Chamber I, 12 June 2014, <<http://www.legal-tools.org/doc/5b41bc/>> accessed 30 January 2015, para. 208; also *Blé Goudé*, ICC-02/11-02/11-186, Confirmation Decision, 11 Dec. 2014, paras. 127–8 and 131–2; Rodenhäuser (2014) 27 *LeidenJIL*. 913, *IL* 913, 924.

<sup>663</sup> With the exception of the 2002 ICTY Trial Chamber Judgment in the *Vasiljević* case, which undertook a careful analytical review of prior judgments, the ICTY and ICTR jurisprudence on this question is generally contradictory, poorly reasoned and of limited guidance in determining the scope of the crime of extermination under customary international law. For a similar assessment, see Mettraux, *International Crimes and the Ad Hoc Tribunals* (2005) 176, note 3 (‘Where the *Vasiljević* Trial Chamber appears to have undertaken an extensive review of state practice and other relevant precedents in relation to that offence, the definition of “extermination” given in earlier cases often appears to be based on not much more than the Chamber’s intuition as to the meaning of that expression and the almost complete absence of authority in support of the Chambers’ findings’) (citations omitted).

Although persons were convicted of the crime against humanity of extermination by the International Military Tribunal at Nuremberg and by national courts, and international and national courts have referred to extermination in their judgments, these judgments have provided little guidance concerning the scope of the crime<sup>664</sup>. Therefore, the elements of the crime drawn from jurisprudence are largely based on the limited number of judgments in the ICTR (including the *Akayesu*, *Rutaganda*, *Musesma* and *Kayishema* cases) and ICTY (including the *Krstić*, *Vasiljević* and *Stakić* cases). In some cases, the references in the judgments to extermination could be characterised as *dicta*. Most judgments state that extermination must involve the killing of a large number of persons, described in a variety of ways without much precision, including phrases such as ‘the killing of a large number of individuals’<sup>665</sup>, ‘an element of mass destruction’<sup>666</sup>, ‘subjecting a widespread number of people or systematically subjecting a number of people to conditions of living that would inevitably lead to death’<sup>667</sup>, ‘large scale’<sup>668</sup>, which ‘does not command a numerical imperative but may be determined on a case-by case basis’<sup>669</sup>, and ‘the killing of persons on a massive scale’<sup>670</sup>. There is, however, no requirement that there be ‘a vast scheme of collective murder’<sup>671</sup>. The large number of victims involved is one of the main distinctions between extermination and murder, but a recurring theme is the aim of eliminating a targeted group of persons<sup>672</sup>.

<sup>664</sup> For brief overviews of some of this early jurisprudence, which includes judgments of the German Supreme Court in Leipzig, the International Military Tribunal at Nuremberg, US military courts established pursuant to Allied Control Council Law No. 10, the Supreme National Tribunal of Poland in the *Goeth* case, Israeli courts in the *Eichmann* case, French courts in the *Barbie* case, see the discussion in *Prosecutor v. Krstić*, IT-93-33-T, 2 August 2001, para. 492; *Prosecutor v. Vasiljević*, No. IT-98-32-T, Judgment, Trial Chamber, 29 November 2002, paras. 216–224, *Prosecutor v. Vasiljević*, without addressing this issue, No. IT-98-32-A, Judgment, Appeals Chamber, 25 February 2004.

<sup>665</sup> *Prosecutor v. Vasiljević*, IT-98-32-T, 29 November 2002, para. 229; *Prosecutor v. Bisengimana*, ICTR-00-60-T, 13 April 2006, para. 72.

<sup>666</sup> *Prosecutor v. Gacumbitsi*, No. ICTR-2001-64-T, Judgment, Trial Chamber, 17 June 2004, para. 309 (‘It is the settled jurisprudence of this Tribunal that extermination, by its very nature, is a crime that is directed against a group of individuals, but different from murder in that it requires an element of mass destruction’); *Prosecutor v. Rutaganda*, ICTR-96-3-T, 6 December 1999, para. 82 (‘an element of mass destruction’); *Prosecutor v. Nahimana*, No. ICTR-99-52-T, Judgment, Trial Chamber, 3 December 2003, para. 1061 (same); *Prosecutor v. Ntagerura*, ICTR-99-46-T, 25 February 2004, para. 701 (‘mass... killing’); *Prosecutor v. Ntakirutimana*, No. ICTR-96-10-A, Judgment, Appeals Chamber, 13 December 2004, para. 521 (‘mass killing’); *Prosecutor v. Krstić*, IT-93-33-T, 2 August 2001, para. 498 (Given that the Trial Chamber did not reach a final decision on the extermination charge because the accused was convicted on the same facts for genocide and the practice has been not to convict persons for the same conduct on cumulative charges, the discussion of extermination should be seen as *dicta*).

<sup>667</sup> *Prosecutor v. Stakić*, IT-97-24-A, 22 March 2006, para. 259 (quoting *Prosecutor v. Ntakirutimana*, ICTR-96-10-A, 13 December 2004, para. 552). This formulation confusingly incorporates the threshold for an attack into the definition of an act constituting a crime against humanity.

<sup>668</sup> ICTR: *Prosecutor v. Rutaganda*, No. ICTR-95-1C-T, Judgment, Trial Chamber, 14 March 2005, paras. 49–50 (guilty plea, no appeal); *Prosecutor v. Bagilishema*, ICTR-95-1A-T, 7 June 2001, para. 87; *Prosecutor v. Ntagerura*, ICTR-99-46-T, 25 February 2004, para. 701 (‘large scale killing’); *Prosecutor v. Ntakirutimana*, ICTR-96-10-A, 13 December 2004, para. 516; *Prosecutor v. Kamuhanda*, No. ICTR-95-54A-T, Judgment, Trial Chamber, 22 January 2004, para. 692; *Prosecutor v. Kayishema and Ruzindana*, No. ICTR-95-1-T, Judgment, Trial Chamber, 21 May 1999, para. 145; *Prosecutor v. Nahimana*, ICTR-99-52-T, 3 December 2003, para. 1061; *Prosecutor v. Stakić*, IT-97-24-A, 22 March 2006, para. 259.

<sup>669</sup> *Prosecutor v. Kayishema and Ruzindana*, ICTR-95-1-T, 21 May 1999, para. 145.

<sup>670</sup> *Prosecutor v. Stakić*, IT-97-24-T, 31 July 2003, para. 638; *Prosecutor v. Ntagerura*, ICTR-99-46-T, 25 February 2004, para. 701 (‘mass... killing’).

<sup>671</sup> *Prosecutor v. Stakić*, IT-97-24-A, 22 March 2006, para. 259; *Prosecutor v. Stakić*, IT-97-24-T, 31 July 2003, para. 640.

<sup>672</sup> The emphasis on the aim of elimination as more important than the number of victims will ensure that the crime of extermination applies in the case of small indigenous groups of a few hundred persons that were targeted with killings with a view to wiping them out. One ICTR Trial Chamber has claimed that another distinction between the two crimes is the way in which the victims are targeted, but no precedents were cited in support of this proposition and it does not appear to have been followed by other courts. *Prosecutor v. Nahimana*, ICTR-99-52-T, 3 December 2003, para. 1062.

With regard to these two matters, there are several questions that have emerged: how many victims are required, does a group have to be targeted and, if so, what are its characteristics, does the number of victims have to be a substantial proportion of the targeted group, is the number of victims the number killed or targeted by the individual perpetrator or by the perpetrator and others participating in the widespread or systematic attack, can extermination be committed by omission as well as by acts, and, with regard to the *mens rea*, does the perpetrator have to satisfy the same mental element as for murder and does that person have to intend to wipe out or substantially wipe out a group?

- 113 Although much debate has been devoted to the required threshold of massiveness, it is not entirely clear what number of actual or intended victims is required to constitute extermination. Some ICTY and ICTR Trial Chambers have stated that no specific minimum number of victims is required for the killings to amount to extermination<sup>673</sup>. However, some of them have stated that there must be more than one victim or a small number of victims<sup>674</sup>. Indeed, they have also frequently stated that the perpetrator would have had to have intended to kill a significant number of victims targeted to distinguish extermination from murder and have indicated a variety of ways that number could be determined. In *Krstić*, the ICTY Trial Chamber suggested in *dicta* that the requirements for extermination would be met if only a relatively small number of people were involved, provided that it was aimed at the eradication of an entire population<sup>675</sup>. This interpretation surely must be correct as it would ensure that if the perpetrator intended to kill only a few hundred people who constituted the last remaining members of the targeted group it would constitute extermination. This was upheld by Appeals Chamber jurisprudence in *Lukić and Lukić* which confirmed that extermination can be committed against a population '[...] made up of only a relatively small number of people', while recalling that 'large scale' does not 'suggest a strict numerical approach with a minimum number of victims'<sup>676</sup>. The Appeals Chamber found that 'the killing of at least 60 persons' may be sufficiently large-scale<sup>677</sup>, taking into account a number of relevant factors, including 'the time and place of the killings; the selection of the victims and the manner in

<sup>673</sup> *Prosecutor v. Vasiljević*, IT-98-32-T, 29 November 2002, para. 227 note 587 ('The Trial Chamber is not aware of cases which, prior to 1992, used the phrase "extermination" to describe the killing of less than 733 persons. The Trial Chamber does not suggest, however, that a lower number of victims would disqualify that act as "extermination" as a crime against humanity, nor does it suggest that such a threshold must necessarily be met'); *Prosecutor v. Stakić*, IT-97-24-T, 31 July 2003, para. 640 (same); *Prosecutor v. Blagojević and Jokić*, IT-02-60-T, 17 January 2005, para. 573; *Prosecutor v. Brđanin*, IT-99-36-T, 1 September 2004, para. 391. ICTR: *Prosecutor v. Gacumbitsi*, ICTR-2001-64-T, 17 June 2004, para. 309 ('"Large scale" does not suggest a numerical minimum; it must be determined on a case-by-case basis using a common sense approach'); *Prosecutor v. Rutaganira*, ICTR-95-1C-T, 14 March 2005, para. 49; *Prosecutor v. Bagilishema*, ICTR-95-1A-T, 7 June 2001, para. 87.

<sup>674</sup> At least three ICTR Trial Chambers have stated that a single victim or small, unspecified number of victims would be insufficient. *Prosecutor v. Gacumbitsi*, ICTR-2001-64-T, 17 June 2004, para. 309; *Prosecutor v. Ntagerura*, ICTR-99-46-T, 25 February 2004, para. 701; *Prosecutor v. Semanza*, ICTR-97-20-T, 15 May 2003, para. 340.

<sup>675</sup> *Prosecutor v. Krstić*, IT-93-33-T, 2 August 2001, para. 501 (Extermination could involve 'eradicating an entire population, ... made up of only a relatively small number of people. In other words, while extermination generally involves a large number of victims, it may be constituted even where the number of victims is limited' (*dicta*)).

<sup>676</sup> See *Prosecutor v. Lukić and Lukić*, No. IT-98-32/1-A, Judgement, Appeals Chamber, 4 December 2012, para. 538. For an indication, see para. 537: 'While extermination as a crime against humanity has been found in relation to the killing of thousands, it has also been found in relation to fewer killings. The Appeals Chamber recalls that in *Brđanin*, the killing of between 68 to 300 individuals in light of the circumstances in which they occurred, [met] the required threshold of massiveness for the purposes of extermination.' In *Stakić*, the Trial Chamber found that the killing of less than 80 individuals 'independently would reach the requisite level of massiveness for the purposes of an evaluation under Article 5(b) of the Statute', *Prosecutor v. Stakić*, IT-97-24-T, 31 July 2003, para. 653. In *Krajišnik*, while the conviction for extermination as a crime against humanity was based on the killing of at least 1,916 individuals, the Trial Chamber found that the killing of approximately 66 individuals during the Pionirska Street Incident satisfied the element of massiveness, *Prosecutor v. Krajišnik*, IT-00-39-T, 27 September 2006, paras. 720-721. The ICTR and the Special Court for Sierra Leone have also found the killing of about 60 individuals and less to be sufficiently large-scale to amount to extermination. Concurring Schabas, *Commentary ICC* (2010) 160.

<sup>677</sup> See *Prosecutor v. Lukić and Lukić*, IT-98-32/1-A, 4 December 2012, para. 544.

which they were targeted; and whether the killings were aimed at the collective group rather than victims in their individual capacity<sup>678</sup>.

Extermination must be aimed at a group rather than identified individuals<sup>679</sup>. The group may, but need not, be a national, ethnical, racial or religious group, as in the crime of genocide, but may be any identifiable group<sup>680</sup>. For example, it could be simply a neighbourhood<sup>681</sup>. The concept of a targeted group has been expansively defined in some ICTY and ICTR judgments to include all non-members of another group<sup>682</sup>. Only a part of the population needs to be targeted. The ICTY Trial Chamber in *Krstić* has stated in *dicta* that this means ‘a numerically significant part of the population concerned’<sup>683</sup>. But this view has been criticised<sup>684</sup>. Several Chambers have relied on specific incidents of mass killing to demonstrate the necessary level of massiveness<sup>685</sup>. In *Lukić and Lukić*, a single village was used as reference area. A conviction for extermination was based on multiple killings in two street incidents, in which almost the entire Muslim population was killed. The majority (Judge Van den Wyngaert dissenting) justified this approach by relying on population density in the particular area as a criterion to determine massiveness. It argued that ‘while there may be a higher threshold for a finding of extermination in a densely-populated area’, it would ‘not be inappropriate to find extermination in a less densely-populated area on the basis of a lower threshold, that is, fewer victims’<sup>686</sup>. The ICC Elements of Crimes specifically take into account ‘initial conduct’ in a mass killing of members of a civilian population<sup>687</sup>. This includes first steps in what would later become a mass killing, similar as in the context of genocide<sup>688</sup>.

There also has been considerable divergence of views in the jurisprudence about whether an individual can be convicted of extermination if he or she was responsible for only a small number of killings as part of a large number of persons killed by others or whether the

<sup>678</sup> See *Prosecutor v. Lukić and Lukić*, IT-98-32/1-A, 4 December 2012, para. 338. For a different view see, *Prosecutor v. Lukić and Lukić* IT-08-32/1-T, 20 July 2009, Partly Dissenting Opinion Judge Van den Wyngaert, 338 *et seq.*, arguing that ‘the sheer scale of killings continues to be the most relevant factor in determining whether a mass killing incident has reached the “required threshold of massiveness” for the crime of extermination’ (para. 1117) and that equating mass killings ‘of increasingly low scale’ to extermination would ‘have the unintended result of trivialising both the crime of murder and the crime of extermination’ (para. 1120).

<sup>679</sup> ICTY: *Prosecutor v. Vasiljević*, IT-98-32-T, 29 November 2002, para. 227 ([T]he act of extermination must be collective in nature rather than directed towards singled out individuals’); *Prosecutor v. Stakić*, IT-97-24-A, 22 March 2006, para. 259; *Prosecutor v. Stakić*, IT-97-24-T, 31 July 2003, para. 639 (same). ICTR: *Prosecutor v. Kamuhanda*, ICTR-95-54A-T, 22 January 2004, para. 694; *Prosecutor v. Ntagerura*, ICTR-99-46-T, 25 February 2004, para. 701 (‘directed against a population’); *Prosecutor v. Niyitegeka*, No. ICTR-96-14-T, Judgment, Trial Chamber, 16 May 2003, para. 450; *Prosecutor v. Kayishema and Ruzindana*, ICTR-95-1-T, 21 May 1999, para. 145 (‘The actor need not act with a specific individual(s) in mind’); *Prosecutor v. Akayesu*, ICTR-96-4-T, 2 September 1998, para. 591 (aimed at a group).

<sup>680</sup> *Prosecutor v. Krstić*, IT-93-33-T, 2 August 2001, para. 499 (‘The victims need not share national, ethnical, racial or religious characteristics’) (*dicta*).

<sup>681</sup> *Prosecutor v. Kamuhanda*, ICTR-95-54A-T, 22 January 2004, para. 694.

<sup>682</sup> ICTY: *Prosecutor v. Tadić*, IT-94-1-A, 15 July 1999, para. 249; *Prosecutor v. Krnojelac*, IT-97-25-A, 17 September 2003, para. 187 (the accused, who, ‘as prison warden, retained jurisdiction over all detainees... had sufficient information to alert him to the risk that inhumane acts and cruel treatment were being committed against the non-Serb detainees because of their political or religious affiliation’); *Prosecutor v. Todorović*, No. IT-95-9/1-S, Sentencing Judgment, Trial Chamber, 31 July 2001, para. 12. ICTR: *Prosecutor v. Nahimana*, ICTR-99-52-T, 3 December 2003, para. 1071 (citing ICTY jurisprudence on this point).

<sup>683</sup> *Prosecutor v. Krstić*, IT-93-33-T, 2 August 2001, para. 502. No support for this view was cited and it has been severely criticised. Mettraux, *International Crimes and the Ad Hoc Tribunals* (2005) 178.

<sup>684</sup> Mettraux, (2002) 43 *HarvILJ* 237, 285; Ambos, *Treatise on ICL II* (2014) 84–85.

<sup>685</sup> See e.g., *Prosecutor v. Brđanin*, IT-99-36-A, Judgement, Appeals Chamber, 3 April 2007, paras. 471–472; *Prosecutor v. Stakić*, IT-97-24-T, 31 July 2003, paras. 653–654.

<sup>686</sup> See *Prosecutor v. Lukić and Lukić*, IT-98-32/1-T, 20 July 2009, para. 938. This reasoning was upheld on appeal. Critically, Partly Dissenting Opinion Judge Van den Wyngaert, para. 1119, arguing that relying ‘upon the victims’ affiliation to a community, may ‘lead to the legally untenable result in which the killing of twenty people in a small village is found to constitute extermination, but the killing of thousands of people in a large city does not’.

<sup>687</sup> Element 2 to article 7 (1) (b) ‘as part of’, with specification in footnote 10.

<sup>688</sup> See Elements, article 6, Introduction, clarifying that context includes ‘initial acts in an emerging pattern’.



prosecution must prove that the individual accused was responsible for a large number of killings<sup>689</sup>. The latter approach could, as a practical matter, largely limit the persons who could be convicted of extermination to leaders, undermining whatever deterrent value the Court may have, an approach rejected by the drafters of the Rome Statute with respect to other crimes. While extermination is not a leadership crime<sup>690</sup>, it is not always clear when Trial Chambers state that a large number of persons must have been killed for extermination to have occurred whether this requirement means that in all cases the individual accused must have been responsible for killing a large number of persons or that it is sufficient if the accused took part in a large number of killings, where most of the killings were committed by others. In the ICTR Trial Chamber Judgment in the *Akayesu* case, an individual was convicted of extermination for his role in the killing of a small number of persons as part of a large number of killings, most of which were carried out by others<sup>691</sup>. A subsequent ICTR Trial Chamber has stated in the *Kayishema* case in *dicta* that '[a]n actor may be guilty of extermination if he kills, or creates the conditions of life that kills (*sic*), a single person providing the actor is aware that his act(s) or omission(s) forms part of a mass killing event'<sup>692</sup>. However, this view was expressly rejected – without any explanation – by another ICTR Trial Chamber in *Semanza*<sup>693</sup>. Other ICTR and ICTY Trial Chambers have determined that a large number of persons must have been killed directly or indirectly by the perpetrator<sup>694</sup>. This restrictive approach under the ICTR Statute

<sup>689</sup> One commentator has contended that 'responsibility for one or for a limited number of such killings is insufficient to constitute an act of extermination'. Mettraux, *International Crimes and the Ad Hoc Tribunals* (2005) 176–177.

<sup>690</sup> The framing of Element 1 to article 7 (1) (b) makes it clear that the perpetrator does not necessarily need to enjoy the capacity 'to bring about the destruction of part of a population'. Similarly, the ICTR and ICTY Appeals Chambers have expressly rejected the view that extermination is a crime committed only by leaders. *Prosecutor v. Stakić*, IT-97-24-A, 22 March 2006, para. 256; *Prosecutor v. Ntakirutimana*, ICTR-96-10-A, 13 December 2004, para. 539.

<sup>691</sup> *Prosecutor v. Akayesu*, ICTR-96-4-T, 2 September 1998, para. 744 (conviction for extermination when the accused was responsible for the death of 16 persons). See also *Prosecutor v. Semanza*, ICTR-97-20-T, 15 May 2003, para. 341 ('The material element of extermination is killing that constitutes or is part of a mass killing of members of a civilian population[]' and 'the mental element for extermination is the intent to perpetrate or participate in a mass killing').

<sup>692</sup> *Prosecutor v. Kayishema and Ruzindana*, ICTR-95-1-T, 21 May 1999, para. 147 (adding that '[a]n event exists when the (mass) killings have close proximity in time and place'). In a footnote to this sentence, the Trial Chamber stated: 'For example, if ten FAR officers fire into a crowd of 200 Tutsis, killing them all. FAR officer X is a poor shot and kills only a single person, whereas officer Y kills 16. Because both X and Y participated in the mass killing and were both aware that their actions formed part of the mass killing event, they will both be guilty of extermination'. See also, *Prosecutor v. Bagilishema*, ICTR-95-1A-T, 7 June 2001, para. 88 ('A perpetrator may nonetheless be guilty of extermination if he kills, or creates conditions of life that kill, a single person, providing that the perpetrator is aware his or her acts or omissions form part of a mass killing event, namely mass killings that are proximate in time and place and thereby are best understood as a single or sustained attack').

<sup>693</sup> *Prosecutor v. Semanza*, ICTR-97-20-T, 15 May 2003, para. 340 ('Responsibility for a single or a limited number of killings is insufficient').

<sup>694</sup> ICTY: *Prosecutor v. Vasiljević*, IT-98-32-T, 29 November 2002, para. 227 note 586 (stating that 'criminal responsibility for "extermination" only attaches to those individuals responsible for a large number of deaths, even if their part therein was remote or indirect. Responsibility for one or for a limited number of such killings is insufficient'; and adding that the *Kayishema* Judgment 'omitted to provide any state practice in support of its ruling on that point, thereby very much weakening the value of its ruling as a precedent', that it had been unable to find any state practice and that the definition of extermination was not at issue on appeal). However, the Trial Chamber did not discuss the similar holding in *Akayesu*. As noted below, the Elements of Crimes followed the *Akayesu* and *Kayishema* approach on this point. The ICTY Trial Chamber Judgment in *Prosecutor v. Brđanin*, IT-99-36-T, 1 September 2004, does not directly address this point, but could be read as supporting the *Vasiljević* approach (see paras. 388–389). ICTR: *Prosecutor v. Kamuhanda*, ICTR-95-54A-T, 22 January 2004, para. 694. ('The Chamber is satisfied that a single killing or a small number of killings do not constitute extermination. In order to give practical meaning to the charge of extermination, as distinct from murder, there must in fact be a large number of killings'); *Prosecutor v. Ntagerura*, ICTR-99-46-T, 25 February 2004, para. 701 ('Responsibility for a single or limited number of killings is insufficient to form the material element of extermination'); *Prosecutor v. Semanza*, ICTR-97-20-T, 15 May 2003, para. 340 ('The scale of killings must be substantial'; 'Responsibility for a single or limited number of killings is insufficient'); *Prosecutor v. Elizaphan and Gérard Ntakirutimana*, ICTR-96-10 & ICTR-96-17-T, 21 February 2003, para. 814 ('There is insufficient evidence as to a large number of individuals killed [one person in one indictment and two in the other] as a result of the



was endorsed by the ICTR Appeals Chamber in the *Ntakirutimana* case when it upheld the acquittal of an accused found responsible for extermination on the ground that his actions 'alone do not satisfy the mass scale killing element for the Appeals Chamber to be able to enter a conviction for extermination'<sup>695</sup>. This restrictive interpretation would mean that when there was sufficient proof against a member of a death squad that was carrying out extermination of only one of those mass killings that person could only be convicted of murder. Such an interpretation, however, has been expressly rejected in the Elements of Crimes which require killing of 'one or more persons'<sup>696</sup> while placing the emphasis on the question whether the killing took place in the context of a mass killing. One ICTR Trial Chamber has stated that a person may be convicted of extermination for planning the extermination, provided that there is a sufficient link between the planning and the killings<sup>697</sup>.

An ICTR Trial Chamber has held in the *Rutaganira* case that a person can be held individually criminally responsible in certain circumstances for extermination by omission, when the person failed to prevent others from committing the crime. It identified three factors in making that determination: (1) did the accused have power that he or she chose not to exercise?; (2) did the accused enjoy a moral authority over the principal perpetrators which could have prevented them from committing the crime which the accused chose not to exercise?; and (3) did the accused have a legal obligation to act that the accused did not fulfil<sup>698</sup>?

Courts differ fundamentally on the mental elements of extermination. ICTY Trial Chambers have stated that the perpetrator must have the same *mens rea* as for murder, 'which consists of the intention to kill or the intention to cause serious bodily injury to the victim which the perpetrator must have reasonably foreseen was likely to result in death'<sup>699</sup>. The ICTY Appeals Chamber has stated that the *mens rea* for extermination is that the perpetrator 'intended, by his acts or omissions, either killing on a large scale, or the subjection of a widespread number of people, or the systematic subjection of a number of people, to conditions of living that would lead to their deaths'<sup>700</sup>. In contrast, some ICTR Trial Chambers have stated in the *Bagilishema* and *Kayishema* cases that recklessness or gross negligence was sufficient to establish extermination<sup>701</sup>. However, in 2003, the ICTR Trial Chamber in the *Semanza* case stated that intent was required, expressly rejecting these two judgments and noting that the ICTR Appeals Chamber had not resolved the inconsistency

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Accused's actions. Therefore, the Chamber is not satisfied that Elizaphan Ntakirutimana or Gérard Ntakirutimana planned, instigated, ordered, committed or otherwise aided and abetted in the planning, preparation and execution of a crime against humanity (extermination)').

<sup>695</sup> *Prosecutor v. Ntakirutimana*, ICTR-96-10-A, 13 December 2004, para. 537.

<sup>696</sup> Element 1 to article 7 (1) (b).

<sup>697</sup> *Prosecutor v. Kayishema and Ruzindana*, ICTR-95-1-T, 21 May 1999, para. 146 (citing the statement by Egon Schwelb that extermination was included in the Nuremberg Charter to 'bring the earlier stages in the organisation of a policy of extermination under the action of the law'. Schwelb (1946) 23 *BYbIL* 178, 192).

<sup>698</sup> *Prosecutor v. Rutaganira*, ICTR-95-1C-T, 14 March 2005, paras. 68 and 64 (citing *Prosecutor v. Blaškić*, IT-95-14-T, 3 March 2000, para. 284, and *Prosecutor v. Rutaganda*, ICTR-96-3-T, 6 December 1999). In *Blaškić*, the ICTY Trial Chamber explained:

'the *actus reus* of aiding and abetting may be perpetrated through an omission, provided this failure to act had a decisive effect on the commission of the crime and that it was coupled with the requisite *mens rea*. In this respect, the mere presence at the crime scene of a person with superior authority, such as a military commander, is a probative indication for determining whether that person encouraged or supported the perpetrators of the crime'. *Ibid.*, para. 284i in *Rutaganda*, the ICTR Trial Chamber stated the general principle that 'an accused may participate in the commission of a crime either through direct commission of an unlawful act or by omission, where he has a duty to act', *Prosecutor v. Rutaganda*, ICTR-96-3-T, 6 December 1999, para. 41.

<sup>699</sup> See, for example, *Prosecutor v. Stakić*, IT-97-24-T, 31 July 2003, para. 642 (expressly rejecting recklessness or gross negligence as 'incompatible with the character of the crime of extermination and with the system and construction of article 5'); *Prosecutor v. Krstić*, IT-93-33-T, 2 August 2001, para. 495 (intent required).

<sup>700</sup> *Prosecutor v. Stakić*, IT-97-24-A, 22 March 2006, para. 259. As noted above with regard to the *actus reus*, this formulation confusingly incorporates the threshold for an attack into the definition of an act constituting a crime against humanity.

<sup>701</sup> *Prosecutor v. Bagilishema*, ICTR-95-1A-T, 7 June 2001, para. 89; *Prosecutor v. Kayishema and Ruzindana*, ICTR-95-1-T, 21 May 1999, paras. 144, 146.

between these ICTR judgments and ICTY jurisprudence<sup>702</sup>. In 2004, one ICTR Trial Chamber tried in the *Kamuhanda* case to reconcile the two diametrically opposite approaches by stating:

‘We do not interpret *Bagilishema* and *Kayishema* and *Ruzindana* to suggest that a person may be found guilty of a Crime against Humanity if he or she did not possess the requisite mens rea for such a crime, but rather to suggest that reckless or grossly negligent conduct are indicative of the offender’s mens rea. Understood in that way, the *Semanza* position is not at odds with the *Bagilishema* and *Kayishema* and *Ruzindana* judgments’<sup>703</sup>.

What this means in practical terms is unclear. Surprisingly, these inconsistencies do not appear to have even been raised in any of the appeals until the issue was addressed by the ICTR Appeals Chamber in *Ntakirutimana*<sup>704</sup>. In that case, the Appeals Chamber concluded:

‘Murder as a crime against humanity does not contain a materially distinct element from extermination as a crime against humanity; each involves killing within the context of a widespread or systematic attack against the civilian population, and the only element that distinguishes these offences is the requirement of the offence of extermination that the killings occur on a mass scale’<sup>705</sup>.

However, the Appeals Chamber did not state what the mental element was for either crime. Three possible additional mental elements of extermination (knowledge of a vast scheme of collective murder, discriminatory grounds and political motives) have been considered by the ICTY and ICTR which are inconsistent with the requirements of the Rome Statute and the Elements of Crimes. They have all been rejected by the ICTY, but one has been accepted by some ICTR Trial Chambers. First, in *Stakić*, the Appeals Chamber affirmed a Trial Chamber Judgment finding that there was no requirement that the perpetrator have knowledge of a ‘vast scheme of collective murder’<sup>706</sup>. In marked contrast, a number of ICTR Trial Chambers have imposed a high burden for prosecutors by holding that ‘[t]he accused must also be shown to have known of the vast scheme of collective murders directed against a civilian population on discriminatory grounds and to have been willing to take part in that scheme’<sup>707</sup>.

Second, there is no requirement for extermination to have been committed on discriminatory grounds (apart from the threshold discriminatory grounds in article 3 of the ICTR Statute, which is not a requirement under the customary international law definition of crimes against humanity)<sup>708</sup>. Third, ‘the ultimate reasons or motives – political or ideologi-

<sup>702</sup> *Prosecutor v. Semanza*, ICTR-97-20-T, 15 May 2003, para. 341. The Trial Chamber stated:

‘This Trial Chamber is of the view that, in the absence of express authority in the Statute or in customary international law, international criminal liability should be ascribed only on the basis of intentional conduct. Accordingly, the Chamber finds that the mental element for extermination is the intent to perpetrate or participate in a mass killing’.

*Ibid.* (fn. omitted). See also *Prosecutor v. Ntagerura*, ICTR-99-46-T, 25 February 2004, para. 701 (‘The mental element for extermination is the intent to perpetrate or to participate in mass killing’).

<sup>703</sup> *Prosecutor v. Kamuhanda*, ICTR-95-54A-T, 22 January 2004, para. 694 (Ruzindana was a co-defendant in the *Kayishema* case).

<sup>704</sup> For example, the Appeals Chamber noted in *Prosecutor v. Kamuhanda*, No. ICTR-99-54A-A, Judgement, Appeals Chamber, 19 September 2005, para. 85, that the convicted person did not challenge the Trial Chamber’s definition of extermination.

<sup>705</sup> *Prosecutor v. Ntakirutimana*, ICTR-96-10-A, 13 December 2004, para. 542.

<sup>706</sup> *Prosecutor v. Stakić*, IT-97-24-A, 22 March 2006, para. 259. It expressly rejected the Trial Chamber’s Judgment in *Prosecutor v. Vasiljević*, IT-98-32-T, 29 November 2002, paras. 228 and 229, which had concluded that the perpetrator must have known ‘that his action is part of a vast murderous enterprise in which a large number of individuals are systematically marked for killing or killed (*mens rea*)’, thus implying that an objective element of the crime is systematically marking for killing or killing’.

<sup>707</sup> *Prosecutor v. Bisengimana*, ICTR-00-60-T, 13 April 2006, para. 71. See also *Prosecutor v. Kayishema and Ruzindana*, ICTR-95-1-T, 21 May 1999, paras. 144–147; *Prosecutor v. Rutaganda*, ICTR-96-3-T, 6 December 1999, paras. 82–83; *Prosecutor v. Musema*, ICTR-96-13-T, 27 January 2000, para. 217; *Prosecutor v. Kamuhanda*, ICTR-95-54A-T, 22 January 2004, paras. 691, 692; *Prosecutor v. Ndindabahizi*, ICTR-2001-71-I, 15 July 2004, para. 479.

<sup>708</sup> *Prosecutor v. Vasiljević*, IT-98-32-T, 29 November 2002, para. 228 (no need to prove the accused acted on any discriminatory grounds); *Prosecutor v. Krstić*, IT-93-33-T, 2 August 2001, para. 500.

cal – for which the offender carried out the acts are not part of the required *mens rea* and are, therefore, legally irrelevant<sup>709</sup>. Jurisprudence has confirmed that in contrast to genocide, there is no requirement that the perpetrator intended to destroy, in whole or in part, the group as such<sup>710</sup>.

The Elements of Crimes were adopted before most of the judgments discussed above. It is, therefore, not surprising that this instrument identifies only two non-contextual elements of the crime of extermination that are generally applicable (see below for the intentional infliction of conditions of life). First, '[t]he perpetrator killed one or more persons', thus following the approach in the 1999 *Kayishema* Trial Chamber Judgment cited above<sup>711</sup>. A footnote explains that '[t]he conduct could be committed by different methods of killing, either directly or indirectly'<sup>712</sup>. The second element, which distinguishes extermination from murder, requires that '[t]he conduct constituted, or took place as part of, a mass killing of members of a civilian population'. A footnote explains that '[t]he term "as part of" would include the initial conduct in a mass killing'<sup>713</sup>. No further guidance is provided in the second element as to the scope of the concept of 'mass killing', and, as has been noted, jurisprudence also provides little guidance. However, since the example of killing by inflicting conditions of life (see below) requires only that this conduct be 'calculated' to bring about the destruction of part of a population, the scope of 'mass killing' will depend on the definition of a population. As has been aptly noted, the use of the words 'calculated to bring about the destruction of part of a population' bears resemblance with the corresponding language in article 6 (c) ('calculated to bring about ... physical destruction' of the group).<sup>714</sup> But in contrast to genocide, extermination does not contain a requirement of a special intent to destroy a group.<sup>715</sup> This becomes clear by a comparison of the Elements of Crimes to article 6.<sup>716</sup> The Elements of Crimes do not include a mental element for the crime of extermination, confirming that it is governed by article 30. This means that the *mens rea* of extermination in the ICC context might differ from *ad hoc* tribunal jurisprudence. Under existing jurisprudence, knowledge that death would be a 'probable consequence' of the act or omission would not suffice (see above the discussion of murder, mn 34).

Technically, the Statute and the Elements leave space to encompass a wide range of criminality into the definition of extermination. But in interpreting the crime, caution should be exercised not to inflate the meaning of the crime, and create overlap with charges for multiple murders under paragraph 1 (a)<sup>717</sup>.

**b) 'intentional infliction of conditions of life'.** Article 7 para. 2 (b) explains that extermination includes 'the intentional infliction of conditions of life, *inter alia* the deprivation of access to food and medicine, calculated to bring about the destruction of part of a population'. As the Cuban delegate explained, such acts could include embargoes which were calculated to achieve this result. The word 'calculated' suggests that the accused must have intended to bring about the destruction of part of a population. It would be in keeping with the purpose of the provision to include a siege of a village as 'part of a population'. Article 7 para. 1 (b) would appear to cover the same acts which are included in article 8 para. 2 (b) (xxv), the war crime of intentional starvation of civilians as a method of warfare in

<sup>709</sup> *Prosecutor v. Vasiljević*, IT-98-32-T, 29 November 2002, para. 228.

<sup>710</sup> See, for example, *ibid.*, para. 227; *Prosecutor v. Krstić*, IT-93-33-T, 2 August 2001, para. 500.

<sup>711</sup> For further background concerning the drafting of the elements of extermination, see Robinson, in: Lee (ed.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (2001) 80, 82–84.

<sup>712</sup> Element 1 to article 7 (1) (b), footnote 8.

<sup>713</sup> Element 1 to article 7 (1) (b), footnote 10.

<sup>714</sup> Ambos, *Treatise on ICL I* (2013) 296.

<sup>715</sup> See also Werle and Jessberger, *Principles of ICL* (2014) 353.

<sup>716</sup> In the context of article 7 paragraph 2 (b) and the Elements of Crimes, the element 'calculated to bring about the destruction' is only listed as an example of a particular form of extermination ('includes', 'including by').

<sup>717</sup> See *Prosecutor v. Lukić and Lukić*, IT-98-32/1-T, 20 July 2009, Partly Dissenting Opinion Judge Van den Wyngaert, para. 1120.

international armed conflict. Acts of genocide under article 6 (c) of '[d]eliberately inflicting on the group conditions of life calculated to bring about its physical destruction in whole or in part' when committed with an intent to destroy, in whole or in part, certain groups would also constitute extermination within the meaning of article 7 para. 1 (b), which protects a broader range of groups and includes omissions as well as acts.

Some of the judgments cited above indicate that extermination can involve the infliction of conditions of life that lead to the death of a large number of persons<sup>718</sup>. However, the first element of the crime of extermination – which reproduces the language of article 7 (2) (b) based on the Genocide Convention – uses a significantly different and probably less restrictive test: killing, 'including by inflicting conditions of life calculated to bring about the destruction of part of a population'. As noted by one of those who played a leading role in the drafting of article 7, there is some ambiguity about the meaning of 'calculated', including whether it is a subjective or objective requirement<sup>719</sup>. It requires determining the meaning of a population, rather than applying a numerical test. A footnote clarifies that '[t]he infliction of such conditions could include the deprivation of access to food and medicine'. Other conduct that may constitute inflicting conditions of life has been suggested in the *Kayishema* case<sup>720</sup>.

### 3. 'Enslavement'

- 119 a) **exercise of powers of ownership.** There is almost no jurisprudence in international criminal courts concerning the definition of enslavement, apart from decisions concerning sexual enslavement (see mn 61–62 and 121 concerning article 7 para. 1 (g) and para. 2 (c)). However, after a thorough review of the applicable law, the ICTY Appeals Chamber has concluded in the *Kunarac* case that the defining characteristic of the crime against humanity of enslavement is the 'destruction of the juridical personality' of a victim 'as a result of the exercise of any or all the powers attaching to the right of ownership', echoing the definition of slavery in the 1926 *Slavery Convention* (see mn 41)<sup>721</sup>. In addition, it has also confirmed the view in the First Edition of this commentary that the crime against humanity of enslavement includes contemporary forms of slavery<sup>722</sup>. In *Kunarac*, the ICTY Appeals Chamber in 2002 provided an extensive explanation of the scope of this crime:

'117. The Appeals Chamber accepts the chief thesis of the Trial Chamber that the traditional concept of slavery, as defined in the 1926 Slavery Convention and often referred to as "chattel slavery", has evolved to encompass various contemporary forms of slavery which are also based on the exercise of any or all of the powers attaching to the right of ownership. In the case of these various contemporary forms of slavery, the victim is not subject to the exercise of the more extreme rights of ownership associated with "chattel slavery", but in all cases, as a result of the exercise of any or all of the powers attaching to the right of ownership, there is some destruction of the juridical personality; the destruction is greater in the case of "chattel slavery" but the difference is one of degree. The Appeals Chamber considers that, at the time relevant to the alleged crimes, these contemporary forms of slavery formed part of enslavement as a crime against humanity under customary international law.

<sup>718</sup> ICTY: *Prosecutor v. Blagojević and Jokić*, IT-02-60-T, 17 January 2005, para. 574; *Prosecutor v. Stakić*, IT-97-24-T, 31 July 2003, para. 641. ICTR: *Prosecutor v. Kayishema and Ruzindana*, ICTR-95-1-T, 21 May 1999, paras. 144, 146.

<sup>719</sup> Clark, in: Politi and Nesi (eds.), *The Rome Statute of the International Criminal Court: A Challenge to Impunity* (2001) 75, 83.

<sup>720</sup> *Prosecutor v. Kayishema and Ruzindana*, ICTR-95-1-T, 21 May 1999, para. 146 ("The 'creation of conditions of life that lead to mass killing' is the institution of circumstances that ultimately causes the mass death of others. For example: Imprisoning a large number of people and withholding the necessities of life which results in mass death; introducing a deadly virus into a population and preventing medical care which results in mass death'). See also *Prosecutor v. Bagilishema*, ICTR-95-1A-T, 7 June 2001, para. 90.

<sup>721</sup> *Prosecutor v. Kunarac*, IT-96-23 and IT-96-23/1-A, 12 June 2002, para. 117.

<sup>722</sup> One commentator has stated that this crime is 'the same substantively as the offence of slavery under article 3 [Violation of the laws or customs of war] of the ICTY Statute'. Mettraux, *International Crimes and the Ad Hoc Tribunals* (2005) 179, note 28 (citing *Prosecutor v. Kunarac et al.*, IT-96-23-T and IT-96-23/1-T, 22 February 2001, para. 523; *Prosecutor v. Krnojelac*, IT-97-25-T, 15 March 2002, paras. 351, 356, 523).

118. The Appeals Chamber will however observe that the law does not know of a “right of ownership over a person”. Article 1 (1) of the 1926 Slavery Convention speaks more guardedly “of a person over whom any or all of the powers attaching to the right of ownership are exercised.” That language is to be preferred.

119. The Appeals Chamber considers that the question whether a particular phenomenon is a form of enslavement will depend on the operation of the factors or indicia of enslavement identified by the Trial Chamber. These factors include the “control of someone’s movement, control of physical environment, psychological control, measures taken to prevent or deter escape, force, threat of force or coercion, duration, assertion of exclusivity, subjection to cruel treatment and abuse, control of sexuality and forced labour”. Consequently, it is not possible exhaustively to enumerate all of the contemporary forms of slavery which are comprehended in the expansion of the original idea; this Judgement is limited to the case in hand<sup>723</sup>.

The *Kunarac* Appeals Chamber did not address the question whether the mere ability to buy, sell, trade or inherit a person or his or her labour or services could be a relevant factor in determining whether enslavement occurred. It concluded that lack of consent was not an element of the crime<sup>724</sup>. In addition, it declared that it was also not an element of the crime that the victims be enslaved for an indefinite or prolonged period of time<sup>725</sup>. The Appeals Chamber agreed with the Trial Chamber that the mental element of the crime of enslavement ‘consists of the intentional exercise of a power attaching to the right of ownership’<sup>726</sup>.

In the ICC context, the elements of enslavement have been specified by the Elements of Crimes<sup>727</sup>. Element 1 provides: ‘The perpetrator exercised any or all of the powers attaching to the right of ownership over a person, such as by purchasing, selling, lending or bartering such person or persons, or by imposing on them a similar deprivation of liberty’<sup>728</sup>. In the second edition of this commentary, fears have been expressed that this specification is inconsistent with the Rome Statute because it imposes a more restrictive approach. The replacement of the word ‘includes’ by ‘such as’ could be interpreted as changing the broadly

<sup>723</sup> *Prosecutor v. Kunarac*, IT-96-23 and IT-96-23/1-A, 12 June 2002, paras. 117–119.

<sup>724</sup> The *Kunarac* Appeals Chamber explained:

‘120. [T] he Appeals Chamber rejects the Appellants’ contention that lack of resistance or the absence of a clear and constant lack of consent during the entire time of the detention can be interpreted as a sign of consent. Indeed, the Appeals Chamber does not accept the premise that lack of consent is an element of the crime since, in its view, enslavement flows from claimed rights of ownership; accordingly, lack of consent does not have to be proved by the Prosecutor as an element of the crime. However, consent may be relevant from an evidential point of view as going to the question whether the Prosecutor has established the element of the crime relating to the exercise by the accused of any or all of the powers attaching to the right of ownership. In this respect, the Appeals Chamber considers that circumstances which render it impossible to express consent may be sufficient to presume the absence of consent. In the view of the Appeals Chamber, the circumstances in this case were of this kind’.

*Id.*, para. 120. In contrast, in determining whether forced labour as an act of persecution occurred, the Appeals Chamber discussed the lack of consent as a relevant factor. *Prosecutor v. Krnojelac*, IT-97-25-A, 17 September 2003, paras. 191–196 (because it reversed the acquittal on the charge of persecution, it did not determine whether the Trial Chamber had erred on the acquittal for enslavement based on the same facts).

<sup>725</sup> The *Kunarac* Appeals Chamber stated:

‘121. The Appellants contend that another element of the crime of enslavement requires the victims to be enslaved for an indefinite or at least for a prolonged period of time. The Trial Chamber found that the duration of the detention is another factor that can be considered but that its importance will depend on the existence of other indications of enslavement. The Appeals Chamber upholds this finding and observes that the duration of the enslavement is not an element of the crime. The question turns on the quality of the relationship between the accused and the victim. A number of factors determine that quality. One of them is the duration of the relationship. The Appeals Chamber considers that the period of time, which is appropriate, will depend on the particular circumstances of each case’.

*Prosecutor v. Kunarac*, IT-96-23 and IT-96-23/1-A, 12 June 2002, para. 121.

<sup>726</sup> *Prosecutor v. Kunarac*, IT-96-23 and IT-96-23/1-A, 12 June 2002, para. 122. It also stated that it was not necessary ‘to prove that the accused intended to detain the victims under constant control for a prolonged period of time in order to use them for sexual acts’, *ibid.*

<sup>727</sup> See also Bassiouni, *Crimes against Humanity* (2011) 380.

<sup>728</sup> Element 1 to article 7 (1) (c).

worded illustrative language into a more restrictive list where, if the Court were to follow it, only conduct in the list or similar conduct, which is largely commercial in nature, would constitute enslavement<sup>729</sup>. These concerns have been mitigated in jurisprudence<sup>730</sup>. In the *Katanga and Ngudjolo Chui* Confirmation Decision, PTC I included non-commercial practices in the definition of sexual slavery<sup>731</sup>. The *Katanga* Trial Chamber recognised that the powers of ownership listed in the parallel Element 1 of article 7 (1) (g)-2 do not constitute an exhaustive list<sup>732</sup>. It specified that ownership does not require a 'commercial transaction' but rather relates to the inability of a victim to change his or her condition<sup>733</sup>.

The use of the term 'similar deprivation of liberty' in the Elements of Crimes implies that the list is not exhaustive. It has been argued in the previous edition that the term must be interpreted more broadly than the concept of detention (see mn 150 on enforced disappearances) in order to be consistent with the Rome Statute. This understanding is reflected in the *Katanga* Trial Judgment which held that 'deprivation of liberty' can take many forms, and that in this assessment the victim's subjective perception of his or her situation, including reasonable fears, may be taken into account. In the drafting history, this alternative phrase has been criticised as too restrictive<sup>734</sup>. As a result of these concerns, a footnote partially addresses these concerns. It indicates that 'such deprivation of liberty may, in some circumstances, include exacting forced labour or otherwise reducing a person to a servile status as defined in the Supplementary Convention on the Abolition of Slavery, the Slave Trade, and Institutions and Practices Similar to Slavery of 1956.'<sup>735</sup> 'Servile status' under the Supplementary Convention includes debt bondage, serfdom, certain forms of forced marriage and child exploitation, 'whether or not they are covered by the definition of slavery contained in article 1 of the Slavery Convention'<sup>736</sup>. The wording of the footnote clearly extends enslavement beyond 'chattel slavery'. It suggests some leeway to take into account contemporary situations analogous to slavery, in particular if the concept of 'ownership' required under article 7 (2) (c) is interpreted in light of the freedom of choice of the victim, rather than the formal power of control of the agent<sup>737</sup>. It also includes, as article 7 para. 2 (c) states, the exercise of ownership in 'the course of trafficking in persons, in particular women and children' (see following section). The mental element of the crime of enslavement is to be found in article 30.

<sup>729</sup> See Hall (2000) 94 *AJIL* 773, 781. One government delegate involved in the drafting of this provision has contended that the term 'such as' makes 'it clear that the list is illustrative and open-ended'. Robinson, in: Lee (ed.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (2001) 80, 85. This interpretation, which is the only way to reconcile this language with the Rome Statute, was not universally shared by other government delegates or by non-governmental organisations with experience in working to end enslavement who remained concerned that it could be read restrictively. Another commentator, who was closely involved in the drafting of this provision, stated that the list was 'non-exhaustive', but did not discuss the change from the statutory language, only the effect of the alternative ground. Dörmann, *Elements of War Crimes under the Rome Statute of the International Criminal Court* (2002), 328.

<sup>730</sup> See also Schabas, *Commentary ICC* (2010), 161.

<sup>731</sup> *Prosecutor v. Katanga and Ngudjolo Chui*, ICC-01/04-01/07-717, 30 September 2008 (PURL: <https://www.legal-tools.org/doc/67a9ec/>), para. 430.

<sup>732</sup> *Prosecutor v. Katanga*, ICC-01/04-01/07-3436, 7 March 2014 (PURL: <https://www.legal-tools.org/doc/9813bb/>), para. 975.

<sup>733</sup> *Ibid.*, para. 976.

<sup>734</sup> Dörmann, *Elements of War Crimes under the Rome Statute of the International Criminal Court* (CUP 2002), 328.

<sup>735</sup> See footnote 11 relating to Element 1 to article 7 (1) (c).

<sup>736</sup> See article 1 of the *Supplementary Convention on the Abolition of Slavery, the Slave Trade, and Institutions and Practices Similar to Slavery*, Geneva, 7 September 1956, 266 UNTS 3.

<sup>737</sup> Based on the wording of article 7 (1) (c), it has been argued that forms of servitude listed in the Supplementary Slavery Convention qualify as enslavement only where they entail the exercise of 'powers attached to the right of ownership'. See Haenen (2013) 13 *ICLRev* 895, 902, fn. 38. But the 'subjective' understanding of ownership adopted in jurisprudence encompasses a potentially wide range of relationships. On the different approaches towards 'ownership', see *R v. Wei Tang*, High Court of Australia, 28 August 2008, (2008) 237 *CLR* 1.



**b) trafficking.** Trafficking in persons is a wider concept than slavery or practices similar to slavery<sup>738</sup>. It evolved separately and largely independently of the movement to abolish the slave trade and slavery. It has been addressed by a series of 20<sup>th</sup> century instruments prohibiting the trafficking in persons, particularly women and children, adopted before the Rome Statute<sup>739</sup>. Under current international treaties adopted during the 20<sup>th</sup> century prohibiting trafficking in persons, this crime against humanity has been generally viewed as limited to trafficking for the purposes of forced prostitution<sup>740</sup>. The 1949 Trafficking Convention requires States Parties

‘to punish any person who, to gratify the passions of another:

- (1) Procures, entices or leads away, for purposes of prostitution, another person, even with the consent of that person;
- (2) Exploits the prostitution of another person, even with the consent of that person<sup>741</sup>.

It also requires States Parties to punish persons keeping, managing or financing brothels<sup>742</sup>. However, a major step forward occurred as the 20<sup>th</sup> century drew to a close when, building upon article 7 para. 2 (c), the UN General Assembly adopted the *Protocol to Prevent, Suppress and Punish Trafficking in Persons, Especially Women and Children* (Palermo Protocol), supplementing the *United Nations Convention against Transnational Organised Crime*, which prohibits trafficking for reasons other than forced prostitution. Article 3 para. (a) defines trafficking in persons as follows:

“‘Trafficking in persons” shall mean the recruitment, transportation, transfer, harbouring or receipt of persons, by means of the threat or use of force or other forms of coercion, of abduction, of fraud, of deception, of the abuse of power or of a position of vulnerability or of the giving or receiving of payments or benefits to achieve the consent of a person having control over another person, for the purpose of exploitation. Exploitation shall include, at a minimum, the exploitation of the prostitution of others or other forms of sexual exploitation, forced labour or services, slavery or practices similar to slavery, servitude or the removal of organs[.]’<sup>743</sup>

Four years later, on 3 May 2005, the Council of Europe adopted the *European Convention on Action against Trafficking in Human Beings*, which declared in its Preamble that ‘trafficking in human beings constitutes a violation of human rights and an offence to the

<sup>738</sup> Slavery or slavery-like practices are only one form of relevant exploitation. See Van der Wilt (2014) 13 *ChineseJl* 297, 303. See generally Gallagher, *The International Law of Human Trafficking* (2010) 177–191; Obokata, (2005) 54 *I&CompLQ* 445; Pocar, in: Savona and Stefanizzi (eds.), *Measuring Human Trafficking: Complexities and Pitfalls* (2007), 1, 5–12.

<sup>739</sup> These treaties include: *International Convention for the Suppression of the White Slave Traffic*, 18 May 1904, 35 Stat. 426, 1 LNTS 83 (as amended by the Protocol of 4 May 1949, 92 UNTS 19); *International Convention for the Suppression of White Slave Traffic*, 4 May 1910, 3 LNTS 278 (as amended by the Protocol of 4 May 1949, 92 UNTS 19); *International Convention for the Suppression of the Traffic in Women and Children*, 30 September 1921 (as amended in Protocol signed at Lake Success, New York, on 12 November 1947, 93 UNTS 43); *International Convention on the Suppression of the Traffic in Women of Full Age*, 11 October 1933 (as amended in Protocol signed at Lake Success, New York, on 12 November 1947, 93 UNTS 43); *Convention for the Suppression of the Traffic in Persons and of the Exploitation of the Prostitution of Others*, adopted in GA Res 317 (IV) of 2 December 1949, 96 UNTS 272; *American Convention on Hum. Rts.*, 22 November 1969, 1144 UNTS 123, article 6, para. 1; *Convention on the Elimination of All Forms of Discrimination against Women*, 18 December 1979, 12 UNTS 14, article 6. See also GA Res A/52/637 (12 December 1997).

<sup>740</sup> Chuang (1998) 11 *HarvILJ* 64 (arguing for an expansion of treaty protection to cover modern manifestations of trafficking involving ‘the coerced recruitment and transportation of women not only for forced prostitution, but for a variety of other forced labour and slavery-like practices, such as forced domestic labour, factory labour and commercial marriages’).

<sup>741</sup> *Convention for the Suppression of the Traffic in Persons and of the Exploitation of the Prostitution of Others*, adopted in GA Res 317 (IV) of 2 December 1949, 96 UNTS 272, article 1.

<sup>742</sup> *Ibid.*, article 2.

<sup>743</sup> *Protocol to Prevent, Suppress and Punish Trafficking in Persons, Especially Women and Children, Supplementing the United Nations Convention against Transnational Organised Crime*, GA Res. 55/25, 8 January 2001, (167 States Parties up to 24 August 2015).

dignity and the integrity of the human being'<sup>744</sup>. Article 4 of the European Convention uses exactly the same definition as in the UN Protocol and article 18 requires each State Party to 'adopt such legislative and other measures as may be necessary to establish as criminal offences the conduct contained in article 4 of this Convention, when committed intentionally'<sup>745</sup>. However the European Convention goes further than the UN Protocol and other instruments concerning trafficking in a number of respects<sup>746</sup>.

- 122 In the ICC context, the inclusion of trafficking as a crime against humanity was contested. The Women's Caucus for Gender Justice lobbied for the inclusion of trafficking as an independent crime. It challenged the focus on ownership, in order to include systematic recruitment and forced labour, as well as exploitation by persons other than the traffickers<sup>747</sup>. The current framing of trafficking as part of enslavement goes back to a proposal by Italy on 3 July 1998 which clarified that the definition of enslavement in paragraph 2 (c) of article 7 of the Rome Statute 'includes the exercise of any or all of the powers attaching to the right of ownership over a person ... in the course of trafficking in persons, in particular women and children'. This clarification is significant since it precludes a perpetrator from claiming that he has not 'enslaved' because he has not literally 'put the person to work'<sup>748</sup>. It implies that certain forms of trafficking can be assimilated to enslavement. The definition of this crime is broader than in previous treaties: it goes beyond sexual exploitation<sup>749</sup> and is not limited to women and children. But the required link to the exercise of ownership over a person makes it clear that not 'all' forms and elements of network criminality in the trafficking in human beings amount to a crime against humanity under the Statute<sup>750</sup>. The scope of the conduct covered will depend on the interpretation of the concept of exercising powers of ownership, discussed above (see above mn 119–120). Criteria used in existing international jurisprudence (e.g., *Kunarac, Katanga and Ngudjolo Chui, Katanga*) have synergies with the 'means' requirement under the Palermo Protocol ('abuse of power', the 'victim's position of vulnerability'). In the previous edition, it has been argued that the provision should 'be given a broad reading' and that 'it should be interpreted consistently with contemporary understanding of the concept of trafficking in persons'. But in light of the limited jurisdiction of the ICC, some caution is required. Although existing interpretations of the concepts of 'policy' and 'organisation' leave some leeway to take into account trafficking by non-state actors<sup>751</sup>, the Court would be ill-equipped to prosecute a vast number of 'organised criminal groups', as defined by the *United Nations Convention against Transnational Organised Crime*<sup>752</sup>.

<sup>744</sup> European Convention on Action against Trafficking in Human Beings, CM (2005) 32 Addendum 1 final, adopted 3 May 2005. The draft convention has been severely criticised by non-governmental organisations. See, for example, Amnesty International and Anti-Slavery International, Council of Europe, *Recommendations to Strengthen October 2004 Draft of the European Convention on Action against Trafficking in Human Beings*, AI Index: IOR 61/024/2004, 12 November 2004.

<sup>745</sup> *Ibid.*, articles 4 (a) and 18. Sub-paragraph (b) of article 4 provides that the consent of a victim is 'irrelevant where any of the means set forth in subparagraph (a) have been used'.

<sup>746</sup> It recognizes trafficking in human beings as a violation of human rights; covers all forms of trafficking regardless of whether it is linked to organised crime; applies to all persons regardless of whether they are women, children or men; and establishes a comprehensive legal framework of specific measures to protect victims and witnesses, including an independent monitoring system. See Explanatory Report on the Council of Europe Convention on Action against Trafficking in Human Beings, para. 51; reproduced in Council of Europe Convention on Action against Trafficking in Human Beings and its Explanatory Report, CETS No. 197, Warsaw, 16 May 2005 (<http://conventions.coe.int/Treaty/en/Treaties/Html/197.htm>, accessed 13 February 2015).

<sup>747</sup> For survey, see Robinson, in: Lee *The International Criminal Court* (2001) 80, 84–85.

<sup>748</sup> Bassiouni, *Crimes against Humanity* (2011) 380.

<sup>749</sup> A reference to 'purpose of sexual exploitation' following 'women and children' was eliminated. This extends the scope beyond sexual exploitation.

<sup>750</sup> Concurring Van der Wilt (2014) 13 *ChineseJIL* 297, 308.

<sup>751</sup> On the broad approach towards 'organisation', defined by 'capacity', see mn 110.

<sup>752</sup> See *United Nations Convention against Transnational Organised Crime*, Palermo 15 November 2000, 2237 UNTS 319. Article 2, which includes 'a structured group of three or more persons, existing for a period of time

There appears to be no jurisprudence by international criminal courts on trafficking as a particular form of enslavement, despite its prevalence in certain countries in the former Yugoslavia<sup>753</sup>. It is not separately mentioned in the single element of the crime of enslavement, but a footnote recalls the statutory language by stating that '[i]t is also understood that the conduct described in this element includes trafficking in persons, in particular women and children'.

#### 4. 'Prohibited movements of population'

The Rome Statute recognizes two similar, but distinct, crimes against humanity constituting forced displacement of persons: deportation across national frontiers and forcible transfer of population within national frontiers<sup>754</sup>. The Geneva Conventions and its Additional Protocols suggest that the crime of deportation – and by analogy the crime of forcible transfer – relates to a civilian population. The crime itself refers to the broader notion of 'population'. As noted by the Trial Chamber in *Popović*, the 'civilian status of the victims' needs to be established to determine if the chapeau requirements have been met.

It also helps to distinguish lawful acts from criminal ones, since acts of detention and forced movement can 'in some circumstances ... be perfectly legitimate'<sup>755</sup>. But it is not a separate element of the crime<sup>756</sup>.

a) 'Deportation'. The crime against humanity of deportation across national frontiers includes only deportation which is unlawful under international law; it excludes lawful deportation. The concept includes deportation of nationals and aliens. Deportation by a State of its *own nationals* is usually prohibited<sup>757</sup>. The scope of lawful deportation of *aliens* from the territory of a State is limited under international law<sup>758</sup>. Like the war crime of 'deportation to slave labour or any other purpose' in article 6 (b) of the Nuremberg Charter, the crime against humanity of deportation under the Statute applies regardless of the purpose of the deportation. Deportation under article 7 para. 1 (d) is not limited to deportation from an occupied territory to another country<sup>759</sup>.

aa) 'lawfully present'. The requirement that the deportation of persons be 'from the area where they are lawfully present' must mean not only where they are lawfully present under national law, but also where they are lawfully present under international law<sup>760</sup>. Any other reading would make the definition of deportation meaningless as it would permit a government to declare that the people to be deported were not 'lawfully present' in the territory of a State or in occupied territory on grounds which were contrary to international law and escape

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and acting in concert with the aim of committing one or more serious offences, ... in order to obtain, directly or indirectly, a financial or other material benefit'.

<sup>753</sup> Apparently, there has been only one – unsuccessful – prosecution for this crime by the UNMIK Regulation 64 international panels in Kosovo. See, for example, Amnesty International, *Serbia and Montenegro: Shameful investigation into sex-trafficking case* (1 February 2005, AI Index: EUR 70/001/2005); Amnesty International, *Kosovo (Serbia and Montenegro): 'So Does It Mean that We Have the Rights?' Protecting the Human Rights of Women and Girls Trafficked for Forced Prostitution in Kosovo* (6 May 2004, AI Index: EUR 70/010/2004).

<sup>754</sup> See generally on historical development: Dawson and Farber, *Forcible Displacement Throughout the Ages: Towards an International Convention for the Prevention and Punishment of the Crime of Forcible Displacement* (2012); Jacques, *Armed Conflict and Displacement* (2012); Bassiouni, *Crimes against Humanity* (2011) 381–396.

<sup>755</sup> *Prosecutor v. Popović et al.*, IT-05-88-T, 10 June 2010, para. 912.

<sup>756</sup> *Ibid.*, para. 910.

<sup>757</sup> Weiss, *Nationality and Statelessness in International Law* (2<sup>nd</sup> edition 1979) 45–61; Goodwin-Gill, *International Law and the Movement of Persons between States* (1978) 202, 213–214, 287.

<sup>758</sup> For circumstances when deportation of aliens has been considered lawful under international law, see Goodwin-Gill, *International Law and the Movement of Persons between States* (1978) 200–310.

<sup>759</sup> Although one commentator considered that deportation under the Nuremberg Charter was a crime against humanity only if it applied to civilians in an occupied territory, this view (see Schwelb (1946) 23 *BYbIL* 178, 192), even if it were correct at the time, certainly is not now.

<sup>760</sup> Concurring Cryer et al., *Introduction to ICL* (2014) 248, fn. 147; Werle and Jessberger, *Principles of ICL* (2014) 360 propose to rely on international law only.

international criminal responsibility<sup>761</sup>. Nationals have a right to reside in the territory of their own State; although international instruments do not provide a general right to aliens to enter the territory of a State, a State's power to restrict entry to its territory is not unlimited<sup>762</sup>. Lawful presence may arise as a result of *non-refoulement* obligations warranting presence of asylum seekers and refugees<sup>763</sup>. In ICTY jurisprudence, the notion of presence has been distinguished from requirements for residency. Notably, the Trial Chamber in *Popović* argued that

[t]he clear intention of the prohibition against forcible transfer and deportation is to prevent civilians from being uprooted from their homes and to guard against the wholesale destruction of communities. In that respect, whether an individual has lived in a location for a sufficient period of time to meet the requirements for residency or whether he or she has been accorded such status under immigration laws is irrelevant. Rather, what is important is that the protection is provided to those who have, for whatever reason, come to "live" in the community—whether long term or temporarily ... the requirement for lawful presence is intended to exclude only those situations where the individuals are occupying houses or premises unlawfully or illegally and not to impose a requirement for "residency" to be demonstrated as a legal standard.<sup>764</sup>

Although the question of lawful presence was discussed at some length in the Preparatory Commission, the second material element of this crime listed in the Elements of Crimes simply reiterates the language in article 7 para. 2 (d), thus leaving this matter for the Court to decide, possibly by reference to article 21 on applicable law<sup>765</sup>.

In determining whether persons whose initial presence on lands was unlawful under national – as opposed to international – law, it should be born in mind that under general principles of law common to many legal systems, persons continually present on land can, after a specified lapse of time, gain a valid right to remain on the land or even legal title<sup>766</sup>. Mass expulsions of persons claiming a right to remain present without a fair judicial determination that their presence was unlawful under both national and international law would constitute forcible transfer of population<sup>767</sup>. This restriction is consistent with the right of every human being 'to be protected against being arbitrarily displaced from his or her home or place of habitual residence'<sup>768</sup>. The only specific mental element for this crime is

<sup>761</sup> Concurring Ambos and Wirth (2002) 13 *CLF* 1, 60. Similarly, the provision in the definition of torture in article 1 of the Convention against Torture excluding 'pain or suffering arising only from, inherent in or incidental to lawful sanctions' applies only to sanctions which are lawful under international law. See mn 134.

<sup>762</sup> Human Rights Committee, General Comment No. 15/27, para. 5 ('in certain circumstances an alien may enjoy the protection of the Covenant even in relation to entry or residence, for example, when considerations of non-discrimination, prohibition of inhuman treatment and respect for family life arise'); Nowak, *UN Covenant on Civil and Political Rights: CCPR Commentary* (1993) 263–264 (a refugee from a neighbouring State who was tortured may not be refused entry at border but must be granted at least temporary residence).

<sup>763</sup> Non-refoulement under article 33 of the 1951 Refugee Convention is not explicitly tied to regular entry of territory. For discussion see Chetail (forthcoming).

<sup>764</sup> *Prosecutor v. Popović et al.*, IT-05-88-T, 10 June 2010, para. 900; *Prosecutor v. Đorđević*, No. IT-05-87/1-T, Judgment, Trial Chamber, 23 February 2011, paras. 1616 and 1640.

<sup>765</sup> Robinson, in: Lee (ed.), *The International Criminal Court* (2001) 80, 87.

<sup>766</sup> Of course, this principle would not apply when the presence of the targeted population was unlawful under international law, for example, when the presence was a war crime under article 8 para. 2 (b) (viii).

<sup>767</sup> Several international instruments prohibit collective expulsion of aliens. See article 22(1) of the *International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families*, 18 December 1990, 2220 UNTS 3; article 22(9) of the American Convention on Hum. Rts., 22 November 1969, 1144 UNTS 123; article 12(5) of the *African Charter on Human and Peoples' Rights*, 27 June 1981, 1520 UNTS 217; article 4 of Protocol No. 4 to the *European Convention on Human Rights*, 16 September 1963, CETS No. 046; and article 26(2) of the Arab Charter on Human Rights, 22 May 2004, reprinted in (2005) 12 *I HumRtsRep.* 893.

<sup>768</sup> Guiding Principles, principle 6, para. 1. Paragraph 2 explains, in a non-exhaustive list, that '[t]he prohibition of arbitrary displacement includes displacement:

- (a) When it is based on policies of apartheid, "ethnic cleansing" or similar practices aimed at/or resulting in altering the ethnic, religious or racial composition of the affected population;
- (b) In situations of armed conflict, unless the security of the civilians involved or imperative military reasons so demand;
- (c) In cases of large-scale development projects, which are not justified by compelling and overriding public interests;

that the perpetrator be 'aware of the factual circumstances that established the lawfulness of such presence'. Therefore, there is no need to demonstrate that the perpetrator made any legal determination concerning the lawfulness of the victim's presence or was aware that it was lawful.

**bb) Without permitted grounds.** International law prohibits States from deporting nationals in most cases and from deporting aliens arbitrarily<sup>769</sup>. During armed conflict, deportation is prohibited, except for a few strictly limited grounds for the benefit of the persons concerned and on a temporary basis only. During an international armed conflict, deportation from occupied territory is prohibited under customary international law, as reflected in article 8 para. 2 (a) (vii) of the Rome Statute, prohibiting '[u]nlawful deportation' of persons protected by the Fourth Geneva Convention, and article 8 para. 2 (b) (viii), prohibiting, as another serious violation of the laws and customs applicable in armed conflict, 'within the established framework of international law', 'the deportation ... of all or parts of the population of the occupied territory within or outside this territory'.<sup>770</sup> Article 49 of the Fourth Geneva Convention prohibits:

'Individual or mass forcible transfers, as well as deportations of protected persons from occupied territory to the territory of the Occupying Power or to that of any other country, occupied or not, are prohibited regardless of their motive'.

Article 147 of the Fourth Geneva Convention lists the 'unlawful deportation ... of a protected person' as a grave breach of that Convention. The only exception to the prohibition of deportation is that 'the Occupying Power may undertake total or partial evacuation of a given area if the security of the population or imperative military reasons so demand'.<sup>771</sup> A similar prohibition applicable to non-international armed conflict, but without any express exceptions, is found in paragraph 2 of article 17 of Add. Prot. II, which states that '[c]ivilians shall not be compelled to leave their own territory for reasons connected with the conflict'<sup>772</sup>. See article 8 para. 2 (a) (vii), (b) (viii) and (e) (viii) of the Rome Statute. Article 19 of the Third Geneva Convention provides for the evacuation of prisoners of war out of the combat zone and into internment facilities, subject to certain conditions.

The ICTY has only recognised limited grounds permitting forced displacements, based on the legal regime governing evacuations under international humanitarian law. It specified that evacuations must be 'temporary'<sup>773</sup> and an 'exceptional measure'. It recognised three justifications. It argued that evacuation is permitted to ensure the security of the population 'when the area in which the population is located is in danger as a result of "military

- (d) In cases of disasters, unless the safety and health of those affected requires their evacuation; and  
(e) When it is used as a collective punishment'.

<sup>769</sup> ICCPR, article 12 para. 4 (no one may be arbitrarily deprived of the right to enter own country); article 13 (no alien lawfully in territory may be expelled except by decision in accordance with law); ECHR, Protocol 4, article 3 (no expulsion of nationals or denial of their right to enter) and article 4 (collective expulsion of aliens prohibited). The Commentary on article 18 (g) of the 1996 ILC Draft Code explained that use of the term 'arbitrary' in the crime against humanity of 'arbitrary deportation' was designed 'to exclude the acts when committed for legitimate reasons, such as public health or well-being, in a manner consistent with international law'. Although this concept is part of the crime against humanity of deportation, those particular examples do not appear to have been cited by the drafters of article 7 para. 1 (d) or para. 2 (d) (in contrast to the crime of forcible transfer).

<sup>770</sup> See also article 85 of Add. Prot. I which prohibits 'the transfer by the Occupying Power of parts of its own civilian population into the territory it occupies, or the deportation or transfer of all or part of the population of the occupied territory within or outside this territory in violation of article 49 of the Fourth Convention'.

<sup>771</sup> Article 49 (2) of the Fourth Geneva Convention specifies that 'evacuations may not involve the displacement of protected persons outside the bounds of the occupied territory except when for material reasons it is impossible to avoid such displacement. Persons thus evacuated shall be transferred back to their homes as soon as hostilities in the area in question have ceased'.

<sup>772</sup> Article 8 para. 2 (e) (viii) of the Rome Statute, which is modeled on paragraph 1 of article 17 of Add. Prot. II, uses the broader term 'displacement', rather than 'deportation'.

<sup>773</sup> *Prosecutor v. Blagojević and Jokić*, IT-02-60-T, 17 January 2005, para. 597.

operations” or “intense bombing”, since a commander may be duty bound to evacuate in the interest of the protection of the civilian population<sup>774</sup>. It noted that evacuation is allowed for ‘imperative military reasons [...]’, i.e. when the presence of the population hampers military operations<sup>775</sup>, while adding that it is ‘unlawful to use evacuation measures based on imperative military reasons as a pretext to remove the population and effectuate control over a desired territory’<sup>776</sup>.

Third, the Tribunal considered to what extent evacuations would be permitted for ‘humanitarian reasons’, i.e., outside the prohibition of article 17 of Additional Protocol II referred to above. It noted that parties to the conflict may displace civilians for certain non-conflict related reasons, such as ‘the outbreak or risk of outbreak of epidemics, natural disasters, or the existence of a generally untenable and life-threatening living situation’<sup>777</sup>, unless the humanitarian crisis ‘is itself the result of the physical perpetrator’s or accused’s own unlawful activity’<sup>778</sup>. Lawful evacuations, covered by the three recognised exceptions, do not form part of the crime. But if they are carried in violation of duties under article 49(3) of the Fourth Geneva Convention or article 17(1) of Additional Protocol II, they can turn into criminal conduct<sup>779</sup>.

- 127 b) ‘forcible transfer’. The statutory term ‘forcible transfer of population’ within national frontiers would appear to require the involuntary movement of a number of persons, or at least the intent to force such movement, rather than the unlawful transfer of a single individual, unless it was part of a transfer of a population or group of persons<sup>780</sup>. However, the first material element of this crime listed in the Elements of Crimes requires only the forcible transfer of ‘one or more persons’. Presumably, this formulation was adopted to ensure that lower-level individuals could be convicted of forcible transfers when they themselves were responsible for transfers of only one or more persons out of a targeted group or population<sup>781</sup>. Otherwise, only the highest ranking persons could ever be held criminally responsible for the forcible transfer of a population and their subordinates who carried the forcible transfer might escape criminal responsibility for this crime. Since forcible transfer applies within national frontiers, expulsion should be given its ordinary meaning rather than its more technical meaning in the context of deportation. The first material element of the crime of forcible transfer listed in the Elements of Crimes simply repeats the term ‘expulsion or other coercive acts’ without further explanation. However, considering the recent history of internal displacement of people, and the broad definition of the term ‘forcibly’ in footnote 12 to the first material element (mn 47), the largely duplicative phrase ‘expulsion or other coercive acts’ must include the full range of coercive pressures on people to flee their homes, including death threats, destruction of their homes, and other acts of persecution, such as depriving members of a group of employment, denying them access to schools and forcing them to wear a symbol of their religious identity. In the *Krnjelac* case, the ICTY Appeals Chamber held that it is the absence of genuine choice that makes a displacement unlawful and that mere expression of consent is insufficient to demonstrate consent when circumstances deprive the consent of any value<sup>782</sup>.

<sup>774</sup> See *Prosecutor v. Blagojević and Jokić*, IT-02-60—T, 17 January 2005, para. 598.

<sup>775</sup> *Ibid.*

<sup>776</sup> *Prosecutor v. Popović et al.*, IT-05-88 -T, 10 June 2010, para. 901; see also *Prosecutor v. Blagojević and Jokić*, IT-02-60—T, 17 January 2005, para. 597.

<sup>777</sup> *Prosecutor v. Blagojević and Jokić*, IT-02-60—T, 17 January 2005, para. 600.

<sup>778</sup> *Prosecutor v. Popović et al.*, IT-05-88-T, 10 June 2010, para. 903.

<sup>779</sup> See Ambos, *Treatise on ICL II* (2014) 87.

<sup>780</sup> The requirement that the movement be forced was in part based on concerns by the delegation of Israel, supported by the US delegation. See, McCormack, in: McGoldrick, Rowe and Donnelly (eds.), *The Permanent International Criminal Court: Legal and Policy Issues* (2004) 179, 192.

<sup>781</sup> The term ‘population’ has been interpreted in the context of extermination to mean groups as small as a neighbourhood and a similar approach should apply to forced displacement. *Prosecutor v. Kamuhanda*, ICTR-95-54A-T, 22 January 2004, para. 694.

<sup>782</sup> *Prosecutor v. Krnjelac*, IT-97-25-A, 17 September 2003, para. 229.



aa) ‘lawfully present’. The requirement that the transfer of population be ‘from the area where they are lawfully present’ must mean where they are lawfully present within the territory of the State or occupied territory under international law. Any other reading would make the definition meaningless as it would permit a government to declare that the people to be transferred were not ‘lawfully present’ in the area and escape criminal responsibility<sup>783</sup>. Although this question was discussed at some length in the Preparatory Commission, the second element of this crime simply reiterates the language in article 7 para. 2 (d), thus leaving this matter for the Court to decide, possibly by reference to article 21 on applicable law<sup>784</sup>. In determining whether persons whose initial presence on lands was unlawful under national – as opposed to international – law, it should be born in mind that under general principles of law common to many legal systems, persons continually present on land can, after a specified lapse of time, gain a valid right to remain on the land or even legal title<sup>785</sup>. Mass expulsions of persons claiming a right to remain present without a fair judicial determination that their presence was unlawful under both national and international law would constitute forcible transfer of population. This restriction is consistent with the right of every human being ‘to be protected against being arbitrarily displaced from his or her home or place of habitual residence’<sup>786</sup>. As may be inferred from *Popović*, protection may encompass ‘internally displaced persons who have established temporary homes after being uprooted from their original community’.<sup>787</sup> The only specific mental element for this crime is that the perpetrator be ‘aware of the factual circumstances that established the lawfulness of such presence’. Therefore, there is no need to demonstrate that the perpetrator made a legal determination or was aware of the lawfulness of the victim’s presence.

bb) **Without permitted grounds.** The power of States to restrict the freedom of nationals and aliens who are lawfully present to move within the territory is limited by international law to restrictions which are in accordance with law and are necessary in a democratic society in the interests of national security or public safety, for the maintenance of public order (*ordre public*), for the protection of health or morals, or for the protection of the rights of others, provided such restrictions are consistent with other human rights guarantees<sup>788</sup>.

<sup>783</sup> Concurring Ambos and Wirth (2002) 13 *CLF* 1, 60. Similarly, the provision in the definition of torture in article 1 of the Convention against Torture excluding ‘pain or suffering arising only from, inherent in or incidental to lawful sanctions’ applies only to sanctions which are lawful under international law. See mn 134.

<sup>784</sup> See, Robinson, in: Lee (ed.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (2001) 80, 87.

<sup>785</sup> Of course, this principle would not apply when the presence of the targeted population was unlawful under international law, for example, when it the presence was a war crime under article 8 para. 2 (b) (viii).

<sup>786</sup> Guiding Principles, principle 6, para. 1. Paragraph 2 explains, in a non-exhaustive list, that ‘[t]he prohibition of arbitrary displacement includes displacement:

- (a) When it is based on policies of apartheid, “ethnic cleansing” or similar practices aimed at/or resulting in altering the ethnic, religious or racial composition of the affected population;
- (b) In situations of armed conflict, unless the security of the civilians involved or imperative military reasons so demand;
- (c) In cases of large-scale development projects, which are not justified by compelling and overriding public interests;
- (d) In cases of disasters, unless the safety and health of those affected requires their evacuation; and
- (e) When it is used as a collective punishment’.

See also Centre on Housing Rights and Evictions/Zimbabwe Lawyers for Human Rights, *Operation Murambatsvina: A Crime against Humanity* (May 2007).

<sup>787</sup> *Prosecutor v. Popović et al.*, IT-05-88-T, 10 June 2010, para. 900.

<sup>788</sup> ICCPR, article 12 para. 3 (only those restrictions ‘which are provided for by law, are necessary to protect national security, public order (*ordre public*), public health or morals or the rights and freedoms of others, and are consistent with the other rights recognised in the present Covenant’); ECHR, Protocol 4, article 2 para. 3 (only restrictions which ‘are in accordance with law and are necessary in a democratic society in the interests of national security or public safety, for the maintenance of the *ordre public*, for the prevention of crime, for the protection of health or morals, or for the protection of the rights and freedoms of others’); American Convention on Hum. Rts., article 22 para. 3 (restriction permitted ‘only pursuant to a law to the extent necessary in a democratic society to prevent crime or to protect national security, public safety, public order, public morals,

The first element in the Elements of Crimes of the crime of forcible transfer simply repeats the phrase ‘without grounds permitted under international law’.

The war crime in non-international armed conflict of ‘the displacement of the civilian population for reasons related to the conflict, unless the security of the civilians involved or imperative military reasons so demand’, included in article 8 para. 2 (e) (viii) of the Statute (based on Add. Prot. II article 17), indicates that there are strictly limited grounds permitted to displace civilians during a non-international armed conflict<sup>789</sup>. The ICTY Trial Chamber has concluded that, ‘in view of the drastic nature of a forced displacement of persons, recourse to such measures would only be lawful in the gravest of circumstances and only as measures of last resort’<sup>790</sup>. These restrictions during armed conflict suggest that the power of governments to displace population are similarly limited in peacetime to equally compelling grounds<sup>791</sup>. Technically, it might be possible to argue that the forced displacement of population for public projects, such as the construction of a highway or dam might fall within the scope of article 7 para. 1 (d), if there were no ‘compelling and overriding public interests’ justifying this measure which met ‘the requirements of necessity and proportionality’<sup>792</sup>, the procedures used did not satisfy due process or if the individuals were not fairly compensated and given freedom of choice concerning their new homes. But including such measures under article 7 (1) (d) might significantly blur the distinction between human rights violations and internationally criminalised conduct.

- 130 **cc) Mental element.** Jurisprudence has been inconsistent on the mental element. Several Trial Chamber judgments at the *ad hoc* tribunals have required an intent to permanently displace the victims of deportation.<sup>793</sup> This requirement was introduced in order to distinguish deportation and forcible transfer from lawful evacuation in the interest of protected persons. This jurisprudence contrasts with the wording of article 49 of the Fourth Geneva Convention, which prohibits ‘[i]ndividual or mass forcible transfers’ and deportations ‘regardless of their motive’, i.e. without reference to the aim of non-return. Reliance on the literal reading led to a change of jurisprudence in the *Stakić* case where the Appeals Chamber concluded that ‘deportation does not require an intent that the deportees should not return’.<sup>794</sup> Subsequent jurisprudence has dropped the intent requirement. It is also not specifically listed in the ICC Elements of Crimes related to deportation or forcible transfer of population. It is thus not convincing to argue that the mental element requires an ‘intent’ that ‘the victim will not return to his or her place of origin’<sup>795</sup>. What counts is intent and knowledge relating to the forcible displacement of persons from territory in which they are lawfully present. This may be doubtful in certain borderline cases, for instance where the forced movement is an intermediary step towards detention.<sup>796</sup>

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public health, or the rights and freedoms of others’) and article 22 para. 4 (restrictions ‘by law in designated zones for reasons of public interest’).

The ILC Commentary on article 18 (g) of the 1996 ILC Draft Code, explained that use of the term ‘arbitrary’ in the crime against humanity of ‘arbitrary deportation’ was designed ‘to exclude the acts when committed for legitimate reasons, such as public health or well-being, in a manner consistent with international law’.

<sup>789</sup> Similar limitations apply to deportations and transfers of all or parts of the population of an occupied territory in the context of international armed conflict or its aftermath in violation of article 8 para. 2 (a) (vii) and para. 2 (b) (viii). See the Fourth Geneva Convention, article 49; Dörmann, *Elements of War Crimes under the Rome Statute of the International Criminal Court* (2002), 106–112, 212–214.

<sup>790</sup> *Prosecutor v. Blagoje Simić et al.*, IT-95-9-T, 17 October 2003, para. 125, note 218.

<sup>791</sup> For example, it has been suggested that such compelling grounds might include a natural disaster. Ambos and Wirth (2002) 13 *CLF* 1, 60.

<sup>792</sup> Kälén (2000) 32 *Studies in TransnatLegPol*, 17.

<sup>793</sup> See e.g., *Prosecutor v. Blagojević and Jokić*, IT-02-60-T, 17 January 2005, para. 601; *Prosecutor v. Brđanin*, IT-99-36-T, 1 September 2004, para. 545; *Prosecutor v. Simić et al.*, IT-95-9-T, 17 October 2003, para. 134; *Prosecutor v. Naletilić and Martinović*, IT-98-34-T, 31 March 2003, para. 520.

<sup>794</sup> *Prosecutor v. Stakić*, IT-97-24-A, 22 March 2006, para. 307.

<sup>795</sup> But see Werle and Jessberger, *Principles of ICL* (2014) 361.

<sup>796</sup> See *Prosecutor v. Naletilić and Martinović*, IT-98-34-T, 31 March 2003, para. 537.

## 5. 'Torture'

a) 'intentional'. Since under article 30 para. 1 the material elements of the crime must be committed 'with intent and knowledge' unless otherwise provided, the express requirement that the infliction of pain or suffering be 'intentional' excludes the separate requirement of knowledge as set out in article 30 para. 3 and is, therefore, consistent with the definition of torture in article 1 of the Convention against Torture, which simply requires intent to do the act which caused the pain or suffering<sup>797</sup>. This interpretation is confirmed by the General Introduction to the Elements of Crimes, which states that it is not necessary for the perpetrator to have known that the harm inflicted was severe<sup>798</sup>. It would not be in keeping with that definition to require proof in addition that the torturer *knew* that the conduct inflicted or was likely to inflict pain or suffering which was severe; it should be sufficient that the torturer intended the conduct and that the victim endured severe pain or suffering<sup>799</sup>. ICTY jurisprudence is consistent with this interpretation<sup>800</sup>. It was expressly confirmed by PTC II in the *Bemba* case. The Chamber held that it is 'sufficient that the perpetrator intended the conduct and that the victim endured severe pain or suffering'<sup>801</sup>.

Under customary international law, torture can be committed by an act or an omission<sup>802</sup>. The elements of torture in the Elements of Crimes are inconsistent with the Statute because they omit the crucial mental element of intention that is expressly stated in the Statute. The first of these material elements simply requires that '[t]he perpetrator inflicted severe physical or mental pain or suffering upon one or more persons'<sup>803</sup>. But first jurisprudence has confirmed the view that 'the infliction of pain or suffering must be "intentional"'<sup>804</sup>.

<sup>797</sup> The requirement in article 1 of the Convention against Torture that the infliction of pain or suffering be intentional was to exclude pain or suffering which was 'the result of an accident or of mere negligence'. Burgers and Danelius, *The United Nations Convention against Torture: A Handbook on the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment* (1988) 118.

<sup>798</sup> Elements of Crimes, General Introduction, para. 4 ('With respect to mental elements associated with elements involving value judgement, such as those using the terms "inhumane" or "severe", it is not necessary that the perpetrator personally completed a particular value judgement, unless otherwise indicated').

<sup>799</sup> This interpretation is supported by the ICTY Appeals Chamber in the *Kvočka et al.* case, which rejected the claim on appeal of a deputy commander in a detention camp guard service convicted of the war crime of torture based on a joint criminal enterprise that he did not want the victims to suffer on the ground that the accused knew of the common criminal enterprise (which encompassed torture) and intended to participate in it. *Prosecutor v. Kvočka et al.*, No. IT-98-30/1-A, Judgement, Appeals Chamber, 28 February 2005, para. 308. There is no difference between the war crime of torture and the crime against humanity of torture on this point.

<sup>800</sup> *Prosecutor v. Kunarac*, IT-96-23 & IT-96-23/1-A, 12 June 2002, paras. 142 and 144 (endorsing a definition of torture, based on the definition of the Convention against Torture and ICTY and ICTR jurisprudence, including the following elements: '(i) The infliction, by act or omission, of severe pain or suffering, whether physical or mental' and '(ii) The act or omission must be intentional'.); *Prosecutor v. Furundžija*, IT-95-17/1-A, 21 July 2000, para. 111 (same).

<sup>801</sup> *Prosecutor v. Bemba*, ICC-01/05-01/08-424, 15 June 2009 (PURL: <https://www.legal-tools.org/doc/07965c/>), para. 194.

<sup>802</sup> *Prosecutor v. Delalić et al. (Čelebići)*, IT-96-21-T, 16 November 1998, para. 468 ('[O]missions may also provide the requisite material element, provided... that the act or omission was intentional, that is an act which, judged objectively, is deliberate and not accidental'). In contrast, the crime against humanity of other inhumane acts does require an intent to inflict great suffering or serious injury (see mn 102).

<sup>803</sup> The suggestion by one government delegate involved in the drafting of the Elements that the silence of the elements means that the mental elements of the crime of torture are those in article 30 para. 1 (intent and knowledge), see Robinson, in: Lee (ed.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (2001) 80, 92, cannot be correct; article 30 applies only '[u]nless otherwise provided', which must mean 'unless otherwise provided by the Statute or other international law' (as in the case of the grave breach of willful killing in article 8 para. 2 (a) (i)). Although another government delegate has suggested that this provision could mean 'unless otherwise provided by the Elements of Crimes', see article 30, mn 14 *et seq.*, that would be inconsistent with article 9 para. 1, which makes it clear that the 'Elements of Crimes shall assist the Court in the interpretation and application of articles 6, 7 and 8', and article 9 para. 3, which requires that the Elements of Crimes 'shall be consistent with this Statute'. Even if this approach were to be followed by the Court, it would not apply where the Statute expressly provides the mental element, as here.

<sup>804</sup> *Prosecutor v. Bemba*, ICC-01/05-01/08-424, 15 June 2009 (PURL: <https://www.legal-tools.org/doc/07965c/>), para. 194.

- 132 b) 'severe pain or suffering'. The phrase 'severe pain' was considered by the drafters of article 1 of the Convention against Torture 'sufficient to convey the idea that only acts of a certain gravity shall be considered to constitute torture'<sup>805</sup>. Such acts include threats of rape and other sexual violence<sup>806</sup>. They also include the pain and suffering suffered by relatives of the 'disappeared'<sup>807</sup>. In international case-law and academic writing, it is frequently argued that the severity requirement distinguishes torture from similar offences (inhuman treatment).<sup>808</sup> This approach was notably defended in *Krnojelac*, in which the Trial Chamber held:

'Care must be taken to ensure that ... specificity is not lost by broadening each of the crimes ... to the extent that the same facts come to constitute all or most of those crimes. In particular, when relying upon human rights law relating to torture, the Trial Chamber must take into account the structural differences which exist between that body of law and international humanitarian law, in particular the distinct role and function attributed to states and individuals in each regime.'<sup>809</sup>

This view contrasts with the view taken in the second edition of this commentary according to which it would be incorrect to distinguish torture, whether as a crime against humanity or as a war crime, from the numerous other forms of ill-treatment within the Court's jurisdiction, such as the war crimes of inhuman treatment (article 8 para. 2 (a) (ii)) or willfully causing great suffering (article 8 para. 2 (a) (iii)) or the human rights violations of cruel, inhuman or degrading treatment or punishment, on the ground that the pain or suffering endured was more severe<sup>810</sup>. In the ICC context, the assumption of a hierarchy of

<sup>805</sup> Burgers and Danelius, *The United Nations Convention against Torture: A Handbook on the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment* (1988) 117, 117–118 (giving examples of conduct which satisfied this standard).

<sup>806</sup> *Prosecutor v. Kvočka et al.*, IT-98-30/1-T, 2 November 2001, para. 287; *Prosecutor v. Kunarac*, IT-96-23 & IT-96-23/1-A, 12 June 2002, para. 150 (rape and sexual violence *per se* amount torture).

<sup>807</sup> *Kingdom of Spain v. Augusto Pinochet Ugarte*, Judgment, Bow Street Magistrates' Court, Mr Ronald David Bartle, Metropolitan Magistrate, 8 October 1999 ('the effect on the families of those who disappeared can amount to mental torture'). The European Court of Hum. Rts. has found that the suffering of relatives of the 'disappeared' amounted to a violation of article 3 of the European Convention on Human Rights in the specific circumstances of the cases. *Cicek v. Turkey*, Application No. 25704/94, Judgment, Eur. Ct. Hum. Rts., 27 February 2001, para. 173 ('The uncertainty, doubt and apprehension suffered by the applicant [mother of two sons who were 'disappeared'] over a prolonged and continuing period of time has undoubtedly caused her severe mental distress and anguish'); *Orhan v. Turkey*, Application No. 25656/, Judgment, ECtHR, 18 June 2002, para. ('The Court finds that the uncertainty and apprehension suffered by the applicant [whose eldest son and only brothers were 'disappeared'] over a prolonged and continuing period ... has clearly caused him severe mental distress and anguish constituting inhuman treatment contrary to article 3'); *Cyprus v. Turkey*, Application No. 25781/94, Judgment, ECtHR, Grand Chamber, 10 May 2001, para. 157 ('the silence of the authorities of the respondent State in the face of the real concerns of the relatives of the missing persons attains a level of severity which can only be categorised as inhuman treatment within the meaning of article 3'); *Tas v. Turkey*, Application No. 24396/94, Judgment, ECtHR, 14 November 2000, para. 80 ('Having regard to the indifference and callousness of the authorities to the applicant's concerns [about his 'disappeared' son] and the acute anguish and uncertainty which he has suffered as a result and continues to suffer, the Court finds that the applicant may claim to be a victim of the authorities' conduct, to an extent which discloses a breach of article 3 of the Convention'); *Kurt v. Turkey*, Application No. 24276/94, Judgment, ECtHR., 25 May 1998, paras. 130–134. (mother of 'disappeared' son suffered violation of article 3). The Human Rights Chamber for Bosnia and Herzegovina has concluded that 'the fear and anguish' inflicted on a woman by the unclarified fate of her 'disappeared' husband constituted inhuman and degrading treatment in violation of article 3 of the European Convention on Human Rights. *Palic v. Republika Srpska*, No. CH/99/3196, Decision on Admissibility and Merits, 11 January 2001, para. 91 (5).

<sup>808</sup> *Prosecutor v. Delalić et al. (Čelebići)* IT-96-21, 16 November 1998, para. 468 *et seq.*: 'Mistreatment that does not rise to the threshold level of severity necessary to be characterised as torture may constitute another offence'; *Prosecutor v. Martić*, No. IT-95-11-T, Judgment, Trial Chamber, 12 June 2007, para. 75: 'The pain and suffering inflicted during acts of torture is more severe than the pain and suffering inflicted during other forms of mistreatment and cruel treatment'. Similarly, the European Court of Human Rights held that torture involves 'suffering of a particular intensity or cruelty' which accounts for the 'special stigma' attached to this offence. See *Ireland v. United Kingdom*, 18 January 1978, Series A No 25, para. 167; in academic literature, see Schabas, *Commentary ICC* (2010) 168; Ambos, *Treatise on ICL II* (2014) 91.

<sup>809</sup> *Prosecutor v. Krnojelac*, IT-97-25-T, 15 March 2002, para. 181.

<sup>810</sup> See, generally, Rodley (2002) 55 *Current Legal Problems* 467. It has been argued that for the reasons explained by Rodley, the academic writing and jurisprudence making this distinction (see, for example, Mettraux, *International Crimes and the Ad Hoc Tribunals* (2005) 112–113) is incorrect.

forms of suffering is indeed more difficult to establish<sup>811</sup>. The crime against humanity of other inhumane acts requires 'great suffering or serious injury'<sup>812</sup>. A similar threshold is reflected in the war crime of inhuman treatment ('severe physical or mental pain')<sup>813</sup>, the war crime of willfully causing 'great suffering'<sup>814</sup> and the war crime of cruel treatment ('severe physical or mental pain')<sup>815</sup>. The different thresholds, i. e., 'severe' and 'great', are comparable in scope.

Existing case-law has not determined an 'absolute degree' of pain required for an act to amount to torture. The first ICC jurisprudence in *Bemba* interpreted the phrase 'severe pain' in light of the jurisprudence of the European Court of Human Rights and the Inter-American Court of Human Rights on severity. It stated:

'although there is no definition of the severity threshold as a legal requirement of the crime of torture, it is constantly accepted in applicable treaties and jurisprudence that an *important degree* of pain and suffering has to be reached in order for a criminal act to amount to an act of torture'.<sup>816</sup>

Some guidance may be derived from the jurisprudence of the *ad hoc* tribunals. In *Brđanin*, the ICTY expressly rejected the argument that, for an act causing physical pain or suffering to amount to torture, it must 'inflict pain ... equivalent in intensity to the pain accompanying serious physical injury, such as organ failure, impairment of bodily function, or even death'<sup>817</sup>. As noted in the *Naletilić and Martinović* Appeals Judgement, severity must be determined on a case by case basis:

'[W]hile the suffering inflicted by some acts may be so obvious that the acts amount *per se* to torture, in general allegations of torture must be considered on a case-by-case basis so as to determine whether, in light of the acts committed and their context, severe physical or mental pain or suffering was inflicted'.<sup>818</sup>

Examples of torture recognised in the jurisprudence of the *ad hoc* tribunals include: 'beatings, administering electric shocks, forcing victims to watch executions of others, rape, forcing victims to bury the bodies of their neighbours and friends, and causing burn injuries'<sup>819</sup> as well as 'mental suffering caused to an individual who is forced to watch severe mistreatment inflicted on a relative'<sup>820</sup>. In *Bemba*, PTC II refused to confirm torture, arguing that the alleged acts overlapped with rape<sup>821</sup>.

**c) Persons in custody or under control.** According to the Statute and the Elements, 133 victims must be 'in the custody or under the control' of the perpetrator. This is an ICC-specific requirement. It distinguishes the ICC definition from other instruments, which rely on purpose or official capacity. It reflects a control-based conception of torture.<sup>822</sup> The terms 'custody' and 'under the control of the accused' are not synonymous with the terms 'imprisonment or other severe deprivation of liberty'. The term 'custody' would include any form of detention or imprisonment, including arrest by security forces, other restrictions on liberty such as those used in crowd control by security forces or enforced disappearances.

<sup>811</sup> See Burchard (2008) 6 *JICJ* 159, 167.

<sup>812</sup> Element 1 to article 7 (1) (k).

<sup>813</sup> Element 1 to article 8 (2) (a) (ii).

<sup>814</sup> Element 1 to article 8 (2) (a) (iii).

<sup>815</sup> Element 1 to article 8 (2) (c) (i)-3.

<sup>816</sup> *Prosecutor v. Bemba*, ICC-01/05-01/08-424, 15 June 2009 (PURL: <https://www.legal-tools.org/doc/07965c/>), para. 193.

<sup>817</sup> *Prosecutor v. Brđanin*, IT-99-36-A, 3 April 2007, para. 247.

<sup>818</sup> *Prosecutor v. Naletilić and Martinović*, No. IT-98-34-A, Judgement, Appeals Chamber, 3 May 2006, para. 299.

<sup>819</sup> *Prosecutor v. Martić*, IT-95-11-T, 12 June 2007, para. 76.

<sup>820</sup> *Prosecutor v. Kvočka et al.*, IT-98-30/1-T, 2 November 2001, para. 149; critically Ambos, *Treatise on ICL II* (2014) 91.

<sup>821</sup> *Prosecutor v. Bemba*, ICC-01/05-01/08-424, 15 June 2009 (PURL: <https://www.legal-tools.org/doc/07965c/>), para. 204.

<sup>822</sup> Ambos, *Treatise on ICL II* (2014) 91.



The term ‘under the control of the accused’ is broader and would include any other form of restraint by another, including enslavement (see mn 39 and 119–120).<sup>823</sup> The history of the drafting of the *UN Declaration on the Protection of All Persons from Being Subjected to Torture or Other Cruel, Inhuman or Degrading Treatment or Punishment* and the Convention against Torture indicates that both these terms should be given a broad reading.<sup>824</sup> The second element of torture in the Elements of Crimes simply follows paragraph 2 (f) on this point without providing further guidance on the scope of these terms.

- 134 d) **Exception for pain or suffering ‘inherent in or incidental to lawful sanctions’.** The concept of ‘lawful’ refers to international law or national law which is consistent with international law and standards<sup>825</sup>. Peter Kooijmans, the UN Special Rapporteur on torture, stated in his 1988 report that the fact that ‘sanctions are accepted under domestic law does not necessarily make them “lawful sanctions” in the sense of article 1 of the Convention against Torture ... It is international law and not domestic law which ultimately determines whether a certain practice may be regarded as “lawful”’<sup>826</sup>. Therefore, the fact that a State authorizes certain treatment or punishment does not exclude criminal responsibility for torture under article 7.
- 135 e) **Special remarks.** The definition of torture in article 7 differs in a number of significant respects from that in article 1 of the Convention against Torture<sup>827</sup>. In contrast to article 1 of that treaty, and all other definitions of torture, including as crimes against humanity and war crimes, there is no requirement in paragraph 2 (f) that the severe pain or suffering be for certain types of purposes (although that list is illustrative only)<sup>828</sup>. Therefore, it is clear that article 7 para. 1 (e) includes random, purposeless or merely sadistic infliction of severe pain or suffering, provided, of course, that it was ‘pursuant to or in furtherance of a State or organisational policy’<sup>829</sup>. Such purposes need not be the sole purpose of the perpetra-

<sup>823</sup> Concurring Werle and Jessberger, *Principles of ICL* (2014), 365.

<sup>824</sup> Neither instrument limits the class of victims, but ‘[t]he history of the Declaration and the Convention make it clear that the victims must be understood to be persons who are deprived of their liberty or who are at least under the factual power or control of the person inflicting the pain or suffering’. Burgers and Danelius, *The United Nations Convention against Torture: A Handbook on the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment* (1988) 120. The requirement of some restraint on liberty or some degree of control was intended to exclude such acts as use of armed force in conflicts. *id.*, 121.

<sup>825</sup> The third material element listed in the Elements of Crimes simply follows the language of paragraph 2 (e) of article 7, without further explanation.

<sup>826</sup> Report of the UN Special Rapporteur on torture, UN Doc. E/CN.4/1988/17, para. 42; Benounne, ‘A Practice which Debases Everyone Involved’: *Corporal Punishment under International Law*, (1997) 20 *Ans Consacrés à la Réalisation d’une Idée: Recueil d’articles en l’honneur de Jean-Jacques Gautier* 203–229, concurring Cryer et al., *Introduction to ICL* (2014), 251.

<sup>827</sup> Article 1 para. 1 of the Convention against Torture states:

‘For the purposes of this Convention, the term “torture” means any act by which severe pain or suffering, whether physical or mental, is intentionally inflicted on a person for such purposes as obtaining from him or a third person information or a confession, punishing him for an act he or a third person has committed or is suspected of having committed, or intimidating or coercing him or a third person, or for any reason based on discrimination of any kind, when such pain or suffering is inflicted by or at the instigation of or with the consent or acquiescence of a public official or other person acting in an official capacity. It does not include pain or suffering arising only from, inherent in or incidental to lawful sanctions’.

Paragraph 2 of article 1 makes it clear, however, that ‘[t]his article is without prejudice to any international instrument or national legislation which does or may contain provisions of wider application’.

<sup>828</sup> See also Ambos, *Treatise on ICL II* (2014) 92; Cryer et al., *Introduction to ICL* (2014) 250.

<sup>829</sup> The omission of a purpose requirement has been severely criticised by the former UN Special Rapporteur for torture, Sir Nigel S. Rodley, in a thoughtful and comprehensive legal analysis of the *travaux préparatoires* of the Convention against Torture and jurisprudence of international courts; Rodley (2002) 55 *Current Legal Problems* 467. The practical implications of the differences, however, require further exploration. Given the experience of the past decades in which crimes against humanity have been committed in increasingly anarchic way, often by neighbours and by ill-disciplined or completely undisciplined forces, more and more removed from systematic conduct or acts with any real aim of furthering any coherent state or organisational policy, one may wonder whether conceptual consistency might not be at the expense of the protection of victims. For example, some prisoners in a detention centre might have been subjected to severe mental pain and suffering by a special



tor<sup>830</sup>. One reason for omitting a purpose requirement was the fear by some that any list of purposes would be an exclusive list of purposes, in contrast to the illustrative list of purposes in article 1 of the *Convention against Torture*<sup>831</sup>. These fears were not entirely unfounded, as demonstrated by some ICTY jurisprudence erroneously concluding that the list of purposes under international law is exclusive<sup>832</sup>. However, a footnote to the title of the elements of torture in the Elements of Crimes reintroduces, in a political compromise, the possibility of a purpose requirement by stating that '[i]t is understood that no *specific* purpose need be proved for this crime' (emphasis supplied). If the Court were to accept this footnote as an authoritative interpretation, then it might find that *some* purpose is required, as in all other definitions of torture. But first jurisprudence clearly speaks against a 'purpose' based interpretation. In *Bemba*, PTC II stated that 'under the Statute, the definition of torture as a crime against humanity, unlike the definition of torture as a war crime, does not require the additional element of a specific purpose'.<sup>833</sup>

As noted by the ICTY in *Kunarac*, the characteristic trait of torture lies 'in the nature of the act committed', rather than 'in the status of the person who committed it'<sup>834</sup>. There is no requirement, in contrast to article 1 of the Convention against Torture, which focuses on state responsibility for the human rights violation of torture, that the pain or suffering be 'inflicted by or at the instigation of or with the consent or acquiescence of a public official or other person acting in an official capacity'<sup>835</sup>. This omission, which follows from the threshold requirement in paragraph 2 that the attack be pursuant to 'a State or organisational policy', echoes the omission of a similar requirement in the definition of enforced disappearances<sup>836</sup>. Thus, torture in peacetime or during armed conflict by members of armed political groups not connected to any State could be a crime against humanity under paragraph 2 (f). For requirements as to the organisation of non-state actors, as established in ICC jurisprudence, see above mn 110.

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unit of investigators in order to obtain intelligence information about 'terrorist' incidents, while others in the same cells would have been subjected to identical treatment by guards simply to gratify their sadistic urges. The latter might be astonished to know that they had not been tortured, since the infliction of severe pain and suffering was without any apparent purpose, but were instead victims of cruel, inhuman or degrading treatment or punishment. Although most conduct fitting the latter category would amount to the crime against humanity of inhumane acts, it is possible that not all would. Nevertheless, much random, purposeless or sadistic infliction of severe pain or suffering could also be characterised objectively as being committed for the purpose of intimidating the victim for the self-gratification of the torturer, so the number of cases at issue may be relatively small. The approach to the purpose requirement in judgments concluding that rape constitutes the crime against humanity of torture suggests that the Court will take a similar approach to these cases. See, for example, *Prosecutor v. Kunarac*, IT-96-23 & IT-96-23/1-A, 12 June 2002, paras. 21–23 (distinguishing the sexual motivation of the torturer from his purposes, which included discrimination against victims because they were Muslims, obtaining information and intimidating or coercing victims).

<sup>830</sup> *Prosecutor v. Kvočka et al.*, IT-98-30/1-T, 2 November 2001, para. 153; *Prosecutor v. Delalić et al.* (Čelebići), IT-96-21-T, 16 November 1998, para. 470.

<sup>831</sup> Hall (2000) 94 *AJIL* 773, 781; Rodley (2002) 55 *Current Legal Problems* 467, 491.

<sup>832</sup> *Prosecutor v. Krnojelac*, IT-97-25-T, 15 March 2002, para. 186 (rejecting *Furundžija* and *Kvočka*, and concluding that the list of purposes in the Convention against Torture is exclusive and under the principle of legality, it 'is not sufficient to permit the court to introduce, as part of the *mens rea*, a new and additional prohibited purpose'). Other ICTY judgments have taken a more expansive view of the list of purposes. *Prosecutor v. Brđanin*, IT-99-36-T, 1 September 2004, para. 487 (the list of purposes for the war crime or crime against humanity of torture is not exhaustive and it is not relevant if torture is committed for a non-listed purpose); *Prosecutor v. Furundžija*, IT-95-17/1-T, 10 December 1998, para. 162 (the list of purposes in the war crime of torture includes humiliation), *aff'd*; *Prosecutor v. Kvočka et al.*, IT-98-30/1-T, 2 November 2001, para. 140 (the list in the Convention against Torture is not an exclusive list); *Prosecutor v. Delalić et al.* (Čelebići), IT-96-21-T, 16 November 1998, para. 470 (the list of purposes in the Convention against Torture 'do[es] not constitute an exhaustive list, and should be regarded as merely representative').

<sup>833</sup> *Prosecutor v. Bemba*, ICC-01/05-01/08-424, 15 June 2009 (PURL: <https://www.legal-tools.org/doc/07965c/>), para. 195.

<sup>834</sup> *Prosecutor v. Kunarac*, IT-96-23-T & IT-96-23/1-T, 22 February 2001, para. 495.

<sup>835</sup> *Prosecutor v. Kunarac*, IT 96-23 & IT-96-23/1-A, 12 June 2002, para. 148.

<sup>836</sup> This omission is also consistent with the customary international law definitions of torture as a war crime or a crime against humanity according to the jurisprudence of the ICTY and ICTR.

## 6. ‘Forced pregnancy’

- 136 This crime against humanity proved to be one of the most difficult and controversial to draft<sup>837</sup>. It was included in large part in reaction to the reports of widespread instances of forced pregnancy in the former Yugoslavia. It had its origins in the Rome Statute in a number of international declarations and resolutions<sup>838</sup>. As with the other crimes of sexual violence, it was included only after concerted efforts by civil society, in particular, the Women’s Coalition for Gender Justice, to overcome opposition by certain states<sup>839</sup>.
- 137 a) ‘unlawful confinement’. The words ‘unlawful confinement’ should be interpreted as any form of deprivation of physical liberty contrary to international law and standards<sup>840</sup>. In contrast to paragraph 1(e), this definition does not require the deprivation of liberty be ‘severe’.
- 138 b) ‘forcibly made pregnant!’ ‘Forcible’ means ‘done by or involving force’<sup>841</sup> which does not necessarily require the use of violence, but includes any form of coercion. Any form of ‘coercion or force or threat of force against the victim or a third person’<sup>842</sup> negates consent and any form of captivity negates consent<sup>843</sup>. This principle applies with equal force to the crime of forced pregnancy. An act of forcibly impregnating a woman as such does not necessarily have to be committed by the person confining the woman. Such an act might also be covered by the crime of rape or the phrase ‘any other form of sexual violence of comparable gravity’.
- 139 c) ‘intentional’. By requiring a form of specific intent, a situation in which a woman, held in ‘unlawful confinement’, conceives or gives birth to a child as a result of sexual violence as such, does not in itself amount to the crime of forced pregnancy. A perpetrator of forced pregnancy must also have committed the crime of confining a woman, who had been forcibly made pregnant, either ‘with the intent of affecting the ethnic composition of any population’, or with the intent of ‘carrying out other grave violations of international law’, which includes the crime of genocide<sup>844</sup>, crime against humanity, war crimes, torture and enforced disappearances. The second aim was added to include many other purposes for which forced pregnancy has been committed<sup>845</sup>. The Elements of Crimes have only one non-contextual element for this crime:

<sup>837</sup> See Bedont and Hall-Martinez (1993) 6 *BrownJWorldAff* 65, 73–74. It remains controversial. See McFeely, *No Amnesty for the Unborn Cardinal Martino Says Catholics Should Withdraw Support for Amnesty International Now That the Rights Group Supports Abortion*, National Catholic Register, 17–23 June 2007; Amnesty International, Amnesty International defends access to abortion for women at risk, AI Index: POL 30/012/2007, 14 June 2007; Ambos, *Treatise on ICL II* (2014) 101–102.

<sup>838</sup> *Vienna Declaration and Programme of Action*, adopted by the World Conference on Human Rights, Vienna, 25 June 1993, paras. 18 and 38; *Beijing Declaration and Platform for Action*, UN Doc. A/CONF.177/20, 15 Sep. 1995, paras. 114, 132 and 135; *UN Commission Hum. Rts. Res. 1998/52*, 17 Apr. 1998, para. 4; *UN Commission Hum. Rts. Res. 1998/76*, 22 Apr. 1998, para. 13 (a); *UN Commission Hum. Rts. Res. 1997/44*, 11 Apr. 1997, para. 4; *UN Commission Hum. Rts. Res. 1997/78* (1997), para. 13 (a); *UN Commission Hum. Rts. Res. 1996/49*, 19 April 1997, para. 5; and *UN Commission Hum. Rts. Res. 1995/85*, 8 Mar. 1995, para. 5.

<sup>839</sup> Bedont and Hall-Martinez (1993) 6 *BrownJWorldAff* 65 73–74. As part of the political compromise, a phrase was included stating that ‘[t]his definition shall not in any way be interpreted as affecting national laws relating to pregnancy’ (see discussion in mn 114 below).

<sup>840</sup> It has also been noted in the commentary on the definition of torture, regarding the concept of ‘lawful sanctions’, that ‘[i]t is international law and not domestic law which ultimately determines whether a certain practice may be regarded as “lawful”’, Report of the UN Special Rapporteur on torture, UN Doc. E/CN.4/1998/17, para. 42; see mn 106.

<sup>841</sup> *The Oxford Concise Dictionary of Current English* 522 (8<sup>th</sup> ed. 1990) 459–460.

<sup>842</sup> *Prosecutor v. Furundzija*, No. IT-95-17/1-T, Judgement, Trial Chamber, 10 December 1998, para. 185.

<sup>843</sup> *Ibid.*, para. 271.

<sup>844</sup> Salzman (1998) 20 *HumRtsQ* 348, 365–366.

<sup>845</sup> Bedont and Hall-Martinez (1993) 6 *BrownJWorldAff* 65, 73–74 (‘For example, during the Second World War, Jewish women were forcibly made pregnant so that they and their fetuses could be used for medical experiments’).

- ‘1. The perpetrator confined one or more women forcibly made pregnant, with the intent of affecting the ethnic composition of any population or carrying out other grave violations of international law’.

It simply restates the first sentence of paragraph 2 (f) in the form of a criminal statute.

**d) National laws regarding pregnancy.** The last sentence of paragraph 2 (f) is included to ensure that the definition of this crime will not affect national laws regarding pregnancy. The fact that the crime of forced pregnancy would be included in the *Rome Statute* made some delegations fear that national laws prohibiting abortion would have to be deemed being in violation of international law because that would constitute the crime of forced pregnancy. National laws which prohibit abortion do not amount to forced pregnancy as defined under the *Statute*, unless they are intended to affect the ethnic composition of any population or to carry out grave violations of international law. 140

## 7. ‘Persecution’

In contrast to previous instruments which included the crime of persecution as a crime against humanity, the *Statute* provides for a definition of the crime. In the commentary to article 21 of the 1991 *Draft Code*, the ILC stated that persecution ‘relates to human rights violations other than those covered by the previous paragraphs ... [which] seek to subject individuals or groups of individuals to a kind of life in which enjoyment of some of their basic rights is repeatedly or constantly denied’<sup>846</sup>. In their commentary to this Code several states argued that there is no agreed definition of persecution in any international instrument and one state in particular said that the crime of ‘persecution on social, political, racial, religious or cultural grounds’ is so vague that it could mean almost anything<sup>847</sup>. This objection was reiterated during the *Ad Hoc* Committee sessions<sup>848</sup> and the meetings of the Preparatory Committee<sup>849</sup>. However, the drafters in Rome had the benefit of two significant developments. First, the ILC commentary to its 1996 *Draft Code*, which modified the definition slightly by replacing cultural grounds with ethnic grounds, provided greater precision in stating that the ‘common characteristic’ of the many forms of persecution was ‘the denial of the human rights and fundamental freedoms to which every individual is entitled without distinction as recognised in the Charter of the United Nations (articles 1 and 55) and the International Covenant on Civil and Political Rights (article 2)’<sup>850</sup>. Second, as discussed below, the ICTY Trial Chamber in its 1997 judgment in the *Tadić* case developed a definition based on an analysis of a number of sources, including the 1996 *Draft Code*, national jurisprudence and academic commentary. Therefore, it is perhaps not surprising that, despite the objections based on a claim of vagueness, the paragraph covering persecution in its entirety appeared without square brackets in the *April 1998 Draft Statute* for the ICC although important parts of its definition still had to be negotiated<sup>851</sup>. 141

**a) ‘intentional and severe deprivation of fundamental rights’.** According to article 7 para. 2(g), the act of persecution must concern an ‘intentional and severe deprivation of fundamental rights’<sup>852</sup>. The first non-contextual element in the Elements of Crimes simply rewords the statutory requirement to state that ‘[t]he perpetrator severely deprived, contrary to international law, one or more persons of fundamental rights’, and footnote 21 to this 142

<sup>846</sup> 1991 ILC *Draft Code* (1991) 2 YbILC 104, 268.

<sup>847</sup> ‘According to several delegations [...], the list of offences should not include persecution which was considered too vague a concept’, UN Doc. A/50/22 (1995), 17. 1995 ILC *Special Rapporteur Report* 20.

<sup>848</sup> ‘According to several delegations [...], the list of offences should not include persecution which was considered too vague a concept’, *Ad hoc Committee Report*, 17.

<sup>849</sup> UN Doc A/51/22 (1997) 19.

<sup>850</sup> 1996 ILC *Draft Code*, article 18, commentary.

<sup>851</sup> Preparatory Committee (Consolidated) *Draft*, pp. 26–27.

<sup>852</sup> In its commentary to article 18 (e) of the 1996 ILC *Draft Code*, the ILC formulated persecution as a ‘denial of human rights and fundamental freedoms’.

element states that '[t]his requirement is without prejudice to paragraph 6 of the General Introduction to the Elements of Crimes' [noting that the requirement of unlawfulness 'is generally not specified in the elements of crimes']. As far as the word 'intentional' is concerned, the current definition follows the approach of the Trial Chamber in the 1997 judgment in the *Tadić* case. According to this judgment, in order to constitute persecution, some form of discrimination that is *intended* to be and results in an infringement of an individual's fundamental right, is necessary<sup>853</sup>.

Regarding the word 'severe', it may be that the drafters had the Trial Chamber Judgment in the *Tadić* case in mind in which persecution had been defined as 'the violation of the right to equality in *some serious fashion* that infringes on the enjoyment of a basic or fundamental right' (emphasis added)<sup>854</sup>. The word 'severe' does not refer to the character of the act of persecution as such. It refers to the character of the deprivation of fundamental rights which could be explained as a requirement of the severity of the discrimination<sup>855</sup>. A disadvantage to an identifiable group or collectivity or their individual members is an obvious consequence of a severe form of discrimination<sup>856</sup>.

According to the Trial Chamber Judgment in the *Tadić* case, an act of persecution or an omission can be of varying severity ranging, 'from killing to a limitation on the type of professions open to the targeted group'<sup>857</sup>. Persecution thus does not necessarily require a physical element<sup>858</sup>. For example, 'the issuance of discriminatory orders, policies, decisions or other regulations may constitute the *actus reus* of persecution, provided that these orders infringe upon a person's basic rights' and they reach a sufficient level of gravity<sup>859</sup>. Subsequent jurisprudence of the ICTY and the ICTR identified three broad classes of acts that can amount to persecution in certain contexts: 'Serious bodily and mental harm, infringements upon freedom, and attacks against property'<sup>860</sup>. Some of the acts included within these categories may in and of themselves amount to crimes under international law, such as extermination, while others will not necessarily amount to crimes under international law, except in the context in which they occur, such as for example, 'the act of denouncing a Jewish neighbour to the Nazi authorities', which, since it was committed against the background of the widespread persecution of the Jewish people, has been regarded as amounting to a crime against humanity<sup>861</sup>.

<sup>853</sup> In this judgment, persecution was defined as 'the violation of the right to equality in some serious fashion that infringes on the enjoyment of a basic or fundamental right'.

<sup>854</sup> *Ibid.*, para. 697.

<sup>855</sup> The 'denial of human rights and fundamental freedoms' in the context of article 18 para. f of the 1996 ILC Draft Code ('institutionalised discrimination'), 'requires sufficiently serious discrimination'. According to the ILC, both the crime of persecution ('on political, racial, religious or ethnic grounds') and the crime of 'institutionalised discrimination on racial, ethnic, or religious grounds involving the violation of fundamental human rights and freedoms and resulting in seriously disadvantaging a part of the population' involve 'the denial of the human rights and fundamental freedoms of individuals based on an unjustifiable discriminatory criterion', although in the case of the latter, the discriminatory plan or policy must be institutionalised. Thus, it would seem that the ILC implicitly required a sufficiently serious discrimination for the crime of persecution as well.

<sup>856</sup> As one of the elements of 'institutionalised discrimination', the ILC required in article 18 (f) 'a consequential serious disadvantage to members of the group comprising a segment of the population', Commentary to article 18 of the 1996 ILC Draft Code.

<sup>857</sup> *Prosecutor v. Tadić*, No. IT-94-1-T, Judgement, Trial Chamber, 7 May 1997, paras. 694 and 704.

<sup>858</sup> *Ibid.*, para. 707.

<sup>859</sup> *Prosecutor v. Simić*, No. IT-95-9-T, Judgement, Trial Chamber, 17 October 2003, para. 58.

<sup>860</sup> An alternative form of classification adopted by one ICTY Trial Chamber, *Prosecutor v. Blaškić*, No. IT-95-14, Judgement, Trial Chamber, 3 March 2000, para. 220.

<sup>861</sup> *Prosecutor v. Kupreskić*, No. IT-95-16-T, Judgement, Trial Chamber, 14 January 2000, para. 550.

The category of acts causing physical or mental harm amounting to the crime against humanity of persecution include:

- murder<sup>862</sup>;
- extermination<sup>863</sup>;
- incitement to commit murder and extermination<sup>864</sup>;
- pogroms<sup>865</sup>;
- creating and maintaining an atmosphere of terror<sup>866</sup>;
- starvation<sup>867</sup>;
- enslavement<sup>868</sup>;
- use of detainees as human shields<sup>869</sup>;
- biological experiments<sup>870</sup>;

<sup>862</sup> *International Military Tribunal (Nuremberg), Judgment and Sentences* (Nuremberg Judgment), 1 October 1946, (1947) 41 AJIL 172, 247 (killing identified as persecution); *Attorney General v. Eichmann*, Supreme Court of Israel, 29 May 1962, (1968) 36 ILR 277; *Prosecutor v. Kordić*, IT-95-14/2-A, Judgment, Appeals Chamber, 17 December 2004, para. 106 (wilful killing and murder); *Prosecutor v. Stakić*, No. IT-97-24-A, Judgment, Appeals Chamber, 22 March 2006, paras. 105–109 (upholding persecution conviction for murder); *Prosecutor v. Blaškić*, No. IT-95-14-A, Judgment, Appeals Chamber, 29 July 2004, para. 143 ('As concluded by *inter alia* the Kupreskić Trial Chamber, the crime of persecutions has developed in customary international law to encompass acts that include "murder ..."); *Prosecutor v. Krstić*, No. IT-98-33-T, Judgment, Trial Chamber, 2 August 2001, para. 537 ('the murder of thousands of Bosnian Muslim civilians, in Potoari or in carefully executed mass scale executions... constitute persecutory acts'); *Prosecutor v. Nikolić*, No. IT-94-2-S, Sentencing Judgment, Trial Chamber, 18 December 2003, para. 119 (conviction of persecution for murder); *Prosecutor v. Blaškić*, No. IT-95-14, Judgment, Trial Chamber, 3 March 2000, paras. 224, 226; *Prosecutor v. Kupreskić*, No. IT-95-16-T, Judgment, Trial Chamber, 14 January 2000, para. 629 ('deliberate and systematic killing of Bosnian Muslim civilians'); *Prosecutor v. Babić*, No. IT-03-72-S, Judgment, Trial Chamber, 29 June 2004, para. 50 (murders); *Prosecutor v. Blagojević*, No. IT-02-60-T, Judgment, Trial Chamber, 17 January 2005, para. 620 (murders); *Prosecutor v. Đerónjić*, No. IT-02-61-S, Sentencing Judgment, Trial Chamber, 30 March 2004, 119 (killing).

<sup>863</sup> *International Military Tribunal (Nuremberg), Judgment and Sentences* (Nuremberg Judgment), 1 October 1946, (1947) 41 AJIL 172, 246 (extermination identified as persecution); *Attorney General v. Eichmann*, Supreme Court of Israel, 29 May 1962, (1968) 36 ILR 277; *Prosecutor v. Kordić*, No. IT-95-14/2-A, Judgment, Appeals Chamber, 17 December 2004, para. 106 (extermination); *Prosecutor v. Blaškić*, No. IT-95-14-A, Judgment, Appeals Chamber, 29 July 2004, para. 143 ('As concluded by *inter alia* the Kupreskić Trial Chamber, the crime of persecutions has developed in customary international law to encompass acts that include "... extermination"), *Prosecutor v. Blaškić*, No. IT-95-14, Judgment, Trial Chamber, 3 March 2000, paras. 224, 226; *Prosecutor v. Kupreskić*, No. IT-95-16-T, Judgment, Trial Chamber, 14 January 2000, para. 600.

<sup>864</sup> *International Military Tribunal (Nuremberg), Judgment and Sentences* (Nuremberg Judgment), 1 October 1946, (1947) 41 AJIL 172, 296 (conviction of Streicher for crimes against humanity for 'incitement to murder and extermination at the time when Jews in the East were being killed under the most horrible conditions clearly constitutes persecution'). ICTR: *Prosecutor v. Ruggiu*, No. ICTR-97-32-I, Judgment, Trial Chamber, 1 June 2000, para. 24 (incitement to murder and extermination); *Prosecutor v. Nahimana*, No. ICTR-99-52-T, Judgment and Sentence, Trial Chamber, 3 December 2003, para. 1072 (hate speech).

<sup>865</sup> *International Military Tribunal (Nuremberg), Judgment and Sentences* (Nuremberg Judgment), 1 October 1946, (1947) 41 AJIL 172, 224 (identifying pogroms as persecution).

<sup>866</sup> *Prosecutor v. Nikolić*, No. IT-94-2-S, Sentencing Judgment, Trial Chamber, 18 December 2003, para. 119 (conviction of persecution for creating and maintaining an atmosphere of terror); *Prosecutor v. Blagojević*, No. IT-02-60-T, Judgment, Trial Chamber, 17 January 2005, para. 620 (finding that terrorizing the civilian population is persecution).

<sup>867</sup> *International Military Tribunal (Nuremberg), Judgment and Sentences* (Nuremberg Judgment), 1 October 1946, (1947) 41 AJIL 172, 247 (starvation identified as persecution); *Attorney General v. Eichmann*, Supreme Court of Israel, 29 May 1962, (1968) 36 ILR 277; *Prosecutor v. Blaškić*, No. IT-95-14, Judgment, Trial Chamber, 3 March 2000, para. 224.

<sup>868</sup> *International Military Tribunal (Nuremberg), Judgment and Sentences* (Nuremberg Judgment), 1 October 1946, (1947) 41 AJIL 172, 245 (use of slave labourers) and 246 (use of slave labourers in concentration camps identified as persecution); *Attorney General v. Eichmann*, Supreme Court of Israel, 29 May 1962, (1968) 36 ILR 277; *Prosecutor v. Blaškić*, No. IT-95-14, Judgment, Trial Chamber, 3 March 2000, para. 224.

<sup>869</sup> *Prosecutor v. Blaškić*, No. IT-95-14-A, Judgment, Appeals Chamber, 29 July 2004, para. 155.

<sup>870</sup> *International Military Tribunal (Nuremberg Judgment), Judgment and Sentences* (Nuremberg Judgment), 1 October 1946, (1947) 41 AJIL 172, 247 (identifying as persecution emersion of concentration camp inmates 'in cold water until their body temperature was reduced to 28 degrees Centigrade, when they died immediately' and other experiments, including: 'high altitude experiments in pressure chambers, experiments to determine how long human beings could survive in freezing water, experiments with poison bullets, experiments with contagious diseases, and experiments dealing with sterilisation of men and women by X-rays and other methods').



- deportation<sup>871</sup>;
- forcible transfer of population<sup>872</sup>;
- torture<sup>873</sup>;
- rape<sup>874</sup>;
- physical violence not constituting torture<sup>875</sup>;
- cruel and inhumane treatment or subjection to inhumane conditions<sup>876</sup>;
- constant humiliation and degradation<sup>877</sup>; and
- deliberate attacks on civilians and indiscriminate attacks on undefended civilian localities<sup>878</sup>.

<sup>871</sup> *International Military Tribunal* (Nuremberg Judgment), *Judgment and Sentences* (Nuremberg Judgment), 1 October 1946, (1947) 41 *AJIL* 172, 310 (convicting Von Schirach for deportation of Jews from Vienna as a crime against humanity); *Attorney General v. Eichmann*, Supreme Court of Israel, 29 May 1962, (1968) 36 *ILR* 277; *Prosecutor v. Stakić*, No. IT-97-24-A, Judgment, Appeals Chamber, 22 March 2006, paras. 105–109 (upholding persecution conviction for deportation); *Prosecutor v. Blaškić*, No. IT-95-14, Judgment, Trial Chamber, 3 March 2000, para. 224.

<sup>872</sup> *Prosecutor v. Krnojelac*, No. IT-97-25-A, Judgment, Appeals Chamber, 17 September 2003, paras. 221–222; *Prosecutor v. Krstić*, No. IT-98-33-T, Judgment, Trial Chamber, 2 August 2001, para. 537 (‘forcible transfer of the women, children and elderly out of the territory controlled by Bosnian Serbs[] constitute[s] persecutory acts’); *Prosecutor v. Nikolić*, No. IT-94-2-S, Sentencing Judgment, Trial Chamber, 18 December 2003, para. 119 (conviction of persecution for forcible transfer); *Prosecutor v. Blagojević*, No. IT-02-60-T, Judgment, Trial Chamber, 17 January 2005, para. 621 (forcible transfer was part of prosecutorial campaign); *Prosecutor v. Deronjić*, No. IT-02-61-S, Sentencing Judgment, Trial Chamber, 30 March 2004, para. 156 (forcible displacement).

<sup>873</sup> *International Military Tribunal* (Nuremberg Judgment), *Judgment and Sentences* (Nuremberg Judgment), 1 October 1946, (1947) 41 *AJIL* 172, 247 (beating and torture identified as persecution); *Prosecutor v. Kordić*, No. IT-95-14/2-A, Judgment, Appeals Chamber, 17 December 2004, para. 106 (torture); *Prosecutor v. Stakić*, No. IT-97-24-A, Judgment, Appeals Chamber, 22 March 2006, paras. 105–109 (upholding persecution conviction for torture); *Prosecutor v. Blaškić*, No. IT-95-14-A, Judgment, Appeals Chamber, 29 July 2004, para. 143 (‘As concluded by *inter alia* the Kupreskić Trial Chamber, the crime of persecutions has developed in customary international law to encompass acts that include “.. torture”’); *Prosecutor v. Blaškić*, No. IT-95-14, Judgment, Trial Chamber, 3 March 2000, para. 226; *Prosecutor v. Kupreskić*, No. IT-95-16-T, Judgment, Trial Chamber, 14 January 2000, paras. 600–605; *Prosecutor v. Naletilić*, No. IT-98-34-T, Judgment, Trial Chamber, 31 March 2003, para. 682; *Prosecutor v. Nikolić*, No. IT-94-2-S, Sentencing Judgment, Trial Chamber, 18 December 2003, para. 119 (conviction of persecution for torture).

<sup>874</sup> *Prosecutor v. Stakić*, No. IT-97-24-A, Judgment, Appeals Chamber, 22 March 2006, paras. 105–109, *Prosecutor v. Stakić*, No. IT-97-24-T, Judgment, Trial Chamber, 31 July 2003, paras. 754–757, 791–806 (conviction of persecution for rape); *Prosecutor v. Nikolić*, No. IT-94-2-S, Sentencing Judgment, Trial Chamber, 18 December 2003, para. 119 (conviction of persecution for aiding and abetting rape).

<sup>875</sup> *Prosecutor v. Kordić*, No. IT-95-14/2-A, Judgment, Appeals Chamber, 17 December 2004, para. 106 (‘serious bodily and mental harm’ and ‘other serious acts on the person such as those presently enumerated in article 5 [of the ICTY Statute]’); *Prosecutor v. Stakić*, No. IT-97-24-A, Judgment, Appeals Chamber, 22 March 2006, paras. 105–109 (upholding persecution conviction for physical violence); *Prosecutor v. Blaškić*, No. IT-95-14-A, Judgment, Appeals Chamber, 29 July 2004, para. 143 (‘It is clear in the jurisprudence of the International Tribunal that acts of serious bodily and mental harm are of sufficient gravity as compared to the other crimes enumerated in article 5 of the Statute and therefore may constitute persecutions’); *Prosecutor v. Stakić*, No. IT-97-24-T, Judgment, Trial Chamber, 31 July 2003, para. 753; *Prosecutor v. Simić*, No. IT-95-9-T, Judgment, Trial Chamber, 17 October 2003, para. 78 (intentional beatings, when committed deliberately).

<sup>876</sup> *Prosecutor v. Simić*, No. IT-95-9-A, Judgment, Appeals Chamber, 28 November 2006, paras. 119–138 (confinement under inhumane conditions); *Prosecutor v. Blaškić*, No. IT-95-14-A, Judgment, Appeals Chamber, 29 July 2004, para. 155 (inhumane treatment and deprivation of adequate food and water); *Prosecutor v. Nikolić*, No. IT-94-2-S, Sentencing Judgment, Trial Chamber, 18 December 2003, para. 119 (conviction of persecution for subjecting victims to inhumane conditions); *Prosecutor v. Blagojević*, No. IT-02-60-T, Judgment, Trial Chamber, 17 January 2005, para. 620 (finding that cruel and inhumane treatment constitutes persecution).

<sup>877</sup> *Prosecutor v. Blaškić*, No. IT-95-14-A, Judgment, Appeals Chamber, 29 July 2004, para. 155 (subjecting detainees ‘to physical or psychological abuse and intimidation’); *Prosecutor v. Stakić*, No. IT-97-24-A, Judgment, Appeals Chamber, 22 March 2006, paras. 105–109, *Prosecutor v. Stakić*, No. IT-97-24-T, Judgment, Trial Chamber, 31 July 2003, para. 760.

<sup>878</sup> *Prosecutor v. Kordić*, No. IT-95-14/2-A, Judgment, Appeals Chamber, 17 December 2004, para. 105 (‘unlawful attack[s] launched deliberately against civilians or civilian objects may constitute a crime of persecution’) without the requirement of a particular result caused by the attack(s)’; *Prosecutor v. Kordić*, No. IT-95-14/2-T, Judgment, Trial Chamber, 26 February 2001, para. 221 (unlawful attack on cities, towns and villages); *Prosecutor v. Blaškić*, No. IT-95-14-A, Judgment, Appeals Chamber, 29 July 2004, para. 159 (‘attacks in which



- Infringements on freedom constituting the crime against humanity of persecution include:
- unlawful arrest, detention, imprisonment or confinement of civilians<sup>879</sup>;
  - interrogation of persons who have been arrested and detained and forcing them to sign false and coerced statements<sup>880</sup>;
  - restrictions on movement to certain places and times<sup>881</sup>;
  - exclusion from professions<sup>882</sup>;
  - forced labour<sup>883</sup>;
  - restrictions on family life<sup>884</sup>;
  - restrictions on the right to citizenship<sup>885</sup>;
  - exclusion of members of a group from national life<sup>886</sup>;
  - compelling members of a group to wear a distinctive sign<sup>887</sup>;
  - registration of members of a group<sup>888</sup>;
  - other infringements upon individual freedom<sup>889</sup>; and
  - deportation or forcible transfer of civilians<sup>890</sup>.

civilians are targeted, as well as indiscriminate attacks on cities, towns, and villages, may constitute persecutions as a crime against humanity’); *Prosecutor v. Nikolić*, No. IT-94-2-S, Sentencing Judgment, Trial Chamber, 18 December 2003, para. 121 (unlawful attack on cities, towns and villages).

<sup>879</sup> *International Military Tribunal* (Nuremberg Judgment), *Judgment and Sentences* (Nuremberg Judgment), 1 October 1946, (1947) 41 *AJIL* 172, 244 (citing ‘the arrest of prominent Jewish business men’); *Prosecutor v. Simić*, No. IT-95-9-A, Judgment, Appeals Chamber, 28 November 2006, paras. 106–118 (upholding conviction for persecution based on unlawful arrests and detention); *Prosecutor v. Blaškić*, No. IT-95-14, Judgment, Trial Chamber, 3 March 2000, para. 234 (‘The unlawful detention of civilians, as a form of the crime of persecution, means unlawfully depriving a group of discriminated civilians of their freedom’); *Prosecutor v. Kupreskić*, No. IT-95-16-T, Judgment, Trial Chamber, 14 January 2000, para. 629 (‘organised detention’); *Prosecutor v. Naletilić*, No. IT-98-34-T, Judgment, Trial Chamber, 31 March 2003, para. 642 (‘organised detention of civilians’); *Prosecutor v. Blaškić*, No. IT-95-14, Judgment, Trial Chamber, 3 March 2000, para. 234 (‘unlawfully depriving a group of discriminated civilians of their freedom’ is unlawful detention amounting to persecution); *Prosecutor v. Babić*, No. IT-03-72-S, Judgment, Trial Chamber, 29 June 2004, para. 50.

<sup>880</sup> *Prosecutor v. Simić*, No. IT-95-9-T, Judgment, Trial Chamber, 17 October 2003, para. 69.

<sup>881</sup> *International Military Tribunal* (Nuremberg Judgment), *Judgment and Sentences* (Nuremberg Judgment), 1 October 1946, (1947) 41 *AJIL* 172, 244 (identifying as persecution the restriction of movement of Jews ‘by regulations to specified districts and hours’ and the creation of ghettos on an extensive scale) and 245 (forcing Jews to live in ghettos) and 292 (convicting Von Schirach of crimes against humanity for driving Jews into ‘the ghetto of the East’).

<sup>882</sup> *International Military Tribunal* (Nuremberg Judgment), *Judgment and Sentences* (Nuremberg Judgment), 1 October 1946, (1947) 41 *AJIL* 172, 244 (identifying as persecution ‘[a] series of discriminatory laws .. which limited the offices and professions permitted to Jews’) and 292 (convicting Frick of crimes against humanity for ‘prohibiting Jews from following various professions’).

<sup>883</sup> *Prosecutor v. Simić*, No. IT-95-9-A, Judgment, Appeals Chamber, 28 November 2006, paras. 139–159 (upholding conviction of persecution for forced labour).

<sup>884</sup> *International Military Tribunal* (Nuremberg Judgment), *Judgment and Sentences* (Nuremberg Judgment), 1 October 1946, (1947) 41 *AJIL* 172, 244 (restrictions on the family life of Jews identified as persecution).

<sup>885</sup> *International Military Tribunal* (Nuremberg Judgment), *Judgment and Sentences* (Nuremberg Judgment), 1 October 1946, (1947) 41 *AJIL* 172, 244 (restrictions on the rights of German Jews to citizenship identified as persecution).

<sup>886</sup> *International Military Tribunal* (Nuremberg Judgment), *Judgment and Sentences* (Nuremberg Judgment), 1 October 1946, (1947) 41 *AJIL* 172, 244 (describing as persecution the Nazi policy towards the Jews that ‘was directed towards the complete exclusion of Jews from German life’) and 292 (convicting Frick, who ‘drafted, signed, and administered many laws designed to eliminate Jews from German life and economy’, of crimes against humanity).

<sup>887</sup> *International Military Tribunal* (Nuremberg Judgment), *Judgment and Sentences* (Nuremberg Judgment), 1 October 1946, (1947) 41 *AJIL* 172, 244 (identifying as persecution ‘an order of the Security Police [by which] Jews were compelled to wear a yellow star to be worn on the breast and back’) and 245 (same).

<sup>888</sup> *International Military Tribunal* (Nuremberg Judgment), *Judgment and Sentences* (Nuremberg Judgment), 1 October 1946, (1947) 41 *AJIL* 172, 245.

<sup>889</sup> *Prosecutor v. Naletilić*, No. IT-98-34-T, Judgment, Trial Chamber, 31 March 2003, para. 642.

<sup>890</sup> *Prosecutor v. Simić*, No. IT-95-9-A, Judgment, Appeals Chamber, 28 November 2006, paras. 160–188 (upholding conviction of persecution for forcible displacement); *Prosecutor v. Blaškić*, No. IT-95-14-A, Judgment, Appeals Chamber, 29 July 2004, para. 153 (finding that deportation and forcible transfer can amount to persecution as crimes against humanity); *Prosecutor v. Kupreskić*, No. IT-95-16-T, Judgment, Trial Chamber, 14 January 2000, para. 629 (‘organised .. expulsion’); *Prosecutor v. Naletilić*, No. IT-98-34-T, Judgment, Trial

The majority of courts that have addressed the question have concluded that acts against property can amount to persecution as a crime against humanity, including:

- seizure of assets<sup>891</sup>;
- confiscation or destruction of private dwellings<sup>892</sup>, businesses<sup>893</sup>, religious buildings<sup>894</sup>, cultural or symbolic buildings<sup>895</sup> or means of subsistence<sup>896</sup>;
- collective fines<sup>897</sup>; and
- boycotts of businesses<sup>898</sup>.

Other examples mentioned as acts of persecution include those of an economic and judicial nature<sup>899</sup>.

However, courts are split about when destruction and plunder of property constitute acts of persecution. The Nuremberg Tribunal and some other international criminal courts have held that wanton destruction of property and plunder during armed conflict amounted to persecution as a crime against humanity<sup>900</sup>. In contrast two military courts established

Chamber, 31 March 2003, para. 711; *Prosecutor v. Babić*, No. IT-03-72-S, Judgment, Trial Chamber, 29 June 2004, para. 50 (deportations and forcible transfers).

<sup>891</sup> *International Military Tribunal* (Nuremberg Judgment), *Judgment and Sentences* (Nuremberg Judgment), 1 October 1946, (1947) 41 *AJIL* 172, 244 (identifying the seizure of assets of Jews as persecution).

<sup>892</sup> *Prosecutor v. Stakić*, No. IT-97-24-T, Judgment, Trial Chamber, 31 July 2003, para. 764 ('destruction, wilful damage and looting of residential .. properties'); *Prosecutor v. Krstić*, No. IT-98-33-T, Judgment, Trial Chamber, 2 August 2001, para. 537 ('burning of homes .. constitute[s] persecutory acts'); *Prosecutor v. Blaškić*, No. IT-95-14, Judgment, Trial Chamber, 3 March 2000, para. 227.

<sup>893</sup> *Prosecutor v. Stakić*, No. IT-97-24-T, Judgment, Trial Chamber, 31 July 2003, para. 764 ('destruction, wilful damage and looting of .. commercial properties'); *Prosecutor v. Blaškić*, No. IT-95-14, Judgment, Trial Chamber, 3 March 2000, para. 227.

<sup>894</sup> *International Military Tribunal* (Nuremberg Judgment), *Judgment and Sentences* (Nuremberg Judgment), 1 October 1946, (1947) 41 *AJIL* 172, 245 (identifying 'the burning and demolishing of synagogues' as persecution); *Attorney-General of the Government of Israel v. Eichmann*, Judgment, District Court, 12 December 1961, (1994) 36 *IL Rep.*, para. 457 (systematic destruction of the synagogues); *Prosecutor v. Blaškić*, No. IT-95-14, Judgment, Trial Chamber, 3 March 2000, para. 230; *Prosecutor v. Stakić*, No. IT-97-24-T, Judgment, Trial Chamber, 31 July 2003, paras. 765–768 ('destruction of an institution dedicated to religion'); *Prosecutor v. Deronjić*, No. IT-02-61-S, Sentencing Judgment, Trial Chamber, 30 March 2004, para. 122 ('destruction of an institution dedicated to religion') (quoting *Stakić*).

<sup>895</sup> 1991 *ILC Draft Code* (1991) 2 *YbILC* 104, 268 ('systematic destruction of monuments or buildings representative of a particular social, religious, cultural or other group'); *Prosecutor v. Stakić*, No. IT-97-24-T, Judgment, Trial Chamber, 31 July 2003, para. 768 ('destruction of, or wilful damage to, .. cultural buildings.. may amount to persecutions' and 'the seizure of, destruction or wilful damage done to institutions dedicated to religion, charity and education, the arts and sciences, historic monuments and works of art and science'); *Prosecutor v. Blaškić*, No. IT-95-14, Judgment, Trial Chamber, 3 March 2000, para. 231; *Prosecutor v. Deronjić*, No. IT-02-61-S, Sentencing Judgment, Trial Chamber, 30 March 2004, para. 122 ('destruction of an institution dedicated to religion') (quoting *Stakić*).

<sup>896</sup> *Prosecutor v. Blaškić*, No. IT-95-14, Judgment, Trial Chamber, 3 March 2000, para. 227.

<sup>897</sup> *International Military Tribunal* (Nuremberg Judgment), *Judgment and Sentences* (Nuremberg Judgment), 1 October 1946, (1947) 41 *AJIL* 172, 244 (identifying as persecution the imposition of a collective fine of one billion marks) and 274 (noting that Göring had 'persecuted the Jews, particularly after the November 1938 riots', including 'where he raised the billion-mark fine'); *Prosecutor v. Blaškić*, No. IT-95-14, Judgment, Trial Chamber, 3 March 2000, para. 229.

<sup>898</sup> *International Military Tribunal* (Nuremberg Judgment), *Judgment and Sentences* (Nuremberg Judgment), 1 October 1946, (1947) 41 *AJIL* 172, 302 (conviction of Streicher for crimes against humanity for the boycott of Jewish businesses); *Attorney-General of the Government of Israel v. Eichmann*, Judgment, District Court, 12 December 1961, (1994) 36 *ILR* 5, para. 457 (boycott of Jewish businesses and shops); *Prosecutor v. Blaškić*, No. IT-95-14, Judgment, Trial Chamber, 3 March 2000, para. 230.

<sup>899</sup> *Attorney-General of the Government of Israel v. Eichmann*, Judgment, District Court, 12 December 1961, (1994) 36 *ILR*, para. 710.

<sup>900</sup> *International Military Tribunal* (Nuremberg Judgment), *Judgment and Sentences* (Nuremberg Judgment), 1 October 1946, (1947) 41 *AJIL* 172, 281 (conviction of Göring for crimes against humanity, including, for being 'the active authority in the spoliation of conquered territory') and 295 (conviction of Rosenberg for war crimes and crimes against humanity for 'a system of organised plunder of both public and private property throughout the invaded countries of Europe'); *Prosecutor v. Blaškić*, No. IT-95-14, Judgment, Trial Chamber, 3 March 2000, para. 234 ('the destruction of property must be construed to mean the destruction of towns, villages and other public or private property belonging to a given civilian population or extensive devastation not justified by military necessity and carried out unlawfully, wantonly and discriminatorily'); *Prosecutor v. Naletilić*, No. IT-98-

pursuant to the Allied Control Law No. 10 held that acts against property, although constituting persecution, did not amount to crimes against humanity, on the ground that, unlike the other inhumane acts constituting crimes against humanity, taking industrial property did not affect life or liberty<sup>901</sup>. The *Eichmann* case set a very high threshold for determining when plunder amounted to an act of persecution, but did not explain why it set such a threshold<sup>902</sup>.

However, more recent jurisprudence is willing to consider destruction or confiscation of property as an act of persecution in certain circumstances. In the *Kupreskić* case, the ICTY Trial Chamber explained the circumstances when acts against property would constitute persecution as a crime against property and when they would not as follows:

‘There may be certain types of property whose destruction may not have a severe enough impact on the victim as to constitute a crime against humanity, even if such a destruction is perpetrated on discriminatory grounds: an example is the burning of someone’s car (unless the car constitutes an indispensable and vital asset to the owner). However, the case at hand concerns the comprehensive destruction of homes and property. Such an attack on property in fact constitutes a destruction of the livelihood of a certain population. This may have the same inhumane consequences as a forced transfer or deportation. Moreover, the burning of a residential property may often be committed with a recklessness towards the lives of its inhabitants. The Trial Chamber therefore concludes that this act may constitute a gross or blatant denial of fundamental human rights, and, if committed on discriminatory grounds, it may constitute persecution’<sup>903</sup>.

An act of persecution must result in a ‘deprivation of fundamental rights contrary to international law’. Such a deprivation includes fundamental rights from which no derogation is permitted. In its General Comment no. 24, the Human Rights Committee enumerated a list of rights included in the relevant provisions of the ICCPR which may not be the subject of reservations because these provisions represent customary law ‘and *a fortiori* ... have the character of peremptory norms’:

‘... a State may not reserve the right to engage in slavery, to torture, to subject persons to cruel, inhuman or degrading treatment or punishment, to arbitrarily deprive persons of their lives, to arbitrarily arrest and detain persons, to deny freedom of thought, conscience and religion, to presume a person guilty unless he proves his innocence, to execute pregnant women or children, to permit the advocacy of national, racial or religious hatred, to deny to persons of marriageable age the right to marry, or to deny to minorities the right to enjoy their own culture, profess their own religion, or use their own language ...’<sup>904</sup>.

34-T, Judgment, Trial Chamber, 31 March 2003, para. 701; *Prosecutor v. Babić*, No. IT-03-72-S, Judgment, Trial Chamber, 29 June 2004, para. 50 (destruction of property).

<sup>901</sup> In marked contrast to the Nuremberg Judgment, in the *Flick Case*, the military court found that the compulsory taking of industrial property did not constitute crimes against humanity. It stated:

‘The ‘atrocities and offenses’ listed in Law No. 10 ‘murder, extermination’ etc., are all offenses against the person. Property is not mentioned. Under the doctrine of *ejusdem generis* the catch-all words ‘other persecutions’ must be deemed to include only such as affect the life and liberty of the oppressed peoples. Compulsory taking of industrial property, however reprehensible, is not in that category’.

*Flick case*, 6 TWC 1215. See also *Krauch (I.G. Farben)* case, 8, part 2, *ibid.*, 1129-1130.

<sup>902</sup> In the *Eichmann* case, the Israeli District Court held that the plunder of property could only be considered to constitute a crime against humanity if it was committed

‘by pressure of mass terror against a civilian population, or if it was linked to any of the other acts of violence defined by the Nazi and Nazi Collaborators Punishment Law, 5710/1950 as a crime against humanity or as a result of any of those acts, i.e. murder, extermination, starvation, or deportation of any civilian population, so that the plunder is only part of a general process...’.

(1968) 36 ILR 241.

<sup>903</sup> *Prosecutor v. Kupreskić*, No. IT-95-16-T, Judgment, Trial Chamber, 14 January 2000, para. 631 (fn. omitted). This view was endorsed in *Prosecutor v. Blaškić*, No. IT-95-14-A, Judgment, Appeals Chamber, 29 July 2004, para. 147. See also *Prosecutor v. Kordić*, No. IT-95-14/2-A, Judgment, Appeals Chamber, 17 December 2004, para. 109 (‘The Appeals Chamber finds that the destruction of property, depending on the nature and extent of the destruction, may constitute a crime of persecution[] of equal gravity to other crimes listed in article 5 of the Statute’).

<sup>904</sup> *General Comment adopted by the Hum. Rts. Committee under article 40*, para. 4, of the ICCPR, No. 24, UN Doc. CCPR/C/21/Rev.1/Add.6 (11 Nov. 1994), para. 8.

However, as the list of acts which have been found to constitute persecution demonstrates, the rights deprived by an act of persecution include many rights other than non-derogable rights, including the right to freedom of movement<sup>905</sup>. In essence, depriving members of an identifiable group or collectivity, by reason of the identity of this group or collectivity, intentionally and severely of these fundamental rights, contrary to international law, could constitute an act of persecution under the Rome Statute. Whether or not article 7 para. 1(h) recognizes and subsumes each of the categories of acts enumerated above remains to be seen, particularly given article 7 para. 1(h)'s nexus requirement, namely; that the allegedly persecutory act is committed in 'connection with any ... crime within the jurisdiction of the Court'. This implies, in short, that the persecutory act or conduct must be connected to a (single) underlying act of article 5–8bis.<sup>906</sup> While the *Kupreskić* Trial Chamber took the view that such a nexus requirement 'is not consonant with customary international law', Kai Ambos has argued that it nevertheless 'serves the sole purpose of limiting the Court's jurisdiction to forms of persecution which are of an elevated objective seriousness'.<sup>907</sup> It is expected, however, that in making any determination with respect to allegedly persecutory acts or conduct not expressly tied to an act falling squarely under article 5–8bis, the Court will invoke the *ejusdem generis* rule. It is worth noting in this respect, that in the practice of the Court to date, confirmed charges of persecution have been limited to acts which have also been separately charged as crimes against humanity in and of themselves.<sup>908</sup>

- 143 b) 'by reason of the identity of the group or collectivity'. The intentional and severe deprivation of fundamental rights must have been carried out with discriminatory intent. Various discriminatory grounds are enumerated in paragraph 1 (h), see mn. 57.

#### 8. 'The crime of apartheid'

- 144 Together with the Genocide Convention, the *Apartheid* Convention has been tagged as one of the main antecedents of the ICC Statute<sup>909</sup>. The crime definitions in both Conventions were tailor-made and drafted with very concrete situations in mind, namely the Holocaust and the situation in Southern Africa. This retrospective and *ad hoc* nature of the crime definitions was not fully remedied in Rome. Although the definition of *apartheid* was not copy-pasted as was the genocide definition, the sole reference to racial groups still reveals its historic roots.

Perhaps the only attempt to prosecute a person for the crime of apartheid so far took place in Montevideo during a visit by Pik Botha, the South African Minister of Foreign Affairs, ostensibly in his personal capacity to Uruguay in the mid-1980s. The Uruguayan court, however, dismissed the case<sup>910</sup>. Attempts to sue corporations for their involvement and

<sup>905</sup> Supra note [47, *Stakić* (Trial Chamber Judgment), para. 773 ('Persecution can consist of the deprivation of a wide variety of rights, whether fundamental or not, derogable or not').].

<sup>906</sup> See Ambos, *Treatise on ICL II* (2014) 105.

<sup>907</sup> See Ambos, *Treatise on ICL II* (2014) 105.

<sup>908</sup> *Prosecutor v. Charles Blé Goudé*, No. ICC-02/11-02/11-186, Decision on the Confirmation of Charges Against Charles Blé Goudé, Pre-Trial Chamber I, 11 December 2014, paras. 115–116, 117–118, 119–121, and 122–123; *Prosecutor v. Laurent Gbagbo*, No. ICC-02/11-01/11-656-Red, Decision on the Confirmation of Charges, Pre-Trial Chamber II, 12 June 2014, paras. 193–199 and 204; *Prosecutor v. William Samoei Ruto, Henry Kiprono Kosgey and Joshua Arap Sang*, No. ICC-01/09-01/11-373, Decision on the Confirmation of Charges Pursuant to article 61(7)(a) and (b) of the Rome Statute, Pre-Trial Chamber II, 23 January 2012, paras. 225–226, 228–239, 241–242, 248–251, 253–266, and 269–281; *Prosecutor v. Francis Kirimi Muthaura, Uhuru Muigai Kenyatta and Mohammed Hussein Ali*, No. ICC-01/09-02/11-382-Red, Decision on the Confirmation of Charges Pursuant to article 61(7)(a) and (b) of the Rome Statute, Pre-Trial Chamber II, (23 January 2012), paras. 233, 243, 257, 270–271, 275–277, and 281–286.

<sup>909</sup> Rosenne, in: Rosenne, *Essays on International Law and Practice* (2007) 391.

<sup>910</sup> The lead lawyer in the case, Fernando Urioste, currently a professor at the *Facultad de Derecho de la Universidad de la República* and at the *Universidad Católica del Uruguay* in Montevideo, was assisted by Wilder Tayler, currently Deputy Secretary General of the International Commission of Jurists.

support of the *Apartheid* regime under the US Alien Tort Statute have been complicated by the US Supreme Court's decision in *Kiobel* but continue nonetheless<sup>911</sup>.

a) **Similar inhumane acts.** The First Edition of this Commentary noted that the ICC 145 definition of 'the crime of apartheid' appears to be narrower than the definition of *apartheid* in article II of the *Apartheid Convention* in a number of respects. First, article 7 para. 2 (h) seems to define this crime as a residual category for certain inhumane acts under specific circumstances when they do not otherwise fit within one of the other acts listed in article 7 para. 1. The term 'other inhumane acts of a character similar to those referred to in paragraph 1' might seem to suggest that for the purposes of the *Statute* 'the crime of apartheid' includes only those inhumane acts which are not already listed in paragraph 1 (a) – (i) or included in the other residual category of 'other inhumane acts of a similar character intentionally causing great suffering, or serious injury to body or to mental or physical health' in paragraph 1 (k). However, the second element of the crime of apartheid listed in the Elements of Crimes (see mn 122 below) addresses this awkward drafting by providing that the acts elsewhere in article 7 para. 1 would be included within 'the crime of apartheid'. Given the seriousness of the crime and the possibility of cumulative prosecution of the same conduct as violations of more than one crime (where there was a distinctive element), this element seems to be consistent with the probable intent of the drafters of the *Statute*<sup>912</sup>. The acts that are similar to, but not identical to, both of these two categories in the rest of paragraph 1, which constitute 'the crime of apartheid' would include both those types of acts which involve 'great suffering, or serious injury to body or to mental or physical health' within the meaning of paragraph 1 (k), and those acts listed in paragraph 1 (a) – (i) which in some cases might involve a lesser degree of suffering or less serious injury. What are the common characteristics of these two types of crimes against humanity? The common element is that they are all 'inhuman'. Therefore, it is likely that some of the inhumane acts which would constitute 'the crime of apartheid' would include many of the acts listed in article II of the *Apartheid Convention* which are not already covered in article 7 para. 1 of the *Statute*<sup>913</sup>.

All the acts listed in article II of the *Apartheid Convention* as constituting *apartheid* are defined as 'inhuman acts' and there probably is a large degree of overlap between the concepts of 'inhuman acts' and 'inhumane acts'<sup>914</sup>. The International Law Commission cited 'mutilation and bodily harm' as examples<sup>915</sup>. Among the acts defined as *apartheid* in article II which might be included in 'the crime of apartheid' as defined in article 7 para. 2 (h) is 'cruel, inhuman or degrading treatment or punishment' (article II (a) (ii)), which can impose a degree of physical or mental suffering akin to the acts listed in article 7 para. 1 (a) – (i). Other inhumane acts constituting *apartheid* which might be considered similar to those in paragraph 1 (a) – (i) in the degree of suffering or injury (even if not necessarily at the same level of suffering or injury as in the category of 'other inhumane acts' of paragraph 1 (k)) include the imposition of living conditions calculated to cause the destruction of a racial group (article II (b)), legislative or other measures calculated to prevent a racial group from participating in the life of the country, such as the denial of the right to leave and return to one's country or the right to a nationality (article II (c)) and legislative or other measures 'designed to divide the population along racial lines', such as prohibiting mixed marriages (article II (d)). Although some may contend that some of the other acts listed in article II,

<sup>911</sup> For more on *Kiobel*, see the ASIL Agora: Reflections on *Kiobel* with excerpts from 107 *AJIL* 3 and 4 (2013) and *AJIL Unbound* 2014.

<sup>912</sup> Other commentators have also concluded that this element correctly includes acts listed in paragraphs 1 (a)–(i) and (k). Werle and Jessberger, *Principles* (2014) 260; Ambos, *Treatise on ICL II* (2014) 11.

<sup>913</sup> One commentator has stated that it is possible for the criterion 'inhumane acts of a character similar to those referred to in paragraph 1' to be interpreted using article II of the UN *Apartheid Convention*. *ibid.* 262–263.

<sup>914</sup> The French versions of the *Apartheid Convention* and of the *Statute* use the term '*les actes inhumains*' to translate both 'inhuman acts' and 'inhumane acts'.

<sup>915</sup> 1996 ILC Draft Code 50 (commentary to article 18 (k)).



such as the denial of the right to work or to education, although, of course, very serious deprivations, are not of the same nature as the acts listed in article 7 para. 1, this contention overlooks the devastating impact on the lives of those denied these rights recognised by the Universal Declaration of Human Rights and guaranteed by the International Covenant on Economic, Social and Cultural Rights, and on the society deprived of the full potential of its members. Moreover, as indicated in the discussion of persecution (see mn 116–117 above), many of these acts constitute the crime against humanity of persecution). However, many of the other acts listed in article II, such as murder (article II (a) (i)) and torture (article II (a) (ii)), are already covered by article 7 para. 1, so they will fall within ‘the crime of apartheid’ under the *Statute* if the Court decides to follow the interpretation in the second element of the Elements of Crimes.

- 146 **b) Context with ‘an institutionalised regime of systematic oppression and domination’.** The inhumane acts must be ‘committed in the context of an institutionalised regime’. The words ‘institutionalised regime’ appear to qualify the term ‘systematic oppression and domination’. It is this requirement that differentiates *apartheid* from persecution. In fact, those two words embody the characterising feature of *apartheid* and they give the crime its uniqueness. *Apartheid* as a crime against humanity is unique in that it criminalizes behaviour at the international level which is lawful or at least permitted through unofficial policy at the national level. Despite being so crucial, the words ‘institutionalize regime’ are not beyond discussion. Firstly, some argue that the word ‘regime’ implies state involvement<sup>916</sup>, whereas others cast the net wider so as to also cover *de facto* states and armed opposition groups<sup>917</sup>. Secondly and relatedly, there are different views as to whether the word ‘institutionalised’ presupposes that the *apartheid* is anchored in domestic laws<sup>918</sup> or whether it also captures somewhat more informal policies<sup>919</sup>. The latter view may give way to the argument that *apartheid* can be institutionalised by actors other than states. Yet, a too liberal interpretation might be inconsistent with the understanding that it is precisely the fact that *apartheid* is a system created by law and enforced by legal institutions which render it particularly offensive.<sup>920</sup> The subsequent requirement that the institutionalised regime be one of ‘systematic oppression and domination’, could also lead to some confusion. The threshold for exercising jurisdiction over crimes against humanity is that they be part of either a widespread or systematic attack on a civilian population and a double requirement of systematic does not make sense (see mn 3, 11). If the intent was to exclude the alternative of ‘widespread’, it should have been possible to do so expressly. The cumulative requirement to prove the existence of both the concept of ‘oppression’ and of ‘domination’, which are essentially the same, could impose a significant burden on the prosecution. According to one dictionary, to oppress is to ‘rule or treat [somebody] with continual injustice or cruelty’, and to dominate is to ‘to have control of or a very strong influence on (people, events, etc.)’<sup>921</sup>.
- 147 **c) Domination of ‘one racial group over any other’.** As indicated above, the fact that the definition of genocide refers to racial, ethnic, national and religious groups and the definition of apartheid only to racial groups can be historically explained. Nonetheless, the question arises how much can reasonably be brought under the term ‘racial group’, the difficulty being that the term and concept of ‘race’ has become almost obsolete. The drafters of the *Apartheid*

<sup>916</sup> See e.g., McCormack in McCormack et al. (eds), *The Permanent International Criminal Court: Legal and Policy Issues* (2004).

<sup>917</sup> An argument in this respect was eloquently presented by the late and much respected Christopher Hall in the *apartheid* entry of the previous edition of this commentary.

<sup>918</sup> See e.g. Werle and Jessberger, *Principles* (2014) 338.

<sup>919</sup> Ambos argues that an institutionalised system of racist oppression can also refer to a system where racial oppression and discrimination is institutionalised by a *de facto* policy (Ambos, *Treatise on ICL II* (2014) 114); for a similar position see Dugard, in: Ascencio et al. (eds.), *Droit International Pénal* (2012) 2013.

<sup>920</sup> Dugard and Reynolds (2013) 24 *EJIL* 3, 873.

<sup>921</sup> *Ibid.* 358, 868.



*Convention* did not define the term racial group nor did the drafters of the ICC Statute., The word 'racial' has a widely accepted meaning in human rights law. The *International Convention on the Elimination of All Forms of Racial Discrimination*, adopted eight years before the *Apartheid Convention*, defines 'racial discrimination' broadly as:

'... any distinction, exclusion, restriction or preference based on race, colour, descent, or national or ethnic origin which has the purpose or effect of nullifying or impairing the recognition, enjoyment or exercise, on an equal footing, of human rights and fundamental freedoms in the political, economic, social cultural or any other field of public life'<sup>922</sup>.

In its practice, the Committee on the Elimination of Racial Discrimination has stretched this definition even a bit further<sup>923</sup>. The argument has repeatedly been made that human rights concepts and interpretations should not be directly transposed to an international criminal law setting without any adjustment and thus the CERD definitions and interpretations alone may not be sufficient to reinterpret the meaning of the word 'race' beyond its original meaning in an ICC setting. However, techniques of systemic interpretation may push for reference to the broader discriminatory grounds of persecution. Through such reference and arguments of logic and consistency also other types of discriminatory domination could be brought within the realm of the notion of *apartheid*.

d) 'intention of maintaining that regime'. The specific intent that acts be 'committed with the intention of maintaining that regime' was required as a result of concerns that the definition would extend to white supremacist organisations that were not seeking to implement a government segregationist system<sup>924</sup>. This requirement could be interpreted – perversely – to exclude both acts by those seeking to replace the regime with something worse and by those seeking to replace it with a regime which was less oppressive, but still imposing severe discrimination. In contrast to the *Apartheid Convention*, where there is some ambiguity whether the specific intent of 'establishing and maintaining domination' involves only the intent of the accused or simply of the State<sup>925</sup>, article 7 para. 1 (h) appears to require a specific intent by the individual accused to commit the act with the intention of maintaining the regime. This is the view taken in the Elements of Crimes as the fifth element of this crime is that '[t]he perpetrator intended to maintain such regime by that conduct', but the correct interpretation will be for the Court to determine. Formally, the 'crime of apartheid' is not limited to leaders and organizers, but also includes low-level perpetrators who committed the prohibited acts with the intention to maintain the regime<sup>926</sup>. However, Dugard has submitted that it will be impossible to prove the specific intent for individuals other than the leaders. Following this reasoning it can be submitted that *apartheid* is a *de facto* leadership crime<sup>927</sup>.

<sup>922</sup> International Convention of the Elimination of All Forms of Racial Discrimination, adopted and opened for signature and ratification by GA Res 2106 A (XX) of 21 Dec. 1965, article 1 para. 1. In contrast, there is little agreement among anthropologists concerning the term.

<sup>923</sup> As also observed by Dugard and Reynolds (2013) 24 *EJIL* 3, 8..

<sup>924</sup> McCormack, in: McCormack *et al.* (eds.), *The Permanent International Criminal Court* (2004) 199–200 (noting that this concern was simply part of a broader resistance to having the Court exercise jurisdiction over US nationals).

<sup>925</sup> Clark, in: Bassiouni (ed.), *International Criminal Law, Vol. I* (1986) 299. But Dugard disagrees, referring to the fundamental criminal law principle of strict interpretation, cf. Dugard, in: Ascencio *et al.* (eds.), *Droit International Pénal* (2012) 203. With reference to Element 5 of the Elements of Crime, Ambos also argues that apartheid requires a specific purpose, in addition to the general intent; Ambos, *Treatise on ICL II* (2014) 114..

<sup>926</sup> The drafters rejected the approach of the International Law Commission in article 20 para. 3 of its 1991 ILC Draft Code. In its commentary on this provision, the International Law Commission stated that it had restricted the scope of this crime 'to leaders and organizers – an approach that it has also adopted in relation to other crimes such as aggression .. It has thereby sought to make criminally liable only those who are in a position to use the state apparatus for the planning, organisation or perpetration of the crime'.

<sup>927</sup> Dugard, in: Ascencio *et al.* (eds.), *Droit International Pénal* (2012) 203.]. Ambos has taken a similar view regarding genocide with his knowledge- and structure-based approach, cf. Ambos, Ambos, *Treatise on ICL II* (2014) 27 *et seqq.*

- 149 e) **Special remarks.** The individual elements of ‘the crime of apartheid’ in the Elements of Crimes independent of the common contextual elements largely follow paragraph 2 (k). The first element requires that the perpetrator has ‘committed an inhumane act against one or more persons’. As noted above, the second element seeks to remedy the awkward wording of paragraph 2 (k) that would exclude acts that were prohibited in other parts of article 7 by stating that an inhumane act ‘was an act referred to in article 7 para. 1’ (presumably, also including acts mentioned in paragraph 2, which illustrate the scope of paragraph 1) or ‘was an act of a character similar to any of those acts’. In determining whether an act is of a character similar to any of such acts, a footnote states that ‘[i]t is understood that ‘character’ refers to the nature and gravity of the act’. Given the broad range of acts constituting crimes against humanity, particularly those which constitute persecution (see mn 115 above), the extent to which this general explanation provides adequate guidance to the Court with respect to specific acts remains to be seen. The fourth element repeats the specific contextual requirement of this crime, but does not clarify the scope of the term ‘regime’. The final element repeats the specific mental element of this crime by requiring that the perpetrator have committed the inhumane act with intention ‘to maintain such regime by that conduct’.

### 9. ‘Enforced disappearance of persons’

- 150 The crime of enforced disappearance is a complex crime, which can be carried out in a wide variety of ways<sup>928</sup>. This complexity has posed a number of difficulties in drafting a definition of enforced disappearance as a human rights violation<sup>929</sup> but even more so as an international crime<sup>930</sup>. The peculiarity for enforced disappearance as a crime against humanity is that the *actus reus* consists of two separate but interlinked acts. These acts are (i) the arrest, detention or abduction of persons followed by (ii) a refusal to acknowledge the deprivation of liberty or to provide information concerning that person’s fate or whereabouts<sup>931</sup>. Both acts must be carried out with the authorisation, support or acquiescence of a state or political organisation. It is a continuing crime that comes to an end only when the fate or whereabouts of the person become known. It is invariably carried out by a web of persons, all of whom can be held criminally responsible, but not all persons involved in carrying an enforced disappearance necessarily know of the specific intention of the other perpetrators or even of their existence. The jurisdictional definition in article 7 para. 2 (i) differs somewhat from the human rights definitions. In fact, the ICC definition adds three elements, namely a specific purpose (the act must be committed with the intention of removing the person from the protection of the law), a temporal element (for a prolonged period of time), and a new actor (political organisation). These additions render any discussion on the potential customary nature of enforced disappearance as a crime against humanity more complicated. In the context of determining customary status, it is in any event important to differentiate between the prohibition of enforced disappearance as directed to states under human rights law and the contiguous international crime which is addressed to individuals.

<sup>928</sup> Guzman (2001) *ICJRev.* 73, no. 62–63.

<sup>929</sup> The Inter-American Court has been crucial in the articulation and refinement of this particular human rights violation. A standard case is *Goiburú et al. v. Paraguay*, Judgement, 22 September 2006. More recent cases are *Rodríguez Vera y Otros (Desaparecidos del Palacio de Justicia) v. Colombia*, Judgement, 14 November 2014; and *Osorio Rivera y Familiares v. Peru*, Judgement, 20 November 2014.

<sup>930</sup> Rodley, *Treatment of Prisoners* (2009) 332–337.

<sup>931</sup> The Parliamentary Assembly of the Council of Europe recently came to the same conclusion, based on a thorough study of the question by Christos Pourgourides, when it declared that enforced disappearances ‘entail a deprivation of liberty, refusal to acknowledge the deprivation of liberty or concealment of the fate and the whereabouts of the disappeared person and the placing of the person outside the protection of the law’. *Council of Europe, Parl. Ass. Res.* 1463, 3 Oct. 2005. See also *Council of Europe Disappearances Report* (2005), *Parl. Ass. Doc.* 10679, 19 September 2005, para 2.

a) ‘arrest, detention or abduction of persons’. One of the essential elements of the crime 151 of enforced disappearance is that the victim be deprived of liberty, whether it is by arrest, detention, abduction or some other means<sup>932</sup>. A person whose initial detention was lawful can subsequently be ‘disappeared’ in custody<sup>933</sup>. Although the wording in paragraph 2 (i) is not as broad as in other international instruments, which expressly speak of any deprivation of liberty, the three categories would appear to be broad enough to cover all types of deprivations of liberty involved in an enforced disappearance. The definition of the term ‘detention’ in the United Nations Body of Principles for the Protection of All Persons under Any Form of Detention or Imprisonment means ‘the condition of detained persons’ and a detained person is defined as ‘any person deprived of personal liberty except as a result of conviction for an offence’<sup>934</sup>. The Body of Principles expressly states that it applies to ‘the protection of all persons under any form of detention or imprisonment’<sup>935</sup>. A person convicted of an offence would normally have been arrested, and, in any event, for example, if the person appeared voluntarily, a convicted person would be imprisoned, so the definition in article 7 para. 2 (i) would appear to include all forms of deprivation of liberty covered by other definitions of enforced disappearance<sup>936</sup>. Although the definition describes these three forms of deprivation of liberty as deprivations of freedom, nothing on the face of the definition suggests that it can be read more narrowly than the internationally accepted definitions in the Body of Principles or that there was any gap in protection<sup>937</sup>.

b) **Participation of a State or a political organisation.** Until recently, the very concept of 152 enforced disappearance under international human rights law has been a crime of State which can be committed only by state agents or with their consent or acquiescence<sup>938</sup>. The UN

<sup>932</sup> *International Convention for the Protection of All Persons from Enforced Disappearance*, UNGA ResA/RES/61/177, 20 Dec. 2006, article 2 (‘arrest, detention, abduction or any other form of deprivation of liberty’); *UN Declaration on the Protection of All Persons from Enforced Disappearance* (UN Declaration on Disappearance), Preamble (arrest, detention or abduction of persons against their will or otherwise deprived of their liberty); *Inter-American Convention on the Forced Disappearance of Persons* (Inter-American Disappearances Convention), article II (depriving a person or persons of his or their freedom, in whatever way); *Chumbibilcas v. Peru*, No. 10.559, Report No. 1/96, 1 Mar. 1996 (arrest).

<sup>933</sup> *Trujillo Oroza v. Bolivia*, Judgment, Inter-American Court of Human Rights, 26 Jan. 2000 (victim had been arrested and initial detention had been acknowledged before he was ‘disappeared’). See also *Prosecutor v. Mesquita*, Judgement, No. 28/2003, 6 December 2004, para. 85.

<sup>934</sup> *United Nations Body of Principles for the Protection of All Persons under Any Form of Detention or Imprisonment, Use of Terms*, adopted by the General Assembly without a vote, GA Res43/173, 9 Dec. 1988.

<sup>935</sup> *Ibid.*, Scope of the Body of Principles.

<sup>936</sup> The term ‘arrest’, according to the Use of Terms section of the Body of Principles, ‘means the act of apprehending a person for the alleged commission of an offence or by the action of authority’. To the extent that there might be any conceivable gap in the terms ‘arrest’, ‘detention’ or ‘imprisonment’, the deprivation of liberty would be covered by the term ‘abduction’.

<sup>937</sup> One US historian has argued that in the specific context of United States history there is a distinction between liberty (the term used in the Rome Statute and in most international instruments) and freedom (the term used in the Inter-American Disappearances Convention), Hackett Fischer, *Liberty and Freedom* (2004) (contending that the Latinate term ‘liberty’ implies separation and independence, while the root meaning of ‘freedom’ (akin to ‘friend’) connotes attachment: the rights of belonging in a community of free people). However, that distinction is not reflected in ordinary English usage and certainly not in the context of defining the crime against humanity of enforced disappearances in an international treaty. In normal usage, the meanings in English of liberty and freedom are essentially the same. For example, liberty is defined as: ‘1 freedom from captivity, slavery, restrictions, etc. 2 freedom to act and think as one pleases 3 (usually liberties) a natural right or privilege’. Chambers 21<sup>st</sup> Century Dictionary 787 (1999). Freedom is defined as: ‘1 the condition of being free to act, move, etc. without restriction. 2 personal liberty or independence, eg from slavery, serfdom, etc. 3 a right or liberty’. *ibid.*, 527. The intention of the drafters to use the broad concept of deprivation of liberty, rather than a more restrictive concept, is confirmed by the French version of article 7 para. 2 (i), which describes ‘disappeared’ persons as ‘ces personnes sont privées de liberté’. The French version of the Body of Principles defines a detained person as ‘toute personne privée de la liberté individuelle’.

<sup>938</sup> *International Convention for the Protection of All Persons from Enforced Disappearance*, article 1 (‘committed by agents of the State or by persons or groups of persons acting with the authorisation, support or acquiescence of the State’); *UN Declaration on Disappearances*, Preamble (by officials of different branches or levels of Government, or by organised groups or private individuals action on behalf of, or with the support,

Working Group on Enforced or Involuntary Disappearances deals exclusively with governments<sup>939</sup>. Enforced disappearances by state agents or with their consent or acquiescence have been distinguished from kidnapping or abduction by armed political groups. The UN Working Group on Enforced or Involuntary Disappearances recognised the distinction between the two types of acts by establishing a separate mechanism to deal with the latter in the former Yugoslavia<sup>940</sup>. The expansion of the definition of enforced disappearance in article 7 para. 2 (i) to include ‘the arrest, detention or abduction of persons by, or with the authorisation, support or acquiescence of, ... a political organisation’, however, can be explained, as with the similar expansion of the definition of the human rights violation of torture when defining the scope of the crime against humanity of torture, because crimes under international law involve individual criminal responsibility rather than state responsibility. In keeping with this fundamental difference between the two categories (human rights violations committed by States and crimes under international law committed by individuals), article 3 of the International Convention for the Protection of All Persons from Enforced Disappearance, while not extending the definition of an enforced disappearance to include abuses committed by non-state actors, independent of any connection with a state or its agents, requires each state party to ‘take appropriate measures to investigate acts defined in article 2 committed by persons or groups of persons acting without the authorisation, support or acquiescence of the State and to bring those responsible to justice’<sup>941</sup>.

In contrast, in the ICC Statute the notion of ‘political organisations’ has been directly included in the core of the definition. This notion of ‘political organisation’ has not been defined in the Elements of Crime. It has been submitted that not all organisations with political purposes or ambitions are covered, but only those that effectively perform certain state functions<sup>942</sup>. Alternatively, an argument has been made in favour of a streamlined interpretation which is consistent with the *chapeau* notion of organisation policy. However, given the broad understanding of this notion as put forward in the *Kenya* Decision, and upheld in *Katanga and Ngudjolo* and *Bemba Gombo*<sup>943</sup>, such streamlined interpretation would in fact lead to a very extensive privatisation of the crime of enforced disappearances which is inconsistent with the character of the crime<sup>944</sup>. Therefore, it is better to disconnect the two notions. Perhaps other acts of crimes against humanity are more amenable to a certain privatisation. Yet, the crime of enforced disappearance is premised on the performance of state functions. This requires a narrower interpretation of the concept of political organisation than might be necessary for the *chapeau* reference.

- 153 c) **Refusal to acknowledge or to give information.** A central element of the crime of enforced disappearance since its invention by Adolf Hitler in 1941 has been the refusal to acknowledge the deprivation of liberty or to disclose the whereabouts of the victim<sup>945</sup>.

direct or indirect; consent or acquiescence of the Government); Inter-American Convention, article II (perpetrated by agents of the State or by persons or groups of persons acting with the authorisation, support, or acquiescence of the State); *Chumbibilcas v. Peru*, No. 10.559, Report No. 1/96, 1 March 1996 (arrest) (by state agents or by irregular troops (paramilitary or parapolice) acting with the acquiescence of the state authorities or under their operational control).

<sup>939</sup> See, for example, *UN Commission on Hum.Rts.Res.* 1998/40 (17 Apr. 1998); *Report of the Working Group on Enforced or Involuntary Disappearances*, UN DocE/CN.4/1998/43 (1998).

<sup>940</sup> See *Report of the Working Group on Enforced or Involuntary Disappearances*, UN DocE/CN.4/1998/43 (1998), para. 21 (describing the special process on missing persons).

<sup>941</sup> *International Convention for the Protection of All Persons from Enforced Disappearance*, article 3.

<sup>942</sup> Cf. Ambos, *Treatise on ICL II* (2014) 111; Ott, *Enforced Disappearance in International Law* (2011) 25.

<sup>943</sup> See mn 91–92.

<sup>944</sup> Both arguments have been made by Giorgou, (2013) 11 *JICJ* 1001–1021..

<sup>945</sup> *ibid.*, article 2 (a deprivation of liberty ‘followed by a refusal to acknowledge the deprivation of liberty or by concealment of the fate or whereabouts of the disappeared person’); UN Declaration on Disappearance, Preamble (refusal to acknowledge the deprivation of liberty; refusal to disclose the whereabouts of the person concerned); Inter-American Convention, article II (refusal to acknowledge the deprivation of freedom; refusal to give information on the whereabouts of the victim); *Chumbibilcas v. Peru*, No. 10.559, Report No. 1/96, 1 March 1996 (arrest) (holding of the victim must have been systematically denied by the authorities responsible for public order).

Article 7 para. 1 (i) includes this central element. A refusal presupposes an inquiry from relatives or friends about the disappeared person's whereabouts. The delivery of false information is also understood to be a refusal.

**d) Intention to remove from the protection of the law.** An essential consequence of the crime since Hitler has been the removal of the victim from the protection of the law<sup>946</sup>. However, as the international instruments defining this crime prior to the Rome Statute make clear, the removal from the protection of the law is simply a necessary result of the acts that are involved in committing the crime – refusal to acknowledge the deprivation of liberty or to give information on the fate or whereabouts of the victim<sup>947</sup>. The perpetrator need only have intended to make such a refusal or denial of information, he or she need not have had the additional specific intention to remove the person from the protection of the law. Several scholars have argued otherwise. They submit that in addition to proving that one of the perpetrators intended to refuse or to deny information, at least one of the perpetrators of the crime had a specific intent to remove the victim from the protection of the law<sup>948</sup>.

However, given that the refusal or denial of information thereby immediately places the person outside the protection of the law, by making it impossible for family, doctors or counsel to seek judicial assistance or for judges exercising their supervisory powers over places of detention to act on their own initiative to protect the person who has been 'disappeared' from the face of the earth, the refusal to acknowledge or the denial of information automatically removes the person from the protection of the law. Indeed, it is common for lawyers seeking information about a 'disappeared' person from prison authorities with a view to obtaining a writ of habeas corpus or *amparo* to be met with a refusal to acknowledge the deprivation of liberty or a denial of any information about the fate or whereabouts of the person so that the lawyers cannot even frame an effective request for such a writ or for other judicial assistance addressed to the persons or agencies of government responsible for the continuing deprivation of liberty. This practice is one of the reasons that Amnesty International determined that essential safeguards against enforced disappearances

<sup>946</sup> Tayler (2001) *ICJRev.* 65, no. 62–63('[F]orced disappearance is a complex phenomenon, conceived precisely to evade the legal framework of human rights protection').

<sup>947</sup> International instruments treat the placement outside the protection of the law as a necessary result of the refusal or denial rather than as a part of the definition. *International Convention for the Protection of All Persons from Enforced Disappearances*, article 2 (making clear that it is the refusal to acknowledge the deprivation of liberty or the concealment of the fate or whereabouts of the disappeared person 'which place[s] such a person outside the protection of the law'); UN Declaration on Disappearance, Preamble (thereby placing the victim outside the protection of the law); Inter-American Convention, article II (thereby impeding the victim's recourse to the applicable legal remedies and procedural guarantees); *Report of the UN Working Group on Enforced or Involuntary Disappearance*, UN DocE/CN.4/1990/13, para. 340 ('Making people disappear .. Takes the victim out of the protective precinct of the law'). Similarly, the definition of an enforced disappearance by the Working Group in its General Comment on article 4 of the UN Declaration on Disappearance did not list placing a person outside the protection of the law as part of the definition.

<sup>948</sup> Cf. Ambos, *Treatise on ICL II* (2014) 112; Cryer *et al.*, *Introduction ICL* (2014) 260; Werle and Jessberger, *Principles* (2014) 337, de Frouville, in: Ascencio *et al.* (eds.), *Droit International Pénal* (2000), 377, 381 (correctly noting that the deprivation of the protection of the law is simply a consequence of the refusal or denial and attacking the definition in the Rome Statute). Citing article 7, a UN independent expert claimed that '[t]he subjective elements of guilt seem, however, to put an extremely heavy burden on the prosecution to prove that the individual perpetrator was aware from the very beginning of committing the crime that the deprivation of liberty would be followed by its denial and that he (she) intended to remove the victim from the protection of the law for a prolonged period of time'. Report submitted by Mr. Manfred Nowak, independent expert charged with examining the existing international criminal and human rights framework for the protection of persons from enforced or involuntary disappearances, pursuant to paragraph 11 of *Commission Res.* 2001/46, UN DocE/CN.4/2002/71, 8 Jan. 2002, 29. However, for the reasons explained elsewhere in this commentary, the intention to deprive a person of the protection on the law is evidenced in all cases under article 7 para. 2 (i), either by the intention of a perpetrator to refuse to acknowledge the deprivation of liberty or the denial of information about fate or whereabouts since the necessary consequence in each instance is that the victim is removed from the protection of the law and, in any event, the Rome Statute does not expressly require that each perpetrator in the chain of events in this complex crime have performed the same acts and omissions or had the same mental state at each stage of the 'disappearance'.

include the prohibition of secret detention and unauthorised arrest and detention and access to prisoners<sup>949</sup>. It is also why the International Convention prohibits secret detention<sup>950</sup>. In enforced disappearances when the initial deprivation of liberty was unlawful – the overwhelming number of cases – the manner in which it is carried out demonstrates an intention to remove a person the protection of the law – police and security officials are instructed to use methods that would remove the victims from the protection of the law, such as use of plainclothes and unmarked cars without licence plates and, once the person was deprived of liberty, to refuse to acknowledge the deprivation of liberty or refusal of information<sup>951</sup>. When those who carry out the initial deprivation of liberty are members of death squads, they know that the very formation of these squads was outside normal legal procedures and designed to remove the victim from the protection of the law. In the light of these common characteristics of the crime, such factors are convincing circumstances that all of those involved in the crime intend to deprive the victim of the protection of the law.

- 155 e) ‘for a prolonged period of time’. None of the human rights definitions of enforced disappearance include a temporal component. This omission is entirely understandable since once there has been a refusal to acknowledge a deprivation of liberty or to give information about the fate or whereabouts of the victim, an enforced disappearance has occurred. Indeed, it is in the first few hours and days after the initial deprivation of liberty and the refusal to acknowledge or to give information that the person is most at risk. In some countries there is a pattern of ‘disappearances’ in which the victim, absent effective outside intervention, is killed after a matter of days and the bodies may be found shortly afterwards, thus, ending the continuing crime. Although it is regrettable that the unnecessary and undefined phrase ‘for a prolonged period of time’ was added to article 7 as a part of a political compromise, a perfectly reasonable construction of this term, which is consistent with the fundamental characteristics of this crime under international law and the object and purpose of the *Rome Statute* is possible.

In contemporary English usage, ‘prolong’ simply means ‘to make something longer; to extend or protract’<sup>952</sup>. Therefore, a prolonged period of time simply means an extended period of time, not a specific period of time in hours, days, weeks, months or years. Given that the moment that there has been a refusal to acknowledge or give information an enforced disappearance has occurred, the reference period which has been prolonged should be as short as possible, bearing in mind that, from the perspective of the ‘disappeared’ person and his or family and friends, each hour will seem like an eternity. For determining those

<sup>949</sup> In its 14-Point Program for the Prevention of ‘Disappearances’, the organisation specifically states: ‘5. No secret detention

Governments should ensure that prisoners are held only in publicly recognised places of detention. Up-to-date registers of all prisoners should be maintained in every place of detention and centrally. The information in these registers should be made available to relatives, lawyers, judges, official bodies trying to trace people who have been detained, and others with a legitimate interest. No one should be secretly detained.

6. Authorisation of arrest and detention

Arrest and detention should be carried out only by officials who are authorised by law to do so. Officials carrying out an arrest should identify themselves to the person arrested and, on demand, to others witnessing the event. Governments should establish rules setting forth which officials are authorised to order an arrest or detention. Any deviation from established procedures which contributes to a ‘disappearance’ should be punished by appropriate sanctions.

7. Access to prisoners

All prisoners should be brought before a judicial authority without delay after being taken into custody. Relatives, lawyers and doctors should have prompt and regular access to them. There should be regular, independent, unannounced and unrestricted visits of inspection to all places of detention’.

Amnesty International, *Disappearances and Political Killings* (1994) 290.

<sup>950</sup> International Convention, article 17.

<sup>951</sup> For descriptions of the various techniques used around the world to carry out enforced disappearances, see Amnesty International, *Disappearances and Political Killings* (1994) 26–30 (Sri Lanka), 34–36, 38–42 (Colombia), 68–73 (Morocco).

<sup>952</sup> *Chambers 21<sup>st</sup> Century Dictionary* (1999) 1109.



enforced disappearances over which the Court would be able to exercise jurisdiction, the reference period should not be longer than the short period of time under international law and standards which the state may deny a detained person access to families, counsel, independent medical attention or a judge<sup>953</sup>. Of course, the power to deny access during this period the state does not mean that the state has no responsibility during that time to acknowledge the deprivation of liberty or to give information about the fate or whereabouts of the person. This suggestion for a reference period has the merit that the time limits have achieved broad international acceptance, avoiding the need to develop new ones, they are judicially manageable and the international law and standards have been evolving in a direction of increased protection for the person deprived of liberty. Moreover, once a person's deprivation of liberty has been prolonged beyond these limits without access to the outside world, the deprivation of liberty may become unlawful and the person entitled to release.

f) **Special remarks.** The elements of enforced disappearances in the Elements of Crimes, 156 which were the product of political compromises that did not always take into account the fundamental characteristics of the crime, may prove to be of somewhat limited assistance to the Court in the interpretation and application of article 7. Of course, the drafters of the elements of this crime were not helped by the problematic aspects of the definition in article 7 paragraph 2 (i). In addition, considerable time was expended on the extraneous question whether the elements should specify whether the Court would have jurisdiction over the continuing crime of enforced disappearance where the initial deprivation of liberty took place before entry into force of the *Rome Statute*, a matter that, strictly speaking, has nothing to do with the elements of the crime, but only to the interpretation of article 11<sup>954</sup>. Indeed, there was no similar debate over the elements of other continuing crimes or crimes occurring over extended periods, such as those of enslavement, imprisonment or other severe deprivation of physical liberty, sexual slavery, enforced prostitution, persecution and the crime of apartheid. The compromise, if it were to be followed by the Court, would exclude many, but not all, enforced disappearances where the initial deprivation of liberty occurred before entry into force of the *Rome Statute*<sup>955</sup>.

The crime of enforced disappearance is multifaceted, but the structure of the elements of this crime may be considered excessively complex and awkward. It would have been simpler and easier to follow if the elements for perpetrators involved in the deprivation of liberty had

<sup>953</sup> It is now widely accepted that access to the outside world should be without delay and that, even in exceptional circumstances, denying such access to the outside world for more than 24 or 48 hours would violate the rights of the person detained. For a compilation of the relevant law and standards concerning access, see Amnesty International, *Fair Trials Manual*, AI Index: POL 30/002/1998, 1 December 1998, Chapters 4 (The right of detainees to have access to the outside world) and 5 (The right to be brought promptly before a judge or other judicial officer). In the period when the person is cut off from the outside world, his or her ability to obtain the protection of the law is impeded or completely denied – families and independent medical attention cannot alert lawyers to torture or other human rights violations, lawyers cannot seek judicial protection for those violations and judges cannot supervise the detention. Indeed, one of the primary reasons for guaranteeing such access to the outside world is essential is that such access is a safeguard against enforced disappearances and other human rights violations. Many lives have been saved by prompt reactions within the first hours of an enforced disappearance. These impediments to judicial protection become absolute bars when the very deprivation of liberty or fate and whereabouts of the victim are unknown.

<sup>954</sup> For accounts of the debate, see Hall (2000) 94 *AJIL* 773, 781; Witschel and Rückert, in: Lee (ed.), *Elements of Crimes* (2001) 98.

<sup>955</sup> Fn. 24, attached to the title of the elements of this crime, states: 'This crime falls under the jurisdiction of the Court only if the attack referred to in elements 7 and 8 [the two contextual elements] occurs after the entry into force of the Statute'. For example, if prisoners who were initially deprived of their liberty, lawfully or unlawfully, before entry into force were to 'disappear' in detention in connection with an attack on a civilian population that occurred after that date, then the Court would be able to exercise jurisdiction. See for a differentiation between continuing or ongoing crimes and ongoing situations, *Situation in the Republic of Côte d'Ivoire*, ICC-02/11, Judge Fernández de Gurmendi's separate and partially dissenting opinion to the Decision Pursuant to article 15 of the Rome Statute on the Authorisation of an Investigation into the Situation in the Republic of Côte d'Ivoire, PTC III, 3 October 2011, paras. 66–73.

been addressed separately from those relevant to perpetrators involved in the refusal or denial. The drafters stated in the first footnote, attached to the title, that, '[g]iven the complex nature of the crime, it is recognised that its commission will involve more than one perpetrator as part of a common purpose'. According to the first element, the perpetrator either '[a]rrested, detained or abducted one or more persons' or '[r]efused to acknowledge the arrest, detention or abduction or to give information on the fate or whereabouts of such person or persons'. Two footnotes confirm that the term 'detained' includes 'a perpetrator who maintained an existing detention' and that 'under certain circumstances an arrest or detention may have been lawful'. The second element requires that the arrest, detention or abduction have been followed by or accompanied by a refusal to acknowledge or to give information or that the 'refusal was preceded or accompanied by that deprivation of freedom'. The third element requires that the perpetrator have been aware either that the 'arrest, detention or abduction would be followed in the ordinary course of events by a refusal' or that the 'refusal was preceded or accompanied by that deprivation of freedom'.

The fourth element requires that the arrest, detention or abduction have been carried out by, or with the authorisation, support or acquiescence of, a state or political organisation. However, because the French text of the fifth element omits acquiescence with respect to the refusal (almost certainly an error in the text), the fifth element requires that the refusal be with the authorisation or support of the state or political organisation. The omission of acquiescence renders the fifth element in the French version inconsistent with the Rome Statute. The sixth element could have stated that the specific intention to remove victims from the protection of the law for a prolonged period was applicable only to those responsible for the planning of the crime, but, instead, it could be misinterpreted to apply to all persons involved in this complex crime, potentially weakening its impact considerably. Nevertheless, for the reasons explained above, which are fully consistent with ordinary principles of criminal responsibility, this specific intention can be demonstrated simply by the awareness of the likelihood that the deprivation of liberty would be linked to a refusal. In most instances in the past sixty-five years when enforced disappearances were committed it became common knowledge very quickly after the practice began, both within the security forces and among the general public, which deprivations of liberty were likely to become enforced disappearances because of the manner in which they were carried out or maintained, for example, by the use of paramilitary death squads in plainclothes, cars without licence plates, the absence of warrants, secret detention centres and the failure to maintain public registers of detainees in the places of detention. Such an approach would be analogous to the proof of a policy – and awareness of such a policy – by the existence of a widespread or systematic attack (see mn 87) and to the definition of murder as including situations where the perpetrator intended to inflict serious injury on the victim in the reasonable knowledge that it would be likely to cause death (see mn 20).

### III. Paragraph 3: Definition of gender

- 157 The meaning of the term 'gender' was the subject of contentious debate regarding almost every article of the draft proposals in which it appeared. It was discussed in the context of prohibited grounds regarding the crime of persecution, regarding the composition of the Court<sup>956</sup> and in the context of article 21 para. 3 on Applicable Law. The definition of gender

<sup>956</sup> *New York Draft*, UN DocA/CONF.183/2/Add.2 (1998), article 37, where the words 'gender balance' were included between square brackets. In the final text, a provision is included that the States Parties shall, in the selection of judges, take into account the need, within the membership of the Court, for '[a] fair representation of female and male judges'. According to the final text, the States Parties shall also take into account the need to include judges 'with legal expertise on specific issues, including, but not limited to, violence against women and children'. In the April 1998 Draft Statute, the text was formulated as 'the need, within the membership of the Court, for expertise on issues related to sexual and gender violence, violence against children and other similar matters'. *ibid.*, p. 64.

in this paragraph, and its placement in the article which defines crimes against humanity, is mainly the result of the discussions regarding the so-called ‘non-adverse distinction clause’ in article 21. This debate ultimately concentrated on finding a compromise solution between States that favoured the inclusion of a non-adverse-distinction clause including gender, and those States that wanted the sentence in that paragraph to end after the term ‘human rights’. The agreement reached in the context of that debate resulted in the current definition of gender and the applicability of that definition to every other provision in the Statute which refers to ‘gender’<sup>957</sup>. The definition was originally to be added to the provision on persecution under crimes against humanity but was instead placed at the end of article 7.

In United Nations usage, ‘gender’ refers to the socially constructed roles played by women and men that are ascribed to them based on their sex. The word ‘sex’ is used to refer to physical and biological characteristics of women and men, while ‘gender’ is used to refer to the explanations for observed differences between women and men based on socially assigned roles<sup>958</sup>. The distinction between the terms ‘sex’ and ‘gender’ is both factual and normative, and could perhaps best be described as the difference between the concepts of ‘male’ and ‘female’ and the adjectival descriptions of ‘masculine’ and ‘feminine’. The definition of gender contained in article 7 para. 3 seeks to balance both aspects; the definition acknowledges the existence of biological sex, while the inclusion of the phrase ‘in the context of society’ was intended to refer to the socially constructed roles and differences between genders. The definition in paragraph 3, therefore, ‘is broad enough to allow the ICC to interpret the definition to reflect the approaches taken within the United Nations, including nondiscrimination on the basis of sexual orientation, and to avoid regression in the law’<sup>959</sup>.

It is unfortunate, however, that the compromise definition contained in article 7 para. 3 is predicated on the starting point of ‘the two sexes, male and female’, effectively removing biologically intersex individuals from the discussion. It is clear from the drafting history that this was the result of a deliberate effort on the part of conservative states, with one proposed draft going as far as to state that ‘the term [gender] does not imply the existence of more than two sexes’.<sup>960</sup> However, it seems likely that the constructive ambiguity of article 7 para. 3, read in conjunction with the non-adverse distinction clause contained in article 21 para. 3, would require the Court to interpret any relevant provisions in as broad and inclusive a manner as possible, particularly in relation to the targeting of individuals on the basis of their sexual orientation.

The definition of gender in article 7 para. 3 is also of relevance to the subsidiary term ‘gender violence’, which is used on a number of occasions throughout the Statute, primarily in relation to the prioritisation of sexual and gender violence and violence against children.<sup>961</sup> The Court has not yet produced any judicial interpretation of the terms ‘gender’ or ‘gender violence’ as it has not arisen as a live issue in any case, although it is instructive to note the internal definition of gender violence adopted by the Office of the Prosecutor.<sup>962</sup> The Office of the Prosecutor defines ‘gender-based crimes’ as those ‘committed against persons, whether male or female, because of their sex and/or socially constructed gender roles’. It is significant that both biological sex and social gender constructs are identified as relevant motivations, as it means that the concept of ‘gender violence’ is broad enough to include both violence which targets women and men in different ways on the basis of their sex and violence which targets women or men as punishment for not complying with their assumed or assigned social gender roles. The definition used by the Office of the Prosecutor also emphasizes that gender

<sup>957</sup> Bedont and Hall-Martinez (1993) 6 *BrownJWorldAff* 65, 68.

<sup>958</sup> *Implementation of the Outcome of the 4<sup>th</sup> World Conference on Women*, Report of the SG, UN DocA/51/322 (3 Sep. 1996), para. 9 refers to the Report of the Fourth World Conference on Women, UN DocA/CONF.177/20 (1995).

<sup>959</sup> Oosterveld (2005) 18 *HarvHumRtsJ* 55.

<sup>960</sup> *Ibid.*, 64.

<sup>961</sup> See article 42 para. 9, article 54 para. 1 (b) and article 68 para. 1.

<sup>962</sup> See ICC Office of the Prosecutor, Policy Paper on Sexual and Gender-Based Crimes (June 2014) 3.

violence is not synonymous with sexual violence, and may manifest itself in other, non-sexual forms against both women and girls and men and boys.<sup>963</sup>

- 161 It remains to be seen how this paragraph will be interpreted by the Court and by states, but a significant number of states parties are omitting the definition of gender from draft and enacted legislation implementing the Rome Statute, which suggests that they will interpret the concept of gender in accordance with the United Nations usage directly, rather than reaching the same result indirectly by interpreting this provision, or, possibly, in accordance with a national law definition.

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<sup>963</sup> *Ibid.*

## Article 8

### War crimes

1. The Court shall have jurisdiction in respect of war crimes in particular when committed as part of a plan or policy or as part of a large-scale commission of such crimes.

2. For the purpose of this Statute, 'war crimes' means:

- (a) Grave breaches of the Geneva Conventions of 12 August 1949, namely, any of the following acts against persons or property protected under the provisions of the relevant Geneva Convention:
  - (i) Wilful killing;
  - (ii) Torture or inhuman treatment, including biological experiments;
  - (iii) Wilfully causing great suffering, or serious injury to body or health;
  - (iv) Extensive destruction and appropriation of property, not justified by military necessity and carried out unlawfully and wantonly;
  - (v) Compelling a prisoner of war or other protected person to serve in the forces of a hostile Power;
  - (vi) Wilfully depriving a prisoner of war or other protected person of the rights of fair and regular trial;
  - (vii) Unlawful deportation or transfer or unlawful confinement;
  - (viii) Taking of hostages.
- (b) Other serious violations of the laws and customs applicable in international armed conflict, within the established framework of international law, namely, any of the following acts:
  - (i) Intentionally directing attacks against the civilian population as such or against individual civilians not taking direct part in hostilities;
  - (ii) Intentionally directing attacks against civilian objects, that is, objects which are not military objectives;
  - (iii) Intentionally directing attacks against personnel, installations, material, units or vehicles involved in a humanitarian assistance or peacekeeping mission in accordance with the Charter of the United Nations, as long as they are entitled to the protection given to civilians or civilian objects under the international law of armed conflict;
  - (iv) Intentionally launching an attack in the knowledge that such attack will cause incidental loss of life or injury to civilians or damage to civilian objects or widespread, long-term and severe damage to the natural environment which would be clearly excessive in relation to the concrete and direct overall military advantage anticipated;
  - (v) Attacking or bombarding, by whatever means, towns, villages, dwellings or buildings which are undefended and which are not military objectives;
  - (vi) Killing or wounding a combatant who, having laid down his arms or having no longer means of defence, has surrendered at discretion;
  - (vii) Making improper use of a flag of truce, of the flag or of the military insignia and uniform of the enemy or of the United Nations, as well as of the distinctive emblems of the Geneva Conventions, resulting in death or serious personal injury;
  - (viii) The transfer, directly or indirectly, by the Occupying Power of parts of its own civilian population into the territory it occupies, or the deportation or transfer of all or parts of the population of the occupied territory within or outside this territory;

- (ix) Intentionally directing attacks against buildings dedicated to religion, education, art, science or charitable purposes, historic monuments, hospitals and places where the sick and wounded are collected, provided they are not military objectives;
  - (x) Subjecting persons who are in the power of an adverse party to physical mutilation or to medical or scientific experiments of any kind which are neither justified by the medical, dental or hospital treatment of the person concerned nor carried out in his or her interest, and which cause death to or seriously endanger the health of such person or persons;
  - (xi) Killing or wounding treacherously individuals belonging to the hostile nation or army;
  - (xii) Declaring that no quarter will be given;
  - (xiii) Destroying or seizing the enemy's property unless such destruction or seizure be imperatively demanded by the necessities of war;
  - (xiv) Declaring abolished, suspended or inadmissible in a court of law the rights and actions of the nationals of the hostile party;
  - (xv) Compelling the nationals of the hostile party to take part in the operations of war directed against their own country, even if they were in the belligerent's service before the commencement of the war;
  - (xvi) Pillaging a town or place, even when taken by assault;
  - (xvii) Employing poison or poisoned weapons;
  - (xviii) Employing asphyxiating, poisonous or other gases, and all analogous liquids, materials or devices;
  - (xix) Employing bullets which expand or flatten easily in the human body, such as bullets with a hard envelope which does not entirely cover the core or is pierced with incisions;
  - (xx) Employing weapons, projectiles and material and methods of warfare which are of a nature to cause superfluous injury or unnecessary suffering or which are inherently indiscriminate in violation of the international law of armed conflict, provided that such weapons, projectiles and material and methods of warfare are the subject of a comprehensive prohibition and are included in an annex to this Statute, by an amendment in accordance with the relevant provisions set forth in articles 121 and 123;
  - (xxi) Committing outrages upon personal dignity, in particular humiliating and degrading treatment;
  - (xxii) Committing rape, sexual slavery, enforced prostitution, forced pregnancy, as defined in article 7, paragraph 2 (f), enforced sterilization, or any other form of sexual violence also constituting a grave breach of the Geneva Conventions;
  - (xxiii) Utilizing the presence of a civilian or other protected person to render certain points, areas or military forces immune from military operations;
  - (xxiv) Intentionally directing attacks against buildings, material, medical units and transport, and personnel using the distinctive emblems of the Geneva Conventions in conformity with international law;
  - (xxv) Intentionally using starvation of civilians as a method of warfare by depriving them of objects indispensable to their survival, including wilfully impeding relief supplies as provided for under the Geneva Conventions;
  - (xxvi) Conscripting or enlisting children under the age of fifteen years into the national armed forces or using them to participate actively in hostilities.
- (c) In the case of an armed conflict not of an international character, serious violations of article 3 common to the four Geneva Conventions of 12 August 1949, namely, any of the following acts committed against persons taking no active part in the hostilities, including members of armed forces who have laid down their arms and those placed *hors de combat* by sickness, wounds, detention or any other cause:



- (i) Violence to life and person, in particular murder of all kinds, mutilation, cruel treatment and torture;
  - (ii) Committing outrages upon personal dignity, in particular humiliating and degrading treatment;
  - (iii) Taking of hostages;
  - (iv) The passing of sentences and the carrying out of executions without previous judgement pronounced by a regularly constituted court, affording all judicial guarantees which are generally recognized as indispensable.
- (d) Paragraph 2 (c) applies to armed conflicts not of an international character and thus does not apply to situations of internal disturbances and tensions, such as riots, isolated and sporadic acts of violence or other acts of a similar nature.
- (e) Other serious violations of the laws and customs applicable in armed conflicts not of an international character, within the established framework of international law, namely, any of the following acts:
- (i) Intentionally directing attacks against the civilian population as such or against individual civilians not taking direct part in hostilities;
  - (ii) Intentionally directing attacks against buildings, material, medical units and transport, and personnel using the distinctive emblems of the Geneva Conventions in conformity with international law;
  - (iii) Intentionally directing attacks against personnel, installations, material, units or vehicles involved in a humanitarian assistance or peacekeeping mission in accordance with the Charter of the United Nations, as long as they are entitled to the protection given to civilians or civilian objects under the international law of armed conflict;
  - (iv) Intentionally directing attacks against buildings dedicated to religion, education, art, science or charitable purposes, historic monuments, hospitals and places where the sick and wounded are collected, provided they are not military objectives;
  - (v) Pillaging a town or place, even when taken by assault;
  - (vi) Committing rape, sexual slavery, enforced prostitution, forced pregnancy, as defined in article 7, paragraph 2 (f), enforced sterilization, and any other form of sexual violence also constituting a serious violation of article 3 common to the four Geneva Conventions;
  - (vii) Conscripting or enlisting children under the age of fifteen years into armed forces or groups or using them to participate actively in hostilities;
  - (viii) Ordering the displacement of the civilian population for reasons related to the conflict, unless the security of the civilians involved or imperative military reasons so demand;
  - (ix) Killing or wounding treacherously a combatant adversary;
  - (x) Declaring that no quarter will be given;
  - (xi) Subjecting persons who are in the power of another party to the conflict to physical mutilation or to medical or scientific experiments of any kind which are neither justified by the medical, dental or hospital treatment of the person concerned nor carried out in his or her interest, and which cause death to or seriously endanger the health of such person or persons;
  - (xii) Destroying or seizing the property of an adversary unless such destruction or seizure be imperatively demanded by the necessities of the conflict;
  - (xiii) Employing poison or poisoned weapons;
  - (xiv) Employing asphyxiating, poisonous or other gases, and all analogous liquids, materials or devices;
  - (xv) Employing bullets which expand or flatten easily in the human body, such as bullets with a hard envelope which does not entirely cover the core or is pierced with incisions.

- (f) Paragraph 2 (e) applies to armed conflicts not of an international character and thus does not apply to situations of internal disturbances and tensions, such as riots, isolated and sporadic acts of violence or other acts of a similar nature. It applies to armed conflicts that take place in the territory of a State when there is protracted armed conflict between governmental authorities and organized armed groups or between such groups.

3. Nothing in paragraph 2 (c) and (e) shall affect the responsibility of a Government to maintain or re-establish law and order in the State or to defend the unity and territorial integrity of the State, by all legitimate means.

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## PART I: INTRODUCTION/GENERAL REMARKS\*

### I. Elements of war crimes

- Under international law, war crimes are violations of international humanitarian law that are criminalized under international law<sup>1</sup>. Therefore, a conduct can only amount to a war crime if it:

\* The author is greatly indebted to Dr. Emilia Richard for her valuable comments and expertise for the 3<sup>rd</sup> edition of this introductory chapter.

<sup>1</sup> To be sure, under a particular national legal system, the term 'war crimes' may be given a specific national meaning, the consequences of which, however, remain internal to the respective State. Some national military codes, manuals, regulations or other national criminal law instruments use the term 'war crimes' in a broader sense (or more rarely in a more narrow sense) than the term would carry under international law. For instance, national law may subsume offenses violating the national military code or discipline such as military disobedience or offenses like 'high treason' under the nationally coined notion of 'war crimes'.

In a non-technical sense, the term 'war crimes' is often used, not least by the media, in a broader and more colloquial sense as a convenient short form to connote particular egregious and internationally repudiated crimes

- constitutes a violation of international humanitarian law (IHL) and
- has been criminalized under treaty or customary international law.

IHL is the law applicable in situations of armed conflict. In contrast to what sometimes has been argued, not all violations of that law necessarily constitute war crimes. Only those violations of IHL that have been specifically ‘criminalized’, that is, for the perpetration of which customary or treaty international law establishes individual criminal responsibility, may qualify as war crimes. Generally, it is only the more serious violations of IHL that have been criminalized under international law.

Hence, for a specific conduct to amount to a war crime, the following elements are required:

- existence of an armed conflict?
- nexus of the conduct to this armed conflict?
- violation of a specific rule of IHL?
- is this violation of IHL criminalized under international law, and if so, does the conduct fulfil all requisite material and mental elements of the offence?

All of these elements are necessary with respect to each of the 53 offenses listed under article 8 para. 2 (a), (b), (c) and (e) of the Rome Statute. Therefore, we shall examine the first two general elements (types of armed conflict and nexus to such conflict) in their own right. Furthermore, we will provide an overview over the numerous offenses under article 8 and elaborate generally how the definitions under article 8 need to be interpreted. First, however, we shall give a short introductory overview over the essence and objectives of international humanitarian law as well as the evaluation of the law of war crimes and the drafting history of article 8.

## II. International humanitarian law<sup>2</sup>

Given the above, correctly interpreting definitions of war crimes requires an understanding of IHL. IHL is also called the law of armed conflict or *ius in bello*, more archaically also the laws and customs of war or simply law(s) of war.

IHL sets rules governing any situation of armed conflict, be it of an international or non-international character. Some acts are prohibited in international conflicts alone, some in internal conflicts alone, and some in all conflicts.

Essentially, IHL seeks to moderate negative effects of armed conflict. In the fog of war, persons in the power of an adversary party to the conflict or in the middle of armed hostilities require special protection. This is why IHL typically protects persons and objects belonging to one of the parties to the conflict from certain abusive or overly destructive conduct by an adversary party to the conflict. Since IHL’s rules have been elaborated and adopted to strike a balance between considerations of military necessity and humanitarian considerations, arguments of ‘military necessity’ cannot (unless a rule provides so specifically) justify the violation of IHL.

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connected to a ‘war’. At times, the term and the related notions ‘war criminal’ and ‘war crimes tribunal’ are also used to refer to all so-called core crimes under international law, that is, war crimes (in the above-described technical sense under international law), crimes against humanity and genocide, and, the crime of aggression. The term ‘war crimes’ for a crime against humanity or an act of genocide however is misleading since both offenses do not require a link to an armed conflict (colloquially a ‘war’). Besides, the term ‘war crimes’ has sometimes been used to designate all violations of international humanitarian law, which is incorrect. For the more comprehensive and modern term ‘crimes of armed conflict’ Ambos, *Treatise ICL II* (2014) 117.

<sup>2</sup> On international humanitarian law, see generally Henckaerts and Doswald-Beck, *Customary*, iii (2005); David, *Principes* (2012); Kalshoven and Zegveld, *Introduction* (2011); Fleck (ed.), *Handbook* (2008); Rogers, *Battlefield* (2012); Detter, *War* (2000); McCoubrey, *International Humanitarian Law* (1998); Gasser, *Introduction* (1993); Bouvier and Sassöli, *Contemporary Practice* (2012); ICRC, *Basic Rules* (1988); Fischer and McDonald (eds.), *Yearbook* (since 1999); Pictet, *Commentaries* (4 Vols., 1952–60); Sandoz et al. (eds.), *Commentary* (1987); [[http://www.loc.gov/rr/frd/Military\\_Law/pdf/Commentary\\_GC\\_Protocols.pdf](http://www.loc.gov/rr/frd/Military_Law/pdf/Commentary_GC_Protocols.pdf)].

- 7 IHL first protects persons not (*e.g.* civilians) or no longer (*e.g.* prisoners of war) actively participating in the hostilities that find themselves in the hands of an adversary. Persons protected under this so-called ‘Geneva law’ branch of IHL include most particularly the wounded, sick, shipwrecked, prisoners of war and any other person detained, interned or otherwise deprived of liberty in connection with an armed conflict, and civilians, particularly the population in an occupied territory. Such persons in the hands of an adversary must be treated humanely. Prohibited are, for instance, torture, rape, scientific experiments or other violations of a person’s dignity or physical or mental integrity. In general, protected persons that are deprived of liberty are entitled to a judicial examination of their status and, insofar they are prosecuted, to fair trial guarantees. The main sources of this IHL branch are the four Geneva Conventions of 1949 as well as the two Additional Protocols of 1977<sup>3</sup> and customary international law, which is of particular relevance with regard to the law applicable in non-international armed conflicts.
- 8 The Geneva law branch of IHL also protects property in the hands of an adversary and particularly protects the population, property and pre-existing order of an occupied territory.
- 9 Second, IHL sets limits on how armed warfare and military operations may be conducted in armed conflicts. This so-called ‘Hague law’ branch of IHL clearly establishes that parties to an armed conflict may not adopt whatever means or methods of injuring the adversary. ‘[T]he only legitimate object which states should endeavor to accomplish during war is to weaken the military forces of the enemy’<sup>4</sup>. IHL therefore prohibits to target any non-combatant with armed force or any object that does not qualify as a military objective, that is, an object which by its nature, location, purpose or use, makes an effective contribution to military action and whose total or partial destruction, capture, or neutralization, in the circumstances ruling at the time, offers a definite military advantage<sup>5</sup>. IHL provides that members of armed forces cannot be prosecuted for the mere fact of participating in armed hostilities in the context of an international armed conflict, and that they have the right to the special status of prisoners of war when captured. In contrast, in non-international armed conflicts, persons engaging in armed hostilities, *e.g.* against governmental forces, may be prosecuted for these acts under the respective national law, and do not benefit from the prisoner of war status.
- 10 Fundamental IHL principles include the cardinal principle of distinction (between legitimate and prohibited targets) and the correlating obligation of all parties to the conflict to take all feasible precautions to spare civilians and civilian objects<sup>6</sup>. Another fundamental IHL principle, that of proportionality, requires that parties to the conflict must refrain from attacks against military objectives that may be anticipated to cause civilian casualties or damages that are disproportionate in relation to the intended military goal. This includes a prohibition of causing excessive incidental damage or casualties by targeting military objectives. Another general principle is the prohibition to employ means or methods of warfare of a nature to cause superfluous injury or unnecessary suffering. Customary international humanitarian law prohibits for instance the use of a series of methods of warfare, such as perfidy or abusing recognized emblems such as the Red Cross or the Red Crescent, and weapons, such as biological or chemical weapons and restricts the employment of other weapons.

<sup>3</sup> Geneva Convention for the Amelioration of the Condition of the Wounded and Sick in Armed Forces in the Field (12 Aug. 1949) (GC I); Geneva Convention for the Amelioration of the Condition of Wounded, Sick and Shipwrecked Members of Armed Forces at Sea (12 Aug. 1949)(GC II); Geneva Convention relative to the Treatment of Prisoners of War (12 Aug. 1949)(GC III); Geneva Convention relative to the Protection of Civilian Persons in Time of War (12 Aug. 1949)(GC IV); Protocol Additional to the Geneva Conventions of 12 August 1949, and relating to the Protection of Victims of International Armed Conflicts (8 June 1977)(Add. Prot. I); Protocol Additional to the Geneva Conventions of 12 August 1949, and relating to the Protection of Victims of Non-International Armed Conflicts (8 June 1977) (Add. Prot. II).

<sup>4</sup> Declaration of St. Petersburg of 1868 to the Effect of Prohibiting the Use of Certain Projectiles in Wartime (emphasis added).

<sup>5</sup> See articles 48 *et seq.* Add. Prot. I.

<sup>6</sup> Article 57 Add. Prot. I.

Important sources of this ‘Hague law’ branch of IHL are most particularly the 1907 Hague Regulations<sup>7</sup> and the First Protocol Additional of 1977, but also the 1899 and 1907 Hague Conventions and the 1954 Convention on the Protection of Cultural Property in the Event of Armed Conflict. A considerable number of further treaties prohibit or restrict specific means or methods of warfare, such as the 1980 Classical Weapons Convention and its Protocols. However, customary international law retains great importance.

The treaty rules applicable to non-international armed conflicts are far less numerous and detailed than those applicable in international armed conflicts. The primary treaty provisions applicable in non-international conflicts are article 3 common to the four Geneva Conventions and Additional Protocol II. However, there is a clear tendency in practice and evolving customary international law to apply rules initially intended for international conflicts also to non-international conflicts<sup>8</sup>.

### III. Evolution of the law of war crimes

International treaties formerly only dealt with obligations of states. Correspondingly, humanitarian law treaties such as the 1907 Hague Regulations also did not provide for individual responsibility and even less for individual criminal responsibility for violations of humanitarian law. However, after the First World War, endeavors to prosecute individuals for violations of international humanitarian law emerged. For instance, in 1919, the Commission on the Responsibility of the Authors of the War and on Enforcement of Penalties created by the Preliminary Peace Conference elaborated a list of 32 offenses criminalizing violations of the laws and customs of war for which perpetrators should be prosecuted<sup>9</sup>. In 1946, the Nuremberg Tribunal coined the phrase that ‘[c]rimes against international law are committed by men, not by abstract entities, and only by punishing individuals who commit such crimes can the provisions of international law be enforced’<sup>10</sup>. The Tribunal thereby held that an individual may be held *criminally responsible directly under international law*, including for war crimes, a principle which fast became generally accepted.

The four Geneva Conventions adopted in 1949 provide for individual criminal responsibility of persons committing grave breaches of the Conventions and require States Parties to provide for domestic criminal jurisdiction over these war crimes, regardless of where and by whom they were committed<sup>11</sup>. Article 85 of Additional Protocol I of 1977 stipulates an identical obligation with regard to grave breaches of the Protocol. Besides these treaty developments, the four *ad hoc* international criminal tribunals that have been created up to today (Nuremberg, Tokyo, Former Yugoslavia, Rwanda), more recent hybrid tribunals such as the Special Court for Sierra Leone, as well as numerous national criminal proceedings, including on war crimes committed during the two World Wars, have greatly contributed to the development of the international law of war crimes and the specific elements of the offenses<sup>12</sup>.

<sup>7</sup> Regulations concerning the Laws and Customs of War on Land, Annex to the Convention (IV) respecting the Laws and Customs of War on Land, The Hague, 18 Oct. 1907.

<sup>8</sup> Henckaerts and Doswald-Beck, *Customary* (2005); on the law of non-international armed conflicts, see Moir, *Internal Armed Conflict* (2002); Abi-Saab, *Réglementation internationale* (1986); La Haye, *War Crimes in Internal Armed Conflicts* (2008); s. Sivakumaran, *Non-International Armed Conflict* (2012); *The Manual on the Law of Non-International Armed Conflict*, International Institute of Humanitarian Law San Remo (2006): <http://www.iihl.org/iihl/Documents/The%20Manual%20on%20the%20Law%20of%20NIAC.pdf>.

<sup>9</sup> See *Report of the Commission on the Responsibility of the Authors of the War and on Enforcement of Penalties Presented to the Preliminary Peace Conference* (29 Mar. 1919), reprinted in: (1920) 14 AJIL 95.

<sup>10</sup> 22 *Nuremberg Proceedings* (30 Sep. 1946), p. 465.

<sup>11</sup> Articles 49–50/50–51/129–130/146–147 GC I–IV.

<sup>12</sup> On the evolution of international criminal law and more particularly international criminal tribunals, see Ahlbrecht, *Strafgerichtsbarkeit* (1999); Ambos, *Treatise ICL I* (2013), 1 *et seqq.* On international criminal law more generally, see, e.g., Cassese, *International Criminal Law* (2003); Werle, *Völkerstrafrecht* (2003); Bassiouni, *International Criminal Law* (3 vol., 1999); Paust *et al.*, *International Criminal Law* (1996).

- 15 It is to be noted that until the early 1990s, it was generally agreed that individuals do not incur criminal responsibility under international law for war crimes committed in *non-international* armed conflicts. However, in a rapid shift of views, the ICTR Statute in 1994 provided for jurisdiction over '[v]iolations of Article 3 common to the Geneva Conventions and of Additional Protocol II', provisions that are applicable in non-international armed conflicts. Based on some national precedents such as military manuals and court decisions<sup>13</sup>, the ICTY then held in 1995 that its jurisdiction over 'violations of the laws or customs of war' extended also to war crimes committed in non-international conflicts<sup>14</sup>. Throughout their case law, the *ad hoc* Tribunals, whenever interpreting the elements of a war crime, need to interpret also the underlying humanitarian law provision upon which the war crime is based<sup>15</sup>. Thereby, international criminal law and practice has put flesh on the bones of treaty humanitarian law. The adoption of the Rome Statute with article 8 para. 2 (c) and (e) in July 1998 consolidated the view that there is, today, individual criminal responsibility directly under customary international law for war crimes committed in non-international armed conflicts<sup>16</sup>.
- 16 However, the rules applicable to international armed conflicts do not automatically apply to an internal armed conflict: '[W]hat may constitute a war crime in the context of an international armed conflict does not necessarily constitute a war crime if committed in an internal armed conflict'.<sup>17</sup> Only some of the rules and principles applicable in international armed conflicts have extended to non-international armed conflicts. However, the general essence of those rules, but not the detailed regulation they may contain, has often become applicable to internal conflicts<sup>18</sup>.

#### IV. Drafting history of article 8 and the elements of war crimes

- 17 Initially, the *International Law Commission (ILC)* mandated to prepare a Draft Statute of the (future) ICC (1989 to 1994), was of the view that the Statute to be drafted should primarily deal with procedural and organizational questions and that the Court should exercise jurisdiction over crimes of international concern as defined by existing treaties<sup>19</sup>. The ILC did not deem it necessary to define the crimes in the Statute itself, possibly also because, at that time, the ILC worked separately on the Draft Code of Crimes against the Peace and Security of Mankind. In 1993, the ILC believed that the court should be given jurisdiction not only over 'treaty crimes', but also over crimes generally accepted to be of international concern, that is, crimes 'under a norm of international law accepted and recognized by the international community of States as a whole as being of such a fundamental character that its violation attracts the criminal responsibility of individuals'<sup>20</sup>. However, many states criticized the intention to only generally refer to crimes under general international law as being too vague and thus giving the Court too much discretion<sup>21</sup>. To meet these concerns, the ILC limited the Court's jurisdiction over crimes under general international law in its 1994 *Draft Statute* to four more specific categories of generally accepted international crimes: the crime of genocide, the crime of aggression, crimes against

<sup>13</sup> See, e.g., Meron (1995) 89 *AJIL* 559; Graditzky (1998) 322 *IRRC* 29; Cottier, in: Erberich *et al.* (eds.), *Frieden und Recht* (1998).

<sup>14</sup> *Prosecutor v. Tadić*, IT-94-1-AR72, Decision on the Defence Motion for Interlocutory Appeal, Appeals Chamber, 2 Oct. 1995, paras. 128–137. Article 3 of the ICTY Statute provides for jurisdiction over '[v]iolations of the laws or customs of war', while article 2 provides for jurisdiction over '[g]rave breaches of the Geneva Conventions of 1949'.

<sup>15</sup> Sassoli, *Humanitarian Law and International Criminal Law* 114–117; Ambos, *Treatise ICL II* (2014) 160–1.

<sup>16</sup> On war crimes in non-international armed conflicts, see Kreß (2001) 30 *IsYbHumRts* 103.

<sup>17</sup> *Hadžihasanović*, Command Responsibility Decision, para. 12.

<sup>18</sup> *Tadić*, Interlocutory Appeal, para. 126; see also Ambos, *Treatise ICL II* (2014) 161 *et seqq.*

<sup>19</sup> 1994 ILC Draft Statute, *Commentary on Part 3*, para. 2. See also *ibid.*, *Commentary on article 33*.

<sup>20</sup> *Ibid.*, *Commentary on Part 3*.

<sup>21</sup> *Ibid.*, *Commentary on Part 3*.



humanity, and ‘serious violations of the laws and customs applicable in armed conflict’<sup>22</sup>. In addition to these four general categories, the 1994 Draft Statute conferred jurisdiction over ‘crimes, established under or pursuant to the treaty provisions listed in the Annex, which, having regard to the conduct alleged, constitute exceptionally serious crimes of international concern’ (‘treaty crimes’)<sup>23</sup>. The Annex’s exhaustive list included grave breaches of the four 1949 Geneva Conventions and the 1977 Additional Protocol I as defined by these instruments<sup>24</sup>.

The states participating in the *Ad Hoc* and Preparatory Committees (1995 to spring 1998) 18 considered that the Court’s jurisdiction should, at least initially, be limited to the three or four most serious crimes of concern to the international community as a whole to facilitate general acceptance of the court<sup>25</sup>. There was broad acceptance that the ‘core crimes’ to be included under the Statute included war crimes, a category well accepted since the Nuremberg trials<sup>26</sup>. It was considered necessary that the crimes are defined and their constituent elements specified to heed the principle of *nullum crimen sine lege* and ensure full respect of the rights of the accused<sup>27</sup>, as well as, for a considerable number of states, to limit the discretion of the ICC judges and make the court’s decisions more predictable<sup>28</sup>.

Yet, no codification or list of war crimes existed under international law at the beginning 19 of the 1990s. Delegations agreed generally that the elaboration of the list of war crimes under ICC jurisdiction should *not* be a *legislation exercise*. Rather than legislating and creating new war crimes, only war crimes *reflecting well established international law* should be included under the Draft Statute<sup>29</sup>. Delegations informally came to broadly agree on *two cumulative criteria to select and define the war crimes* to be included under the Draft Statute: First, the conduct concerned must amount to a *violation of customary international humanitarian law*. Secondly, the violation of humanitarian law concerned must be *criminalized under customary international law*. An additional, somewhat secondary criterion was whether the war crime in question was *sufficiently serious* to be included under the Draft Statute, since the Court was meant to deal only with the most serious crimes of concern to the international community as a whole.

Already in 1996, the grave breaches provisions of the four 1949 Geneva Conventions were 20 broadly considered part of customary international law. The provisions under article 23 Hague Regulations also became widely considered to reflect customary law, although agreement on their inclusion under the Draft Statute emerged only at a later stage. The wording of the grave breaches and the provisions under article 23 Hague Regulations were incorporated into the Draft Statute essentially without any consideration of whether that language was appropriate for definitions of criminal offenses. In contrast, the customary law status and inclusion of offenses based on other humanitarian law rules gave rise to considerably more debate. Although many aspects of Additional Protocol I were considered part of customary law, particularly the states that were not parties to the Protocol<sup>30</sup> opposed the inclusion of Protocol wording, be it to avoid precedents or for the very reasons why they had not become party to the Protocol.

At the Preparatory Committee Session of February 1997, the United States tabled a 21 comprehensive proposal containing a list of defined war crimes<sup>31</sup>. The other proposal stemmed from New Zealand and Switzerland and contained, informed by the ICRC, a longer

<sup>22</sup> Article 20 (c) of the 1994 ILC Draft Statute.

<sup>23</sup> Article 20(e) of the 1994 ILC Draft Statute.

<sup>24</sup> See articles 50, 51, 130, 147 of the four Geneva Conventions and article 85 of Add. Prot. I.

<sup>25</sup> *Ad Hoc* Committee Report, paras. 55–56.

<sup>26</sup> See, e.g., *ibid.*, para. 55.

<sup>27</sup> *Ibid.*, paras. 57–58.

<sup>28</sup> 1996 Preparatory Committee I, para. 55.

<sup>29</sup> See, e.g., *ibid.*, para. 54.

<sup>30</sup> Add. Prot. I had not been ratified, *i.a.*, by India, Pakistan, the United States, the United Kingdom (State Party since 1 Jan. 1998) and France (State Party since 11 Apr. 2001).

<sup>31</sup> UN Doc. A/AC.249/1997/WG.1/DP.1 (14 Feb. 1997).

list of war crimes that also drew on Additional Protocol I and on Additional Protocol II<sup>32</sup>. Substantial progress was reached at that February 1997 Preparatory Committee session<sup>33</sup> and at the December 1997 Preparatory Committee session. The results of the December 1997 session, were forwarded to the Rome Diplomatic Conference essentially unchanged<sup>34</sup>.

- 22 At the Rome Conference, the inclusion and list of war crimes committed in internal armed conflicts raised the concern of states with ongoing internal conflicts or tensions on their territory. Offenses that were much debated included the war crime of causing excessive incidental casualties or damage, the war crime of deportation or transfer, as well as the definition of the war crime of (en)forced pregnancy. The issue of the inclusion of war crimes relating to the employment of prohibited weapons threatened to lead to block the entire negotiations.
- 23 In view of remaining major differences on various issues just two, three two or three days prior to the Rome Conference's end, the Bureau of the Conference ultimately assembled its 'take-it-or-leave-it' proposal which ultimately was adopted as the text of the 1998 Rome Statute. The Bureau however did not alter the list or definition of war crimes on which agreement had been found. Regarding war crimes committed in non-international armed conflicts, the Bureau struck a compromise, probably more extensive than many NGOs had dared to hope for, between not including any such offenses or only serious violations of common article 3, and including the entire list of offenses still under discussion in the last week of the Conference. The wording that had been agreed on for war crimes in international conflicts generally was also taken as a basis for the formulation of the corresponding war crime in non-international armed conflict.
- 24 With regard to the drafting history of the Elements of Crimes, it was the US delegation that proposed such elements, tabling a first proposal towards the end of the March/April 1998 Preparatory Committee session<sup>35</sup>. Yet, the majority of delegations at the Rome Conference considered the definitions of crimes in the Draft Statute to constitute a sufficient basis for the interpretation and application by the Court. There was also some fear that such elements might overly constrain the judges' interpretation of the law of war crimes and the development of the law, and that working out such elements could overburden the already enormous workload of the Rome Conference. Moreover, the concept of elements of crimes was unknown to delegates from civil law countries. However, not least to keep the US aboard, the majority eventually agreed on the principle that elements of crimes should be worked out for the crimes under the Rome Statute, under the clear conditions now inserted in article 9, including that such elements would not be legally binding and had to be consistent with the Statute.

<sup>32</sup> UN Doc. A/AC.249/1997/WG.1/DP.2 (14 Feb. 1997).

<sup>33</sup> See Report of the Working Group on the Definition of Crimes, Annex I to the Preparatory Committee Decisions Feb. 1997.

<sup>34</sup> Cf. Preparatory Committee Decisions Dec. 1997, pp. 4–16 (Article 20C); Preparatory Committee (Consolidated) Draft, pp. 17–30 (article 5 – War crimes).

<sup>35</sup> The US delegation proposed that elements of crimes should be adopted for each offense included under the Statute, arguing that such elements were necessary to provide the requisite clarity and precision to adequately instruct the Prosecutor and the Court, to ensure respect for the rights of the accused, as well as to 'give teeth' to the principle of legality, which was considered insufficiently respected by the definitions of the core crimes under the Draft Statute. See Proposal submitted by the United States on Elements of offences for the International Criminal Court, UN Doc. A/AC.249/1998/DP.11 (2 Apr. 1998). For later versions of the US proposal on Elements of Crimes, see UN Doc. A/CONF.183/C.1/L.8, L.9 and L.10 (19 June 1998); UN Doc. PCNICC/1999/DP.4 and Add.1, 2 and 3 (4 Feb. 1999). In addition, the US delegation suggested that elements of crimes could facilitate an agreement on the list of crimes still to be determined and presented such elements as a condition for making the Court acceptable to the US. The US delegation's idea to provide definitional elements of crimes was inspired from their experience with the US criminal justice system, where the concept of such elements is widely used, including by the Model Penal Code and the uniform code of military justice applied the US Courts-Martial. See American Law Institute, *Model Penal Code and Commentaries (Official Draft and Revised Comments)* (1985), Part I, General Provisions, 209 *et seq.*; Manual for Courts-Martial (2000 ed., complete revision of the 1984 Manual), Part IV (Punitive Articles). On the US views relating to the elements of crimes under the Rome Statute, see Lietzau (1999) 32 *CornellILJ* 477.

The elaboration of the Elements of Crimes was the first time that circumstantial, material and mental elements of a great number of war crimes were defined in a multilaterally negotiated instrument. Challenges included *inter alia* the ‘translation’ of the provisions under article 8 Rome Statute, that partly reflect archaic treaty language addressed at states, into elements of criminal offenses. The ICC Preparatory Commission considered various text proposals<sup>36</sup>. The agreed approach for the formulation of the elements of all non-international armed conflict war crimes under article 8 para. 2 (c) and (e) was to adopt the same wording as had been agreed for the corresponding offense in international conflicts, unless there was a specific reason against such an approach. Delegations engaged in the negotiations with the intention to draft the elements of war crimes on the basis of established international law and, again, not to engage in a legislating exercise<sup>37</sup>. The eventual adoption of the Elements of Crimes by consensus signals the general view of delegations, including delegations from states that have not signed or ratified the Rome Statute, that the elements overall represent an accurate reflection of established humanitarian law and ICL.

Besides the circumstantial, ‘material’ and mental elements adopted for each war crime, the Preparatory Commission also drafted general comments as well as footnotes for particular elements. Nonetheless, the purpose of the Elements of Crimes to provide elements of criminal offenses that add clarity and precision to their definition has been reached only to a certain extent. Some of the elements simply repeat statutory language, while others are not exactly up to the standard of criminal elements developed systematically in a stringent national criminal system, but rather multilateral political compromises that do not always add as much clarity and coherence as desired, as was to be expected with over 100 states from different legal systems participating in the negotiations. Also, the relationship between the Elements and Part 3 of the Rome Statute is not entirely clear, which however reflects in part shortcomings laid of the Rome Statute. Undoubtedly, the definitions under article 8 and the Elements are not ‘self-sufficient’, but judges will need to refer to the underlying humanitarian law rules and these rules’ objective and purpose to properly understand the elements to be proven. Still, the Elements of Crimes have contributed to the development of humanitarian law and specified the content of a number of war crimes, including for instance the war crimes of sexual violence, of torture, or of taking hostages. Also, the war crimes elements confirm and reinforce the tendency to assimilate the humanitarian law applicable to internal armed conflicts to the law applicable to international conflicts. Since the drafters of article 8 as well as the war crimes elements generally intended to reflect established humanitarian law, their product generally can be perceived, despite the fact that the elements do not legally bind the ICC judges, as indicating the *opinio iuris* of a high number of states as to the current state of the customary international law relating to war crimes.

<sup>36</sup> Comprehensive, systematic proposals were submitted by the US, UN Doc. PCNICC/1999/DP.4 and Add.1, 2 and 3 (4 Feb. 1999); the co-sponsors Hungary, Switzerland and, except for the first proposal, Costa Rica, UN Doc. PCNICC/1999/DP.5, 8, 10, 11, 20, 22, 23 and 37; and Japan, UN Doc. PNICC/1999/DP.12 (22 July 1999). More occasional proposals or comments on others’ proposals stemmed from a number of countries, including Arab states, Belgium, Colombia and Spain. In the course of the first sessions, the proposals submitted jointly by Costa Rica, Hungary and Switzerland generally became the starting point and main reference for the discussions on the elements of war crimes. These proposals were to a large extent inspired by comprehensive ICRC studies on humanitarian law relevant for interpreting and specifying the meaning of the war crimes definitions under article 8 Rome Statute, see Dörmann, *Elements* (2003). During the three first sessions of the Preparatory Commission in 1999, the Working Group on Elements of Crimes focused on finding a common approach and on drafting the elements in a ‘first reading’, concentrating particularly on material elements. Thereafter, during the March/April and June 2000 sessions, the Preparatory Commission engaged in a kind of a ‘second reading’, focusing on the up to then insufficiently addressed mental elements and their connection with the material elements, the structure of the Elements of Crimes and the overall consistency and technical correctness of the instrument.

<sup>37</sup> The ICTY *Kunarac* Appeals Chamber also observed that the ICC definitions contained in the Elements of Crimes and incorporating the *chapeaux* into the substantive definitions of the criminal offences ‘were intended to restate customary international law’, *Prosecutor v. Kunarac et al.*, IT-96-23 & IT-96-23/1-A, Judgement, Appeals Chamber, 12 June 2002, para. 177, fn. 239.

V. Existence of an armed conflict<sup>38</sup>

- 27 IHL applies automatically once there is, *de facto*, a situation of armed conflict, even if in practice it may often be difficult to ascertain the facts. This is why the first question students of IHL need to ask themselves when solving a case study is, whether and what type of armed conflict exists. To be sure, it is irrelevant how the parties to the conflict qualify the conflict. Also, to determine whether IHL is applicable, it is irrelevant what reasons ('fight against terrorists', 'self-defense' etc.) are invoked by states or other parties to the conflict to legitimate their use of force. The applicability of the *ius in bello* must be strictly separated from issues relating to the so-called '*ius ad/contra bellum*' regulating under what circumstances a state may lawfully use force against another state. Whether or not a state for instance violates the customary prohibition of the use of force against another state, it and all persons fighting on its behalf must respect IHL under any circumstances.
- 28 The war crimes listed under article 8 para. 2 (a) and (b) are applicable only in international armed conflicts. In contrast, the war crimes under article 8 para. 2 (c) are applicable to non-international armed conflicts according to article 3 common to the four Geneva Conventions, while those under article 8 para. 2 (e) apply in situations of a non-international armed conflict the threshold of which is defined anew in article 8 para. 2 (f).
- 29 There is no unique definition of *international armed conflict* under IHL. Common article 2 of the Geneva Conventions of 1949 provides, however, that all four Conventions 'apply to all cases of declared war or of any other armed conflict which may arise between two or more of the High Contracting Parties, even if the state of war is not recognized by one of them. The Conventions shall also apply to all cases of partial or total occupation of the territory of a High Contracting Party, even if the said occupation meets with no armed resistance'. The unauthorized presence of foreign troops on another state's territory may be an indication of an international armed conflict.<sup>39</sup> The Commentary to the First Geneva Convention specifies that '[a]ny difference arising between two States and leading to the intervention of armed forces is an armed conflict within the meaning of Article 2, even if one of the Parties denies the existence of a state of war. It makes no difference how long the conflict lasts, or how much slaughter takes place. The respect due to human personality is not measured by the number of victims. Nor, incidentally, does the application of the Convention necessarily involve the intervention of cumbrous machinery. ... If there is only a single wounded person as a result of the conflict, the Convention will have been applied as soon as he has been collected and tended ...'<sup>40</sup> The Commentary to the Third Geneva Convention states that for the Convention to apply 'it suffices for the armed forces of one Power to have captured adversaries falling within the scope of Article 4'<sup>41</sup>.
- 30 From the above as well as state practice it can thus be concluded that an international armed conflict exists, first, where a state uses armed force against another state or its territory, be it through its armed forces or other, including private actors. Generally, no particular level, duration or territorial expansion of the armed hostilities is required to bring the law of

<sup>38</sup> See generally David, *Principes* (2012) 101–194. On the qualification of non-international armed conflicts, see also below, margin notes 222–237, 239–242, 264–269 and 311–319.

<sup>39</sup> In the *Lubanga case* for instance, the ICC considered 'that there (was) sufficient evidence to establish substantial grounds to believe that, as a result of the presence of the Republic of Uganda as an occupying Power, the armed conflict which occurred in Ituri can be considered as an armed conflict of an international character from July 2002 to 2 June 2003, the date of the effective withdrawal of the Ugandan army.' ICC, *Prosecutor v. Thomas Lubanga Dyilo case*, ICC-01/04-01/06, para 220. On the ensuing internationalization of an armed conflict see Ambos, *Treatise ICL II* (2014) 135–7.

<sup>40</sup> Pictet, *Commentaries I* (1952) 34; see also Ambos, *Treatise ICL II* (2014) 138–40.

<sup>41</sup> Pictet, *Commentaries III* (1960) 23.

international armed conflicts into application. Furthermore, IHL applies to situations of partial or total occupation of a territory, whether or not there has been or still is armed resistance<sup>42</sup>.

Under contemporary international humanitarian law, we can distinguish three different minimum thresholds of *non-international armed conflicts*:<sup>43</sup>

- non-international armed conflicts according to common article 3 (lowest threshold), as applicable to article 8 para. 2 (c) and (d) Rome Statute<sup>44</sup>;
- non-international armed conflicts according to article 8 para. 2 (e) and (f) Rome Statute (slightly higher threshold)<sup>45</sup>; and
- non-international armed conflicts according to article 1 Add. Prot. II (highest threshold, but may have been altered by customary international law, see below).

The threshold of the first category, *common article 3 non-international armed conflicts*, is not defined under treaty law. However, common article 3 negatively states that internal disturbances and tensions, such as riots, isolated and sporadic acts of violence or other acts of a similar nature, do not amount to a non-international armed conflict<sup>46</sup>. A non-international armed conflict typically involves armed confrontations within the boundaries of one single state and involving armed confrontations not only of a sporadic nature between the authorities of that state and dissident armed forces or non-governmental organized armed groups, or among such armed groups. The involvement of governmental armed forces may be an indication that the armed conflict threshold has been reached. While common article 3 does not explicitly require the existence of ‘organized armed groups’, state practice and *opinio iuris* seem to suggest a requirement that the groups confronting each other are armed and possess a minimum degree of organization in order to make humanitarian law applicable. With a view to non-governmental armed groups that use force across an international border against a foreign government, it has been argued that such use of force may qualify as a non-international armed conflict<sup>47</sup>.

Article 1 *Additional Protocol II* provides for a higher threshold by requiring that it only applies to non-international armed conflicts that ‘take place in the territory of a High Contracting Party between its armed forces and dissident armed forces or other organized armed groups which, under responsible command, exercise such control over a part of its territory as to enable them to carry out sustained and concerted military operations and to implement this Protocol’. In contrast to common article 3, *Additional Protocol* thus requires that one of the parties to the conflict are governmental armed forces, that adversary organized armed groups are under responsible command, and that such armed groups exercise territorial control.

However, delegations at the Rome Conference were of the opinion that, under contemporary humanitarian law, the territorial control requirement and the condition that one of the parties to the conflict be governmental were inappropriate and even irrelevant in view of modern, far-reaching weaponry and the reality of today’s conflicts, besides, of course, that victims should be protected in any type of armed conflict. Indeed, it appears that the 1974–77 Diplomatic Conference adopting *Additional Protocol II* had not included the situation of two or more non-governmental factions confronting each other without involvement of the

<sup>42</sup> Another case are wars of national liberation according to article 1 para. 4 Add. Prot. I to which Add. Prot. I also applies insofar the movement unilaterally undertakes to apply the Conventions and the Protocol in relation to the specific conflict (article 96 para. 3 Add. Prot. I). This provision stems from the era of decolonization and cases to which it might be applied today are scarce. See also Ambos, *Treatise ICL II* (2014) 134.

<sup>43</sup> Generally on the different forms of non-international conflicts Ambos, *Treatise ICL II* (2014) 132–4.

<sup>44</sup> While the elements of common article 3 are well settled in theoretical terms, their application to particular conflicts in practice often is contentious. See also below, mn 259 *et seq.* and 285 *et seq.*

<sup>45</sup> See also below, mn 332 *et seq.*

<sup>46</sup> See article 1 para. 2 of Add. Prot. II of 1977.

<sup>47</sup> See e.g. US Supreme Court, *Hamdan v. Rumsfeld* (30 June 2006). It might also be argued that for instance the use of force by Hezbollah against Israeli armed forces across the border qualify as a non-international armed conflict (but not the armed response by the Israeli armed forces across the border, except if the Lebanese government consents).

government's armed forces because '[s]uch a situation, it appeared to the Conference, was merely a textbook example'<sup>48</sup>. Therefore, the Rome Conference deliberately lowered the threshold for the war crimes under article 8 para. 2 (e) primarily drawn from Additional Protocol II and replaced the three additional prerequisites by the requirement that the conflict be 'protracted'. Since delegations in Rome generally agreed to only codify in article 8 what already constituted customary international law, it seems that the rules under article 8 para. 2 (e) derived from Additional Protocol II, if not all of Additional Protocol II, apply under contemporary customary international law in situations of a 'protracted' non-international armed conflict, and that the additional requirements spelled out under article 1 of the Protocol have become void.

- 35 The *threshold of article 8 para. 2 (e) and (f) Rome Statute* does not include the higher requirements of Additional Protocol II<sup>49</sup>, but rather is identical to the threshold of common article 3, with the only difference that the conflict in addition must be 'protracted'. Both the French<sup>50</sup> and the Spanish<sup>51</sup> versions of article 8 para. 2 (f) Rome Statute suggest that the term 'protracted' solely refers to the duration of the conflict and simply means 'prolonged'<sup>52</sup>. The notion had been drawn from ICTY case law<sup>53</sup>, with one Trial Chamber adding that 'in order to distinguish from cases of civil unrest or terrorist activities, the emphasis is on the protracted extent of the armed violence and the extent of organisation of the parties involved'<sup>54</sup>.
- 36 Insofar there is a foreign state A participating in an armed conflict on the territory of state B, the armed conflict in state B still is of a non-international character insofar state A uses force with state A's *consent*, e.g. to support A in its fight against insurgents. Things become more complicated if there are both an international as well as a non-international armed conflict at the same time on the same territory, or if a state covertly supports one party to the conflict in a *prima facie* internal conflict<sup>55</sup>.

## VI. Nexus of the conduct concerned to a specific armed conflict

- 37 For a certain conduct to qualify as a war crime, it must have a nexus to an armed conflict. The conduct must not only have been committed during an armed conflict, but must have an additional connection such as a geographical, personal (perpetrator or victim) or other link to the armed conflict. Since any war crime is a criminalized violation of international humanitarian law which applies only to conduct associated with an armed conflict, the nexus to an armed conflict is an essential element of any war crime. It differentiates war crimes, e.g. the killing or rape of a prisoner of war, from 'ordinary' or 'common' crimes under domestic law, such as the common crime of murder or rape<sup>56</sup>. A somewhat related issue is the question of what persons (or objects) are protected against war crimes, and who may qualify as a perpetrator of such crimes.

<sup>48</sup> Junod, in: Sandoz *et al.* (eds), *Commentary* (1987) 1351. Crit. of territorial control also Ambos, *Treatise ICL II* (2014) 128.

<sup>49</sup> This has been confirmed by the ICC in the Lubanga judgment, *Prosecutor v. Lubanga*, ICC-01/04-01/06, Judgment (14 March 2012), paras. 536–537.

<sup>50</sup> '[C]onflits armés qui opposent de manière prolongée ...' (emphasis added).

<sup>51</sup> '[C]onflicto armado prolongado'.

<sup>52</sup> The German translation agreed upon between Austria, Germany and Switzerland similarly refers to a 'long lasting conflict' ('lang anhaltender Konflikt'). See also Ambos, *Treatise ICL II* (2014) 133.

<sup>53</sup> *Prosecutor v. Tadić*, see note 14, para. 70.

<sup>54</sup> *Prosecutor v. Delalić et al.*, Case No. IT-96-21-T, Judgment, Trial Chamber, 16 Nov. 1998, paras. 183–184. The reference to 'terrorist activities' however is inappropriate as the qualification or not of an act as 'terrorist' is irrelevant to determine the applicability of IHL.

<sup>55</sup> See also Zimmermann, *Preliminary Remarks on article(2)(c)-(f) and para. 3*.

<sup>56</sup> The issue of the necessary link has not yet received much attention by academia and judicial institutions, possibly also since the nexus was rather evident in traditional inter-state conflicts predominant up to the beginning of the 20<sup>th</sup> century with relatively clear cut front lines and parties to the conflict. In contemporary non-international or mixed armed conflicts, with often a wider array of different actors and less clear-cut front lines, the existence of a nexus frequently is less obvious.



This issue appears to be linked to the question of a nexus between the victim or affected object and the armed conflict. The Geneva Conventions for instance contain detailed provisions regulating who may qualify as a protected person. 38

The ICTY and ICTR have developed interesting general case law on the question. The Tadić Trial Chamber for instance held that '[t]he existence of an armed conflict ... is not sufficient ... For a crime to fall within the jurisdiction of the International Tribunal, a sufficient nexus must be established between the alleged offence and the armed conflict which gives rise to the applicability of international humanitarian law'<sup>57</sup>. ICTY Chambers seem to generally agree that a sufficient nexus exists, first, where the offence is committed in the course of actual armed hostilities, that is, during and at the place of combat between the adversary parties to the conflict, such as 'in the course of fighting or the take-over of a town during an armed conflict'<sup>58</sup>. Secondly, a war crime may also occur 'at a time when and in a place where no fighting is actually taking place'<sup>59</sup>, remote from the actual battlefield<sup>60</sup>, insofar the act is nonetheless closely related to the armed conflict. This is the case, if 'the crimes are committed in the aftermath of the fighting, and until the cessation of combat activities in a certain region, and are committed in furtherance or take advantage of the situation created by the fighting'<sup>61</sup>. The Kunarac Appeals Chamber developed a more systematic theory, which is reproduced here in full: 39

'What ultimately distinguishes a war crime from a purely domestic offence is that a war crime is shaped by or dependent upon the environment – the armed conflict – in which it is committed. It need not have been planned or supported by some form of policy. The armed conflict need not have been causal to the commission of the crime, but the existence of an armed conflict must, at a minimum, have played a substantial part in the perpetrator's ability to commit it, his decision to commit it, the manner in which it was committed or the purpose for which it was committed. Hence, if it can be established, as in the present case, that the perpetrator acted in furtherance of or under the guise of the armed conflict, it would be sufficient to conclude that his acts were closely related to the armed conflict. ...

In determining whether or not the act in question is sufficiently related to the armed conflict, the Trial Chamber may take into account, *inter alia*, the following factors: the fact that the perpetrator is a combatant; the fact that the victim is a non-combatant; the fact that the victim is a member of the opposing party; the fact that the act may be said to serve the ultimate goal of a military campaign; and the fact that the crime is committed as part of or in the context of the perpetrators official duties'<sup>62</sup>.

Similarly, the second-last element for each war crime under article 8 Rome Statute requires that '[t]he conduct took place in the context of and was associated with' the armed conflict. 40

<sup>57</sup> *Prosecutor v. Tadić*, IT-94-1-T, Judgment, Trial Chamber, 7 May 1997, para. 572 (emphasis added). This was confirmed, *i.a.*, by the Delalić Trial Chamber which stated that '[i]t is axiomatic that not every serious crime committed during the armed conflict in Bosnia and Herzegovina can be regarded as a violation of international humanitarian law. There must be an obvious link between the criminal act and the armed conflict'. *Prosecutor v. Delalić et al.*, note 48, para. 193. In the same line of thought, the Military Supreme Court of Switzerland held in the *Nyontezze* case with regard to war crimes committed in internal armed conflicts that 'in order for common article 3 and article 4 of [Additional] Protocol II to be applicable, these acts (and their author) must be in a certain connection with the armed conflict, as international humanitarian law could not be aimed at every attack on life on the territory of a country in an armed conflict', Tribunal militaire de cassation, Switzerland, *Nyontezze* (27 Apr. 2001), 39.

<sup>58</sup> *Prosecutor v. Delalić et al.*, see note 48, para. 193.

<sup>59</sup> ICTY, *Prosecutor v. Kunarac et al.*, see note 34, para. 57 (emphasis added).

<sup>60</sup> See *Prosecutor v. Tadić*, see note 52, para. 568. See also, *e.g.*, *Prosecutor v. Tadić*, see note 14, para. 68.

<sup>61</sup> *Prosecutor v. Kunarac et al.*, IT-96-23-T & IT-96-23/1-T, Judgment, Trial Chamber, 22 Feb. 2001, para. 568.

<sup>62</sup> *Prosecutor v. Kunarac et al.*, see note 34, paras. 58–60. The holding of the *Kunarac* Appeals Chamber that the armed conflict need not have been 'causal' to the commission of the crime also appears to limit or at least specify the relevance of the statement by the Aleksovski Trial Chamber that '[i]t is necessary to conclude that the act, which could well be committed in the absence of a conflict, was perpetrated against the victim(s) concerned because of the conflict at issue', *Prosecutor v. Aleksovski*, IT-95-14/1-T, Judgment, Trial Chamber, 25 June 1999, para. 45 (emphasis added).

Some delegations had considered that the wording ‘in the context of’ alone would be too vague as it might be read as not requiring a specific, but only a temporal and geographical link to the armed conflict.

- 41 In sum, in order to possibly qualify as a war crime a conduct must have a *sufficient nexus* to the armed conflict by being *closely related* to it. The essence and teleological purpose of the humanitarian law rule underlying the offense may give some indication to determine what nexus is required with regard to specific war crimes. Generally, it seems that a sufficient nexus first exists where a war crime is committed *in the course of armed hostilities*. Secondly, drawing on the ICTY *Kunarac* Appeals Chamber’s judgment, an offence appears also sufficiently related to the armed conflict where it is ‘*shaped or dependent upon the environment of the armed conflict in which it is committed*’, even if occurring temporally and geographically remote from any actual fighting. The armed conflict must, at a minimum, have played a substantial part on the perpetrator’s ability or decision to commit it, the manner in which it was committed, or the purpose for which it was committed<sup>63</sup>.
- 42 For instance, indications of the existence of a nexus may include where the offence is committed in furtherance of the armed conflict or with the intention to further an objective a party to the conflict pursues through the hostilities, by a member of armed forces or groups against a person or object belonging to adversary armed forces or groups or otherwise to the adversary party to the conflict including against persons detained for reasons related to the conflict, by a person belonging to one party to the conflict against a person or property belonging to an adversary party<sup>64</sup>, or by *exploiting the circumstances and chances of war and in particular its coercive environment*<sup>65</sup>. Situations of armed conflict frequently lead to the breakdown of law and order and the judicial system and armed persons may have far greater power over particularly vulnerable persons than usually. In such circumstances, the additional protection layer of humanitarian law appears essential.

## VII. Interpretation of and overview over the offences under article 8

### 1. Interpretation

- 43 Article 21 Rome Statute lists the sources of law that are relevant for the ICC’s interpretation and application of the war crimes definitions under article 8. Accordingly, the primary sources are, quite evidently, the Rome Statute and the Elements of Crimes, although the latter are not binding on the judges but merely shall ‘assist in the interpretation and application’ of article 8.

<sup>63</sup> *Prosecutor v. Kunarac et al.*, see note 34, para. 58. Crit. of a too broad interpretation Ambos, *Treatise ICL II* (2014) 142–3.

<sup>64</sup> To be sure, anyone can incur individual criminal responsibility for war crimes, and not necessarily only members of armed forces, armed groups, or authorities.

<sup>65</sup> If the circumstances of an armed conflict are exploited by a person, the perpetrator’s *ability* to commit the offence is influenced by the existence of that conflict, which constitutes one of the alternative possibilities for a sufficient nexus proposed by the *Kunarac* Appeals Chamber, see note 34, *Prosecutor v. Kunarac et al.*, para. 58. The *Kunarac* case law has been explicitly referred to by the ICC in the *Lubanga* case (Confirmation of Charges, §§ 286–288) and *Katanga and Ngudjolo Chui* case (Confirmation of Charges §§ 378–383). Exploiting the coercive environment of the armed conflict also is an element of certain civil war crimes of sexual violence under article 8 para. 2 (e) (vi)–1, 3, 6 Rome Statute, in that the act must be committed ‘by force, or by threat of force or coercion ... , or by taking advantage of a coercive environment...’. The ‘coercive environment’ of which the perpetrator takes advantage can be the violent circumstances created by the armed conflict, such as when forces occupy a village and where latent coercion may exist. However, an additional element required with regard to each of these civil war crimes is that ‘[t]he conduct took place in the context of and was associated with an armed conflict not of an international character’. The primary concern of, in particular, the women’s caucus to also mention ‘coercive circumstances’ was to make clear that proof of such circumstances ‘nullifies any appearance of consent and renders evidence thereof irrelevant’, Women’s Caucus for Gender Justice, Recommendations and Commentary for the Elements, Annex, Submitted to the July/August 1999 Preparatory Commission.

Secondly, article 21 mentions ‘where appropriate, applicable treaties and the principles and rules of international law, including the established principles of the international law of armed conflict’. Thirdly, if the just mentioned sources do not provide sufficient answers, the Court may furthermore inspire itself from national law.

The short definitions of the 53 war crimes under article 8 are far from being self-explanatory and the non-binding Elements of (War) Crimes provide only occasionally and in most cases only limited clarification. Therefore, one would still be at loss to adequately understand the elements of the individual war crime without referring to international humanitarian law.

To correctly understand and interpret the war crimes under article 8, we must take into consideration the relevant IHL each individual offense is based on. This is also confirmed by the Elements of Crimes which suggest that ‘[t]he elements for war crimes ... shall be interpreted within the established framework of the international law of armed conflict...’<sup>66</sup>. Moreover, the chapeau to article 8 para. 2 (a), (b), (c) and (e) each refer to IHLsources.

Hence, we must examine with regard to each war crime what treaty or customary international humanitarian law rules it is derived from, and what violation of humanitarian law it precisely criminalizes<sup>67</sup>, to determine the material and mental elements of the offense. For instance, the concept of ‘civilian’ contained for instance in article 8 para. 2 (b) (i) carries a very precise and carefully delineated meaning under humanitarian law. Similarly, the Geneva Conventions define with much detail who under what circumstances is protected from the grave breaches under article 8 para. 2 (a). Also, conduct that might appear criminal if one exclusively looks at the wording of article 8 may not be unlawful under certain circumstances for which the relevant humanitarian rule provides for an exception to the rule. For instance, even though article 8 para. 2 (b) (viii) clearly criminalizes ‘transfers’ of the population of occupied territory and does not mention any exception, an Occupying Power may, based on customary international humanitarian law (reflected in article 49 para. 2 GC IV) and hence also under article 8, displace members of the population of occupied territory from a given area in order to evacuate them ‘if the security of the population or imperative military reasons so demands’. Similarly, the notion of ‘willful killing’ under article 8 para. 2 (a) (i) is far from criminalizing any intentional killing in armed conflict situations, but only the killing of protected persons. If a member of armed forces kills a member of adversary armed forces on the battlefield and in association with an international armed conflict, this is not a war crime; in fact, humanitarian law even provides that such killing cannot be prosecuted.

## 2. Overview and classification of war crimes under article 8

The long list of the 53 war crimes listed under article 8 para. 2 unfortunately is not well-structured, and in particular the order of the 26 offenses listed under article 8 para. 2 (b) and (e) has little apparent logic. At times similar types of misconduct are not listed next to each other. Also, several offenses overlap with or are even largely identical to another offense. Besides, some single provisions refer to different conducts that could each be qualified as a criminal offence in its own.

This lack of conciseness and logical order of the list of war crimes as well as the sometimes archaic language can largely be explained by the drafting history of article 8 Rome Statute. Towards the end of the Rome Conference, time became scarce. During the last days of the Rome Conference, delegations considered to remedy the lack of convincing structure and bring the jumble of offenses under the eventual article 8 para. 2 (b) into some understandable order. However, the time to agree on a new presentation of the list was short and it was

<sup>66</sup> Elements of Crimes, ICC-ASP/1/3 (part II-B) (9 Sep. 2002), p. 125 (introduction to the elements of war crimes), here Annex II. In the same vein Ambos, *Treatise ICL II* (2014) 160-1.

<sup>67</sup> For an analysis of the relevant humanitarian law rules ‘outside’ the Rome Statute, see also Dörmann, *Elements* (2003).

preferred to stick to its previous (though less than ideal) order in order not to endanger the broad consensus by presenting the list of war crimes in a different order. For the same reasons, overlapping or almost identical war crimes from different sources were not merged together, and archaic language frequently was not ‘modernized’ or adapted to a criminal offense to avoid opening previously agreed language. Therefore, more often than not, the ‘easy’ route of simply reproducing the lists and formulations contained in the different treaty sources was chosen.

- 50 Nonetheless, there is some structure to article 8.<sup>68</sup> First, it *categorizes* the offenses mainly *according to the type of conflict* in which the respective war crime is applicable. War crimes committed in international armed conflicts are listed in sub-paragraphs a and b, while war crimes committed in non-international armed conflicts with a threshold according to article 3 common to the Geneva Conventions are contained in sub-paragraph c and war crimes committed in a non-international armed conflict with a threshold spelled out in article 8 para. 2 are contained in sub-paragraph (e).
- 51 Secondly, article 8 to some degree distinguishes war crimes *according to their humanitarian law source* which primarily are broadly or even universally ratified treaties. Sub-paragraph a contains grave breaches of the four Geneva Conventions of 1949, while the war crimes under sub-paragraph b have been drawn from a number of sources, namely Additional Protocol I of 1977, the 1907 Hague Regulations, other particular international instruments such as treaties prohibiting certain weapons and customary international humanitarian law. The war crimes under sub-paragraph c reflect violations of article 3 common to the four Geneva Conventions. The war crimes under sub-paragraph e are primarily, but not exclusively based on Additional Protocol II of 1977.
- 52 To gain an overview over what types of conduct are actually criminalized under article 8, it appears useful to regroup the ICC war crimes according to the *criminalized conduct*. Such a regrouping facilitates a rapid idea over what conduct is prohibited under article 8 in a given situation. For instance, a military pilot will be interested to know more about the ‘targeting war crimes’, while someone looking into alleged misconduct at a prisoners of war camp may rather only look at the list of war crimes of mistreatment. The Preparatory Commission indeed negotiated some of the elements of the war crimes in groups of crimes referring to a similar or related substantive content<sup>69</sup>. Some of the national laws providing domestic jurisdiction over the ICC crimes have actually tried to reduce the number of offenses and condense some of the overlapping offenses into one offense, at times also eliminating the

<sup>68</sup> See also Ambos, *Treatise ICL II* (2014) 118–22.

<sup>69</sup> At the July/August 1999 Preparatory Commission session, the Coordinator of the Working Group on the Elements of Crimes proposed that the Preparatory Commission should organize its drafting of the elements of war crimes under article 8 para. 2 (b) not according to the order provided under the Rome Statute (para. b through (xxvi)), but rather according to the following four categories, containing a total of nine clusters based on the possible commonality of their elements:

I. ‘Humanitarian’/‘human rights’ provisions:

1. Article 8 para. 2 (c)
2. Article 8 para. 2 (b) (x), (xxi), (xxii)
3. Article 8 para. 2 (b) (viii), (xiii), (xvi)
4. Article 8 para. 2 (b) (xiv), (xv), (xxvi)

II. ‘Hague law’ provisions:

5. Article 8 para. 2 (b) (vi), (vii), (xi), (xii)

III. ‘Conduct of hostilities’ provisions:

6. Article 8 para. 2 (b) (i), (ii), (iii)
7. Article 8 para. 2 (b) (iv), (v), (ix), (xxiv)
8. Article 8 para. 2 (b) (xxiii), (xxv)

IV. ‘Weapons’ provisions:

9. Article 8 para. 2 (b) (xvii), (xviii), (xix), (xx)’.

See <http://www.un.org/law/icc/prepcomm/prepfra.htm>; the approach is for instance reflected in the Proceedings of the Preparatory Commission at its second session (26 July–13 Aug. 1999), UN Doc. PCNICC/1999/L.4/Rev.1 (18 Aug. 1999), 69–76.

distinction between war crimes committed in international as opposed to those committed in non-international armed conflicts<sup>70</sup>.

One possibility<sup>71</sup> to regroup the war crimes under article 8 is suggested as follows:

- A. War Crimes Committed in International Armed Conflicts**
- I. Geneva Law Offenses: War Crimes Against Persons or Objects in the Power of a Party to the Conflict**
- 1) War Crimes against Persons in the Power of a Party to the Conflict
  - a) War Crime of Killing a Person (a)(i)+(b)(vi)
  - b) War Crimes of Mistreatment
  - aa) Torture (a)(ii)-1
  - bb) Wounding or Causing Great Suffering or Serious Injury (a)(iii) + (b)(vi)
  - cc) Inhuman Treatment (a)(ii)-2
  - dd) Outrages upon personal dignity (b)(xxi)
  - ee) Mutilation (b)(x)-1
  - ff) Subjecting a Person to Experiments (b)(x)-2; (a)(ii)-3
  - gg) Sexual Violence (b)(xxii)-1 to -6
- c) Other War Crimes against Persons in the power of a party to the conflict
  - aa) Compelling Service in Hostile Forces or Participation in Hostile Operations of War (a)(v) + (b)(xv)
  - bb) Deporting or Transferring Population of an Occupied Territory (b)(viii)-1
  - cc) Transferring Own Population into Occupied Territory (b)(viii)-2
  - dd) Denying Rights of Fair and Regular Trial (a)(vi)
  - ee) Unlawful Confinement (a)(vii)-2
  - ff) Taking Hostages (a)(viii)
  - ff) Using Protected Persons as Shields (b)(xxiii)
  - gg) Declaring Abolished Rights and Actions (b)(xiv)
  - hh) Using, Conscripting or Enlisting Children (b)(xxvi)

<sup>70</sup> The *German International Crimes Code* provides for domestic jurisdiction over ICC crimes and categorizes the war crimes under article 8 para. 2 Rome Statute as follows, abandoning the distinction between war crimes committed in international and non-international armed conflicts:

Section 8: War Crimes Against Persons;

Section 9: War Crimes Against Property and Other Rights;

Section 10: War Crimes Against Humanitarian Operations and Emblems;

Section 11: War Crimes Consisting in the Use of Prohibited Methods of Warfare; and Section 12: War Crimes Consisting in the Employment of Prohibited Means of Warfare.

The German government explained that, in deviation from the order in which the war crimes are listed under article 8 para. 2 Rome Statute and in order to ease the application of law, chapter 2 of part 2 of the Code provide a clearly arranged structure according to the development of the substance of humanitarian law which has been marked by the distinction between the protection of persons and property (Geneva Law) and the limitation of the use of particular methods and means relating to the conduct of hostilities (Hague law). The Code is available at <http://www.iuscrim.mpg.de/forsch/legaltext/vstgbleng.pdf>. See on this approach also Ambos, *Treatise ICL II* (2014) 120-1. – A Swiss draft of criminal offenses based on article 8 Rome Statute also regroups the 50 war crimes provisions and merges many of them, see <http://www.bj.admin.ch/bj/fr/home/themen/sicherheit/gesetzgebung/intern/strafgerichtshof.html>.

<sup>71</sup> There is as of today no commonly accepted categorization of war crimes in international treaties or even doctrine, apart from the distinction according to their legal source and the type armed conflict in which they were committed.

- 2) War Crimes Against Property in the Power of the Adversary
  - a) Destruction and Appropriation of Property (a)(iv) + (b)(xiii)
  - b) Pillaging (b)(xvi)
- II. *Hague Law Offenses: Violations of Restrictions on the Conduct of Hostilities*
  - 1) War Crimes of Prohibited Targeting
    - a) Targeting of Civilians (b)(i)
    - b) Targeting of Civilian Objects (b)(ii)
    - c) Targeting of Humanitarian or Peacekeeping Personnel or Objects (b)(iii)
    - d) Targeting of undefended places (b)(v)
    - e) Targeting of Buildings Dedicated to Religion, Education, Art, Science or Charitable Purposes, or of Historic Monuments (b)(ix)-1
    - f) Targeting of Hospitals or Places where Sick and Wounded are Collected (b)(ix)-2
    - g) Targeting of Persons or Objects Using the Distinctive Emblems (b)(xxiv)
    - h) Targeting of Persons *Hors de Combat* (b)(vi)
  - 2) Causing Excessive Incidental Death, Injury or Damage (b)(iv)
  - 3) Use of Prohibited Methods of Warfare (in a narrow sense)
    - a) Perfidious Killing or Wounding (b)(xi)
    - b) Improper Use of Distinctive Signs (b)(vii)
    - c) Using Protected Persons as Shields (b)(xxiii)
    - d) Starvation (b)(xxv)
    - e) Killing or Wounding a Person *hors de combat* (b)(vi)
    - f) Denying Quarter (b)(xii)
  - 4) Employment of Prohibited Weapons
    - a) Employment of Poison or Poisoned Weapons (b)(xvii)
    - b) Employment of Gases and Analogous Liquids, Materials or Devices (b)(xviii)
    - c) Employment of Dum-Dum Bullets (b)(xix)
    - [d) Employment of Means or Methods of Warfare Listed in the Annex to the Statute (b)(xx)]
- B. **War Crimes Committed in Non-international Armed Conflicts**
  - I. *Geneva Law Offenses: War Crimes Against Persons or Objects in the Power of a Party to the Conflict*
    - 1) War Crimes against Persons
      - a) War Crime of Murder (c)(i)-1
      - b) War Crimes of Mistreatment
        - aa) Torture (c)(i)-4
        - bb) Cruel Treatment (c)(i)-3
        - cc) Outrages Upon Personal Dignity (c)(ii)



|     |                                                                                                                           |                       |
|-----|---------------------------------------------------------------------------------------------------------------------------|-----------------------|
| dd) | Mutilation                                                                                                                | (c)(i)-2 and e)(xi)-1 |
| ee) | Medical or Scientific Experiments                                                                                         | (e)(xi)-2             |
| ff) | Sexual Violence                                                                                                           | (e)(vi)               |
| gg) | Other Violence to Life or Person                                                                                          | (c)(i)-5              |
| c)  | Other War Crimes against Persons                                                                                          |                       |
| aa) | Taking Hostages                                                                                                           | (c)(iii)              |
| bb) | Denial of a Fair Process                                                                                                  | (c)(iv)               |
| cc) | Displacing the Civilian Population                                                                                        | (e)(viii)             |
| dd) | Using, Conscripting or Enlisting Children                                                                                 | (e)(vii)              |
| 2)  | War Crimes Against Objects in the Power of the Perpetrator                                                                |                       |
| a)  | Destruction or Seizure of Adversary Property                                                                              | (e)(xii)              |
| b)  | Pillaging                                                                                                                 | (e)(v)                |
| II. | <i>Hague Law Offenses: Violations of Restrictions on the Conduct of Hostilities</i>                                       |                       |
| 1)  | Prohibited Targeting                                                                                                      |                       |
| a)  | Targeting Civilians                                                                                                       | (e)(i)                |
| b)  | Targeting Assistance or Peacekeeping Personnel<br>or Objects                                                              | (e)(iii)              |
| c)  | Targeting Buildings Dedicated to Religion, Education,<br>Art, Science or Charitable Purposes,<br>or of Historic Monuments | (e)(iv)               |
| d)  | Targeting Hospitals or Collection Sites of Sick<br>and Wounded                                                            | (e)(iv)               |
| e)  | Targeting Persons or Objects Using the<br>Distinctive Emblems                                                             | (e)(ii)               |
| 2)  | Use of Prohibited Methods of Warfare (in the narrow sense)                                                                |                       |
| a)  | Perfidious Killing or Wounding                                                                                            | (e)(ix)               |
| b)  | Denying Quarter                                                                                                           | (e)(x)                |

## PART II. ANALYSIS AND INTERPRETATION OF ELEMENTS

### A. Article 8 para. 1: Jurisdiction in respect of war crimes

To be sure, article 8 para. 1 does not address or even alter the definition of the war crimes under article 8. Plan, policy and a large-scale commission are by no means required elements of war crimes. A single and isolated act, such as the rape or killing of a single person by a single perpetrator, can amount to a war crime. 53

Article 8 para. 1 rather provides a practical guideline for the ICC and above all the Prosecutor on what type of war crimes they should primarily focus, given the limited resources of the ICC.<sup>72</sup> It indicates factors the Prosecutor should take into account when 54

<sup>72</sup> It does not seem recommendable for states providing domestic jurisdiction over war crimes such as those under article 8 Rome Statute to establish a similar jurisdictional threshold. The considerations underlying article 8 para. 1 Rome Statute, that is, the limited resources and complementary function of the ICC in an international justice system, are not analogous in national jurisdictions. Furthermore, such a limitation would not seem in conformity with the 'duty of every State to exercise its criminal jurisdiction over those responsible for

determining whether to commence an investigation with regard to a person alleged to have committed war crimes. Indeed, if a party to a conflict has a general policy or plan or if war crimes are committed on a large scale, it may be less likely to change the course without international action.

- 55 As the words ‘in particular’ make clear, a plan, policy or a large-scale commission is not absolute prerequisite for the Court to commence investigations but rather serves, as already indicated above, as a practical guideline for the Court.<sup>73</sup> During the negotiations leading to the adoption of the Rome Statute, the word ‘only’, supported *inter alia* by the US delegation, had not been acceptable to many like-minded states.<sup>74</sup> Therefore, the Court retains its discretion to exercise jurisdiction also over war crimes that are not committed as part of a plan, policy or large-scale commission of such crimes. The Prosecutor might for instance also take into consideration other factors like the egregiousness of a particular crime, the seriousness and scale of a single crime, or the official function of an alleged perpetrator.

## B. Article 8 para. 2: Meaning of ‘war crimes’

### Litera a: Grave breaches

**Literature:** Baxter, J.W., ‘Multilateral Treaties as Evidence of Customary International Law’, (1965–6) 41 *BYIL* 275; Badar, M.E., ‘Drawing the Boundaries of *mens rea* in the Jurisprudence of the International Criminal Tribunal for the Former Yugoslavia’, (2006) 6 *ICLRev* 313; Dörmann, K., ‘The Legal Situation of ‘unlawful/unprivileged combatants’, (2003) 879 *IRevRC* 45; *id.* (with contributions by Doswald-Beck, L. and Kolb, R.), *Elements of War Crimes under the Rome Statute of the International Criminal Court* (2003); *id.*, ‘War Crimes under the Rome Statute of the International Criminal Court, with a Special Focus on the Negotiations on the Elements of Crimes’, (2003) 7 *MPYbUNL* 341; *id.*, La Haye, E. and von Hebel, H., ‘The Context of War Crimes’, in: Lee R. S. (ed.), *The International Criminal Court* (2001) 112; Draper, ‘The Geneva Conventions of 1949’, (1965) 114 *RCADI* 59; Droegge, C., ‘“In Truth the Leitmotiv”: The Prohibition of Torture and Other Forms of Ill-Treatment in International Humanitarian Law’, (2007) 867 *IRevRC* 515; Ferraro, T., ‘Determining the Beginning and End of an Occupation under International Humanitarian Law’, (2012) 885 *IRevRC* 133; von Glahn, G., *The Occupation of Enemy Territory* (1957); Gross, O., ‘The Grave Breaches System and the Armed Conflict in the Former Yugoslavia’, (1995) 16 *MichJIL* 783; Henckaerts, J.-M., *Mass Expulsion in Modern International Law and Practice* (1995); ICRC, *Interpretive Guidance on the Notion of Direct Participation in Hostilities under International Humanitarian Law* (prepared by Nils Melzer) (2009), <<http://www.icrc.org/eng/assets/files/other/icrc-002-0990.pdf>> accessed 26 January 2015; ICRC, *International Humanitarian Law and the Challenges of Contemporary Armed Conflicts* (2011) 311C/11/5.1.2, <<http://www.icrc.org/eng/assets/files/red-cross-crescent-movement/31st-international-conference/31-int-conference-ihl-challenges-report-11-5-1-2-en.pdf>> accessed 26 January 2015; Meron, T., ‘The Geneva Conventions as Customary Law’, (1987) 81 *AJIL* 348; Pejic, J., ‘Procedural Principles and Safeguards for Internment/Administrative Detention in Armed Conflict and Other Situations of Violence’, (2005) 858 *IRRC* 375; Quéguiner, J.F., ‘Dix ans après la création du Tribunal pénal international pour l’ex Yougoslavie: évaluation de l’apport de sa jurisprudence au droit international humanitaire’, (2003) 850 *IRRC* 271; Roberts, K., ‘The Contribution of the ICTY for the Grave Breaches Regime’, (2009) 7 *JICJ* 743; Sassöli, M. and Olson, L.M., ‘The Judgment of the ICTY Appeals Chamber on the Merits in the Tadić Case’, (2000) 839 *IRRC* 733; Schwarzenberger, G., *International Law as Applied by International Courts and Tribunals: The Law of*

international crimes’ (preambular paragraph 6 of the Rome Statute) such as those spelled out under the Rome Statute, and would be in violation of the duty of States Parties to the Geneva Conventions to prosecute or extradite persons responsible for grave breaches of the Conventions.

<sup>73</sup> See *Prosecutor v. Jean-Pierre Bemba Gombo*, Case ICC-01/05-01/08, Pre-Trial Chamber II, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor Against Jean-Pierre Bemba Gombo, 15 June 2009, para. 211. In the same vein Ambos, *Treatise ICL II* (2014) 119–20.

<sup>74</sup> The Preparatory Committee forwarded to the Rome Diplomatic Conference 3 options the substance and placement of which were still discussed, and which were followed by what is now article 10 Rome Statute: ‘Elsewhere in the Statute:

Option 1 The jurisdiction of the Court shall extend to the most serious crimes of concern to the international community as a whole. The Court shall have jurisdiction in respect of the crimes listed in article X (war crimes) only when committed as part of a plan or policy or as part of a large-sale commission of such crimes.

Option 2 The jurisdiction of the Court shall be limited to the most serious crimes of concern to the international community as a whole. The Court shall have jurisdiction in respect of the crimes listed in article X (war crimes) in particular when committed as part of a plan or policy or as part of a large-sale commission of such crimes.

*Armed Conflict*, Vol. II (1968); van der Wolf, W.-J. (ed.), *War Crimes and International Criminal Law* (2011); Zimmermann, A. and Geiss, R., in: *Münchener Kommentar, Strafgesetzbuch – Vol 8, Nebenstrafrecht III* (2<sup>nd</sup> ed. 2013).

### I. Preliminary remarks

Grave breaches are particularly serious violations of international humanitarian law.<sup>75</sup> 56  
Article 8 para 2 (a) of the Rome Statute incorporates the list of grave breaches which is contained in the four Geneva Conventions of 1949 (articles 50 GC I, 51 GC II, 130 GC III and 147 GC IV). The Statute merely repeats the definitions of grave breaches contained in the four Geneva Conventions. Further guidance on the interpretation is given in the document on the Elements of Crimes.<sup>76</sup>

The four Geneva Conventions have been ratified by 196 countries as of 21 December 2014 57 and are generally considered to reflect current customary international law.<sup>77</sup> Each of the Conventions addresses the treatment to be provided to a different group of persons affected by an armed conflict:

- the First Convention (the Sick and Wounded Convention) is concerned with the sick and wounded in the field;<sup>78</sup>
- the Second Convention (the Maritime Convention) is concerned with the sick, wounded and shipwrecked at sea;<sup>79</sup>
- the Third Convention (the Prisoners of War Convention) with prisoners of war;<sup>80</sup> and
- the Fourth Convention (the Civilians Convention) with civilians.<sup>81</sup>

The material scope of application of the Conventions is indicated in common article 2 of 58 the Conventions defining situations of an international armed conflict. Common article 2 thus specifies the context in which the war crimes under article 8 para 2 (a) of the ICC Statute must be committed. The concept of grave breaches is therefore still considered to be limited to international armed conflicts.<sup>82</sup> In brief, the Conventions apply:

<sup>75</sup> Independently of the Rome Statute, States are obliged pursuant to the Geneva Conventions to enact any legislation necessary to provide effective penal sanctions for persons committing, or ordering the commission of, any of these grave breaches, to search for such persons and to bring them, regardless of their nationality, before their own courts. Alternatively, a state may, if it prefers, hand such persons over for trial to another High Contracting Party. Cf. articles 49 GC I, 50 GC II, 129 GC III, 146 GC IV.

<sup>76</sup> ICC, *Elements of Crimes*, ICC-ASP/1/3, 9 September 2002, available online at: <[http://legal.un.org/icc/asp/1stsession/report/english/part\\_ii\\_b\\_e.pdf](http://legal.un.org/icc/asp/1stsession/report/english/part_ii_b_e.pdf)> accessed 21 December 2014.

<sup>77</sup> International Court of Justice, *Military and Paramilitary Activities in and against Nicaragua (Nicaragua v. United States of America)*, Judgement, Merits, 27 June 1986, para 220.

<sup>78</sup> Convention (I) for the Amelioration of the Condition of the Wounded and Sick in Armed Forces in the Field, Geneva, 12 August 1949 (available online at <[www.icrc.org/IHL](http://www.icrc.org/IHL)> accessed 21 December 2014).

<sup>79</sup> Convention (II) for the Amelioration of the Condition of Wounded, Sick and Shipwrecked Members of Armed Forces at Sea, Geneva, 12 August 1949 (available online at <[www.icrc.org/IHL](http://www.icrc.org/IHL)> accessed 21 December 2014).

<sup>80</sup> Convention (III) relative to the Treatment of Prisoners of War, Geneva, 12 August 1949 (available online at <[www.icrc.org/IHL](http://www.icrc.org/IHL)> accessed 21 December 2014).

<sup>81</sup> Convention (IV) relative to the Protection of Civilian Persons in Time of War, Geneva, 12 August 1949 (available online at <[www.icrc.org/IHL](http://www.icrc.org/IHL)> accessed 21 December 2014).

<sup>82</sup> *Prosecutor v. Tadić*, No. IT-94-1-A, Judgement, Appeals Chamber, 15 July 1999, para 80; *Prosecutor v. Tadić*, IT-94-1-AR72, Decision on the Defence Motion for Interlocutory Appeal, Appeals Chamber, 2 October 1995, para 84 (for the reasons see paras. 79 *et seq.*); see also *Prosecutor v. Blaškić*, IT-95-14-T, Judgement, Trial Chamber, 3 March 2000, para. 74:

‘Within the terms of the Tadić Appeal Decision and Tadić Appeal Judgement, Article 2 [of the ICTY Statute] applies only when the conflict is international. Moreover, the grave breaches must be perpetrated against persons or property covered by the “protection” of any of the Geneva Conventions of 1949’.

The ICTY Trial Chamber seemed to take a more progressive approach in the *Delalić* case:

‘While Trial Chamber II in the Tadić case did not initially consider the nature of the armed conflict to be a relevant consideration in applying Article 2 of the Statute, the majority of the Appeals Chamber in the Tadić Jurisdiction Decision did find that grave breaches of the Geneva Conventions could only be committed in international armed conflicts and this requirement was thus an integral part of Article 2 of the Statute. In his Separate Opinion, however, Judge Abi-Saab opined that “a strong case can be made for the application of Article 2, even when the incriminated act takes place in an internal conflict”. The majority of the Appeals

- to all armed conflicts between two or more States parties to the Conventions, even if one or more of the parties to the conflict does not recognize a state of war;
- to all cases of partial or total occupation of the territory of a party to the Conventions even if the occupation meets with no armed resistance; and
- if a party to the Conventions is in conflict with a power which is not, the Conventions shall apply if the power accepts and applies the provisions thereof.

59 The Conventions apply to inter-State armed conflicts, regardless of their level of intensity. The firing of weapons by soldiers of opposing sides across a contested border or the uninvited intervention of the armed forces of one State, even in small numbers, in the territory of another State may trigger the application of the Geneva Conventions.<sup>83</sup> An internal armed conflict may become international if another State intervenes with its armed forces on the side of an armed opposition group against the State that is fighting the group (the conflict relation between the two States would be governed by the law of international armed conflict while the conflict relation between the State and the armed opposition group remains governed by the law of non-international armed conflicts) or if – as pointed out in the case law of the ICTY<sup>84</sup> – some of the participants in the internal armed conflict act on behalf of that other State. In that latter case, in order for armed forces, militias or paramilitary units to be considered acting as *de facto* organs of that State – with the consequence that the law of international armed conflict governs the situation – it is sufficient for the State to exercise overall control over the forces and units. If another State

Chamber did indeed recognise that a change in the customary law scope of the “grave breaches regime” in this direction may be occurring. This Trial Chamber is also of the view that the possibility that customary law has developed the provisions of the Geneva Conventions since 1949 to constitute an extension of the system of “grave breaches” to internal armed conflicts should be recognised’.

*Prosecutor v. Delalić et al.*, IT-96-21-T, Judgement, Trial Chamber, 16 November 1998, para. 202. Ultimately, the Trial Chamber made no finding on the question of whether article 2 of the Statute could only be applied in a situation of international armed conflict, or whether this provision was also applicable in internal armed conflicts (*id.*, para 235), but indicated: ‘Recognising that this would entail an extension of the concept of “grave breaches of the Geneva Conventions” in line with a more teleological interpretation, it is the view of this Trial Chamber that violations of common article 3 of the Geneva Conventions may fall more logically within Article 2 of the Statute. Nonetheless, for the present purposes, the more cautious approach has been followed’ (*ibid.*, para 317).

<sup>83</sup> Pictet (ed.), *Commentary IV, Article 2*, 20–21; Zimmermann and Geiss, *Münchener Kommentar*, § 8 VStGB, mn 99. See also Kleffner, in: Fleck (ed.), *Handbook IHL* (3<sup>rd</sup> ed. 2013) 44–46. For a discussion of when a situation of occupation exists, see Ferraro (2012) 885 *IRRC* 133 *et seq.*; see also ICJ, *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*, *Advisory Opinion*, 9 July 2004, para 78; ICJ, *Armed Activities on the Territory of the Congo* (DRC v. Uganda), Judgement, 19 December 2005, paras. 172–177; Ambos, *Treatise on ICL II* (2014) 138–40; Gasser and Dörmann, in: Fleck (ed.), *Handbook IHL* (3<sup>rd</sup> ed., 2013) 268–74; von Glahn, *The Occupation of Enemy Territory: A Commentary on the Law and Practice of Belligerent Occupation* (1957), 28–29; Dinstein, *The International Law of Belligerent Occupation* (2009) 42 *et seq.*; Zwanenburg, ‘The Law of Occupation Revisited: The Beginning of an Occupation’, (2007) *YbIHL* 10 109 and 128–9; Bothe (2006) 34 *Collegium*, 26 *et seq.* Relevant ICTY case law can be found in *Prosecutor v. Naletilić and Martinović*, IT-98-34-T, Judgement, Trial Chamber, 31 March 2003, para. 215 *et seq.*; *Prosecutor v. Prlić et al.*, IT-04-74-T, Judgement, volume I, Trial Chamber, 29 May 2013, paras. 87 *et seq.*

<sup>84</sup> For an overview of the relevant case law see Dörmann, *Elements of War Crimes* (2003) 23–24. In *Prosecutor v. Tadić*, IT-94-1-A, Judgement, Appeals Chamber, 7 May 1997, paras. 137–141, the Appeals Chamber found that ‘three distinct criteria could be applied, depending on the nature of the entity in question, to establish that participants in an internal conflict had acted on behalf of another State, thereby lending an international character to the conflict. These are the criteria of: (a) overall control (for armed groups acting on behalf of another State); (b) specific instructions or public approval *a posteriori* (for individuals acting alone or militarily unorganised groups); and (c) assimilation of individuals to State organs on account of their actual behaviour within the structure of the said State’, see *Prosecutor v. Prlić et al.*, IT-04-74-T, Judgement, Volume I, Trial Chamber, 29 May 2013, para. 86. The ICC has also accepted the ‘overall control’ test in *Prosecutor v. Lubanga Dyilo*, ICC-01/04-01/06, Judgement pursuant to Article 74 of the Statute, Trial Chamber I, 14 March 2012, para. 211; see also in the same case the Pre-Trial Chamber, paras. 209–211. See also ICJ, *Application of the Convention on the Prevention and Punishment of the Crime of Genocide* (Bosnia and Herzegovina v. Serbia and Montenegro) Judgment, 26 February 2007, para. 404. While the ICJ applies an effective control test for the purposes of state responsibility, it also noted: ‘insofar as the overall control test is employed to determine whether or not an armed conflict is international ..., it may well be that the test is applicable and suitable’. For a critical assessment of the overall test see Sassòli and Olson (2000) 839 *IRRevC* 733. See also Ambos, *Treatise on ICL II* (2014) 135–7.

intervenes in a preexisting non-international conflict on the side of the government against (an) armed opposition group(s) the character of the conflict remains non-international.

As indicated in the *chapeau* to article 8 para 2 (a) of the ICC Statute, grave breaches must be committed ‘against persons or property protected under the provisions of the relevant Geneva Convention’. The war crimes defined in article 8 para 2 (a) (i)-(iii) and (v)-(viii) ICC Statute comprise the prohibited acts committed against persons protected under the Geneva Conventions. Each of the Geneva Conventions contains several provisions listing protected persons:<sup>85</sup>

- Convention I, articles 13, 15, 24–27;
- Convention II, articles 12, 13, 36–37;
- Convention III, articles 4, 33;
- Convention IV, articles 4, 13, 20.

Persons not entitled to the protections under the First, Second or Third Conventions are necessarily protected by the Fourth Convention, provided they fulfil the nationality criteria mentioned therein, *i. e.* essentially to be of a different nationality than that of the party in whose hands they are.<sup>86</sup> The ICTY in its consistent case law has held that the notion of protected persons in the sense of the Fourth Convention should not be interpreted strictly. Rather than nationality in the legal sense, what counts are bonds demonstrating effective allegiance to a party to an armed conflict, such as ethnicity.<sup>87</sup>

In the case of article 8 para 2 (a) (iv) of the Statute, the acts or omissions must be committed against property regarded as protected under the Geneva Conventions. ‘Protected property’ is not defined in the Conventions. Instead, the Conventions contain a description of property that cannot be attacked, destroyed or appropriated. Without being exhaustive, the following provisions in particular should be mentioned:

- Convention I, articles 19, 20, 33–36;
- Convention II, articles 22, 24, 25, 27;
- Convention IV, articles 18, 19, 21, 22, 33, 53, 57.<sup>88</sup>

In brief, as far as the grave breaches provisions of the Geneva Conventions are concerned:

- the prohibited act must be listed as a grave breach in one of the four Geneva Conventions;
- it must be committed in a situation when common article 2 of the Geneva Conventions applies, that is, in the context of an international armed conflict, including military occupation;
- by a perpetrator, civilian or military, linked to one side of the conflict;<sup>89</sup> and
- against persons or property protected under a Geneva Convention listing the prohibited act as a grave breach.<sup>90</sup>

<sup>85</sup> The grave breaches under the Geneva Conventions have been supplemented by article 85 para 2 of Add. Prot. I to cover a slightly broader range of persons: ‘Acts described as grave breaches in the Conventions are grave breaches of this Protocol if committed against persons in the power of an adverse Party protected by articles 44, 45 and 73 of this Protocol, or against the wounded, sick and shipwrecked of the adverse Party who are protected by this Protocol, or against those medical or religious personnel, medical units or medical transports which are under the control of the adverse Party and are protected by this Protocol’.

<sup>86</sup> Dörmann (2003) 879 *IRevRC* 48 *et seq.*; see also *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgement, Trial Chamber, 16 November 1998, para 271; German Federal Ministry of Defence, *Joint Service Regulation (ZDv) 15/2, Law of Armed Conflict – Manual* – (May 2013), para 341.

<sup>87</sup> For an overview of the relevant case law from the ICTY see Dörmann, *Elements of War Crimes* (2003) 29–32. The ICC has adopted this approach as well in *Prosecutor v. Katanga and Ngudjolo Chui*, ICC-01/04-01/07, Judgement, Pre-Trial Chamber, 30 September 2008, paras. 289 *et seq.* Also Ambos, *Treatise on ICL II* (2014) 149. For a critical assessment see Sassòli and Olson (2000) 839 *IRevRC* 733; Quéguiner (2003) 850 *IRevRC* 299 *et seq.*

<sup>88</sup> *Prosecutor v. Tadić*, IT-94-1-AR72, Decision on the Defence Motion for Interlocutory Appeal, Appeals Chamber, 2 October 1995, para. 81. See also Pictet (ed.), *Commentary IV, Article 147*, 597.

<sup>89</sup> Not only military personnel, but also civilians can commit grave breaches during an international armed conflict. Since WW II civilians have been found guilty of war crimes, *e.g.* members of government, including heads of State, party officials and administrators, industrialists and business men, judges and prosecutors, doctors and nurses or concentration camp inmates with indisputable civilian status, see Dörmann, *Elements of War Crimes*, 34 *et seq.* with references to relevant case law; see also Ambos, *Treatise on ICL II* (2014) 145.

<sup>90</sup> For example, unlawful confinement is a grave breach of the Fourth Geneva Convention but not of the Third Convention. On the protected objects see also Ambos, *Treatise on ICL II* (2014) 150–2.

- 64 In general, the Geneva Conventions are concerned with the protection of victims of war who are under the control of the party to the conflict with which the perpetrator is linked. The Conventions by and large do not regulate methods and means of warfare or what might be regarded as long distance killing, e.g. by artillery, missiles, air delivered weapons, etc.

### 1. Clarifications in the Elements of Crimes

- 65 As indicated in the previous section, grave breaches of the Geneva Conventions are acts committed in the context of an international armed conflict, including occupation, against persons or property protected under the relevant provisions of the Conventions. Two elements can be derived from this fact: first, the context in which the crimes must be committed and, second, the persons or property against whom or which the crimes must be committed. These two elements lay down the subject matter jurisdiction for all war crimes under article 8 para 2 (a) of the ICC Statute. Consequently, these elements and the accompanying mental elements were drafted in the same way for all the crimes in this section of article 8.

### 2. Elements describing the context

- 66 – The conduct took place in the context of and was associated with an international armed conflict.<sup>[34]</sup>
- The perpetrator was aware of factual circumstances that established the existence of an armed conflict.

<sup>[34]</sup>The term ‘international armed conflict’ includes military occupation. This footnote also applies to the corresponding element in each crime under article 8 (2)(a).

- 67 The notion of an international armed conflict is not defined in the Elements. For that purpose, recourse must be made to common article 2 of the four Geneva Conventions. In line with that article, footnote 34 of the Elements of Crimes emphasises that the term ‘international armed conflict’ includes military occupation.
- 68 Considerable importance has been given to describing the nexus which must exist between the conduct of the perpetrator and the international armed conflict as well as to the question of a possible mental element which would be linked to the element describing the context.
- 69 The words ‘in the context of and was associated with’ an armed conflict are meant to draw the distinction between war crimes and ordinary criminal behavior and to clarify that certain war crimes can be committed after the end of a conflict/the general close of military operations (for example, if a prisoner of war is not released after the end of active hostilities and is tortured then, the conduct would still be prohibited by the Geneva Conventions and could still constitute the war crime of torture, see article 5 GC III). This formulation is largely derived from the case law of the *ad hoc* Tribunals.<sup>91</sup>
- 70 The words ‘associated with’ were meant to reflect the case law of the *ad hoc* Tribunals which states that a sufficient/close/obvious nexus<sup>92</sup> must be established between the offences and the armed conflict.<sup>93</sup> Acts unrelated to an armed conflict are not considered to be war

<sup>91</sup> *Prosecutor v. Tadić*, IT-94-1-AR72, Decision on the Defence Motion for Interlocutory Appeal, Appeals Chamber, 2 October 1995, para. 68.

<sup>92</sup> See *Prosecutor v. Mrkšić et al.*, IT-95-13/1-T, Judgement, Trial Chamber, 27 September 2007, para 423; *Prosecutor v. Simić*, IT-95-9-T, Judgement, Trial Chamber, 17 October 2003, para 105; *Prosecutor v. Delalić et al.*, IT-96-21-A, Judgement, Appeals Chamber, 20 February 2001, para 193; *Prosecutor v. Tadić*, IT 94-1-T, Opinion and Judgement, Trial Chamber, 7 May 1997, para 573; *Prosecutor v. Lubanga Dyilo*, ICC-01/04-01/06, Judgement, Trial Chamber I, 14 March 2012, para 571. See also Zimmermann and Geiss, *Münchener Kommentar*, § 8 VStGB, mn 119; Werle and Jessberger, *Principles* (2014) 422-5; Ambos, *Treatise on ICL II* (2014) 140-3.

<sup>93</sup> The addition of the words ‘in association with’ in the Elements of Crimes was contested by some delegations. It was argued *i.a.* that they were redundant because they were already included in the requirement ‘in the context of’. For a discussion of the *ad hoc* Tribunals’ case law on the nexus requirement, see Mettraux, *International Crimes and the Ad Hoc Tribunals* (2005) 38 *et seq.*



crimes.<sup>94</sup> The required connection does not necessarily imply a strict geographical or temporal coincidence between the acts of the perpetrator and the armed conflict.<sup>95</sup> As a consequence, the acts need not necessarily be committed in the course of fighting or the takeover of a town.<sup>96</sup> The close connection between the acts and the armed conflict may exist even if substantial clashes were not occurring in the region at the time and place where the crimes were allegedly committed.<sup>97</sup> It suffices that the acts be closely related to the hostilities occurring in other parts of the territories controlled by the parties to the conflict.<sup>98</sup>

Agreement on the mental element linked to the element describing the context could only be reached after long discussions. The question of whether a mental element should accompany the element describing the context at all and, if yes, what kind of mental coverage would be required, in particular whether the article 30 ICC Statute standard would be applicable, was very controversial. Applying the full article 30 standard would have probably required the perpetrator to be aware of the existence of an armed conflict as well as of its international character. The latter requirement especially was rejected by almost all delegations.<sup>99</sup>

<sup>94</sup> In one judgement the ICTY has given the following additional indication:

‘What ultimately distinguishes a war crime from a purely domestic offence is that a war crime is shaped by or dependent upon the environment – the armed conflict – in which it is committed. It need not have been planned or supported by some form of policy. The armed conflict need not have been causal to the commission of the crime, but the existence of an armed conflict must, at a minimum, have played a substantial part in the perpetrator’s ability to commit it, his decision to commit it, the manner in which it was committed or the purpose for which it was committed. Hence, if it can be established, as in the present case, that the perpetrator acted in furtherance of or under the guise of the armed conflict, it would be sufficient to conclude that his acts were closely related to the armed conflict. ...’

In determining whether or not the act in question is sufficiently related to the armed conflict, the Trial Chamber may take into account, inter alia, the following factors: the fact that the perpetrator is a combatant; the fact that the victim is a non-combatant; the fact that the victim is a member of the opposing party; the fact that the act may be said to serve the ultimate goal of a military campaign; and the fact that the crime is committed as part of or in the context of the perpetrator’s official duties’.

*Prosecutor v. Kunarac et al.*, IT-96-23-A & IT-96-23/1-A, Judgement, Appeals Chamber, 12 June 2002, paras. 58 *et seq.*; *Prosecutor v. Mrkšić et al.*, IT-95-13/1-T, Trial Judgement, 27 September 2007, para 423; *Prosecutor v. Sesay*, SCSL-04-15-T, Judgement, Trial Chamber, 26 October 2009, para 101; *Prosecutor v. Taylor*, SCSL-03-01-T, Judgement, Trial Chamber, 18 May 2012, para 567; *Prosecutor v. Katanga and Ngudjolo Chui*, ICC-01/04-01/07, Pre-Trial Chamber, 30 September 2008, para. 382; crit. of a too broad approach however Ambos, *Treatise on ICL II* (2014) 142-3; see also Werle and Jessberger, *Principles* (2014) 422-5.

<sup>95</sup> See Mettraux, *International Crimes and the Ad Hoc Tribunals*, 40.

<sup>96</sup> In the *Brđanin* case, the ICTY Appeals Chamber found that ‘the Trial Chamber clearly established the existence of an international armed conflict and furthermore reasonably concluded that the rapes in Teslić, committed as they were during weapons searches, were committed in the context of an armed conflict and were not “individual domestic crimes” as suggested by Brđanin’. *Prosecutor v. Brđanin*, IT-99-36-A, Judgement, Appeals Chamber, 3 April 2007, para 256.

<sup>97</sup> *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgement, Trial Chamber, 16 November 1998, paras 196–197; *Prosecutor v. Tadić*, IT-94-1-T, Judgement, Trial Chamber, 7 May 1997, para 573.

<sup>98</sup> *Prosecutor v. Tadić*, IT-94-1-T, Judgement, Trial Chamber, 7 May 1997, para 573; *Prosecutor v. Kunarac et al.*, IT-96-23T & IT-96-23/1-T, Judgement, Trial Chamber, 22 February 2001, para 568. See also *Prosecutor v. Stakić*, IT-97-24-A, Judgement, Appeals Chamber, 22 March 2006, para 342; *Prosecutor v. Rutaganda*, ICTR-96-3-A, Judgement, Appeals Chamber, 26 May 2003, para 570.

<sup>99</sup> Up until 2006, the *ad hoc* Tribunals have used an objective test to determine the existence and character of an armed conflict, as well as the nexus between the conduct of the perpetrator and the conflict. Taking this approach, the ICTY in particular, has apparently treated this element as being merely jurisdictional. For example, in the *Tadić* Judgement the Trial Chamber held that: ‘The existence of an armed conflict or occupation and the applicability of international humanitarian law to the territory is not sufficient to create international jurisdiction over each and every serious crime committed in the territory of the former Yugoslavia. For a crime to fall within the jurisdiction of the International Tribunal a sufficient nexus must be established between the alleged offence and the armed conflict which gives rise to the applicability of international humanitarian law’, *Prosecutor v. Tadić*, IT-94-1-T, Judgement, Trial Chamber, 7 May 1997, para 572. See also Jones, *The Practice of the International Criminal Tribunals for the Former Yugoslavia and Rwanda* (2000) 51. In 2006, the ICTY Appeals Chamber changed its view in *Naletilić and Martinović*. It found that ‘the existence and international character of an armed conflict are both jurisdictional prerequisites and substantive elements of crimes [...] the Prosecution has to show that the accused knew that his crimes had a nexus to an international armed conflict or at least that he had knowledge of the factual circumstances later bringing the Judges to the conclusion that the armed conflict was an international one’,

- 72 In the end, States negotiating the Elements were not prepared to accept a purely objective test, but felt that some kind of awareness of a nexus between the conduct and an armed conflict was necessary. The mental element ‘[t]he perpetrator was aware of factual circumstances that established the existence of an armed conflict’<sup>100</sup> must be read in conjunction with the introduction to the whole section on war crimes. It contains the following interpretative clarification, which is intended to be an integral part of the set of elements:

‘With respect to [the] elements listed for each crime:

There is no requirement for a legal evaluation by the perpetrator as to the existence of an armed conflict or its character as international or non-international;

In that context there is no requirement for awareness by the perpetrator of the facts that established the character of the conflict as international or non-international;

There is only a requirement for the awareness of the factual circumstances that established the existence of an armed conflict that is implicit in the terms “took place in the context of and was associated with”.

- 73 The first two paragraphs of the Introduction are drafted in a very straightforward and unambiguous manner. The third paragraph on the other hand remained rather ambiguous. The general idea was that some form of knowledge is required, which is below the article 30 standard.<sup>101</sup>

### 3. Elements relating to persons and property protected under the Geneva Conventions

- 74 – Such person or persons/property were/was protected under one or more of the Geneva Conventions of 1949.
- The perpetrator was aware of the factual circumstances that established that protected status.<sup>[32] [33]</sup>

<sup>[32]</sup> This mental element recognizes the interplay between articles 30 and 32. This footnote also applies to the corresponding element in each crime under article 8(2) (a), and to the element in other crimes in article 8 para 2) concerning the awareness of factual circumstances that establish the status of persons or property protected under the relevant international law of armed conflict.

<sup>[33]</sup> With respect to nationality, it is understood that the perpetrator needs only to know that the victim belonged to an adverse party to the conflict. This footnote also applies to the corresponding element in each crime under article 8 (2) (a).

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*Prosecutor v. Naletilić and Martinović*, IT-98-34-A, Judgement, Appeals Chamber, 3 May 2006, paras. 109–122. The Chamber went on to say: ‘the perpetrator only needs to be aware of factual circumstances establishing the armed conflict and its international or internal character’ (para 119). Some national courts did not require proof that the perpetrator was aware of the existence of the armed conflict, the nexus or the protected status of the victim *Prosecutor’s Office of BiH v. Andrun*, X-KRŽ-05/42, Verdict (BiH Ct, App. Div., 19 Aug. 2008) pp. 14–18 available at <[http://www.asser.nl/upload/documents/DomCLIC/Docs/NLP/BiH/Andrun\\_second\\_instance\\_verdict\\_19-8-2008.pdf](http://www.asser.nl/upload/documents/DomCLIC/Docs/NLP/BiH/Andrun_second_instance_verdict_19-8-2008.pdf)>. See for a discussion on the objective and subjective approaches (preferring the latter) Ambos, *Treatise on ICL I* (2013) 283–8 and id., *Treatise on ICL II* (2014) 143–4.

<sup>100</sup> The original proposal on the mental element read as follows: ‘The accused was aware of the factual circumstances that established the existence of an armed conflict’ (emphasis added). The direct article was dropped in order to indicate that the perpetrator needs only to know some factual circumstances, but definitely not all the factual circumstances that would permit a judge to conclude that an armed conflict was going on.

<sup>101</sup> For a more detailed account of the *travaux préparatoires* see Dörmann, *Elements of War Crimes* (2003) 18 *et seq.*; Werle and Jessberger, *Principles* (2014) 425–6 take a similar approach as the one reflected in the Elements of Crimes, *i.e.* no necessity to be aware of the international or non-international character of an armed conflict, nor to be able to classify the conflict correctly from a legal point of view, only awareness of actual circumstances from which the existence of an armed conflict can be deduced. Werle and Jessberger make a distinction for situations, in which a particular conduct only amounts to a war crime when committed in the context of an international armed conflict. In such situation the perpetrator must be aware of the circumstances establishing the international character of the conflict. Zimmermann and Geiss, *Münchener Kommentar*, § 8 VStGB (2013) mn 206–7, require knowledge of the nexus and knowledge of the factual circumstances that are the basis for the existence of an armed conflict, but no requirement to classify the conflict correctly from a legal point of view. In a similar vein Ambos, *Treatise on ICL II* (2014) 143–4.

The Elements do not offer further clarification as to the definition of persons or property protected by the four Geneva Conventions. The Elements must therefore be interpreted in conjunction with the provisions of the Conventions mentioned above (see margin Nos. 60 and 62). The two footnotes explain in more detail the degree of awareness that the perpetrator must have. Footnote 32 clarifies that the perpetrator need not have come to the legally correct assessment that the victim of his/her conduct was a protected person as defined in the Geneva Conventions. A mistake of law defence is thus excluded. While the Elements of Crimes require awareness of the factual circumstances that establish the protected status, the ICTY, when it dealt with grave breaches of the Geneva Conventions, has not required any proof that the alleged perpetrator was aware of the protected status of the victim<sup>102</sup> or, in case of attacks against civilians or murder of a person protected by common article 3, relied on the standard that the perpetrator should have been aware of the protected status.<sup>103</sup>

Footnote 33 of the Elements of Crimes is particularly relevant when prohibited acts are committed against protected persons under article 4 of the Fourth Geneva Convention. The nationality of the person is decisive for protected person status. For example, persons who have the same nationality of the Party to the armed conflict in whose hands they find themselves or the nationality of co-belligerents are not protected by the Convention. In certain situations, however, nationality is not obvious to assess at the moment the prohibited act is committed. It is therefore sufficient that the perpetrator was aware of the fact that the victim belonged to the adverse party, which captures the essence of the protections under the Geneva Conventions.

These common elements apply to all the crimes covered in this section and are therefore not repeated in the ensuing parts dealing with specific crimes.

## II. Grave breaches in detail

### 1. Paragraph 2(a)(i): ‘Wilful killing’

Wilful killing of a protected person is a grave breach under all the Geneva Conventions (articles 50 GC I, 51 GC II, 130 GC III and 147 GC IV). The criminalization is based on the explicit prohibitions in articles 12 of the First Geneva Convention, 12 of the Second Geneva Convention, 13 of the Third Geneva Convention and 32 of the Fourth Geneva Convention.<sup>104</sup> In addition to the four common elements (see margin Nos. 66 and 74), the Elements of Crimes only contain one specific element describing the *actus reus*:<sup>105</sup>

<sup>102</sup> *Prosecutor v. Tadić*, IT-94-1-T, Judgement, Trial Chamber, 7 May 1997, para. 577; *Prosecutor v. Tadić*, IT-94-1-A, Judgement, Appeals Chamber, 15 July 1999, paras 163–166; *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-T, Judgement, Trial Chamber, 26 February 2001, paras 147–160; *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-A, Judgement, Appeals Chamber, 17 December 2004, paras 322–331; *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgement, Trial Chamber, 16 November 1998, paras 244–277; *Prosecutor v. Delalić et al.*, Case IT-96-21-A, Judgement, Appeals Chamber, 20 February 2001, paras 52–106; *Prosecutor v. Blaškić*, IT-95-14-T, Judgement, Trial Chamber, paras 125–133; *Prosecutor v. Blaškić*, IT-95-14-A, Judgement, Appeals Chamber, paras 167–182; *Prosecutor v. Aleksovski*, IT-95-14/1-A, Judgement, Appeals Chamber, 24 March 2000, para. 151; *Prosecutor v. Naletilić and Martinović*, IT-98-34-T, Judgement, Trial Chamber, 31 March 2003, para 203–208; *Prosecutor v. Brđanin*, IT-99-36-T, Judgement, Trial Chamber, 1 September 2004, paras 125, 155 and 585; *Prosecutor v. Prlić et al.*, IT-04-74-T, Judgement, Trial Chamber, 29 May 2013, paras. 97–105.

<sup>103</sup> *Prosecutor v. Halilović*, IT-01-48-T, Judgement, Trial Chamber, 16 November 2005, para 36; *Prosecutor v. Milutinović*, IT-05-87-T, Judgement, Trial Chamber, 26 February 2009, para 134.

<sup>104</sup> For further discussion of the origins and the customary nature of the prohibition, see Henckaerts and Doswald-Beck, *Customary IHL* (2005) 311, 574.

<sup>105</sup> The specific elements of the crime of wilful killing or murder were found to be identical in international case law whether the conduct amounted to a grave breach, a war crime or a crime against humanity, see e.g. *Prosecutor v. Prlić et al.*, IT-04-74-T, Judgement, Trial Chamber, 29 May 2013, para 110. For murder as a war crime and murder as a crime against humanity, see for example *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgement, Trial Chamber, 16 November 1998, para 422; *Prosecutor v. Delalić et al.*, IT-96-21-A, Judgement, Appeals Chamber, 20 February 2001, para 423; *Prosecutor v. Stanišić and Župljanin*, IT-08-91-T, Judgement, Trial Chamber, 27 March 2013, para 42; *Prosecutor v. Tolimir*, IT-05-88-2-T, Judgement, Trial Chamber, 12 December 2012, para 714; *Prosecutor v. Popović*, IT-05-88-T, Judgement, Trial Chamber, 10 June 2010, para 787; *Prosecutor v. Lukić and Lukić*, IT-98-32/1-T, Judgement, Trial Chamber, 20 July 2009, para 903;

- The perpetrator killed one or more persons.
- 78 During the negotiations of the Elements, on the basis of the different text proposals, there was some debate as to whether the term ‘killed’ or the term ‘caused death’ or both should be used. In the end, States did not see any substantive difference and expressed this understanding in a footnote, which reads: “The term “killed” is interchangeable with the term “caused death””.
- 79 The term ‘killed’ creates the link to the ‘title’ of the crime, and the term ‘caused death’ was felt necessary to clarify the fact that this crime also covers situations such as the reduction of rations for prisoners of war to such an extent that they starve to death. Both terms are used in the relevant case law of the *ad hoc* Tribunals.<sup>106</sup>
- 80 The war crime can be committed by act and omission as clarified by international case law.<sup>107</sup>
- 81 The notion of wilful killing is limited to those acts or omissions which are contrary to existing treaty and customary law of armed conflict.<sup>108</sup>
- 82 No specific mental element has been added, which means that in accordance with paragraph 2 to the General Introduction to the Elements of Crimes, the standard of article 30 of the Statute applies, *i.e.* the perpetrator must have meant to kill a person and meant to cause the death or have been aware that the death will occur in the ordinary course of events.
- 83 However, the Elements are in conformity with the Statute only if the article 30 standard and the standard of ‘wilful’ are identical. As indicated in article 9 para 3 of the Statute the Elements must not deviate from the Statute. ‘Wilfully’ is traditionally understood as covering

*Prosecutor v. Milutinović*, IT-05-87-T, Judgement, Trial Chamber, 26 February 2009, para 136; *Prosecutor v. Martić*, IT-95-11-T, Judgement, Trial Chamber, 12 June 2007, para 58; *Prosecutor v. Blagojević and Jokić*, IT-02-60-T, Judgement, Trial Chamber, 17 January 2005, para 556; for murder and wilful killing as a grave breach, see in particular, *Prosecutor v. Orić*, IT-03-68-T, Judgement, Trial Chamber, 30 June 2006, para 345 and *Prosecutor v. Brđanin*, IT-99-36-T, Judgement, Trial Chamber, 1 September 2004, para. 380. See also Ambos, *Treatise on ICL II* (2014), 164–5; Werle and Jessberger, *Principles* (2014) 431.

<sup>106</sup> *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgement, Trial Chamber, 16 November 1998, para 424. See also, *Prosecutor v. Blaškić*, IT-95-14-T, Judgement, Trial Chamber, 3 March 2000, para 153.

<sup>107</sup> For a discussion on the material element of the crime of murder or wilful killing, see *e.g.* *Prosecutor v. Prlić et al.*, IT-04-74-T, Judgement, Trial Chamber, 29 May 2013, para 111; *Prosecutor v. Delić*, IT-04-83-T, Judgement, Trial Chamber, 15 September 2008, para 46; *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-A, Judgement, Appeals Chamber, 17 December 2004, para 36; *Prosecutor v. Hadžihasanović*, IT-01-47-T, Judgement, Trial Chamber, 15 March 2006, para 31; *Prosecutor v. Galić* Appeal Judgement, para 147; *Prosecutor v. Kvočka*, IT-98-30/1-A, Judgement, Appeals Chamber, 28 February 2005, para 261; *Prosecutor v. Halilović*, IT-01-48-T, Judgement, Trial Chamber, 16 November 2005, para 35; *Prosecutor v. Brđanin*, IT-99-36-T, Judgement, Trial Chamber, 1 September 2004, para 381; *Prosecutor v. D. Milošević*, IT-98-29/1-A, Judgement, Appeals Chamber, 12 November 2009, para 108; *Prosecutor v. Mrkšić*, IT-95-13/1-T, Judgement, Trial Chamber, 27 September 2007, para. 486; *Prosecutor v. Krajišnik*, IT-00-39-T, Judgement, Trial Chamber, 27 September 2006, para 715; *Prosecutor v. Limaj*, IT-03-66-T, Judgement, Trial Chamber, 30 November 2005, para 241; *Prosecutor v. Blagojević and Jokić*, IT-02-60-T, Judgement, Trial Chamber, 17 January 2005, para 556; *Prosecutor v. Perišić*, IT-04-81-T, Judgement, Trial Chamber, 6 September 2011, para 102; *Prosecutor v. Gotovina*, IT-06-90-T, Judgement, Trial Chamber, 15 April 2011, para 1725; *Prosecutor v. Đorđević*, IT-05-87/1-T, Trial Judgement, 23 February 2011, para 1708; *Prosecutor v. Milutinović*, IT-05-87-T, Judgement, Trial Chamber, 26 February 2009, para 137; *Prosecutor v. Nđindiliyimana*, ICTR-00-56-T, Judgement, Trial Chamber, 17 May 2011, para 6165; *Prosecutor v. Nyiramasuhuko*, ICTR-98-42-T, Judgement, Trial Chamber, 24 June 2011, para 6165; ECCC, *Kaing*, Judgement, Trial Chamber, 26 June 2010, para 331; *Prosecutor v. Sesay*, SCSL-04-15-T, Judgement, Trial Chamber, 2 March 2009, para 142; *Prosecutor v. Nizeyimana*, ICTR-2000-55C-T, Judgement, Trial Chamber, 19 June 2012, para 1552; *Prosecutor v. Zigiranyirazo*, ICTR-01-73-T, Judgement, Trial Chamber, 26 May 2008, para 442; SCSL, *Prosecutor v. Taylor*, SCSL-03-1-T, Judgement, Trial Chamber, 26 April 2012, para 412; *Prosecutor v. Brima*, SCSL-04-16-T, Judgement, Trial Chamber, 20 June 2007, para 688; *Prosecutor v. Fofana and Kondewa*, SCSL-04-14-T, Judgement, Trial Chamber, 2 August 2007, para 146; *Prosecutor v. Bemba*, ICC-01/05-01/08, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor Against Jean-Pierre Bemba Gombo, 15 June 2009, paras. 132, 274; *Prosecutor v. Katanga et al.*, ICC-01/04-01/07, Decision on the Confirmation of Charges, 30 September 2008, para 287. In favor of the possibility of an omission also Ambos, *Treatise on ICL II* (2014), 165; Vöney, in: Fleck (ed.), *Handbook* (3<sup>rd</sup> ed., 2013) 672.

<sup>108</sup> Dörmann, *Elements of War Crimes*, 40–1.

both intent and recklessness.<sup>109</sup> The *ad hoc* Tribunals have interpreted ‘wilful’ as requiring that the death was caused:

- by a perpetrator who acted either:
- intentionally; or
- recklessly, that is, the perpetrator intended to cause serious/grievous bodily harm and was reasonably aware that death was a likely consequence of his or her actions.<sup>110</sup>

Death, which is the accidental, unforeseeable consequence of the actions of the accused, is 84 therefore not covered. Premeditation is not required as *mens rea*.<sup>111</sup>

Both the *mens rea* and the *actus reus* can be inferred either directly or circumstantially 85 from the evidence in the case.<sup>112</sup> With regard to the latter, international courts and tribunals have considered that the death can be proved beyond reasonable doubt even if the body of the victim cannot be recovered.<sup>113</sup>

<sup>109</sup> See Zimmerman, in: Sandoz *et al.* (eds.), *Commentary, Article 85*, para 3474; Ambos, *Treatise on ICL II* (2014), 165; Werle and Jessberger, *Principles* (2014) 426. The French version of the commentary uses the concept of ‘dol éventuel’ for recklessness. See also the ICTY Trial Judgement in *Prosecutor v. Blaškić*, IT-95-14-T, Judgement, Trial Chamber, 3 March 2000, which affirmed: ‘The *mens rea* constituting all violations of Article 2 of the Statute [containing the list of grave breaches of the four Geneva Conventions] includes both guilty intent and recklessness which may be likened to serious criminal negligence’, para 152.

<sup>110</sup> See *e.g. Prosecutor v. Kordić and Čerkez*, IT-95-14/2-A, Judgement, Appeals Chamber, 17 December 2004, para 36. The Chambers of the Tribunal have at times used slight variations in the wording of the concept of recklessness for the purpose of the crime of wilful killing, see *e.g. Prosecutor v. Prlić et al.*, IT-04-74-T, Judgement, Volume I, Trial Chamber, 29 May 2013, para 112; *Prosecutor v. Delalić et al.*, IT-96-21-A, Judgement, Appeals Chamber, 20 February 2001, para 422; *Prosecutor v. Krnojelac*, IT-97-25-T, Judgement, Trial Chamber, 15 March 2002, para 324; *Prosecutor v. Blaškić*, IT-95-14-T, Judgement, Trial Chamber, 3 March 2000, para 217; *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-T, Judgement, Trial Chamber, 26 February 2001, paras 235–236; *Prosecutor v. Vasiljević*, IT-98-32-T, Judgement, Trial Chamber, 29 November 2002, para 205; *Prosecutor v. Tolimir*, IT-05-88/2-T, Judgement, Trial Chamber II, 12 December 2012, para 716; *Prosecutor v. Perišić*, IT-04-81-T, Judgement, Trial Chamber I, 6 September 2011, para 102; *Prosecutor v. Blagojević and Jokić*, IT-02-60-T, Judgement, Trial Chamber I, 17 January 2005, para 556; *Prosecutor v. Blaškić*, IT-95-14-T, Judgement, Trial Chamber, 3 March 2000, para 153; *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgement, Trial Chamber, 16 November 1998, paras. 437 and 439; *Prosecutor v. Naletilić and Martinović*, IT-98-34-T, Judgement, Trial Chamber, 31 March 2003, para 248; *Prosecutor v. Sesay*, SCSL-04-15-T, Judgement, Trial Chamber, 26 October 2009, para 142; *Prosecutor v. Brima Kamara et al.*, SCSL-04-16-T, Judgement, Trial Chamber, 20 June 2007, para 688; *Prosecutor v. Fofana and Kondewa*, SCSL-04-14-T, Judgement, Trial Chamber, 2 August 2007, para 146; *Prosecutor v. Brđanin*, IT-99-36-T, Judgement, Trial Chamber, 1 September 2004, paras. 381, 386; in that judgement the ICTY confirmed the findings of *Prosecutor v. Stakić*, IT-97-24-T, Judgement, Trial Chamber, 31 July 2003 that both a *dolus directus* and *dolus eventualis* are sufficient to establish the crime. The threshold of *dolus eventualis* entails the concept of recklessness, but not that of negligence or gross negligence. Other Chambers speak of ‘indirect intent’ which ‘comprises the perpetrator’s knowledge that the death of the victim was the probable or likely consequence of his act or omission’, *e.g. Prosecutor v. Mucić*, IT-96-21-T, Judgement, Trial Chamber, 16 November 1998, para 435; *Prosecutor v. Perišić*, IT-04-81-T, Judgement, Trial Chamber, 6 September 2011, para 104; *Prosecutor v. Delić*, IT-04-83-T, Judgement, Trial Chamber, 15 September 2008, para 48; *Prosecutor v. Strugar*, IT-01-42-T, Judgement, Trial Chamber, 31 January 2005, para 235. See generally with regard to article 30 ICC Statute Ambos, *Treatise on ICL I* (2013) 276–8; Werle and Jessberger, *Principles* (2014) 426–7.

<sup>111</sup> *Prosecutor v. Ndindiliyimana*, ICTR-00-56-T, Judgement, Trial Chamber, 17 May 2011, para 2143; *Prosecutor v. Brima*, SCSL-04-16-T, Judgement, Trial Chamber, 20 June 2007, para 690; *Prosecutor v. Orić*, IT-03-68-T, Judgement, Trial Chamber, 30 June 2006, para 348; *Prosecutor v. Brđanin*, IT-99-36-T, Judgement, Trial Chamber, 1 September 2004, para 386.

<sup>112</sup> *Prosecutor v. Brđanin*, IT-99-36-T, Judgement, Trial Chamber, 1 September 2004, para 387. See also para 3 of the General Introduction to the Elements of Crimes.

<sup>113</sup> See for example *Prosecutor v. Krnojelac*, IT-97-25-T, Judgement, Trial Chamber, 15 March 2002, para 326; *Prosecutor v. Kvočka*, IT-98-30/1-A, Judgement, Appeals Chamber, 28 February 2005, para 260; *Prosecutor v. Dorđević*, IT-05-87/1-T, Trial Judgement, 23 February 2011, para 1708; *Prosecutor v. Bošković and Tarčulovski*, IT-04-82-T, Judgement, Trial Chamber, 10 July 2008, para 305; *Prosecutor v. Mrkić*, IT-95-13/1-T, Judgement, Trial Chamber, 27 September 2007, para 486; *Prosecutor v. Limaj*, IT-03-66-T, Judgement, Trial Chamber, 30 November 2005, para 241; *Prosecutor v. Brđanin*, IT-99-36-T, Judgement, Trial Chamber, 1 September 2004, para 383.



## 2. Paragraph 2(a)(ii): ‘Torture or inhuman treatment’

86 These acts or omissions are grave breaches under all of the Conventions (articles 50 GC I, 51 GC II, 130 GC III and 147 GC IV). They are prohibited with regard to all protected persons (see articles 12 GC I, 12 GC II, 13 GC III and 27, 32 GC IV).<sup>114</sup>

87 **a) Torture.** Torture is not specifically defined in any international humanitarian law treaty. It is however defined in other treaties, such as the Torture Convention of 1984, and as a crime against humanity in the Rome Statute (article 7 para 2 (e)). While there is no difference in the two definitions as to the requirement of inflicting severe physical or mental pain or suffering, the Torture Convention contains two further requirements, which are not included in the crime against humanity definition, namely that:

‘[the] pain or suffering, [must be] inflicted on a person for such purposes as obtaining [...] information or a confession, punishing [...], or intimidating or coercing [...], or for any reason based on discrimination of any kind,’

and the

‘pain or suffering [must be] inflicted by or at the instigation of or with the consent or acquiescence of a public official or other person acting in an official capacity’.<sup>115</sup>

88 Over the years, the *ad hoc* Tribunals have developed an extensive case law on the customary law definition of torture for the purposes of IHL. The jurisprudence evolved slightly over time, but always took the Torture Convention as guidance.<sup>116</sup> It always required the pain or suffering to be inflicted to obtain a specific prohibited purpose along the lines of the Torture Convention. It varied, however, as to whether the list of prohibited purposes was exhaustive or illustrative under customary international law. It also established that the requirement of official involvement under the Torture Convention and relevant under a human rights regime could not be applied as such in the context of international humanitarian law. States relied heavily on this jurisprudence when drafting elements for this war crime and this explains why the specific elements of torture as a crime against humanity and as a war crime are drafted differently. For the war crime, the Elements document therefore contains the following specific elements:

- (1) The perpetrator inflicted severe physical or mental pain or suffering upon one or more persons.
- (2) The perpetrator inflicted the pain or suffering for such purposes as: obtaining information or a confession, punishment, intimidation or coercion or for any reason based on discrimination of any kind.

89 This approach was largely confirmed in a judgement of the ICTY rendered after the end of the negotiations of the Preparatory Committee. In the *Kunarac et al.* case, the Trial Chamber held that:

‘Three elements of the definition of torture contained in the Torture Convention are, however, uncontentious and are accepted as representing the status of customary international law on the subject:

- (i) Torture consists of the infliction, by act or omission, of severe pain or suffering, whether physical or mental.
- (ii) This act or omission must be intentional.
- (iii) The act must be instrumental to another purpose, in the sense that the infliction of pain must be aimed at reaching a certain goal.

<sup>114</sup> For further discussion of the origins and the customary nature of the prohibition, see Henckaerts and Doswald-Beck, *Customary IHL* (2005) 315, 321, 574.

<sup>115</sup> See article 1 para 1 of the Torture Convention.

<sup>116</sup> See also, Mettraux, *International Crimes and the Ad Hoc Tribunals* (2005) 110 *et seq.*



On the other hand, [the following] elements remain contentious:

- (i) The list of purposes the pursuit of which could be regarded as illegitimate and coming within the realm of the definition of torture.  
[...]
- (iii) The requirement, if any, that the act be inflicted by or at the instigation of or with the consent or acquiescence of a public official or other person acting in an official capacity.

The Trial Chamber is satisfied that the following purposes have become part of customary international law: (a) obtaining information or a confession, (b) punishing, intimidating or coercing the victim or a third person, (c) discriminating, on any ground, against the victim or a third person. There are some doubts as to whether other purposes have come to be recognised under customary international law.

[...] The Trial Chamber concludes that the definition of torture under international humanitarian law does not comprise the same elements as the definition of torture generally applied under human rights law. In particular, the Trial Chamber is of the view that the presence of a state official or of any other authority-wielding person in the torture process is not necessary for the offence to be regarded as torture under international humanitarian law.<sup>117</sup>

In the same case, the ICTY Appeals Chamber confirmed ‘that the public official requirement 90 is not a requirement under customary international law in relation to the criminal responsibility of an individual for torture outside of the framework of the Torture Convention’.<sup>118</sup> Contrary to the cautious approach of the ICTY in, for example, the *Kunarac* Trial Chamber judgement, States, in line with other case law of the *ad hoc* Tribunals<sup>119</sup>, rejected explicitly the idea that the list of prohibited purposes from the Torture Convention should be construed as being exhaustive and therefore kept the words ‘for such purposes as’ in the Elements.<sup>120</sup>

As pointed out by the ICTY, there is no requirement that the conduct be *solely* perpetrated 91 for a prohibited purpose. It is therefore sufficient that the prohibited purpose is simply part of the motivation for the conduct and need not to be the predominant or sole purpose.<sup>121</sup> It

<sup>117</sup> *Prosecutor v. Kunarac et al.*, IT-96-23-T & IT-96-23/1-T, Judgement, Trial Chamber, 22 February 2001, paras. 483–96.

<sup>118</sup> *Prosecutor v. Kunarac et al.*, IT-96-23-T & IT-96-23/1-T, Judgement, Appeals Chamber, 12 June 2002, para 148. See also *Prosecutor v. Kvočka*, IT-98-30/1-A, Judgement, Appeals Chamber, 28 February 2005, para 284; *Prosecutor v. Limaj*, IT-03-66-T, Judgement, Trial Chamber, 30 November 2005, para 240; *Prosecutor v. Haradinaj*, IT-04-84bis-T, Retrial Judgement, Trial Chamber, 29 November 2012, para 419; *Prosecutor v. Mrkšić*, IT-95-13/1-T, Judgement, Trial Chamber, 27 September 2007, para 514; *Prosecutor v. Brđanin*, IT-99-36-T, Judgement, Trial Chamber, 1 September 2004, para 488; *Prosecutor v. Stanišić and Župljanin*, IT-08-91-T, Judgement, Trial Chamber, 27 March 2013, para 49.

<sup>119</sup> See e.g. *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgement, Trial Chamber, 16 November 1998, para 470; ICTY, *Prosecutor v. Limaj*, IT-03-66-T, Judgement, Trial Chamber, 30 November 2005, para 239; *Prosecutor v. Mrkšić*, IT-95-13/1-T, Judgement, Trial Chamber, 27 September 2007, para 515; *Prosecutor v. Haradinaj*, IT-04-84bis-T, Retrial Judgement, Trial Chamber, 29 November 2012, para 418; *Prosecutor v. Martić*, IT-95-11-T, Judgement, Trial Chamber, 12 June 2007, para 77; *Prosecutor v. Brđanin*, IT-99-36-T, Judgement, Trial Chamber, 1 September 2004, paras 486–7.

<sup>120</sup> See also Ambos, *Treatise on ICL II* (2014), 90, 165.

<sup>121</sup> *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgement, Trial Chamber, 16 November 1998, para 471. See also *Prosecutor v. Kunarac et al.*, IT-96-23-T & IT-96-23/1-T, Judgement, Appeals Chamber, 22 February 2001, para 155; *Prosecutor v. Brđanin*, IT-99-36-T, Judgement, Trial Chamber, 1 September 2004, paras. 484, 487; ICTY, *Prosecutor v. Kvočka*, IT-98-30/1-T, Judgement, Trial Chamber, 2 November 2001, para 153; *Prosecutor v. Krnojelac*, IT-97-25-T, Judgement, Trial Chamber, 15 March 2002, para 184; *Prosecutor v. Haradinaj*, IT-04-84-T, Judgement, Trial Chamber, 3 April 2008, para 128; *Prosecutor v. Haradinaj*, IT-04-84bis-T, Retrial Judgement, Trial Chamber, 29 November 2012, para 418; *Prosecutor v. Limaj*, IT-03-66-T, Judgement, Trial Chamber, Judgement, 30 November 2005, para 219; *Prosecutor v. Martić*, IT-95-11-T, Judgement, Trial Chamber, 12 June 2007, para 77; *Prosecutor v. Mrkšić*, IT-95-13/1-T, Judgement, Trial Chamber, 27 September 2007, para 515. In the specific case of rape, the ICTY Appeals Chamber held that it is irrelevant that the perpetrator may have had a different motivation, if he acted with the requisite intent and for one of the prohibited purposes, *Prosecutor v. Kunarac et al.*, IT-96-23T & IT-96-23/1-T, Judgement, Appeals Chamber, 12 June 2002, para 153 (re-affirmed in *Prosecutor v. Limaj*, IT-03-66-T, Judgement, Trial Chamber, 30 November 2005, para 238; *Prosecutor v. Mrkšić*, IT-95-13/1-T, Judgement, Trial Chamber, 27 September 2007, para 515. The Appeals Chamber held that ‘even if the perpetrator’s motivation is entirely sexual, it does not follow that the perpetrator does not have the intent to commit an act of torture or that his conduct does not cause severe pain or suffering, whether physical or mental, since such pain or suffering is a likely and logical consequence of his conduct ... in pursuance of one of the purposes prohibited by the definition of the crime of torture, in particular the purpose of discrimination’,

stated however as well that in the absence of such purpose even a very severe infliction of pain would not qualify as torture.<sup>122</sup>

- 92 If one compares the elements of torture and inhuman/cruel treatment in the Elements of Crimes, the purpose requirement is the only distinguishing feature. Thus, the elements do not follow the *ad hoc* Tribunals' case law, in which it is consistently indicated that 'the degree of suffering required to prove cruel or inhuman treatment was not as high as that required to sustain a charge of torture'.<sup>123</sup> The *ad hoc* Tribunals refer to 'severe' pain or suffering for the crime of torture and 'serious' pain or suffering for the crimes of inhuman/cruel treatment.<sup>124</sup> One may question – in the light of the consistent case law of the *ad hoc* Tribunals – whether the approach taken in the elements, *i. e.* to refer for both crimes to 'severe' pain or suffering is well established under customary international law.
- 93 The *ad hoc* Tribunals have not specifically identified the threshold level of suffering or pain to be inflicted for mistreatment to amount to torture.<sup>125</sup> It depends very much on the individual circumstances of each case.<sup>126</sup> The Tribunals have identified objective and subjective factors. In the *Brđanin* case the ICTY held as follows:

'In assessing the seriousness of any mistreatment, the objective severity of the harm inflicted must be considered, including the nature, purpose and consistency of the acts committed. Subjective criteria, such as the physical or mental condition of the victim, the effect of the treatment and, in some cases, factors such as the victim's age, sex, state of health and position of inferiority will also be relevant in assessing the gravity of the harm. Permanent injury is not required for torture, evidence of the suffering need not even be visible after the commission of the crime'.<sup>127</sup>

- 94 There is a wealth of case law from international criminal tribunals and post WW II trials that identify practices found to amount to the war crime or grave breach of torture.<sup>128</sup>

No mental element has been added to element 1. Therefore, the article 30 standard applies with regard to the prohibited conduct and consequences.<sup>129</sup> With regard to the purposes to

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*Prosecutor v. Kunarac et al.*, IT-96-23-T & IT-96-23/1-T, Judgement, Appeals Chamber, 12 June 2002, para 153. See also Ambos, *Treatise on ICL II* (2014) 90, 165; Werle and Jessberger, *Principles* (2014) 436.

<sup>122</sup> *Prosecutor v. Brđanin*, IT-99-36-T, Judgement, Trial Chamber, 1 September 2004, para 486.

<sup>123</sup> For example, *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgement, Trial Chamber, 16 November 1998, para 510; *Prosecutor v. Kvočka et al.*, IT-98-30/1-T, Judgement, Trial Chamber, 2 November 2001, para 161; *Prosecutor v. Brđanin*, IT-99-36-T, Judgement, Trial Chamber, 1 September 2004, para 483; *Prosecutor v. Naletilić and Martinović*, IT-98-34-T, Judgement, Trial Chamber, 31 March 2003, para 246.

<sup>124</sup> See for example *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgement, Trial Chamber, 16 November 1998, para. 543.

<sup>125</sup> For example, *Prosecutor v. Kunarac et al.*, IT-96-23-A & IT-96-23/1-A, Judgement, Appeals Chamber, 12 June 2002, para 149.

<sup>126</sup> For some examples of case law see Dörmann, *Elements of War Crimes* (2003) 51–55.

<sup>127</sup> *Prosecutor v. Brđanin*, IT-99-36-T, Judgement, Trial Chamber, 1 September 2004, para 484. See also for objective factors *Prosecutor v. Kvočka*, IT-98-30/1-T, Judgement, Trial Chamber, 2 November 2001, para 143; *Prosecutor v. Mrkšić*, IT-95-13/1-T, Judgement, Trial Chamber, 27 September 2007, para 514; *Prosecutor v. Krnojelac*, IT-97-25-T, Judgement, Trial Chamber, 25 March 2002, para 182; *Prosecutor v. Limaj*, IT-03-66-T, Judgement, Trial Chamber, 30 November 2005, para 237; *Prosecutor v. Haradinaj*, IT-04-84bis-T, Retrial Judgement, Trial Chamber, 29 November 2012, para 417; *Prosecutor v. Naletilić and Martinović*, IT-98-34-A, Judgement, Appeals Chamber, 3 May 2006, para 300; *Prosecutor v. Martić*, IT-95-11-T, Judgement, Trial Chamber, 12 June 2007, para 75. For subjective factors ICTY, *Prosecutor v. Kvočka*, IT-98-30/1-T, Judgement, Trial Chamber, 2 November 2001, para 143; *Prosecutor v. Mrkšić*, IT-95-13/1-T, Judgement, Trial Chamber, 27 September 2007, para 514; *Prosecutor v. Krnojelac*, IT-97-25-T, Judgement, Trial Chamber, 25 March 2002, para 182; *Prosecutor v. Limaj*, IT-03-66-T, Judgement, Trial Chamber, 30 November 2005, para 237; *Prosecutor v. Haradinaj*, IT-04-84bis-T, Retrial Judgement, Trial Chamber, 29 November 2012, para 417; *Prosecutor v. Naletilić and Martinović*, IT-98-34-A, Judgement, Appeals Chamber, 3 May 2006, para 300; *Prosecutor v. Martić*, IT-95-11-T, Judgement, Trial Chamber, para 75.

<sup>128</sup> See *e.g.* *Prosecutor v. Mucić*, IT-96-21-T, Judgement, Trial Chamber, 16 November 1998, paras 495–496 and 971–977; *Prosecutor v. Naletilić and Martinović*, IT-98-34-T, Judgement, Trial Chamber, 31 March 2003, paras 350–352; *Prosecutor v. Brđanin*, IT-99-36-T, Judgement, Trial Chamber, 1 September 2004, paras 492 and 503–511 and 524; *Prosecutor v. Martić*, IT-95-11-T, Judgement, Trial Chamber, 12 June 2007, para 76; IMTTFE Judgement, 4 November 1948, para. 406.

<sup>129</sup> The case law shows that negligent or reckless behavior cannot form the basis for responsibility for torture, *Prosecutor v. Krnojelac*, IT-97-25-T, Judgement, Trial Chamber, 25 March 2002, para 184; *Prosecutor v. Kunarac*

be obtained specific intent is required. As to the element of severity, paragraph 4 of the General Introduction to the Elements of Crimes applies, *i. e.*, the perpetrator does not have to personally complete a particular value judgement.

b) **Inhuman treatment.** The IHL treaties do not contain a specific definition of inhuman treatment. However, the essence of this crime may be derived from a number of provisions, in particular from the Geneva Conventions, but also from Additional Protocol I in so far as it reflects customary international law. The ICTY has identified for that purpose articles 12 GC I, 12 GC II, 13, 20, 46 GC III, 27, 32 GC IV, common article 3 GC and articles 75 Add. Prot. I, 4, 7 Add. Prot. II. It concluded that any behavior contrary to these norms constitutes inhuman treatment.<sup>130</sup> Based on this understanding, the Tribunals identified the essence of the crime as follows:

Inhuman treatment involves acts or omissions against protected persons which are intended to and do cause serious mental or physical sufferings or injury or which constitute a serious attack on human dignity.<sup>131</sup> Following that jurisprudence, the grave breach does not only include an attack on the physical integrity or health of the persons protected, but also the infliction of serious mental harm as well as measures which seriously violate the human dignity of protected persons. By referring to serious mental or physical suffering the crime also covers in the view of the ICTY suffering that falls short of the threshold of severe mental or physical suffering which is required for the grave breach of torture.<sup>132</sup>

The Elements of Crimes take a somewhat different approach in a departure from the established jurisprudence of the ICTY. The *actus reus* is defined as follows:

‘1. The perpetrator inflicted severe physical or mental pain or suffering upon one or more persons.’

The difference from the ICTY case law consists in the following: The level of pain and injury is qualified in the same way as for torture (‘severe’)<sup>133</sup> and a conduct constituting a serious attack on human dignity is not considered a part of the crime. States took the view that such an attack would rather constitute an ‘outrage upon personal dignity, in particular humiliating and degrading treatment’ in the sense of article 8 para 2 (b) (xxi) of the Statute. The *ad hoc* Tribunals have consistently maintained their jurisprudence, which differs from the approach in the Elements of Crimes, even after and despite the latter’s adoption.<sup>134</sup> It remains to be seen whether the ICC will adopt the *ad hoc* Tribunals’ view or be guided by the Elements of Crimes.

*et al.*, IT-96-23T & IT-96-23/1-T, Judgement, Trial Chamber, 22 February 2001, para 497; *Prosecutor v. Furundžija*, IT-95-17/1-T, Judgement Trial Chamber, 10 December 1998, para 162; *Prosecutor v. Akayesu*, ICTR-96-4-T, Judgement, Trial Chamber, 2 September 1998, para 594. It is required that the perpetrator intended to act in a way which, in the normal course of events, would cause severe pain or suffering, whether mental or physical, to his or her victims, *Prosecutor v. Kunarac et al.*, IT-96-23T & IT-96-23/1-T, Judgement, Trial Chamber, 22 February 2001, para 153; *Prosecutor v. Mrkšić*, IT-95-13/1-T, Judgement, Trial Chamber, 27 September 2007, para 515; *Prosecutor v. Haradinaj*, IT-04-84bis-T, Retrial Judgement, Trial Chamber, 29 November 2012, para 418; *Prosecutor v. Limaj*, IT-03-66-T, Judgement, Trial Chamber, 30 November 2005, para 238.

<sup>130</sup> *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgement, Trial Chamber, 16 November 1998, paras. 520 and 543.

<sup>131</sup> *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgement, Trial Chamber, 16 November 1998, paras. 442 and 543. This finding has been confirmed by *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-A, Judgement, Appeals Chamber, 17 December 2004, para 39.

<sup>132</sup> See under torture and *Prosecutor v. Prlić et al.*, IT-04-74-T, Judgement, 29 May 2013, para 119, fn 236 with further references; Werle and Jessberger, *Principles* (2014) 440–1 with further references; Ambos, *Treatise on ICL II* (2014), 165–6.

<sup>133</sup> See mn 92.

<sup>134</sup> See in particular *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgement, Trial Chamber, 16 November 1998, paras. 516–544; *Prosecutor v. Delalić et al.*, IT-96-21-A, Judgement, Appeals Chamber, 20 February 2001, para 446; *Prosecutor v. Naletilić and Martinović*, IT-98-34-T, Judgement, Trial Chamber, 31 March 2003, para 236; *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-T, Judgement, Trial Chamber, 26 February 2001, para 256; *Prosecutor v. Blaškić*, IT-95-14-T, Judgement, Trial Chamber, 3 March 2000, paras. 154–155; *Prosecutor v. Blaskić*, IT-95-14-A, Judgement, Appeals Chamber, 29 July 2004, para 39; *Prosecutor v. Prlić et al.*, IT-04-74-T, Judgement, Trial Chamber, 29 May 2013, para 113.

- 98 The comment made for the war crime of torture on the difficulty of setting a specific threshold level of suffering or pain also applies to this war crime.<sup>135</sup> There is however a wealth of case law in particular from the *ad hoc* Tribunals that can serve as guidance.<sup>136</sup> International criminal tribunals found the following examples to amount to inhuman treatment: the forcible digging of trenches under dangerous conditions or the use of prisoners of war as human shields,<sup>137</sup> beatings, certain inhuman living conditions in a detention centre, attempted murder,<sup>138</sup> deliberately hiding from ICRC representatives the existence of detainees in order to cause severe mental suffering to the detainees,<sup>139</sup> or sexual violence inflicted on the physical and moral integrity of a person by means of threat, intimidation or force, in such a way as to degrade or humiliate the victim (rape is thereby prohibited, as well as all forms of sexual violence not including penetration).<sup>140</sup> The severity of the conduct must be assessed in light of the circumstances of the case, specifically taking into account ‘the nature of the act or omission, the context in which it occurs, its duration and/or repetition, the physical, mental and moral effects of the act on the victim and the personal circumstances of the victim, including age, sex and health’.<sup>141</sup>
- 99 No mental element has been added to element 1. Consequently, the article 30 standard applies.<sup>142</sup> As to the element of severity, paragraph 4 of the General Introduction to the Elements of Crimes applies, which means that the perpetrator does not have to personally complete a particular value judgement.
- 100 **c) Biological experiments.** The term ‘biological experiments’ is not defined in any provision of the Geneva Conventions. The term in its ordinary meaning covers conduct the primary purpose of which is to study the (unknown) effects of a product or situation (e.g. extreme cold or altitude) on the human body. The grave breach was included in the Conventions as a consequence of the criminal practices to which certain prisoners were subjected during the Second World War. Since the Second World War<sup>143</sup> no case law has developed dealing specifically with this crime. While the First and Second Geneva Conven-

<sup>135</sup> See for example *Prosecutor v. Krnojelac*, IT-97-25-T, Judgement, Trial Chamber, 25 March 2002, para 131: ‘The assessment of the seriousness of an act or omission is, by its very nature, relative. All the factual circumstances must be taken into account, including the nature of the act or omission, the context in which it occurs, its duration and/or repetition, the physical, mental and moral effects of the act on the victim and the personal circumstances of the victim, including age, sex, and health. The suffering inflicted by the act upon the victim does not need to be lasting so long as it is real and serious’.

<sup>136</sup> Dörmann, *Elements of War Crimes* (2003) 66–69.

<sup>137</sup> See ICTY, *Prosecutor v. Blaskić*, IT-95-14-T, Judgement, Trial Chamber, 3 March 2000, paras 713–716 and para 738.

<sup>138</sup> See e.g. *Prosecutor v. Orić*, IT-03-68-T, Judgement, Trial Chamber, 30 June 2006, para 352; *Prosecutor v. Prlić et al.*, IT-04-74-T, Judgement, Trial Chamber, 29 May 2013, paras 115, 117 *et seq.* For a number of other examples coming from human rights case law, see *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgement, Trial Chamber, 16 November 1998, paras 534–541; Dörmann, *Elements of War Crimes*, 66–69.

<sup>139</sup> *Prosecutor’s Office of BiH v. Andrun*, X-KRŽ-05/42, Verdict (BiH Ct, App. Div., 19 Aug. 2008), at p. 36: ‘The Accused deliberately and intentionally prevented the International Red Cross in its humanitarian mission in order to cause severe mental suffering to the detainees. The witness Enver Bojčić said that it was psychologically devastating for them and that they saw the act concerned as they were outside the law and that they could be killed by anyone.’ The perpetrator was found guilty of inhuman treatment.

<sup>140</sup> *Prosecutor v. Prlić et al.*, IT-04-74-T, Judgement, Trial Chamber, 29 May 2013, para 116 with further references.

<sup>141</sup> *Prosecutor v. Prlić et al.*, IT-04-74-T, Judgement, Trial Chamber, 29 May 2013, para 119 with further reference. See also Werle and Jessberger, *Principles* (2014) 441; Zimmermann and Geiss, *Münchener Kommentar*, § 8 VStGB, mn. 139–40 with further references.

<sup>142</sup> Werle and Jessberger, *Principles* (2014) 441, 391. See however, *Prosecutor v. Prlić et al.*, IT-04-74-T, Judgement, Trial Chamber, 29 May 2013, para 120 with further reference: ‘at the moment of the act or omission, the direct perpetrator must have “had the intention to inflict serious physical or mental suffering or to commit a serious attack on the human dignity of the victim, or where he knew that his act or omission was likely to cause serious physical or mental suffering or a serious attack upon human dignity and was reckless as to whether such suffering or attack would result from his act or omission”’.

<sup>143</sup> See U.S. Military Tribunal, *Brandt et al.*, A.D. 1947 296–298: carrying out of medical experiments on prisoners of war and civilians; U.S. Military Tribunal, *The Milch case* (1947) 355 *et seq.*

tions refer to ‘biological experiments’ (articles 12 GC I, 12 GC II), several provisions of the Geneva Conventions and Additional Protocol I speak of ‘medical or scientific experiments’ (articles 13 GC III, 32 GC IV, 11 Add. Prot. I) giving some additional clarification. It is understood that the concepts of biological experiments and medical or scientific experiments considerably overlap. The specific elements of the crime were drafted on this basis for the ICC Statute:

1. The perpetrator subjected one or more persons to a particular biological experiment.
2. The experiment seriously endangered the physical or mental health or integrity of such person or persons.
3. The intent of the experiment was non-therapeutic and it was neither justified by medical reasons nor carried out in such person’s or persons’ interest.

Contrary to some initial proposals during the negotiations of the elements of crimes, the crime does not require that death or serious bodily or mental harm be caused. States agreed that the threshold for the grave breach under article 11 para 4 of Additional Protocol I (‘seriously endangers the physical or mental health or integrity of any person’) would also apply to this crime and drafted element 2 accordingly. Thus, the concrete danger of the mentioned harm is sufficient for the crime to be completed, not only when the harm actually occurs. To know whether a person’s health has been seriously endangered is a matter of judgement and a court should determine this not only on the basis of the conduct of the perpetrator, but also on the foreseeable consequences having regard to the state of health of the person subjected to them.

Element 3 recognizes that the prohibition of *biological experiments* does not prevent doctors from trying new therapeutic methods which are justified on medical grounds and are dictated solely by a desire to improve the patient’s condition.<sup>144</sup> The prohibition aims to prevent using protected persons as guinea-pigs. The chosen formulation combines aspects of article 11 para 3 of Additional Protocol I, article 13 of the Third Geneva Convention and article 32 of the Fourth Geneva Convention. However, it neither repeats the exact language nor all the detail. Unlike the specific war crime of carrying out medical or scientific experiences under article 8 para 2 (b) (x),<sup>145</sup> the present elements of crime do neither specify that consent is not a defence, nor give clarification as to the relevant medical standards. It is worth recalling that the prohibition of biological experiments contained in the Geneva Conventions is absolute, as wounded or sick persons or detained persons cannot validly give consent to a particular biological experiment which endangers their physical or mental health or integrity. Consent can only justify treatment of an eminently therapeutic nature.

As for the *actus reus*, there is clearly overlap between the crime under consideration and the war crime under article 8 para 2 (b) (x). The latter is however wider in so far as it protects persons which are not protected by the four Geneva Conventions, in particular those who do not fulfil the nationality criteria of article 4 of the Fourth Geneva Convention.

No mental element has been added to the elements. Consequently, the article 30 standard applies.<sup>146</sup> Given that element 3 refers to the character of the experiment and not to a specific intent of the perpetrator, this element is rather a material element (a circumstance).

<sup>144</sup> E.g. Pictet (ed.), *Commentary III, Article 13*, 141; *id.* (ed.), *Commentary IV, Article 147*, 598.

<sup>145</sup> See fn. 46 of the Elements of Crimes. Article 11 para 2 Add. Prot. I explicitly states that it is prohibited to carry out medical or scientific experiments even with the consent of the person. However, in one post-Second World War Trial (the *Doctors’ Trial*, in UNWCC, LRTWC, vii, pp 49–50) the judgement outlined ten basic principles to be observed while performing medical experiments, in order to satisfy moral, ethical and legal concepts. One of these principles was stated as follows: the ‘voluntary consent of the human subject is absolutely essential’ (see also *Brandt and Others Case*, in: *Trials of War Criminals Before the Nuernberg Military Tribunals Under Control Council Law No. 10*, i, 11 *et seq.*; see also article 3 ECHR, article 5 ACHPR and article 7 ICCPR) and it must be given freely and by a person who has legal capacity; the ‘duty and responsibility of ascertaining the quality of the consent rests upon each individual who initiates, directs or engages in the experiment’; it cannot be delegated to another.

<sup>146</sup> See however Werle and Jessberger, *Principles* (2014) 439–40, who submit that it is sufficient that the perpetrator acts with ‘indirect intent’, thus less would be necessary than what article 30 para. 2 ICC Statute requires. They derive this from article 11 para 4 Add. Prot. I, which uses the term ‘wilful’ and upon which, in their view, the definition in the ICC Statute is based.



### 3. Paragraph 2(a)(iii): ‘Wilfully causing great suffering, or serious injury to body or health’

105 These acts or omissions constitute grave breaches under all of the Conventions (articles 50 GC I, 51 GC II, 130 GC III and 147 GC IV). The criminalization is based on various prohibitions in all four Geneva Conventions (*e.g.* articles 12 GC I, 12 GC II, 13 GC III and 27, 32 GC IV). It is an expression of the obligation to treat protected persons humanely and to respect at all times their physical and mental integrity. The Elements of Crimes only contain one specific element, which reads as follows:

‘1. The perpetrator caused great physical or mental pain or suffering to, or serious injury to body or health of, one or more persons.’

106 In accordance with the case law of the ICTY, this element recognizes that the crime is not limited to causing physical suffering or pain, but includes also the causing of mental suffering or pain.<sup>147</sup> While acts of torture may also fit this definition, contrary to the war crime of torture, this war crime refers to suffering which is caused without a specific purpose. It could be carried out for mere sadism or for no reason at all.<sup>148</sup> It seems that the terms ‘great’ and ‘serious’ indicate that this war crime can also include conduct that falls short of the threshold of severe mental or physical suffering which is required for the war crime of torture.

107 For the purpose of distinguishing this war crime from the war crime of inhuman treatment, the ICTY explained that the present would not cover harm relating solely to the victim’s human dignity.<sup>149</sup> Given that States decided not to include the commission of a serious attack on human dignity in the Elements of Crimes of inhuman treatment, there is hardly any difference between the two crimes in the Elements of Crimes, unless injury is caused, which does not at the same time lead to great physical or mental pain.

108 The jurisprudence of international courts and tribunals has consistently taken the view that the suffering, the first alternative of this grave breach, could be either physical or mental.<sup>150</sup> With regard to the causation of serious injury to body or health, the second alternative, some ICTY Trial Chambers as well as the ICTY Appeals Chamber found that the term ‘health’ could include mental health.<sup>151</sup> States negotiating the ICC Elements of Crimes took the view, however, that it would be difficult to conceive of mental injury.<sup>152</sup> The Elements of Crimes for this war crime therefore only include ‘mental or physical’ in relation to the suffering caused.

109 Like for the war crimes of torture and inhuman treatment, the assessment of the seriousness of an act or omission is, by its very nature, relative. All the factual circumstances must be taken into account, including the nature of the act or omission, the context in which it occurs, its duration and/or repetition, the physical, mental and moral effects of the act on the victim and the personal circumstances of the victim, including age, sex and health. The suffering inflicted by the act upon the victim does not need to be lasting so long as it is real and serious.<sup>153</sup> As pointed out in the *Krstić* case, the harm or suffering ‘need not cause permanent and

<sup>147</sup> *Prosecutor v. Naletilić and Martinović*, IT-98-34-T, Judgement, Trial Chamber, 31 March 2003, para 339; *Prosecutor v. Blaškić*, IT-95-14-T, Judgement, Trial Chamber, 3 March 2000, para 156.

<sup>148</sup> *Prosecutor v. Naletilić and Martinović*, IT-98-34-T, Judgement, Trial Chamber, 31 March 2003, paras. 340–341; *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgement, Trial Chamber, 16 November 1998, para 442.

<sup>149</sup> *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-T, Judgement, Trial Chamber, 26 February 2001, para 245.

<sup>150</sup> See for, example, *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgement, Trial Chamber, 16 November 1998, paras 506–511, in particular para 509 and *Prosecutor v. Kaing Guek Eay (alias: Duch)*, 001/18-07-2007/ECCC/TC, Judgement, 26 July 2010, paras 450–455.

<sup>151</sup> See *Prosecutor v. Blaškić*, IT-95-14-T, Judgement, Trial Chamber, 3 March 2000, para 156; *Prosecutor v. Delalić et al.*, IT-96-21-A, Judgement, Appeals Chamber, 20 February 2001, para 424; *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-T, Judgement, Trial Chamber, 26 February 2001, para 245; *Prosecutor v. Naletilić and Martinović*, IT-98-34-T, Judgement, Trial Chamber, 31 March 2003, para 339.

<sup>152</sup> Dörmann, *Elements of War Crimes*, 76.

<sup>153</sup> *Prosecutor v. Krnojelac*, IT-97-25-T, Judgement, Trial Chamber, 25 March 2002, para 131. See also *Prosecutor v. Naletilić and Martinović*, IT-98-34-T, Judgement, Trial Chamber, 21 March 2003, paras. 442–443; *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgement, Trial Chamber, 16 November 1998, para 536, citing European



irremediable harm, but it must involve harm that goes beyond temporary unhappiness, embarrassment or humiliation'.<sup>154</sup> Examples of conduct amounting to causing great suffering or serious injury to body or health could be the mutilation of the wounded, their exposure to useless and unnecessary suffering,<sup>155</sup> or severe beatings or severe forms of mistreatment of detainees.<sup>156</sup> Impermissible disciplinary measures or solitary confinement may amount to inflictions of great suffering.<sup>157</sup>

No specific mental element has been added, which means that, in accordance with paragraph 2 to the General Introduction to the Elements of Crimes, the standard of article 30 of the Statute applies. The Elements are however only in conformity with the Statute if the article 30 standard and the standard of 'wilful' are identical. As indicated in article 9 para 3 of the Statute the Elements must not deviate from the Statute. 'Wilfully' is traditionally understood as covering both intent and recklessness and has been interpreted as such by international courts and tribunals.<sup>158</sup> They held that it is not sufficient to prove that the alleged perpetrator had the knowledge that his or her conduct might possibly cause the requisite suffering or injury.<sup>159</sup> Ordinary negligence has not been found to be included in the understanding of the word 'wilful'.<sup>160</sup>

As to the elements of 'great' suffering and 'serious' injury, paragraph 4 of the General Introduction to the Elements of Crimes applies, according to which the perpetrator does not have to complete a particular value judgement personally.

#### 4. Paragraph 2(a)(iv): 'Extensive destruction and appropriation of property'

These acts are grave breaches under the First, Second and Fourth Conventions (articles 50 GC I, 51 GC II and 147 GC IV). It proved rather difficult to draft the elements of this crime. The reason for this was that the grave breaches provisions refer back to various articles of the Geneva Conventions which define protected property and establish different levels of protection (for example articles 19, 33 and 34 (fixed medical establishments and mobile

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Court of Human Rights, *A v. UK*, para. 20. Crit. regarding the determination of the seriousness threshold Ambos, *Treatise on ICL II* (2014) 166.

<sup>154</sup> *Prosecutor v. Krstić*, IT-98-33-T, Judgement, Trial Chamber, 2 August 2001, para. 513. See also *Prosecutor v. Akayesu*, ICTR-96-4-T, Judgement, Trial Chamber, 2 September 1998, para 502; *Prosecutor v. Kaing Guek Eay (alias: Duch)*, 001/18-07-2007/ECCC/TC, Judgement, 26 July 2010, para. 454.

<sup>155</sup> Pictet (ed.), *Commentary I, Article 50*, 372; Werle and Jessberger, *Principles* (2014) 437.

<sup>156</sup> See e.g. *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgement, Trial Chamber, 16 November 1998, paras 1012–1018, where the accused was found guilty of the grave breach of causing great suffering or serious injury to body or health for having tied a victim to a roof beam and beating him up, for having struck him with a baseball bat and for having poured gasoline on his trousers setting them on fire and burning his legs.

<sup>157</sup> Wolfrum and Fleck, in: Fleck (ed.), *Handbook* (2<sup>nd</sup> ed. 2008) 696; Vöneky, in: Fleck (ed.), *Handbook* (3<sup>rd</sup> ed., 2013) 673; *Prosecutor v. Krnojelac*, IT-97-25-T, Judgement, Trial Chamber, 15 March 2002, para 183.

<sup>158</sup> See Zimmermann, in: Sandoz et al. (eds), *Commentary, Article 85*, para 3474. The French version of the commentary uses the concept of '*dol éventuel*' for recklessness. The threshold of *dol eventualis* entails the concept of recklessness, but not that of negligence or gross negligence. See also *Prosecutor v. Blaskić*, IT-95-14-T, Judgement, Trial Chamber, 3 March 2000, which affirmed: 'The *mens rea* constituting all violations of Article 2 of the Statute [containing the list of grave breaches of the four Geneva Conventions] includes both guilty intent and recklessness which may be likened to serious criminal negligence', para 152. See also *Prosecutor v. Kaing Guek Eay (alias: Duch)*, 001/18-07-2007/ECCC/TC, Judgement, 26 July 2010, para 454; Werle and Jessberger, *Principles* (2014) 437. The ad hoc Tribunals have interpreted 'wilful' as requiring that the act or omission must have been intentional, 'being an act which, judged objectively, is deliberate and not accidental, which causes serious mental or physical suffering or injury', *Prosecutor v. Krstić*, IT-98-33-T, Judgement, Trial Chamber, 2 August 2001, para 511; *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgement, Trial Chamber, 16 November 1998, para 511. Thus both a *dolus directus* and *dolus eventualis* are sufficient to establish the crime.

<sup>159</sup> See e.g. *Prosecutor v. Martić*, IT-95-11-T, Judgement, Trial Chamber, 12 June 2007, para 60; *Prosecutor v. Strugar*, IT-01-42-T, Judgement, Trial Chamber, 31 January 2005, para 235 and for more details the commentary on wilful killing.

<sup>160</sup> See e.g. *Prosecutor v. Tolimir*, IT-05-88-2-T, Judgement, Trial Chamber, 12 December 2012, para 715; *Prosecutor v. Perišić*, IT-04-81-T, Judgement, Trial Chamber, 6 September 2011, para 104; *Prosecutor v. Đorđević*, IT-05-87/1-T, Trial Judgement, 23 February 2011, para 1708; *Prosecutor v. Delić*, IT-04-83-T, Judgement, Trial Chamber, 15 September 2008, para 48; *Prosecutor v. Orić*, IT-03-68-T, Judgement, Trial Chamber, 30 June 2006, para 348; *Prosecutor v. Rukundo*, ICTR-2001-70-T, Judgement, Trial Chamber, 27 February 2009, para 579.

medical units), article 20 (hospital ships) and articles 35 and 36 (medical transports, including medical aircraft) of GC I, articles 18 (civilian hospitals), 21, 22 (means for land, sea and air transport), 33 (prohibition of pillage and reprisals), 53 (real or personal property in occupied territory), 57 (hospitals in occupied territory) GC IV as well as article 154 GC IV in conjunction with relevant provisions of the 1907 Hague Regulations).<sup>161</sup> In the case of appropriation or destruction of property the Conventions lay down distinct standards for specific protected property.<sup>162</sup> This may be illustrated with respect to the protection of civilian hospitals on the one hand and property in occupied territories on the other.

- 113 Article 18 GC IV defines the protection of civilian hospitals against attacks, i.e. against destruction, in the following terms:

‘Civilian hospitals organized to give care to the wounded and sick, the infirm and maternity cases, may in no circumstances be the object of attack but shall at all times be respected and protected by the Parties to the conflict. [...]’

- 114 Article 19 GC IV lays down the stringent conditions under which such civilian hospitals may nevertheless be attacked:

‘The protection to which civilian hospitals are entitled shall not cease unless they are used to commit, outside their humanitarian duties, acts harmful to the enemy. Protection may, however, cease only after due warning has been given, naming, in all appropriate cases, a reasonable time limit, and after such warning has remained unheeded’.

- 115 Thus, destruction would be unlawful and covered by this crime if no warning had been given. The protection against destruction applies to all civilian hospitals in the territories of the parties to an international armed conflict.

- 116 Article 53 GC IV defines the protection of property in occupied territory in a different manner:

‘Any destruction by the Occupying Power of real or personal property belonging individually or collectively to private persons, or to the State, or to other public authorities, or to social or cooperative organizations, is prohibited, except where such destruction is rendered absolutely necessary by military operations’ (emphasis added).

In this case, the protection of the rule is limited to occupied territory and the destruction is only unlawful if it is not rendered absolutely necessary by military operations.

- 117 Considering these examples, the drafting of the Elements of Crimes had to be done in a way that properly reflected these standards. In the end, it was decided to adopt a generic approach, without spelling out the specific standards. The Elements are therefore derived directly from article 8 para 2 (a) (iv), following the structure indicated in the General Introduction to the Elements of Crimes (paragraph 7), without giving further clarification. In addition to the common elements, including the requirement that the property be protected under one or more of the Geneva Conventions of 1949, the specific elements are defined in the following terms:

1. The perpetrator destroyed or appropriated certain property.
2. The destruction or appropriation was not justified by military necessity.
3. The destruction or appropriation was extensive and carried out wantonly.’

- 118 Both destruction and appropriation can take various forms. For destruction one may consider setting objects on fire, attacking or otherwise seriously damaging them; for appropriation taking, obtaining or withholding property, theft, requisition, plunder, spoliation or

<sup>161</sup> See with regard to the connection between the Fourth Geneva Convention and the 1907 Hague Regulations, Dörmann, *Elements of War Crimes* (2003) 82, in particular fn. 3; and with regard to the various other relevant provisions, *id.*, 85–88 (destruction) and 89–91 (appropriation); see also Ambos, *Treatise on ICL II* (2014) 169–70; Werle and Jessberger, *Principles* (2014) 469–70, 473. Interestingly an ICTY Trial Chamber also refers to provisions of GC III, *Prosecutor v. Prlić et al.*, IT-04-74-T, Judgement, Trial Chamber, 29 May 2013, para. 128.

<sup>162</sup> See, for example, *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-T, Judgement, Trial Chamber, 26 February 2001, para. 336.

pillage.<sup>163</sup> A partial destruction of property might also constitute this crime if the partial destruction would qualify as extensive.

The meaning of ‘not justified by military necessity’<sup>164</sup> as contained in article 8 para 2 (a) 119 (iv) of the ICC Statute is crucial with regard to the different levels of protection of property. It is important to note that military necessity covers only conduct that is lawful in accordance with the laws and customs of war. Consequently, a rule of the law of armed conflict cannot be derogated from by invoking military necessity unless this possibility is explicitly provided for by the rule in question and to the extent provided for.<sup>165</sup> This means that in the above-mentioned example of civilian hospitals military necessity cannot be invoked to justify an attack against such a civilian hospital in violation of articles 18 and 19 of the Fourth Geneva Convention. To put it in general terms for this specific crime, in case of a prohibition to destroy or appropriate a type of protected property, which does not foresee the exception of military necessity, destruction or appropriation cannot be justified by the argument that it was justified by military necessity.<sup>166</sup> It would have been desirable to clearly express this understanding of military necessity in the Elements of Crimes.

The ICTY tried to address this problem in respect of the first alternative of this crime – 120 destruction – in the following way:

- ‘[...] (ii) property was destroyed extensively;
- (iii) the extensive destruction regards property carrying general protection under the Geneva Conventions of 1949, or
- the extensive destruction not absolutely necessary by military operations regards property situated in occupied territory; [...]’<sup>167</sup>

Property carrying general protection under the Geneva Conventions of 1949 in the sense of the ICTY covers property regardless of whether or not it is in occupied territory, such as civilian hospitals, medical aircraft and ambulances.<sup>168</sup> While this approach adds more specificity than the one chosen in the Elements for the ICC, the elements identified by the ICTY must still be read in conjunction with the specific provisions of the Geneva Conventions as indicated expressly in the definition of the crime through the term ‘carried out unlawfully’.

Element 3 of the Elements adopted for this crime clarifies that the requirement of 121 ‘extensiveness’ applies to both alternatives – appropriation and destruction. Thus, an isolated act or incident would generally not be sufficient to constitute this crime.<sup>169</sup> As rightly pointed out by the ICTY – without further reasoning –, there may, however, be exceptions, for example the destruction of a civilian hospital.<sup>170</sup> In light of the destructive power of certain

<sup>163</sup> On the distinction between destruction and appropriation and the other terms (plunder, pillage etc.) traditionally used see Dörmann, *Elements of War Crimes*, 84–95; Ambos, *Treatise on ICL II* (2014) 171.

<sup>164</sup> As pointed out by Fenrick in the First Edition of this Commentary, what is justified by military necessity must be determined bearing in mind the information available to the perpetrator at the time and without the benefit of hindsight.

<sup>165</sup> De Preux, in: Sandoz et al. (eds.), *Commentary, Article 35*, para. 1389; O’Connell, in: Fleck (ed.), *Handbook IHL* (3<sup>rd</sup> ed. 2013) 36–38; Greenwood, in: Fleck (ed.), *Handbook IHL* (2<sup>nd</sup> ed. 2008) 37–8; see also *Interpretative Guidance on the Notion of Direct Participation in Hostilities under International Humanitarian Law*, prepared by Melzer (2009) ICRC 78–82.

<sup>166</sup> See also Werle and Jessberger, *Principles* (2014) 471–2, 473–4; for a restrictive interpretation also Ambos, *Treatise on ICL II* (2014) 172–3.

<sup>167</sup> *Prosecutor v. Naletilić and Martinović*, IT-98-34-T, Judgement, Trial Chamber, 31 March 2003, para 583. See also *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-T, Judgement, Trial Chamber, 26 February 2001, para 341.

<sup>168</sup> *Prosecutor v. Naletilić and Martinović*, IT-98-34-T, Judgement, Trial Chamber, 31 March 2003, para 581; *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-T, Judgement, Trial Chamber, 26 February 2001, para 336; *Prosecutor v. Brđanin*, IT-99-36-T, Judgement, Trial Chamber, 1 September 2004, para 586.

<sup>169</sup> Pictet (ed.), *Commentary IV, Article 147*, 601.

<sup>170</sup> *Prosecutor v. Brđanin*, IT-99-36-T, Judgement, Trial Chamber, 1 September 2004, para 587; *Prosecutor v. Naletilić and Martinović*, IT-98-34-T, Judgement, Trial Chamber, 31 March 2003, para 567; *Prosecutor v. Blaskić*, IT-95-14-T, Judgement, Trial Chamber, 3 March 2000, para 157; *Prosecutor v. Prlić et al.*, IT-04-74-T, Judgement, Trial Chamber, 29 May 2012, para 126. Pictet (ed.), *Commentary IV, Article 147*, 601, referring to a situation where the destruction is intentional. The ordinary meaning of the term ‘extensive’ does not necessarily

weapons a single act may cause extensive destruction. Thus, the assessment must be made on a case-by-case basis.<sup>171</sup>

122 Consistent with paragraph 6 of the General Introduction to the Elements of Crimes, the elements as adopted do not repeat the requirement of ‘unlawfulness’. As indicated before, the unlawfulness must be determined pursuant to the specific standards as contained in the primary IHL obligations.

123 No mental element has been added to the elements. Consequently, the article 30 standard applies.<sup>172</sup> The Elements are however only in conformity with the Statute if the article 30 standard and the one applicable to this grave breach are identical. The ICTY distinguished the *mens rea* required for destruction from that for appropriation in the following way:

‘With regards to the *mens rea* requirement for destruction of property the perpetrator must have acted with the intent to destroy the protected property or in reckless disregard of the likelihood of its destruction.

With regard to the *mens rea* requisite of appropriation of property, the perpetrator must have acted intentionally, with knowledge and will of the proscribed result’.<sup>173</sup>

124 When assessing the mental element linked to element 2 (‘[...] not justified by military necessity’), the Court will have to judge the situation as it appeared to the defendant at the time of his or her conduct. If the facts were such as would justify the action by the exercise of judgement, after giving consideration to all the factors and existing possibilities, even though the conclusion reached may have been faulty, it cannot be said to be criminal.<sup>174</sup>

125 As to the element of ‘extensive’, paragraph 4 of the General Introduction to the Elements of Crimes applies, according to which the perpetrator does not have to complete a particular value judgement personally.

126 It should be stressed that this war crime essentially covers conduct against property in the power of the enemy.<sup>175</sup> Destruction of property in the course of the conduct of hostilities, in particular air raids or rocket attacks in enemy territory would fall under the unlawful attack charges under article 8 para. 2 (b), such as (ii), (iii), (iv), (v), (ix), (xiii) and (xxiv).

### 5. Paragraph 2(a)(v): Compelling a protected person to serve in the hostile forces

127 This conduct is a grave breach under the Third and Fourth Geneva Conventions only (articles 130 GC III, 147 GC IV). It is based on a basic, generally recognized principle of the law of armed conflict that strictly prohibits belligerents from forcing enemy subjects to take up arms against their own country. In particular it protects inhabitants of occupied territories from actions offensive to their patriotic feelings or from attempts to undermine their allegiance to their own country.<sup>176</sup> The one specific element of this crime is defined as follows:

‘1. The perpetrator coerced one or more persons, by act or threat, to take part in military operations against that person’s own country or forces or otherwise serve in the forces of a hostile power.’

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imply several incidents or acts, it seems much more related to the size of the destruction or the area covered. Therefore, in the view of this author, destruction of a hospital complex could constitute this war crime as pointed out in the case law.

<sup>171</sup> See also *Prosecutor v. Prlić et al.*, IT-04-74-T, Judgement, Trial Chamber, paras 126, 130, 29 May 2013.

<sup>172</sup> In the same vein Ambos, *Treatise on ICL II* (2014) 174.

<sup>173</sup> *Prosecutor v. Brđanin*, IT-99-36-T, Judgement, Trial Chamber, 1 September 2004, paras. 489–490; see also *Prosecutor v. Prlić et al.*, IT-04-74-T, Judgement, 29 May 2013, para 127 for destruction of property. Werle and Jessberger, *Principles* (2014) 471, 474, rightly note that the term ‘wantonly’ in the definition of the crime indicates that indirect intent suffices. *Prosecutor v. Naletilić and Martinović*, IT-98-34-T, Judgement, Trial Chamber, 31 March 2003, para 577 (iv); *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-T, Judgement, Trial Chamber, 26 February 2001, para 341 (iii). See also Badar, 343–346.

<sup>174</sup> See for example *List and Others*, UNWCC, LRTWC, viii 68 *et seq.*

<sup>175</sup> David, *Principes* (3<sup>rd</sup> ed. 2002), para 4.153; Pictet (ed.), *Commentary IV, Article 147*, 601; Ambos, *Treatise on ICL II* (2014) 169.

<sup>176</sup> Pictet (ed.), *Commentary IV, Article 51*, 292–293; see also Werle and Jessberger, *Principles* (2014) 447.

The formulation is based on both the grave breaches provisions and article 23 of the 1907 Hague Regulations, which prohibits ‘to compel nationals of the hostile party to take part in the operations of war directed against their own country, even if they were in the belligerent’s service before the commencement of the war’ and which forms the basis of the war crime under article 8 para 2 (b) (xv). The word ‘otherwise’ in element 1 indicates that the aspect dealt with in the Hague Regulations – ‘to take part in the operations of war directed against their own country’ – is just one particular example of the prohibited conduct described in the Geneva Conventions – ‘serve in the forces of a hostile power’. This approach shows that there is a large overlap between the grave breaches crime defined in article 8 para 2 (a) (v) of the ICC Statute and the crime defined in article 8 para 2 (b) (xv) of the ICC Statute.<sup>177</sup>

The formulation of the Hague Regulations is both wider in some aspects and narrower in others. It is wider in so far as the grave breach provision from the Geneva Conventions suggests that the protected persons must be integrated/enlisted into the armed forces,<sup>178</sup> while the provision from the Hague Regulations could cover participation in the military operations without being integrated into such forces.<sup>179</sup> Article 51 of the Fourth Geneva Convention, which is one of the sources for the grave breach, refers to ‘armed or auxiliary forces’. Fenrick suggested in the First Edition that the expression ‘forces’ should be given a broad interpretation including, at a minimum, all entities encompassed by article 43 of the First Additional Protocol which defines ‘armed forces’ as ‘all organized armed forces, groups and units which are under a command responsible to that party for the conduct of its subordinates’. Given the protective interest of the persons concerned, such a broad meaning of the term ‘forces’ is justified.

The formulation of the Hague Regulations is narrower in so far as it is limited to participation in military operations. The grave breach refers to all enlistment in the armed forces and may thus cover a broader range of activities.<sup>180</sup>

By combining the formulation of the grave breach and the formulation of the Hague Regulations the Elements of Crimes suggest that compelling a protected person to work, which serves military purposes, without being integrated/enlisted in the armed forces, may be covered by this crime. However, both the Third and the Fourth Geneva Convention permit requesting certain types of labour, under specific conditions, for prisoners of war (articles 49 *et seq.*) or protected persons in the sense of the Fourth Convention (articles 51 and 52), which may include, for the latter group, work necessary to meet the needs of the occupying army, but must not involve them in the obligation to take part in military operations.<sup>181</sup> Such permitted labour does not fall within this war crime.

During the negotiations leading to the Elements of Crimes some States wanted a clear indication that the crime under article 8 para 2 (a) (v) of the ICC Statute was not limited to compelling a protected person to act against his/her own country or forces, but also against

<sup>177</sup> The specific elements of this war crime read as follows: ‘1. The perpetrator coerced one or more persons by act or threat to take part in military operations against that person’s own country or forces. 2. Such person or persons were nationals of a hostile party’.

<sup>178</sup> This issue is disputed, see Werle and Jessberger, *Principles* (2014) 447–8. The Elements of Crimes, by combining the formulation of the grave breach and the one of the Hague Regulations suggest that integration/enlistment is not required. The explanatory note to the German Code of Crimes Against International Law indicates however that actual integration in the armed forces is required, Explanatory Memorandum of the (German) Code of Crimes Against International Law BT-Drs. 14/8524, p. 29. Compelling to particular acts, without integration, may amount to a crime under article 8 para 2 (b) (xv) under its specific conditions, in particular if it amounts to taking part in the operations of war directed against their own country. See also Wolfrum and Fleck, in: Fleck (ed.), *Handbook* (2<sup>nd</sup> ed. 2008) 697; Zimmermann and Geiss, *Münchener Kommentar*, § 8 VStGB, mn 248.

<sup>179</sup> However, article 51 GC IV also prohibits in a broad manner compelling protected persons to undertake any work which would involve them in taking part in military operations.

<sup>180</sup> Pictet (ed.), *Commentary IV*, Article 51, 293; Gasser and Dörmann, in: Fleck (ed.), *Handbook IHL* (3<sup>rd</sup> ed. 2013) 287.

<sup>181</sup> See articles 49–57 GC III and 51–52 GC IV.

other countries or forces, in particular allied countries and forces.<sup>182</sup> In the end, the Preparatory Committee felt that this particular case would be covered by ‘*otherwise serve in the forces of a hostile power*’.

- 133 The term ‘hostile forces’ also suggests that compelling to serve in armed forces allied to the ones of the perpetrator would be covered by the crime as well.<sup>183</sup>
- 134 The term ‘to compel’ found in the Geneva Conventions, which has been replaced in the Elements of Crimes with the term ‘to coerce’, was understood as also covering certain forms of pressure or propaganda aimed at securing enlistment in the armed forces.<sup>184</sup> It is submitted that such pressure or propaganda must reach a certain threshold for the purposes of this crime.
- 135 No mental element has been added to the elements. Consequently, the article 30 standard applies.

#### 6. Paragraph 2(a)(vi): Wilfully depriving a protected person of the rights of fair and regular trial

- 136 This conduct is a grave breach under the Third and Fourth Conventions (articles 130 GC III, 147 GC IV).<sup>185</sup> The grave breach under the Geneva Conventions has been supplemented by the grave breach of article 85 para 4 (e) in conjunction with paragraph 2 of Additional Protocol I.
- 137 The specific element of the crime under consideration is defined as follows:
- ‘1. The perpetrator deprived one or more persons of a fair and regular trial by denying judicial guarantees as defined, in particular, in the third and the fourth Geneva Conventions of 1949.’
- 138 The element clarifies the essence of a deprivation of a fair and regular trial, namely the denial of judicial guarantees. The Third and Fourth Geneva Convention specifically detail the conditions under which protected persons may be brought to trial and contain numerous provisions detailing such guarantees (see in particular articles 99–108 GC III and 71–75 and 126 GC IV). The following guarantees may be mentioned:
- the right of the accused to be judged by an independent and impartial court (article 84 para 2 GC III);
  - the right of the accused to be promptly informed of the offences with which he/she is charged (article 104 GC III, article 71 para 2 GC IV);
  - the rights and means of defence, such as the right to be assisted by a qualified lawyer chosen freely and by a competent interpreter (articles 99 and 105 GC III, articles 72 and 74 GC IV);
  - the principle of individual criminal responsibility (article 87 GC III, article 33 GC IV);
  - the principle of *nullum crimen sine lege* (*i. e.*, no crime without law) (article 99 para 1 GC III, article 67 GC IV);
  - the principle of *non bis in idem* (*i. e.*, no punishment more than once for the same act) (article 86 GC III, article 117 para 3 GC IV);
  - the right of the accused to be informed of his rights of appeal (article 106 GC III, article 73 GC IV);
  - the requirement not to be sentenced or executed without a previous judgement pronounced by a regularly constituted court (articles 100–107 GC III, articles 64–70, 74–75 GC IV, common article 3 to the GC).<sup>186</sup>

<sup>182</sup> See also Pictet (ed.), *Commentary IV*, Article 51, 293.

<sup>183</sup> Zimmermann and Geiss, *Münchener Kommentar*, § 8 VStGB, mn 247.

<sup>184</sup> Pictet (ed.), *Commentary IV*, Article 51, 293, with an explanation of the negotiating history.

<sup>185</sup> For further origins and the customary nature of the prohibition, see Henckaerts and Doswald-Beck, *Customary IHL* (2005) 352–354, 574; for case-law post-World War II, see Dörmann, *Elements of War Crimes* (2003) 102 *et seq.*

<sup>186</sup> *Prosecutor v. Kaing Guek Eav* (alias: Duch), 001/18-07-2007/ECCC/TC, Judgement, 26 July 2010, para 459. See also Werle and Jessberger, *Principles* (2014) 450–1.



During the negotiations of the Elements of Crimes a clear majority of States supported the view that the crime may also be committed if judicial guarantees other than those explicitly applicable to protected persons in the Geneva Conventions are denied – for example, those fundamental guarantees that are only mentioned in article 75 of the 1977 Add. Prot. I, or the requirement of not carrying out executions without previous judgement pronounced by a regularly constituted court laid down in common article 3 to the Geneva Conventions. In order to clarify this, the words ‘in particular’ were added, thus indicating that the crime is not limited to the denial of judicial guarantees contained in the Geneva Conventions.

In addition to providing further clarification with regard to the guarantees mentioned in the Geneva Conventions, article 75 of Add. Prot. I,<sup>187</sup> which is generally accepted as reflecting customary international law, contains the following other guarantees not mentioned in the Conventions:

- the presumption of innocence (article 75 para 4 (d) Add. Prot. I);
- the right of the accused to be present at his/her trial (article 75 para 4 (e) Add. Prot. I);
- the right of the accused not to testify against himself/herself or to confess guilt (article 75 para 4 (f) Add. Prot. I); and
- the right of the accused to have the judgement pronounced publicly (article 75 para 4 (i) Add. Prot. I)

The judicial guarantees listed in the Geneva Conventions and Add. Prot. I<sup>188</sup> are firmly based in contemporary human rights law. Findings from various human rights bodies may therefore serve as guidance in interpreting the guarantees.<sup>189</sup>

In relation to the war crime under article 8 para 2 (c) (iv) of the ICC Statute one footnote in the Elements of Crimes indicates that ‘the Court should consider whether, in the light of all relevant circumstances, the cumulative effect of factors with respect to guarantees deprived the person or persons of a fair trial’. This footnote clarifies that the denial of a single judicial guarantee does not necessarily amount to a denial of a fair and regular trial. The ICC judges will have to decide on a case-by-case basis and assess the importance of the

<sup>187</sup> The relevant parts read as follows:

‘4. No sentence may be passed and no penalty may be executed on a person found guilty of a penal offence related to the armed conflict except pursuant to a conviction pronounced by an impartial and regularly constituted court respecting the generally recognized principles of regular judicial procedure, which include the following:

- a) the procedure shall provide for an accused to be informed without delay of the particulars of the offence alleged against him and shall afford the accused before and during his trial all necessary rights and means of defence;
- b) no one shall be convicted of an offence except on the basis of individual penal responsibility;
- c) no one shall be accused or convicted of a criminal offence on account of any act or omission which did not constitute a criminal offence under the national or international law to which he was subject at the time when it was committed; nor shall a heavier penalty be imposed than that which was applicable at the time when the criminal offence was committed; if, after the commission of the offence, provision is made by law for the imposition of a lighter penalty, the offender shall benefit thereby;
- d) anyone charged with an offence is presumed innocent until proved guilty according to law;
- e) anyone charged with an offence shall have the right to be tried in his presence;
- f) no one shall be compelled to testify against himself or to confess guilt;
- g) anyone charged with an offence shall have the right to examine, or have examined, the witnesses against him and to obtain the attendance and examination of witnesses on his behalf under the same conditions as witnesses against him;
- h) no one shall be prosecuted or punished by the same Party for an offence in respect of which a final judgment acquitting or convicting that person has been previously pronounced under the same law and judicial procedure;
- i) anyone prosecuted for an offence shall have the right to have the judgment pronounced publicly; and
- j) a convicted person shall be advised on conviction of his judicial and other remedies and of the time-limit within which they may be exercised’.

<sup>188</sup> For further clarification of the content of the guarantees, see Henckaerts and Doswald-Beck, *Customary IHL* (2005) 354–374.

<sup>189</sup> See also for the equivalent crime in the German Code of Crimes Against International Law, Zimmermann and Geiss, *Münchener Kommentar*, § 8 VStGB, mn 187.

denial of the judicial guarantee for the trial. It seems justified to apply the same reasoning to this war crime – in particular if the protected person is found not guilty despite a denial of judicial guarantees. Nothing precludes the denial of one guarantee from amounting to a war crime if it is serious enough.

143 The crime can be committed by act or omission.

144 No specific mental element has been added, which means that in accordance with paragraph 2 to the General Introduction to the Elements of Crimes, the standard of article 30 of the Statute applies. The Elements are however only in conformity with the Statute if the article 30 standard and the standard of ‘wilful’ are identical. As indicated in article 9 para 3 of the Statute the Elements must not deviate from the Statute. ‘Wilfully’ is traditionally understood as covering both intent and recklessness and has been interpreted as such by international tribunals.<sup>190</sup>

Thus far, no case law of the *ad hoc* Tribunals has evolved. There is however some case law relating to the Second World War that is relevant for this war crime.<sup>191</sup>

### 7. Paragraph 2(a)(vii): Unlawful deportation, transfer or confinement

145 These acts or omissions are grave breaches under the Fourth Geneva Convention (article 147 GC IV).

146 a) **Unlawful deportation and transfer.** The deportation and transfer prohibitions are primarily relevant to occupied territory and primarily concerned with prohibiting the forcible movement of protected persons within the territory (transfer) or their forcible expulsion from the territory (deportation) (article 49 para 1 GC IV). The grave breach under the Fourth Geneva Convention also covers unlawful transfer in the sense of article 45, *i.e.* the transfer of protected persons to another country where he or she may have reason to fear persecution for his or her political opinions or religious beliefs.<sup>192</sup> Consequently, the criteria for lawful population movement are set out in articles 45 and 49 of the Fourth Convention.

The one specific element of this crime is defined as follows:

‘1. The perpetrator deported or transferred one or more persons to another State or to another location.’

Consistent with paragraph 6 of the General Introduction to the Elements of Crimes, the elements as adopted do not repeat the requirement of ‘unlawfulness’. That requirement is however of crucial importance for the present crime. For the crime to be committed it must be established that the transfer was in violation of article 45 for protected persons in the sense of Part III, Section II of the Fourth Geneva Convention (‘aliens in the territory of a party to the conflict’) or article 49 (in particular paragraphs 2 and 3) for protected persons in the sense of Part III, Section III of the Fourth Geneva Convention (persons in the hands of an occupying power – this category does not cover the occupying power’s own nationals, see article 4 para 1).

<sup>190</sup> See Zimmermann, in: Sandoz *et al.* (eds), *Commentary, Article 85*, para 3474. The French version of the commentary uses the concept of ‘*dol éventuel*’ for recklessness. The threshold of *dolus eventualis* entails the concept of recklessness, but not that of negligence or gross negligence. See also the ICTY Trial Judgement in *Blaskić*, 2000, which affirmed: ‘The *mens rea* constituting all violations of Article 2 of the Statute [containing the list of grave breaches of the four Geneva Conventions] includes both guilty intent and recklessness which may be likened to serious criminal negligence’, para 152. The standard has been expressly confirmed in *Prosecutor v. Kaing Guek Eav* (alias: Duch), 001/18-07-2007/ECCC/TC, Judgement, 26 July 2010, para 460. See also Werle and Jessberger, *Principles* (2014) 426–7, 452. The *ad hoc* Tribunals have interpreted ‘wilful’ as requiring that the act or omission must have been intentional, ‘being an act which, judged objectively, is deliberate and not accidental’, *Prosecutor v. Krstić*, IT-98-33-T, Judgement, Trial Chamber, 2 August 2001, para 511; *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgement, Trial Chamber, 16 November 1998, para 511. Thus both a *dolus directus* and *dolus eventualis* are sufficient to establish the crime.

<sup>191</sup> See Dörmann, *Elements of War Crimes* (2003) 102–104.

<sup>192</sup> Pictet (ed.), *Commentary IV, Article 147*, 599; Vöneky, in: Fleck (ed.), *Handbook IHL* (3<sup>rd</sup> ed. 2013) 675.

Article 45 imposes specific limitations on transferring aliens to other States Parties to the Convention. In particular, the transferring State must satisfy itself that the receiving State is willing and able to apply the Convention; moreover, the former State keeps a residual responsibility. The second relevant limitation is the prohibition to transfer a protected person to a country where he/she has reason to fear persecution for his/her political opinions or religious beliefs. The term ‘transfer’ under this provision is used in a broad sense, covering any movement of protected persons to another State carried out by the Detaining Power on an individual or collective basis.<sup>193</sup> 147

Article 49 of the Fourth Convention prohibits all forcible transfers – also within occupied territories,<sup>194</sup> which is clarified in the Elements of Crimes with the words ‘to another location’, as well as deportations of protected persons from occupied territory (paragraph 1). Only the security of the population of the occupied territory (e.g. as a result of military operations or intense bombing)<sup>195</sup> or imperative military reasons (e.g. when the presence of the persons hampers military operations)<sup>196</sup> can justify total or partial evacuation of an occupied area. Such evacuations may only take place within the bounds of the occupied territory, except when for material reasons this is impossible. Protected persons must be transferred back to their homes as soon as hostilities in the area in question have ceased (paragraph 2). 148

The transfer or evacuation is only lawful if in addition, to the greatest practicable extent, the protected persons receive proper accommodation, and the removals are effected in satisfactory conditions of hygiene, health, safety and nutrition, and that members of the same family are not separated (paragraph 3). Doubts have been expressed as to whether the conditions under which the evacuation or transfer is undertaken could in themselves transform an otherwise lawful transfer into a criminal offence.<sup>197</sup> In the *Krupp* case after the Second World War the US Military Tribunal adopted the approach taken by Judge Phillips in the *Milch* case, namely that a ‘deportation becomes illegal [...] whenever generally recognized standards of decency and humanity are disregarded’.<sup>198</sup> This finding, as well as the framework set out in the *Blagojević* case<sup>199</sup> could be relevant also in the context of transfers and evacuations under article 49 of the Fourth Geneva Convention and the related grave breach. The ICTY in the *Prlić et al* case specifically mentions article 49 (3) at the same level as article 49 para. 2, thus it is submitted that article 49 para. 3 must also be considered when assessing the unlawfulness.<sup>200</sup> 149

The ICTY has interpreted the notion of ‘forcible’ in article 49 para 1 GC IV broadly, covering any type of coercion as well as using a coercive environment, such as untenable living conditions, continued military operations against particular cities and a life in permanent fear and insecurity.<sup>201</sup> The requirement that the transfer be ‘forcible’ excludes transfers of protected persons who genuinely wish to leave a place to another location.<sup>202</sup> As pointed out by the ICTY: 150

‘Transfers motivated by an individual’s own genuine wish to leave, are lawful. In determining whether a transfer is based on an individual’s ‘own wish’ the Chamber is assisted by Article 31 of the Geneva Convention IV. It provides for a general prohibition of physical and moral coercion covering

<sup>193</sup> Pictet (ed.), *Commentary IV, Article 45*, 266.

<sup>194</sup> Zimmermann, in: Sandoz et al. (eds.), *Commentary, Article 85*, para. 3502, especially note 28.

<sup>195</sup> *Prosecutor v. Blagojević and Jokić*, IT-02-60-T, Judgement, Trial Chamber, 17 January 2005, para 598; Pictet (ed.), *Commentary IV, Article 49*, 280.

<sup>196</sup> *Prosecutor v. Blagojević and Jokić*, IT-02-60-T, Judgement, Trial Chamber, 17 January 2005, stressing that in this case there must be overriding, i.e. imperative military reasons.

<sup>197</sup> Mettraux, *International Crimes and the Ad Hoc Tribunals* (2005) 83.

<sup>198</sup> *A. Krupp Trial*, in: UNWCC, LRTWC, Vol. X, 144 et seq.

<sup>199</sup> *Prosecutor v. Blagojević and Jokić*, IT-02-60-T, Judgement, Trial Chamber, 17 January 2005, para 599.

<sup>200</sup> *Prosecutor v. Prlić et al.*, IT-04-74-T, Judgement, 29 May 2013, para 52.

<sup>201</sup> Zimmermann and Geiss, *Münchener Kommentar, § 8 VStGB*, mn 174–5, with references to the relevant cases.

<sup>202</sup> Pictet (ed.), *Commentary IV, Article 49*, 279.

pressure that is direct or indirect, obvious or hidden and further holds that this prohibition applies in so far as the other provisions of the Convention do not implicitly or explicitly authorize a resort to coercion. The jurisprudence of the Tribunal also supports that the term “forcible” should not be restricted to physical coercion. [...] The determination as to whether a transferred person had a “real choice” has to be made in the context of all relevant circumstances on a case by case basis. Forcible transfer is the movement of individuals under duress from where they reside to a place that is not of their choosing’.<sup>203</sup>

- 151 However, even in cases where those transferred may have wanted – and in fact may even have requested – to be removed, this does not necessarily mean that they had exercised a genuine choice. The trier of fact must consequently consider the prevailing situation and atmosphere, as well as relevant circumstances, including, in particular, the protected person’s vulnerability, when assessing whether the protected person had a genuine choice to remain or leave and thus whether the resultant transfer was unlawful.<sup>204</sup>
- 152 It should also be stressed that the war crime under consideration is not limited to mass forcible transfer or deportation, but also covers the transfer or deportation of individual protected persons.<sup>205</sup>
- 153 Contrary to the approach taken for the parallel crime against humanity, States negotiating the Elements of Crimes took the view that the requirement suggested by some delegations that a protected person must be transferred from his/her ‘lawful place of residence’ is not an element of the war crime of unlawful deportation or transfer. The elements of the crime derived from international humanitarian law are not necessarily the same as for the crime against humanity.<sup>206</sup>
- 154 There is considerable overlap between this war crime and the war crime under article 8 para 2 (b) (viii) of the ICC Statute in so far as both have their basis in article 49 GC IV. The part of the latter crime dealing with the transfer or deportation of the population of the occupied territory is merely a repetition of the crime under consideration. The new element in article 8 para 2 (b) (viii) of the ICC Statute concerns the transfer by the Occupying Power of parts of its own civilian population into the territory it occupies.<sup>207</sup>
- 155 The crime can be committed by act or omission.<sup>208</sup>  
No mental element has been added to the elements. Consequently, the article 30 standard applies.
- 156 **b) Unlawful confinement.** The Fourth Geneva Convention acknowledges that the Power in whose hands protected persons may find themselves can take measures of control. These may include, but cannot be more severe than, assigned residence or internment. Such measures of deprivation of liberty or confinement may only be taken if specific conditions

<sup>203</sup> *Prosecutor v. Naletilić and Martinović*, IT-98-34-T, Judgement, Trial Chamber, 31 March 2003, para 519. See also *Prosecutor v. Krnojelac*, IT-97-25-T, Judgement, Trial Chamber, 25 March 2002, para 475; *Prosecutor v. Krstić*, IT-98-33-T, Judgement, Trial Chamber, 2 August 2001, paras. 528 *et seq.* with a reference to the drafting history of article 49 of the Fourth Geneva Convention; *Prosecutor v. Prlić et al.*, IT-04-74-T, Judgement, 29 May 2013, paras. 50 *et seq.*

<sup>204</sup> *Prosecutor v. Blagojević and Jokić*, IT-02-60-T, Judgement, Trial Chamber, 17 January 2005, para 596; *Prosecutor v. Prlić et al.*, IT-04-74-T, Judgement, Trial Chamber, 29 May 2013, para 51.

<sup>205</sup> For a diverging view see Gross (1995) 16 *MichJIL* 783, fn. 140.

<sup>206</sup> A different assertion has been made in *Prosecutor v. Krnojelac*, IT-97-25-T, Judgement, Trial Chamber, 25 March 2002, para 473. The requirement of being ‘lawfully present’ is an element of the crime in both cases – as a war crime and a crime against humanity, see *Prosecutor v. Blagojević and Jokić*, IT-02-60-T, Judgement, Trial Chamber, 17 January 2005, para 595.

<sup>207</sup> Zimmermann, in: Sandoz *et al.* (eds.), *Commentary, Article 85*, para. 3504 with regard to the parallel situation of article 147 GC IV and article 85 para 4 (a) Add. Prot. I, which form the bases for the equivalent war crimes under the Rome Statute. Given that in the case of article 49 para 6 GC IV the transfer or deportation would involve nationals of the Occupying Power, they would not be protected persons in the sense of article 4 GC IV when transferred or deported by the Occupying Power. Consequently, that conduct would neither constitute a grave breach under the Geneva Conventions nor a war crime under article 8 para 2 (a) (vii), see also Pictet (ed.), *Commentary IV, Article 49*, 283; David, *Principes* (3<sup>rd</sup> ed. 2002), para. 4.147.

<sup>208</sup> *Prosecutor v. Prlić et al.*, IT-04-74-T, Judgement, Volume I, Trial Chamber, 29 May 2013, para 48.

are met (articles 41 *et seq.* and 78 GC IV). If this is not the case, the conduct may amount to the war crime of unlawful confinement.

The one specific element of this crime is defined as follows:

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‘1. The perpetrator confined or continued to confine one or more persons to a certain location.’

Consistent with paragraph 6 of the General Introduction to the Elements of Crimes, the elements as adopted do not repeat the requirement of ‘unlawfulness’. However, that requirement is of crucial importance for this crime. For this crime to be committed it must be established that the deprivation of liberty was in violation of articles 42–43 for protected persons in the sense of Part III, Section II of the Fourth Geneva Convention (‘aliens in the territory of a party to the conflict’) or article 78 for protected persons in the sense of Part III, Section III of the Fourth Geneva Convention (persons in the hands of an Occupying Power). Confinement in the first case is only lawful if ‘the security of the Detaining Power makes [the assigned residence or internment] absolutely necessary’ and in the second case, if assigned residence or internment are considered ‘necessary, for imperative reasons of security’.<sup>209</sup>

The Fourth Geneva Convention leaves a great deal to the discretion of the party to the conflict concerning the initiation of such measures of confinement, which led *Fenrick* to conclude in the first edition that

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‘[u]nlawful confinement is an offence which would probably be very difficult to prove. Indeed, the belligerent Powers can intern any enemy citizens or aliens on their territory if they consider it absolutely necessary for their security. In the same way, Occupying Powers can intern some of the inhabitants of the occupied territories. The illegal nature of confinement would therefore be very difficult to prove in view of the extended powers granted in this matter to States. Obviously, however, internment for no particular reason, especially in occupied territory, could come within the definition of this breach’.<sup>210</sup>

Nevertheless, it must be stressed that the protected person must pose a real threat to the security. It does not seem to be excluded that a lack of such threat can be proved. The ICTY Appeals Chamber pointed out that confinement is permissible only where there are ‘reasonable grounds to believe that the security of the State is at risk’.<sup>211</sup> When holding that ‘[i]t is upon the detaining power to establish that the particular civilian does pose such a risk to its security that he must be detained, and the obligation lies on it to release the civilian if there is inadequate foundation for such a view’,<sup>212</sup> the Chamber stressed that the burden of proof to establish the security threat lies with the Detaining Power and it is not up to the protected person to demonstrate that he/she does not pose a security threat.

A Trial Chamber of the ICTY defined the general limits for establishing a security threat in the following terms:

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‘Subversive activity carried on inside the territory of a party to the conflict, or actions which are of direct assistance to an opposing party may threaten the security of the former, which may, therefore, intern people or place them in assigned residence if it has serious and legitimate reasons to think that they may seriously prejudice its security by means such as sabotage or espionage’.<sup>213</sup>

Beyond sabotage and espionage, other activities hostile to the security of a State may also be covered. It is undisputed that the direct participation of civilians in hostilities falls into that category, as do other acts that meet the same threshold.<sup>214</sup> One can infer from the case

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<sup>209</sup> Another ground for internment is contained in article 42 (2) GC IV: ‘If any person, acting through the representatives of the Protecting Power, voluntarily demands internment, and if his situation renders this step necessary, he shall be interned by the Power in whose hands he may be.’

<sup>210</sup> See also Pictet (ed.), *Commentary IV, Article 147*, 599.

<sup>211</sup> *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-A, Judgement, Appeals Chamber, 17 December 2004, para 72.

<sup>212</sup> *Prosecutor v. Delalić et al.*, IT-96-21-A, Judgement, Appeals Chamber, 20 February 2001, para 329.

<sup>213</sup> *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgement, Trial Chamber, 16 November 1998, para 475.

<sup>214</sup> *Internment in Armed Conflict: Basic Rules and Challenges*, ICRC Opinion Paper, November 2014, available online at: <<https://www.icrc.org/en/document/internment-armed-conflict-basic-rules-and-challenges#.VKrfle-k5A5s>> (accessed: 5 January 2015).

law of the ICTY, referring to ‘actions which are of direct assistance to an opposing party’, that the activities must involve material, direct harm to the adversary and not just mere support to the forces of the party with which the person is sided.<sup>215</sup>

161 According to the ICTY,

‘the mere fact that a person is a national of, or aligned with, an enemy party cannot be considered as threatening the security of the opposing party where he is living and is not, therefore, a valid reason for interning him or placing him in assigned residence. To justify recourse to such measures, the party must have good reason to think that the person concerned, by his activities, knowledge or qualifications, represents a real threat to its present or future security’.<sup>216</sup>

162 Case law of the *ad hoc* Tribunals has also indicated that ‘the mere fact that a person [...] has taken sides with the enemy party cannot be considered threatening the security of the country in which he or she resides’. Likewise, the fact that ‘a man is of military age should not necessarily be considered as justifying the application of these measures’.<sup>217</sup>

163 Lastly, any decision to deprive protected persons of their liberty for security reasons must not be taken on a collective basis, but rather on an individual basis.<sup>218</sup> The Detaining Power may not decide to detain a population or groups of individuals on the basis that all of their members should be presumed to pose a security threat.

164 Article 75 of Add. Prot. I, which reflects customary international law, complements the provisions of the Geneva Conventions in requiring that any person arrested, detained or interned for actions related to an armed conflict must be informed promptly, in a language he or she understands, of the reasons why these measures have been taken.<sup>219</sup>

165 Prosecutions have been conducted in the past by the ICTY based on facts where procedural rights foreseen in the Geneva Conventions have not been granted. This possibility has been reflected in the Elements of Crimes through the inclusion of the words ‘continued to confine’ in element 1. These words are intended to cover cases where a protected person has been lawfully confined in accordance with in particular articles 27, 42 and 78 of the Fourth Geneva Convention, but whose confinement becomes unlawful at a certain moment later on. Confinement only remains lawful if certain procedural rights, which may be found in articles 43 and 78 of the Fourth Geneva Convention, are granted to the persons detained. Given the great margin of discretion left to the party to the conflict concerning the initiation of such measures of confinement, the ICTY concluded that,

‘the [detaining] party’s decision that [internment or placing in assigned residence of an individual] are required must be “reconsidered as soon as possible by an appropriate court or administrative board”’.<sup>220</sup>

166 It added that the judicial or administrative body must bear in mind that such measures of detention should only be taken if absolutely necessary for security reasons. If this was initially not the case, the body would be bound to rescind them. The Tribunal concluded that

‘the fundamental consideration must be that no civilian should be kept in assigned residence or in an internment camp for a longer time than the security of the detaining party absolutely requires’.<sup>221</sup>

<sup>215</sup> Van der Wolf (ed.), *War Crimes and International Criminal Law* 95.

<sup>216</sup> *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgement, Trial Chamber, 16 November 1998, para 577. This view was confirmed by *Prosecutor v. Delalić et al.*, IT-96-21-A, Judgement, Appeals Chamber, 20 February 2001, para 327; *Prosecutor v. Prlić et al.*, IT-04-74-T, Judgement, Trial Chamber, 29 May 2013, para 134. See also ICTY, Closing statement of the Prosecution, *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgement, Trial Chamber, 16 November 1998, Annex 1, pp A1-8 et seq.; Pictet (ed.), *Commentary IV, Article 42*, 258.

<sup>217</sup> *Prosecutor v. Prlić et al.*, IT-04-74-T, Judgement, Trial Chamber, 29 May 2013, para 134 with further references.

<sup>218</sup> *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgement, Trial Chamber, 16 November 1998, para 578; *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-A, Judgement, Appeals Chamber, 17 December 2004, para 284; *Prosecutor v. Prlić et al.*, IT-04-74-T, Judgement, 29 May 2013, para 135.

<sup>219</sup> Pejčić (2005) 858 *IRRC* 384.

<sup>220</sup> *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgement, Trial Chamber, 16 November 1998, para 580.

<sup>221</sup> *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgement, Trial Chamber, 16 November 1998, para 581.



Therefore, '[a]n initially lawful internment clearly becomes unlawful if the detaining party does not respect the basic procedural rights of the detained persons and does not establish an appropriate court or administrative board as prescribed in article 43 GC IV'<sup>222</sup> or in the case of confinement of civilians in occupied territory, as prescribed in article 78 of the Fourth Geneva Convention. Two procedures are foreseen in article 43 and *mutatis mutandis* in article 78: Any protected person deprived of his/her liberty is entitled to have such action reconsidered as soon as possible by a court or administrative board.<sup>223</sup> The ICTY held that 'the Detaining Power must, within a reasonable time, determine on a case-by-case basis whether a detained person constitutes a threat to the security of the State'.<sup>224</sup> Reasonable time has been defined by the Appeals Chamber as 'the *minimum* time necessary to make enquiries to determine whether a view that they pose a security risk has any objective foundation such that it would found a "definite suspicion"'.<sup>225</sup> If the internment or placing in assigned residence is maintained, the court or administrative board/competent body must periodically, and at least twice yearly, give consideration to his or her case, with a view to the favourable amendment of the initial decision, if circumstances permit.<sup>226</sup> Again, the assessment of the court or board must be done on an individual basis. As pointed out in article 75 of Additional Protocol I reflecting customary international law and building upon article 132 of the Fourth Geneva Convention, the person must be released with the minimum delay possible and in any event as soon as the circumstances justifying the deprivation of liberty have ceased to exist.

These considerations as expressed by the ICTY in the *Delalić* case are now clearly covered in the elements of this crime. The essence of the war crime may consequently be summarized as follows:

The detention or confinement of protected persons will be unlawful in the following two circumstances:

- When a protected person or persons have been detained in contravention of article 42 of the Fourth Geneva Convention, *i.e.* they are detained without reasonable grounds to believe that the security of the Detaining Power makes it absolutely necessary; and
- where the procedural safeguards required by article 43 of the Fourth Geneva Convention are not complied with in respect of detained protected persons, even where their initial detention may have been justified.<sup>227</sup>

The same applies *mutatis mutandis* to the situation in Occupied Territories covered by article 78 GC IV.

No mental element has been added to the elements. Consequently, the article 30 standard applies.<sup>228</sup>

<sup>222</sup> *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgement, Trial Chamber, 16 November 1998, para 583. This view was confirmed by *Prosecutor v. Delalić et al.*, IT-96-21-A, Judgement, Appeals Chamber, 20 February 2001, para 322; *Prosecutor v. Prlić et al.*, IT-04-74-T, Judgement, Trial Chamber, 29 May 2013, para 136.

<sup>223</sup> For the requirements of such court or board, in particular the requirement to have the authority to render final decisions on internment or release, see *Prosecutor v. Delalić et al.*, IT-96-21-A, Judgement, Appeals Chamber, 20 February 2001, para 329. More general on the requirements of the reconsideration procedure Pejic (2005) 858 *IRRC* 385 *et seq.*

<sup>224</sup> *Prosecutor v. Prlić et al.*, IT-04-74-T, Judgement, 29 May 2013, para 135 with further references.

<sup>225</sup> *Prosecutor v. Delalić et al.*, IT-96-21-A, Judgement, Appeals Chamber, 20 February 2001, para 328; *Prosecutor v. Prlić et al.*, IT-04-74-T, Judgement, Trial Chamber, 29 May 2013, para 135.

<sup>226</sup> Pejic (2005) 858 *IRRC* 384.

<sup>227</sup> *Prosecutor v. Delalić et al.*, IT-96-21-A, Judgement, Appeals Chamber, 20 February 2001, para 322; *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-A, Judgement, Appeals Chamber, 17 December 2004, para 72; *Prosecutor v. Prlić et al.*, IT-04-74-T, Judgement, Trial Chamber, 29 May 2013, para 139. See also *Prosecutor v. Kaing Guek Eav* (alias: Duch), 001/18-07-2007/ECCC/TC, Judgement, 26 July 2010, para 465.

<sup>228</sup> Werle and Jessberger, *Principles* (2014) 456; *Prosecutor v. Kaing Guek Eav* (alias: Duch), 001/18-07-2007/ECCC/TC, Judgement, 26 July 2010, para 466, the Court held that the requisite mental element would include both culpable intent and recklessness, the general mental element applied by the ICTY to all grave breaches.

### 8. Paragraph 2(a)(viii): ‘Taking of hostages’

171 This act is a grave breach of the Fourth Geneva Convention only (article 147 GC IV). Hostage taking is specifically prohibited in article 34 of the Fourth Geneva Convention. Article 34 is part of the section ‘Provisions common to the territories of the Parties to the conflict and to occupied territories’ and thus applies to all protected persons in the sense of article 4 of the Fourth Convention. The prohibition of hostage-taking is now firmly entrenched in customary international law and considered a fundamental guarantee. It applies to all persons in the power of an adverse party.<sup>229</sup>

172 The specific elements of this crime are defined in the following way:

- ‘1. The perpetrator seized, detained or otherwise held hostage one or more persons.
2. The perpetrator threatened to kill, injure or continue to detain such person or persons.
3. The perpetrator intended to compel a State, an international organization, a natural or legal person or a group of persons to act or refrain from acting as an explicit or implicit condition for the safety or the release of such person or persons.’

173 The elements are largely taken from the definition in the 1979 International Convention against the Taking of Hostages. Given that this convention is not an international humanitarian law treaty and that it was drafted in a different legal context, the elements of this war crime were slightly adapted to the context of the law of armed conflict. The Hostage Convention defines hostage-taking in Article 1.1 as

‘any person who seizes or detains and threatens to kill, to injure or to continue to detain another person (the ‘hostage’) in order to compel a third party, namely a State, an international organisation, a natural or judicial person, or a group of persons, to do or abstain from doing any act as an explicit or implicit condition for the release of the hostage’.

174 Taking into account the case law from the Second World War, this definition was considered to be too narrow. The text in the Elements of Crimes, therefore, defines the specific mental element in the following terms, adding the emphasized element:

‘The perpetrator intended to compel a State, an international organisation, a natural or legal person or a group of persons, to act or refrain from acting as an explicit or implicit condition for **the safety or the release of such person or persons**’.

175 The elements are largely in line with the jurisprudence of the ICTY, which is, however, less specific. The Appeals Chamber stated that the essential element of this crime is the use of a threat concerning detainees in order to obtain a concession or gain an advantage, the latter being equally broad as the requirement from the Hostage Convention – ‘any act’. A hostage-taking exists when a person seizes or detains and threatens to kill, injure or continue to detain another person (material elements) in order to compel a third party to do or to abstain from doing something as a condition for the safety or release of that person (special intent criterion).<sup>230</sup> Thus, control over the protected person must be established, a qualified threat

<sup>229</sup> For further discussion of the origins and the customary nature of the prohibition, see Henckaerts and Doswald-Beck, *Customary IHL* 334, 336, 574; see also article 75 Add. Prot. I. See also *Prosecutor v. Karadžić*, IT-95-5/18-AR72.5, Decision, Appeals Chamber, 9 July 2009, para 21 (‘any conduct of hostage-taking involving POWs could not but be in violation of the Third Geneva Convention’) and *Prosecutor v. Karadžić*, IT-95-5/18-AR73.9, Decision, Appeals Chamber, 11 December 2012, para 16; David, *Principes* (3<sup>rd</sup> ed. 2002), para 4.144 (‘La prise d’otage reste donc une infraction même lorsque l’otage est un combattant capturé.’); Dinstein, *The Conduct of Hostilities* (2004) 261–262 (‘No hostages can be taken, whether civilians, combatants (especially, prisoners of war), or even neutrals.’); Salinas Burgos (1989) 270 *IRRC* 203; UK, Military Manual, para 16.1.3 (‘The taking of hostages, whether civilian or military, is now prohibited.’); Ambos, *Treatise on ICL II* (2014) 166–7.

<sup>230</sup> *Prosecutor v. Blaškić*, IT-95-14-A, Judgement, Appeals Chamber, 29 July 2004, para 639. See also the finding of the Trial Chamber in the same case:

‘Within the meaning of Article 2 of the Statute [listing the grave breaches of the GC], civilian hostages are persons unlawfully deprived of their freedom, often arbitrarily and sometimes under threat of death. However [...] detention may be lawful in some circumstances, inter alia to protect civilians or when security reasons so

explicitly or implicitly be made and through the threat the perpetrator must intend to coerce a third party to achieve the fulfillment of a specific condition.

It is disputed whether the war crime requires an unlawful deprivation of liberty at the outset, or whether an initially unlawful deprivation may also amount to hostage taking if the other elements – threat and intended compelling – are met, possibly at a later stage. The jurisprudence of the ICTY, in line with the original ICRC Commentary on GC IV, requires that the deprivation of liberty must be unlawful.<sup>231</sup> The Special Court for Sierra Leone and W. Fenrick in the First Edition of this commentary took a different view.<sup>232</sup> The drafting of element 1, in particular the formulation ‘or otherwise held’, seems to support the latter view.

The threat posed must itself be unlawful. This is particularly the case when it comes to threats to continue to detain. In fact not all such threats are unlawful. When, for example, someone, who is lawfully detained and whose release is not legally required, is threatened with continued detention as part of a negotiation for a prisoner exchange or other negotiation, this would not amount to hostage-taking. It would, however, be unlawful as part of such a negotiation to threaten with continued detention if a release were required by law, *e.g.* Articles 132 *et seq.*

The Appeals Chamber of the SCSL held in the *Sesay* case that ‘[i]t does not follow from a requirement that the threat be made with an intention to coerce that the threat be communicated to the third party’. It thus found that ‘the communication of the threat to a third party is not an element of the offence’.<sup>233</sup> The communication of the threat to a third party may however prove the intent to coerce.<sup>234</sup>

No mental element has been added to the two material elements. Consequently, the article 30 standard applies. Element 3 defines a special intent criterion. The perpetrator need not have the special intent at the moment of gaining control over the protected person, he/she may develop the intent at a later stage.<sup>235</sup>

### C. Article 8 para. 2 lit b: Other serious violations of the laws and customs applicable in international armed conflicts

**Literature:** Aldrich, G., ‘Yugoslavia’s Television Studios as Military Objectives’, (1999) 1 *ILF* 149; Ambos, K., ‘International Criminal Responsibility in Cyberspace’, in: Tsagourias, N., and Buchan, R., (eds.), *Research Handbook Cyberspace and International Law* (Elgar 2015); Ambos, K., ‘International Criminal Responsibility in Cyberspace’, in: N. Tsagourias and R. Buchan (eds.), *Research Handbook on Cyberspace and International Law*

impel. The Prosecution must establish that, at the time of the supposed detention, the allegedly censurable act was perpetrated in order to obtain a concession or gain an advantage’.

*Prosecutor v. Blaškić*, IT-95-14-T, Judgement, Trial Chamber, 3 March 2000, para 158.

See also *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-T, Judgement, Trial Chamber, 26 February 2001, paras. 312 *et seq.*

<sup>231</sup> *Prosecutor v. Blaškić*, IT-95-14-T, Judgement, Trial Chamber, 3 March 2000, para 158; *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-T, Judgement, Trial Chamber, 26 February 2001, paras. 312 *et seq.*; *Prosecutor v. Karadžić*, IT-95-5/18-PT, Prosecution Submission Pursuant to Rule 73 bis(D), 31 August 2009, para 65; Pictet (ed.), *Commentary IV, Article 147*, 600. See also Bassiouni, in: Bernhardt (ed.), *EPIL*, ii (1995) 877–881; Füracker, in: *EPIL* (April 2011), available online at: <<http://opil.ouplaw.com/view/10.1093/law:epil/9780199231690/law-9780199231690-e808?rskey=6TIsZw&result=3&prd=EPIL>> accessed 6 January 2015.

<sup>232</sup> *Prosecutor v. Sesay et al.*, SCSL-04-15-A, Judgement, Appeals Chamber, 26 October 2009, para 598. See also Zimmermann and Geiss, *Münchener Kommentar*, § 8 *VStGB*, mn 133; Ambos, *Treatise on ICL II* (2014) 167.

<sup>233</sup> *Prosecutor v. Sesay et al.*, SCSL-04-15-A, Judgement, Appeals Chamber, 26 October 2009, para 582.

<sup>234</sup> See also Lambert J. J., *Terrorism and Hostages in International Law. A Commentary on the Hostages Convention 1979* (1990), 85.

<sup>235</sup> Zimmermann and Geiss, *Münchener Kommentar*, § 8 *VStGB*, mn 210; see also *Prosecutor v. Sesay et al.*, SCSL-04-15-A, Judgement, Appeals Chamber, 26 October 2009, para 597: ‘As a matter of law, the requisite intent [for hostage-taking] may be present at the moment the individual is first detained or may be formed at some time thereafter while the persons were held. In the former instance, the offence is complete at the time of the initial detention (assuming all the other elements of the crime are satisfied); in the latter, the situation is transformed into the offence of hostage-taking the moment the intent crystallises (again, assuming the other elements of the crime are satisfied).’

(Cheltenham: Edgar 2014) <[http://papers.ssrn.com/sol3/papers.cfm?abstract\\_id=2412626](http://papers.ssrn.com/sol3/papers.cfm?abstract_id=2412626)>; accessed 26 January 2015; Blix, H., 'Area Bombardment: Rules and Reasons', (1978) *BYbIL* 31; Boothby, W.H., *The Law of Targeting* (2012); Bothe, M., Partsch, K.J. and Solf, W.A., *New Rules For Victims of Armed Conflicts, Commentary* (1982); Dinstein, Y., *The Conduct of Hostilities Under the Law of International Armed Conflicts* (2<sup>nd</sup> ed., 2014); Dörmann, K., Applicability of the Additional Protocols to Computer Network Attacks, <[https://www.icrc.org/eng/assets/files/other/applicability\\_ofihtocna.pdf](https://www.icrc.org/eng/assets/files/other/applicability_ofihtocna.pdf)> id. (with contributions by Doswald-Beck, L. and Kolb, R.), *Elements of War Crimes under the Rome Statute of the International Criminal Court* (2003); id., 'War Crimes under the Rome Statute of the International Criminal Court, with a Special Focus on the Negotiations on the Elements of Crimes', (2003) 7 *MPYbUNL* 341; id., in: *MünchKommB, Strafgesetzbuch – Vol 8, Nebenstrafrecht III* (2<sup>nd</sup> ed., 2013); Droegge, C., 'Get Off My Cloud: Cyber Warfare, International Humanitarian Law, and the Protection of Civilians', (2012) 886 *IRRC* 533; Elliott, H.W., 'Open Cities and undefended places', (1995) *The Army Lawyer*, 39; Fenrick, W.J., 'The Rule of Proportionality and Protocol I in Conventional Warfare', (1982) 98 *MILRev* 91; id., 'Attacking the Enemy Civilian as a Punishable Offence', (1997) 7 *DukeComp&IL* 539; Fleck, D. (ed.), *The Handbook of Humanitarian Law in Armed Conflicts* (3<sup>rd</sup> ed., 2013); id., 'Strategic Bombing and the Definition of Military Objectives', (1997) 27 *IsYbHumRts*; Gardam, J.G.G., *Non-Combatant Immunity as a Norm of International Humanitarian Law* (1993); Gaudreau, J., 'Les Réserves aux Protocoles Additionnels aux Conventions de Genève pour la Protection des Victimes de la Guerre', (2003) 849 *IRevRC* 143; Parks, W.H., 'Air War and the Law of War', (1990) 32 *AFLRev* 1; Henckaerts, J.-M. and Doswald-Beck, L., *Customary International Humanitarian Law, i: Rules* (2005); ICRC, *Interpretive Guidance on the Notion of Direct Participation in Hostilities under International Humanitarian Law* (prepared by Nils Melzer), (2009), <<http://www.icrc.org/eng/assets/files/other/icrc-002-0990.pdf>> accessed 26 January 2015; ICRC, *International Humanitarian Law and the Challenges of Contemporary Armed Conflicts* (2011) 31IC/11/5.1.2, <<http://www.icrc.org/eng/assets/files/red-cross-crescent-movement/31st-international-conference/31-int-conference-ihl-challenges-report-11-5-1-2-en.pdf>> accessed 26 January 2015; Quéguiner, J.-F., 'Dix Ans Après la Création du Tribunal Pénal International pour l'Ex-Yougoslavie: Évaluation de l'Apport de sa Jurisprudence au Droit International Humanitaire', (2003) 850 *IRevRC* 271; Robertson, H.B., 'The Principle of the Military Objective in the Law of Armed Conflict', in: M.N. Schmitt (ed.), *The Law of Military Operations: Liber Amicorum Professor Jack Grunawalt*, (1998) *International Law Studies* 72; Rogers, A.P.V., *Law on the Battlefield* (2004); Sassòli, M., 'Targeting: The Scope and Utility of the Concept of 'Military Objectives' for the Protection of Civilians in Contemporary Armed Conflicts', in: D. Wippman and M. Evangelista (eds.), *New Wars, New Laws? Applying the Laws of War in 21st Century Armed Conflict* (2005); id. and Cameron, L., 'The Protection of Civilian Objects – Current State of the Law and Issues *de lege ferenda*', in: N. Ronzitti and G. Venturini, *Current Issues in International Humanitarian Law of Air Warfare* (2006) 35; Schmitt, M.N., 'Wired Warfare: Computer Network Attack and *jus in bello*', (2002) 846 *IRevRC* 365; id., 'Direct Participation in Hostilities' and 21st Century Armed Conflict', in: H. Fischer *et al.* (eds.), *Krisensicherung und Humanitärer Schutz – Crisis Management and Humanitarian Protection: Festschrift für Dieter Fleck* (2004); id., 'Cyber Operations and the *Jus in Bello*: Key Issues', (2011) 87 *International Law Studies* 93; Solf W.A., 'Protection of Civilians against the Effects of Hostilities under Customary International Law and under Protocol I', (1986) 1 *AmUJIL&Pol*, 128; UK Ministry of Defence, *The Manual of the Law of Armed Conflict* (2004); United State Department of Defense, *Report to Congress on the Conduct of the Persian Gulf War – Appendix on the Role of the Law of the War*, (10 April 1992) 31 *ILM* 3.

### I. Preliminary remarks

- 180 The *chapeau* of article 8 para 2 (b) refers first to 'serious violations of the laws and customs applicable in international armed conflict'. 'Laws and customs applicable in international armed conflict' is an unusual amalgamation of the older notion of the 'laws and customs of war' and modern IHL terminology. In any event, the phrase makes it clear that all war crimes under paragraph b only apply in international armed conflict situations, and that they may be derived from customary and/or treaty IHL. The *chapeau* moreover adds 'within the established framework of international law'. This phrase may have been added to underline that the offenses under article 8 para 2 (b) must be interpreted in line with 'established' IHL, possibly to exclude an all too progressive interpretation of, for instance, offenses derived from Add. Prot. I.
- 181 The 26 offenses under article 8 para 2 (b) stem from different sources. Roughly, the wording of ten of the 26 offenses under article 8 para 2 (b) is exclusively based on the 1907 Hague Regulations, four provisions based on the grave breaches provisions of Additional Protocol I, six derive from various other provisions of the Protocol or the Geneva Conventions, three base their wording on other international instruments, and another three derive their wording from more than one international instrument. A categorization of these offenses according to the conduct concerned can be found in the introduction to article 8.

## II. Offences under paragraph 2(b)

### 1. Paragraph 2(b)(i): Intentionally directing attacks against civilians not taking direct part in hostilities

The treaty roots of this provision are in the First Additional Protocol (Add. Prot. I). 182 article 51 para 2 Add. Prot. I states in part ‘The civilian population as such, as well as individual civilians, shall not be the object of attack’. This prohibition is part of customary international law.<sup>236</sup> Article 85 para 3 Add. Prot. I indicates that ‘making the civilian population or individual civilians the object of attack’ is a grave breach when the act is committed wilfully and causes death or serious injury. The war crime under the Rome Statute is defined in a slightly different manner. In particular, no result requirement has been introduced and instead of referring to ‘wilfully’ the Statute requires that the attack be intentionally directed. The essence is the same: it is a war crime to directly target the civilian population or individual civilians. The causing of civilian casualties or injuries incidental to an attack at combatants or other military objectives is not covered by this crime, but by article 8 para. 2 (b) (iv). The specific elements of this war crime are drafted in the following manner:

1. The perpetrator directed an attack.
2. The object of the attack was a civilian population as such or individual civilians not taking direct part in hostilities.
3. The perpetrator intended the civilian population as such or individual civilians not taking direct part in hostilities to be the object of the attack.’

The elements do not further explain concepts like ‘attack’, ‘civilian population’, ‘civilians’ 183 and ‘taking a direct part in hostilities’. Clarification can however be found in the underlying treaty and customary law bases.

The term ‘attack’ is specifically defined for IHL purposes and means acts of violence 184 against the adversary, whether in offence or in defence (article 49 para 1 Add. Prot I).<sup>237</sup> Its meaning is unrelated to meanings given to the same term under *ius ad bellum*. It refers to any combat action, thus offensive acts and defensive acts (sometimes also called ‘counter attacks’). Thus, for the purpose of this definition, it does not matter whether the acts are committed by an aggressor or by the party acting in self-defence.

The term ‘acts of violence’ denotes physical force. It covers the use of weapons, but acts such 185 as disseminating propaganda, embargos or non-physical forms of psychological, political or economical warfare would not fall under the notion of attack.<sup>238</sup> However, there is no reason to believe that ‘attack’ is limited to kinetic means and methods of combat. Cyber operations, which can be understood as operations against or via a computer or a computer system through a data stream, by means of viruses, worms, *etc.*, that result in physical damage to persons, or damage to objects that goes beyond the computer program or data attacked are to be qualified as ‘acts of violence’, *i. e.* as an attack in the sense of IHL.<sup>239</sup> Such attacks could be

<sup>236</sup> Henckaerts and Doswald-Beck, *Customary IHL*, III (2005) 3–5.

<sup>237</sup> *Prosecutor v. Galić*, IT-98-29-T, Judgement, Trial Chamber, 5 December 2003, para 52; *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-A, Judgement, Appeals Chamber, 17 December 2004, para 47; *Prosecutor v. Strugar*, IT-01-42-T, Judgement, Trial Chamber, 31 January 2005, para 282; *Prosecutor v. D. Milošević*, IT-98-29/1-T, para 943; *Prosecutor v. Perišić*, IT-04-81-T, Judgement, Trial Chamber, 12 December 2007, para 91; *Prosecutor v. Prlić et al.*, IT-04-74-T, Judgement, Trial Chamber, 29 May 2013, para 184; *Prosecutor v. Bahar Idriss Abu Garda*, ICC-02/05-02/09, Decision on the Confirmation of Charges, 8 February 2010, para 65; *Prosecutor v. Katanga and Chui*, ICC-01/04-01/07, Decision, Pre-Trial Chamber, 30 September 2008, para 266; Werle and Jessberger, *Principles* (2014) 477 with further references.

<sup>238</sup> Solf, in: Bothe *et al.*, *Commentary*, Article 49, 289.

<sup>239</sup> ICRC, *International Humanitarian Law and the challenges of contemporary armed conflicts*, 36 *et seq.*; Schmitt, *Wired Warfare*, 377 *et seq.*; Dörmann, *Münchener Kommentar*, § 11 VStGB, mn. 32; Dörmann, *Applicability of the Additional Protocols to Computer Network Attacks*, 1., 2.; Droegge (2012) 886 *IREvRC*, 556 *et seq.*; Boothby, *The Law of Targeting*, 81, 384 *et seq.*; Ambos, in Tsagourias/Buchan, *Handbook Cyberspace*, 2015, XX.



for example the opening of a floodgate of a dam, which leads to the death of persons in the flooded areas – it can't make a difference whether such casualties are caused by a bomb or by means of a cyber attack. What defines an attack is not the violence of the means – as it is uncontroversial that the use of biological, chemical or radiological agents would constitute an attack<sup>240</sup> –, but the violence of the effects or consequences, even if indirect.

186 It is sometimes claimed that cyber operations do not fall within the definition of 'attack' as long as they do not result in physical damage or when its effects are reversible. If this claim implies that a civilian object may be lawfully shut down/rendered dysfunctional in such cases, it is suggested that this is unfounded under existing law – at least if the consequences go beyond mere inconvenience.<sup>241</sup> It is worth recalling in this context that the ordinary meaning of 'damage' is 'harm [...] impairing the value or usefulness of something [...]'.<sup>242</sup>

187 Article 50 para 1 Add. Prot. I defines civilians as all persons who are not members of the armed forces [in the sense of articles 4 A (1), (2), (3) GC III and 43 of Add. Prot. I] or are part of a *levée en masse* (article 4 A (6) GC III). The civilian population includes all persons who are civilians (article 50 para 2 of Add. Prot. I).<sup>243</sup> This also includes – without explicitly mentioning – journalists (see for example article 79 Add. Prot. I), relief personnel, civilian medical and religious personnel, personnel of national Red Cross and Red Crescent societies, personnel of the ICRC, *etc.* In case of doubt, whether a person is a civilian, that person is to be considered a civilian (article 50 para 1 sent 2 of Add. Prot. I).<sup>244</sup> The presence of some individual members of the armed forces within the civilian population does not deprive the population of its civilian character (article 50 para 3 of Add. Prot. I).<sup>245</sup>

<sup>240</sup> See e.g. *Prosecutor v. Tadić*, IT-94-1-AR72, Decision on the Defense Motion for Interlocutory Appeal on Jurisdiction, Appeals Chamber, 2 October 1995, paras. 120, 124 for chemical weapons; Boothby, *The Law of Targeting* 384.

<sup>241</sup> Under IHL, attacks may only be directed at military objectives, while objects not falling within that definition are civilian and may not be attacked. The definition of military objectives is not dependent on the method of warfare used and must be applied to both kinetic and non-kinetic means; the fact that a cyber operation does not lead to the destruction of an attacked object is also irrelevant. Pursuant to article 52 (2) of Add. Prot. I, only objects that make an effective contribution to military action and whose total or partial destruction, capture or neutralization offers a definite military advantage, may be attacked. By referring not only to destruction or capture of the object but also to its neutralization the definition implies that it is immaterial whether an object is disabled through destruction or in any other way (cf. ICRC, *International Humanitarian Law and the challenges of contemporary armed conflicts*, 36 *et seq.*; Dörmann, *Applicability of the Additional Protocols to Computer Network Attacks*, 1., 2.; on the notion of neutralization in the definition of a military objective, Solf, in: Bothe *et al.*, *Commentary, Article 52*, 325; for a different view Schmitt, *Wired Warfare*, 377 *et seq.*; (more nuanced) *id.*, 87 ILS 95; Stein and Maruhn (2000) 69/1 ZaöRV 35. Boothby takes the view that if a cyber operation targets a computerized control system and by doing so causes damage to that computer's software or data such that the computer is rendered inoperative and the control function ceases to be performed and requires repair, that would render the cyber operation an attack due to the damage done to the control system, Boothby, *The Law of Targeting*, 386. For an analysis of different views Droegge (2012) 886 IRevRC, 556 *et seq.* See also Ambos, *ICL Treatise II* (2014) 124.

<sup>242</sup> *The Concise Oxford Dictionary* (9<sup>th</sup> ed., OUP, 1995) 338.

<sup>243</sup> For the customary law nature see Henckaerts and Doswald-Beck, *Customary IHL*, iii (2005) 17–18; *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-A, Judgement, Appeals Chamber, 17 December 2004, para. 48; *Prosecutor v. D. Milošević*, IT-98-29/1-T, Judgment, Trial Chamber, 12 December 2007, para. 945; *Prosecutor v. Prlić et al.*, No. IT-04-74-T, Judgement, Trial Chamber, 29 May 2013, para. 185.

<sup>244</sup> See also *Prosecutor v. Galić*, Case IT-98-29-T, Judgement, Trial Chamber, 5 December 2003, para 50; *Prosecutor v. D. Milošević*, IT-98-29/1-T, Judgement, Trial Chamber, 12 December 2007 para 946. In a criminal law trial the prosecutor would have to prove that 'in the given circumstances a reasonable person could not have believed that the individual he or she attacked was a combatant', *Prosecutor v. Galić*, IT-98-29-A, Judgement, Appeals Chamber, 30 November 2006, para 140; *Prosecutor v. Perišić*, IT-04-81-T, Judgement, Trial Chamber, 6 September 2011, para 101.

<sup>245</sup> For more detail see Solf, in: Bothe *et al.*, *Commentary, Article 50*, 297; see also *Prosecutor v. Galić*, IT-98-29-A, Judgement, Appeals Chamber, 30 November 2006, para 136 *et seq.*, with further references; *Prosecutor v. Kordić and Čerkez*, Case IT-95-14/2-A, Judgement, Appeals Chamber, 17 December 2004, para 50; *Prosecutor v. Strugar*, IT-01-42-T, Judgement, Trial Chamber, 31 January 2005, para 282; *Prosecutor v. Perišić*, IT-04-81-T, Judgement, Trial Chamber, 6 September 2011, para 94; *Prosecutor v. Prlić et al.*, IT-04-74-T, Judgement, Trial Chamber, 29 May 2013, para 187 *et seq.*



The civilian population and individual civilians are protected against direct attacks. This protection is absolute with one limited exception: civilians only lose the protection against attacks if they take a direct part in hostilities.<sup>246</sup> This loss of protection is limited to the time they take a direct part in hostilities ('unless and for such time as', see article 51 para 3 of Add. Prot. I). While the customary nature of the rule on loss of protection against direct attacks in case of direct participation is firmly established,<sup>247</sup> it is sometimes questioned whether the same strict temporal approach set out in the Additional Protocols also applies under customary international law.<sup>248</sup> Others do not question the temporal dimension of the loss of protection under customary law, but argue that the temporal boundary of direct participation is not clearly settled in state practice.<sup>249</sup> The Israeli High Court has however asserted that the temporary loss of protection as laid out in Add. Prot. I 'unless and for such time as' reflects customary international law, thus civilians are again protected against direct attack, once their direct participation in hostilities has ended.<sup>250</sup>

The notion of direct participation in hostilities is not defined in any IHL instrument and also State practice is far from clear, leaving grey areas in the interpretation of the notion. Against this background the ICRC developed after six years of expert consultations its interpretive guidance in 2009.<sup>251</sup> However, this publication did not finish the international debate. While it seems that in most cases, a concrete situation will in practice be assessed similarly, certain aspects of the guidance continue to be controversially discussed.<sup>252</sup> In any case, the guidance is still the only contribution that covers the notion in all its aspects. In light of this only broad strokes are being presented here, to the extent relevant for the present war crime in international armed conflicts. It is uncontroversial that direct participation in hostilities covers 'acts of war which by their nature or purpose are likely to cause actual harm to the personnel and equipment of the enemy armed forces'. State practice is not always clear for activities falling short of this. Two things should be stressed: indirect participation in hostilities does not render a civilian liable to attack and the test is 'participation in hostilities', not 'participation in armed conflict' or 'participation in the war effort', which may be wider concepts. The mentioned test had been exposed in the ICRC commentary to the Additional Protocols and served as a basis for the ICTY case law.<sup>253</sup> It seems however to be too narrow at least as it would exclude for example (unlawful) attacks against civilians or civilian objects. Three elements need to be assessed in accordance with the ICRC Interpretive Guidance: the threshold of harm, direct causation and belligerent nexus in order to determine whether a particular conduct amounts to direct participation in hostilities.<sup>254</sup>

<sup>246</sup> It should be stressed that this loss of protection for direct participation has no consequences for their protection under the Fourth Geneva Convention, when they are in enemy hands and fulfil the nationality criteria of article 4 of that Convention: they are still protected persons.

<sup>247</sup> For the customary law nature see Henckaerts and Doswald-Beck, *Customary IHL*, iii (2005) 19–23.

<sup>248</sup> Parks (1990) 32 *AFLRev* 118.

<sup>249</sup> E.g. Schmitt, in: Fischer et al. (eds.), *Krisensicherung und Humanitärer Schutz* (2004) 509–510.

<sup>250</sup> Israel, The Supreme Court Sitting as the High Court of Justice, *The Public Committee against Torture in Israel and others v. The Government of Israel and others*, 13 December 2006, HCJ 769/02, paras. 23, 29–30 and 38–43.

<sup>251</sup> ICRC, *Interpretive Guidance on the Notion of Direct Participation in Hostilities under International Humanitarian Law*.

<sup>252</sup> Cf. for a brief overview of aspects still under debate ICRC, *International Humanitarian Law and the challenges of contemporary armed conflicts*, p. 44. For scholarly critique of certain aspects of the Interpretive Guidance and a response to those views by Nils Melzer, see Goodman R. et al., 'The ICRC interpretive guidance on the notion of direct participation in hostilities under international humanitarian law' (2010) *JIL&Pol* 637; Lubell, *Extraterritorial Use of Force against Non-State Actors* (2010) 140–143, 147–155. See also however Report of the UN Special Rapporteur on Extrajudicial, Summary or Arbitrary Executions, Philip Alston, A/HRC/14/24/Add.6, 28 May 2010, at: <http://www2.ohchr.org/english/bodies/hrcouncil/docs/14session/A.HRC.14.24.Add6.pdf>, accessed January 12, 2015.

<sup>253</sup> Pilloud and Pictet, in: Sandoz et al., *Commentary, Article 51*, para. 1944; *Prosecutor v. Galić*, IT-98-29-T, Judgement, Trial Chamber, (5 December 2003, para 4; *Prosecutor v. D. Milošević*, IT-98-29/1-T, Judgement, Trial Chamber, 12 December 2007, para 947; *Prosecutor v. Perisic*, IT-04-81-T, Judgement, Trial Chamber, 6 September 2011, para. 93.

<sup>254</sup> The three cumulative conditions identified by the ICRC were largely supported – albeit not in all detail – by the vast majority of participating experts and are formulated as follows: (1) 'The act must be likely to adversely

- 190 When a civilian shows the initially described conduct (e.g. the killing or injuring of an enemy combatant, destruction or damaging of a military installation, providing tactical information to conduct an attack, or transporting weapons to the front) and a nexus to the hostilities exists, such person may lawfully be attacked. An attack is undisputedly prohibited however if the person only provides a general contribution to the war effort (e.g. providing members of the armed forces with food, work in weapons factories, selling of goods to a party to an armed conflict, financing of a party to an armed conflict or sympathizing with a party to an armed conflict).<sup>255</sup>
- 191 In any case, direct participation in hostilities is the only situation, in which civilians lose their protection against direct attacks. It was therefore misleading for the ICTY to state in a couple of trial chamber judgements that ‘targeting civilians [...] is an offence when not justified by military necessity’,<sup>256</sup> in particular coupled with sometimes overly broad understandings of military necessity.<sup>257</sup> As has been stated elsewhere (see mn 119 under article 8 para 2 (a) (iv)), military necessity can only be invoked if explicitly foreseen in a norm and cannot be used as an additional justification. When a prohibition is absolute, like the prohibition of attacking civilians not taking a direct part in hostilities, there is no room for invoking military necessity. This has now been correctly recognized by the ICTY Appeals Chamber.<sup>258</sup>
- 192 Article 51 para 6 of Additional Protocol I prohibits attacking civilians or the civilian population by way of reprisals. The United Kingdom has entered a reservation to that treaty rule.<sup>259</sup> The status of the rule as customary international humanitarian law is not firmly established.<sup>260</sup> It therefore seems that the prohibition of reprisals currently reflects ‘the established framework of international law’ as mentioned in the *chapeau* of article 8 para 2 (b) of the ICC Statute only for those States and in relation to those States that have accepted the treaty prohibition.<sup>261</sup>

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affect the military operations or military capacity of a party to an armed conflict or, alternatively, to inflict death, injury, or destruction on persons or objects protected against direct attack (threshold of harm), and (2) there must be a direct causal link between the act and the harm likely to result either from that act, or from a coordinated military operation of which that act constitutes an integral part (direct causation), and (3) the act must be specifically designed to directly cause the required threshold of harm in support of a party to the conflict and to the detriment of another (belligerent nexus).’, ICRC, *Interpretive Guidance on the Notion of Direct Participation in Hostilities under International Humanitarian Law*, 46–64. See also Gasser and Dörmann, in: Fleck, *Handbook* (3<sup>rd</sup> ed., 2013), 255–256. Measures preparatory to the execution of a specific act of direct participation in hostilities, as well as the deployment to and the return from the location of its execution, constitute an integral part of that act, ICRC, *Interpretive Guidance*, 65 *et seq.*

<sup>255</sup> *Prosecutor v. Strugar*, IT-01-42-A, Judgement, Appeals Chamber, 17 July 2008, para 176 *et seq.*; *Prosecutor v. D. Milošević*, IT-98-29/1-T, Judgement, Trial Chamber, 12 December 2007, para 947; Dinstein, *The Conduct of Hostilities*, 28; Werle/Jessberger, *Principles* (2014) 480-1; Ambos, *ICL Treatise II* (2014) 156 *et seq.* with further references.

<sup>256</sup> *Prosecutor v. Blaskić*, IT-95-14-T, Judgement, Trial Chamber, 3 March 2000, para. 180; *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-T, Judgement, Trial Chamber, 26 February 2001, para. 328.

<sup>257</sup> See for example Hampson, in: Gutman and Rieff (eds.), *Crimes of War: What the Public Should Know* (1999) 251 *et seqq.*

<sup>258</sup> *Prosecutor v. Blaskić*, IT-95-14-A, Judgement, Appeals Chamber, 29 July 2004, para. 109; *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-A, Judgement, Appeals Chamber, 17 December 2004, para. 54, as revised by a ‘Corrigendum’ of 26 January 2005; *Prosecutor v. Galić*, IT-98-29-T, Judgement, Trial Chamber, 5 December 2003, para. 44; *Prosecutor v. Galić*, IT-98-29-A, Judgement, Appeals Chamber, 30 November 2006, para. 130; *Prosecutor v. Strugar*, IT-01-42-T, Judgement, Trial Chamber, 17 June 2004, para 280; *Prosecutor v. D. Milošević*, IT-98-29/1, Judgement, Trial Chamber, 12 December 2007, para 944; *Prosecutor v. Perisic*, IT-04-81-T, Judgement, Trial Chamber, 27 October 2008, para 96.

<sup>259</sup> Some authors have questioned whether such reservation is compatible with the object and purpose of the treaty (see article 19 (c) of the VCLT), e.g. Gaudreau (2003) 849 *IRRC* 170.

<sup>260</sup> Henckaerts and Doswald-Beck, *Customary IHL*, III (2005) 520–523. See however *Prosecutor v. Kupreskić*, IT-95-16-T, Judgement, Trial Chamber, 14 January 2000, paras. 527–534; *Prosecutor v. Martić*, IT-95-11-R61, Review of the Indictment, reprinted in: 108 *ILR* 39 47.

<sup>261</sup> This may explain the Declaration that the United Kingdom made when ratifying the Rome Statute: ‘The United Kingdom understands the term ‘the established framework of international law’, used in article 8 (2)(b) and (e), to include customary international law [...]. In that context the United Kingdom confirms and draws to

During the negotiations of the Elements of Crimes it was initially disputed whether this war crime required a specific result to occur, as is the case with article 85 para 3 (a) of Add. Prot. I, *i.e.* causing death or serious injury to body or health. The majority of delegations pointed out that during the negotiations at the Diplomatic Conference in Rome a result requirement was consciously left out. The crime would also be committed if an attack was directed against the civilian population or individual civilians, but, due to the failure of the weapon system, the intended target was not hit. Independently of the understandings of the Diplomatic Conference in Rome, this view finds strong support in the text of the Statute. Since a result requirement has been explicitly added elsewhere in the Statute, namely in article 8 para 2 (b) (vii) ('Making improper use of a flag of truce, of the flag or the military insignia and the uniform of the enemy or of the United Nations, as well as of the distinctive emblems of the Geneva Conventions, *resulting in death or serious personal injury*' (emphasis added)), one might conclude that, compared to the corresponding grave breach provision, a lower threshold was intentionally chosen in order to emphasise that article 8 para 2 (b) (i) is based on article 51 para 2 of Add. Prot. I. The other side, however, argued that it had been always the implicit understanding that the consequence required by the grave breaches provisions would be applicable with regard to war crimes derived from the grave breaches of Additional Protocol I. If there is a weapon failure the conduct should only be charged as an attempt. In the end, consensus was reached based on the majority view. The elements, therefore, do not require the attack to have a particular result.<sup>262</sup>

The ICTY has however held that under customary international law the result as described in the grave breach provision of Additional Protocol I is required.<sup>263</sup> In light of article 10 of the ICC Statute, it is not excluded that there are differences between the definitions of crimes in the Statute and other definitions under existing (or developing) international criminal law.

In the First Edition of this commentary, *W. Fenrick* asserted 'that article 8 para 2 (b) (i) of the Statute is substantially similar to the grave breach provision in the Add. Prot. I as 'intentionally directing' in the Statute is essentially similar to 'wilfully' in the Add. Prot. I. Both expressions encompass both intent and recklessness (see discussion for article 30)'.<sup>264</sup>

However, the discussions during the negotiations of the Elements of Crimes were rather contentious with regard to the mental element. The issue was how to interpret the expression 'intentionally directing an attack against'. It was debated whether the term 'intentionally' only related to the directing of an attack or also to the object of the attack. In the end, the latter approach was adopted in the elements. The crime thus requires that the perpetrator intended to direct an attack (this follows from the application of article 30 para 2 (a) ICC Statute, which requires that the perpetrator meant to engage in the conduct described, in conjunction with paragraph 2 of the General Introduction to the Elements of Crimes) and that he or she intended civilians to be the object of the attack.<sup>265</sup> The latter intent requirement, which is explicitly stated in element 3, also appears to be an application of the default rule contained in article 30. In this particular case the standard of article 30 para 2 (b) applies, *i.e.* the perpetrator meant to cause the consequence or is aware that it will occur in

the attention of the Court its views as expressed, *inter alia*, in its statements made on ratification of relevant instruments of international law, including the Protocol Additional to the Geneva Conventions of 12 August 1949, and relating to the Protection of Victims of International Armed Conflicts (Protocol I) of 8 June 1977', see UK Ministry of Defence, *The Manual of the Law of Armed Conflict*, No. 16.34.

<sup>262</sup> See Dörmann, *Element of Crimes* 130; *Prosecutor v. Katanga and Chui*, ICC-01/04-01/07, Decision, Pre Trial Chamber, 30 September 2008, para. 270.

<sup>263</sup> *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-A, Judgement, Appeals Chamber, 17 December 2004, para. 67; *Prosecutor v. Prlić et al.*, IT-04-74-T, Judgement, Trial Chamber, 29 May 2013, para. 191. In the *Galić* case the ICTY left this question open, *Prosecutor v. Galić*, IT-98-29-T, Judgement, Trial Chamber, 5 December 2003, para. 43.

<sup>264</sup> This has been confirmed in *Prosecutor v. Galić*, IT-98-29-T, Judgement, Trial Chamber, 5 December 2003, para. 54.

<sup>265</sup> Applying the article 30 para 2 (a) ICC Statute-test Ambos, *ICL Treatise II* (2014) 175 ('purpose-based intent').

the ordinary course of events. On the basis of paragraph 2 of the General Introduction to the Elements of Crimes the insertion of element 3 seems to be unnecessary, but it was justified *inter alia* by the fact that the term ‘intentionally’ is contained in the Statute and the insertion would add more clarity.

197 In this context, it is interesting to have a closer look at the views expressed by the ICTY Prosecution and the findings of the ICTY with regard to the war crime of unlawful attacks against civilians.

198 In the *Blaškić* case the Prosecution ‘maintained that the *mens rea* which characterises all the violations of Article 3 of the Statute [relevant to the unlawful attack charges], [...] is the intentionality of the acts or omissions, a concept containing both guilty intent and recklessness likeable to serious criminal negligence’,<sup>266</sup> and more specifically for the unlawful attack charge:

‘b.) the civilian status of the population or individual persons [...] was known or should have been known;

c.) the attack was wilfully directed at the civilian population or individual civilians; [...]’<sup>267</sup>

199 The Prosecution derived the mental element ‘wilful’ from article 85 para 3 of Add. Prot. I and, like the ICRC Commentary to that provision, interpreted it as including both intention and recklessness. This view was accepted later on in the *Galić* case.<sup>268</sup> An underlying reason was that Additional Protocol I imposes a wide range of duties on superiors to ensure that their forces comply with the law and to ensure that precautions are taken to avoid attacks being directed against civilians.<sup>269</sup>

200 While the ICTY Trial Chamber held in the *Blaškić* case:

‘Such an attack must have been conducted intentionally in the knowledge, or when it was impossible not to know, that civilians [...] were being targeted [...]’<sup>270</sup>

the Trial Chamber required in the *Galić* case the Prosecutor to show that the perpetrator was aware or should have been aware of the civilian status of the persons attacked. The ICTY thus accepted that recklessness/*dolus eventualis* is sufficient.<sup>271</sup> In situations of doubt as to the status of a person, the Prosecution would have to show that in the given circumstances a reasonable person could not have believed that the individual he or she attacked was a combatant.<sup>272</sup>

201 Based on these sources – independent of the slightly different standards adopted – it is submitted that the requisite *mens rea* may be inferred from the fact that the necessary precautions (e.g. the use of available intelligence to identify the target) had not been taken before and during an attack.

<sup>266</sup> *Prosecutor v. Blaškić*, IT-95-14-T, Judgement, Trial Chamber, 3 March 2000, para. 179.

<sup>267</sup> Quoted in Fenrick (2000) 13 *LeidenJIL* 939.

<sup>268</sup> *Prosecutor v. Galić*, IT-98-29-T, Judgement, Trial Chamber, 5 December 2003, para. 54.

<sup>269</sup> Fenrick (2000) 13 *LeidenJIL* 940.

<sup>270</sup> *Prosecutor v. Blaškić*, IT-95-14-T, Judgement, Trial Chamber, 3 March 2000, para. 180.

<sup>271</sup> ‘The attitude of an agent who, without being certain of a particular result, accepts the possibility of it happening’, *Prosecutor v. Galić*, IT-98-29-A, Judgement, Appeals Chamber, 30 November 2006, para 140. ‘[...] the prosecution must show that the perpetrator was aware or should have been aware of the civilian status of the person attacked.’, *Prosecutor v. Galić*, IT-98-29-T, Judgement, Trial Chamber, 5 December 2003, para 55; *Prosecutor v. Prlić et al.*, IT-04-74-T, Judgement, Trial Chamber, 29 May 2013, para 192 ‘for there to be intent, the perpetrator has to have acted knowingly and wilfully, that is to say, perceiving his acts and their consequences and purposing that they should come to pass. *Dolus eventualis* occurs when the perpetrator, without being certain that the result will take place, accepts it in the event it does come to pass. Conduct is negligent when the perpetrator acts without having his mind on the act or its consequences’; *Prosecutor v. Martić*, IT-95-11-T, Judgement, Trial Chamber, 12 June 2007, para 72; *Prosecutor v. Halilović*, IT-01-48-T, Judgement, Trial Chamber, 16 November 2005, para 36; *Prosecutor v. D. Milošević*, IT-98-29/1-T, Judgement, Trial Chamber, 12 December 2007, paras. 951 *et seq*; *Prosecutor v. Perišić*, IT-04-81-T, Judgement, Trial Chamber, 6 September 2011, para 100. In *Prosecutor v. Strugar*, IT-01-42-T, Judgement, Trial Chamber, 31 January 2005, para 283, the Trial Chamber left the question open whether less than ‘direct intent’ would suffice. The Appeals Chamber included however ‘indirect intent’ *Prosecutor v. Strugar*, IT-01-42-A, Judgement, Appeals Chamber, 17 July 2008, paras. 270–1.

<sup>272</sup> *Prosecutor v. Galić*, IT-98-29-T, Judgement, Trial Chamber, 5 December 2003, para. 55.

As always in case of conduct of hostilities charges, the Court must assess the information that were available or could reasonably be available to the accused at the moment of the attack. The assessment cannot be made with hindsight. 202

Taking into account the mental element required it remains to be seen whether this war crime also covers the use of indiscriminate weapons, *i.e.* those that are not capable of distinguishing between civilians or civilian objects and military objectives, which include combatants. Such weapons are defined in Additional Protocol I as means of combat that cannot be directed at a specific military objective or the effects of which cannot be limited as required by the Protocol and, consequently, in each such case, are of a nature to strike military objectives and civilians or civilian objects without distinction. The ICJ in its advisory opinion on nuclear weapons has equated the use of indiscriminate weapons with a deliberate attack on civilians.<sup>273</sup> Several ICTY Trial Chambers have concluded that indiscriminate attacks may qualify as direct attacks against civilians.<sup>274</sup> They have found that attacks which employ certain means of combat which cannot discriminate between civilians and civilian objects and military objectives are tantamount to direct targeting of civilians.<sup>275</sup> The Appeals Chamber supported in the *Galić* case the view that ‘a direct attack can be inferred from the indiscriminate character of the weapon use’.<sup>276</sup> Against this background, it must be assessed in each particular case whether the requisite *mens rea* exists. The fact that precautionary measures as required by Article 57 of Add. Prot. I have not been taken can serve as an indicator.<sup>277</sup> 203

In the light of the required mental element and the separate nature of the crime in the ICC Statute (*i.e.* article 8 para 2 (b) (iv)), it seems much more questionable – contrary to what is suggested by the ICTY in the *Galić* case<sup>278</sup> – to subsume an attack in violation of the principle of proportionality (*i.e.* an attack that causes excessive incidental civilian casualties or damages) under the present war crime. While an attack which is covered under article 8 para 2 (b) (i) of the ICC Statute must be directed against civilians or the civilian population as such, an attack meant by article 8 para 2 (b) (iv) of the ICC Statute is an attack directed against a military objective, including combatants, but causing incidental civilian casualties or damages.<sup>279</sup> Only one particular situation would support the ICTY’s view: if in a given case the anticipated civilian casualties or damages were so important or extensive that the target of the attack was in reality not a military objective but the civilian population.<sup>280</sup> In the view 204

<sup>273</sup> ICJ, *Legality of the threat or use of nuclear weapons*, Advisory Opinion of 8 July 1996, para 78: ‘States must never make civilians the object of attack and must consequently never use weapons that are incapable of distinguishing between civilian and military targets’.

<sup>274</sup> *Prosecutor v. Galić*, IT-98-29-T, Judgement, Trial Chamber, 5 December 2003, para. 57.

<sup>275</sup> *Prosecutor v. Blaskić*, IT-95-14-T, Judgement, Trial Chamber, 3 March 2000, paras. 501, 512; *Prosecutor v. Martić*, IT-95-11-R61, Review of the Indictment, reprinted in: 108 *ILR* 39, paras. 18, 23–31; *Prosecutor v. Galić*, IT-98-29-T, Judgement, Trial Chamber, 3 October 2002, para. 57; *Prosecutor v. D. Milošević*, IT-98-29/1, Judgement, Trial Chamber, 16 December 2005, para 948; *Prosecutor v. Perišić*, IT-04-81-T, Judgement, Trial Chamber, 27 October 2008, para. 97.

<sup>276</sup> *Prosecutor v. Galić*, IT-98-29-A, Judgement, Appeals Chamber, 30 November 2006, para 132; *Prosecutor v. Martić*, IT-95-11-T, Judgement, Trial Chamber, 12 June 2007, para 69; see also in the same case the Appeals Chamber, IT-95-11-A, Judgement, Appeals Chamber, 8 October 2008, para 260; *Prosecutor v. Perišić*, IT-04-81-T, Judgement, Trial Chamber, 6 September 2011, para 590; *Prosecutor v. Prlić et al.*, IT-04-74-T, Judgement, Trial Chamber, 29 May 2013, para 190.

<sup>277</sup> *Dürmann, Elements of War Crimes*, 147; *id.*, *MünchKommZ*, § 11 VStGB, mn 147 *et seq.*; *Prosecutor v. D. Milošević*, No. IT-98-29/1, Judgement, Trial Chamber, 16 December 2005, para 948.

<sup>278</sup> *Prosecutor v. Blaskić*, IT-95-14-T, Judgement, Trial Chamber, 3 March 2000, paras. 501, 512; *Prosecutor v. Galić*, IT-98-29-T, Judgement, Trial Chamber, 5 December 2003, para. 58. See, however, *Prosecutor v. Kantanga*, ICC-01/04-01/07, Judgement, Trial Chamber II, 7 March 2014, para. 802.

<sup>279</sup> In the same vein Ambos, *ICL Treatise II* (2014) 174–5, 176; Werle and Jessberger, *Principles* (2014) 482. Contrary to what Ambos and Werle and Jessberger assert, this does not preclude application of the willfulness standard as foreseen by article 85 (3) Add. Prot. I and ICTY case law. It should be clear, however, – and there is no disagreement with them – that an attack aimed at a military objective that causes non-excessive incidental civilian harm or damage cannot amount to the war crime of an unlawful attack against civilians.

<sup>280</sup> This seems to be the view in the *Galić* case: ‘The Trial Chamber considers that certain apparently disproportionate attacks may give rise to the inference that civilians were actually the object of attack’, *Prosecutor v. Galić*, IT-98-29-T, Judgement, Trial Chamber, 5 December 2003, para. 60.

of this author, the ICTY should have distinguished more appropriately between the two crimes and treated them separately as in the ICC Statute.

- 205 In some circumstances, it may be obvious that an attack is directed against civilians, because of the type of weapon used (sniper rifles and other direct fire weapons usually have points of impact reasonably close to where they are aimed). In other circumstances, it may be much more difficult to determine whether or not an attack is directed against civilians because the type of weapon used may have a significant, but legally acceptable, degree of error in targeting, or because military objectives are located close to civilians.<sup>281</sup>
- 206 The fact that a civilian is killed or injured as a result of an attack does not automatically mean that a violation of international humanitarian law has occurred. Civilian casualties may occur when weapons are directed against military objectives, but the projectiles miss the target, or when military personnel, acting in good faith but on the basis of erroneous information, attack an object which they believe to be a military objective, but which in reality is not.<sup>282</sup> Criminal responsibility would be excluded in the latter case as a consequence of a mistake of fact in the sense of article 32 para 1 of the ICC Statute, since it negates the mental element required by the crime. In the former case the material element 2 would not be met.
- 207 The fact that civilian casualties are caused during an attack directed at a military objective does not, of itself, render the attack unlawful as incidental civilian casualties or damage, which are not expected to be excessive in relation to the concrete and direct military advantage anticipated, are legally acceptable.<sup>283</sup>

## 2. Paragraph 2(b)(ii): Intentionally directing attacks against civilian objects

- 208 This war crime is based largely on article 52 of Additional Protocol I ('Civilian objects shall not be made the object of attack'), which reflects customary international law.<sup>284</sup> The war crime under the Rome Statute is drafted in a slightly different manner. The essence is, however, the same: it is a war crime to directly target civilian objects. The causing of civilian damage incidental to an attack at combatants or other military objectives is not covered by this crime, but article 8 para. 2 (b) (iv) of the ICC Statute.<sup>285</sup> The specific elements of this crime are formulated in the following way:

1. The perpetrator directed an attack.
2. The object of the attack was civilian objects, that is, objects which are not military objectives.
3. The perpetrator intended such civilian objects to be the object of the attack.'

- 209 As already stated, the elements do not further define the concepts of 'attack', 'civilian objects' and 'military objectives'. The terms are defined in the same way under treaty and customary international law.<sup>286</sup> With regard to the term 'attack' reference may be made to the comments under (i), *mn 184 et seq.* Civilian objects are those which are not military objectives (article 52 para 1 Add. Prot. I). In so far as objects are concerned, military objectives are defined as follows:

'those objects which by their nature, location, purpose or use make an effective contribution to military action and whose total or partial destruction, capture or neutralisation, in the circumstances ruling at the time, offers a definite military advantage' (article 52 para 2 Add. Prot. I).

<sup>281</sup> See Fenrick in the First Edition of this Commentary.

<sup>282</sup> *Id.*

<sup>283</sup> This is not an exception to the rule prohibiting attacks against civilians, since civilians are not made the object of the attack, but a military objective. Civilian casualties would be incidental to that attack.

<sup>284</sup> Henckaerts and Doswald-Beck, *Customary IHL*, iii (2005) 25–26.

<sup>285</sup> Cf. Solf, in: Bothe *et al.*, *Commentary, Article 51*, 300; Blix (1978) *BYbIL* 42; Ambos, *ICL Treatise II* (2014) 175.

<sup>286</sup> Henckaerts and Doswald-Beck, *Customary IHL*, iii (2005) 32–33.



This definition is based on a two-pronged test:

- the nature, location, purpose or use of the objects must make an effective contribution to military action; and
- their total or partial destruction, capture or neutralisation must offer a definite military advantage in the circumstances ruling at the time.

Both conditions must be met simultaneously.<sup>287</sup> There is abundant literature dealing with the definition of military objectives,<sup>288</sup> which cannot be summarized in the present commentary. Therefore, only some important points will be highlighted. First, only a material, tangible thing can be a target.<sup>289</sup> Secondly, the critical notions of the definition are ‘effective contribution to military action’ and ‘definite military advantage’. It should be stressed that both notions contain the word ‘military’, which excludes, for example, qualifying an object as a military objective if the advantage searched is merely ‘political’.<sup>290</sup> These concepts should also exclude attacks merely on civilian morale.<sup>291</sup> Contribution by nature generally includes all objects directly used by the armed forces, such as weapons, military equipment, military airports or army headquarters. Contribution by location includes objects, which ‘have no military function but which, by virtue of their location, make an effective contribution to military action’, examples include bridges or other constructions and sites of special military importance that must be seized or that the enemy must be prevented from seizing or from which the enemy must be forced to retreat.<sup>292</sup> Areas of land may also become a military objective by location, namely if it has tactical importance.<sup>293</sup> Contribution by purpose is concerned with the intended future use of an object while contribution by use with its present function.<sup>294</sup> As to the purpose requirement it is important that there are concrete indicators for a future military use, mere suspicion is not sufficient.<sup>295</sup> The requirement that the military advantage offered by destruction, capture or neutralization be definite means that the advantage must be concrete and perceptible rather than hypothetical and speculative.<sup>296</sup> Military advantage has been interpreted by a number of States in declarations made upon ratification of Additional Protocol I as referring to the advantage anticipated from the *attack as a whole* and not only from isolated or particular parts of the attack.<sup>297</sup> It must be

<sup>287</sup> Pilloud and Pictet, in: Sandoz *et al.*, *Commentary, Article 52*, para. 2018; Sassoli and Cameron, in: Ronzitti and Venturini, 48; Werle and Jessberger, *Principles* (2014) 486; Aldrich (1999) 1 *ILF* 149 *et seq.*; Boothby, *The Law of Targeting* 103.

<sup>288</sup> See for example Oeter, in: Fleck (ed.), *Handbook IHL* (3<sup>rd</sup> ed., 2013) 115 *et seq.*; Solf, in: Bothe *et al.* (eds.), *Commentary, Article 52*, 323 *et seq.*; Pilloud and Pictet, in: Sandoz *et al.* (eds.), *Commentary, Article 52*, paras. 2018 *et seq.*; Sassoli and Cameron, in: Ronzitti and Venturini (eds.), *Current Issues in International Humanitarian Law of Air Warfare* (2006) 35 *et seq.*; Dinstein, *The Conduct of Hostilities* (2004) 89 *et seq.*; Boothby, *The Law of Targeting* (2012) 98 *et seq.*

<sup>289</sup> Dinstein, *The Conduct of Hostilities* (2004) 90–91; Sassoli and Cameron, in: Ronzitti and Venturini (eds.), *Current Issues in International Humanitarian Law of Air Warfare* (2006) 48; Sassoli, in: Wippman and Evangelista (eds.), *New Wars, New Laws? Applying the Laws of War in 21<sup>st</sup> Century Conflicts* (2005) 185 with further references; Oeter, in: Fleck, *Handbook IHL* (3<sup>rd</sup> ed., 2013) 166 *et seq.*

<sup>290</sup> Dinstein, *The Conduct of Hostilities* (2004) 93; Dörmann, *Münchener Kommentar*, § 11 *VStGB*, mn 55.

<sup>291</sup> See also Oeter, in: Fleck (ed.), *Handbook IHL* (3<sup>rd</sup> ed., 2013) 169–170 referring to ‘influencing the enemy population’s determination to fight’; Sassoli, in: Wippman and Evangelista (eds.), *New Wars, New Laws?* (2005) 186; Bothe (2001) *EJIL* 534; Dinstein, *The Conduct of Hostilities* (2004) 116; Fenrick (2001) *EJIL* 497.

<sup>292</sup> Boothby, *The Law of Targeting* 103; Pilloud and Pictet, in: Sandoz *et al.*, *Commentary, Article 52*, para. 2022.

<sup>293</sup> See Dörmann, *Münchener Kommentar*, § 11 *VStGB*, mn. 58, with further references to relevant declarations by a number of States upon ratification of Add. Prot. I; Boothby, *The Law of Targeting* 103.

<sup>294</sup> See Dörmann, *Münchener Kommentar*, § 11 *VStGB*, mn 53; Boothby, *The Law of Targeting* 103.

<sup>295</sup> *Münchener Kommentar*, § 11 *VStGB*, mn 53; Sassoli and Cameron, in: Ronzitti and Venturini, p. 58; David, ‘Respect for the Principle of Distinction in the Kosovo’, *YbIHL*, Vol. III (2000) 94–5; Dinstein, *The Conduct of Hostilities*, 100.

<sup>296</sup> UK Ministry of Defence, *The Manual*, No. 5.4.4; Sassoli, in: Wippman and Evangelista (eds.), *New Wars, New Laws?* (2005), 186; W. A. Solf, in: Bothe *et al.* (eds.), *Commentary, Article 52*, 325 *et seq.*; Solf W.A., ‘Protection of Civilians against the Effects of Hostilities under Customary International Law and under Protocol I’, (1986) 1 *AmUJIL&Pol*, 128; Werle and Jessberger, *Principles* (2014) 487.

<sup>297</sup> UK Ministry of Defence, *The Manual*, No. 5.4.4. See also Solf, in: Bothe *et al.* (eds.), *Commentary, Article 52* (1982) 324 *et seq.*

stressed, however, that this clarification refers to a finite event, and must thus not be confused with winning the entire war as a military advantage.<sup>298</sup>

- 212 The formulation ‘in the circumstances ruling at the time’ is a clear indication that States were not prepared to establish a list of objects that constitute military objectives in all circumstances at all times. This element emphasises that in the evolving circumstances of armed conflicts objects which may have been military objectives yesterday may no longer be military objectives today and *vice versa*.<sup>299</sup> Nevertheless, there have always been attempts to find guidance in looking at State practice to identify those objects that are normally military objectives. In the First Edition of the present Commentary *W. Fenrick* referred to a tentative, non-exhaustive list established by *A.P.V. Rogers*, a former British Director of Army Legal Services, based on the First Add. Prot. definition and his own review of State practice:

‘Military personnel and persons who take part in the fighting without being members of the armed forces, military facilities, military equipment, including military vehicles, weapons, munitions and stores of fuel, military works, including defensive works and fortifications, military depots and establishments, including War and Supply Ministries, works producing or developing military supplies and other supplies of military value, including metallurgical, engineering and chemical industries supporting the war effort; areas of land of military significance such as hills, defiles and bridgeheads; railways, ports, airfields, bridges, main roads as well as tunnels and canals, oil and other power installations; communications installation, including broadcasting and television stations and telephone and telegraph stations used for military communications’.<sup>300</sup>

Even with such a list, where objects are concerned, it remains a requirement that they meet both elements of the definition of military objective.

- 213 Civilian objects may only be attacked if and for such time they become – due to their location, purpose or use – military objectives. At that moment they cease to be civilian objects.<sup>301</sup> It was therefore misleading when the ICTY stated in couple of Trial Chamber judgements that ‘targeting civilian property [...] is an offence when not justified by military necessity’,<sup>302</sup> in particular, when coupled with the ICTY’s sometimes overly broad understandings of military necessity.<sup>303</sup> As has been stated elsewhere (see mn 119 under article 8 para 2 (a) (iv)), military necessity can only be invoked if explicitly foreseen in a norm and cannot be used as an additional justification. When a prohibition is absolute as for the prohibition of attacking civilian objects, there is no room for invoking military necessity.<sup>304</sup> This has now been correctly recognized by the ICTY.<sup>305</sup>
- 214 Article 52 para 1 of Additional Protocol I prohibits attacking civilian objects by way of reprisals. The United Kingdom has entered a reservation to that treaty rule (as in the case of attacking civilians or the civilian population by way of reprisals, see mn 192).<sup>306</sup> The status of the rule as customary international humanitarian law is not firmly established.<sup>307</sup> It therefore seems that the prohibition of reprisals currently reflects ‘the established framework of interna-

<sup>298</sup> Dinstein, *The Conduct of Hostilities* (2004) 94; Sassoli and Cameron, in: Ronzitti and Venturini (eds.), *Current Issues in International Humanitarian Law of Air Warfare* (2006) 48; Dörmann, *MünchKommZurIHL*, § 11 VStGB, mn 56.

<sup>299</sup> Solf, in: Bothe et al (eds.), *Commentary, Article 52* (1982) 326; Dinstein, *The Conduct of Hostilities* (2004) 93–94; Sassoli and Cameron, in: Ronzitti and Venturini (eds.), *Current Issues in International Humanitarian Law of Air Warfare* (2006) 47.

<sup>300</sup> Rogers, *Law on the Battlefield* (2<sup>nd</sup> ed. 2004) 37; see however Boothby, *The Law of Targeting* (2012) 102.

<sup>301</sup> Henckaerts and Doswald-Beck, *Customary IHL*, iii (2005) 34–35.

<sup>302</sup> *Prosecutor v. Blaškić*, IT-95-14-T, Judgement, Trial Chamber, 3 March 2000, para. 180; *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-T, Judgement, Trial Chamber, 26 February 2001, para. 328.

<sup>303</sup> See for example Hampson, in: Gutman and Rieff (eds.), *Crimes of War* (1999) 251.

<sup>304</sup> See also Dörmann, *Elements of Crimes* (2003) 149.

<sup>305</sup> *Prosecutor v. Strugar*, IT-01-42-T, Judgement, Trial Chamber, 31 January 2005, para. 280.

<sup>306</sup> Some authors have questioned whether such reservation is compatible with the object and purpose of the treaty (see article 19 (c) of the VCLT), e.g. Gaudreau, (2003) 849 *IREvRC* 170.

<sup>307</sup> Henckaerts and Doswald-Beck, *Customary IHL*, iii (2005) 520–525.

tional law’ as mentioned in the *chapeau* of article 8 para 2 (b) of the ICC Statute only for those States and in relation to those States that have accepted the treaty prohibition.<sup>308</sup>

As in the case of the war crime of attacking civilians, the elements do not require that a particular result be caused – contrary to the jurisprudence of the ICTY. The reasons that led to this approach are the same as described under (i), see *mn 193 et seq.*

With regard to the mental elements required, reference may be made to the explanations given for the war crime of attacking civilians (see (i), *mn 195 et seq.*). The same approach was taken *mutatis mutandis* for all crimes covering unlawful attacks.

### 3. Paragraph 2(b)(iii): Attacks on humanitarian assistance or peacekeeping missions in international armed conflict

**Literature:** Beigbeder, Y., *The Role and Status of International Humanitarian Volunteers and Organizations: The Right and Duty to Humanitarian assistance* (Nijhoff Leiden 1991); Bourloyannis-Vrailas, M.C., ‘Crimes against United Nations and associated personnel’, in: G. Kirk McDonald and O. Swaak-Goldman (eds.), *Substantive and Procedural Aspects of International Criminal Law: The Experience of International and National Courts. Commentary, I* (Brill Leiden 2000) 337; Del Mar, K., ‘Opérations de Maintien de la Paix et Droit des Conflits Armés’, in: V. Chetail (ed.), *Permanence et Mutations du Droit des Conflits Armés* (Bruylant Brussels 2013); Emanuelli, C.C., ‘The Protection afforded to Humanitarian Assistance Personnel under the Convention on the Safety of United Nations and Associated Personnel’, (1996) 1 *HU-V 4 et seqq.*; Engdahl, O., *Protection of Personnel in Peace Operations: The Role of the ‘Safety Convention’ Against the Background of General International Law* (Nijhoff Leiden 2007); *id.*, ‘Prosecution of Attacks Against Peacekeepers in International Courts and Tribunals’, (2012) 51 *Rev. de Droit Militaire et de Droit de la Guerre* 249; Fleck, D., ‘The legal status of personnel involved in United Nations peace operations’, (2013) 891/892 *IRRC* 613; Gadler, A., ‘The Protection of Peacekeepers and International Criminal Law’, (2010) 11 *GLJ* 586; Galićki, Z., ‘Les Atteintes à la Sécurité du Personnel des Nations Unies et des Personnels Associés’, in: H. Ascensio, E. Decaux and A. Pellet (eds.), *Droit International Penal* (Pedone Paris 2012) 341; Marong, A.B.M., ‘Fleshing Out the Contours of the Crime of Attacks against United Nations Peacekeepers – The Contribution of the Special Court for Sierra Leone’, in: C.C. Jalloh, *The Sierra Leone Special Court and its Legacy: The Impact for Africa and International Criminal Law* (CUP 2014); Sivakumaran, S., ‘War Crimes before the Special Court for Sierra Leone. Child Soldiers, Hostages, Peacekeepers and Collective Punishments’, (2010) 8 *JICJ* 1009; Spagnolo, A., ‘The Crime of Attacking Peacekeepers’, in: F. Pocar, M. Pedrazzi and M. Frulli, *War Crimes and the Conduct of Hostilities. Challenges to Adjudication and Investigation* (Edward Elgar Cheltenham 2013); Murithi, T., ‘The African Union’s Evolving Role in Peace Operations: The African Union Mission in Burundi, The African Union Mission in Sudan and the African Union Mission in Somalia’, (2008) 17 *African Security Review* 69 *et seqq.*; Olakounlé Yabi, G., *The Role of ECOWAS in Managing Political Crisis and Conflict: The Cases of Guinea and Guinea-Bissau* (2010) <<http://library.fes.de/pdf-files/bueros/nigeria/07448.pdf>> (16 January 2015); Villani U., ‘The Security Council’s Authorization of Enforcement Action by Regional Organizations’, (2002) 6 *MPYbUNL* 553; Heje, C., ‘United Nations Peacekeeping: An Introduction’, in: E. Moxon-Browne (ed.), *A Future for Peacekeeping?*, (1998) 1; Rudolph, K., ‘Peace-Keeping Forces’ in: R. Wolfrum (ed.), *United Nations: Law, Policies and Practice, Vol. I* (1995) 957; Hill, S.M. and Malik, S.P., *Peacekeeping and the United Nations* (1996); ‘UN Peacekeeping Principles and Guidelines’, (2008) UN Department of Peacekeeping Operations; Bloom, E.T., ‘Protecting Peacekeepers: the Convention on the Safety of United Nations and Associated Personnel’, (1995) 89 *AJIL* 621; Bourloyannis-Vrailas, M.C., ‘Convention on the Safety of United Nations and Associated Personnel’, (1995) 44 *ICLQ* 560; Allain, J. and Jones, J., ‘A Patchwork of Norms: A Commentary on the 1996 Draft Code of Crimes against the Peace and Security of Mankind’, (1997) *EJIL* 110; von Hebel, H. and Robinson, D., ‘Crimes within the jurisdiction of the Court’, in: R.S. Lee (ed.), *The International Criminal Court: The Making of the Rome Statute: Issues, Negotiations and Results* (Nijhoff Leiden 1999) 110; de Waart, P.J.L.M., ‘Long-term development aspects of humanitarian assistance in armed conflict’, in: F. Kalshoven (ed.), *Assisting the Victims of Armed Conflicts and Other Disasters* (1989) 67; Kalshoven, F., ‘Assistance to the victims of armed conflicts and other disasters’, in: *id.*, 13; Mascalister-Smith, P., ‘Rights and duties of the agencies involved in providing humanitarian assistance and their personnel in armed conflict’, in: *id.* 99; Bothe, M. *et al.* (eds.), *The OSCE in the Maintenance of Peace and Security: Conflict Prevention, Crisis Management and Peaceful Settlement of Disputes* (1998); Frank, D., in: Lee, R.S. (ed.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (2001) 146 *et seqq.*

<sup>308</sup> This may explain the Declaration that the United Kingdom has made when ratifying the Rome Statute: ‘The United Kingdom understands the term “the established framework of international law, used in Article 8(2)(b) and (e), to include customary international law [...]”. In that context the United Kingdom confirms and draws to the attention of the Court its view as expressed, inter alia, in its statement made on ratification of relevant instruments of international law, including the Protocol Additional to the Geneva Convention of 12 August 1949 and relating to the Protection of Victims of International Armed Conflicts (Protocol I) of 8 June 1977’, see note 182, UK Ministry of Defence, *The Manual*, No. 16.34.

- 217 a) **Normative origin and drafting history.** After a dramatic increase in attacks on UN peacekeeping forces in the 1990s<sup>309</sup> the UN General Assembly adopted the **UN Convention on the Safety of United Nations and Associated Personnel** in 1994<sup>310</sup>. Article 9 of the convention criminalizes intentional ‘murder, kidnapping or other attack upon the person or liberty of any United Nations or associated personnel murder’ as well as violent attacks of premises, private accommodation or means of transportation of UN or associated personnel (including threat and attempt). State parties to the convention are obliged to make these crimes ‘punishable by appropriate penalties which shall take into account their grave nature’. Article 71 para- 2 of the Protocol I to the Geneva Convention stipulates that ‘personnel participating in relief actions’ shall be ‘respected and protected’ but does not refer to humanitarian and peacekeeping missions.<sup>311</sup> The prohibition of directing an attack against personnel and objects involved in a humanitarian or peacekeeping mission in accordance with the Charter of the United Nations is considered as **customary law**, as long as they are entitled to the protection given to civilians and civilian objects under international humanitarian law.<sup>312</sup>
- 218 Article 19 of the 1996 **ILC Draft Code of Crimes Against the Peace and Security of Mankind** contained attacks against ‘United Nations and associated personnel involved in a United Nations operation’ (murder, kidnapping or other attack upon the person or liberty of any such personnel; violent attack upon the official premises, the private accommodation or the means of transportation) as a crime against humanity, due to its ‘exceptionally serious gravity’.<sup>313</sup> Further, para 2 stipulated that article 19 shall ‘not apply to a United Nations operation authorized by the Security Council as an enforcement action under Chapter VII of the Charter of the United Nations in which any of the personnel are engaged as combatants against organized armed forces and to which the law of international armed conflict applies.’ In addition, article 19 of the ILC Draft Code required that the crimes were to be committed ‘with a view to preventing or impeding that operation from fulfilling its mandate’. It was rightly criticized that it would practically be impossible to define when UN forces are to be considered combatants, and when not. Further, the specific *mens rea* would require to establish that the perpetrator knew what kind of mandate existed during the commission of the crime, an element of crime that would be almost impossible to prove.<sup>314</sup>
- 219 Throughout the Ad Hoc and Preparatory Committees and a large part of the Rome Conference, delegations considered to include violations of the Convention on the Safety of United Nations and Associated Personnel as a ‘treaty crime’<sup>315</sup>, without substantially debating

<sup>309</sup> The Security Council has repeatedly condemned attacks against personnel of peacekeeping operations; e.g. SC Res 788 (1992); SC Res 813 (1993); SC Res 987 (1995). See also: Spagnolo, in: Pocar *et al.* (eds.), *War Crimes and the Conduct of Hostilities. Challenges to Adjudication and Investigation* (2013) 153 *et seq.*; Bourloyannis-Vrailas, in: McDonald and Swaak-Goldman, *Substantive and Procedural Aspects of International Criminal Law*, (2000) 337 *et seq.*; Galicki, in: Ascensio *et al.*, (eds.), *Droit International Penal* (2012) 341 *et seq.*

<sup>310</sup> The Convention was adopted by resolution 49/59 of the General Assembly dated 9 December 1994 and entered into force on 15 January 1999 (United Nations Treaty Series, vol. 2051, p 363). See: Engdahl, *Protection of Personnel in Peace Operations* (2007) 205 *et seq.*; Bloom (1995) 89 *AJIL* 621; Bourloyannis-Vrailas (1995) 44 *ICLQ* 560.

<sup>311</sup> Werle/Jessberger, *Principles* (2014), mn. 1421; Sandoz *et al.*, *Commentary* (1987) 831.

<sup>312</sup> *Prosecutor v. Sesay, Kallon and Gbao*, No. SCSL-04-15-T, RUF Trial Judgement, 2 March 2009, para 218; Henckaerts (2005) 87 *IRRC* 192; Frank, in: Lee (ed.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (2001) 145.

<sup>313</sup> The International Law Commission underlined in its commentary to the Draft Code of Crimes against the Peace and Security of Mankind (51 UN GAOR Supp. (No. 10) at 14, UN Doc A/CN.4/L.532, corr.1, corr.3 1996) that ‘[a]ttacks against United Nations and associated personnel constitute violent crimes of exceptionally serious gravity which have serious consequences not only for the victims, but also for the international community. These crimes are of concern to the international community as a whole because they are committed against persons who represent the international community and risk their lives to protect its fundamental interest in maintaining the international peace and security of mankind.’ *ICL Draft Code of Crimes against the Peace and Security of Mankind with Commentaries*, *YbILC* (1996) (ii, part 2) 51.

<sup>314</sup> Allain and Jones (1997) *EJIL* 114.

<sup>315</sup> von Hebel and Robinson, in: Lee, *The International Criminal Court: The Making of the Rome Statute: Issues, Negotiations and Results* (1999) 110.

the content and scope of this treaty crime.<sup>316</sup> Only towards the end of the Rome Conference, when it became clear that treaty based crimes would not be included as such, the negotiations focused on including attacks on humanitarian and peacekeeping missions as a war crime. The qualification as a war crime led to an extension of the prohibition's scope of application to humanitarian assistance and non-UN peacekeeping missions. In response in particular to concerns about peacekeeping missions that might use force and become involved in war type operations, it was stipulated that attacks on missions would incur individual criminal responsibility only as long as the personnel and objects involved in the missions 'are entitled to the protection given to civilians or civilian objects under the international law of armed conflict'. However, article 8 para 2 (b) (iii), as it stands now, does not reflect the full scope of the war crime under international customary law since it limits the protection to humanitarian assistance or peacekeeping missions 'as long as they are entitled to the protection given to civilians or civilian objects under the international law of armed conflict.' By thus limiting the scope of application, article 8 para 2 (b) (iii) does in fact not seem to criminalize any conduct which would not be covered by the criminalization of attacks on civilians and civilian objects contained in article 8 para 2 (b) (i) and (ii)<sup>317</sup>, notwithstanding that it is unclear and controversial to what extent and under what conditions personnel and objects involved in peacekeeping missions are entitled to the same protection as civilians and civilian objects. Nevertheless, delegations wanted to explicitly condemn and criminalize attacks against humanitarian assistance and peacekeeping missions and thereby indicate the exceptional seriousness of such most serious crimes of international concern and to avoid a potential lacuna.<sup>318</sup>

During the negotiations of the Elements of Crime of article 8 para 2 (b) (iii) Rome Statute, 220 discussions evolved around the question whether the non-combatant status of potential victims of the crime and protected objects should be further defined. However, since the differentiation between combatant and non-combatant as well as military and non-military object seems difficult and does not only depend on the mandate of a peacekeeping mission, the wording of article 8 para 2 (b) (iii) Rome Statute was maintained largely in the Elements of Crime. Further, the requirement of a 'harmful result' of the attack was not included.<sup>319</sup>

**b) Elements.** The Elements of Crime of article 8 para 2 (b) (iii) Rome Statute read as 221 follows:

1. The perpetrator directed an attack.
2. The object of the attack was personnel, installations, material, units or vehicles involved in a humanitarian assistance or peacekeeping mission in accordance with the Charter of the United Nations.
3. The perpetrator intended such personnel, installations, material, units or vehicles so involved to be the object of the attack.
4. Such personnel, installations, material, units or vehicles were entitled to that protection given to civilians or civilian objects under the international law of armed conflict.
5. The perpetrator was aware of the factual circumstances that established that protection.
6. The conduct took place in the context of and was associated with an international armed conflict.
7. The perpetrator was aware of factual circumstances that established the existence of an armed conflict.'

**aa) Attack.** According to the case law of the SCSL and the ICC, the attack<sup>320</sup> **does not need** 222 **to cause actual damage or injury**<sup>321</sup> and is to be understood as an 'act of violence against the

<sup>316</sup> The identical draft passed from session to session with virtually no debate on the substance. See Preparatory Committee (Consolidated) draft 33; Zutphen Draft 35; Preparatory Committee Decisions February 1997 16.

<sup>317</sup> von Hebel and Robinson, in: Lee, *The Making of the Rome Statute* (1999) 110, 110; Frank, in: Lee: *Elements of Crimes* (2001) 145. See Dörmann, article 8 para 2 (b) (i) and (ii) and also Arnold, article 8 para 2 (b) (xxiv).

<sup>318</sup> Werle/Jessberger, *Principles* (2014), mn. 1420.

<sup>319</sup> Frank, in: Lee (ed) *The International Criminal Court* (2001) 146 *et seq.*

<sup>320</sup> For a general overview: Marong, in: Jalloh (ed.), *The Sierra Leone Special Court and its Legacy: The Impact for Africa and International Criminal Law* (2014) 303 *et seq.*

<sup>321</sup> RUF Trial Judgement (n 312) para 220; *Prosecutor v. Abu Garda*, ICC-02/05-02/09-PT, Pre-Trial Decision, 8 February 2010, para 65; Sivakumaran, *Non-International Armed Conflict* (2012) 324; *id.* (2010) 8 JICJ 1009.



adversary, whether in offence or in defence' as defined in article 49 Add.Prot. I<sup>322</sup>, thus going beyond a strict Hague law perspective.<sup>323</sup> The broad understanding of the term 'attack' may also be inferred from article 9 of the Convention on the Safety of United Nations and Associated Personnel, which contains a catalogue of possible violations<sup>324</sup> that could be used to interpret article 8 para 2 (b) (iii) Rome Statute.<sup>325</sup> According to the SCSL, it also includes the unlawful deprivation of liberty of the victim<sup>326</sup>, while a threat alone does not suffice.<sup>327</sup> For further details regarding the term 'attack', please refer to the commentary of article 8 para 2 (b) (i) and (ii) Rome Statute.<sup>328</sup>

- 223 **bb) Humanitarian assistance missions.** The objects of the attack first mentioned in article 8 para 2 (b) (iii) Rome Statute are personnel, installations, material, units or vehicles involved in a humanitarian assistance mission. Since there is no specific and generally accepted definition of the term 'humanitarian assistance mission', it is not clear which standards are applicable to this generic category that covers a diversity of phenomena. Since such a mission must be 'in accordance with the Charter of the United Nations' it must refrain from the use of force and interference in internal affairs.<sup>329</sup> It is considered as a rule of customary international law that 'humanitarian relief for civilians in need, which is impartial in character and conducted without any adverse distinction' must be allowed and facilitated by the parties to a conflict.<sup>330</sup>
- 224 In the absence of any case law on 'humanitarian assistance mission', standards derived from humanitarian law with regard to humanitarian organizations and relief actions may provide a useful legal framework.<sup>331</sup> In particular, articles 70 and 71 Add.Prot. I on 'relief

<sup>322</sup> *Prosecutor v. Abu Garda*, ICC-02/05-02/09-PT, Pre-Trial Decision, *RUF Trial Judgement*, 8 February 2010, para 65, para 220; *Prosecutor v. Sesay, Kallon and Gbao*, No. SCSL-04-15-T, *RUF Trial Judgement*, 2 March 2009, para 220.

<sup>323</sup> Sivakumaran draws the attention to the fact that the ICTY had 'taken the view that, in the context of attacks against civilians, the unlawful attack must have resulted in death or serious injury'. Sivakumaran (2010) 8 *JICJ*, 1025; for the discussion in the Preparatory Committee on this issue see: Dörmann, *Elements of War Crimes* (2003) 153.

<sup>324</sup> E.g. murder, kidnapping or other attack upon the person or liberty of any United Nations or associated personnel; violent attack upon the official premises, the private accommodation or the means of transportation of any United Nations or associated personnel likely to endanger his or her person or liberty (article 9 paras 1–3 UN Convention on the Safety of United Nations and Associated Personnel), *UN Convention on the Safety of United Nations and Associated Personnel* (United Nations Treaty Series, vol. 2051, p 363).

<sup>325</sup> Werle/Jessberger, *Principles*, OUP 2014, no. 1426.

<sup>326</sup> *Prosecutor v. Sesay, Kallon and Gbao*, SCSL-04-15-T, *RUF Trial Judgement*, 2 March 2009, paras 1891 and 1897, affirmed in: *Prosecutor v. Sesay, Kallon and Gbao*, No. SCSL-04-15-A), *RUF Appeals Judgement*, 26 October 2009, para 500.

<sup>327</sup> According to the SCSL judges 'peacekeepers are by definition deployed in areas of actual or recent armed conflict, often in precarious situations before the warring factions have disarmed and while tensions remain high.' Therefore, 'attack' is at least a 'forceful interference which endangers the person or impinges on the liberty of the peacekeeper.' *Prosecutor v. Sesay, Kallon and Gbao*, SCSL-04-15-T, *RUF Trial Judgement*, 2 March 2009, para 1889.

<sup>328</sup> See Dörmann above Art. 8 para 2 (b)(i) and (ii).

<sup>329</sup> See eg: de Waart, in: Kalshoven (ed.), *Assisting the Victims of Armed Conflicts and Other Disasters* (1989) 71 *et seq.*; Kalshoven, in: *ibid.*, 19 *et seq.*; Mascalister-Smith, in: *ibid.* 99; Beigbeder, *The Role and Status of International Humanitarian Volunteers and Organizations. The Right and Duty to Humanitarian Assistance* (1991) 4 *et seq.*; Barber, 2009 91 *IRRC* 371 *et seq.*

<sup>330</sup> Article 70 para 2 Add.Prot. I; Henckaerts and Doswald-Beck, *Customary International Humanitarian Law. I: Rules* (2005) 194 *et seq.*

<sup>331</sup> Humanitarian law contains standards, which are not only confined to Red Cross and Red Crescent institutions and actions but refer also to other humanitarian organisations and their relief actions in situations of armed conflict. Article 10 GC IV provides that '[t]he provisions of the present Convention constitute no obstacle to the humanitarian activities which the International Committee of the Red Cross or any other impartial humanitarian organization may, subject to the consent of the Parties to the conflict concerned, undertake for the protection of civilian persons and for their relief' (emphasis added). See also article 18 para 2 GC I, article 125 GC III, articles 63 para 1 and 142 GC IV, and articles 15 para 1, 17, 61–66, and 81 para 4 Add.Prot. I.



actions’ may offer some indications for interpretation.<sup>332</sup> In order to be accorded the privileges of article 70 para. 3 Add.Prot. I, relief actions intended to alleviate the suffering of the civilian population, must be ‘humanitarian and impartial in character and conducted without any adverse distinction’ and are ‘subject to the agreement of the Parties concerned [...]’.<sup>333</sup> Such missions ‘shall not be regarded as interference in the armed conflict or as unfriendly acts.’<sup>334</sup> The participation of relief personnel necessary in relief actions, in particular for the transportation and distribution of the consignments is ‘subject to the approval of the Party in whose territory they will carry out their duties [...]’ and must be respected and protected.<sup>335</sup> According to article 70 para. 3 Add.Prot. I, states are permitted to prescribe technical arrangements and locally supervise distributions. However, it is submitted that a humanitarian mission should not be excluded from the protection of article 8 para 2 (b) (iii) Rome Statute when it does not have the agreement of the host state. In any event, the individuals and objects involved in such missions are still generally entitled to the protection of civilians provided they do not engage in the hostilities.

The UN Convention on the Safety of United Nations and Associated Personnel<sup>336</sup> may 225 give further guidance in defining protected personnel although the field of application is not necessarily identical to the Rome Statute<sup>337</sup> and limited to UN personnel.

It is submitted that ‘humanitarian assistance’ in particular consists of relief actions with 226 the purpose of ensuring the provision of supplies essential to the survival of the civilian population. Such supplies should at the very least include food, medical supplies, clothing and means of shelter<sup>338</sup>, and should necessarily also extend to the required means of transport. Protected personnel may include administrative staff, coordinators and logistic experts, doctors, nurses and other specialists and relief workers. It is submitted that the term also extends to assisting refugees and internally displaced people with the agreement of the parties to the conflict. ‘Humanitarian assistance’ may also include developmental aspects but in a strict understanding the notion does not seem to extend to development aid as such, which pursues rather long-term objectives than immediate assistance after or during disasters and conflicts.

The term ‘humanitarian assistance’ covers also assistance by non-governmental and inter-governmental organizations, for instance the ICRC and specialized agencies and programs of the United Nations such as UNHCR, UNICEF, UNESCO, or the World Food Programme. However, while humanitarian assistance may, in addition, be offered by individual states, questions as to the humanitarian and impartial character of such missions are more likely to be raised.

For further details reference is made to the commentary on article 8 para 2 (b)(xxiv) Rome 227 Statute for the specific crime of attacking personnel displaying the distinctive emblems of the Red Cross or Red Crescent.<sup>339</sup>

<sup>332</sup> Werle/Jessberger, *Principles* (2014) mn. 142-424.

<sup>333</sup> Article 70 para 1 Add.Prot. I.

<sup>334</sup> Id.; In the Nicaragua case the ICJ stated: ‘There is no doubt that the provision of strictly humanitarian assistance to persons or forces in another country, whatever their political affiliations or objectives, cannot be regarded as unlawful intervention, or as in any other way contrary to international law.’ *Nicaragua v. USA, Merits, Judgement* (1986) ICJ Rep 124, para 242 (see also *Dissenting Opinion Schwebel* 351, para 180).

<sup>335</sup> Article 71 paras 1 and 2 Add.Prot. I.

<sup>336</sup> Article 1 (n 310) Convention on the Safety of United Nations and Associated Personnel.

<sup>337</sup> Dörmann, *Elements of War Crimes* (2003) 156-7.

<sup>338</sup> Article 69 Add.Prot. I. The US Congress defined permissible humanitarian assistance in legislation regarding support to the Nicaraguan resistance movement as ‘the provision of food, clothing, medicine and other humanitarian assistance, and it does not include the provision of weapon systems, ammunition, or other equipment, vehicles, or material which can be used to inflict bodily harm or death.’ Quoted in: *Nicaragua v. USA, Merits, Judgement* (1986) ICJ Rep, para 97.

<sup>339</sup> See Arnold below article 8 para 2(b)(xxiv).

- 228 cc) **Peacekeeping mission.** As a second possible object of attack, article 8 para 2 (b) (iii) Rome Statute mentions ‘peacekeeping mission in accordance with the Charter of the United Nations’. This variation is more controversial than attacks on ‘humanitarian assistance missions’, since opinions diverge regarding the understanding of the term ‘peacekeeping’. The term ‘peacekeeping mission’ has originated in the UN system and is most commonly used to refer to operations authorized or established by the UN. Also, the Rome Conference initially intended to only criminalize attacks on UN peacekeeping missions, and the legislative history does not seem to offer an intent to depart fundamentally from the principles and standards developed in regard to peacekeeping missions established or authorized by the UN, which therefore provide a useful basis of departure as to what kind of operations should be subsumed under this article.
- 229 Traditionally, a distinction is made between ‘peacekeeping’ and ‘peace enforcement’ missions<sup>340</sup>, depending on the mandate given to them by the UN Security Council either under Chapter VI or ‘within Chapter VI in conjunction with Chapter VII [...]’.<sup>341</sup> However, in practice it is difficult to distinguish peacekeeping missions with a so-called ‘robust’ mandate<sup>342</sup>, allowing for use of force that goes beyond strict self-defence, from peace-enforcement missions.<sup>343</sup> Peace-enforcement troops have the authority to use offensive force and are thus considered as combatants and legitimate targets in armed conflicts.<sup>344</sup>
- 230 Even though peacekeeping missions established or authorized by the UN Security Council are not mentioned or defined explicitly in the UN Charter,<sup>345</sup> it is uncontested that their establishment is lawful and fully respects the Charter.<sup>346</sup> Peacekeeping missions are generally established, mandated or authorized by international organisations. However, even if the organisation retains the control and command over the peacekeeping mission, the contingents assigned to the mission are generally provided by member states of the organisation concerned. It is suggested that peacekeeping and observer missions established by regional organizations such as the AU<sup>347</sup>,

<sup>340</sup> Sivakumaran, *Non-International Armed Conflict* (2012), 325.

<sup>341</sup> *Prosecutor v. Sesay, Kallon and Gbao*, SCSL-04-15-T, RUF Trial Judgement, 2 March 2009, para 222: ‘It is noteworthy that in practice, the Security Council has never referred to Chapter VI in its resolutions establishing peacekeeping forces.’

<sup>342</sup> *Prosecutor v. Sesay, Kallon and Gbao*, SCSL-04-15-T, RUF Trial Judgement, 2 March 2009, para 223, where is stated: ‘It is likewise important to mention that in more recent times, the Security Council has referred to Chapter VII in resolutions that establish peacekeeping missions in difficult or unstable situations, typically in relation to internal conflicts, in order to provide more robust mandates to the peacekeepers and to demonstrate the Security Council’s resolve. Further, this Chamber observes that the Security Council has, on occasion, established multidimensional peacekeeping missions under Chapter VII with extremely broad mandates that included civilian administration.’ (footnotes omitted). The RUF judgement refers to UNMIK in Kosovo, UNTAET in East Timor and UNMIL in Liberia. (*id.*, fn 406).

<sup>343</sup> Sivakumaran, (2010) 8 *JICJ* 1026.

<sup>344</sup> Marong, in: Jalloh, *The Sierra Leone Special Court and its Legacy* (2014) 291, 293 *et seq.*

<sup>345</sup> *Prosecutor v. Abu Garda*, ICC-02/05-02/09-PT, Pre-Trial Decision, 8 February 2010, para 69.

<sup>346</sup> UN missions were the sole object of negotiations up to the end of the Diplomatic Conference in Rome. However, in the cases *Prosecutor v. Abu Garda*, ICC-02/05-02/09-PT, Pre-Trial Decision, 8 February 2010 and *Prosecutor v. Nourain and Jerbo Jamus*, ICC-02/05-03/09-PT, Decision on the Confirmation of Charges, 7 February 2011, the ICC deals with attacks on the African Union Mission in Sudan (AMIS).

<sup>347</sup> The preamble of the ‘Peace and Security Council (PSC) Protocol’ of the AU refers to the Charter of the United Nations, ‘confering on the Security Council primary responsibility for the maintenance of international peace and security, as well as the provisions of the Charter on the role of regional arrangements or agencies in the maintenance of international peace and security, and the need to forge closer cooperation and partnership between the United Nations, other international organizations and the African Union, in the promotion and maintenance of peace, security and stability in Africa.’ Peace and Security Council (PSC) Protocol adopted by the 1<sup>st</sup> Ordinary Session of the Assembly of the African Union in Durban, 9 July 2002 (<<http://www.peaceau.org/uploads/psc-protocol-en.pdf>>, accessed 20 October 2014). See also: Murithi (2008) 17 *African Security Review* 69 *et seq.*

OSCE<sup>348</sup>, EU<sup>349</sup> or ECOWAS<sup>350</sup> in accordance with the UN Charter<sup>351</sup> are also covered by article 8 para 2 (b) (iii) Rome Statute.<sup>352</sup>

Although, there is no official definition of the term peace-keeping, which has ‘developed out of practical experience’<sup>353</sup> as a ‘unique and dynamic instrument’ and ‘as a way to help countries torn by conflict create the conditions for lasting peace’<sup>354</sup>, peacekeeping missions are generally understood to be actions involving the temporary deployment of military personnel typically in a situation of tension but where no or no generalized fighting takes place, after hostilities have ceased de facto or to prevent the breaking out of fighting.<sup>355</sup> Peacekeeping missions ‘are not static’ and ‘their features may vary depending [...] on the context in which they operate.’<sup>356</sup> Peacekeeping missions may take observation tasks such as monitoring peace agreements and cease-fires, truces or armistices, may interpose themselves between the opposing parties, so as to hinder movements across the lines and to create buffer zones to prevent from a resumption of hostilities, may assist the parties in withdrawing or disarming their forces, or may verify limitations of forces and armaments. Whether the provision applies to fact-finding and peace-building missions is open to interpretation. In any case, personnel and objects of such missions in principle enjoy the protections civilians are entitled to in armed conflicts if the situation can still be qualified as an armed conflict.

Both the ICC and the SCSL<sup>357</sup> found that ‘three basic principles are accepted as determining whether a given mission constitutes a peacekeeping mission, namely (i) consent of the parties; (ii) impartiality; and (iii) the non-use of force except in self-defence.’<sup>358</sup> Contrary to

<sup>348</sup> Bothe *et al.* (eds.), *The OSCE in the Maintenance of Peace and Security: Conflict Prevention, Crisis Management and Peaceful Settlement of Disputes* (1998).

<sup>349</sup> The Lisbon Treaty amends the Treaty on European Union and stipulates that ‘[t]he common security and defence policy shall be an integral part of the common foreign and security policy. It shall provide the Union with an operational capacity drawing on civilian and military assets. The Union may use them on missions outside the Union for peace-keeping, conflict prevention and strengthening international security in accordance with the principles of the United Nations Charter. The performance of these tasks shall be undertaken using capabilities provided by the Member States.’ Treaty of Lisbon (OJ C 306, 17.12.2007) (<<http://eur-lex.europa.eu/images/n/pdf-hover.png>>, accessed 20 October 2014), para 49. Such peace-keeping missions ‘shall include joint disarmament operations, humanitarian and rescue tasks, military advice and assistance tasks, conflict prevention and peace-keeping tasks, tasks of combat forces in crisis management, including peace-making and post-conflict stabilisation.’ (id); for on-going military EU peacekeeping missions see: <<http://www.eeas.europa.eu/csdp/mis-sions-and-operations/>> (last accessed 10 October 2014).

<sup>350</sup> For general information see: <<http://www.ecowas.int/ips/ii/security/>>. Olakounlé Yabi, *The Role of ECOWAS in Managing Political Crisis and Conflict: The Cases of Guinea and Guinea-Bissau* (2010) <<http://library.fes.de/pdf-files/bueros/nigeria/07448.pdf>> (accessed 20 October 2014).

<sup>351</sup> The UN Security Council has repeatedly condemned attacks against peacekeeping forces set up by regional organisations (eg SC Res 788 (1992) para 4 and SC Res 813 (1993) para. 6 on ECOWAS peace-keeping forces in Liberia) and has asked the parties to the conflict to ensure their safety (SC Res 993 (1995) preamble and SC Res 1036 (1996) para 8, on CIS peace-keeping forces) and freedom of movement (SC Res 913 (1994) preamble on UNPROFOR in Bosnia and Herzegovina).

<sup>352</sup> *Prosecutor v. Abu Garda*, ICC-02/05-02/09-PT, Pre-Trial Decision, 8 February 2010, paras 75 *et seq.*, referring to article 52 para 1 of the UN Charter, which provides that ‘[n]othing in the present Charter precludes the existence of regional arrangements or agencies for dealing with such matters relating to the maintenance of international peace and security as are appropriate for regional action, provided, that such, arrangements or agencies and their activities are consistent with the Purposes and Principles of the United Nations.’ Article 53 para 1 of the UN Charter states that ‘no enforcement action shall be taken under regional arrangements or by regional agencies without the authorization of the Security Council.’ See also: Villani (2002) 6 *MPYbil* 555.

<sup>353</sup> *Prosecutor v. Abu Garda*, ICC-02/05-02/09-PT, Pre-Trial Decision, 8 February 2010, para 69.

<sup>354</sup> *Id.*, citing UN Peacekeeping webpage, retrieved from <http://www.un.org/en/peacekeeping/> (last visited 20 October 2014).

<sup>355</sup> See generally Heje, in: Moxon-Browne (ed.), *A Future for Peacekeeping?* (1998) 1; Rudolph, in: Wolfrum (ed.), *United Nations: Law, Policies and Practice, Vol. I* (1995) 957 (with further references); Hill and Malik, *Peacekeeping and the United Nations* (1996).

<sup>356</sup> *Prosecutor v. Abu Garda*, ICC-02/05-02/09-PT, Pre-Trial Decision, 8 February 2010 para 70.

<sup>357</sup> *Prosecutor v. Sesay, Kallon and Gbao*, SCSL-04-15-T, RUF Trial Judgement, 2 March 2009, para 225.

<sup>358</sup> *Id.*, 71, referring to the UN *Peacekeeping Operations: Principles and Guidelines* (UN Department of Peacekeeping Operations 2008) 31; *Report of the Panel on United Nations Peace Operations* (UN GA A/55/305-S/2000/809, 21 August 2000) (‘Brahimi Report’); *Supplement to an Agenda for Peace: Position Paper of the*

peace-enforcement missions, consent of the host state, respectively of the warring parties<sup>359</sup> in an internal armed conflict, 'is a prerequisite for a peacekeeping mission to be stationed on its territory'<sup>360</sup> and 'is also sought in practice.'<sup>361</sup> Impartiality means that 'United Nations peacekeeping operations must implement their mandate without favour or prejudice to any party.'<sup>362</sup> This implies mainly that the peacekeepers adhere to the principles of the UN Charter and the objectives of their mandate and that they 'should not condone actions by the parties that violate the undertakings of the peace process or international norms and principles.'<sup>363</sup>

- 233 Peacekeeping forces must not use force other than for the purpose of self-defence.<sup>364</sup> However, the concept of self-defence for these missions has evolved and does include the 'right to resist attempts by forceful means to prevent the peacekeeping operation from discharging its duties under the mandate of the Security Council.'<sup>365</sup> The SCSL has acknowledged in the RUF judgment 'that the operative United Nations doctrine on this issue is that peacekeeping operations should only use force as a measure of last resort, when other means have failed.'<sup>366</sup> Due to the extensive interpretation of the notion of 'self-defence'<sup>367</sup>, including the defense of the mandate and of civilians the question whether peacekeeping forces are still entitled to the same protection as civilians or have become combatants becomes more difficult and must be resolved on a case by case basis.<sup>368</sup> Some authors argue for an enhanced protection of peacekeepers through the 'evidentiary presumption that these troops enjoy international legal protection, unless specific circumstances before the Court clearly demonstrate that they were in fact combat forces.'<sup>369</sup>

- 234 **dd) Entitlement to protection given to civilians or civilian objects.** The fourth element of the crime is the entitlement to the protection given to civilians or civilian objects under the international law of armed conflict.

- 235 Personnel involved in **humanitarian assistance missions** are entitled to self-defence to the extent protected persons such as medical personnel are permitted to self-defence under

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*Secretary-General on the Occasion of the Fiftieth Anniversary of the United Nations* (UN SG A/50/60-S/1995/1, 3 January 1995) 33.

<sup>359</sup> *Prosecutor v. Sesay, Kallon and Gbao*, SCSL-04-15-T, RUF Trial Judgement, 2 March 2009, para 226: 'In non-international conflicts, this consent is obtained from the warring parties, not out of legal obligation, but rather to ensure the effectiveness of the peacekeeping operation.' See also: *Prosecutor v. Abu Garda*, ICC-02/05-02/09-PT, Pre-Trial Decision, 8 February 2010 paras 107 *et seqq.*

<sup>360</sup> *Prosecutor v. Abu Garda*, ICC-02/05-02/09-PT, Pre-Trial Decision, 8 February 2010, para 72, referring to article 2 para 7 of the UN Charter.

<sup>361</sup> *Prosecutor v. Abu Garda*, ICC-02/05-02/09-PT, Pre-Trial Decision, 8 February 2010, para 72, referring to the UN Peacekeeping Principles and Guidelines, (2008) 31.

<sup>362</sup> UN Peacekeeping Principles and Guidelines (2008) 33: 'Impartiality is crucial to maintaining the consent and cooperation of the main parties, but should not be confused with neutrality or inactivity. United Nations peacekeepers should be impartial in their dealings with the parties to the conflict, but not neutral in their execution of their mandate [...].'

<sup>363</sup> *Prosecutor v. Sesay, Kallon and Gbao*, SCSL-04-15-T, RUF Trial Judgement, 2 March 2009, para 227, referring to the *Report of the Panel on United Nations Peace Operations* (UN GA A/55/305-S/2000/809, 21 August 2000) 50, and the *UN Peacekeeping Operations: Principles and Guidelines* (UN Department of Peacekeeping Operations 2008) 33.

<sup>364</sup> *Prosecutor v. Sesay, Kallon and Gbao*, SCSL-04-15-T, RUF Trial Judgement, 2 March 2009 para 228.

<sup>365</sup> UN Peacekeeping Principles and Guidelines *United Nations Peacekeeping Operations: Principles and Guidelines* (2008) 34.

<sup>366</sup> *Prosecutor v. Sesay, Kallon and Gbao*, SCSL-04-15-T, RUF Trial Judgement, 2 March 2009, para 228, referring to the UN Peacekeeping Principles and Guidelines, *United Nations Peacekeeping Operations: Principles and Guidelines* (2008) 34.

<sup>367</sup> Marong, in: Jalloh, *The Sierra Leone Special Court and its Legacy*: (2014) 291, 295 *et seqq.*

<sup>368</sup> *Prosecutor v. Abu Garda*, ICC-02/05-02/09-PT, Pre-Trial Decision, 8 February 2010, para 83.

<sup>369</sup> Marong, in: Jalloh, *The Sierra Leone Special Court and its Legacy* (2014) 305. Marong agrees with the findings in the RUF Trial Judgement, *Prosecutor v. Sesay, Kallon and Gbao*, SCSL-04-15-T, RUF Trial Judgement, 2 March 2009, paras 233 *et seq.*; he however contemplates that 'international peacekeeping runs a great risk of being undermined unless the rules of the game are changed to enhance protections for those who make priceless sacrifices in the service of peace and security for humankind.' See also Sharp (1996) 7 *Duke/Comp&IL* 93.

international humanitarian law, without forgoing the protection they are entitled to as civilians. According to Add.Prot. I, personnel of civilian medical units may be ‘equipped with light individual weapons for their own defence or for that of the wounded and sick in their charge’, and may be guarded by armed guards or escorts, without being deprived of their protected status.<sup>370</sup> Such self-defence protection is particularly important when bandits, plunderers or common criminals present a possible danger, and when in a so-called *conflit destructuré* no disciplined armed force possesses firm authority over certain areas through which relief convoys need to pass or in which the humanitarian assistance will be delivered.<sup>371</sup> Using force to gain access to a certain area or to certain persons would disqualify the involved personnel and objects from this protection. In the case of hostile acts beyond self-defence, it is submitted in analogy to article 13 para. 1 Add.Prot. I that, at least in cases where the mission in general remains within its humanitarian mission, the protection ceases only after a warning has remained unheeded,<sup>372</sup> unless such warning was impossible under the circumstances.

**Peacekeepers** are considered to be civilians only insofar as they fall within the definition of civilians laid down for non-combatants in customary international law and under Additional Protocol II – specifically, that they do not take a direct part in hostilities.<sup>373</sup> By doing so, they would become combatants. Where peacekeepers become combatants, they can be legitimate targets for the extent of their participation in accordance with international humanitarian law.<sup>374</sup> 236

With regard to attacks on **installations, material, units or vehicles** involved in a peace-keeping mission the question arises when they are no longer entitled to protection as a civilian object under international humanitarian law. Article 52 Add.Prot. I provides that civilian objects may not be attacked, namely all objects which are not military objectives. Military objectives are defined in para 2 of article 52 Add.Prot. I as limited to those objects which by their nature, location, purpose or use make an effective contribution to military action and whose total or partial destruction, capture or neutralization, in the circumstances ruling at the time, offers a definite military advantage.’ Installations, material, units or vehicles involved in a peacekeeping mission are not military objectives ‘unless and for such time as their nature, location, purpose or use make an effective contribution to the military action of a party to a conflict and insofar as their total or partial destruction, capture or neutralization, in the circumstances ruling at the time, offers a definite military advantage.’<sup>375</sup> 237

International humanitarian law applies to all armed conflicts and to all parties to the conflict, and therefore also to any peacekeeping mission present in an armed conflict. In order to determine whether a certain person or object enjoys protection under IHL as a civilian or as a civilian object, respectively, it is irrelevant whether a force, a person or an object is part of a ‘UN mission’. Peacekeeping as well as peace-enforcement missions do not readily fit in the categories of IHL, which has been drafted and has emerged without a focus on the particularities of such missions. While there has been considerable controversy about 238

<sup>370</sup> Article 13 Add.Prot. I; Article 22 GC I provides basically the same.

<sup>371</sup> Working Paper submitted jointly by the International Federation and the ICRC: Follow-up to Resolution 5 (Armed Protection of Humanitarian Assistance) Council of Delegates, Geneva 1–2 December 1995, 95/CD/12/1.

<sup>372</sup> Article 13 para 1 first sentence Add.Prot. I.

<sup>373</sup> *Prosecutor v. Nourain and Jerbo Jamus*, ICC-02/05-03/09-PT, Decision on the Confirmation of Charges, 7 February 2011, para 66; *Prosecutor v. Abu Garda*, ICC-02/05-02/09-PT, Pre-Trial Decision, 8 February 2010, para 89; Dörmann, *Elements of War Crimes* (2003) 155; Sivakumaran, (2010) 8 JICJ 1026.

<sup>374</sup> To the definition of ‘direct participation in hostilities’ see: *Prosecutor v. Abu Garda*, ICC-02/05-02/09-PT, Pre-Trial Decision 8 February 2010, para 80, referring to *Prosecutor v. Pavle Strugar*, IT-01-42-A, Appeal Judgement, 17 July 2008, para 177.

<sup>375</sup> *Prosecutor v. Abu Garda*, ICC-02/05-02/09-PT, Pre-Trial Decision 8 February 2010, para 89, referring to *Prosecutor v. Stanislav Galić*, IT-98-29-T, Trial Chamber Judgment, 5 December 2003, para 51: ‘... such an object shall not be attacked when it is not reasonable to believe, in the circumstances of the person contemplating the attack, including the information available to the latter, that the object is being used to make an effective contribution to military action’.



exactly what rules apply and on what legal basis, it seems now broadly accepted that IHL applies generally if not fully (which is the only possible interpretation according to humanitarian law logic) to UN **peace-enforcement operations** which are authorized to use force to achieve their objective and which in fact engage in hostilities against armed forces; it is also generally accepted that UN operations in which the basic mandate is not to engage in combat but that might become involved in hostilities must respect international humanitarian law insofar applicable.<sup>376</sup> Article 2 of the Convention on the Safety of United Nations and Associated Personnel only appears to assume that IHL applies to peace-enforcement operations.<sup>377</sup> However, again, humanitarian law itself is clear in that it applies to all and any armed conflict and parties to the conflict. Therefore, legally, there can hardly be an exception.

239 As with all civilians, their protection would not cease if the personnel use armed force only in exercising their right to individual self-defence.<sup>378</sup> The use of force by peacekeepers in **self-defence in the discharge of their mandate**, provided that it is limited to such use, would not alter or diminish the protection afforded to peacekeepers.<sup>379</sup> However, the term ‘self-defence’, as applied by the United Nations to its peacekeeping forces, is frequently used and understood in a substantially broader sense than the strict self-defence permitted to protected persons according to humanitarian law.<sup>380</sup> While the notion of self-defence was interpreted extensively for certain missions<sup>381</sup>, the Secretary-General did not strictly follow this approach in his Supplement to an Agenda for Peace and for instance did not consider the use of armed force for protection of humanitarian convoys or protection of safe areas as self-defence.<sup>382</sup>

240 It may be argued that a formal authorization of peace-enforcement missions to use force on their own initiative contrary to self-defence excludes its personnel and the entire mission from the entitlement to the protection accorded to civilians. It seems reasonable to exclude an entitlement to the protection of civilians when a ‘peacekeeping force’ is authorized to use force to a degree which essentially reaches the use of offensive force. A mission may of course also forgo the entitlement to civilian protection when the mandate is changed after an initial ‘static’ peacekeeping mandate, as for instance when the mandate is extended to a full-blown enforcement operation under Chapter VII.

241 An open question is whether all personnel and objects involved in a peacekeeping mission forgo the protection they are entitled to as civilians, respectively civilian objects if solely a part of it in fact becomes engaged in hostilities.<sup>383</sup> While in such a case the whole peace-keeping operation may not anymore be perceived as neutral by combatants of the parties, the perception certainly cannot be the sole determining factor.

<sup>376</sup> Cf. endeavours to limit the obligation to respect IHL, in order to avoid that UN missions are politically considered ‘parties to the conflict’, to having to respect ‘at least’ or ‘only’ the ‘principles and spirit’ of such law: Article 28 of the Model Agreement between the United Nations and Member States contributing personnel and equipment to United Nations peace-keeping operations, UN Doc. A/46/185 (23 May 1991), Annex, article 28; article 17 of the Agreement between the United Nations and the Government for the Republic of Rwanda on the Status of the United Nations Assistance Mission for Rwanda, signed on 5 Nov. 1993, quoted in: Greenwood (1998) 1 *YbILHumL* 3 and 20–21; *idem.* (1996) 7 *DukeJComp&IL* 185; Gasser (1995) 2 *Hu-V.* 72.

<sup>377</sup> Article 20 (a) of the Convention on the Safety of United Nations and Associated Personnel; also Emanuelli (1996) 1 *Hum-V.* 4 *et seqq.*

<sup>378</sup> *Prosecutor v. Sesay, Kallon and Gbao*, SCSL-04-15-T, RUF Trial Judgement, 2 March 2009, para 233; Dörmann, *Elements of War Crimes* (2003) 159.

<sup>379</sup> Sivakumaran, (2010) 8 *JICJ* 1026.

<sup>380</sup> For instance, when the Security Council considered setting up the UN Interim Force in Lebanon in 1978, the Secretary-General stated that ‘[t]he Force will be provided with weapons of a defensive character. It shall not use force except in self-defence. Self-defence would include resistance to attempts by forceful means to prevent [the United Nations force] from discharging its duties under the mandate of the Security Council.’ Report of the Secretary-General, S/12611, p. 2 (emphasis added).

<sup>381</sup> Concerning ONUC, see Arsanjani, in: Condorelli *et al.* (eds.), *Les Nations Unies et le Droit International Humanitaire* (1996) 134 *et seq.*

<sup>382</sup> See UN Doc A/50/60–S/1995/1, para 34.

<sup>383</sup> The Convention on the Safety of United Nations and Associated Personnel (n 310) provides that if *any* of the personnel of an enforcement operation engage as combatants the Convention shall not apply to the entire operation.



In determining whether the peacekeeping personnel or objects of a peacekeeping mission are entitled to civilian protection the **totality of the circumstances** existing at the time of the alleged offence must be considered,<sup>384</sup> including, the relevant Security Council resolutions for the operation, the specific operational mandates, the role and practices actually adopted by the peacekeeping mission during the particular conflict, their rules of engagement and operational orders, the nature of the arms and equipment used by the peacekeeping force, the interaction between the peacekeeping force and the parties involved in the conflict, any use of force between the peacekeeping force and the parties in the conflict, the nature and frequency of such force and the conduct of the alleged victim(s) and their fellow personnel.<sup>385</sup>

ee) *Mens rea* ('Intentionally directing attacks'). In addition to the standard *mens rea* requirement provided in article 30 Rome Statute, the offence has a **specific intent mens rea**, insofar as the perpetrator must have intended that the personnel, installations, material, units or vehicles of the peacekeeping mission be the primary object of the attack.<sup>386</sup> The crime encompasses a **dolus directus of the first degree**.<sup>387</sup> The perpetrator must have known or had reason to know that the personnel, installations, material, units or vehicles were protected. It is not necessary to establish that the perpetrator actually had legal knowledge of the protection to which the personnel and objects were entitled under international humanitarian law, but he must have been aware of the factual basis for that protection.<sup>388</sup> Therefore, the defence of mistake of law provided for in article 32 Rome Statute is excluded, 'as only knowledge in relation to facts establishing that the installations, material, units or vehicles and personnel were involved in a peacekeeping mission is necessary, and not legal knowledge pertaining to the protection thereof'.<sup>389</sup>

#### 4. Paragraph 2(b)(iv): Intentionally launching an attack in the knowledge of its consequences to civilians or to the natural environment

**Literature:** Roberta Arnold, *The protection of the civilian population from the effects of hostilities*, 4 *Humanitäres Völkerrecht* 159 (2004); *id.*, *The ICC as a New Instrument for Repressing Terrorism* (2004); *id.*, *The protection of the Environment Under the Laws of War*, in: Rain Liivoja/Timothy L.H. McCormack (ed.), *Routledge Handbook of the Law of Armed Conflict* (London: Routledge) (2015); Antoine Bouvier (ed.), *How does law protect in war?*, Vol. II, (3<sup>rd</sup> edn, ICRC 2011); Antoine Bouvier, 'Protection of the Natural Environment in time of Armed Conflict' (1991) 285 (31) *IRRC* 567; Committee Established to Review the NATO Bombing Campaign Against the Federal Republic of Yugoslavia, Final Report, § 283 < <http://www.icty.org/sid/10052>>; Michael Bothe, Carl Bruch, Jordan Diamond, David Jensen, 'International law protecting the environment during armed conflict: gaps and opportunities', 2010 *IRRC* Vol. 92 nr. 879 569; Michael Cottier, Did NATO Forces Commit War Crimes During the Kosovo Conflict? Reflections on the [ICTY] Prosecutor's Report of 13 June 2000, in: Horst Fischer/Claus Kress/Sascha Rolf Lüder (eds.), *International and National Prosecution of Crimes under International Law: Current Developments* 505 (2001); Knut Dörmann *et al.*, *Elements of War Crimes under the Rome Statute of the International Criminal Court* (2003); Harold Wayne Elliott, 'Open Cities and Undefined Places', *The Army Lawyer* 39 (1995); William J. Fenrick, 'The Rule of Proportionality and Protocol I in Conventional Warfare', 98 *MilLRev* 91 (1982); *id.*, 'Attaching the Enemy Civilian as a Punishable offence', 7 *DukeJComp&IL* 539 (1997); Hans-Peter Gasser, 'Protection of the Civilian Population', in: Dieter Fleck (ed.), *The Handbook of Humanitarian Law in Armed Conflicts* 209 (1999); Hermann Von Hebel/Darryl Robinson, 'Crimes within the jurisdiction of the court', in: Roy S. Lee (ed.), *The International Criminal Court: The Making of the Rome Statute – Issues, Negotiations, Results* 79 (1999); Yoram Dinstein, 'Protection of the environment in international armed conflict' in: J. A. Frowein and R. Wolfrum (ed) (2001), 5 *MPYbUNL* 523; Jean-Marie Henckaerts and Louise Doswald-Beck, *Customary International Humanitarian Law* (CUP 2009, Vol. I); Julian Fernandez et Xavier Pacreau, *Commentaire du Statut de Rome de la CPI* (Pedone 2012); Karen Hulme, *War Torn Environment*:

<sup>384</sup> Frank, in: Lee (ed.), *Elements of Crimes* (2001), 146 *et seq.*

<sup>385</sup> *Prosecutor v. Sesay, Kallon and Gbao*, No. SCSL-04-15-T, RUF Trial Judgement, 2 March 2009, para 234; *Prosecutor v. Abu Garda*, ICC-02/05-02/09-PT, Pre-Trial Decision, 8 February 2010, para 84.

<sup>386</sup> *Prosecutor v. Sesay, Kallon and Gbao*, No. SCSL-04-15-T, RUF Trial Judgement, 2 March 2009, para 232.

<sup>387</sup> *Prosecutor v. Abu Garda*, ICC-02/05-02/09-PT, Pre-Trial Decision 8 February 2010, para 93.

<sup>388</sup> *Prosecutor v. Sesay, Kallon and Gbao*, SCSL-04-15-T, RUF Trial Judgement, 2 March 2009, para 235.

<sup>389</sup> *Prosecutor v. Abu Garda*, ICC-02/05-02/09-PT, Pre-Trial Decision, 8 February 2010, para 94; See: Piragoff and Robinson below article 30; Frank, *Prosecutor v. Sesay, Kallon and Gbao*, SCSL-04-15-T, Trial Judgement, 2 March 2009 147.

*Interpreting the Legal Threshold* (Martinus Nijhoff Publishers 2004; *id.*, 'Climate change and international humanitarian law', in: Rosemary Gail Rayfuse & Shirley V. Scott (Ed.), *International Law in Era of Climate Change*, (Cheltenham: Edward Elgar Publishing Ltd 2012), 190–218; *id.*, 'Taking care to protect the environment against damage: a meaningless obligation?' (2010) 92 (879) *IRRC* 675; ICRC's 'Interpretive Guidance on the Notion of Direct Participation in Hostilities under IHL', 200, Geneva; Jessica C. Lawrence and Kevin Jon Heller, 'The limits of article 8(2)(b)(iv) of the Rome Statute, the first ecocentric environmental war crime', (2007) 20 *Georgetown International Environmental Law Review* 61; N. Melzer, "Interpretive Guidance on the Notion of Direct Participation in Hostilities under International Humanitarian Law" Adopted by the Assembly of the ICRC on 26 February 2009', reprinted in 2008 (872) *IRRC*; William H. Parks, 'Air War and the Law of War', 32 *AFLRev* 1 (1990); ICRC, 'Guidelines on the Protection of the Environment in Times of Armed Conflict', Annex to the ICRC Report to the 48<sup>th</sup> session of the UN General Assembly, 1993, < <http://www.icrc.org/eng/resources/documents/misc/57jn38htm>; ICTY, Final Report of the Committee Established to Review the NATO Bombing Campaign Against the Federal Republic of Yugoslavia, §§ 18/23, < <http://www.icty.org/sid/10052>; International Court of Justice (ICJ), Legality of the threat or use of nuclear weapons, Advisory Opinion of 8 July 1996, 242, § 30, < <http://www.icj-cij.org/docket/files/95/7497.pdf>; Anthony P.V. Rogers, *Law on the Battlefield* (2004); Yves Sandoz/Christophe Swinarski/Bruno Zimmermann *et al.* (eds.), *Commentary on the Additional Protocols of 8 June 1977 to the Geneva Conventions of 12 August 1949* (1987); Adam Roberts, 'Failures in protecting the environment' in: P.J. Rowe (ed.) *The Gulf War 1990–91 in International and English Law*, (Routledge 1993); Sandesh Sivakumaran, *The law of non-international armed conflict*, (OUP 2012); Michael N. Schmitt, 'Green War: An Assessment of the Environmental Law of International in Armed Conflict' in: M. N. Schmitt (ed), *Essays on Law and War at the Fault Lines* (2012 TMC Asser) 361; Waldemar A. Solf, 'Article 57', in: Michael Bothe/Karl J. Partsch/Waldemar A. Solf, *New Rules for Victims of Armed Conflicts, Commentary on the two 1977 Protocols Additional to the Geneva Conventions of 1949* (1982); Mara Tignino, 'Water, international peace, and security', (2010) 92 (879) *IRRC* 647; Otto Triffterer, 'Ius in bello: Eskalation durch 'Kollateralschäden' wie durch Kriegsverbrechen – Beweisbarkeit und Vermeidbarkeit?', in: Reinhard Moos/Udo Jesionek/Otto F. Müller, *Strafprozessrecht im Wandel: Festschrift für Roland Miklau zum 65. Geburtstag* 559 (2006); United Nations Environment Programme, *Protecting the Environment During Armed Conflict*, 'An Inventory and Analysis of International Law', (November 2009) 6, <[http://postconflict.unep.ch/publications/int\\_law.pdf](http://postconflict.unep.ch/publications/int_law.pdf).

- 244 Pursuant to the Elements of Crime, the *actus reus* of article 8 para. 2 (b) (iv) requires that:
- (a) The perpetrator launched an attack;
  - (b) The attack was such that it would cause incidental death or injury to civilians or damage to civilian objects or widespread, long-term *and* severe damage to the natural environment and that such death, injury or damage would be of such an extent as to be clearly excessive in relation to the concrete and direct overall military advantage anticipated.

245 Article 8 para. 2 (b) (iv) is somewhat similar to the grave breach provision contained in article 85 (3) (b) Add. Prot. I, except for the fact that:

- it includes 'widespread, long-term and severe damage to the natural environment' while the Add. Prot. I does not, and
- it states that loss, injury or damage must be 'clearly' excessive while the Add. Prot. I does not.

This provision may be actually divided into two parts. The general aim is to prohibit the intentional launching of attacks which may cause clearly excessive collateral damages on (a) civilians, on the one hand, and on (b) the natural environment, on the other.

- 246 (a) The clause referring to collateral damages among *civilians* was principally drawn from articles 51 para. 5 (b), 85 para. 3 (b), 35 para. 3 (b) and 55 para. 1 Add. Prot. I and reflects the three pillar principles of International Humanitarian Law (IHL): distinction, military necessity and proportionality. The principle of distinction is based on the idea that only combatants should engage in hostilities and, consequently, only military objectives, including combatants, may be targeted legitimately. For this reason a combatant, whose task is to fight, will not be held criminally liable for having killed an enemy. In fact IHL, unlike human rights law, accepts that violence and the loss of lives are intrinsic to war. However, a civilian, who will take up arms for reasons other than self-defence or the *levée en masse*, will be prosecutable for murder or killing pursuant to ordinary criminal law. Since civilians must abstain from combat activities, at the same time they shall be spared from their effects. In modern times, however, there has been an increasing involvement of civilians in hostilities and there have been major doctrinal developments concerning the direct participation of civilians in hostilities.<sup>390</sup> As a

<sup>390</sup> See note 131, Gasser, H.-P., *Protection* 210; R. Arnold, 'The protection of the civilian population from the effects of hostilities', 4 *Humanitäres Völkerrecht* 166 (2004). See in particular the ICRC's 'Interpretive Guidance

general rule, article 52 para. 1 Add. Prot. I states that civilian objects shall not become the *primary target* of an attack. This means that as long as an attack is not *primarily* aimed at civilians, or civilian objects, it may be justified under the laws of war. However, two other relevant criteria need to be taken into consideration in the equation: the principles of proportionality and military necessity. Only so-called ‘collateral damage’, *i.e.* losses among the civilian population and damages to civilian property which were necessary to fulfil the military mission and which were proportionate in relation to the military advantage sought, may be justified<sup>391</sup>.

At Rome, discussions were raised in particular on how to formulate the ‘proportionality’ principle. According to article 57 Add. Prot. I, the criterion is that the anticipated collateral damage ‘would be excessive in relation to the concrete and direct military advantage anticipated’. However, several States were afraid that this would be applied too strictly by the Court, which would judge the situation *ex post*. In fact, the expression ‘concrete and overall military advantage’ refers to a military advantage that is foreseeable by the perpetrator at the relevant time. Thus, some delegations preferred the more flexible criterion of ‘not justified by military necessity’. Eventually a compromise was achieved: the wording of Add. Prot. I was taken as a basis, with the additional inclusion of the wording ‘clearly’ and ‘overall’. This would permit the responsible person to have a wider margin of appreciation<sup>392</sup>. Thus, the perpetrator must have known that the attack would cause incidental death, injury or damage to the natural environment, of a clearly excessive nature in relation to the military advantage sought. The assessment is to be made by the Court on an objective basis from the perspective of a reasonable commander<sup>393</sup>.

Another relevant issue is whether the proportionality test is to be made in relation to the overall objective sought (*i.e.* the mission’s objective) or merely the attack under scrutiny. Pursuant to *K. Dörmann* and others, the military advantage sought may or may *not* be temporally or geographically related to the object of the attack. However, it seems that the requirement of foreseeability was meant to exclude advantages which are vague and to avoid the possibility of relying on *ex post* justifications. For instance, according to Add. Prot. I, the expression ‘concrete and direct’ was intended to show that the advantage sought should be *substantial and relatively close*. Advantages which would only appear in the long term should be avoided<sup>394</sup>. According to a study on IHL customary rules, states like Australia, Belgium, Canada, Germany, Italy, the Netherlands, Spain, UK, US, and Nigeria, also interpret this rule as meaning the *advantage anticipated from the military attack considered as a whole* and not only from isolated or particular parts of the attack. The destruction, capture or neutralization must offer a *definite military advantage* in the circumstances ruling at the time. Thus, it is not allowed to launch an attack which only offers *potential or indeterminate* advantages. Those ordering or executing the attack must have sufficient information. In case of doubt, the safety of the civilian population must be taken into consideration<sup>395</sup>.

According to the Elements of article 8 para. 2 (b) (iv) ICC Statute (war crime of excessive incidental death, injury or damage), the expression *concrete and direct overall military advantage* refers to a military advantage:

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on the Notion of Direct Participation in Hostilities under IHL’, 200; Geneva and N. Melzer, ‘Interpretive Guidance on the Notion of Direct Participation in Hostilities under International Humanitarian Law’ Adopted by the Assembly of the ICRC on 26 February 2009, reprinted in 2008 (872) IRRC. This whole issue of the IRRC was dedicated to this topic.

<sup>391</sup> Arnold, R., *The ICC as a New Instrument for Repressing Terrorism* 75 (2004); Fernandez J., et Pacreau, X., *Commentaire du Statut de Rome de la CPI*, (Paris: Pedone, 2012), at 519 *et seq.*

<sup>392</sup> Hebel, H., von/Robinson, D., ‘Crimes within the jurisdiction of the court’, in: Lee, R. S., (ed.), *The International Criminal Court: The Making of the Rome Statute – Issues, negotiations, results* 111 (1999).

<sup>393</sup> See note 33, Dörmann, K., *Elements of war crimes* 164.

<sup>394</sup> See note 33, Dörmann, K., *Elements of war crimes* 161–163.

<sup>395</sup> See note 2, Sandoz Y./Swinarski Ch./Zimmermann B. (eds.), *Commentary* 636, No. 2024. See note 261, Arnold, R., *The protection* 171 (2004).

‘that is foreseeable by the perpetrator at the relevant time. Such advantage may or may not be temporally or geographically related to the object of the attack. The fact that this crime admits the possibility of lawful incidental injury and collateral damage does not in any way justify any violation of the law applicable in armed conflict. It does not address justifications for war or other rules related to *jus ad bellum*. It reflects the proportionality requirement inherent in determining the legality of any military activity undertaken in the context of an armed conflict’.

- 250 Pursuant to the Commentary to the Additional Protocols, instead, the expression was intended to show that:

‘the advantage concerned should be substantial and relatively close, and that advantages which are hardly perceptible and those which would only appear in the long term should be disregarded’<sup>396</sup>.

- 251 So, there seems to be a slight difference of interpretation between Add. Prot. I, which, unlike the ICC Statute, requires temporal closeness. However, both provisions seem to share the common denominator that a definite military advantage is required for *each* chosen target<sup>397</sup>. This apparently supports the view that only those attacks which pursue an advantage in relation to the *concrete* attack launched are encompassed. No meaning was given to ‘attack as a whole’, but K. Dörmann argues that this certainly cannot be interpreted as meaning the whole conflict. In this regard, W. A. Solf holds the view that the assessment must be made in light of the specific military operation of which the attack is a part considered as a whole, and not only from isolated or particular parts of that operation<sup>398</sup>. At the same time, Australia and New Zealand also interpret this meaning that there is a bona fide expectation that the attack will make a relevant and proportional contribution to the objective of the military attack involved<sup>399</sup>.

- 251 Regarding the question whether the damage must have occurred, the Preparatory Committee followed the view that for the crime to be committed it is not necessary that the attack had a particular result. This understanding is expressed in the phrasing that ‘the attack was such that it would cause’<sup>400</sup>.

- 253 (b) Concerning the clause referring to the *natural environment* – which is the only one in the entire ICC Statute – its language is inspired by articles 35 para. 3 and 55 Add. Prot. I. These ban attacks which would cause widespread, long-term *and* severe damage to the natural environment. Their threshold, thus, is higher than the one set by the *Convention on the prohibition of military or any hostile use of environmental modification techniques, 10 December 1976* (ENMOD)<sup>401</sup>, which provides for disjunctive criteria.<sup>402</sup> A similar content can be found in Rules 43–45 of the ICRC’s Study on customary law, which moreover re-state the principle according to which, prior to launching an attack, precautionary measures shall be taken<sup>403</sup>. Unfortunately, like the provisions in Add. Prot. I, neither the ICC Statute nor its

<sup>396</sup> See note 2, Sandoz, Y./Swinarski, Ch./Zimmermann, B. (eds.), *Commentary* 684, No. 2209.

<sup>397</sup> See note 2, Sandoz, Y./Swinarski, Ch./Zimmermann, B. (eds.), *Commentary* 636, No. 2028.

<sup>398</sup> Solf, W. A., *Article 57*, in: Bothe, M./Parsch, K. J./Solf, W. A., *New Rules for Victims of Armed Conflicts, Commentary on the two 1977 Protocols Additional to the Geneva Conventions of 1949* (1982).

<sup>399</sup> Henckaerts, J.-M., ‘The conduct of hostilities: target selection, proportionality and precautionary measures under international humanitarian law’, in: Hector, M./Jellema, M. (ed.), *Protecting Civilians in 21<sup>st</sup> Century Warfare*, Speeches and proceedings of the Red Cross Symposium, 8 December 2000 16–17 (2001).

<sup>400</sup> See note 33, Dörmann, K., *Elements of war crimes* 162. This is also the position held by the international community with regard to the protection of the environment under article 35 para. 3 and article 55 Add. Prot. I, on which the ICC provision is based, as it will be discussed next. See Committee Established to Review the NATO Bombing Campaign Against the Federal Republic of Yugoslavia, Final Report, § 15) see <http://www.icty.org/sid/10052> (last viewed 18 Oct. 2014); Rogers, A. P. V., see at 169; Arnold, R., *Routledge Handbook*.

<sup>401</sup> Convention on the prohibition of military or any hostile use of environmental modification techniques, 10 December 1976 (ENMOD), 5 October 1978, (1977) 16 *ILM* 88–94.

<sup>402</sup> For details, see Arnold, R., *Routledge Handbook*.

<sup>403</sup> Rule 43 refers to the general IHL principles on the conduct of hostilities apply to the natural environment; Rule 44 refers to the principle of Due Regard for the Natural Environment in Military Operations and Rule 45 refers to the prohibition to Cause Serious Damage to the Natural Environment. See Jean-Marie Henckaerts and Louise Doswald-Beck, *Customary international humanitarian law, Vol. I – Rules*, (Cambridge: CUP; 2009), at 144–160. ICTY’s Report on NATO’s bombing campaign in Kosovo, cited by A Bouvier, *How does law*, Case 38, at 21.

Elements specify the meaning of the words ‘widespread, long – term and excessive’. There seems to be agreement in the doctrine, however, that the requirement of ‘long-term’ damage under the Add. Prot. I refers to some decades (at least two or three) as opposed to months or a season, as it is instead the case under the ENMOD<sup>404</sup>. Due to this high-threshold, it is unlikely that battlefield damage incidental to conventional warfare – like the sort of damage caused by heavy shelling during World War I battles on the Western Front – would not normally fall under this provision, a view expressed also by the ICTY in its report on NATO’s bombing campaign in Kosovo<sup>405</sup>. Some authors like Lawrence and Schmitt, even argue that by relying on the interpretation of Add. Prot. I, the ICC provision will even become a ‘virtual nullity’, since the AP I standard, to use Schmitt’s words, is ‘nearly impossible to meet in all but the most egregious circumstances’<sup>406</sup>. The notion ‘severe’ under Add. Prot. I may be interpreted as meaning the prejudicing of the continued survival of the civilian population or involving the risk of major health problems, whereas ‘widespread’ may indicate effects which go beyond the standard of several hundred square kilometres set forth by ENMOD<sup>407</sup>. The United Nations Environment Programme suggested to read the notions ‘widespread’ as encompassing an area on the scale of several hundred square kilometres; ‘long-term’ as a period of months, or approximately a season; and ‘severe’ as involving serious or significant disruption or harm to human life, natural economic resources or other assets<sup>408</sup>. An analogous interpretation may be adopted for Article 8 para. 2 (b) (iv) ICC Statute. The major difference between this provision and those contained in the Add. Prot. I and ENMOD, however, is the inclusion of a proportionality test<sup>409</sup>, requiring a military advantage foreseeable by the perpetrator at the relevant time and which may or may not be temporally or geographically related to the object of the attack<sup>410</sup>. Accordingly, only those attacks which are being launched in the knowledge that this will cause widespread, severe and long term damage to the environment, *and* which would be clearly excessive with regard to the anticipated military advantage, shall be considered as a war crime<sup>411</sup>. A degree of discretion is granted to military commanders and, in any event, prosecutors would probably be reluctant to prosecute unless the proportionality requirement was clearly breached. Determining the proper standard is difficult<sup>412</sup>. A major difficulty, then, will lie in the possibility for the commander, prior to the attack, to quantify the damage and to assess whether this is proportionate or not. The assessment of what kind of damage is actually incidental casualty or damage which is not disproportionate is legally permissible. The ICTY, in its *Report on NATO’s bombing*, observed that the ICC Statute recognizes ‘operational reality’ and that the use of the word *clearly* ensures that criminal responsibility would be entailed only in cases where the excessiveness of the incidental damage was obvious<sup>413</sup>.

Concerning the *mens rea*, also in this case article 8 para. 2 (b) (iv) is somewhat similar to the grave breach provision in article 85 Add. Prot. I, except for the fact that the first refers to

<sup>404</sup> See the Understanding to Art. 1 ENMOD.

<sup>405</sup> Report of the Drafters’ Committee, Conference document CDDH/215/Rev. 1, para. 27; Bouvier, *How does law*, (n 6), 606.

<sup>406</sup> Lawrence, J. C. and Heller, K. J., ‘The limits of article 8(2)(b)(iv) of the Rome Statute, the first ecocentric environmental war crime’, (2007) 20 *Georgetown International Environmental Law Review* 61, at 68, citing Michael Schmitt.

<sup>407</sup> See Rogers, A. P. V., see at 171 and Arnold, R., *Routledge Handbook*.

<sup>408</sup> UNEP (n 13) 5, § 1 of the Recommendations.

<sup>409</sup> Dörmann K., *Elements of war crimes*, 166; Fenrick, W., ‘The Rule of Proportionality and Protocol I in Conventional Warfare’ (1982) 98 *MillRev* 91; See however Hulme, K., *War Torn Environment: Interpreting the Legal Threshold* (Martinus Nijhoff Publishers 2004) 78, in whose view this requirement is pleonastic.

<sup>410</sup> Elements of Crime, UN Doc PCNICC/2000/1/Add.2 (2000), FN 36 and 37, see <http://www1.umn.edu/humanrts/instrree/icclementsofcrimes.html> (last viewed 18 Oct. 2014); ICTY (n 39) § 50; Dörmann, see at 176; Lawrence, see at 86.

<sup>411</sup> See note 263, Hebel, von H./Robinson, D., *Crimes* 112.

<sup>412</sup> Fenrick, W. J., ‘The Rule of Proportionality and Protocol I in Conventional Warfare’, 98 *MillRev* 91 (1982).

<sup>413</sup> Arnold R., *Routledge Handbook*; ICTY, Final Report of the Committee Established to Review the NATO Bombing Campaign Against the Federal Republic of Yugoslavia, § 21.



‘intentionally’ launching an attack while the Add. Prot. I refers to ‘wilfully’ launching an attack. The Elements provide that the perpetrator knew that the attack would cause incidental death or injury to civilians or damage to civilian objects or widespread, long-term and severe damage to the natural environment and that such death, injury or damage would be of such. Thus, this may be intent (*dolus directus*) or constructive intent (*dolus eventualis*).<sup>414</sup>

### 5. Paragraph 2(b)(v): Attacking or bombarding undefended not military objectives

**Literature:** Knut Dörmann *et al.*, *Elements of War Crimes Under the Rome Statute of the International Criminal Court, Sources and Commentary* (2003); Jean-Marie Henckaerts/Louise Doswald-Beck, *Customary international humanitarian law, Vol. I – Rules*, (Cambridge: CUP; 2009); William J. Fenrick, ‘The Rule of Proportionality and Protocol I in Conventional Warfare’, 98 *MillRev* 91 (1982); *id.*, ‘Attacking the Enemy Civilian as a Punishable Offence’, 7 *DukeComp&IL* 539 (1997); Leslie C. Green, *The Contemporary Law of Armed Conflict* (2000); William H. Parks, ‘Air War and the Law of War’, 32 *AFLRev* 1 (1990); Didier Pfirter, ‘Article 8(2)(b)(v) – Attacking Undefended Places’, in: Roy S. Lee (ed.), *The International Criminal Court – Elements of Crimes and Rules of Procedure and Evidence* (2001); Anthony P.V. Rogers, *Law on the Battlefield* (2004); Marco Sassòli/Antoine Bouvier, ‘Un droit dans la guerre’ (2003); Harold Wayne Elliott, ‘Open Cities and Undefended Places’, *The Army Lawyer* 39 (1995).

255 According to article 8 para. 2 (b) (v) it is a war crime: ‘Attacking or bombarding, by whatever means, towns, villages, dwellings or buildings which are undefended and which are not military objectives’. Pursuant to the Elements of Crime, this norm is fulfilled if:

1. The perpetrator attacked one or more towns, villages, dwellings or buildings
2. Such towns, villages, dwellings or buildings were open for unresisted occupation
3. Such towns, villages, dwellings or buildings did not constitute military objectives
4. The conduct took place in the context of and was associated with an international armed conflict
5. The perpetrator was aware of factual circumstances that established the existence of an armed conflict.

256 This prohibition is nowadays recognized as forming part of customary law (Rule 37 of the ICRC Study on Customary Law), applicable to all types of armed conflicts, even though under the ICC Statute this has been only made applicable within the context of international armed conflicts. It was included in the Brussels Declaration and in the Oxford Manual<sup>415</sup>, and later codified in article 25 of the Regulations annexed to Hague Convention IV of 1907 Respecting the Laws and Customs of War on Land, article 59 (non-defended localities) of Add. Prot. I and article 3 sub-para. c of the ICTY Statute, which all contain a similar language, with the only difference that the provision of the ICC Statute incorporates the principle of military necessity and distinction, explicitly stating that such acts are prohibited if these targets did not constitute a military objective.

257 The term ‘attack’ is defined in article 49 para. 1 Add. Prot. I of 1977 as covering any ‘*acts of violence against the adversary, whether in offence or in defence*’. Because of this definition, the additional specifications of ‘bombarding’ and ‘by whatever means’ in article 8 para. 2 (b) (v) have lost significance, as it was instead the case for the interpretation of article 25 of the Hague Regulations.

Article 59 Add. Prot. I reiterates article 25 of the Regulations. Paragraph 1 holds that: ‘It is prohibited for the Parties to the conflict to attack, by any means whatsoever, non-defended localities’.

258 The Preparatory Committee, in drafting article 8 para. 2 (b) (v), however, decided to stick to the language of the 1925 Regulations rather than to adopt the wording of article 59 Add. Prot. I, particularly the conditions set forth in paragraph 2<sup>416</sup>. This prohibits ‘The attack or

<sup>414</sup> Hulme, K., *War Torn* (n.2) 74. In the Romanic systems, this would correspond to what is called as ‘*dolus directus*’ and ‘*dolus eventualis*’ respectively.

<sup>415</sup> See Brussels Declaration, Article 15 (cited in: Henckaerts, J.-M. and Doswald-Beck, L., Vol. II, Ch. 11, § 233); Oxford Manual, Article 32 (cited in: Henckaerts, J.-M. and Doswald-Beck, L., Vol. II, Ch. 11, § 234).

<sup>416</sup> This was apparently the view of the Preparatory Committee. On this see note 33, Dörmann, K., *Elements of war crimes* 177.



bombardment, by whatever means, of towns, villages, dwellings, or buildings which are undefended'. Pursuant to it, an undefended locality is any inhabited place near or in a zone where armed forces are in contact and which is open to occupation by the adversary. It must fulfil the following conditions:

- (a) all combatants, as well as mobile weapons and mobile military equipment must have been evacuated;
- (b) no hostile use may be made of fixed military installations or establishments,
- (c) no acts of hostility may be committed by the authorities or by the population,
- (d) no activities may be undertaken in support of military operations.

As long as these criteria are met, no attack can be launched on the locality by any means whatsoever. Thus, the notion of 'undefended' is not to be confused with the notions of 'neutralized' or 'demilitarized' zone<sup>417</sup>. Unlike demilitarized zones, which require an agreement between the parties, non-defended areas can be established via a unilateral declaration notified to the enemy Party. The Party shall acknowledge receipt of the notification. Otherwise, the criteria are practically the same<sup>418</sup>. Neutralised zones are instead defined in article 15 of the IV Geneva Convention of 1949. These are established in fighting areas and intended to shelter from the dangers of war all persons, without distinction, who are not taking part, or no longer taking part, in hostilities and who do not perform any work of a military nature while they remain in these zones. Like demilitarised zones, they are established by agreement between the Parties concerned on the proposal of the Party setting them up. Such zones were set up, e.g., during the armistice negotiations at Panmunjom during the Korean War, 1952–53<sup>419</sup>. They may encompass whole towns and they are intended to protect the wounded and sick, both combatants and civilians, and also civilians who are taking no part in hostilities<sup>420</sup>.

Pursuant to article 59 para. 2 Add. Prot. I, non-defended localities must meet the following criteria:

- 1. all combatants and mobile military equipment must have been evacuated
- 2. no hostile use shall be made of fixed military installations/establishments
- 3. no acts of hostility shall be committed by the authorities or the population
- 4. no activities in support of military operations shall be undertaken.

These, however, were not retained, notwithstanding the Swiss proposal. The only element that matters is that the area be open for unresisted occupation<sup>421</sup>. The latter criterion is the one which particularly defines the notion of 'non defended localities'. One of the underlying arguments for preferring the phrasing of the 1925 Hague Regulations was that the latter's scope is broader than that of Add. Prot. I.

From the definition of undefended locality, it follows that the zone must be close to in the combat area<sup>422</sup>. As remarked by *W. Fenrick*, in the First Edition of this Commentary, 'undefended' has a technical meaning and does not include objects which are behind enemy lines, even if there are no combatants or weapons located close to the objects.

As remarked previously, a peculiarity of article 8 para. 2 (b) (v) ICC Statute is the specification that beyond being an undefended place, the area must additionally not be a 'military objective'. It is namely conceivable that an undefended place be a military objective, in which case it would become a lawful target. Military objectives are defined in article 52 para. 2 Add. Prot. I. According to this, an objective can be considered of a military character if by its nature, location, purpose or use it makes an effective contribution to military action and whose total or partial destruction, capture or neutralization, in the circumstances ruling

<sup>417</sup> See respectively article 15, 1907 Hague Convention IV and article 60 Add. Prot. I.

<sup>418</sup> Mulinen, de F., *Handbook on the law of war for armed forces* 100, para. 419 (1987).

<sup>419</sup> Green, L. C., *The Contemporary Law of Armed Conflict* 90 (2000).

<sup>420</sup> See note 2, Rogers, A.P.V., *Law* 131.

<sup>421</sup> Pfürtner, D., 'Article 8(2)(b)(v) – Attacking Undefended Places', in: Lee, R. S. et al. (eds.), *Elements of Crimes* 152.

<sup>422</sup> Sassòli, M./Bouvier, A., *Un droit dans la guerre* 216 (2003).

at the time, offers a definite military advantage. *K. Dörmann* and others hold that, by comparing the constituent elements for a non-defended locality and a military objective, a non-defended locality cannot be considered a military objective that may be lawfully attacked<sup>423</sup>. However, it is possible to imagine the presence of some fixed military installations in an undefended area that, for strategic and tactical reasons, may need to be destroyed. Also in this case, as already discussed in relation to article 8 para. 2 (b) (iv), the issue is whether the concrete military advantage is to be considered in relation to the ongoing attack or to the military operation or mission overall. A somewhat middle position is held, *e.g.*, by *A.V. P. Rogers*, who remarks that the presence of supplies of military value to the enemy or the presence of railway establishment, telegraphs or bridges in a town may not per se constitute a sufficient excuse for bombarding it, in that the area is open to occupation by troops. However, he observes that the situation may be different in respect of military objectives such as munitions factories in undefended towns behind enemy lines, which cannot be occupied without opposition<sup>424</sup>.

264 On the other hand, in recent years, the opposite concept of ‘*defended place*’ has been subordinated to the concept of ‘*legitimate military objective*’. Defended places generally include: forts or fortified places; a city or town surrounded by detached defence positions, when the city or town is part of an indivisible defence network; or a place which is occupied by a combatant military force or through which such a force is passing. The occupation of such a place by medical units alone is not sufficient to make it a defended place.

265 According to *W. Fenrick*, one must also be cognisant of the military doctrine of ‘*defence in depth*’. This doctrine calls for a *plan of defence* which covers an entire territory, including the use of reserve, national guard or territorial defence forces and irregular units, spread throughout the territory, in order to counter advances by the enemy or to defend against any type of attack behind the forward area of the battle lines. Such a plan of defence can virtually negate the concept of an undefended area.

266 However, pursuant to footnote 38 to the Elements of article 8 para. 2 (b) (v),

‘[t]he presence in the locality of persons specially protected under the Geneva Conventions of 1949 or of police forces retained for the sole purpose of maintaining law and order does not itself render the locality a military objective’.

267 In some instances it could be namely argued that police forces constituting part of the armed forces, as it is the case for the Italian *Carabinieri*, may militarise the area. This, however, pursuant to the Elements, shall not be the case.

Regarding the *mens rea*, the author must have been aware of the undefended character of the area.

## 6. Paragraph 2(b)(vi): Prohibited attacks against persons *hors de combat*

**Literature:** Goodman, R., ‘The Power to Kill or Capture Enemy Combatants’, (2013) 24 *EJIL* 819; Oeter, S., ‘Methods and Means of Combat’, in: D. Fleck (ed.), *The Handbook of International Humanitarian Law* (OUP 2008); Robertson, H. B. (Jr.), ‘The Obligation to Accept Surrender’ (2010), *NavalWarColRev* 103 (1993), reprinted in: J.N. Moore and R.F. Turner (eds.), ‘Readings on International Law from the Naval War College Review 1978–1994’, (1995) 68 *USNavalWarCollegeILStudies* 541, 548–551; Schmitt, M. N., ‘Wound, Capture, or Kill: A Reply to Ryan Goodman’s “The Power to Kill or Capture Enemy Combatants”’, (2013) 24 *EJIL* 855. Doswald-Beck, L. (ed.), *San Remo Manual on International Law Applicable to Armed Conflicts at Sea* (1994) 184; Thomas, A.R., and Duncan, J.C., (eds.), *Annotated Supplement to the Commander’s Handbook on the Law of Naval Operations* (1999) 407.

268 a) **Normative origins and drafting history.** It is a fundamental principle of humanitarian law that the only legitimate aim of armed warfare is to weaken the military force of the adversary, for which it is sufficient to weaken the military force of the adversary and in particular render the members of these forces *hors de combat*. As early as 1868, the

<sup>423</sup> Dörmann, K., *Elements of war crimes* 177.

<sup>424</sup> Rogers, A.P.V., *Law* 132.

St. Petersburg Declaration recognized that ‘the only legitimate object which States should endeavor to accomplish during war is to weaken the military forces of the enemy’, and ‘[t]hat for this purpose it is sufficient to disable the greatest possible number of men’. Article 35 para. 2 Add. Prot. I in addition provides that ‘[i]t is prohibited to employ ... methods of warfare of a nature to cause superfluous injury or unnecessary suffering’. Since combatants are *hors de combat* because they are no longer able or willing to fight, it is unlawful to kill or injure them, even if they belong to adversary forces and/or were previously engaged in hostile action<sup>425</sup>. This principle also underlies article 8 para. 2 (b) (vi) Rome Statute.

The protection of article 8 para. 2 (b) (vi) is significant since it protects combatants during the *interval* between the moment he or she becomes *hors de combat* on the battlefield and his or her attainment of a more secure status (e.g. prisoner of war)<sup>426</sup>.

The wording of article 8 para. 2 (b) (vi) has been taken from article 23 (c) Hague Regulations. However, the term ‘enemy’ has been replaced by ‘combatant’ (meaning ‘adversary combatant’). This slight change as well as the title of the elements of this crime (‘War crime of killing or wounding a person *hors de combat*’) express the negotiators’ view that the protected category of persons are persons *hors de combat* as defined under contemporary international humanitarian law and more particularly article 41 Add. Prot. I. Taking into account the contemporary humanitarian law rules relating to persons *hors de combat* suggests a more extensive scope of application of the offense as would result from a strictly literal interpretation.

The prohibition to kill or wound a person *hors de combat* reflects customary law, which prohibits attacking combatants who no longer participate in the fighting, who have surrendered, or who are no longer able to fight, either because they have no means of defending themselves or because they are overpowered.<sup>427</sup> Several military manuals explicitly prohibit the killing or wounding of a person *hors de combat*<sup>428</sup>. In addition to article 23 (c) Hague Regulations, particular groups of persons *hors de combat* enjoy general protection under articles 12 GC I, 12 GC II, 13–14 GC III, and articles 16 and 33 GC IV.

However, the central rule elaborating on the prohibition is article 41 Add. Prot. I. Its first paragraph provides that:

‘1. A person who is recognized or who, in the circumstances, should be recognized to be *hors de combat* shall not be made the object of attack.’

This paragraph not only forbids directing an attack against persons who are known to be *hors de combat*, but also against those who, in the circumstances should be recognized to be *hors de combat*, i.e. what a reasonable man should have recognized.<sup>429</sup>

The second paragraph of Article 41 provides that: ‘A person is *hors de combat* if:

- a) he is in the power of an adverse Party;
  - b) he clearly expresses an intention to surrender; or
  - c) he has been rendered unconscious or is otherwise incapacitated by wounds or sickness, and therefore is incapable of defending himself;
- provided that in any of these cases he abstains from any hostile act and does not attempt to escape.’

<sup>425</sup> The respect of this prohibition lies in the interest of both sides, as is true with regard to the respect of IHL generally. Combatants who do not trust that the adversary will respect the prohibition to kill persons *hors de combat* will not surrender but continue fighting to the last man.

<sup>426</sup> The status of prisoners of war applies only to those persons who have ‘fallen into the power’ of the adversary. See Sandoz *et al.*, *Commentary* (1987), paras. 1612–1613.

<sup>427</sup> See Rule 47 and related state practice, in: Henckaerts and Doswald-Beck, *Customary International Humanitarian Law*, Vol. I (2005); Bothe *et al.*, *New Rules for Victims of Armed Conflicts* (1982) 252. See also ICJ, *Legality of the Threat or Use of Nuclear Weapons*, (Advisory Opinion), paras. 79/81; Eritrea Ethiopia Claim Commission, *Prisoners of War – Ethiopia’s Claim*, 4, (Partial Award), paras. 29/33/52 *et seq.*/63 *et seq.*, Eritrea Ethiopia Claim Commission, *Prisoners of War – Eritrea’s Claim* 17, (partial Award), paras. 38–42/57 *et seq.*

<sup>428</sup> See, e.g., U.S. *Commander’s Handbook on the Law of Naval Operations*, para. 6.25, sections 3, 4 and 5.

<sup>429</sup> See CDDH/236/Rev.1, para. 23. See Bothe *et al.*, *New Rules for Victims of Armed Conflicts* (1982) 253.

- 275 This paragraph covers several categories of persons: persons in the hands of the adverse party (paras. 2(a) and (c)), as well as persons that are generally not in the custody of the adverse party (para. 2(b)). The category of persons described in paragraph 2 (b) is provided with a needed protection against the immediate dangers that lie in the interval between becoming *hors de combat* on the battlefield and the attainment of a safer status.
- 276 Numerous trials on war crimes committed during World War II have involved convictions on the charge of attacking persons *hors de combat*<sup>430</sup>. For instance, in 1945 the U.S. Military Commission sentenced Gunther Thiele and Georg Steiner to death, the first for wrongfully and unlawfully ordering the killing of a prisoner of war, and the second for actually killing him<sup>431</sup>. The accused were found guilty of a violation of the ‘laws of war as expressed in solemn treaties’, that is, article 2 of the 1929 Geneva Prisoners of War Convention<sup>432</sup> and article 23 (c) Hague Regulations. The Canadian Military Court in Aurich (Germany) found Brigadeführer Kurt Meyer responsible for a war crime in view of the killing by troops under his command of prisoners of war. The Judge Advocate pointed out that the killing of prisoners of war was a war crime under international custom and usage as well as under the Hague Regulations and the 1929 Geneva Convention<sup>433</sup>. In the *Peleus* Trial, five accused were found guilty for having killed crew members of a sunken ship while on rafts. The ‘killing of unarmed enemies’ was qualified as a prohibition of ‘fundamental usage of war’, and the Court stated that ‘[t]o kill helpless survivors of a torpedoed ship was a flagrant breach of the law of nations’. In addition, the Court said that ‘the right to punish persons who broke such rules of war had clearly been recognised (for many years)’<sup>434</sup>.
- 277 Article 85 para. 3 (e) Add. Prot. I makes it a grave breach of the Protocol to cause death or serious injury by wilfully ‘making a person the object of attack in the knowledge that he is *hors de combat*’.<sup>435</sup> Also, several national legislations criminalize killing or wounding a person *hors de combat*<sup>436</sup>.
- 278 Killing or injuring a person *hors de combat* may amount to further war crimes under ICC jurisdiction. In particular, a person *hors de combat* that has already ‘fallen into the power’ of the adversary is also protected under the grave breaches provisions pertaining, *inter alia*, to the protection against killing or wounding spelled out under article 8 para. 2 (a) (i)–(iii) Rome Statute. Attacking protected places where sick or wounded persons *hors de combat* are present might constitute a war crime under article 8 para. 2 (b) (ix) or (xxiv) and declaring that no quarter will be given is a war crime under article 8 (2)(b)(xii).
- 279 **b) Persons *hors de combat*.** Article 8 para. 2 (b) (vi) does not use the term of ‘persons *hors de combat*’. However, the provision needs to be read in the light of contemporary customary international law. The Elements of Crimes to article 8 para. 2 (b) (vi) therefore rightly make clear by their title and element 2 that this offense criminalizes the killing or wounding of ‘persons *hors de combat*’, as the prohibition stemming from article 23 (c) Hague Regulations would be phrased in contemporary IHL. Correspondingly, it is submitted that article 41 para. 2 Add. Prot. I, which defines the notion of persons *hors de combat*, is directly relevant to the interpretation of article 8 para. 2 (b) (vi). Article 41 para. 2 Add. Prot. I essentially

<sup>430</sup> For a list of examples relating to the killing of prisoners of war without due cause usually tried on the basis of article 23 (c) Hague Regulations, see XV *Law Reports* 99, fn. 2 (1949).

<sup>431</sup> U.S. Military Commission at Augsberg, *Thiele and Steinert*, III *Law Reports* 56 (1947).

<sup>432</sup> This article provided in its second paragraph that prisoners of war ‘shall at all times be humanely treated and protected, particularly against acts of violence, from insults and from public curiosity’.

<sup>433</sup> Canadian Military Court at Aurich, *Kurt Meyer* (10–28 Dec 1945), IV *Law Reports* 97 (1948), pp. 107–110.

<sup>434</sup> *Peleus Trial* (*In re Eck and Others*), *AnnDig.* (1946) 248 (1951); British Military Court at Hamburg, Heinz Eck *et al.* (*The Peleus Trial*) (17–20 Oct. 1945), I *Law Reports* 1 (1947), pp. 2 and 13.

<sup>435</sup> See Sandoz *et al.*, *Commentary* (1987), paras 3491–3493 (discussing the required *mens rea*) and CDDH/III/SR.29 Vol. XIV, at 281 para. 60; at 282, para. 62 (Netherlands).

<sup>436</sup> See, e.g., Chapter 22, § 6, No. 3 of the Swedish Penal Code, (‘attacks on civilians or anyone put out of action’; article 379 as well as articles 375, 376 and 382 of the 1994 Penal Code of the Republic of Slovenia; article 287 (a) (as well as articles 283 and 284) of the Penal Code of the Empire of Ethiopia of 1957; article 609 of the Spanish Military Penal Code (Ley orgánica 10/95 of 23 Nov. 1995).

reflects and rephrases the prohibition of article 23 sub-para. (c) Hague Regulations in more modern and more precise language, thereby specifying how that prohibition is to be understood under contemporary international law<sup>437</sup>.

The Elements of Crimes use the term ‘persons’ instead of ‘combatants’. The term ‘person’ is broader and more appropriate, as it does not exclude civilians who engaged in hostilities and became *hors de combat* or members of armed forces not technically qualifying as ‘combatants’ but who nevertheless become *hors de combat* when falling into the power of the adverse party<sup>438</sup>. The use of the term ‘person’ in Article 41 supports this position.

According to article 41 para. 2 Add. Prot. I, a person is *hors de combat* when he or she clearly expresses an intention to surrender, is incapable of defending himself or herself because rendered unconscious or otherwise incapacitated by wounds or sickness, or is ‘in the power’ of an adverse party to the conflict, provided that ‘in any of these cases he abstains from any hostile act and does not attempt to escape. A wounded or sick combatant who continues to fight is not *hors de combat* and may therefore be attacked’<sup>439</sup>. No argument of military necessity can justify any derogation from the prohibition to fight a person *hors de combat*<sup>440</sup>.

The definition of person *hors the combat* as contained in Article 23 (b) of the Hague Regulations is broader than the one established by the Add. Prot. I. In the *Kononov* case, the European Court of Human Rights also seems to have adopted a broad definition of *hors de combat*, by including into this prohibition the one precluding any attack against a defenseless combatant. In this case, the Grand Chamber considered that ‘even if the deceased villagers were considered combatants or civilians who had participated in hostilities, *jus in bello* in 1944 considered the circumstances of their murder and ill-treatment a war crime since those acts violated a fundamental rule of the laws and customs of war protecting an enemy rendered *hors de combat*’<sup>441</sup>. The judges further held that ‘(f)or this protection to apply, a person had to be wounded, disabled or unable for another reason to defend him/herself (including not carrying arms), a person was not required to have a particular legal status, and a formal surrender was not required’<sup>442</sup>. It is submitted here that the contemporary law of armed conflict includes a broad definition of *hors de combat* and that the definition contained in Article 8 (2) (b) (vi) goes in the same direction.

A person *hors de combat* thus enjoys particular attention before being able to enjoy a safer status as for instance the status of a prisoner of war. The prohibition benefits four categories of persons: Anyone who clearly indicates an intention to surrender; anyone who is defenseless because of unconsciousness, shipwreck, wounds or sickness; anyone who is in the power of an adverse party; and persons parachuting from an aircraft. These categories of persons are examined in more detail below.

**aa Surrendering persons.** The first category of persons covered by article 8 para. 2 (b) (vi) Rome Statute are persons who surrender. Article 41 para. 2 (b) Add. Prot. I requires that the intention to surrender must be ‘clearly expressed’. In land warfare, there are no formal requirements how such surrender must be communicated. Often, the intention to surrender is signaled by literally ‘laying down the arms’ and holding up the hands or, where arms cannot be laid down such as in the case of a tank, ceasing to fight and showing a white flag<sup>443</sup>.

<sup>437</sup> See Thomas and Duncan (eds.), *Annotated Supplement to the Commander’s Handbook on the Law of Naval Operations* (1999) 407; Robertson (Jr.) in: Moore and Turner (eds.), *Readings on International Law from the Naval War Coll. Rev 1978–1994* (1995) 547. See Sandoz et al., *Commentary* (1987), paras. 1601–1602; Bothe et al., *New Rules for Victims of Armed Conflicts* (1982), 252.

<sup>438</sup> See Sandoz et al., *Commentary* (1987), para. 1614.

<sup>439</sup> On the ceasing of the protection after hostile acts, see *id.*, at paras. 1621–1624.

<sup>440</sup> See *id.*, para. 1609. Cf., U.S. Military Commission at Augsburg, *Thiele and Steinert III Law Reports* 56 (1948), at 58–59; *Peleus Trial Ann. Dig.* (1946) 249 (1951), at 249.

<sup>441</sup> ECtHR, *Kononov v. Latvia* case, Grand Chamber, 17 May 2010, para. 216.

<sup>442</sup> *Id.*

<sup>443</sup> (298) See, e.g., Sandoz et al., *Commentary* (1987), paras. 1618–1619; Robertson (Jr.), *The Obligation* (1995) 548–551.

- 285 In 1947, the Judge Advocate in the *Von Ruchteschell* case even argued that, even if the accused did not receive any signal of surrender, he could still be convicted if he deliberately or recklessly avoided any question of surrender by making it impossible for the attacked vessel to make a signal<sup>444</sup>.
- 286 Based on this case it might be argued that refusing any possibility for surrender when attacking might constitute a war crime insofar the refusal was feasible and would not have led to disproportionate military disadvantage, such as when surprise or speed is critical to an attack's success. However, it appears that such conduct more appropriately is considered under the heading of the war crime of denying quarter, not least since no persons legally qualifying as persons *hors de combat* are being killed.
- 287 Surrendering means to cease fighting and give oneself into the power of the adversary, not resisting capture by the enemy. Thus, a wounded or sick person continuing to fight is not surrendering<sup>445</sup>. Also, the surrender is 'at discretion', that is, unconditional. The only right is to be treated according to international humanitarian law and in particular, if applicable, to be treated as a prisoner of war<sup>446</sup>.
- 288 The surrender must not be *mala fide*: Signaling a surrender with intent to betray the adversary's confidence in the surrender in order to gain a military advantage constitutes an act of perfidy and is therefore prohibited.<sup>447</sup> Conversely, it would also constitute an act of perfidy to invite the confidence of a person in that his or her surrender would be accepted while intending to betray that confidence and refuse the surrender<sup>448</sup>.
- 289 Case law has repeatedly dealt with the notion of surrendering persons. In 1997, in the case before the Inter-American Commission on Human Rights concerning the events at La Tablada in Argentina, the perpetrators of the initial attack on the Argentine military barracks alleged that, after the fighting ceased, agents of the State participated in the summary executions and torture of some of the captured attackers.<sup>449</sup> The Commission could not identify the precise time or day of the putative surrender attempt. Nor could it know what was happening at the same time in other parts of the base where other attackers were located. Accordingly, when it came on the question of whether the surrender could constitute an act of perfidy, it held that '(i)f these persons, for whatever reasons, continued to fire or commit hostile acts, the Argentine military might not unreasonably have believed that the white flag was an attempt to deceive or divert them.'<sup>450</sup>
- 290 More recently, the European Court of Human Rights considered a case dealing with the question of whether a member of an insurgent group had 'laid down his arms', thereby taking no further part in the fighting. His intention to surrender was not clear and he had been secretly carrying a handgun. In addition, he had embarked on an animated quarrel with the applicant, and had then drawn his gun with unknown intentions. The Grand Chamber considered that in order to produce legal effects, any intention to surrender needs to be signaled in a clear and unequivocal way, namely by laying down arms and raising hands or at the very least by raising hands only.<sup>451</sup> Ultimately, the Court considered that the insurgent did not express in such a manner any intention to surrender.<sup>452</sup>
- 291 **bb) Persons having no longer any means of defence.** Persons '*having no longer means of defence*' are not anymore capable of armed resistance. They may be incapacitated to fight

<sup>444</sup> British Military Court in Hamburg, *Von Ruchteschell case*, (21 May 1947), *AnnDig.* (1946) 248 (1951).

<sup>445</sup> However, that person might still be protected as a person *hors de combat* if incapable of defending himself or herself and of causing any real danger to the adversary.

<sup>446</sup> See Sandoz *et al.*, *Commentary* (1987), paras. 1618–1619.

<sup>447</sup> See article 37 Add. Prot. I.

<sup>448</sup> (302) See paragraph 111 (b) of the San Remo Manual and the commentary to article 8 para. 2 (b) (vii) and (xi).

<sup>449</sup> Interamerican Commission on Human Rights, *Juan Carlos Abella v. Argentina (La Tablada case)*, Case 11.137 (Argentina) Report N° 55/97, 18 November 1997, OEA/Ser.L/V/II.95, para 3.

<sup>450</sup> *La Tablada case*, para 184.

<sup>451</sup> ECHR, *Korbely v. Hungary*, 19 September 2008, paras 14, 15 and 90.

<sup>452</sup> *Id.*, paras 90–91.



because they are wounded or sick, or have lost control over weapons or a vehicle or ship. According to article 41 para. 2 (c) Add. Prot. I, a person is also *hors de combat* if that person 'has been rendered unconscious or is otherwise incapacitated by wounds or sickness, and therefore is incapable of defending himself'. According to article 8 Add. Prot. I, wounded and sick persons are those who need medical care as a result of a trauma, disease or other physical or mental disorder or disability, and who refrain from any act of hostility. In addition, it is submitted that also shipwrecked persons should be considered persons *hors de combat*<sup>453</sup>. Unconscious, wounded, sick or shipwrecked persons are protected from the moment they are incapable of defending themselves. Of course, if such a person is preparing to fire or is actually firing, he or she is not protected from attack regardless of his or her wounds or sickness<sup>454</sup>. However, a person that wants to continue fighting, but due to the incapacitation is incapable of committing any hostile act, would nonetheless appear to be *hors de combat*.

But Article 8(2)(b)(vi) might go further than Article 41(2)(c) Add. Prot. I. Indeed, the provision explicitly refers to combatants 'having no longer means of defence', a direct reference to the incapability of defending himself. The criterion of the 'incapable of defending himself' already appeared in Article 41(2)(c) but only with respect to the wounded, sick or unconscious persons, which augured against interpreting it as applicable when the fighter is not wounded. However, the notion of defenselessness can be found in Article 23(c) of the Hague Regulations, which prohibits the killing or wounding an enemy 'who having laid down his arms, or having no longer means of defense, has surrendered at discretion'. The customary law character of the characterization of defenselessness as an independent *hors de combat* basis has also been confirmed in the authoritative Bothe *et al.* Commentaries.<sup>455</sup>

**cc) Persons 'in the power' of the adversary party to the conflict.** Persons are protected under article 8 para. 2 (b) (vi) Rome Statute from the moment on in which they are rendered *hors de combat* and without any time-limit, as long as they are still *hors de combat* (and do not again take up arms). The provision thus continues to protect persons that 'have fallen into the power' of the adversary as long as they are in that power. The definition of 'in the power' of the enemy irrefutably protects any person who has become a prisoner of war. In the Hague Regulations and in the 1929 Prisoner of War Convention, the person was protected as soon as 'captured'.<sup>456</sup> The 1949 Third Geneva Convention adopted the sentence 'fallen into the power' of the enemy',<sup>457</sup> thereby clarifying that it had a wider significance than the word 'captured' found in the 1929 Convention, by covering the case of soldiers who surrendered without fighting.<sup>458</sup> Article 8 para. 2 (b) (vi) also applies to *prisoners of war* and other persons deprived of liberty. This approach is confirmed by several court decisions with regard to war crimes committed during World War II, convicting the accused on the basis of article 23 sub-para. (c) Hague Regulations for having killed prisoners of war without due cause<sup>459</sup>. The UN War Crimes Commission cited the prohibition of article 23 sub-para. (c)

<sup>453</sup> See paragraph 47 (j) of the San Remo Manual. Cf. *Llandovery Castle case*, *AnnDig.* (Years 1923–1924) 436 (1933): 'In war on land the killing of unarmed enemies is not allowed (compare [article 23 (c) Hague Regulations]), similarly, in war at sea, the killing of shipwrecked people, who have taken refuge in life-boats, is forbidden'.

<sup>454</sup> See Sandoz *et al.*, *Commentary* (1987), para. 1620.

<sup>455</sup> Bothe *et al.*, *New Rules for Victims of Armed Conflicts* (1982) 252: 'Under customary rules, protection from attack begins when the individual has ceased to fight, when his unit has surrendered, or when he is no longer capable of resistance either because he has been overpowered or is weaponless.'

<sup>456</sup> Article 3 Hague Regulations, Article 1 1929 Geneva Convention.

<sup>457</sup> Geneva Convention III, Article 4.

<sup>458</sup> Pictet, *Commentary* (1959) 50.

<sup>459</sup> See the list of examples related to the killing of prisoners of war without due cause, UNWCC, XV *Law Reports* 99 (1949).

Hague Regulations to bear out that '[t]he killing of prisoners of war without due cause is a clear violation of both customary and conventional international law'<sup>460</sup>.

294 While the offense's scope of application thus overlaps with the scope of the Rome Statute's grave breaches provisions criminalizing, *inter alia*, killing or wounding a prisoner of war, article 8 para. 2 (b) (vi) Rome Statute is broader and applies to any person in the power of the adversary that has become *hors de combat*. This includes civilians directly participating in hostilities, but not only.

295 It is submitted that Article 8 (2) (b) (vi) follows the contemporary law of armed conflict.<sup>461</sup> The notion of 'in the power of the adversary' refers also to other categories of persons than combatants who surrendered and the wounded and sick. This can already be found in the 1970 UN Secretary General report which stated that 'It should be prohibited to kill or harm a combatant who has obviously laid down his arms or who has obviously no longer any weapons, without need for any expression of surrender on his part. Only such force as is strictly necessary in the circumstances to capture him should be applied.'<sup>462</sup> It was the first time that the idea of defencelessness was mentioned. Few years later, this notion found its way into the 1973 ICRC Draft Additional Protocols to the Geneva Convention. In its relevant parts, Draft Article 38 provided:

- '1. It is forbidden to kill, injure, ill-treat or torture an enemy hors de combat. An enemy hors de combat is one who, having laid down his arms, no longer has any means of defence or has surrendered. These conditions are considered to have been fulfilled, in particular, in the case of an adversary who:
  - (a) is unable to express himself, or
  - (b) has surrendered or has clearly expressed an intention to surrender
  - (c) and abstains from any hostile act and does not attempt to escape.'<sup>463</sup> Textually, the reference to no 'means of defence' applied only to those who had 'laid down their arms'.

296 An enemy who 'no longer has any means of defence' constituted a new class of protected persons. As explained by the Commentary, '(t)he underlying principle is that violence is permissible only to the extent strictly necessary to weaken the enemy's military resistance, that is, to the extent necessary to place an adversary hors de combat and to hold him in power, but no further. The reaffirmation of this rule should dissipate any uncertainty concerning its applicability in certain situations, for instance when troops ordered not to surrender have exhausted their means of fighting....'<sup>464</sup>

297 Ultimately, Draft Article 38 was codified as Article 41 in the final text, with Article 41(2)(a) providing for the separate condition of *hors de combat*, to be 'in the power of an adverse party.'<sup>465</sup> The terminology used in the Geneva Convention, 'fallen into the power', was replaced by 'is in the power'. The Article's Commentary argued that there could be a significant difference between 'being' in the power and having 'fallen' into the power.<sup>466</sup> It explained that the change was meant to encompass a defenceless adversary when it is at the mercy of the attacker by means of overwhelmingly superior firing power to the point where they can force the adversary to cease combat or when a formal surrender is not possible as the rules of some armies purely and simply prohibit any form of surrender. In these situations, a defenceless adversary is *hors de combat* whether or not he has laid down arms,<sup>467</sup> and it is

<sup>460</sup> UNWCC, XV *Law Reports* 99 (1949). The provision at the end of article 41 para. 2 Add. Prot. I, specifying that the protection of persons *hors de combat* does not apply if they attempt to escape, also appears to primarily apply to detained persons *hors de combat*.

<sup>461</sup> For a complete update of the contemporary law dealing with the question of capture rather than kill, see Goodman (2013) 24 *EJIL* 819. See also Schmitt (2013) 24 *EJIL* 855.

<sup>462</sup> UN Secretary-General, Report on Respect for Human Rights in Armed Conflict, UN Doc. A/8052, 18 Sept. 1970 (hereinafter Secretary-General 1970 Report), para. 107.

<sup>463</sup> ICRC, *Draft Additional Protocols to the Geneva Conventions of 12 Aug. 1949: Commentary* (Oct. 1973), (hereinafter ICRC, 1973 Draft Protocols with Commentary), 44.

<sup>464</sup> ICRC, *Draft Additional Protocols Commentary* (1973) 43.

<sup>465</sup> Sandoz *et al.*, *Commentary* (1987), para 1610.

<sup>466</sup> *Id.*, at para 1612.

<sup>467</sup> *Id.*, at para 1612. Bothe *et al.* concurred by stating that 'under customary rules, protection from attack begins when the individual has ceased to fight, when his unit has surrendered, or when he is no longer capable of

prohibited to kill him due to its vulnerable position.<sup>468</sup> Obviously the safeguard only applies as long as the person concerned abstains from any hostile act and does not attempt to escape.<sup>469</sup> Here the crucial question is whether the individual is unambiguously in the captors' control, such that he poses no risk to the captors or civilians (e.g., a risk of suicide bombing) and taking custody would be operationally feasible in the attendant circumstances.<sup>470</sup> If the person in the power of the adversary engages in a hostile act or tries to escape, he or she forfeits the protection of article 41 Add. Prot. I (and thus of article 8 para. 2 (b) (vi)), until he or she may become *hors de combat* again<sup>471</sup>. The use of force against a fleeing person however may not amount to a refusal to give quarter and must be proportional<sup>472</sup>.

In 1973, a US military court dealt with the *Calley case*<sup>473</sup>. The trial involved cases of 298 murder as a war crime, where the *mens rea* of the accused was clear and the evidence definitively established the non-combatant status of the victims. The appellate court found that even if one were to consider the My Lai residents as 'part of the enemy', they could not be killed after they had fallen under the control of US armed soldiers and offered no resistance (they had become *hors de combat*).

**dd) Persons parachuting from an aircraft.** It is not clear whether persons parachuting 299 from an aircraft in distress, who are protected from attack under article 42 AP I, must be considered persons *hors de combat* protected under article 41 Add. Prot. I and article 8 para. 2 (b) (vi) Rome Statute<sup>474</sup>. Unless they achieve to clearly signal their intention to surrender or apparently are wounded, such persons do not precisely fit into any of the three categories mentioned in article 41 para. 2 Add. Prot. I.

Under humanitarian law, persons parachuting from a disabled aircraft may not be attacked 300 insofar they are not bound upon hostile missions<sup>475</sup>. However, parachute troops and airborne combat units are beyond doubt a lawful military objective even while parachuting in order to launch an (airborne) attack<sup>476</sup>. In practice, it likely will be difficult to ascertain that troops parachuting have no hostile intention (anymore)<sup>477</sup>.

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resistance either because he has been overpowered or is weaponless'. Bothe *et al.*, *New Rules for Victims of Armed Conflicts* (1982) 252. See also Dörmann, *Elements of War Crimes* (2003) 190. See also the various statements made by delegations: CDDH/III/SR.29 xiv, para. 52 (USSR); see also CDDH/III/SR.29 Vol. xiv, para. 74 (Czechoslovakia); CDDH/III/SR.29 Vol. xiv, paras 60 and 62 (Netherlands); CDDH/III/SR.29 Vol. xiv, para. 69 (Finland).

<sup>468</sup> See also state practice such as for e.g., *Commander's Handbook on the Law of Naval Operations* (1987) 118 ('Combatants cease to be subject to attack when they have individually laid down their arms to surrender, when they are no longer capable of resistance, or when the unit in which they are serving or embarked has surrendered or been captured.'). Kenya's *Law of Armed Conflict Manual* (1997), 'the enemy combatant who is no longer in a position to fight is no longer to be attacked, and is protected'; Ecuador ('Combatants cease to be subject to attack when they have individually laid down their arms to surrender [or] when they are no longer capable of resistance'). For more state practice see Practice Relating to Rule 47, in: Henckaerts and Doswald-Beck, *Customary International Humanitarian Law*, ii (2005).

<sup>469</sup> Sandoz *et al.*, *Commentary* (1987), para 1614.

<sup>470</sup> Schmitt, 'Wound, Capture, or Kill: A Reply to Ryan Goodman's "The Power to Kill or Capture Enemy Combatants"', 860.

<sup>471</sup> See *Crusius case*, decided by the German Reichsgericht and cited in, *Llandovery Castle case*, *AnnDig* (1923–1924) 438 (1933).

<sup>472</sup> See article 42 GC III; Bothe *et al.*, *New Rules for Victims of Armed Conflicts* (2013) 222–223.

<sup>473</sup> USA, *US v. Calley*, *Court of Military Appeals, Judgment of* 21 December 1973.

<sup>474</sup> E. David considers that the category of persons *hors de combat* under the Protocol includes such persons, David, *Principes* (2012) 304.

<sup>475</sup> U.S. Army, *Field Manual* 27–10, para. 30. A U.S. Military Commission found Peter Back guilty of war crime for having killed an American airman forced to parachute over German territory and who 'was then without any means of defence', U.S. Military Commission at Ahrweiler, *Peter Back* (16 June 1945), III *Law Reports* 60 (1947).

<sup>476</sup> See article 42 para. 3 Add. Prot. I; U.S. Army, *Field Manual* 27–10, para. 30; *Peter Back* (16 June 1945), III *Law Reports* 60 (1947).

<sup>477</sup> See Oeter, in: *The Handbook of International Humanitarian Law* (2008) 178; Sandoz *et al.*, *Commentary* (1987), para. 1652; Bothe *et al.*, *New Rules for Victims of Armed Conflicts* (1982) 227.

- 301 c) **Mens rea.** In accordance with article 30 Rome Statute, which is applicable ‘unless otherwise provided’, all material elements of the war crime of attacks against persons *hors de combat* must be committed with intent and knowledge i.e. Article 30(2) and (3) Rome Statute. The perpetrator must, first, have been aware that the person he or she intended to kill or injure was *hors de combat*. Element 3 for this war crime confirms this by requiring that ‘[t]he perpetrator was aware of the factual circumstances that established this status’<sup>478</sup>.
- 302 Second, the perpetrator must have meant to cause death or injury or at least have been ‘aware’ that death or injury ‘will occur in the ordinary course of events’ (article 30(3) Rome Statute).
- 303 However, one point that is less clear is whether, with respect to persons *hors de combat* not in the power of the adversary, article 8 para. 2 (b) (vi) requires that the perpetrator actually targets such persons or whether also incidental casualties of persons *hors de combat* caused by an attack against a legitimate military target could amount to the war crime of killing or wounding a person *hors de combat*. The wording of article 41 Add. Prot. I only prohibits to make persons *hors de combat* ‘the object of attack’, that is, direct an attack against such persons as such. Delegates at the 1974–77 Conference intentionally deviated from the Hague wording of ‘killing or wounding’ in order ‘to make clear that what was forbidden was the deliberate attack against persons *hors de combat*, not merely killing or injuring them as the incidental consequence of attacks not aimed at them *per se*’<sup>479</sup>. The fact that the Rome Statute deliberately adheres to the formulation in article 23 (c) Hague Regulations gives rise to a presumption that the requisite threshold of Article 8(2)(b)(vi) is lower than the threshold under Article 41(1) of Add. Prot. I.<sup>480</sup>
- 304 Article 85 para. 3 (e) also does not criminalize incidental casualties of persons *hors de combat*. Besides, none of the World War II cases decided on the basis of article 23 (c) Hague Regulations involved incidental casualties of persons *hors de combat*. On the other hand, the wording of article 8 para. 2 (b) (vi) Rome Statute ‘killing or wounding’ is fairly broad, and article 8 para. 2 (b) (iv) protects only civilians from such incidental casualties<sup>481</sup>. There might thus be a protection gap if persons *hors de combat*, for instance when collected in great numbers in a certain area, are not also protected against excessive incidental casualties<sup>482</sup>. If incidental casualties of persons *hors de combat* are subsumed under article 8 para. 2 (b) (vi), individual criminal responsibility under the Rome Statute should be limited to casualties clearly excessive to the military advantage anticipated.
- 305 d) **Killing or wounding.** The wording ‘killing or wounding’ implies that there must be a result of death or physical injury.
- 306 While it is submitted that omission may give rise to criminal responsibility under the Rome Statute, it is not entirely clear under what circumstances this would apply with regard to article 8 para. 2 (b) (vi). It appears appropriate that killing or wounding a person *hors de combat* by omission may amount to the war crime defined under article 8 para. 2 (b) (vi) under certain circumstances. This would appear to at least be the case insofar the perpetrator has, first, the requisite mental elements, in particular being aware of the *hors de combat status* of the combatant and intending his or her death or injury, and when, second, the omission

<sup>478</sup> Article 41 para. 1 Add. Prot. I however also prohibits attacking a person ‘who, in the circumstances, should be recognized to be *hors de combat*’. Yet, an argument that the standard of article 41 para. 1 Add. Prot. I is relevant because it is an ‘otherwise provided’ standard of the requisite *mens rea* relevant under article 30 Rome Statute is made less convincing by the fact that article 85 para. 3 (e) of the same Protocol qualifies such attack only as a grave breach if committed ‘in the knowledge that he is *hors de combat*’ (emphasis added). Besides, the (non-binding) General Comment to the Elements of Crimes rules out such interpretation.

<sup>479</sup> O.R. XV, at 384, CDDH/236/Rev.1, para. 23.

<sup>480</sup> Van der Wolf, *War Crimes and International Criminal Law* (2010) 2.

<sup>481</sup> While the Diplomatic Conference for instance decided to go beyond article 85 Add. Prot. I and add, under certain circumstances, excessive incidental damage of the natural environment to the list of objects the incidental damage of which qualifies under article 8 para. 2 (b) (iv), it did not also extend the offense to excessive casualties of persons *hors de combat*.

<sup>482</sup> Excessive incidental casualties of persons *hors de combat* would violate general principles of international humanitarian law. See Bothe *et al.*, *New Rules for Victims of Armed* (1982) 253.

violates a duty under humanitarian law, except, for instance, where the circumstances did not permit to comply with the duty or would have subjected the perpetrator to undue disadvantage or hazard<sup>483</sup>. Consequently, withholding medical care for a wounded prisoner of war, starving such prisoner to death, or not helping to rescue shipwrecked violates a duty under humanitarian law and might thus amount to the war crime defined under article 8 para. 2 (b) (vi) Rome Statute.

The U.S. Commander's Handbook on the Law of Naval Operations for instance considers 307 it a 'war crime under international law' to be 'failing to provide for the safety of survivors as military circumstances permit'<sup>484</sup>. In 1946, the British Military Court in Hamburg sentenced Moehle to five years of imprisonment for having ordered that no help shall be given to rescue members of a sunken ship, including not handing food and water to survivors in lifeboats<sup>485</sup>. In the Von Ruchteschell case, the same Military Court convicted the accused for having sunk a ship without making any provision for the safety of the survivors<sup>486</sup>. The Netherlands East Indies Statute Book Decree No. 44 of 1946 considered a war crime the '[r]efusal of aid or prevention of aid being given to shipwrecked persons'<sup>487</sup>.

### 7. Paragraph 2(b)(vii): Improper use of distinctive signs\*

**Literature:** See article 8 para. 2 (b) (xi) and Arnold, R., 'Flags of Truce', in: R. Wolfrum (ed.), *MPIL* (Oxford Public International Law 2006); Bordwell, P., *The Law of War between Belligerents: A History and Commentary* (Callaghan & co. 1908); Cauderay, G.C., 'Visibility of the Distinctive Emblem on Medical Establishments, Units and Transports', (1990) 277 *IRRC* 295; CICR, *Étude sur l'usage des emblèmes: Problèmes opérationnels et commerciaux et autres problèmes non opérationnels*, 2011; Department of the Navy, Office of the Chief of Naval Operations and Headquarters, U.S. Marine Corps, and Department of Transportation, U.S. Coast Guard, U.S. Commander's Handbook on the Law of Naval Operations (1995); Doswald-Beck, L. (ed.), *San Remo Manual on International Law Applicable to Armed Conflicts at Sea* (Cambridge University Press 1995); Fleck, D., 'Ruses of War and Prohibition of Perfidy', (1974) 13 *RDPMDG* 281–282; Heintze, H.-J. and Dijkzeul, D., 'Emblems, Internationally Protected', in: R. Wolfrum (ed.), *MPIL* (Oxford Public International Law 2011); ICRC, 'Study on Second Set of War Crimes within Article 8' (30 July 1999), (2)(B) *Rome Statute* 49; Jobst, V., 'Is the Wearing of the Enemy's Uniform a Violation of the Laws of War' (1941) 35 *AJIL* 436–437; Madden, M., 'Of Wolves and Sheep: A Purposive Analysis of Perfidy Prohibitions in International Humanitarian Law', (2012) 17 *JCSL* 439; McCoubrey, H. and White, N.D., *International Law and Armed Conflict* (Dartmouth 1992); 'Model Law Concerning the Use and Protection of the Emblem of the Red Cross or Red Crescent', (1996) 313 *IRRC*, 486; Novak, G., 'Wounded, Sick and Shipwrecked', in: R. Wolfrum (ed.), *MPIL* (Oxford Public International Law 2011); Pfanner, T., 'Military Uniforms and the Law of War', (2004) 86 *IRRC* 853; Politakis G.P., 'Stratagems and the prohibition of perfidy with a special reference to the laws of war at sea' (1993) 45 *AustrianJPub&IL* 3, 301–306; de Preux, J., 'Article 37 Add. Prot. I', in: Y. Sandoz et al. (eds), *Commentary on the Additional Protocols of 8 June 1977 to the Geneva Conventions of 12 August 1949* (Martinus Nijhoff Publishers 1987); de Preux, J., 'Article 38 Add. Prot. I', in: Y. Sandoz et al. (eds), *Commentary on the Additional Protocols of 8 June 1977 to the Geneva Conventions of 12 August 1949* (Martinus Nijhoff Publishers 1987) 448; de Preux, J., 'Article 39 Add. Prot. I', in: Y. Sandoz et al. (eds), *Commentary on the Additional Protocols of 8 June 1977 to the Geneva Conventions of 12 August 1949* (Martinus Nijhoff Publishers 1987) 463; Rabus, W., 'Protection of the Wounded, Sick and Shipwrecked', in: D. Fleck (ed.), *The Handbook of Humanitarian Law in Armed Conflicts* (OUP 3<sup>rd</sup> ed. 2013) 293; Sandoz, Y., 'Usages corrects et abusifs de l'emblème de la croix rouge ou du croissant rouge', in: F. Kalshoven (ed.), *Assisting the Victims of Armed Conflict and Other Disasters* (Kluwer Academic Publishers 1989); Schlögel, A., 'Geneva Red Cross Conventions and Protocols', in: R. Bernhardt (ed.), *Encyclopedia of Public International Law*, ii (North-Holland Publishing Company 1995) 531; Slim, H., 'Protection of the Red Cross and

<sup>483</sup> See also Proposal submitted by the United States of America to the Preparatory Commission for the International Criminal Court, Draft elements of crimes, Addendum, UN Doc. PCNICC/1999/DP.4/Add.2 (4 Feb. 1999), pp. 4 and 10. In practice, judges may be inclined to infer an intent to kill if the foreseeable consequence of such failure to fulfill a duty is death or injury.

<sup>484</sup> U.S. Commander's Handbook, para. 6.25, section 5. See also Thomas and Duncan (eds.), *Annotated Supplement* (para. 6.2.5, fn. 63) (stating that article 12 GC II makes it clear that, while during World War II the killing of survivors was often practiced and appeared to be approved by the submarine high command, such acts are unlawful since the coming into force of the Geneva Conventions).

<sup>485</sup> Moehle case ('Laconia Order' case), British Military Court in Hamburg (16 Oct. 1946), *AnnDig* (Year 1946) 246 (1951).

<sup>486</sup> British Military Court in Hamburg, *Von Ruchteschell case*, (21 May 1947), *AnnDig* (Year 1946) 247 (1951).

<sup>487</sup> (321) UNWCC, XI *Law Reports* 94 (1949).

\* The authors are indebted to Jérôme Massé for his research assistance.



Red Crescent Emblems and the Repression of Misuse', (1989) 272 *IRRC* 408; Solf, W. A., 'Article 37 Add. Prot. I', in: M. Bothe *et al.*, (eds.), *New Rules for Victims of Armed Conflicts – Commentary on the Two 1977 Protocols Additional to the Geneva Conventions of 1949* (Martinus Nijhoff Publishers 1982) 214; Solf, W., 'Article 38 Add. Prot. I', in: M. Bothe *et al.*, (eds.), *New Rules for Victims of Armed Conflicts – Commentary on the Two 1977 Protocols Additional to the Geneva Conventions of 1949* (Martinus Nijhoff Publishers 1982) 208; Solf, W., 'Article 39 Add. Prot. I', in: M. Bothe *et al.*, (eds.), *New Rules for Victims of Armed Conflicts – Commentary on the Two 1977 Protocols Additional to the Geneva Conventions of 1949* (Martinus Nijhoff Publishers 1982) 214; Stephens, D. and Skousgaard, T., 'Flags and Uniforms in War', in: R. Wolfrum (ed.), *MPIL* (Oxford Public International Law 2009); Thomas, A.R. and Duncan, J.C., (eds.), *Annotated Supplement to the Commander's Handbook on the Law of Naval Operations* (Naval War College 1999); UNWCC, *History* (1948) 490–491; Zimmermann, B., 'Article 85', in: Y. Sandoz *et al.* (eds.), *Commentary on the Additional Protocols of 8 June 1977 to the Geneva Conventions of 12 August 1949* (Martinus Nijhoff Publishers 1987).

308 a) **Normative origins and drafting history.** The effective protection of protected persons such as the sick and wounded and persons caring for them depends to a significant degree on the recognition and respect of protective signs. An abuse of such signs can jeopardize the life and well-being of such protected persons and calls humanitarian missions into question. Protective signs have been recognized early on.

309 The 1864 Geneva Convention introduced the sign of the Red Cross custom, and the use of the white flag to indicate a desire to negotiate had been established long before. In 1907, article 23 (f) Hague Regulations prohibited in addition to the general prohibition of perfidy '[t]o make improper use of a flag of truce, of the national flag or of the military insignia and uniform of the enemy, as well as the distinctive badges of the Geneva Convention'.

This prohibition was reinforced in 1977 by articles 38 and 39 Add. Prot. I. Article 38 Add. Prot. I provides that:

1. It is prohibited to make improper use of the distinctive emblem of the red cross, red crescent or red lion and sun or of other emblems, signs or signals provided for by the Conventions or by this Protocol. It is also prohibited to misuse deliberately in an armed conflict other internationally recognized protective emblems, signs or signals, including the flag of truce, and the protective emblem of cultural property.
2. It is prohibited to make use of the distinctive emblem of the United Nations, except as authorized by that Organization'.

311 Article 39 paras. 1 and 2 Add. Prot. I in addition states that:

1. It is prohibited to make use in an armed conflict of the flags or military emblems, insignia or uniforms of neutral or other States not Parties to the conflict.
2. It is prohibited to make use of the flags or military emblems, insignia or uniforms of adverse Parties while engaging in attacks or in order to shield, favour, protect or impede military operations'.

Not least in the field of naval and air warfare, state practice and customary law with respect to the use of the listed signs are particularly relevant.

312 Article 85 para. 3 (f) Add. Prot. I makes it a grave breach to cause death or serious injury by perfidiously using, in violation of article 37 Add. Prot. I, the protective signs recognized by the Geneva Conventions or the Additional Protocol I, which also includes, *inter alia*, the distinctive emblems of the United Nations but excludes adversary signs. Even before the adoption of the Rome Statute, many states had criminalized the perfidious or improper use of these internationally protected signs in their respective domestic legal system<sup>488</sup>. Yet, prior to the Rome Statute, no international treaty specifically criminalized the (mere) 'improper' use of all of the signs listed under article 8 para. 2 (b) (vii).

<sup>488</sup> See, e.g., Swedish Penal Code, Chapter 22, § 6, No. 2, (which qualifies as a crime against international law not only the killing or injuring of an opponent by means of treachery or deceit, but also, *i.a.*, the abuse of the insignia of the Red Cross, of the insignia of the United Nations, of insignia mentioned in the act concerning the protection of certain International Hospital and Health Care insignia, of parliamentary flags as well as of other internationally recognized insignia); article 386 of the 1994 Penal Code of the Republic of Slovenia (abuse of international signs); article 294 of the Penal Code of the Empire of Ethiopia of 1957; article 75 of the Spanish Military Penal Code (Ley orgánica 13/1985 of 9 Dec. 1985).



While the inclusion under the ICC's jurisdiction of the war crime of perfidiously killing or wounding was not controversial as such, not all proposals of enumerations of war crimes included the war crime of improperly using protected signs. An early proposal suggested proposed to define the offense as follows:

'(d) making improper use of a flag of truce, of the national flag or of the military insignia and uniform of the enemy, of the uniform of multinational forces in the context of a peace-making or peace-keeping operation, as well as the distinctive badges of the Geneva Convention'<sup>489</sup>.

The February 1997 Preparatory Committee resulted in a bracketed and partly differently worded proposal:

'(d) (making improper use of flag of truce [sic] of the national flag or of the military insignia and uniform of the enemy, as well as the distinctive emblems of the Geneva Conventions, [thereby inflicting death or serious personal injury upon the enemy])'<sup>490</sup>.

The wording agreed on at the December 1997 Session of the Preparatory Committee was not amended thereafter and became article 8 para. 2 (b) (vii) Rome Statute<sup>491</sup>.

During the negotiations of the elements for this war crime, the Preparatory Commission did not limit the scope of application of article 8 para. 2 (b) (vii) Rome Statute to cases of perfidy primarily because of the opposition of the ICRC. The ICRC intended to ensure that the mere improper use of the different signs, and in particular the distinctive emblems of the Geneva Conventions, is also covered under article 8 para. 2 (b) (vii), insofar it leads to a later injury or death of a protected person because the sign lost its protective effect due to combatants losing their trust in their appropriate use.

The wording of article 8 para. 2 (b) (vii) is largely drawn from article 23 (f) Hague Regulations. In addition to the old Hague prohibition, the Rome Statute's definition also protects UN signs (drawing on article 38 para. 2 Add. Prot. I), and contains a more modern designation with regard to the emblems of the Geneva Conventions. An important difference to article 23 (f) Hague Regulations and articles 38 (and 39) Add. Prot. I, which are not primarily definitions of criminal offenses, is the added requirement that the improper use '[result] in death or serious personal injury'. This wording was inspired by the grave breaches provision of article 85 para. 3 Add. Prot. I which requires a causation of death or serious injury to body or health, and appears to have been inserted as only the more serious breaches were to constitute crimes under ICC jurisdiction.

The ICRC study on customary international humanitarian law confirms the customary nature of the prohibition of improper use of distinctive signs.<sup>492</sup> In a Chapter dedicated to 'Deception' (Chapter 18), the study contains one rule per sign instead of a general rule for all signs. Namely, rule 58 prohibits the improper use of the white flag of truce, rule 59 of the distinctive emblems of the Geneva Conventions, rule 61 of other internationally recognized emblems, rule 62 of the flags or military emblems, insignia or uniforms of the adversary and rule 60 the use of the United Nations emblem and uniform (except as authorized by the organisation).

Killing or wounding an adversary by improperly using an internationally protected sign may also amount to the war crime of perfidious killing or wounding under article 8 para. 2 (b) (xi) Rome Statute, even if it is emphasized that not any improper use of such sign would amount to perfidy. In addition, the person killed or wounded must be the person whose confidence was betrayed under article 8 para. 2 (b) (xi), or at least one of his or her party to the conflict, while article 8 para. 2 (b) (vii) applies to the killing or wounding of any person as an (even unintended, see below) consequence of the improper use.

<sup>489</sup> 1996 Preparatory Committee II, p. 63.

<sup>490</sup> Preparatory Committee Decisions Feb. 1997, p. 10.

<sup>491</sup> Preparatory Committee Decisions Dec. 1997, p. 7 (except for the correction of a minor grammatical mistake).

<sup>492</sup> Henckaerts and Doswald-Beck, *Customary International Humanitarian Law* (2005) 205–218.

- 320 **b) Common elements.** The Elements of Crimes separate the offenses defined under article 8 para. 2 (b) (vii) Rome Statute into four categories. Prior to describing these four categories, we shall first examine elements common to all four categories.
- 321 **aa) Preliminary reflections.** The wording of article 8 para. 2 (b) (vii) Rome Statute raises many questions. Strictly literally interpreted, it can be read as criminalizing as a war crime, for instance, any use of the UN signs that is not fully consistent with the often complex regulations of the United Nations, or any use of the distinctive emblems of the Geneva Conventions, that would by coincidence result in death or serious personal injury, even if there was no bad intent and even if the inconsistency was minor. However, such a wide interpretation is inappropriate: a nurse drawing the Red Crescent in the wrong colours or shapes, or a UN volunteer improperly using his or her uniform without any hostile intent should, of course, not be made criminally liable for having committed a war crime because someone gets killed or wounded as a coincidental result of that use. It is thus necessary to read the provision in light of its origin and objective.
- 322 Even if article 8 para. 2 (b) (vii) has been defined broadly and without reference to any special intent, it is submitted that given the negotiating history and normative origins of the prohibition, it must be interpreted as primarily if not exclusively applying to persons improperly using one of the enumerated signs to gain a military advantage or to commit an act prohibited by international humanitarian law, such as feigning protection under a sign to transport munitions or to be able to plunder. This is also suggested by the Elements of Crimes. The elements for article 8 para. 2 (b) (vii) Rome Statute clearly limiting its potentially very broad scope of application by specifying in what way or for what purpose the sign must have been used in order to qualify as a war crime. Notwithstanding, the general phrase ‘in a manner prohibited under the international law of armed conflict’ contained in element 2 to article 8 para. 2 (b) (vii)–2,–3 and –4 leaves questions open and seems to be due to the difficulty of delegations to ascertain the precise content of humanitarian law with regard to the particular signs. A restrictive interpretation of this war crime to apply only to improper uses to gain a military advantage or to commit an act prohibited by international humanitarian law seems consistent with the requirement that the conduct ‘took place in the context of and was associated with an international armed conflict’.
- 323 **bb) The common element of the ‘improper use’.** Article 8 para. 2 (b) (vii) Rome Statute criminalizes the ‘improper’ use of the listed signs. But when is a specific use ‘improper’? Does it mean ‘unlawful’ use, use ‘not provided for by law’, or use not consistent with socially respected customs that may not constitute (customary) law?
- 324 The term ‘improper use’ was drawn from article 23 (f) Hague Regulations as well as, with regard to the distinctive emblems of the Red Cross and Red Crescent, from article 38 para. 1 Add. Prot. I. According to the ICRC Commentary on article 38 para. 1 Add. Prot. I, ‘a considerable number of delegations [at the 1974–77 Diplomatic Conference] would have liked the term “improper” to be defined more precisely, and the final draft of the ICRC provided for the prohibition of the use of recognized signs “in cases other than those provided for in international agreements establishing those signs and in the present Protocol”<sup>493</sup>. Comparing articles 37 and 38 Add. Prot. I, the term ‘improper use’ appears to cover a wider range of prohibited conduct than the prohibition of perfidy. It is also submitted that article 8 para. 2 (b) (vii) does not refer to ‘improper’ under national law or tradition but rather under international law or tradition, given that the provision defines an international crime and as there was an understanding at the Rome Conference that only war crimes under customary international law should be included under article 8 Rome Statute.
- 325 Element 3 of article 8 para. 2 (b) (vii) Rome Statute requires that the perpetrator knew (or should have known) ‘of the prohibited nature of such use’. Even if the general understanding

<sup>493</sup> de Preux, in: Y. Sandoz *et al.* (eds), *Commentary* (1987) 448, para. 1533, citing article 36 para. 1 of the Draft Protocol.

of the term ‘improper’, including in its French or Spanish translations<sup>494</sup>, does not primarily point to unlawfulness, a footnote to article 8 para. 2 (b) (vii)–1, –2 and –4 (thus with regard to the flag of truce, the distinctive emblems of the Geneva Conventions and enemy signs) specifies that ‘[t]he term “prohibited nature” denotes illegality’, which typically refers to state-made law, rather than social or organizational norms and rules. This specification, however, is not contained in the elements of article 8 para. 2 (b) (vii)–3 on the use of UN signs, as their use is primarily regulated by UN regulations.

Moreover, the Elements of Crimes suggest that the term ‘improper use’ be understood as referring to a use “prohibited under the international law of armed conflict”<sup>495</sup>. As the offences listed under article 8 para. 2 (b) Rome Statute are ‘violations of the laws and customs applicable in international armed conflict, within the established framework of international law’, it can be argued that a use merely violating a social or organizational rule but not any rule of (customary or treaty) humanitarian law would not qualify as a war crime under the Rome Statute. Also, while article 8 para. 2 (b) (vii) appears to comprehensively criminalize virtually any abuse of the listed signs<sup>496</sup>, a use of these signs taking place in a situation or for a purpose not specifically provided for by the rules establishing them, but which respects the general protective spirit for which they were intended is not necessarily prohibited, given that unforeseeable situations may always arise<sup>497</sup>. Nonetheless, it is submitted that an ‘improper use’ includes the use of one of the listed signs in cases not provided for under international humanitarian law to gain a military advantage or to commit another act prohibited under international humanitarian law.

cc) **The common element of the result of death or serious personal injury.** Article 8 para. 2 (b) (vii) Rome Statute requires that the improper use of the distinctive sign is ‘resulting in death or serious personal injury’. This wording partly derives from article 85 para. 3 Add. Prot. I, which requires the result of ‘death or serious injury to body or health’. Is the serious injury to *health* sufficient under the Rome Statute? While the Rome Statute does not clearly exclude this interpretation, the term ‘injury’ is commonly used to cover physical wounds or damage rather than damage to the mental health<sup>498</sup>. Clearly, sole damage to objects is not a sufficient result.

Under article 8 para. 2 (b) (vii) Rome Statute, and in contrast to the war crime of perfidious killing or wounding, it need not be the person improperly using the sign, nor anyone of his or her party to the conflict, that kills or wounds an adversary or intends such result<sup>499</sup>. Article 8 para. 2 (b) (vii) can be read as having a broader scope of application and possibly even applying to the situation where the improper use eroded an adversary’s confidence in that the sign is always properly used, and thereafter kills or wounds a person identified and protected by the same sign in order to avoid a military disadvantage in case that person would be improperly using the sign<sup>500</sup>. While article 85 para. 3 Add. Prot. I requires that death or serious injury is ‘caused’ by the conduct described in paragraphs a – f of the provision, article 8 para. 2 (b) (vii) requires that the improper use ‘resulted’ in death or serious personal injury<sup>501</sup>. The wording ‘resulting in’ might suggest that a less direct causal link is necessary between the improper use and the death or injury. However, while chances

<sup>494</sup> ‘Le fait d’utiliser indûment ...’ and ‘[u]tilizar de modo indebido ...’ (emphasis added).

<sup>495</sup> See the second element of article 8 para. 2 (b) (vii)–2 to –4. Element 2 of article 8 para. 2 (b)(vii)–1 implies the same.

<sup>496</sup> See, e.g., Oeter, *Methods* (1995) 202; ICRC, ‘Study on Second Set of War Crimes within Article 8’ (30 July 1999), (2)(B) Rome Statute 49.

<sup>497</sup> See de Preux, in: Y. Sandoz et al. (eds), *Commentary* (1987) 448–449 (para. 1534).

<sup>498</sup> ‘[B]lessures graves’, ‘lesiones graves’, respectively (emphasis added).

<sup>499</sup> Cf. de Preux, in: Y. Sandoz et al. (eds), *Commentary* (1987) 448, para. 1532.

<sup>500</sup> See German Draft International Crimes Code, p. 75.

<sup>501</sup> However, the French and Spanish language versions of article 8 para. 2 (b)(vii), which were translated from the text agreed on in English (as almost all provisions were mainly negotiated in English) provide ‘*et ce faisant, de causer ...*’ and ‘*y así causar...*’, respectively (emphasis added).

are that internationally protected signs will be less respected in future situations once they have been improperly used, and while such use consequently may eventually lead to deaths or injuries of protected persons, it will often be difficult to provide evidence of a concrete causal link between the abuse and such indirect result in particular cases.

In any event, even if no result of death or injury occurs, the person that improperly used a sign can be prosecuted for attempt insofar he had the requisite state of mind.

329 **dd) Mental element. aaa) Knowledge of the prohibited nature of the improper use.** In view of articles 30 and 32, it would generally appear appropriate to exclude the criminal responsibility of a perpetrator if he or she has not been aware of the ‘improper’ nature of his or her use of a particular sign. Indeed, article 32 para. 2 (second sentence) provides that ‘[a] mistake of law may ... be a ground for excluding criminal responsibility if it negates the mental element required by such a crime ...’.

330 In view of the lack of clarity but importance of what state of mind is required under article 8 para. 2 (b) (vii), the Preparatory Commission suggested that, except for the use of UN signs, it is sufficient that ‘[t]he perpetrator knew or *should have known* of the prohibited nature of such use’<sup>502</sup>. Thereby, the Elements of Crimes appear to deviate from article 30 Rome Statute (which is permitted by the introductory words of article 30) by providing criminal responsibility for *negligence*. This seems to establish a duty of persons involved in an armed conflict to inform themselves what use of the flag of truce, the distinctive emblems of the Geneva Conventions or signs of the adversary is prohibited under international humanitarian law<sup>503</sup>.

331 In contrast, the use of UN signs is only criminalized if ‘[t]he perpetrator *knew* of the prohibited nature of such use’<sup>504</sup>. Footnote 41 of the Elements of Crimes explains that ‘[t]he “should have known” test required in the other offences found in article 8 para. 2 (b) (vii) is not applicable here because of the variable and regulatory nature of the relevant prohibitions’. This phrase was included as delegations deemed it too harsh to require knowledge of rules not contained in international treaties but merely in organizational regulations that in addition easily change. Of course, the should-have-known test in any event would have left it for the judge to decide whether or not the person could have been expected to be aware of the particular prohibition concerned or not, taking into account factors such as the variable and regulatory nature of the prohibition.

332 **bbb) Knowledge that the conduct could result in death or serious personal injury.** Article 8 para. 2 (b) (vii) requires that the improper use ‘*resulted*’ in death or serious personal injury, while article 85 para. 3 Add. Prot. I requires that death or serious injury is ‘*caused*’ by the prohibited conducts<sup>505</sup>. The wording ‘*resulting in*’ might not only suggest that the causal link need not be as direct but also that a lesser level of intent or even no such intent of the perpetrator is necessary. However, given that the ‘*result*’ required under article 8 para. 2 (b) (vii) Rome Statute appears to be a material element, more specifically, a required consequence, article 30 para. 2 (b) Rome Statute seems to provide that the perpetrator must at least have been ‘*aware that [the consequence] will occur in the ordinary course of events*’, which

<sup>502</sup> Element 3 of article 8 para. 2 (b)(vii)–1, –2 and –4 (emphasis added).

<sup>503</sup> Fns. 39, 40, and 43 (to element 3 of article 8 para. 2 (b)(vii)–1, –2 and –4) explain that the should-have-known standard ‘recognizes the interplay between article 30 and article 32’. This phrase could be understood as meaning that the lacking awareness of the improper nature of the sign’s use amounts to a ‘mistake of law’ under article 32 para. 2 which ‘*may ... be a ground for excluding criminal responsibility if it negates the mental element required by such a crime*’ (emphasis added). The cited element thus specifies, within the ‘discretion’ given by the ‘*may*’ in article 32 para. 3, the cases in which such a mistake of law will constitute a ground excluding criminal responsibility. The vague formulation of this phrase may be due to the difficulty of negotiators to find a systematic approach to the general issue of the mental element and in particular the relationship between Part. III of the Rome Statute and the particular definitions under article 8 and the Elements.

<sup>504</sup> Element 3 of article 8 para. 2 (b) (vii)–3 (emphasis added); reprinted here in Annex II.

<sup>505</sup> See above, mn 77.

appears to come close to *dolus eventualis*<sup>506</sup>. Element 5 to article 8 para. 2 (b) (vii)-1 through -4 suggests the requirement that '[t]he perpetrator knew that the conduct *could* result in death or serious personal injury' (emphasis added), which implies a lesser degree of expected probability and a lower standard of *mens rea* than article 30 para. 2 (b) Rome Statute.

ccc) **Any particular intent required?** Would the improper use of the listed signs resulting in death or injury also qualify as a war crime under ICC jurisdiction when the intent of the person improperly using them was in no way related to gaining a military advantage or to committing another unlawful act<sup>507</sup>? 333

c) **Improper use of the flag of truce.** Rules of international law on how flags of truce are to be used date far back. As recalled by the ICRC Study on customary international humanitarian law, the prohibition of improper use of the flag of truce is a 'long-standing rule of customary international law already recognised in the Lieber Code, the Brussels Declaration and the Oxford Manual'<sup>508</sup> and were codified in articles 32–34 Hague Regulations. Article 32 Hague Regulations provides that the bearer of a flag of truce is inviolable from being attacked and from being taken prisoner. Also, a person who shows a flag of truce to express an intention to negotiate or surrender may qualify as a person *hors de combat* that must not be made the object of attack<sup>509</sup>. Article 23 (f) Hague Regulations prohibits to make improper use of a flag of truce, and article 38 para. 1 Add. Prot. I prohibits its deliberate misuse. Article 37 para. 1 (a) Add. Prot. I prohibits the perfidious use of the flag of truce<sup>510</sup>. All of these provisions are of customary nature<sup>511</sup>. 334

A truce is an understanding, in the course of an armed conflict, to suspend hostilities, usually for a fixed time. The term may also refer to peace or the cessation or absence of hostilities. According to established practice, the flag of truce is white and indicates the desire of the person carrying it to communicate with his or her adversary<sup>512</sup>. The white flag, however, is not only used to symbolize a wish to negotiate truces or cease fires but also to indicate a decision to cease combat. The term 'flag of truce' thus sometimes is understood to also include a white flag indicating a willingness to surrender<sup>513</sup>. 'Any other use, for example, to gain a military advantage over the enemy, is improper and unlawful.'<sup>514</sup> 335

Contemporary warfare, however, often is conducted with modern means of technological communication and without eye-sight of the adversary. While the protection of the flag of truce may still be of importance in face-to-face combat or negotiations, radio messages may be more effective and more commonly used to signal a willingness to negotiate, cease fire or surrender. It may thus be asked whether improperly using more modern ways of communication could also amount to the war crime of improperly using the flag of truce under article 8 para. 2 (b) (vii) Rome Statute<sup>515</sup>. The German Military Manual states that '... It is also prohibited to make improper use of *other distinctive signs equal in status* with that ... of the flag of truce ...'<sup>516</sup>. 336

<sup>506</sup> See above, Dörmann, *article 8 para. 2 (a) (i)*, mn 17.

<sup>507</sup> See above, Dörmann, *article 8 para. 2 (a) (ii)*, mn 36.

<sup>508</sup> Henckaerts and Doswald-Beck, *Customary International Humanitarian Law* (2005) 205.

<sup>509</sup> See above, *article 8 para. 2 (a) (vi)*, mn 64 *et seq.*

<sup>510</sup> See also above, *article 8 para. 2 (a) (vi)*, mn 123 *et seq.*

<sup>511</sup> Henckaerts and Doswald-Beck, *Customary International Humanitarian Law* (2005) 205–7.

<sup>512</sup> See, e.g., article 32 Hague Regulations.

<sup>513</sup> See Arnold, in: Wolfrum (ed.), *MPIL*, (2006). Cf., U.S. Army, *Field Manual* 27–10 (1956), Nos. 458–467; U.S. Commander's Handbook, section 11.9.5. See also, more generally, Greenspan, 'The Modern Law of Land Warfare' (1959) 380 *et seq.*; Oppenheim and Lauterpacht, *International Law*, ii (1944) 425 *et seq.*

<sup>514</sup> Henckaerts and Doswald-Beck, *Customary International Humanitarian Law* (2005) 207.

<sup>515</sup> On the challenges of electronic warfare with respect to the improper (and perfidious) use of signs, see Politakis, G.P., 'Stratagems and the prohibition of perfidy with a special reference to the laws of war at sea' (1993) 45 *AustrianJPubIL* 301–306. See also, ICRC, Study on Second Set of War Crimes 49.

<sup>516</sup> *German Joint Services Regulations*, No. 1019, in Fleck (ed.), *Handbook* No. 230 (1999) (emphasis added). See also U.S. Army, *Field Manual* 27–10 (1956), No. 458(1) (second sentence) (stating that '[i]n current practice,

- 337 As regards individual criminal responsibility for improperly using the flag of truce, as early as 1863, article 114 of the Lieber Code considered the abuse of the flag of truce ‘an especially heinous offense’ for which the bearer who abused it for surreptitiously obtaining military knowledge can be deemed a spy. Article 33 para. 3 Hague Regulations also provides that a bearer of a flag of truce may be detained temporarily in case of abuse. The Responsibilities Commission of the 1919 Paris Peace Conference included the ‘misuse of flags of truce’ among its list of violations of the laws and customs of war to be prosecuted<sup>517</sup>. The Nuremberg Tribunal even selected the improper use of flags of truce as an example of war crimes, pointing out that even though the Hague Regulations do not explicitly designate such a practice as criminal, past offenders have been tried and punished as war criminals for many years<sup>518</sup>. While the perfidious use of the flag of truce gives rise to criminal responsibility under article 85 para. 3 (f) Add. Prot. I insofar causing death or serious injury, the mere improper use of the flag, however, is not as such criminalized by the Geneva Conventions or the First Additional Protocol.
- 338 Certainly, a perfidious use of the white flag would qualify under article 8 para. 2 (b) (vii). According to the ICRC Commentary on article 38 para. 1 (second sentence) Add. Prot. I, ‘[t]o raise the white flag without a reason or for the sole purpose of deflecting attention away from a military operation in progress, or for other purposes conflicting with the law of armed conflict, such as threatening not to give quarter, constitutes a breach and may give rise to sanctions’<sup>519</sup>. The US Army Field Manual states that ‘Flags of truce must not be used surreptitiously to obtain military information or merely to obtain time to effect a retreat or secure reinforcements or to feign a surrender in order to surprise an enemy’<sup>520</sup>.
- 339 Element 2 of article 8 para. 2 (b) (vii)–1 Rome Statute requires that the white flag was used ‘in order to feign an intention to negotiate when there was no such intention on the part of the perpetrator’. The formulation of this element appears to have been drawn from the prohibition of perfidy under article 37 para. 1 Add. Prot. I less the requirement of an intent to betray the confidence created by the feigning<sup>521</sup>.
- 340 **d) Improper use of signs of the adversary.** In contrast to the flag of truce and the distinctive emblems of the Geneva Conventions, which identify for instance non-combatants or persons *hors de combat*, and the UN signs, which indicate a special status, the flag, military insignia and uniform of the adversary do not indicate any protected status under humanitarian law, and their improper use does not undermine the respect of international signs. In fact, feigning to belong to the armed forces of the adversary appears to always have been practiced to a certain degree, and it is unclear to what extent such feigning is prohibited under contemporary customary international law or else constitutes a permitted ruse of war<sup>522</sup>.
- 341 As regards land warfare, it seems largely accepted in state practice and doctrine that the use of the adversary’s signs is not permitted while actually engaging in an armed attack. It is, however, unclear whether and to what extent it is a permitted ruse of war to use adversary’s signs during withdrawal or preparation of an attack insofar the disguise is abandoned before actual fighting begins, for instance to gain the advantage of surprise in attack or to lead the enemy to disperse its forces<sup>523</sup>.

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radio messages to the enemy and messages dropped by aircraft are becoming increasingly important as a prelude to conversations between representatives of the belligerent forces’).

<sup>517</sup> 1950 ILC Draft Code II – Report by J. Spiropoulos Special Rapporteur, p. 264, para. 69.

<sup>518</sup> General Military Government Court of the U.S. Zone of Germany, *Skorzeny et al.* (1949) IX *Law Reports* 93.

<sup>519</sup> de Preux, in: Y. Sandoz *et al.* (eds), *Commentary* (1987) 458, para. 1552.

<sup>520</sup> U.S. Army, *Field Manual* 27–10 (1956), No. 53. See also *ibid.*, No. 467; *German Joint Services Regulations* (Zentrale Dienstvorschrift (ZDV)) 15/2 (1992), reprinted in Fleck (ed.), *Handbook* No. 230 (1999).

<sup>521</sup> See article 8 para. 2 (b) (xi).

<sup>522</sup> Article 37 para. 2 Add. Prot. I states that ruses of war are not prohibited, see article 8 para. 2 (b)(xi). For a deeper analysis of State practice, see Henckaerts and Doswald-Beck, *Customary International Humanitarian Law* (2005) 213–218.

<sup>523</sup> For the doctrine, see, e.g. Jobst (1941) 35 *AJIL* 436–437, (holding that article 23 (f) Hague Regulations absolutely prohibits using enemy uniforms for purposes of deceiving the enemy) (with further references up to



In the *Skorzeny* case German soldiers used American uniforms and American vehicles in order to freely move behind American lines in order to sabotage and generally disrupt. *Skorzeny* however was acquitted without legal reasoning. The Commentator noted that the Tribunal had to determine whether the wearing of enemy uniforms was a lawful ruse of war, differentiating between the use of enemy uniforms in actual fighting as opposed to such use during operations other than fighting. The defense quoted H. Lauterpacht who had stated that, '[a]s regards the use of the national flag, the military ensigns, and the uniforms of the enemy, theory and practice are unanimous in prohibiting such use during actual attack and defense, since the principle is considered inviolable that during actual fighting belligerent forces ought to be certain who is friend and who is foe'<sup>524</sup>. The defense argued that the German soldiers had instructions to reach their objectives in enemy uniforms, but as soon as they were detected, they were to discard their American uniforms and fight under their true colours<sup>525</sup>. The acquittal has been interpreted as suggesting that the use the Germans made of the enemy's uniform was not 'improper'<sup>526</sup>.

In another war crimes case, German soldiers were accused of having violated international rules of land warfare by disguising to remove an explosive charge placed by the Dutch at a bridge to forestall a crossing by the Germans. The comment by Committee I of the United Nations War Crimes Commission notes that this means of deception was clearly a permitted ruse of war recognized under article 24 Hague Regulations, while improper when used during the time of actual attack or defense. The Committee continues in interpreting the time of actual attack in a broad way: As '[i]n this particular case the Dutch uniform was used by the accused at a time when Dutch territory was being invaded and actual fighting was going on[,] [t]hose improperly wearing the uniform could not be considered as spies in the circumstances and were therefore war criminals', having violated article 23 (f) Hague Regulations<sup>527</sup>.

The US Army Field Manual states that '[i]n practice, it has been authorized to make use of national flags, insignia, and uniforms as a ruse. [article 23 (f) Hague Regulations] does not prohibit such employment, but does prohibit their improper use. It is certainly forbidden to employ them during combat, but their use at other times is not forbidden'<sup>528</sup>. A comment to article 40 of the Swiss Manual also states that 'it is for instance prohibited to attack and fight the enemy while wearing the enemy's uniform'<sup>529</sup>. Article 8 para. c of the 1880 Oxford Manual prohibits '[t]o attack an enemy while concealing the distinctive signs of an armed force'.

While article 39 para. 1 Add. Prot. I absolutely prohibits the use of signs of states not parties to the conflict and prohibits the use of UN signs except as authorized by the UN, article 39 para. 2 Add. Prot. I prohibits the use of uniforms of adverse parties only 'while engaging in attacks or in order to shield, favour, protect or impede military operations' (emphasis added), thereby clarifying the law to some degree. The ICRC Commentary suggests that the formulation in article 39 para. 2 Add. Prot. I also covers the preparatory

1941); Stephens and Skousgaard, in: Wolfrum (ed.), *MPIL* (2009); McCoubrey and White, *International Law and Armed Conflict* (1992) 226–227; UNWCC, *History* (1948) 490–491; Solf, in: Bothe *et al.* (eds.), *New Rules* (1982) 212–215; de Preux, in: Sandoz *et al.* (eds), *Commentary* (1987) 465–469, paras. 1572–1579. Bordwell also states that '[t]he use of the national flag and of the uniform of the enemy is allowed for purposes of approach, but before fighting is begun, the true character of the ship or of the soldiers must be disclosed. This right of approach is well settled, although made little if any use of in recent times, especially on land. Complaints of fighting in the uniform of the enemy, however, have been numerous'. Bordwell, *The Law of War between Belligerents* (1908) 283–284. On State practice, see just below.

<sup>524</sup> Oppenheim and Lauterpacht, *International Law*, ii (1952) 335.

<sup>525</sup> *Skorzeny et al.*, IX *Law Reports* (1949) 90.

<sup>526</sup> Rowe, *Defence* (1987) 113. Fleck however argues that the acquittal in this case cannot be taken as a yardstick, because the analysis of the acquittal in IX *Law Reports* 90–93 (1949), does not consider the legislative background of article 23 (f) Hague Regulations nor the situation of modern armed conflicts, Fleck (1974) 13 *RDPM* 281–282.

<sup>527</sup> UNWCC, *History* (1948) 490–491.

<sup>528</sup> U.S. Army, *Field Manual* 27–10 (1956), No. 54.

<sup>529</sup> Swiss Army Regulations on the Laws and Customs of War, article 40, 12 (1978).

stage to an attack, referring to article 44 para. 3 Add. Prot. I<sup>530</sup>. In addition, the use of adversary signs is not criminalized as a grave breach under the Protocol, in contrast to the signs named under articles 37 and 38 Add. Prot. I<sup>531</sup>. As regards *sea warfare*, No. 110 of the San Remo Manual can be considered to reflect customary international law<sup>532</sup> in stating that ‘Ruses of war are permitted. Warships and auxiliary vessels, however, are prohibited from launching an attack whilst flying a false flag ...’<sup>533</sup>, even if it seems this statement has not always been true in history<sup>534</sup>. Several national military manuals confirm this statement. The US Commander’s Handbook on the Law of Naval Operation for instance states that ‘Naval surface and subsurface forces may fly enemy colors and display enemy markings to deceive the enemy, Warships must, however, display their true colors prior to an actual armed engagement’<sup>535</sup>. The German Joint Services Manual provides that ‘Ruses of war are permissible also in naval warfare. Unlike land and aerial warfare, naval warfare permits the use of false flags or military emblems (article 39 para. 3 Add. Prot. I). Before opening fire, however, the true flag shall always be displayed’<sup>536</sup>.

346 With respect to *air warfare*, a commentary to Nos. 109–111 of the San Remo Manual points out that, contrary to warships, aircraft have never been entitled to bear false markings<sup>537</sup>. Article 19 of the 1923 Hague Rules of Air Warfare also categorically stated that ‘[t]he use of false external marks is forbidden’<sup>538</sup>. This absolute prohibition is confirmed by national military manuals<sup>539</sup>.

347 In sum, it appears broadly accepted that it is at least improper for combatants to wear the uniforms of the enemy or display enemy signs *while actually engaging in an attack*. The suggestion of element 2 of article 8 para. 2 (b) (vii)–2 Rome Statute that the improper use of adversary signs needs to have been made ‘in a manner prohibited under the international law of armed conflict while engaged in an attack’ in order to qualify as a war crime under the jurisdiction of the ICC seems reasonable and generally in accordance with the laws and customs of war. This limitation of the offense’s scope of application to the moment in which persons actually engage in attack is a welcome clarification. The use of enemy uniforms etc. for exercise purposes or by prisoners of war or grounded parachutists who try to get back to their lines would thus for instance not amount to the offense defined under articles 8 para. 2 (b) (vii) Rome Statute<sup>540</sup>. It should also be taken into consideration that the capture of enemy

<sup>530</sup> de Preux, in: Sandoz et al. (eds), *Commentary* (1987) 467 (para. 1575).

<sup>531</sup> Article 85 para. 3 (f) Add. Prot. I only prohibits the wilful and perfidious use of ‘protective’ signs recognized by the Conventions or the Protocol, thus not including adversary signs.

<sup>532</sup> See however, Politakis, *Stratagems* 272–301 and 307, (examining various World War examples and concluding that ‘[f]ar from pointing to an international custom, the degenerated practices of the two World Wars demonstrated that there do not exist commonly admitted principles’ with respect to the use of flags of the enemy or other states in the conduct of armed conflict at sea). See also Heintschel von Heinegg, *The Law of Armed Conflicts at Sea*, in: Fleck (ed.), *Handbook IHL* (OUP 2013). 422.

<sup>533</sup> L. Doswald-Beck (ed.), *San Remo Manual on International Law Applicable to Armed Conflicts at Sea* (1995) 28.

<sup>534</sup> Madden, M., ‘Of Wolves and Sheep: A Purposive Analysis of Perfidy Prohibitions in International Humanitarian Law’, (2012) 17 *J S L* 439, at 445, 446.

<sup>535</sup> U.S. Commander’s Handbook, section 12.5.1.

<sup>536</sup> German Joint Services Regulations, No. 1018, in Fleck (ed.), *Handbook IHL* (1999). See also Swiss Army Regulations, article 48.

<sup>537</sup> Doswald-Beck (ed.), *San Remo Manual on International Law Applicable to Armed Conflicts at Sea* (1995) 184.

<sup>538</sup> Hague Rules of Air Warfare, Drafted by a Commission of Jurists at The Hague, Dec. 1922–Feb. 1923.

<sup>539</sup> *German Joint Services Regulations*, No. 1018, in Fleck (ed.), *Handbook IHL* (1999). US Commander’s Handbook, section 12.5.2, also states that ‘[t]he use in combat of enemy markings by belligerent military aircraft is forbidden’. A comment to that rule indicates that ‘[t]his rule may be explained by the fact that an aircraft, once airborne, is generally unable to change its markings prior to actual attack as could a warship. Additionally, the speed with which an aircraft can approach a target (in comparison with warships) would render ineffective any attempt to display true markings at the instant of attack’, Thomas and Duncan (eds.), *Annotated Supplement* (1999) 513, fn. 14.

<sup>540</sup> Cf., de Preux, in: Sandoz et al. (eds), *Commentary* (1987) 463 (para. 1565); Fleck, *Ruses of War* 282; Bothe, *Flags and Uniforms in War* 403; Solf, in: Bothe et al. (eds.), *New Rules* (1982) 214.

material and belligerent occupation may result in particular situations in which the use of objects with adversary signs does not necessarily violate the prohibition to improperly use adversary signs.

The terms ‘flag or ... military insignia and uniform’ of the enemy refer to concrete visual objects. These terms should be understood to include distinguishing marks on airplanes, vehicles and buildings. However, electronic means of identification are not covered by the wording, at least in a strict literal interpretation. It has in addition been maintained that the prohibition does not apply to the ruse of using the adversary’s codes, passwords and countersigns to aid military operations<sup>541</sup>.

**e) Improper use of signs of the United Nations.** The improper use of the flag, military insignia and uniform of the United Nations is prohibited by articles 37 para. 1 (d) and 38 para. 2 (d) Add. Prot. I and criminalized under article 85 para. 3 (f) Add. Prot. I. Rule 60 of the ICRC Study on customary international humanitarian law introduces a nuance in that it prohibits the *use* of the United Nations emblem and uniform (except as authorized by the organisation), and not only their *improper use*.<sup>542</sup>

Even when UN personnel are or become involved in an armed conflict, the improper use of the UN signs should still be considered to qualify under article 8 para. 2 (b) (vii)–3, and not merely be treated as an improper use of enemy signs (article 8 para. 2 (b) (vii)–2) which may amount to a war crime only when the persons using them engage in an attack. Even if used by peace-enforcement operations, UN signs constitute ‘protective’ signs serving to protect ‘neutral’ zones as well as objects or personnel not involved in an armed conflict or in other places, times and circumstances<sup>543</sup>.

Element 2 of article 8 para. 2 (b) (vii)–3 suggests that in order for an improper use of UN signs to qualify as a war crime under the Rome Statute, the perpetrator must have made such use ‘in a manner prohibited under the international law of armed conflict’. At first sight, this element seems to limit the cases to which article 8 para. 2 (b) (vii) is applicable, as it could be maintained that UN regulations providing who is permitted to use UN signs under what circumstances do not (all) constitute rules of the international law of armed conflict. However, article 38 para. 2 Add. Prot. I prohibits all use ‘of the distinctive emblem of the United Nations’ that is not authorized by the United Nations. Element 2 is consequently somewhat circular and suggests, at least in a literal interpretation, that all use of UN signs not authorized by the UN may qualify under article 8 para. 2 (b) (vii) as long as the other prerequisites are given, even if delegations at the Preparatory Committee may have intended this element 2 to limit the scope of article 8 para. 2 (b) (vii).

The same phrase however could also be read as limiting the scope of application of article 8 para. 2 (b) (vii)–3 to those cases in which a *substantive* rule of the Geneva Conventions or the Add. Prot. I or another direct source of humanitarian law rules *directly* prohibit a particular use, that is, without referring to a vague general formula like an ‘improper use’. This would certainly be the case regarding the prohibition of perfidy<sup>544</sup>.

With respect to *naval warfare*, No. 110 of the San Remo Manual can be considered to reflect customary international law in stating that ‘... Warships and auxiliary vessels ... are prohibited ... at all times from actively simulating the status of: ... (d) vessels protected by the United Nations flag; ...’.

Protected are ‘the flag or ... the military insignia and uniform ... of the United Nations’. The term ‘military insignia ... of the United Nations’ may be considered to refer to

<sup>541</sup> Solf, in: Bothe *et al.* (eds.), *New Rules* (1982) 214.

<sup>542</sup> Henckaerts and Doswald-Beck, *Customary International Humanitarian Law* (2005) 210.

<sup>543</sup> Signs of adversary parties are not considered ‘protective’ signs under article 85 para. 3 (f) Add. Prot. I. See, Zimmermann, in: Sandoz *et al.*, *Commentary* (1987) 998, paras. 3495–3499; W. Solf, in: Bothe *et al.* (eds.), *New Rules* (1982) 517. See also de Preux, in: Sandoz *et al.*, *Commentary* (1987), 439 (para. 1509). The argument that UN operations have a different legitimacy even if engaging in armed conflict and therefore should be better protected appears less convincing as it mixes elements of *ius ad bellum* into the *ius in bello*.

<sup>544</sup> See articles 37 para. 1 (d) and 85 para. 3 (f) Add. Prot. I.

distinguishing marks or signs or badges of authority that identify personnel as members of the military, police or civilian components of the UN or its specialized agencies, or vehicles, vessels, aircraft, buildings or other objects of the UN or its specialized agencies<sup>545</sup>. It is unlikely that delegations at the Rome Conference intended to exclude signs used by UN personnel involved in non-military activities by using the term ‘military’. Rather, this term was drawn from the Hague wording referring to the signs of the enemy, while delegations appear not to have realized that this term might not be fully appropriate with regard to UN signs. Articles 37 para. 1 (d) and 38 para. 2 Add. Prot. I use the terms ‘signs’ and ‘emblems’ without such qualifier.

Protected signs thus certainly include the blue UN flag and other UN insignia like UN badges or UN helmets<sup>546</sup>.

355 f) **Improper use of the distinctive emblems of the Geneva Conventions.** As early as 1863, the Lieber Code prohibited the abuse of the Red Cross. The Responsibilities Commission of the 1919 Paris Peace Conference included, besides the prohibition of ‘deliberate bombardment of hospitals’ and ‘attack and destruction of hospital ships’, also the ‘breach of other rules relating to the Red Cross’ in its list of violations of the laws and customs of war. The proper use of the emblems of the Geneva Conventions is regulated by numerous provisions of the Geneva Conventions and Additional Protocol I. Article 23 (f) Hague Regulations also prohibits ‘[t]o make improper use of ... the distinctive badges of the Geneva Convention’. Article 38 Add. Prot. I prohibits ‘to make improper use of the distinctive emblem of the Red Cross, Red Crescent or red lion and sun or of other emblems, signs or signals provided for by the Conventions or by this Protocol ...’. Article 85 para. 3 (f) Add. Prot. I makes it a grave breach to cause death or serious injury by perfidiously using, in violation of article 37 Add. Prot. I, the protective signs recognized by the Geneva Conventions or the First Additional Protocol. Moreover, Article 6 of Add. Prot. III provides that the relevant provisions of the Geneva Conventions and of the 1977 Add. Prot. governing *inter alia* the misuse of the distinctive emblems ‘shall apply equally to the third Protocol emblem’. In addition, recalling also the Oxford Manual and the Brussels Declaration, the ICRC Study on customary international humanitarian law contains a rule prohibiting the improper use of the distinctive emblems of the Geneva Conventions.<sup>547</sup>

356 The ‘distinctive emblems of the Geneva Conventions’ are the Red Cross, the Red Crescent and the red lion and sun on a white ground<sup>548</sup>. Additionally, article 8 para. 2 (b) (vii) may in the future also be applied, at least with regard to parties to the conflict bound by the 2005 Additional Protocol III, to improper use of the additional emblem of the new ‘red crystal’, composed of a red frame in the shape of a square on edge on a white ground<sup>549</sup>.

357 Other internationally recognized emblems and signs or signals which are protected or recognized by the Geneva Conventions or the First or Third Additional Protocols do not constitute distinctive emblems of the Geneva Conventions. A different issue is whether the improper use of distinctive signals or other methods of identification different from the visual sign of the Red Cross or Red Crescent, which are recognized by the Annex of the Additional Protocol and used to indicate the same status and protection as the Red Cross or

<sup>545</sup> See articles 1 (Definitions) and 3 (Identification) of the UN Convention on the Safety of United Nations and Associated Personnel, UN Doc. A/RES/49/59 (9 Dec. 1994). The use of the United Nations flag is regulated by a code issued by the Secretary-General: The United Nations Flag Code and Regulations, UN Doc. ST/SGB/132 (January 1967), cited in, de Preux, in: Sandoz *et al.* (eds.), *Commentary* (1987) 459 (para. 1559).

<sup>546</sup> It might even cover non-blue signs identifying personnel or objects associated with the UN, such as the yellow berets of unarmed Swiss assistance personnel providing medical or other civilian services to UN peace-keeping operations.

<sup>547</sup> Henckaerts and Doswald-Beck, *Customary International Humanitarian Law* (2005) 207 (rule 59).

<sup>548</sup> See article 8 para. 1 Add. Prot. I, article 38 GC I, and article 41 GC II. The protection of the distinctive emblems of the Conventions is further developed by article 38 Add. Prot. I, and models of the emblems are found in Figure 2 (article 4) of the Regulations Concerning Identification, Annex I to Add. Prot. I (as amended on 30 Nov. 1993).

<sup>549</sup> See article 2 *et seq.* of the 2005 Add. Prot. III.

the Red Crescent, such as radio signals when there is no direct eye contact, could also be subsumed under article 8 para. 2 (b) (vii)–4 Rome Statute<sup>550</sup>. The German Military Manual for instance states that ‘... it is prohibited to misuse the emblem of the Red Cross or to give a ship, *in any other way*, the appearance of a hospital ship for the purpose of camouflage. It is also prohibited to make improper use of other distinctive signs equal in status with that of the Red Cross (article 45 GC II; article 37 Add. Prot. I) ...’<sup>551</sup>.

The protective emblems of the Geneva Conventions generally identify and protect sick or wounded persons as well as units and installations transporting or sheltering them and persons retrieving or caring for the<sup>552</sup>. The emblems protect ‘medical units and transports, or medical and religious personnel, equipment or supplies’<sup>553</sup>. Who is entitled under what circumstances and for what particular purpose to use the distinctive emblems of the Geneva Conventions is regulated with more specificity by the First, Second and Fourth Geneva Conventions, Part II of the First Additional Protocol and articles 2 to 6 of the Third Additional Protocol<sup>554</sup>. Given that the abuse of the emblems can substantially weaken the protection they might otherwise provide, the abuse of the emblems is categorically prohibited by the Geneva Conventions and Additional Protocols I and III.

Element 2 of article 8 para. 2 (b) (vii)–4 Rome Statute suggests that the term ‘improper use’ must be understood as a use ‘for combatant purposes in a manner prohibited under the international law of armed conflict’. Footnote 42 of the Elements of Crime further spells out that ‘[c]ombatant purposes’ in these circumstances means purposes directly related to hostilities and not including medical, religious or similar activities. This specification appears reasonable, as it would not make sense that any use of the emblems not perfectly in accordance with the applicable prescriptions potentially qualifies under article 8 para. 2 (b) (vii) even if occurring in good faith to help sick and wounded.

The US Army Field Manual considers the following conducts as examples of an ‘improper use’ of the emblem of the Red Cross, which could all be subsumed under element 2 to article 8 para. 2 (b) (vii)–3 Rome Statute: ‘Using a hospital or other building accorded such protection as an observation post or military office or depot; firing from a building or tent displaying the emblem of the Red Cross; using a hospital train or airplane to facilitate the escape of combatants; displaying the emblem on vehicles containing ammunition or other nonmedical stores; and in general using it for cloaking acts of hostility’<sup>555</sup>. A US Intermediate Military Government Court sentenced the accused Hagendorf on a charge of having ‘wrongfully used the Red Cross emblem in a combat zone by firing a weapon at American soldiers from an enemy ambulance displaying such emblem’<sup>556</sup>. The commentator remarked that ‘[i]t is hard to conceive of a more flagrant misuse than the firing of a weapon from an ambulance by personnel who were themselves protected by such emblems and by the [Geneva] Conventions, in the absence of an attack upon them’<sup>557</sup>.

<sup>550</sup> Such other methods of identification are covered by the prohibition of improper use of signs under article 38 para. 1 Add. Prot. I. Israel uses the red shield of David, while considering to ratify Add. Prot. III.

<sup>551</sup> German Joint Services Regulations, No. 1019, in Fleck (ed.), *Handbook* No. 230 (1999) (emphasis added).

<sup>552</sup> On the protection of the wounded, sick and shipwrecked, see generally, e.g., Rabus, in: Fleck (ed.), *Handbook IHL* (2013) 293. It is submitted that article 8 para. 2 (b)(vii) applies to the protective use of the emblem for those engaged on tasks provided for by the Geneva Conventions and the Add. Prots. It does not apply to the indicative use of the Red Cross to show authorized affiliation with international or national Red Cross organizations, which in armed conflict will always be done with an emblem of a small size which may not be displayed on armlets or rooftops and which is not covered as such under article 38 Add. Prot. I. See Solf, in: Bothe *et al.* (eds.), *New Rules* (1982) 208, fn. 1; de Preux, in: Sandoz *et al.* (eds.), *Commentary* (1987) 450–451, paras. 1539–1540.

<sup>553</sup> Article 8 para. 1 Add. Prot. I.

<sup>554</sup> On the protection of the emblem and repression of abuses, see in particular articles 38, 44, 53 and 54 GC I; articles 41 to 45 GC II; articles 18, 20 and 22 GC IV; articles 8 to 31 (above all article 18), 37, 38 and 85 para. 3 (f) Add. Prot. I. See also Arnold, *article 8 para. 2 (b) (xxiv)*.

<sup>555</sup> See U.S. Army, *Field Manual* 27–10 (1956), No. 55.

<sup>556</sup> U.S. Intermediate Military Government Court at Dachau, *Heinz Hagendorf* (8–9 August 1946), XIII *Law Reports* 146 (1949).

<sup>557</sup> *Ibid.*, at 148.



- 361 Delegations intended to cover abuses to kill or wound the adversary as well as cases in which the distinctive emblems are used to gain another military advantage which then leads to death or injury because the confidence that the emblems are properly used by all sides has been lost or was reduced.
- 362 As regards the law of naval warfare, No. 110 of the San Remo Manual can be considered to reflect customary international law in stating that ‘... Warships and auxiliary vessels ... are prohibited ... at all times from actively simulating the status of: (a) hospital ships, small coastal rescue craft or medical transports; (b) vessels on humanitarian missions; ... (f) vessels entitled to be identified by the emblem of the Red Cross or Red Crescent’.

### 8. Paragraph 2(b)(viii): Prohibited deportations and transfers in occupied territories

**Literature:** Benvenisti, E., *The international Law of Occupation* (PUP 1993); Bredt, F., *Anwendbarkeit des humanitären Völkerrechts im Israel-Palästina-Konflikt* (Duncker & Humblot Berlin 2009); Haslam, E. ‘Unlawful Population Transfer and the Limits of International Criminal Law’, (2002) 61 *CambridgeLJ* 66; Henckaerts, J.M., *Mass Expulsion in Modern International Law and Practice* (Nijhoff Leiden 1995); Kretzmer, D., ‘The Advisory Opinion: The Light Treatment of International Humanitarian Law’, (2005) 99 *AJIL* 88; Meindersma, C. ‘Legal Issues Surrounding Population Transfers in Conflict Situations’, (1994) 41 *NethILRev* 31; Meron, T., ‘Deportation of Civilians as a War Crime Under Customary Law’, in: D. Gorn (ed.), *Broadening the Frontiers of Human Rights: Essays in Honour of Asbjørn Eide* (Scandinavian University Press 1993) 201; Roberts, A., ‘Prolonged Military Occupation: The Israeli-Occupied Territories Since 1967’, (1990) 84 *AJIL* 44; Dörmann, K. ‘Preparatory Commission for the International Criminal Court: The Elements of War Crimes. Part II: Other Serious Violations of the Laws and Customs Applicable in International and Non-International Armed Conflicts’, (2001) 83 *ICRC* 481 *et seqq.* <[https://www.icrc.org/eng/assets/files/other/461-488\\_dormann.pdf](https://www.icrc.org/eng/assets/files/other/461-488_dormann.pdf)> accessed 16 January 2015; Olson, W. ‘UN Security Council Resolutions Regarding Deportations from Israeli-Administered Territories’, (1987–88) 24 *StanJIL* 611; *Official Records of the Diplomatic Conference on the Reaffirmation and Development of International Humanitarian Law Applicable in Armed Conflicts*, vi (1977), 291; von Hebel, H., ‘The Elements of War Crimes’, in: R.S. Lee (ed.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (Transnational Publishers New York 2001) 159; ‘Entwurf eines Gesetzes zur Einführung des Völkerstrafgesetzbuches’ 29, Drucksache 14/8524, <<http://dip21.bundestag.de/dip21/btd/14/085/1408524.pdf>> accessed 19 October 2014; *Elon Moreh case*, No. H.C. 390/79, reprinted in: Shamgar, M. ‘Legal Concepts and Problems of the Israeli Military Government – the Initial Stage’, in: M. Shamgar (ed.), *Military Government in the Territories Administered by Israel 1967–1980: The Legal Aspects* (Alpha Press Jerusalem 1982) 404, 419–26; ‘Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory’ ICJ Advisory Opinion, *ICJ Reports* 2004, 136, delivered on 9 July 2004. <<http://www.icj-cij.org/doctet/files/131/1671.pdf>> accessed 15 October 2014; Pégrier, C., *Ethnic Cleansing: A Legal Qualification* (Routledge New York 2013); Lehmler, L., *Die Strafbarkeit von Vertreibungen aus ethnischen Gründen im bewaffneten nicht-internationalen Konflikt* (Nomos Baden-Baden 1999); Mulaj, K., *Politics of Ethnic Cleansing: Nation-State Building and Provision of In-Security in Twentieth-Century Balkans* (Lexington Books Lanham 2008); Preece, J.J., ‘Ethnic Cleansing as an Instrument of Nation-State Creation: Changing State Practices and Evolving Legal Norms’, (1998) 20 *HumRtsQ* 817; Köhler, S., *Das Massenvertreibungsverbot im Völkerrecht* (Verlag Spitz Berlin 1999); Henckaerts, J.M., *Mass Expulsion in Modern International Law and Practice* (Nijhoff Leiden 1995); Dawson, G. and Farber, S., *Forcible Displacement Throughout the Ages: Towards an International Convention for the Prevention and Punishment of the Crime of Forcible Displacement* (Nijhoff Leiden 2012); de Zayas, A., ‘International Law and Mass Population Transfers’, (1975) 16 *HarvILJ* 211; Meron, T., ‘Deportation of Civilians as a War Crime Under Customary Law’, in: D. Gorn (ed.) *Broadening the Frontiers of Human Rights: Essays in Honour of Asbjørn Eide* (Scandinavian University Press Oslo 1993) 201; ‘Australian Law Concerning Trials of War Criminals by Military Courts’, in: *Law Reports of Trials of War Criminals, Selected and prepared by the United Nations War Crimes Commission* (London 1948), vol. V 95; Solf, W.A. and Cummings, E.R., ‘A Survey of Penal Sanctions under Protocol I to the Geneva Conventions of August 12, 1949’, (1977) 9 *CaseWesternResJIL* 232 *et seqq.*; Junod, S., ‘Article 17’, in: Y. Sandoz *et al.* (eds), *Commentary on the Additional Protocols of 8 June 1977 to the Geneva Conventions of 12 August 1949* (Nijhoff 1987) 1471; Roberts, R., ‘Prolonged Military Occupation: The Israeli-Occupied Territories Since 1967’, 1990 84 *AJIL* 44, 83 *et seqq.*; Gasser, H.P., ‘Protection of the Civilian Population’, in: D. Fleck (ed.), *The Handbook of Humanitarian Law in Armed Conflict* (1995) 246 and 251; Meindersma, C., ‘Legal Issues Surrounding Population Transfers in Conflict Situations’ (1994) 41 *NILR* 31; Zimmermann, B., ‘Article 85’, in: Y. Sandoz *et al.* (eds), *Commentary on the Additional Protocols of 8 June 1977 to the Geneva Conventions of 12 August 1949* (Nijhoff 1987).

- 363 The prohibited acts contained in Art. 8 b (viii) Rome Statute are twofold and constitute two different crimes. First, it criminalizes the direct or indirect transfer by an occupying power of parts of its own civilian population into the territory it occupies. Second, the



deportation or transfer of all or parts of the population of the occupied territory within or outside this territory is prohibited.<sup>558</sup> Both manners of transfer and deportation have severe humanitarian, economic, political and social long-term consequences, by changing the demographic composition of a territory, protracting conflicts and creating factual situations which are difficult to reverse.<sup>559</sup> The creation of such *faits accomplis* render the settlement of conflicts more complicated,<sup>560</sup> in particular with regard to land restitution and return of refugees and internally displaced people. Both acts are only criminalized in international armed conflicts.<sup>561</sup>

a) **War crime of transferring parts of the own population into occupied territory.** The war crime of transferring parts of the population of the Occupying Power into the occupied territory aims at protecting the status as well as the population and property of occupied territory against the long-lasting effects of settlements by the Occupying Power and its population. 364

aa) **Normative origins and drafting history.** aaa) **The underlying issues and the objectives of the prohibition.** The transfer by an Occupying Power of its own civilian population into territory it occupies usually has substantial lasting consequences. Such transfers not only change the demographic composition within the occupied territory, but experience shows that they often lead to restrictions of the original inhabitants' free movement as well as constraints of property and other fundamental rights. In addition, inhabitants of the occupied territory that may have become refugees or been internally displaced during the prior armed conflict may encounter added difficulties to return because of the transfers. The new settlers may defend, often protected by the Occupying Power, their new housing and settlements and resist the original inhabitants' return and reappropriation of property and housing 365

Occupying Powers often initiate, promote, support or at least tolerate transfers and shifts in the demographic composition of the occupied territory to factually weaken the position of the resident population of the occupied territory and solidify its territorial and political claim over the territory, not infrequently with the end goal to annex the territory or parts of it. Implantations of settlements and settlers can constitute a powerful and difficult-to-reverse means of ethnic cleansing. 366

bbb) **The normative framework.** (1) **The conceptual framework of the law of belligerent occupation.** Article 2 common of the GC defines in para 2 the scope of application of the conventions. They also apply to 'all cases of partial or total occupation of the territory of a High Contracting Party, even if the said occupation meets with no armed resistance.' Occupation in international humanitarian law is defined in Regulation 42 of the Annex to the Hague Convention respecting the Laws and Customs of War on Land,<sup>562</sup> which reads: 367

<sup>558</sup> Dörmann, *Elements of War Crimes* (2001) 83 ICRC. <[https://www.icrc.org/eng/assets/files/other/461-488\\_dormann.pdf](https://www.icrc.org/eng/assets/files/other/461-488_dormann.pdf)> accessed 16 January 2015 461 481 *et seqq.*

<sup>559</sup> The indictment in the case of the Major War Criminals before the IMT Nuremberg in 1945 held, under the title 'Germanization of Occupied Territories': '[...] the defendants methodically and pursuant to plan endeavored to assimilate those territories politically, culturally, socially and economically into the German Reich. The defendants endeavored to obliterate the former national character of these territories. In pursuance of these plans and endeavors, the defendants forcibly deported inhabitants who were predominantly non-German and introduced thousands of German colonists.' IMT Nuremberg, Case of the Major War Criminals, Indictment, 20 November 1945, Count 3(J) pp 63–65. Excerpts in Henckaerts and Doswald-Beck (eds), *Customary International Humanitarian Law. Practice* (2005) vol. II p. 2968 Note 420.

<sup>560</sup> The UN SC held in its Resolution 465, 1 March 1980 on Israeli settlement policies in the occupied territories that 'Israel's policy and practices of settling parts of its population and new immigrants in those territories constitute a flagrant violation of the Geneva Convention relative to the Protection of Civilian Persons in Time of War and also constitute a serious obstruction to achieving a comprehensive, just and lasting peace in the Middle East.' S/RES/465 (1980) 1 March 1980, para 5.

<sup>561</sup> Werle and Jessberger, *Principles* (2014) mn. 1238.

<sup>562</sup> Convention (IV) respecting the Laws and Customs of War on Land and its annex: Regulations concerning the Laws and Customs of War on Land. The Hague, 18 October 1907.

‘Territory is considered occupied when it is actually placed under the authority of the hostile army’. Under international law, occupation must be limited in time due to the general ban of use of force stipulated in the UN Charter. The political, social and cultural life in occupied territories should be changed as little as possible. Therefore, the objective of 85 para 4 (a) AP I is to avoid that the demographic, social and political conditions are altered by the Occupying Power to **the social and economic detriment of the population living in the occupied territory**.<sup>563</sup>

- 368 A party to a conflict occupying territory is not free to act as it likes within that territory. International humanitarian law provides rules specifying the rights and obligations of a belligerent power with regard to the occupied territory and its inhabitants. International law and more particularly the UN Charter generally ban the use of force and, as a consequence, also the acquirement of foreign territory by force. Therefore, annexing conquered territory is prohibited. Hence, under international law, any belligerent occupation must necessarily be temporary. Correspondingly, **international humanitarian law provides for obligations of Occupying Powers as an interim military administrator**, essentially similar to a trusteeship. The Occupying Power for instance is not permitted to change the law in force in the territory ‘unless absolutely prevented’ (article 43 Hague Regulations). The political and public life and the occupied territory itself, including its demographic composition, should be changed as little as possible and without effecting the situation after the end of the armed conflict.<sup>564</sup> According to article 46 Hague Regulations, reflecting customary international law, the private property in occupied territory ‘must be respected’ and ‘cannot be confiscated’. Article 53 GC IV provides in addition that:

‘Any destruction by the Occupying Power of real or personal property belonging individually or collectively to private persons, or to the State, or to other public authorities, or to social or co-operative organizations, is prohibited, except where such destruction is rendered absolutely necessary by military operations’<sup>565</sup>

- 369 Reprisals against civilians and their property as well as collective penalties or measures of intimidation are prohibited.<sup>566</sup> The extensive destruction or appropriation of property not justified by military necessity may also amount to a war crime under article 8 para. 2 (a) (iv) and (b) (xiii) Rome Statute.
- 370 (2) **Basic rules prohibiting transfers into occupied territory.** The prohibition of the transfer of parts of their own civilian population by states into a territory they occupy is considered as a norm of **customary international humanitarian law** applicable in international armed conflicts.<sup>567</sup>
- 371 Article 49 para 6 GC IV provides that ‘[t]he Occupying Power shall not deport or transfer parts of its own population into the territory it occupies.’ The UN Security Council has repeatedly condemned transfers of an Occupying Power’s own population into occupied territory, considering it ‘a flagrant violation of the [Fourth] Geneva Convention.’<sup>568</sup> Anti-

<sup>563</sup> ICRC Commentary on the Additional Protocols of 8 June 1977 to the Geneva Convention of 12 August 1949, 3504.

<sup>564</sup> Gasser, in: Fleck and Bothe, *Handbook* (2008) 246 and 251.

<sup>565</sup> See also articles 48 *et seq.* AP I.

<sup>566</sup> Article 33 para 3 GC IV; articles 20 and 51 para 6 AP I.

<sup>567</sup> Henckaerts and Doswald-Beck, *Customary International Humanitarian Law* (2005), vol. I, 462 *et seqq.* The national legislation of many states as well as numerous military manuals prohibit the deportation or transfer by a party to the conflict of parts of its civilian population into the territory it occupies. This prohibition is supported by a number of official statements and reported practice. Further, attempts to alter the demographic composition of an occupied territory have repeatedly been condemned by the UN SC, *cf.* Henckaerts and Doswald-Beck, *Customary IHL* (2005), vol. II, 2956 *et seq.*

<sup>568</sup> The UN Security Council stated for instance that ‘Israel’s policy and practices of settling parts of its population and new immigrants in [the Palestinian and other Arab territories occupied since 1967] constitute a flagrant violation of the [Fourth] Geneva Convention’, UN SC Res. 465 (1980) para 5. In another resolution, it has called upon Israel to ‘desist from taking any action which would result in changing the legal status and geographical nature and materially affecting the demographic composition of the Arab territories occupied ...’

cle 85 para. 4 (a) AP I, which was adopted by consensus,<sup>569</sup> explicitly criminalizes the act as a **grave breach of Additional Protocol I**.<sup>570</sup> Many states penalize the transfer of own civilian population by Occupying Powers.<sup>571</sup>

(3) **Drafting history.** The International Law Commission included the ‘establishment of settlers in an occupied territory and changes to the demographic composition of an occupied territory’ as exceptionally serious war crime in article 22 para 2 (b) of its 1991 Draft Code of Crimes against the Peace and Security of Mankind.<sup>572</sup> In its 1996 Draft Code, the International Law Commission included as a war crime, insofar ‘committed willfully in violation of international humanitarian law: (i) the transfer by the Occupying Power of parts of its own civilian population into the territory it occupies’ as a violation of international humanitarian law (lit. c ii).<sup>573</sup>

The wording of article 8 para 2 (b)(viii) Rome Statute, in particular regarding the transfer of its own population by an Occupying Power to territories under its occupation was **controversial during the preparatory and the Rome negotiations** due to political disagreement. Israel opposed the inclusion of any war crime based on article 85 para 4 (a) AP I, supported, to a limited extent, only by the United States. The overwhelming majority of the delegations in Rome however rejected the argument of Israel<sup>574</sup> that this grave breach would not be part of customary international law<sup>575</sup> and preferred a wording based on the first part of article 85 para. 4 (a) AP I. However, the Arab delegations wished to clarify by way of the offense’s definition that it does not only apply to the direct organization by the Occupying Power of such transfers, but also criminalizes measures of an occupying power and its agents that (indirectly) encourage, facilitate or promote the transfer of its population into the occupied territory. After intense negotiations opposing primarily Arab states and Israel, the wording ‘directly or indirectly’ was added.<sup>576</sup> Most state parties did not consider this addition

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and, in particular, not to transfer parts of its own civilian population into the occupied Arab territories’, SC Res 446 (1979) para 3. See also SC Res 452 (1979); SC Res 476 (1980); Olson (1987–88) 24 *StanJIL* 611.

<sup>569</sup> *Official Records* (1977) Vol. VI CDDH/SR.44, 291. This provision was not least adopted in view of the Israeli settlements on the Golan Heights and on the West Bank.

<sup>570</sup> Article 147 GC IV does not appear to criminalize a violation of article 49 para 6 GC IV, since it only criminalizes an ‘unlawful deportation or transfer [...] of a protected person’, and since the Occupying Power’s own population is not the object of protection of article 49 GC IV. Pictet, *Commentary on the Geneva Convention* (1952–1960), 599.

<sup>571</sup> See list in Henckaerts and Doswald-Beck *Customary IHL* (2005), vol. II, 2958 *et seq.*

<sup>572</sup> The commentary to article 22 stated that this crime constituted ‘a particularly serious misuse of power, especially since such an act could involve the disguised intent to annex the occupied territory. Changes to the demographic composition of an occupied territory seemed to the Commission to be such a serious act that it could echo the seriousness of genocide.’ Draft Code of Crimes against the Peace and Security of Mankind, Document A/46/10. Report of the International Law Commission on the work of its forty-third session, 29 April–19 July 1991, Official Records of the General Assembly, Forty-sixth session, Supplement No. 10. [http://legal.un.org/ilc/documentation/english/A\\_46\\_10.pdf](http://legal.un.org/ilc/documentation/english/A_46_10.pdf) (last visited on 20 October 2014).

<sup>573</sup> *ICL Draft Code of Crimes against the Peace and Security of Mankind with commentaries* (51 UN GAOR Supp. (No. 10) at 14, UN Doc. A/CN.4/L.532, corr.1, corr.3 1996) YbILC (1996) (vol II part 2) 53.

<sup>574</sup> Israel, which is party to AP I opposed the inclusion of the crime of transferring own population into occupied territory by an Occupying Power, arguing that this grave breach was not part of customary international law. See: von Hebel and Robinson, ‘Crimes within the Jurisdiction of the Court’, in: Lee (ed.), *The Making of the Rome Statute* (Nijhoff Leiden 1999) 112 *et seq.*

<sup>575</sup> Four options of definitions were submitted to the Rome Conference: ‘(f) **Option 1:** the transfer by the Occupying Power of parts of its own civilian population into the territory it occupies; **Option 2:** the transfer by the Occupying Power of parts of its own civilian population into the territory it occupies, or the deportation or transfer of all or parts of the population of the occupied territory within or outside this territory; **Option 3:** (i) the establishment of settlers in an occupied territory and changes to the demographic composition of an occupied territory; (ii) the transfer by the Occupying Power of parts of its own civilian population into the territory it occupies, or the deportation or transfer of all or parts of the population of the occupied territory within or outside this territory; **Option 4:** no paragraph (f)’: Preparatory Committee (Consolidated) Draft, p 20 (Art. 5 – War crimes – B.(f)).

<sup>576</sup> Hebel and Robinson (n 574) 113 affirm that the Arab group also intended to cover the case where the Occupying Power does not take effective steps to prevent the population from organizing such transfers, an omission which, however, is not clearly implied by the term ‘indirectly’.

as an extension of the scope of article 85 para 4 (a) AP I, but rather as a clarification.<sup>577</sup> As a result, the part of article 8 para. 2 (b) (viii) Rome Statute criminalizing the transfer of the occupying power's own population is identical with article 85 para. 4 (a) Add. Prot. I with the exception of the wording 'directly or indirectly'<sup>578</sup>, the omission of the reference to article 49 GC IV and to a specific standard of *mens rea*.

374 The drafting of the **Elements of Crime** of Article 8(2)(b)(viii) proved difficult too and caused major controversy around the questions whether a transfer must be forcible, whether the crime shall be limited to large-scale transfers of the population and whether the economic situation of the local population must be worsened and their separate identity be endangered by the transfer.<sup>579</sup> A particular difficulty in drafting the elements stemmed from the need to 'translate' the Occupying Power's obligation not to transfer its own population in occupied territory into a criminal offense defining the circumstances under which a particular individual incurs criminal responsibility for his or her conduct.

375 The Preparatory Committee strived to determine, first, for what precise acts an individual becomes criminally responsible for the war crime spelled out in article 8 para. 2 (b) (viii), and, second, in what way – if at all – the Occupying Power needs to be involved in some way. Four different proposals for the elements for article 8 para. 2 (b) (viii)-1 were tabled.<sup>580</sup> The US proposal suggested material as well as mental elements that cannot be found in nor derived from article 49 para. 6 GC IV and article 85 para. 4 (a) AP I, including the requirements that the transfer was compulsory, worsened the economic situation of the local population, endangered their separate identity, and that the perpetrator had a special intent. In addition, the US comment to these proposals suggested that transfers could be justified where serving the 'public order and safety' (article 43 Hague Regulations). Since these

<sup>577</sup> von Hebel, in: Lee (ed.), *Elements of Crimes* (2001) 159.

<sup>578</sup> In the commentary to the Draft of the German Code of Crimes Against International Law (Entwurf eines Gesetzes zur Einführung des Völkerstrafgesetzbuches, Drucksache 14/8524, (2002) <<http://dip21.bundestag.de/dip21/btd/14/085/1408524.pdf>> accessed 19 October 2014) 29, the drafters stated that the provision reflects customary international law and obviously and in any event covers both direct and indirect acts of transfer, which is why the phrase 'directly or indirectly' is not repeated in the Code.

<sup>579</sup> Dörmann, *Elements of War Crimes* (2001) 83 *IRRC* 481 *et seq.*

<sup>580</sup> *Proposal by the United States of America*, UN Doc. PCNICC/1999/DP.4/Add.2 (4 Feb. 1999):

- '1. That the act took place in the course of a military occupation with respect to territory where authority of a hostile army was actually established and exercised.
2. That the accused intended to effect the compulsory transfer, on a large scale, of parts of the population of the Occupying Power into such occupied territory.
3. That the accused effected such transfer of nationals of the Occupying Power into such occupied territory.
4. That the accused intended that such transfer would endanger the separate identity of the local population in such occupied territory.
5. That the transfer worsened the economic situation of the local population and endangered their separate identity.
6. That the transfer was without, and the accused knew it was without, lawful justification or excuse'.

*Proposal by Costa Rica, Hungary and Switzerland*, UN Doc. PCNICC/1999/WGEC/DP.8 (19 July 1999):

'... 2. The perpetrator: (a) Transferred, directly or indirectly, parts of its own population into the territory it occupies';

*Proposal by Japan* UN Doc. PCNICC/1999/WGEC/DP.12 (22 July 1999):

- '1. The act took place in the context of military occupation with respect to territory where authority of a hostile army was established and exercised.
2. The Occupying Power caused the transfer, directly or indirectly, of parts of its own civilian population into the territory it occupies, ...
3. The accused was responsible for such transfer or deportation.

4. Such transfer or deportation was conducted in violation of article 49 of the Fourth Geneva Convention'.

*Proposal by Algeria, Bahrain, Egypt, Iraq, Jordan, Kuwait, Lebanon, the Libyan Arab Jamahiriya, Morocco, Oman, Qatar, Saudi Arabia, the Sudan, the Syrian Arab Republic, Tunisia, the United Arab Emirates and Yemen*, UN Doc. PCNICC/1999/WGEC/DP.25 (10 Aug. 1999):

'... 2. The perpetrator, directly or indirectly:

- (a) Induced, facilitated, participated or helped in any manner in the transfer of civilian population of the Occupying Power into the territory it occupies; ...
3. The perpetrator acted wilfully and knowingly'.

additional requirements would have considerably increased the threshold of the required evidence, they were unacceptable to a great number of delegations. The elements proposed by Arab states specified the forms of an individual's participation in the transfer that may give rise to his criminal responsibility, ie the perpetrator 'induced, facilitated, participated or helped in any manner'.<sup>581</sup> This specification however was considered unnecessary, since Part III of the Rome Statute specifies the possible forms of participation giving rise to responsibility under the Statute and did not gather sufficient support among other delegations. The Japanese proposal was the only one explicitly addressing how the Occupying Power and the perpetrator, respectively, must be involved in the transfer, stating that the Occupying Power 'caused' the transfer, while the accused had to be 'responsible' for such transfer. The proposal by Costa Rica, Hungary and Switzerland (hereinafter 'Swiss proposal') essentially merely replaced the wording of the Rome Statute 'the Occupying Power' by 'the perpetrator'. The formulation that '[t]he perpetrator (a) Transferred ... its own population', however, was orally amended when the Swiss delegation presented it to the Preparatory Commission so as to read 'the perpetrator (a) Transferred, directly or indirectly, parts of the population of the occupying power into the occupied territory it occupies'.<sup>582</sup>

While all four proposals were commented upon, the Swiss proposal became the primary 376 focus of the discussions at the August 1999 session of the Preparatory Commission.<sup>583</sup> The negotiations were increasingly conducted informally between the Arab group and Israel supported by the US. The Arab group opposed the oral amendment of the Swiss proposal by Switzerland and preferred the previous wording, since the amendment explicitly referred to the occupying power and therefore might be interpreted as requiring some form of government involvement. Israel also preferred to keep the wording 'its own population' and to simply add a footnote to the elements according to which '[t]he term transfer needs to be interpreted in accordance with the relevant provisions of international humanitarian law' 405 Delegations eventually decided to keep the original, written formulation of the Swiss proposal, which grammatically is illogical since an individual perpetrator cannot have an 'own population', but ironically allowed for a compromise between the Arab group and Israel (as well as the US).

In contrast with the Rome Statute, article 85 para. 4 (a) Add. Prot. I and article 49 para. 6 377 GC IV, the Elements for article 8 para. 2 (b) (viii) omit the word 'civilian'. The Costa Rican/Hungarian/Swiss delegations, who had presented the initial wording leading to these elements and which already omitted that word, had not meant thereby to indicate any departure from the wording of the Additional Protocol or the Fourth Geneva Convention. The same seems to apply to the delegations participating in the negotiations in Rome. Namely, subsequent to the compromise between the Arab group and Israel (and the US), Turkey had proposed informally to add the word 'civilian' again to the elements of article 8 para. 2 (b) (viii) to bring it into line with the Rome Statute. Yet, this proposal was rejected in order not to reopen the carefully balanced compromise, and not because there was a disagreement on substance.<sup>584</sup>

**bb) Elements of Crime. aaa) Actus reus.** A first element of the war crime of transferring 378 an Occupying Power's population into occupied territory is a *transfer* of persons into

<sup>581</sup> The wording however did not strictly elaborate on the meaning of 'directly or indirectly'. The elements proposed by the Arab states applied the wording 'directly or indirectly' also to the war crime of transferring or deporting population of the occupied territory, which however is inconsistent with the wording of article 8 para. 2 (b) (viii).

<sup>582</sup> *Proposals in relation to elements of article 8(2)(b)(viii) of the Rome Statute of the International Criminal Court*, UN Doc. PCNICC/1999/WGEC/INF/3 (12 Aug. 1999), fn. 1.

<sup>583</sup> The Preparatory Commission session of August 1999 was unable to find agreement on a generally acceptable compromise and merely compiled the four proposals, *Proposals in relation to elements of article 8(2)(b)(viii) of the Rome Statute of the International Criminal Court*, UN Doc. PCNICC/1999/WGEC/INF/3 (12 Aug. 1999).

<sup>584</sup> Israel might have hoped to create an opportunity to argue that certain provisions are not part of customary law. However, the footnote states what in any event applies for all the definitions of the Rome Statute as well as elements thereto and therefore is superfluous.



occupied territory. The wording ‘transfer’ denotes a *physical displacement* that is, as the offense’s objective suggests, of a **certain duration**.<sup>585</sup> An only short-term displacement into the occupied territories, such as a tourist visa, clearly would not suffice.

379 As the definition of the war crime under the Rome Statute as well as article 49 para. 6 GC IV and article 85 para. 4 (a) AP I make it clear that the persons transferred must be **persons belonging to the Occupying Power’s own civilian population**.<sup>586</sup> The relocation of members of the armed forces into the occupied territory to perform military tasks as occupiers does not qualify under article 8 para 2 (b) (viii).<sup>587</sup> However, the contrary would seem to apply if members of the armed forces would establish themselves permanently with their families in private settlements or houses in the occupied territory.

380 The wording ‘parts of its own civilian population’ suggests that the commission of the offense must involve the displacement of a certain **minimum number of individuals**. However, even the settlement of a few individuals would qualify.<sup>588</sup>

381 Since the aim of the provision is to protect the population of the occupied territory, it is **irrelevant whether the transfer is voluntary or not**. It derives from a comparison of the wording used in para 1 of article 49 GC IV with its para 6. While para 1 refers to ‘forcible transfer’, the wording used in para 6 is simply ‘transfer’.<sup>589</sup> The ICJ held in its *Advisory Opinion on Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory* that article 49 GC IV ‘prohibits not only deportations or forced transfers of population such as those carried out during the Second World War, but also any measures taken by an occupying Power in order to organize or encourage transfers of parts of its own population into the occupied territory’.<sup>590</sup>

382 Article 8 para 2 (b) (viii) Rome Statute criminalizes the transfer of the population ‘by the Occupying Power’ without specifying for which precise conduct criminal responsibility incurs for an individual. However, the wording implies some **involvement of the state**.<sup>591</sup> Settlements in occupied territory thus appear to only amount to war crimes if the Occupying Power’s authorities are involved. Isolated individuals buying a house in accordance with the

<sup>585</sup> In the commentary to the Draft of the German Code of Crimes Against International Law (Entwurf eines Gesetzes zur Einführung des Völkerstrafgesetzbuches, Drucksache 14/8524) (2002) 29, the drafters concluded that the transfer must be of a certain duration. <<http://dip21.bundestag.de/dip21/btd/14/085/1408524.pdf>> accessed 19 October 2014.

<sup>586</sup> The wording of the elements ‘the perpetrator (a) Transferred [...] parts of its own population’ may be interpreted in accordance *e.g.* with the analogous German meaning of ‘die eigene Bevölkerung’, which suggests that the perpetrator as well as persons transferred into the occupied territory belong to the same population of the Occupying Power.

<sup>587</sup> While the elements refer only to ‘population’, the Rome Statute refers to ‘civilian population’. While the Elements of Crimes in any event come second to the definitions in the Rome Statute, the above-mentioned drafting history confirms that the omission of the word ‘civilians’ in the elements was not meant to indicate any departure from the Fourth Geneva Convention and Additional Protocol I.

<sup>588</sup> Werle (n 561) note 1226. The German government has taken the view that the transfer of only ‘a few persons’ is sufficient to fulfil the required elements ‘since the objective of the provision is the protection of the civilian population residing in the occupied territory’, stating that this applies also to transfers into uninhabited areas to manifest the state of occupation. See commentary to the Draft of the German Code of Crimes Against International Law (n 585) 29. (translation by author) (‘Da Zweck der Vorschrift der Schutz der im besetzten Gebiet ansässigen Zivilbevölkerung ist, reicht die Überführung einiger weniger, zur Zivilbevölkerung der Besatzungsmacht gehöriger Personen zur Tatbestandserfüllung aus. Dies gilt auch in den Fällen, in denen die Überführung in unbewohnte Gebiete erfolgt, um den Besatzungszustand zu manifestieren’).

<sup>589</sup> Bredt, *Anwendbarkeit des humanitären Völkerrechts im Israel-Palästina-Konflikt* (2009) 113 *et seq.*; Werle (n 561) note 1226; Dörmann, *Elements of War Crimes* (2003) 211. In the judgment 22 October 1979 in the *Elon Moreh* case, the Supreme Court of Israel declared an Israeli settlement to be illegal based on article 52 of the Hague Regulations (which deals with requisitions). It had therefore little bearing on settlements that did not involve requisitions and Article 49 GC IV was not considered at all. *Elon Moreh case*, No. H.C. 390/79, reprinted in Shamgar ‘Legal Concepts and Problems of the Israeli Military Government – the Initial Stage’, in: Shamgar (ed), *Military Government* (1982) 404, 419–26.

<sup>590</sup> ‘Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory’ ICJ Advisory Opinion, ICJ Reports 2004, 136, delivered on 9 July 2004. <<http://www.icj-cij.org/docket/files/131/1671.pdf>> accessed 15 October 2014, para. 120.

<sup>591</sup> *Elements of War Crimes* (2003) 211.



applicable rules (including the law of the occupied territory) and in a wholly private capacity without any incentive by the Occupying Power or coercive measures by that power *vis-à-vis* the local population, would not appear to qualify under article 8 para. 2 (b) (viii) Rome Statute. It is also uncertain whether private actors such as the director of a company moving parts of the Occupying Power's population to settle into the occupied territory or of a company constructing houses in settlements in occupied territory could be made criminally responsible for the offense under article 8 para. 2 (b) (viii).

However, **government involvement may be direct or indirect.** As stated above, the wording 'the transfer, directly or indirectly,' was introduced by the drafters to include transfer policies without direct involvement of the state. Direct transfer would for instance include the provision of government settlement plans for its own population in occupied territory and the construction of housing by the state.<sup>592</sup> Indirect involvement of the Occupying Power would include policies and measures to induce and facilitate migration into occupied territory, such as economic and financial incentives, subsidies, and tax exonerations.<sup>593</sup>

The question remains, whether the **incriminated conduct must be attributable to the Occupying Power** or whether it would be sufficient that the Occupying Power fails to take effective steps to prevent the movement of its population into the occupied territory. Certainly, state agents, including government officials and parliamentarians, incur criminal responsibility under article 8 para. 2 (b) (viii) for conducting, ordering, soliciting or inducing a transfer as well as for aiding, abetting or assisting in its commission for the purpose of its facilitation according to article 25 Rome Statute. They may for instance decide upon the construction of settlements (direct act) or financial subsidies, tax breaks and other indirect transfer policies. Superiors and military commanders may in addition become criminally responsible for acts of subordinates under article 28 Rome Statute.

**bbb) Mens rea.** According to the ICC Elements of Crime, the perpetrator must be aware of 'factual circumstances that established the existence of an armed conflict.' Further, there are no requirements of a special intent that goes beyond the elements of article 30 Rome Statute.<sup>594</sup> The use of the term 'wilful' suggests that indirect intent suffices, which might be relevant in particular for the crime of indirectly transferring own population to occupied territory.<sup>595</sup> The underlying motive for the transfer is irrelevant.<sup>596</sup> Neither the definition under the Rome Statute nor the Elements of Crimes provide any indication for a requirement of a particular motive or special intent.<sup>597</sup>

**b) War crime of deporting or transferring all or parts of the population of the occupied territory.** The war crime of deporting or transferring all or parts of the population of the

<sup>592</sup> Meindersma (1994) 4141 *NethILRev* 31; ICJ Advisory Opinion (n 590) para 120, referring to UN SC resolutions 446 (1979) of 22 March 1979, 452 (1979) of 20 July 1979 and 465 (1980) of 1 March 1980, which described 'Israel's policy and practices of settling parts of its population and new immigrants in [the occupied] territories' as a 'flagrant violation' of the Fourth Geneva Convention (para 5).

<sup>593</sup> ICJ Advisory Opinion (n 590) para. 120; Meindersma (1994) 41 *NethILRev* 31 (n 592) 51; *Commentary German Code of Crimes Against International Law* (2002) (n 585) 29: The Commentary on the German International Crimes Code states that: 'The element of 'transfer' can be fulfilled by indirect or direct acts. A typical direct act of transfer is the settlement of the population of the occupying power in the occupied territory. Indirect acts of transfer are, *inter alia*, the provision of financial or other incentives for citizens of the Occupying Power to settle in the occupied territory'; the original German text reads as follows: 'Die Tathandlung des 'Überführens' kann durch unmittelbare oder mittelbare Handlungen erfüllt werden. Typische unmittelbare Überführungshandlung ist die Ansiedlung der eigenen Bevölkerung im besetzten Gebiet. Als mittelbare Überführungshandlungen sind u. a. die Bereitstellung von finanziellen oder anderen Anreizen für die eigenen Staatsbürger bei Wohnsitznahme im besetzten Gebiet anzusehen.'

<sup>594</sup> von Hebel, in: Lee (ed.), *Elements of Crimes* (2001) 161.

<sup>595</sup> Werle, *Völkerstrafrecht* (2012) 1229; Haslam (2002) 61 *CambridgeLJ* 68.

<sup>596</sup> Werle, *Völkerstrafrecht* (2012), note 1226.

<sup>597</sup> Progress report of the Special Rapporteur Awn Shawkat Al-Khasawneh on the human rights dimensions of population transfer, including the implantation of settlers, UN Doc. E/CN.4/Sub.2/1994/18 (30 June 1994), para 73.

occupied territory within or outside this territory under article 8 para 2 (b) (viii) Rome Statute essentially criminalizes the same conduct as article 8 para 2 (a) (vii) Rome Statute.<sup>598</sup>

- 387 **aa) Normative origin and drafting history.** The deportation or transfer of the population of an occupied territory outside or within that territory violates the basic principle of the law of occupation not to create a factual situation, which is difficult to reverse, in particular with regard to the demographic composition of the population. It also causes severe grievances for the persons uprooted by the transfer or deportation. They have to abandon their homes, lose their property and are often separated from their families.<sup>599</sup> History shows that transfers or deportations of people have often been used by Occupying Powers to enhance their rule over the occupied territory and to weaken its societal fabrics, sometimes as part what became known in the 1990<sup>ties</sup> as ‘ethnic cleansing’.<sup>600</sup>
- 388 The prohibition of transfer and deportation of all or parts of the population of the occupied territory is considered as a **norm of customary international humanitarian law** applicable in international armed conflicts.<sup>601</sup> As early as 1863 the prohibition of the deportation of civilians appeared in the Lieber Code, which provided that ‘private citizens are no longer [...] carried off to distant parts’.<sup>602</sup> The 1907 Hague Regulations, however, did not explicitly prohibit deportations. Commentators suggested that the reason for this omission was that deportations were no longer practiced by ‘civilized nations’ and that the delegations therefore did not include an explicit ban.<sup>603</sup>
- 389 Yet, during both World Wars, mass deportations from territories occupied by Germany were common, in particular to supplement German forced labour and Germans were also deported in the aftermath of the armed conflicts.<sup>604</sup> After World War I, the Responsibilities Commission of the 1919 Peace Conference included ‘deportation of civilians’ in its list of violations of the laws and customs of war to be punished.<sup>605</sup> After the horrible crimes committed during World War II, deportation was criminalized in article 6(b) of the Charter of the International Military Tribunal in Nuremberg. ‘[D]eportation to slave labour or for any other purpose of civilian population of or in occupied territory’ constituted a war crime.<sup>606</sup> In the Nuremberg trials, several defendants were found guilty for the deportation

<sup>598</sup> See Dörmann above Art. 8 para 2 (a) mn 145 *et seq.* Article 8 para 2 (b) (viii) provides that the deportation or transfer of the protected person takes place ‘within or outside the territory’. This however is also the case for article 8 para 2 (a) (vii), since it specifies that the protected persons are deported or transferred ‘to another State or to another location’. The only difference arises from the somewhat different scopes of protected persons under GC IV and AP I. The main difference between the two articles is that under article 8 para 2 (a) (vii) Rome Statute the deportation of even one person qualifies as a war crime, while article 8 para 2 (b) (viii) Rome Statute refers to the deportation and transfer of ‘all or parts of the population of the occupied territory’.

<sup>599</sup> ‘There is doubtless no need to give an account here of the painful recollections called forth by the ‘deportations’ of the Second World War, for they are still present in everyone’s memory. It will suffice to mention that millions of human beings were torn from their homes, separated from their families and deported from their country, usually under inhumane conditions.’ Pictet, *Commentary on the Geneva Convention* (1952–1960), 278.

<sup>600</sup> On ‘ethnic cleansing’ see eg: Pégrier, *Ethnic Cleansing: A Legal Qualification* (2013); Lehmler, *Die Strafbarkeit von Vertreibungen aus ethnischen Gründen im bewaffneten nicht-internationalen Konflikt* (Nomos Baden-Baden 1999); Mulaj, *Politics of Ethnic Cleansing* (2008); Preece (1998) 20 *HumRtsQ* 817.

<sup>601</sup> Köhler, *Das Massenvertreibungsverbot im Völkerrecht* (1999); Henckaerts, *Mass Expulsion in Modern International Law and Practice* (Nijhoff Leiden 1995) 143 *et seq.*; Dawson and Farber, *Forcible Displacement Throughout the Ages* (2012) 49; for more references see: Henckaerts and Doswald-Beck, *Customary, Vol. I* (2005) 457 *et seq.* and *id.* *Customary, Vol. II* (2005) 2908 *et seq.*

<sup>602</sup> *Id.* 2911.

<sup>603</sup> Pictet, *Commentary on the Geneva Convention* (1952–1960) 279; de Zayas (1975) 16 *HarvILJ* 211.

<sup>604</sup> Meindersma (n 592) (1994) 41 *NethILRev* 39 *et seq.*; De Zayas (n 603) 228; Pictet, *Commentary on the Geneva Convention* (1952–1960) 278.

<sup>605</sup> ‘Commission on the Responsibility of the Authors of the War and on Enforcement of Penalties’ (1920) 14 (No 1/2) *AJIL* 114.

<sup>606</sup> Article 5(c) of the 1946 IMT Charter (Tokyo) established individual responsibility for crimes against humanity, including ‘deportation, and other inhumane acts committed against any civilian population, before or during the war.’ Principle VI of the 1950 Nuremberg Principles adopted by the ILC provides that ‘deportation to slave labour or for any other purpose of civilian population of or in occupied territory’ is a war crime and that

of civilians during the war.<sup>607</sup> Deportation is also criminalized under a number of national legislations.<sup>608</sup>

In 1947, the ICRC proposed detailed provisions with regard to deportation and transfer of civilians in occupation, which were largely adopted by the Diplomatic Conference of 1949.<sup>609</sup> Hence, paragraphs 1 to 5 of article 49 GC IV provide for a comprehensive prohibition of deportations and transfers of civilians in occupied territories:

Individual or mass forcible transfers, as well as deportations of protected persons from occupied territory to the territory of the Occupying Power or to that of any other country, occupied or not, are prohibited, regardless of their motive.

Nevertheless, the Occupying Power may undertake total or partial evacuation of a given area if the security of the population or imperative military reasons so demand. Such evacuations may not involve the displacement of protected persons outside the bounds of the occupied territory except when for material reasons it is impossible to avoid such displacement. Persons thus evacuated shall be transferred back to their homes as soon as hostilities in the area in question have ceased.

The Occupying Power undertaking such transfers or evacuations shall ensure, to the greatest practicable extent, that proper accommodation is provided to receive the protected persons, that the removals are effected in satisfactory conditions of hygiene, health, safety and nutrition, and that members of the same family are not separated.

The Protecting Power shall be informed of any transfers and evacuations as soon as they have taken place.

The Occupying Power shall not detain protected persons in an area particularly exposed to the dangers of war unless the security of the population or imperative military reasons so demand.

According to article 147 GC IV and 85(4)(a) AP I these acts are **grave breaches** of the Geneva Convention, unless the security of the civilians involved or imperative military reasons make them absolutely necessary. Further, the prohibition of unlawful deportation of transfer of civilians in occupied territory is contained in numerous military manuals and in the legislation of many states. It is also supported by a number of resolutions adopted by international organisations.<sup>610</sup>

Article 20 of the 1996 ILC **Draft Code of Crimes Against the Peace and Security of Mankind** lists the crime of ‘unlawful deportation or transfer [...] of protected persons’ generally as a violation of international humanitarian law (lit a vii) without referring specifically to the situation of occupation.<sup>611</sup>

‘deportation and other inhuman acts done against any civilian population’ is a crime against humanity. Henckaerts and Doswald-Beck, ii (n 601) (2005) 2911.

<sup>607</sup> eg US Military Tribunal at Nuremberg *Erhard Milch* (20 December 1946–17 April 1947) VII *Law Reports* 27 (1948) in particular 46–47 and 53–58. For references to further trials, see Meron, in: Gomien (ed), *Broadening the Frontiers of Human Rights* (1993) 201.

<sup>608</sup> See eg: ‘Australian Law Concerning Trials of War Criminals by Military Courts’ cited in *Law Reports of Trials of War Criminals* (1948) vol V 95; article 2 para 5 of the French Ordinance of 28 Aug 1944 cited in: (1948) III *Law Reports of Trials of War Criminals* 96, see also 52; article 611 Nos 4 and 5 of the Spanish Military Penal Code (Ley orgánica 10/95 of 23 Nov 1995). The Penal Code of Ethiopia lists as an offence against the law of nations ‘the compulsory movement or dispersion of the population, its systematic deportation, transfer or detention in concentration camps or forced labour camps’, article 282 (c) of the Penal Code of the Empire of Ethiopia of 1957. See also the different regulations conferring jurisdiction over war crimes to different US Military Commissions (1948) III *Law Reports TWC* 106–107; article II of the Chinese War Crimes Law of 24 Oct 1946 considered a war criminal any ‘[a]lien combatants or non-combatants who during a war or a period of hostilities or prior to the occurrence of such circumstances nourish intentions of enslaving, crippling, or annihilating the Chinese Nation by such methods as (a) mass deportation of it nationals’) cited in: (1949) XIV *Law Reports TWC* 153.

<sup>609</sup> Pictet, *Commentary on the Geneva Convention* (1952–1960) 278.

<sup>610</sup> Henckaerts and Doswald-Beck, i (2009) 457 and idem, ii (2009) paras 39–64, 65–156, 204–226.

<sup>611</sup> ICL *Draft Code of Crimes against the Peace and Security of Mankind with commentaries* (51 UN GAOR Supp. (No. 10) at 14, UN Doc A/CN.4/L.532, corr.1, corr.3 1996) YbILC (1996) (vol II part 2) 53.

- 396 Contrary to the crime of ‘transferring parts of the own population to occupied territory by the Occupying Power’, discussed above, the prohibition of the deportation and transfer of protected persons in or from occupied territories was not controversial in the negotiations of the Rome Statute.<sup>612</sup>
- 397 The deportation or transfer of the population of an occupied territory might also amount to the crime against humanity of ‘deportation or forcible transfer of population’ (article 7 (d) Rome Statute)<sup>613</sup> or even the crime of genocide (article 6 Rome Statute), in particular when such displacements are part of an ‘ethnic cleansing’ or ‘scorched earth’ policy.<sup>614</sup>
- 398 **bb) Elements of Crime. aaa) Actus reus.** Article 8 b (viii) Rome Statute criminalizes the act of deporting or transferring ‘all or parts of the population of the occupied territory within or outside this territory’. The displacement must be **forcible**, which is understood as including not only actual physical force but also other means of coercion. It does not apply to voluntary movements of civilians.<sup>615</sup>
- 399 Forcible transfer is prohibited within **the boundaries of occupied territory and outside this territory**.<sup>616</sup> It is often contented that the term ‘deportation’ refers to displacement outside the occupied territory while ‘transfer’ denominates to movements outside such territory.<sup>617</sup> However, the wording of article 45 para 1, article 49 para 6 GC IV and article 85 para 4(a) AP I suggests that transfer can also take place both within<sup>618</sup> and across<sup>619</sup> the boundaries of the occupied territory.
- 400 The destination of the transfer or deportation is irrelevant. Article 49 para 1 GC IV refers to deportations ‘from occupied territory to the territory of the Occupying Power or to that of any other country, occupied or not’.
- 401 Article 8 para 2 (b)(viii) Rome Statute refers to transfer and deportation of ‘all or parts of the population of the occupied territory’ without specifying whether the victims must be civilians and without referring to ‘protected persons’ in particular. However, article 49 para 1 GC IV prohibits only the transfer and deportation of ‘protected persons’, which are, according to article 4 para 1 and 2 GC IV ‘those who, at a given moment and in any manner whatsoever, find themselves, in case of a conflict or occupation, in the hands of a Party to the

<sup>612</sup> Dörmann, ‘Elements of War Crimes’ (2001) 83 *IRRC*; 481; von Hebel, in: Lee (ed.), *Elements of Crimes* (2001) 159.

<sup>613</sup> See Stahn above Art. 7 para 1 (d) and para 2 (d) ‘Deportation or forcible transfer of population’ mn 44 *et seq.*

<sup>614</sup> See Schabas above Art. 6 mn 19–20.

<sup>615</sup> *Prosecutor v. Radislav Krstić*, IT-98-33-T, Judgement, 2 August 2001, paras 519–532. During the drafting of the Geneva Conventions the issue was controversial. See Pictet (n 9) 278: ‘[...] there was some discussion on the wording. The draft submitted by the International Committee of the Red Cross reads: ‘Deportations or transfers of protected persons out of occupied territory are prohibited...’; the Diplomatic Conference preferred not to place an absolute prohibition on transfers of all kinds, as some might up to a certain point have the consent of those being transferred. The Conference had particularly in mind the case of protected persons belonging to ethnic or political minorities who might have suffered discrimination or persecution on that account and might therefore wish to leave the country. In order to make due allowances for that legitimate desire the Conference decided to authorize voluntary transfers by implication, and only to prohibit ‘forcible’ transfers.’ (footnotes omitted).

<sup>616</sup> This goes also for article 85 para 4(a) AP I.

<sup>617</sup> *Prosecutor v. Krstić* (n 615) para 521; ILC Draft Code (n 573) 122; Henckaerts (n 601) 144.

<sup>618</sup> This results first from a systematic reading of the first paragraph of article 49 GC IV in connection with that article’s second paragraph. The second paragraph provides that also a displacement within the occupied territory is ‘[n]evertheless’ allowed under certain circumstances, implying that para 1 also applies to transfers within the occupied territory. Moreover, article 85 para 4 (a) AP I explicitly criminalizes the deportation or transfer within or outside the occupied territory, requiring that such deportation or transfer must be in violation of article 49 GC IV, thereby suggesting that article 49 GC IV also prohibits certain displacements within the occupied territory. Second, the prohibition of forcible transfers also within an occupied territory is confirmed in element 1 for article 8 para 2 (a) (vii) Rome Statute, which provides that one or more persons is deported or transferred ‘to another State or to another location’, meaning another location within the occupied territory.

<sup>619</sup> Zimmermann; in: Sandoz *et al.* (eds.), *Commentary* (1987) 1000, para. 3502; fn. 28; Solf and Cummings (1977) 9 *Case Western Res JIL* 232 *et seq.*; Pictet (n 9) 278 *et seq.* and 59.

conflict or Occupying Power of which they are not nationals.’<sup>620</sup> Article 4 para 4 GC IV makes it clear, that prisoners of war are not protected persons. In principle, article 85 para. 4 (a) AP I protects protected persons against deportations and forcible transfers since the conduct prohibited under it must be ‘in violation’ of article 49 GC IV. Yet, since article 8 para 2 (b)(viii) Rome Statute and its Elements of Crime do not explicitly refer to those articles of the GC IV, the term ‘population’ could include non-civilians as well, in particular since the first part of the sentence explicitly refers to transfer of parts of the Occupying Power’s ‘own civilian population into the territory it occupies’, while the second sentence does not use the term ‘civilian’.

While article 49 para 1 GC IV explicitly includes ‘**individual**’ transfer and deportation, article 8 para 2 (b)(viii) Rome Statute prohibits the transfer and deportation of ‘all or parts of the population’. This wording which corresponds with article 85 para 4 (a) AP I. It clearly deviates from the terms used in the Geneva Conventions, suggests that more than one person must be deported or transferred in order that the act qualifies as a crime under article 8 para 2 (b)(viii) Rome Statute, although transfers and deportations of small numbers of persons may suffice. Similarly, the Security Council has qualified the permanent expulsion by the Occupying Power Israel of nine Palestinian civilians as a deportation.<sup>621</sup>

**bbb) Exceptions.** According to the ICRC Commentary on article 49 GC IV the prohibition of transfers and deportations is absolute and allows of no exceptions, apart from those stipulated in paragraph 2.<sup>622</sup> Concretely, para 2 of article 49 GC IV authorizes the Occupying Power to evacuate an occupied territory wholly or partly ‘when the safety of the population or imperative military reasons so demand’. The ICRC commentary defines evacuations as ‘a provisional measure entirely negative in character’, which is ‘often taken in the interests of the protected persons themselves.’<sup>623</sup> Paras two to five of article 49 GC IV define several requirements for the transfer to be lawful. If these requirements are met the act would not be punishable under article 8 para 2 (b)(viii) Rome Statute either. According to the ICRC Commentary, evacuation of the population by the Occupying Power is for instance allowed and necessary if ‘an area is in danger as a result of military operations or is liable to be subjected to intense bombing’ or if ‘the presence of protected persons in an area hampers military operations’ and only if ‘overriding military considerations make it imperative; if it is not imperative, evacuation ceases to be legitimate.’<sup>624</sup>

Article 49 para 2 (first sentence) GC IV provides that only a ‘given area’ may be evacuated. This suggests that only a specific, geographically limited area may be evacuated.<sup>625</sup> Further, the evacuation must always be a provisional, temporary measure limited to the time-span during which the justifying ground, such as hostilities in the area of initial residence, persists. Article 49 para 2 (third sentence) GC IV correspondingly provides that, ‘as soon as hostilities in the area [where the evacuated persons were evacuated from] have ceased’, they ‘shall be transferred back to their homes’. The Occupying Power consequently may be required to transfer back or repatriate evacuated persons before the end of all hostilities. Additionally, when evacuating or transferring evacuated persons back, the Occupying Power must ensure certain minimum humanitarian standards to the greatest practicable extent, including in particular proper accommodation to receive the displaced persons and satisfactory conditions

<sup>620</sup> According to para 2, ‘[n]ationals of a State which is not bound by the Convention are not protected by it. Nationals of a neutral State who find themselves in the territory of a belligerent State, and nationals of a co-belligerent State, shall not be regarded as protected persons while the State of which they are nationals has normal diplomatic representation in the State in whose hands they are.’

<sup>621</sup> SC Res 608 (14 January 1988).

<sup>622</sup> Pictet, *Commentary on the Geneva Convention* (1952–1960) 279.

<sup>623</sup> *Id.* 280.

<sup>624</sup> *Id.*

<sup>625</sup> The Commentary on article 49 para 2 GC IV surprisingly suggests that even the entire occupied territory can be evacuated, which can hardly have been the intention of the drafters of article 49 para 2 GC IV; Pictet 280.

of hygiene, health, safety and nutrition (article 49 para. 3).<sup>626</sup> Also, article 78 AP I provides that families must not be separated and additional safeguards should be applied to the evacuation of children. Article 49 para. 4 GC IV further provides that the Occupying Power must *inform* the Protecting Power or the ICRC of any transfer or evacuation ‘as soon as it has taken place’.

405 Clearly, compelling protected persons – above all persons from the occupied territory who are in the hands of the Occupying Power – to serve in the armed or auxiliary forces of the Occupied Power or to work outside the occupied territory definitely does not justify any transfer or occupation (article 51 para 2 GC IV). Also, ‘protected persons accused of offences shall be detained in the occupied country, and if convicted they shall serve their sentences therein’ (article 76 para 1 GC IV). The statement that the prohibition against deportation and transfer allows for no exceptions other than those stipulated in article 49 para. 2 GC IV may be of a customary character as regards displacements outside the occupied territory.

406 As regards the prohibition of transfers within the occupied territory, the detention of protected persons or their serving of sentences in a location within the occupied territory other than the detainee’s regular residence is not prohibited.<sup>627</sup> Furthermore, the existing international humanitarian law rules do not appear to address the possible necessity to realize public infrastructure projects particularly in case of a long-term occupation (despite the premise under international law that occupations are to be temporary). In such very exceptional situations, the expropriation of some property and the displacement of a limited number of protected persons may be lawful, insofar it is in the clear interest of the population of the occupied territory and insofar the displaced persons are fully compensated and given free choice of residence within the occupied territory.

407 Conversely, evacuations do not justify ‘transfers of population with the aim of altering the demographic composition of the territory concerned for political, racial or religious reasons or transfers involving the disguised intent to annex the territory.’<sup>628</sup> Displacing people in order to exercise more effective control over a dissident ethnic group<sup>629</sup> as well as scorched earth strategies cannot be justified under article 49 para 2 GC IV.

408 ccc) **Mens rea.** According to the Elements of Crime the perpetrator must have been ‘aware of factual circumstances that established the existence of an armed conflict.’ As for the crime of the transfer by the Occupying Power of parts of its own civilian population into the territory it occupies, there are no requirements of a special intent beyond the elements of article 30 Rome Statute.

## 9. Paragraph 2(b)(ix): Intentionally directing attacks against protected buildings

**Literature:** Arnold, R., ‘The Protection of the Civilian Population from the Effects of Hostilities’, (2004) 3 *HUV-I* 159; Dörmann, K, *Elements of War Crimes under the Rome Statute of the International Criminal Court* (CUP 2003); Elliott, H.W., ‘Open Cities and undefended Places’, (April 1995), *The Army Lawyer* 39; Fenrick, W.J., ‘The Rule of Proportionality and Protocol I in Conventional Warfare’, (1982) 98 *MilLRev* 91; *id.*, ‘Attacking the Enemy Civilian as a Punishable Offence’, (1997) 7 *Duke/Comp&IL* 539; Frigo, M., ‘Cultural Property v. Cultural Heritage: A ‘Battle of Concepts’ in International Law?’, (2004) 86 *IRRC* 367; Frulli, M., ‘The Criminalization of

<sup>626</sup> See also articles 25–27 and 82 GC IV and article 74 AP I. The limitation of the obligation to ensure these standards to ‘the greatest practicable extent’ was intended ‘to cover the contingency of an improvised evacuation of temporary character when urgent action is absolutely necessary in order to protect the population effectively against an imminent and unforeseen danger. If the evacuation has to be prolonged as a result of military operations and it is not possible to return the evacuated persons to their homes within a comparatively short period, it will be the duty of the Occupying Power to provide them with suitable accommodation and make proper feeding and sanitary arrangements’. Pictet (n 9) 281.

<sup>627</sup> See article 76 GC IV and article 70 para 2 GC IV.

<sup>628</sup> Final Report of the Special Rapporteur Mr Al-Khasawneh, Commission on Human Rights, Sub-Commission on Prevention of Discrimination and Protection of Minorities and the Human Rights Dimension of Population Transfer, including the Implantation of Settlers and Settlements, E/CN.4/Sub.2/1997/23, 27 June 1997, para 40.

<sup>629</sup> Junod, ‘Article 17 Additional Protocol II’ (n 619) 1473; Roberts (1990) 84 *AJIL* 44, 83 *et seq.*



Offences against Cultural Heritage in Times of Armed Conflict: The Quest for Consistency,’ (2011) 22 (1) *EJIL* 203; Parks, W.H., ‘Air War and the Law of War’, (1990) 32 *AFLRev* 1; Pforter, D., ‘Article 8(2)(b)(v) – Attacking Undefended Places’, in: R.S. Lee (ed.), *The International Criminal Court – Elements of Crimes and Rules of Procedure and Evidence* (Transnational Publishers 2001); Rogers, A.P.V., *Law on the Battlefield* (MUP 2004); Roberts, A. and Guelff, R., *Documents on the Laws of War* (OUP 3<sup>rd</sup> edn 2000).

Article 8 para. 2 (b) ix ICC Statute qualifies as a serious violation of the laws of war to 409 intentionally direct attacks against buildings dedicated to religion, education, art, science or charitable purposes, historic monuments, hospitals and places where the sick and wounded are collected, *provided they are not military objectives*. Its mirror provision – applicable to non-international armed conflicts – is article 8 para. 2 (e)(iv). It is largely derived from articles 27 and 56 of the Regulations annexed to the 1907 IV HC Respecting the Laws and Customs of War on Land and numerous provisions of the Geneva Conventions of 1949 on the protection of hospitals and where the sick and wounded are collected<sup>630</sup>. It also restates the prohibition contained in the 1954 Hague Convention for the protection of cultural property during armed conflict (HCP) – which was complemented by the 1977 Additional Protocols to the Geneva Conventions of 1949<sup>631</sup> – and its Second Additional Protocol of 1999 (II AP to HCP)<sup>632</sup>.

Since neither the ICC provisions nor the Elements thereto go into the details of the notion of cultural property and the degree of protection recognized thereto by customary law, it is useful to briefly illustrate the current status of the laws of armed conflict (LOAC) in this regard.

a) **The different degrees of protection under the laws of armed conflict.** The LOAC grant 410 different levels of protection, depending on the importance of the cultural property. Basic protection as ‘civilian’ objects is granted to all cultural property not being used for military purposes (so-called civilian-use rationale)<sup>633</sup>, pursuant to the principle of distinction.

Specific norms are then dedicated to cultural property which has an added value for being of great importance to the *cultural heritage of every people*, as provided by definition contained in article 1 HCP<sup>634</sup>.

‘Special’ or ‘enhanced protection’ shall be granted to selected cultural property. 411

Special protection<sup>635</sup> shall be granted to a limited number of refuges intended to shelter movable property, as well as to centers containing cultural property of *very great importance*, which has been entered in a specific ‘International Register of Cultural Property under Special Protection’, maintained by the Director General of UNESCO. Copies shall be provided to the UN Secretary General and the High Contracting Parties<sup>636</sup>.

<sup>630</sup> In particular articles 19–23 GCI, articles 22–23, 34–35 GC II, articles 18–19 GC IV, articles 12 and 53 Add. Prot. I. See also Dörmann, *Elements of War Crimes* (2003) 216.

<sup>631</sup> Article 53 Add. Prot. I, according to which ‘Without prejudice to the provisions of the Hague Convention for the Protection of Cultural Property in the Event of Armed Conflict of 14 May 1954, and of other relevant international instruments, it is prohibited:

(a) to commit any acts of hostility directed against the historic monuments, works of art or places of worship which constitute the cultural or spiritual heritage of peoples; (b) to use such objects in support of the military effort; (c) to make such objects the object of reprisals.

<sup>632</sup> See Werle and Jessberger, *Principles* (2014) mn. 1313–1315.

<sup>633</sup> Frulli (2011) 22 (1) *EJIL* 203, 204.

<sup>634</sup> According to this, the term ‘cultural property’ shall cover, irrespective of origin or ownership: (a) movable or immovable property of great importance to the cultural heritage of every people, such as monuments of architecture, art or history, whether religious or secular; archaeological sites; groups of buildings which, as a whole, are of historical or artistic interest; works of art; manuscripts, books and other objects of artistic, historical or archaeological interest; as well as scientific collections and important collections of books or archives or of reproductions of the property defined above; (b) buildings whose main and effective purpose is to preserve or exhibit the movable cultural property defined in sub-paragraph (a) such as museums, large libraries and depositories of archives, and refuges intended to shelter, in the event of armed conflict, the movable cultural property defined in sub-paragraph (a); (c) centers containing a large amount of cultural property as defined in sub-paragraphs (a) and (b), to be known as ‘centers containing monuments’.

<sup>635</sup> Article 8 of the 1954 HCP; article 53 of Add. Prot. I and article 16 Add. Prot. II to the GCs; Customary International Law, see Roberts and Guelff, *Documents on the Laws of War* (2000) 372.

<sup>636</sup> Article 12 of the Regulations for the Execution of the HCP, attached to the 1954 HCP.

- 412 Pursuant to article 9 HCP, objects under special protection are subject to immunity (article 9), unless they are used for military purposes (waiver; article 8). The immunity shall be withdrawn only in exceptional cases of *unavoidable military necessity*, and only for such time as that necessity continues. This can be established only by the officer commanding a force the equivalent of a division in size or larger. Whenever possible, the opposing Party shall be notified reasonably in advance of the waiver decision and cessations of violations shall also be requested in within a reasonable time. Attack shall, thus, be the last resort. The Party withdrawing immunity shall inform the Commissioner-General for cultural property as soon as possible.
- 413 ‘Enhanced protection’ is a new concept introduced by articles 1 and 10 of AP II to the 1954 HCP, which entered into force in 2000. This shall be granted to property fulfilling cumulatively the following three conditions: a) it shall be considered as *cultural heritage of the greatest importance for humanity*; b) it must be protected by adequate domestic legal and administrative measures recognising its exceptional cultural and historic value and ensuring the highest level of protection; and c) it must not be used for military purposes or to shield military sites and a declaration must have been made by the Party which has control over the cultural property, confirming that it will not be so used. Each High Contracting Party shall submit a list of such property to the Committee for the Protection of Cultural Property in the Event of Armed Conflict established by the II AP to the HCP (art. 24 II AP to the HCP)<sup>637</sup>.
- 414 Depending on the degree of importance, cultural property shall be identified with either a single (ordinary cultural property) or triple distinctive emblem (cultural property under special protection), as defined by art. 16–17 HCP.
- 415 **b) Definition of cultural property and cultural heritage.** There is no universally accepted definition of cultural property or cultural heritage<sup>638</sup>. Attempts to define these notions, however, have been made in the 1954 HCP and most recently by the ICC OTP.
- 416 Pursuant to article 1 1954 HCP, the term ‘cultural property’ shall cover, irrespective of origin or ownership: (a) movable or immovable property of great importance to the cultural heritage of every people, such as monuments of architecture, art or history, whether religious or secular; archaeological sites; groups of buildings which, as a whole, are of historical or artistic interest; works of art; manuscripts, books and other objects of artistic, historical or archaeological interest; as well as scientific collections and important collections of books or archives or of reproductions of the property defined above; (b) buildings whose main and effective purpose is to preserve or exhibit the movable cultural property defined in sub-paragraph (a) such as museums, large libraries and depositories of archives, and refuges intended to shelter, in the event of armed conflict, the movable cultural property defined in sub-paragraph (a); (c) centers containing a large amount of cultural property as defined in sub-paragraphs (a) and (b), to be known as ‘centers containing monuments’.
- 417 The adjective ‘cultural’ is generally used with reference to historic monuments and art works, whereas the term ‘spiritual’ is generally being used with reference to worship places. At the same time it is possible to assign to a cultural value to a church and a spiritual value to a historic monument or work of art<sup>639</sup>. Religious objects may also fall under the protection of Add.Prot. I or the 1954 HCP if they constitute the cultural or spiritual heritage of peoples (Add.Prot. I) or fulfill the criteria of article 1 HCP<sup>640</sup>. In alternative, they may enjoy basic protection as civilian objects under the general principle of distinction. The same holds true for objects dedicated to education and science. For instance, in the *Kordic and Cerkez Case*, the ICTY held that:

‘educational institutions are undoubtedly immovable property of great importance to the cultural heritage of peoples (in the sense of article 1 of the 1954 Hague Convention) in that they are without exception centres of learning, arts, and sciences, with their valuable collections of books and works of

<sup>637</sup> See for details Frulli (2011) 22 (1) *EJIL* 203, 204.

<sup>638</sup> Frulli (2011) 22 (1) *EJIL* 203, 206, with reference to Frigo (2004) 86 *IRRC* 367.

<sup>639</sup> Sandoz et al. (eds.), *Commentary* (1987) 646, Nos. 2064–2065.

<sup>640</sup> Dörmann, *Elements of War Crimes* (2003) 221.

arts and science. The Trial Chamber also notes one international treaty which requires respect and protection to be accorded to educational institutions in times of peace as well as in war (i.e. the Roerich Pact)<sup>641</sup>.

In its ‘article 53’ Report on Mali of 16<sup>th</sup> January 2013, the ICC’s Office of the Prosecutor (ICC OTP)<sup>642</sup> observed that article 8(2)(e)(iv) outlaws violations of the special protection granted to historic monuments, works of art or places of worship which constitute the *cultural or spiritual heritage of peoples*, as reflected in Art. 53 Add. Prot. I. The ICC OTP attempted a definition by stating that ‘the cultural or spiritual heritage covers objects whose value transcends geographical boundaries, and which are unique in character and are intimately associated with the history and culture of the people’. In its view, the religious and historical buildings in Timbuktu, which belong to the World’s Heritage since 23 December 1988, clearly fall within this category<sup>643</sup>.

**c) The Elements of Crime. aa) Actus reus.** Article 8(2)(b)(ix) ICC Statute outlaws intentional attacks against these different types of protected cultural objects, without however providing for different levels of protection<sup>644</sup>. It simply states that specific buildings shall not be the object of attack. A merit, however, is that it does not require any result (damage)<sup>645</sup>. Pursuant to the Elements of Crime, the following criteria must be met:

1. The perpetrator directed an attack
2. The object of the attack was one or more buildings dedicated to religion, education, art, science or charitable purposes, historic monuments, hospitals or places where the sick and wounded are collected, *which were not military objectives*.
3. The perpetrator intended such building or buildings to be the object of the attack
4. The perpetrator was aware of factual circumstances that established the existence of an armed conflict.

The notion of attack refers to the one contained in article 49(1) Add Prot. I to the GCs<sup>646</sup>, which was commented in relation to article 8 para. 2 (b) (v) ICC Statute. It is sufficient that the attack was intentionally directed against one of the following four categories of protected objects<sup>647</sup>: a) cultural objects; b) buildings dedicated to religion; c) other buildings dedicated to education; d) places for the collection of those in need. The inclusion of category d), which has nothing to do with cultural property<sup>648</sup> and which may be covered by article 8 para. 2 (b) (xxiv) ICC Statute (buildings using the distinctive emblems of the GCs) makes article 8 para. 2 (e)(iv) a ‘civil-use’ provision that overlooks the cultural-value approach adopted by Protocol II to the 1954 HCP<sup>649</sup>. This is reflected *inter alia* by the lack of any specific protection granted to movable property, in departure from the 1954 HCP and its AP II. Movable property may be protected in alternative by article 8(2)(a)(iv) and article 8(2)(b)(xiii) on the one hand, or article 8(2)(b)(xvi) and article 8(2)(e)(v) banning pillage, on the other. The first, however, lack specificity, are usually interpreted as referring to immoveable property, and are applicable to international armed conflicts, only<sup>650</sup>. The latter, instead, which were resorted to by the ICC OTP in its ‘Mali Report’<sup>651</sup>, provide for a military necessity justification in their Elements.

<sup>641</sup> *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-T, Judgement, Trial Chamber, 26 Feb. 2001, para. 360.

<sup>642</sup> This is aimed at assessing whether there is reasonable basis to proceed with an investigation. See page 31 of the Report.

<sup>643</sup> See ICC OTP, Situation in Mali, Article 53(1) Report, 16 January 2013, p. 31.

<sup>644</sup> See on this Frulli (2011) 22 (1) *EJIL* 203, 212; Werle and Jessberger, *Principles* (2014) mn. 1316-7.

<sup>645</sup> Pflirter, in: Lee (ed.), *Elements of Crimes* (2001) 163, Dörmann, *Elements of War Crimes* (2003) 215. This is a difference with regard to Art. 3 (d) ICTY Statute.

<sup>646</sup> Dörmann, *Elements of War Crimes* (2003) 216..

<sup>647</sup> Dörmann, *Elements of War Crimes* (2003) 215.

<sup>648</sup> Its basis are Articles 19–23 GC I, articles 22–23, 34–35 GC II, articles 18–19 GC IV, articles 12–13 Add. Prot. I, articles 24–31 Add. Prot. I.

<sup>649</sup> Frulli (2011) 22 (1) *EJIL* 203, 207 and 211.

<sup>650</sup> Frulli (2011) 22 (1) *EJIL* 203, 213.

<sup>651</sup> ICC OTP, Situation in Mali, Article 53(1) Report, 16 January 2013, pp. 24, 31-2.

421 Pursuant to the culture-specific provisions, there are only few very precise situations in which these objects shall lose protected status<sup>652</sup>. Generally, they shall be protected as long as they are not misused by the adverse Party; in case of doubt with regard to their civilian status, they shall be presumed not to be used for military reasons (article 52 para. 3 Add. Prot. I)<sup>653</sup>. Article 1 AP II to the HCP defines as a military objective ‘an object which by its nature, location, purpose, or use makes an effective contribution to military action and whose total or partial destruction, capture or neutralisation, in the circumstances ruling at the time, offers a definite military advantage.’

422 A common feature of the 1954 HCP, its AP II and article 8 para. 2(b)(ix) ICC Statute, is that protected status will be waived if cultural property is used for military purposes. Moreover, in exceptional cases of *unavoidable military necessity*, even the *special* protected status may be waved, for as long as such necessity continues. In this case, advance notice shall be made (article 6 II AP to the HCP; article 11 HCP). In any case, the Parties shall take precautionary measures in attack and against the effects of the hostilities, for instance by choosing the proper means and methods in the exercise of targeting and by removing sensitive property from military locations (Art. 7 and 8 AP II to the HCP).

423 A difference with regard to other LOAC provisions, is that article 8 para. 2 (b)(ix) of the ICC Statute does not proscribe the use of cultural property in support of the military effort or as objects of reprisals (Add. Prot. I), nor its exposure to the risk of becoming military objectives (article 4 of the 1954 HCP, articles 85(4)(d) and 53 Add Prot. I and article 16 AP II)

Since the Elements of Crime are very close to those established by the jurisprudence of the ICTY<sup>654</sup>, it is worth referring to it.

424 **bb) Elements drawn from the ICTY’s jurisprudence.** In *Kordic and Cerkez*, the ICTY interpreted article 3 (d) ICTY Statute, which is very close to article 8 para. 2(b)(ix) of the ICC Statute, in light of article 27 of the 1907 Hague Regulations, article 53 Add. Prot. I, the Roerich Pact and the 1954 HCP. In order to define cultural property, it referred to article 1 HCP<sup>655</sup>.

425 Further elements of the crime under article 3(d) ICTY Statutes were examined in the *Strugar Case*<sup>656</sup>, which dealt with the large scale destruction of the Old Town of Dubrovnik (Croatia), a city that has been on the World Heritage List since 1979, that occurred on 6<sup>th</sup> December 1991. The accused, Pavle Strugar, a retired Lieutenant-General of the then Yugoslav Peoples’ Army (JNA), was convicted to eight years imprisonment for, inter alia, destruction or wilful damage done to cultural property under Articles 3 (d) and 7 (3) of the Statute. The sentence was confirmed by the Appeals Chamber in its judgement of 17<sup>th</sup> July 2008. The Trial Chamber held that since there had been no military objectives in the immediate vicinity, the destruction or damage of property in the Old Town on that day was not justified by military necessity, meaning that it had retained protected status. By reference to the *Naletilić Case*<sup>657</sup>, the Court observed that, contrary to the holdings in *Blaskić*, protection does not require that the concerned institutions are not located in the immediate vicinity of military objectives. By discussion the protection granted to institutions dedicated to *religion*, it held that the crime would be satisfied if: (i) the general requirements of article 3 of the Statute were fulfilled; (ii) the destruction regards an institution dedicated to religion; (iii) the property was not used for military purposes; (iv) the perpetrator acted with the intent to destroy the property<sup>658</sup>. The Trial Chamber observed that there may be a waiver of the

<sup>652</sup> Dörmann, *Elements of War Crimes* (2003) 227.

<sup>653</sup> Frulli (2011) 22 (1) *EJIL* 203, 213.

<sup>654</sup> Kittichaisaree, *International Criminal Law* (2002) 170.

<sup>655</sup> *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-A, Judgement, Appeals Chamber, 17 Dec. 2004, paras. 359 *et seq.*

<sup>656</sup> *Prosecutor v. Strugar*, IT-01-42-T, Judgement, Trial Chamber, 31 Jan. 2005. The findings refer to the Kordić case. For a summary see the Press Release of the ICTY; Doc. CT/P.I.S./932 e, 31 Jan. 2005.

<sup>657</sup> *Prosecutor v. Naletilić and Martinović*, IT-98-34-T, Judgement, Trial Chamber, 31 Mar. 2003, para 604.

<sup>658</sup> *Prosecutor v. Naletilić and Martinović*, IT-98-34-T, Judgement, Trial Chamber, 31 Mar. 2003, para 605.

protection, when the enlisted objects have been used for military purposes<sup>659</sup>. It further concluded that the special protection may not be lost simply because of military activities or installations in the immediate vicinity of the cultural property. In such a case, however, the practical result may be that it cannot be established that the acts which caused destruction of or damage to cultural property were ‘directed against’ that cultural property, rather than the military installation or use in its immediate vicinity<sup>660</sup>. This holds true also under the ICC Statute<sup>661</sup>. In sum, the Trial Chamber concluded that an act will fulfill the elements of the crime of destruction or wilful damage of cultural property, within the meaning of article 3 (d) ICTY Statute and in so far as that provision relates to cultural property, if: (i) it has caused damage or destruction to property which constitutes the cultural or spiritual heritage of peoples; (ii) the damaged or destroyed property was not used for military purposes at the time when the acts of hostility directed against these objects took place; and (iii) the act was carried out with the intent to damage or destroy the property in question<sup>662</sup>. To be noted, however, is that the Elements of Crime of article 8 para. 2(b) (ix) of the ICC Statute do not require actual damage<sup>663</sup>. In the *Jokic Case*, the judges stressed once more that attacks against cultural heritage bear an inherent gravity, in that:

‘The whole of the Old Town of Dubrovnik was considered, at the time of the events contained in the Indictment, an especially important part of the world cultural heritage. It was, among other things, an outstanding architectural ensemble illustrating a significant stage in human history. The shelling attack on the Old Town was an attack not only against the history and heritage of the region, but also against the cultural heritage of mankind’<sup>664</sup>.

**cc) Mens rea.** In the *Blaškić Case*, the Trial Chamber of the ICTY held that:

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‘The damage or destruction must have been committed intentionally to institutions which may clearly be identified as dedicated to religion or education and which were not being used for military purposes at the time of the acts’<sup>665</sup>.

The author must thus have carried out the attack notwithstanding this awareness of the objects’ protected status and their failure to qualify as military objectives. It is not necessary that he made a legal assessment of the protected status. He merely needs to know the factual circumstances, which grant the objects special status. It has been argued that this is unnecessary in light of article 30 ICC Statute. However, the requirement was retained for clarity purposes<sup>666</sup>.

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A parallel provision is contained in article 8 para. 2 (e) (iv) applicable to non-international conflicts, for which the same elements of crime have been drafted.

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## 10. Paragraph 2(b)(x): Prohibition of physical mutilation

**Literature:** Bothe, M., Partsch, K.J., and Solf, W.A., *New Rules for the Victims of Armed Conflicts – Commentary on the Two 1977 Protocols Additional to the Geneva Conventions of 1949* (1982) 109; Dörmann, K., *Elements of War Crimes under the Rome Statute of ICC* (CUP 2003) 229 *et seq.*; LaHaye, E., ‘Article 8(2)(b)(x)’, in: R. S. Lee *et al.* (eds.), *The International Criminal Court – Elements of Crimes and Rules of Procedure and Evidence* (2001) 164 *et seq.*; ICRC Mehring, S., ‘Medical War Crimes’, in: *MPYbUNL* 229–279.

**a) Normative origins, drafting history and impact on the further development of international criminal law.** The prohibition of physical mutilations and unwarranted medical experiments further elaborates the prohibition already contained in article 8 para. 2

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<sup>659</sup> *Prosecutor v. Strugar*, IT-01-42-T, Judgement, Trial Chamber, 31 Jan. 2005, para. 308.

<sup>660</sup> *Prosecutor v. Strugar*, IT-01-42-T, Judgement, Trial Chamber, 31 Jan. 2005, para. 310.

<sup>661</sup> Kittichaisaree, *International Criminal Law*, 170.

<sup>662</sup> *Prosecutor v. Strugar*, IT-01-42-T, Judgement, Trial Chamber, 31 Jan. 2005, para. 308.

<sup>663</sup> *Prosecutor v. Strugar*, IT-01-42-T, Judgement, Trial Chamber, 31 Jan. 2005, para. 307.

<sup>664</sup> *Prosecutor v. Jokic*, Judgement, IT-01-42/1, Trial Chamber, 18 Mar. 2004, at para. 51.

<sup>665</sup> *Prosecutor v. Blaškić*, IT-95-14-T, Judgement, Trial Chamber, 3 Mar. 2000, para. 185. See also *Prosecutor v. Strugar*, IT-01-42-T, Judgement, Trial Chamber, 31 Jan. 2005, para. 311.

<sup>666</sup> Pfrtner, in: Lee (ed.), *Elements of Crimes* (2001) 163; cf. Ambos, *Treatise on ICL II* (2014), 175; Werle and Jessberger, *Principles* (2014), no. 1318.

(a) (ii) of the Statute<sup>667</sup>. The prohibition as contained in article 8 para. 2 (b) (x) of the Statute is largely based on article 11 of the First and article 5 para. 2 (e) of the Second Additional Protocol of 1977. Similar prohibitions are also already contained in article 12 para. 2 of the First and Second Geneva Convention as well as in article 13 para. 1 of the Third Geneva Convention and finally in article 32 of the Fourth Geneva Convention. Those provisions in turn were based on criminal prosecutions that had taken place in the aftermath of World War II<sup>668</sup>. Finally, similar provisions can be found in article 2 (b) of the ICTY Statute ('biological experiments' as a grave breach of the Geneva Conventions), article 4 (a) ICTR Statute and article 3 (a) of the Statute for the Special Court for Sierra Leone ('mutilation' as violation of common article 3 and Add. Prot. II), section 6.1. (b) (x) of UNTAET Regulation 2000/15 on the Establishment of Panels with Exclusive Jurisdiction over Serious Criminal Offences (wording identical to the one contained in the Rome Statute), as well as article 13 (b), No. 10 of the Statute of the Iraqi Special Tribunal (the wording being again identical to the one contained in the Rome Statute, except that it refers to 'persons of another nation').

430 By virtue of article 11 para. 4 of Add. Prot. I any act or omission which seriously endangers the health of a person constitutes a grave breach of the Protocol and under its article 85 para. 5 accordingly a war crime, when committed against a person not belonging to the same side of the conflict as the offender.

431 A provision, related to non-international armed conflict, which is *mutatis mutandis* identical to article 8 para. 2 (b) (x) is contained in article 8 para. 2 (e) (xi) of the Statute<sup>669</sup>, the only difference being that the words 'in the power of an adverse party' were replaced by the words 'in the power of another party to the conflict'.

432 The idea of including a prohibition based on article 11 of Add. Prot. I first appeared in the ICRC proposal formally submitted by New Zealand and Switzerland<sup>670</sup>. A slightly modified version then found its way into a compromise paper which was the outcome of informal consultations among a group of interested countries which was then tabled by Germany<sup>671</sup>. It was in this way then introduced into the Statute as article 8 para. 2 (b) (x).

433 The elements of crimes, adopted by the Assembly of States Parties, provide with regard to the war crime of mutilation that:

1. The perpetrator subjected one or more persons to mutilation, in particular by permanently disfiguring the person or persons, or by permanently disabling or removing an organ or appendage.
  2. The conduct caused death or seriously endangered the physical or mental health of such person or persons.
  3. The conduct was neither justified by the medical, dental or hospital treatment of the person or persons concerned nor carried out in such person's or persons' interest
  4. Such person or persons were in the power of an adverse party.
  5. The conduct took place in the context of and was associated with an international armed conflict.
  6. The perpetrator was aware of factual circumstances that established the existence of an armed conflict;
- respectively with regard to the crime of prohibited medical or scientific experiments that
1. The perpetrator subjected one or more persons to a medical or scientific experiment.
  2. The experiment caused death or seriously endangered the physical or mental health or integrity of such person or persons.

<sup>667</sup> See Dörmann, *article 8 para. 2 (a) (ii)*.

<sup>668</sup> See, Brandt *et al.*, *Judgment of 20 Aug. 1947, Trials of War Criminals, Vol. II, 171 et seq.*; Supreme National Tribunal of Poland, *Judgment of 2 Apr. 1947 (Hoess)*, UNWCC, *Law Reports of Trials of War criminals*, vii, (1947–49) 14 *et seq.*; *Judgment of 17 Apr. 1947 (Milch)*, *Trials of War Criminals, Vol. II, 773 et seq.*

<sup>669</sup> See Zimmermann and Geiß, *article 8 para. 2(e)(xi)*.

<sup>670</sup> UN Doc A/AC.249/1997/WG.1/DP.2, para. 1 (d).

<sup>671</sup> UN Doc A/AC.249/1997/WG.1/DP.23/Rev.1, section B (h).



3. The conduct was neither justified by the medical, dental or hospital treatment of such person or persons concerned nor carried out in such person's or persons' interest.
4. Such person or persons were in the power of an adverse party.
5. The conduct took place in the context of and was associated with an international armed conflict.
6. The perpetrator was aware of factual circumstances that established the existence of an armed conflict.

**b) Persons 'in the power of an adverse party'.** Unlike article 11 of Add. Prot. I, the scope *ratione personae* of which applies to both, persons who are in the power of the adverse party and to any other person who is interned, detained or otherwise deprived of liberty due to the armed conflict, article 8 para. 2 (b) (x) of the Statute extends its protection solely to the first group. Accordingly, any act otherwise proscribed under article 8 para. 2 (b) (x) of the Statute does not come within the jurisdiction of the Court when committed against nationals of a State not a party to the conflict who are present in the territory of a party to the conflict, against nationals of the territorial State itself or against nationals of co-belligerents<sup>672</sup>. Given article 10 of the Statute, they remain, however, protected, where applicable, by article 11 of Add. Prot. I.

The term 'in the power of the adverse party' has to be understood in a broad sense as referring to prisoners of war, other persons held by an adverse party such as mercenaries or members of guerilla groups who have not complied with the requirement to wear their arms openly<sup>673</sup>, civilian internees, persons who have been refused authorization to leave the territory, which is *de facto* under the control of the respective party to the conflict, and finally inhabitants of occupied territories<sup>674</sup>. This broad interpretation of the terms 'in the power of an adverse party' has already been confirmed with regard to the four Geneva Conventions of 1949<sup>675</sup>, and is in line with both the *travaux préparatoires* of the Add. Prot. I<sup>676</sup>, and a teleological interpretation of article 8 para. 2 (b) (x) of the Statute. It has furthermore been confirmed by the ICTY in the *Kovačević* case<sup>677</sup>.

**c) 'physical mutilation'.** Article 8 para. 2 (b) (x) of the Statute does *not* criminalize all acts which are prohibited under article 11 of the Add. Prot. I but solely includes physical mutilations and unwarranted medical and scientific experiments.

The term 'physical mutilations' covers acts such as amputations, injury to limbs<sup>678</sup> and forms of sexual mutilations<sup>679</sup>. This is confirmed by element 1 of the elements of crimes adopted with regard to the war crime of mutilation as contained in article 8 para. 2 (b) (x) of the Statute. Said element provides that the term mutilation covers in particular acts permanently disfiguring the victim, or by permanently disabling or removing an organ or appendage of the victim<sup>680</sup>.

**d) 'medical or scientific experiments of any kind'.** The use of the term 'medical or scientific experiments' prohibits using any of the persons protected under this article as so-called 'Guinea-pigs'. Only such acts are prohibited which do not serve a therapeutic purpose, but which are rather undertaken in order to gain medical or scientific knowledge.

<sup>672</sup> Bothe *et al.* (eds.), *New Rules* (1982) 112.

<sup>673</sup> Bothe *et al.* (eds.), *New Rules* (1982) 111.

<sup>674</sup> Sandoz *et al.*, *Commentary* (1987), mn 468.

<sup>675</sup> ICRC, GC IV *relative to the Protection of Civilian Persons in Time of War*, 47.

<sup>676</sup> See the declaration made by the United States delegation during the diplomatic conference leading to the adoption of the Add. Prot. I, quoted by: Bothe *et al.* (eds.), *New Rules* (1982) 112.

<sup>677</sup> *Prosecutor v. Kovačević*, No. IT-97-24-PT, Prosecutor's Pre-trial Brief, para. 579.

<sup>678</sup> Sandoz *et al.*, *Commentary* (1987), mn 478.

<sup>679</sup> For an example of sexual mutilation see the decision in, *Prosecutor v. Tadić*, No. IT-94-1-T, Judgment, Trial Chamber, 7 May 1997, para. 45.

<sup>680</sup> See also *Prosecutor v. Issa Hassan Sesay, Morris Kallon, Augustine Gbao*, SCSL-04-15-T, Judgment, Trial Chamber I, 2 March 2009, (RUF Case), para. 180.

- 439 e) ‘neither justified by the medical, dental or hospital treatment of the person concerned nor carried out in his or her interest’. Any of the acts proscribed can be only justified if indicated by the State of health of the person concerned or undertaken in his or her interest. Thus, for example, amputations might be lawful if performed to save the life or overall health of the patient. On the other hand, medical and scientific experiments solely undertaken for scientific purposes cannot be considered to be either justified by the medical, dental or hospital treatment of the person concerned nor can they be considered to be carried out in his or her interest. The sole exception could be such treatments that, while involving a certain degree of experimentation, constitute the sole possibility to save the life of the patient and are thus indicated by the health of the individual<sup>681</sup>.
- 440 Notwithstanding the fact that a Swiss proposal<sup>682</sup> to define situations where the conduct in question is neither justified by the medical, dental or hospital treatment of the person concerned nor carried out in his or her interest by using language from article 11 of the Add. Prot. I was not formally adopted, it may still be said that this definition encapsulates the very notion of medical or scientific experiments. This is confirmed by the fact that said formula, which refers to ‘any medical procedure which is not indicated by the state of health of the person concerned and which is not consistent with generally accepted medical standards which would be applied under similar medical circumstances to persons who are nationals of the Party conducting the procedure and who are in no way deprived of liberty’ is now contained in footnote 46 added to the text of element 3 of the respective element of crime.
- 441 f) ‘which cause death to or seriously endanger the health of such person or persons’. Under article 8 para. 2 (b) (x) of the Statute the relevant act must have either caused the death or must have seriously endangered the health of a given person. Conversely, the Special Court for Sierra Leone has dismissed this requirement in the context of a non-international armed conflict as superfluous with respect to Article 3 of its Statute, arguing that albeit contained in article 11 para. 4 of Add. Prot. I, it does not form part of the violation under common article 3 and article 4 para. 2 of Add. Prot. II<sup>683</sup>. Indeed, article 8 para. 2 (c) (i), unlike article 8 para. 2 (b) (x) and article 8 para. 2 (e) (xi), does not contain such a result requirement. Accordingly, the war crime contained in article 8 para. 2 (c) (i) does not require that the conduct caused death or seriously endangered the physical or mental health of the victim<sup>684</sup>. While a deadly outcome of either a mutilation or an experiment is evident, the other alternative of seriously endangering the health of a given person is of less specificity. It is also noteworthy that this requirement applies to both alternatives, acts of mutilations and scientific experiments. This is, in particular, not only confirmed by the French text of the statutory provision which uses the plural (‘et qui entraînent la mort’) but also by the fact that the elements of crimes with regard to both, acts of mutilations and scientific experiments, contain the almost identical element 2<sup>685</sup>.
- 442 It must be noted, however, that element 2 related to the war crime of medical or scientific experiments unlike element 2 related to the war crime of mutilation, more closely follows the wording of article 11 para. 4 of Add. Prot. I, by also encompassing experiments which seriously endanger the physical or mental *integrity* of a person covered by said provision. This may be understood as indicating that even such experiments which on the long-term do not endanger the *health* of the victim of the experiment, but which nevertheless still entail a significant intrusion into the victim’s physical integrity are also covered by the elements of crimes. This raises the question, however, whether the Assembly of States Parties, by

<sup>681</sup> Bothe *et al.* (eds.), *New Rules* (1982) 114.

<sup>682</sup> PCNICC/1999/WGEC/DP.8.

<sup>683</sup> *Prosecutor v. Alex Brima et al.*, SCSL-04-16-T, Judgment, Trial Chamber II, 20 June 2007 (AFRC Case), para. 725. See also SCSL, *Prosecutor v. Sesay, Kallon, Gbao*, SCSL-04-15-T, Trial Judgment, 2 March 2009, para. 182.

<sup>684</sup> Dörmann, *Elements of War Crimes* (2003) 396.

<sup>685</sup> See also LaHaye, *Article 8(2)(b)(x)*, in: Lee *et al.* (eds.), *Elements of Crimes* (2001) 164 *et seq.*

adopting the elements of crimes under article 9 of the Statute may broaden the scope of application of the provisions of the Rome Statute.

It is also important to note that article 8 para. 2 (b) (x) does not contain the requirement that the act under consideration has indeed *affected* the health of the person concerned. Instead, it is sufficient that the health is *endangered* by the respective act. Such endangering requires that the act or omission causes an objective danger in the concrete case which is attributable to the alleged offender and which could have easily turned into a violation of the health of the victim. It follows, that any action that has then actually resulted in such an injury would accordingly *a fortiori* fulfill the requirements of article 8 para. 2 (b) (x)<sup>686</sup>.

The term ‘seriously’ seems to indicate both, that the health (respectively the integrity) of the victim was *clearly* endangered and that the danger involved was also of some *magnitude*<sup>687</sup>.

Given the normative context on which article 8 para. 2 (b) (x) of the Statute is based, *i. e.* article 11 of the Add. Prot. I, it seems appropriate to consider that the notion of health embraces both, physical *and* mental health. This is confirmed by element 2 of the elements of crimes adopted with regard to the provision under consideration, which with regard to both, the war crime of mutilation and that of medical or scientific experiments, extends to the physical as well as to the mental health of the victim.

g) **Irrelevance of consent.** Footnote 46 of the elements of crimes applicable to both, the war crime of mutilation and the one of scientific experiments clarifies in line with article 11 para. 2 of Add. Prot. I (‘even with their consent’), if ever there was need, that consent may not serve a defense to this crime<sup>688</sup>.

## 11. Paragraph 2(b)(xi): Perfidious killing or wounding\*

**Literature:** Adam S., *Kriegslisten und Perfidiieverbot in der Geschichte des Kriegsaktionenrechts* vor Abschluss der Haager Landkriegsordnung von 1899 (Peter Lang 1992); Fleck, D., ‘Kriegslisten und Perfidiieverbot’, in: *id.* (ed.), *Beiträge zur Weiterentwicklung des humanitären Völkerrechts für bewaffnete Konflikte* (1973) 105; *id.*, ‘Ruses of War and Prohibition of Perfidy’, (1974) 13 *RDPMDG* 269; Furrer, H.-P., *Perfidie in der Geschichte und im heutigen Kriegsvölkerrecht* (1988); Gimmerthal, M., *Kriegslist und Perfidiieverbot im Zusatzprotokoll vom 10. Juni 1977 zu den vier Genfer Rotkreuz-Abkommen von 1949 (Zusatzprotokoll I)* (1990); Hall, M.T., ‘False Colors and Dummy Ships: The Use of Ruse in Naval Warfare’, (Summer 1989) *NavalWarColRev*, reprinted in: J.N. Moore and R.F. Turner (eds.), ‘Readings on International Law from the Naval War College Review 1978–1994’, (1995) 68 *USNavalWarCollegeIL Studies*; Rusinova, V., ‘Perfidy’, in: R. Wolfrum (ed.), *MPIL* (OUP 2008); Oeter, S., ‘Methods and Means of Combat’, in: D. Fleck (ed.), *The Handbook Of Humanitarian Law In Armed Conflicts* (1995); Politakis, G.P., ‘Stratagems and the Prohibition of Perfidy with a Special Reference to the Law of War at Sea’, (1993) 45 *AustrianJPubLL*; Dehn, J.C., ‘Permissible Perfidy? Analysing the Colombian Hostage Rescue, the Capture of Rebel Leaders and the World’s Reaction’, (2008) 6 *JICJ*; Roach, A., ‘Ruses and Perfidy Deception during Armed Conflict’, (1991–1992) 23 *UTolLRev* 395; Madden, M., ‘Of Wolves and Sheep: A Purposive Analysis of Perfidy Prohibitions in International Humanitarian Law’, (2012) 17 *JCSL* 439; Green, B.D., ‘Bridging the Gap That Exists for War Crimes of Perfidy’, (2010) 2010 *Army Law* 45; Watts, S., ‘Law-of-War Perfidy’, (2014) 219 *MillRev* 106; Ipsen, K., ‘Ruses of War’, in: R. Wolfrum (ed.), *MPIL* (OUP 2010); Meron, T., *Bloody Constraints – War and Chivalry in Shakespeare* (1998); ‘Goyau, G., *L’église catholique et le droit des gens*’, 6 *RCADI* 139; Lieber, F., *Instructions for the Government of Armies of the United States in the Field*, originally published as U.A. War Department, Adjutant General’s Office, General Orders No. 100 (24 Apr. 1863), reprinted in: D. Schindler and J. Toman (eds.), *The Laws of Armed Conflicts* (3<sup>rd</sup> ed. 1988) 10; de Preux, J., ‘Article 37, 40, 44, 46 Add. Prot. I,’ in: Y. Sandoz *et al.* (eds.), *Commentary on the Additional Protocols of 8 June 1977 to the Geneva Conventions of 12 August 1949* (1987); Ipsen, K., ‘Perfidy’, in: R. Bernhardt (ed.), *Encyclopedia of Public International Law*, ii (1995) 978; M. Bothe *et al.*, ‘Die Genfer Konferenz über humanitäres Völkerrecht, Verlauf und Ergebnisse’, (1978) 38 *ZaöRV* 24; Fleck, D., ‘Ruses of War and Prohibition of Perfidy’, (1974) 12 *Revue de Droit Penal Militaire et de Droit de la Guerre* 278; Solf, W., ‘Article 37, 40 Add. Prot. I,’ in: M. Bothe *et al.* (eds.), *New Rules for Victims of Armed Conflicts – Commentary on the Two 1977 Protocols Additional to the Geneva Conventions of 1949* (Nijhoff 1982) 204; Thomas, A.R. and Duncan, J.C. (eds.), *Annotated Supplement to the Commander’s Handbook on the Law of Naval Operations* (1999); *San Remo Manual on International Law*

<sup>686</sup> For details see Ambos, *article 25*.

<sup>687</sup> See for a similar approach, Sandoz, *et. al.*, *Commentary*, (1987) mn 478: ‘clearly and significantly endangered’.

<sup>688</sup> See also LaHaye, *Article 8(2)(b)(x)*, in: Lee *et al.* (eds.), *Elements of Crimes* (2001) 16.

\* The authors are indebted to Jérôme Massé for his research assistance.

*Applicable to Armed Conflicts at Sea*, (1995) 209 IRRC; Kalshoven, F., *Assisting the Victims of Armed Conflict and Other – Disasters* (1989); David, E., *Principes de Droit des Conflicts Armés* (3<sup>rd</sup> ed. 2002); Zimmermann, B., 'Article 85 Add. Prot. I', in: Sandoz *et al.* (eds.), *Commentary on the Additional Protocols of 8 June 1977 to the Geneva Conventions of 12 August 1949* (1987); Kalshoven, F., 'Reaffirmation and Development of International Humanitarian Law Applicable in Armed Conflicts: The Diplomatic Conference, Geneva 1974–1977, Part II, (1978) IX *NethYbLL*; Fenrick, J., 'Introductory Report', in: W. Heintschel von Heinegg (ed.), *The Military Objective and the Principle of Distinction in the Law of Naval Warfare* (1991); Mechelynck, A., *La Convention de La Haye* (1915); Triffterer, O., 'Kriminalpolitische und dogmatische Überlegungen zum Entwurf gleichlautender 'Elements of Crimes' für alle Tatbestände des Völkermordes', in: B. Schünemann *et al.* (eds.), *Festschrift für Claus Roxin zum 70. Geburtstag am 15. Mai 2001* (2001); 'Zum Beachtungsanspruch des Völkerstrafrechts in staatlichen Rechtssystemen', in: Landesgruppe Österreich der Internationalen Strafrechtsgesellschaft (AIDP) (ed.), *Internationale Strafgerichtshöfe und Menschenrechte* (2007).

- 447 a) **Normative origins and drafting history.** The wording of article 8 para. 2 (b) (xi) is identical to article 23 sub-para. b of the 1907 Hague Regulations and was included in the Statute without any debate on its content or scope of application. The prohibitions of perfidy (and treachery) are among the oldest principles of international humanitarian law. They were derived from the principle of chivalry<sup>689</sup>, and reflect customary international law<sup>690</sup>.
- 448 While article 23 (b) Hague Regulations does not define the notion of 'treachery', the chapeau of article 37 para. 1 Add. Prot. I provides a general definition of perfidy under contemporary international law. Various other provisions of international law prohibit, or are directly related to the prohibition against treacherous or perfidious acts in international armed conflict, in particular articles 23 sub-para. f, 24, 33 para. 3, 34, 35, 40 and 41 of the Hague Regulations and articles 38, 39, 44 para. 3, 46 para. 3 and 85 para. 3 (f) Add. Prot. I<sup>691</sup>.
- 449 Some of these provisions qualify the abuse of particular protective signs recognized under humanitarian law to exploit the adversary's respect of them as an act of perfidy, since such an act may seriously undermine the respect of these signs designed to minimize suffering and damage by identifying protected persons and objects. The perfidious use of protective signs recognized by the Conventions or the Additional Protocol is a grave breach under article 85 para. 3 (f) Add. Prot. I. The perfidious use of such signs may not only qualify as a war crime of perfidy under article 8 para. 2 (b) (xi), but also as the war crime of improperly using internationally protected signs under article 8 para. 2 (b) (vii). Perfidy or treachery in the context of armed conflict has also been criminalized in domestic legislations<sup>692</sup>.
- 450 At the negotiations within the Preparatory Commission on the Elements of War Crimes, it was broadly agreed that article 8 para. 2 (b) (xi) must be understood as criminalizing perfidy, or at least as criminalizing certain forms of perfidy, and that the definition of perfidy under article 37 Add. Prot. I should be taken as the basis to interpret the elements of this offence<sup>693</sup>.

<sup>689</sup> On custom, chivalry and perfidy, see Meron, *Bloody Constraints – War And Chivalry In Shakespeare* (1998), for instance, 11–15. As early as during the 13<sup>th</sup> century, Thomas d'Aquino distinguished permissible ruses from ruses that were prohibited because a promise was given or a wrong fact affirmed, cited in: Goyau (1925) 6 *RCADI* 139. See also Mike Madden who states that the rule already existed during the 7<sup>th</sup> century, Madden, (2012) 17 *JConfSecL* 441.

<sup>690</sup> See *Prosecutor v. Tadić*, IT-94-1-AR72, Decision on the Defence Motion for Interlocutory Appeal, Appeals Chamber, 2 Oct. 1995, para. 125, in which the Appeals Chamber of the ICTY cites the prohibition of perfidy as an example of a general principle of customary international law. Already the Lieber Instructions of 1863 prohibited perfidy in its articles 16 and 65, while admitting deception in its article 101, see Lieber, *Instructions for the Government of Armies of the United States in the Field*, originally published as U.S. War Department, Adjutant General's Office, General Orders No. 100 (24 Apr. 1863), reprinted in: Schindler and Toman (eds.), *The Laws of Armed Conflicts* (3<sup>rd</sup> ed. 1988) 10. See also article 18 (b)–(d) of the 1880 Oxford Manual and article 13 (b) of the 1874 Brussels Declaration and Henckaerts and Doswald-Beck, *Customary International Humanitarian Law* (2009) 221.

<sup>691</sup> See in addition articles 12 para. 4, 28 paras. 1–3, 51 para. 7, 53 (b) Add. Prot. I and articles 6 and 8–11 of the 1954 Hague Convention for the Protection of Cultural Property in the Event of Armed Conflict. The Geneva Conventions do not directly regulate the prohibition of perfidy as it is a rule regarding the conduct of warfare (so-called Hague Law).

<sup>692</sup> See, e.g., Chapter 22, § 6, No. 2 of the Swedish Penal Code (defining as a crime against international law the killing or injuring of an opponent by means of treachery or deceit).

<sup>693</sup> The proposals by the United States, by Costa Rica, Hungary and Switzerland and by Japan for elements of this war crime all suggested to apply definitions of perfidy wholly or partly based on the definition in article 37

b) **The principle.** Even in armed conflicts combatants may not use any form of deception. 451  
The prohibition of perfidy originally derives from a general appeal to the chivalry and good faith of combatants not to betray the good faith of the adversary, even in times of war. One concrete example under contemporary international humanitarian law is for instance the prohibition to abuse protective signs and rules of international humanitarian law designed to minimize suffering and damage and protect certain persons and objects.

c) **Treachery and perfidy.** aa) **Treacherous as a synonym of perfidious.** Article 8 para. 2 452  
(b) (xi) Rome Statute criminalizes the *treacherous* killing or wounding individuals belonging to the hostile nation or army. The elements for this war crime make it clear that it must be understood as prohibiting the killing or wounding an adversary *by resort to perfidy* as defined under article 37 para. 1 Add. Prot. I<sup>694</sup>.

This clarification of the meaning of the term ‘treacherously’ in article 8 para. 2 (b) (xi) is 453  
justified for the following reasons. First, the concept of treachery raises several questions as to what it covered even at the time of its inclusion in the Hague Regulations. It is even less clear what the concept would prohibit under contemporary humanitarian law. States negotiating the First Additional Protocol at the 1974–1977 Diplomatic Conference, while reaffirming and further developing the concept contained in article 23 (b) Hague Regulations, replaced the term of ‘treachery’ by ‘perfidy’<sup>695</sup> and defined the latter’s meaning. Several authors consider that the prohibition of article 23 (b) Hague Regulations has been replaced or partially modified by articles 37–39 Add. Prot. I<sup>696</sup>. Others suggest that article 23 (b) Hague Regulations today must be interpreted as referring to the concept of perfidy<sup>697</sup>.

Second, treachery often is understood as referring to a breach of allegiance or loyalty of a 454  
subject *vis-à-vis* his own state or nation<sup>698</sup>. This interpretation of treachery thus has little to do with humanitarian law rules regulating the conduct of hostilities in times of armed conflict *vis-à-vis* adversaries. International law does not appear to prohibit acts of treason within the own lines<sup>699</sup>. In 1946, an Australian Military Court has listed examples of acts of war treason such as giving information to the enemy or conspiracy against the own armed forces<sup>700</sup>. This confirms that ‘acts of war treason’ are not violations of humanitarian law,

Add. Prot. I for the interpretation of the offence. See *Proposal by Costa Rica, Hungary and Switzerland*, UN Doc. PCNICC/1999/WGEC/DP.8 (19 July 1999), *Proposal by Japan* UN Doc. PCNICC/1999/WGEC/DP.12 (22 July 1999), *Proposal by the United States of America*, UN Doc. PCNICC/1999/DP.4/Add.2 (4 Feb. 1999).

<sup>694</sup> This had already been suggested by Cottier, *article 8 para. 2 (b) (xi)*, in the First Edition of this Commentary 219 *et. seq.* (mn 116–118).

<sup>695</sup> J. de Preux however holds that the term perfidy was favored because the French term ‘*trahison*’ was too restricted in its meaning, De Preux, *Article 37 Add. Prot. I*, 431–432 (paras. 1488–1489).

<sup>696</sup> Ipsen, in: Bernhardt (ed.), *Encyclopedia* 978.

<sup>697</sup> See, e.g., Bothe *et al.*, (1978) 38 *ZaöRV* 24; Fleck (1974) 13 *RDPMDG* 278 (for whom article 23(b) Hague Regulations ‘implies that it is forbidden to take advantage of the ‘good faith’, that is to say of the trust and confidence of individuals belonging to the hostile army or nation’).

<sup>698</sup> *New Shorter Oxford English Dictionary* 3379 (2<sup>nd</sup> ed. 1993).

<sup>699</sup> Oppenheim and Lauterpacht, *International Law* (1912) 314. ‘International Law gives a right to belligerent to use [espionage and war treason]’, Australian Military Court at Rabaul, *Ohashi et al.* (1948) *V Law Reports* 28.

<sup>700</sup> ‘War treason consists of all such acts (except hostilities in arms on the part of the civilian population, spreading of seditious propaganda by aircraft, and espionage) committed within the lines of a belligerent as are harmful to him and are intended to favour the enemy. War treason may be committed, not only in occupied enemy country, or in the zone of military operations, but anywhere within the lines of a belligerent.

The following are the chief cases of war treason that may occur:

- (1) Information of any kind given to the enemy;
- (2) Voluntary supply of money, provisions, ammunition, horses, clothing, and the like, to the enemy;
- (3) Any voluntary assistance to military operations of the enemy, be it by serving as guide in the country, by opening the door of a defended habitation, by repairing a destroyed bridge, or otherwise;
- (4) Attempting to induce soldiers to desert, to surrender, to serve as spies, and the like; surrender, and espionage offered by soldiers;
- (5) Attempting to bribe soldiers or officials in the interest of the enemy, and negotiating such bribe;
- (6) Liberation of enemy prisoners of war ...;
- (7) Conspiracy against the armed forces, or against individual officers and members of them;



since they pertain to acts against members of the own party to the conflict which often take place far from the battlefield, including in states where no armed hostilities are conducted.

455 Third, the terms perfidy and treachery can be understood as synonyms<sup>701</sup>.

456 Fourth, delegations in Rome hardly intended to criminalize disrespectful behavior of loyalty towards the own troops as a war crime to be prosecuted by the ICC as a most serious crime.

Therefore, it is submitted that article 8 para. 2 (b) (xi) indeed prohibits perfidious acts: Here, the term ‘treacherously’ must be understood as referring to the concept of *perfidy* under contemporary international law.

457 **bb) Definition of perfidy.** Elements 1 and 2 for article 8 para. 2 (b) (xi) Rome Statute provide:

- ‘1. The perpetrator invited the confidence or belief of one or more persons that they were entitled to, or were obliged to accord, protection under rules of international law applicable in armed conflict.
2. The perpetrator intended to betray that confidence or belief’.

458 The elements therefore mirror the widely accepted definition of perfidy provided by the second sentence of article 37 para. 1 Add. Prot. I<sup>702</sup>. Perfidious acts thus involve a breach of good faith in the context of an armed conflict deliberately induced in order to gain a military advantage<sup>703</sup>. The ‘requirement of a specific intent to breach the adversary’s confidence sets perfidy apart from an improper use, making perfidy a more serious violation of international humanitarian law’.<sup>704</sup> However, it is not any good faith that is protected<sup>705</sup>, but only confidence invited with regard to a *protection provided for by international humanitarian law*: The ‘victim’ is induced to either trust that he or she is entitled to protection under humanitarian law, or that he or she must accord such protection to the perpetrator<sup>706</sup>. This

(8) Wrecking of military trains, destruction of the lines of communication or of telegraphs or telephones in the interest of the enemy, and destruction of any war material for the same purpose;

(9) Intentional false guidance of troops by a hired guide, or by one who offered his services voluntarily; (10) Rendering courier, or similar, services to the enemy’.

*Ohashi et al.* (1948) V *Law Reports* 29. For other sources confirming that one or more of these acts must be considered as acts of (war) treason, see, e.g., Solf, in: Bothe *et al.* (eds.), *New Rules* (1982) 204 (bribing a member of the armed forces of an adversary State to assassinate his or her commander); Oppenheim and Lauterpacht, *International Law* (1912) 314 (‘(1) Information of any kind given to the enemy. (2) Voluntary supply of money, provisions, ammunition, horses, clothing, and the like to the enemy. ... (6) Liberation of enemy prisoners of war. ...’). It has furthermore been argued that article 23 (b) Hague Regulations also prohibits recruiting hired killers, placing a price negotiating desertion, on the head of an adversary or offering a reward for the capture of an adversary ‘dead or alive’, proscription and outlawry of an adversary, without however, precluding attacks on individual soldiers or officers, U.S. Army, *Field Manual* 27–10, para. 31. See also Greenspan, *The Modern Law* (1953) 317.

<sup>701</sup> For instance, U.S. Army, *Field Manual*, No. 31 uses perfidy and treachery as synonym terms of the international law of armed conflict. *The Oxford English Dictionary* (2<sup>nd</sup> ed. 1989), defines treachery as, *inter alia*, act of perfidy or treason.

<sup>702</sup> The definition of perfidy in paragraph 111 of the San Remo Manual is virtually identical to the Protocol’s definition. The definition found at Rule 65 of the ICRC study corresponds verbatim with the prohibition found at article 37(1) Add. Prot. I.

<sup>703</sup> See also the explanation of Oppenheim and Lauterpacht which is often cited as the ‘classical explanation’: ‘whenever a belligerent has expressly or tacitly engaged, and is therefore bound by a moral obligation, to speak the truth to an enemy, it is perfidy to betray his confidence, because it constitutes a breach of good faith’, Oppenheim and Lauterpacht, *International Law* (6<sup>th</sup> ed. 1944) 430; Lieber defined perfidy indirectly by stating that a ruse permits of ‘such deception as does not involve the breaking of good faith either positively pledged, regarding agreements entered into during the war, or supposed by the modern law of war to exist’, 1863 Lieber Code, article 15.

<sup>704</sup> Henckaerts and Doswald-Beck, *Customary International Humanitarian Law* (2005) 223.

<sup>705</sup> A general rule protecting any good faith would not provide a precise guideline to distinguish perfidious acts of deception from lawful deception, that is, ruses of war.

<sup>706</sup> See de Preux, in: Sandoz *et al.* (eds.), *Commentary* (1987) 435–436 (para. 1500); Solf, in: Bothe *et al.* (eds.), *New Rules* (1982) 204–205; Ipsen, in: Bernhardt, *Encyclopedia* (1997) 978; *German Joint Services Regulations* (Zentrale Dienstvorschrift) 15/2 (1992), para. 472 (defining perfidy as ‘acts misleading the adverse party into the



includes entitlements or obligations to accord protection under international law applicable in naval warfare<sup>707</sup>, even if the law on perfidy and permitted ruses of war may be somewhat different in naval warfare. The German Joint Services Regulations for instance defines perfidy as ‘acts misleading the adverse party into the belief that there is a situation affording protection under international law’<sup>708</sup>.

Drawing on the definition of article 37 para. 1 Add. Prot. I<sup>709</sup>, it is therefore proposed that perfidious acts are *acts inviting the confidence of an adversary to lead him to believe that he is entitled to, or is obliged to accord, protection under the rules of international humanitarian law, with intent to betray that confidence.*

**cc) Permitted ruses of war.** However, deception is not generally prohibited. So-called ruses of war have always been permitted<sup>710</sup>. Article 37 para. 2 First Add. Prot. defines ruses of war as ‘acts which are intended to mislead an adversary or to induce him to act recklessly but which infringe no rule of international law applicable in armed conflict and which are not perfidious because they do not invite the confidence of an adversary with respect to protection under that law’. The essential distinction between perfidy and ruses of war, *i.e.* non-perfidious deception, is thus that the latter do not invite the confidence of an adversary with respect to a protection under the law of armed conflict and do not violate any other rule of this law.

Deceiving the adversary about the military strength and location of the own forces and the own intentions and plans has always been practiced. Traditional and lawful tactics to mislead the adversary and to induce him to act recklessly are the use of camouflage, decoys, mock operations, and misinformation<sup>711</sup>, for instance by transmitting false or misleading messages or signals<sup>712</sup>, as well as surprise attacks, simulating inactivity, use of small units to simulate large forces, and putting up dummy weapons, installations or vehicles<sup>713</sup>. The possibilities of deception have become even more varied with today’s optical, electronic and other technical means.

Other measures which are not condemned by the prohibition of perfidy, but which are not considered to be ruses of war, include the use of spies and secret agents<sup>714</sup>, encouraging defection or insurrection among enemy civilians or desertion, surrender or rebellion among enemy combatants<sup>715</sup>, and corrupting enemy soldiers or civilians by bribes.

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belief that there is a situation affording protection under international law’), reprinted in in Fleck (ed.), *Handbook IHL* (1999). Article 15 in connection with article 16 of the 1863 Lieber Code, defines perfidy indirectly by stating that ‘such deception as does not involve the breaking of good faith either positively pledged, regarding agreements entered into during the war or supposed by the modern law of war to exist’ is allowed.

<sup>707</sup> See de Preux, in: Sandoz *et al.* (eds.), *Commentary* (1987) 435, para. 1500, fn. 25; Thomas and Duncan (eds.), *Annotated Supplement* (1999) 510, fns. 5 and 6, para. 12.2.

<sup>708</sup> *German Joint Services Regulations* (Zentrale Dienstvorschrift) 15/2 (1992), No. 472, reprinted in: Oeter, in: Fleck (ed.), *Handbook* (1995) 200.

<sup>709</sup> The San Remo Manual contains a definition with almost identical terms as article 37 para. 1 Add. Prot. I, San Remo Manual on International Law Applicable to Armed Conflicts at Sea, Prepared by international lawyers and naval experts convened by the International Institute of Humanitarian Law, adopted in June 1994, (1995) 309 *IRevRC*, para. 111.

<sup>710</sup> See article 101 of the Lieber Code, article 14 of the Brussels Declaration and article 24 of the 1907 Hague Regulations. See generally Politakis (1993) 45 *AustrianJPubIL* 3 253; Bourdoncle, *De l’influence des Ruses sur l’évolution du droit de la guerre* (1958) 31–133.

<sup>711</sup> See article 37 para. 2 second sentence Add. Prot. I.

<sup>712</sup> Unless this would constitute a prohibited improper use of the signals enumerated under article 8 para. 2 (b) (vii), and unless it does not otherwise amount to a perfidious act.

<sup>713</sup> See Hall (Summer 1989) *NavalWarColRev*, reprinted in: Moore and Turner (eds.) (1995) 68 *USNavalWar-CollegeILStudies* 491 *et seq.*; Oeter, in: Fleck (ed.), *Handbook* (1995) 199–200; Solf, in: Bothe *et al.* (eds.), *New Rules* (1982); de Preux, in: Sandoz *et al.* (eds.), *Commentary* (1987), para. 1521. See also the extensive lists of military manuals, *e.g.*, U.S. Army, *Field Manual*, No. 51; Swiss Army, *Manuel Des Lois Et Coutumes De La Guerre* (1963).

<sup>714</sup> See article 39 para. 3 Add. Prot. I; article 24 of the 1907 Hague Regulations; de Preux, in: Sandoz *et al.* (eds.), *Commentary* (1987), para. 1766.

<sup>715</sup> However, the assassination of a particular individual arguably may be considered to be an act of treason.

463 d) **Examples of perfidious acts.** Largely based on article 37 para. 1 Add. Prot. I<sup>716</sup>, the following are examples of perfidious acts (provided they result in killing or wounding individuals belonging to the hostile nation or army):

- *The feigning of civilian, non-combatant status*<sup>717</sup>. The distinction between civilians and combatants is central to the law of armed conflict, and attacks on civilians are prohibited<sup>718</sup>. Consequently, feigning such protected status may amount to an act of perfidy. However, article 44 para. 3 Add. Prot. I recognizes that there are situations of armed conflicts where an armed combatant cannot distinguish himself from the civilian population (a guerrilla combatant in occupied territories or in wars of national liberation), and provides that he does not commit a perfidious act if he carries his arms openly during each military engagement and during the time he is visible in a military deployment preceding the launching of an attack<sup>719</sup>.
- *The feigning of protected status by the use of internationally recognized symbols* such as the flag of truce, of signs, emblems or uniforms of the United Nations, or of the distinctive emblems of the Geneva Conventions<sup>720</sup>. Article 85 para. 3 (f) Add. Prot. I makes it a grave breach of the Protocol to perfidiously use, in violation of article 37 Add. Prot. I, the protective signs recognized by the Conventions or the First Protocol, insofar death or serious injury to body or health is caused. This includes<sup>721</sup>:
  - the distinctive emblems of the Geneva Conventions, including non-visual signals<sup>722</sup>;
  - other protective signs and emblems recognized by the Geneva Conventions<sup>723</sup>;
  - the flag of truce<sup>724</sup>;
  - emblems of cultural property<sup>725</sup>;
  - signs, emblems or uniforms of the United Nations<sup>726</sup>;
  - signs, emblems or uniforms of a neutral or other State not party to the conflict<sup>727</sup>;
  - other internationally recognized protective signs,<sup>728</sup> including other signs recognized by the Geneva Conventions and the First and Third Additional Protocols<sup>729</sup>.

<sup>716</sup> See also the San Remo Manual which states that '[p]erfidious acts include the launching of an attack while feigning: (a) exempt, civilian, neutral or protected United Nations status; (b) surrender or distress by, e.g., sending a distress signal or by the crew taking to life rafts', San Remo Manual on International Law Applicable to Armed Conflicts at Sea, Prepared by international lawyers and naval experts convened by the International Institute of Humanitarian Law, adopted in June 1994, (1995) 309 *IRvRC* para. 111.

<sup>717</sup> Article 37 para. 1 (c) Add. Prot. I.

<sup>718</sup> See Dörmann, *article 8 para. 2 (b) (i)*.

<sup>719</sup> See de Preux, in: Sandoz *et al.* (eds.), *Commentar* (1987), paras. 1691–1715; Kalshoven, *Assisting The Victims of Armed Conflict and Other Disasters* (1989); David, *Principes* (3<sup>rd</sup> ed., 2002) 358–371.

<sup>720</sup> Articles 37 para. 1 (a) and 85 para. 3 (f) Add. Prot. I.

<sup>721</sup> Cf. Zimmermann, in: Sandoz *et al.* (eds.), *Commentary* (1987) 998–999, paras. 3494–3499. Various states have complied with the obligation to provide for criminal jurisdiction over perfidious use of internationally recognized and protected signs, see, e.g., article 386 of the 1994 Penal Code of the Republic of Slovenia; article 612 para. 4 of the Spanish Military Penal Code (Ley orgánica 10/95 of 23 Nov. 1995).

<sup>722</sup> See article 38 para. 1 (first sentence) Add. Prot. I as well as article 18 para. 5 Add. Prot. I and articles 3, 7–9 of Annex I to Add. Prot. I.

<sup>723</sup> See article 6 of Annex I to GC IV (hospital and safety zones); article 66 para. 4 Add. Prot. I and article 16 of Annex I to Add. Prot. I ('international distinctive sign of civil defence'). See also article 56 para. 7 Add. Prot. I and article 17 of Annex I to Add. Prot. I ('international special sign for works and installations containing dangerous forces'); articles 59 para. 6 and 60 para. 5 Add. Prot. I (signs agreed upon between parties to the conflict for non-defended localities or demilitarized zones).

<sup>724</sup> Article 38 para. 1 (second sentence) Add. Prot. I.

<sup>725</sup> *Ibid.*

<sup>726</sup> Articles 37 para. 1 (d) and 38 para. 2 Add. Prot. I.

<sup>727</sup> Articles 37 para. 1 (d) and 39 Add. Prot. I.

<sup>728</sup> An example of perfidious use of such other protective signs may be to feign distress by giving a signal of SOS or MAYDAY (recognized by the Radio Regulation of the International Telecommunications Union), see para. 111(b) of the San Remo Manual. Even the use of signs agreed upon bilaterally, such as signs identifying non-defended localities and demilitarized zones (articles 59 and 60 Add. Prot. I), to incite confidence with intent to betray that confidence may be perfidious.

<sup>729</sup> See articles 85 para. 3 (f) and 38 para. 1 Add. Prot. I.

Improperly using a flag of truce, the flag or the military insignia and uniform of the enemy or of the United Nations, or the distinctive emblems of the Geneva Conventions constitutes a war crime under article 8 para. 2 (b) (vii) Rome Statute insofar resulting in death or serious personal injury<sup>730</sup>.

- *The feigning of an intent to surrender*<sup>731</sup>, *to cease fire*, or *to negotiate a truce*. Beyond the misuse of a flag of truce criminalized by article 8 para. 2 (b) (vii)<sup>732</sup>, declaring or otherwise clearly demonstrating to the enemy that one demands a cease fire or suspension of arms, while intending to betray him, may constitute an act of perfidy<sup>733</sup>. Furthermore, persons who express an intention to surrender must be recognized as persons *hors de combat* and may not be made the object of an attack<sup>734</sup>. The categorical prohibition to attack this category of persons calls for the criminalization of the abuse of their protection, and the feigning of an intent to surrender with an intention to betray the adversary's confidence in order to kill or wound him thus clearly amounts to a perfidious act. However, it seems less certain that prisoners of war who attack their guards while they are being detained would commit an act of perfidy criminalized under the ICC Statute<sup>735</sup>. If combatants have surrendered, have been disarmed and are in custody of the adversary party to the conflict, they most likely did not surrender with an intent to kill or wound the guards, and prisoners of war do not feign any entitlement to protection<sup>736</sup>.
- *The feigning of an incapacitation by wounds or sickness*<sup>737</sup>, or *of distress*. A person who has been rendered unconscious or is otherwise incapacitated by wounds or sickness and therefore is incapable of defending himself is a person *hors de combat* and therefore may not be made the object of attack<sup>738</sup>. Again, as a counterpart to this fundamental protection, feigning to be *hors de combat* with an intent to kill or wound the enemy whose confidence was invited is an act of perfidy and a war crime under this provision. Similarly, the feigning of distress, in particular by misuse of internationally protected or recognized distress signals such as SOS or MAYDAY<sup>739</sup>, evokes the obligation to aid and rescue those in distress, and consequently its abuse with an intent to betray the confidence of the enemy constitutes an act of perfidy.
- *The feigning of belonging to a neutral or other State not party to the conflict by the use of their signs*. Such feigning is prohibited by article 39 para. 1 Add. Prot. I, is an act of perfidy according to article 37 para. 1 of the Protocol, and seems to be a grave breach according to article 85 para. 3 (f) of the Protocol<sup>740</sup>.
- *The feigning of belonging to the enemy by the use of signs of the enemy*<sup>741</sup>? Feigning to be a member of the adversary's or another States' armed forces is not directed at feigning a protection under international humanitarian law<sup>742</sup>, and therefore does not constitute

<sup>730</sup> See Cottier, *article 8 para. 2 (b) (vii)*.

<sup>731</sup> See article 37 para. 1 (a) Add. Prot. I.

<sup>732</sup> See Cottier, *article 8 para. 2 (b) (vii)*.

<sup>733</sup> While the protection of the white flag may still be of importance in face-to-face negotiations, today's warfare is conducted with modern means of technological communication and conduct of warfare without eye-sight is common. Radio messages may be more effective and more commonly used to signal a desire to cease fire, negotiate or surrender. On the new challenges of electronic warfare in regard to improper or perfidious use of signs, see Politakis (1993) 45 *AustrianJPubl* 3 301–306.

<sup>734</sup> See Cottier, *article 8 para. 2 (b) (vi)*.

<sup>735</sup> de Preux, in: Sandoz et al. (eds.), *Commentary* (1987), para. 1504, fn. 34, considers it 'not very likely' that such attacks are acts of perfidy.

<sup>736</sup> Such acts may, however, compromise the protection under the Third Geneva Convention and under article 41 Add. Prot. I.

<sup>737</sup> Article 37 para. 1 (b) Add. Prot. I.

<sup>738</sup> See Cottier, *article 8 para. 2 (b) (vi)*.

<sup>739</sup> See *Radio Regulation of the International Telecommunications Union*.

<sup>740</sup> Zimmermann, in: Sandoz et al. (eds.) *Commentary* (1987), mn 3497.

<sup>741</sup> Article 39 para. 2 Add. Prot. I.

<sup>742</sup> In this regard, the United States proposal at the first session of the Preparatory Committee to consider the improper use of the adversary's signs as a war crime, 'e.g., if the use of an enemy uniform does ... cause

perfidy in the strict sense<sup>743</sup>. Furthermore, it has always been controversial to which degree feigning to belong to the enemy's forces is unlawful. According to article 8 para. 2 (b) (vii), which criminalizes the 'improper use' of the flag, military insignia or uniform of the adversary, such acts may give rise to criminal responsibility<sup>744</sup>. The Preparatory Commission might usefully address the issue to what degree feigning to be a member of the adversary's armed forces gives rise to criminal responsibility.

465 e) 'Killing or wounding ... individuals belonging to the hostile nation or army'. Perfidy *per se* does not amount to a war crime under the jurisdiction of the ICC, as article 8 para. 2 (b) (xi) only criminalizes *killing or wounding* by resort to perfidy. The conduct must result in death or injury to complete the crime. This is confirmed by the element 3 of this war crime. The Statute does not require any qualified level of the injury<sup>745</sup>. It may be furthermore recalled that article 25 para. 3 (f) Rome Statute provides also for criminal responsibility for unsuccessful attempts if the perpetrator has taken 'action that commences [the crime's] execution by means of a substantial step'. In contrast to article 37 para. 1 Add. Prot. I, capturing by resort to perfidy is not covered by article 8 para. 2 (b) (xi) Rome Statute.

466 The confidence created by the perfidious act must have been used to kill or injure (element 4). As the Elements of Crimes confirm, a perpetrator must have participated both in the invitation of the confidence as well as the killing or injuring to be punishable for perfidious killing or injuring. Standing besides a fellow soldier holding up a white flag to deceive the adversary, and then killing an adversary by betraying that confidence so created, would be a sufficient participation in the invitation of the confidence.

Article 8 para. 2 (b) (xi) applies only to the killing or wounding of individuals belonging to the hostile nation and army. This includes both combatants and civilians of the adversary party.

## 12. Paragraph 2(b)(xii): Quarter\*

467 a) **Normative origins and drafting history.** This provision draws on article 23 (d) of the 1907 Hague Regulations and was included in the ICC Statute without any debate on its substance. The consideration underlying the prohibition of declarations that there shall be no survivors is analogous to the aim of the prohibition to kill or wound persons *hors de combat* criminalized under article 8 para. 2 (b) (vi) Rome Statute: When a combatant surrenders, is wounded, or is otherwise incapable of defending him- or herself, he is no threat anymore and it would therefore violate fundamental principles of humanitarian law to kill him or her. To deny quarter provides no (proportional) military advantage as it is sufficient to render the adversary *hors de combat*<sup>746</sup>.

468 Initially, the rule by which the conquered adversary must not be exterminated was applied only to peoples of the same race or religion, not being applied with regard to strangers. Up to the eighteenth century, belligerents often declared that they would not make any prisoners if

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detrimental belief in an obligation or protection arising under the law of armed conflict', *Proposal by the United States*, UN Doc. PCNICC/1999/DP.4/Add.2 (4 Feb. 1999) 11, presents some difficulty.

<sup>743</sup> Article 37 Add. Prot. I does not list the feigning to be a member of the adversary's or another State's armed forces among the examples of perfidy, and article 39 regulates such acts slightly different from the treatment of internationally protected signs in articles 37, 38 and 85 para. 3 (f) Add. Prot. I., Kalshoven (1978) IX *NethYbIL* 163, seems to consider the feigning to be a member of the adversary's armed forces not an act of perfidy but of treachery, while Solf, in: Bothe *et al.* (eds.), *New Rules* (1982) 204, considers article 39 para. 2 as prohibiting the *perfidious* use of the enemy insignia.

<sup>744</sup> See Cottier, *article 8 para. 2 (b) (vii)*.

<sup>745</sup> The U.S. had proposed that the result needs to be 'death or serious injury', *Proposal by the United States of America*, UN Doc. PCNICC/1999/DP.4/Add.2 (4 Feb. 1999) 11–12. This requirement of a heightened level of injury was not adopted by the Preparatory Committee.

\* The authors are indebted to Jérôme Massé for his research assistance.

<sup>746</sup> A practice of denying quarter even tends to stiffen the resistance of the adversary and may in addition prompt the adversary to adopt a similar policy. Solf, in: Bothe *et al.* (eds.), *New Rules* (1982) 217.

the people in besieged fortresses would continue to obstinately defend themselves<sup>747</sup>. However, the prohibition against ‘declaring that no quarter will be given’ has since become well established and now reflects customary international law<sup>748</sup>.

The 1919 Responsibility Commission listed giving no quarter among the violations to be prosecuted (No. 28). Several accused in post-World War II trials were convicted for the war crime of denying quarter<sup>749</sup>. This offense also constitutes a war crime under the municipal law of several states<sup>750</sup>.

At and prior to the Rome Conference, there was virtually no debate on the content of the war crime adopted as article 8 para. 2 (b) (xii) Rome Statute. During the negotiations of the elements for this ICC war crime<sup>751</sup>, both the US<sup>752</sup> and the Swiss<sup>753</sup> proposals constituted the basis for discussion.

Declaring or ordering not to give any quarter may amount to another war crime, and in particular the war crime of killing persons *hors de combat* (article 8 para. 2 (b) (vi) Rome Statute), insofar the perpetrator incurs command responsibility under article 28 Rome Statute or insofar the perpetrator ordered, solicited or induced such killing and the killing in fact occurs or is attempted (article 25 para. 3 (b) Rome Statute). The course of conduct criminalized under article 8 para. 2 (b) (xii) Rome Statute thus is largely covered by the war crime of killing or wounding persons *hors de combat* covered by article 8 para. 2 (b) (vi).

**b) Material elements. aa) Declaration, order or threat.** Article 8 para. 2 (b) (xii) Rome Statute criminalizes the act of ‘declaring’ that no quarter will be given. However, this term

<sup>747</sup> While the Lieber Code generally prohibited giving no quarter, it did not rule it out under certain exceptional circumstances. Cf. articles 60–71, 1863 Lieber Code. Article 60 stated in part that ‘[i]t is against the usage of modern war to resolve, in hatred and revenge, to give no quarter. No body of troops has the right to declare that it will not give, and therefore will not expect, quarter; ...’.

<sup>748</sup> See, e.g., article 23 (d) Hague Regulations; article 40 Add. Prot. I; de Preux, in: Sandoz et al. (eds), *Commentary* (1987) 474, para. 1589. See also Henckaerts and Doswald-Beck, *Customary International Humanitarian Law* (2005) 161: in rule 46 the ICRC also refers to the Oxford Manual and the Brussels Declaration.

<sup>749</sup> A British Military Court found an accused guilty of ‘committing a war crime ... in that he ... in violation of the laws and usages of war gave orders to [his] platoon that no prisoners were to be taken and that any prisoners taken were to be shot’, British Military Court at Hamburg, *Wickman* (1949) XV *Law Reports* 133. In another war crimes trial it was decided that the mere giving of an order that subordinate submarine commanders were to destroy ships and their crews was a serious violation of the laws and customs of war, British Military Court in Hamburg (1951) *Ann. Dig.* (Year 1946) 64, *Moehle Case*, (1949) IX *Law Reports* 75, 78 and 80. In the *Peleus Trial*, a Commander of a German submarine was sentenced to death for having ordered the killing of survivors of a sunken merchant vessel, an order carried out by four others who killed survivors on rafts, British Military Court at Hamburg, *Eck et al.* (1947) I *Law Reports* 2 and 13. S.S. Brigadeführer Kurt Meyer was found to have committed a war crime in that he, ‘in violation of the laws and usages of war, incited and counseled troops under his command to deny quarter to Allied troops’, Meyer (1948) IV *Law Reports* 98 and 108. See also British Military Court at Brunswick, *Von Falkenhorst* (1949) XI *Law Reports* 18–30. See also Fenrick, in: Heintschel von Heinegg (ed.), *The Military Objective* (1991) 11–17.

<sup>750</sup> See, e.g., *U.S. Commander’s Handbook* (1999), para. 6.2.5, section 4 (regarding the ‘[d]enial of quarter (i.e., killing or wounding an enemy hors de combat or making a genuine offer of surrender)’ as a ‘representative’ war crime under international law). ‘Directions to give no quarter’ also constituted war crimes under the Australian War Crimes Law, (1948) V *Law Reports* 96, and the Netherlands East Indies Statute Book Decree No. 44 of 1946, (1948) XI *Law Reports* 94.

<sup>751</sup> On the drafting history relevant to particular elements, see below, article 8 para. 2 (b) (ii) and (iii).

<sup>752</sup> *Proposal by the United States of America*, UN Doc. PCNICC/1999/DP.4/Add.2 (4 Feb. 1999)13:

- ‘1. [Link with armed conflict].
2. That the accused was a person in command who had force under the accused’s effective command and control or authority and control.
3. That the accused made a declaration or gave an order to those subordinate forces that any bona fide surrender by the enemy be refused, even if it would be reasonable to accept, and that all enemy persons proffering surrender be killed.
4. That in so declaring or ordering, the accused intended that his or her stated intent be executed.
5. That one or more persons were killed by forces acting in furtherance of the declaration of the accused’.

<sup>753</sup> *Proposal by Costa Rica, Hungary and Switzerland*, UN Doc. PCNICC/1999/WGEC/DP.8 (19 July 1999);

- ‘1. [Link with armed conflict]
2. The perpetrator ordered that these shall be no survivors, threatened an adversary therewith, or conducted the hostilities on this basis’.

must be understood to include also forms of expression other than a formal declaration. As the elements of this war crime point out, the provision prohibits ‘declarations’ as well as ‘orders’ that no quarter shall be given. In addition, an explicit *threat* that no quarter will be given, typically with a view to provoke an immediate surrender or to terrorize the adversary, also appears to amount to a declaration prohibited under article 8 para. 2(b) (xii). However, the Elements are not entirely clear on this point. On the one hand, element 2 suggests that a declaration or order may be ‘given in order to *threaten* an adversary’ (emphasis added). On the other hand, however, element 3 requires that ‘[t]he perpetrator was in a position of effective command or control over the subordinate forces *to which the declaration or order was directed*’<sup>754</sup>.

473 Does the war crime of declaring that no quarter shall be given under article 8 para. 2 (b) (xii) Rome Statute extend to the act of *conducting hostilities on that basis*? While article 40 Add. Prot. I entitled ‘Quarter’ (also) reaffirms article 23 (d) Hague Regulations, it not only prohibits ‘to order that there shall be no survivors’ and ‘to threaten an adversary therewith’, but also ‘to conduct hostilities on this basis’<sup>755</sup>. However, does article 40 Add. Prot. I restate the meaning of article 23 (d) Hague Regulations under modern humanitarian law<sup>756</sup>.

474 At the Preparatory Committee the Swiss proposal consisting of interpreting article 8 2 (b) (xii) Rome Statute to also subsume the actual conduct of hostilities on the basis that there shall be no survivors did not find sufficient support. The proposal to add the wording ‘or conducted hostilities on that basis’, which essentially repeats article 40 Add. Prot. I, was oppose by several delegations at the Preparatory Committee and consequently was not included. In any event, this restrictive view (insofar it would be upheld by the ICC) would not overly limit the Court’s jurisdiction, since the conduct of hostilities on the basis of not leaving survivors is likely to regularly amount (also) to the war crime of killing or wounding persons *hors de combat* covered by article 8 para. 2 (b) (vi) Rome Statute.

475 **bb) Specific content of the declaration, order or threat.** According to the Rome Statute, the declaration, order or threat must express that ‘no quarter will be given’. The meaning of the term ‘quarter’ in article 23 (d) Hague Regulations likely derives from its designation of the quartering and the accommodation of troops; denying quarter thus would mean not to provide such accommodation and security, and, by implication, life<sup>757</sup>. Article 40 Add. Prot. I as well as the elements to this war crime suggest that the meaning of the prohibition to deny ‘quarter’ is restricted to ‘*leaving no survivors*’<sup>758</sup>. This interpretation appears appropriate in the context of defining ‘one of the most serious crimes of international concern’. Thus, declaring ‘that no quarter will be given’ must be understood, in the context of article 8 para. 2 (b) (xii) Rome Statute, as referring to not sparing the conquered adversaries’ lives, meaning killing or leaving to a foreseeable death all conquered adversaries, including those proffering a *bona fide* surrender or persons that are otherwise *hors de combat*.

476 The elements appear to also cover contingent orders or declarations (‘leaving no survivors if X or Y does not happen’), as the elements explicitly cover declarations with an intent to threaten the adversary.

<sup>754</sup> Emphasis added. Threatening the adversary however would not usually be considered as a declaration directed to the own subordinate forces, and it is not necessary that the threat is also directed to the own forces. The ambiguity might have resulted from the fact that the wording ‘to threaten an adversary’ was added at the end of the informal negotiations.

<sup>755</sup> Paragraph 43 of the San Remo Manual contains the identical wording as article 40 Add. Prot. I. The ‘Explanations’ to that paragraph 43 state that the inclusion of this rule is ‘merely an affirmation that the provision concerned is already applicable to naval warfare’, and that ‘[t]he present text is a further development of [article 23 (d) Hague Regulations], Doswald-Beck (ed.), *San Remo Manual* (1994) 118–119.

<sup>756</sup> See Solf, in: Bothe *et al.* (eds.), *New Rules* (1982) 216–217 (‘Article 40 reaffirms, in more modern language, the prohibition of the 1907 Hague Regulations, Art. 23(d)’).

<sup>757</sup> See De Preux, in Sandoz *et al.* (eds.), *Commentary* (1987) 475, para. 1591, fn. 8; Mechelynck, *La Convention De La Haye* (1915) 245.

<sup>758</sup> Emphasis added. The plenary meeting of the 1974–77 Conference confirmed that the content of article 40 Add. Prot. I was perfectly in accordance with its title ‘quarter’, OR, Vol. VI, 103–104 (CDDH/SR.39, paras. 67–69).



While the war crime of denying quarter does not appear to prohibit ‘harshness’ in killing 477  
adversary combatants, it seems not necessarily limited to prohibiting the killing of persons  
that are *hors de combat*<sup>759</sup>, in contrast to article 8 para. 2 (b) (vi). As *de Preux* implies, the  
prohibition to deny quarter might also be considered to limit the conduct of warfare against  
combatants and the use of both conventional and other weapons<sup>760</sup>. Certainly, the prohibi-  
tion does not imply that particular weapons *per se* are illegal. However, to some degree, the  
rule of proportionality also applies with regard to attacking combatants and with regard to  
the way weapons are used; the deliberate and pointless extermination of adversary comba-  
tants may constitute disproportionate casualties as compared to the military advantage  
anticipated if it would be feasible and sufficient to only render the adversary *hors de*  
*combat*<sup>761</sup>. Based on this argument, the war crime under article 8 para. 2 (b) (xii) Rome  
Statute of ordering that there shall be no survivors could be considered to criminalize to  
some extent serious violations of the prohibition to use means or methods of warfare of a  
nature to cause superfluous injury or unnecessary suffering.

In the *von Ruchteschell* case, the Judge Advocate advised the Military Court in 1947 that 478  
‘even if they found that no signal indicating surrender had been received by the armed raider  
the accused could still be convicted if they came to the conclusion that he deliberately or  
recklessly avoided any question of surrender by making it impossible for the [targeted] vessel  
to make a signal’<sup>762</sup>. Based on this consideration it appears arguable that an attack in a way  
not leaving any possibility for surrender could amount to the war crime of denying quarter if  
the refusal of a possibility to signal surrender, or the killing of all of the adversaries, (clearly)  
did not represent any (proportional) military advantage, which might however for instance  
be the case when surprise or speed are critical to the attack’s success.

Element 3 and the comment to the elements for article 8 para. 2 (b) (xii) proposed by the 479  
United States would have made such interpretation difficult<sup>763</sup>. However, neither element 3  
nor the comment have been retained.

**cc) Position of effective command or control of perpetrator.** At the Preparatory Com- 480  
mittee negotiations, several delegations wanted to ensure that declarations or orders that  
were not serious, such as jokes or declarations that obviously could not be effective because of  
a lack of control or influence over forces, would not amount to the war crime of denying  
quarter under the Rome Statute. Hence, element 3 requires – partly inspired by US proposals  
– that the perpetrator must have been ‘in a position of effective command or control over the  
subordinate forces to which the declaration or order was directed’. This requirement limits  
the criminal responsibility to those declarations that in fact may be expected to exert some  
influence on the subordinate forces and to be implemented or leading to an increased  
disregard of humanitarian duties. Declarations of a soldier lacking any command or control  
over other soldiers would thus not qualify under article 8 para. 2 (b) (xii). A position of *de*  
*facto* command or control over forces however suffices<sup>764</sup>.

<sup>759</sup> The famous Commando Order of Hitler of 18 October 1942 for instance provided that ‘all enemy troops encountered by German troops during so-called commando operations [...] are to be exterminated to the last man, either in combat or in pursuit’ and that ‘if such men appear to be about to surrender, no quarter should be given them on general principle’ (emphasis added), U.S. Military Commission at Rome, *Dostler* (1951) *AnnDig* (1946) 281; *Von Falkenhorst* (1949) *XI Law Reports* 18–30, *id.* (1951) *AnnDig* (1946) 282; U.S. Military Tribunal at Nürnberg, *Von Leeb et al.* (1953) *AnnDig* (1948) 389.

<sup>760</sup> *De Preux*, in: *Sandoz et al.* (eds.), *Commentary* (1987), paras. 1598–1599.

<sup>761</sup> *De Preux*, in: *Sandoz et al.* (eds.), *Commentary* (1987), para. 1598.

<sup>762</sup> *Von Ruchteschell* (1951) *AnnDig* (Year 1946) 248.

<sup>763</sup> The comment stated that ‘bringing a preponderance of force to bear against enemy military objectives or enemy personnel does not constitute denial of quarter. Neither is a commander obligated to offer an opportunity to surrender before carrying out an attack, since surprise or speed may be critical to the success of attack’. See note 401, Proposal submitted by the United States of America 13.

<sup>764</sup> For the opposite opinion see *Triffterer*, in: *Schünemann et al.* (eds.), *Festschrift für Claus Roxin zum 70. Geburtstag* (2001) 1432; *Triffterer*, in: *Landesgruppe Österreich der Internationalen Strafrechtsgesellschaft (AIDP)* (ed.), *Internationale Strafgerichtshöfe und Menschenrechte* (2007) 104.

- 481 dd) No necessity that hostilities actually be conducted on that basis. The wording of article 8 para. 2 (b) (xii) Rome Statute that the perpetrator be ‘declaring’ that quarter be denied contains no indication that the declaration must actually be implemented. The elements of this war crime appear to confirm this, since they on the one hand specify in detail what the objective of the declaration or order and the perpetrator’s command position needs to be, but on the other hand do not mention any requirement that the hostilities actually be conducted on the basis that no quarter shall be given. Indeed, several delegations at the Preparatory Committee found the element proposed by the U.S. ‘[t]hat one or more persons were killed by forces acting in furtherance of the declaration of the accused’<sup>765</sup> not acceptable or not in conformity with the Statute, and this element was therefore not included.
- 482 Consequently, there is no need of a result such as that persons *hors de combat* actually be killed without mercy by forces acting in furtherance of the declaration, order or threat. It constitutes a serious violation of humanitarian law *per se* to declare, threaten or order that no quarter shall be given in a position of effective command or control (and with the requisite intent). Such ‘declarations’ may well produce or increase a disregard of humanitarian obligations including ignoring possibilities and signs of surrender or incapacitation.
- 483 c) **Mental element.** Element 2 for article 8 para. 2 (b) (xii) Rome Statute specifies that the perpetrator must pronounce the declaration or give the order with the intention to threaten the adversary or to conduct hostilities on the basis that there shall be no survivors. This element was inserted to avoid that a joke, or a statement or order that evidently cannot be implemented, are excluded from the scope of application of the offense.

### 13. Paragraph 2(b)(xiii): Prohibited destruction

**Literature:** Benvenisti, E., *The International Law of Occupation* (2<sup>nd</sup> ed. 2012); Gasser, H.-P., ‘Protection of the Civilian Population’, in: D. Fleck (ed.), *The Handbook of Humanitarian Law in Armed Conflicts* (1995); von Glahn, G., *The Occupation of Enemy Territory: A Commentary on the Law and Practice of Belligerent Occupation* (in particular 176 et seq.) (1957); Kolb, R., ‘Etude sur l’Occupation et sur l’Article 47 de la IV<sup>ème</sup> Convention de Genève du 12 Août 1949 Relative à la Protection des Personnes Civiles en Temps de Guerre – Le Degré d’Intangibilité des Droits en Territoire Occupé’, (2012) *AfricanYbIL* 267 et seq.; Dinstein, Y., *The International Law of Belligerent Occupation* (2009); Timraz et al. v. Commander of IDF Forces in the Gaza Strip, partly summarised and reproduced in: (1993) *IsYbHumRts* 337 et seq.; Zimmermann, A., ‘State Succession and the Nationality of Natural Persons – Facts and Possible Codification’, in: P.M. Eisenmann and M. Koskeniemi (eds.), *State Succession – Codification Tested Against the Facts* (1999); Fatatouros, A., ‘National Legal Persons in International Law’, in: R. Bernhardt (ed.), *Encyclopedia of Public International Law*, ii (1995) 877, 879; Dominici, C., *La Notion du Caractère Ennemi* (1961), in particular 51 et seq.; Hosang, H., ‘Destroying or seizing the enemy’s property: article 8 (2) (b) (xiii)’, in: Lee et al. (eds.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (Transnational Publishers 2001) 171; Carnahan, B., ‘Lincoln, Lieber and the Laws of War: The Origins and Limits of the Principle of Military Necessity’, (1998) 92 *AJIL* 213 et seq.; Rolin, A., *Le Droit Moderne de la Guerre*, i (1920) 339; Stone, J., *Legal Controls of International Conflict* (1954) 443; Garner, J.W., ‘Treatment of Enemy Aliens’, (1919) 13 *AJIL* 22; Politis, N., ‘L’interprétation anglaise de l’article 23 h du Règlement de La Haye’, (1911) 18 *RGDIP* 249; Freeman, A.V., ‘War Crimes by Enemy Nationals Administering Justice in the Occupied Territory’, (1947) 41 *AJIL* 579; Picciotto, C.M., ‘Alien Enemy Persons, Firms and Corporations in English Law, (1917–1918) 27 *YaleLJ* 171–172; Hyde, C.C., *International Law*, Vol. III (2<sup>nd</sup> ed. 1947) 1714; Stirling-Zanda, S., ‘The Individual Criminal Responsibility of Judicial Organs in International Law in the Light of International Practice’, (2001) 48 *NethILRev* 1 67; Greenspan, M., *The Modern Law of Land Warfare* (1959) 47; Politis, N., ‘Lois et Coutumes de la Guerre sur terre. L’interprétation anglaise de l’article 23 h du Règlement de La Haye’, (1911) 18 *RGDIP* 249; Davis, G.B., ‘The Amelioration of the Rules of War on Land’, (1908) 2 *AJIL* 70; Bordwell, P., *The Law of War Between Belligerents: A History and Commentary* (1908) 283–284; Rowe, P., *Defence: The Legal Implications – Military Law and the Laws of War* (1987) 285; Hosang, H., ‘Compelling Participation in Military Operations: article 8 (2) (b) (xv)’, in: Lee et al. (eds.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (Transnational Publishers 2001) 173–174.

- 484 a) **Normative context and scope of application.** The wording of the prohibition of destroying the enemy’s property contained in article 8 para. 2 (b) (xiii) of the Statute is completely based on article 23 (g) of the 1907 Hague Convention Respecting the Laws and

<sup>765</sup> Proposal submitted by the United States of America – Draft elements of crime, Addendum, 13 (element 5).

Customs of War on Land. A provision which is quite similar in nature is to be found in the part of the Statute dealing with grave breaches of the four Geneva Conventions, namely in article 8 para. 2 (a) (iv)<sup>766</sup>.

Besides, a parallel provision relating to non-international armed conflicts is contained in article 8 para. 2 (e) (xii) of the Statute<sup>767</sup>. 485

Similar prohibitions are also contained in articles 46, 47, 52 and 53 of the 1907 Hague Convention Respecting the Laws and Customs of War on Land<sup>768</sup>, article 18 of the Third Geneva Convention, article 53 of the Fourth Geneva Convention of 1949 and finally article 54 of Add. Prot. I. Given the wording of the chapeau of article 8 para. 2 (b), it is against this background that article 8 para. 2 (e) (xii) of the Statute has to be interpreted. It is also worth noting that article 3 (b) ICTY-Statute contains a somewhat similar prohibition, while Section 6.1 (b) (xiii), as well as article 13 (b) No. 14 of the Statute of the Iraqi Special Tribunal (which however refers to ‘property of an adverse party’) are, *mutatis mutandis*, identical with article 8 para. 2 (b) (xiii) of the Rome Statute. 486

The elements of crimes, adopted by the Assembly of States Parties, provide with regard to the war crime of destroying or seizing the enemy’s property that: 487

1. The perpetrator destroyed or seized certain property.
2. Such property was property of a hostile party.
3. Such property was protected from that destruction or seizure under the international law of armed conflict.
4. The perpetrator was aware of the factual circumstances that established the status of the property.
5. The destruction or seizure was not justified by military necessity.
6. The conduct took place in the context of and was associated with an international armed conflict.
7. The perpetrator was aware of factual circumstances that established the existence of an armed conflict.

The question of seizure or destruction of the property of the enemy can mainly arise with regard to three situations: 488

- destruction of enemy property as the consequence of combat activities,
- destruction or seizure of property of enemy aliens located on the territory of a belligerent State and finally,
- destruction or seizure of enemy property located in occupied territories<sup>769</sup>.

Thus, the question arises, which of the three situations just outlined, article 8 para. 2 (e) (xii) of the Statute is supposed to cover.

Article 23 (g) of the 1907 Hague Convention Respecting the Laws and Customs of War on Land on which the wording of both, article 8 para. 2 (b) (xiii) and article 8 para. 2 (e) (xii) of the Statute are based, forms part of Section II of the just mentioned 1907 Hague Convention which deals with hostilities. More particularly, it is contained in its Chapter I, which defines the limits as to the means of injuring the enemy. Thus, at first glance it might seem as if article 8 para. 2 (b) (xiii) (just like article 8 para. 2 (e) (xii) of the Statute) would regulate means and methods of warfare. This is *arguably* further confirmed by the fact that article 46 of the 1907 Hague Regulations, contained in Section III dealing with occupation, enshrines a 489

<sup>766</sup> For details see Dörmann, *article 8 para. 2 (a) (iv)*.

<sup>767</sup> See Zimmermann and Geiß, *article 8 para. 2 (e) (xii)*.

<sup>768</sup> As to the prohibition of pillage see also Zimmermann and Geiß, *article 8 para. 2 (b) (xvi)*.

<sup>769</sup> Besides, the issue of protected property also arises as far as the property of captured prisoners of war is concerned; see *i.a.* both, article 4 para. 3 of the 1907 Hague Convention Respecting the Laws and Customs of War on Land as well as article 18 of the Third Geneva Convention relative to the Treatment of Prisoners of War under which personal belongings of a prisoner of war, unlike arms and equipment, shall not be subject to seizure or destruction. It is submitted, however, that this specific prohibition is not included in the rule enshrined in article 8 para. 2 (e) (xii) of the Statute. This is due to the fact that the protection of prisoners of war is already addressed in article 8 para. 2 (a), (i), (ii), (iii), (v) and (vi).

specific provision on the protection of private property in case of occupation, which in turn was however not introduced into the Rome Statute.

490 Still, it has to be noted that means and methods of warfare are already being dealt with extensively *inter alia* in article 8 para. 2 (b) (ii) and (iv) of the Statute. If one was therefore to interpret article 8 para. 2 (b) (xiii) as to also regulate the means and methods of warfare, it would be largely redundant and superfluous.

491 Even more importantly, allowing the military necessity exception entailed in article 8 para. 2 (b) (xiii) to be invoked in the realm of the conduct of hostilities could undermine the principle of distinction in as much as it could potentially be used to extend the range of legitimate military targets beyond the confines of the accepted definition of military objectives as it is contained in article 52 para. 2 of Add. Prot. I and customary international law. After all, on the basis of article 8 para. 2 (b) (xiii) the destruction of certain civilian objects could be justified on the basis of military necessity; whereas an attack against civilian objects would amount to a war crime under article 8 para. 2 (b) (ii), which does not admit of such a military necessity justification.

492 Thus, it is submitted that the provision under consideration, notwithstanding the fact that it has its roots in the part of the 1907 Hague Regulations dealing with hostilities, does not regulate the means and methods of warfare to be applied in the case of international armed conflict notwithstanding the fact that the elements of crimes do not contain such a limitation and that the ICTY has also applied (the however different provisions of) article 3 (b) and (d) of its Statute with regard to property not subject to the control of the offender<sup>770</sup>.

493 The ICTY, however, avoids the above mentioned risk of undermining the principle of distinction in the realm of the conduct of hostilities by defining military necessity with reference to the definition of military objectives in article 52 para. 2 of Add. Prot. I<sup>771</sup>. In other words, according to the ICTY, military necessity and military objectives, at least for purposes of the crime of wanton destruction, carry the same meaning. As a result, according to the ICTY military necessity may never justify the targeting of civilian objects<sup>772</sup>.

494 While this approach as such cannot be disputed, the interpretation of the ICTY leads to an overlap of the crimes contained, on the one hand, in article 8 para. 2 (b) (ii) and on the other in (xiii). Accordingly in the context of international armed conflicts article 8 para. 2 (b) (xiii) would be rendered redundant. Moreover, the very same approach would make the targeting of civilian objects a war crime even in non-international armed conflicts through the backdoor of the war crime of wanton destruction as laid out in article 8 para. 2 (e) (xii). Yet, under the Rome Statute such an interpretation would not be maintainable, given that the crime of intentionally directing attacks against civilian objects was deliberately excluded from the catalogue of war crimes applicable to non-international armed conflicts. Therefore, the first situation, *i. e.* the destruction of enemy property as the consequence of the conduct of hostilities, cannot be comprised by the provision in article 8 para. 2 (b) (xiii).

495 It must be noted, however, that the ICC, in the *Katanga* decision, followed the approach of the ICTY and accorded a broader meaning to article 8 para. 2 (b) (xiii). The Chamber applied article 8 para. 2 (b) (xiii) also to attacks against civilian and military objectives, *i. e.* to

<sup>770</sup> See *e.g.* *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-T, Judgment, Trial Chamber, 26 Feb. 2001, paras. 346 *et seq.*, as well as *Prosecutor v. Strugar*, IT-01-42-T, Judgment, Trial Chamber, 31 Jan. 2005, paras 290 *et seq.* But see also for a concurring view Werle, *Völkerstrafrecht* (3<sup>rd</sup> ed., 2012), 1256, as well as Sect. 9, para. 1 of the German Code of Crimes against International Law implementing the provision here under consideration, which insofar refers to the destruction, appropriation or seizure of property of the adverse party contrary to international law, 'such property being in the power of the perpetrator's party'.

<sup>771</sup> *Prosecutor v. Strugar*, IT-01-42-T, Judgment, Trial Chamber, 31 Jan. 2005, para. 295; *Prosecutor v. Galić*, IT-98-29-T, Judgment, Trial Chamber, 5 Dec. 2003, para. 51.

<sup>772</sup> *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-A, Judgment, Appeals Chamber, 17 Dec. 2004, para. 36; para. 54; *Prosecutor v. Galić*, IT-98-29-A, Judgment, Appeals Chamber, 30 Nov. 2006, para. 130; *Prosecutor v. Gotovina et al.*, IT-06-90-T, Judgment, Trial Chamber, 15 Apr. 2011, para. 1766.

the realm of the actual conduct of hostilities<sup>773</sup>. In this context the Chamber held that article 8 para. 2 (b) (xiii) does not apply to property that qualifies as a military objective in the sense of article 52 para. 2 of Add. Prot. I nor to proportionate collateral damage, i.e. incidental civilian damage the destruction of which was justified under the principle of proportionality<sup>774</sup>. It would seem to follow that disproportionate collateral damage, in the view of the chamber, would qualify as a war crime under article 8 para. 2 (b) (xiii). However, as it would seem difficult to apply a different interpretation with regard to the similarly worded article 8 para. 2 (e) (xii) in the context of non-international armed conflict, the interpretation adopted in *Katanga* leads to the problematic result that both the intentional targeting of civilian objects as well as violations of the proportionality principle (war crimes in the context of international armed conflicts according to article 8 para. 2 (b) (ii) and (iv)) would be criminalized as war crimes under article 8 para. 2 (e) (xii) in the context of non-international armed conflict as well, despite the fact that the drafters of the Rome Statute have deliberately omitted these crimes from the catalogue of crimes applicable in non-international armed conflicts. While this regulatory gap is certainly deplorable, closing it against the clear will of the States party to the Rome Statute is not maintainable. Notably, in the *Garda* case the Pre-Trial Chamber I itself pointed out that the negotiators of the Statute were certainly aware of this marked [with respect to article 8 para. 2 (b) (ii)] difference between international armed conflict and armed conflict not of an international character<sup>775</sup>.

Moreover, the extension of the war crime of the destruction of the enemy's property to the conduct of hostilities creates a double-standard. In the *Katanga* decision the Chamber differentiated (i) a conduct of hostility context, i.e. a situation *before* property has fallen into the hands of the attacking party, during which destruction could only be justified if the property destroyed qualified as a military objective, and (ii) a situation in which property had already fallen into the hands of the attacking party and in which its destruction could be justified more generally by military reasons<sup>776</sup>. In other words, whereas civilian objects would be categorically excluded as legitimate objects of destruction in a conduct of hostilities context by virtue of a narrow definition of the military necessity exception which is equated and thereby limited to the definition in article 52 para. 2 of Add. Prot. I, in an occupation-context a wider range of objects, including civilian objects, could potentially lawfully be destroyed given that a wider definition of military necessity would apply. It seems that a more coherent, less complicated approach that leads to similar results but avoids the problem of criminalizing behavior in the realm of non-international armed conflicts that the drafters of the Rome Statute did not want to be criminalized in non-international armed conflicts, would be to exclude the conduct of hostilities context from the ambit of both article 8 para. 2 (b) (xiii) and article 8 para. 2 (e) (xii) altogether. In the *Katanga* case the Chamber distinguished between 'conduct of hostilities crimes' and other crimes<sup>777</sup>. Against this background it is submitted that article 8 para. 2 (b) (xiii) and article 8 para. 2 (e) (xii) should not be regarded as 'conduct of hostilities crimes'.

As to the applicability of article 8 para. 2 (b) (xiii) to the seizure of enemy property *within a belligerent State's own territory* in the case of an international armed conflict, it has to be noted that this question has not been dealt with by any of the codified rules (including article 23 (g) of the 1907 Hague Convention Respecting the Laws and Customs of War on Land).

<sup>773</sup> *Prosecutor v. Katanga and Ngudjolo Chui*, 01/04-01/07, Decision on the confirmation of charges, Pre-Trial Chamber I, 26 Sept 2008, para. 311.

<sup>774</sup> *Prosecutor v. Katanga and Ngudjolo Chui*, 01/04-01/07, Decision on the confirmation of charges, Pre-Trial Chamber I, 26 Sept. 2008, para. 313.

<sup>775</sup> *Prosecutor v. Garda*, 02/05-02/09, Decision on the confirmation of charges, Pre-Trial Chamber I, 8 Feb. 2010, para. 85.

<sup>776</sup> *Prosecutor v. Katanga and Ngudjolo Chui*, 01/04-01/07, Decision on the confirmation of charges, Pre-Trial Chamber I, 26 Sept. 2008, para. 318.

<sup>777</sup> *Prosecutor v. Katanga and Ngudjolo Chui*, 01/04-01/07, Decision on the confirmation of charges, Pre-Trial Chamber I, 26 Sept. 2008, para. 267.



Thus, given the fact that article 8 para. 2 (e) (xii) of the Statute is identical in wording to that provision, it seems not to apply for that reason alone to such situations. Besides, it is doubtful whether clear rules which are applicable to seizure of foreign property located in the belligerents' own territory have developed. Finally, even if one was to admit that such rules do exist, their violation would in no case constitute a war crime. It is accordingly submitted that any such acts do *not* come within the scope of application of either article 8 para. 2 (b) (xiii) or (e) (xii). The ICTY, with respect to Article 3 (b) of its Statute, has adopted a somewhat wider interpretation, holding that 'the protection afforded under Article 3 (b) of the Statute includes all property in the territory involved in the conflict'<sup>778</sup>. The reference to 'territory involved in the conflict' would seem to comprise enemy as well as a State's own territory, especially in view of the fact that more recently the ICTY has been even more explicit by referring to 'any territory involved in the conflict'<sup>779</sup>.

498 Given the very wording of the provision and the fact that belligerent occupation is the situation where enemy property is, apart from the two other situations just referred to, most likely to be exposed to acts of a belligerent, it is submitted that article 8 para. 2 (b) (xiii) of the Statute was indeed meant to address the fate of any enemy property located in territories which have come under the *de facto* control of a belligerent<sup>780</sup>, regardless of whether the situation (yet) formally amounts to an occupation as defined in article 2 para. 2 common to the four Geneva Conventions or not<sup>781</sup>. Again, the ICTY with respect to Article 3 (b) of its Statute has referred more generally to property 'located in enemy territory and in territory not under effective occupation'<sup>782</sup>. In that regard, one has to take note of the fact that otherwise the inclusion of the prohibition of seizing the enemy's property in article 8 para. 2 (b) (xiii) of the Statute would have, given the realities of modern warfare, not made much sense. To the contrary, situations of seizures frequently arise within the context of belligerent occupation. This interpretation of article 8 para. 2 (b) (xiii) of the Statute is further confirmed by the drafting history of the provision.

499 The original proposal submitted by the United States, finally leading to the inclusion of article 8 para. 2 (b) (xiii) into the Statute<sup>783</sup>, had explicitly stated that only the seizure or destruction of such enemy property 'within one's custody or control' was supposed to be covered by that provision. During informal consultations among a certain number of States, where agreement could be reached to include that provision, it was further agreed to delete the just mentioned words in order for the provision to be completely in line with the original text of the 1907 Hague Regulations Concerning the Laws and Customs of War on Land annexed to the Fourth Hague Convention Respecting the Laws and Customs of War on Land with the understanding, however, that such deletion would not expand the scope

<sup>778</sup> *Prosecutor v. Orić*, IT-3-68-T, Judgment, Trial Chamber, 30 June 2006, para. 582; *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-A, Judgment, Appeals Chamber, 17 Dec. 2004, para. 36; para. 74; *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-T, Judgment, Trial Chamber, 26 Feb. 2001, para. 347; *Prosecutor v. Naletilić and Martinović*, IT-98-34-T, Judgment, Trial Chamber, 31 Mar. 2003, para. 580; *Prosecutor v. Brđanin*, IT-99-36-T, Judgment, Trial Chamber, 1 Sep. 2004, paras. 381, para. 592.

<sup>779</sup> *Prosecutor v. Gotovina et al.*, IT-06-90-T, Judgment, Trial Chamber, 15 Apr. 2011, para. 1766.

<sup>780</sup> See as to the applicability of article 23 (g) of the 1907 Hague Regulations (identical in wording to article 8 para. 2 (b) (xiii) of the Statute) to situations of occupation also the decision of the Israeli Supreme Court in *Timraz et al. v. Commander of IDF Forces in the Gaza Strip*, partly summarised and reproduced in: (1993) *IsYbHumRts* 337 *et seq.*

<sup>781</sup> As to the notion of belligerent occupation under customary international law, as reflected in article 42 of the Hague Regulations of 1907, according to which territory is considered to be occupied when it is actually placed under the authority of the hostile army, see para. 172 with further references.

<sup>782</sup> *Prosecutor v. Orić*, IT-3-68-T, Judgment, Trial Chamber, 30 June 2006, para. 582; *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-A, Judgment, Appeals Chamber, 17 Dec. 2004, para. 74; *Prosecutor v. Kordić and Čerkez*, Case IT-95-14/2-T, Judgment, Trial Chamber, 26 Feb. 2001, para. 347; *Prosecutor v. Naletilić and Martinović*, IT-98-34-T, Judgment, Trial Chamber, 31 Mar. 2003, para. 580; *Prosecutor v. Brđanin*, No. IT-99-36-T, Judgment, Trial Chamber, 1 Sep. 2004, para. 592.

<sup>783</sup> UN Doc A/AC.249/1997/WG.1/DP.1, part (B), (v).



of application of that provision. Accordingly this clarification was no longer contained in the Zutphen text submitted to the Rome Conference for its consideration<sup>784</sup>.

Given this context of the norm as well as the chapeau of article 8 para. 2 (b) of the Statute according to which the provisions of sub-paragraph b have to be interpreted ‘within the established framework of international law’, the individual elements of the prohibition have to be interpreted in light of relevant rules of customary international law such as those embodied *inter alia* in articles 46, 52, 53, 54, 55 and 56 of the 1907 Hague Regulations. Besides, one must also take into account the fact that under article 8 para. 2 (a) (iv) only the extensive destruction and appropriation of property which is carried out wantonly and in an unlawful manner is proscribed. This is confirmed by element 3 of the elements of crimes adopted with regard to the crime of destroying or seizing the enemy’s property according to which the property concerned must have been protected against the destruction or seizure under applicable rules of international humanitarian law.

In this regard ICTY Trial Chambers have held that ‘in order to constitute a violation of the laws or customs of war, the destruction must be both ‘serious’ in relation to an individual object and cover a substantial range of a particular city, town or village’<sup>785</sup>. The ICRC Customary Law Study, however, goes further, albeit for general international humanitarian law rather than for purposes of international criminal law, by simply stipulating, without any additional requirements as to the quality and extend of the destruction, that ‘[t]he destruction or seizure of the property of an adversary is prohibited, unless required by imperative military necessity’<sup>786</sup>. In the *Katanga* decision the Chamber relied on the jurisprudence of the ICTY and recalled that ‘in order to constitute a grave breach, destruction [...] must be extensive, unlawful, and wanton’<sup>787</sup> [and that] [t]he notion of ‘extensive’ is evaluated according to the facts of the case; however, even a single act such as the destruction of a hospital, may suffice to characterize an offence under this count’<sup>788</sup>.

**b) Enemy property.** When defining the term ‘enemy property’, two different problems arise: First, one has to define the term ‘enemy’ and secondly, one has to decide whether only private property is protected against seizure and destruction or whether to the contrary the prohibition also extends to public property.

In order to be protected against destruction or seizure, the property under consideration must possess an enemy character. This enemy character is further described in the elements of crimes by requiring that the property concerned constitutes property of a hostile party. Thus, any such act directed against property belonging to either nationals of the belligerent itself or to nationals of third States, not participating in the conflict, does not come within the realm of the provision. In the same vein, the ICC, in the *Katanga* decision, has held that article 8 para. 2 (b) (xiii) requires, ‘the destruction, by action or omission, of property belonging to an ‘enemy’ or ‘hostile’ party to the conflict’ and that his means that the property in question ‘must belong to individuals or entities aligned with or with allegiance to a party to the conflict adverse or hostile to the perpetrator’<sup>789</sup>. In the case of physical persons, one has to therefore determine the nationality<sup>790</sup> of the victim of the destruction or seizure,

<sup>784</sup> UN Doc A/CONF.183/2/Add.1, article 5, War crimes, B., (k).

<sup>785</sup> *Prosecutor v. Orić*, IT-3-68-T, Judgment, Trial Chamber, 30 June 2006, para. 583; *Prosecutor v. Strugar*, IT-01-42-T, Judgment, Trial Chamber, 31 Jan. 2005, para. 294.

<sup>786</sup> Henkaerts and Doswald-Beck, *Customary International Humanitarian Law* (2005) 50.

<sup>787</sup> *Prosecutor v. Brđanin*, IT-99-36-T, Judgment, Trial Chamber, 1 Sep. 2004, paras 584–585.

<sup>788</sup> *Prosecutor v. Katanga and Ngudjolo Chui*, Case 01/04-01/07, Decision on the confirmation of charges, Pre-Trial Chamber I, 26 Sept. 2008, para. 314; *Prosecutor v. Elastić*, IT-95-14-T, Judgment, Trial Chamber, 3 March 2000, para. 157.

<sup>789</sup> *Prosecutor v. Katanga and Ngudjolo Chui*, 01/04-01/07, Decision on the confirmation of charges, Pre-Trial Chamber I, 26 Sept. 2008, para. 310.

<sup>790</sup> In the case of an armed conflict not of an international character the adversarial character of an individual is determined, given the lack of different nationalities in most cases, by the fact whether he or she can be considered to belong to another party to the conflict, for details see Zimmermann and Geiß, *article 8 para. 2 (e) (xii)*, mn 326.

which especially in situations involving instances of state succession might prove rather difficult<sup>791</sup>. In the case of legal persons, state practice during World War II but also that during armed conflicts after 1945 has almost universally applied the so-called control test, *i. e.* States have determined the nationality of a given corporation and accordingly eventually its enemy status according to the nationality of controlling shareholders, principal corporate officers and the presence of other substantial interests<sup>792</sup>.

- 504 c) **Extent of property protected.** The wording of article 8 para. 2 (b) (xiii) of the Statute does not qualify the property that is protected from either seizure or destruction. It has to be noted, however, that the rules of customary law concerning enemy property enshrined in the 1907 Hague Convention Respecting the Laws and Customs of War on Land are clearly based, as demonstrated by articles 46 and 53 of the annexed Regulations, on the distinction to be drawn between private property on the one side and government property on the other. In that regard, property of municipalities and institutions dedicated to religion, charity, education and arts and sciences shall be considered private property<sup>793</sup>. Where doubts exist as to the ownership, State practice tends to presume that property constitutes public and not private property unless the contrary is proven<sup>794</sup>. In that regard it has to be also noted that during the drafting of the elaboration of the elements of crimes the United States and Colombia had proposed to specifically refer in the elements of crimes to ‘private or public’ property<sup>795</sup>. Yet, later on agreement was reached during negotiations on the elements of crimes that the term ‘property’ would in any event include both, private and public property<sup>796</sup>.
- 505 Movable government property which may be used for military purposes can legally be confiscated<sup>797</sup>. Besides, even as far as private property is concerned, the occupying power can, within certain limits, also request requisitions in kind from the local population<sup>798</sup>. Finally, all private property<sup>799</sup> that may be used for hostile purposes and immovable government property might be seized, though not confiscated<sup>800</sup>, under the rules enshrined in both article 53 paras. 1 and 2 and article 55 of the 1907 Hague Convention Respecting the Laws and Customs of War on Land<sup>801</sup>. The elements of crimes specifically require that the property concerned in order for the destruction or seizure to constitute a crime within the jurisdiction of the Court, must have been protected from that destruction or seizure under the international law of armed conflict.
- 506 For the purposes of humanitarian law, the notion of State property does not only include property wholly owned by the respective State but also the property of institutions in which the State has a substantial interest or in which it exercises at least substantial control<sup>802</sup>.

<sup>791</sup> For such an example see the decision of the ICTY, *Prosecutor v. Delalić et al.*, Case No. IT-96-21-T, Judgment, Trial Chamber, 16 Nov. 1998, paras. 251 *et seq.*; see generally as to the relationship between state succession and the nationality of individuals Zimmermann, in: Eisenmann and Koskeniemi (eds.), *State Succession* (1999).

<sup>792</sup> Fatatouros, in: Bernhardt (ed.), *Encyclopedia* (1995) 495 *et seq.*; for a more thorough analysis see Dominicé, *La Notion du Caractère Ennemi* (1961), in particular 51 *et seq.*

<sup>793</sup> See article 56 para. 1 of the 1907 Hague Convention Respecting the Laws and Customs of War on Land and Gasser, in: Fleck (ed.), *Handbook* (1995) 262.

<sup>794</sup> v. Glahn, *The Occupation of Enemy Territory* (1957) 179; Israeli Supreme Court in *Al Nawaret al.*, summarised and partly reproduced in: (1986) *IsYbHumRts* 321 *et seq.*

<sup>795</sup> See respectively PCNICC/DP.4/Add.2 and PCNICC/1999/WGEC/DP.16.

<sup>796</sup> Hosang, in: Lee *et al.* (eds.), *Elements of Crimes* (2001) 171.

<sup>797</sup> See article 53 of the 1907 Hague Convention Respecting the Laws and Customs of War on Land; Gasser, *Protection* 260.

<sup>798</sup> Gasser, in: Fleck (ed.), *Handbook* 259: ‘the right to demand requisitions is laid down in article 52 HagueReg and customary law’ [emphasis added].

<sup>799</sup> As to the specific situation of civilian hospitals see article 57 of the Fourth Geneva Convention.

<sup>800</sup> Private property that has been actually used for hostile purposes and that is found on the battlefield might be confiscated, see for that proposition the decision of the Israeli High Court, *Al Nawar v. Minister of Defence et al.*, Case No. 574/82, Judgment, 11 August 1985, 321 *et seq.*

<sup>801</sup> Gasser, in: Fleck (ed.), *Handbook* (1995) 261.

<sup>802</sup> v. Glahn, *Occupation* (1957) 179; Israeli High Court, *Al Nawar v. Minister of Defence, et al.*, Case 574/82, Judgment, 11 August 1985, 321 *et seq.*, quoting Schwarzenberger’s *Treatise on International Law*. But see also for

**d) Prohibition of destruction or seizure.** In general terms, article 8 para. 2 (e) (xii) of the Statute prohibits both, the destruction and the seizure of enemy property. Where however a pure seizure is sufficient under the doctrine of military necessity to secure a military advantage, only such measures may be taken. Besides, articles 53 para. 2 and 55 of the 1907 Hague Convention Respecting the Laws and Customs of War on Land, while providing for the possibility to seize certain property items do not contain a right to confiscate. Indeed, article 55 specifically stipulates, that as far as immovable Government property is concerned, the occupant may only administer them in accordance with the rules of usufruct unless again military necessity requires other measures such as *e.g.* the destruction of specific buildings.

Given the fact that article 8 para. 2 (a) (iv) only criminalizes the ‘extensive destruction and appropriation of property’ and taking into account that the ICC’s jurisdiction shall be limited to the most serious crimes of concern to the international community as a whole<sup>803</sup>, it is submitted that singular incidents of illegal seizures or acts of destruction, which only concern items of marginal value and which are not committed on a somewhat larger scale would normally not be subject to the jurisdiction of the ICC. Yet the elements of crimes simply refer to the destruction or seizure of ‘certain’ property thus implying that even single incidents of destruction or seizure might already constitute a crime under this provision.

**e) ‘imperatively demanded by the necessities of war’.** By using the words ‘unless (...) imperatively demanded by the necessities of war’ the Statute, as beforehand the 1907 Hague Convention Respecting the Laws and Customs of War on Land refers to the concept of military necessity<sup>804</sup>. First of all, it has to be stressed, however, that not every situation of military necessity, but only *imperative* reasons of military necessity, *i.e.* most serious military reasons which are of an imperative nature, may justify acts otherwise prohibited under this provision. While the Swiss draft for the elements of crimes had quite in line with the text of the Statute referred to acts ‘imperatively demanded by the military necessity’<sup>805</sup>, the elements of crimes now simply require that the ‘destruction or seizure was not justified by military necessity’, the underlying reason being that military necessity *tout court* was understood as being the equivalent of the more elaborate terms used in the Hague Convention and accordingly in the Statute itself<sup>806</sup>.

Accordingly, the mere fact that the acts under consideration serve security needs or contribute to the security of the area at large is not, in itself, sufficient to justify any of the otherwise prohibited acts<sup>807</sup>, unless it can be proven that there is indeed an imperative need to do so, *i.e.* that there are no other means to secure military safety. In particular, national-security needs in a broad sense may not justify takings of private property<sup>808</sup>.

In the *Katanga* decision the Chamber held that military necessity covers, ‘[...] *inter alia*, a situation in which: (i) the property destroyed constituted a military objective before having fallen into the hands of the attacking party; and (ii) having fallen into the hands of the attacking party, its destruction was still necessary for military reasons. However, this ground for justification can only be invoked if the laws of armed conflict provide for it and only to the extent that these laws provide for it’<sup>809</sup>. As was already mentioned above, if article 8 para. 2 (b) (xiii) from the outset is only applied to situations in which a certain degree of *de*

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a more far-reaching proposition applying a functional test under which the nature of the property would be judged according to its actual governmental or non-governmental use *id.*, 325.

<sup>803</sup> For details see Zimmermann, *article 5*, mn 8.

<sup>804</sup> As to the historical development and the current status of that concept see most recently Carnahan, (1998) 92 *AJIL* 213 *et seq.*

<sup>805</sup> PCNICC/1999/WGEC/DP.8.

<sup>806</sup> Hosang, in: Lee *et al.* (eds.), *Elements of Crimes* (2001) 171.

<sup>807</sup> But see for a divergent position the decision of the Israeli Supreme Court in *Ayub et al. v. Minister of Defence et al.* (Beth El case), summarised and partly reproduced in: (1979) *IsYbHumRts* 337 *et seq.*

<sup>808</sup> See for such a limitation the decision of the Israeli Supreme Court in *Dweikat et al. v. The Government of Israel et al.* (Elon Moreh case), summarised and partly reproduced in: (1979) *IsYbHumRts* 345 *et seq.*

<sup>809</sup> *Prosecutor v. Katanga and Ngudjolo Chui*, 01/04-01/07, Decision on the confirmation of charges, Pre-Trial Chamber I, 26 Sept. 2008, para. 318.

*facto* territorial control has been established, as is proposed here, the divergent military necessity standards suggested in the *Katanga* decision can be avoided<sup>810</sup>.

- 512 Yet, the limitation that military necessity can *only* be invoked ‘if the laws of armed conflict provide for it and only to the extent that these laws provide for it’ is misleading since the military necessity exception forms part of the war crime in article 8 para. 2 (b) (xiii) itself and precisely because the underlying provisions of international humanitarian law (see only article 23 (g) of the 1907 Hague Regulations or article 53 of the Fourth Geneva Convention) explicitly provide for such an exception. Thus, in order to prove military necessity under the Rome Statute, it is not necessary to provide an additional legal basis under the laws of war to justify its invocation. Rather, it suffices that the military necessity exception is provided for in article 8 para. 2 (b) (xiii) itself.
- 513 In the practice of the Nuremberg Tribunal a policy of ‘scorched earth’ was not recognised to be justified by military necessity<sup>811</sup>. In the *Orić* case the ICTY Trial Chamber held that, except for the rare occasions in which such preventive destruction [i.e. the destruction of houses from which previously a serious danger had emanated in order to prevent the inhabitants, including combatants, to return and resume the attacks] could arguably fall within the scope of ‘military necessity’, the principle must be upheld that the destruction of civil settlements, as a rule, is punishable as a war crime<sup>812</sup>.

#### 14. Paragraph 2(b)(xiv): Prohibition in regard to rights and rights of actions

- 514 a) **Normative origins and drafting history.** Article 8 para. 2 (b) (xiv) is identical with article 23 para. h of the 1907 Hague Regulations. The Rome Conference included the war crime of declaring abolished, suspended or inadmissible in a court of law the rights and actions of adversary nationals in the ICC Statute without any substantial debate that would provide an indication how to interpret the wording of the offence. Regardless of its rather inapt drafting, article 8 para. 2 (b) (xiv) was, together with all other acts which are ‘especially forbidden’ by article 23 of the Hague Regulations, somewhat automatically included in the Statute because article 23 in its entirety was considered as reflecting customary international law. Delegations did not attempt to clarify the wording and translate it into an intelligible criminal offence. Few if any delegations took notice to the contention of scholars that article 23 para. h of the Hague Regulations should have been contained in a special convention on the effects of armed conflict on private law contracts rather than in a humanitarian law treaty<sup>813</sup>, and that ‘whatever be the true purpose of article 23 (h), its drafting is inapt to express it’<sup>814</sup>.
- 515 Indeed, there are only few judicial decisions and little state practice that allow to clarify the scope and meaning of this provision under customary international law, and the prohibition generally receives no or only little comment in contemporary treatises on the law of armed conflict<sup>815</sup>. In the Justice Trial, the U.S. Military Tribunal at Nuremberg admitted that ‘the authorities are not in accord as to the proper construction of article 23 (h) of the regulations annexed to the Hague Convention of 1907’.
- 516 The Preparatory Commission did not discuss the substance of the offense under article 8 para. 2 (b) (xiv): The elements for this war crime essentially restate the wording of the Rome

<sup>810</sup> *Id.*

<sup>811</sup> See the case against Alfred Jodl, in: *Law Reports of Trials of Major War Criminals* (1949) 517.

<sup>812</sup> Hosang, in: Lee *et al.* (eds.), *The International Criminal Court* (2001) 171, *Prosecutor v. Orić*, IT-3-68-T, Judgment, Trial Chamber, 30 June 2006, para. 588; *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-A, Judgment, Appeals Chamber, 17 Dec. 2004, paras. 419, 426.

<sup>813</sup> Rolin, *Le Droit Moderne De La Guerre* (1920) 339.

<sup>814</sup> Stone, *Legal Controls of International Conflict* (1954) 443.

<sup>815</sup> For writings up to mid-20<sup>th</sup> century, see Garner (1919) 13 *AJIL* 22 (1919); N. Politis, L’interprétation anglaise de l’article 23 h du Règlement de la Haye, 18 *RGDIP* 249; Stone, *Legal Controls* (1954) 441–443; Freeman (1947) 41 *AJIL* 579; Picciotto (1917–1918) 27 *YaleLJ* 171–172; Oppenheim and Lauterpacht, *International Law* 309–313 and 445; Hyde, *International Law* (2<sup>nd</sup> ed. 1947) 1714, fn. 7. See furthermore Stirling-Zanda (2001) 48 *NethILRev* 1, 67.

Statute provision and do not resolve the main controversies with regard to the meaning of article 23 (h) Hague Regulations and therefore article 8 para. 2 (b) (xiv). The ICC will have to clarify the elements of this prohibition.

Related to the war crime under article 8 para. 2 (b) (xiv) is the war crime of denying rights of fair and regular trial under article 8 para. 2 (a) (vi), which protects rights of due process and thus certainly criminalizes the deprivation of the rights of a fair and regular trial of protected persons once proceedings have been initiated. While article 8 para. 2 (a) (vi) also covers individual cases of denial of access to justice, article 8 para. 2 (b) (xiv) rather aims at legislative or general administrative acts or possibly also to court decisions with wide implications but not isolated individual cases.

**b) Material elements. aa) Does the war crime only apply to occupied territories?** Article 8 para. 2 (b) (xiv) clearly prohibits certain conduct by an Occupying Power *vis-à-vis* the population of that occupied territory. In such territory, the general abolition, suspension or inadmissibility in a court of law of the rights and rights of actions of the population of the occupied territory would clearly violate fundamental principles of the law of belligerent occupation. An Occupying Power must not exercise full sovereignty over occupied territory. Its legitimate authority is limited as the nature of the occupation regime is supposed to be only provisional. While an Occupying Power has the authority to restore and ensure as far as possible public order and safety, it must respect, ‘unless absolutely prevented, the laws in force in the country’ (article 43 Hague Regulations).

However, a first fundamental controversy regarding the meaning of article 8 para. 2 (b) (xiv) relates to whether its *territorial* scope of application extends also to the own territory of the party to the conflict abolishing certain rights of, e.g. foreign nationals residing on its territory. No word under article 8 para. 2 (b) (xiv) or article 23 (h) Hague Regulations suggests that the scope of the provision is limited to occupied territory or precludes its application to the own territory of the Occupying Power or any other party to an armed conflict. Rather, it generally prohibits the abolition etc. of ‘the rights and actions of the nationals of the hostile party’, and not ‘of the population of an occupied territory’. The wording of article 8 para. 2 (b) (xiv) thus rather suggests its applicability to the rights and actions of *any* nationals of a hostile party in a situation of armed conflict. This is confirmed by a systematical interpretation of article 23 (h) Hague Regulations, as it is placed in section II of the Hague Regulations concerning hostilities generally, and not in section III dealing with the law of belligerent occupation.

The prohibition under article 23 (h) Hague Regulations was in fact ‘introduced on a German initiative intended to cover suits in a belligerent’s own courts’<sup>816</sup>. According to Picciotto, Germany thus consequently contended that the provision relates to the ‘inability to enforce the execution of a contract by recourse to the *tribunals of the state in regard to which he is an alien enemy*’<sup>817</sup>. This view has overwhelmingly been shared by continental writers<sup>818</sup>.

The British and American delegations at the Hague Conference adopting the Hague Regulations however appear to have intended to limit the application of article 23 (h) Hague Regulations to occupied territories. According to the English view at the beginning of the 20<sup>th</sup> century, ‘the subsection bears a strictly limited application to occupied territory’<sup>819</sup>. A main Anglo-Saxon argument was the systematic position of article 23 (h) Hague Regulations in the section regarding the limitation of the action of military commanders in the actual theater of hostilities, thus not applying in the entire territory of parties to the conflict that is far away from the battlefield<sup>820</sup>.

<sup>816</sup> Stone, *Legal Controls* (1954) 443 (fn. 163). See also Garner (1919) n13 *AJIL* 24–25. M. Greenspan has furthermore contended that the general practice admitted the right of a resident enemy alien to institute legal proceedings in the country of residence, Greenspan, *The Modern Law* (1959) 47.

<sup>817</sup> Picciotto (1917–1918) 27 *YaleLJ* 171–172 (emphasis added).

<sup>818</sup> See the references in Garner (1919) n13 *AJIL* 26 (fn. 10).

<sup>819</sup> Picciotto (1917–1918) 27 *YaleLJ* 171–172.

<sup>820</sup> Garner (1919) n13 *AJIL* 25–26; Picciotto (1917–1918) 27 *YaleLJ* 171–172. At that time, the English law automatically suspended the rights of actions of subjects of hostile states *insofar* they had *no domicile* in England,



In any event, the abolishment, suspension or inadmissibility of the rights and actions must be related to an armed conflict.

- 522 **bb) What are ‘rights and actions’.** Article 8 para. 2 (b) (xiv) prohibits the declaration that the ‘rights’ or ‘actions’ of nationals of the hostile party are abolished, suspended or inadmissible. The term ‘actions’ must be understood as legal claims or rights of actions, including the right of access to courts of law. This is confirmed by the French wording ‘il est notamment interdit: ... h) de déclarer éteints, suspendus ou non recevables en justice, les droits et actions des nationaux de la Partie adverse’. The German translation of article 8 para. 2 (b) (xiv) agreed between Austria, Germany and Switzerland also uses the terms ‘Rechte und Forderungen’ which basically means ‘rights and (legal) claims’. The US Army Field Manual interprets article 23 (h) Hague Regulations as a prohibition relating to rights and rights of action<sup>821</sup>. As was stated by the UN War Crimes Commission, the provision refers to the general ‘deprivation of rights of access to courts’<sup>822</sup> of litigious standing<sup>823</sup>.
- 523 An additional important question concerning article 8 para. 2 (b) (xiv) is whether it only relates to rights and rights of actions regarding civil and commercial claims, or whether it also protects *other fundamental rights and guarantees such as rights granted by criminal law, the national constitution or human rights law*, including fair trial rights and the right of access to courts. Writers usually only examined the provision under the perspective that it relates to civil claims. Garner for instance referred to the ‘execution of a contract by recourse to ... tribunals’ and to ‘preventing access to civil courts’<sup>824</sup>. The Netherlands Special Court of Cassation also limited the scope of the provision to civil claims in 1949<sup>825</sup>.
- 524 However, it is not unlikely that delegations at the Rome Diplomatic Conference may have thought and intended to adopt an offense also relating to rights and actions other than relating to civil contracts and claims. The experience of the Second World War and in particular the abolition of most or all rights of Poles and Jews or other groups in occupied territories or in Germany may have influenced the support for this provision and its inclusion in the ICC Statute. Stone stated that there is ‘some historical link of the rule denying *locus standi* with the general placing of enemy subjects *ex lege*, exposing them not only to confiscation of their property, but to physical restraint, and even killing’<sup>826</sup>. Nothing in the offence’ wording restricts it necessarily to civil claims.
- 525 Moreover, in the Justice Trial, the US Military Tribunal at Nuremberg was of the opinion that the ‘Night and Fog Decree’ (Nacht und Nebel Erlass) of the Hitler regime clearly violated article 23 (h) Hague Regulations as well as other provisions of the 1907 Hague Regulations. This decree essentially aimed at imprisoning without trial all persons in occupied territories (in particular Poles and Jews in Poland) opposed to the Nazi regime even if they had not committed any serious offence, secretly taking them to Germany, keeping them incommunicado and making them disappear without trace<sup>827</sup>. The same U.S.

*id.*, 172; J. Stone, *Legal Controls* (1954) 442. On the English view and how it was developed, see Politis (1911) 18 *RGDIP* 249. On the U.S. view, see also Davis (1908) 2 *AJIL* 70. See also Von Glahn, *Occupation* (1957) 108; Oppenheim and Lauterpacht, *International Law* (1952) 309–313 and 445.

<sup>821</sup> U.S. Army, *Field Manual* 27–10 (1956), No. 372.

<sup>822</sup> UNWCC, *XV Law Reports* 125 (fn. 1) (1949).

<sup>823</sup> See, e.g., Picciotto (1917–1918) 27 *YaleLJ* 171; Stone, *Legal Controls* (1954) 441–443.

<sup>824</sup> See, e.g., Picciotto (1917–1918) 27 *YaleLJ* 171. See also, e.g., Stone, *Legal Controls* (1954) 441–443.

<sup>825</sup> Netherlands Special Court of Cassation, *Rauter* (1949) *XIV Law Reports* 120; Netherlands Special Court of Cassation, *Zuehlke* (1949) *XIV Law Reports* 144–145.

<sup>826</sup> Stone, *Legal Controls* (1954) 441 (fn. 155).

<sup>827</sup> The ‘Night and Fog Decree’ was a plan to combat so-called resistance movements in occupied territories. ‘[P]ersons who committed offences against the Reich or the German forces in occupied territories, except where the death sentence was certain, were to be taken secretly to Germany and handed over to the SIPO and SD for trial and punishment in Germany. ... Hitler’s Night and Fog programme was instituted for the deport for the deportation to Germany of many thousands of inhabitants of occupied territories for the purpose of making them disappear without trace. ... [T]hey were kept secretly and not permitted to communicate in any manner with their friends and relatives. ... The foregoing procedure under the NN Decree was clearly in violation of



Military Tribunal at Nuremberg moreover found that ‘the introduction and enforcement of the law [of 4 December 1941] against Poles and Jews in occupied Poland resulted in a violation of [article 23 (h) Hague Regulations]’<sup>828</sup>. This law provided for the possibility of the death penalty even for minor offences or where ‘the offence points to particularly objectionable motives or is particularly grave for other reasons’ and abolished essential rights of the accused<sup>829</sup>.

‘[The defendants] original purpose was to imprison without trial all those persons who were opposed to the government, or who were in any way obnoxious to German authority. With the aid of a secret police force, this practice was widely extended, and in course of time concentration camps became places of organised and systematic murder ...’<sup>830</sup>.

‘The enforcement of such laws as that of 4<sup>th</sup> December, 1941, against the Poles and Jews, so clearly exceeded what was demanded by the needs of “public order and safety” that the Tribunal was not called upon to analyse article 43 of the Hague Convention any more than it was article 23(h), and the Tribunal did not in fact rely so much upon a claim that German courts were illegally set up in occupied territories as upon the illegality under international law of the law which they applied ...’<sup>831</sup>.

The US Military Tribunal at Nuremberg thus obviously considered that article 23 (h) 526 Hague Regulations also prohibits the introduction and enforcement of laws providing for the deprivation of liberty of persons for no (serious) offence and to the denial and abolishing of their rights to a fair and regular trial. Under contemporary international law, article 64 GC IV provides that, subject to certain exceptions, the penal laws of the occupied territory shall remain in force, and that the tribunals of the occupied territory shall continue to function in respect of all offences covered by these penal laws.

The official comment on § 9 para. 2 of the German draft International Crimes Code of 527 2 May 2001 furthermore states that the offense under article 8 para. 2 (b) (xiv) Rome Statute ‘covers not only economic warfare, which in the past has often used the abolition and suspension of claims of nationals [Angehörigen] of the war adversary for its goals. Also *other discriminatory measures and restrictions of the rights* can qualify under the offense’<sup>832</sup>.

Therefore, the general wording of article 8 para. 2 (b) (xiv) and the precedents permit to 528 understand article 8 para. 2 (b) (xiv) as prohibiting not only the abolition *etc.* of property and commercial rights, but also other discriminatory measures and restrictions of the rights of the nationals of the adversary party to the conflict.

**c) Further issues.** Article 8 para. 2 (b) (xiv) only applies to the abolition *etc.* of ‘the rights 529 and actions of the nationals of a hostile party’. In a literal reading, the word ‘the’ might be understood as requiring that all the rights and actions of the persons belonging to the adversary party are abolished *etc.* However, element 1 for article 8 para. 2 (b) (xiv) only requires that ‘certain rights or actions’ are abolished *etc.* This is appropriate, even though this

articles 5, 43, 46 and also 23 (h) Hague Regulations’. U.S. Military Tribunal at Nürnberg, *Altstötter* (1948) VI *Law Reports* 55–57 and 59. See also *ibid.*, 8 *et seq.*

<sup>828</sup> *Altstötter* (1948) VI *Law Reports* 63 (see also at 94).

<sup>829</sup> *Altstötter* (1948) VI *Law Reports* 10–14.

<sup>830</sup> *Altstötter* (1948) VI *Law Reports* 63.

‘Some of the defendants took part in the enactment of laws and decrees the purpose of which was the extermination of Poles and Jews in Germany and throughout Europe. Others in executive positions, actively participated in the enforcement of those laws and in atrocities, illegal even under German law, in furtherance of the declared national purpose. Others, as judges, distorted and then applied the laws and decrees against Poles and Jews as such in disregard of every principle of judicial behaviour. ... *The discriminatory laws themselves formed the subject matter of war crimes and crimes against humanity with which the defendants are charged.* ... The extension to and application in [the occupied Polish territories] of the discriminatory law against Poles and Jews was in furtherance of the avowed purpose of racial persecution and extermination’. *Altstötter* (1948) VI *Law Reports* 62 (emphasis added).

<sup>831</sup> (1949) XV *Law Reports* 125, referring to *Altstötter* (1948) VI *Law Reports* 96–104.

<sup>832</sup> ‘Der Tatbestand umfasst nicht nur die Wirtschaftskriegführung, die in der Vergangenheit vielfach die Aufhebung und Aussetzung von Forderungen von Angehörigen des Kriegsgegners zur Erreichung ihrer Ziele nutzte. Auch *anderweitige Diskriminierungsmaßnahmen und Rechtsbeschränkungen* können darunter fallen’ (emphasis added).

war crime would generally appear to require the abolition etc. of important, substantial rights and actions, and not only trivial, isolated rights or even one single action.

530 The wording of article 8 para. 2 (b) (xiv) also suggests that the abolition *etc.* must generally concern rights and actions of *all or at least a substantial part of the persons belonging to the adversary party*. In view of the objective of the provision, it may also be sufficient if the rights and actions of a defined group of the adversary party, *e.g.* a specific ethnic group of the adversary, are effected. Article 8 para. 2 (b) (xiv) however certainly *does not apply to cases of individual withdrawal of rights*<sup>833</sup>.

531 Article 8 para. 2 (b) (xiv) literally criminalizes the *declaration* that rights and actions of the nationals of the hostile party are abolished *etc.*<sup>834</sup> However, the Preparatory Committee rightly considered that a mere declaration incapable of actually effecting the abolition *etc.* of these rights and actions, for instance a random man in the street idly declaring any sort of things, should not give rise to individual criminal responsibility for the war crime under article 8 para. 2 (b) (xiv). On the other hand, the word ‘declaring’ should not be understood too narrowly, for instance certainly including legislative or even general administrative acts aiming at generally abolishing *etc.* certain rights and actions of persons belonging to the adversary party to the conflict. Therefore, element 1 for article 8 para. 2 (b) (xiv) requiring that the perpetrator ‘effected the abolition [etc.] of certain rights and actions’ (emphasis added) appears appropriate<sup>835</sup>. The means how the perpetrator achieves the intended result of denial of judicial access however is not of relevance. A legal abolition *etc.* of rights and actions would be sufficient. It is not necessary that courts have actually refused legal actions and access to them<sup>836</sup>.

### 15. Paragraph 2(b)(xv): Compelling adversary nationals to take part in war operations

532 a) **Normative origins and drafting history.** Delegations adopted article 8 para. 2 (b) (xv) without any substantial debate as to its content and scope. The wording of the offence is identical with the final paragraph of article 23 of the 1907 Hague Regulations.

533 Forcing or pressuring nationals of the adversary to participate in efforts directly related to the war effort is furthermore prohibited under article 52 of the 1907 Hague Regulations<sup>837</sup> as well as the Geneva Conventions and the First Additional Protocol. Articles 49–57 GC III and articles 40, 51 and 95 GC IV regulate in more detail under what conditions prisoners of war, aliens in the territory of an adversary party, inhabitants of occupied territories and civilian internees may be required to do specific types of work.

534 The ICRC Commentary has affirmed that ‘a basic principle, universally recognised in the law of war, strictly prohibits belligerents from forcing enemy subject to take up arms against their own country’<sup>838</sup>. On the one hand, the prohibition underlying article 8 para. 2 (b) (xv)

<sup>833</sup> This view is also taken under § 9 para. 2, German Draft International Crimes Code (2 May 2001) which requires that the rights or claims of ‘all or an *essential part* of the persons belonging to the adversary party’ (emphasis added) are effected. The commentary to that provision explains that this threshold not explicitly contained in article 8 para. 2 (b) (xiv) ‘carries out the goal and objective of Article 8 para. 2 letter b (xiv), which ... bases on a methodical or systematic process and does not aim at covering individual conduct. In view of the great range of possible alternative conducts that could be covered, individual cases of withdrawing rights thus are not covered’. The commentary also affirms that embargo measures decided by the UN Security Council on the basis of Chapter VII of the UN Charter would not be covered.

<sup>834</sup> The words ‘*court of law*’ clearly qualify the inadmissibility, that is, inadmissibility in a court of law of the rights and actions, and do not mean that the declaration would have to be uttered in a court of law.

<sup>835</sup> See also Oppenheim and Lauterpacht, *International Law* (6th ed. 1994) 335, Bordwell, *The Law of War* (1908) 285. A similar case is the war crime under article 8 para. 2 (b) (xii) of ‘[d]eclaring that no quarter will be given’, with regard to which the elements require that the perpetrator who declared or ordered that there shall be no survivors ‘was in a position of effective command or control over the subordinate forces to which the declaration or order was directed’. On the drafting history of the elements for article 8 para. 2 (b)(xiv), see also Hosang, in: Lee *et al.* (eds.) *Elements of Crimes* (2001) s 173–174.

<sup>836</sup> See also Hosang, in: Lee *et al.* (eds.), *Elements of Crimes* (2001) 173–174.

<sup>837</sup> See also articles 45 and 46 Hague Regulations.

<sup>838</sup> Pictet (ed.), *Commentary IV*, Article 51 291.

(and (a)(v)) may have been adopted by States in order to exclude an infringement of each others' sovereign 'right' to their nationals' allegiance. The underlying objective of the prohibition appears to be, in the words of the ICRC Commentary, 'to prevent enemy aliens from being employed for purposes which conflict with the interests of their home country and are incompatible with their conscience and patriotic sentiments'<sup>839</sup>. Moreover, a participation in military operations against their own countries may put the individuals concerned in a difficult position upon their return to their country.

Compelling prisoners of war or civilians to serve in hostile forces or participate in operations of war during World War II has been found illegal under the laws of war in various war crimes trials referred to below, and has also been criminalized under various domestic legislations<sup>840</sup>.

Compelling a person under 15 to serve in hostile forces or to participate in military operations may also amount to the war crime spelled out under article 8 para. 2 (b) (xxvi) Rome Statute, consisting in conscripting or enlisting children or using them to participate actively in hostilities. Moreover, in the *Aleksovski* case, an ICTY Trial Chamber found that forcing detainees to dig trenches constitutes an outrage upon personal dignity amounting to a violation of the laws or customs of war under article 3 of the ICTY Statute<sup>841</sup>.

**b) Material elements. aa) Compelling.** The voluntary service in adversary armed forces or voluntary participation in adversary military operations is not prohibited, but only coercing or forcing, 'by act or threat' (element 1 for article 8 para. 2 (b) (xv)) to such actions amounts to a war crime. This is confirmed by the holding of the U.S. Military Tribunal in the *Weizsäcker et al.* case that 'it is not illegal to recruit prisoners of war who volunteer to fight against their own country, but pressure or coercion to compel such persons to enter into the armed services obviously violates international law'<sup>842</sup>.

**bb) Participation in operations of war directed against their own country.** Article 8 para. 2 (b) (xv) criminalizes compelling nationals of the adversary party 'to take part in the operations of war directed against their own country ...'. According to article 23 para. 2 Hague Regulations and the wording of article 8 para. 2 (b) (xv) Rome Statute, the operations of war must be *directed against the country to which the compelled person belongs*. This is confirmed by element 1 for article 8 para. 2 (b) (xv) which requires military operations 'against that person's own country or forces'<sup>843</sup>.

The interpretation of the notion of '*operations of war*' under article 8 para. 2 (b) (xv) Rome Statute is not easy, since in contemporary armed conflicts many types of work might be regarded as contributing to the country's war effort. Certainly, the term at least covers *any armed hostilities*, at least insofar directed against the compelled person's own country. Forcing someone to shoot combatants of his own country or to load a rocket to be propelled against troops of his country may clearly amount to a war crime under article 8 para. 2 (b) (xv).

It is less clear and appears controversial, however, whether and to what degree 'operations of war' also extend to actions only indirectly linked to armed hostilities. Does article 8

<sup>839</sup> Pictet (ed.), *Commentary IV*, Article 40 254.

<sup>840</sup> See, e.g., Chapter 22 (§ 6) (No. 6) of the Swedish Penal Code; article 282 (d) of the Penal Code of the Empire of Ethiopia of 1957; article 611 No. 3 of the Spanish Military Penal Code (Ley orgánica 10/95 of 23 Nov. 1995).

<sup>841</sup> *Prosecutor v. Aleksovski*, No. IT-95-14/1-T, Judgment, Trial Chamber, 25 June 1999, paras. 229 and 122–129.

<sup>842</sup> U.S. Military Tribunal at Nürnberg, *Weizsäcker et al.* (1949) 16 *AnnDig* 357.

<sup>843</sup> However, this interpretation is not the only possible: The Fourth Geneva Convention does not contain such a condition. Articles 40 para. 2 and 51 para. 2 GC IV clearly prohibit any involuntary work directly relating to the conduct of military operations, whether they are directed against the home country or not. This change has been considered important for the protection of adversary nationals by the Commentator of the ICRC (Pictet (ed.), *Commentary IV*, Article 51 297) and could arguably be considered as the contemporary meaning of the Hague prohibition.

para. 2(b) (xv) also criminalize compelling to war-related labor such as producing munitions or driving soldiers behind the front lines? As is true with respect to all war crimes, it is important to distinguish between what is merely prohibited under international law from what is, in addition, criminalized under the Rome Statute.

- 541 In the *Krupp* trial, the U.S. Military Tribunal at Nuremberg found that article 52 Hague Regulations, which similarly to article 23 para. 2 Hague Regulations prohibits involving inhabitants in ‘taking part in military operations against their own country’, had been violated by the employment of deportees in armament production<sup>844</sup>. *Erhard Milch* was charged with participation in ‘plans and enterprises involving the use of prisoners of war in war operations and work having a direct relation with war operations, including the manufacture and transportation of arms and munitions’, wherefore he was convicted for having forcibly recruited foreign workers for employment in German industry in violation of articles 52 and 6 Hague Regulations as well as article 31 of the 1929 Geneva Convention<sup>845</sup>. *Tanabe Koshiro* similarly was found guilty of ‘employing prisoners of war in an unlawful way’ in violation of article 6 Hague Regulations and article 31 of the 1929 Geneva Convention as the building of ammunition dumps or depots was considered work connected with the operations of war<sup>846</sup>.
- 542 The International Military Tribunal at Nuremberg furthermore appears to have interpreted the words ‘taking part in military operations against their own country’ widely ‘so as to include any work for the German war effort, including “German industry and agriculture”, and not merely “work on German fortifications and military installations”’<sup>847</sup>.
- 543 The United Nations War Crimes Commission, however, appears to have taken a more restrictive stance. Its Committee I in many cases ‘made a distinction between military operations and military preparations and declined to list as accused war criminals those responsible for forcing civilians to render assistance in constructing military roads, fortifications and the like behind the lines of military operations’<sup>848</sup>, suggesting however that impelling ‘inhabitants to do work at places or to construct fortifications at places where military operations were actually being conducted or were imminent’ might amount to a war crime<sup>849</sup>.
- 544 The Commission argues that ‘the practice of belligerents has distinguished between military operations and military preparations, and has not condemned as inadmissible compulsion upon inhabitants to render assistance in the construction of military roads, fortifications, and the like behind the front, or in any other works in preparation for military operations’<sup>850</sup>. Moreover, it points out that ‘all attempts [at negotiations on international instruments] to extend the prohibition to services which imply an obligation to take part in military preparations and the like have hitherto [up to the World War II] failed’<sup>851</sup>.
- 545 The Geneva Conventions of 1949 also deal with the question of what work inhabitants of occupied territory or prisoners of war may be compelled to do. Insofar as these provisions

<sup>844</sup> UNWCC, LRTWC, Vol. X 144 *et seqq.*, *Krupp et al.*, X *Law Reports* 167 (1949). The same Tribunal also stated that ‘it is apparent that the compulsory labour of the civilian population for the purpose of carrying out military operations against their own country is illegal’, Von Leeb *et al.* (1953) *Ann. Dig.* (1948) 389, *id.* (1949) XII *Law Reports* 89 and 92–93. The Dutch Court of Appeal subsumed construction of coast defences and seemingly ‘war preparations’ under ‘operations of war’, Court of Appeal (The Hague), *Bouquet and v. Slom*, (1947) 14 *Ann. Dig.* 308. A French Ordinance of 28 Aug. 1944 made ‘forced labour of civilians’ a war crime in its article 2 para. 5, see (1948) III *Law Reports* 52 and 96.

<sup>845</sup> *Milch* (1948) VII *Law Reports* 27, 28 and 43. On employment in the metal industry, see also General Tribunal at Rastadt of the military Government for the French Zone of Occupation in Germany, *Roehling et al.* (1948) 15 *Ann. Dig.* 410–411. See also Oppenheim and Lauterpacht, *International Law* (6<sup>th</sup> ed. 1944) 335, Bordwell (1908) *Law of War* 285–286.

<sup>846</sup> Netherlands Temporary Court-Martial at Macassar, *Koshiro* (1949) XI *Law Reports* 2.

<sup>847</sup> British Command Paper Cmd. 6964, pp. 56–60, cited in (1949) XV *Law Reports* 120.

<sup>848</sup> UNWCC, *History* 491 (1948) (emphasis of ‘behind’ added).

<sup>849</sup> *Ibid.*

<sup>850</sup> UNWCC, *History* 277 (1948) (emphasis in the original).

<sup>851</sup> UNWCC, *History* 228 (1948) (emphasis in the original).

‘permit’ compelling protected persons to do a certain type of work such compelling cannot constitute a war crime. Beyond that, however, it must be asked to what degree these provisions may be considered as reflecting the (customary) meaning of article 23 para. 2 Hague Regulations (respectively the war crime derived from that provision) as it has evolved since 1907.

According to article 50 GC III, prisoners of war may indeed be compelled to various types 546 of work, including agriculture; industries other than metallurgical, machinery and chemical industries, ‘public works and building operations which have no military character or purpose’, ‘transport and handling of stores which are not military in character or purpose’, and ‘public utility services having no military character or purpose’. Moreover, article 52 para. 1 GC III provides that prisoners of war may not be employed on labor which is ‘of an unhealthy or dangerous nature’.

With regard to aliens in the territory of a party to the conflict who are nationals of an 547 adversary, article 40 para. 2 GC IV provides that such persons ‘may only be compelled to do work which is normally necessary to ensure the feeding, sheltering, clothing, transport and health of human beings and which is not directly related to the conduct of military operations’.

In occupied territories, article 51 para. 2 GC IV ‘permits’ ‘work which is necessary either 548 for the needs of the army of occupation or for the public utility services, or for the feeding, sheltering, clothing, transportation or health of the population of the occupied country’<sup>852</sup> unless such work ‘would involve them in the obligation of taking part in military operations’. The ICRC Commentary on the wording ‘work which is necessary for the needs of the army of occupation’ specifies that the clause covers services such as ‘billeting and the provision of fodder, transport services, the repairing of roads [etc.] and laying telephone and telegraph lines. On the other hand it is generally agreed that the inhabitants of the occupied territory cannot be requisitioned for such work as the construction of fortifications, trenches or aerial bases. It is the *maintenance needs* of the army of occupation and *not its strategic or tactical requirements* which are referred to here’<sup>853</sup>. Thus, while according to the ICRC Commentary it is ‘quite certain ... that the Occupying Power cannot demand that protected persons should revive the war industry of the occupied country, nor force them to produce war material’, they may for instance be compelled to do agricultural work which does not directly relate to the war effort. The ICRC Commentary rightly points out that ‘the Fourth [Geneva] Convention applies to civilians and civilians are by definition outside the fighting. Any action on the part of the Occupying Power which had the effect of involving them, directly or indirectly, in the fighting and so preventing them from benefiting by special protection under the Convention must be regarded as unlawful’<sup>854</sup>.

## 16. Paragraph 2(b)(xvi): Pillage

**Literature:** Maschke, H., *Das Krupp-Urteil und das Problem der Plünderung* (1951); Stewart, J., *Corporate War Crimes: Prosecuting Pillage of Natural Resources* (2011) 19; Heck, H. et al., ‘Law Reports of Trials of Major War Criminals’, in J. Stewart: *Corporate War Crimes: Prosecuting Pillage of Natural Resources* (2011) 20; Gasser, H.-P., ‘Protection of the Civilian Population’, in: D. Fleck (ed.), *The Handbook of Humanitarian Law in Armed Conflicts* (1995);

a) **Normative origins and drafting history.** Pillage was prohibited already in the Lieber 549 Code of 1863 according to which ‘all pillage or sacking, even after taking place by main force [...] are prohibited under the penalty of death’<sup>855</sup>. The wording of the prohibition of pillage

<sup>852</sup> According to the Commentary, ‘public utility services’ must be understood as services ‘such as water, gas and electricity services, transport, health and similar services’, J.S.Picet (ed.), *Commentary*, IV, Article 51, 295. Besides, the Occupying Power may not compel protected persons to ensure the security of the installations anywhere compulsory work is being performed, article 51 para. 2 (third sentence) GC IV.

<sup>853</sup> J.S.Picet (ed.), *Commentary*, IV, Article 51, 297 (footnote omitted).

<sup>854</sup> For details see 146, *Trials of War Criminals Before the Nuremberg Military Tribunals*, Vol. IX, ‘The Krupp Case’, in particular, 23 *et seq.* and 1338 *et seq.*

<sup>855</sup> *Instructions for the Government of Armies of the United States in the Field (Lieber Code)* 24 April 1863, Article 44.



contained in article 8 para. 2 (b) (xvi) of the Statute was drawn from article 28 of the 1907 Hague Convention Respecting the Laws and Customs of War on Land. It is also formally forbidden under article 47 of that Convention.

550 The list of war crimes in the Nuremberg Charter similarly included ‘plunder of public and private property’. It was under this count that several persons were indicted and sentenced by a US Military Tribunal under Control Council Law No. 10<sup>856</sup>.

551 The prohibition of pillage has furthermore been reiterated in article 33 of the Fourth Geneva Convention of 1949<sup>857</sup>. Finally, a similar prohibition is also contained in article 4 para. 2 (g) of the Add. Prot. I of 1977 as well as in article 4 para. 3 of the 1954 Hague Convention for the Protection of Cultural Property in the Event of Armed Conflict. Besides, article 3 (e) of the Statute of the ICTY (referring to ‘plunder of public and private property’), article 4 (f) of the ICTR Statute (‘plunder’), as well as section 6.1. (b) (xvi) UNTAET Regulation No. 2000/15 on the Establishment of Panels with Exclusive Jurisdiction over Serious Criminal Offences, article 13 (b) No. 17 of the Statute of the Iraqi Special Tribunal (the wording of both of which is identical to the one in the Rome Statute), and finally article 3 (f) of the Statute of the Special Court for Sierra Leone (‘pillage’) contain similar prohibitions and make them war crimes subject to the jurisdiction of the respective tribunal.

An identical provision to article 8 para. 2 (b) (xvi), which in turn applies to non-international armed conflicts is contained in article 8 para. 2 (e) (v) of the Statute<sup>858</sup>.

552 The idea of including a prohibition of pillage into the list of war crimes which are subject to the jurisdiction of the ICC was contained in both the original proposals submitted by New Zealand and Switzerland<sup>859</sup> and the one introduced by the United States<sup>860</sup>. The exact wording of current article 8 para. 2 (b) (xvi) found its way into the Statute, however, from the text submitted by the United States.

553 **b) Definition of ‘pillage’.** There is no official definition of the term of ‘pillage’. It should be understood, however, as the unauthorized appropriation or obtaining of property in order to confer possession of it on oneself or on a third party against the will of the rightful owner. Accordingly, the definition embraces acts of plundering, looting and sacking<sup>861</sup>. This is confirmed by the elements of crimes adopted with regard to article 8 para. 2 (b) (xvi) which respectively refer to the fact that the perpetrator (1) must have appropriated certain property, (2) the perpetrator intended to deprive the owner of the property and to appropriate it for private or personal use, and that (3) the appropriation took place without the consent of the owner<sup>862</sup>. It seems to be doubtful, however, whether the very notion of pillage, as the jurisprudence of the ICTY seems to imply, necessarily by and of itself contains an element of violence<sup>863</sup>.

554 Moreover, the requirement that the appropriation be carried out for ‘private or personal use’, as required in the second element, has rightly been criticized as overly restrictive and without foundation in historical as well as recent jurisprudence<sup>864</sup>. The ICTY Trial Chamber in the *Hadžihasanović* case held that the laws of war ‘do not allow arbitrary and unjustified pillage for army purposes or for the individual use of army members’<sup>865</sup>. Even more explicitly, the

<sup>856</sup> For details UNWCC, LRTWC, Vol. X, 144 *et seq.* Trials Of War Criminals Before The Nuremberg Military Tribunals, ‘The Krupp Case’, in particular, 23 *et seq.* and 1338 *et seq.*

<sup>857</sup> See also article 15 para. 1 of the GC I and article 18 para. 1 of the GC II.

<sup>858</sup> For details see Zimmermann and Geiß, article 8 para. 2 (e) (v).

<sup>859</sup> UN Doc A/AC.249/1997/WG.1/DP.2, 2. (vi).

<sup>860</sup> UN Doc A/AC.249/1997/WG.1/DP.1, (B) (ix).

<sup>861</sup> *Prosecutor v. Brima et al.*, SCSL-04-16-T, Judgment, 20 June 2007, para. 754; see also *Prosecutor v. Fofana et al.*, SCSL-04-14-T, Judgment, 2 August 2007, para. 751.

<sup>862</sup> See also *Prosecutor v. Katanga and Ngudjolo Chui*, ICC-01/04-01/07, Decision on the Confirmation of Charges, Pre-Trial Chamber I, 26 September 2008, para. 328.

<sup>863</sup> *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgment, Trial Chamber, 16 November 1998, para. 591.

<sup>864</sup> Stewart, *Coperate War Crimes* (2011) 19.

<sup>865</sup> *Prosecutor v. Hadžihasanović*, IT-01-47-T, Judgment, Trial Chamber, 15 March 2006, para. 52 (emphasis added).



Special Court for Sierra Leone has held that ‘the requirement of ‘private or personal use’ is unduly restrictive and ought not to be an element of the crime of pillage’<sup>866</sup>.

c) **Isolated acts and organised forms.** The prohibition covers both, pillage through individual acts without the consent of the military authorities resulting from isolated acts of indiscipline, as well as organized pillage<sup>867</sup>. It also covers officially authorized forms of plundering when the appropriation of the respective property was not imperatively demanded by military necessity.

Given the fact that the jurisdiction of the ICC shall be limited to the most serious crimes of concern to the international community as a whole<sup>868</sup>, it is submitted that isolated incidents of pillage, which only concern items of marginal value and which are not committed on a somewhat larger scale would normally not be subject to the jurisdiction of the ICC. It has to be noted, however, that the elements of crimes, as adopted by the Assembly of States Parties, do not make reference to any such limitation.

d) **Scope of property protected.** As a matter of principle, the prohibition extends to all types of property, whether they belong to private persons or to communities or the State<sup>869</sup>. In the *Katanga* decision the Chamber held that ‘the pillaged property – whether moveable or immovable, private or public – must belong to individuals or entities who are aligned with or whose allegiance is to a party to the conflict who is adverse or hostile to the perpetrator’<sup>870</sup>.

The scope of the prohibition is however limited by a belligerent’s right of requisition and seizure<sup>871</sup>. This seems to be inherent in the very term of ‘pillage’. The elements of crimes conform to this approach by stating in footnote 47 accompanying the elements of crimes that ‘appropriations justified by military necessity cannot constitute the crime of pillaging’ since under such circumstances the appropriations concerned would have never taken place for private for personal use.

This provision in the aforesaid footnote 47, however, has rightly been described as inaccurate<sup>872</sup>. Because contrary to what footnote 47 seems to imply, military necessity must never function as an independent justification under the laws of war, except in those cases where ‘military necessity’ is explicitly mentioned as a legitimate exception to a given rule<sup>873</sup>. Pillage, however, is prohibited in absolute terms without any mentioning of a permissible ‘military necessity-exception’.

Moreover, during the negotiation of the Hague Regulations ‘military necessity’ was considered but dismissed as an acceptable justification for pillage because relevant exceptions had already been included into the Hague Regulations<sup>874</sup>. Therefore, rather than relying on ‘military necessity’ as such, in the *IG Farben* case the U.S. Military Tribunal referred to the acquisition of ‘private property against the will and consent of the former owner, [and] such action, not being expressly justified by any applicable provision of the Hague Regulations...’<sup>875</sup>. Similarly, and more recently, the ICTY Trial Chamber in the *Martić* case defined

<sup>866</sup> *Prosecutor v. Brima et al.*, SCSL-04-16-T, Judgment, 20 June 2007, para. 754; see also *Prosecutor v. Fofana et al.*, SCSL-04-14-T, SCSL Trial Chamber, 2 August 2007, para. 160.

<sup>867</sup> Sandoz et al. (eds.), *Commentary* (1987), para. 4542.

<sup>868</sup> For details see Zimmermann, *article 5*, mn 8.

<sup>869</sup> Sandoz et al. (eds.), *Commentary* (1987) 244.

<sup>870</sup> *Prosecutor v. Katanga and Ngudjolo Chui*, 01/04-01/07, Decision on the confirmation of charges, Pre-Trial Chamber I, 26 Sept. 2008, para. 329.

<sup>871</sup> For details as to the right of requisition and seizure see above Zimmermann, *article 8 para. 2 (b) (xiii)*, mn 484 *et seq.*

<sup>872</sup> Stewart, *Corporate War Crimes* (2011) 21.

<sup>873</sup> See only Heck et al., *Law Reports of Trials of Major War Criminals Vol. I*, ‘Peelus Case’, cited in: Stewart, *Corporate War Crimes* (2011) 20.

<sup>874</sup> Stewart, *Corporate War Crimes* (2011) 20.

<sup>875</sup> *United States v. Krauch et al.*, *Trials of War Criminals Before the Nuremberg Military Tribunals Vol. III*, ‘The IG Farben Trial’ 1081, 1133.

pillage as appropriation of either public or private property without the consent of the owner, subject to the same set of limitations set out in the 1907 Hague Regulations<sup>876</sup>.

561 e) **Addressees of the prohibition.** The prohibition is addressed not only to combatants but to any person, without restriction.

562 f) **Scope of application.** The prohibition of pillage seems to apply not only to occupied territory *stricto sensu* but also to the period which precedes the actual occupation of territory<sup>877</sup>. Accordingly, it also applies during the time of ongoing military operations<sup>878</sup>. This is confirmed by the fact that article 33 of the Fourth Geneva Convention, which had already enshrined the customary law prohibition of pillage, forms part of the general provisions of the Fourth Geneva Convention relating to the status of civilians<sup>879</sup>. Besides, the very wording of article 8 para. 2 (b) (xvi) was, as mentioned, derived from article 28 of the 1907 Hague Convention Respecting the Laws and Customs of War on Land, which in turn figures in chapter I of that Convention dealing with means and methods of warfare. Finally, the elements of crimes, as adopted, neither contain any hint of such a limitation.

563 Yet, the *Katanga* decision held that the war crime of pillaging might only occur when the enemy's property has come under the control of the perpetrator since in the Chamber's view. Only then would the perpetrator be in a position to 'appropriate' such property<sup>880</sup>.

564 The addition of the words 'even when taken by assault' further underlines the fact that the prohibition applies to all different kinds of military situations, *i. e.* it applies regardless of whether a given area was conquered by force or whether the adversarial forces surrendered.

#### Preliminary remarks on subparagraphs (xvii)–(xx):

##### Prohibited weapons: Drafting History

565 The Statute confers the ICC jurisdiction over the employment of the prohibited weapons specifically described in article 8 para. 2 (b) (xvii), (xviii) and (xix). In addition, article 8 para. 2 (b) (xx) provides explicitly for the possibility to confer on the Court jurisdiction over further weapons fulfilling certain requirements by including them in an annex to the Statute.

566 The inclusion of offences relating to prohibited weapons was one of the most controversial and difficult issues to resolve at the Rome Conference<sup>881</sup>. With regard to means of warfare and in particular weapons, contemporary international humanitarian law essentially takes two approaches. On the one hand, a general principle of humanitarian law prohibits the use of means of warfare that cause superfluous injury or unnecessary suffering or are inherently indiscriminate, leaving it to practice to specify what types of weapons and other means of warfare are thereby excluded. On the other hand, certain weapons are banned *per se* under specific treaties and customary international law. In view of these two basic and parallel approaches of humanitarian law, negotiators of the Rome Statute debated whether the ICC should have jurisdiction over exhaustively listed prohibited weapons, or rather over a generic category of weapons which would be open to evolution over time in view of the evaluation of the customary law concerned<sup>882</sup>.

<sup>876</sup> *Prosecutor v. Martić*, IT-95-11-T, Judgment, Trial Chamber, 10 June 2007, para. 102.

<sup>877</sup> As to the scope of application of destroying or seizing the enemy's property under article 8 para. 2 (b) (xiii) of the Statute see Zimmermann and Geiß, above, mn 144 *et seq.*

<sup>878</sup> Gasser, in: Fleck (ed.), *Handbook* (1995), mn 536.

<sup>879</sup> Gasser, in: Fleck (ed.), *Handbook* (1995), mn 536.

<sup>880</sup> *Prosecutor v. Katanga and Ngudjolo Chui*, 01/04-01/07, Decision on the confirmation of charges, Pre-Trial Chamber I, 26 Sept. 2008, para. 330.

<sup>881</sup> On the drafting history of article 8(2)(b)(xvii)–(xx), see von Hebel and Robinson, in: Lee (ed.), *The Making of the Rome Statute* (1999), 113–116; Schabas, *An Introduction to the International Criminal Court* (2001) 48–49; Clark (1998) 28 *CalWestILJ* 379; *id.*, *Letter to: Readers of my Tribute to Howard Berman on Weapons of a Nature to Cause Superfluous Injury or Unnecessary Suffering, or which are Inherently Indiscriminate* (4 Aug. 1998).

<sup>882</sup> Some of the general clauses proposed up to the adoption of the Rome Statute were based on article 23 (e) Hague Regulations ('arms, projectiles, or material calculated to cause unnecessary suffering'), while others drew on the more modern language in Additional Protocol I, prohibiting the employment of 'weapons, projectiles and

While the 1994 ILC Draft Statute did not include any offence criminalizing the employment of prohibited weapons<sup>883</sup>, the Preparatory Committee considered such offence early on. The 1996 Preparatory Committee sessions resulted in two different options of weapons-related offences, the first of which criminalized the ‘employment of poisonous weapons or other weapons calculated to cause unnecessary suffering’<sup>884</sup>, while the other option contained an exhaustive list of prohibited weapons, referring to biological and chemical weapons as well as ‘projectiles which are explosive or charged with fulminating or inflammable substances’ and expanding and flattening bullets<sup>885</sup>. At the February 1997 session of the Preparatory Committee, the offence of employing poison or poisoned weapons met broad agreement and was therefore included without brackets<sup>886</sup>. In addition, the report of that session contains a longer, bracketed list of weapons, including reference to the ‘us[e] or the threat of use of nuclear weapons’. However, the list was still controversial, as was the question whether it should be exhaustive or indicative, and whether a general clause should head it<sup>887</sup>.

The December 1997 Preparatory Committee session resulted in four different options<sup>888</sup>. The first option contained a closed list of weapons referring to biological and chemical weapons as well as the three types of weapons now contained in paragraphs (xvii), (xviii) and (xix). The second option combined the same list of weapons with an open-ended clause allowing the Court to extend the list by those weapons that ‘become the subject of a comprehensive prohibition pursuant to customary or conventional international law’. The third option contained no list of weapons but only a general clause ruling out weapons and methods of warfare ‘which are of a nature to cause superfluous injury or unnecessary suffering or which are inherently indiscriminate’. The last option contained a longer list of prohibited weapons, including anti-personnel mines, blinding laser weapons and ‘such other weapons or weapons systems as become the subject of a comprehensive prohibition pursuant to customary or conventional international law’. These four options were eventually transmitted to the Rome Conference<sup>889</sup>.

During the first weeks of the Diplomatic Conference, there was a deadlock on the weapons issue which was only resolved – as is often the case with regard to the most difficult issues at multilateral negotiations – in the final days of the Conference<sup>890</sup>. A general clause was

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material and methods of warfare that are of a nature to cause superfluous injury or unnecessary suffering’ (article 35) or weapons which are inherently ‘indiscriminate’ (in particular articles 51 para. 4 and 85 para. 3 (b) Add. Prot. I).

<sup>883</sup> In contrast, article 20 (e) (i) of the 1996 ILC Draft Code criminalized the ‘employment of poisonous weapons or other weapons calculated to cause unnecessary suffering’.

<sup>884</sup> 1996 Preparatory Committee II 60 (2a) and 62 (2a).

<sup>885</sup> 1996 Preparatory Committee II 64: ‘(j) using certain categories of projectiles which are explosive or charged with fulminating or inflammable substances, such as those referred to in the St. Petersburg Declaration of 1868; (k) using bullets which expand or flatten easily inside the human body, as defined in the Hague Declaration of 29 July 1899;

(l) using asphyxiating, poisonous or other gases and bacteriological methods as defined in the Geneva Protocol of 1925, as well as microbial agents or toxins, as defined in the 1972 Biological Weapons Convention;

(m) using chemical weapons as defined in article 2 of the 1993 Convention on the Prohibition of the Development, Production, Stockpiling and Use of Chemical Weapons and on their Destruction’.

<sup>886</sup> Preparatory Committee Decisions Feb. 1997 10.

<sup>887</sup> Preparatory Committee Decisions Feb. 1997 10–11.

<sup>888</sup> Preparatory Committee Decisions Dec. 1997 8–11.

<sup>889</sup> Preparatory Committee (Consolidated) Draft 22–24.

<sup>890</sup> A first semi-formal sign of movement was the Bureau proposal on 6 July 1998, 12 days before the end of the Rome Conference, to narrow down the options to the following three options (the first of which was based on the first two proposals forwarded to the Diplomatic Conference), Discussion Paper of the Bureau on Part 2, UN Doc. A/CONF.183/C.1/L.53 (6 July 1998), article 5 (o):

**‘Option 1**

Employing the following weapons, projectiles and material and methods of warfare which are of a nature to cause superfluous injury or unnecessary suffering:

- (i) Poison or poisoned weapons,
- (ii) Asphyxiating, poisonous or other gases, and all analogous liquids, materials or devices,
- (iii) Bullets which expand or flatten easily in the human body, such as bullets with a hard envelope which does not entirely cover the core or is pierced with incisions,

supported by many delegations but rejected by others, the latter ones arguing, *inter alia*, that its vagueness did not allow combatants to know what weapons would fall under ICC jurisdiction. The nuclear powers and other delegations strongly opposed an open clause automatically including weapons that might, in the future or by the judges, be considered contrary to customary international law.

570 The vast majority of delegations agreed that the employment of biological and chemical weapons should be included as war crimes under ICC jurisdiction. Yet, a few delegations from states of the non-aligned movement, sensitive to the threat of neighbouring states possessing nuclear weapons, viewed biological and chemical weapons (based on the 1993 Convention definition) as the ‘poor man’s weapons of mass destruction’, and did not agree on nuclear weapons to be treated differently. Arab states, India, Pakistan and Pacific states strongly sponsored the inclusion of nuclear weapons under ICC jurisdiction, and they were supported by a number of other states from Africa, Asia and Latin America. However, especially the nuclear powers (apart from Pakistan and India) adamantly opposed any reference to nuclear weapons. When it became clear that an agreement to include nuclear weapons could not be reached<sup>891</sup>, delegations from the non-aligned movement strongly opposed the inclusion of biological and chemical weapons<sup>892</sup>. Since this issue was a no-go for both sides, the Conference’s Bureau proposed, as a ‘compromise’ incorporated in the take-it-or-leave-it global package of the last day, a list which did not include any explicit reference to either nuclear, biological or chemical weapons<sup>893</sup>. Neither did the list refer to blinding laser weapons or the controversial issue of anti-personnel mines.

571 Since the majority of delegations considered the short list of prohibited weapons under the Statute clearly unsatisfactory, subparagraph (xx) was adopted as a reminder and ‘space-holder’ to explicitly refer to the possibility to add, at a future Review Conference or Assembly of States Parties, further weapons and means of warfare to the jurisdiction of the ICC. Of course, subparagraph (xx) might seem superfluous considering that articles 121 and 123 of the Statute provide that Review Conferences may amend the Rome Statute. However, it was meant to signal that, given that the list of weapons included under the Rome Statute in 1998 was considered too short by many delegations, the future inclusion of additional weapons under ICC jurisdiction was deemed necessary and desirable by the Rome Conference.

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- (iv) Bacteriological (biological) agents or toxins for hostile purposes or in armed conflict,
  - (v) Chemical weapons as defined in and prohibited by the 1993 Convention on the Prohibition of the Development, Production, Stockpiling and Use of Chemical Weapons and On Their Destruction,
  - (vi) Such other weapons or weapons systems as become the subject of a comprehensive prohibition, subject to a determination to that effect by the Assembly of States Parties, in accordance with the procedure laid down in article 111 of this Statute;

#### Option 2

Employing the following weapons, projectiles and material and methods of warfare which are of a nature to cause superfluous injury or unnecessary suffering or which are inherently indiscriminate:

[(i) – (v) are identical with (i) – (v) of Option 1]

- (vi) Nuclear weapons,
- (vii) Anti-personnel mines,
- (viii) Blinding laser weapons,
- [(ix) is identical with (vi) of Option 1];

#### Option 3

Employing weapons, projectiles and material and methods of warfare which are of a nature to cause superfluous injury or unnecessary suffering or which are inherently indiscriminate in violation of international humanitarian law’.

<sup>891</sup> ‘To use the Statute to ban such weapons, despite 50 years of unsuccessful disarmament talks, might [have been] fatal for the creation of the Court’, von Hebel and Robinson, in: Lee (ed.), *The Making of the Rome Statute* (1999) 115.

<sup>892</sup> The Bureau proposal of 10 July 1998 had excluded nuclear weapons but still retained biological and chemical weapons, Bureau Proposal on Part 2, UN Doc. A/CONF.183/C.1/L.59 (10 July 1998), p. 6.

<sup>893</sup> UN Doc. A/CONF.183/C.1/L.76 and Adds. (dated 16 July 1998, but coming out between 1 and 3 a.m. of 17 July 1998). Just before the adoption of the Draft Statute, the issue of nuclear weapons was again raised just in the Committee of the Whole, see Lee, *The Rome Conference and Its Contributions to International Law*, in: Lee (ed.), *The Making of the Rome Statute* (1999) 24–25.

Armed conflicts since 1998 have continued to witness the employment of means of warfare the legality of which is disputed. New technologies will continue to lead to the development of new and often controversial weapons<sup>894</sup>. Whether further weapons should be criminalized under the Rome Statute is therefore likely to continue to be one of the controversial issues at future Review Conferences and Assemblies of States Parties.

Against this background, it is not entirely surprising that no new weapons were incorporated under article 8 para. 2 (b) (xx) at the first Rome Statute Review Conference 2010 in Kampala. Both Belgium<sup>895</sup> and Mexico<sup>896</sup> had originally proposed to criminalize the use of further means of warfare, including biological, chemical and nuclear weapons. However, to avoid certain and strong controversy on the weapons issue – as was done also with regard to other issues that were highly controversial in Rome – it was eventually agreed to submit for discussion in Kampala only the proposal to criminalize the use of weapons listed in article 8 para. 2 (b) (xvii) – (xix) also in the context of armed conflicts not of an international character, and therefore include them under subparagraph (e). Delegations generally agreed that the prohibition of the use of these weapons in non-international armed conflicts reflects customary international law<sup>897</sup>. The plenary of the Review Conference therefore adopted this proposal by consensus and as the only amendment to the Statute regarding weapons<sup>898</sup>.

### 17. Paragraph 2(b)(xvii): Employing poison or poisoned weapons

Poison and poisoned weapons have been used as a means of warfare in ancient as well as more recent history and up until today<sup>899</sup>. Article 8 para. 2 (b) (xvii) is drawn from and identical to article 23 (a) Hague Regulations. The use of poison and poisoned weapons in times of armed conflict has been banned since ancient times<sup>900</sup> and is subject to a well-established prohibition<sup>901</sup>. Article 70 of the 1863 Lieber Code provided that '[t]he use of poison in any manner, be it to poison wells, or food, or arms, is wholly excluded from modern warfare. He that uses it puts himself out of the pale of the law and usages of war'.

Poisoning wells has also been considered a violation of the laws and customs of war by the Responsibilities Commission of the 1919 Paris Peace Conference<sup>902</sup> and a war crime under

<sup>894</sup> As, e.g., the use of cluster munitions and weaponry containing depleted uranium, see ICTY, Final Report to the Prosecutor by the Committee Established to Review the NATO Bombing Campaign Against the Federal Republic of Yugoslavia.

<sup>895</sup> The Belgian proposal included: the penalization of poison, poisonous gases and expanding bullets in article 8 para. 2 (e); the express criminalization of biological and chemical weapons as well as anti-personnel mines in both international and non-international armed conflicts; and the criminalization of weapons prohibited by Protocols I and IV to the Conventional Weapons Convention, i.e., non-detectable fragments and blinding laser weapons in both international and non-international armed conflicts. Letter by Belgium to the UN Secretary-General, Draft Amendments to the Rome Statute on War Crimes, 29 September 2009.

<sup>896</sup> Mexico proposed to add the following provision to article 8 para. 2 (b): '... Employing nuclear weapons or threatening to employ nuclear weapons.' Letter by Mexico to the UN Secretary-General, Draft Amendments to the Rome Statute on War Crimes, Amendment to Article 8 of the Rome Statute of the International Criminal Court regarding the use of Nuclear Weapons, 29 September 2009.

<sup>897</sup> See ICRC Study on Customary IHL (2005) Rules 72 and 77.

<sup>898</sup> Resolution RC/Res. 5, Annex I.

<sup>899</sup> This method appears to have been used by the ancient Greeks, to poison the indigenous populations of colonies including today's United States, as well as in contemporary conflicts. See, e.g., Detter, *The Law of War* (2000) 252.

<sup>900</sup> The Indian Code of Manu of around 200 Before Christ for instance provided that 'when the king fights his foes in battle, let him not strike with weapons concealed (in wood), nor with barbed, poisoned ... These are the weapons of the wicked', Sinha (2005) 87 *IRevRC* 291. Grotius had stated that the law of nations – 'at least among the better peoples' respectively 'the European and culturally related peoples' – for a long time had prohibited to kill the enemy with poison, to use poisoned weapons or to poison wells, Grotius, *De iure belli ac pacis* (1625), Third Book, Fourth Chapter, XV and XVI. Such a prohibition was also found in article 13 (a) of a Project of an International Declaration concerning the Laws and Customs of War of the 1874 Brussels Conference and in article 8 of the 1880 Oxford Manual.

<sup>901</sup> See, e.g., Green, in: *id.* (ed.), *Essays of the Modern Law of War* (1999) 352.

<sup>902</sup> 'Report of the Commission' (1920) 14 *AJIL* 115.

national laws<sup>903</sup>. The inclusion of this war crime under the Rome Statute was not controversial at the Rome Conference<sup>904</sup>. The poisoning of wells as well as water or food supplies clearly amounts to '[e]mploying poison or poisoned weapons' under article 8 para. 2 (b) (xvii).

576 In some writers' view, article 8 para. 2 (b) (xvii) also extends to the employment of at least *certain biological* weapons. For instance, *Detter* considers the prohibition of poison or poisoned weapons 'the first prohibition of [chemical and biological weapons] and it is clear that it covers weapons deliberately contaminated with germs or poisonous agents'<sup>905</sup>. *Greenspan* similarly states that '[g]as and bacteriological warfare may be regarded as particular instances of infringements against the general prohibition of poison or poisoned weapons in war'<sup>906</sup>. Also, the US Department of the Air Force has defined 'poison' as 'biological or chemical substances causing death or disability with permanent effects when, in even small quantities, they are inserted, enter the lungs or bloodstream, or touch the skin'<sup>907</sup>.

577 It is not clear whether, as some argue, by implication the prohibition of poison also covers *gas*<sup>908</sup>. The Oxford English Dictionary defines 'poison' as '[a]ny substance which, when introduced into or absorbed by a living organism, destroys life or injures health, irrespective of mechanical means or direct thermal changes. Popularly applied to a substance capable of destroying life by rapid action, and when taken in small quantity'<sup>909</sup>, thus possibly also applying to gas. However, the employment of gas is clearly covered under article 8 para. 2 (b) (xviii), which is the more pertinent provision in this context.

578 The Preparatory Commission avoided the difficult task of defining 'poison'. Instead, it adopted a threshold relating to the effects of the substance used, changing the nature of the absolute prohibition of poison under the Rome Statute to a prohibition of using a certain substance in a certain way that can be expected to create a defined result. Element 2 for article 8 para. 2 (b) (xvii) requires that '[t]he substance [employed or released by the employed weapons] was such that it causes death or serious damage to health in the ordinary course of events, through its toxic properties'. The reference only to toxic properties suggests, firstly, that biological weapons are not covered. Secondly, the reference only to 'death or serious damage to health' suggests that attacks against animals or plants, for instance the use of herbicides, that do not seriously endanger the health of humans are not covered under subparagraph (xvii). Thirdly, the requirement of the result of 'death or serious damage to health in the ordinary course of events' establishes a minimum threshold<sup>910</sup>. The phrase 'in the ordinary course of events' requires interpretation. The effect of certain substances on humans depends on factors such as the dosage and the concentration effecting the organism, the state and sensitivity of the organism as well as how the substance enters the organism. Alcohol, medicines and even numerous components of food consumed daily by millions of humans can be deadly in a high dosage. As Paracelsus rightly found, the difference between a poison and a medicine often lies only in the dosage. One way to understand the phrase 'in the ordinary course of events' might be as requiring that the amount or rather concentration of the substance would in circumstances comparable to those in which it is intended to be used likely cause death or serious damage to health. It is, therefore, to be construed as a restrictive requirement of this provision; it is meant to exclude from the scope of article 8

<sup>903</sup> See, e.g., Australian Law Concerning Trials of War Criminals by Military Courts, V *Law Reports* 96 (1948); Netherlands East Indies Statute Book Decree No. 44 of 1946, XI *Law Reports* 94 (1949); Chinese Law governing the Trial of War Criminals of 24 Oct. 1946, XIV *Law Reports* 154 (1949); for further examples, see ICRC Study on Customary IHL (2005) Rule 72.

<sup>904</sup> It had already been proposed in article 20 (e) (i) of the 1996 ILC Draft Code.

<sup>905</sup> *Detter, The Law of War* (2000) 252.

<sup>906</sup> *Greenspan, The Modern Law* (1959) 359.

<sup>907</sup> U.S. Air Force's 1976 manual, *International Law: The Conduct of Armed Conflict and Air Operations* 6-5.

<sup>908</sup> See Kelsen, *Principles of International Law* (1966) 97. See also Oeter, in: Fleck (ed.), *Handbook IHL* (2013), marginal no. 437.

<sup>909</sup> *Oxford English Dictionary* VII (1933) 1056.

<sup>910</sup> The addition of the qualifier 'serious' initially met some opposition, but was eventually adopted.



para. 2 (b) (xvii) such means of warfare the result of which – death or serious damage to health – is not inherent in the weapon itself, but rather accidental.

Article 8 para. 2 (b) (xvii) overlaps to a considerable degree with the war crime of using gases and analogous liquids, materials and devices under article 8 para. 2 (b) (xviii), since the latter prohibition applies also to poisonous gases and possibly to poison in general, see below. With regard to gaseous forms of poisonous weapons, however, subparagraph (xviii) must be considered *lex specialis* in relation to subparagraph (xvii).

### 18. Paragraph 2(b)(xviii): ‘Employing gases and analogous liquids, materials or devices’

a) **Humanitarian law base and drafting history.** Article 8 para. 2 (b) (xviii) is drawn from the 1925 Geneva Protocol for the Prohibition of the Use in War of Asphyxiating, Poisonous or other Gases, and of Bacteriological Methods of Warfare which prohibits ‘the use in war of asphyxiating, poisonous or other gases, and of all analogous liquids, materials or devices’. This prohibition is considered part of customary international law<sup>911</sup>.

The Protocol itself indicates that it reaffirms a pre-existing ban. In fact, the prohibition is reflected with similar or even identical wording in several international instruments, in particular the 1899 Hague Declaration concerning Asphyxiating Gases (IV, 2), the Washington Treaty relating to the Use of Submarines and Noxious Gases in Warfare of 6 February 1922, which never entered into force since France did not ratify it, and in several peace treaties of 1919–1920, most notably in article 171 para. 1 of the Versailles Peace Treaty which contains the words ‘[t]he use of asphyxiating, poisonous or other gases and all analogous liquids, materials or devices being prohibited ...’<sup>912</sup>.

As described above, the inclusion of offences criminalizing the employment of weapons of mass destruction was one of the most controversial issues at the Rome Conference. While an offense explicitly referring to ‘chemical weapons’ or to the 1993 Chemical Weapons Convention was not retained, subparagraph (xviii) survived. It cannot be excluded that some delegates at the Rome Conference were not fully aware that the eventually agreed language generally had been understood to also refer to chemical weapons. The wording dating back to 1925 gave rise to substantial discussion within the Preparatory Commission, including the question as to how far developments in the law relating to chemical and biological warfare since 1925 had to be taken into account, given the exclusion of an explicit reference to the 1993 Convention. The Preparatory Commission tried to partially clarify the vague wording stemming from the 1925 Protocol, debating in particular whether and, if so, to what extent the use of riot control agents would be criminalized under article 8 para. 2 (b) (xviii).

b) **Material elements.** aa) **Chemical weapons.** The wording of the 1925 Geneva Protocol, as repeated in article 8 para. 2 (b) (xviii), has generally been understood to apply to a broad range of chemical weapons<sup>913</sup>. The UN General Assembly for instance recognized in its Resolution 2603 A of 1969, adopted with 80 votes in favor, 3 against and 36 abstentions, that ‘the Geneva Protocol embodies the generally recognized rules of international law prohibiting the use in international armed conflicts of *all biological and chemical methods of warfare*, regardless of any technical developments’ and declared ‘as contrary to the generally recognized rules of international law, as embodied in the [1925 Geneva Protocol], the use in

<sup>911</sup> See, e.g., Goldblat, *Arms Control: The New Guide to Negotiations and Agreements* (2002) 137; Oeter, in: Fleck (ed.), *Handbook IHL* (2013), marginal no. 437; UN Doc. A/RES/2603 A (XXIV) (16 Dec. 1969); Final Declaration of the Conference of States Parties to the 1925 Geneva Protocol and other Interested States on the Prohibition of Chemical Weapons (7–11 Jan. 1989).

<sup>912</sup> See, e.g., Goldblat, *Arms Control* (2002) 135; Van Wynen and Thomas, *Legal Limits on the Use of Chemical and Biological Weapons* (1970).

<sup>913</sup> See, e.g., Goldblat (1997) *IREVRC* 251, (‘the Geneva Protocol ... banned the use of asphyxiating, poisonous or other gases, usually referred to as chemical weapons’).

international armed conflict of: (a) *Any chemical agents of warfare – chemical substances, whether gaseous, liquid or solid – which might be employed because of their direct toxic effects on man, animals or plants ...*<sup>914</sup>. Similarly, states parties to the 1993 Chemical Weapons Convention ‘recall[ed] that the General Assembly of the United Nations has repeatedly condemned all actions contrary to the principles and objectives of the [1925 Geneva Protocol], [r]ecogniz[ed] that this Convention reaffirms principles and objectives of and obligations assumed under the Geneva Protocol of 1925 ... [and were] [d]etermined ... to exclude completely the possibility of the use of chemical weapons, through the implementation of the provisions of this Convention, thereby complementing the obligations assumed under the Geneva Protocol of 1925’<sup>915</sup>. The UN Security Council likewise has condemned ‘the use of chemical weapons in the conflict between the Islamic Republic of Iran and Iraq, in violation of obligations under the [1925 Geneva Protocol]’<sup>916</sup>.

584 Based on the differing French and English version, there are two main interpretations as to what types of *gases* are ruled out by the prohibition. The English wording covers *all* types of gases since it refers to ‘asphyxiating, poisonous or *other* gases’ (emphasis added) without qualifying the term ‘other’. The French version of both article 8 para. 2 (b) (xviii) as well as the 1925 Geneva Protocol (which is authentic in both French and English) however refers to *similar* gases<sup>917</sup>, suggesting that only gases with an effect similar to asphyxiation or poisoning are covered. According to *Bothe*, the drafting history of the 1925 Geneva Protocol as well as the *opinio iuris* after World War I indicates however that all types of gases were meant to be prohibited<sup>918</sup>. Several authors<sup>919</sup> as well as the above-cited resolution of the UN General Assembly<sup>920</sup> affirm that ‘any’ gaseous chemical substance is prohibited. Element 1 for article 8 para. 2 (b) (xviii) reflects the view of the Preparatory Commission that all gases are covered under the prohibition: ‘The perpetrator employed a gas ...’. One can therefore say that while the text of the Protocol allows both a restrictive and a broad interpretation, states parties to the Protocol have interpreted it broadly<sup>921</sup>.

585 A particularly difficult issue debated by the Preparatory Commission is whether the prohibition under article 8 para. 2 (b) (xviii) also applies to *riot control agents* such as tear gas (insofar, of course, as it is used in the context of an armed conflict). One author, *Spaight*, noted in 1947 that ‘[t]he Gas Protocol prohibits ... not only poisonous and asphyxiating gases but also ‘other gases’ and (to emphasize the comprehensiveness of the prohibition) ‘all analogous liquids, materials or devices’. It condemns, therefore, not only lethal but also non-toxic or anesthetic gases. The argument that the use of a gas is permissible because its effect is not to kill but merely to stupefy temporarily those within its radius of action, cannot be sustained in face of the definite terms of the treaty’<sup>922</sup>.

586 In 1930, the Preparatory Commission for the Disarmament Conference attempted to clarify this issue with regard to the 1925 Geneva Protocol. The French, the British as well as eleven other members of the Commission took the view that also lachrymatory gases such as tear gas are prohibited under the Protocol. Only the US, which was not party to the Protocol at that time, dissented and argued that it would be inconsistent to prohibit the use of gases in

<sup>914</sup> UN Doc. A/RES/2603 A (XXIV) (16 Dec. 1969) (emphasis added).

<sup>915</sup> Preamble, Convention on the Prohibition of the Development, Production, Stockpiling and Use of Chemical Weapons and on their Destruction of 13 Jan. 1993.

<sup>916</sup> UN Doc. S/RES/620 (26 Aug. 1988).

<sup>917</sup> ‘Le fait d’utiliser des gaz asphyxiants, toxiques ou *similaires* ...’ (emphasis added), as corrected on 30 November 1999.

<sup>918</sup> See, e.g., *Bothe*, in: Bernhardt (ed.), *Encyclopedia of Public International Law*, Vol. III (1982) 84.

<sup>919</sup> See, e.g., *Bothe*, in: Bernhardt (ed.), *Encyclopedia of Public International Law*, Vol. III (1997) 84; Sandoz, *Des Armes Interdites en Droit de la Guerre* (1975) 88. See also Detter, *The Law of War* (2000) 258.

<sup>920</sup> UN Doc. A/RES/2603 A (XXIV) (16 Dec. 1969).

<sup>921</sup> Baxter and Buergenthal (1970) 64 AJIL 866.

<sup>922</sup> *Spaight*, *Air Power and War Rights* (3<sup>rd</sup> ed., 1947), cited in Whiteman (1968) 10 *Digest of International Law* 459. See also Rousseau, *Le Droit des Conflits Armés* (1983) 119 *et seq.*

armed conflict situations while they could be used in peacetime for police purposes<sup>923</sup>. The British government changed its position on 2 February 1970 because of its desire to use tear gas in Northern Ireland, announcing that the UK considered CS (a particular type of tear gas) and other such gases as outside the Protocol's scope, arguing that CS is not significantly harmful to man in other than exceptional circumstances and that CS smoke could be distinguished from older forms of tear gas as they existed in 1930<sup>924</sup>.

However, the 1993 Chemical Weapons Convention does not prohibit riot control agents as long as they are not used as a *method of warfare* but intended for '[l]aw enforcement including domestic riot control purposes', and provided the types and quantities are consistent with such purposes<sup>925</sup>. Article II para. 7 of the Convention defines 'riot control agents' as '[a]ny chemical not listed in a Schedule, which can produce rapidly in humans sensory irritation or disabling physical effects which disappear within a short time following termination of exposure'. Some however argue that the vague phrase 'as a method of warfare' includes any action involving 'combatants', including traditional hostage rescue missions and human shields scenarios<sup>926</sup>.

Today, the US considers the Protocol as applying to lethal and incapacitating agents, which are defined as 'chemical agents producing symptoms that persist for hours or even days after exposure to the agent has terminated'<sup>927</sup>. Executive Order No. 11850 provides in more detail the US policy regarding riot control agents in armed conflict situations<sup>928</sup>. The use of riot control agents and chemical herbicides in war requires the approval of the US President<sup>929</sup>. In view of the US ratification of the Chemical Weapons Convention, the US Operational Law Handbook notes that 'the authority to use RCA is potentially easier to obtain when the United States is not involved in a "war"', while also referring to the President's certification document which states that 'the United States is not restricted by the convention in its use of riot control agents in various peacetime and peacekeeping operations'<sup>930</sup>.

The Preparatory Commission had devoted particular attention to the question whether article 8 para. 2 (b) (xviii) would also apply to riot control agents. It was argued that it would

<sup>923</sup> League of Nations, Preparatory Commission, Disarmament Conference, X, 6<sup>th</sup> sess. 311 (1931), cited in Detter, *The Law of War* (2000) 257 (fn. 358 and 359). See also Roberts and Guelff (eds.), *Documents on the Laws of War* (3<sup>rd</sup> ed., 2000) 155–156.

<sup>924</sup> Statement by the Foreign Secretary, 795 HC, 1970, col. 18, cited in, Detter, *The Law of War* (2000) 257 (fn. 364). See also Roberts and Guelff (eds.), *ibid.*, 156.

<sup>925</sup> See articles I para. 5 and II paras. 1 (a) and 9 (d).

<sup>926</sup> U.S. Army, Judge Advocate General's School, *Operational Law Handbook* (2002) 16, Chapter 2.

<sup>927</sup> See U.S. Army, *Operational Law Handbook* (2002) 15, Chapter 2; U.S. Army, *Field Manual* (1956) 27–10, paras. 38 c and 38 d.

<sup>928</sup> 'The United States renounces, as a matter of national policy, first use of herbicides in war except use, under regulations applicable to their domestic use, for control of vegetation within US bases and installations or around their immediate defensive perimeters, and first use of riot control agents in war except in defensive military modes to save lives such as:

- (1) Use of riot control agents in riot control situations in areas under direct and distinct US military control, to include controlling rioting prisoners of war.
- (2) Use of riot control agents in situations in which civilians are used to mask or screen attacks and civilian casualties can be reduced or avoided.
- (3) Use of riot control agents in rescue missions in remotely isolated areas, of downed aircrews and passengers, and escaping prisoners.
- (4) Use of riot control agents in rear echelon areas outside the zone of immediate combat to protect convoys from civil disturbances, terrorists and paramilitary organizations'.

Executive Order No. 11850, 40 Fed. Reg. 16187 (1975), cited in: U.S. Army, *Operational Law Handbook* (2014) 29, Chapter 2.

<sup>929</sup> *Ibid.*

<sup>930</sup> Cited in U.S. Army, *Operational Law Handbook* (2014) 29, Chapter 2. These situations are defined as those 'in which the U.S. is not engaged in the use of force of a scope, duration, and intensity that would trigger the laws of war with respect to U.S. forces'. The certification was made upon the requirement of the Senate that 'the U.S. is not restricted by the [Chemical Weapons Convention] in its use of riot control agents, including the use against 'combatants' in any of the following cases: when the U.S. is not a party to the conflict, in consensual (Chapter VI, UN Charter) peacekeeping operations, and in Chapter VII (UN Charter) peacekeeping operations', *ibid.*

be paradoxical if peace-keeping forces striving to control riots in situations where humanitarian law might apply, such as in UNMIK in Kosovo, could use bullets but not tear gas, since the latter generally would be less harmful.

590 However, a major concern at the time of the adoption of the Geneva Protocol of allowing any gas, including riot control agents, in armed conflict situations was that the adversary is usually unable to determine, at least *prima facie*, what types of gas and chemical substances are being used against them. Consequently, they may mistakenly reply ‘in kind’, leading to a full-out chemical weapons war. While this risk may have been higher in situations like the World War I trenches, a number of delegations as well as the ICRC argued that it should still not be underestimated. Also, it is difficult to distinguish between lethal and non-lethal agents. Gases generally considered ‘non-lethal’ may well be deadly or extremely harmful when used in high dosage, against particularly vulnerable persons like children or under other circumstances<sup>931</sup>. The risk of a response ‘in kind’ because of mistaking irritating or disabling agents for lethal chemical weapons may be less predominant in a contemporary peace-keeping environment where international forces *de facto* discharge police functions including riot control (for instance in Kosovo after June 1999), and maybe also in long-term occupations with an occupying power discharging law and order functions.

591 In any event, the Preparatory Commission took the view that the use of non-lethal riot control agents in many circumstances would not constitute a war crime under the Rome Statute. Element 2 for article 8 para. 2 (b) (xviii) requires that ‘[t]he gas, substance or device was such that it *causes death or serious damage to health in the ordinary course of events* ...’ (emphasis added), establishing a minimum threshold focusing on the agent’s effect. This threshold however again requires interpretation. As explained above, substances generally described as non-lethal may become lethal depending on dosage, circumstances etc. The use of tear gas in closed rooms for instance may considerably raise the risk of death<sup>932</sup>. While many were of the opinion that the minimum threshold focusing on the agent’s effect would exclude prosecution by the ICC of conduct that may be unlawful under general or broadly accepted conventional international law, the threshold was accepted based on jurisdictional grounds, that is, that the ICC should only deal with the most serious crimes. To ensure that the elements, seen by many delegations as more restrictive than required under general or conventional international law<sup>933</sup>, will be read as specific to the jurisdiction of the ICC and not as a reflection of international law, footnote 48 was added to element 2, underlining that ‘[n]othing in this element shall be interpreted as limiting or prejudicing in any way existing or developing rules of international law with respect to development, production, stockpiling and use of chemical weapons’. Nonetheless, there is no room for generalization: Insofar as a certain type of riot control agent has asphyxiating or toxic properties or is fashioned in a way to bring

<sup>931</sup> On non-lethal weapons and international law more generally, see, e.g., Heintze (2000) 18 *Sicherheit und Frieden* 2.

<sup>932</sup> For an overview of the hostage crisis in a Moscow theatre in 2002 during which a type of riot control agent was used and why, nonetheless, this incident does not serve to argue that riot control agents should be included as criminal under article 8 para. 2 (b) (xviii), see Křivánek, *The Weapons Provisions in the Rome Statute of the International Criminal Court and in the German Code of Crimes Against International Law* (2010) 49–52.

<sup>933</sup> See, for instance, article II paras. 1 and 2 of the 1993 Chemical Weapons Convention:

‘For the purposes of this Convention:

1. ‘Chemical Weapons’ means the following, together or separately:
  - (a) Toxic chemical and their precursors, except where intended for purposes not prohibited under this Convention [see para. (9)], as long as the types and quantities are consistent with such purposes;
  - (b) Munitions and devices, specifically *designed to cause death or other harm through the toxic properties* of those toxic chemicals specified in subparagraph (a), which would be released as a result of the employment of such munitions and devices; ...
2. ‘Toxic Chemicals’ means: Any chemical which through its chemical action on life processes *can cause death, temporary incapacitation or permanent harm to humans or animals*. This includes all such chemicals, regardless of their origin or of their method of production, and regardless of whether they are produced in facilities, in munitions or elsewhere’ [emphasis added].

about death or serious damage to health in the ordinary course of events, the criminalization of its use according to Article 8 (2) (b) (xviii) of the Statute is not questionable<sup>934</sup>.

By requiring ‘death or serious damage to health’, element 2 for article 8 para. 2 (b) (xviii) 592 also suggests that *herbicides* (agents the toxic effect of which mainly works on plants) were not meant as being automatically covered under the elements. Whether the 1925 Geneva Protocol also covers attacks against animal or plant life, including herbicides, is in fact controversial<sup>935</sup>. Nonetheless, the UN General Assembly declared in 1969 that the use in warfare of chemical agents which have their direct toxic effects on plants is ‘contrary to the generally recognized rules of international law’<sup>936</sup>. Also, the 1993 Chemical Weapons Convention recognizes in its Preamble ‘the prohibition, embodied in the pertinent agreements and relevant principles of international law, of the use of herbicides *as a method of warfare*’ (emphasis added).

The term ‘*device*’ in ‘all analogous liquids, materials and devices’ is very broad and means 593 technique, procedure and method<sup>937</sup>. Some delegations initially were in favor of deleting the word ‘device’ in the elements. It was, however, repeated also in the elements, since the term had been included in the 1925 Geneva Protocol to provide as broad a definition as possible. A commentary to the Protocol notes that the term ‘device’ ‘marks once more the intention of the authors [of the 1925 Geneva Protocol] to give to their definition a comprehensive and open-ended character’ and that otherwise ‘[i]t could be claimed, for instance, that ... an aerosol, which is a suspension of solid particles or liquid droplets in air, is neither a gas nor a liquid, a material or a substance’<sup>938</sup>. Correspondingly, article 8 para. 2 (b) (xviii) might also extend to aerosol bombs, which are for instance used to fight combatants hiding out in a narrow valley or in caves.

In elements 1 and 2, the use of the word ‘substance’ instead of liquids and materials was not 594 meant to indicate any change in substance<sup>939</sup>. The term ‘analogous’ however is incorrectly used in element 1. In the 1925 Geneva Protocol, the term ‘analogous’ is used to provide that the effects of the liquid, material or device must be similar to the effects of ‘asphyxiating, poisonous or other gases’<sup>940</sup>. The ICJ has affirmed that the words ‘analogous materials or devices’ ‘have been understood, in the practice of States, in their ordinary sense as covering *weapons whose prime, or even exclusive, effect is to poison or asphyxiate*’<sup>941</sup>. The German Military Manual also states that the prohibition ‘does not refer to unintentional and insignificant secondary effects of otherwise permissible means of warfare’<sup>942</sup>. Oeter commented that ‘if the asphyxiating or poisoning effect is merely a side-effect of a physical mechanism intended principally to cause totally different results (as, e.g., the use of nuclear weapons), then the relevant munitions do not constitute a

<sup>934</sup> Garraway points to the understanding reached at the Rome Conference that ‘the use of riot control agents in *most* circumstances would be excluded from the scope of this offence’ (emphasis added); Garraway, in: Lee *et al.* (eds.), *Elements of Crimes* (2001) 180.

<sup>935</sup> Bothe for instance finds in 1982 that ‘in the light of reservations and opposition expressed in UN debates, the expressions of *opinio juris* are not as numerous as would be necessary for the formation of a customary rule’ prohibiting herbicides, Bothe, in: *Encyclopedia of Public International law*, Vol. III (1982) 85. The US is also of the view that the prohibition does not cover herbicides, see, e.g., Executive Order No. 11850, cited in: U.S. Army, *Operational Law Handbook* (2014) 29, Chapter 2.

<sup>936</sup> UN Doc. A/RES/2603 A (XXIV) (16 Dec. 1969).

<sup>937</sup> The original French wording adopted in July 1998 in Rome referred to ‘*engins analogues*’ (emphasis added), which means rather tool, machine, apparatus. The wording corrected on 30 Nov. 1999 however refers to ‘*procédés analogues*’ (emphasis added), which means procedure, technique, method.

<sup>938</sup> Stockholm Int’l Peace Research Institut (ed.), *The Problem of Chemical and Biological Warfare*, Vol. III (1973) 45.

<sup>939</sup> See also Garraway, in: Lee *et al.* (eds.), *Elements of Crimes* (2001) 180.

<sup>940</sup> *Ibid.*

<sup>941</sup> ICJ, *Advisory Opinion on the Legality of the Threat or Use of Nuclear Weapons* (8 July 1996), para. 55 (emphasis added).

<sup>942</sup> *Law of Armed Conflict, Manual*, Joint Service Regulation 15/2, May 2013, DSK V230100262, marginal no. 472.



“poisonous gas”<sup>943</sup>. *Bothe* similarly found that ‘[w]here the primary injuring effect of a weapon results from heat or pressure, the weapon is not to be regarded as a chemical agent of warfare’<sup>944</sup>.

595 While many countries had initially reserved their right to use gases prohibited under the 1925 Geneva Convention as a reaction to their employment by an adversary, accepting only the obligation not to use them first<sup>945</sup>, article 120 of the Rome Statute does not permit any reservations. Article 8 para. 2 (b) (xviii) Rome Statute therefore applies to any employment – ‘first’ or ‘second’ use – of such gases in armed conflict situations.

It results from the above that a wide range, if not most chemical weapons can be subsumed under article 8 para. 2 (b) (xviii)<sup>946</sup>.

596 **bb) Biological weapons.** A further issue is whether article 8 para. 2 (b) (xviii) and more specifically the phrase ‘analogous liquids, materials or devices’ also applies to *biological weapons*. Biological agents of warfare have been defined as ‘living organisms, whatever their nature, or infective material derived from them – which are intended to cause disease or death in man, animals or plants, and which depend for their effects on their ability to multiply in the person, animal or plant attacked’<sup>947</sup>. While toxins produced by living organisms scientifically constitute chemical agents, they are generally considered together with or as biological agents of warfare<sup>948</sup>.

597 Whereas the wording of subparagraph (xviii) does not clearly exclude its application also to liquids, materials or devices containing or using biological agents, the states that adopted the 1925 Geneva Protocol apparently took the view that the phrase ‘the use in war of asphyxiating, poisonous or other gases, and of all analogous liquids, materials or devices’ does not extend to the use of bacteriological methods of warfare. This is implicit in the Protocol’s formulation that ‘the High Contracting Parties ... accept [the] prohibition [of the use in war of asphyxiating, poisonous or other gases, and of all analogous liquids, materials or devices] [and] agree to *extend* this prohibition to the use of bacteriological methods of warfare ...’ (emphasis added). Even though the term ‘bacteriological’ is scientifically narrower than the term ‘biological’, it has generally been understood that the Geneva Protocol’s extension to ‘bacteriological methods of warfare’ applies to all biological weapons, including to viruses, fungi or rickettsiae not known at the time the Geneva Protocol was adopted<sup>949</sup>.

598 In view of the above as well as the reference to the ‘asphyxiating or toxic properties’ of the gas, substance or device in element 2, it appears that biological weapons are not generally covered under article 8 para. 2 (b) (xviii). Yet, the use of biological weapons could well result in excessive incidental civilian casualties and therefore amount to a war crime under article 8 para. 2 (b) (iv).

<sup>943</sup> Oeter, in: Fleck (ed.), *Handbook IHL* (2013), marginal no. 437.

<sup>944</sup> *Napalm* for instance may lead to asphyxiation by the reduction of oxygen and may lead to festering burn injuries often leading to cancerous degenerations. Since its primary effects are, however, fire and heat, it is doubtful whether bombs using Napalm could be qualified as ‘analogous’ devices, *Bothe*, in: Bernhardt (ed.), *Encyclopedia of Public International Law*, Vol. I (1982) 566.

<sup>945</sup> Besides, a number of states have wholly or partially withdrawn their earlier reservations, and it seems doubtful whether, today, retaliation in kind with weapons prohibited under the 1925 Geneva Protocol accords with contemporary international law or the 1972 and 1993 conventions. See, e.g., Roberts and Guelff (eds.), *Documents* (2000) 155.

<sup>946</sup> Compare, however, the wording of article 8 para. 2 (b) (xviii) with, e.g., section 12 para. 1 no. 2 of the German Code of Crimes against International Law, which explicitly penalizes the use of chemical weapons. See also *Law of Armed Conflict, Manual*, Joint Service Regulation 15/2, May 2013, DSK V230100262, marginal nos. 466 *et seq.*, and Krivánek, *The Weapons Provisions* (2010) 118 *et seq.*

<sup>947</sup> UN Doc. A/RES/2603 A (XXIV) (16 Dec. 1969).

<sup>948</sup> See Convention on the Prohibition of the Development, Production and Stockpiling of Bacteriological (Biological) and Toxin Weapons and on their Destruction of 10 April 1972; *Bothe*, in: Bernhardt (ed.), *Encyclopedia of Public International Law*, Vol. I (1982) 566; Rauch, in: Bernhardt (ed.), *Encyclopedia of Public International Law*, Vol. III (1982) 45; Oeter, in: Fleck (ed.), *Handbook IHL* (2013), marginal no. 441.

<sup>949</sup> See, e.g., Goldblat (1997) *IREvRC* 251; Rauch, in: Bernhardt (ed.), *Encyclopedia of Public International Law*, Vol. III (1982) 45.



cc) **No applicability to nuclear weapons.** Article 8 para. 2 (b) (xviii) does not appear to 599 apply to *nuclear weapons*, if only because the primary effects of nuclear weapons are not asphyxiating, poisonous or similar effects, but rather explosive, light/heat and radiation effects<sup>950</sup>.

### 19. Paragraph 2(b)(xix) ‘bullets which expand or flatten easily in the human body’

a) **Humanitarian law base and drafting history.** The wording of article 8 para. 2 (b) (xix) 600 is drawn from the 1899 Hague Declaration (Declaration 3) Concerning the Prohibition of Using Bullets which Expand or Flatten Easily in the Human Body. This proscription is considered part of customary international humanitarian law<sup>951</sup>. Bullets with certain features, such as bullets not completely surrounded by hard casing or notched with incisions, tend to flatten and expand when impacting upon the human body. This effect may cause significantly more serious injury than an equivalent standard bullet would, injury which often is particularly difficult to treat and may be unnecessary to arrive at legitimate military aims. This is why the declaration prohibited such bullets, ‘inspired by the sentiments which found expression in the [1868] Declaration of St. Petersburg’<sup>952</sup>:

‘Considering: That the progress of civilization should have the effect of alleviating as much as possible the calamities of war;

That the only legitimate object which States should endeavour to accomplish during war is to weaken the military forces of the enemy;

That for this purpose it is sufficient to disable the greatest possible number of men;

That this object would be exceeded by the employment of arms which uselessly aggravate the sufferings of disabled men, or render their death inevitable;

That the employment of such arms would, therefore, be contrary to the laws of humanity ...’.

The intended object of the prohibition in the 1899 Hague Declaration was the projectile developed by the British Army for use against tribesmen in India, which had become known as the ‘dum-dum bullet’<sup>953</sup>.

b) **Material elements.** Article 8 para. 2 (b) (xix) criminalizes bullets that have the *effect* 601 described<sup>954</sup>. The offense thus applies both to bullets having that effect because of the fashion in which they are manufactured, as well as to standard bullets ‘converted’ by individual soldiers and combatants on the battlefield, namely by piercing them with incisions<sup>955</sup>.

As to the types of bullets prohibited, article 8 para. 2 (b) (xix) mentions two examples of 602 bullets ‘which expand or flatten easily in the human body’, namely bullets ‘with a hard envelope which does not entirely cover the core’ or ‘with a hard envelope which ... is pierced with incisions’. As the words ‘such as’ in the offense’s definition make clear, this list of

<sup>950</sup> See, however, ICJ, *Advisory Opinion on the Legality of the Threat or Use of Nuclear Weapons* paras. 55–56 (8 July 1996) and the Dissenting Opinion of Judge Weeramantry, in particular at IV(2)(d) and III(7) (‘The deliberate act of spreading lethal disease, be it by chemicals or germs or poisons or noxious fumes, has, even in ancient times been considered to be contrary to the laws of war. ... Nowhere in the age-old history of the laws of war – ancient or modern – is there found a principle which permits the poisoning of the enemy forces, leave alone the poisoning of the enemy population *en masse*. This is what nuclear weapons do (see my Dissent in the General Assembly Request, section II) – apart, that is, from poisoning the populations of non-combatant countries’); Dissenting Opinion of Judge Koroma. See also, e.g., Oeter, in: Fleck (ed.), *Handbook IHL* (2013), marginal no. 432; Kalivretakis (2001) 15 *EmoryILRev* 683; Matheson (1997) 91 *AJIL* 417; Chesterman (1997) 44 *NethILRev* 149.

<sup>951</sup> McCoubrey, *International Humanitarian Law* (1998) 232–233.

<sup>952</sup> Preamble of the 1899 Hague Declaration, referring to the Declaration to the Effect of Prohibiting the Use of Certain Projectiles in Wartime, signed at St. Petersburg 29 Nov.–11 Dec. 1868.

<sup>953</sup> Dum Dum was a British arsenal near Kolkata, where these bullets were invented, Vagts, *The Hague Conventions and Arms Control*, (2000), 94 *AJIL* 34. On the historical background of this declaration, see Kalshoven (1985 II) 191 *RDC* 213–217.

<sup>954</sup> The original French version adopted in Rome ‘le fait d’utiliser des balles qui *se dilatent* ou *s’aplatissent*’, was corrected (on 30 Nov. 1999) to ‘le fait d’utiliser des balles qui *s’épanouissent* ou *s’aplatissent*’ (emphasis added), in accordance with the French text of the 1899 Declaration.

<sup>955</sup> See, e.g., McCoubrey, *International Humanitarian Law* (1998) 232.

prohibited bullets is only illustrative and not exhaustive. Further guidance to determine what bullets might be covered under article 8 para. 2 (b) (xix) can be found in the ‘sentiments which found expression in the [1868] St. Petersburg Declaration’, to which the Preamble of the 1899 Hague Declaration refers, including the prohibition of the ‘employment of arms which uselessly aggravate the sufferings of disabled men, or render their death inevitable’. These intentions, although not necessarily the technical specifications laid down in the 1868 St. Petersburg Declaration, remain valid to date. The German Military Manual prohibits more broadly ‘projectiles designed: to burst open or deform upon entering the human body; that start to tumble in the human body; or to cause shock waves leading to extensive tissue damage or even lethal shock’<sup>956</sup>. The US Department of the Army also has considered that a bullet ‘that will explode on impact with the human body would be prohibited by the law of war from use for antipersonnel purposes’<sup>957</sup>.

603 At any rate, in accordance with the clear wording of article 8 para. 2 (b) (xix), the bullets must ‘expand or flatten easily in the human body’. During the negotiations of the material elements for article 8 para. 2 (b) (xix), several delegations were concerned that the use of bullets, which expand or flatten easily in the human body, would be criminalized under any circumstances relating to armed conflicts. However, expanding bullets are used by some domestic police forces and other law enforcement agencies particularly for situations like hostage liberations where the use of an expanding instead of a conventional bullet decreases the risk of collateral damage to the hostages<sup>958</sup>. While hostage-taking may not typically arise in international armed conflicts of a traditional nature, it has occurred repeatedly in recent conflicts and, as was argued, may increasingly occur in future conflicts and conflicts with ‘terrorism’-related aspects. In addition, international peace-keeping forces are increasingly entrusted with police-like tasks in ongoing conflicts. Some delegations accordingly argued that expanding bullets were, under contemporary international law, not absolutely prohibited and that the ICC should not have jurisdiction over their use in situations such as a hostage liberation.

604 The Preparatory Commission however did not define situations in which the use of expanding bullets would not fall under ICC jurisdiction, but rather decided to require that the use of such bullets ‘violates the international law of armed conflict because they expand or flatten easily in the human body’. While this does not clarify the underlying issue, it opens the possibility to argue before the Court that a particular use of expanding bullets in hostage-taking situations or similar situations in a domestic law enforcement capacity would not violate such law<sup>959</sup>. It is however submitted that the use of such bullets as a method of warfare in a traditional warfare situation remains prohibited.

605 c) **Mental elements.** The transformation of the state obligation of not employing expanding bullets into a criminal offense defining the circumstances under which an individual incurs criminal responsibility poses particular problems with regard to article 8 para. 2 (b) (xix). Article 30 Rome Statute appears to require more than the knowledge and intent to use a bullet (which would effectively amount to a strict liability standard), namely the knowledge that the bullet used expands or flattens easily in the human body in the ordinary course of events. Many simple foot soldiers however may be oblivious to the precise scientific effect on the human body of the bullet they receive or change according to a common practice in their company. They might however know that the bullet causes particularly grave injuries.

<sup>956</sup> *Law of Armed Conflict, Manual*, Joint Service Regulation 15/2, May 2013, DSK V230100262, marginal no. 440.

<sup>957</sup> Memorandum for US Army Armament Research, Development and Engineering Center (19 Feb. 1998), cited in *ICRC Study on Third Set of War Crimes Within Art. 8(2)(B) Rome Statute* 16 (4 August 1999). The ICRC also stated that there was a general consensus at an Expert Meeting in Geneva from 29 to 30 March 1999 on exploding bullets that ‘the prohibition on the intentional use against combatants of bullets which explode upon impact with the human body, which originated in the 1868 St. Petersburg Declaration, continues to be valid’, *ibid*.

<sup>958</sup> Another form of domestic use of such bullets, for instance, is aircraft security.

<sup>959</sup> See Garraway, in: Lee *et al.* (eds.), *Elements of Crimes* (2001) 181.

The Preparatory Committee debated various solutions to this difficult problem. One was that the perpetrator ‘knew or should have known’ that such bullets expand or flatten easily, a clear deviation from the article 30 standard<sup>960</sup>. Another proposal was that the perpetrator must be ‘aware of the prohibited status of the bullet’. This however would have introduced a strict mistake of law defense deviating from the article 32 standard.

As Garraway points out, the solution eventually adopted was to focus on the purpose of and ‘philosophy’ behind the prohibition<sup>961</sup>. As stated above, the 1899 Hague Declaration refers to the sentiments expressed in the 1868 St. Petersburg Declaration which prohibits the employment of arms ‘which uselessly aggravate the sufferings of disabled men, or render their death inevitable’. The Preparatory Commission thus eventually adopted the mental requirement that the perpetrator ‘was aware that the nature of the bullets was such that their employment would uselessly aggravate suffering or the wounding effect’<sup>962</sup>.

This of course leaves the ICC judges with the (difficult) task of interpreting the vague term ‘uselessly’ as used in element 3. The mental requirement in element 3 is a creation of the Preparatory Commission and must be interpreted in accordance with the Rome Statute and the underlying prohibition. In view of the objective of the 1899 Hague Declaration, element 3 clearly cannot mean that a person knowing that the expanding or flattening effect of a bullet offers a military advantage becomes immune to criminal responsibility. Delegations at the Preparatory Committee certainly did not want to automatically exempt from criminal responsibility persons of high rank issuing expanding bullets to be used in traditional warfare situations, irrespective of whether this person is convinced that the effect serves military goals since aggravating the wounds of adversary soldiers. The prohibition of dum-dum bullets does not allow for a ‘military necessity’ exception.

## 20. Paragraph 2(b)(xx): ‘Employment of means or methods of warfare included in an annex to this Statute’

Article 8 para. 2 (b) (xx) does not contain any operative definition of an offense. Instead, it refers to the possibility of a Review Conference, the first having taken place in Kampala in 2010 without any amendments based on this provision, or an Assembly of States Parties to add further weapons or methods of warfare under the jurisdiction of the ICC in accordance with the relevant amendment provisions set forth in articles 121 and 123 Rome Statute. This assertion in subparagraph (xx) is essentially superfluous, since states parties to the Rome Statute are free to add new crimes to the Rome Statute regardless of this specific provision. Nonetheless, it was adopted as a political signal that the current list of prohibited weapons is unsatisfactory and far from exhaustive<sup>963</sup>.

Article 8 para. 2 (b) (xx) stipulates that weapons, projectiles or material or methods of warfare to be added must, *firstly*, be ‘of a nature to cause superfluous injury or unnecessary suffering’ or be ‘inherently indiscriminate’ in violation of international humanitarian law. This wording is particularly based on concepts articulated in articles 48 and 51 paras. 4 and 5 Add. Prot. I. *Secondly*, these weapons, projectiles, material or methods of warfare must be the subject of a ‘comprehensive prohibition’. These conditions raise the question of the relation between article 8 para. 2 (b) (xx) and articles 121 and 123. Since states are free to bind themselves contractually, a Review Conference or Assembly of States Parties must also legally

<sup>960</sup> The elements for article 8 para. 2 (b) (vii)-1, -2 and -4, (b) (xxvi) and (e) (vii) contain such a deviation.

<sup>961</sup> See Garraway, in: Lee *et al.* (eds.), *Elements of Crimes* (2001) 182.

<sup>962</sup> It would have been preferable – since clearer – if the Preparatory Commission had repeated the entire relevant wording of the 1868 St. Petersburg Declaration. Element 3 could for instance have required that ‘[t]he perpetrator knew or should have known that the nature of the bullet was contrary to international humanitarian law or that it uselessly aggravates the sufferings of disabled men or renders their death inevitable’.

<sup>963</sup> For the drafting history of this provision, *see above*.

be free to deviate from the two conditions under article 8 para. 2 (b) (xx)<sup>964</sup>. Nonetheless, the two conditions bear at least some political relevance. It is unlikely that states parties to the Rome Statute will want to criminalize the use of weapons that are not subject to a ‘comprehensive prohibition’ or are not ‘of a nature to cause superfluous injury or unnecessary suffering’ or ‘inherently indiscriminate’, considering these are the same notions that are the basis of the criminalization of the weapons in subparagraphs (xvii) – (xix).

- 611 The prohibition to cause unnecessary suffering or superfluous injury and the obligation to distinguish between combatants and non-combatants, that is, between legitimate military targets and illegitimate civilian targets, have become cardinal principles of international humanitarian law. Accordingly, weapons of a nature to cause such suffering or injury or which are inherently indiscriminate have become prohibited under humanitarian law<sup>965</sup>. Unnecessary suffering or superfluous injury may be understood as suffering or injury that is disproportionate and excessive in relation to the lawful military advantage pursued. Article 51 para. 4 Add. Prot. I prohibits indiscriminate attacks and defines them as ‘... b) those which employ a method or means of combat which cannot be directed at a specific military objective; or c) those which employ a method or means of combat the effects of which cannot be limited as required by this Protocol; and consequently, in each such case, are of a nature to strike military objectives and civilians or civilian objects without distinction’<sup>966</sup>.
- 612 The meaning of the term ‘comprehensive prohibition’ is not entirely clear. Earlier drafts had used the wording ‘such other weapons or weapons systems as become the subject of a *comprehensive prohibition pursuant to customary or conventional international law*’<sup>967</sup>. A comprehensive prohibition may exist under customary international law as evidenced by the *opinio iuris* and practice of States, or under conventional international law, in particular where a treaty prohibiting the employment of a specific weapon has been widely ratified. In both cases, almost universally accepted treaties would provide clear evidence of a comprehensive prohibition. It is not necessary that all States without exception have ratified such treaty. The qualified majority of states parties at a Review Conference or Assembly of States Parties will determine which weapons can be considered as subject of a comprehensive prohibition when debating adding further weapons under the jurisdiction of the ICC. After all, it is noteworthy that the delegations in Rome were mindful to criminalize only such conduct that could be based on a rule of customary international law.

<sup>964</sup> Articles 121 and 123 do not exclude any part of the Statute from being amended, and article 121 para. 5 explicitly refers to an amendment also of article 8. The requirements stipulated in article 8 para. 2 (b) (xx) could therefore also be amended according to the general amendment provisions.

<sup>965</sup> See ICJ, *Advisory Opinion on the Legality of the Threat or Use of Nuclear Weapons*, paras. 78 *et seq.* (8 July 1996). As early as 1868, the Declaration of St. Petersburg stated that ‘[t]he only legitimate object which States should endeavor to accomplish during war is to weaken the military forces of the enemy’ and condemned the use of weapons ‘which uselessly aggravate the suffering of disabled men, or render their death inevitable’ (emphasis added). International provisions affirming this principle include article 23 (e) Hague Regulations which prohibits ‘to employ arms, projectiles, or material calculated to cause unnecessary suffering’ (the wording ‘calculated to’ of the 1907 Hague Regulations stems from an incorrect translation of the authentic French wording ‘propre à causer des maux superflus’, see ICRC, *Comments on Informal Working Paper on War Crimes of 13 Oct. 1997* (2 Dec. 1997), at (3); article 35 para. 2 Add. Prot. I; Preamble and article 3 of the Second Protocol to the 1981 Conventional Weapons Convention; article 3 of the ICTY Statute; Preamble of the Convention on the Prohibition of the Use, Stockpiling, Production and Transfer of Anti-Personnel Mines and on their Destruction of 18 September 1997 (‘Basing themselves ... on the principle that prohibits the employment in armed conflicts of weapons, projectiles and materials and methods of warfare of a nature to cause superfluous injury or unnecessary suffering and on the principle that a distinction must be made between civilians and combatants’). See, e.g., Oeter, in: Fleck (ed.), *Handbook IHL* (2013), marginal nos. 401, 448.

<sup>966</sup> According, for instance, to the US Department of the Air Force, ‘[i]ndiscriminate weapons are those incapable of being controlled, through design or function, thus they cannot with any degree of certainty, be directed at military objectives. ... In addition, some weapons, though capable of being directed at military objectives, may have otherwise uncontrollable effects so as to cause disproportionate civilian injuries or damage’. U.S. Air Force’s 1976 manual, see note 678, para. 6-3. For a detailed study of relevant materials and instrument, see ICRC *Study On Third Set Of War Crimes Within Art. 8(2)(B) Rome Statute* 17–29 (4 Aug. 1999).

<sup>967</sup> Emphasis added. See, e.g., Preparatory Committee Decisions Dec. 1997, pp. 10 and 11; Preparatory Committee (Consolidated) Draft, pp. 23 and 24.

With regard to future considerations to add further prohibited weapons to the list under the Rome Statute, we may refer to the considerations during the Rome Conference to include land mines<sup>968</sup> and blinding laser weapons<sup>969</sup> as well as the issue of explicit references to biological<sup>970</sup> and chemical<sup>971</sup> as well as nuclear weapons<sup>972</sup>. Certainly, it is impossible to know what weapons will further be invented and developed. It is likely that the future will prove a need to prohibit and criminalize the use of yet unknown or not commonly deployed weapons<sup>973</sup>.

## 21. Paragraph 2(b)(xxi): ‘outrages upon personal dignity’

**Literature:** Hersch, S.M., ‘Torture at Abu Ghraib’, (10 May 2004) *The New Yorker* <<http://www.newyorker.com/magazine/2004/05/10/torture-at-abu-ghraib>> accessed 21 October 2014; Oosterveld, V., ‘Evaluating the Special Court for Sierra Leone’s Gender Jurisprudence’, in: C.C. Jalloh (ed.), *The Sierra Leone Special Court and its Legacy* (CUP 2014) 234; Pictet, J.S. (ed.), *The Geneva Conventions of 12 August 1949: Commentary, Vol. IV: Geneva Convention Relative to the Protection of Civilian Persons in Time of War* (ICRC 1958); Sandoz, Y., Swinarski, Ch. and Zimmermann, B. (eds.), *ICRC Commentary on the Additional Protocols of 8 June 1977 to the Geneva Conventions of 12 Aug. 1949* (ICRC 1987).

**a) Introduction.** Article 8 para. 2 (b) (xxi) prohibits outrages upon personal dignity, in particular, humiliating and degrading treatment in *international* armed conflict.

The Preparatory Commission<sup>974</sup> for the ICC defined the elements for the ‘[w]ar crime of outrages upon personal dignity’ under article 8 para. 2 (b) (xxi) as:

‘1. The perpetrator humiliated or otherwise violated the dignity of one or more persons. 2. The severity of the humiliation, degradation or other violation was of such degree as to be generally recognized as an outrage upon personal dignity. 3. The conduct took place in the context of and was associated with an international armed conflict. 4. The perpetrator was aware of factual circumstances that established the existence of an armed conflict’<sup>975</sup>.

<sup>968</sup> The Convention on the Prohibition of the Use, Stockpiling Production and Transfer of Anti-Personnel Mines and On Their Destruction was opened for signature at Ottawa 3 Dec. 1997 and entered into force on 1 Mar. 1999. As of 1 July 2014 there were 162 states parties to the Convention (see [www.icbl.org](http://www.icbl.org)). According to article 1 (1) of the Convention, each state party undertakes never under any circumstances to use anti-personnel mines. While the use of anti-personnel mines hardly was prohibited under customary international law at the time of the Rome Conference in June/July 1998, the number of states parties to the Ottawa Convention is considerable and continues to grow.

<sup>969</sup> On 1 July 2015, 105 states were parties to the Protocol on Blinding Laser Weapons (Protocol IV) of 13 October 1995 to the 1980 UN Convention on Certain Conventional Weapons, which entered into force on 30 July 1998. Blinding laser weapons have become prohibited even before they had been integrated in the weapons arsenals of armed forces and used in armed conflict.

<sup>970</sup> The Convention on the Prohibition of the Development, Production and Stockpiling of Bacteriological (Biological) and Toxin Weapons and on their Destruction of 10 April 1972 entered into force in 1975, and had, as of 1 July 2015, 172 States Parties. Biological weapons are also prohibited by the Geneva Protocol for the Prohibition of the Use in War of Asphyxiating, Poisonous or Other Gases, and of Bacteriological Methods of Warfare of 17 June 1925 (with 137 States Parties as of 1 July 2015), see *above*.

<sup>971</sup> The Convention on the Prohibition of the Development, Production, Stockpiling and Use of Chemical Weapons and on their Destruction of 13 January 1993 (entry into force on 29 April 1997) had, as of 1 July 2014, 190 States Parties ([www.opcw.org](http://www.opcw.org)). This Convention reaffirms and strengthens in particular the Geneva Protocol for the Prohibition of the Use in War of Asphyxiating, Poisonous or Other Gases, and of Bacteriological Methods of Warfare of 17 June 1925.

<sup>972</sup> For an overview of the types of weapons that might be considered to be included, see also Křivánek, *The Weapons Provisions* (2010) 165 *et seq.*

<sup>973</sup> See, e.g., L. Doswald-Beck/G.C. Cauderay, *The development of new anti-personnel weapons*, 279 IRevRC 565 (1990); ICRC, *Weapons that may Cause Unnecessary Suffering or Have Indiscriminate Effects, Report of the Work of Experts* (1973).

<sup>974</sup> The Preparatory Commission for the Establishment of an International Criminal Court was established by resolution F of the Final Act, which adopted the Rome Statute of the International Criminal Court on 17 July 1998. One of the mandates Resolution F established for the commission was that ‘[t]he Commission shall prepare proposals for practical arrangements for the establishment and coming into operation of the Court, including draft texts of ... Elements of Crimes’.

<sup>975</sup> Report of the Preparatory Commission for the International Criminal Court, Addendum, Part II, Finalized Draft Text of the Elements of Crimes, PCNICC/2000/1/Add.2, p. 33 (2000) (hereinafter: Report of the Preparatory

A footnote to ‘persons’ under the first element clarified that the term may include persons who are dead. The Commission further clarified that:

‘[i]t is understood that the victim need not personally be aware of the existence of the humiliation or degradation or other violation. This element takes into account relevant aspects of the cultural background of the victim’.

This definition remained unchanged when the Elements of Crime were adopted at the 2010 Review Conference at Kampala<sup>976</sup>.

616 **b) Bases in humanitarian law.** The humanitarian law treaty basis of article 8 para. 2 (b) (xxi) derives verbatim from common article 3 para. 1 (c) of the Geneva Conventions of 1949. Common the principle of respect for the human personality and guarantees of humane treatment, to situations of *internal* armed conflict<sup>977</sup>. The Pictet Commentary to common article 3 para. 1 proclaims that the violations under items (a) to (d), like those of article 27 of the Geneva Convention IV<sup>978</sup>, are prohibited ‘absolutely and permanently, no exceptions or excuses being tolerated’<sup>979</sup>. In specific regard to violations of outrages upon personal dignity, the provision proscribes acts that were committed frequently during World War II and that the world public opinion found particularly revolting<sup>980</sup>.

617 A similar proscription of outrages upon personal dignities exists in the Add. Prots. of 1977 to the Geneva Conventions. Article 4 para. 2 Add. Prot. II provides *Fundamental Guarantees* to all persons who do not take direct part in or have ceased to take part in the hostilities. The provision explicitly prohibits ‘outrages upon personal dignity, in particular humiliating and degrading treatment, rape, enforced prostitution and any form of indecent assault’<sup>981</sup>. The Pictet Commentary to the Protocol underscores that article 4 para. 2 (e) reaffirms and supplements common article 3 para. 1 (c) of the Geneva Conventions of 1949<sup>982</sup>. The non-exhaustive list of conduct implicitly proscribed by common article 3 para. 1 (c), explicitly banned under article 4 para. 2 (e) rape, enforced prostitution and indecent assaults of any kind, the latter being forbidden acts, given by way of example.

618 A further treaty basis for outrages upon personal dignity is found in Article 75 para. 2 Add. Prot. I. The provision closely follows the text of article 4 Add. Prot. II<sup>983</sup>. Article 75 para. 2 (b) reads, ‘outrages upon personal dignity, in particular humiliating and degrading treatment, enforced prostitution and any form of indecent assault’. The ICRC Commentary to the Add. Prot. I acknowledges article 75 para. 2 (b)’s tie to both common article 3 and article 27 of Geneva Convention IV<sup>984</sup>.

In addition to treaty law, article 8 para. 2 (b) (xxi) reposes on recognized general customary law. The Add. Prot. I and the Geneva Conventions, replete with common article 3

Commission); see <<http://daccess-dds-ny.un.org/doc/UNDOC/GEN/N00/724/27/PDF/N0072427.pdf?OpenElement>> accessed 19 Oct. 2014.

<sup>976</sup> See <<http://www.icc-cpi.int/nr/rdonlyres/336923d8-a6ad-40ec-ad7b-45bf9de73d56/0/elementsofcrimeseng.pdf>> accessed 17 Oct. 2014.

<sup>977</sup> The guarantee of humane treatment unites common article 3 with several provisions in the four Geneva Conventions, such as article 27, and articles 31–34 of GC IV.

<sup>978</sup> Acknowledgement of an organic relationship between common article 3 and article 27 of GC IV is essential to any analysis of article 8 para. 2 (b) (xxi) of the ICC Statute. The Commentary to common article 3 notes that ‘humane treatment’ must be understood within the meaning of article 27. Pictet (ed.), *The Geneva Conventions of 12 August 1949: Commentary* (1958), Article 27, 38. The meaning attributed to outrages against personal dignity will be discussed in the concluding paragraphs of this section.

<sup>979</sup> Pictet (ed.), *The Geneva Conventions of 12 August 1949: Commentary* (1958), Article 27, 38.

<sup>980</sup> *Ibid.*

<sup>981</sup> The phrase ‘rape, enforced prostitution and indecent assault of any kind’ derives directly from article 27 of the GC IV.

<sup>982</sup> Sandoz *et al.* (eds.), *ICRC Commentary on the Additional Protocols of 8 June 1977 to the Geneva Conventions of 12 Aug. 1949* (1987), mn 4539.

<sup>983</sup> *Ibid.*, mn 3037.

<sup>984</sup> *Ibid.*, mn 1048.



are accepted customary law. The ‘core of Protocol II’, most likely including article 4 para. 2 (e), are also, beyond doubt part of the corpus of customary law<sup>985</sup>.

The ICTY and the ICTR have similar subject matter jurisdiction over acts such as those proscribed in article 8 para. 2 (b) (xxi) of the Rome Statute. Article 4 (e) of the ICTR Statute, reflective of article 4 para. 2 of the Add. Prot. II allows for prosecution of ‘outrages on personal dignity, in particular humiliating and degrading treatment, rape, enforced prostitution and indecent assault of any kind’. By way of contrast, the ICTY Statute neither explicitly common article 3 nor enumerates outrages upon personal dignity. The *Tadić* Appellate Chamber, however, held that article 3 of the ICTY Statute acts as a residual clause and covers, *inter alia* violations of the laws or customs of war that are not enumerated, empowering the Tribunal to include common article 3 offences within its subject matter jurisdiction<sup>986</sup>.

The Statute for the Special Court for Sierra Leone also incorporates under its list of serious violations of common article 3: ‘Outrages upon personal dignity, in particular humiliating and degrading treatment, rape, enforced prostitution and any form of indecent assault’<sup>987</sup>.

The Statute of the Iraqi Special Tribunal proscribes outrages upon personal dignity in all types of armed conflict. In article 13 (b) war crimes explicitly include:

‘...Serious violations of the laws and customs applicable in international armed conflict, within the established framework of international law, namely, any of the following acts: .... (21) Committing outrages upon personal dignity, in particular humiliating and degrading treatment’<sup>988</sup>.

Under article 13 (c) it is underscored that outrages upon personal dignity is applied:

‘in cases of an armed conflict ... [when] committed against persons taking no active part in the hostilities, including members of armed forces who have laid down their arms and those placed hors de combat by sickness, wounds, detention or any other cause’.

c) **Actus Reus.** Acts potentially encompassed within article 8 para. 2 (b) (xxi) can readily be examined under the root principles of Geneva Law that prompted the drafting of common article 3 para. 1 (c), as well as article 4 para. 2 (e) Add. Prot. II, and article 75 para. 2 (b). Accordingly, article 8 para. 2 (b) (xxi) is determined by overriding principle of humane treatment, as articulated in article 27 of Geneva Convention IV<sup>989</sup>. The Pictet Commentary to article 27, noted that what constitutes humane treatment – the correct way to behave towards a human being – flowed from the principles of respect. Clearly outrages on personal dignity originate out of this comprehensive respect for the person, honour, and family rights as recognized by the Geneva Conventions.

However, the Pictet Commentary to article 27 warned that:

‘It seems useless and even dangerous to attempt to make a list of all the factors that make treatment “humane”’<sup>990</sup>.

The drafters of common article 3 para. 1 (c) refrained from inserting a finite list that constituted outrages upon personal dignity. The now famous caveat in regard to torture also rationalized the conceptual, rather than detailed, nature of subsection (c).

‘However great the care taken in drawing up a list of all the various forms of infliction, it would never be possible to catch up with the imagination of future torturers who wished to satisfy their bestial instincts; and the more specific and complete a list tries to be, the more restrictive it becomes.

<sup>985</sup> *Prosecutor v. Tadić*, IT-94-1-AR72, Decision on the Defence Motion for Interlocutory Appeal, Appeals Chamber, 2 Oct. 1995, para. 117.

<sup>986</sup> *Tadić* (Appeals Chamber Decision), see note 989, para. 69, whereby the Appeals Chamber held that protections of common article 3 apply through article 3 (of the ICTY Statute) to persons taking no active part in hostilities.

<sup>987</sup> Article 3 (e), Statute for the Special Court for Sierra Leone.

<sup>988</sup> Article 13 (b), Statute of the Iraqi Special Tribunal.

<sup>989</sup> See Pictet (ed.), *The Geneva Conventions of 12 August 1949: Commentary* (1958), Article 27, 38: ‘What [common] Article 3 guarantees such person is *humane treatment*. We shall explain later, when discussing Article 27, the sense in which ‘humane treatment’ should be understood’.

<sup>990</sup> Pictet (ed.), *The Geneva Conventions of 12 August 1949: Commentary* (1958), Article 27, 204.

The form of wording adopted is flexible, and at the same time, precise. The same is true of item (c)<sup>991</sup>. (emphasis added).

- 625 The Commentary to article 75 para. 2 (b) Add. Prot. I confirms that outrages on personal dignity are not confined to specific acts, but:

‘refers to acts which, without directly causing harm to the integrity and physical and mental well-being of persons, are aimed at humiliating and ridiculing them, or even forcing them to perform degrading acts’<sup>992</sup>.

- 626 In paragraph two, article 27 of Geneva Convention IV introduces the phrase ‘rape, enforced prostitution and indecent assault of any kind’ to illustrate acts that are inconsistent with human treatment. Respective provisions of the Additional Protocols included versions of the article 27 phrase to typify what is considered inhumane conduct. But neither Protocol attempts to name each act proscribed by outrages on personal dignity, nor could a finite list encompass ‘indecent assault of any kind’.

- 627 Article 8 para. 2 (b) (xxi) of the Statute does not incorporate the language of article 27 of Geneva Convention IV, ‘rape, enforced prostitution and indecent assault of any kind’. It appears to intentionally use the common article 3 language, rather than the expanded wording of the Additional Protocols. The Statute of the Iraq Special Tribunal also lists also rape and other acts of sexual violence of ‘comparable gravity’ separately, immediately following its article 13 (c)<sup>993</sup>. However, the drafting intent allows one to confidently assume that the scope of article 8 para. 2 (b) (xxii), deliberately encompasses a wide range of inhumane acts.

- 628 ICTY and ICTR jurisprudence has shed light on acts incorporated within the meaning of outrages upon personal dignity, humiliating and degrading treatment. In the *Prosecutor v. Akayesu*<sup>994</sup>, the first case to opine on the *actus reus* of outrages upon personal dignity, the Trial Chamber held that sexual violence of many different levels may be classified as outrages upon personal dignity, and that such violence need not be limited to physical invasion of the body or even physical contact. The *Akayesu* Trial Chamber held that where the accused ordered the Interhamwe to undress a student and force her to perform gymnastics in a public courtyard, sexual violence that could qualify as an outrage upon personal dignity had occurred<sup>995</sup>.

- 629 In the *Prosecutor v. Furundžija*<sup>996</sup> the Trial Chamber convicted the accused of torture and ‘outrages upon personal dignity, including rape’, as incorporated through article 3 of the ICTY Statute. The accused, a commander of the Jokers, a special Herceg-Bosna military force, arrested and then interrogated a civilian Muslim woman at the Jokers’ Headquarters. During the interrogation the woman was subjected to rapes, death threats, and threats of sexual mutilation. She was forced to swallow the body fluids and eat the human waste of a physical perpetrator. The Trial Chamber held that:

‘The general principle of respect for human dignity ... is intended to shield human beings from outrages upon their personal dignity, whether such outrages are carried out by unlawfully attacking the body or by humiliating and debasing the honour, the self-respect or the mental well being of a person’<sup>997</sup>.

‘... [S]exual assaults were committed publicly; members of the Jokers were watching and milling around the door of the pantry. They laughed at what was going on. The Trial Chamber finds that

<sup>991</sup> *Ibid.*, 39.

<sup>992</sup> *Ibid.*, Article 75 para. 2 (b). These crimes directly cause harm to the physical and mental well-being of persons.

<sup>993</sup> Pictet (ed.), *The Geneva Conventions of 12 August 1949: Commentary* (1958), Article 27, ‘(22) Committing rape, sexual slavery, enforced prostitution, forced pregnancy, or any other form of sexual violence of comparable gravity’.

<sup>994</sup> *Prosecutor v. Akayesu*, ICTR-96-4-T, Judgment, Trial Chamber, 2 Sep. 1998, para. 688.

<sup>995</sup> *Ibid.*

<sup>996</sup> *Prosecutor v. Furundžija*, IT-95-17/1-T, Judgment, Trial Chamber, 10 Dec. 1998.

<sup>997</sup> *Ibid.*, para. 183.

Witness A suffered severe physical and mental pain along with public humiliation, ... in what amounted to outrages upon her personal dignity and sexual integrity<sup>998</sup>.

The interpretation suggests that outrages upon personal dignity result from separate physical and mental pain of sexual abuse.

In the *Prosecutor v. Kunarac et al.*<sup>999</sup> the Trial Chamber found the Accused guilty of 630 outrages against personal dignity. The *Kunarac* Trial held and subsequently the *Kunarac* Appeals Chamber confirmed that the specific acts of rape, compelling victims to dance naked on a table, and lending and selling victims to other men were all properly characterized as outrages upon personal dignity<sup>1000</sup>. The Trial Chamber expressed the view that the acts must cause ‘serious humiliation or degradation to the victim’ there is no requirement that such suffering be ‘lasting’. There is, however, no minimum temporal element to the offence<sup>1001</sup>. If the humiliation were extremely fleeting it might be difficult to prove it was serious.

The *Kunarac* Trial Chamber also held that outrages upon personal dignity should be 631 evaluated on an objective rather than a subjective basis. The humiliation must be of such intensity that any reasonable person would be outraged<sup>1002</sup>. The crime requires:

‘(i) that the accused intentionally committed or participated in an act or an omission which would be generally considered to cause serious humiliation, degradation or otherwise be a serious attack on human dignity, and (ii) that he knew that the act or omission could have that effect’<sup>1003</sup>.

The *Kunarac* Appeals Chamber upheld this ‘objective threshold’, and reaffirmed that the 632 Trial Chamber was under no obligation to define the specific acts which may constitute outrages upon personal dignity<sup>1004</sup>. Notably, in defining the elements of article 8 (2) (b) (xxi), the Preparatory Commission for the ICC supported the idea that there should be an objective threshold for determining if an outrage upon personal dignity has occurred.

Other ICTY and ICTR cases have ruled that using detainees as human shields or trench 633 diggers; forcing detainees to relieve bodily functions in their clothing; imposing conditions of constant fear of being subjected to physical, mental, or sexual violence on detainees; forced incest; burying corpses in latrine pits; leaving infants without care after killing their guardians; and removing a fetus from the womb comprise outrages upon personal dignity<sup>1005</sup>.

In the *Prosecutor v. Delalić et al.*<sup>1006</sup> the indictment did contain charges of outrages upon 634 personal dignity, but rather charged several counts on ‘inhuman treatment’ and ‘cruel treatment’, that the Trial Chamber deemed violated ‘the respect for human dignity’<sup>1007</sup>. The *Delalić* Judgment held the following acts to constitute an attack on one’s human dignity: forcing a father and son to physically beat each other<sup>1008</sup>, leading detainees to plead for mercy so as not to be stunned by an electric cattle prod<sup>1009</sup>, or; forcing brothers to perform oral sex on each other before other prisoners<sup>1010</sup>. These acts are likely to fall within the perimeter of outrages upon personal dignity within the meaning of article 8 para. 2 (b) (xxi).

Even though many cases involving rape and outrages upon personal dignity in the past 635 have dealt with crimes committed against women, however, the publicity and scandal

<sup>998</sup> *Ibid.*, para. 272.

<sup>999</sup> *Prosecutor v. Kunarac et al.*, IT-96-23-T & IT-96-23/1-T, Judgment, Trial Chamber, 22 Feb. 2001, para. 568.

<sup>1000</sup> *Kunarac et al.* (Trial Chamber Judgment), see note 1003, para. 159.

<sup>1001</sup> *Kunarac et al.* (Trial Chamber Judgment), see note 1003, para. 501.

<sup>1002</sup> *Kunarac et al.* (Trial Chamber Judgment), see note 1003, paras. 504–506.

<sup>1003</sup> *Kunarac et al.* (Trial Chamber Judgment), see note 1003, para. 514.

<sup>1004</sup> *Kunarac et al.* (Trial Chamber Judgment), see note 1003, paras. 162–163.

<sup>1005</sup> See *Prosecutor v. Bagosora*, ICTR-96-7, Decision on Motion for Judgment of Acquittal, Trial Chamber, 2 Feb. 2005, para. 40 and fn. 84 (in which this ICTR Trial Chamber cites examples from *Prosecutor v. Aleksovski*, IT-95-14/1-T, Judgment, Trial Chamber, 25 June 1999, para. 229 and *Prosecutor v. Kvočka et al.*, IT-98-30/1-T, Judgment, Trial Chamber, 2 Nov. 2001, para. 173).

<sup>1006</sup> *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgment, Trial Chamber, 16 Nov. 1998.

<sup>1007</sup> *Delalić et al.* (Trial Chamber Judgment), see note 1010, para. 544.

<sup>1008</sup> *Delalić et al.* (Trial Chamber Judgment), see note 1010, paras. 1067–1070.

<sup>1009</sup> *Delalić et al.* (Trial Chamber Judgment), see note 1010, paras. 1052–1059.

<sup>1010</sup> *Delalić et al.* (Trial Chamber Judgment), see note 1010, paras. 1062–1066.

surrounding the humiliation of male prisoners in *Abu Ghraib* provides a vivid reminder that men also need the protection of such laws. In commenting on the sexual poses that male prisoners were forced to assume, the *New Yorker* observed:

‘Such dehumanization is unacceptable in any culture, but is especially so in the Arab world. Homosexual acts are against Islamic law and it is humiliating for men to be naked in front of other men, Bernard Haykel, a professor of Middle Eastern studies at New York University, explained ‘Being put on top of each other and forced to masturbate, being naked in front of each other – it’s all a form of torture...’<sup>1011</sup>.

636 Cases involving male sexual assault, including sexual humiliation will certainly be justiciable under the safeguards of article 8 para. 2 (b) (xxi).

637 Although *Furundžija* did not distinguish outrageous acts between physical components of sexual violence, such as oral rape, and non-physical components of sexual violence, such as forced nudity or public display, when determining what constitutes outrages upon personal dignity *Bagasora*, *Aleksovski*, *Kunarac* and *Akayesu* affirmed that acts not of a sexual nature readily violate the prohibition. A finer analysis might evolve from the jurisprudence of the ICC when one considers the article 8 para. 2 (b) (xxi) compared to specific acts prohibited in subparagraph (xxii). The latter lists ‘rape, sexual slavery, enforced prostitution, forced pregnancy, enforced sterilization or other form of sexual violence also constituting a grave breach of the Geneva Conventions, and thus separates them from outrages upon personal dignity’<sup>1012</sup>.

638 Although the Trial Chamber held that the circumstances must be coercive, it held that such coercion ‘may be inherent in certain circumstances, such as armed conflict’<sup>1013</sup>.

639 The SCSL confirmed and solidified the gender’s jurisprudence of ICTR and ICTY in its considerations of the war crime of outrages against personal dignity<sup>1014</sup>. Based on the appeal judgement *v. Kunarac et al.* and the ICC’s elements of crime, the Trial Chambers of SCSL in the AFRC, RUF and Taylor cases adopted similar elements of crime:

- i. The perpetrator humiliated, degraded or otherwise violated the personal dignity of the victim;
- ii. The humiliation, degradation or other violation was so serious as to be generally considered as an outrage upon personal dignity;
- iii. The perpetrator intentionally committed or participated in an act or omission which would be generally considered to cause serious humiliation, degradation or otherwise be a serious attack on human dignity; and
- iv. The perpetrator knew that the act or omission could have such an effect.’<sup>1015</sup>.

640 In the *Prosecutor v. Taylor* the Trial Chamber considered ‘that sexual slavery, including abduction of women and girls as ‘bush wives’, a conjugal form of sexual slavery, is humiliating and degrading to its victims and constitutes a serious attack on human dignity, falling within the scope of outrages upon personal dignity’<sup>1016</sup> and found the Accused guilty of such outrages upon personal dignity. Based on the *Kunarac* judgement the RUF judgement holds that ‘the actus reus of the offence is that there was an act or omission that caused serious humiliation, degradation or otherwise violated the personal dignity of the victim. The second element reflects that determination ... must be based on an objective assessment. It is not necessary that the act cause ‘lasting suffering’ to the victim’.<sup>1017</sup>

641 The relevance of the SCSL’s considerations of the war crime of outrages upon personal dignity on one hand side lies in the fact that it was largely supportive of already-existing

<sup>1011</sup> Hersh (10 May 2004) *The New Yorker*.

<sup>1012</sup> The separation of acts between article 8 para. 2 (b) (xxi) and article 8 para. 2 (b) (xxii) apparently is a deliberate attempt by the drafters to remove any connotation of the harm inflicted by sexual violence being focused on the shame, loss of honor or moral turpitude of the victim/survivor or that persons family.

<sup>1013</sup> *Prosecutor v. Akayesu*, ICTR-96-4-T, Judgment, Trial Chamber, 2 Sep. 1998, para. 688.

<sup>1014</sup> Oosterveld, in: Jalloh (ed.), *The Sierra Leone Special Court and Its Legacy* (2014) 234, 253.

<sup>1015</sup> *Prosecutor v. Taylor*, SCSL-03-01-T, Judgment, Trial Chamber II, 18 May 2012, para. 431 with fn 1044.

<sup>1016</sup> *Taylor* (Trial Chamber Judgment), see note 1019, para. 432.

<sup>1017</sup> *Prosecutor v. Sesay, Kallon and Gbao*, SCSL-04-15-T, Judgment, Trial Chamber I, 2 March 2009 (RUF Judgment), para. 176. See also *Prosecutor v. Brima, Kamara and Kanu*, SCSL 04-16-T, Judgment, Trial Chamber II, 20 June 2007, para. 716, 718 and 719.

jurisprudence of the ICTY<sup>1018</sup> on the matter. On the other hand, especially the Taylor Judgment provided important additional detail to the jurisprudence: In this Judgment the Chamber found that the specific act of sexual slavery amounted to an outrage of personal dignity, and that an outrage upon personal dignity could be aggravated by the addition of public element, such as rape in front of family members; or an additional element which deepens the humiliation and degradation, such as forced undressing prior to rape; or insertion of an object into the victim's vagina after the rape or gang rape<sup>1019</sup>.

Though, in Taylor the Chamber also took a very strict approach and did not consider 641 evidence of sexual violence other than rape and sexual slavery under outrages upon personal dignity as the Prosecution did not provide notice to the Accused 'that any other forms of sexual violence were charged under this count'<sup>1020</sup>.

d) *Mens rea*. In its General Introduction, the ICC Commission stated that for each material 643 element there is a requirement of intent and knowledge (unless otherwise stated), and such a *mens rea* may be inferred through relevant circumstances and facts. Where value judgements are involved (the Commission gives examples such as 'inhumane' or 'severe') there is no need for the perpetrator to have 'personally completed a particular value judgement'<sup>1021</sup>. Arguably, 'outrage' is another such value judgement where this would not be necessary.

Certain aspects of the ICTY's jurisprudence on the *mens rea* of the prohibition of outrages 644 upon personal dignity might supplement the Commission's general *mens rea* requirement. In the *Aleksovski* Appeals Judgment the appellant's contention that the *mens rea* of required specific intent was answered thus:

In particular, the Appeals Chamber does not interpret the observation in the ICRC Commentary on the Additional Protocols, that the term 'outrages upon personal dignity' refers to acts 'aimed at humiliating and ridiculing' the victim, [FN71] as necessarily supporting a requirement of a specific intent on the part of a perpetrator to humiliate, ridicule or degrade the victims. The statement seems simply to describe the conduct which the provision seeks to prevent. The Trial Chamber's indication that the *mens rea* of the offence is the 'intent to humiliate or ridicule' the victim [FN72] may therefore impose a requirement that the Prosecution was not obliged to prove and the Appeals Chamber does not, by rejecting this ground of appeal, endorse that particular conclusion<sup>1022</sup>.

The appellant further raised the issues of whether a discriminatory intent comprised part 645 of the requirement of the *mens rea* of outrages upon personal dignity. Again, the ground was denied because:

'... the Appeals Chamber finds that it is not an element of offences under Article 3 of the Statute, nor of the offence of outrages upon personal dignity, that the perpetrator had a discriminatory intent or motive'<sup>1023</sup>.

The *Aleksovski* Appeals Chamber, nonetheless, clarified that evidence of discrimination 646 might be further proof of the perpetrators intent or knowledge, holding:

'This does not mean that evidence that an accused who had responsibility for detention conditions discriminated between detainees in the conditions and facilities provided would be irrelevant. If, because of deliberate discrimination between detainees, poor conditions of detention affect only one group or class of detainees, while other detainees enjoy adequate detention conditions, this is evidence which could contribute to a finding that the *mens rea* of the offence of outrages upon personal dignity is satisfied'<sup>1024</sup>.

<sup>1018</sup> *I.e.* the Kunarac Appeal Judgment.

<sup>1019</sup> Oosterveld, in: Jalloh (ed.), *The Sierra Leone Special Court and Its Legacy* (2014) 234, 254; Taylor (Trial Chamber Judgment), see note 1019, 1196.

<sup>1020</sup> Taylor (Trial Chamber Judgment), see note 1019, para. 1194; Oosterveld, in: Jalloh (ed.), *The Sierra Leone Special Court and Its Legacy* (2014) 234, 254.

<sup>1021</sup> Report of the Preparatory Commission, see note 979, p. 18.

<sup>1022</sup> *Prosecutor v. Aleksovski*, IT-95-14/1-AR77, Judgment, Appeals Chamber, 30 May 2001, para. 27.

<sup>1023</sup> *Aleksovski* (Appeals Chamber Judgment), see note 1026, para. 28.

<sup>1024</sup> *Aleksovski* (Appeals Chamber Judgment), see note 1026, para. 27, fn. 73.

647 outrages upon personal dignity, the *Aleksovski Appeals Chamber* concluded that an outrage against personal dignity might be motivated ‘by contempt for the human dignity of another person’; however, it does not make such a motivation an element of the offence to be proved beyond reasonable doubt. The Defendant in the *Kunarac* case argued that to be found guilty of the crime he must have known his actions would (not just could) have the effect of serious humiliation. The *Kunarac Appeals Chamber*, however, again supported the Trial Chamber’s reasoning:

‘As the relevant act or omission for an outrage upon personal dignity is an act or omission which would be generally considered to cause serious humiliation, degradation or otherwise be a serious attack on human dignity, an accused must know that his act or omission is of that character – i.e., that it could cause serious humiliation, degradation or affront to human dignity. This is not the same as requiring that the accused knew of the actual consequences of the act’<sup>1025</sup>.

648 Furthermore, both the Trial Chamber and the Appeals Chamber concurred that rarely would the nature of an accused’s knowledge be an issue, since once the objective threshold is met it would be difficult for the Defendant to argue that he or she did not have the same awareness as any reasonable person in the given situation<sup>1026</sup>.

649 Confirming the ICTY *Kunarac* and *Aleksovski* Judgments the SCSL Trial Chamber recognised in its RUF Judgment that ‘the *mens rea* does not require that the Accused had a specific intent to humiliate or degrade the victims’, but that ‘the act or omission must, however, have been done intentionally and that the Accused must have known that his act or omission *could* cause serious humiliation, degradation or otherwise be a serious attack on human dignity’. The Chamber considered that there is neither a ‘requirement to establish that the Accused knew of the actual consequences of the act, but only of its possible consequences’ nor that there is an ‘additional requirement to establish that the Accused had a discriminatory intent or motive’<sup>1027</sup>.

650 In its Article 8 War Crimes Introduction, the Commission also explains that in regard to the *mens rea* regarding an international conflict, the perpetrator only need be aware of the factual circumstances that established the armed conflict. There is no need for awareness of facts that make it international or non-international, or for any legal judgement regarding an armed conflict or its international or non-international character.

651 The foregoing commentary on outrages upon personal dignity, in particular humiliating or degrading treatment extends to internal armed conflict under article 8 para. 2 (c) (ii)<sup>1028</sup>.

## 22. Paragraph 2(b)(xxii): Rape and other forms of sexual violence

**Literature:** Ambos, K., ‘Sexual offences in International Criminal Law, with a special focus on the Rome Statute of the International Criminal Court’, in: M. Bergsmo et al. (eds.), *Understanding and Proving International Sex Crimes* (Torkel Opsahl Academic EPublisher 2012) 143; Ambos, K., ‘The first Judgment of the International Criminal Court (*Prosecutor v. Lubanga*): A comprehensive analysis of the Legal Issues’ (2012) 12 *ICLRev* 115; Ambos, K., ‘Thematic Investigations and Prosecution of International Sex Crimes: Some Critical Comments from

<sup>1025</sup> *Prosecutor v. Kunarac et al.*, IT-96-23T & IT-96-23/1-T, Judgment, Trial Chamber, 22 Feb. 2001, para. 512; *Prosecutor v. Kunarac et al.*, IT-96-23 & IT-96-23/1-A, Judgment, Appeals Chamber, 12 June 2002, paras. 165–166.

<sup>1026</sup> *Prosecutor v. Kunarac et al.*, IT-96-23T & IT-96-23/1-T, Judgment, Trial Chamber, 22 Feb. 2001, para. 513.

<sup>1027</sup> See *Prosecutor v. Sesay, Kallon and Gbao*, para. 177.

<sup>1028</sup> Report of the Preparatory Commission, see note 979, 39. The elements for article 8 (2) (c) (ii) are ‘1. The perpetrator humiliated, degraded or otherwise violated the dignity of one or more persons. 2. The severity of the humiliation, degradation, or other violation was of such degree as to be generally recognized as an outrage upon personal dignity. 3. Such person or persons were either *hors de combat*, or were civilians, medical personnel or religious personnel taking no active part in the hostilities. 4. The perpetrator was aware of the factual circumstances that established this status. 5. The conduct took place in the context of and was associated with an armed conflict not of an international character. 6. The perpetrator was aware of factual circumstances that established the existence of an armed conflict’. A footnote attached to ‘persons’ is identical to the one attached to the parallel element in article 8 (2) (b) (xxi).



a Theoretical and Comparative Perspective', in: M. Bergsmo, *Thematic Prosecution of International Sex Crimes* (Torkel Opsahl Academic EPublisher 2012) 291; Kelly D. Askin, *War Crimes Against Women* (1997); Christine Chinkin, *Rape and Sexual Abuse of Women in International Law*, 5 *EJIL* 326 (1994); Cohen, D., 'Prosecuting Sexual Violence from Tokyo to the ICC', in: M. Bergsmo et al. (eds.), *Understanding and Proving International Sex Crimes* (2012) 13; Buss, D., 'Learning our lessons? The Rwanda Tribunal record on prosecuting rape', in: C. McGlynn and V.E. Munro (eds.), *Rethinking Rape Law. International and Comparative Perspectives* (Routledge 2010) 61; Rhonda Copelon, 'Surfacing Gender: Re-Engraving Crimes Against Women in Humanitarian Law', 5 *Hastings Women's LJ* 2, 243 (1994); Sharon A. 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Bergsmo et al. 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**a) Humanitarian law base and drafting history.** The inclusion of article 8 para. 2 (b) (xxii) 652 – as well as the almost identical parallel provisions in article 8 para. 2 (e) (vi) and article 7 para. 1 (g)<sup>1029</sup> – with its list of progressively defined crimes of sexual violence constituted a great advance for the protection of the rights of women in times of armed conflict<sup>1030</sup>. The

<sup>1029</sup> Despite the deviating contextual elements of war crimes under article 8 para. 2 (e) and crimes against humanity under article 7, these three provisions are to be interpreted identically; see Ambos, in Bergsmo et al. (eds.), *International Sex Crimes* (2012) 143, 151.

<sup>1030</sup> For an analysis and evaluation of the offences of sexual violence under the Rome Statute and/or their drafting history, see generally K. D. Askin, *Sexual Violence in Decisions and Indictments of the Yugoslav and Rwandan Tribunals: Current Status*, 93 *AJIL* 97 (1999); B. Bedont/K. Hall-Martinez, *Ending Impunity for Gender*

list reflects a new awareness about the seriousness of these sexual offenses in times of armed conflict and the fact that they frequently remained unpunished. Delegations at the Rome Conference were determined to signal to the world that such violence amounts to most serious crimes of concern to the international community as a whole that must not go unpunished. The progressive list and definition of the offenses relating to sexual violence is not least the result of sustained lobbying by the women's rights movement.

653 In prior humanitarian law codifications, rape and other forms of sexual violence were not articulated as such and had to be subsumed under general forms of mistreatment such as 'inhuman and degrading treatment' or 'wilfully causing great suffering or serious injury to body or health' and the relating nonspecific war crimes<sup>1031</sup>. These general offenses however do not recognize or might even trivialize the specific physical and often particularly acute long-term psychological harm and social stigma caused by sexual violence such as rape. Also, the criminalization of these general forms of mistreatment does not signal specifically and unmistakably that sexual violence is intolerable under any circumstances, including in armed conflict situations.

654 It was therefore deemed crucial by women's rights advocates as well as the delegations in Rome that rape and the other forms of sexual violence eventually listed are recognized by the Rome Statute as war crimes in their own right and as being equally serious as other forms of violence criminalized under international humanitarian law. Article 8 para. 2 (b) (xxii) gives a clear signal to the ICC Prosecutor that such forms of violence also need to be prosecuted. There is no longer any need to establish that the sexual conduct concerned can be subsumed under a generic form of mistreatment. Moreover, the Rome Statute confirms that rape and other forms of sexual violence may also amount to grave breaches subject to universal jurisdiction<sup>1032</sup>.

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*Crimes under the International Criminal Court*, 6 *BrownJWorldAff* 1, 65 (1999); J. G. Gardam/M. J. Jarvis, *Women, Armed Conflict And International Law* (2001); D. M. Koenig/K. D. Askin, *International criminal law and the International Criminal Court Statute: crimes against women*, in: D. M. Askin/K. D. Koenig (eds.), *Women And International Human Rights Law* (2000); B. S. Moshan, *Women, War, and Words: The Gender Component in the Permanent International Criminal Court's Definition of Crimes against Humanity*, 22 *FordhamILJ* 154 (1998); C. Möller, *Das tatbestandliche Verbot sexueller Gewalt in bewaffneten Konflikten: Von den 'Lieber Instructions' zum Vertragsstatut von Rom*, 18 *Sicherheit und Frieden* 36 (2000); V. Oosterveld, 'The Making of a Gender-Sensitive International Criminal Court', 1 *ILF* 38 (1999); P. Viseur Sellers, 'The Context of Sexual Violence: Sexual Violence as violations of International Humanitarian Law', in: G. Kirk McDonald/O. Swaak-Goldman (eds.), *Substantive And Procedural Aspects Of International Criminal Law The Experience Of International And National Courts* (2000). A useful resource in particular on more recent developments regarding sexual offenses under ICC jurisdiction is available at <http://iccwomen.org>.

<sup>1031</sup> On the prohibition of sexual violence in international humanitarian and relating war crimes law prior to the adoption of the Rome Statute, see generally K. D. Askin, 'War Crimes Against Women: Prosecution In International War Crimes Tribunals' (1997); Askin (1999) 93 *AJIL* 97; C. Chinkin, 'Rape and Sexual Abuse of Women in International Law', 5 *EJIL* 326 (1994); R. Copelon, 'Surfacing Gender: Re-Engraving Crimes Against Women in Humanitarian Law', 5 *HastingsWomen'sLJ* 2, 243 (1994); K. Fitzgerald, 'Problems Of Prosecution and Adjudication of Rape and Other Sexual Assaults under International Law', 8 *EJIL* 638 (1997); S. A. Healey, 'Prosecuting Rape under the Statute of the War Crimes Tribunal for the former Yugoslavia', 21 *BrookJIL* 2, 327 (1995); F. Krill, 'The Protection of Women in International Humanitarian Law', 249 *IRRC* 337 (1985); Th. Meron, 'Rape as a Crime under International Humanitarian Law', 87 *AJIL* 3, 424 (1993); D. Q. Thomas/R. E. Ralph, 'Rape in War: Challenging the Tradition of Impunity', 14 *SAISRev* 81 (1994); T. L. Tompkins, 'Prosecuting Rape as a War Crime: Speaking the Unspeakable', 70 *NotreDameLRev* 847 (1995); Sellers, in: McDonald/Swaak-Goldman (eds.), *Substantive and Procedural Aspects of ICL* (2000); M. T. A. Wilbers, 'Sexual abuse in times of armed conflict', 7 *LeidenJIL* 43 (1994). See also K. D. Askin, 'Women and International Humanitarian Law', in: K. D. Askin/D. M. Koenig (eds.) *Women's Human Rights: A Reference Guide* (1999); C. Chinkin, 'Women, the Forgotten Victims of Armed Conflict?', in: H. Durham/T. L. H. McCormack (eds.) *The Changing Face Of Conflict And Efficacy Of International Humanitarian Law* (1999); J. G. Gardam/H. Charlesworth, 'Protection of Women in Armed Conflict', 22 *HumRQ* 1, 148 (2000); R. Coomaraswamy/L. M. Kois, 'Violence Against Women', in: K. D. Askin/D. M. Koenig (eds.) *Women's Human Rights: A Reference Guide* (1999); D. Buss, 'Prosecuting Mass Rape: Prosecutor v Dragoljub Kunarac, Radomir Kovac and Zoran Vukovic', 10 *Feminist Legal Studies* 91 (2002); Möller, *Das tatbestandliche Verbot sexueller Gewalt in bewaffneten Konflikten* (2000) 36. For an updated list of article on women's issues in international humanitarian law, see also <http://www.law-lib.utoronto.ca/Diana/>.

<sup>1032</sup> This results in particular from the drafting history of the Rome Statute as well as the Elements of Crimes and the state views expressed at the negotiations, and, arguably, also from the last part of article 8 para. 2 (b) (xxii).

Today, it is widely recognized that rape and other forms of sexual violence committed in armed conflict amount to war crimes as well as grave breaches. This however is a rather new development. Before, rape was sometimes seen as a natural consequence of war and military commanders, at times despite formal prohibitions, allowed or implicitly acquiesced to their troops' practice or even 'right' to rape the women of the adversary as a reward for fighting<sup>1033</sup>. Even in more recent conflicts, rape has been used as a means of warfare, war strategy or policy<sup>1034</sup>, and troops committing sexual violence were only infrequently prosecuted and punished. In the conflict in Yugoslavia in the 1990s, rape and forced pregnancy were utilized as instruments of targeted ethnic cleansing<sup>1035</sup>. Similarly, systematic sexual crimes, especially rapes, during the genocide in Rwanda in 1994 were identified as a constituent part of the genocidal conduct.<sup>1036</sup>

However, towards the end of the 20<sup>th</sup> century, it has been increasingly recognized that rape is both a war crime and a grave breach of the Geneva Conventions. Many national military codes prohibited and criminalized rape by soldiers in the early 20<sup>th</sup> century or even earlier. Article 44 of the 1863 Lieber Code prohibited 'all rape ... under the penalty of death'<sup>1037</sup>. Article 46 Hague Regulations also stipulated the respect of '[f]amily honour and rights' which sometimes has been interpreted as (indirectly) prohibiting sexual violence.

As regards the criminalization of sexual violence on an international level, rape and the '[a]bduction of girls and women for the purpose of enforced prostitution' were included in the list of violations of the laws and customs of war prepared by the Responsibilities Commission of the 1919 Paris Peace Conference<sup>1038</sup>. Nonetheless, rape or other forms of sexual violence were not specifically included under the jurisdiction of the Nuremberg and Tokyo International Military Tribunals and were not specifically charted in the indictments nor prosecuted, even though such offenses have been reported and documented, while article II para. 1 (c) Control Council Law No. 10 included rape as a crime against humanity. Rapes of civilian women and medical personnel were however prosecuted successfully in Tokyo under the categories of 'inhumane treatment', 'ill-treatment' and 'failure to respect family honour and rights'. More particularly, the then Foreign Minister *Hirota* and Generals *Toyoda* and *Matsui* were convicted by the Tokyo Tribunal for command responsibility for violations of the laws or customs of war committed by their soldiers in Nanking, which included widespread rapes and sexual assaults, and the US Military Commission convicted *Yamashita* for command responsibility for rape as a war crime<sup>1039</sup>.

<sup>1033</sup> One well-known example of sexual violence in armed conflict has been the institutionalization of sexual slavery by the Japanese Army during World War II. Already in the 17<sup>th</sup> century, Grotius stated that whoever committed rape, 'even in war, should everywhere be subject to punishment', pointing out, however, that in many places the raping of women in time of war was considered permissible, Grotius, *Rights of War* (2005) 657, Third Book, Fourth Chapter. See also Askin, *War Crimes against Women* (1997) 18 *et seq.*

<sup>1034</sup> See, e.g., Askin, *War Crimes against Women* (1997) 274; United Nations General Assembly/Security Council, 'Conflict-related sexual violence. Report of the Secretary General' A66/657-S/2012/33, 13 January 2012, paras. 5, 17–57; United Nations Department of Peacekeeping Operations, *Review of the sexual violence elements of the judgements of the ICTY, ICTR and SCSL* (United Nations 2010).

<sup>1035</sup> See, e.g., Final Report of the Commission of Experts Established Pursuant to Security Council Resolution 780 (1992), UN Doc. S/1994/674 (27 May 1994), section IV.F. and Annex IX and IXA; Askin, *War Crimes against Women* (1997) 273–287.

<sup>1036</sup> *Prosecutor v. Seromba*, No. ICTR-2001-66-A, Judgment, Appeals Chamber, 12 March 2008, para. 46; see also Ambos, in Bergsmo et al. (eds.), *International Sex Crimes* (2012) 143, 170 with fn 138; see also *Prosecutor v. Karemera and Ngirumpats*, No. ICTR-98-44-T, Judgment and Sentence, Trial Chamber III, 2 February 2012, paras. 1666–1668.

<sup>1037</sup> See also article 47 Lieber Code of 1863, reprinted in: Schindler/Toman (eds.), *Laws of Armed Conflict* (1988) 10.

<sup>1038</sup> See also Askin, *War Crimes against Women* (1997) 42–45.

<sup>1039</sup> See Askin, *War Crimes against Women* (1997) 164–203; B. V. A. Röling/C. F. Rüter (eds.), I *The Tokyo Judgment: The International Military Tribunal For The Far East*, Apr. 29, 12. Nov. 1946, 1948, at 385 (1977); B. V. Röling/C. F. Rüter (eds.), II *The Tokyo Judgment*, 965, 971–972, 988–989 (1977). In the *Yamashita* case, the US Military Commission stated that 'where murder and rape ... are widespread offences, and there is no effective attempt by a commander to discover and control the criminal acts, such a commander may be held

Several national laws criminalize rape and other forms of sexual violence such as forced prostitution committed in connection with an armed conflict situation as a war crime<sup>1040</sup>.

658 After WW II, article 27 para. 2 GC IV provided that '[w]omen shall be especially protected against any attack on their honour, in particular against rape, enforced prostitution, or any form of indecent assault'. Article 75 para. 2 (b) Add. Prot. I prohibits 'outrages upon personal dignity, in particular humiliating and degrading treatment, enforced prostitution and any form of indecent assault',<sup>1041</sup> while article 76 adds particular provisions on the protection of women: '1. Women shall be the object of special respect and shall be protected in particular against rape, forced prostitution and any other form of indecent assault. 2. Pregnant women and mothers having dependent infants who are arrested, detained or interned for reasons related to the armed conflict, shall have their cases considered with the utmost priority...'

659 However, these instruments characterize the named forms of sexual violence merely as an attack on the *honor* of women or other individuals and do not include such violence as grave breaches in their own rights nor specify that they may amount to specific grave breaches, failing to treat and specifically address them as most serious crimes of violence.

660 The non-binding UN General Assembly Resolution 3318 of 14 December 1974 contained a 'Declaration on the Protection of Women and Children in Emergency and Armed Conflict', which called on states to make '[a]ll efforts ... to spare women and children from the ravages of war', proclaiming that '[a]ll forms of repression and cruel and inhuman treatment of women and children ... committed by belligerents in the course of military operations or in occupied territories shall be considered criminal'.

661 In the 1990s, it became increasingly recognized that rape and other forms of sexual violence may amount to war crimes and grave breaches such as 'torture', 'inhuman treatment', and 'wilfully causing great suffering, or serious injury to body or health'<sup>1042</sup>. Of particular importance in this respect is the **jurisprudence of the ICTY and ICTR**, which

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responsible, even criminally liable, for the lawless acts of his troops ...', US Military Commission in Manila, *Yamashita* (7 Dec. 1945), reprinted in L. Friedman (ed.), *The Law of War: A Documentary History* 1597, Vol. II (1972). For further references, see Meron (1993) 87 *AJIL* 424, 426 (fn. 14); *Prosecutor v. Furundžija*, No. IT-95-17/1-T, Judgment, Trial Chamber, 10 December 1998, para. 168.

<sup>1040</sup> See, e.g., Australian Law Concerning Trials of War Criminals by Military Courts of 1945, V *Law Reports* 95 (1948); article 374(1) of the 1994 Penal Code of the Republic of Slovenia (coercion into prostitution, rape); article 612(3) of the Spanish Military Penal Code (Ley orgánica 19/95 of 23 Nov. 1995) (induced or forced prostitution), article 142 of the Penal Code of the Socialist Federal Republic of Yugoslavia; Chinese Law governing the Trial of War Criminals of 24 Oct. 1946, XIV *Law Reports* 152 *et seq.* (1949). Enforced prostitution in an armed conflict has been prosecuted by a number of national courts, see XV *Law Reports* 121 (1949). See also U.S. Military Commission in Manila, *Yamashita* (7 Dec. 1945), reprinted in Friedman (ed.), *Law of War* (1972) 1599.

<sup>1041</sup> See also article 4 Add. Prot. II. On the historical development of prosecutions of sexual violence since WW II, see Cohen, in: Bergsmo et al. (eds.), *International Sex Crimes* (2012) 13 *et seq.*

<sup>1042</sup> The UN Special Rapporteur on human rights in the former Yugoslavia Macowiecki stated that '[r]ape in [the context of article 27] is a grave breach of the Fourth Geneva Convention (article 147) and as such, a war crime', UN Special Rapporteur Macowiecki of the Commission on Human Rights, Report on the Situation of Human Rights in the Territory of the Former Yugoslavia pursuant to Commission Resolution 1992/S-1/1 of 14 Aug. 1992, E/CN.4/1993/50 (1993), para. 89. The UN Special Rapporteur Linda Chavez stated that '[r]ape and sexual abuse of women and girls in situations of armed conflict (whether international or internal) constitute a grave breach of international humanitarian law' and that such sexual violence 'constitutes torture and inhuman treatment which causes suffering and serious bodily injury', Preliminary report of the special rapporteur on the situation of systematic rape, sexual slavery and slavery-like practices during periods of armed conflict, UN Doc. E/CN.4/Sub.2/1996/26 (16 July 1996), paras. 14 and 15 (see also paras. 16–19 and 25). The ICRC furthermore has confirmed *inter alia* in its Aide-mémoire of 3 Dec. 1992, in its statement of 14 Feb. 1997 before the Preparatory Committee, and in its Recommendations to the Rome Diplomatic Conference that the grave breach of 'wilfully causing great suffering or serious injury to body or health' covers rape. See, e.g., also Pictet (ed.), *Commentaries Geneva Conventions iv* (1960) article 147, 598; Final Declaration of the International Conference for the Protection of War Victims (30 Aug. to 1 Sept. 1993) (Geneva) (1 Sept. 1993), para. I3 (reiterating that acts of sexual violence directed notably against women and children 'constitute grave breaches of international humanitarian law'); 1998 UN Slavery Rapporteur Report, paras. 56–66; U.S. Department of State letter to Senator A. Specter (27 Jan. 1993), quoted in, Meron (1993) 87 *AJIL* 424, 427 (fn. 22).

elaborates on the definitions of international crimes involving forms of sexual violence.<sup>1043</sup> Article 4 para. 2 of the ICTR Statute confers jurisdiction over ‘outrages upon personal dignity, in particular ... rape, enforced prostitution and any form of indecent assault’, drawing on article 4 para. 2 (e) Add. Prot. II. In contrast, the ICTY Statute does not explicitly provide that forms of sexual violence amount to war crimes that can be prosecuted by the ICTY. In a number of cases, however, the ICTY Office of the Prosecutor has charged rape and other forms of sexual violence as war crimes under the ICTY Statute. More particularly, ICTY Chambers have consistently affirmed that such conduct may amount to a grave breach or a serious violation of the laws and customs of war<sup>1044</sup>. The *Čelebići* Trial Chamber affirmed that ‘[t]here can be no doubt that rape and other forms of sexual assault are expressly prohibited under international humanitarian law’, referring to articles 27 GC IV, 4 para. 2 Add. Prot. II, 76 para. 1 Add. Prot. I, 46 Hague Regulations (which according to the ICTY implicitly prohibits rape and sexual assault by protecting family honor and rights) and 6 (c) of the Nuremberg Charter<sup>1045</sup>.

The first proposals of lists of war crimes to be included under the Rome Statute had either not contained a specific reference to sexual violence or linked them to outrages upon personal dignity, reproducing the wording contained in article 75 para. 2 (b) Add. Prot. I albeit adding rape to it<sup>1046</sup>. This reflected the traditional approach to sexual violence in prior international humanitarian law. The recognition as a grave breach was first proposed by New Zealand and Switzerland in the February 1997 session of the Preparatory Committee when ‘rape, enforced prostitution and other sexual violence of comparable gravity’ were listed in brackets as examples of the grave breach of wilfully causing great suffering or serious injury to body or health<sup>1047</sup>. The December 1997 session then separated sexual violence from the more general categories and created a separate, unbracketed category of war crimes in its own right for ‘rape, sexual slavery, enforced pregnancy, enforced sterilization, and any other form of sexual violence also constituting a grave breach of the Geneva Conventions’<sup>1048</sup>. This was not least the success of the lobbying of the Women’s Caucus for Gender Justice in the ICC, which coordinated the strategy of a great number of women’s human rights NGOs. The only form of sexual violence where dissent remained very strong prior even at the Rome Conference was the crime of ‘forced pregnancy’, with the Vatican arguing that this notion should be replaced by ‘forced impregnation’ for fear of a precedent with regard to abortions

<sup>1043</sup> On related jurisprudence of the ICTY and ICTR, see ICTR-OTP, ‘Prosecution of sexual violence – Best practices manual (2014), Annex B pp. 1 *et seq.*; Mouthaan (2011) 11 *ICLRev* 775, 782 *et seq.*, UN Department of Peacekeeping Operations, *Review of the sexual violence elements of the judgements of the ICTY, ICTR and SCSL* (2010); Buss, in: McGlynn and Munro (eds.), *Rethinking Rape Law* (2010) 61 *et seq.*; Mischkowski and Mlinarevic, ‘The trouble with rape trials’ (2009) 1 *et seq.*; Maystre and Rangel, in: Bergsmo et al. (eds.), *International Sex Crimes* (2012) 511 *et seq.*

<sup>1044</sup> See in particular *Prosecutor v. Akayesu*, ICTR-96-4-T, Judgment, Trial Chamber, 10 December 1998, paras. 596–598; *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgment, Trial Chamber, 16 November 1998, paras. 475–496; *Prosecutor v. Furundžija*, IT-95-17/1-T, Judgment, Trial Chamber, 10 December 1998, paras. 165–186 (as well as paras. 266–275, 279 and 295); *Prosecutor v. Kunarac et al.*, IT-96-23-T and IT-96-23/1-T, Judgment, Trial Chamber, 22 February 2001, paras. 436–464 (as well as, e.g., paras. 6–11, 28–84, 162–197, 205 *et seq.* and also paras. 515 *et seq.* and 544–557); *Prosecutor v. Kvočka et al.*, IT-98-30/1-T, Judgment, Trial Chamber, 2 November 2001, paras. 175–183 (as well as, e.g., paras. 98–109). See also *Prosecutor v. Musema*, ICTR-96-13-A, Judgment, Trial Chamber, 27 Jan. 2000, paras. 220–229 and 285; *Prosecutor v. Tadić*, IT-94-1-T, Judgment, Trial Chamber, 7 May 1997, e.g. paras. 154, 165, 175, 193–194, 198, 206, 222, 231–232, 237, 377, 398, 425–427, 452, 468, 470, 536, 646; *Prosecutor v. Krstić*, IT-98-33-T, Judgment, Trial Chamber, 2 August 2001, paras. 509 and 513. For a list of ICTY and ICTR Rule 61 rulings and indictments alleging sexual violence, see Askin (1999) 93 *AJIL* 97, 99 (fn. 13) and 115–122.

<sup>1045</sup> *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgment, Trial Chamber, 16 November 1998, para. 476.

<sup>1046</sup> 1996 Preparatory Committee II, pp. 61 (para. 2(j)) and 63 (para. 3(e) (‘outrages upon personal dignity, in particular rape, enforced prostitution and other sexual violence of comparable gravity’)).

<sup>1047</sup> 1996 Preparatory Committee II, p. 6 (para. A(c)).

<sup>1048</sup> Preparatory Committee Decisions Dec. 1997, p. 11 (para. B(pbis)). Various delegations, such as Finland and Switzerland on 8 Dec. 1997, also stated in the December Preparatory Committee that rape was a grave breach.



or laws restricting or outlawing abortions. The establishment of the list of war crimes of sexual violence under the Rome Statute and even more so the drafting of their elements by the Preparatory Commission was to some extent a creative legislating exercise<sup>1049</sup>, since these forms of violence had not *per se* constituted war crimes in their own right prior to the adoption of the Rome Statute and since relating international humanitarian law rules were not overly precise. The drafting history of the list and definition of the specific offences in article 8 para. 2 (b) (xxii), including the dynamics concerning the debate on the inclusion of forced pregnancy, took a course largely parallel to the debate on the corresponding crimes against humanity provision in article 7 para. 1 (g), to the commentary of which accordingly can be referred.

663 Conduct qualifying as a war crime of sexual violence might at times also qualify as war crimes under the Rome Statute criminalizing general forms of mistreatment, such as the war crimes of torture (paragraph (a) (ii)-1), inhuman treatment (paragraph (a) (ii)-2), wilfully causing great suffering or serious injury to body or health (paragraph (a) (iii)), wounding a person *hors de combat* (article 8 para. 2 (b) (vi)), outrages upon personal dignity (paragraph (b) (xxi)), or might be inherent in the commission of conscripting and enlisting child soldiers (article 8 para. 2 (b) (xxvi))<sup>1050</sup>. In addition, conduct addressed by the war crime of enforced sterilization may also amount to mutilation (paragraph (b) (x)) and conduct qualifying as forced pregnancy may also amount to unlawful confinement (paragraph (a) (vii)-2).

664 Moreover, conduct amounting to one of the six listed types of war crimes of sexual violence may amount to another type of sexual violence as a war crime. Sexual slavery for instance may well involve one or more acts amounting to rape or another form of sexual violence. Similarly, enforced prostitution may be connected to sexual slavery or involve other sexual violence. The UN Special Rapporteur on Contemporary Forms of Slavery indeed affirmed that '[s]exual slavery ... encompasses most, if not all forms of forced prostitution'<sup>1051</sup>. Lastly, the types of sexual violence listed under article 8 para. 2 (b) (xxii) are also criminalized as crimes against humanity under article 7 para. 1 (g) Rome Statute, provided the requisite elements are met<sup>1052</sup>. Sexual violence may furthermore amount to genocidal acts under article 6 para. (e) Rome Statute, in particular where forced pregnancy, rape, or enforced sterilization qualifies as 'imposing measures intended to prevent births within the group'<sup>1053</sup>.

665 In its recent policy paper on sexual violence, the ICC-OTP announced a **policy of prioritization** with regard to crimes of a sexual nature, which is reflected in an approach to 'ensure that charges for sexual and gender-based crimes are brought whenever there is sufficient evidence to support such charges. [The OTP] will bring charges for sexual and gender-based crimes explicitly as crimes *per se*, in addition to charging such acts as forms of other violence within the competence of the Court where the material elements are met, e.g., charging rape as torture. The Office will seek to bring cumulative charges in order to reflect the severity and multifaceted character of these crimes fairly, and to enunciate their ranges, supported by the evidence in each case. In appropriate cases, the office will charge acts of sexual and gender-based crimes as different categories of crimes within the Court's jurisdic-

<sup>1049</sup> On the drafting history of the Elements of Crimes on sexual violence, see Rückert/Witschel, in: Fischer/Kress/Lüder (eds.), *International and National Prosecution* (2001) 80–87; Dörmann, in: Fischer/Kress/Lüder (eds.), *International and National Prosecution* (2001) 131–133.

<sup>1050</sup> see *Prosecutor v. Lubanga Dyilo*, ICC-01/04-01/06-2842, Judgment pursuant to Article 74 of the Statute, Trial Chamber I, 14 March 2012, paras. 16, 36, 577, 589, 598, 629–630, 890–896, 913, where TC I acknowledged sexual violence against Congolese child soldiers, but could not convict for such crimes since they have not been charged (*ibid.*, esp. paras. 36, 629–630, 913); crit. *ibid.*, Separate and Dissenting Opinion of Judge Odio Benito, paras. 6, 16, 20 observing that the sexual element of the committed crimes becomes invisible and regretting a discrimination of the victims; crit. Ambos (2012) 12 *ICLRev* 115, 137–138. with fn. 156; see also Greijer, in: Bergsmo (ed.), *Thematic Investigations* (2012) 137, 157 *et seq.*

<sup>1051</sup> 1998 UN Slavery Rapporteur Report, para. 31.

<sup>1052</sup> See Ch. K. Hall, *article 7*, mn 41 *et seq.*

<sup>1053</sup> See W. A. Schabas, *article 6*, mn 21.



tion (war crimes, crimes against humanity, genocide), in order to properly describe, *inter alia*, the nature, manner of commission, intent, impact and context. The Office will also seek to highlight the gender-related aspects of other crimes within its jurisdiction – for example, the recruitment of child soldiers and enslavement, and, in the case of the latter, their manifestation as trafficking in persons, in particular women and children.<sup>1054</sup>

Also, one among the six strategic goals of the ICC-OTP in its current overall prosecutorial strategy is to pay particular attention to sexual and gender based crimes and those against children.<sup>1055</sup>

During the past years, the prosecution of sexual and gender based crimes in international criminal law gained increasing attention. The commission of sexual violence as international crimes comes along with noteworthy procedural particularities. Such crimes are often highly traumatic for its victims and witnesses, who therefore need to be protected sufficiently in accordance with articles 54 (1) (b) and 68 (1) ICC Statute – not least to prevent a secondary traumatization.<sup>1056</sup> Some argued for a need of prioritized, **thematic focused prosecutions of international sexual crimes**. Such a focused prosecution would entail a higher degree of the condemnation of sexual crimes in conflict situations.<sup>1057</sup> Relevant staff engaged in the prosecution of sexual crimes should be trained to handle respective specialties.<sup>1058</sup> However, while it is increasingly acknowledged that a widespread commission of sexual crimes is inherent part of many conflict situations,<sup>1059</sup> one could easily argue for a general need of such trainings for all staff members engaged in the field and witness examinations, especially when taking into account that the extent of sexual crimes may not be visible during the first investigative steps.

With the exception of the war crime of forced pregnancy, which by its nature can only be committed against women, the drafters of the Rome Statute intended all of the war crimes of sexual violence under article 8 para. 2 (b) (xxii) to be defined, in principle, in a **gender-neutral** way. Thus, both victims as well as perpetrators may be of any sex and gender. This also results from the almost entirely gender-neutrally wording of the elements of crimes for article 8 para. 2 (b) (xxii), and with regard to the war crime of rape is underscored in footnote 50 of the elements. Anything else than a gender neutral interpretation would contrast article 7 (3), which clarifies that the ‘term ‘gender’ refers to the two sexes, male and female, within the context of society’,<sup>1060</sup> and furthermore against the prohibition of discrimination pursuant to article 21 (3). Although thus far the majority of cases involving sexual offences at the international tribunals deals with violence against females, charges of rape against males are for the first time dealt with in *Ntaganda*.<sup>1061</sup> The ICRC Commentary to article 75 Add. Prot. I indeed states that ‘[t]he provision relating in Article 75 to enforced

<sup>1054</sup> OTP, ‘Policy Paper SGBC’ (2014), summary paras. 7–8; on a contextualization of sexual violence in ICL, see Oosterveld, in: Bergsmo (ed.), *Thematic Investigations* (2012) 189 *et seq.*

<sup>1055</sup> ICC-OTP, ‘Strategic plan June 2012–2015’ (2013) para. 5, 58 *et seq.*

<sup>1056</sup> The ICC-OTP perceives itself obliged to caution and protective measures under Art. 68(1) ICC Statute, see OTP, ‘Policy Paper SGBC’ (2014) summary para. 5 and paras. 60 *et seq.* On best practices by the ICTR, see ICTR-OTP, ‘Prosecution of sexual violence – Best practices manual’ (2014) 1–81; Buss, in: McGlynn and Munro (eds.), *Rethinking Rape Law* (2010) 61 *et seq.*; for a study examining challenges of rape trials at the ICTY, see Mischkowski and Mlinarević, ‘The trouble with rape trials’ (2009); Wildermuth and Kneuer, in: Bergsmo et al. (eds.), *International Sex Crimes* (2012) 65, 116 *et seq.*; Olugbuo, in: Bergsmo (ed.), *Thematic Investigations* (2012) 109 *et seq.*

<sup>1057</sup> Ambos, in: Bergsmo (ed.), *Thematic Prosecution of International Sex Crimes* (2012) 291 *et seq.*, Mouthaan (2011) 11 *ICLRev* 775, 786 *et seq.*

<sup>1058</sup> OTP, ‘Policy Paper SGBC’ (2014) summary para. 15 and paras. 60 *et seq.*, 118–119; collecting pro and contra arguments, Bekou, in: Bergsmo (ed.), *Thematic Investigations* (2012) 233 *et seq.*

<sup>1059</sup> Listing widespread sexual and gender based crimes in ongoing conflict situations: United Nations General Assembly/Security Council, ‘Conflict-related sexual violence. Report of the Secretary General’ A/66/657-S/2012/33, 13 January 2012, paras. 17–57.

<sup>1060</sup> Article 7 (3) Rome Statute.

<sup>1061</sup> *Prosecutor v. Ntaganda*, ICC-01/04-02/06-309, Decision pursuant to article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor against Bosco Ntaganda, Pre-Trial Chamber II, 9 June 2014, para. 52. For an in-depth account on sexual violence against men in international law, see Mouthaan (2013) 13 *ICLRev* 65.

prostitution and indecent assault applies to everybody covered by the article, *regardless of sex*<sup>1062</sup>. The gender-neutrality of sexual offenses has also been affirmed by the UN Special Rapporteur on Contemporary Forms of Slavery McDougall: 'Rape is defined in gender-neutral terms, as both men and women are victims of rape. However, it must be noted that women are more at risk of being victims of sexually violent crimes and face gender-specific obstacles in seeking redress. Although this report retains 'penetration' in the definition of rape, it is clear that the historic focus on the act of penetration largely derives from a male preoccupation with assuring women's chastity and ascertaining paternity of children. It is important, nevertheless, to emphasize that all forms of sexual violence, including but not limited to rape, must be condemned and prevented'<sup>1063</sup>.

669 The ICC has not yet issued a conviction based on allegations of sexual crimes pursuant to article 8 (2) (b) (xxii). In March 2014, it acquitted *Katanga*, *inter alia.*, for charges of accessory to rape and sexual slavery as a crime against humanity and as a war crime under article 8 (2) (e) (vi).<sup>1064</sup> However, a number of ongoing cases address charges of sexual violence. Charges of rape and sexual slavery were confirmed in the cases against *Katanga and Ngudjolo Chui, Ntaganda*<sup>1065</sup> and *Bemba Gombo*<sup>1066</sup>, moreover in the Kenyan case against *Muthaura, Kenyatta and Ali*<sup>1067</sup>, and in the situation concerning the Ivory Coast in the cases against *Gbagbo*<sup>1068</sup> and *Goudé*<sup>1069</sup>. Also, the following arrest warrants and summons to appear contain charges involving sexual violence: in the situation in Sudan, the arrest warrants for *Al Bashir*<sup>1070</sup> *Ahmad Harun*<sup>1071</sup>, *Hussein*<sup>1072</sup> and *Ali Kushayb*<sup>1073</sup>. In the

<sup>1062</sup> Pilloud/Pictet, in: Sandoz/Swinarski/Zimmermann (eds.), *Commentary Additional Protocols* (1987) 874 (No. 3049) (emphasis added) (arguing that this is also supported by the fact that 'Article 76 (*Protection of women*), relating to the special protection to which women are entitled, reiterates the provision relating to enforced prostitution and indecent assault, specifically mentioning rape', *id.*

<sup>1063</sup> A footnote to the cited paragraph states that '[v]iolent crimes of a homosexual nature are not explicitly mentioned in international humanitarian law ... That international humanitarian law, insofar as it provides protection against rape and other sexual assaults, is applicable to men as well as women is beyond any doubt as the international human right not to be discriminated against (in this case on the basis of sex) does not allow derogation', 1998 UN Slavery Rapporteur Report, para. 24.

<sup>1064</sup> *Procureur v. Katanga*, ICC-01/04-01/07-3436, Jugement rendu en application de l'article 74 du Statut, Chambre de Première Instance II, 7 mars 2014; by the time of writing, no translation of the judgement into English was delivered yet. See ICC, 'Summary of Trial Chamber II's Judgment of 7 March 2014, pursuant to article 74 of the Statute in the case of The Prosecutor v. Germain Katanga' (2014) < [http://www.icc-cpi.int/en\\_menus/icc/press%20and%20media/press%20releases/Documents/986/14\\_0259\\_ENG\\_summary\\_judgment.pdf](http://www.icc-cpi.int/en_menus/icc/press%20and%20media/press%20releases/Documents/986/14_0259_ENG_summary_judgment.pdf) > accessed 30 January 2015, para. 35–36 and p. 30; see also Stahn (2014) 12 JICJ 809, 820 *et seq.*; Women's Initiative for Gender Justice (May 2014) *Legal Eye on the ICC*.

<sup>1065</sup> *Prosecutor v. Ntaganda*, ICC-01/04-02/06-309, Decision pursuant to article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor against Bosco Ntaganda, Pre-Trial Chamber II, 9 June 2014, paras. 36, 49–52 (rape as CaH and war crime under article 8(2)(e)(vi)), and 53–57 (sexual slavery as CaH and war crime under 8(2)(e)(vi)), 76–82 (rape and sexual slavery as war crime under 8(2)(e)(vi)).

<sup>1066</sup> *Prosecutor v. Bemba Bombo*, ICC-01/05-01/08-424, Decision Pursuant to Article 61(7)(a) and (b) on the Charges against Jean-Pierre Bemba Gombo, Pre-Trial Chamber III, 15 June 2009, para. 286.

<sup>1067</sup> *Prosecutor v. Muthaura et al.*, ICC-01/09-02/11-382, Decision on the Confirmation of Charges pursuant to article 61(7)(a) and (b) of the Rome Statute, Pre-Trial Chamber II, 23 January 2012, Count 5–6 on pp. 12–13, paras. 254 *et seq.*, 428 c (on Cah).

<sup>1068</sup> *Prosecutor v. Gbagbo*, ICC-02/11-01/11-656, Decision on the Confirmation of Charges against Laurent Gbagbo, Pre-Trial Chamber I, 12 June 2014, paras. 74, 195–196, Count 2 on p. 128 (on CaH).

<sup>1069</sup> *Prosecutor v. Goudé*, ICC-02/11-02/11-186, Decision on the Confirmation of Charges against Charles Blé Goudé, Pre-Trial Chamber I, 11 December 2014, paras. 117–118, 188, 194 (Count 2, rape as CaH).

<sup>1070</sup> *Prosecutor v. Al Bashir*, ICC-02/05-01/09-1, Warrant of Arrest for Omar Hassan Ahmad Al Bashir, Pre-Trial Chamber I, 4 March 2009, p. 6 (recognizing a high amount of rapes) and para. vii.

<sup>1071</sup> *Prosecutor v. Harun*, ICC-02/05-01/07-2, Warrant of arrest for Ahmad Harun, Pre-Trial Chamber I, 27 April 2007, count 10 and 39 (both persecution, article 7 (1) (h), count 14 (rape, article 8 (2) (e) (vi)), count 42–43 (rape under article 7 (1) (h) and 8 (2) (e) (vi)).

<sup>1072</sup> *Prosecutor v. Hussein*, ICC-02/05-01/12-2, Warrant of Arrest for Abdel Raheem Muhammad Hussein, Pre-Trial Chamber I, 1 March 2012, pp. 4, 9.

<sup>1073</sup> *Prosecutor v. Kushayb*, ICC-02/05-01/07-3, Warrant of arrest for Ali Kushayb, Pre-Trial Chamber I, 27 April 2007, count 10 and 39 (both persecution, article 7 (1) (h), count 14 (rape, article 8 (2) (e) (vi)).

Ugandan situation, charges of rape and sexual slavery are included in the arrest warrants for Kony<sup>1074</sup> and Otti<sup>1075</sup>.

**b) War crime of rape.** According to the ICTY, ‘international law ... regards rape as the most serious manifestation of sexual assault’<sup>1076</sup>. However, there had been no definition of rape in international humanitarian or human rights instruments prior to the Elements of Crimes elaborated by the Preparatory Commission. Domestic legal systems contain different definitions of rape<sup>1077</sup>. A common denominator of the way rape is understood in both the Elements of Crimes as well as national legal systems and international case law is the distinction of two basic elements of this crime: The physical act, and the lack of valid consent or presence of coercive or similar circumstances.

In the Elements of Crimes, rape is defined as follows<sup>1078</sup>:

- ‘1. The perpetrator invaded the body of a person by conduct resulting in penetration, however slight, of any part of the body of the victim or of the perpetrator with a sexual organ, or of the anal or genital opening of the victim with any object or any other part of the body.
2. The invasion was committed by force, or by threat of force or coercion, such as that caused by fear of violence, duress, detention, psychological oppression or abuse of power, against such person or another person, or by taking advantage of a coercive environment, or the invasion was committed against a person incapable of giving genuine consent.’

**aa) The physical act of rape.** The UN Special Rapporteur on Contemporary Forms of Slavery McDougall has suggested that the physical element of rape be defined as ‘the insertion ... of any object, including but not limited to a penis, into a victim’s vagina or anus; or the insertion ... of a penis into the mouth of the victim’<sup>1079</sup>.

However, in the first case of the *ad hoc* international criminal tribunals to consider the definition of rape as a crime under international law, an ICTR Trial Chamber considered there was no commonly accepted definition of the term in international law, adding that ‘while rape has been historically defined in national jurisdictions as non-consensual sexual intercourse, variations on the form of rape may include acts which involve the insertion of objects and/or the use of bodily orifices not considered to be intrinsically sexual. ... The Tribunal defines rape as a physical invasion of a sexual nature, committed on a person under circumstances which are coercive’<sup>1080</sup>.

The *Furundžija* Trial Chamber of the ICTY analyzed the specific elements of the crime of rape in more detail. Again, the *Furundžija* Trial Chamber found that the precise elements of rape could not ‘be drawn from international treaty or customary law, nor ... general principles of international criminal law or ... general principles of international law’. Consequently, the Chamber considered it necessary to ‘look for principles of criminal law common to the major legal systems of the world’ in order to ‘arrive at an accurate definition based on the criminal law principle of specificity (... ‘*nullum crimen sine lege stricta*’)<sup>1081</sup>. The *Furundžija* Trial Chamber concluded that the main common element was (forced)

<sup>1074</sup> *Prosecutor v. Kony et al*, ICC-02/04-01/05-53, Warrant of Arrest for Joseph Kony issued on 8 July 2005 as amended on 27 September 2005, Pre-Trial Chamber II, 27 September 2005 (Count 2 and 3 on pp. 12–13: rape; Count 1 on p. 12: sexual slavery).

<sup>1075</sup> *Prosecutor v. Kony et al*, ICC-02/04-01/05-54, Warrant of Arrest for Vincent Otti, Pre-Trial Chamber II, 8 July 2005 (Count 3 on p. 13: rape; Count 1 on p. 12: sexual slavery).

<sup>1076</sup> *Prosecutor v. Furundžija*, IT-95-17/1-T, Judgment, Trial Chamber, 10 December 1998, para. 175.

<sup>1077</sup> *Rape and Sexual Assault: A Legal Study*. Final Report of the United Nations Commission of Experts Established Pursuant to Security Council Resolution 780 (1992) (S/1994/674/Add.2 (Vol. I), Annex II; see also Ambos, in: Bergsmo et al. (eds.), *International Sex Crimes* (2012) 143, 149–150, recognizing a ‘cultural conditionality of criminal prohibitions that becomes particularly obvious in the context of sexual offences’.

<sup>1078</sup> ICC Elements of Crimes for Arts. 7 (1) (g)-1, 8 (2) (b) (xxii)-1 and 8 (2) (e) (vi)-1.

<sup>1079</sup> 1998 UN Slavery Rapporteur Report, para. 24.

<sup>1080</sup> *Prosecutor v. Akayesu*, ICTR-96-4-T, Judgment, Trial Chamber, 10 December 1998, paras. 686 and 688 (emphasis added), confirmed in *Prosecutor v. Delalić et al.*, No. IT-96-21-T, Judgment, Trial Chamber, 16 November 1998, paras. 478–479.

<sup>1081</sup> *Prosecutor v. Furundžija*, IT-95-17/1-T, Judgment, Trial Chamber, 10 December 1998, para. 177.

physical penetration<sup>1082</sup>. However, while many national legal systems were found to specify that rape can only be committed against a woman, others provide that rape can be committed against a victim of either sex, and still others use wording open for interpretation<sup>1083</sup>. Another major discrepancy the Chamber found was that some domestic legal systems qualify forced oral penetration as rape while others qualify such act as sexual assault. The *Furundžija* Trial Chamber qualified the forced penetration of the mouth by the male sexual organ as the war crime of rape for two reasons. First, such penetration constitutes ‘a most humiliating and degrading attack upon human dignity’ and ‘an extremely serious sexual outrage’ that can be ‘just as humiliating and traumatic as vaginal or anal penetration’. Second, forced oral sex in prosecutions before the ICTY ‘is invariably an aggravated sexual assault as it is committed in time of armed conflict on defenseless civilians’<sup>1084</sup>. In conclusion, the *Furundžija* Trial Chamber came to the following definition of the physical act of rape:

‘the sexual penetration, however slight:

- a) of the vagina or anus of the victim by the penis of the perpetrator or any other object used by the perpetrator; or
- b) of the mouth of the victim by the penis of the perpetrator; ...’<sup>1085</sup>.

675 Element 1 for article 8 para. 2(b) (xxii)-1 Rome Statute suggests that the physical act of rape consists in that:

‘[t]he perpetrator invaded the body of a person by conduct resulting in penetration, however slight, of any part of the body of the victim or of the perpetrator with a sexual organ, or of the anal or genital opening of the victim with any object or any other part of the body’ (footnote omitted).

676 This formulation was, at the time of its adoption by the Preparatory Commission, one of the most progressive and broader definitions of rape under international and even national law. The definition derives to a large degree from the above-described jurisprudence of the two *ad hoc* Tribunals. The long and relatively complicated formulation is the result of the Preparatory Commission’s intention to draft a **gender-neutral** definition.

677 The general requirement that the perpetrator ‘invaded’ the body of a person is somewhat vague but was preferred as it appears broader than the term ‘penetrated’ and was ‘intended to be broad enough to be gender-neutral’<sup>1086</sup>. Penetrating ‘any part of the body of the victim or of the perpetrator’ would include penetrating not only the anal or genital opening but in particular also the mouth. Therefore, the wording of the Elements also covers forcing a victim to perform fellatio on the perpetrator or another person<sup>1087</sup>, performing fellatio on a victim, or even sexual intercourse forced on a man by a woman. The Elements also qualify as rape the penetration of the anal or genital opening of the victim with any object or any other part of the body (e.g. fingers). The ICTR has qualified as rape the thrusting of a piece of wood into the sexual organs of a woman as she lay dying<sup>1088</sup>.

678 **bb) No sexual autonomy (no ‘consent’/coercion).** Under national legislations, sexual activity generally is not prohibited if there is consent. Similarly, it can be argued that the

<sup>1082</sup> *Ibid.*, para. 180; similar Ambos, in: Bergsmo et al., *International Sex Crimes* (2012), 143, 153 (‘every sexual penetration may constitute rape, whereas sexual behavior falling short of a penetration is not covered’).

<sup>1083</sup> *Ibid.*, para. 180.

<sup>1084</sup> *Ibid.*, paras. 182–184.

<sup>1085</sup> *Ibid.*, para. 185. This definition has been confirmed in *Prosecutor v. Kunarac et al.*, IT-96-23T and IT-96-23/1-T, Judgment, Trial Chamber, 22 February 2001, para. 438, and (more implicitly) also in *Prosecutor v. Kvočka et al.*, IT-98-30/1-T, Judgment, Trial Chamber, 2 November 2001, paras. 175–176.

<sup>1086</sup> Fn. 50 to element 1 for article 8 para. 2 (b) (xxii)-1.

<sup>1087</sup> In an *obiter dictum*, the *Čelebići* ICTY Trial Chamber found ‘that the act of forcing [the victims] to perform fellatio on one another ... could constitute rape for which liability could have been found if pleaded in the appropriate manner’, *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgment, Trial Chamber, 16 November 1998, paras. 1062–1066 (emphasis added) (the Trial Chamber instead determined inhuman as well as cruel treatment). See also *Prosecutor v. Todorović*, IT-95-9/1-S, Sentencing Judgment, Trial Chamber, 31 July 2001, paras. 39–40 (and para. 66).

<sup>1088</sup> *Prosecutor v. Akayesu*, ICTR-96-4-T, Judgment, Trial Chamber, 10 December 1998, para. 686.

above-described physical act of invading a person's body cannot amount to a war crime where both sides consent. However, can there be genuine consent of a protected person in the particular situation of an armed conflict, since the environment of such conflict generally is coercive and dominated by unequal relations of power and fear?<sup>1089</sup> A prisoner of war may well formally 'consent' to sexual acts with the guards, but may do so only because of fear for her or his life. How should the issue of consent and criminal responsibility therefore be addressed with regard to sexual activity related to armed conflict?

The ICTY *Furundžija* Trial Chamber analyzed major legal systems of the world and found 679 that all jurisdictions required:

'an element of force, coercion, threat, or acting without the consent of the victim: force is given a broad interpretation and includes rendering the victim helpless'<sup>1090</sup>.

Some jurisdictions were also found to indicate that the force or intimidation can be 680 committed against a third person<sup>1091</sup>. According to the *Furundžija* Trial Chamber's concise formula, rape requires 'coercion or force or threat of force against the victim or a third person'<sup>1092</sup>, noting that the threat of force may be 'express or implied and must place the victim in reasonable fear that he, she or a third person will be subjected to violence, detention, duress or psychological oppression'<sup>1093</sup>.

The *Kunarac* ICTY Trial Chamber however found the concise *Furundžija* formula to be more 681 restrictive than required by international law as it does not refer to 'other factors which would render an act of sexual penetration **non-consensual or non-voluntary** on the part of the victim, which ... is ... the accurate scope of this aspect of the definition in international law'<sup>1094</sup>.

In the *Kunarac* Chamber's view, the national legal systems surveyed in *Furundžija* indicated that the common basic underlying principle was 'that sexual penetration will constitute rape if it is not truly voluntary or consensual on the part of the victim'. It also pointed out that the *Furundžija* judgment itself referred to the alternative of the perpetrator acting without the victim's consent and thereby suggested that the absence of consent or voluntary participation is relevant<sup>1095</sup>. Against this background, the *Kunarac* Trial Chamber set out the following alternative factors in order to classify the sexual activity concerned as rape:

- '(i) the sexual activity must be accompanied by force or threat of force to the victim or a third party;
- (ii) the sexual activity must be accompanied by force or a variety of other specified circumstances which made the victim particularly vulnerable or negated her ability to make an informed refusal; or
- (iii) the sexual activity must occur without the consent of the victim'<sup>1096</sup>.

With regard to '[s]pecific circumstances which go to the vulnerability or deception of the 682 victim', the *Kunarac* Trial Chamber stated that the emphasis of national provisions concerned:

'is that the victim, because of an incapacity of an enduring or qualitative nature (e.g. mental or physical illness, or the age of minority) or of a temporary or circumstantial nature (e.g. being subjected to psychological pressure or otherwise in a state of inability to resist) was unable to refuse to

<sup>1089</sup> For an in-depth account on the question, see Herring and Dempsey, in: McGlynn and Munro (eds.), *Rethinking Rape Law* (2010) 30 *et seq.*; Luping, (2009) 17 *AmUJGenderSocialPol&L* 431, 474.

<sup>1090</sup> *Prosecutor v. Furundžija*, IT-95-17/1-T, Judgment, Trial Chamber, 10 December 1998, para. 180 (footnotes omitted).

<sup>1091</sup> *Ibid.*, para. 180.

<sup>1092</sup> *Ibid.*, para. 185.

<sup>1093</sup> *Ibid.*, para. 174.

<sup>1094</sup> *Prosecutor v. Kunarac et al.*, IT-96-23T and IT-96-23/1-T, Judgment, Trial Chamber, 22 February 2001, para. 438 (emphasis in the original). Linking this development to the adoption of the Elements of Crimes: Werle/Jessberger, *Principles ICL* (2014), para. 974.

<sup>1095</sup> *Ibid.*, para. 440 (emphasis in the original), referring to *Prosecutor v. Furundžija*, No. IT-95-17/1-T, Judgment, Trial Chamber, 10 December 1998, para. 180.

<sup>1096</sup> *Prosecutor v. Kunarac et al.*, IT-96-23T and IT-96-23/1-T, Judgment, Trial Chamber, 22 February 2001, para. 442, confirmed by *Prosecutor v. Kvočka et al.*, IT-98-30/1-T, Judgment, Trial Chamber, 2 November 2001, para. 177. See also *Prosecutor v. Gacumbitsi*, ICTR-2001-64-A, Judgment, Appeals Chamber, 7 July 2006, paras. 127–132.



be subjected to the sexual acts. The key effect of factors such as surprise, fraud or misrepresentation is that the victim was subjected to the act without the opportunity for an informed or reasoned refusal. The common denominator underlying these different circumstances is that they have the effect that the victim's will was overcome or that her ability freely to refuse the sexual acts was temporarily or more permanently negated<sup>1097</sup>.

In conclusion, the *Kunarac* Trial Chamber stated that:

‘[t]he basic principle which is truly common to these [domestic] legal systems is that serious violations of sexual *autonomy* are to be penalised. Sexual autonomy is violated wherever the person subjected to the act has not freely agreed to it or is otherwise not a voluntary participant.

683 In practice, the absence of genuine and freely given consent or voluntary participation may be evidenced by the presence of the various factors specified in other jurisdictions – such as force, threats of force, or taking advantage of a person who is unable to resist<sup>1098</sup>.

684 Focusing on rape as a serious violation of sexual autonomy, the *Kunarac* Trial Chamber concluded that a sexual penetration qualifies as rape where it occurred ‘without the consent of the victim’, with consent having to be ‘given voluntarily, as a result of the victim’s free will, assessed in the context of the surrounding circumstances’<sup>1099</sup>.

685 The *Kunarac* Appeals Chamber confirmed the Trial Chamber’s findings and, besides noting that there was no ‘resistance’ requirement, made some clarifications with regard to the element of force:

‘Force or threat of force provides clear evidence of non-consent, but force is not an element *per se* of rape. ... A narrow focus on force or threat of force could permit perpetrators to evade liability for sexual activity to which the other party had not consented by taking advantage of coercive circumstances without relying on physical force.

A threat to retaliate ‘in the future against the victim or any other person’ is [in some domestic jurisdictions] a sufficient *indicium* of force so long as ‘there is a reasonable possibility that the perpetrator will execute the threat. ... [I]t is worth observing that the circumstances ... that prevail in most cases charged as either war crimes or crimes against humanity will be almost universally coercive. That is to say, true consent will not be possible’<sup>1100</sup>.

686 The *Kunarac* Appeals Chamber went on to note several national criminal provisions which establish a *strict liability* of a person in a certain power position for engaging in sexual acts with a ‘victim’ under his influence because of the victim’s particular vulnerability due to the unequal power distribution. Given the inherent coerciveness of the situation, national legislatures thus decided that there was a need to presume non-consent and no evidence of apparent consent should be permitted. The provisions referred to penalize for instance sexual acts with prisoners and persons in custody of public authority regardless of whether the victim consented. An April 1998 amendment to the German Criminal Code for instance added ‘exploiting a situation in which the victim is unprotected and at the mercy of the perpetrator’s influence’ as equivalent to ‘force’ or ‘threat of imminent danger to life or limb’<sup>1101</sup>.

687 The *Furundžija* Trial Chamber also seemed to suggest a non-refutable and abstract presumption of non-consent when stating that ‘any form of captivity vitiates consent’<sup>1102</sup>. In a similar line of thought, the ICTR *Akayesu* Trial Chamber case merely required that rape be committed ‘under circumstances which are coercive’, noting that ‘coercive circumstances

<sup>1097</sup> *Prosecutor v. Kunarac et al.*, IT-96-23T and IT-96-23/1-T, Judgment, Trial Chamber, 22 February 2001, para. 452.

<sup>1098</sup> *Ibid.*, paras. 457–458 (emphasis in the original).

<sup>1099</sup> *Ibid.*, para. 460. The *Kvočka* Trial Chamber endorsed these holdings, *Prosecutor v. Kvočka et al.*, IT-98-30/1-T, Judgment, Trial Chamber, 2 November 2001, paras. 176–177; arguing for sexual autonomy as the central principle underlying the definition of rape: Grewal (2012) 10 *JICJ* 373.

<sup>1100</sup> *Prosecutor v. Kunarac et al.*, IT-96-23 and IT-96-23/1-A, Judgment, Appeals Chamber, 12 June 2002, paras. 129–130 (footnotes omitted); see also *Prosecutor v. Bagosora*, No. ICTR-98-41-T, Judgment and Sentence, Trial Chamber I, 18 December 2008, para. 2199.

<sup>1101</sup> *Ibid.*, para. 131 (see also paras. 132–133).

<sup>1102</sup> *Prosecutor v. Furundžija*, IT-95-17/1-T, Judgment, Trial Chamber, 10 December 1998, para. 271.



need not be evidenced by a show of physical force. ... [C]oercion may be inherent in certain circumstances, such as armed conflict or the military presence of Interahamwe among refugee Tutsi women at the bureau communal<sup>1103</sup>. In same vein, the *Karamera* TC held that ‘Given the horrific circumstances surrounding these attacks, it is clear that there could have been no consent for these acts of sexual violence’.<sup>1104</sup>

At the ICC, the *Bemba* Pre-Trial Chamber III held that ‘the term ‘coercion’ ... does not require physical force. Rather, threats, intimidation, extortion and other forms of duress which prey on fear or desperation may constitute coercion, and coercion may be inherent in certain circumstances, such as armed conflict or military presence’.<sup>1105</sup>

The UN Special Rapporteur on Contemporary Forms of Slavery also argued in 1998 that ‘[t]he manifestly coercive circumstances that exist in all armed conflict situations establish a presumption of non-consent and negates [sic] the need for the prosecution to establish a lack of consent as an element of the crime’.<sup>1106</sup>

Within the Preparatory Commission, it was basically uncontroversial that sexual activity would not generally amount to a war crime where both sides genuinely consent. What was much debated, however, was how to define the type of ‘consent’ and the circumstances that may ‘justify’ sexual activity otherwise qualifying as rape with regard to the particular situation of an armed conflict. Eventually, the Preparatory Commission decided not to frame the issue of ‘consent’ in terms of a ground for excluding criminal responsibility, but rather to suggest (in element 1 for article 8 para. 2 (b) (xxii)-1), that one of the following four alternative circumstances must be made out in order for the physical act (described under element 1) to amount to a war crime:

1. The act was committed ‘by force’.
2. The act was committed ‘by threat of force or [by] coercion, such as that caused by fear of violence, duress, detention, psychological oppression or abuse of power, against such person or another person’ ...
3. The act was committed ‘by taking advantage of a coercive environment’ ...
4. The invasion ‘was committed against a person incapable of giving genuine consent’, with footnote 51 specifying that ‘a person may be incapable of giving genuine consent if affected by natural, induced or age-related incapacity’.

With regard to the interpretation of element 2, the analysis of the alternative circumstantial elements of rape in the *Kunarac* judgment may be helpful, since their formulation is partly similar and because the Elements of Crimes possibly inspired the subsequently delivered *Kunarac* decision. The Elements for instance also clearly suggest that taking advantage of a coercive environment suffices. The term ‘coercive environment’ can be understood as referring to, *inter alia*, vertical power relations between troops conquering a village and the inhabitants of that village or between a detained person and his or her guards.

<sup>1103</sup> *Prosecutor v. Akayesu*, ICTR-96-4-T, Judgment, Trial Chamber, 10 December 1998, para. 688.

<sup>1104</sup> *Prosecutor v. Karemera and Ndirumpats*, Judgment and Sentence, TC III, 2 February 2012.

<sup>1105</sup> *Prosecutor v. Bemba*, ICC-01/05-01/08-424, Decision Pursuant to Article 61(7)(a) and (b) on the Charges against Jean-Pierre Bemba Gombo, PTC III, 15 June 2009; see also *Prosecutor v. Katanga and Chui*, ICC-01/04-1/07-717, Decision on the confirmation of charges, TC I, 30 September 2008, para. 440.

<sup>1106</sup> After suggesting that ‘rape’ must be committed ‘under conditions of force, coercion or duress’, the UN Special Rapporteur McDougall added that ‘[l]ack of consent or the lack of capacity to consent due, for example, to coercive circumstances or the victim’s age, can distinguish lawful sexual activity from unlawful sexual activity under municipal law. The manifestly coercive circumstances that exist in all armed conflict situations establish a presumption of non-consent and negates the need for the prosecution to establish a lack of consent as an element of the crime. In addition, consent is not an issue as a legal or factual matter when considering the command responsibility of superior officers who ordered or otherwise facilitated the commission of crimes such as rape in armed conflict situations. The issue of consent may, however, be raised as an affirmative defense as provided for in the general rules and practices established by the International Criminal Tribunal for the Former Yugoslavia ...’, 1998 UN Slavery Rapporteur Report, paras. 25.

- 692 cc) **Subjective element.** The mental element requires, pursuant to article 30 Rome Statute, either *dolus directus* of the first or of the second degree.<sup>1107</sup>
- 693 c) **War crime of sexual slavery.** The notion of ‘sexual slavery’ has not as such been defined under international humanitarian law treaties or other international conventions. In contrast, the more generic concept of ‘slavery’ has been defined in various conventions and considered a *jus cogens* norm in customary international law<sup>1108</sup>. Slavery (as well as slave trade) in its traditional forms was one of the earliest crimes to be recognized under international law. The 1926 Slavery Convention contains the first international definition of the offense. While the traditional forms of slavery (and slave trade) have almost ceased to exist, other forms of slavery and slavery-like practise such as servitude, forced labour and trafficking in women and children persist, including in situations of armed conflict. Besides the notorious ‘comfort women stations’ maintained by the Japanese during World War II, where more than 200’000 women were kept and forced to provide sexual services to Japanese soldiers<sup>1109</sup>, and the use of slave labor by Nazi Germany<sup>1110</sup>, instances of slavery and sexual slavery could also be witnessed, *inter alia*, in the ‘rape camps’ in the former Yugoslavia<sup>1111</sup> or the Rwanda or Liberia conflicts<sup>1112</sup>. International instruments have evolved to address these newer forms of slavery and slavery-like practices<sup>1113</sup>. Article 4 para. 2 (f) Add. Prot. II prohibits ‘slavery and the slave trade in all their forms’<sup>1114</sup>. Enslavement has been considered a crime against humanity since 1945<sup>1115</sup>, and some

<sup>1107</sup> According to article 30, ‘intent and knowledge’ is required. See also *Prosecutor v. Katanga and Ngudjolo Chui*, ICC-01/04-01/07-717, Decision on the confirmation of charges, TC I, 30 September 2008, para. 346; and *Prosecutor v. Ntaganda*, No. ICC-01/04-02/06-309, Decision pursuant to article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor against Bosco Ntaganda, PTC II, 9 June 2014, paras. 134 and 170.

<sup>1108</sup> 1998 UN Slavery Rapporteur Report, para. 28 and Annex, para. 12. Update to the 1998 UN Slavery Rapporteur Report, UN Doc. E/CN.4/Sub.2/2000/21 (6 June 2000), paras. 9 and 51 (qualifying also sexual slavery ‘as an international crime and a violation of *jus cogens* norms in the exact same manner as slavery’). On international law concerning slavery more generally, see, e.g., M. Ch. Bassiouni, *Enslavement as an International Crime*, 23 *NYJIL&Politics* 445 (1991); Lassen, 57 *NordicJIL* 197 (1988). Further references are available at <http://www.law-lib.utoronto.ca/diana/slavery/articles.htm>.

<sup>1109</sup> See, e.g., 1998 UN Slavery Rapporteur Report, Annex; Update to the 1998 UN Slavery Rapporteur Report, UN Doc. E/CN.4/Sub.2/2000/21 (6 June 2000), paras. 71–78; Judgment of the (*ad hoc* and non- governmental, NGO-created) Women’s International War Crimes Tribunal 2000 for the Trial of Japanese Military Sexual Slavery in the matter of the Prosecutors and the Peoples of the Asia-Pacific Region vs. Emperor Hirohito et al. and the Government of Japan, available at <http://iccwomen.org>; T. Yu, ‘Reparations for former comfort women of World War II’, 36 *HarvILJ* 528 (1995); K. Parker/J. Chew, ‘Compensation for Japan’s World War II war-rape victims’, 17 *HastingsL&CompLRev* 497 (1994).

<sup>1110</sup> See, e.g., *Prosecutor v. Kunarac et al.*, IT-96-23T and IT-96-23/1-T, Judgment, Trial Chamber, 22 February 2001, paras. 523–527; XXII International Military Tribunal, Judgment, 469, 476–481, 485–495, 502–516, 525–526, 536–537, 541–542, etc. 1947); U.S. Military Tribunal at Nürnberg, *Erhard Milch* (20 December 1946–17 April 1947), II Nuremberg Military Tribunal 355 (1997) (e.g. 773, 789–791); U.S. Military Tribunal at Nürnberg, *O. Pohl and Others*, (3 Nov. 1947), V Nuremberg Military Tribunal (1997); U.S. Military Tribunal at Nürnberg, *C. Krauch and Others (IG Farben)* (14 Aug. 1947–29 July 1948), X *Law Reports* 53 (1949); 53; U.S. Military Tribunal at Nürnberg, *F. Flick and Others*, VI Nuremberg Military Tribunal (1997).

<sup>1111</sup> See, e.g., *Prosecutor v. Kunarac et al.*, IT-96-23T and IT-96-23/1-T, Judgment, Trial Chamber, 22 February 2001, paras. 728–744 (Counts 18 and 22).

<sup>1112</sup> See, e.g., 1998 UN Slavery Rapporteur Report, para. 30.

<sup>1113</sup> See, e.g., Supplementary Convention on the Abolition of Slavery, the Slave Trade, and Institutions and Practices Similar to Slavery of 7 Sep. 1956; Convention concerning Forced or Compulsory Labour of 28 June 1930 (ILO Convention No. 29); Convention concerning the Abolition of Forced Labour of 25 June 1957 (ILO Convention No. 105); article 4 UDHR (prohibiting servitude and slavery and slave trade in all their forms); article 8 ICCPR (prohibiting slavery, slave-trade, servitude and forced or compulsory labor); article 4 ECHR (prohibiting slavery, servitude, forced or compulsory labor); article 6 ACHR (prohibiting slavery, involuntary servitude, slave trade, traffic in women and forced or compulsory labor); article 5 ACHPR (prohibiting slavery and slave trade). For an overview over the different instruments, see Bassiouni (1991) 23 *NYJIL&Politics* 445, 459–517.

<sup>1114</sup> One of the proposals compiled in the 1996 Preparatory Committee Report but not taken up into later compilations had included the war crime of ‘slavery, [and the slave trade,] [slave-related practices, and forced labour] in all their forms’, 1996 Preparatory Committee II 61 (para. 2(k)).

<sup>1115</sup> See, e.g., articles 6(c) Nürnberg Charter, 5(c) Tokyo Charter, 5(c) ICTY Charter, 3(c) ICTR Charter, 18(d) of the 1996 ILC Draft Code, and 7 paras. 1 (c), 2 (c) as well as 1 (g) Rome Statute. See generally Ch. K. Hall/K. Ambos, *Article 7*.

countries also considered that offence a war crime<sup>1116</sup>. The ICTY has analyzed the elements of and international law relating to ‘enslavement’ in some detail in the *Kunarac* case<sup>1117</sup>.

The **definition of slavery under international law** may serve as a guideline on how to understand the notion of ‘sexual slavery’, as the war crime of sexual slavery can be regarded as a particular form of slavery, namely slavery involving acts of a sexual nature<sup>1118</sup>. This approach has also been adopted by the elements for article 8 para. 2 (b) (xxii)-2: While element 1 for the war crime of sexual slavery in essence (as we shall see) requires that the perpetrator engaged in slavery, the second element requires additionally that ‘[t]he perpetrator caused such person or persons to engage in one or more acts of a sexual nature’, addressing a particular type of slavery. This second element would certainly be met when a perpetrator exercised the power of control over sexual access involving rape or other forms of sexual violence<sup>1119</sup>.

The **traditional concept of slavery** has been defined by the 1926 Slavery Convention. Its article 1 para. 1 contains what has been qualified as ‘the first comprehensive and now the most widely recognized definition of slavery’<sup>1120</sup>.

‘[T]he status or condition of a person over whom any or all of the powers attaching to the right of ownership are exercised’.

The ICTY *Kunarac* Appeals Chamber has referred to this traditional concept of slavery as ‘*chattel slavery*’, a term ‘used to describe slavery-like conditions. To be reduced to ‘chattel’ generally refers to a form of movable property as opposed to property in land’<sup>1121</sup>.

The same Appeals Chamber distinguishes from the traditional concept of ‘chattel slavery’ the concept of **slavery under contemporary international law, encompassing various contemporary forms of slavery**. While these contemporary forms of slavery are also based on the exercise of any or all of the powers attaching to the right of ownership, the victim is subject to a **lesser degree of the destruction of the juridical personality**. The Appeals Chamber considered that ‘these contemporary forms of slavery formed part of enslavement as a crime against humanity under customary international law’ already in 1992<sup>1122</sup>.

Within the SCSL jurisprudence, it was discussed controversially whether forced marriages may constitute the crime of sexual slavery. In *Brima et al.*, the Appeals Chamber overruled a conviction for sexual slavery,<sup>1123</sup> and convicted for ‘other inhuman acts’ as a crime against humanity instead, while holding that ‘forced marriage is not predominantly a sexual crime’.<sup>1124</sup> In *Sesay et al.*, forced marriages were considered as both sexual slavery as well as ‘other inhuman acts’ cumulatively.<sup>1125</sup>

Element 1 for article 8 para. 2 (b) (xxii)-2 Rome Statute spells out the general element of sexual slavery by requiring that ‘[t]he perpetrator exercised any or all of the powers attaching

<sup>1116</sup> See, e.g., article II of the Chinese War Crimes Law of 24 October 1946, XIV *Law Reports* 153 (1949), (‘shall be considered a war criminal ... [a]lien combatants or non-combatants who during a war or a period of hostilities ... or prior to the occurrence of such circumstances ... nourish intentions of enslaving, crippling, or annihilating the Chinese Nation ... by such methods as ... (a) ... enslaving ... of its nationals’).

<sup>1117</sup> *Prosecutor v. Kunarac et al.*, IT-96-23 and IT-96-23/1-A, Judgment, Appeals Chamber, 12 June 2002, paras. 106–124; *Prosecutor v. Kunarac et al.*, IT-96-23-T and IT-96-23/1-T, Judgment, Trial Chamber, 22 February 2001, paras. 515–543.

<sup>1118</sup> See 1996 ILC Draft Code, Article 18, para. 10; 1998 UN Slavery Rapporteur Report, para. 30.

<sup>1119</sup> The Women’s Caucus for Gender Justice had indeed proposed that the Elements require such exercise of power of control over sexual access, Women’s Caucus for Gender Justice, Revised proposal for elements under article 8 para. 2 (b) (xxii), 1 (4 August 1999).

<sup>1120</sup> 1998 UN Slavery Rapporteur Report, para. 27.

<sup>1121</sup> *Prosecutor v. Kunarac et al.*, IT-96-23 and IT-96-23/1-A, Judgment, Appeals Chamber, 12 June 2002, para. 117, fn. 145.

<sup>1122</sup> *Ibid.*, para. 117.

<sup>1123</sup> *Prosecutor v. Brima et al.*, SCSL-04-16-T, Judgment, TC, 20 July 2007, paras. 703–713.

<sup>1124</sup> *Prosecutor v. Brima et al.*, SCSL-04-16-A, Judgment, AC, 22 February 2008, para. 195, see also paras. 181–203.

<sup>1125</sup> *Prosecutor v. Sesay et al.*, SCSL-04-15-T, Judgment, TC, 2 March 2009 (no appeal). Crit. on a lack of allegations regarding forced marriages in the ICC *Katanga* case, Gekker (2014) 25 *Hastings Women’s LJ* 105, 106 *et seq.*

to the right of ownership over one or more persons', a formulation directly derived from article 1 para. 1 of the 1926 Slavery Convention<sup>1126</sup>.

700 This definition suggests a technical and relatively limited element of legal 'ownership'. However, no such 'right' exists under contemporary national as well as international law<sup>1127</sup>. National legal provisions that provided for a 'right' of one person to own another person have been abolished. The notion of slavery under the Rome Statute cannot, therefore, be interpreted as limited to the traditional form of slavery practiced before World War II. Not even most of the slave labor used by the Nazis during World War II would qualify as a form of slavery under such a restrictive reading since not acquired through commercial exchanges and consequently<sup>1128</sup>. Similarly, some of the 'comfort women' used by the Japanese were not sold or purchased but kidnapped, coerced and deception<sup>1129</sup>. It can hardly have been the intention of the drafters of the Rome Statute to create only a symbolic ICC jurisdiction over slavery. Article 8 para. 2 (b) (xxii) rather appears to have been intended to take into account the evolution of customary international law since World War II, which recognizes a number of situations as slavery. This broader approach is confirmed by the examples of slavery listed in element 1 and footnote 53 for article 8 para. 2 (b) (xxii)-2, which clearly go beyond the traditional technical notion of slavery and interpret the definition of slavery spelled out in element 1 as covering forms of slavery recognized under international law as it has evolved since World War II<sup>1130</sup>. A similar approach had also been taken by the ILC when it defined enslavement, included as a crime against humanity in its 1996 Draft Code, as 'establishing or maintaining over persons a status of slavery, servitude or forced labour contrary to well-established and widely recognized standards of international law, such as the 1926 Slavery Convention ...; the 1956 Supplementary Convention ...; the [ICCPR]; and the 1957 [ILO] Convention No. 29 ...'<sup>1131</sup>.

701 The fact that a person was not bought, sold or traded or that no pecuniary benefit exists does not, therefore, defeat a claim of slavery<sup>1132</sup>. The reference to 'ownership' and the examples mentioned in element 1 ('purchasing, selling, lending or bartering ... or ... imposing a similar deprivation of liberty') however may indicate that slavery refers to subjecting a person to **treatment akin to the treatment of chattel**, that is, a possession or movable good<sup>1133</sup>, such as when a person is (significantly) deprived of his or her autonomy.

<sup>1126</sup> 'Slavery' denotes the status or condition in which the victim finds himself, while the *actus reus* of the crime of slavery is 'enslavement', that is, establishing or maintaining a status of slavery.

<sup>1127</sup> See also *Prosecutor v. Kunarac et al.*, IT-96-23 and IT-96-23/1-A, Judgment, Appeals Chamber, 12 June 2002, para. 118.

<sup>1128</sup> Ch. K. Hall, *Article 7*.

<sup>1129</sup> 1998 UN Slavery Rapporteur Report, Annex, para. 7. See also *ibid.*, Annex, para. 9 (f). The UN Slavery Rapporteur however stated that 'the Japanese military's enslavement of women throughout Asia during the Second World War was a clear violation, even at that time, of customary international law prohibiting slavery', *ibid.*, Annex para. 12.

<sup>1130</sup> See also Bassiouni (1991) 23 *NYJIL&Politics* 445, 456–459.

<sup>1131</sup> 1996 ILC Draft Code, *Article 18*, para. 10. The Commentary on article 4 para. 2 (f) Add. Prot. II also appears to suggest that the Supplementary Convention on the Abolition of Slavery, the Slave Trade and Institutions and Practises Similar to Slavery of 1956 and 'certain institutions and practices comparable to slavery, such as servitude for the payment of debts, serfdom, the purchase of wives and the exploitation of child labour' also may amount to the prohibited 'slavery and the slave trade in all their forms' (emphasis added), Junod, in: Sandoz/Swinarski/Zimmermann (eds), *Commentary Additional Protocols* (1987) 1376 (No. 4541).

<sup>1132</sup> See 1998 UN Slavery Rapporteur Report, paras. 28 and 45 as well as Annex, para. 22; Update to the 1998 UN Slavery Rapporteur Report, UN Doc. E/CN.4/Sub.2/2000/21 (6 June 2000), para. 8; *Prosecutor v. Kunarac et al.*, IT-96-23T and IT-96-23/1-T, Judgment, Trial Chamber, 22 February 2001, para. 542.

<sup>1133</sup> A drafting proposal that became the discussion basis for the drafting of the elements of the war crime of sexual slavery had indeed proposed an element requiring that the perpetrator 'treated a person as chattel by exercising any or all of the powers attaching to the right of ownership, including sexual access through rape or other forms of sexual violence', Proposal submitted by Costa Rica, Hungary and Switzerland on certain provisions of article 8 para. 2 (b) of the Rome Statute of the International Criminal Court: (viii), (x), (xiii), (xiv), (xv), (xvi), (xxi), (xxii), (xxvi), UN Doc. PCNICC/1999/WGEC/DP.8 (19 July 1999) 4. This proposal had been inspired by the 1998 UN Slavery Rapporteur Report which perceived 'treatment of a person as chattel' as a requirement of slavery, *ibid.* para. 28.

Indeed, **control and deprivation of one's autonomy** – such as restrictions on the freedom of movement or also the control of sexual access – can be considered essential elements of slavery. The wording of element 1 for article 8 para. 2 (b) (xxii)-2 Rome Statute actually suggests that slavery must involve a '**deprivation of liberty**'. The UN Special Rapporteur has stated that '[t]he mere ability to extricate oneself at substantial risk of personal harm from a condition of slavery should not be interpreted as nullifying a claim of slavery. In all cases, a subjective, gender-conscious analysis must also be applied in interpreting an enslaved person's reasonable fear of harm or perception of coercion. This is particularly true when the victim is in a combat zone during an armed conflict ... and has been identified as a member of the opposing group or faction'<sup>1134</sup>.

Commentators on sexual slavery rarely explicitly address the question whether slavery requires that a person is deprived of liberty *without lawful process*. Insofar the deprivation of liberty must be unlawful, sexual violence occurring during a deprivation of liberty in accordance with international humanitarian law, for instance imprisoning prisoners of war or common criminals in internal conflicts, would not qualify as sexual slavery. The US Military Tribunal held in the *Pohl* case that persons are 'slaves if without lawful process they are deprived of their freedom by forceful restraint'<sup>1135</sup>.

The lack of resistance or of consent need not be proven for the war crime of sexual slavery. It may however be indirectly relevant with regard to the question whether the accused exercises a power attaching to the right of ownership. Circumstances which render it impossible to express consent, however, would be sufficient to presume the absence of consent'<sup>1136</sup>.

The ICTY *Kunarac* Trial Chamber has considered various factors as possible indications that a particular phenomenon is a form of enslavement'<sup>1137</sup>.

As the *Kunarac* Appeals Chamber held, it is **not possible to enumerate exhaustively all of the contemporary forms of slavery** which are comprehended in the expansion of the original idea. The central question turns on the *quality* of the relationship between the accused and the victim, with a number of factors determining that quality. For instance, it is not necessary that the enslavement or deprivation of liberty lasted indefinitely or at least for a prolonged

<sup>1134</sup> 1998 UN Slavery Rapporteur Report, para. 29. The Women's Caucus for Gender Justice had even argued that 'there are many situations in the desperate situations of armed conflict where enslavement is inflicted without deprivation of liberty', Women's Caucus for Gender Justice, Revised proposal for elements under article 8 para. 2 (b) (xxii) 1 (4 Aug. 1999).

<sup>1135</sup> U.S. Military Tribunal at Nürnberg, *O. Pohl and Others* (3 November 1947) *V Nuremberg Military Tribunal* (1997) 970.

<sup>1136</sup> *Prosecutor v. Kunarac et al.*, IT-96-23 and IT-96-23/1-A, Judgment, Appeals Chamber, 12 June 2002, para. 120.

<sup>1137</sup> '[I]ndications of enslavement include elements of control and ownership; the restriction or control of an individual's autonomy, freedom of choice or freedom of movement; and, often, the accruing of some gain to the perpetrator. The consent or free will of the victim is absent. It is often rendered impossible or irrelevant by, for example, the threat or use of force or other forms of coercion; the fear of violence, deception or false promises; the abuse of power; the victim's position of vulnerability; detention or captivity, psychological oppression or socio-economic conditions. Further indications of enslavement include exploitation; the exaction of forced or compulsory labour or service, often without remuneration and often, though not necessarily, involving physical hardship; sex; prostitution; and human trafficking. ... international law ... make clear that not all labour or service by protected persons, including civilians, in armed conflicts, is prohibited – strict conditions are, however, set for such labour or service. The 'acquisition' or 'disposal' of someone for monetary or other compensation, is not a requirement for enslavement. Doing so, however, is a prime example of the exercise of the right of ownership over someone. The duration of the suspected exercise of powers attaching to the right of ownership is another factor ...; however, its importance in any given case will depend on the existence of other indications of enslavement.

[F]actors ... to be taken into consideration in determining whether enslavement was committed ... [thus] are the control of someone's movement, control of physical environment, psychological control, measures taken to prevent or deter escape, force, threat of force or coercion, duration, assertion of exclusivity, subjection to cruel treatment and abuse, control of sexuality and forced labour. ... [T]he mere ability to buy, sell, trade or inherit a person or his or her labours or services ... is insufficient, such actions actually occurring could be a relevant factor'. *Prosecutor v. Kunarac et al.*, IT-96-23T and IT-96-23/1-T, Judgment, Trial Chamber, 22 February 2001, paras. 542–543 (footnotes omitted), confirmed in *Prosecutor v. Kunarac et al.*, IT-96-23 and IT-96-23/1-A, Judgment, Appeals Chamber, 12 June 2002, para. 119. See also 1998 UN Slavery Rapporteur Report, para. 29.



period of time. The duration however may be one factor that can be considered, with its importance depending on the existence of other indications of enslavement and on the context<sup>1138</sup>. Also, ‘slaves may be well fed, well clothed, and comfortably housed, but ... [t]here is no such thing as benevolent slavery. Involuntary servitude, even if tempered by humane treatment, is still slavery’<sup>1139</sup>.

707 The *Kunarac* Trial Chamber found two accused guilty of the crime against humanity of enslavement (besides rape and outrages upon personal dignity), as they, *inter alia*, denied two victims ‘any control over their lives ... during their stay there. They had to obey all orders, they had to do household chores and they had no realistic option whatsoever to flee the house ... or to escape their assailants. They were subjected to other mistreatments, such as ... rape ... The two women were treated as the personal property of Kunarac and DP 6. ... Both men personally committed the act of enslavement’<sup>1140</sup>.

708 Another accused, *Kovač*, was found guilty of the crime against humanity of enslavement (again besides rape and outrages upon personal dignity) for, *inter alia*, selling two female victims and ‘locking them up and by psychologically imprisoning them, and thereby depriving them of their freedom of movement. During that time, he had complete control over their movements, privacy and labour. He made them cook for him, serve him and do the household chores for him. He subjected them to degrading treatments, including beatings and other humiliating treatments’<sup>1141</sup>.

709 The first examples element 1 for article 8 para. 2 (b) (xxii)-2 Rome Statute mentions as qualifying as exercising powers attaching to the right of ownership are ‘**purchasing, selling, lending or bartering such a person or persons**’<sup>1142</sup>. These (trans)actions of a commercial nature certainly are examples of the exercise of ownership and reflect the notion of slavery as it traditionally has been understood. Even the 1926 Slavery Convention had defined ‘slave trade’ in its article 1 para. 2 as including ‘all acts involved in the capture, acquisition or disposal of a person with intent to reduce him to slavery; all acts involved in the acquisition of a slave with a view to selling or exchanging him; all acts of disposal by sale or exchange of a slave acquired with a view to being sold or exchanged, and, in general, every act of trade or transport in slaves’.

710 Element 1 for article 8 para. 2 (b) (xxii)-2 however adds that ‘**imposing ... a similar deprivation of liberty**’ (emphasis added) also amounts to exercising powers attaching to the right of ownership, with footnote 53 to element 1 providing some examples of such similar deprivation of liberty. Yet, the examples listed make it clear that the term ‘similar’ does not mean that the deprivation of liberty must have a similar commercial element<sup>1143</sup>.

711 The first of the examples in footnote 53 is ‘in some circumstances ..., **exact[ing] forced labour**’. International law does not prohibit all forced labor or service in armed conflicts, while particularly prohibiting compelling protected persons to serve in the armed forces or involving them in military operations of the adversary and setting strict conditions for the requisition of labor and services in armed conflicts such as those spelled out in articles 40 and 51 GC IV<sup>1144</sup>.

<sup>1138</sup> *Prosecutor v. Kunarac et al.*, IT-96-23 and IT-96-23/1-A, Judgment, Appeals Chamber, 12 June 2002, paras. 119 and 121. With regard to the *mens rea*, the *Kunarac* Appeals Chamber stated that ‘[i]t is not required to prove that the accused intended to detain the victims under constant control for a prolonged period of time in order to use them for sexual acts’, *ibid.*, para. 122.

<sup>1139</sup> U.S. Military Tribunal at Nürnberg, *O. Pohl and Others*, (3 Nov. 1947), V *Nuremberg Military Tribunal* (1997) 970.

<sup>1140</sup> *Prosecutor v. Kunarac et al.*, IT-96-23T and IT-96-23/1-T, Judgment, Trial Chamber, 22 February 2001, paras. 742 and 745.

<sup>1141</sup> *Ibid.*, paras. 775–782.

<sup>1142</sup> The proposal to add ‘abducting’ to this list did not eventually find its way into the Elements.

<sup>1143</sup> The UN Special Rapporteur on Contemporary Forms of Slavery correctly stated that ‘[i]t is unnecessary and inappropriate to require any element of commercial transaction for the crime of sexual slavery. Most contemporary forms of slavery, including sexual slavery, do *not* involve payment or exchange ...’. Update to the 1998 UN Slavery Rapporteur Report, UN Doc. E/CN.4/Sub.2/2000/21 (6 June 2000), para. 29.

<sup>1144</sup> See *Prosecutor v. Kunarac et al.*, IT-96-23T and IT-96-23/1-T, Judgment, Trial Chamber, 22 February 2001, paras. 528–530 and 542.



A second example in footnote 53 is ‘otherwise reducing a person to servile status as defined in the Supplementary Convention on the Abolition of Slavery, the Slave Trade, and Institutions and Practices Similar to Slavery of 1956’ (emphasis added). Article 1 in connection with article 7 (b) of that Convention provides that a person of servile status means a person in the condition or status resulting from any of the following institutions or practices:

- (a) Debt bondage, that is to say, the status or condition arising from a pledge by a debtor of his personal services or of those of a person under his control as security for a debt, if the value of those services as reasonably assessed is not applied towards the liquidation of the debt or the length and nature of those services are not respectively limited and defined;
- (b) Serfdom, that is to say, the condition or status of a tenant who is by law, custom or agreement bound to live and labour on land belonging to another person and to render some determinate service to such other person, whether for reward or not, and is not free to change his status;
- (c) Any institution or practice whereby:
  - (i) A woman, without the right to refuse, is promised or given in marriage on payment of a consideration in money or in kind to her parents, guardian, family or any other person or group; or
  - (ii) The husband of a woman, his family, or his clan, has the right to transfer her to another person for value received or otherwise; or
  - (iii) A woman on the death of her husband is liable to be inherited by another person;
- (d) Any institution or practice whereby a child or young person under the age of 18 years, is delivered by either or both of his natural parents or by his guardian to another person, whether for reward or not, with a view to the exploitation of the child or young person or of his labour’.

A third example mentioned in footnote 53 is the ‘*trafficking in persons, in particular women and children*’. The 1949 Trafficking Convention suggests that a person engages in trafficking in persons when he ‘to gratify the passions of another: (1) Procures, entices or leads away, for purposes of prostitution, another person, even with the consent of that person’<sup>1145</sup>. The 1999 Trafficking Protocol (not yet entered into force) provides a more recent definition of ‘trafficking in persons’:

‘the recruitment, transportation, transfer, harbouring or receipt of persons, by means of the threat or use of force or other forms of coercion, of abduction, of fraud, of deception, of the abuse of power or of a position of vulnerability or of the giving or receiving of payments or benefits to achieve the consent of a person having control over another person [or by other means (subparagraph (c))], for the purpose of exploitation. Exploitation shall include, at a minimum, the exploitation of the prostitution of others or other forms of sexual exploitation, forced labour or services, slavery or practices similar to slavery, servitude or the removal of organs’<sup>1146</sup>.

A number of other international instruments prohibit the trafficking of persons<sup>1147</sup>. The UN Sub-Commission’s Working Group on Contemporary Forms of Slavery has stated that ‘trans-border trafficking of women and girls for sexual exploitation is a contemporary form of slavery and constitutes a serious violation of human rights’<sup>1148</sup>.

<sup>1145</sup> UN Convention for the Suppression of the Traffic in Persons and of the Exploitation of the Prostitution of Others, UN GA Res. 317 (IV) (2 Dec. 1949), Art. 1(1).

<sup>1146</sup> UN Protocol to Prevent, Suppress and Punish Trafficking in Persons, Especially Women and Children, supplementing the UN Convention against Transnational Organized Crime, UN Doc. A/RES/55/25 (15 November 2000), article 3. See A. Gallagher, ‘Human Rights and the New UN Protocols on Trafficking and Migrant Smuggling: A Preliminary Analysis’, 23(4) *HumRQ* 4, 975(2001).

<sup>1147</sup> See, e.g., article 6 para. 1 ACHR; article 6 CEDAW; article 11 para. 1 of the 1989 UN Convention on the Rights of the Child; Optional Protocol to the Convention on the Rights of the Child on the sale of children, child prostitution and child pornography, UN Doc. A/RES/54/263 (25 May 2000). See also L. Chiang, ‘Trafficking in Women: An International Issue’, in: K. D. Askin/D. M. Koenig (eds.) *Women’s Human Rights: A Reference Guide* (1999); J. Chuang, ‘Redirecting the Debate over Trafficking in Women: Definitions, Paradigms, and Concerns’, 11 *HarvHumRtsJ* 65 (1998); C. K. Hall, *Article 7*, First Edition of this Commentary, 160–161 (mn 96); S. F. Toepfer/B. S. Wells, ‘The Worldwide Market for Sex: A Review of International and Regional Legal Prohibitions Regarding Trafficking in Women’, 2 *MichJGender&L* 83 (1994).

<sup>1148</sup> Report of the Working Group on Contemporary Forms of Slavery on its twenty-third session, UN Doc. E/CN.4/Sub.2/1998/14 (6 July 1998), recommendation 4, para. 1.

- 715 The list of examples in element 1 and footnote 53 of what may constitute a ‘**similar deprivation of liberty**’ is non-exhaustive. Correspondingly, other acts or omissions may amount to enslavement as defined in element 1 such as those indicated by the ICTY in the *Kunarac* case. One example is a **forced marriage**<sup>1149</sup> (which in any event appears to qualify under ‘otherwise reducing a person to servile status’). Forced marriages may be distinguished from ‘arranged marriages’, in that arranged marriages, which exist in various parts of the world, are based on the consent of both parties (while not necessarily of both persons to be married) whereas forced marriages involve the lack of consent of at least one of the parties<sup>1150</sup>. The UN Special Rapporteur on Contemporary Forms of Slavery considered that ‘The repeated rape and sexual abuse of women and girls under the guise of ‘marriage’ constitutes slavery, as the victims do not have the freedom to leave, to refuse the sham ‘marriage’ or to decide whether and on what terms to engage in sexual activity’<sup>1151</sup>. The Special Rapporteur therefore perceived sexual slavery as encompassing ‘situations where women and girls were forced into ‘marriage’, domestic servitude or other forced labour that ultimately involves forced sexual activity ... by their captors’<sup>1152</sup>, qualifying as sexual slavery situations such as the sexual abuse of Burmese women and girls ‘after being forced into ‘marriages’ or forced to work as porters or minefield sweepers for the military’ or the forcing by Liberian combatants of women and girls into working as cooks and holding them as sexual slaves<sup>1153</sup>. It can also be argued that the *control over sexual access itself* is a form of exercising a power of ownership over a person<sup>1154</sup>.
- 716 **d) War crime of enforced prostitution.** ‘Enforced prostitution’ is prohibited under article 27 para. 2 GC IV as an attack on women’s honour and under article 75 para. 2 (b) Add. Prot. I as an outrage upon personal dignity. Article 76 para. 1 furthermore states that ‘[w]omen shall be the object of special respect and shall be protected in particular against ... *forced prostitution* ...’ (emphasis added)<sup>1155</sup>.
- 717 Enforced prostitution has been made punishable for instance under Australian and Chinese laws of 1945 and 1946, respectively<sup>1156</sup>. In a post-World War II trial, the Japanese hotel-keeper *Awochi* was found guilty of the ‘war crime of enforced prostitution’ for having forced Dutch women to practice prostitution in the premises of the club-restaurant in Batavia which at that time was occupied by Japanese forces<sup>1157</sup>.

<sup>1149</sup> See 1998 UN Slavery Rapporteur Report, paras. 8 and 30.

<sup>1150</sup> See Report of the Working Group on Contemporary Forms of Slavery on its twenty-fifth session, UN Doc. E/CN.4/Sub.2/2000/23 (21 July 2000), para. 114.

<sup>1151</sup> Update to the 1998 UN Slavery Rapporteur Report, UN Doc. E/CN.4/Sub.2/2000/21 (6 June 2000), para. 13.

<sup>1152</sup> See 1998 UN Slavery Rapporteur Report, para. 30.

<sup>1153</sup> See 1998 UN Slavery Rapporteur Report, para. 30. See also Update to the 1998 UN Slavery Rapporteur Report, UN Doc. E/CN.4/Sub.2/2000/21 (6 June 2000), paras. 10–22 and 53.

<sup>1154</sup> The UN Special Rapporteur defined ‘slavery’ as ‘the status or condition of a person over whom any or all of the powers attaching to the right of ownership are exercised, including sexual access through rape or other forms of sexual violence’, 1998 UN Slavery Rapporteur Report, para. 27. See also Women’s Caucus for Gender Justice, Revised proposal for elements under article 8 para. 2 (b) (xxii) 1 (4 Aug. 1999).

<sup>1155</sup> As regards human rights instruments, article 6 CEDAW for instance requires states to, *i.a.*, suppress ‘all forms of ... exploitation of prostitution of women’, and the Convention for the Suppression of Traffic in Persons and of the Exploitation of the Prostitution of Others, UN Doc. A/RES/317 (IV) (2 Dec. 1949), requires States in its article 1 para. 2 ‘to punish any person who, to gratify the passions of another: ... Exploits the prostitution of another person, even with the consent of that person’. The ILC also included ‘enforced prostitution’ in its list of crimes against humanity under the 1996 ILC Draft Code.

<sup>1156</sup> Commonwealth of Australia War Crimes Act of 1945, V *Law Reports* 94–95 (1948), (referring to a list of war crimes including the ‘abduction of girls and women for the purpose of enforced prostitution’); Chinese Law governing the Trial of War Criminals of 24 Oct. 1946, XIV *Law Reports* 154 (1949), (‘Kidnapping females and forcing them to become prostitutes’). This war crime had also been included in the list of offences of the 1919 Commission on the Responsibility of the Authors of the War and on Enforcement of Penalties.

<sup>1157</sup> *Awochi* had been charged with having ‘in time of war and as a subject of a hostile power, namely Japan’ and ‘owner of the Sakura-Club, founded for the use of Japanese civilians’, committed ‘war crimes by, in violation of the laws and customs of war, recruiting women and girls to serve the said civilians ...’, and then under direct

The term ‘prostitution’ seems to suggest that sexual services are provided as part of an exchange and that the sexual activity may be offered and initiated by the victim and not necessarily by the perpetrator or a ‘client’. However, as the adjective ‘enforced’ makes clear, the victim is coerced or compelled to such exchange or offer, particularly to avoid harm to him- or herself or someone else or to obtain something necessary for survival<sup>1158</sup>. Enforced prostitution may cover a single act as well as a continuing situation<sup>1159</sup>. Again, this war crime of sexual violence protects women as well as men or children from enforced prostitution<sup>1160</sup>. In contrast for instance to rape, the ‘client’ engaging in an individual sexual act may not use any force or coercion or not even be aware of coercive circumstances.

The Elements for article 8 para. 2 (b) (xxii)-3 Rome Statute require two particular elements, the first being that the perpetrator caused the victim ‘to engage in one or more acts of a sexual nature by force, or by threat of force or coercion, such as that caused by fear of violence, duress, detention, psychological oppression or abuse of power, against such person or persons or another person, or by taking advantage of a coercive environment or such person’s or persons’ incapacity to give genuine consent’<sup>1161</sup>.

Secondly, the perpetrator or another person (including the ‘client’) ‘obtained or expected to obtain pecuniary or other advantage in exchange for or in connection with the acts of a sexual nature’.

**e) War crime of forced pregnancy.** The Rome Statute is the first international, legally binding instrument that explicitly prohibits forced pregnancy, and criminalizes it as a war crime (and crime against humanity). The crime of forced pregnancy combines both (en)forced impregnation (pregnancy as a result of rape or some involuntary medical procedure) as well as (en)forced maternity (being forced to carry the pregnancy to term)<sup>1162</sup>, the latter of which may have devastating consequences for the victim (social, financial, emotional, etc.) and has been used for reasons of ethnic cleansing. The notion of

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or indirect threat of the Kempei (Japanese Military Police) should they wish to leave, forcing them to commit prostitution with the members of the said club’, which the women and girls “were not able to leave freely”’. The accused was found guilty of the war crime of ‘enforced prostitution’ based on article 1 para. 7 of Netherlands East Indies Statute Book Decree No. 44 of 1946 concerning the ‘Definition of War Crimes’ and establishing the jurisdiction over such crimes of the Netherlands Temporary Court-Martial at Batavia. The war crime was defined as ‘[a]bduction of girls and women for the purpose of enforced prostitution’. With regard to the ‘enforced prostitution’, on which the court put the accent, the court found that women and girls ‘intended for prostitution had to take up residence in a part of the club shut off for that purpose and from which they were not free to move’, having been under the serious threat with the Japanese military police should they try to leave, which threats, ‘in view of the nature of the police, ‘were rightly considered as being synonymous with ill-treatment, loss of liberty or worse’. Netherlands Temporary Court- Martial at Batavia, *Washio Awochi* (25 Oct. 1946), XIII *Law Reports* 122–124 (1949).

<sup>1158</sup> The UN Special Rapporteur on Contemporary Forms of Slavery defined ‘[f]orced prostitution’ as generally referring to ‘conditions of control over a person who is coerced by another to engage in sexual activity’, noting, however, that ‘[t]he terms ‘forced prostitution’ or ‘enforced prostitution’ appear in international and humanitarian conventions but have been insufficiently understood and inconsistently applied’, 1998 UN Slavery Rapporteur Report, para. 31.

<sup>1159</sup> See M. Boot, revised by C. K. Hall, *Article 7 para. 1 (g)*-3. The Commentary on article 27 para. 2 defined the term enforced prostitution as ‘the forcing of a woman into immorality by violence or threats’, Pictet (ed.), *Commentaries Geneva Conventions Vol. IV* (1960) article 27, 206. This old interpretation however is unsatisfactory, as it euphemistically puts the emphasis on the ‘immorality’.

<sup>1160</sup> See Pilloud/Pictet, in: Sandoz/Swinarski/Zimmermann (eds.), *Commentary Additional Protocols* (1987) 874 (No. 3049).

<sup>1161</sup> Fn. 53 of the Elements of Crimes applies also, stating that ‘[i]t is understood that a person may be incapable of giving genuine consent if affected by natural, induced or age-related incapacity’. With regard to coercive environment and consent, reference can be made to what has been said with regard to the crime of rape, see above.

<sup>1162</sup> Some activists for the rights of the women did not support the term and definition of forced pregnancy, since it combines two crimes – the (en)forced impregnation (pregnancy as a result of rape or some involuntary medical procedure) and the (en)forced maternity (being forced to carry the pregnancy to term) – they deem should be addressed separately in their own right, Koenig/Askin, in: Askin/Koenig (eds.), *Women & IHRs* (2000) 14 (fn. 50).

forced pregnancy became recurrently used in the UN system after reports from the conflict in the former Yugoslavia that Bosnian women were raped, impregnated and held in camps until it was too late for them to obtain an abortion, forcing them to bear the child of the rapist's ethnicity as part of a policy of 'ethnic cleansing'<sup>1163</sup>. The 1993 Vienna Declaration and Program of Action as well as the 1995 Beijing Platform of Action considered forced pregnancy as a violation of the fundamental principles of international human rights and humanitarian law and the Platform noted that grave violations of the human rights of women, including forced pregnancy, occur in particular under policies of ethnic cleansing<sup>1164</sup>.

721 During the 1996 Preparatory Committee meetings, it had been proposed to include 'forced impregnation' as a crime against humanity under ICC jurisdiction<sup>1165</sup>. While consensus on the crimes of sexual violence that should be covered under the Rome Statute was largely reached during the December 1997 session of the Preparatory Committee, the proposed offence of 'enforced pregnancy' remained controversial and was opposed above all by the Holy See which preferred no such crime or at least a change of the wording to 'forced impregnation'<sup>1166</sup>. The primary concern of the Holy See was that the term (en)forced pregnancy 'could be interpreted as a justification of abortion, either in situations of armed conflict or as a precedent for other situations'<sup>1167</sup>. The Holy See also argued that the term 'forced pregnancy' is *per se* ambiguous, '[s]ince it is difficult to view the birth of an innocent human being as a crime; instead we have here a combination of crimes to which heavy penalties have already been attached: sexual violence, unlawful confinement, etc.'<sup>1168</sup>. 'Forcible impregnation' however was not acceptable to the delegations supporting the earlier, unbracketed wording 'forced pregnancy' text as it referred only to making a woman pregnant, whereas 'enforced pregnancy' involved *keeping* the woman pregnant.

722 The definition of the offence became a highly controversial issue at the Rome Conference itself. In order to allow for a compromise acceptable for all, interested delegations proceeded

<sup>1163</sup> Final Report of the UN Commission of Experts Established Pursuant to Security Council Resolution 780 (1992), UN Doc. S/1994/674 (27 May 1994), paras. 248 and 250 as well as Annex IX (Rape and Sexual Assault) (fn. 22). The Women's Caucus on Gender Justice in the ICC notes that forced pregnancy also occurred in Rwanda as well as during the period of African-American slavery, when women held as slaves were forced to bear children and were subjected to torture, beatings and other forms of coercion and deprivation if they did not, with some of these pregnancies being the result of rape, Women's Caucus for Gender Justice, *The Crime of Forced Pregnancy* (26 June 1998), available at <http://iccwomen.org/icc/rome/crime.htm>.

<sup>1164</sup> Vienna Declaration and Programme of Action, UN Doc. A/CONF.157/23 (12 July 1993), para. 38 ('Violations of the human rights of women in situations of armed conflict are violations of the fundamental principles of international human rights and humanitarian law. All violations of this kind, including in particular murder, systematic rape, sexual slavery, and forced pregnancy, require a particularly effective response' (emphasis added)); Beijing Platform of Action, Report of the Fourth World Conference on Women (Beijing, 4–15 Sep. 1995), UN Doc. A/CONF.177/20 (17 Oct. 1995), Annex II, paras. 132 and 11, as well as paras. 114, 135 and 142 (c). In resolutions on the elimination of violence against women and on the rights of the child, the Human Rights Commission has since 1995 repeatedly qualified forced pregnancy as a violation of international human rights and humanitarian law, calling for an effective response to such violations, see, e.g., UN Doc. E/CN.4/1995 (8 Mar. 1995), para. 5. See also generally A. T. Goldstein, *Recognizing Forced Impregnation as a War Crime* (1993).

<sup>1165</sup> 'There were proposals to refer to rape committed on national or religious grounds; rape, other serious assaults of a sexual nature, such as forced impregnation; or outrages upon personal dignity ... with attention being drawn to recent acts committed as part of a campaign of ethnic cleansing', 1996 Preparatory Committee I, para. 98.

<sup>1166</sup> The Holy See formally tabled a proposal during the March–April 1998 Preparatory Committee session, see UN Doc. A/AC.249/1998/DP.13 (1 Apr. 1998).

<sup>1167</sup> J.-L. Tauran, *The Defence of Life in the Context of International Policies and Norms* (11 Feb. 2000) (text at fn. 25) available at: [http://www.vatican.va/roman\\_curia/secretariat\\_state/index.htm](http://www.vatican.va/roman_curia/secretariat_state/index.htm).

<sup>1168</sup> *Id.*, fn. 25. At the Rome Diplomatic Conference, the Women's Caucus stated that '[i]t is difficult to understand how the debate about the crime of enforced pregnancy has become a debate about abortion', suggesting that it was never their intention to have any effect on the legitimacy or legality under international law of national laws which criminalize the termination of pregnancy, Women's Caucus for Gender Justice, *The Crime of Forced Pregnancy* (26 June 1998), available at: <http://iccwomen.org/icc/rome/crime.htm>. See also Koenig/Askin, in: Askin/Koenig (eds.), *Women and Int'l Human Rights Law* (2000) 14 (fn. 50).

to work out a compromise definition, with the Holy See as well as a few catholic and Arabic states insisting on a clear and unambiguous definition of the crime primarily to avoid that it might be used as a precedent with regard to abortion-issues. The adoption of the wording ‘forced pregnancy’ instead of ‘enforced pregnancy’ (emphasis added), which might more easily be understood as criminalizing laws against abortion, as well as the circumstantial element of pregnancy resulting from an act of force and the element of unlawful confinement of the pregnant woman was reached relatively easily. Particularly difficult, however, was to reach agreement on what ‘intent’ the perpetrator must have had. While Catholic and Arab states insisted on a high- threshold ‘ethnic-cleansing’ intent, others considered that such intent was only one of various reasons why the crime might be committed. A compromise definition which made the inclusion of the crime against humanity and war crime of forced pregnancy acceptable to all delegations was only reached on the second-last day of the Conference<sup>1169</sup>:

‘Forced pregnancy’ means the unlawful confinement of a woman forcibly made pregnant, 723 with the intent of affecting the ethnic composition of any population or carrying out other grave violations of international law. This definition shall not in any way be interpreted as affecting national laws relating to pregnancy’ (article 7 para. 2 (f) Rome Statute).

The second sentence meets the main concern of the Holy See and other states in making it 724 clear that national laws prohibiting abortion or otherwise providing for rules against abortion, or more precisely, adopting, applying or enforcing such laws, do not amount to forced pregnancy as defined under the Rome Statute.

A first, circumstantial element pre-existing the confinement is that the woman concerned 725 has been **forcibly made pregnant**, be it by the perpetrator or any other person. The adjective ‘forcibly’ refers to the use of force or other coercion, that is, the lack of consent, such as in the case of rape or insemination without consent.

The main element of the *actus reus* of forced pregnancy however consists of **unlawfully 726 confining** a woman that has previously and forcibly been made pregnant. Confining should be understood broadly as any form of deprivation of physical liberty. The term unlawful should, similarly to its use in other parts of the Rome Statute, be interpreted as meaning contrary to international law and standards. Yet, the Preparatory Commission did not stipulate in element 1 for article 8 para. 2 (b) (xxii)-4 and article 7 para. 1 (g)-4 that the confining must be ‘unlawful’. However, in view of the aim of the prohibition, confining a woman made forcibly pregnant in accordance with international humanitarian law (for instance as a prisoner of war) is insufficient to incur criminal responsibility under article 8 para. 2 (b) (xxii)-4, unless, it is submitted, the woman is prevented from accessing medical services and from a feasible abortion in time with the necessary special intent.

In any event, the Rome Statute requires that the perpetrator had a **special intent**<sup>1170</sup>. First, 727 such intent can consist of affecting a population’s ethnic composition, including ethnic cleansing or otherwise weakening an ethnic group. Secondly, intent to carry out ‘other grave violations of international law’<sup>1171</sup> is sufficient even if rather vague. This second alternative may for instance cover medical experiments contrary to international law, while not covering pure sadism or, apparently, the mere intention that the child always reminds the woman and her family or community of what happened<sup>1172</sup>. The Women’s Caucus For Gender Justice in

<sup>1169</sup> On the drafting history, see Steains, in: Lee *et al.* (ed.) *Making of the Rome Statute* (1999) 365–369; von Hebel/Robinson, in: Lee (ed.), *Making of the Rome Statute* (1999) 100; Bedont/Hall-Martinez (1999) 6 *BrownJWorldAff* 1, 65.

<sup>1170</sup> The Preparatory Commission had proposed to specify the intent by adding the words ‘to keep the woman pregnant’, a formulation which, however, met considerable opposition by some delegations, wherefore the Commission went back to the wording of the Statute, Rückert/Witschel, in: Fischer/Kress/Lüder (eds.), *International and National Prosecution* (2001) 85.

<sup>1171</sup> The term ‘other’ actually does not appear correct, as affecting the ethnic composition of any population is not as such a violation of international law.

<sup>1172</sup> See also T. A. Salzman, ‘Rape Camps as a Means of Ethnic Cleansing: Religious, Cultural, and Ethical Responses to Rape Victims in the Former Yugoslavia’, 20 *HumRQ* 365–366 (1998).



the ICC had intended at the Rome Conference that the crime of ‘forced pregnancy’ would also cover ‘[t]he impregnation of Jewish women under the Nazi regime in order to conduct medical experiments on them and/or their fetuses’, an offense that clearly could qualify under article 8 para. 2 (b) (xxii)-4, as well as ‘[t]he current trend to kidnap pregnant women, hold them, and sell their babies on the black market’, an offense that cannot be subsumed under article 8 para. 2 (b) (xii)- 4 since the women were not forcibly made pregnant (but might qualify under other war crimes such as sexual slavery)<sup>1173</sup>.

728 f) **Enforced sterilization.** Enforced sterilization has been punished in the context of war crimes trials relating to medical experiments conducted particularly in concentration camps during World War II<sup>1174</sup>.

729 According to element 1 for article 8 para. 2 (b) (xxii)-5, the *actus reus* of enforced sterilization consists of ‘**depriving [a person of his or her] biological reproductive capacity**’. This wording thus criminalizes the deprivation of a person to produce offspring. As footnote 54 of the Elements of Crimes makes clear, such deprivation does not cover ‘birth-control measures which have non-permanent effect in practice’, such as birth-control pills which can be stopped to be taken and the impact of which can be reversed. The war crime of enforced sterilization thus requires intent to permanently deprive of reproductive capacity.

730 The qualifying adjective ‘enforced’ suggests that the sterilization must be forcible, such as when it is against the will of the victim. Element 2 for article 8 para. 2 (b) (xxii)-5 however approaches this issue somewhat differently, suggesting that the sterilization only amounts to a war crime if it was neither justified by the medical or hospital treatment of the victim nor carried with his or her genuine consent<sup>1175</sup>. Footnote 55 adds that ‘consent obtained through deception’ does not qualify as ‘genuine consent’, excluding for instance misinformation regarding the permanence or reversibility of the sterilization. The consent thus must be informed. Footnote 51 states that ‘a person may be incapable of giving genuine consent if affected by natural, induced or age-related incapacity’. In addition, it is submitted that justifying consent would have to be voluntary, anything else making little sense, in particular in times of armed conflict. However, a sterilization which is required and thus ‘justified’ in view of the health of the person concerned might still amount to the war crime of enforced sterilization insofar it is ‘forcible’ (including when occurring against the person concerned capable, voluntary and informed will); once more, the relationship between the Statute’s wording (‘enforced’) and the elements suggested by the Elements of Crimes is not entirely clear.

731 g) **War crime of any other form of sexual violence.** Forms of sexual violence that cannot be qualified under one of the five above-analyzed specific types of sexual violence offenses listed under article 8 para. 2 (b) (xxii)-1 to -5 may still come under ICC jurisdiction insofar they qualify under the residual, open-phrased clause of ‘any other form of sexual violence also constituting a grave breach of the Geneva Conventions’.

732 International humanitarian law prohibits not only rape and specific forms of sexual violence, but more generally ‘*any form of indecent assault*’. For instance, article 27 para. 2 GC IV provides that ‘[w]omen shall be protected against any attack on their honour, in particular against rape, enforced prostitution, or any form of indecent assault’. Similarly, article 76 para. 1 Add. Prot. I provides that ‘[w]omen shall be the object of special respect

<sup>1173</sup> See Women’s Caucus For Gender Justice In the ICC, *Priority Concerns Respecting War Crimes Article B(p bis)* (not dated, on file with the author).

<sup>1174</sup> Article II of the Chinese War Crimes Law of 24 Oct. 1946 considered a war criminal any ‘[a]lien combatants or non-combatants who during a war or a period of hostilities ... or prior to the occurrence of such circumstances ... nourish intentions of enslaving, crippling, or annihilating the Chinese Nation ... by such methods as ... destroying [people’s] power of procreation’, XIV *Law Reports* 153 (1949). See also Supreme National Tribunal of Poland, *Rudolf F. F. Hoess* (11–29 Mar. 1947), VII *Law Reports* 14–16 (1948); U.S. Military Tribunal No. 1, *K. Brandt et al. (‘Medical Case’, Case No. 1)*, I+II *Nuremberg Military Tribunal* (1997).

<sup>1175</sup> See also above, article 8 para. 2 (b) (xxii)-1.



and shall be protected in particular against rape, forced prostitution and any other form of indecent assault'. Article 4 para. 2 Add. Prot. II prohibits, in internal armed conflicts, 'at any time and in any place whatsoever ... outrages upon personal dignity, in particular ... any form of indecent assault', thereby appearing to detail common article 3 sub-para. (c) and arguably extend the protection against indecent assaults also in international armed conflicts to protected persons other than women. Article 27 para. 1 GC IV furthermore provides that '[protected persons] shall at all times be humanely treated, and shall be protected especially against all acts of violence or threats thereof and against insults and public curiosity'.

Drawing on article 4 para. 2 (e) Add. Prot. II, the ICTR Statute in its article 4 para. 2 provides jurisdiction over 'outrages upon personal dignity, in particular ... rape, enforced prostitution and any form of indecent assault'. The *Čelebići* Trial Chamber also stated that '[t]here can be no doubt that rape and other forms of sexual assault are expressly prohibited under international humanitarian law' (emphasis added), referring *inter alia* to article 46 Hague Regulations, which according to the ICTY implicitly prohibits rape and sexual assault by protecting family honour and rights<sup>1176</sup>. The *Furundžija* Trial Chamber held that 'international criminal rules punish not only rape but also any serious sexual assault falling short of actual penetration. It would seem that the prohibition embraces all serious abuses of a sexual nature inflicted upon the physical and moral integrity of a person by means of coercion, threat of force or intimidation in a way that is degrading and humiliating for the victim's dignity'<sup>1177</sup>. The *Akayesu* ICTR Trial Chamber considered 'sexual violence ... as any act of a sexual nature which is committed on a person under circumstances which are coercive. Sexual violence is not limited to physical invasion of the human body and may include acts which do not involve penetration or even physical contact. The incident ... in which the Accused ordered the Interahamwe to undress a student and force her to do gymnastics naked in the public courtyard of the bureau communal, in front of a crowd, constitutes sexual violence. ... Sexual violence falls within the scope of 'other inhumane acts', ... 'outrages upon personal dignity', ... and 'serious bodily or mental harm' set forth in ... the Statute'<sup>1178</sup>. On the basis of the *Akayesu* decision, the *Kvočka* Trial Chamber held that sexual violence includes sexual mutilation (insofar not amounting to enforced sterilization), forced marriage (insofar not amounting to sexual slavery), forced abortion and even sexual molestation<sup>1179</sup>. The *Todorović* Trial Chamber qualified biting into a penis and kicking in the genital area as a sexual assault<sup>1180</sup>.

The UN Slavery Rapporteur defined sexual violence as 'any violence, physical or psychological, carried out through sexual means or by targeting sexuality', and stated that it 'covers both physical and psychological attacks directed at a person's sexual characteristics, such as forcing a person to strip naked in public, mutilating a person's genitals, or slicing off a woman's breasts. Sexual violence also characterizes situations in which two victims are forced to perform sexual acts on one another or to harm one another in a sexual manner'<sup>1181</sup>.

In the negotiations leading to the adoption of the Rome Statute, the February 1997 Preparatory Committee proposed to incorporate 'rape, enforced prostitution and *other sexual violence of comparable gravity*' (in brackets) as examples of the grave breach of wilfully causing great suffering or serious injury to body or health<sup>1182</sup>, using the 'comparable gravity' as a threshold. The December 1997 Preparatory Committee session then made the sexual violence offences, including 'any other form of sexual violence also constituting a grave breach of the Geneva Conventions'<sup>1183</sup>, war crimes in their own right.

<sup>1176</sup> *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgment, Trial Chamber, 16 November 1998, para. 476.

<sup>1177</sup> *Prosecutor v. Furundžija*, IT-95-17/1-T, Judgment, Trial Chamber, 10 December 1998, para. 186.

<sup>1178</sup> *Prosecutor v. Akayesu*, ICTR-96-4-T, Judgment, Trial Chamber, 10 December 1998, para. 688.

<sup>1179</sup> *Prosecutor v. Kvočka et al.*, IT-98-30/1-T, Judgment, Trial Chamber, 2 November 2001, para. 180 (fn. 343).

<sup>1180</sup> *Prosecutor v. Todorović*, IT-95-9/1-S, Sentencing Judgment, Trial Chamber, 31 July 2001, para. 38 (and para. 66).

<sup>1181</sup> 1998 UN Slavery Rapporteur Report, paras. 21–22 (references omitted).

<sup>1182</sup> 1996 Preparatory Committee II, p. 6 (para. A(c)).

<sup>1183</sup> Preparatory Committee Decisions Dec. 1997, p. 11 (para. B(pbis)).

736 According to element 1 for article 8 para. 2 (b) (xxii)-6, the first element of the war crime of ‘any other form of sexual violence’ consists of either **committing an act of a sexual nature** against a person or **causing a person to engage in an act of a sexual nature**. In the Kenyan situation, PTC II rejected to apply ‘other form of sexual violence’ on male circumcisions and penile amputations arguing as follows:

‘not every act of violence which targets parts of the body commonly associated with sexuality should be considered an act of sexual violence. In this respect, the Chamber considers that the determination of whether an act is of a sexual nature is inherently a question of fact. The Chamber finds that the evidence placed before it does not establish the sexual nature of the acts of forcible circumcision and penile amputation visited upon Luo men. Instead, it appears from the evidence that the acts were motivated by ethnic prejudice and intended to demonstrate cultural superiority of one tribe over the other.’<sup>1184</sup>

737 Regrettably, the aforementioned decision failed to explain why the penile amputations were not to be subsumed under ‘enforced sterilization’. Secondly, to qualify as sexual violence under the Rome Statute, and not merely as an act of a sexual nature, such conduct must be qualified by an element of *coercion*, defined in the same way as in respect of the war crime of rape.

738 Thirdly, element 2 specifies that the conduct must have been ‘of a **gravity comparable** to that of a grave breach of the Geneva Conventions’ (emphasis added). This interpretation of the wording of the Rome Statute ‘*also constituting* a grave breach of the Geneva Conventions’ (emphasis added) however is less than obvious. The unclear meaning of the phrase ‘also constituting ...’ indeed gave rise to extensive debate and a sustained lobbying effort of the ICC Women’s Caucus. When analyzing the meaning of the phrase ‘also constituting a grave breach of the Geneva Conventions’ in article 8 para. 2 (b) (xxii) Rome Statute, it is helpful to distinguish between this phrase’s implications with regard to the five specific forms of sexual violence listed before the comma on the one hand, and with regard to the residual clause on the other hand.

739 In respect of the **meaning with regard to the five specific forms of sexual violence**, there are three possibilities: First, the phrase may be considered not at all to apply to the five specific forms of sexual violence, since, as can be argued, there is a comma separating the five forms from the phrase and since the phrase was only meant to indicate a threshold for the residual clause. Second, it can be argued that the phrase is merely an affirmation that the five specific forms of sexual violence in any event – without any need to prove it – amount to grave breaches. This meaning has been particularly propagated by the ICC Women’s Caucus. Thirdly, it could also be argued that even the five specific forms of sexual violence only come under ICC jurisdiction if it is demonstrated that under applicable international law, the specific act or the specific form of sexual violence amounts to a grave breach. This third way of interpretation must be rejected, since it was the specific intention of delegations at the Rome Conference to make the specifically listed forms of sexual violence war crimes in their own right and precisely to avoid the need to have to subsume these sex crimes under a more general form of mistreatment. This has been confirmed *e contrario* by the elements of article 8 para. 2 (b) (xxii) which require only with regard to the residual clause that the sexual violence be ‘of a gravity comparable ...’, while omitting any such requirement with regard to the five specific forms of sexual violence. The specific forms of sexual violence thus either do not require amounting to a grave breach or *per se*, at any rate, amount to such a grave breach.

740 With regard to the meaning and implication of the phrase ‘also constituting a grave breach of the Geneva Conventions’ *for the residual clause* ‘any other form of sexual violence’, we can distinguish two main interpretations. First, the clause might be considered to provide that ‘any other form of sexual violence’ only comes under ICC jurisdiction insofar it *also qualifies* as a grave breach of the Geneva Conventions. The conduct concerned must thus demon-

<sup>1184</sup> *Prosecutor v. Muthaura et al.*, ICC-01/09-02/11-382, Decision on the Confirmation of Charges pursuant to article 61(7)(a) and (b) of the Rome Statute, PTC II, 23 January 2012, paras. 265–266 (on CaH).

strably either have fulfilled the elements of a grave breach<sup>1185</sup>, or the particular ‘other form of sexual violence’ must be recognized, under applicable international law, as a grave breach of its own (possibly including those not yet recognized as grave breaches at the time of the adoption of the Rome Statute)<sup>1186</sup>.

After intensive lobbying of the Women’s Caucus, the ICC Preparatory Commission however suggested another interpretation, namely, that the phrase ‘also constituting a grave breach of the Geneva Conventions’ means ‘of gravity *comparable* to that of a grave breach of the Geneva Conventions’ (element 2, emphasis added). This interpretation, however, goes against the wording of the definition under the Rome Statute and, according to article 9 para. 3 Rome Statute, would thus not appear to bind the judges. All the same, it is the interpretation the states participating in the Preparatory Commission as well as the Assembly of States Parties wished to give to the phrase. From a teleological perspective, this interpretation appears to accord with the main rationale behind the phrase, since delegations at the Rome Conference above all intended to fix a certain threshold and to exclude ‘lesser’ forms of sexual violence or harassment that would not amount to most serious crimes of concern to the international community as a whole and thus not warrant prosecution before the ICC. ‘Any other form of sexual violence’ consequently must, in order to come under ICC jurisdiction, reach the minimum threshold of gravity comparable to a grave breach of the Geneva Conventions, such as torture, inhuman treatment, biological experiments, wilfully causing great suffering or serious injury to body or health, or, arguably, one of the five specific forms of sexual violence listed under article 8 para. 2 (b) (xxii), insofar these are deemed to *per se* constitute grave breaches.<sup>1187</sup>

### 23. Paragraph 2(b)(xxiii): Utilizing the presence of a protected person to render certain objects immune from military operations

**Literature:** Anderson, K., *Statement at the Conference of the Swiss Foundation for World Affairs, International Humanitarian Law and Human Rights: How Relevant are they in today’s wars?* (2003); Arnold, R., *The ICC as a New Instrument for Repressing Terrorism* (2004); *id.*, ‘Training With the Opposition: The Status of the ‘Free Iraqi Forces’ in the US’ war against Saddam Hussein’, (2003) 33 *HeidelbergJIL* 3, 631; Dinstein, Y., *The Conduct of Hostilities under the Law of International Armed Conflict* (2004); Elliott, H.W., ‘Open Cities and Undeclared Places’, (1995) *The Army Lawyer* 39; Fenrick, W.J., ‘The Rule of Proportionality and Protocol I in Conventional Warfare’, (1982) 98 *MillRev* 91; *id.*, ‘Attacking the Enemy Civilian as a Punishable Offence’, (1997) 7 *DukeCompeIL* 539; Frank, D., ‘Commentary on Art. 8(2)(b)(xxiii)-Using protected persons as shields’, in: R. S. Lee (ed.), *The International Criminal Court – Elements of Crimes and Rules of Procedure and Evidence* (2001) 199–201; Haas, J., ‘Voluntary human shields: status and protection under international humanitarian law’, in: R. Arnold and P.-A. Hildebrand (eds.), *International Humanitarian Law and the 21<sup>st</sup> Century’s Conflicts: Changes and Challenges* (2005); ICRC, *Interpretive Guidance on the Notion of Direct Participation in Hostilities under International Humanitarian Law, adopted by the Assembly of the ICRC on 26 February 2009*, (2008) 90 (872) *IRRC* 991; Parks, W.H., ‘Air War and the Law of War’, (1990) 32 *A.F.L.Rev.* 1; Schmitt, M.N., ‘Bellum Americanum: The US view of Twenty-First Century War and Its possible implications for the law of armed conflict’, (1998) 19 *MichJIL* 1051; Schmitt, M., ‘Human Shields in International Humanitarian Law’, (2008–2009) 47 *ColfTransnatL* 292.

Article 8 para. 2(b)(xxiii) of the ICC Statute the first instance of criminalization of the use of human shields as an autonomous crime.<sup>1188</sup> This is not a new phenomenon, however, and

<sup>1185</sup> From a teleological point of view, an exception might be construed with regard to the scope of protected persons. This seems also warranted for article 8 para. 2 (b) (xxii) in comparison to article 8 para. 2 (e) (vi), the latter of which does not contain such a restriction of the scope of protected persons (‘any other form of sexual violence also constituting a serious violation of article 3 common to the four Geneva Conventions’).

<sup>1186</sup> A third was of interpretation that the phrase was only inserted to state that all six forms of sexual violence constitute grave breaches – besides constituting serious violations of the laws and customs applicable in international armed conflict – is not warranted, even if women’s rights advocates sometimes strived to lobby for this interpretation, since the Rome Conference clearly wished to fix a minimum threshold for the residual clause.

<sup>1187</sup> See also Werle and Jessberger, *Principles ICL* (2014), para. 1180; Ambos, *Treatise on ICL Vol. II* (2014), p. 168 with fn. 390 (with further references).

<sup>1188</sup> Report on the Seminar on ‘International Humanitarian Law and Current Armed Conflicts: Fausto Pocar and Marco Pedrazzi, The Involvement of the Civilian Population in Hostilities’, International Institute of Humanitarian Law Rome, 25 February 2011, at 2.

its ban was already set forth by article 51 para. 7 Add. Prot. I, which outlaws the use of civilians to shield points, areas, or military forces and articles 23 and 28 IV GC, article 19 I GC and article 12 Add. Prot. I, which prohibit the use of prisoners of war and medical units for the same purposes. The existing jurisprudence, however, in particular that of the ICTY, always condemned this type of conduct by charging it under different counts, such as ‘inhumane treatment’ (i.e. as a grave breach of the Geneva Conventions of 1949) or cruel treatment;<sup>1189</sup> ‘an outrage on personal dignity’<sup>1190</sup> pursuant to common art. 3 to the four Geneva Conventions, or hostage taking.<sup>1191</sup> In the indictment against Radovan Karadžić (President of the Bosnia Serb area) and Ratko Mladić (Chief of its Armed Forces), the former Prosecutor Richard Goldstone alleged that ‘Bosnian Serb military personnel physically secured or otherwise held the UN peacekeepers against their will at potential NATO air targets, including the ammunition bunkers at Jahorinski Potok, the Jahorina radar site and a nearby communications centre in order to render these locations immune from further NATO air strikes’ in 1995.<sup>1192</sup>

744 Thus, this provision, which is based on the principle of distinction, synthesizes the content of the various humanitarian norms outlawing the use of ‘human shields’. At the same time, it refers to the duty to take precautions against the effect of an attack, stated in article 58 Add. Prot. I.

745 Even though the use of human shields in non-international armed conflicts has been condemned by States and by the United Nations, for example, with respect to the conflicts in Liberia, Rwanda, Sierra Leone, Somalia, Tajikistan and the former Yugoslavia and although it may be considered as amounting to customary law,<sup>1193</sup> no mirror provision applicable to non-international conflicts is to be found in the ICC Statute. An alternative, however, is to apply Article 8 para. 2(c) iii of the ICC Statute, which prohibits the taking of hostages.<sup>1194</sup>

746 According to the Elements of Crime, the following criteria need to be met:

1. The perpetrator moved or otherwise took advantage of the location of one or more civilians or other persons protected under the international law of armed conflict.
2. The perpetrator intended to shield a military objective from attack or shield, favour or impede military operations.
3. The conduct took place in the context of and was associated with an international armed conflict.
4. The perpetrator was aware of factual circumstances that established the existence of an armed conflict.

747 In modern warfare there will inevitably be many instances where civilians and civilian objects will be located close to military objectives. Military headquarters, barracks, and militarily significant factories, for example, may often be located in urban areas adjacent to the civilian population. Military hospitals will usually be located on military bases. It may be necessary to send an armoured division through a city.

748 This provision prohibits parties to a conflict from taking action during the conflict to use civilians or other protected persons to shield military forces by, for example, locating military hospitals or prisoner of war camps or civilian internee camps or groups or school children

<sup>1189</sup> *Prosecutor v. Blaskić*, IT-95-14-T, Trial Chamber, Judgment, §§ 186; 716, 750 (Mar. 3, 2000). 186; For an analysis see Schmitt (2008–2009) 47 *ColJTransnatL* 292, at 307.

<sup>1190</sup> *Prosecutor v. Aleksovski*, IT-95-14/I-T, Trial Chamber, Judgment, 229 (June 25, 1999).

<sup>1191</sup> *Prosecutor v. Timohir Blaskić*, IT-95-14-T, para. 750.

<sup>1192</sup> *Prosecutor v. Karadžić and Mladić*, IT-95-5-I, Indictment, (July 24, 1995), § 47.

<sup>1193</sup> See Rule 97 (Human Shields, Henckaerts and Doswald-Beck, *Customary*, 338; Report on the Seminar on ‘International Humanitarian Law and Current Armed Conflicts: Fausto Pocar and Marco Pedrazzi, The Involvement of the Civilian Population in Hostilities’, *International Institute of Humanitarian Law Rome*, 25 February 2011, at 2; Schmitt (2008–2009) 47 *ColJTransnatL* 292, at 307.

<sup>1194</sup> Report on the Seminar on ‘International Humanitarian Law and Current Armed Conflicts: Fausto Pocar and Marco Pedrazzi, The Involvement of the Civilian Population in Hostilities’, *International Institute of Humanitarian Law Rome*, 25 February 2011, at 2.

next to ammunition dumps. Criminal liability, however, arises not only if a person moves protected persons to the vicinity of a military objective, but also when he or she takes advantage of the location of protected persons in the area. Finally, responsibility arises when the military objective is moved towards the protected persons. The fact that the protected person may be a voluntary is irrelevant: the movement itself of the military personnel or objects is sufficient *per se*<sup>1195</sup>.

If a party to a conflict violates this provision, an attacking party remains bound to comply with the rule of proportionality and to pay due heed to the additional incidental casualties which might result. A military commander may not ignore incidental civilian casualties with a dismissive assertion that the other side located its defence industries in major cities to shield them from attack. However, as long as the ‘collateral damages’ remain proportionate and justified by military necessity, the mere fact that there may be civilians placed as ‘shield’ in front of a military objective does not render the latter immune from attack. However, the attacker will have to observe the precautionary measures set forth in article 57 Add. Prot. I (precautions in attack)<sup>1196</sup>.

Another interesting aspect is that of so-called voluntary human shields. These are persons who have freely chosen to place themselves near potential military targets in the hope that their presence will delay or prevent the attack<sup>1197</sup>. The voluntary element clearly distinguishes them from civilians taken as hostages and used as human shields<sup>1198</sup>. They qualify as civilians, in that they do not fulfill the definition of combatants provided by article 4 para. (A) III GC (*i.e.* the mirror image of the definition of prisoner of war, a status given only to combatants)<sup>1199</sup> and article 43 Add. Prot. I. Some authors like Yoram Dinstein have tried to argue that voluntary human shields are civilians who decided to engage in combat and who, therefore, should be considered as ‘unlawful combatants’<sup>1200</sup>. However, the fact that a civilian decides to engage, unlawfully, in combat, does not change his or her civilian status. The civilian, however, may be held criminally liable for having unlawfully engaged in the hostilities and lose protection for the time of his/her involvement in the hostilities<sup>1201</sup>. A third view, is that these are civilians who have compromised their civilian status and who, if injured or killed, should not be regarded as civilian collateral damage because they have volunteered to be at the military target. If captured they are not prisoners of war<sup>1202</sup>. They certainly are not, in that they retain civilian status and civilians have no right to prisoner of war treatment. Thus, as civilians, they will enjoy the same protection as other civilians under the principle of proportionality (*i.e.* civilian collateral casualties will have to be proportionate to the military advantage sought). It is then a different issue, whether the threshold of proportionality shall differ, in that they have themselves put at risk by voluntarily placing themselves in front of a military objective. It may be argued, that the proportionality rule (and the precautionary principle), in this case, shall apply in a more flexible way<sup>1203</sup>, even though the obligations set forth in articles 51 para. 7 Add. Prot. I and 28 IV GC, from which article 8 para. 2 (b) (xxiii) is drawn apply both in the case where civilians are hostages and where they have volunteered as human shields<sup>1204</sup>.

<sup>1195</sup> Frank, in: R. S. Lee *et al.* (eds.), *Elements of Crimes*, see note 281, 200.

<sup>1196</sup> Sandoz *et al.* (eds.), *Commentary*, see note 2, 628 (para. 1989 *et seq.*).

<sup>1197</sup> See Haas, in: Arnold and Hildbrand (eds.), *International Humanitarian Law and the 21<sup>st</sup> Century's Conflicts: Changes and Challenges* (2005).

<sup>1198</sup> See Schmitt (1998) 19 *MichJIL* 1077; Haas, *Voluntary human shields*, see note 915, 5.

<sup>1199</sup> On the distinction between civilians and combatants see Arnold, *The ICC*, see note 262, 125 *et seq.*

<sup>1200</sup> Dinstein, *The Conduct of Hostilities*, see note 201, 130; Haas, *Voluntary human shields*, see note 915, 5.

<sup>1201</sup> Arnold (2003) 63 *HeidelbergJIL* 3, 642. See article 51 para. 3 Add. Prot. I. See on this ICRC, Interpretive Guidance on the Notion of Direct Participation in Hostilities under International Humanitarian Law, adopted by the Assembly of the ICRC on 26 February 2009, (2008) 90 (872) *IRRC* 9991, at 1025.

<sup>1202</sup> Haas, *Voluntary human shields*, see note 915, 6.

<sup>1203</sup> See on this Pocar and Pedrazzi, ‘The Involvement of the Civilian Population in Hostilities’, *International Institute of Humanitarian Law Rome*, 25 February 2011, at 3; Schmitt (2008–2009) *ColJTransnatL* 292 at 310.

<sup>1204</sup> See Haas, *Voluntary human shields*, see note 915, 12–13.

751 The issue of voluntary human shields was also heavily debated during an expert meeting organised in 2011 by the San Remo Institute for International Humanitarian Law. According to one view, voluntary human shields are by definition directly participating in hostilities, but the majority of experts held, instead, that also voluntary human shields would normally have to be considered as civilians. Ultimately, a broad consensus emerged on the fact that, regardless of whether they are to be considered as directly participating in hostilities, there would be no point in attacking them on their way to or from the military objective; and the fact that the voluntary human shields issue is of little practical relevance, as it is very difficult to verify their free will. In case of doubt, they surely would have to be considered involuntary, thus civilians.<sup>1205</sup> As far as the mental elements are concerned, element 1, *i.e.* the moving or taking advantage of the location of one or more protected persons, is covered by article 30 of the Statute, whereas a second and separate element is the ulterior motive to shield a military objective from an attack<sup>1206</sup>.

#### 24. Paragraph 2(b)(xxiv): Intentionally directing attacks against objects or personnel using the emblems of the Geneva Conventions

**Literature:** Dörmann, K., *Elements of war crimes under the Rome Statute of the International Criminal Court – Sources and Commentary* (2003); Wayne Elliott, H., 'Open Cities and Undefended Places', (1995) *The Army Lawyer* 39; Fenrick, W.J., 'The Rule of Proportionality and Protocol I in Conventional Warfare', 98 *MilLRev* 91 (1982); *id.*, 'Attacking the Enemy Civilian as a Punishable Offence', 7 *DukeJComp&IL* 539 (1997); Parks, W.H., 'Air War and the Law of War', 32 *AFLRev* 1 (1990); Pfirter, D., 'Commentary to Art. 8(2)(b)(xxiv)', in: R.S. Lee, *The International Criminal Court – Elements of Crimes and Rules of Procedure and Evidence* (2001) 201–203; Rogers, A.P.V., *Law on the Battlefield* (1996).

752 Pursuant to the Elements of Crime, this crime is fulfilled if:

1. The perpetrator attacked one or more persons, buildings, medical units or transports or other objects using, in conformity with international law, a distinctive emblem or other method of identification indicating protection under the Geneva Conventions.
2. The perpetrator intended such persons, buildings, units or transports or other objects so using such identification to be the object of the attack.

753 Article 8 para. 2 (b) (xxiv) is principally based on article 38 Add. Prot. I, stating that:

1. It is prohibited to make improper use of the distinctive emblem of the red cross, red crescent or red lion and sun or of *other emblems*, signs or signals provided for by the Conventions or by this Protocol. It is also prohibited to misuse deliberately in an armed conflict *other internationally recognized protective emblems*, signs or signals, including the flag of truce, and the protective emblem of cultural property.
2. It is prohibited to make use of the distinctive emblem of the United Nations, except as authorized by that Organization.

754 Other relevant provisions are articles 24–27, 36, 39–44 of the GC I, articles 42–44 of the GC II, articles 42–44 of the GC III, articles 18–22 of the GC IV and articles 8, 12, 13, 15, 18, 23 and 24 Add. Prot. I. The protection from attacks of medical and religious personnel and objects displaying the distinctive emblems of the Geneva Conventions in conformity with international law has been recognised as a customary law principle applicable both to international and non-international armed conflicts.<sup>1207</sup> The mirror provision of the ICC Statute applicable in this latter kind of context is Article 8(2)(e)(ii). The official distinctive emblems in use at present are the Red Cross, the Red Crescent and, since the adoption by the 29<sup>th</sup> International Conference of the Red Cross and Red Crescent in Geneva on 20– 21 June 2006, of the III Protocol Additional to the Geneva Conventions of 1949, also the Red Crystal. Israel has been using the red shield of David (Magen David Adom – MDA). This symbol *per se* is not officially recognized (although now it may enjoy better protection by joint use with the Red Crystal)

<sup>1205</sup> Pocar and Pedrazzi, 'The Involvement of the Civilian Population in Hostilities', International Institute of Humanitarian Law Rome, 25 February 2011, at 2.

<sup>1206</sup> Frank, see note 912, 201.

<sup>1207</sup> Henckaerts and Doswald Beck, Customary, 102.



but, as it has been used to protect the same range of persons and objects as are entitled to use the Red Cross or Red Crescent, the principle is that attacks should not be directed against persons or objects displaying the red shield of David. Another important aspect is that whereas the Geneva Conventions protect persons and objects lawfully using the emblems of the Red Cross, Red Crescent and Red Crystal, other signs have been added by Additional Protocol I (e.g. flashing blue lights for ambulances, special radio frequencies or radar identification signals, etc. referred to in Annex 1 to Add. Prot. I, Chapter III, articles 6–9)<sup>1208</sup>. The extended scope of protected signs under Add. Prot. I is reflected by the wording of Element I<sup>1209</sup>.

In relation to the issue of the MDA, it is interesting to note that in June 2003, an agreement was signed between the ICRC and the Magen David Adom (MDA). This marked an important step in deepening cooperation between the two organizations, which had been working together closely for some time before that. In 2004, this agreement culminated in the signing on 9 June of a 2-year Cooperation Framework agreement and a one-year extension to the project agreements on Movement Integration, Law and Fundamental Principles, Emergency Medical Services/Disaster Preparedness Management and Restoring Family Links as per ICRC standard criteria. The areas of cooperation include also the dissemination of international humanitarian law. Moreover, with the support of the ICRC and the International Federation, the MDA has increasingly fulfilled the role of a fully-fledged national society at the international level. Since December 2000 the MDA has hosted a representative of the International Federation at its headquarters in Tel Aviv, with the aim of facilitating the full integration of the MDA into the International Movement. The ICRC and the International Federation have helped the MDA develop contacts with various national societies and MDA specialists have taken part in several annual meetings of National Society legal advisers, organized by the ICRC in Geneva<sup>1210</sup>. All these joint activities suggest that the MDA, as far as the emblem is concerned, should enjoy protection analogous to that granted to the officially recognized Red Cross and Red Crescent emblems. This view is supported also by Element I, according to which it is prohibited to attack persons or objects carrying a distinctive emblem in accordance with international law. All the agreements referred to above indicate that the MDA is carried in accordance with international law, even though it is not officially recognized under the four GCs and their two Add. Prots.

Persons entitled to display the distinctive emblem are:

- medical personnel, staff engaged in administration of medical units and establishments, and chaplains, article 24 GC I, articles 36–37 GC II,
- staff of national red cross/Red Crescent societies and other authorized voluntary aid societies, and of neutral country red cross/Red Crescent societies and
- members of armed forces specially trained as orderlies, stretchers bearers while so employed.

Objects and facilities entitled to display the emblem are:

- medical units and establishments,
- medical transports,
- medical aircraft,
- hospital ships,
- coastal rescue craft,
- hospital and safety zones and localities.

Concerning the *mens rea*, element I is covered by the *mens rea* contained in article 30 of the Statute<sup>1211</sup>. In relation to non-international conflicts, a parallel provision is contained in article 8 para. 2 (e) (ii) ICC Statute.

<sup>1208</sup> Pforster, *Article 8(2)(b)(xxiv)*, in: see note 281, Lee *et al.* (eds.), *Elements Of Crimes* 202. See note 33, Dörmann, *Elements of war crimes* 350.

<sup>1209</sup> See note 923, Pforster, *Article 8(2)(b)(xxiv)*, 202.

<sup>1210</sup> ICRC, Press Release on Israel, 22 Feb. 2005, at: <http://www.icrc.org/web/eng/siteeng0.nsf/iwpList325/C0E4770148ABB7FC1256E2E003C6777>; [https://www.icrc.org/eng/resources/documents/misc/israel\\_mda\\_040204.htm](https://www.icrc.org/eng/resources/documents/misc/israel_mda_040204.htm)

<sup>1211</sup> See note 921, Pforster, *Article 8(2)(b)(xxiv)*, 203.

## 25. Paragraph 2(b)(xxv): Starvation of civilians as a method of warfare

**Literature:** Buckingham, D.E., ‘A Recipe for Change: Towards an Integrated Approach to Food under International Law’, (1994) 6 *PaceILRev* 296; Dinstein, Y., ‘Siege warfare and the starvation of civilians’, in: A.J.M. Delissen and G.J. Tanja (eds.), *Humanitarian Law of Armed Conflict – Challenges Ahead* (Martinus Nijhoff Publishers 1991); Van der Herik, L., ‘Economic, Social and Cultural Rights – International Criminal Law’s Blind Spot?’, in: E. Riedel *et al.* (eds.), *Economic, Social and Cultural Rights: Contemporary Issues and Challenges* (OUP 2014); Melzer, N., *ICRC Interpretative Guidance on the Notion of Direct Participation in Hostilities under International Humanitarian Law* (ICRC 2009); Mudge, G.A., ‘Starvation as a Means of Warfare’, (1970) 4 *The International Lawyer* 228; Pejic, J., ‘The right to food in situation of armed conflict: the legal framework’, (2001) 83 *IRRC* 1097; Riordan, K.J., ‘Shelling, Sniping and Starvation: The Law of Armed Conflict and the Lessons of the Siege of Sarajevo’, (2010) 41 *VUWLRev* 149; Rogers, A.P.V., *Law on the battlefield* (Juris Publishing, 3<sup>rd</sup> ed., 2012); Rosenblad, E., ‘Starvation as a Method of Warfare-Conditions for Regulation by Convention’, (1973) 7 *The International Lawyer* 252; Henckaerts, J.-M. and Doswald-Beck, L., *The ICRC Customary International Humanitarian Law*, I (CUP 2005); *San Remo Manual on International Law Applicable to Armed Conflicts at Sea* (1994) 179; Rogers, A.P.V., *Law on the Battlefield* (Juris Publishing, 3<sup>rd</sup> ed. 2012); Physicians for Human Rights, *War Crimes in the Balkans: Medicine Under Siege in the Former Yugoslavia 1991–1995* (1996) 91–99; Dörmann, K., *Elements of War Crimes under the Rome Statute of the International Criminal Court: Sources and Commentary* (2003) 363; Blix, H., ‘Means and Methods of Combat’, in: UNESCO (ed.), *International Dimensions of Humanitarian Law* (1988) 144.

758 a) **Humanitarian law base and drafting history.** A central principle of international humanitarian law is that civilians shall be spared and protected from the effects of the hostilities.<sup>1212</sup> The civilian population as such must not be targeted and incidental injuries and suffering of civilians resulting from an otherwise lawful attack on a military objective must be proportional to the military advantage anticipated. It appears only consequent that using starvation of civilians as a method of warfare and destroying objects indispensable to the survival of the civilian population is also prohibited under international humanitarian law. Today this prohibition reflects customary international law.<sup>1213</sup>

759 Formerly siege warfare by way of starvation was considered as an acceptable method of warfare and was lawful, including with regard to civilians inside the walls or borders of the besieged city or region<sup>1214</sup>. This rule was first restricted by article 23(g) Hague Regulations, which prohibits ‘to destroy or seize the enemy’s property, unless such destruction or seizure be imperatively demanded by the necessities of war’, a prohibition essentially restated in article 53 GC IV. With the adoption of the Geneva Conventions, the prohibition became more detailed, but did not substantially modify the military necessity derogation contained in article 53 GC IV<sup>1215</sup>. Article 53 GC IV constitutes the foundation of the prohibition of starvation of the civilian population as a method of warfare, together with Articles 23 and 55.<sup>1216</sup> Moreover, articles 59 to 62 GC IV establish a duty to allow the free passage of specific

<sup>1212</sup> See, e.g., article 51 Add. Prot. I; article 3 common to the Geneva Conventions.

<sup>1213</sup> See, e.g., Buckingham (1994) 6 *PaceILRev* 296; Henckaerts and Doswald-Beck, *The ICRC Customary International Humanitarian Law* (CUP 2005), Rules 53 and 54 and related practice; *San Remo Manual on International Law Applicable to Armed Conflict at Sea* 179, para. 102 (a); Eritrea Ethiopia Claims Commission, Partial Award, Western Front, Aerial Bombardment and Related Claims, para. 105.

<sup>1214</sup> See, e.g., Dinstein, in: Delissen and Tanja (eds.), *Humanitarian Law of Armed Conflict* (1991); Rogers, *Law on the battlefield* (3<sup>rd</sup> ed. 2012) 140; Bothe *et al.*, *New Rules* (2<sup>nd</sup> ed. 2013) 378–9. For instance, Article 17 of the 1863 Lieber Code declared that ‘[w]ar is not carried on by arms alone. It is lawful to starve the hostile belligerent, armed or unarmed, so that it leads to the speedier subjection of the enemy’.

<sup>1215</sup> On the regulation of the use of starvation before the adoption of Additional Protocol I and II, see Mudge (1970) 4 *The International Lawyer* 228; Rosenblad (1973) 7 *The International Lawyer* 252. See also Bothe *et al.*, *New Rules* (1982) 378–9. Despite not modifying the military necessity derogation, Geneva Convention IV did ameliorate the rules applicable to sieges in that it obliges the Parties to endeavour to conclude local agreements for evacuating the wounded and sick, infirm and aged persons, children and maternity cases (see Article 17 GC IV).

<sup>1216</sup> According to these provisions, passage is to be granted for shipments of medicines and medical supplies, objects necessary for religious services and basic food, clothing, and medical supplies for those in special need of protection.

consignments and protect and regulate relief actions<sup>1217</sup>. Articles 108 *et seq.* and 142 GC IV and article 72 *et seq.* and 125 GC III provide further rules on relief for detained persons.

Today, the most direct prohibition of starvation as a method of warfare is contained in article 54 Add. Prot. I. The provision also provides for a certain protection of objects indispensable to the survival of the civilian population. At the time of the adoption of the Protocol, this provision was considered as a new principle of international law applicable in armed conflict, whereas today, this rule would rather be seen as an application of the prohibition to attack civilians. Practice since has made this a customary rule. Also, the duty set forth in Article 55 GC IV has been extended to further supplies essential to the population's survival by article 69 Add. Prot. I. Moreover, articles 70 and 71 Add. Prot. I establish a duty to allow the free passage of specific consignments and protect and regulate relief actions. Paragraphs 103–104 of the San Remo Manual on International Law Applicable to Armed Conflict at Sea reflect the corresponding obligation to provide for free passage of foodstuffs and other essential supplies.

Moreover, the deliberate starvation of civilians also appears to constitute, today, a war crime under customary international law. The 1919 Responsibilities Commission included the '[d]eliberate starvation of civilians' in the list of offenses constituting 'violations of the laws and customs of war' that should be prosecuted<sup>1218</sup>, and many national laws criminalize the deliberate starvation of civilians<sup>1219</sup>. Furthermore, the UN Security Council has repeatedly condemned the 'deliberate impeding of the delivery of food and medical supplies'<sup>1220</sup> and affirmed the individual criminal responsibility of those that commit or order the commission of such acts.<sup>1221</sup> Recently, the UN Security Council adopted several Resolutions on the conduct of hostilities in the Syrian Arab Republic.<sup>1222</sup> Resolution 2139 specifically affirms that the use of starvation as a weapon of combat is prohibited by international humanitarian law and that forced starvation of civilians in Syria has to end.<sup>1223</sup>

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<sup>1217</sup> Article 23 (g) Hague Regulations may also be considered as indirectly relevant in that it prohibits '[t]o destroy or seize the enemy's property, unless such destruction or seizure be imperatively demanded by the necessities of war'. See also articles 52 *et seq.* Hague Regulations and article 53 GC IV.

<sup>1218</sup> The Nuremberg Tribunal however had held that it was, though regrettable, not unlawful for the besieging force to drive back, including by firing on, civilians that were trying to flee besieged Leningrad, von Leeb *at al.* (1953) *AnnDig* (1948) 389; *id.*, XI *Nuremberg Military Tribunals No.* 10, 462, 541.

<sup>1219</sup> See, e.g., *German Joing Services Regulations*, para. 1209 (ZDv) 15/2 (1992) (listing the '[s]tarvation of civilians by destroying, removing, or rendering useless objects indispensable to the survival of the civilian population (e.g., foodstuffs, means for the production of foodstuffs, drinking water installations and supplies, irrigation works)' as a 'grave breach of international humanitarian law'), reprinted in Fleck (ed.), *Handbook IHL* (1999); Australian Law Concerning Trials of War Criminals by Military Courts, reproduced in UNWCC, V *Law Reports* 95 (1948); article 374 para. 1 of the Penal Code of the Republic of Slovenia of 1994; article 282 (b) of the Penal Code of the Empire of Ethiopia of 1957; article 612 para. 3 ('[i]njures gravely, deprives or does not procure indispensable alimentation ... to protected persons') and article 613 (c) of the Spanish Military Penal Code (Ley orgánica 10/95) of 23 Nov. 1995.

<sup>1220</sup> (934) See, e.g., UN SC Res. 771 (1992), preamble; UN SC Res. 661 (1990) para 3; UN SC Res. 666 paras 3–8; UN SC Res. 670 (1990) para 3; See also Declaration on the Protection of Women and Children in Emergency and Armed Conflict, UN G.A. Res. 3318 (XXIX), para. 6 ('women and children belonging to the civilian population ... shall not be deprived of shelter, food, medical aid or other inalienable rights').

<sup>1221</sup> See, e.g., UN SC Res. 787 (1992), para. 7 ('Condemns all violations of international humanitarian law, including in particular ... the deliberate impeding of the delivery of food and medical supplies to the civilian population ... and reaffirms that those that commit or order the commission of such acts will be held individually responsible in respect of such acts'); UN SC Res. 794 (1992), para. 5 ('Strongly condemns all violations of international humanitarian law occurring in Somalia, including in particular the deliberate impeding of the delivery of food and medical supplies essential for the survival of the civilian population, and affirms that those who commit or order the commission of such acts will be held individually responsible in respect of such acts'). See Buckingham (1994) 6 *PaceILRev* 285.

<sup>1222</sup> See e.g. UN SC Res. 2139 (2013); UN SC Res. 2118 (2013); UN SC Res. 2043 (2012).

<sup>1223</sup> Para 5 of the Resolution requests that the parties to the conflict cease depriving civilians of food and medicine as a weapon of war. The Resolution also requests that the parties to the conflict '(f)acilitate the expansion of humanitarian relief operations, in accordance with international humanitarian law...' and '(c)alls upon all parties to immediately lift the sieges of populated areas ... demands that all parties allow the delivery of humanitarian assistance ... and enable the rapid, safe and unhindered evacuation of all civilians who wish to leave.' (2013) UN SC Res. 2139.

- 762 As to the drafting history of article 8 para. 2 (b) (xxv), the 1996 Preparatory Committee had first considered to include an offense of ‘starving of the civilian population and prevention of humanitarian assistance from reaching them’<sup>1224</sup>. This wording was changed in the Preparatory Committee session of February 1997 to a short ‘starvation of civilians’<sup>1225</sup>. At the December 1997 session, however, this short wording was considered too vague and open. Delegations consequently agreed during that session on the wording that eventually prevailed in article 8 para. 2 (b) (xxv), providing that starvation is a war crime under the jurisdiction of the Court only where used as a method of warfare, drawing this qualifier largely from article 54 Add. Prot. I. Accordingly, the war crime of starvation of civilians under the Rome Statute is effected by intentionally ‘depriving them of objects indispensable to their survival, including wilfully impeding relief supplies as provided for under the Geneva Conventions’<sup>1226</sup>. Article 8 para. 2 (b) (xxv) is important in that it is the first time that the war crime of starving civilians as such has been criminalized. Its inclusion under the Rome Statute as a war crime when committed in an international armed conflict was not controversial.
- 763 Acts qualifying as the war crime of starvation defined under article 8 para. 2 (b) (xxv) Rome Statute might also amount to other war crimes under the jurisdiction of the ICC. The destruction of foodstuffs and facilities indispensable for the survival of civilians, for instance, may amount to a prohibited attack against civilian objects (article 8 para. 2 (b) (ii)), or a prohibited destruction of property of the adversary (article 8 para. 2 (b) (xiii) and (a) (iv)). The destruction of or damage to such indispensable objects, including widespread, long-term and severe incidental damage to the natural environment, as a result of an (otherwise) lawful attack against a legitimate military objective, might in addition amount to the war crime of causing excessive incidental damage defined under article 8 para. 2 (b) (iv). The evaluation whether the damage was excessive should also take into account the sustenance value to civilians of the destructed objects. Lastly, article 8 para. 2 (a) (iii) criminalizing the willful causation of great suffering or serious injury to body or health of an adversary in the power of the party to the conflict to which the perpetrator belongs might be applicable<sup>1227</sup>, as well as the war crime of unlawful deportation or transfer, or unlawful confinement defined in Article 8 (2) (a) (vii).
- 764 Furthermore, starvation may also constitute a crime under international criminal law outside the context of an armed conflict. For instance, severe and large-scale deprivation of food could be qualified as genocide, when all the other crime elements are met, by ‘deliberately inflicting on the group conditions of life calculated to bring about its physical destruction in whole or in part’ (article 6 para. c). The Elements of Crime clarifying that the reference to ‘conditions of life’ may include the deliberate deprivation of resources for survival, such as food or medical services.<sup>1228</sup> Moreover, starvation may also qualify as a crime against humanity (article 7 paras. 1 (b), (d), or (k) and (2) (b)). More precisely, the crime against humanity of extermination can cover food deprivation, as explicitly mentioned in Article 7 (2) (b) and in the Elements of Crime.<sup>1229</sup>
- 765 Interestingly, President Al Bashir has been charged by the ICC Prosecutor with methods of destruction other than direct killing as an integral part of an overall genocidal policy and of the commission of crimes against humanity. These methods included: (i) subjecting the

<sup>1224</sup> See 1996 Preparatory Committee II 61.

<sup>1225</sup> Preparatory Committee Decisions Feb. 1997 11.

<sup>1226</sup> Preparatory Committee Decisions Dec. 1997 12. Thereafter, the provision was not anymore debated as to its substance. Until the very end of the Rome Conference, in accordance with the law of non-international armed conflict, many delegations also favored to include starvation as a war crime in non-international armed conflicts, but the ‘final package’ did not include it in the list of war crimes in internal armed conflict situations. See UN Doc. A/CONF.183/C1/SR.5, para. 75.

<sup>1227</sup> See Physicians for Human Rights, *War Crimes in the Balkans: Medicine under Siege in the Former Yugoslavia 1991–1995* (1996) 91–99.

<sup>1228</sup> See Lee (ed.), *Elements of Crime* (2001), Article 6(c), Element 4, fn. 4.

<sup>1229</sup> Lee (ed.), *Elements of Crime* (2001), Article 7(2)(b), Element 1, fn. 9.

group to destruction of their means of survival in their homeland; (ii) systematic displacement from their homes into inhospitable terrain where some died as a result of thirst, starvation and disease; (iii) usurpation of the land; and (iv) denial and hindrance of medical and other humanitarian assistance needed to sustain life in IDP camps.<sup>1230</sup> The Prosecution however did not charge Al Bashir with the war crime of starvation, which also would have included the above-mentioned slow-death measures.

**b) Material elements.** The war crime of starvation as a method of warfare under article 8 para. 2 (b) (xxv) needs to be interpreted in particular in light of article 54 para. 1 Add. Prot. I on which the war crime is based, and to some degree by other IHL rules relating to relief actions. While the first paragraph of article 54 Add. Prot. I spells out generally that '[s]tarvation of civilians as a method of warfare is prohibited', the precise meaning of this prohibition is developed in paragraphs 2 to 5 of article 54<sup>1231</sup> and by the articles dealing with relief actions<sup>1232</sup>. Similarly, the first part of article 8 para. 2 (b) (xxv) contains the general prohibition of '[i]ntentionally using starvation as a method of warfare', while the second part of the provision specifies what is meant ('depriving [civilians] of objects indispensable to their survival', and further specify ('including wilfully impeding relief supplies as provided for under the Geneva Conventions'). While article 54 Add. Prot. I is reproduced only incompletely in the second part of article 8 para. 2 (b) (xxv), there is no indication that delegations intended to deviate from article 54 Add. Prot. I and its modalities and exceptions. The Elements of Crimes do not add much to the definition.<sup>1233</sup>

Besides, article 8 para. 2 (b) (xxv) Rome Statute confirms the existence of a duty not to intentionally impede relief supplies provided for under customary international humanitarian law. Despite the fact that article 8 para. 2 (b) (xxv) Rome Statute does not create or imply an obligation, *e.g.* to provide for sufficient food, water or other essential supplies, that does not otherwise exist under international law<sup>1234</sup>, this does not impede the other applicable rules to come into play, such as the obligation to allow humanitarian relief actions subject to considerations of military necessity. International humanitarian law contains important rules designed to ensure the provision of humanitarian assistance to persons in need in armed conflict. Additional Protocol I specifies that offers of relief shall not be regarded as interference in the armed conflict or as unfriendly acts. The parties to a conflict and each State party to the Protocol must allow and facilitate rapid and unimpeded passage for all relief consignments, equipment and personnel, even if such assistance is destined for the civilian population of the adverse party. The parties to the conflict must protect relief consignments and facilitate their rapid distribution.<sup>1235</sup>

**aa) 'starvation'.** There is no definition given for 'starvation' in art 54(1) API, since its ordinary meaning is well understood. Accordingly, 'starvation' has different meanings. First, the concept in article 8 para. 2 (b) (xxv) certainly applies to suffering from lack of food or water. Starvation is 'the action of subjecting people to famine, *i.e.*, extreme and general

<sup>1230</sup> ICC, *The Prosecutor v. Al Bashir*, No. ICC-02/05-01/09, Second Decision on the Prosecution's Application for a Warrant of Arrest, 12 July 2010, para. 34.

<sup>1231</sup> See Sandoz *et al.* (eds, *Commentary* (1987)), para 2091: '[A] general principle only of course becomes fully operative when it is accompanied by rules of application: the remainder of [article 54 Add. Prot. I] is concerned with such application, as are several other articles in the Protocol, particularly those relating to relief actions'. At the 1974–1977 Diplomatic Conference, some concern was expressed about the scope of the general principle, but the Rapporteur expressed the view that the scope of the principle eventually adopted in article 54 para. 1 Add. Prot. I was developed by the remainder of the article and by the articles dealing with relief actions, CDDH/215/Rev. 1, para. 73; CDDH/III/264/Ref. 1, XV Official Records, 348–349.

<sup>1232</sup> CDDH/215/Rev.1, para 73; CDDH/III/264/Rev.1, XV Official Records, pp. 348–349.

<sup>1233</sup> See Lee (ed.), *Elements of Crimes* (2001), War Crimes, Article 8(2)(b)(xxv).

<sup>1234</sup> '[T]he actus reus for this offence could be the failure to fulfil a lawful duty ... This offence does not impose or imply a duty of care that does not otherwise exist in international law (*e.g.*, to provide food for a civilian population)', Proposal submitted by the United States of America UN Doc. PCNICC/1999/DP.4/Add.2 (4 Feb. 1999) 18.).

<sup>1235</sup> Article 70 Add. Prot. I.



scarcity of food'.<sup>1236</sup> Deprivation of safe water may also, in extreme situations, have direct repercussions for the life and health of individuals.<sup>1237</sup> For instance, in the Darfur report, the Commission of Inquiry recognized how water was used as a method of warfare: water pumps and wells were destroyed and poisoned by dropping the carcasses of cattle into them.<sup>1238</sup> Water needs a particular attention also because it is a survival mean for the civilian population when it comes to sanitations or as dangerous forces in the case of dams. The 26<sup>th</sup> ICRC International Conference stressed in this respect that 'water is a vital resource for victims of armed conflict and the civilian population and is indispensable to their survival' and called upon parties to conflict to take 'all feasible precautions to avoid, in their military operations, all acts liable to destroy or damage water sources and systems of water supply, purification and distribution solely or primarily used by civilians'.<sup>1239</sup>

769 However, the meaning of 'starvation' is not necessarily restricted to a deprivation of food and water, but may also cover the deprivation of other essential things such as clothing, medical supplies or objects needed to harvest and process food. Article 8 para. 2 (b) (xxv) specifies that its prohibition of starvation extends to the deprivation of objects indispensable to the survival of the civilians. This is confirmed by the Elements of Crimes which require the completion of only one specific material element (other than a nexus to an armed conflict), namely that the perpetrator 'deprived civilians of objects indispensable to their survival'.<sup>1240</sup> Supporting the view that other objects than food and water are covered by the concept of starvation is the fact that article 8(2)(b)(xxv) specifies that the prohibition also extends to 'wilfully impeding relief supplies as provided for under the Geneva Conventions'. Such supplies are not limited to foodstuffs, but may include clothing, medical supplies and other objects. The above suggests that the word 'starvation' must be understood in a broader sense than only 'deprivation of food or water'.

770 Besides, dictionaries suggest that the notion of 'starvation' is not only understood as referring to having too little food to sustain life or health, but also as standing for deprivation or insufficient supply of some other essential things. In sum, the transitive verb of starving has not only the more restrictive meaning of killing by hunger or depriving of or keeping insufficiently supplied with food, but more generally can be understood as meaning to deprive of or to insufficiently supply with some essential commodity or something necessary to live, including causing to die of cold<sup>1241</sup>. In its intransitive form, to starve can correspondingly be understood to signify to suffer from deprivation or 'die, especially slowly from hunger, cold, grief, disease etc'.<sup>1242</sup> In view of the above, it is submitted that 'starvation' in article 8 para. 2 (b) (xxv) Rome Statute also extends to the deprivation of objects other than food and water insofar they are vital to the civilians' survival<sup>1243</sup>.

771 **bb) 'Objects indispensable to the survival of civilians'.** Objects indispensable to the survival of civilians' are not defined in international humanitarian law. But this concept certainly includes the basic objects for subsistence of food and (clean) water. Furthermore, it is submitted that the notion also extends to facilities indispensable to produce, harvest,

<sup>1236</sup> Sandoz et al (eds.), *Commentary* (1987), para 1456.

<sup>1237</sup> Van der Herik, in: Riedel et al. (eds.), *Economic, Social and Cultural Rights* (OUP 2014) 12.

<sup>1238</sup> *Report of the International Commission of Inquiry on Darfur to the United Nations Secretary General*, 25 January 2005, paras 235 and 305.

<sup>1239</sup> Resolution 2F (a-b); IRR (1996) 68.

<sup>1240</sup> Lee (ed.), *Elements of Crimes* (2001), Article 8(2)(b)(xxv), Element 1, at 31.

<sup>1241</sup> See, e.g., *New Shorter Oxford English Dictionary* (2<sup>nd</sup> ed. 1993); *The Oxford English Dictionary* (2<sup>nd</sup> ed. 1989); *Webster's Ninth Collegiate Dictionary*; *Webster's Ninth Collegiate Dictionary* (1989).

<sup>1242</sup> *New Shorter Oxford English Dictionary* (2<sup>nd</sup> ed. 1993).

<sup>1243</sup> The interpretation of 'starvation' in the ICRC Commentary and the ICRC study for the definition of the elements for article 8 para. 2 (b) (xxv) therefore appears too restrictive, as both only refer to causing the civilians to suffer hunger, even if 'shelter or clothing' were mentioned as possible objects indispensable to survival, see Sandoz et al (eds.), *Commentary* (1987), paras 653 and 655 (Nos. 2089 and 2103); ICRC, *Study on Third Set of War Crimes within Art. 8(2)(b) Rome Statute* (4 Aug. 1999), at 43. Cf. Dörmann, *Elements of War Crimes* (2003) 363 et seq.



process or stock foodstuffs and assure the availability of water, such as the objects listed under article 54 para. 2 Add. Prot. I, namely ‘agricultural areas for the production of foodstuffs, crops, livestock, drinking water installations and supplies and irrigation works’.

However, given what has been stated above, the notion of ‘objects indispensable to the survival of civilians’ is not necessarily limited to objects related to food and water. It is correspondingly submitted that article 8 para. 2 (b) (xxv), in line with the corresponding provision in Additional Protocol I, also prohibits the deprivation of other objects vital to the survival of a population and in particular medical supplies as well as basic shelter and clothing critical for the civilians’ survival under given climatic conditions<sup>1244</sup>. Lastly, it is submitted that under certain circumstances, electricity sources may also be included in the notion of ‘objects indispensable to the survival of civilians’. Indeed, the Office of the High Commissioner for Human Rights concluded that stopping electricity sources may amount to the deprivation of objects indispensable for the survival of civilians, especially of hospital patients who die if electricity supplies are stopped for too long.<sup>1245</sup>

cc) ‘Civilians’. Starvation methods are unlawful when directed against the civilian population. However, there is no rule prohibiting starvation of enemy combatants, unless they become *hors de combat* through wounds, sickness, shipwreck or capture. Article 8 para. 2 (b) (xxv) of the Rome Statute appears to be primarily intended to protect civilians from an adverse party to the conflict. However, it not only protects civilians belonging to an adverse party to the conflict finding themselves on that adverse party’s territory or in occupied territory, but also any other civilian population such as civilians belonging to the own party to the conflict or finding themselves on the territory of the own party to the conflict<sup>1246</sup>.

There is no definition of civilian under international humanitarian law. The identification of civilian persons needs to be negatively effectuated. They are those who are not directly participating in hostilities. A civilian can also be defined as an individual who finds himself on the territory of a party to the conflict of which he does not have the nationality.<sup>1247</sup> This approach can be defined as the nationality criteria, which has not always been very pertinent. The protection civilians enjoy is lifted as soon as they are directly participating in hostilities and for the whole duration of their participation<sup>1248</sup>. The threshold of participation and the duration is difficult to determine precisely<sup>1249</sup>. Importantly, international humanitarian law deals with these difficulties by clarifying that in case of doubt as to the status of a person or an object, they are to be presumed civilians<sup>1250</sup>. In addition, the presence of isolated

<sup>1244</sup> The list provided in article 54 para. 2 Add. Prot. I is not exhaustive as the words ‘such as’ make clear. See Solf, in: Bothe *et al.* (eds.), *New Rules* (1982) 339–340 (‘... the Committee action in adopting an illustrative listing indicates that other life sustaining objects such as clothing and shelter needed to sustain life under prevailing climatic conditions may also be covered by the prohibition’); Sandoz *et al.*, *Commentary on the Additional Protocols of 8 June 1977 to the Geneva Conventions of 12 August 1949* paras. 2102–2103; The Netherlands East Indies Statute Book Decree No. 44 of 1946 considered as a war crime the ‘[i]ntentional withholding of medical supplies from civilians’ (1949)XI *Law Reports* 94.

<sup>1245</sup> UN OHCHR, Report of the Mapping Exercise Documenting the Most Serious Violations of Human Rights and IHL Committed within the Territory of the DRC between March 1993 and June 2003 (Geneva: OHCHR, 2010), para 330.

<sup>1246</sup> Article 49 para. 2 Add. Prot. I provides that ‘[t]he provisions of [Protocol I] with respect to attacks apply to all attacks in whatever territory conducted, including the national territory belonging to a Party to the conflict but under the control of an adverse Party’. Article 54 Add. Prot. I also concerns ‘attacks’. Furthermore, article 54 para. 5 Add. Prot. I provides that a derogation from the prohibition of starvation may be made with respect to the civilian population in the own territory under the own party’s control where required by imperative military necessity. *A contrario*, civilians finding themselves in the territory of the starving party are also covered. The term ‘civilian population’ in Article 53(3)(b) refers rather to the population of an immediate area. (See CDDH/215/Rev.1, para 76). Article 54 Add. Prot. I in no way suggests that the ‘civilians’ with respect to whom its legal injunctions apply must be understood in a manner different from the general definition in article 50 Add. Prot. I.

<sup>1247</sup> See Article 4 GC IV and Article 50 Add. Prot. I.

<sup>1248</sup> See article 51(3) Add. Prot. I and Sandoz *et al.*, *Commentary* (1987), paras. 1942–1945.

<sup>1249</sup> See generally the ICRC *Interpretative Guidance on the Notion of Direct Participation in Hostilities under International Humanitarian Law* (2009).

<sup>1250</sup> See Article 50(1) Add. Prot. I for civilian persons and Article 52(3) Add. Prot. I for civilian objects.

combatants within the civilian population does not relieve this population of its civilian quality.<sup>1251</sup>

- 775 **dd) ‘Depriving of.’** The conduct prohibited under article 8 para. 2 (b) (xxv) is to ‘deprive’ civilians of objects indispensable to their survival. This first can be done, as spelled out by article 54 para. 2 Add. Prot. I, by *attacking, destroying, rendering useless, or removing* indispensable objects. Such active deprivation includes, for instance, destroying crops by defoliants or poisoning wells or springs, a particularly egregious form of starving civilians<sup>1252</sup>.
- 776 Secondly, a deprivation of indispensable objects could be fulfilled by *impeding relief supplies*, including transports and supplies of food, water, drinking water installations, blankets, clothing and other objects to protect against cold and weather, as well as medical supplies. Article 8 para. 2 (b) (xxv) explicitly covers the impeding of relief supplies ‘as provided for under the Geneva Conventions’. It is not entirely clear whether this phrase also refers to supplies as provided for under Add. Prot. I, which supplements the Geneva Conventions.<sup>1253</sup> However, in view of the fact that most Add. Prot. I provisions are now considered customary international law, the correct view seems to refer also to supplies provided for in the Protocol. Be it as it may, impeding relief supplies as provided under Add. Prot. I can also be subsumed under article 8 para. 2 (b) (xxv) by way of the general formula of ‘depriving civilians of objects indispensable to their survival’.
- 777 Relevant provisions of the Geneva Conventions with respect to relief supplies obliges States Parties to allow the free passage of certain types of goods intended for specific categories of the civilian population belonging to another State Party. This includes article 23 GC IV which requires every state to ‘allow the free passage of all consignments of medical and hospital stores ... intended only’ *for civilians of another state* and to ‘likewise permit the free passage of all consignments of essential foodstuff, clothing and tonics intended for children under fifteen, expectant mothers and maternity cases’. State practice also indicates that each party to the conflict must refrain from deliberately impeding the delivery of relief supplies to civilians in need in areas under its control.
- 778 Additional Protocol I compensated the obviously limited scope of this provision. Article 70 Add. Prot. I more generally requires parties to a conflict to ‘allow and facilitate rapid and unimpeded passage of all relief consignments, equipment and personnel provided in accordance with [Section II of Part IV of Add. Prot. I]’ with regard to the *civilian population of its own as well as the civilian population of the adverse party to the conflict*, except with regard to the civilian population in occupied territories the supply of which the Occupying Power must ensure on the basis of article 69 Add. Prot. I.
- 779 With regard to *relief supplies for civilians in occupied territories*, the Fourth Geneva Convention and Additional Protocol I have provisions dealing with relief assistance to civilians. An Occupying Power has an obligation to ensure the provision of food and medical supplies to the civilian population of an occupied territory and should bring in the necessary foodstuffs, medical stores and other articles if the resources of the occupied territory are inadequate. (articles 55 GC IV and 69 para. 1 Add. Prot. I). If the civilian population in the occupied territory is inadequately supplied, the Occupying Power must agree to and facilitate the relief by all means at its disposal. Articles 59 to 62 GC IV require the Occupying Power to permit the free passage of consignments of foodstuffs, medical supplies and clothing, and, if read in conjunction with article 69 Add. Prot. I, also bedding, means of shelter, other supplies essential to the survival of the civilian population of the occupied territory and objects necessary for religious worship. Besides, personnel participating in relief actions must be respected and protected under article 71 Add. Prot. I.

<sup>1251</sup> See Article 50(3) Add. Prot. I.

<sup>1252</sup> See Sandoz *et al.*, *Commentary* (1987), para. 2101. The poisoning could also amount to the war crime under article 8 para. 2 (b) (xvii).

<sup>1253</sup> Additional Protocol I, article 70(2), broadens the Geneva Conventions obligations to cover ‘rapid and unimpeded passage of all relief consignments, equipment and personnel’.

Articles 72–75 and 125 GC III and Annex III to GC III provide obligations of parties to the conflict with regard to *prisoners of war*, including the obligation of parties to the conflict to allow that prisoners of war receive individual parcels or collective shipments containing foodstuffs, clothing, medical supplies and other objects. In addition, articles 108, 109 and 142 GC IV contain special rules on relief for *detained persons* which, *inter alia*, provide that relief societies ‘shall receive from [the detaining] Powers ... all facilities ... for distributing relief supplies’.

In all of these cases, the provision of relief supplies is subject to certain conditions. Relief actions must be humanitarian and impartial in character and conducted without any adverse distinction. Article 70 para. 1 Add. Prot. I requires for instance the agreement of the party to the conflict controlling the territory through which the supplies must pass. This party may furthermore prescribe technical arrangements, including search, and make the permission conditional on a local supervision by a Protecting Power (article 70 para. 3 Add. Prot. I). However, article 70 para. 2 Add. Prot. I makes it clear that the parties to the conflict ‘shall allow and facilitate rapid and unimpeded passage of all relief consignments’, thus establishing an obligation in principle. Indeed the fact that consent is required does not mean that the decision on a relief operation is left to the discretion of the parties. The correct view is therefore that a State must accept relief actions when the civilian population is not adequately supplied and its survival is threatened and when relief which is humanitarian and impartial in nature is available and able to remedy the situation. Refusing a relief action or relief consignments is not a matter of discretion and agreement can be withheld only for exceptional reasons, not for arbitrary or capricious ones<sup>1254</sup>. A refusal would be equivalent to a violation of the rule prohibiting the use of starvation as a method of combat.

*Economic sanctions* or *blockades* that deprive civilians of objects indispensable to the survival of civilians could also be prohibited under article 8 para. 2 (b) (xxv) Rome Statute, insofar these measures take place in the context of and are associated with an armed conflict and insofar the requisite mental elements are present, except if one of the exceptions to the prohibition applies. Where a blockade or sanctions regime in the context of an armed conflict has the effect of starving the civilian population, the obligation to allow relief supplies to reach the population is triggered. Indeed, it should be emphasized that the object of a blockade is to deprive the adversary of supplies needed to conduct hostilities, and not to starve civilians.<sup>1255</sup> Article 8 para. 2 (b) (xxv) Rome Statute confirms this obligation under Add. Prot. I by specifying that ‘impeding relief supplies’ may amount to the war crime of starvation. If the civilian population of the blockaded territory is however adequately provided with essential commodities, the blockaded objects are not ‘indispensable to their survival’ and thus could not fall under the prohibition of starvation<sup>1256</sup>.

The prohibition to use starvation of civilians by depriving them of objects indispensable to their survival applies also to *naval blockades* insofar they may affect civilians on land<sup>1257</sup>.

<sup>1254</sup> Sandoz *et al* (eds.), *Commentary* (1987), para. 2808.

<sup>1255</sup> *Id.* at para 2095.

<sup>1256</sup> Relief supplies assisting the civilian population with foodstuffs, water and medical supplies (on ‘humanitarian grounds’) should also for this reason generally be excluded from a blockade or sanctions regime if this regime might otherwise lead to starvation of civilians, irrespective of the basis on which these sanctions are decided and implemented. In fact, when deciding on economic sanctions with regard to situations of armed conflict, the Security Council in practice generally provided for ‘humanitarian exceptions’. See, e.g., UN Doc. S/Res/661 (6 Aug. 1990), para. 3 (c) (excluding ‘supplies strictly intended for medical purposes, and, in humanitarian circumstances, foodstuffs’); UN Doc. S/Res/666 (13 Sep. 1990); UN Doc. S/Res/670 (...), para. 3; UN Doc. S/Res/687 (3 Apr. 1991), paras. 20 *et seq.*; UN Doc. S/Res/757 (30 March 1992), paras. 4(c), 5 and 7; UN Doc. S/Res/820 (17 April 1993), para. 22 (a) and (b); UN Doc. S/Res/942 (23 Sep. 1994), paras. 7 (b) and (13 (b); UN Doc. S/Res/943 (23 Sep. 1994), paras. 2 and 3 (excepting ‘foodstuffs, medical supplies and clothing for essential humanitarian needs’); UN Doc. S/Res/967 (14 Dec. 1994); UN Doc. S/Res/1302 (8 June 2000). See David, *Principes de droit des conflits armés* 259–261.

<sup>1257</sup> This follows clearly from the wording of article 49 para. 3 Add. Prot. I. The interpretation of the Rapporteur at the 1974–1977 Conference that the rule of article 54 para. 1 Add. Prot. I does not modify the law applicable to naval blockade, cited in Sandoz *et al.*, *Commentary* (1987), para. 2092, appears to be an interpreta-

Paragraphs 102–104 of the San Remo Manual state that a party declaring or establishing a naval blockade must allow the free passage of foodstuffs and medical supplies for the civilian population (as well as medical supplies for members of the armed forces) even in naval warfare. For example, the International Fact-finding Mission to investigate violations of international law resulting from the Israeli attacks on the flotilla of ships carrying humanitarian assistance in 2010 considered that the policy of blockade or closure regime, including the naval blockade imposed by Israel on Gaza was inflicting disproportionate civilian damage,<sup>1258</sup> and was therefore illegal. The Mission further found that the Israeli blockade constituted collective punishment of the people living in the Gaza Strip and thus was illegal and contrary to article 33 of the Fourth Geneva Convention.<sup>1259</sup>

784 Thirdly, it is submitted that a qualified *failure to fulfill a duty under international humanitarian law* may also amount to depriving civilians of objects indispensable to their survival. For instance, an Occupying Power may fail to ensure food and medical supplies to the civilian population within the occupied territories<sup>1260</sup>. In their proposal for the elements of crimes, the United States mentioned another example by commenting that '[a]s with murder, the *actus reus* for this offence could be the failure to fulfil a lawful duty: for example, feeding prisoners under the accused's care'<sup>1261</sup>.

785 ee) **Exceptions.** Article 54 Add. Prot. I specifies that under specific exceptional circumstances objects indispensable to the survival of persons may be attacked, destroyed, removed or rendered useless. Firstly, *objects being used as sustenance exclusively for armed forces* may lawfully be attacked insofar this provides a definite military advantage (article 54 para. 3 (a) Add. Prot. I)<sup>1262</sup>. This obviously raises difficult issues related to evidence. Normally, this exception is generally applicable to supplies already in the hands of the adverse Party's armed forces because it is only at that point that one could know that the objects will be used exclusively by the enemy armed forces. Furthermore, this test needs substantial refinement because objects in the military supply system intended for the sustenance of prisoners of war, the civilian population of occupied territory or persons classified as civilians serving with, or accompanying the armed forces, would fall within the terms of this exception.<sup>1263</sup>

786 Secondly, actions against means of subsistence that *serve civilians but additionally are used 'in direct support of military action'* are not prohibited, unless such actions 'may be expected to leave the civilian population with such inadequate food or water as to cause its starvation or force its movement' (article 54 para. 3 (b) Add. Prot. I)<sup>1264</sup>. However, as the ICRC Commentary rightly underlines, it is hard to see how foodstuffs, crops, livestock and supplies of drinking water could be used 'in direct support of military action'. This phrase thus makes it clear that it is not lawful to attack means of subsistence that serve to feed both the civilian

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tion against the explicit wording of article 49 para. 3 Add. Prot. I and therefore does not appear convincing. David, *Principes de droit des conflits armés* (3<sup>rd</sup> ed. 2002) 261–263.

<sup>1258</sup> United Nations Human Rights Council, *Report of the international fact-finding mission to investigate violations of international law, including international humanitarian and human rights law, resulting from the Israeli attacks on the flotilla of ships carrying humanitarian assistance*, para. 59, UN Doc. A/HRC/15/21 (Sept. 27, 2010).

<sup>1259</sup> *Id.*, para 60.

<sup>1260</sup> See article 55 GC IV and article 69 Add. Prot. I.

<sup>1261</sup> *Proposal by the United States of America*, UN Doc. PCNICC/1999/DP.4/Add.2 (4 Feb. 1999) 18.).

<sup>1262</sup> However, Pilloud and de Preux assert that installations for drinking water and irrigation works are not covered by the exception provided under article 54 para. 3 (a) Add. Prot. I, since they are hardly used solely for the benefit of armed forces, Sandoz *et al.*, *Commentary* (1987), paras. 2109 and 2112.

<sup>1263</sup> See Bothe *et al.*, *New Rules* (1982) 382–383, referring to Third Conventions, Art. 4(a)(4) and (5), Protocol I, Art. 50.

<sup>1264</sup> Article 23 (g) Hague Regulations prohibits such actions unless they are 'imperatively demanded by the necessities of war'. The Spanish Penal Code provides for criminal jurisdiction over whoever '[a]ttacks, destructs, deprives of, or makes unusable goods indispensable for the survival of the civilian population, except if the adversary Party uses these goods in *direct support* of a military action or *exclusively* as means of subsistence of its armed forces', article 613 (c) of the Spanish Military Penal Code (Ley orgánica 10/95 of 23 Nov. 1995) (emphasis added).

population and armed forces, unless such means are used in direct support of military action such where a food-storage place is used as cover or as an arms depot<sup>1265</sup>. An attack would in any event be unlawful if it could be anticipated to have serious effects on supplies for the civilian population and the latter would thereby be forced to starve or move away.

Moreover, the principle of *proportionality* and the obligation to take precautions remain applicable. A commander who plans or conducts an attack is under an affirmative duty to take all feasible precautions in the choice of means and methods of attack in order to prevent erroneous targeting and to avoid or in any event minimize incidental injury to civilians and civilian objects. In this respect, where it is not clear whether means of subsistence only serve armed forces, a reasonable inquiry must take place<sup>1266</sup>. 787

Thirdly, the deprivation of objects indispensable to the survival of civilians as *incidental* result of an otherwise lawful attack on a different military objective is not as such prohibited under article 54 Add. Prot. I. It however would be unlawful if it may be expected to cause excessive incidental damage. The result of starvation of civilians needs to be taken into account in weighing the proportionality of such incidental damage. 788

Fourthly, *with regard to territory under a party's own control*, article 54 para. 5 Add. Prot. I provides that derogations from the prohibition to attack, destroy, remove or render useless objects indispensable to the survival of civilians may be made '*in the defence of (this party's) national territory against invasion ... where required by imperative military necessity*' (emphasis added).<sup>1267</sup> 789

Objects indispensable to the survival of civilians must *not* be made the object of *reprisals* (article 54 para. 4 Add. Prot. I).

**ff) No result of starvation required.** Article 8 para. 2 (b) (xxv) Rome Statute criminalizes 'using starvation as a means of warfare', specifying that also impeding relief supplies may qualify as the war crime of starvation. The only material element required by the elements of crimes is that there is a deprivation of certain objects. This suggests that it is not required that people actually die of starvation, and it would not even seem necessary that people actually starve as a result of the deprivation of indispensable objects. It appears sufficient that civilians are deprived of objects indispensable to their survival, that is, a deprivation that would cause them in the future to starve, without requiring that the deprivation takes its effect over time<sup>1268</sup>. The perpetrator nonetheless must have *intended* to starve the civilians as a method of warfare. 790

<sup>1265</sup> Sandoz *et al.*, *Commentary* (1987), para. 2110. The absolute prohibition ruling out reflections of proportionality unless the means of subsistence are used in 'direct support of military action' has been criticized as overly inflexible by Dinstein who argues that '[t]he broad injunction against sieges affecting civilians is untenable in practice' and that 'an absolute prohibition of starvation of civilians in siege warfare is unjustifiable as well as utopian'. He would prefer that siege warfare with attendant starvation 'is legitimate, provided that an offer is made by the besieging force to allow civilians to depart from the encircled town'; Dinstein, in: Delissen and Tanja (eds.), *Humanitarian Law of Armed Conflict* (1991) 151–152. However, the increasing number of armed conflicts where 'ethnic cleansing' belongs to the main goals of a party to the conflict, including by means of forcing the population of a certain region, town or village to move away, shows the possible dangers to adopt Dinstein's suggestion. Also, civilians in a besieged town may often fear to render themselves under the control of the attacking party, and in large towns and with regard to far-reaching modern warfare, it may also be practically difficult to apply such a solution, see David, *Principes de droit des conflits armés* (3<sup>rd</sup> ed. 2002) 260–261.

<sup>1266</sup> See U.S. Department of Defense, *Letter from the General Council to Chairman, Senate Committee on Foreign Relations* (5 April 1971), reprinted in: (1971) 10 ILM 1302.

<sup>1267</sup> This appears to allow to a certain degree a policy of 'scorched earth' on the own territory in order to slow down an advancing invader. Pilloud and de Preux contend that this exception only applies to own territory, and not to adversary territory under one's own control, Sandoz *et al.*, *Commentary* (1987), para. 2119. This means that this derogation can be made only by a Belligerent Party acting in defence of its national territory against invasion (within that part of the national territory which is under its own control), and only when it is motivated by 'imperative military necessity'. See also Dinstein, in: Delissen and Tanja (eds.), *Humanitarian Law of Armed Conflict* (1991) 149–150; Blix, in: UNESCO (ed.), *International Dimensions of Humanitarian Law* 144.

<sup>1268</sup> The element proposed by the United States that required '4. That, as a result of the accused's acts, one or more persons died from starvation', *Proposal by the United States of America*, UN Doc. PCNICC/1999/DP.4/Add.2 (4 Feb. 1999) 18), was not included in the Elements of Crimes adopted by the Preparatory Commission.



- 791 c) **Mens rea. aa) Intent to starve civilians.** The crime must be committed with the intent to use the starvation as a *method of warfare*, that is, to deliberately provoke, increase or prolong the starvation by deprivation of objects indispensable for the survival with an aim to gain a military advantage, including for instance forcing civilians to transfer to another area or State<sup>1269</sup>. In addition, it is required that the perpetrator wanted to take civilians as a target. In accordance with article 30 Rome Statute, all material elements of the war crime of starvation of civilians must be committed with intent and knowledge. The perpetrator must thus have intended, first, to deprive civilians of objects indispensable to their survival.
- 792 Article 8 para. 2 (b) (xxv) explicitly provides that ‘*willfully* impeding relief supplies ...’ is also covered by the provision. The standard of ‘*willfully*’ includes recklessness and insofar would differ from the general standard under article 30 Rome Statute. However, delegations at the Diplomatic Conference may not have had the intent to deviate from the general rules regarding the mental element. Indeed, the General introduction of the Elements makes it clear that article 30 Rome Statute applies if no specific reference is made in the Elements to a particular mental element, which is not the case. Indeed, according to the Elements of the Crime, the requirement is that the perpetrator intended to starve civilians as a method of warfare.<sup>1270</sup> The intent requirement is explicitly stated in the elements of the crime and also appears to be an application of the default rule codified by Article 30. Accordingly, in order to prove the *mens rea* for the crime of intentionally using starvation of civilians as a method of warfare, because the word ‘intentionally’ is contained in the Article 8(2)(b)(xxv), the Prosecution will only have to prove the intent, as referred to in Article 30(2).<sup>1271</sup> If the word ‘intentionally’ was not contained in the provision, the Prosecution, in order to prove the *mens rea*, would need to prove intent *and* knowledge, i.e. Article 30(2) and (3).
- 793 bb) **Specific intent to starve as a method of warfare.** Article 8 para. 2 (b) (xxv) Rome Statute requires that the perpetrator be ‘intentionally using starvation of civilians as a method of warfare’. Element 2 requires that ‘[t]he perpetrator intended to starve civilians as a method of warfare’. This suggests that the perpetrator must have had the specific intent to starve civilians ‘as a method of warfare’. This excludes starvation as a result of unintended mismanagement.
- 794 The requirement that the starvation be used ‘as a method of warfare’ however calls for interpretation. Firstly, the expression ‘methods of combat’ generally refers to the manner in which armed forces engage in combat or to the way in which weapons are used.<sup>1272</sup> It must be conducted to achieve a military advantage or other objective vis-à-vis an adversary party to the international armed conflict. In addition, starvation can also result from an act of omission. To deliberately decide not to take measures to supply the population with objects indispensable for its survival can become a method of combat by default, and would also be prohibited.<sup>1273</sup> Secondly, this notion certainly covers starvation *to gain a military advantage*, such as using starvation to achieve a speedier subjection of a besieged town or village, as was medieval warfare practice, or to pressure on the adversary to accept some other aim of the attacker. Another example may be to deprive civilians of indispensable goods in order to force them to move out of a certain area in order to facilitate the control over that area.

<sup>1269</sup> For instance, burning down crops puts the civilian population before the uneasy choice to either starve or move away, which may present a military gain in that the political and physical control over this territory or area is enhanced or will be easier to establish.

<sup>1270</sup> Element 2, article 8(2)(b)(xxv), 31.

<sup>1271</sup> The relevant parts of Article 30 read as follows: ‘(1) *Unless otherwise provided*, a person shall be criminally responsible and liable for punishment for a crime within the jurisdiction of the Court only if the material elements are committed with intent *and* knowledge. (2) For the purpose of this article, a person has intent where: (a) In relation to conduct, that person means to engage in the conduct; (b) In relation to a consequence, that person means to cause that consequence or is aware that it will occur in the ordinary course of events.’ (emphasis added).

<sup>1272</sup> Sandoz *et al.*, *Commentary* (1987), para. 1957.

<sup>1273</sup> *Id.*, para 4800.



In today's armed conflicts, humanitarian assistance is increasingly denied as part of a deliberate policy to target civilians. This is why the scope of application of article 8 para. 2 (b) (xxv) may cover a wider range of motives. In particular, paragraph 2 of article 54 Add. Prot. I states it is prohibited to attack objects indispensable to the survival of the civilian population 'for the specific purpose of denying them their sustenance value to the civilian population or to the adverse Party, whatever the motive, whether in order to starve out civilians, to cause them to move away, or for any other motive'. The ICRC Commentary on article 54 para. 1 Add. Prot. I also states that '[t]o use [starvation] as a method of warfare would be to *provoke it deliberately* ... It is clear that activities conducted for this purpose would be incompatible with the general principle of protecting the population, which the Diplomatic Conference was concerned to confirm and reinforce. Starvation is referred to here as a method of warfare, *i. e.*, a weapon to *annihilate or weaken the population*'<sup>1274</sup>. This reading gains support by the US proposal of elements on this war crime<sup>1275</sup>.

It could thus be argued that the starvation and denial of the sustenance value of indispensable objects to the civilian population was a sufficient specific purpose of the perpetrator. In certain situations, it might be difficult to prove the specific intent to use starvation as a method of warfare, but if the outcome of impeding humanitarian assistance is obvious according to the ordinary course of events, the intention can be inferred. Accordingly, depriving civilians of indispensable objects with the intention, for instance, to 'ethnically cleanse' a region or town from a certain group of civilians, or to force targeted civilians to move away or take some other action intended or ordered by the perpetrator, would seem to meet the *mens rea* required under article 8 para. 2 (b) (xxv)<sup>1276</sup>.

## 26. Paragraph 2(b)(xxvi): Conscription or enlistment of children and their participation in hostilities\*

**Literature:** Ambos, K., 'The First Judgment of the International Criminal Court (Prosecutor v. Lubanga): A Comprehensive Analysis of the Legal Issues', (2012) 12 *ICLRev* 115; Brett, R. and McCallin, M., *Children: The Invisible Soldiers* (1996); van Bueren, G., 'The international legal protection of children in armed conflicts', (1994) 43 *I&CompLQ* 809; Cohn, I. and Goodwin-Gill, G.S., *Child Soldiers: The Role Of Children In Armed Conflicts* (Clarendon Press 1994); Delissen, J.J.M., 'Legal Protection of Child Combatants after the Protocol: Reaffirmation, Development or a Step Backwards?', in: A.J.M. Delissen and G.J. Tanja (eds.), *Humanitarian Law of Armed Conflict: Challenges Ahead* (Martinus Nijhoff Publishers 1991) 156–157; Dutli, M.T., 'Captured child combatants', (1990) 278 *IRevRC* 421; Garraway, C., 'Elements of the Specific Forms of Genocide', in: R.S. Lee et al. (eds.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (Transnational Publishers 2001); Graf, R., 'The International Criminal Court and Child Soldiers: An Appraisal of the Lubanga Judgment', (2012) 10 *JICJ* 945; Hamilton, C. and Tabatha, A.E.-H., 'Armed Conflict: the protection of children under international law', (1997) *IJChildrenRts* 1; Happold, M., 'Child Soldiers in International Law: The Legal Regulation of Children's Participation in Hostilities', (2000) 47 *NethILRev* 27; Happold, M., 'International Humanitarian Law, War Criminality and Child Recruitment: The Special Court for Sierra Leone's Decision in Prosecutor v. Samuel Hinga Norman', (2002) 3 *YbILHumL* 226; von Hebel, H. and Robinson, D., 'Crimes within the Jurisdiction of the Court', in: R.S. Lee (ed.), *The International Criminal Court: The Making of the Rome Statute – Issues, Negotiations, Results* (Kluwer Law International 1999) 118, 206; Heintze, H.-J., 'Children need more protection under international humanitarian law: recent developments

<sup>1274</sup> *Id.* paras 2089–2090 (emphasis added).

<sup>1275</sup> '3. That the accused's act was intended as a method of warfare with the specific purpose of denying such objects to the targeted civilian population', *Proposal by the United States of America*, UN Doc. PCNICC/1999/DP.4/Add.2 (4 Feb. 1999) 18.).

<sup>1276</sup> There is no indication that the Rome Diplomatic Conference intended to exclude starvation out of a motive of ethnic cleansing from the offense's scope of application. Rather than excluding the application of the offense to such conducts, the qualification 'as a method of warfare' likely was inserted not least to keep with the well-established international humanitarian law concept of starvation (as reflected, above all, under article 54 Add. Prot. I), to distinguish the war crime from the inadvertent and not specifically intended consequence often occurring in war times of starving of the civilian population, and to make it clear that no new international obligation or concept is created. The wording underlines that the conduct must be associated with an armed conflict, and that the rule does not criminalize, for instance, a failure to generally live up to internationally promoted standards of good governance.

\* The authors are indebted to Jérôme Massé for his research assistance.

concerning Article 38 of the UN Child Convention as a challenge to the International Red Cross and Red Crescent movement', (1995) 4 *HuV-I* 200; Helle, D., 'Optional protocol on the involvement of children in armed conflict to the Convention on the Rights of the Child', (2000) 839 *IRevRC* 797; ICRC, 'Optional Protocol to the Convention on the Rights of the Child concerning involvement of children in armed conflicts, Position of the International Committee of the Red Cross', (1998) 322 *IRevRC* 107; Junod, S., 'Article 4 Add. Prot. II', in: Y. Sandoz et al. (eds.), *Commentary on the Additional Protocols of 8 June 1977 to the Geneva Conventions of 12 August 1949* (Martinus Nijhoff Publishers 1987) 1380; Kalshoven, F., *Constraints on the Waging of War* (Martinus Nijhoff Publishers 1987) 91; Krill, F., 'United Nations Convention on the rights of the child: a controversial article on children in armed conflicts', (1989) 12 *Dissemination* 11; Laucci, C., *Digest of Jurisprudence of the Special Court for Sierra Leone 2003–2005* (Martinus Nijhoff Publishers 2007); Mann, H., 'International Law and the Child Soldier', (1987) 36 *I&CompLQ* 32; Maslen, S., 'Relevance of the Convention on the Rights of the Child to children in armed conflict', (1996) *TransnatL&ContempProbs* 329; Pilloud, C. and Pictet, J.S., 'Article 77 Add. Prot. I', in: Y. Sandoz et al. (eds.), *Commentary on the Additional Protocols of 8 June 1977 to the Geneva Conventions of 12 August 1949* (ICRC 1987); de Preux, J., 'Article 43 Add. Prot. I', in: Y. Sandoz et al. (eds.), *Commentary on the Additional Protocols of 8 June 1977 to the Geneva Conventions of 12 August 1949* (Martinus Nijhoff Publishers 1987) 506; Vité, S., 'Between Consolidation and Innovation: The International Criminal Court's Trial Judgment in the Lubanga Case', (2012), 15 *YbIHuM* L 61.

797 a) **Humanitarian law base and drafting history.** The use of child soldiers in many of today's armed conflicts has become a matter of increasing international concern<sup>1277</sup>. Easily manipulated and not questioning orders, children are at the risk of being exploited and even of being used as 'cannon fodder', under drugs or not, as decoys or in risky combat actions adult combatants are not willing to undertake. Besides the risk to their physical well-being active participation in armed hostilities teaches them the rule and culture of violence, disrupts their education and frequently results in gravest traumas, since children are even less capable to deal with the horrors of war than grown adults. Social reintegration poses particular problems for children that have never seen anything else than conflict and violence. Also, children's combat behavior is more erratic; they may more easily shoot indiscriminately at anything that moves. Since their conduct is more difficult to predict, they can present an increased danger for persons protected under humanitarian law, including civilians, humanitarian workers or persons *hors de combat*<sup>1278</sup>. Interestingly enough, the very first judgment of the ICC, namely the Lubanga case issued on March 14, 2012<sup>1279</sup>, is related to children in armed conflicts. Even if the situation in which that case took place has been classified by the Court as a non-international armed conflict (to which article 8 para. 2 (e) (vii) rather applies)<sup>1280</sup>, the findings of the Court are obviously crucial to the interpretation of article 8 para. 2 (b) (xxvi) of the Rome Statute. Indeed, the numerous issues dealt with by the Court in that case receive the same reading no matter the classification of the situation. Besides, the Preliminary Chamber of the Court, when ruling on that case, left the classification of the situation (international or non-international in character) open. Therefore, the conclusions made in the *Lubanga* case could well be applied whatever the nature of the conflict, in the future<sup>1281</sup>.

798 The recruitment of children into armed forces or groups and their participation in armed conflicts has only recently become an object of international legal regulation<sup>1282</sup>. The first

<sup>1277</sup> Several factors may explain this. First, most of today's armed conflicts are of an internal nature, and the use of child soldiers appears more frequent in internal than in international conflicts. Children under fifteen have been reported to have participated in more than two dozen current or recent armed conflicts. Also, the roles they are called to play appear to have expanded. Not least, the proliferation of small caliber arms makes it easier to use child soldiers. Second, the age at which many societies and not least the 'international community' consider childhood to end has augmented. See, e.g., Happold, (2000) 7 *NethILRev* 28–29.

<sup>1278</sup> See Pilloud and Pictet, in: Sandoz et al. (eds.), *Commentary* (1987) 900 (No. 3183); *Impact of Armed Conflict on Children, Report of the expert of the Secretary-General, Machel, submitted pursuant to General Assembly resolution 48/157*, UN Doc. A/51/306 (26 Aug. 1996), paras. 34–62.

<sup>1279</sup> *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06, Judgment pursuant to Article 74 of the Statute, Trial Chamber I, 14 March 2012.

<sup>1280</sup> [*ibid.*, para. 568.] or [*Prosecutor v. Thomas Lubanga Dyilo*, 14 March 2012, ICC-01/04-01/06, para. 568 in which the Trial Chamber has decided that: '[g]iven the Chamber's conclusion that the UPC was engaged in a NIAC [...] it [was] unnecessary to interpret or discuss Article 8(2)(b)(xxvi).'].

<sup>1281</sup> Cf. Geiss and Zimmermann, article 8 2 e) (vii).

<sup>1282</sup> See generally Happold (2000) 47 *NethILRev* 27; Hamilton and Tabatha (1997) *IJChildrenRts* 1; Maslen (1996) *TransnatL&ContempProb* 329; Cohn and Goodwin-Gill, *Child Soldiers: The Role of Children in Armed*

international instruments specifically addressing the issue are the 1977 Additional Protocols to the Geneva Conventions. The late development of armed conflicts directly concerns the relation between these children and the party to the conflict to which they belong. However, international humanitarian law, on the one hand, does not typically regulate relations between a party to a conflict and persons belonging to it. On the other hand, international human rights law, traditionally regulating relations between a state and its own citizens, does not typically regulate issues specifically relating to armed conflict situations. Today, the issue is both regulated by human rights instruments, such as the Convention for the Rights of the Child and its Optional Protocol on the involvement of children in armed conflict, or the African Charter on the Rights and Welfare of the Child, as well as by international humanitarian law, either conventional or of customary nature.

Article 77 para. 2 Add. Prot. I provides that '[t]he Parties to the conflict shall take all feasible measures in order that children who have not attained the age of fifteen years do not take a direct part in hostilities and, in particular, they shall refrain from recruiting them into their armed forces'<sup>1283</sup>. With regard to non-international armed conflict situations, article 4 para. 3 (c) Add. Prot. II prohibits to 'allow' children under fifteen to 'take part in hostilities'. According to the ICRC study on customary international humanitarian law, these provisions are of customary nature. Rule 136 of this study states that '[c]hildren must not be recruited into armed forces of armed group' while rule 137 says that '[c]hildren must not be allowed to take part in hostilities'. Both rules apply indifferently in international or non-international armed conflicts.

Article 38 paras. 2 and 3 of the virtually universally ratified 1989 UN Convention on the Rights of the Child similarly states:

'2. States Parties shall take all feasible measures to ensure that persons who have not attained the age of fifteen years do not take a direct part in hostilities.

3. States Parties shall refrain from recruiting any person who has not attained the age of fifteen years into their armed forces. ...'

In addition, the International Labour Organization Convention No. 182 of 17 June 1999 concerning the Prohibition and Immediate Action for the Elimination of the Worst Forms of Child Labour requires States Parties to prohibit the worst forms of child labour, 'including forced or compulsory recruitment of children for use in armed conflict'<sup>1284</sup>. The 1990 African Charter on the Rights and Welfare of the Child<sup>1285</sup> provides in paragraph 2 of its article 22 entitled 'Armed Conflicts' that States Parties 'shall take all necessary measures to ensure that no child ['defined in its article 2 as every human being below the age of 18 years'] shall take a direct part in hostilities and refrain in particular, from recruiting any child'<sup>1286</sup>.

At the negotiations of the Preparatory Committee and the Rome Conference, the majority felt strongly that using child soldiers or recruiting them into armed forces should be a war crime under the jurisdiction of the ICC, considering that violating this virtually universally accepted prohibition was of most serious concern. Yet, a few states, and in particular the United States (who, together with Somalia, is the last state not having ratified the UN Child Convention), were of the view that the underlying prohibition had more of a human rights than humanitarian law character and had not been criminalized under customary international law. The precise formulation of article 8 para. 2 (b) (xxvi) required intense negotiations on particular issues of controversy. The most debated issues included the required degree of

*Conflicts* (1994); van Bueren (1994) 43 *I&CompLQ* 809; Delissen, in: Delissen and Tanja (eds.), *Humanitarian Law of Armed Conflict* (1991) 156–157.

<sup>1283</sup> On the drafting history, see Mann (1987) 36 *I&CompLQ* 32.

<sup>1284</sup> See article 3 (a) of the Convention, which entered into force on 19 Nov. 2000.

<sup>1285</sup> OAU Doc. CAB/LEG/24.9/49 (1990), entered into force on 29 Nov. 1999.

<sup>1286</sup> See also, e.g. UN SC. Res. 1261 (25 Aug. 1999) and UN SC Res. 1314 (14 Aug. 2000); UN GA Res.52/145 (12 Dec. 1997), para. 12 ('urg[ing] all the Afghan parties to respect fully international humanitarian law and ... to prohibit the drafting and recruitment of children as para-combatants, [and] to ensure their reintegration into society ...').

participation in hostilities of the children, the activities proscribed, the insertion of the adjective ‘national’ before ‘armed forces,’ and the age limit of the children; issues that all have been discussed by the ICC in its first judgment.

- 802 The Preparatory Committee had forwarded four options to the Rome Diplomatic Conference: ‘Option 1: forcing children under the age of fifteen years to take direct part in hostilities. Option 2: recruiting children under the age of fifteen years into armed forces or using them to participate actively in hostilities. Option 3: (i) recruiting children under the age of fifteen years into armed forces or groups; or (ii) allowing them to take part in hostilities. Option 4: [no such war crime]’<sup>1287</sup>. The Rome Conference eventually adopted option 2 as sub-paragraph (b) (xxvi) with only two changes: The replacement of the term ‘recruiting’ by ‘conscripting or enlisting’, particularly to meet the concern of the United States who sometimes reach children at an early stage with their recruitment campaigns, and the addition of the word ‘national’ before armed forces to meet a concern by Arab states.
- 803 Several states, supported by a few strongly lobbying NGOs, had strived to raise the relevant age to 18. This was rejected by delegations, primarily based on the argument that there was no adequate support for the customary status of the age limit of 18 in international law, which indeed appeared at least doubtful<sup>1288</sup>. Several delegations however remained unhappy that the age limit under sub-paragraph (b) (xxvi) is not higher than 15 years.
- 804 The goal to raise the minimum age of child soldiers became also one of the key issues during the negotiations leading to the adoption on 25 May 2000 of the Optional Protocol to the Convention on the Rights of the Child on the involvement of children in armed conflict. Even if some of the Protocol’s provisions are not beyond criticism and are hardly in line with the general principles of humanitarian law<sup>1289</sup>, the Optional Protocol certainly further elaborates the protection of children against recruitment and participation in hostilities<sup>1290</sup>.

<sup>1287</sup> 1998 ILC Draft Statute, pp. 24–25.

<sup>1288</sup> Articles 77 para. 2 and 38 of the Convention on the Rights of the Child apply to children who have not attained the age of 15 years, while containing an obligation of States Parties to endeavor to give priority to the oldest persons when recruiting persons under the age of eighteen years. Even the Optional Protocol on the involvement of children in armed conflict adopted in 2000, that is, after the adoption of the Rome Statute, does not provide for the age of 18 for the recruitment by states and does not contain a direct criminalization of recruitment by states of children under 18. See also ICRC (1998) 322 *IREVRC* 107, at Parts I and II (referring to legal arguments and arguments based on practice for the minimum age of 18). The UN Committee on the Rights of the Child has not (yet) answered a question of one state party in this regard, see Initial Report of Switzerland under the Optional Protocol on the involvement of children in armed conflict, Summary Record, UN Doc. CRC/C/SR.1082, para. 9. While the Committee’s concluding observations in this case lack an affirmation of the customary law status of a war crime of recruiting children under 18, it underlines that states parties to the Optional Protocol should provide for criminal jurisdiction over recruitment of children under 18 from that state party’s territory for military activities abroad, Consideration of Reports Submitted by States Parties under article 8 Optional protocol to the Convention on the Rights of the Child on the involvement of children in armed conflict, Concluding observations: Switzerland, UN Doc. CRC/C/OPAC/CHE/CO/1 (17 Mar. 2006), para. 8.

<sup>1289</sup> As a matter of principle, international humanitarian law establishes the same obligations of parties to the conflict. Article 4 of the Optional Protocol, which was mainly negotiated by human rights experts since it was a Protocol to a human rights convention, however burdens armed groups more strongly than state forces, prohibiting the former to recruit or use persons under the age of 18 years, while states parties only must take ‘feasible measures to prevent such recruitment and use ...’.

<sup>1290</sup> ‘Article 1: States Parties shall take all feasible measures to ensure that members of their armed forces who have not attained the age of 18 years do not take a direct part in hostilities.

Article 2: States Parties shall ensure that persons who have not attained the age of 18 years are not compulsorily recruited into their armed forces.

Article 3: 1. States Parties shall raise the minimum age for the voluntary recruitment of persons into their national armed forces from that set out in article 38, paragraph 3, of the Convention on the Rights of the Child, taking account of the principles contained in that article and recognizing that under the Convention persons under the age of 18 years are entitled to special protection. ... 3. States Parties that permit voluntary recruitment into their national armed forces under the age of 18 years shall maintain safeguards to ensure, as a minimum, that ... (d) Such persons provide reliable proof of age prior to acceptance into national military service. ...

Article 4: 1. Armed groups that are distinct from the armed forces of a State should not, under any circumstances, recruit or use in hostilities persons under the age of 18 years. 2. States Parties shall take all feasible measures to

Article 4 para. c of the Statute of the Special Court for Sierra Leone established by an Agreement between the United Nations and Sierra Leone affirms the Court's power to criminally prosecute persons who committed the 'serious violation [...] of international humanitarian law' of '[c]onscripting or enlisting children under the age of 15 years into armed forces or groups or using them to participate actively in hostilities'<sup>1291</sup>, taking into account the recently adopted formulation of article 8 para. 2 (b) (xxvi) Rome Statute<sup>1292</sup>. With regard to this earlier draft, the UN Secretary-General's report had affirmed that 'the prohibition on child recruitment has by now acquired a customary international law status' and appeared to consider that the crime defined in article 4 para. c of the draft Statute and committed in internal armed conflict had the character of customary international law since, at least, 30 November 1996<sup>1293</sup>.

Article 28 D, related to war crimes, of the Protocol on Amendments to the Protocol on the Statute of the African Court of justice and human rights<sup>1294</sup> refers to the age of 18 regarding conscription, enlistment and active participation in hostilities.

**b) An unusual war crime.** The three offenses defined under article 8 para. 2 (b) (xxvi) Rome Statute, namely conscription, enlistment and use of children to actively participate in hostilities, comprise a particularity distinguishing them from most other war crimes. They primarily *protect children against their own authorities* as is clear from the essence of article 8 para. 2 (b) (xxvi). Perpetrator and victims of these war crimes thus may belong to the same party to the conflict. This criminalization of acts committed against or '*vis-à-vis*' persons belonging to the same party to the conflict deviates fundamentally from the general thrust of international humanitarian law and the law of war crimes, which typically regulate acts committed against persons belonging to an adversary party to the conflict. Relations between a State and its own nationals are more characteristically the subject of human rights law. The prohibitions underlying the offense defined in sub-paragraph b (xxvi) thus comprise typical human rights aspects and indeed partially are based on human rights instruments, while undoubtedly having a link to armed conflicts and the preparation for such conflicts.

However, the wording of the provision in no way excludes its application to the use, enlistment or conscription of *children belonging to another party to the conflict* or indeed of *any other child*<sup>1295</sup>. It would not make sense to protect children belonging to the same party to the conflict but not those not belonging to that party. These considerations apply to both the use of children to participate actively in hostilities as well as to their enlistment or conscription into armed forces.

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prevent such recruitment and use, including the adoption of legal measures necessary to prohibit and criminalize such practices. ....'

On the new Optional Protocol, see, e.g., Happold (2002) 3 *YbHumL* 226.

<sup>1291</sup> *Statute of the Special Court for Sierra Leone, annexed to the Agreement between the United Nations and the Government of Sierra Leone on the Establishment of the Special Court for Sierra Leone, signed on 16 January 2002 pursuant to Security Council resolution 1315 (2000) of 14 Aug. 2000*, available at <<http://www.rscsl.org/Documents/scsl-statute.pdf>> accessed 20 January 2015.

<sup>1292</sup> An earlier draft had criminalized the '[a]bduction and forced recruitment of children under the age of 15 years into armed forces or groups for the purpose of using them to participate actively in hostilities', enclosure ([Draft] Statute of the Special Court for Sierra Leone) to the *Report of the Secretary-General on the establishment of a Special Court for Sierra Leone*, UN Doc. S/2000/915 (4 October 2000). On the recent practice of the Special Court, see Laucci, *Digest of Jurisprudence of the Special Court for Sierra Leone 2003–2005* (2007).

<sup>1293</sup> See *Report of the Secretary-General on the establishment of a Special Court for Sierra Leone*, UN Doc. S/2000/915 (4 October 2000), paras. 12 (in connection with article 1 of the enclosed Draft Statute) and 17.

<sup>1294</sup> As adopted during the 23<sup>rd</sup> Ordinary Session of the Assembly of Heads of State and Government of the African Union, available at <[http://www.au.int/en/sites/default/files/PROTOCOL%20ON%20AMENDMENTS%20TO%20THE%20PROTOCOL%20ON%20THE%20AFRICAN%20COURT%20-%20EN\\_0.pdf](http://www.au.int/en/sites/default/files/PROTOCOL%20ON%20AMENDMENTS%20TO%20THE%20PROTOCOL%20ON%20THE%20AFRICAN%20COURT%20-%20EN_0.pdf)> accessed 20 January 2015.

<sup>1295</sup> The ICRC Commentary to article 77 para. 2 Add. Prot. I notes 'that this provision is primarily concerned with the nationals of the recruitment State, though without excluding nationals of other States' and that article 77 'is not subject to any restrictions as regards its scope of application; it therefore applies to all children who are in the territory of States at war, whether or not they are affected by the conflict'. See Pilloud and Pictet, in: Sandoz et al. (eds.), *Commentary* (1987) 902 (No. 3191) and 898–899 (Nos 3174 and 3177).



809 Enlisting or conscripting children under 15 belonging to another party to a conflict into the armed forces additionally might amount to the grave breach of compelling service in the forces of a hostile Power (article 8 para. 2 (a) (v) Rome Statute) or the war crime of coercing participation in military operations against the person's own country or forces (article 8 para. 2 (b) (xv) Rome Statute), war crimes which apply to persons belonging to the adverse party to the conflict irrespective of their age.

810 c) War crime of conscripting or enlisting children. aa) 'Conscripting or enlisting ... into the ... armed forces'. If there was no definition neither in international law of the notions of 'conscripting' and 'enlisting' into armed forces, nor in the Elements of Crimes, the ICC in its first judgment has given its interpretation of these two war crimes. "[E]nlisting" is defined as "to enrol on the list of a military body" and "conscripting" is defined as "to enlist compulsorily". Therefore, the distinguishing element is that for conscription there is the added element of compulsion.<sup>1296</sup> Moreover according to the Court "[t]he manner in which a child was recruited, and whether it involved compulsion or was "voluntary", are circumstances which may be taken into consideration by the Chamber at the sentencing or reparations phase, as appropriate. However, the consent of a child to his or her recruitment does not provide an accused with a valid defence."<sup>1297</sup> It must also be noticed that the Court is of the opinion that these war crimes are 'continuous in nature' since '[t]hey end only when the child reaches 15 years of age or leaves the force or group'<sup>1298</sup>.

811 Up to the beginning of the Rome Conference, the proposals for the eventual article 8 para. 2 (b) (xxvi) included only the term 'recruiting'<sup>1299</sup>. At the Rome Conference, however, a small number of delegations, including the United States, feared that the term recruiting could be understood as also prohibiting *recruitment campaigns* addressed to children under the age of fifteen, even though such endeavors to have persons join the armed forces do not necessarily aim at an immediate beginning of military training within the armed forces. In order to exclude that the war crime would also extend to such early recruitment campaigns, the United States proposed the eventually adopted wording of 'conscripting or enlisting'<sup>1300</sup>. The ICC, however, later has considered that "conscripting" and "enlistment" are both forms of recruitment'<sup>1301</sup>.

812 Another concern particular to the United Kingdom delegation was to rule out the application of the provision to children under fifteen who enter *schools funded, supervised or operated by the armed forces*. In view of the terms eventually selected and the negotiating history, article 8 para. 2 (b) (xxvi) does not apply to recruitment campaigns nor membership in scout groups. However, the enrolment in educational institutions operated or supervised by armed forces could qualify insofar it constitutes or is tantamount to an 'enlistment into armed forces'<sup>1302</sup>. This would not appear to be the case if children under 15 in these

<sup>1296</sup> *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06, 14 March 2012, para. 608.

<sup>1297</sup> *Prosecutor v. Lubanga*, ICC-01/04-01/06, 14 March 2012, para. 617.

<sup>1298</sup> *Prosecutor v. Lubanga*, ICC-01/04-01/06, 14 March 2012, para. 618.

<sup>1299</sup> See Mann (1987) 36 *Id&CompLQ* 32. According to major English dictionaries, 'to recruit' is defined as 'to enlist new soldiers; to get or seek for fresh supplies of men for the army', *The Oxford English Dictionary* 191, and 'to persuade someone to become a new member of an organization, esp. the army', *The Cambridge International Dictionary* (1995) 1188.

<sup>1300</sup> See von Hebel and Robinson, in: Lee (ed.), *The Making of the Rome Statute* (1999) 118.

<sup>1301</sup> *Prosecutor v. Lubanga*, ICC-01/04-01/06, 14 March 2012, para. 607.

<sup>1302</sup> In this regard, it may be interesting to consider that according to article 3 para. 5 of the Optional Protocol on the Involvement of Children in Armed Conflicts the requirement for States Parties to raise the recruitment age to at least 16 years does not apply 'to schools operated by or under the control of the armed forces of the States Parties, in keeping with articles 28 and 29 of the convention on the Rights of the Child'. Articles 28 and 29 of the Convention on the Rights of the Child recognize the right of the child to education, require states to take measures to ensure that school discipline is administered in a manner consistent with the child's human dignity, and states certain goals of the education. Article 3 para. 5 of the Optional Protocol thus implies that, in the view of the states adopting the Protocol, the prohibition under article 38 of the Convention to recruit children under 15 may also apply to enrolment in schools operated by or under the control of the armed forces, and provides that such schools must respect the child's human dignity and direct the education towards certain educational



institutions receive an essentially civilian curriculum providing secondary education or vocational training. However, if the enrolment of children under 15 in such institution would mean that they thereby are eligible for armed combat in the event of an armed conflict or that they may be used to participate in hostilities even if under 15, the effects would be sufficiently similar to a direct enlistment into the armed forces to be considered, considering the offense's humanitarian object and purpose, as qualifying under article 8 para. 2 (b) (xxvi). But what if children enrolled in such a school receive a primarily military training, including in military combat, but do not in any way become eligible for armed combat before they reach 15 years?

**bb) 'National armed forces'.** The wording 'national armed forces' was accepted as a 813 compromise. The adjective 'national' was added to 'armed forces' in order to meet the concerns of several Arab States who feared that 'armed forces' alone might be applied to the Intifada and young Palestinians joining it. An earlier proposal had suggested the words 'regular armed forces'. Several delegations however strongly opposed a limitation of the scope of article 8 para. 2 (b) (xxvi) to 'regular' armed forces. Article 43 para. 1 Add. Prot. I provides that the armed forces of a party to the conflict 'consist of all organized armed forces, groups and units which are under a command responsible to that Party for the conduct of its subordinates, even if that Party is represented by a government or an authority not recognized by an adverse Party'. The party to the conflict thus need not be represented by a recognized government or authority or state<sup>1303</sup>. In the *Lubanga* case, referring *inter alia* to article 43 of Add. Prot. I and to its commentary, the Preliminary Chamber considered 'that, under article 8 (2) (b) (xxvi) of the Statute, the term "the national armed forces" is not limited to the armed forces of a State'<sup>1304</sup>. Furthermore, the Trial Chamber, even if it focused on article 8 para. 2 (e) (vii) of the Rome Statute, given the classification of the situation as a non-international conflict, still specified that '[s]ubject to one significant difference in wording (conscription or enlistment of children into "national armed forces" (Article 8(2)(b)(xxvi) of the Statute) as opposed to "armed forces or groups" (Article 8(2)(e)(vii) of the Statute), the elements of these two crimes are similar'<sup>1305</sup>. This confirms the conclusion according to which the ruling of the Court in the *Lubanga* case also applies to international armed conflict, *i. e.* to article 8(2)(b) (xxvi).

**cc) Any need of a nexus to an armed conflict?** Article 8 para. 2 (b) (xxvi) criminalizes 814 'conscripting or enlisting children under the age of fifteen years into the national armed forces'. While the second part of sub-paragraph (xxvi) contains an explicit reference to 'hostilities' and seems to require the existence of hostilities and, thus, an armed conflict, the first part of the provision relating to conscription and enlistment does not contain any such reference.

The *legal sources* of the prohibition underlying the offense other than the Rome Statute do 815 not restrict its applicability to times of armed conflict. The relevant parts of article 77 para. 2 Add. Prot. I<sup>1306</sup> and article 38 of the Convention on the Rights of the Child as well as the Optional Protocol to that Convention do not contain any restriction of the prohibition of recruitment of children to times of armed conflict.

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goals (which, it is submitted, cannot be exclusively military objectives). For the different options that were discussed during the negotiations leading to the adoption of the Optional Protocol, see, *e.g.*, Report of the working group on a draft optional protocol to the Convention on the Rights of the Child on involvement of children in armed conflicts on its second session, E/CN.4/1996/102 (21 Mar. 1996), in particular paras. 102 *et seq.* See also Helle (2000) 839 *IRevRC* 801–80 805.

<sup>1303</sup> See de Preux, in: Sandoz *et al.* (eds.), *Commentary* (1987) 506 *et seq.*, paras. 1659 *et seq.*. See also article 1 para. 4 Add. Prot. I.

<sup>1304</sup> *Prosecutor v. Lubanga*, ICC-01/04-01/06, Decision on the confirmation of the charges, Pre-Trial Chamber I, 29 January 2007, para. 285.

<sup>1305</sup> *Prosecutor v. Lubanga*, 14 March 2012, ICC-01/04-01/06, para. 568.

<sup>1306</sup> Article 3 Add. Prot. I specifies that the Conventions and the Protocol apply during armed conflict, '[w]ithout prejudice to the provisions which are applicable at all times'. Common article 2 to the Geneva Conventions similarly implies that certain provisions of the Geneva Conventions (and through article 1 para 3 Add. Prot. I also of Add Prot. II) must be 'implemented in peacetime'.

816 Yet, a main *objective* of the prohibition of incorporating children into armed forces appears to be, as above seen, to protect them from involvement in armed conflict. Having children incorporated into the armed forces makes it difficult to keep them out of armed conflicts since that would upset the mechanics of armed forces. Armed hostilities may suddenly and unexpectedly break out, and it is unrealistic to expect that all children will immediately be expelled from armed forces as soon as an armed conflict breaks out. Keeping children out of armed forces also helps to avoid that they might qualify as legitimate targets under humanitarian law. Permitting children's conscription and enlistment in times of peace is hardly coherent with the aim of protecting them. The provision is given full effectiveness only if conscription and enlistment of children is proscribed both in the presence as well as absence of an armed conflict. In addition, permitting conscription or enlistment of children in times of peace would lead to not overly convincing consequences. If an armed conflict should suddenly break out, the retention in the armed forces of a child conscripted or enlisted prior to the conflict's outbreak would either be considered lawful, in which the prohibition to conscript or enlist children would be greatly undermined. The other possibility is to consider the retention of the children unlawful and a war crime, since such retention is equivalent to a conscription or enlistment. This however would also seem an awkward and not very practical solution, and would not reach those who first conscripted or enlisted the children. To this end, the ICC in the *Lubanga* case clarified that '[a]lthough it may often be the case that the purpose behind conscription and enlistment is to use children in hostilities, this is not a requirement of the Rome Statute.'<sup>1307</sup> The Chamber further rejects 'the defence contention that "the act of enlistment consists in the integration of a person as a soldier, within the context of an armed conflict, for the purposes of participating actively in hostilities on behalf of the group."<sup>1308</sup>

817 dd) **War crime of using children to participate in hostilities.** The wording '*using them to participate actively*' was introduced in the Preparatory Committee meeting of March/April 1998. The proposal deviates from treaty provisions applicable to international armed conflicts which prohibit the '*direct*' participation of children in hostilities<sup>1309</sup>. Article 4 para. 3 (c) Add. Prot. II, reaffirmed by rule 137 of the ICRC study of customary international humanitarian law, provides that children under fifteen shall not be 'allowed to take part in hostilities', which excludes *any* participation of children in non-international armed conflicts. Paradoxically, thus, the protection of children is broader in non-international than in international conflicts<sup>1310</sup>. The Rome Conference remedied this discrepancy to some degree by criminalizing the use of children to 'actively' participate in hostilities, a wording that may be understood to prohibit a broader range of participation than 'direct' participation. The ICC later confirmed this interpretation in its judgment of 2012, stating that 'the expression "direct participation" [...] was clearly intended to import a wide interpretation to the activities and roles that are covered by the offence of using children under the age of 15 actively to participate in hostilities.'<sup>1311</sup> Indeed, working in a munitions factory for instance might be considered an *active* but not a *direct* participation<sup>1312</sup>, what the Court also believes. According to the judges, what matters is 'whether the support provided by the child to the combatants exposed him or her to real danger as a potential target.'<sup>1313</sup>

<sup>1307</sup> *Prosecutor v. Lubanga*, ICC-01/04-01/06, 14 March 2012, para. 609.

<sup>1308</sup> *Prosecutor v. Lubanga*, ICC-01/04-01/06, 14 March 2012, para. 609.

<sup>1309</sup> See in particular article 77 para. 2 Add. Prot. I and article 1 of the 2000 Option Protocol to the Rights of the Child Convention.

<sup>1310</sup> See also ICRC (1998) 322 *IRevRC* 107, Part III (referring to legal arguments and arguments based on practice for the prohibition of direct and indirect participation).

<sup>1311</sup> *Prosecutor v. Lubanga*, ICC-01/04-01/06, 14 March 2012, para. 627.

<sup>1312</sup> It is therefore regrettable that the Optional Protocol, adopted after the Rome Conference, refers only to 'direct' participation. See also Pilloud and Pictet, in: Sandoz *et al.* (eds.), *Commentary* (1987) 901 (No. 3187); Helle 839 *IRevRC* 801–802; Happold 47 *NethILRev* 35–36; Kalshoven, *Constraints on the waging of war* (1987) 91.

<sup>1313</sup> *Prosecutor v. Lubanga*, ICC-01/04-01/06, 14 March 2012 para. 628.

The formulation that eventually found its way into article 8 para. 2 (b) (xxvi), including 818 the words ‘to participate actively’, was introduced with a footnote at the March–April 1998 session of the Preparatory Committee which specified under what understanding the wording was to be adopted. As delegations adopted the provision without opposing to this proposed understanding of the wording, and since this understanding seemed to find general agreement also at the negotiations of the elements of this war crime<sup>1314</sup>, the wording of the footnote may serve as an interpretational guideline:

“The words “using” and “participate [actively]”<sup>1315</sup> have been adopted in order to cover both direct participation in combat and also active participation in military activities linked to combat such as scouting, spying, sabotage and the use of children as decoys, couriers or at military checkpoints. It would not cover activities clearly unrelated to the hostilities such as food deliveries to an airbase or the use of domestic staff in an officer’s married accommodation. However, use of children in a direct support function such as acting as bearers to take supplies to the front line, or activities at the front line itself, would be included within the terminology”<sup>1316</sup>.

As confirmed by the ICC in its first judgment, this understanding also keeps with the 819 underlying aim of the provision to keep children out of armed hostilities and takes into account the risks for their physical as well as psychological well-being resulting from such involvement. It for instance clearly rules out that children are used as spies, and hopefully thereby also diminishes the chances that children are correspondingly perceived and treated by an adversary party<sup>1317</sup>.

To be sure, the child that actively participates in hostilities does not commit any criminal 820 act under article 8 para. 2 (b) (xxvi). Sub-paragraph b (xxvi) makes it an offence to ‘use’ such participation. The ‘use’ specifies the connection that must exist between the person using the participation and the child’s active participation.

However, it is not necessary that the child is forced to participate, even if the Rome 821 Conference adopted the language of ‘using them to participate actively’ and not the proposed alternative wording ‘allowing them to take part’. Inciting a child by words or acts to carry guns to a front line also qualifies under article 8 para. 2 (b) (xxvi). Furthermore, even if a child is participating in hostilities on its own volition, ‘using’ that child for such purpose and profiting from its ‘work product’ would still be prohibited. Military commanders that do not take measures to ensure that children under fifteen are not used to participate actively in hostilities may in addition be criminally responsible on the basis of their command responsibility (article 28 Rome Statute).

**d) Knowledge that the child is under 15.** According to the default standard of the 822 requisite *mens rea* spelled out in article 30 of the Rome Statute, the perpetrator must have been aware of the circumstance that the child was under the age of 15 years. This ‘awareness’ may include *dolus eventualis*, that is, a situation in which the perpetrator did not know that the child was under 15, but thought this might be possible and went ahead anyway. According to element 3 to article 8 para. 2 (b) (xxvii), it is even sufficient that ‘[t]he perpetrator knew or should have known that such person or persons were under the age of 15 years’. This standard of *mens rea* clearly deviates from the requirement of awareness

<sup>1314</sup> As all interpretative footnotes contained in the 1998 ILC Draft Statute, the footnote to the present war crime did not either appear in the text of the Statute itself. The drafters of both the Rome Statute and the Elements of Crimes however clearly had the footnote in mind when drafting and adopting the two instruments. At the Preparatory Commission, it had been proposed to insert the footnote in the elements. The length and type of the footnote however was not adapted to the concise Elements of Crimes. Also, it was pointed out that the footnote had already been recorded in the *travaux préparatoires* of the Rome Statute and that academic literature would or had already referred to it (including the prior edition of this Commentary), an argument which eventually prevailed. See note 263, Von Hebel and Robinson, in: Lee (ed.), *The Making of The Rome Statute* (1999) 118; Garraway, in: Lee et al. (eds.), *Elements of Crimes* (2001) 206.

<sup>1315</sup> It was specified orally during the negotiations when the language and footnote were presented and explained that the qualifier ‘actively’ was unintentionally omitted in the document containing that language.

<sup>1316</sup> 1998 ILC Draft Statute 25 (fn. 12 to article 5, War Crimes, B (t) Option 2).

<sup>1317</sup> See Happold, (2000) 47 *NethILRev* 36.

under article 30 Rome Statute. The formulation 'should have known' appears to imply that it is sufficient that the perpetrator could have known the age of the child had he not been wilfully blind to it or had he taken reasonable and feasible safeguards to avoid using or conscripting or enlisting a child under 15, in particular when the person's appearance did not permit to exclude with certainty that he or she clearly was above 15 years. This essentially creates a duty to take reasonable and feasible safeguards against using or conscripting or enlisting children under 15.<sup>1318</sup>

#### D. Article 8 para. 2 (c)–(f) and para. 3: War crimes committed in an armed conflict not of an international character

**Literature General:** Abi-Saab, G., 'Wars of National Liberation in the Geneva Conventions and Protocols', (1979) IV *RdC* 353; Aldrich, G., 'Progressive Development of the Laws of War: A Reply to Criticisms of the 1977 Geneva Protocol I', (1985/86) 26 *VirgJIL* 703; Ambos, K., 'Aktuelle Probleme der deutschen Verfolgung von Kriegsverbrechen in Bosnien-Herzegowina', (1999) *NSiZ* 226; Arnold, R., 'The development of the notion of war crimes in non-international conflicts through the jurisprudence of the UN Ad Hoc Tribunals', (2002) 3 *HuV-I* 134; *id.*, *The ICC as a New Instrument for Repressing Terrorism* (2004); Bothe, M., 'War crimes in non-international armed conflicts', in: Y. 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<sup>1318</sup> The question is dealt with in the Lubanga case by the Trial Chamber. See *Prosecutor v. Thomas Lubanga Dyilo*, No. ICC-01/04-01/06, Judgment pursuant to Article 74 of the Statute, Trial Chamber I, 14 March 2012, para. 1014–1017. See also Ambos (2012) 12 *ICLRev* 115, at 150.

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## I. General remarks

During the work of both, the Preparatory Committee on the Establishment of an International Criminal Court as well as during the Rome Conference, the inclusion of war crimes committed in armed conflicts not of an international character was rather difficult to achieve. Given the fact that more and more of the armed conflicts of today do not possess an exclusive international character and that besides, proving such a character might be difficult, it seemed to be mandatory to most delegations to include in the Statute at least a core of acts that would constitute war crimes also in situations of non-international armed conflicts.

The two main proposals submitted to the Preparatory Committee in February 1997 demonstrated however a significant divergence in this regard. While the proposal elaborated by the ICRC, formally submitted by New Zealand and Switzerland<sup>1319</sup>, contained a rather elaborate list of war crimes applicable to armed conflicts not of an international character, the proposal submitted by the United States<sup>1320</sup> limited the list of war crimes applicable to non-international armed conflicts to serious breaches of article 3 common to the four Geneva Conventions of 1949. Over time the position of the United States changed to the extent that they became one of the proponents of including war crimes committed in internal armed conflicts into the Statute. Conversely, a number of countries including *inter alia* India, Pakistan, China and Turkey, were rather reluctant in either accepting any provision dealing with internal armed conflict or could at most agree to include the reference to common article 3.

The current list now contained in article 8 para. 2 (e) is significantly longer than the list of prohibited acts mentioned in the Add. Prot. II to the four Geneva Conventions. Still, the

<sup>1319</sup> UN Doc A/AC.249/1997/WG.1/DP.2.

<sup>1320</sup> UN Doc A/AC.249/1997/WG.1/DP.1.



Statute does not completely follow the approach of the ICTY, which had stated that ‘what is inhumane and consequently proscribed, in international wars, cannot but be inhumane and inadmissible in civil strife’<sup>1321</sup>. Since the adoption of the Rome Statute the tendency to assimilate the rules applicable in international and in non-international armed conflict, as demonstrated by recent national codifications of international criminal law such as e.g. the German Code of Crimes against International Law or by the ICRC study on customary international humanitarian law, has some exceptions notwithstanding been further reinforced.

826 It should also be mentioned that most of the provisions of the part dealing with internal armed conflict exactly mirror provisions already contained in article 8 para. 2 (b) dealing with international armed conflict. Given this partial identity, the comments will in those cases be limited to a pure reference to the respective other provisions<sup>1322</sup>.

827 On the whole, approximately half of the provisions, i.e. article 8 para. 2 (b) (ii), (iv), (v), (vi), (vii), (xiv), (xv–xxi), (xxiii), (xxiv) and (xxv), were not taken over from the part on international armed conflict. This is partly due to the fact that some of the provisions are by their very nature not applicable to internal warfare such as e.g. article 8 para. 2 (b) (xiv) which as far as international armed conflicts are concerned, refers to the act of declaring abolished in a court of law the rights and actions of the nationals of the hostile party. Other proposed provisions concerning internal armed conflicts were considered by at least a certain number of participating States, not to have yet reached the status of customary international law and for this reason were not included.

828 At the time of the Rome Conference this was also true with respect to the non-inclusion of provisions relating to the use, in internal armed conflicts, of prohibited weapons. Accordingly, notwithstanding the (correct) determination by the Appeals Chamber of the ICTY in the case against *Dusko Tadić*<sup>1323</sup>, that also in cases of civil strife, customary rules have developed which prohibit the use of specific weapons<sup>1324</sup>, a provision similar in nature to article 8 para. 2 (b) (xvii)–(xix) was at a rather late stage of the negotiations deleted from the proposal finally submitted by the Bureau to the Rome conference<sup>1325</sup>. The resulting lacunae, however, was remedied at the Kampala Review Conference<sup>1326</sup>. Following a proposal drafted by Belgium<sup>1327</sup> the Kampala Review Conference, by consensus, adopted three crimes regarding the use of prohibited weapons in non-international armed conflict. Specifically, article 8 para. 2 (e) of the Statute was extended to include the crimes of *employing poison or poisoned weapons (xiii), employing asphyxiating, poisonous or other gases, and all analogous liquids materials or devices (xiv), employing bullets which expand or flatten easily in the human body (xv)*. These new provisions which have not yet entered into force replicate the provisions found in article 8 para. 2 (b) (xvii), (xviii) and (xix) of the Statute that apply to international armed conflict as adopted in Rome.

829 Finally, notwithstanding article 8 para. 2 (d), (f) and para. 3, the general scope of application of the provisions dealing with internal armed conflicts is, compared with Add. Prot. II, significantly larger. In particular, it also applies to armed conflicts between several organized armed groups<sup>1328</sup>.

<sup>1321</sup> *Prosecutor v. Tadić*, IT-94-1-AR72, Decision on the Defence Motion for Interlocutory Appeal, Appeals Chamber, 2 October 1995, para. 119.

<sup>1322</sup> Such references, do not however, necessarily imply a complete identification with the view of the authors commenting on the respective provisions dealing with international armed conflict.

<sup>1323</sup> *Prosecutor v. Tadić*, IT-94-1-AR72, Decision on the Defence Motion for Interlocutory Appeal, Appeals Chamber, 2 October 1995, paras. 127 *et seq.* (127 and 134).

<sup>1324</sup> See in particular para. 124 of the above mentioned judgement which stipulated that ‘... there undisputedly emerged a general consensus in the international community on the principle that the use of those weapons [the Court here refers to chemical weapons, the author] is also prohibited in internal armed conflicts’.

<sup>1325</sup> See, e.g. the working document submitted by the bureau on 6 July 1998 (UN Doc A/CONF.183/C.1/L.53), which in its article 5 (War Crimes), D., I) had left the issue still open.

<sup>1326</sup> See below commentary to article 8 para. 2 (e) (xiii), (xiv) and (xv).

<sup>1327</sup> The so-called ‘Belgian proposal’ is included in Annex III to Resolution ICC-ASP/8/Res.6, 26 November 2009, available at: <[http://www.icc-cpi.int/iccdocs/asp\\_docs/Resolutions/ICC-ASP-8-Res.6-ENG.pdf](http://www.icc-cpi.int/iccdocs/asp_docs/Resolutions/ICC-ASP-8-Res.6-ENG.pdf)> last accessed May 2015.

<sup>1328</sup> For details see below Zimmermann and Geiß, article 8 para. 2 (f), 988 *et seq.*



The provisions dealing with non-international armed conflict apply from the initiation of such an armed conflict<sup>1329</sup> and extend beyond the mere cessation of hostilities until a peaceful settlement is achieved<sup>1330</sup>. Until that moment international humanitarian law continues to apply in the whole territory under the control of one of the Parties to the conflict, irrespective of whether actual combat takes place there or not<sup>1331</sup>.

Not every serious crime committed during the respective internal armed conflict can, however, be regarded as a violation of article 8 para. 2 (c) and (e) of the Statute. In order to amount to a war crime such acts must possess a certain nexus with the armed conflict, such as having been committed in the course of the fighting. The rationale of the nexus requirement is to distinguish war crimes from domestic crimes and to prevent random criminal occurrences from being characterized as war crimes<sup>1332</sup>. The ICTY Appeals Chamber has held that '[w]hat ultimately distinguishes a war crime from a purely domestic offence is that a war crime is shaped by or dependent upon the environment – the armed conflict – in which it is committed'<sup>1333</sup>. Yet, the establishment of the nexus does not require that the armed conflict be causal to the commission of the crime<sup>1334</sup>. Instead and in line with the jurisprudence of both, the ICTY and the ICTR, it is sufficient that the alleged acts were related to the hostilities occurring in other parts of the territories controlled by the parties to the conflict<sup>1335</sup>. In the *Katanga* decision the ICC has held that '[a]s neither the Statute nor the Elements of Crimes define the phrases 'in the context of' and/or 'was associated with', the Chamber applies the case-law of the international tribunals'<sup>1336</sup>. The two tribunals, the Special Court for Sierra Leone as well as the ICC Pre-Trial Chambers have held that there is a sufficient nexus provided the armed conflict played a substantial role in the perpetrator's ability to commit the crime, in his decision to commit it, the manner in which it was committed or the purpose for which it was committed<sup>1337</sup>. Hence, if it can be established [...] that the perpetrator acted in furtherance of or under the guise of the armed conflict, it would be sufficient to conclude that his acts were closely related to the armed conflict<sup>1338</sup>. It should be noted, however, that the

<sup>1329</sup> *Ibid.*

<sup>1330</sup> *Prosecutor v. Tadić*, IT-94-1-AR72, Decision on the Defence Motion for Interlocutory Appeal, Appeals Chamber, 2 October 1995, para. 70; see also *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgement, Trial Chamber, 16 November 1998, paras. 183 and 194; *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08, Decision on the confirmation of charges, Pre-Trial Chamber II, 15 June 2009, para. 229.

<sup>1331</sup> *Prosecutor v. Tadić*, IT-94-1-AR72, Decision on the Defence Motion for Interlocutory Appeal, Appeals Chamber, 2 October 1995, para. 70.

<sup>1332</sup> *Prosecutor v. Boskoski and Tarculovski*, IT-04-82-T, Judgment, Trial Chamber II, 10 July 2008, para. 293; Ambos, *Treatise on ICL II* (2014) 140 *et seq.*; Werle and Jessberger, *Principles* (2014) 422 *et seq.*

<sup>1333</sup> *Prosecutor v. Kunarac et al.*, IT-96-23 & IT-96-23/1-A, Judgement, Appeals Chamber, 12 June 2002, para. 58; *Prosecutor v. Blagojević*, IT-02-60-T, Judgment, Trial Chamber I, 17 January 2005, para. 536.

<sup>1334</sup> *Prosecutor v. Ndindiliyimana et al.*, ICTR-00-56-T, Judgment, Trial Chamber II, 17 May 2011, para. 2132, quoting *Prosecutor v. Bagosora et al.*, ICTR-98-41-T, Judgment, Trial Chamber I, 18 Dec. 2008, para. 2231; *Prosecutor v. Semanza*, ICTR-97-20-T, Judgment, Trial Chamber, 15 May 2003, para. 517, quoting *Prosecutor v. Kunarac et al.*, T-96-23 & IT-96-23/1-A, Judgement, Appeals Chamber, 12 June 2002, para. 58. See also *Prosecutor v. Rutaganda*, ICTR-96-3-A, Judgment, Appeals Chamber, 26 May 2003, para. 569; *Prosecutor v. Setako*, ICTR-04-81-A, Judgment, Appeals Chamber, 28 September 2011, para. 249; *Prosecutor v. Brima et al.*, SCSL-04-16-T, Judgment, Trial Chamber, 20 June 2007, paras. 246–247; *Prosecutor v. Perišić*, IT-04-81-T, Judgment, Trial Chamber I, 6 September 2011, para. 73.

<sup>1335</sup> *Prosecutor v. Tadić*, IT-94-1-AR72, Decision on the Defence Motion for Interlocutory Appeal, Appeals Chamber, 2 October 1995, para. 70; and *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgment, Trial Chamber, 16 November 1998, para. 193.

<sup>1336</sup> *Prosecutor v. Katanga and Ngudjolo Chui*, ICC-01/04-01/07, Decision on the confirmation of charges, Pre-Trial Chamber I, 26 September 2008, para. 381.

<sup>1337</sup> *Prosecutor v. Kunarac et al.*, IT-96-23 & IT-96-23/1-A, Judgement, Appeals Chamber, 12 June 2002, para. 58; 7; *Prosecutor v. Rutaganda*, ICTR-96-3-A, Judgment, Appeals Chamber, 26 May 2003, para. 569; for further details see Kolb (2004) *BYbIL* 280–281. See also *Prosecutor v. Garda*, ICC-02/05-02/09, Decision on the Confirmation of Charges, 8 February 2010, para. 90; *Prosecutor v. Lubanga Dyilo*, ICC-01/04-01/06, Decision on the confirmation of charges, Pre-Trial Chamber I, 29 Jan. 2007, para. 288. *Prosecutor v. Taylor*, SCSL-03-01-T, Judgment, Trial Chamber II, 18 May 2012, para. 563.

<sup>1338</sup> *Prosecutor v. Kunarac et al.*, IT-96-23 & IT-96-23/1-A, Judgement, Appeals Chamber, 12 June 2002, para. 58.

catalogue of additional criteria for the establishment of the nexus-requirement as proposed by the ICTY Appeals Chamber in *Kunarac* by making reference e.g. to the question whether the perpetrator is a combatant or whether the victim is a member of the opposing party<sup>1339</sup>, appears to be overly limited since a war crime may be committed irrespective of whether the perpetrator or the victim is a combatant/fighter or a civilian.

- 832 It should also be noted that the introduction to the elements of crimes relating to war crimes in its last part provides that the offender must have been aware of the factual circumstances that established the existence of an armed conflict that this requirement is implicit in the terms ‘took place in the context of and was associated with’. On the other hand, said introduction also provides that there is no requirement that the perpetrator must have been aware of the facts that established the character of the conflict as either being international or non-international.

## II. Classification of armed conflicts as ‘international armed conflicts’ or ‘armed conflicts not of an international character’

- 833 Determining whether a given armed conflict must be characterised as an *international armed conflict* or an *armed conflict not of an international character* is of major importance, given that under the ICC Statute, only in the former case the Court would be competent to judge upon those serious violations of the laws and customs of war enshrined in article 8 para. 2 (b) of the Statute. On the other hand, the prohibitions contained in article 8 para. 2 (c) and (e) apply in accordance with lit. (d) and (f) of said provision only in situations of armed conflicts *not of an international character*. In the *Lubanga* judgment of March 2012 the Trial Chamber has accordingly emphasized the continuous importance of distinguishing the two conflict categories under the Rome Statute<sup>1340</sup>.

- 834 Such determination, however, often proves to be a rather difficult issue involving both complicated legal and factual questions. Indeed, four situations have to be distinguished where this distinction has to be made, *i. e.*

- (1) armed conflicts which take place exclusively between two or more States<sup>1341</sup>;
- (2) armed conflicts which take place within the territory of a given State without third States being involved in the armed conflict<sup>1342</sup>;
- (3) armed conflicts where there is fighting between governmental armed forces on the one side and organised armed groups on the other and where at the same time third States are also involved in the armed conflict<sup>1343</sup>;
- (4) and finally those armed conflicts between a State’s regular armed forces and transnational non-state armed groups which do not occur within the territory of the respective State<sup>1344</sup>.

- 835 It is in particular with respect to the third and fourth categories that problems arise regarding either the necessary threshold of involvement of such third State in order for a given conflict to become internationalised or the very legal character of such transnational armed conflicts. Recently, the temporal and geographical scope of application of international humanitarian law pertaining to non-international armed conflicts has also become an issue of controversy. Legal issues might, however, also arise in the two other situations, such as, *e. g.*, the question whether situations described in article 1 para. 4 of Add. Prot. I of 1977 do also, *for the purposes of the Statute of the ICC*, amount to international armed conflicts.

- 836 In any event, the very object and purpose of IHL militates in favour of the protection deriving from this body of law to be as broad as possible. Yet, given that the protection

<sup>1339</sup> *Prosecutor v. Taylor*, SCSL-03-01-T, Judgement, Trial Chamber II, 18 May 2012, para. 567.

<sup>1340</sup> *Prosecutor v. Thomas Lubanga Dyilo*, ICC 01/04-01/06, Judgment pursuant to Article 74 of the Statute, Trial Chamber I, 14 March 2012, para. 539.

<sup>1341</sup> See below (aa).

<sup>1342</sup> See below (bb).

<sup>1343</sup> See below (cc).

<sup>1344</sup> See below (dd).

accorded by the rules on international armed conflicts is broader than those relating to internal conflicts, it seems to be appropriate, in case of doubt, to apply those governing international armed conflicts<sup>1345</sup>. Likewise, and in regard specifically to article 8 of the Statute, it would not be in line with the overall intention of the Rome Statute if, for example, the intentional launching of an attack in the knowledge that such attack will cause incidental loss of life or injury to civilians as provided for in article 8 para. 2 (b) (iv) would only be applicable in armed conflicts between States as such, but not if such attack is being conducted by a non-State actor operating from the territory of a given State. The same consideration might refute the suggestion to let the applicability of e.g. article 8 para. 2 (b) (and rules governing international armed conflicts generally) be dependent on the will of the affected third State.

### 1. Armed conflicts taking place exclusively between two or more States

Armed conflicts which take place between two or more States clearly possess an international character<sup>1346</sup>. In the *Lubanga* decision the Chamber, relying on the ICJ's holding in the *Case concerning Armed Activities on the Territory of the Congo*, stated that it 'considers an armed conflict to be international in character if it takes place between two or more States; this extends to the partial or total occupation of the territory of another State, whether or not the said occupation meets with armed resistances'<sup>1347</sup>. Examples of other recent international armed conflicts are the conflict between Eritrea and Ethiopia (1998–2000), as well as the conflicts in Afghanistan (2001–2002), Iraq (2003–2004), Georgia (August 2008) and the military intervention by members of NATO in Libya (2011). It is in such situations that article 8 para. 2 (a) and (b) of the Statute apply. It is worth noting, however, that this is true regardless of whether or not one of the parties to the conflict has been recognized as constituting a State by the respective adversary, provided that it indeed possesses the necessary requirements to be considered a State under international law<sup>1348</sup>. This has also been confirmed throughout the jurisprudence of the ICTY, which, on several occasions, has qualified the conflict between Yugoslav forces on the one side and Croatian or Bosnian forces on the other, as being international in character, notwithstanding the fact that the then Socialist Federal Republic of Yugoslavia respectively the Federal Republic of Yugoslavia had at the relevant time not (yet) recognized the respective other State<sup>1349</sup>.

<sup>1345</sup> See for a similar view following *mutatis mutandis* the authors' position on the matter the OTP's Article 53(1) Report 'Situation on Registered Vessels of Comoros, Greece and Cambodia' of 6 November 2014, available at <[http://www.icc-cpi.int/iccdocs/otp/OTP-COM-Article\\_53%281%29-Report-06Nov2014Eng.pdf](http://www.icc-cpi.int/iccdocs/otp/OTP-COM-Article_53%281%29-Report-06Nov2014Eng.pdf)> accessed 24 June 2015, para. 35 ('Additionally, as the protection accorded by the rules on international armed conflicts is broader than those relating to internal conflicts, it seems appropriate for the limited purpose of a preliminary examination, in cases of doubt, to apply those governing international armed conflicts.').

<sup>1346</sup> See the majority decision of the ICTY in the *Prosecutor v. Aleksovski*, IT-95-14/1-T, Judgment, Trial Chamber, 25 June 1999, para. 8, where the court states that 'an international armed conflict requires the involvement of two States'.

<sup>1347</sup> *Prosecutor v. Lubanga Dyilo*, ICC 01/04-01/06, Decision on the confirmation of charges, Pre-Trial Chamber I, 29 Jan. 2007, para. 209; ICJ, *Armed Activities on the Territory of the Congo (Democratic Republic of Congo v. Uganda)*, ICJ Rep. 2005, 168, 229, para. 172; See also *Prosecutor v. Katanga and Ngudjolo Chui*, ICC-01/04-01/07, Decision on the confirmation of charges, Pre-Trial Chamber I, 26 September 2008, para. 240; *Prosecutor v. Bemba*, ICC-01/05-01/08, Pre-Trial Chamber II, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor, 15 June 2009, para. 223. See also *Prosecutor v. Lubanga, Dyilo*, ICC 01/04-01/06, Judgment, 14 March 2012, paras. 541, 542.

<sup>1348</sup> See also article 4 Add. Prot. I which states that the application of both Add. Prot. I as well as the four Geneva Conventions of 1949 shall not affect the legal status of the Parties to the conflict.

<sup>1349</sup> See in particular the confirmation of the indictment by Judge Riad in *Prosecutor v. Mrksic et al.*, No. IT-95-13-I, Confirmation of the indictment, 7 November 1995, ICTY Jud. Rep. 1994/95 II, p. 1091; *Prosecutor v. Nikolic*, IT-94-2-R61, Review of indictment pursuant to Rule 61 of the Rules of Procedure and Evidence, Trial chamber, 20 October 1995, ICTY Jud. Rep. 1994/95 II, 771; *Prosecutor v. Karadžić & Mladić*, Review of the indictments pursuant to Rule 61 of the Rules of Procedure and Evidence, Trial Chamber, 16 July 1996, para. 30, quoted by Jones, *The Practice* 19 and finally the judgment rendered by *Prosecutor v. Tadić*, IT-94-1-T, Judgment, Trial Chamber, 7 May 1997, para. 569.

## 2. Conflicts which take place within the territory of a given State without third States being involved in the conflict

- 838 Armed conflicts occurring in the territory of a State in which no third State is involved might take two different forms: There might exist
- either an armed conflict between, on the one side, governmental armed forces and on the other side, one or more organised armed groups
  - or an armed conflict exclusively between armed groups<sup>1350</sup>.
- 839 With regard to armed conflicts that take place exclusively between armed groups, it seems obvious that such a situation cannot amount to an *international* armed conflict. Indeed, article 8 para. 2 (f) expressly qualifies armed conflicts that take place between several organized armed groups as constituting armed conflicts not of an international character.
- 840 As to the first alternative mentioned above, however, *i. e.* armed conflict between governmental armed forces on the one hand and organized armed groups on the other without third States being involved, it might be said that such situations will normally also fall within the category of internal armed conflicts as provided for in article 8 para. 2 (c) and (e). Article 1 para. 4 of Add. Prot. I provides, however, that at least for the purposes of said protocol, the notion of international armed conflicts as defined in article 2 common to the four Geneva Conventions of 1949, also encompasses so-called wars of national liberation<sup>1351</sup>. That notion emerged from several resolutions of the General Assembly and notably Res. 3103 (XXVIII) adopted on 12 December 1973 which stated that ‘armed conflicts involving the struggle of peoples against colonial and alien domination and racist régimes are to be regarded as international armed conflicts in the sense of the 1949 Geneva Conventions’. The debate leading to the adoption of Add. Prot. I of 1977 demonstrated to what extent such an approach was controversial<sup>1352</sup>. Still, article 1 para. 4 of Add. Prot. I now provides that international armed conflicts include ‘armed conflicts in which peoples fight against colonial domination and alien occupation and against racist régimes in the exercise of their right to self-determination, as enshrined in the Charter of the United Nations and the Declaration on Principles of International Law concerning Friendly Relations and Co-operation among States in accordance with the Charter of the United Nations’.
- 841 It might be said that, as of today, the rule contained in article 1 para. 4 of Add. Prot. I has become a generally binding rule of customary international law<sup>1353</sup> with the possible exception of those countries which have persistently objected to the formation of such rule including *inter alia* Israel<sup>1354</sup>. Besides, it is binding on all parties of Add. Prot. I as forming part of their respective treaty obligations. Accordingly, whenever an armed conflict occurs on the territory of a State Party to Add. Prot. I in which article 1 para. 4 of said protocol comes into play, the armed conflict possesses an international character.
- 842 The question therefore arises whether this rule applies only as far as general humanitarian law (and particular Add. Prot. I) is concerned or whether it extends to the Statute of the ICC as well. In that regard, one has to first take into account the fact that article 8 of the Statute does not contain a clause similar to article 1 para. 4 of Add. Prot. I. To the contrary, the definition of *internal* armed conflicts as contained in article 8 para. 2 (f) seems to encompass any form of protracted armed conflict between governmental authorities and organized armed groups. Accordingly, *argumentum e contrario*, one might be tempted to argue that any such situation – even if falling within the

<sup>1350</sup> See article 8 para. 2 (f), second phrase, second alternative of the Statute. *Prosecutor v. Bemba*, ICC-01/05-01/08, Pre-Trial Chamber II, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor, 15 June 2009, para. 231; *Prosecutor v. Garda*, ICC-02/05-02/09, Decision on the Confirmation of Charges, 8 February 2010, para. 57.

<sup>1351</sup> See for that notion, *e.g.*, Abi-Saab (1979) IV *RdC* 353 *et seq.*, in particular 370 *et seq.* and 403 *et seq.*

<sup>1352</sup> For a detailed description of this debate see Abi-Saab (1999) IV *RDC* 403 *et seq.*

<sup>1353</sup> See for such a proposition, *e.g.*, Cassese (1984) 3 *PacificBasinLJ* 71; but see also for a different position Aldrich (1985/86) 26 *VirgJIL* 703: ‘the provision is a dead letter’ and Kleffner, in: Fleck, *Handbook* (2013) 46.

<sup>1354</sup> Cassese (1984) 3 *PacificBasinLJ* 71.

scope of application of article 1 para. 4 of Add. Prot. I – can for the purposes of the Statute of the ICC not be considered to constitute an *international* armed conflict.

On the other hand, this would entail the necessary result that any such war of national liberation would eventually be subject to two different set of rules, *i.e.* those applying to international armed conflicts for purposes of general rules of humanitarian law and those applying to internal armed conflicts under the Statute of the ICC. Notwithstanding, the practical relevance of such a result would be rather limited. First, the scope of application of article 1 para. 4 was intended to be limited to a narrow group of situations. In fact, as far as can be seen to date no conflict has ever been qualified in accordance with article 1 para. 4 of Add. Prot. I. Second, countries most concerned have in the past avoided becoming parties to Add. Prot. I. Besides, wars against colonial domination are now a thing of the past<sup>1355</sup> and the reference to racist régimes only applies to ‘régimes founded on racist criteria’ such as, *e.g.*, the former apartheid régime in South Africa<sup>1356</sup>. In particular, said provision was not deemed to apply to conflicts in which a certain ethnic group or the inhabitants of a given territory attempt to secede outside a colonial context<sup>1357</sup>. Besides, in order to internationalise the conflict – and as a consequence to eventually also make applicable article 8 para. 2 (a) and (b) of the Statute of the ICC –, the respective authority representing the people struggling for self-determination must beforehand have made a declaration in accordance with article 96 para. 3 of Add. Prot. I<sup>1358</sup>.

### 3. Armed conflicts where there is fighting between governmental armed forces on the one side and organised armed groups on the other and where at the same time third States are also involved in the armed conflict

Non-international armed conflicts might become internationalised by the fact that one or more States become involved in the conflict. Yet, two scenarios ought to be distinguished:

If third States intervene on the side of the governmental armed forces, this does not alter the conflict qualification, *i.e.* the conflict continues to qualify as a non-international armed conflict<sup>1359</sup>. Thus, although due to the external intervention such a conflict features an international element and could thus be said to have been internationalized in the colloquial sense of the term, the legal qualification of the conflict remains unaffected.

If, however, one or more third States intervene on the side of the organized armed group, the conflict qualification might, depending on the degree of intervention, be altered. Thus, in the *Lubanga* Case the Chamber referred to the *Tadić* decision<sup>1360</sup> and held that ‘... an internal armed conflict that breaks out on the territory of a State may become international – or, depending on the circumstances, be international in character alongside with an internal armed conflict – if (i) another State intervenes in that conflict through its troops [on the side of an armed group fighting the government of a State] (direct intervention), or if (ii) some of the participants in the internal armed conflict act on behalf of that other State (indirect intervention)’<sup>1361</sup>.

As to the issue of direct intervention on the side of the organized armed group, it was the Appeals Chamber of the ICTY which held that, due to the involvement of the Croatian Army

<sup>1355</sup> Ambos, *Treatise on ICL II* (2014) 134; Kleffner, in: Fleck, *Handbook* (2013) 46.

<sup>1356</sup> Sandoz *et al.* (eds.), *Commentary* (1987) No. 112.

<sup>1357</sup> Kleffner, in: Fleck, *Handbook* (2013) 46.

<sup>1358</sup> As to further problems involved in the procedure provided for in article 96 para. 3 see Sandoz *et al.* (eds.), *Commentary* (1987) Nos. 1088–1089.

<sup>1359</sup> Geiß and Siegrist (2011) 93 *IRevRC* 11, 15.

<sup>1360</sup> *Prosecutor v. Tadić*, IT-94-1-A, Judgement, Appeal Chamber, 15 July 1999, para. 84.

<sup>1361</sup> *Prosecutor v. Lubanga Dyilo*, ICC 01/04-01/06, Decision on the confirmation of charges, Pre-Trial Chamber I, 29 January 2007, para. 209. In the Katanga decision the Chamber qualified the conflict as an international armed conflict but did not explain whether it considered the conflict to be international due to a direct intervention or due to an indirect intervention, *i.e.* Uganda’s overall control over the relevant armed groups; *Prosecutor v. Katanga and Ngudjolo Chui*, ICC-01/04-01/07, Decision on the confirmation of charges, Pre-Trial Chamber I, 26 September 2008, para. 240.



in Bosnia-Herzegovina and due to the involvement of the Yugoslav National Army in hostilities in Croatia, as well as in Bosnia-Herzegovina until its formal withdrawal, the respective conflict possessed an international character<sup>1362</sup>. Similarly, in the *Katanga* decision the Chamber found ‘sufficient evidence to establish substantial grounds to believe that Uganda directly intervened in this armed conflict through the Ugandan People Armed Forces (‘the UPDF’)’<sup>1363</sup>.

846 Direct intervention, however, need not necessarily always occur on the side of one of the parties of an armed conflict. For example, in March 2011 when certain NATO States directly intervened in Libya where at the time a non-international armed conflict between Libyan governmental forces and the forces of the National Libyan Council was ongoing, this intervention triggered an international armed conflict between the respective intervening States and Libya alongside the ongoing non-international armed conflict. Similarly, when NATO States directly intervened in the Kosovo conflict in 1999, they did not intervene on the side of the UCK, but rather on their own behalf. In such cases of independent direct intervention the qualification of the already ongoing non-international armed conflict remains unaffected. Instead, such independent intervention triggers an additional armed conflict which may qualify as an international or a non-international armed conflict depending on whom the intervener is fighting against. Admittedly, however, there are currently no clear-cut criteria for the determination of whether an intervention is ‘independent’ or in support of one of the parties to the conflict. The mere fact, however, that one side of the conflict *de facto* benefits from such an intervention, as was the case for the armed groups in Libya and Kosovo, seems insufficient to internationalize the whole conflict. On the other hand, the mere intention of the intervener cannot be decisive either, given that conflict qualification is always to be assessed on the basis of objective criteria. Therefore, the determination hinges on the degree of collaboration between the intervener on the one hand and the parties to the conflict on the other.

847 As far as the conflict in Bosnia-Herzegovina and clashes between the Croatian Government and Croatian Serb rebel forces in the Krajina region are concerned, the ICTY Appeals Chamber held that those conflicts had to be considered as to be of an internal nature, unless a direct involvement of the Federal Republic of Yugoslavia could be proven<sup>1364</sup>. This ‘indirect intervention’ standard was further developed by Trial Chamber II of the ICTY in its decision of May 7, 1997 where the majority considered that an armed conflict might only be qualified as an *international* armed conflict if the relevant military actions can be imputed to a third (State) party involved in the conflict, *i. e.* if the third party exercises *effective control* over the organized armed group(s)<sup>1365</sup>. In that regard the Chamber applied the test developed by the International Court of Justice (ICJ) in the *Nicaragua* case<sup>1366</sup> for purposes of State responsibility. It considered that even where the third party plays a role of vital importance for the insurgent, for example through granting logistical support, but lacks command and control of the insurgent armed forces, the conflict does *not* possess an international character<sup>1367</sup>. Judge McDonald, to the contrary, while applying the same agency test derived from the *Nicaragua* judgement, found in her dissenting opinion that the appropriate test is one of ‘dependency and control’ and that a showing of ‘effective control’ is not required<sup>1368</sup> in order to internationalise the armed conflict.

<sup>1362</sup> *Prosecutor v. Tadić*, IT-94-1-AR72, Decision on the Defence Motion for Interlocutory Appeal on Jurisdiction, Appeals Chamber, 2 October 1995, para. 72.

<sup>1363</sup> *Prosecutor v. Katanga and Ngudjolo Chui*, ICC-01/04-01/07, Decision on the confirmation of charges, Pre-Trial Chamber I, 26 September 2008, para. 240. However, the Chamber additionally also relied on the support Uganda had provided to the armed groups; *ibid.*

<sup>1364</sup> *Ibid.*

<sup>1365</sup> *Prosecutor v. Tadić*, IT-94-1-T, Judgment, Trial Chamber, 7 May 1997, reprinted in: (1997) *ILM* 928; cf. also the review of that decision by Scharf, *AJIL* 718 *et seq.* (1997).

<sup>1366</sup> *Military and Paramilitary Activities in and against Nicaragua (Nicaragua v. United States of America)* (Merits), ICJ Reports 1986, 14, 62, para. 109.

<sup>1367</sup> *Prosecutor v. Tadić*, IT-94-1-T, Judgment, Trial Chamber, 7 May 1997, reprinted in: (1997) *ILM* 928.

<sup>1368</sup> Separate and Dissenting Opinion McDonalds in the above-mentioned case, para. 4.



One might seriously question whether the standard developed by the ICJ in the *Nicaragua* case for purposes of State responsibility might validly be applied in order to determine whether a given armed conflict is international or internal<sup>1369</sup>. Indeed, as stated by a Trial Chamber of the ICTY in the *Rajić* case, even when applying the *Nicaragua* standard, a significant and continuous military intervention by an outside State in support of one of the fighting factions is sufficient to transform the conflict into an international one<sup>1370</sup>.

This was further confirmed by the decision of the ICTY in the *Aleksovski* case, where the majority – while still upholding the *Nicaragua* test as such – found that the decisive test is to consider whether the insurgent groups ‘are acting on behalf of a foreign State’<sup>1371</sup>, i. e. that they are either ‘acting under the overall control’ of that State<sup>1372</sup> or that there is at least an ‘indirect involvement of that country in the armed conflict’<sup>1373</sup>.

In order to determine such overall control or involvement, one should apply a standard which takes into account a bundle of factors, namely

- the possible extent of the direct foreign military intervention;
- the historical, ideological and political ties that exist between the insurgents and the third party<sup>1374</sup>;
- the extent of logistical support granted, including the dependency of the insurgents from such outside support;
- the extent of the integration of the respective military command structures;
- the recognition of actors involved in the conflict by outside parties and finally
- the position taken by relevant United Nations organs and in particular the position taken by the Security Council.

A similar approach was chosen by a Trial Chamber of the ICTY in the *Čelebići* case<sup>1375</sup> which *inter alia* also referred to the common purpose between the third State involved (i. e. in *casu* the FRY) and the insurgents (i. e. the Bosnian Serbs)<sup>1376</sup>. Finally, it was the Appeals Chamber of the ICTY, which in its last decision in the *Tadić* case<sup>1377</sup>, found that the *Nicaragua* test is not persuasive<sup>1378</sup>. Instead, it considered that the control required by the third party may be deemed to exist when that State has a role in organising, co-ordinating or planning the military actions of the organized armed group, in addition to financing, training and equipping the group or providing operational support to it<sup>1379</sup>, thus demonstrating a close personal, organisational and logistical interconnection between the insurgents and the respective third State<sup>1380</sup>. The *Tadić* Appeals decision also found that control by a State over subordinate armed forces or militias or paramilitary units may be of an overall character and does not necessarily include the issuing of specific orders by the State or the direction of each individual operation<sup>1381</sup>. This standard of overall control was also confirmed by the Pre-Trial

<sup>1369</sup> See for such a distinction, e. g., *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgment, Trial Chamber, 16 November 1998, para. 23; see also Dissenting Opinion Rodrigues in the *Aleksovski* case, *Prosecutor v. Aleksovski*, No. IT-95-14/1-T, Judgment, Trial Chamber, 25 June 1999, para. 21 and already Meron (1998) 92 *AJIL* 237.

<sup>1370</sup> See *Prosecutor v. Rajić*, No. IT-95-12, Review of the Indictment pursuant to Rule 61 of the Rules of Procedure and Evidence, Trial Chamber, 13 September 1996, para. 13.

<sup>1371</sup> *Prosecutor v. Aleksovski*, No. IT-95-14/1-T, Joint Opinion of the Majority, Judge Vohrah and Judge Nieto-Navia, 25 June 1999, para. 10.

<sup>1372</sup> *Ibid.*, para. 27.

<sup>1373</sup> *Ibid.*, para. 11.

<sup>1374</sup> For the relevance of this factor, e. g., the decision of the Bayerisches Oberstes Landesgericht in the case of *Public Prosecutor v. Djajić*, (1998) *NJW* 394.

<sup>1375</sup> *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgment, Trial Chamber, 16 November 1998, paras. 204 *et seq.*

<sup>1376</sup> *Ibid.*, para. 262.

<sup>1377</sup> *Prosecutor v. Tadić*, No. IT-94-1-A, Judgment, Appeals Chamber, 15 July 1999.

<sup>1378</sup> *Ibid.*, paras. 116 *et seq.*

<sup>1379</sup> *Ibid.*, para. 137.

<sup>1380</sup> See for that proposition the unpublished decision of the German Oberlandesgericht Düsseldorf 2 StE 8/96, positively quoted by the Appeals Chamber, *Prosecutor v. Tadić*, IT-94-1-A, Judgment, Appeals Chamber, 15 July 1999, para. 129, note 154.

<sup>1381</sup> *Prosecutor v. Tadić*, IT-94-1-A, Judgment, Appeals Chamber, 15 July 1999, para. 137.

Chamber I in its *Lubanga* decision of 29 January 2007 and in the subsequent Trial Chamber judgment of 14 March 2012<sup>1382</sup>.

- 852 Yet, it has to be noted, that this overall control test may not be applied with regard to situations of occupation since the law of occupation requires a direct and effective degree of control by the respective occupying power in accordance with customary international law, as reflected in Article 42 of the Hague Regulations of 1907<sup>1383</sup>. Against this background, Pre-Trial Chamber I, in the *Lubanga* decision, had held that there was sufficient evidence to establish substantial grounds to believe that, as a result of the presence of the Republic of Uganda as an occupying Power, the armed conflict which occurred in Ituri can be characterised as an armed conflict of an international character from July 2002 to 2 June 2003<sup>1384</sup>, while in light of the paucity of evidence before it, the Chamber was not in a position to find that there was sufficient evidence to establish substantial grounds to believe that Rwanda played a role that can be described as direct or indirect intervention in the armed conflict in Ituri<sup>1385</sup>.
- 853 However, a somewhat different reasoning was adopted in the *Katanga* decision where the Chamber did not explicitly qualify Uganda as an occupying Power but relied on a direct intervention of Uganda through the Ugandan People Armed Forces (UPDF) finding sufficient evidence for a ‘direct participation of significant numbers of UPDF troops in several military operations on behalf of different armed groups’ and also ‘that Uganda was one of the main supplier of weapons and ammunitions to these armed groups and that the respective recipients’ ability to successfully attack other groups was aided by this Ugandan military assistance’<sup>1386</sup>.
- 854 Notably, in the *Case concerning the Application of the Convention on the Prevention and Punishment of the Crime of Genocide*, the ICJ held, in sharp contrast to the ICTY Appeals Chamber judgment in the *Tadić* case, that the ‘overall control’ test as developed throughout the jurisprudence of the ICTY, was not appropriate concerning the determination of State responsibility<sup>1387</sup>. Nevertheless, the ICJ observed, that since ‘logic does not require the same test to be adopted in resolving two issues, which are very different in nature’<sup>1388</sup>, the ‘overall control’ test may still be applicable and suitable when deciding whether an armed conflict is international or non-international in nature<sup>1389</sup>.
- 855 Finally, the issue of a possible internationalisation of a particular, otherwise non-international armed conflict arises where UN peacekeeping forces, acting under a ‘robuste’ mandate, are involved in the conflict. Yet, any such involvement is not, as such, capable of changing the legal character of the conflict itself for purposes of article 8 of the Statute and thus is not,

<sup>1382</sup> *Prosecutor v. Lubanga Dyilo*, ICC-01/04-01/06-2842, Judgment pursuant to Article 74 of the Statute, Trial Chamber I, 14 March 2012, para. 541; *Prosecutor v. Lubanga Dyilo*, ICC-01/04-01/06, Decision on the confirmation of charges, Pre-Trial Chamber I, 29 January 2007, para. 211.

<sup>1383</sup> *Prosecutor v. Naletilic and Martinovic*, IT-98-34-T, Judgment, Trial Chamber, 31 March 2003, para. 214 *et seq.*; but see also *Prosecutor v. Blaškić*, IT-95-14-T, Trial Chamber, Judgment, 3 March 2000, para. 149; for further details see, Kolb (2004) 75 *BYbIL*. 283–285; *Armed Activities on the Territory of the Congo* (DRC v. Uganda), *ICJ Rep.* 2005, 168, 229, para. 172; *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*, Advisory Opinion, *ICJ Rep.* 2004, 167, para. 78 and p. 172, para. 89; *Prosecutor v. Lubanga Dyilo*, ICC-01/04-01/06, Decision on the confirmation of charges, Pre-Trial Chamber I, 29 January 2007, para. 212.

<sup>1384</sup> *Prosecutor v. Lubanga Dyilo*, ICC-01/04-01/06, Decision on the confirmation of charges, Pre-Trial Chamber I, 29 January 2007, para. 220.

<sup>1385</sup> *Ibid.*, para. 226. In its judgment of 14 March 2012, however, the Trial Chamber in view of the conduct under consideration qualified the conflict as a non-international armed conflict, *Prosecutor v. Lubanga Dyilo*, ICC-01/04-01/06-2842, Judgment pursuant to Article 74 of the Statute, Trial Chamber I, 14 March 2012, paras. 565–567.

<sup>1386</sup> *Prosecutor v. Katanga and Ngudjolo Chui*, ICC-01/04-01/07, Decision on the confirmation of charges, Pre-Trial Chamber I, 26 September 2008, para. 240.

<sup>1387</sup> *Application of the Convention on the Prevention and Punishment of the Crime of Genocide* (Bosnia and Herzegovina v. Serbia and Montenegro), Judgment, *ICJ Rep.* 2007, para. 402 *et seq.*

<sup>1388</sup> *Ibid.*, para. 405; for a critical appraisal of this consideration see Spinedi (2007) *JICJ* 829.

<sup>1389</sup> *Ibid.*, para. 404; Cassese (2007) 18 *EJIL* 649; Werle and Jessberger *Principles* (2014), 415.

in itself, capable of internationalising it. This conclusion may be derived from the very structure of article 8 of the Statute itself, and more specifically from the fact that directing attacks against peacekeeping forces constitutes a war crime in both, international armed conflicts under article 8 para. 2 (b) (iii), and in non-international armed conflicts under article 8 para. 2 (e) (iii). It thus logically follows that, at least for purposes of the Rome Statute and regardless of any qualification for purposes of international humanitarian law generally, an armed conflict also involving UN peacekeeping troops does not necessarily and by itself, constitute an international armed conflict. Rather, the overall conflict must be qualified as being either of an international or a non-international character irrespective of the involvement of peacekeeping forces as such.

#### 4. Conflicts between a State's regular armed forces and transnational non-state armed groups which do not occur within the territory of the respective State ('transnational armed conflicts')

As a result of the attacks of September 11, 2001 there has been an intensive and still ongoing international debate on how to qualify the subsequent military operations forming part of the so-called US-led 'war on terror' between a State's regular armed forces – in particular those of the United States and their allies – and non-state entities. And even though it seems that the 'global war on terror' phraseology has now been dropped from diplomatic parlance, the qualification problems associated with the extraterritorial use of force against non-state actors have remained. These operations are characterized by the fact that they do not occur within the territory of the respective State, but that they take place within the territory of (a) third State(s). Qualification problems in this context have arisen *e.g.* with regard to the 2006 conflict between the Israeli armed forces and Hezbollah forces in Northern Lebanon, with respect to the 2007 conflict between Turkish governmental forces and Kurdish armed groups in Northern Iraq, concerning Colombian military operations against the FARC on the territory of Ecuador in 2008 or, more recently, with regard to Kenya's military operation against Al-Shabaab on the territory of Somalia which commenced in October 2011. 856

On the one hand, such conflicts possess an extraterritorial character, given that military force is being used on the territory of another State. On the other hand, they typically lack a genuine inter-state element, given that the military action is not directed against another State as such, but rather against non-state entities such as Al Qaeda, Hezbollah, the PKK or Al-Shabaab that are present on another State's territory. Such conflicts may thus be best described as 'transnational armed conflicts'<sup>1390</sup> or 'extra-state hostilities'<sup>1391</sup>. It should be noted however, that these are merely descriptive terms suitable to capture a new phenomenon but not (yet) a new legal category of armed conflict. Thus, the problem remains to qualify a given transnational armed conflict as either an international or a non-international armed conflict or both. As the very term to describe the phenomenon indicates, this type of conflict raises some analytical difficulties concerning the traditional international/non-international dichotomy in international humanitarian law generally, and the Rome Statute in particular, as the emergence of this new kind of conflict was not foreseen when the respective treaties, including the Rome Statute, were drafted. 857

Although the term 'transnational armed conflict' is appropriate in pointing out the crucial characteristics of the phenomenon as such, it has to be first emphasized, however, that in most cases, counter-terrorist operations will not even constitute an armed conflict within the meaning of the Geneva Conventions or the ICC Statute. In legal terms they rather possess the character of police missions aimed at repressing severe crime, even if carried out by regular armed forces<sup>1392</sup>. As such they are comparable to the contemporary counter-piracy opera- 858

<sup>1390</sup> See, *e.g.*, Corn (2007) 40 *VandJTransL* 295, 299.

<sup>1391</sup> Schöndorf (2004) 37 *NYJIL&Pol* 1, 3.

<sup>1392</sup> See, *e.g.*, Paust (2004) 79 *NotreDameLRev* 1335, 1342.

tions in the Gulf of Aden, which, albeit carried out by the navies of various states, qualify as multinational police operations that are governed primarily by human rights law rather than humanitarian law. Likewise, isolated terrorist acts such as those that have occurred *inter alia* in London, Mumbai, Madrid, Casablanca or Bali, are usually not capable of yet amounting to an armed conflict<sup>1393</sup>. It follows that, as a rule, article 8 of the Statute will, at least as a matter of principle, not be applicable to these new forms of organised violence, even if the United States Supreme Court in *Hamdan v. Rumsfeld* has taken the position that common article 3, as a minimum standard, was applicable to the conflict during which the detainee had been captured, thereby implicitly confirming the U.S. government's assertion that counter-terrorist operations conducted by U.S. forces<sup>1394</sup> forming part of the so-called 'war on terror' constituted an armed conflict in the sense of international humanitarian law and thus also within the meaning of the Rome Statute. The ICRC has however rightly rejected the assumption that there is an ongoing armed conflict of global dimensions and has instead, adopted a case-by-case approach concerning the classification of the various different situations of violence that have occurred in the fight against terrorism<sup>1395</sup>.

859 Such a case-by-case approach reveals that, notwithstanding the general caveat regarding the application of international humanitarian law in the fight against terrorism mentioned above, there have been a number of cases in which the hostilities between a State's armed forces and a non-State actor with the primary goal to suppress terrorist activities did indeed amount to an armed conflict, the most important examples being the war waged by the U.S.-led coalition in Afghanistan that started in October 2001, and the 2006 Second Lebanese War between Israel and Hezbollah

860 In cases where counter-terrorist operations of a State indeed result in an armed conflict, an important distinction has to be drawn.

On the one hand, if the conflict between the State and an organised armed group takes place on a territory subject to belligerent occupation by the acting State, it might be argued that it would possess an international character where and to the extent that the armed group either belongs to the armed forces of the occupied State respectively to the entity representing the people in question<sup>1396</sup>. This is due to the fact that it would be contradictory to, on the one hand, have the belligerent occupation as such being governed by the Fourth Geneva Convention and customary international law, and, on the other hand, regulate the conduct of hostilities on the occupied territory between occupying forces and insurgent forces representing the occupied territory by norms governing internal conflict only<sup>1397</sup>. Yet, article 1, para. 4 Add. Prot. I confirms that only certain types of armed conflicts taking place in a situation of occupation might amount to international armed conflicts since even under article 1, para. 4 Add. Prot. I armed conflicts taking place in occupied territories only qualify as international armed conflict provided further criteria are met, namely that the non-State group involved in the conflict is representative of a people exercising its right of self-determination and thus requiring that the non-State party to the conflict constitutes more than a mere group *de facto* exercising control over a certain part of the occupied territory.

861 On the other hand, if the armed conflict is taking place on the territory of a third State which is, as such, not party to the hostilities in question, the situation is more complex. One example is the war between Israel and Hezbollah, where this non-state group operated on

<sup>1393</sup> Arnold, *Repressing Terrorism* (2004) 111 *et seq.* See also mn 302.

<sup>1394</sup> *Hamdan v. Rumsfeld*, 548 U.S. 65 (2006).

<sup>1395</sup> Pejic (2011) 93 *IREvRC* 189, 196.

<sup>1396</sup> In the Lubanga decision the Pre-Trial Chamber held 'that, as a result of the presence of the Republic of Uganda as an occupying Power, the armed conflict which occurred in Ituri can be characterised as an armed conflict of an international character from July 2002 to 2 June 2003' and thereby arguably assumed that occupation internationalizes any other conflict; *Prosecutor v. Lubanga Dyilo*, ICC-01/04-01/06, Decision on the confirmation of charges, Pre-Trial Chamber I, 29 January 2007, para. 220.

<sup>1397</sup> Cassese, *International Law* (2005) 420. This line of reasoning was affirmatively cited by the Supreme Court of Israel in its decision on the Israeli government's 'targeted killings' policy in the Occupied Palestinian Territories, see *The Public Committee Against Torture in Israel v. The Government of Israel*, (2006) 769/02 *HCI*, para. 18 *et seq.*

and from Lebanese territory, the actions of which could however not be attributed to the State of Lebanon<sup>1398</sup>. In its *Hamdan* decision, the U.S. Supreme Court held that such kind of incidents come within the scope of non-international conflicts, relying on an analysis of the term ‘non-international’ itself. The Court rightly held that non-state armed entities are not and are not even able to be ‘High Contracting Parties’ of the Geneva Conventions. According to this view, the phrase ‘not of an international character’ has to be literally interpreted and thus comprises every kind of armed conflict that is not carried out between nations, *i.e.* sovereign States<sup>1399</sup>. In sharp contrast thereto, however, the Supreme Court of Israel took a position which is antithetic to this conclusion. The Israeli Supreme Court argued that the above considerations regarding situations of belligerent occupation are not restricted to such situations, but that the law dealing with international armed conflicts should apply in any case of armed conflict that crosses the borders of a State, thus equating the term ‘international’ with ‘transborder’<sup>1400</sup>.

The better view, however, is to qualify conflicts that involve a non-state actor as non-international armed conflicts even if they involve a cross-border element. The concept of international armed conflict as it is laid out in article 2 common to the Geneva Conventions as well as customary international law, requires States to be on each side of the conflict<sup>1401</sup>. Certainly, article 1 para. 4 of Add. Prot. I<sup>1402</sup> evidences that if a specific rule exists, the concept of international armed conflict may exceptionally be extended also to conflicts between States and non-state actors. However, article 1 para. 4 of Add. Prot. I has remained controversial, as far as can be seen it has never been applied in practice and its conditions are evidently not fulfilled in the transnational scenarios under consideration.

Of course, the extension of the non-international armed conflict model to transnational constellations, *i.e.* a State fighting a non-state actor in the territory of another State, is not without problems either. The traditional conception of a non-international armed conflict has certainly been that of an internal armed conflict confined to the territory of a single State. This traditional conception is vividly reflected in the wording of common article 3 of the four Geneva Conventions which speaks of conflicts ‘occurring in the territory of one of the High Contracting Parties’, and even more clearly in the wording of article 1 para. 1 of Add. Prot. II which talks of conflicts ‘which take place in the territory of a High Contracting Party’.

Moreover, the ICTY Appeals Chamber in *Tadić* spoke of armed conflicts ‘within a state’<sup>1403</sup> and also the Rome Statute in article 8 para. 2 (f) speaks of conflicts ‘that take place in the territory of a State’. Thus, even more explicitly in the *Bemba* decision the ICC Chamber concluded that an armed conflict not of an international character ‘takes place within the confines of a State territory’<sup>1404</sup>. All of these various references to State territory would seem to defy the assumption of a global armed conflict.

But do they also defy the idea of an extraterritorial non-international armed conflict in the territory of another State? Whereas the wording of article 1 para. 1 of Add. Prot. II, namely the word ‘its’ indeed requires that the armed group controls part of the territory of the state which it is fighting<sup>1405</sup>, the wording of common article 3, which refers to ‘the territory of one of the High Contracting Parties’ and thus not necessarily only to the territory of the State party to the conflict, is open enough to also accommodate the extraterritorial dimension. Increasingly, such an evolutive reading of common article 3 finds support in the literature

<sup>1398</sup> See Zimmermann (2007) 11 *MPYbUNL* 99, 109 *et seq.*

<sup>1399</sup> Cassese, *International Law* (2005) 67.

<sup>1400</sup> *The Public Committee Against Torture in Israel v. The Government of Israel* (2006) 769/02 HCJ, para. 18.

<sup>1401</sup> *Prosecutor v. Lubanga Dyilo*, No. ICC-01/04-01/06-2842, Judgment pursuant to Article 74 of the Statute, Trial Chamber I, 14 March 2012, para. 541. See also Krefß (2010) 15 *JCSL* 255.

<sup>1402</sup> See above mn 251.

<sup>1403</sup> *Prosecutor v. Tadić*, IT-94-1-AR72, Decision on the Defence Motion for Interlocutory Appeal, Appeals Chamber, 2 October 1995, para. 70.

<sup>1404</sup> *Prosecutor v. Bemba*, ICC-01/05-01/08, Pre-Trial Chamber II, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor, 15 June 2009, para. 231.

<sup>1405</sup> Lubell, *Use of Force* (2010) 100.



and arguably also in State practice, at least in as much as an extraterritorial dimension of the concept of non-international armed conflicts is accepted in situations like Afghanistan, where external States in support of the Afghan government are party to a non-international armed conflict outside their own territory<sup>1406</sup>. Thus, it is submitted that the conception of a non-international armed conflict is best suited and increasingly supported, *inter alia* by the US Supreme Court's *Hamdan* decision, to capture extraterritorial violence of a certain intensity between a State and an organized armed group.

866 This of course does not bar the existence of a parallel international armed conflict between the intervening State and the State on whose territory the fighting between the external State and the non-state actor takes place. Thus, an international armed conflict would clearly come into existence if there was fighting between the two State's armed forces or if the intervening State occupied part of the host State's territory<sup>1407</sup>. The possibility of a mixed armed conflict, i.e. the concurrent existence of an international and a non-international armed conflict was not only endorsed by the ICRC with respect to the armed conflict in Lebanon in 2006<sup>1408</sup>. Moreover, this possibility has also been endorsed in the *Lubanga* decision, where the Chamber held that an armed conflict may be 'international in character alongside an internal armed conflict'<sup>1409</sup>. Similarly, in the *Lubanga* judgment the Trial Chamber held that 'international and non-international armed conflicts may coexist'<sup>1410</sup>.

### III. Violations of article 3 common to the four Geneva Conventions

**Literature:** Gasser, H.-P., 'Armed Conflicts Within the Territory of a State', in: W. Haller *et al.* (eds.), *Im Dienst an der Gemeinschaft, Festschrift für D. Schindler* (1989) 225; *id.*, 'Protection of the Civilian Population', in: Fleck, D. (ed.), *The Handbook of Humanitarian Law in Armed Conflicts* (2008) 237; Green, L. C., 'Criminal responsibility of individuals in non-international conflicts', (2002) *GYbIL* 82; Hall, C. K., 'The Jurisdiction of the Permanent International Criminal Court over Violations of Humanitarian Law', in: F. Lattanzi (ed.), *The International Criminal Court – Comments on the Draft Statute* (1998) 19 (in particular 36–38); Kreß, C., 'War crimes committed in non-international armed conflict and the emerging system of international criminal justice', (2000/2001) *IsYbHumRts* 103; La Haye, E., *War Crime in Internal Armed Conflicts* (2010); Meindersma, C., 'Violations of common article 3 of the Geneva conventions as violations of the laws or customs of war under article 3 of the Statute of the International Criminal Tribunal for the former Yugoslavia', (1995) *NethILRev* 375; Moir, L., 'Violations of Common Article 3 of the Geneva Conventions', in: J. Doria *et al.* (eds.), *The Legal Regime of the ICC: Essays in Honour of Prof. I. P. Blishchenko* (2009) 619; Momtaz, D., 'War crimes in Non-International Armed Conflicts Under the Statute of the International Criminal Court', (1999) *YbILC* 177; Pejic, J., 'The Protective Scope of Common Article 3: More than meets the eye', (2011) 93 *IRvRC* 189–225; Schabas, W. A., 'Punishment of non-state actors in non-international armed conflict', (2003) *FordhamILJ* 907; Schindler, D., 'The Different Types of Armed Conflicts According to the Geneva Conventions and Protocols', (1979) II *Recueil de Cours* 121; Schmitt, M., 'Deconstructing direct participation in hostilities: The constitutive elements', (2010) 42 *NYJIL&Pol* 697; Sivakumaran, S., 'Courts of Armed Opposition Groups – Fair Trial or Summary Justice?', (2009) 7 *JICJ* 489–513; Spieker, H., 'The International Criminal Court and non-international armed conflicts', (2000) *LeidenJIL* 395; Zimmermann, A., 'The Creation of a Permanent International Criminal Court', (1998) *MPYbUNL* 169 (in particular 196–197); *id.*, 'Implementing the Statute of the International Criminal Court – the German Example', in: L. Vohrah *et al.* (eds.), *Man's Inhumanity to Man – Essays in Honour of Antonio Cassese* (2003) 977.

#### 1. General remarks

867 a) **Introduction.** The inclusion of violations of common article 3 into the Statute was opposed by a few States, namely China, India, Indonesia, Pakistan and also Turkey. This is surprising since this provision, according to the ICJ, contains a minimum yardstick in cases

<sup>1406</sup> See *ibid.*, 111; Pejic 93 (2011) *IRvRC* 201; Kreß (2010) 15 *JCSL* 255; Kretzmer, (2005) 16 *EJIL* 189 *et seq.*; Werle and Jessberger, *Principles* (2014), 419, 420.

<sup>1407</sup> Kreß (2010) 15 *JCSL* 256.

<sup>1408</sup> Kellenberger (30 July 2006) *NZZ* 3.

<sup>1409</sup> *Prosecutor v. Lubanga Dyilo*, ICC-01/04-01/06, Decision on the confirmation of charges, Pre-Trial Chamber I, 29 January 2007, para. 209.

<sup>1410</sup> *Prosecutor v. Lubanga Dyilo*, ICC-01/04-01/06-2842, Judgment pursuant to Article 74 of the Statute, Trial Chamber I, 14 March 2012, para. 540, referring to *Prosecutor v. Tadić*, see note 14, para. 84.



of civil strife<sup>1411</sup>. Furthermore, both the Appeals Chamber of the ICTY as well as the ICTR<sup>1412</sup> had already *prior* to the Rome conference explicitly confirmed that under current rules of customary international law, violations of common article 3 even in internal armed conflicts entail the individual criminal responsibility of the person committing such acts<sup>1413</sup>. The criminalization of serious violations of common article 3 was further confirmed by article 4 of the Statute of the ICTR. Since the Rome conference this development has been further confirmed by both, founding instruments of international criminal tribunals such as the Statute of the Special Court for Sierra Leone or the regulation adopted by the United Nations administration of East Timor providing for the jurisdiction of special courts in East Timor as well as the one of the Iraqi Special Tribunal, as well as finally by domestic legislation such as, for example, the German Code of Crimes against International Law (*Völkerstrafgesetzbuch*)<sup>1414</sup>.

**b) Existence of an armed conflict not of an international character.** Common article 3 868 expressly states that ‘in cases of armed conflict not of an international character ... each Party shall be bound to apply, as the minimum’ its provisions. Thus the formula contained in the chapeau of article 8 para. 2 (c) of the Statute does not seem to contain a significant distinction when compared to the formula already used in common article 3 itself<sup>1415</sup>.

The ICRC has taken the position that the conflict under consideration, in order to qualify 869 for the purposes of common article 3 as an armed conflict, must have lead to combat and to the use of armed forces<sup>1416</sup>. Notwithstanding the threshold requirements contained in article 8 para. 2 (d) and (f) of the Statute, it is generally established that for a non-international armed conflict, whether it involves only armed groups or also governmental armed forces on one side of the conflict, two objective requirements must be met.

First, the hostilities must reach a certain level of intensity<sup>1417</sup>. The Appeals Chamber in the 870 *Tadić* case held that there is an armed conflict ‘whenever there is [...] *protracted* armed violence between governmental authorities and organised armed groups or between such groups within a state’<sup>1418</sup>. With regard to the ICC Statute the Pre-Trial Chamber in Bemba held that the threshold contained in the first sentence of article 8 para. 2 (d) and (f), first sentence, of the Statute requires any armed conflict not of an international character to reach a certain level of intensity which exceeds that of internal disturbances and tensions, such as riots, isolated and sporadic acts of violence or other acts of a similar nature<sup>1419</sup>. In fact, it was already in the *Akayesu* judgement that the ICTR had stated that ‘the term armed conflict in itself suggests the existence of hostilities between armed forces organized to a greater or lesser extent [and that] [t]his consequently rules out situations of internal

<sup>1411</sup> *Military and Paramilitary Activities in and against Nicaragua (Nicaragua v. United States of America)* (Merits), ICJ Rep, 1986, 14, 114, para. 218.

<sup>1412</sup> *Prosecutor v. Akayesu*, ICTR-96-4-T, Judgment, Trial Chamber, 2 September 1998, para. 608.

<sup>1413</sup> *Prosecutor v. Tadić*, IT-94-1-AR72, Decision on the Defense Motion for Interlocutory Appeal on Jurisdiction, Appeals Chamber, 2 October 1995, paras. 128 *et seq.* The relevant part of the judgement explicitly stipulated that ‘... customary international law imposes criminal liability for serious violations of common article 3’.

<sup>1414</sup> For further details see e.g. Zimmermann, in: Vohrah *et. al.* (eds.), *Inhumanity* (2003) 977.

<sup>1415</sup> But see also Hall, in: Lattanzi (ed.), *Comments* (1998) 37–38.

<sup>1416</sup> See CICR (ed.), *Convention de Genève* (1956) 40 *et seq.* (in particular 42).

<sup>1417</sup> See only *Prosecutor v. Bemba*, ICC-01/05-01/08, Pre-Trial Chamber II, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor, 15 June 2009, para. 225.

<sup>1418</sup> *Prosecutor v. Tadić*, IT-94-1-AR72, Decision on the Defense Motion for Interlocutory Appeal on Jurisdiction, Appeals Chamber, 2 October 1995, para. 70. See also *Prosecutor v. Lubanga Dyilo*, ICC-01/04-01/06, Decision on the confirmation of charges, Pre-Trial Chamber I, 29 January 2007, para. 233; *Prosecutor v. Bemba*, ICC-01/05-01/08, Pre-Trial Chamber II, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor, 15 June 2009, para. 229.

<sup>1419</sup> *Prosecutor v. Bemba*, ICC-01/05-01/08, Pre-Trial Chamber II, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor, 15 June 2009, para. 225.

disturbances and tensions'<sup>1420</sup>. In assessing the required intensity of the conflict Trial Chambers of the ICTY have considered a variety of indicative criteria<sup>1421</sup> such as the gravity of attacks and their recurrence<sup>1422</sup>, the number of victims<sup>1423</sup>, the temporal and territorial expansion of violence and the collective character of hostilities<sup>1424</sup>, the mobilization of volunteers and the distribution and type of weapons among both parties to the conflict<sup>1425</sup>, whether various parties were able to operate from a territory under their control<sup>1426</sup>, an increase in the number of government forces<sup>1427</sup>, the fact that the conflict led to a large displacement of people<sup>1428</sup> as well as whether the conflict had attracted the attention of the UN Security Council and whether it was specifically addressed or even qualified as such by the Security Council<sup>1429</sup>.

- 871 Second, the non-governmental armed group(s) involved in the conflict must possess a certain degree of organization<sup>1430</sup> said requirement being inherent in the very notion of 'armed groups' notwithstanding the fact that unlike Art. 8 para. 2 (f) neither Art. 8 para. 2 (c) nor common Art. 3 GC I-IV as such *expressis verbis* contain such requirement. In *Lubanga* the Pre-Trial Chamber held that 'the involvement of armed groups with some degree of organisation and the ability to plan and carry out sustained military operations would allow for the conflict to be characterised as an armed conflict not of an international character'<sup>1431</sup>.

<sup>1420</sup> *Prosecutor v. Akayesu*, ICTR-96-4-T, Judgment, Trial Chamber, 2 September 1998, para. 620; recalled in *Prosecutor v. Bemba*, ICC-01/05-01/08, Pre-Trial Chamber II, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor, 15 June 2009, para. 230.

<sup>1421</sup> For a summarily depiction of these various indicative factors, see *Prosecutor v. Fatmir Limaj et al.*, IT-03-66-T, Judgment, Trial Chamber, 30 November 2005, paras. 94–134, 170; *Prosecutor v. Ramush Haradinaj et al.*, No. IT-04-84-T, Judgment, Trial Chamber, 3 April 2008, para. 49. The ICTR uses the same test as the ICTY, see *Prosecutor v. Akayesu*, ICTR-96-4-T, Judgment, Trial Chamber, 2 September 1998, paras. 619–26; *Prosecutor v. Clément Kayishema and Obed Ruzindana*, No. ICTR-95-1-T, Judgment, Trial Chamber II, 21 May 1999, para. 170; *Prosecutor v. Musema*, ICTR-96-13-A, Judgment and Sentence, Trial Chamber I, 27 January 2000, para. 250; *Prosecutor v. Rutaganda*, ICTR-96-3-T, Judgment and sentence, Trial Chamber I, 6 December 1999, paras. 92–93; *Prosecutor v. André Ntagerura et al.* (Case Name 'Cyanguu'), No. ICTR-99-46-T, Judgment and sentence, Trial Chamber III, para. 767; *Prosecutor v. Semanza*, ICTR-97-20-T, Judgment, Trial Chamber, 15 May 2003, paras. 355 and 514; *Prosecutor v. Ignace Bagilishema*, ICTR-95-1A-T, Judgment, Trial Chamber I, 7 June 2001, paras. 99–101; *Prosecutor v. Jean de Dieu Kamuhanda*, No. ICTR-95-54A-T, Judgment, Trial Chamber II, 22 January 2004, paras. 721–24. For an analysis of the relevant jurisprudence see La Haye, *War Crimes in Internal Armed Conflicts* (2010) 9 *et seq.*

<sup>1422</sup> *Prosecutor v. Tadić*, Opinion and Judgment, Trial Chamber, IT-94-1-AR72, Decision on the Defense Motion for Interlocutory Appeal on Jurisdiction, Appeals Chamber, 2 October 1995, para. 565; *Čelebići Case*, IT-96-21-A, Judgment, Appeals Chamber, 20 February 2001, paras. 186–89.

<sup>1423</sup> *Prosecutor v. Lubanga Dyilo*, ICC-01/04-01/06, Decision on the confirmation of charges, Pre-Trial Chamber I, 29 January 2007, para. 235.

<sup>1424</sup> *Prosecutor v. Tadić*, Opinion and Judgment, Trial Chamber, IT-94-1-AR72, Decision on the Defense Motion for Interlocutory Appeal on Jurisdiction, Appeals Chamber, 2 October 1995, paras. 566, 568; *Prosecutor v. Kunarac*, Judgment, Trial Chamber, 22 February 2001, para. 567, *Čelebići Case*, IT-96-21-A, Judgment, Appeals Chamber, 20 February 2001, para. 186, *Prosecutor v. Stakić*, IT-97-24-T, Judgment, Trial Chamber II, 31 July 2003, para. 572.

<sup>1425</sup> *Čelebići Case*, IT-96-21-A, Judgment, Appeals Chamber, 20 February 2001, para. 188; *Prosecutor v. Milošević*, IT-02-54-T, Decision on Motion for Judgment of Acquittal, 16 June 2004, paras. 30–31; *Prosecutor v. Limaj*, IT-03-66-T, Judgment, Trial Chamber, 30 November 2005, paras. 136, 138, 156, 169, 161, 164–166.

<sup>1426</sup> *Čelebići Case*, IT-96-21-A, Judgment, Appeals Chamber, 20 February 2001, para. 187; *Prosecutor v. Limaj*, IT-03-66-T, Judgment, Trial Chamber, 30 November 2005, paras. 146, 158, 159.

<sup>1427</sup> *Prosecutor v. Limaj*, IT-03-66-T, Judgment, Trial Chamber, 30 November 2005, paras. 146, 159 and 164–65.

<sup>1428</sup> *Prosecutor v. Limaj*, IT-03-66-T, Judgment, Trial Chamber, 30 November 2005, para. 167.

<sup>1429</sup> *Prosecutor v. Lubanga Dyilo*, ICC-01/04-01/06, Decision on the confirmation of charges, Pre-Trial Chamber I, 29 January 2007, para. 235; *Čelebići Case*, IT-96-21-A, Judgment, Appeals Chamber, 20 February 2001, para. 190; *Prosecutor v. Tadić*, IT-94-1-AR72, Decision on the Defense Motion for Interlocutory Appeal on Jurisdiction, Appeals Chamber, 2 October 1995, para. 567.

<sup>1430</sup> *Prosecutor v. Bemba*, ICC-01/05-01/08, Pre-Trial Chamber II, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor, 15 June 2009, para. 234. See also *Prosecutor v. Limaj*, IT-03-66-T, Judgment, Trial Chamber, 30 November 2005, paras. 94–134, 170.

<sup>1431</sup> *Prosecutor v. Lubanga Dyilo*, ICC-01/04-01/06, Decision on the confirmation of charges, Pre-Trial Chamber I, 29 January 2007, para. 233.

In order to assess the second requirement, i. e. the organization of the parties to the conflict, the ICTY has taken into account such factors as the existence of headquarters, designated zones of operation and the ability to transport and distribute arms<sup>1432</sup>. In the *Limaj* case the Trial Chamber pointed out that *some degree of organization* by the parties will suffice to establish the existence of an armed conflict<sup>1433</sup>. In assessing whether the Kosovo Liberation Army (KLA) possessed the characteristics of an organized armed group the Trial Chamber in *Limaj* took into account *inter alia* the following criteria: the structure of the KLA with a general staff and the existence of eleven zones with one commander for each zone<sup>1434</sup>, the weapons distribution channels<sup>1435</sup>, the use of uniforms<sup>1436</sup>, the adoption of internal regulations<sup>1437</sup>, the nomination of a spokesperson<sup>1438</sup>, the issuance of orders<sup>1439</sup>, political statements and communiqués<sup>1440</sup>, the establishment of headquarters<sup>1441</sup>, the capacity to launch co-ordinated action between KLA units<sup>1442</sup>, the establishment of a military police and disciplinary rules<sup>1443</sup>, the ability of the KLA to recruit new members<sup>1444</sup> and its capacity to provide military training<sup>1445</sup>.

With respect to the jurisprudence of the ICC, the Pre-Trial Chamber in *Bemba* concurred 872 with Pre-Trial Chamber I in the *Lubanga* case (albeit in the context of article 8 para. 2 (f) of the Statute which, unlike Art. 8 para. 2 (c), expressly requires the armed groups involved in the conflict to be ‘organized’) by stressing the need for the armed groups in question to have the ability to plan and carry out military operations for a prolonged period of time<sup>1446</sup>. In the *Bemba* decision the Chamber added that organized armed groups must be under responsible command and that in this regard, responsible command entails some degree of organization of those armed groups, including the possibility to impose discipline and the ability to plan and carry out military operations<sup>1447</sup>. In the *Callixte Mbarushimana* decision, the Chamber, referred *inter alia* to the FDLR’s hierarchical structure and high level of internal organization, the existence of a political and a military wing, and the FDLR’s constitutive instruments which included a statute, a ‘règlement d’ordre intérieur’ and a disciplinary code which provided the organisation’s internal disciplinary system<sup>1448</sup>. Against this background the Chamber was satisfied that there are substantial grounds to believe that the FDLR as an armed group possessed the degree of organisation required under article 8 para. 2 (f) of the Statute<sup>1449</sup>.

<sup>1432</sup> Prosecutor v. Milošević, IT-02-54-T, Decision on Motion for Judgment of Acquittal, 16 June 2004, paras. 23–24.

<sup>1433</sup> Prosecutor v. Limaj, No. IT-03-66-T, Judgment, Trial Chamber, 30 November 2005, para. 89 (emphasis added).

<sup>1434</sup> *Ibid.*, paras. 94–97.

<sup>1435</sup> *Ibid.*, paras. 121–22.

<sup>1436</sup> *Ibid.*, paras. 123–24.

<sup>1437</sup> *Ibid.*, paras. 98 and 110–12.

<sup>1438</sup> *Ibid.*, paras. 99 and 102.

<sup>1439</sup> *Ibid.*, paras. 100, 105, 109.

<sup>1440</sup> *Ibid.*, paras. 101–3.

<sup>1441</sup> *Ibid.*, para. 104.

<sup>1442</sup> *Ibid.*, para. 108.

<sup>1443</sup> *Ibid.*, paras. 113–17.

<sup>1444</sup> *Ibid.*, para. 118.

<sup>1445</sup> *Ibid.*, paras. 119–20.

<sup>1446</sup> Prosecutor v. Lubanga, ICC-01/04-01/06, Decision on the confirmation of charges, Pre-Trial Chamber I, 29 January 2007, para. 234; Prosecutor v. Bemba, ICC-01/05-01/08, Pre-Trial Chamber II, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor, 15 June 2009, para. 233; Prosecutor v. Garda, ICC-02/05-02/09, Decision on the Confirmation of Charges, 8 February 2010, para. 91.

<sup>1447</sup> Prosecutor v. Lubanga Dyilo, ICC-01/04-01/06, Decision on the confirmation of charges, Pre-Trial Chamber I, 29 January 2007, para. 232; Prosecutor v. Bemba, ICC-01/05-01/08, Pre-Trial Chamber II, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor, 15 June 2009, para. 234.

<sup>1448</sup> Prosecutor v. Callixte Mbarushimana, ICC-01/04-01/10, Decision on the confirmation of Charges, Pre Trial Chamber I, 16 December 2011, para. 104.

<sup>1449</sup> *Ibid.*, para. 106.

- 873 The sole notion of ‘armed conflict’ in and of itself already excludes the applicability of article 8 para. 2 (c) to internal disturbances, a result that is further confirmed by article 8 para. 2 (d) of the Statute<sup>1450</sup>. Paragraph 1 of the introduction to the war crimes part of the elements of crimes adopted by the Assembly of States Parties under article 9 specifically confirms that the elements of crimes adopted with regard to article 8 para. 2 (c) are subject to the limitations contained in article 8 para. 2 (d) of the Statute. In that regard it referred, in particular, to the criteria referred to during the drafting of common article 3 in 1949<sup>1451</sup>. Thus, the very term of ‘armed conflict’ in itself already presupposes the existence of hostilities between armed forces organized to a greater or lesser extent<sup>1452</sup>.
- 874 As a matter of principle, the prohibitions contained in article 8 para. 2 (c) also apply outside the actual theatre of military operations, *i. e.* in the whole territory under the control of a party, regardless of whether or not actual combat takes place<sup>1453</sup>, provided, however, that there is a nexus between the conduct concerned and the armed conflict<sup>1454</sup>, *e. g.* that the acts in question are not solely committed by the respective perpetrator for purely personal motives<sup>1455</sup>.
- 875 Since article 8 para. 2 (c) of the Statute, unlike the second sentence of article 8 para. 2 (f), does not contain a reference to a *protracted* armed conflict, there is no minimum duration requirement of the conflict as such. Moreover, the limitations contained in article 1 para. 1 of Add. Prot. II do not, subject to the exclusionary rule contained in article 8 para. 2 (d) of the Statute<sup>1456</sup>, apply as such. In both the *Bemba* and the *Lubanga* decisions it was pointed out that the requirement contained in article 1 para. 1 of Add. Prot. II, that the organized armed group(s) exert control over a part of the territory, is not a requirement under article 8 para. 2 (f) and thus even less under article 8 para. 2 (c)<sup>1457</sup>.
- 876 In order to render article 8 para. 2 (c) applicable, the conflict must not possess an international character<sup>1458</sup>.
- 877 c) **Serious violations of article 3.** Article 8 para. 2 (c) of the Statute presupposes that ‘serious’ violations of common article 3 have taken place. This limitation is in line with relevant precedents and in particular with both, article 4 of the Statute of the ICTR<sup>1459</sup> and the jurisprudence of the Appeals Chamber of the ICTY<sup>1460</sup>. This limitation can be seen as a concretisation of article 5 of the Statute, which limits the jurisdiction of the Court to those crimes which are of concern to the international community as a whole<sup>1461</sup>.

<sup>1450</sup> As to the exclusion of mere internal disturbances and similar tensions contained in article 8 para. 2 (d) see below mn 910 *et seq.*

<sup>1451</sup> *Prosecutor v. Akayesu*, ICTR-96-4-T, Judgment, Trial Chamber, 2 September 1998, para. 619; for a more detailed analysis of these criteria see Pictet (ed.), *Commentary iv*, (1958) article 3, 36.

<sup>1452</sup> *Prosecutor v. Akayesu*, ICTR-96-4-T, Judgment, Trial Chamber, 2 September 1998, para. 620.

<sup>1453</sup> *Prosecutor v. Tadić*, IT-94-1-AR72, Decision on the Defense Motion for Interlocutory Appeal on Jurisdiction, Appeals Chamber, 2 October 1995, para. 69; confirmed by *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgment, Trial Chamber, 16 November 1998, para. 185 and *Prosecutor v. Kayishema*, ICC-01/05-01/08, Pre-Trial Chamber II, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor, 15 June 2009, paras. 176, 182 *et seq.*

<sup>1454</sup> *Prosecutor v. Tadić*, IT-94-1-AR72, Decision on the Defense Motion for Interlocutory Appeal on Jurisdiction, Appeals Chamber, 2 October 1995, paras. 572 and 617.

<sup>1455</sup> *Prosecutor v. Akayesu*, ICTR-96-4-T, Judgment, Trial Chamber, 2 September 1998, para. 636.

<sup>1456</sup> For details see Zimmermann and Geiß, *article 8 para. 2 (d)*, mn 910.

<sup>1457</sup> *Prosecutor v. Bemba*, ICC-01/05-01/08, Pre-Trial Chamber II, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor, 15 June 2009, para. 236; *Prosecutor v. Lubanga Dyilo*, ICC-01/04-01/06, Decision on the confirmation of charges, Pre-Trial Chamber I, 29 January 2007, para. 233.

<sup>1458</sup> For further details see Zimmermann and Geiß, *Preliminary remarks on article 8 para. 2 (c) – (f)*, mn 823.

<sup>1459</sup> The chapeau of that provision reads: ‘The International Tribunal for Rwanda shall have the power to prosecute persons committing or ordering to be committed *serious* violations of article 3 common to the Geneva Conventions ...’ (emphasis added).

<sup>1460</sup> See *Prosecutor v. Tadić*, IT-94-1-AR72, Decision on the Defense Motion for Interlocutory Appeal on Jurisdiction, Appeals Chamber, 2 October 1995, para. 128, which stated that ‘customary international law imposes criminal liability for *serious* violations of common article 3’ (emphasis added). But see also for a contrary proposition Hall, in: Lattanzi (ed.), *Comments* (1998) 38.

<sup>1461</sup> For details see Zimmermann, *article 5*, mn 15.

In practice, it is however hard to imagine which violations of one of the provisions contained in article 8 para. 2 (c) (i)–(iv) would not at the same time *ipso facto* also qualify as serious violations of common article 3. This is confirmed by the decisions of the Appeals Chamber of the ICTY in the *Tadić* case which held for purposes of article 3 of the Statute of the ICTY that acts constitute *serious* violations of the laws and customs of war if they ‘constitute a breach of a rule protecting important values’ (which is clearly the case with regard to common article 3) and that ‘the breach must involve grave consequences for the victim’<sup>1462</sup>. Thus, the only possible example of a non-serious violation of common article 3 might be the singular passing of a short term (!) imprisonment without adequate judicial guarantees. In all other cases, and in particular when acts threatening the physical integrity and safety of persons are committed, the threshold of ‘serious violations’ of common article 3 will always be fulfilled.

**d) Persons protected by the provision.** Article 8 para. 2 (c) does not contain a new list of persons who may qualify as victims of one of the acts listed in article 8 para. 2 (c) (i)–(iv). Instead, it simply reiterates the group of individuals already mentioned in common article 3 itself. The text presupposes, as is indicated by the word ‘including’, that the notion of ‘persons taking no active part in hostilities’ embraces the two other notions of ‘members of armed forces who have laid down their arms’ and ‘persons placed *hors de combat*’. Indeed, these three notions seem to overlap. Consequently, in the *Bemba* decision the Pre-Trial Chamber II simply noted that article 8 para. 2 (c) of the Statute covers crimes committed by persons taking no active part in hostilities<sup>1463</sup>. It has to be noted, however, that the list following the word ‘including’ (‘y compris’ in the French text) is not exhaustive. The Preparatory Commission drafting the elements of crimes under article 9 of the Rome Statute has further defined the group of persons protected under article 8 para. 2 (c) by providing that the persons concerned are either *hors de combat*, or are civilians, medical personnel, or religious personnel (including non-confessional non-combatant military personnel carrying out a similar function)<sup>1464</sup>.

The notion of ‘persons taking no active part in hostilities’ does not only refer to civilians in the strict sense, but also comprises those persons who, while beforehand having possessed the status of combatants or ‘fighters’, have ceased to take a direct part in hostilities<sup>1465</sup>. Indeed, both the ICTY and the ICTR have considered the terms ‘taking active part in hostilities’ and ‘taking direct part’ (as e.g. used in articles 4 and 13 of Add. Prot. II) to have the same meaning<sup>1466</sup>.

According to the ICRC’s Interpretive Guidance on the notion of direct participation in hostilities, in order to qualify as a direct participation in hostilities, a specific act must meet three cumulative criteria: First, the act must meet the required threshold of harm, i.e. it must be likely to adversely affect the military operations of a party to an armed conflict or alternatively, to inflict death, injury, or destruction. Second, there must be a direct causal link between the act and the harm and thirdly, there must be a belligerent nexus in that the act must be specifically designed to directly cause the required threshold of harm in support of a party to the conflict and to the detriment of the other<sup>1467</sup>. What is more, the ICRC

<sup>1462</sup> *Prosecutor v. Tadić*, IT-94-1-AR72, Decision on the Defense Motion for Interlocutory Appeal on Jurisdiction, Appeals Chamber, 2 October 1995, para. 94.

<sup>1463</sup> See *Prosecutor v. Bemba*, ICC-01/05-01/08, Pre-Trial Chamber II, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor, 15 June 2009, para. 237.

<sup>1464</sup> See the element of crimes which is common to all provisions contained in article 8 para. 2 (c).

<sup>1465</sup> Bothe et al. (eds.), *New Rules* (1982) 640.

<sup>1466</sup> See *Prosecutor v. Akayesu*, ICTR-96-4-T, Judgment, Trial Chamber, 2 September 1998, para. 629, respectively *Prosecutor v. Tadić*, IT-94-1-T, Judgment, Trial Chamber, 7 May 1997, para. 615. See also *Prosecutor v. Katanga and Ngudjolo Chui*, CC-01/04-01/07, Decision on the confirmation of charges, Pre-Trial Chamber I, 26 September 2008, para. 266.

<sup>1467</sup> ICRC, Interpretive guidance on the notion of direct participation in hostilities (2009), available at: <<http://www.icrc.org/eng/resources/documents/article/review/review-872-p991.htm>> last accessed September 2015, 46. For a critique see Schmitt (2010) 42 *NYJIL&Pol* 697, 739.



recommends that for the purposes of the principle of distinction in non-international armed conflict, persons who are members of State armed forces or organized armed groups of a party to the conflict do not qualify as civilians and that in non-international armed conflicts, organized armed groups constitute the armed forces of a non-State party to the conflict and consist only of individuals who have a ‘continuous combat function’, i. e. whose continuous function it is to take a direct part in hostilities<sup>1468</sup>.

882 In the Appeal Judgment in the *Strugar* case the ICTY provided examples of ‘direct participation in hostilities’, namely bearing, using or taking up arms, taking part in military or hostile acts, activities, conduct or operations, armed fighting or combat, participating in attacks against enemy personnel, property or equipment, transmitting military information for the immediate use of a belligerent, and transporting weapons in proximity to combat operations<sup>1469</sup>. In the *RUF* case the Appeals Chamber of the Special Court for Sierra Leone held that the use of force in self-defence, whether by peacekeepers or civilians, does not constitute a direct participation in hostilities<sup>1470</sup>.

883 In order for individuals to qualify as ‘members of armed forces who have laid down their arms’, two requirements must be fulfilled:

First, the individuals concerned must have been members of armed forces. In case of governmental forces this would include all the armed forces constituted under the respective domestic law even if they are not formally part of the respective military<sup>1471</sup>. In case of non-governmental armed forces, it presupposes the existence of a certain structure and organs as well as a system for allocating authority and internal discipline<sup>1472</sup>.

Besides, those persons must have laid down their arms, i. e. must have indicated their intention to cease combat activities<sup>1473</sup>.

884 The notion of ‘persons placed *hors de combat* by sickness, wounds, detention or any other cause’, taken over from common article 3 into article 8 para. 2 (c) of the Statute, is nowadays defined in article 41 para. 2 of the Add. Prot. I of 1977 under which a person is *hors de combat* if he or she is in the power of an adverse party; he or she has clearly expressed an intention to surrender or has been rendered unconscious or is otherwise incapacitated by wounds or sickness, and therefore is incapable of defending himself or herself, provided, however, that in any case he or she abstains from any hostile act and does not attempt to escape. Besides, article 8 para. 2 (c) of the Statute in line with common article 3, confirms that detention, too, puts a person *hors de combat* and that furthermore also other similar situations can bring about such a status.

885 The ICTY has held in the *Tadić* case<sup>1474</sup> that the protection under common article 3 extends *at least* to all those persons, covered in the case of an international armed conflict, by the grave breaches regime, i. e. civilians, prisoners of war, wounded and sick members in the field and wounded and finally sick members of the armed forces at sea.

886 e) **Possible offenders.** It has to be noted that both, military personnel and civilians can be possible perpetrators of the crimes listed in article 8 para. 2 (c)<sup>1475</sup>.

<sup>1468</sup> *Ibid.*, 27. For a critique of the ‘continuous combat function-category’ see Alston, Report of the Special Rapporteur on extrajudicial, summary or arbitrary executions, Study on targeted killings, A/HRC/14/24/Add.6, 28 May 2010, para. 65.

<sup>1469</sup> *Prosecutor v. Strugar*, IT-01-42-A, Judgment, Appeals Chamber, 17 July 2008, para. 177.

<sup>1470</sup> *Prosecutor v. Sesay, Kallon and Gbao*, SCSL-04-15-A, Judgment, Appeals Chamber, 26 October 2009, para. 530; citing *Prosecutor v. Bagozora et al.*, ICTR-98-41-T, Judgement, Trial Chamber, 18 December 2008, paras. 2175, 2239; Dörmann, *Elements of War Crimes* (2003), 455–456.

<sup>1471</sup> Sandoz et al. (eds), *Commentary* (1987), mn 4462.

<sup>1472</sup> Sandoz et al. (eds), *Commentary* (1987), mn, mn 4463.

<sup>1473</sup> Sandoz et al. (eds), *Commentary* (1987), mn, mn 1618.

<sup>1474</sup> *Prosecutor v. Tadić*, IT-94-1-T, Judgment, Trial Chamber, 7 May 1997, para. 615.

<sup>1475</sup> *Prosecutor v. Akayesu*, ICTR-96-4-A, Judgment, Appeals Chamber, 1 June 2001, paras. 443–445.



## 2. The different subparagraphs

The fact that the chapeau of article 8 para. 2 (c) of the Statute uses the term ‘namely’ 887 indicates that the list of crimes in (i)–(iv) is exhaustive. Otherwise the use of the words ‘in particular’ would have been appropriate. This is further confirmed by the equally authentic French version, which refers to ‘*les actes ci-après*’. Accordingly the violation of other obligations also contained in common article 3, and in particular the violation of the obligation referred to in its paragraph 2 to collect and care for the wounded and sick, does not constitute a criminal offence under article 8 para. 2 (c) of the Statute<sup>1476</sup>.

a) **Paragraph 2(c)(i): Violence to life and person.** Article 8 para. 2 (c) (i) prohibits 888 violence to life and persons, and in particular, criminalizes murder of all kinds, mutilation, cruel treatment and finally torture.

The term ‘violence’ frequently occurs throughout the Statute<sup>1477</sup>. The elements of crimes related to article 8 para. 2 (c) do not further define the notion of violence. In the context of article 8 para. 2 (c) (i), it only refers to acts of physical violence directed against the life or physical integrity of a person. This may be derived, *argumentum e contrario*, from the fact that article 4 para. 2 (a) of Add. Prot. II expressly went beyond the scope of the prohibition contained in common article 3 to also cover violence to the mental well-being of a person<sup>1478</sup>. Any such acts directed against the mental well-being of persons such as *e.g.* giving the impression that a person would be executed, might, however, come either under the term of cruel treatment<sup>1479</sup> or under that of ‘torture’<sup>1480</sup>.

aa) **Murder.** The term ‘murder’ is also used in article 7 para. 1 (a) of the Statute as constituting a 889 crime against humanity. Article 7 does not, however, contain a definition of that term. The ICTY as well as the Special Court for Sierra Leone have held that the elements of the offence of murder as a crime against humanity and as a war crime are identical<sup>1481</sup>. However, in the context of crimes against humanity, such acts must have been committed as part of a widespread or systematic attack against a civilian population<sup>1482</sup>. In the context of article 8 para. 2 (c) (i), to the contrary, also the killing of adversary combatants constitutes a crime, provided they have laid down their arms or have been placed *hors de combat* by sickness, wounds, detention or any other cause<sup>1483</sup>. The elements of crimes rightly take the position that apart from persons being *hors de combat*, also civilians, medical personnel, as well as religious personnel (including non-confessional non-combatant military personnel carrying out a similar function) taking no active part in the hostilities, are possible victims. Thus, it is necessary to establish that at the time of the commission of the crime the victims were taking no active part in the hostilities<sup>1484</sup>.

With respect to personnel involved in peacekeeping missions, in the *Abu Garda Decision*, 890 the Chamber noted that protection does not cease if such persons only use armed force in exercise of their right to self-defence and that any determination as to whether a person is

<sup>1476</sup> See also Hall, in: Lattanzi (ed.), *Comments* (1998) 38 who before the Rome conference argued for the inclusion of that provision into the current article 8 para. 2 (c) of the Statute. Any such inclusion would have, however, raised the general issue of the punishability of omissions, see Ambos, *article 25*, mn 53 *et seq.*

<sup>1477</sup> See *inter alia* article 7 para. 1 (g), article 8 para. 2 (b) (xxii), article 8 para. 2 (d) and (f) and finally article 8 para. 2 (e) (vi).

<sup>1478</sup> Sandoz *et al.* (eds), *Commentary* (1987), mn 4532.

<sup>1479</sup> See below mn 894.

<sup>1480</sup> See below mn 895.

<sup>1481</sup> *Prosecutor v. Blagojević*, IT-02-60-T, Judgment, Trial Chamber I, 17 January 2005, para. 556; *Prosecutor v. Krnojelac*, IT-97-25-T, Judgment, Trial Chamber II, 15 March 2002, para. 323; *Prosecutor v. Naletilić and Martinović*, IT-98-34-T, Judgment, Trial Chamber, 31 March 2003, para. 248; *Prosecutor v. Taylor*, SCSL-03-01-T, Judgment, Trial Chamber II, 18 May 2012, para. 412.

<sup>1482</sup> For details see Hall and Ambos, *article 7*, mn 18 *et seq.*

<sup>1483</sup> See already above mn 884 *et seq.*

<sup>1484</sup> See above mn 884 *et seq.* See also *Prosecutor v. Nourain and Jamus*, No. ICC-02/05-03/09, Decision on the confirmation of charges, Pre-Trial Chamber I, 7 March 2011, para. 102.

directly participating in hostilities must be carried out on a case-by-case basis<sup>1485</sup>. With regard to the attacks on AMIS personnel, the Chamber in the *Jerbo* decision found that there was no evidence suggesting that prior to the attack or at the time of the attack AMIS personnel took any direct part in hostilities or used force beyond self-defence<sup>1486</sup>.

Even single individual murders amount to a violation of that provision, provided the required nexus to the armed conflict is established.

891 As has rightly been pointed out by the ILC<sup>1487</sup>, murder is a crime that is clearly understood and well defined in the domestic law of every State. The ICTR, ICTY and the Special Court for Sierra Leone have consistently defined murder as the death of the victim which results from an act or omission by the accused, committed with the intent either to kill or to cause serious bodily harm with the reasonable knowledge that it would likely lead to death<sup>1488</sup>. In the specific context of article 8 para. 2 (c) (i), it refers to the intentional killing of one or more persons protected under that provision without lawful justification. This is confirmed by the elements of crimes with respect to the war crime of murder committed in non-international armed conflict, which uses the formula ‘killed one or more persons’.

892 The crime of murder requires a causal link between the conduct and the result and may be committed by action or omission<sup>1489</sup>. It must be established beyond reasonable doubt that the perpetrator’s conduct substantially contributed to the death of the victim<sup>1490</sup>. This does not necessarily require proof that the dead body of that person has been recovered<sup>1491</sup>. The death of the victim may be demonstrated through circumstantial evidence, provided it is the only inference that may reasonably be drawn from the acts or omissions of the perpetrator<sup>1492</sup>. Such circumstantial evidence may include factors such as proof of incidents of mistreatment against the alleged victim, pattern of mistreatment and disappearances of individuals in the location in question, general climate of lawlessness, length of time which has elapsed since

<sup>1485</sup> *Prosecutor v. Garda*, ICC-02/05-02/09, Decision on the Confirmation of Charges, 8 February 2010, confirmed in *Prosecutor v. Nourain and Jamus*, ICC-02/05-03/09, Decision on the confirmation of charges, Pre-Trial Chamber I, 7 March 2011, para. 102.

<sup>1486</sup> *Ibid.*, para. 703.

<sup>1487</sup> (1996) ILC Yearbook 96.

<sup>1488</sup> See e.g. *Prosecutor v. Blagojević*, IT-02-60-T, Judgment, Trial Chamber I, 17 January 2005, para. 556; *Prosecutor v. Kvočka et al.*, IT-98-30/1-A, Judgment, Appeals Chamber, 28 February 2005, para. 259; *Prosecutor v. Delalić et al.*, IT-96-21-A, Judgment, Appeals Chamber, 20 February 2001, para. 423; *Prosecutor v. Krnojelac*, IT-97-25-T, Judgment, Trial Chamber II, 15 March 2002, para. 324; *Prosecutor v. Jelisić*, IT-95-10-T, Judgment, Trial Chamber, 14 December 1999, para. 35; *Prosecutor v. Blaškić*, IT-95-14-T, Trial Chamber, Judgment, 3 March 2000, para. 181; *Prosecutor v. Stakić*, IT-97-24-T, Judgment, Trial Chamber II, 31 July 2003, para. 584; *Prosecutor v. Krstić*, IT-98-33-T, Judgment, Trial Chamber, 2 August 2001, para. 485. For ICTR jurisprudence, see *Prosecutor v. Kayishema*, ICTR-95-1-T, Judgment, Trial Chamber II, 21 May 1999, para. 140; *Prosecutor v. Bagilishema*, ICTR-95-1A-T, Judgment, Trial Chamber I, 7 June 2001, paras. 84–85. Regarding the Special Court for Sierra Leone see *Prosecutor v. Taylor*, SCSL-03-01-T, Judgment, Trial Chamber II, 18 May 2012, para. 412.

<sup>1489</sup> *Prosecutor v. Perišić*, IT-04-81-T, Judgment, Trial Chamber I, 6 September 2011, para. 103; *Prosecutor v. Bemba*, ICC-01/05-01/08, Pre-Trial Chamber II, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor, 15 June 2009, para. 274. See also *Prosecutor v. Katanga and Ngudjolo Chui*, ICC-01/04-01/07, Decision on the confirmation of charges, Pre-Trial Chamber I, 26 September 2008, para. 287.

<sup>1490</sup> *Prosecutor v. Orić*, No. IT-3-68-T, Judgment, Trial Chamber, 30 June 2006, para. 347; *Prosecutor v. Brima et al.*, IT-95-11-T, Judgment, Trial Chamber, 12 June 2007, para. 689; *Prosecutor v. Taylor*, SCSL-03-01-T, Judgment, Trial Chamber II, 18 May 2012, para. 413.

<sup>1491</sup> *Prosecutor v. Perišić*, IT-04-81-T, Judgment, Trial Chamber I, 6 September 2011, para. 103; *Prosecutor v. Kvočka et al.*, IT-98-30/1-A, Judgment, Appeals Chamber, 28 February 2005, para. 260; *Prosecutor v. Martić*, IT-95-11-T, Judgment, Trial Chamber, 12 June 2007, para. 59; *Prosecutor v. Krnojelac*, IT-97-25-T, Judgment, Trial Chamber II, 15 March 2002, para. 326; *Prosecutor v. Tadić*, IT-94-1-T, Judgment, Trial Chamber, 7 May 1997, para. 240.

<sup>1492</sup> *Prosecutor v. Kvočka et al.*, IT-98-30/1-A, Judgment, Appeals Chamber, 28 February 2005, para. 260; *Prosecutor v. Delalić et al.*, IT-96-21-A, Judgment, Appeals Chamber, 20 February 2001, para. 458; *Prosecutor v. Tadić*, IT-94-1-T, Judgment, Trial Chamber, 7 May 1997, para. 240; *Prosecutor v. Krnojelac*, IT-97-25-T, Judgment, Trial Chamber II, 15 March 2002, para. 327; *Prosecutor v. Vasiljević*, IT-98-32-A, Judgment, Appeals Chamber, 25 February 2004, para. 120; *Prosecutor v. Brima et al.*, SCSL-04-16-T, Judgment, Trial Chamber, 20 June 2007, para. 689. *Prosecutor v. Taylor*, SCSL-03-01-T, Judgment, Trial Chamber II, 18 May 2012, para. 413.

the person disappeared and the fact that the alleged victim has not been in contact with others whom he would have been expected to contact<sup>1493</sup>.

**bb) Mutilations.** The prohibition of ‘mutilations’ applies in both international armed conflicts<sup>1494</sup>, as well as in internal conflicts<sup>1495</sup>. Reference can therefore be made to the definition developed within the commentary on article 8 para. 2 (b) (x)<sup>1496</sup>. It has to be noted, however, that notwithstanding the fact that the article 8 para. 2 (b) (x) uses the term ‘physical mutilations’, both provisions have to be nevertheless understood as having synonymous meanings since the ‘mutilation’ in itself refers to an act of physical violence. This is confirmed by the fact that the respective elements of crimes adopted with regard to both provisions are, *mutatis mutandis*, identical in that regard. Conversely, in the context of a non-international armed conflict, the Special Court for Sierra Leone has dismissed the requirement of causing death or seriously endangering the health of a person as superfluous with respect to Article 3 of its Statute, arguing that albeit contained in article 11 para. 4 of Add. Prot. I, it does not form part of the violation under common article 3 and article 4 para. 2 of Add. Prot. II<sup>1497</sup>.

Indeed, article 8 para. 2 (c) (i), unlike article 8 para. 2 (b) (x) and article 8 para. 2 (e) (xi), does not contain such a result requirement. Accordingly, the war crime contained in article 8 para. 2 (c) (i) does not require that the conduct caused death or seriously endangered the physical or mental health of the victim<sup>1498</sup>.

**cc) Cruel treatment.** Unlike the other terms used in article 8 para. 2 (c) (i), the notion of ‘cruel treatment’ is not contained in other provisions of Part 2 of the Statute<sup>1499</sup>. It is however contained in most of the universal or regional human rights instruments such as, *inter alia*, article 7 of the Covenant on Civil and Political Rights, article 5 of the Universal Declaration of Human Rights, article 5 para. 2 of the American Convention on Human Rights and article 5 second sentence of the African Charter on Human and People’s Rights<sup>1500</sup>. With regard to humanitarian law, references to cruel treatment are contained in article 87 of the Third Geneva Convention and article 4 para. 2 (a) of Add. Prot. II. According to the jurisprudence of the ICTY<sup>1501</sup>, the offence of cruel treatment under common article 3 (and accordingly under article 8 para. 2 (c) (i) of the Statute) carries the same meaning as inhuman treatment in the context of the grave breaches provisions<sup>1502</sup>. In the same vein, the Preparatory Commission drafting the elements of crimes considered that the content of the term ‘inhuman treatment’ as contained in article 8 para. 2 (a) (ii) and that of the term ‘cruel treatment’ as used in article 8 para. 2 (c) (i) are identical. Accordingly the elements for both crimes are also identical in that regard. Thus, for the purposes of common article 3, all acts of torture by the same token also constitute cruel treatment<sup>1503</sup>. However, this latter offence further extends to all intentional acts or omissions which cause serious mental or physical suffering or injury or constitute a serious attack on human dignity<sup>1504</sup>. Thus, treatment that does not meet the purposive requirement for the offence of torture constitutes cruel

<sup>1493</sup> *Prosecutor v. Krnojelac*, IT-97-25-T, Judgment, Trial Chamber II, 15 March 2002, para. 327.

<sup>1494</sup> Article 8 para. 2 (b) (x).

<sup>1495</sup> Article 8 para. 2 (e) (xi).

<sup>1496</sup> See Zimmermann and Geiß, *article 8 para. 2 (b) (x)*, mn 437.

<sup>1497</sup> *Prosecutor v. Brima et al.*, SCSL-04-16-T, Judgment, Trial Chamber, 20 June 2007, para. 725. See also *Prosecutor v. Sesay, Kallon and Gbao*, SCSL-04-15-T, Judgment, Trial Chamber I, 2 March 2009, para. 182.

<sup>1498</sup> Dörmann, *Elements of War Crimes* (2003) 396.

<sup>1499</sup> But see article 55 of the Statute, which provides that a person who is subject to an investigation under the Statute, shall not be subjected to any form of cruel, inhuman or degrading treatment or punishment; for details see Hall and Jacobs, *article 55*, mn 6.

<sup>1500</sup> The European Convention does not refer to ‘cruel treatment’; instead its article 3 uses the terms torture and inhuman or degrading treatment or punishment.

<sup>1501</sup> *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgment, Trial Chamber, 16 November 1998, para. 443.

<sup>1502</sup> See above Dörmann, *article 8 para. 2 (a) (ii)*, mn 95.

<sup>1503</sup> *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgment, Trial Chamber, 16 November 1998, para. 443.

<sup>1504</sup> *Ibid.*

treatment<sup>1505</sup>. Indeed, whether a particular act amounts to cruel treatment is to be determined on a case-by-case basis<sup>1506</sup>. In the *Limaj* case, the Trial Chamber held that under the specific circumstances of this case ‘unlawful seizure’, ‘unlawful detention for prolonged periods’ and ‘interrogation’ in and of themselves did not amount to a serious attack on human dignity within the meaning of cruel treatment under Article 3 of the Statute of the ICTY, thereby leaving open the possibility of a different legal qualification of such acts under different circumstances<sup>1507</sup>. In the *Taylor* judgment the Trial Chamber of the SCSL noted that cruel treatment may encompass also acts of mutilation<sup>1508</sup>.

895 **dd) Torture.** Finally, the notion of ‘torture’ appears also in both the list of crimes against humanity<sup>1509</sup> and the list of the grave breaches of the four Geneva Conventions<sup>1510</sup>. Notwithstanding the fact that article 8 para. 2 (c) of the Statute – unlike article 8 para. 2 (b) (xxii) – does not *expressis verbis* refer to the notion of torture as defined for the purposes of crimes against humanity, that term still has to be applied in line with the definition contained in article 7 para. 2 (e)<sup>1511</sup>.

896 The ICTY has defined the crime of torture as the intentional infliction, by act or omission, of severe pain or suffering, whether physical or mental<sup>1512</sup>, for a prohibited purpose, such as obtaining information or a confession, punishing, intimidating, humiliating, or coercing the victim or a third person, or discriminating, on any ground against the victim or a third person<sup>1513</sup>. In the context of internal armed conflicts, it thus in particular also includes acts by non-state actors involved in the armed conflict since outside the Torture Convention the public official requirement of torture does not constitute a requirement under customary international law in relation to the criminal responsibility of an individual<sup>1514</sup>. This view was shared by the Preparatory Commission drafting the elements of crimes which therefore are identical in that regard for both crimes. Indeed it was the ICTY which had already stated that ‘[t]he characteristics of the offence of torture under common article 3 [which is mirrored in article 8 para. 2 (c) (i) of the Rome Statute] and under the ‘grave breaches’ provisions of the Geneva Conventions [i. e. article 8 para. 2 (a) (ii) of the Rome Statute], do not differ’<sup>1515</sup>.

897 With respect to the question whether ‘severe pain or suffering’ has been caused, the Appeals Chamber in *Brđanin* had to consider whether a new, higher standard regarding the requisite amount of harm had developed under customary international law, as had been claimed by the accused who based his argument on the so-called 2002 Bybee Memorandum<sup>1516</sup>. The argument was rightly rejected by the Appeals Chamber, for lack of any support of the argument that a new intensity threshold had developed under customary international law. *Inter alia* the Chamber held that already the Torture Convention’s drafting history makes it clear that ‘severe pain or suffering’ is not synonymous with ‘extreme pain or suffering’<sup>1517</sup>. Thus, it follows that acts inflicting physical pain may amount to torture even

<sup>1505</sup> *Ibid.*

<sup>1506</sup> *Prosecutor v. Limaj*, IT-03-66-T, Judgment, Trial Chamber, 30 November 2005, para. 232.

<sup>1507</sup> *Ibid.*

<sup>1508</sup> *Prosecutor v. Taylor*, SCSL-03-01-T, Judgment, Trial Chamber II, 18 May 2012, para. 435.

<sup>1509</sup> Hall and Stahn, *article 7 para. 1 (f)*.

<sup>1510</sup> Dörmann, *article 8 para. 2 (a) (ii)*.

<sup>1511</sup> For details see Hall and Stahn, *article 7 para. 2 (e)* and *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgment, Trial Chamber, 16 November 1998, paras. 446 *et seq.*

<sup>1512</sup> *Prosecutor v. Brđanin*, IT-99-36-A, Judgment, Appeals Chamber, 3 April 2007, para. 242; *Prosecutor v. Brđanin*, IT-99-36-T, Judgment, Trial Chamber, 1 September 2004, para. 481; *Prosecutor v. Furundžija*, IT-95-17/1-T, Judgment, Trial Chamber, 10 December 1998, para. 162; *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgment, Trial Chamber, 16 November 1998, para. 468.

<sup>1513</sup> *Prosecutor v. Kvočka et al.*, IT-98-30/1-A, Judgment, Appeals Chamber, 28 February 2005, para. 289; *Prosecutor v. Kvočka et al.*, No. IT-98-30/1-T, Judgment, Trial Chamber, 2 November 2001, para. 141.

<sup>1514</sup> *Prosecutor v. Kvočka et al.*, IT-98-30/1-A, Judgment, Appeals Chamber, 28 February 2005, para. 284; *Prosecutor v. Kunarac et al.*, IT-96-23 & IT-96-23/1-A, Judgment, Appeals Chamber, 12 June 2002, para. 148.

<sup>1515</sup> *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgment, Trial Chamber, 16 November 1998, para. 443.

<sup>1516</sup> *Prosecutor v. Brđanin*, IT-99-36-T, Judgment, Trial Chamber, 1 September 2004, para. 246.

<sup>1517</sup> *Ibid.*, para. 249.

when they do not cause pain of the type accompanying serious injury<sup>1518</sup>. Whether ‘severe pain or suffering’ has been inflicted is a fact-specific inquiry and the findings of the Appeals Chamber in the *Naletilić and Martinović* Appeal Judgment remain valid: ‘Existing case-law has not determined the absolute degree of pain required for an act to amount to torture. Thus, while the suffering inflicted by some acts may be so obvious that the acts amount *per se* to torture, in general allegations of torture must be considered on a case-by-case basis so as to determine whether, in light of the acts committed and their context, severe physical or mental pain or suffering was inflicted’<sup>1519</sup>.

It has to be mentioned in particular that rape or other forms of sexual violence, too, notwithstanding that it they are not explicitly mentioned in article 8 para. 2 (c) (i) of the Statute, can also constitute torture<sup>1520</sup>.

In the *Bemba* decision the Chamber pointed out that the perpetrator’s intent to inflict pain or suffering for such a purpose as obtaining information or a confession, punishment, intimidation or coercion or for any reason based on discrimination of any kind, constitutes a specific intent, which has to be proven by the Prosecutor<sup>1521</sup>.

**b) Paragraph 2(c)(ii): Outrages upon personal dignity.** Article 8 para. 2 (c) (ii) prohibits outrages upon personal dignity and in particular criminalizes humiliating and degrading treatment. Common article 3 of the Geneva Conventions as well as article 4 para. 2 (e) of Add. Prot. II prohibit outrages upon personal dignity. The wording of this provision, as well as the respective wording of the elements of crimes as adopted under article 9 of the Statute, is identical to article 8 para. 2 (b) (xxi) of the Statute, reference to which can accordingly be made<sup>1522</sup>.

In the *Bemba* decision Pre-Trial Chamber II found that in this particular case the count of outrage upon personal dignity under article 8 para. 2 (c) (ii) was fully subsumed by the count of rape, which was deemed the most appropriate legal characterization of the conduct presented<sup>1523</sup>. In the *Taylor* judgment the Trial Chamber of the Special Court for Sierra Leone held that ‘[...] sexual slavery, including the abduction of women and girls as ‘bush wives’, a conjugal form of sexual slavery, is humiliating and degrading to its victims and constitutes a serious attack on human dignity, falling within the scope of outrages upon personal dignity’<sup>1524</sup>.

**c) Paragraph 2(c)(iii): Taking of hostages.** Article 8 para. 2 (c) (iii) prohibits the taking of hostages, which in the case of an international armed conflict, constitutes a grave breach of the Geneva Conventions. The very same prohibition is accordingly also contained in article 8 para. 2 (a) (viii) of the Statute, reference to which can accordingly be made<sup>1525</sup> even more so since the respective wording of the elements of crimes as adopted under article 9 of the Statute is also identical.

There has been some disagreement about whether unlawful detention is a requirement of the offence or whether an initially lawful detention could also suffice. The wording of the respective elements of crimes which refer to persons ‘otherwise held hostage’ as well as the finding of the Special Court for Sierra Leone in the *RUF* case according to which ‘the precise

<sup>1518</sup> *Ibid.*, para. 251.

<sup>1519</sup> *Prosecutor v. Naletilić and Martinović*, IT-98-34-A, Judgment, Appeals Chamber, 3 May 2006, para. 299; cited and confirmed in *Prosecutor v. Brđanin*, IT-99-36-T, Judgment, Trial Chamber, 1 September 2004, para. 251.

<sup>1520</sup> See as to the jurisprudence of the two *ad hoc* Tribunals, *Prosecutor v. Akayesu*, ICTR-96-4-T, Judgment, Trial Chamber, 2 September 1998, para. 597 and as far as the ICTY is concerned *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgment, Trial Chamber, 16 November 1998, para. 496.

<sup>1521</sup> *Prosecutor v. Bemba*, ICC-01/05-01/08, Pre-Trial Chamber II, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor, 15 June 2009, para. 294.

<sup>1522</sup> See Arnold and Wehrenberg, *article 8 para. 2 (b) (xxi)*.

<sup>1523</sup> *Prosecutor v. Bemba*, ICC-01/05-01/08, Pre-Trial Chamber II, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor, 15 June 2009, para. 312.

<sup>1524</sup> *Prosecutor v. Taylor*, SCSL-03-01-T, Judgment, Trial Chamber II, 18 May 2012, para. 432.

<sup>1525</sup> See Dörmann, *article 8 para. 2 (a) (viii)*.



means by which the individual falls into the hands of the perpetrator is not the defining characteristic of the offence; it is rather, a secondary feature' and 'it could not be otherwise, for it would mean that the crime of hostage-taking could never arise out of an initially lawful detention'<sup>1526</sup> militate in favour of a broad understanding which also comprises an initially lawful detention<sup>1527</sup>. Accordingly, it is not required that the requisite intent be present at the moment of the initial detention, it may crystallize also at a later stage<sup>1528</sup>.

- 904 **d) Paragraph 2(c)(iv): Passing of sentences and the carrying out of executions without previous judgement.** Article 8 para. 2 (c) (iv) prohibits the passing of sentences and the carrying out of executions without previous judgement pronounced by a regularly constituted court<sup>1529</sup>, affording all judicial guarantees which are generally recognized as indispensable. It is similar in nature, although not completely identical, to the prohibition contained in article 8 para. 2 (a) (vi) of the Statute<sup>1530</sup>. Accordingly the elements of crimes adopted with respect to the two provisions also slightly differ: on the one hand the elements concerning article 8 para. 2 (a) (vi) refer to the deprivation of a fair and regular trial by 'denying judicial guarantees as defined, in particular, in the third and the fourth Geneva Conventions of 1949'<sup>1531</sup>; on the other hand, the elements adopted with regard to article 8 para. 2 (c) (iv) require that the court involved 'did not afford the essential guarantees of independence or impartiality, or [...] did not afford all other judicial guarantees generally recognized as indispensable under international law'. Article 8 para. 2 (c) (iv) guarantees certain minimum due process rights before either a sentence is passed or an execution against a person protected by article 8 para. 2 (c) takes place.
- 905 The provision does, however, generally leave intact the right of the established authorities to prosecute, try and eventually also punish, both members of armed forces and civilians, who may have committed an offence related to the ongoing internal armed conflict<sup>1532</sup>.
- 906 The sentences pronounced may include capital punishment where provided for in the respective domestic law and where not prohibited by treaty law. Unlike article 6 of Add. Prot. II, common article 3 [and accordingly neither article 8 para. 2 (c)] does not, as such, prohibit the pronouncement of the death penalty upon persons under the age of 18. Still, under certain specific circumstances, the death penalty might still amount to cruel treatment under article 8 para. 2 (c) (i)<sup>1533</sup> and might thus constitute a crime under the Statute<sup>1534</sup>.
- 907 The term 'regularly constituted court' appears in both common article 3 as well as in article 75 para. 4 of Add. Prot. I<sup>1535</sup>. Given the fact that the Statute, unlike the chapeau of article 6 para. 2 of Add. Prot. II, has *verbatim* retained the language of common article 3, also non-governmental armed groups are, notwithstanding the problems involved<sup>1536</sup>, bound to set up 'regularly constituted Courts' before a sentencing might take place, thereby prohibiting special courts set up on an *ad hoc*-basis<sup>1537</sup>.

<sup>1526</sup> *Prosecutor v. Sesay, Kallon and Gbao*, SCSL-04-15-A, Judgment, Appeals Chamber, 26 October 2009, para. 598.

<sup>1527</sup> See Sivakumaran (2010) 8 *JICJ* 1009, 1032.

<sup>1528</sup> *Prosecutor v. Sesay, Kallon and Gbao*, SCSL-04-15-A, Judgment, Appeals Chamber, 26 October 2009, para. 597; See also Sivakumaran (2010) 8 *JICJ* 1009, 1033.

<sup>1529</sup> Since a court of law is normally constituted of several persons, a footnote added to element 1 with regard to article 8 para. 2 (c) (iv) clarifies that the term '[t]he perpetrator' as used in the elements of crimes does not address the different forms of individual criminal responsibility as regulated by articles 25 and 28 of the Statute'.

<sup>1530</sup> See Dörmann, *article 8 para. 2 (a) (vi)*, *passim*.

<sup>1531</sup> For further details see Dörmann, *article 8 para. 2 (a) (vi)*.

<sup>1532</sup> Sandoz *et al.* (eds.), *Commentary* (1987), mn 4597.

<sup>1533</sup> See in particular the decision of the European Court of Human Rights in the Soering case, *Soering v. United Kingdom*, Ser. A, No. 161.

<sup>1534</sup> Triffterer, *Preliminary Remarks*, in: Triffterer (ed.), *Commentary on the Rome Statute* (2<sup>nd</sup> edition 2008) mn 76, fn. 120, holds with reference to article 80 the opinion that the death penalty as such cannot constitute such a crime.

<sup>1535</sup> See also article 66 GC IV which refers to 'properly constituted Courts'.

<sup>1536</sup> Sandoz *et al.* (eds.), *Commentary* (1987), mn 4600; Sivakumaran (2009) 7 *JICJ* 489.

<sup>1537</sup> Gasser, in: Fleck (ed.), *Handbook* (2008) mn 576.



The Courts called upon to pronounce sentences must afford all judicial guarantees which are generally recognised as indispensable. This formula by using the term ‘indispensable’ seems to be less broad than the one contained in article 75 para. 4 of Add. Prot. I, which more generally refers to ‘generally recognised principles of regular judicial procedure’. The wording of the chapeau of article 6 para. 2 of Add. Prot. II is *mutatis mutandis* identical to common article 3<sup>1538</sup> (and thus also to article 8 para. 2 (c) (iv) of the Statute). Therefore, one can argue that the *minimum* list of essential guarantees contained in article 6 para. 2 (a)–(f) of Add. Prot. II<sup>1539</sup> also applies to article 8 para. 2 (c) (iv) of the Statute. This is true notwithstanding the fact that a Swiss/Hungarian/Costa Rican proposal<sup>1540</sup> to include a specific list of indispensable guarantees in the elements of crimes was not accepted since the rejection of this list was not based on the non-acceptance of the guarantees listed, but was rather based on the idea that such an illustrative list could suggest that rights omitted were not indispensable, that there could be a discrepancy between the proposed list and those guarantees contained in the Statute itself, and finally that violation of just one guarantee might not necessarily constitute a war crime<sup>1541</sup>. With regard to the latter concern, a footnote accompanying the elements of crimes provides that ‘the Court should consider whether, in the light of all relevant circumstances, the cumulative effect of factors with respect to guarantees deprived the person or persons of a fair trial’<sup>1542</sup>. This does not preclude, however, that depending on the circumstances the denial of one single guarantee might not in itself amount to a violation of this provision<sup>1543</sup>.

#### IV. Article 8 para. 2(d): scope of application of article 8 para. 2 (c)

**Literature:** See Preliminary remarks on para. 2 (c)–(f) and para. 3.

##### 1. Existence of a non-international armed conflict

The first part of article 8 para. 2 (d) simply repeats the requirement already contained in article 8 para. 2 (c) that a non-international armed conflict must exist before that last provision becomes applicable<sup>1544</sup>. Article 8 para. 2 (d) therefore limits the jurisdiction of the Court, a fact that is further confirmed by the introduction to the war crimes section of the elements of crimes adopted under article 9 of the Statute<sup>1545</sup>. Said introduction specifically provides that ‘[t]he elements for war crimes under article 8 para. 2 (c) and (e) are subject to the limitations addressed in article 8 para. 2 (d) and (f), which are not elements of crimes’. Accordingly the Preparatory Commission drafting the elements of crimes did not discuss the meaning and content of article 8 para. 2 (d).

##### 2. Exclusion of situations of internal disturbances and tensions

The first and the second part of the provision are linked by the word ‘thus’ (‘donc’ in the French version). The Statute thereby, similar to the last words of article 1 para. 2 of Add. Prot. II, reaffirms that any internal conflict, in order to qualify under the Statute as an ‘armed

<sup>1538</sup> Bothe *et al.* (eds.), *New Rules* (1982) 650: ‘... preamble of para. 2 [of article 6 Add. Prot. II] is taken over from common article 3 para. 1 (d) with minor drafting changes’ (emphasis added).

<sup>1539</sup> For detailed comments on that list Bothe *et al.* (eds.), *New Rules* (1982) 651–652 as well as ICRC *Commentary*, mn 4602–4610.

<sup>1540</sup> PCNICC/1999/WGEC/Dp. 10, 19 July 1999.

<sup>1541</sup> Dörmann, *Elements of War Crimes* (2003) 409.

<sup>1542</sup> See note 59 accompanying element 4 adopted with regard to article 8 para. 2 (c) (iv).

<sup>1543</sup> Dörmann, *Elements of War Crimes* (2003) 409.

<sup>1544</sup> For details see already above Zimmermann and Geiß, *article 8 para. 2 (c)*, mn 833 *et seq.*

<sup>1545</sup> *Prosecutor v. Bemba*, ICC-01/05-01/08, Pre-Trial Chamber II, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor, 15 June 2009, para. 225.

conflict not of an international character’, must be above the lower threshold contained in the second half of that phrase.

- 911 The threshold was literally taken over from article 1 para. 2 of Add. Prot. II with the sole exception that the last ‘and’ was replaced by an ‘or’. This seems, however, to simply constitute a technical error which was not supposed to have any substantive impact on the interpretation of the provision. Accordingly one can, in order to interpret that provision, largely draw from the *travaux préparatoires* and the interpretation of that provision<sup>1546</sup>.
- 912 It is submitted that the pure notion of ‘armed conflict’, as defined above<sup>1547</sup>, would have in itself been sufficient to remove the situations referred to in the second part of article 8 para. 2 (d) from falling within the scope of application of article 8. This was confirmed in the *Akayesu* judgement where the ICTR stated that the ‘term armed conflict in itself suggests the existence of hostilities between armed forces organized to a greater or lesser extent [and that] [t]his consequently rules out situations of internal disturbances and tensions’<sup>1548</sup>. Thus, this last part of the provision is mainly of a declaratory and illustrative nature.
- 903 The notion of ‘internal disturbances and tensions’ is not defined in article 8 para. 2 (d). Instead the provision simply contains a non-exhaustive list of examples which might however serve as guidance in order to determine the existence of internal disturbances and tensions. Generally speaking, one might say that internal disturbances exist when a State uses armed force to maintain order without that use of force amounting to an armed conflict. Internal tensions might be said to exist when such force is used as a preventive measure<sup>1549</sup>.
- 914 The ICTY has held that situations of ‘civil unrest’ and ‘terrorist activities’ do not amount to an armed conflict<sup>1550</sup>. Within the context of the Statute of the ICC, the latter exclusion is further confirmed by the fact that the Rome Conference had deliberately decided to exclude terrorist acts from the jurisdiction of the ICC<sup>1551</sup> notwithstanding the fact that terrorist acts might, depending on the circumstances and in particular their scale, constitute crimes against humanity.

## V. Other serious violations of the laws and customs applicable in armed conflicts not of an international character

**Literature:** See Preliminary remarks on para. 2 (c)–(f) and para. 3.

- 915 It must be considered one of the main positive results of the Rome Statute that the provisions on war crimes committed in internal armed conflict were not limited to violations of common article 3, but that they also extent to other serious violations of the laws and customs of war<sup>1552</sup>, especially since Add. Prot. II had at the time of its drafting not yet retained the concept of grave breaches.
- 916 The wording of the chapeau of article 8 para. 2 (e) is, apart from the replacement of the words ‘in international armed conflicts’ by the words ‘in armed conflicts not of an international character’, identical to the wording of the chapeau of article 8 para. 2 (b), reference to which is therefore made<sup>1553</sup>.

<sup>1546</sup> See in that regard in particular Sandoz *et al.* (eds), *Commentary*, mn 833 *et seq.*

<sup>1547</sup> Zimmermann and Geiß, *article 8 para. 2 (c)*, mn 260.

<sup>1548</sup> *Prosecutor v. Akayesu*, ICTR-96-4-T, Judgment, Trial Chamber, 2 September 1998, para. 620; see also Situation in the Central African Republic in the Case of: *Prosecutor v. Bemba*, ICC-01/05-01/08, Pre-Trial Chamber II, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor, 15 June 2009, para. 230.

<sup>1549</sup> Sandoz *et al.* (eds), *Commentary* (1987), mn 4477.

<sup>1550</sup> *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgment, Trial Chamber, 16 November 1998, para. 185. See also for further references Zimmermann and Geiß, *article 8, para. 2 (c)*, mn 833 *et seq.*

<sup>1551</sup> For details see Zimmermann, *article 5*, mn 4.

<sup>1552</sup> For details of the extent of that inclusion see Zimmermann and Geiß, *Preliminary Remarks on para. 2 (c)–(f) and para. 3: War crimes committed in an armed conflict not of an international character*, mn 833 *et seq.*

<sup>1553</sup> See Dörmann, *chapeau to article 8 para. 2 (b)*, para. 180.

### 1. Paragraph 2(e)(i): Attacks against the civilian population

**Literature:** See article 8 para. 2 (b) (i).

The prohibition to direct attacks against the civilian population as such as well as against individual civilians is already contained in article 13 para. 2 of Add. Prot. II of 1977. Besides, both article 8 para. 2 (e) (i) of the Statute as well as the respective elements of crimes adopted in that regard are identical in wording to the parallel provision contained in article 8 para. 2 (b) (i) and the elements adopted thereto, reference to which can accordingly be made<sup>1554</sup>.

It should be noted, however, that the closely linked prohibition not to direct attacks against civilian *objects* which, as far as *international* armed conflicts are concerned, is contained in article 8 para. 2 (b) (ii) of the Statute, is not reflected in the part on serious violations of the laws and customs of war committed in *internal* armed conflict. This is mainly due to the fact that a provision similar in nature to article 52 para. 1 of Add. Prot. I is lacking in Add. Prot. II and that accordingly the customary law nature of such a prohibition in *internal* armed conflict seemed to be doubtful.

Article 8 para. 2 (e) (i) of the Statute does not require that the civilian population is the sole and exclusive target of the attack<sup>1555</sup>. In this regard ICC Chambers distinguish two scenarios, namely ‘(i) when individual civilians not taking direct part in the hostilities or the civilian population are the sole target of the attack or (ii) when the perpetrator launches the attack with two distinct specific aims: (a) a military objective, within the meaning of articles 51 and 52 of the Protocol Additional to the Geneva Conventions of 12 August 1949 (‘the AP I’); and simultaneously, (b) the civilian population or individual civilians not taking direct part in the hostilities’<sup>1556</sup>. However, the Chamber in the *Mbarushimana* decision pointed out that this latter scenario must be distinguished from disproportionate attacks in violation of the principle of proportionality in which case the targeting of the civilian population is not the aim of the attack but an incidental consequence thereof<sup>1557</sup>.

With respect to the notion of direct participation in hostilities the Chamber in the *Mbarushimana* decision, like the Chamber in the *Abu Garda* decision, noted that neither a customary nor treaty law definition of this notion exists, but that the ICRC’s study on the direct participation in hostilities provided useful guidance<sup>1558</sup>. Nevertheless, the Chamber adopted a rather restrictive interpretation of what amounts to a direct participation in hostilities and noted that loss of protection ‘is *only* clear when a civilian uses weapons or other means to commit violence against human or material enemy forces, unless in self-defence’<sup>1559</sup>. Moreover, the Chamber pointed out that ‘practice indicates that supplying food and shelter and sympathizing with one belligerent party is an insufficient reason to deny civilians protection against attack’<sup>1560</sup>. Although the Chamber in the *Mbarushimana* case referred to the ICRC’s study as ‘useful guidance’, it is not clear whether it intended to approve of the ICRC’s approach according to which all members of an organized armed group who have a ‘continuous combat function’<sup>1561</sup> no longer qualify as civilians.

The Chambers statement that ‘a civilian population comprises all civilians as opposed to members of armed forces and *any other legitimate* combatants’ is ambiguous because the

<sup>1554</sup> See Dörmann, *article 8 para. 2 (b) (i)* and *Prosecutor v. Katanga and Ngudjolo Chui*, ICC-01/04-01/07, Decision on the confirmation of charges, Pre-Trial Chamber I, 26 September 2008, para. 265 *et seq.*

<sup>1555</sup> *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10, Decision on the confirmation of charges, Pre-Trial Chamber I, 16 December 2011, para. 142.

<sup>1556</sup> *Ibid.*; *Prosecutor v. Katanga and Ngudjolo Chui*, ICC-01/04-01/07, Decision on the confirmation of charges, Pre-Trial Chamber I, 26 September 2008, paras. 272, 273.

<sup>1557</sup> *Ibid.*

<sup>1558</sup> *Ibid.*, para. 148.

<sup>1559</sup> *Ibid.*

<sup>1560</sup> *Ibid.*

<sup>1561</sup> ICRC, *Interpretive Guidance on the Notion of Direct Participation in Hostilities under International Humanitarian Law* (2009) 27.

reference to ‘members of armed forces’ is not necessarily to be equated only with members of (regular) state armed forces and could also be said to comprise the armed forces of a non-state party to the conflict. However, the reference to ‘any other *legitimate* combatants’ rather militates in favour of a narrow understanding of the wording ‘members of armed forces’, *i. e.* one which only comprises legitimate combatants of the State’s regular armed forces. However, such an approach would lead to the result that in a non-international armed conflict the non-state party’s armed forces would continue to qualify as civilian and would therefore remain part of the civilian population. This, however, is contrary to the basic tenet of the principle of distinction and it is for this reason that the better view is to qualify those members of organized armed groups who have a continuous combat function, for the purposes of the conduct of hostilities, as ‘fighters’ without civilian status<sup>1562</sup>.

## 2. Paragraph 2(e)(ii): Attacks against installations and personnel using the distinctive emblems

**Literature:** See article 8 para. 2 (b) (xxiv).

- 922 Article 11 para. 1 of Add. Prot. II prohibits to direct attacks against medical units and transports. Besides, article 12, second phrase of Add. Prot. II contains the obligation to respect the distinctive emblem of the Geneva Conventions. This basic obligation now forms the object of article 8 para. 2 (e) (ii) of the Statute, also providing for individual criminal responsibility in times of internal armed conflict.
- 923 Article 8 para. 2 (e) (ii) of the Statute is identical in wording to the parallel provision contained in article 8 para. 2 (b) (xxiv), reference to which can accordingly be made<sup>1563</sup>. The same is true with regard to the respective elements of crimes which are also identical.

## 3. Paragraph 2(e)(iii): Attacks against United Nations and associated personnel

**Literature:** See article 8 para. 2 (b) (iii) and Emanuelli, C.C., ‘The Protection afforded to Humanitarian Assistance Personnel under the Convention on the Safety of United Nations and Associated Personnel’, (1996) *HuV-I* 4; Kirsch, P., ‘The Convention on the Safety of United Nations and Associated Personnel’, (1995) *International Peacekeeping* 102; Lepper, S. J., ‘War crimes and the protection of peacekeeping forces’, (1995) *AkronLRev* 411; Weiner, R. O. and Ni, A.F., ‘Beyond the laws of war: peacekeeping in search of a legal framework’, (1996) *ColHumRtsLRev* 293; Bangura, M. A., ‘Prosecuting the crime of attack on peacekeepers: A Prosecutor’s challenge’, (2010) 23 *LeidenJIL* 165–181.

- 924 The inclusion of both, article 8 para. 2 (b) (iii) and (e) (iii) of the Statute, is closely linked to the non-inclusion of violations of the Convention on the Safety of United Nations and Associated Personnel into the Statute<sup>1564</sup>. It is largely based on, although not identical to, a proposal submitted to the Rome Conference by Spain<sup>1565</sup>.
- 925 Both provisions, *i. e.* article 8 para. 2 (b) (iii) and (e) (iii), are identical in wording. Reference is therefore made to the commentary on article 8 para. 2 (b) (iii)<sup>1566</sup>. It has to be noted, however, that the original text, as adopted at the Rome Conference, had still referred in article 8 para. 2 (e) (iii) to the protection granted to peace-keeping operations and related missions ‘under the law of armed conflict’, as compared to the current version which refers to the protection given ‘under the international law of armed conflict’<sup>1567</sup>.
- 926 In the *Garda* decision, the Pre-Trial Chamber I, with respect to the question whether a given mission constitutes a peacekeeping mission, absent any specific legal basis in the UN Charter, noted three characteristic principles for a mission to qualify as a peacekeeping

<sup>1562</sup> *Ibid.*

<sup>1563</sup> See Arnold and Wehrenberg, article 8 para. 2 (b) (xxiv).

<sup>1564</sup> See Zimmermann, article 5, mn 3.

<sup>1565</sup> UN Doc A/CONF.183/C.1/L.1.

<sup>1566</sup> See Cottier and Baumgartner, article 8 para. 2 (b) (iii).

<sup>1567</sup> See *Corrections to the Rome Statute of the International Criminal Court*, UN Doc C.N.777.1998. TREATIES-8 (Annex).

mission, ‘namely (i) consent of the parties; (ii) impartiality; and (iii) the non-use of force except in self-defence’<sup>1568</sup>.

Moreover, the Majority in the *Garda* decision concluded that with respect to article 8 para. 2 (e) (iii) of the Statute, personnel involved in peacekeeping missions enjoy protection from attacks unless and for such time as they take a direct part in hostilities or in combat-related activities and that such protection does not cease if such persons only use armed force in exercise of their right to self-defence<sup>1569</sup>.

The Chamber also noted the non-exhaustive list of criteria established by the Special Court for Sierra Leone in the *RUF* case in order to determine whether peacekeeping personnel were entitled to protection<sup>1570</sup>. The criteria referred to by Trial Chamber I of the Special Court for Sierra Leone were: ‘(a) the relevant Security Council resolutions for the operation; (b) the role and practices actually adopted by the peacekeeping mission during the particular conflict; (c) their rules of engagement and operational orders; (d) the nature of the arms and equipment used by the peacekeeping force; (e) the interaction between the peacekeeping force and the parties involved in the conflict, (f) any use of force between the peacekeeping force and the parties in the conflict, and (g) the nature and frequency of such force and the conduct of the alleged victim(s) and their fellow personnel’<sup>1571</sup>. This list was confirmed by the Appeals Chamber, which noted that out of these criteria, ‘the most important are those that relate to the facts on the ground, in particular, any use of force by the peacekeeping mission’<sup>1572</sup>. Indeed, it seems that the indicative criteria set up by the Trial Chamber of the Special Court for Sierra Leone at least in part conflate the issue of whether a mission qualifies as a peacekeeping mission and whether personnel involved in such a mission enjoys protection from attack. As far as the latter issue, i.e. loss of protection due to a direct participation in hostilities, is concerned, it is difficult to see what relevance a Security Council Resolution could have in this regard. Therefore, in accordance with the Appeals Chamber, the focus should be exclusively on those criteria that relate to the facts on the ground.

With respect to the protection of civilian objects in non-international armed conflict, the Chamber in the *Garda* decision took note of the absence of a war crime equivalent to article 8 para. 2 (b) (ii) in the catalogue of crimes pertaining to non-international armed conflict<sup>1573</sup>. However, in view of the customary law character of the definition contained in article 52 para. 2 of Add. Prot. I, which also applies to non-international armed conflicts<sup>1574</sup>, the Majority concluded that ‘installations, material, units or vehicles involved in a peacekeeping mission in the context of an armed conflict not of an international character shall not be considered military objectives, and thus shall be entitled to the protection given to civilian objects, unless and for such time as their nature, location, purpose or use make an effective contribution to the military action of a party to a conflict and insofar as their total or partial destruction, capture or neutralization, in the circumstances ruling at the time, offers a definite military advantage’<sup>1575</sup>.

<sup>1568</sup> Situation in Darfur, Sudan in the Case of: *Prosecutor v. Garda*, ICC-02/05-02/09, Decision on the Confirmation of Charges, 8 February 2010, para. 71. Notably, the Majority’s legal interpretation of each of the elements of the crime provided for in article 8(2)(e)(iii) of the Statute in the *Abu Garda* decision in paragraphs 64–94 was confirmed in *Prosecutor v. Nourain and Jamus*, ICC-02/05-03/09, Decision on the confirmation of charges, Pre-Trial Chamber I, 7 March 2011, para. 61.

<sup>1569</sup> *Ibid.*, para. 83. See also: *Prosecutor v. Sesay, Kallon and Gbao*, SCSL-04-15-A, Judgment, Appeals Chamber, 26 October 2009, para. 530.

<sup>1570</sup> *Ibid.*, para. 84.

<sup>1571</sup> *Prosecutor v. Sesay, Kallon and Gbao*, SCSL-04-15-T, Judgement, Trial Chamber I, 2 March 2009, para. 234.

<sup>1572</sup> *Prosecutor v. Sesay, Kallon and Gbao*, SCSL-04-15-A, Judgment, Appeals Chamber, 26 October 2009, para. 529.

<sup>1573</sup> *Prosecutor v. Garda*, ICC-02/05-02/09, Decision on the Confirmation of Charges, 8 February 2010, para. 85.

<sup>1574</sup> Henckaerts and Doswald-Beck, *Customary, i* (2009) 25–36; the ICTY Appeals Chamber reached the same conclusion in following cases: *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-A, Judgement, Appeals Chamber, 17 December 2004, para. 59 and *Prosecutor v. Galić*, IT-98-36-T, Appeal Judgment, 30 November 2006, para. 190.

<sup>1575</sup> *Prosecutor v. Garda*, ICC-02/05-02/09, Decision on the Confirmation of Charges, 8 February 2010, para. 89.

- 930 With respect to the *mens rea* the Chamber in the *Garda* decision confirmed that the Chamber's findings in the *Katanga* decision also apply to article 8 para. 2 (e) (iii) and that therefore, 'in addition to the standard *mens rea* requirement provided in article 30 of the Statute, the perpetrator must intend to make individual civilians not taking direct part in the hostilities or the civilian population the object of the attack. This offence therefore; first and foremost, encompasses *dolus directus* of the first degree'<sup>1576</sup>.
- 931 Finally, in the *Garda* decision the Majority was of the view that the fifth element of the Elements of Crimes relating to article 8 para. 2 (e) (iii) of the Statute 'excludes the defence of mistake of law provided for in article 32 of the Statute, as only knowledge in relation to facts establishing that the installations, material, units or vehicles and personnel were involved in a peacekeeping mission is necessary, and not legal knowledge pertaining to the protection thereof'<sup>1577</sup>.

#### 4. Paragraph 2(e)(iv): Attacks against cultural objects, places of worship and similar institutions

**Literature:** See article 8 para. 2 (b) (ix).

- 932 Even in times of internal armed conflict, cultural objects as well as places of worship are already protected under article 16 of Add. Prot. II of 1977. Besides, the 1954 Hague Convention for the Protection of Cultural Property in the Event of Armed Conflict also applies. It must, however, be considered a novelty that such behaviour, even when committed in non-international armed conflicts, is considered a war crime, even more since new elements, such as the protection of buildings dedicated to education, were added.
- 933 The wording of article 8 para. 2 (e) (iv) of the Statute (and indeed the elements of crimes adopted in that regard) is identical to the wording of sub-paragraph b (ix) (respectively to the wording of the elements of crimes adopted concerning article 8 para. 2 (b) (ix)), reference to which can accordingly be made<sup>1578</sup>.

#### 5. Paragraph 2(e)(v): Pillage

**Literature:** See article 8 para. 2 (b) (xvi).

- 934 The wording of the prohibition of pillage contained in article 8 para. 2 (e) (v) of the Statute was drawn from article 28 of the Regulations Concerning the Laws and Customs of War on Land annexed to the 1907 Hague Convention (IV) Respecting the Laws and Customs of War on Land.<sup>1579</sup> Such prohibition is also contained in article 4 para. 2 (g) of Add. Prot. II of 1977. In the *Jerbo* decision the Chamber recalled that '[a]ccording to the Elements of Crimes, for a conduct to constitute the crime provided for under article 8 para. 2 (e) (v) of the Statute, the following objective elements are required: (i) the perpetrator appropriated certain property; and (ii) the appropriation was without the consent of the owner'<sup>1580</sup>. In the *Bemba* decision the Chamber observed that article 8 para. 2 (e) (v) of the Statute 'entails a somewhat large-scale appropriation of all types of property, such as public or private'<sup>1581</sup>, movable or immovable property, which goes beyond mere sporadic acts of violation of property rights'<sup>1582</sup>. The

<sup>1576</sup> *Ibid.*, para. 93; *Prosecutor v. Katanga and Ngudjolo Chui*, ICC-01/04-01/07, Decision on the confirmation of charges, Pre-Trial Chamber I, 26 September 2008, para. 271.

<sup>1577</sup> *Prosecutor v. Garda*, ICC-02/05-02/09, Decision on the Confirmation of Charges, 8 February 2010, para. 94.

<sup>1578</sup> See Arnold and Wehrenberg, *article 8 para. 2 (b) (ix)*.

<sup>1579</sup> Ambos, *Treatise on ICL II* (2014) 169.

<sup>1580</sup> *Prosecutor v. Nourain and Jamus*, ICC-02/05-03/09, Decision on the confirmation of charges, Pre-Trial Chamber I, 7 March 2011, para. 111. See also *Prosecutor v. Taylor*, SCSL-03-01-T, Judgment, Trial Chamber II, 18 May 2012, para. 452.

<sup>1581</sup> See also *Prosecutor v. Taylor*, SCSL-03-01-T, Judgment, Trial Chamber II, 18 May 2012, para. 453.

<sup>1582</sup> *Prosecutor v. Bemba*, ICC-01/05-01/08, Pre-Trial Chamber II, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor, 15 June 2009, para. 317. With regard to article 8 para. 2



Chamber further observed that a ‘certain monetary value’ of the property at issue is not required but that in view of the Court’s mandate set out in article 1 of the Statute and the formulation ‘other serious violations’ in article 8 para. 2 (e), ‘cases of petty property expropriation may not fall under the scope of article 8 para. 2 (e) (v) of the Statute’ and that the seriousness of the violation in question has to be assessed in light of the particular circumstances of the case.

In the *Taylor* judgment the Trial Chamber pointed out that ‘the perpetrator must have specifically intended to deprive the owner of the property and to appropriate it for private or personal use’<sup>1583</sup>. In the *Taylor* judgment Trial Chamber II of the Special Court for Sierra Leone further held that the crime of pillage ‘[...] covers both organised or systematic appropriation and the isolated acts of individuals’<sup>1584</sup>.

The wording of article 8 para. 2 (e) (v) of the Statute is identical to the wording of article 2 para. 2 (b) (xvi), reference to which can accordingly be made<sup>1585</sup>. Identical considerations also apply with regard to the respective elements of crimes adopted by the Assembly of States Parties.

## 6. Paragraph 2(e)(vi): Rape and other forms of sexual violence

**Literature:** See article 8 para. 2 (b) (xxii) and Healey, S. A., ‘Prosecuting Rape under the Statute of the War Crimes Tribunal for the former Yugoslavia,’ (1995) 21 *BrookJIL* 2, 327; Meron, T., ‘Rape as a Crime under International Humanitarian Law,’ (1993) 87 *AJIL* 424; Maedl, A., ‘Rape as weapon of war in the eastern DRC? The victim’s perspective’, (2011) 33 *HumRtsQ*. 128–147.

The wording of article 8 para. 2 (e) (vi) is, *mutatis mutandis*, identical to the wording of article 8 para. 2 (b) (xxii), reference to which can accordingly be made<sup>1586</sup>.

In its decision of 15 June 2009 in the *Bemba* case Pre-Trial Chamber II found that the victims ‘were raped, by force, or by threat of force or coercion’<sup>1587</sup>. The ICTY and ICTR, as well as the Special Court for Sierra Leone, all have held that ‘[f]orce or threat of force provides clear evidence of non-consent, but force is not an element *per se* of rape’<sup>1588</sup>.

It has to be noted, however, that as far as forms of sexual violence other than rape are concerned, reference is made – unlike in the case of international armed conflicts, where reference is made to those acts also constituting grave breaches of the Geneva Conventions – to common article 3. Accordingly the elements of crimes adopted with regard to article 8 para. 2 (e) (vi), which are otherwise identical to the ones adopted with regard to article 8 para. 2 (b) (xxii), also differ in that regard.

The last phrase brings ‘any other form of sexual violence also constituting a serious violation of article 3 common to the four Geneva Conventions’ within the jurisdiction of the ICC<sup>1589</sup>. It has to be understood as meaning that acts of sexual violence other than rape, sexual slavery, enforced sterilisation and enforced prostitution committed in internal armed conflict would only come within the jurisdiction of the ICC if, and to the extent, that they

(b) (xvi) see also *Prosecutor v. Katanga and Ngudjolo Chui*, ICC-01/04-01/07, Decision on the confirmation of charges, Pre-Trial Chamber I, 26 September 2008, paras. 329–331.

<sup>1583</sup> *Prosecutor v. Bemba*, ICC-01/05-01/08, Pre-Trial Chamber II, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor, 15 June 2009, para. 319; See also *Prosecutor v. Katanga and Ngudjolo Chui*, ICC-01/04-01/07, Decision on the confirmation of charges, Pre-Trial Chamber I, 26 September 2008, para. 331, albeit with respect to article 8 para. 2 (b) (xvi); *Prosecutor v. Taylor*, SCSL-03-01-T, Judgment, Trial Chamber II, 18 May 2012, para. 452.

<sup>1584</sup> *Prosecutor v. Taylor*, SCSL-03-01-T, Judgment, Trial Chamber II, 18 May 2012, para. 453.

<sup>1585</sup> See Zimmermann and Geiß, article 8 para. 2 (b) (xvi), *passim*.

<sup>1586</sup> See Cottier and Mzee, article 8 para. 2 (b) (xxii).

<sup>1587</sup> *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08, Decision pursuant to article 61 (7) (a) and (b) of the Rome Statute on the charges of the Prosecutor, Pre-Trial Chamber II, 18 September 2009, para. 286.

<sup>1588</sup> *Prosecutor v. Tharcisse Renzaho*, ICTR-97-31-T, Judgment, Trial Chamber I, 14 July 2009, para. 791; *Prosecutor v. Bagosora et al.*, ICTR-98-41-T, Judgment, Trial Chamber, 18 December 2008, para. 2199; *Prosecutor v. Kunarac et al.*, IT-96-23 & IT-96-23/1-A, Judgment, Appeals Chamber, 12 June 2002, para. 129; *Prosecutor v. Sesay, Kallon and Gbao*, see note 312, para. 147.

<sup>1589</sup> Ambos, *Treatise on ICL II* (2014) 168; Werle and Jessberger, *Principles* (2014) 442.

also constitute by the same token a serious violation of common article 3<sup>1590</sup>. This interpretation of the relevant formula is confirmed by the use of the term ‘also’, as well by the very fact that the second alternative ‘any other form of sexual violence’ is separated by a comma from the other alternatives, thus making it clear that the additional formula ‘constituting a serious violation of article 3 common to the four Geneva Conventions’ has to be understood as a qualifying element.

- 941 The formula, by using the word ‘also’, further confirms, if need existed, that the *specific* acts listed in article 8 para. 2 (e) (vi) of the Statute, *i.e.* rape, sexual slavery, enforced prostitution, forced pregnancy and enforced sterilization, all *per se* constitute serious violations of common article 3<sup>1591</sup>.

### 7. Paragraph 2(e)(vii): Recruitment of children

Literature: See article 8 para. 2 (b) (xxvi).

- 942 The main idea underlying article 8 para. 2 (e) (vii) of the Statute can already be found, although in a somewhat modified way, in article 4 para. 3 (c) of Add. Prot. II as well as in article 38 paras. 2 and 3 of the United Nations Convention on the Rights of the Child.
- 943 The wording of article 8 para. 2 (e) (vii) of the Statute is similar to the wording of article 8 para. 2 sub-para. b (xxvi), reference to which can accordingly be generally made<sup>1592</sup>. One main difference in the wording of these provisions, however, has to be noted: in the case of an international armed conflict according to article 8 para. 2 (b) (xxvi) only the conscription or enlistment of children into *national* armed forces constitutes a crime. In contrast thereto, in case of an armed conflict not of an international character, the prohibition of conscription or enlistment of children by virtue of the wording of article 8 para. 2 (e) (vii) extends to all *armed forces* article 8 para. 2 (e) (vii) speaks of enlisting children under the age of fifteen years ‘into armed forces or groups’. Besides, given the specificities of internal armed conflict, the conscription or enlistment of children into *armed groups* is similarly punishable.
- 944 In light of this textual difference the respective elements of crimes, which otherwise are identical, also differ in that regard. It must be noted, however, that Pre-Trial Chamber I in the *Lubanga* decision of 29 January 2007 leveled out this textual difference in the wording of article 8 para. 2 (b) (xxvi) and 8 para. 2 (e) (vii) by holding that under article 8 para. 2 (b) (xxvi) of the Statute, the term ‘national armed forces’ is not limited to the armed forces of a State<sup>1593</sup>. This interpretation of the term ‘national armed forces’ was confirmed in the *Katanga* decision of 26 September 2008<sup>1594</sup>. In *Lubanga* the Chamber referred to article 43 of Add. Prot. I and its commentary as well as article 1 of the 1907 Hague Regulations concerning the laws and customs of war and rightly noted that, in the context of an international armed conflict, Add. Prot. I does not require that the armed forces be governmental forces<sup>1595</sup>. Moreover, the

<sup>1590</sup> See already Zimmermann (1998) *MPYbUNL* 194–195. But see also Hall, in: Lattanzi (ed.), *Comments* (1998) 33, who seems to take a different view.

<sup>1591</sup> See in that regard in particular the decision of the Trial Chamber in the *Čelebići* case, which found that rape does, under certain circumstances, constitute torture, (*Prosecutor v. Delalić*, IT-96-21-T, Judgment, Trial Chamber, 16 November 1998, para. 496) and *Prosecutor v. Akayesu*, ICTR-96-4-T, Judgment, Trial Chamber, 2 September 1998, para. 597 and thus also constitute a violation of paragraph 1 (a) of common article 3. See also the findings of the Inter-American Commission on Human Rights, *Fernando and Raquel Mejia v. Peru*, (Report No. 5/96, Case 10970, (1995) *Ann. Report of the Inter-American Comm. on Hum. Rts.* 157 as well as of the European Court of Human Rights, *Aydın v. Turkey*, Judgment of 25 September 1997, para. 86), which have determined that rape of women by state organs constitutes a specific form of torture; see finally also the report of the Special Rapporteur of the Commission on Human Rights, UN Doc E/CN.4/1995/34, para. 18, where the Special Rapporteur refers to the fact that rape constitutes a specific traumatic form of torture.

<sup>1592</sup> See Arnold and Wehrenberg, *article 8 para. 2 (b) (xxvi)*.

<sup>1593</sup> *Prosecutor v. Lubanga Dyilo*, ICC-01/04-01/06, Decision on the confirmation of charges, Pre-Trial Chamber I, 29 January 2007, para. 285.

<sup>1594</sup> *Prosecutor v. Katanga and Ngudjolo Chui*, ICC-01/04-01/07, Decision on the confirmation of charges, Pre-Trial Chamber I, 26 September 2008, para. 249.

<sup>1595</sup> *Prosecutor v. Lubanga Dyilo*, ICC-01/04-01/06, Decision on the confirmation of charges, Pre-Trial Chamber I, 29 January 2007, para. 272.

Chamber considered whether the adjective ‘national’ qualifying the term ‘armed forces’ implies a limitation to governmental armed forces. It relied on the jurisprudence of the ICTY<sup>1596</sup>, which has accorded the term ‘national’ as it is found in article 4 para. 1 of the Fourth Geneva Convention a wider meaning beyond mere nationality and held that ‘interpreting the term ‘national’ to mean ‘governmental’ can only undermine the object and purpose of the Statute of the Court, which is none other than to ensure that ‘the most serious crimes of concern to the international community as a whole’ must no longer go unpunished<sup>1597</sup>.

Unfortunately, however, the Chamber did not consider at all why the drafters of the Statute had introduced this textual difference in articles 8 para. 2 (b) (xxvi) and para. 2 (e) (vii) in the first place. Given that a parallel interpretation of the word ‘national’ in article 4 para. 1 of the Fourth Geneva Convention and in article 8 para. 2 (b) (xxvi) of the Rome Statute is certainly not compelling, the argumentation is primarily supported by the overall object and purpose to punish most serious crimes. This is also reflected in the concluding remark of the Chamber according to which ‘it would be absurd that Thomas Lubanga Dyilo could incur criminal responsibility for the crime of enlisting or conscripting children under the age of fifteen years only in the context of an internal armed conflict solely because the FPLC, as an armed force, could not be described as a ‘national armed force’ within the meaning of article 8 para. 2 (b) (xxvi) of the Statute’<sup>1598</sup>. Of course, the textual difference between articles 8 para. 2 (b) (xxvi) and para. 2 (e) (vii) of the Statute marks a rare instance in which – at least in view of the different wording – the ambit of criminalized behaviour is wider in relation to non-international armed conflicts than it is with respect to international armed conflicts. The Chamber in *Lubanga* has levelled out this difference largely on the basis of the object and purpose of the Rome Statute not to let serious offences go unpunished.

As desirable as such an equalization-approach appears, such a line of argumentation, without at least giving due regard to the original intention of the drafters of the Rome Statute, is problematic. After all, the very same logic could be used to level out other intentional differences between the criminalization of behaviour in international and non-international armed conflicts. Against this background the Trial Chamber in its *Lubanga* judgment spoke of a ‘significant difference in wording’ between article para. 2 (b) (xxvi) and article para. 2 (e) (vii)<sup>1599</sup> and emphasized that despite all tendencies towards the assimilation of international and non-international armed conflicts the Court must heed the distinction contained in the Rome Statute and that ‘[t]he Chamber does not have the power to reformulate the Court’s statutory framework’<sup>1600</sup>. Judge Benito, however, in her separate and dissenting opinion followed the reasoning of the Pre-Trial Chamber arguing that ‘It would be contrary to the ‘object and purpose’ of the Rome Statute and contrary to internationally recognised human rights (and thus contrary to Article 21(3) of the Rome Statute) to exclude from the prohibition of child recruitment, and armed group, solely for the nature of its organization (State or non-state armed group)’<sup>1601</sup>.

Since the Statute does not limit the prohibition of enlistment and conscription to the national or regular armed forces of a given State, it has to be understood as embracing all organized governmental armed forces, groups and units including, where applicable, those formations of the armed forces not included in the definition of the army under the domestic legislation of that State<sup>1602</sup>, but still enjoying combatant status.

<sup>1596</sup> *Prosecutor v. Tadić*, IT-94-1-A, Judgement, Appeals Chamber, 15 July 1999, para. 166.

<sup>1597</sup> *Prosecutor v. Lubanga Dyilo*, ICC-01/04-01/06, Decision on the confirmation of charges, Pre-Trial Chamber I, 29 January 2007, para. 281.

<sup>1598</sup> *Ibid.*, para. 284.

<sup>1599</sup> *Prosecutor v. Lubanga Dyilo*, ICC-01/04-01/06-2842, Judgment pursuant to Article 74 of the Statute, Trial Chamber I, 14 March 2012, para. 568.

<sup>1600</sup> *Ibid.*, para. 539.

<sup>1601</sup> *Prosecutor v. Lubanga Dyilo*, ICC-01/04-01/06, Separate and Dissenting Opinion of Judge Odio Benito, 14 March 2012, para. 13.

<sup>1602</sup> See for a similar definition of the notion of ‘armed forces’ in article 1 para. 1 Add. Prot. II, Sandoz *et al.* (eds.), *Commentary* (1987) mn 4462.

- 948 Given the fact that article 8 para. 2 (f) limits the scope of application of article 8 para. 2 (e) of the Statute to situations in which *organized* armed groups are involved, the notion of ‘groups’ as contained in article 8 para. 2 (e) (vii) has to be similarly limited to such groups, *i.e.* armed groups, which possess a minimum of organization. In this regard the Special Court for Sierra Leone has ruled that the elements of ‘armed forces or groups’ entail that the armed forces or groups must be under responsible command, which entails a degree of organization which should be such as to enable the armed groups to plan and carry out concerted military operations and to impose discipline within the armed group<sup>1603</sup>. On the other hand since neither article 8 para. 2 (e) (vii) nor article 8 para. 2 (f) of the Statute mention the further requirements which are otherwise to be found in article 1 para. 1 of Add. Prot. II, such as in particular the exercise of territorial control and the requirement of being under responsible command, they do not form part of the elements to be proven as far as the second alternative of article 8 para. 2 (e) (vii) is concerned.
- 949 Moreover, it should be noted that the requirement of using children to participate actively in hostilities, at least with respect to non-international armed conflicts, is not to be equated with a direct participation in hostilities that may lead to a loss of protection from direct attack. The Special Court for Sierra Leone (Trial Chamber I) seems to assume that these notions are similar<sup>1604</sup>. However, whereas the purpose of article 8 para. 2 (e) (vii) is the protection of children by describing the scope of what amounts to a prohibited use of children, direct participation in the realm of the conduct of hostilities pertains to the loss of protection from direct attack. Against this background it appears plausible in light of the object and purpose to better protect children in times of armed conflict to accord a wider meaning of the phrase ‘active participation in hostilities’ under international criminal law. Such a wider interpretation has been endorsed in the *Lubanga* judgment of March 2012<sup>1605</sup>. This argument finds some support in the wording of article 4 (3) (c) of Add. Prot. II which, unlike the wording of article 77 para. 2 of Add. Prot. I regarding international armed conflicts, merely prohibits to allow children ‘to take part in hostilities’, while omitting the word ‘direct’<sup>1606</sup>. From this it may be inferred that a wider meaning can be accorded to the notion of active participation in hostilities with respect to the war crime of using children for military activities linked to combat than it would have in the realm of the conduct of hostilities where direct participation in hostilities amounts to an exception to the general rule according to which civilians are protected from direct attacks and where accordingly it should be interpreted restrictively. Therefore, in *Lubanga* the trial chamber held that ‘[t]hose who participate actively in hostilities include a wide range of individuals, from those on the front line (who participate directly) through to the boys or girls who are involved in a *myriad of roles* that support the combatants’<sup>1607</sup>. The decisive factor in deciding, therefore, if an ‘indirect’ role is to be treated as active participation in hostilities is whether the support provided by the child to the combatants exposed him or her to real danger as a *potential target*<sup>1608</sup>. In the *Taylor* judgment, the Trial Chamber II of the Special Court for Sierra Leone also referred to whether the ‘children would constitute legitimate military targets’<sup>1609</sup> and adopted a similar approach of assessing active participation on a case-by-case basis holding that: ‘[u]sing children to participate actively in the hostilities

<sup>1603</sup> *Prosecutor v. Brima et al.*, SCSL-04-16-T, Judgment, Trial Chamber, 20 June 2007, para. 738.

<sup>1604</sup> *Prosecutor v. Sesay, Kallon and Gbao*, SCSL-04-15-T, Judgement, Trial Chamber I, 2 March 2009, para. 1723. Notably, Trial Chamber II adopted a wider approach *Prosecutor v. Taylor*, SCSL-03-01-T, Judgment, Trial Chamber II, 18 May 2012, para. 444.

<sup>1605</sup> *Prosecutor v. Lubanga Dyilo*, ICC-01/04-01/06-2842, Judgment pursuant to Article 74 of the Statute, Trial Chamber I, 14 March 2012, para. 627.

<sup>1606</sup> Sivakumaran (2010) 8 *JICJ* 1019.

<sup>1607</sup> *Prosecutor v. Lubanga Dyilo*, ICC-01/04-01/06-2842, Judgment pursuant to Article 74 of the Statute, Trial Chamber I, 14 March 2012, para. 628 (emphasis added).

<sup>1608</sup> *Ibid.* (emphasis added). Judge Benito argued in favor of an even broader interpretation of the notion ‘to participate actively in hostilities’; *Prosecutor v. Lubanga Dyilo*, Separate and Dissenting Opinion Benito, ICC-01/04/-01/06, Separate and Dissenting Opinion of Judge Odio Benito, 14 March 2012, para. 15.

<sup>1609</sup> *Prosecutor v. Taylor*, SCSL-03-01-T, Judgment, Trial Chamber II, 18 May 2012, para. 1604.

encompasses putting their lives directly at risk in combat, but may also include participation in activities linked to combat such as carrying loads for the fighting faction, finding and/or acquiring food, ammunition or equipment, acting as decoys, carrying messages, making trails or finding routes, manning checkpoints or acting as human shields<sup>1610</sup>. On this basis the Chamber held that *inter alia* ‘the use of a child to guard a diamond mine put the child at sufficient risk to constitute illegal use of the child...’ given that the diamond mines in Sierra Leone were crucial sources of revenue for the warring parties<sup>1611</sup>. Conversely, the Chamber held that the performance of domestic chores does not constitute active participation in hostilities<sup>1612</sup>. Under international humanitarian law the terms direct participation and active participation in hostilities are synonymous<sup>1613</sup>. Therefore, a wide interpretation of the term ‘active participation’ in the context of article 8 para. 2 (e) (vii) potentially could have repercussions on the interpretation of the notion of direct participation in hostilities in other contexts, namely when a civilian’s loss of protection from direct attack is at issue. Such an overly wide interpretation of the criteria leading to the loss of protection of civilian persons, however, cannot be sustained. It would be contrary to the general rule according to which civilians are protected from direct attack.

### 8. Paragraph 2(e)(viii): Prohibition of forced movement of civilians

**Literature:** Fleck, D., ‘Kriegslisten und Perfidieverbot’, in: *id.* (ed.), *Beiträge zur Weiterentwicklung des humanitären Völkerrechts für bewaffnete Konflikte* (1973) 116; Geissler, N., *Der völkerrechtliche Schutz der internally displaced persons* (1999) in particular 111 *et seq.*; Gimmerthal, M., *Kriegslist und Perfidieverbot im Zusatzprotokoll vom 10. Juni 1977 zu den vier Genfer Rotkreuz-Abkommen von 1949* (1990) (*Zusatzprotokoll I*); Henckaerts, J.-M., ‘Deportation and transfer of civilians in time of war’, (1993) *VandJTransnatL* 469; Hofmann, R., ‘Internally displaced persons und das Völkerrecht’, in: U. Beyerlin *et al.* (eds.), *Recht zwischen Umbruch und Bewahrung – Festschrift für Rudolf Bernhardt* (1995) 417; *id.*, ‘International Humanitarian Law and the Law of Refugees and Internally Displaced Persons’, in: European Commission, *Law in Humanitarian Crises – How Can International Humanitarian Law Be Made Effective in Armed Conflicts?* (1995); Jasica, R., ‘Der Kombattantenbegriff in den Zusatzabkommen von 1977 zu den Genfer Abkommen von 1949’, in: W. Voit (ed.), *Völkerrechtliche Beiträge der Tagungen der Justitiare und Konventionsbeauftragten des Deutschen Roten Kreuzes 1957–1989* (1995) 261; Lerner, N., ‘Ethnic cleansing’, in: Y. Dinstein (ed.), *War Crimes in International Law* (1996) 107; Meindersma, C., ‘Legal issues surrounding population transfers in conflict situations’, (1994) *NethILRev* 31; Melzer, N., *ICRC Interpretive Guidance on the Notion of Direct Participation in Hostilities under International Law* (2009); Finucane, B., ‘Enforced disappearance as a crime under international law: A neglected origin in the laws of war’, (2010) 35 *YaleJIL* 171; Ott, L., *Enforced Disappearance in International Law* (2011); Geiß, R., ‘Ethnic Cleansing’, *MPEPIL* (2012, online version).

The wording of the prohibition of forced movement of civilians was literally taken, some minor drafting changes notwithstanding, from article 17 para. 1, first sentence of Add. Prot. II<sup>1614</sup>, which in turn was derived from article 49 para. 2 of the Fourth Geneva Convention. As far as *international* armed conflicts are concerned, a similar prohibition can be found in article 8 para. 2 (b) (viii) of the Statute<sup>1615</sup> which does not cover, however, the Party’s own nationals in national territory not occupied by an adverse Party.

As recent examples of internal armed conflicts have demonstrated, practices of so-called ‘ethnic cleansing’ in order to facilitate in the future the domination of one ethnic group over another in a given area or in order to create a *fait accompli* for a future peace settlement, have become a common practice of many armed conflicts. Besides, the need for such a prohibition might arise, where similar policies are used in counter-insurgency operations in order to deprive guerrilla groups of the support they derive from the local population<sup>1616</sup>.

<sup>1610</sup> Also *Prosecutor v. Taylor*, SCSL-03-01-T, Judgment, Trial Chamber II, 18 May 2012, para. 444.

<sup>1611</sup> *Ibid.*, para. 1459.

<sup>1612</sup> *Ibid.*, para. 1411.

<sup>1613</sup> Melzer, *Interpretive Guidance* (2009) 43.

<sup>1614</sup> It has to be noted that the French text uses a slightly modified wording of article 17 para. 1 Add. Prot. II since it does not refer to ‘raisons militaires impératives’ but to ‘impératifs militaires’ which does not, however, entail a difference in substance as compared to the first mentioned provision.

<sup>1615</sup> See Cottier and Baumgartner, *article 8 para. 2 (b) (viii)*.

<sup>1616</sup> Bothe *et al.* (eds.), *New Rules* (1982) 691. For genocide by so-called ‘ethnic cleansing’ see Schabas, *article 6*, mn 19.



- 952 The use of the term ‘ordering’ makes it clear that only acts which are directly aimed at removing the respective civilian population from a given area are prohibited. Thus, other acts which do not possess such a character but which lead to the same result, such as the intentional starvation of the civilian population in order to force them to leave a certain area, are not prohibited by article 8 para. 2 (e) (viii) of the Statute. This is confirmed by the fact that an explicit prohibition to that effect had been part of the original proposal submitted by New Zealand and Switzerland<sup>1617</sup>, which was not retained. Such acts might, however, be covered by article 8 para. 2 (e) (iii) or (xii) of the Statute.
- 953 Violations of article 8 para. 2 (e) (viii) of the Statute cannot be solely committed by the person actually ordering a displacement, but by anybody whose individual criminal responsibility is engaged by virtue of articles 25 *et seq.*<sup>1618</sup>, notwithstanding the fact that element 3 of the elements of crimes adopted with regard to article 8 para. 2 (e) (viii) requires that ‘[t]he perpetrator was in a position to effect such displacement by giving such order’.
- 954 Given the fact that article 8 para. 2 (e) (viii) of the Statute, unlike article 17 para. 2 of Add. Prot. II which speaks of ‘civilians’, refers to the ‘civilian population’, it seems that only the forced displacement of a minimum number of civilians is prohibited. This conclusion is however somewhat contradicted by the fact that the elements of crimes adopted with regard to article 8 para. 2 (e) (viii) interchangeably use both terms.
- 955 Article 17 para. 2 of Add. Prot. II also contains a specific prohibition to compel civilians to leave their own country<sup>1619</sup>. Thus, the question arises whether a similar behaviour is also prohibited under article 8 para. 2 (e) (viii) of the Statute. Given the broad wording of article 8 para. 2 (e) (viii) of the Statute, it seems to be correct to assume, however, that such cross-boundary measures also constitute forced displacements.
- 956 The displacement must further occur for ‘reasons related to the conflict’. Accordingly displacements which take place for other reasons such as epidemics or natural disasters are not covered by that provision<sup>1620</sup>.
- 957 The ordering of a displacement of a civilian population does not constitute a war crime under the Statute if it is done to protect that very same population from dangers.
- 958 Article 8 para. 2 (e) (viii) of the Statute, by using the words ‘imperative military reasons’, seems to imply that not every situation of military necessity might justify a displacement of a civilian population since the text indicates that only most serious military reasons, which are of an imperative nature, can do so<sup>1621</sup>. It has to be noted, however, that the elements of crimes adopted by the Assembly of States Parties imply that the term ‘imperative military reasons’ and the notion of ‘military necessity’ have the same meaning.

### 9. Paragraph 2(e)(ix): Prohibition of perfidy

**Literature:** See article 8 para. 2 (b) (xi).

- 959 The prohibition of perfidy as contained in article 8 para. 2 (e) (ix) of the Statute resembles article 23 (b) of the 1907 Hague Regulations annexed to the Hague Convention Respecting the Laws and Customs of War on Land. Unlike the parallel provision contained in article 8 para. 2 (b) (xi) of the Statute, which is completely identical to that provision, the text of article 23 (b) of the 1907 Hague Regulations has been modified in order to make it compatible with the specificities of armed conflicts not of an international character.
- 960 More specifically, since armed conflicts not of an international character do not take place between different States, the words ‘individuals belonging to the hostile nation or army’, as

<sup>1617</sup> UN Doc A/AC.249/1997/WG.1/DP.2, War Crimes, para. 3 (xi).

<sup>1618</sup> For details see Ambos, *article 25*.

<sup>1619</sup> Sandoz *et al.* (eds.), *Commentary* (1987) mn 4858.

<sup>1620</sup> *Ibid.*, No. 4855 with further references to the drafting history of article 17 Add. Prot. II.

<sup>1621</sup> *Ibid.*, No. 4853; see also Geissler, *Internally displaced persons* (1999) in particular 126 *et seq.* See also Dörmann, *Elements of War Crimes* (2003) 474: ‘military necessity is qualified by referring to “imperative military reasons”. The situation should be scrutinized most carefully, as the adjective “imperative” reduces to a minimum cases in which displacement may be ordered’ (with further references).



contained in article 23 (b) of the 1907 Hague Regulations, were replaced by the words ‘combatant adversary’. The Elements of Crimes, which were otherwise taken over from those adopted with regard to article 8 para. 2 (b) (xi), were accordingly modified.

Unlike in the case of article 8 para. 2 (b) (xi) of the Statute, where also the perfidious 961 killing of civilians, *i. e.* persons not falling within the definitions contained in articles 43 and 44 of Add. Prot. I, belonging to the enemy nation can constitute a crime coming within the jurisdiction of the Court<sup>1622</sup>, the scope of application of article 8 para. 2 (e) (ix) of the Statute is limited to the treacherous killing or wounding of combatant adversaries. It has to be noted that this provision does *not* refer to enemy combatants, but instead to combatant adversaries, *i. e.* to adversaries who take part in hostilities. This careful distinction was made in order to avoid the impression that there might exist the notion of ‘combatants’ in non-international armed conflict<sup>1623</sup>. This interpretation is further confirmed by the French text, which refers to ‘un adversaire combatant’ and *not* to ‘un combatant adversaire’. Given this interpretation of article 8 para. 2 (e) (ix) of the Statute, the treacherous killing of any person, who is participating in the fighting on behalf of the adversarial side, is prohibited.

Otherwise, the content of both provisions, article 8 para. 2 (e) (ix) and (b) (xi) of the 962 Statute as well as the respective elements of crimes, are identical. Reference to those provisions is accordingly made<sup>1624</sup>.

### 10. Paragraph 2(e)(x): Quarter

**Literature:** See article 8 para. 2 (b) (xii).

The wording of the prohibition to order that there shall be no survivors, as now contained 963 in article 8 para. 2 (e) (x) of the Statute, was drawn from article 23 (d) of the 1907 Hague Convention Respecting the Laws and Customs of War on Land. Such prohibition is also contained in article 40 Add. Prot. I but it has no equivalent in Add. Prot. II.

The wording of article 8 para. 2 (e) (x) of the Statute, as well as the elements of crimes as 964 adopted in that regard, are identical to the wording of article 8 para. 2 (b) (xii) and to the respective elements of crimes, reference to which can accordingly be made<sup>1625</sup>.

### 11. Paragraph 2(e)(xi): Prohibition of physical mutilations

**Literature:** See article 8 para. 2 (b) (x).

In case of an internal armed conflict coming within the jurisdiction of the ICC, the mutilation 965 of persons not taking part in hostilities is already prohibited by virtue of article 8 para. 2 (c) (i) of the Statute. This general prohibition is further elaborated by article 8 para. 2 (e) (xi), the text of which is based on both article 11 Add. Prot. I and article 5 para. 2 (e) Add. Prot. II.

Compared with the parallel provision relating to international armed conflict<sup>1626</sup>, the only 966 difference that can be discerned is that the words ‘in the power of an adverse party’ were replaced by the words ‘in the power of another party to the conflict’. The same is true, *mutatis mutandis*, with regard to the respective elements of crimes. Given the definition of armed conflict as contained in article 8 para. 2 (f) of the Statute<sup>1627</sup>, therefore any mutilation or unwarranted medical or scientific experiment undertaken on behalf of either governmental authorities or on behalf of organized armed groups comes within the definition of article 8 para. 2 (e) (xi).

<sup>1622</sup> See Cottier and Grignon, *article 8 para. 2 (b) (xi)*, mn 115 *et seq.*, as well as Fleck, in: *id.* (ed.), *Bewaffnete Konflikte* (1973) 116: ‘Artikel 23 b HLKO verbietet mit der “meuchlerischen Tötung oder Verwundung” die Ausnutzung der Arglosigkeit eines Soldaten oder Zivilisten der gegnerischen Partei ...’ (emphasis added) as well as Gimmerthal, *Kriegslist* (1990) 50 and Bothe et al. (eds.), *New Rules* (1982) 204.

<sup>1623</sup> Add. Prot. II does neither acknowledge such status, see Jasica, in: Voit (ed.), *Beiträge* (1995) 261.

<sup>1624</sup> See Cottier and Grignon, *article 8 para. 2 (b) (xi)*.

<sup>1625</sup> See Cottier and Grignon, *article 8 para. 2 (b) (xii)*.

<sup>1626</sup> See Zimmermann and Geiß, *article 8 para. 2 (b) (x)*.

<sup>1627</sup> See Zimmermann and Geiß, *article 8 para. 2 (f)*.

## 12. Paragraph 2 (e)(xii): Prohibited destruction

- 967 The wording of the prohibition of destroying the property of an adversary, now contained in article 8 para. 2 (e) (xii) of the Statute, was drawn from article 23 (g) of the 1907 Hague Convention Respecting the Laws and Customs of War on Land. A similar prohibition is also contained in article 53 of the Fourth Geneva Convention of 1949, but no similar provision can be found in Add. Prot. II, except that its article 14 prohibits the destruction of objects which are indispensable to the survival of the civilian population.
- 968 Compared with the parallel provision relating to international armed conflict<sup>1628</sup>, *i. e.* article 8 para. 2 (b) (xiii) of the Statute, which is completely identical to article 23 (g) of the 1907 Hague Regulations annexed to the Hague Convention Respecting the Laws and Customs of War on Land, two differences between the Hague Law and article 8 para. 2 (e) (xii) of the Statute have to be noted:
- 969 On the one hand, the words ‘the enemy’s property’ were replaced by the words ‘the property of an adversary’. The same is true, *mutatis mutandis*, for the elements of crimes, as compared to the elements of crimes adopted with regard to article 8 para. 2 (b) (xiii). On the other hand, the term ‘war’ was replaced by the notion of ‘conflict’. Both of these changes are due to the specific character of internal armed conflicts. As to the use of the term ‘adversary’ instead of ‘enemy’, it has to be noted that in non-international armed conflicts, the members of the different parties to the conflict are usually nationals of the same State and as such cannot be considered ‘enemies’ in the technical sense. In the context of article 8 para. 2 (e) (xii) of the Statute, the term ‘adversary’ thus refers to any person, who is considered to belong to another party to the conflict, such as the government, insurgents or as article 8 para. 2 (f) of the Statute demonstrates, belongs to an opposing organized armed group.
- 970 Since article 8 para. 2 (e) (xii) of the Statute, unlike article 8 para. 2 (e) (ix), does not refer solely to combatant adversaries, both the property of persons participating in hostilities and that of civilians is protected against destruction or seizure.
- 971 Since the term ‘war’ commonly refers to cases of armed conflicts between different States (see *e. g.* article 2 common to the four Geneva Conventions), it was replaced in article 8 para. 2 (e) (xii) as well as in the elements of crimes by the term ‘conflict’ respectively ‘armed conflict not of an international character’, which can already be found in the *chapeau* of article 8 para. 2 (e). Given that the war crime of intentionally directing attacks against civilian objects as it is laid out in article 8 para. 2 (b) (ii) as well as the war crime of intentionally causing disproportionate collateral damage, as laid out in article 8 para. 2 (b) (iv) of the Statute, were deliberately omitted from the catalogue of war crimes applicable to non-international armed conflicts in article 8 para. 2 (e) of the Statute, the crime contained in article 8 para. 2 (e) (xii) should not be interpreted to apply to the conduct of hostilities as such. In order to maintain a meaningful distinction between the war crime of intentionally directing attacks against civilian objects and of causing disproportionate collateral damage on the one hand, and the war crime of destroying or seizing the property of an adversary on the other hand, as it is required by the very systematic of article 8 of the Statute itself, at least a minimum degree of *de facto* territorial control should be required for the crime contained in article 8 para. 2 (e) (xii).
- 972 Otherwise, the content of both, article 8 para. 2 (e) (ix) and (b) (xi) (and indeed the respective elements of crimes) is identical, reference to which can accordingly be made<sup>1629</sup>.

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<sup>1628</sup> See Zimmermann and Geiß, *article 8 para. 2 (b) (x)*.

<sup>1629</sup> See Zimmermann and Geiß, *article 8 para. 2 (b) (x)*.

**Preliminary remarks on subparagraphs (xiii)–(xv):  
Prohibited weapons in non-international armed conflicts**

**Literature:** See article 8 para. 2 (b) (xvii)–(xx) and Geiß, R., ‘Poison, gas and expanding bullets – the extension of the list of prohibited weapons at the Review Conference of the International Criminal Court in Kampala’, (2011) *YbIHumL* 337–352; Watkin, K., ‘Chemical agents and expanding bullets – limited law enforcement exceptions or unwarranted handcuffs?’, (2006) 36 *IsYbHumRts* 43–69; Coupland, R. and Loye, D., ‘The 1899 Hague Declaration concerning Expanding Bullets – A treaty effective for more than 100 years faces complex contemporary issues’, (2003) 85 *IRevRC* 135–142; Fry, J., ‘Gas smells awful – U.N. forces, riot-control agents, and the chemical weapons convention’, (2009/10) 31 *MichJIL* 475–558; Boothby, W. H., *Weapons and the Law of Armed Conflict* (2009); Zimmermann, A. and Sener, M., ‘Chemical Weapons and the International Criminal Court’, (2014) 108 *AJIL* 436–448.

At the Kampala Review Conference, following a proposal by Belgium<sup>1630</sup>, three war crimes 973 relating to the use of prohibited weapons in non-international armed conflict were adopted by consensus. Article 8 para. 2 (e) of the ICC Statute was extended to include the crimes of: (xiii) Employing poison or poisoned weapons, (xiv) Employing asphyxiating, poisonous or other gases, and all analogous liquids, materials or devices, and (xv) Employing bullets which expand or flatten easily in the human body. This is the first time that crimes relating to prohibited weapons have been adopted specifically with regard to non-international armed conflicts, even though the ICTY has interpreted article 3 of its Statute, which refers to the ‘employment of poisonous weapons or other weapons calculated to cause unnecessary suffering’ to include war crimes committed in international as well as non-international armed conflicts<sup>1631</sup>.

The ‘Belgian proposal’ aimed to streamline the law applicable in international and non- 974 international armed conflicts, to bring article 8 of the ICC Statute more in line with existing customary international law and to respond to humanitarian needs in contemporary armed conflicts<sup>1632</sup>. Indeed, the International Committee of the Red Cross (ICRC) has argued for a long time that the prohibition to use poison, gas and expanding bullets by virtue of customary international law also applies to non-international armed conflicts and that infringements of these prohibitions incur individual criminal responsibility<sup>1633</sup>. This position has been confirmed by the ICTY<sup>1634</sup> and increasingly it has found support among States. The German international criminal code (‘Völkerstrafgesetzbuch’), for example, prohibits the use of these weapons in international and non-international armed conflicts<sup>1635</sup>.

The original ‘Belgian proposal’ had been far more extensive than what was ultimately 975 adopted in Kampala<sup>1636</sup>. Belgium had initially proposed to amend the Statute’s weapons provisions not only with respect to internal armed conflicts but also in relation to international armed conflicts, by adding crimes relating to the use of biological and chemical

<sup>1630</sup> The so-called ‘Belgian proposal’ is included in Annex III to Resolution ICC-ASP/8/Res.6, 26 November 2009, available at: <[http://www.icc-cpi.int/iccdocs/asp\\_docs/Resolutions/ICC-ASP-8-Res.6-ENG.pdf](http://www.icc-cpi.int/iccdocs/asp_docs/Resolutions/ICC-ASP-8-Res.6-ENG.pdf)> last accessed September 2015.

<sup>1631</sup> Geiß (2011) *YbIHumL* 337–352.

<sup>1632</sup> See Assembly of State Parties, 8<sup>th</sup> Session, Report of the Bureau on the Review Conference, ICC-ASP/8/43/Add.1, Annex I, 10 November 2009, p. 2, available at: <[http://www.icc-cpi.int/iccdocs/asp\\_docs/ASP8/ICC-ASP-8-43-Add.1-ENG.pdf](http://www.icc-cpi.int/iccdocs/asp_docs/ASP8/ICC-ASP-8-43-Add.1-ENG.pdf)> last accessed September 2015.

<sup>1633</sup> See only the ICRC Statement at the First Review Conference of the Statute of the International Criminal Court (ICC) Kampala, 31 May – 11 June 2010, available at: <[http://www.icc-cpi.int/iccdocs/asp\\_docs/RC2010/Statements/ICC-RC-gendeba-ICRC-ENG.pdf](http://www.icc-cpi.int/iccdocs/asp_docs/RC2010/Statements/ICC-RC-gendeba-ICRC-ENG.pdf)> last accessed September 2015.

<sup>1634</sup> In the *Čelebići* case it was stated that: ‘The Trial Chamber finds that both the substantive prohibitions in common article 3 of the Geneva Conventions, and the provisions of the Hague Regulations (which contain both the prohibition of poison and the use of weapons which might cause unnecessary suffering (article 23 a) and e)) constitute rules of customary international law which may be applied by the International Tribunal to impose individual criminal responsibility for the offences alleged in the Indictment’; *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgment, Trial Chamber, 16 November 1998, para. 316.

<sup>1635</sup> See article 12 (1) Nr. 1–3 of the German ‘Völkerstrafgesetzbuch’, available at: <<http://www.gesetze-im-internet.de/bundesrecht/vstgb/gesamt.pdf>> last accessed September 2015.

<sup>1636</sup> United Nations, Reference: C.N.733.2009.TREATIES-8, Belgium: Proposal of Amendments, 29 October 2009.

weapons as well as to the use of anti-personnel mines<sup>1637</sup>. In addition, Belgium had originally suggested amendments concerning the weapons defined in Protocols I and IV of the 1980 Conventional Weapons Convention, i.e. the Protocol on Non-Detectable Fragments (Protocol I, 1980) and Blinding Laser Weapons (Protocol IV, 1995) – and during the very early stages, the Cluster Munitions Convention and Protocols II and III of the 1980 Conventional Weapons Convention on Mines, Booby-traps (Protocol II, 1980) and Incendiary Weapons (Protocol III, 1980)<sup>1638</sup>. Belgium had argued that these proposals corresponded to treaty prohibitions that are widely ratified and widely considered to have acquired international customary law status<sup>1639</sup>. The proposed amendments, however, did not find broad support and were dropped already at the November 2009 session of the Assembly of States Parties. From the beginning Belgium had always emphasized that it was not the intent of the sponsors of these proposals to insist for amendments to be transferred to the Kampala Review Conference if they did not attract an overwhelming support<sup>1640</sup>.

976 Already in 1998 an early ICC Draft Statute, adopted by the Preparatory Committee in April 1998, had contained parallel provisions concerning prohibited weapons in international and non-international armed conflicts. In the course of the Rome Conference and in spite of objections raised by Sweden and Australia<sup>1641</sup>, however, the weapons provisions pertaining to non-international armed conflicts were dropped. Apparently this was part of a tacit package deal, according to which nuclear weapons – one of the most contentious issues in 1998 – were deleted from the list of prohibited weapons altogether, while the attempt to adopt provisions dealing with the use of weapons also in non-international armed conflicts was abandoned in return<sup>1642</sup>.

977 Notably, a similar constellation recurred prior to the Kampala Review Conference. Parallel to the Belgian proposal, Mexico submitted a proposal suggesting to include a prohibitory paragraph on ‘employing or threatening to employ nuclear weapons’ in article 8 of the Statute<sup>1643</sup>. Obviously, this contentious issue could have stalled any progress at the Kampala Review Conference, especially given the fact that the conference had already to deal with the highly controversial issue of the crime of aggression. Therefore, the Assembly of State Parties, at its 8<sup>th</sup> meeting in November 2009, decided that the issue of nuclear weapons should not be discussed at the Kampala conference and that instead it would be addressed at the 9<sup>th</sup> session of the Assembly of State Parties<sup>1644</sup>. With this all potential obstacles to the adoption of the truncated ‘Belgian proposal’ had been removed. Thus, the three crimes were adopted not only by consensus but, with the exception of the crime of ‘employing bullets which expand or flatten easily in the human body’, also without any significant debate.

978 In terms of substance the three provisions contain nothing new. The crimes now contained in article 8 para. 2 (e) (xiii), (xiv) and (xv) correspond to historic categories of prohibited weapons. They are specifications of the general prohibition of weapons that are of a nature to cause superfluous injury or unnecessary suffering or are by nature indiscriminate. Moreover, the newly adopted provisions replicate the provisions found in article 8 para. 2 (b) (xvii), (xviii) and (xix) of the Statute and the same Elements of Crimes apply to both categories of crimes. In accordance with article 121 para. 5 of the ICC Statute the amendments will enter

<sup>1637</sup> United Nations, Reference: C.N.733.2009.TREATIES-8, Belgium: Proposal of Amendments, 29 October 2009, ‘Amendment 2’, p. 5.

<sup>1638</sup> *Ibid.*, ‘Amendment 3’, p. 6.

<sup>1639</sup> *Ibid.*, pp. 2, 5, 6.

<sup>1640</sup> *Ibid.*, p. 3.

<sup>1641</sup> See, UN Doc. A/CONF.183/C.1/SR.34, paras. 4 (Sweden), 108 (Australia).

<sup>1642</sup> Cottier and Krivánek, article 8 para. 2(b), Preliminary remarks on subparagraphs (xvii)-(xx), mn 570.

<sup>1643</sup> See *Assembly of State Parties, 8<sup>th</sup> Session, Report of the Bureau on the Review Conference*, ICC-ASP/8/43/Add.1, Annex III, 10 November 2009, pp. 9–11, available at: <[http://www.icc-cpi.int/iccdocs/asp\\_docs/ASP8/ICC-ASP-8-43-Add.1-ENG.pdf](http://www.icc-cpi.int/iccdocs/asp_docs/ASP8/ICC-ASP-8-43-Add.1-ENG.pdf)> last accessed September 2015.

<sup>1644</sup> Available at: <[http://www.icc-cpi.int/iccdocs/asp\\_docs/Resolutions/ICC-ASP-8-Res.6-ENG.pdf](http://www.icc-cpi.int/iccdocs/asp_docs/Resolutions/ICC-ASP-8-Res.6-ENG.pdf)> last accessed September 2015.

into force for those State Parties which have accepted them one year after the deposit of their instruments of ratification or acceptance.

### 13. Paragraph 2(e)(xiii): Employing poison or poisoned weapons

**Literature:** See article 8 para. 2 (b) (xvii).

The prohibition of poison is one of the oldest prohibitions of a means of warfare under international law<sup>1645</sup>. An early example for a codified reference to the prohibition is article 70 of the 1863 Lieber Code, which provides that ‘the use of poison in any manner be it to poison wells, or food, or arms, is wholly excluded from modern warfare’. Moreover, the use of poison or poisonous weapons is prohibited in international and non-international armed conflicts by virtue of customary international law<sup>1646</sup>. The wording of the crime contained in article 8 para. 2 (e) (xiii) of the Statute is drawn from and identical with article 23 (a) of the 1907 Hague Regulations. Moreover, the wording of article 8 para. 2 (e) (xiii) is, *mutatis mutandis*, identical to the wording of article 8 para. 2 (b) (xvii), reference to which can accordingly be made<sup>1647</sup>. The only potentially contentious issue concerning this crime is the definition of ‘poison’; specifically the question in how far the use of gas and certain biological weapons are covered<sup>1648</sup>. This issue, however, was not touched upon during the Kampala Review Conference. In fact, already in 1998 the Preparatory Commission had avoided the difficult task of defining ‘poison’. Instead it adopted a threshold relating to the effects of the substance used. This threshold-requirement is reflected in the corresponding Elements of Crimes which require that ‘the substance was such that it causes death or serious damage to health in the ordinary course of events through its toxic properties’<sup>1649</sup>. Since these same Elements of Crimes apply to the amendment contained in article 8 para. 2 (e) (xiii), it was not necessary to further discuss this issue at the Kampala conference.

### 14. Paragraph 2(c)(xiv): Employing asphyxiating, poisonous or other gases, and all analogous liquids, materials or devices

**Literature:** See article 8 para. 2 (b) (xviii).

The wording of article 8 para. 2 (e) (xiv) is drawn from the 1925 Geneva Protocol for the Prohibition of the Use in War of Asphyxiating, Poisonous or other Gases, and of Bacteriological Methods of Warfare which in turn reaffirmed earlier prohibitions laid out in the 1899 Hague Declaration concerning Asphyxiating Gases and, for example, article 171 of the Versailles Peace Treaty<sup>1650</sup>. According to the ICRC Customary Law Study the prohibition of employing chemical weapons is a customary law rule applicable in international and non-international armed conflicts<sup>1651</sup>. The wording of article 8 para. 2 (e) (xiv) is, *mutatis mutandis*, identical to the wording of article 8 para. 2 (b) (xviii), reference to which can accordingly be made<sup>1652</sup>.

During the Rome Conference in 1998, the most contentious issue with regard to the prohibition of certain gases was the question of how far the use of riot control agents, such as tear gases, would henceforth be criminalized under the article 8 para. 2 (b) (xviii) of the ICC

<sup>1645</sup> With regard to the new crime see generally Geiß (2011) *YbIHL* 337–352.

<sup>1646</sup> Henckaerts and Doswald-Beck, *Customary International Humanitarian Law*, I (2009) 72.

<sup>1647</sup> Cottier and Krivánek, *article 8 para. 2(b)(xvii)*, mn 574 *et seq.*

<sup>1648</sup> *Ibid.*

<sup>1649</sup> Elements of Crime, ICC-ASP/1/3 (part II-B), p. 28, available at: <<http://www.icc-cpi.int/NR/rdonlyres/336923D8-A6AD-40EC-AD7B-45BF9DE73D56/0/ElementsOfCrimesEng.pdf>> last accessed September 2015; see Cottier and Krivánek, *article 8 para. 2(b)(xvii)*, mn 574 *et seq.*

<sup>1650</sup> Article 171 (1) of the Versailles Peace Treaty provides: ‘The use of asphyxiating, poisonous or other gases and all analogous liquids, materials or devices being prohibited, their manufacture and importation are strictly forbidden in Germany.’ The text is available at: <<http://net.lib.byu.edu/~rdh7/www/versa/versa4.html>> last accessed September 2015.

<sup>1651</sup> Henckaerts and Doswald-Beck, *Customary Humanitarian Law*, I (2009) 74.

<sup>1652</sup> Cottier and Krivánek, *article 8 para. 2(b)(xviii)*, mn 581 *et seq.*

Statute<sup>1653</sup>. As with the war crime of employing poison or poisonous weapons, the problem was ultimately ‘resolved’ in the Elements of Crimes. The explicit reference to a gas, substance or device that causes ‘death or serious damage to health in the ordinary course of events’ in the second element, means that the use of riot-control agents is typically excluded from the ambit of the war crime of using asphyxiating, poisonous or other gases. Because ‘in the ordinary course of events’ the use of riot-control gases usually does not cause death or serious damage to health. This discussion was not revisited in Kampala. This is somewhat astounding given that it is first and foremost in the context of non-international armed conflicts, i.e. in conflicts in which State armed forces oppose organized armed groups that the distinction of law-enforcement and other military operations is often brought to the fore and where the use of riot-control agents is more likely to occur than in international armed conflicts. The absence of any significant discussion of this matter in Kampala indicates that the compromise that was found during the Rome Conference, as it is now reflected in the Elements of Crimes, i.e. the reference to a substance’s effects in the ordinary course of events, is regarded as a suitable compromise also with respect to non-international armed conflicts. It follows that the use of riot-control agents in the context of a non-international armed conflict typically will not amount to a war crime. Because even in the rare instance that the employment of a riot-control agent leads to death or serious injury, e.g., loss of eyesight in case of the use of tear gas, in order to amount to a war crime in the sense of article 8 para. 2 (e) (xiv), it would still be necessary to show that this occurred ‘in the ordinary course of events’, which it seems will only rather exceptionally be the case.

#### 15. Paragraph 2(e)(xv): Employing bullets which expand or flatten easily in the human body

**Literature:** See article 8 para. 2 (b) (xix). Scheffer, D., *ASIL Insights: States Parties approve new crimes for International Criminal Court*, 22 June 2010, available at: <<http://www.asil.org/insights/volume/14/issue/16/states-parties-approve-new-crimes-international-criminal-court>> last accessed September 2015.

982 The prohibition of expanding bullets was introduced in 1899 by the Hague Declaration concerning the Prohibition of Using Bullets which Expand or Flatten Easily in the Human Body. The 1899 Declaration in turn was inspired by the 1868 Declaration of St. Petersburg, which aimed to outlaw excessively cruel weapons and constituted a direct reaction to the development of the so-called ‘dum-dum bullet’. The wording of article 8 para. 2 (e) (xv) is drawn from the 1899 Declaration and *mutatis mutandis*, identical to the wording of article 8 para. 2 (b) (xix), reference to which can accordingly be made<sup>1654</sup>.

983 It must be noted, however, that some delegations in Kampala were rather reluctant to extend the ICC’s jurisdiction over the crime now contained in article 8 para. 2 (e) (xv). They argued that the use of such bullets is necessary and particularly useful in certain law enforcement operations. In fact, similar concerns had already been expressed at the Rome conference in relation to article 8 para. 2 (b) (xix)<sup>1655</sup>. Indeed, the use of certain bullets that have the properties of the bullets described in article 8 para. 2 (e) (xv), in particular semi-jacketed or hollow-tipped bullets, has two operational advantages in certain law enforcement operations<sup>1656</sup>. First, bullets that expand – unlike the standard military full metal-jacket bullets – tend to remain in the body of the targeted person. This characteristic minimizes the risks for bystanders. Secondly, precisely because all or most of the energy of an expanding bullet is transferred to the body of the targeted person these bullets have considerable so-called ‘man-stopping-power’, which minimizes the risk for law enforcement officials and bystanders. Therefore, these bullets can be of particular utility when confronting an armed

<sup>1653</sup> *Ibid.*, mn 589 *et seq.*

<sup>1654</sup> Cottier and Krivánek, *article 8 para. 2(b)(xix)*, mn 600 *et seq.*

<sup>1655</sup> *Ibid.*, mn 603.

<sup>1656</sup> See also Hampson, *Study on human rights protection during situations of armed conflict, internal disturbances and tensions*, submitted to the Council of Europe, Steering Committee for Human Rights (CDDH), DH-DEV(2002) 1, para. 32.



person in an urban environment, in a crowd, in hostage rescue operations, at check-points and during house-searches. The ICRC Customary Law Study accordingly acknowledges that expanding bullets are commonly used by the police in law enforcement situations<sup>1657</sup>.

Against this background, at the Kampala conference some delegations would have preferred to insert an explicit exception regarding the use of expanding bullets for law enforcement purposes into the Elements of Crimes. Ultimately, however, the Elements of Crimes remained unaltered. Nevertheless, the concerns of these delegations about an overly broad criminalization of the use of expanding bullets in non-international armed conflicts found expression in Resolution 5 concerning the Amendments to article 8 of the Rome Statute as it was adopted by the Review Conference on 10 June 2010.

First of all, Resolution 5 in its seventh unnumbered preambular paragraph stipulates that the Elements of Crimes ‘...specify that the conduct took place in the context of and was associated with an armed conflict, which consequently confirms the *exclusion from the Court’s jurisdiction of law enforcement situations*’<sup>1658</sup>. Indeed, it is possible to conduct concurrent law enforcement operations in the context of an ongoing armed conflict. For example, police operations in response to a theft or bank-robbery without a nexus to a specific armed conflict remain outside the laws of war and are issues of criminal law enforcement irrespective of whether they are carried out in the course of an armed conflict. However, there is a risk that parties to an armed conflict could use the wording in Resolution 5 in order to qualify other operations, i.e. operations that have a nexus to a specific armed conflict, such as for example certain house-searches, check-point controls or similar operations, *per se* as law enforcement operations in order to circumvent the jurisdiction of the ICC. In this regard it must be noted that the Elements of Crimes do not contain such a sweeping ‘law-enforcement exception’. Rather, what matters according to the fourth element of crime, to which Resolution 5 refers, is the general requirement of whether there is nexus of the conduct in question to the armed conflict or not.

Secondly, preambular paragraph 9 of Resolution 5 stipulates that the crime of using expanding bullets is committed ‘*only* if the perpetrator employs the bullets *to uselessly aggravate* suffering or the wounding effect upon the target of such bullets, as reflected in customary international law’<sup>1659</sup>. In this regard, some delegations in Kampala referred explicitly to the ‘*specific intent*’ to ‘uselessly aggravate suffering or the wounding effect’ in the target<sup>1660</sup>. Such a ‘specific intent requirement’, however, is incongruous with the established Elements of Crimes. The third element of crime merely requires that the perpetrator ‘was aware that the nature of the bullets was such that their employment would uselessly aggravate suffering or the wounding effect’<sup>1661</sup>. A ‘specific intent requirement’, as opposed to the ‘awareness-requirement’ contained in the Elements of Crimes, would considerably narrow the scope of the crime.

It has already rightly been pointed out that a Resolution by the Review Conference does not affect the Elements of Crimes and that the wording of the Resolution should be understood as being consistent with the knowledge element specified in the Elements of Crimes<sup>1662</sup>. Indeed, Article 21 para. (1) (a) of the Statute establishes a hierarchy of applicable law by providing that ‘[t]he Court shall apply: In the first place, this Statute, Elements of Crimes and its Rules of Procedure and Evidence’. Nevertheless, the problem remains that

<sup>1657</sup> Henckaerts and Doswald-Beck, *Customary International Humanitarian Law*, I (2009) 77.

<sup>1658</sup> Resolution RC/Res.5, 10 June 2010, preambular 7 (emphasis added).

<sup>1659</sup> Resolution RC/Res.5, 10 June 2010, preambular 9 (emphasis added).

<sup>1660</sup> Scheffer, ASIL Insights: States Parties approve new crimes for International Criminal Court, 22 June 2010, available at: <<http://www.asil.org/insights/volume/14/issue/16/states-parties-approve-new-crimes-international-criminal-court>> last accessed September 2015.

<sup>1661</sup> Elements of Crimes, third element on article 8 para. 2(e)(xv).

<sup>1662</sup> Amnesty International, Public Statement, Comments regarding the language included in the resolution amending article 8 of the Rome Statute, adopted in plenary on 10 June 2010, available at: <[http://www.iccnw.org/documents/AI\\_Public\\_Statement\\_on\\_Weapons\\_Amendment\\_20100611\\_SJ.pdf](http://www.iccnw.org/documents/AI_Public_Statement_on_Weapons_Amendment_20100611_SJ.pdf)> last accessed May 2015.